

there is agreement that expanding bullets are not prohibited absolutely¹⁶⁶³, that they may lawfully be used in specific law enforcement operations and that in modern, asymmetric armed conflicts the distinction between law enforcement operations and the conduct of hostilities is sometimes blurred. For the purposes of the Rome Statute this means that whenever expanding bullets are used in operations that have a nexus to a specific armed conflict, the decisive issue will be whether the perpetrator ‘was aware that the nature of the bullets was such that their employment would uselessly aggravate suffering or the wounding effect’ in accordance with the third element of crime¹⁶⁶⁴.

VI. Article 8 para. 2 (f): scope of application of article 8 para. 2 (e)

Literature: See above Preliminary Remarks on para. 2 (c)-(f) and para. 3 and Cullen, A., ‘The definition of non-international armed conflict in the Rome Statute of the International Criminal Court: An analysis of the threshold of application contained in article 8 (2) (f)’, (2008) 12 *JCSL* 419–445; Zimmermann, A., ‘Die Wirksamkeit rechtlicher Hegung militärischer Gewalt – Ausgewählte Aspekte der Anwendbarkeit und Systemkohärenz des humanitären Völkerrechts’, in: *id. et Al. (eds.), Moderne Konfliktformen – Humanitäres Völkerrecht und privatrechtliche Formen* (2010) 7, 11.

1. Existence of a non-international armed conflict

- 988 The first part of the first sentence of article 8 para. 2 (f) of the Statute simply repeats the requirement, already contained in article 8 para. 2 (c) of the Statute, that a non-international armed conflict must exist before the prohibitions contained in article 8 para. 2 (e) become applicable¹⁶⁶⁵. Article 8 para. 2 (f) therefore, like article 8 para. 2 (d), limits the jurisdiction of the Court¹⁶⁶⁶. This is further confirmed by the introduction to the war crimes section of the elements of crimes adopted under article 9 of the Statute. Said introduction specifically provides that ‘[t]he elements for war crimes under article 8 para. 2 (c) and (e) are subject to the limitations addressed in article 8 para. 2 (d) and (f), which are not elements of crimes’. Accordingly the Preparatory Commission, when drafting the elements of crimes, did neither discuss the meaning and content of article 8 para. 2 (d) nor (f).

2. Exclusion of situations of internal disturbances and tensions

- 989 The second part of the first sentence of article 8 para. 2 (f) – parallel to article 8 para. 2 (d) – also excludes situations of internal disturbances and tensions from the scope of application of article 8 para. 2 (e)¹⁶⁶⁷.

3. Armed conflict that takes place in the territory of a State

- 990 The original Bureau proposal submitted to the Rome Conference¹⁶⁶⁸ had foreseen that the armed conflict, in order for the Court to be able to exercise its jurisdiction, must take place in the territory of a State Party to the Statute of the ICC. If included in that way, the provision might have been interpreted as to exclude the exercise of jurisdiction by the ICC over situations of internal armed conflicts for violations of the crimes now listed in article 8 when committed in the territory of a non-State Party even if the Security Council had referred the situation to the ICC by virtue of article 13 (b) of the Statute¹⁶⁶⁹ or where the State concerned had accepted the Court’s jurisdiction under article 12 para. 3 of the Statute.

¹⁶⁶³ Dörmann, *Elements of War Crimes* (2003) 292..

¹⁶⁶⁴ Cottier and Krivánek, *article 8 para. 2(b)(xix)*, mn 607.

¹⁶⁶⁵ For details see already Zimmermann and Geiß, *article 8 para. 2 (c)*, mn 270 *et seq.*

¹⁶⁶⁶ *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 225.

¹⁶⁶⁷ For details see already Zimmermann and Geiß, *article 8 para. 2 (d)*, mn 297 *et seq.*

¹⁶⁶⁸ UN Doc A/CONF.183/C.1/L.59, introductory paragraph to Section D, second sentence, p. 9.

¹⁶⁶⁹ For details to referrals by the Security Council see Schabas and Pwrella, *article 13*, mn 16.

As article 8 para. 2 (f) is now phrased, the crimes committed within the context of an internal armed conflict can also be prosecuted by the ICC even if the State in the territory of which the internal armed conflict took place is not a contracting party, provided that either there has been a Security Council referral under article 13 (b) of the Statute¹⁶⁷⁰, the crimes have been committed by a person who possesses the nationality of a contracting party in accordance with article 12 para. 2 (b) of the Statute¹⁶⁷¹, or where the territorial State has accepted the Court's jurisdiction *ad hoc* on the basis of article 12 para. 3 of the Statute.

4. Existence of protracted armed conflict

It was the Appeals Chamber of the ICTY, which in its decision in the *Tadić* case¹⁶⁷² first determined that an armed conflict exists when there is 'protracted armed violence ... within a State'¹⁶⁷³. This threshold, the inclusion of which into the Statute was proposed in a slightly modified form by Sierra Leone¹⁶⁷⁴, is significantly lower than the one contained in article 1 para. 1 of Add. Prot. II which requires sustained and concerted military operations and which indeed had still been referred to in the Bureau proposal of 19 July 1998¹⁶⁷⁵.

The term 'protracted' seems to imply a certain time element, which as far as article 1 of Add. Prot. II is concerned, is contained in the term 'sustained'. It has to be noted, however, that unlike in the case of sustained armed violence, the operations need not be kept going continuously by the conflicting Parties. This is confirmed by the French version, which unlike the French version of article 1 para. 1 of Add. Prot. II, does not refer to military actions which can be qualified as being '*opérations continues*' but simply to the fact that the armed conflicts between the different parties must take place '*de manière prolongée*'. In this regard the Chamber in *Lubanga* held that the requirement of 'protracted armed conflict' in article 8 para. 2 (f) focuses on the need for the armed groups in question to have the ability to plan and carry out military operations for a prolonged period of time¹⁶⁷⁶. This was confirmed in the *Bashir* decision where the Chamber also observed that 'to date, control over the territory by the relevant organised armed groups has been a key factor in determining whether they had the ability to carry out military operations for a prolonged period of time'¹⁶⁷⁷.

Nevertheless, it has been clarified that the element of territorial control as such is not a determinative criterion for the establishment of a non-international armed conflict¹⁶⁷⁸. Notwithstanding it may be used – as was the case in the *Bashir* and *Katanga* decisions, as

¹⁶⁷⁰ Schabas and Pewrella, *article 13*, mn 16.

¹⁶⁷¹ See Schabas and Pewrella, *article 12*, mn 18.

¹⁶⁷² *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, para. 70.

¹⁶⁷³ This view was confirmed by the decisions *Prosecutor v. Delalić et al.*, IT-96-21-T, Judgment, Trial Chamber, 16 November 1998, para. 183 and in *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, Trial Chamber, 10 December 1998, para. 59.

¹⁶⁷⁴ UN Doc A/CONF.183/C.1/L.62.

¹⁶⁷⁵ UN Doc A/CONF.183/C.1/L.59, introductory paragraph to Section D, second sentence, p. 8.

¹⁶⁷⁶ *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 234; *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 233; *Prosecutor v. Mbarushimana*, ICC-01/04-01/10, Decision on the Confirmation of charges, 16 December 2011, para. 103.

¹⁶⁷⁷ *Prosecutor v. Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest, 4 March 2009, para. 60. See also *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 239 where the Chamber held that the armed groups in question 'had the capacity to plan and carry out sustained and concerted military operations, insofar as they held control of parts of the territory of the Ituri District'.

¹⁶⁷⁸ *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 236; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 536.

an indicative criterion. Nevertheless, Chambers of the ICC have pointed out that ‘in addition to the requirement that the violence must be sustained and have reached a certain degree of intensity, article 1.1 of the Additional Protocol II provides that the armed groups must: (i) be under responsible command implying some degree of organisation of the armed groups, capable of planning and carrying out sustained and concerted military operations and imposing discipline in the name of a *de facto* authority, including the implementation of the Protocol; and (ii) exercise such control over territory as to enable them to carry out sustained and concerted military operations’¹⁶⁷⁹. In this context they have held that the *Tadić* definition, which requires ‘protracted armed violence between governmental authorities and organized armed groups or between such groups within a State’ echoes the two criteria of Additional Protocol II, except that the ability to carry out sustained and concerted military operations is no longer linked to territorial control¹⁶⁸⁰. In other words ICC Chambers have linked and assimilated the requirement of protracted armed violence to the threshold contained in article 1 para. 1 of Add. Prot. II¹⁶⁸¹. Thus, in addition to the requirement that armed groups must have a certain degree of organization, ICC Chambers have also referred to the ability to plan and carry out sustained military operations¹⁶⁸². In *Katanga* the Chamber went further by referring not only to sustained but also to *concerted* military operations¹⁶⁸³.

995 There has been ample debate whether by virtue of the reference to ‘protracted armed conflict’ article 8 para. 2 (f) of the Statute sets a higher threshold than article 8 para. 2 (d) or whether a uniform conception of non-international armed conflict applies under the Rome Statute, the separation of article 8 para. 2 (d) and (f) merely being the result of convoluted drafting and diplomatic concessions made during the drafting stages¹⁶⁸⁴. Notably, in the *Bemba* decision the Chamber explicitly contemplated the possibility of such a uniform interpretation of article 8 para. 2 (d) and (f). It held that the argument could be raised as to whether the requirement of ‘protracted armed conflict’ may nevertheless be applied also in the context of article 8 para. 2 (d) of the Statute. Yet, irrespective of such a ‘possible interpretive approach’, the Chamber did not deem it necessary to decide on the matter in the case at hand given that the period in question covered approximately five months and was therefore to be regarded as protracted in any event¹⁶⁸⁵.

996 Notably, however, in the *Bemba* decision the Chamber assimilated articles 8 para. 2 (d) and (f) in so far as it held that ‘[e]ven though mention of opposing parties to the conflict is made *expressis verbis* in article 8(2)(f) of the Statute but not in article 8(2)(d) of the Statute, the Chamber holds that this characteristic element in the context of an armed conflict not of an international character is a well-established principle in the law of armed conflict underlying the 1949 Geneva Conventions to which the Statute refers in article 8(2)(c) and (d) of the Statute [and that] [t]herefore, the Chamber holds that this element also applies to article 8(2)(c) of the Statute’¹⁶⁸⁶.

¹⁶⁷⁹ *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 232; *Prosecutor v. Bashir*, ICC-02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest, 4 March 2009, para. 59.

¹⁶⁸⁰ *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 233; *Prosecutor v. Bashir*, ICC-02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest, 4 March 2009, para. 59.

¹⁶⁸¹ See Zimmermann, in: *id. et. al* (eds.), *Moderne Konfliktformen* (2010) 7, 11.

¹⁶⁸² *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Decision on the confirmation of charges, Pre-Trial Chamber I, 29 January 2007, para. 233; *Prosecutor v. Bashir*, ICC-02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest, 4 March 2009, para. 59.

¹⁶⁸³ *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 239.

¹⁶⁸⁴ See only Cullen (2007) 12 *JCSL* 419–445.

¹⁶⁸⁵ *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 235.

¹⁶⁸⁶ *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 232.

5. Possible parties to the conflict

By virtue of its article 1 para. 1 Add. Prot. II to the four Geneva Conventions only applies 997 to situations where the armed forces of a Government confront dissident armed forces or where the governmental forces fight against insurgents who are organized in armed groups. Notwithstanding an ICRC proposal to the contrary, Add. Prot. II does not apply to armed conflicts between several armed groups such as in the case of so-called failed States¹⁶⁸⁷. Similarly, the Bureau proposal of 10 July 1998 had also still contained that concept¹⁶⁸⁸.

In contrast thereto, article 8 para. 2 (f) of the Statute has, also in that regard upon initiative 998 by Sierra Leone¹⁶⁸⁹, taken up the wider *Tadić* formula¹⁶⁹⁰ and accordingly now covers armed conflicts which occur either between governmental authorities and organized armed groups or between such groups¹⁶⁹¹. Thus three situations are covered:

- armed conflicts between governmental authorities and dissident governmental authorities,
- armed conflicts between governmental authorities and organized armed groups and
- armed conflicts between several organized armed groups.

For the purposes of article 8 para. 2 (f) of the Statute, the term ‘governmental authorities’ 999 (‘les autorités du gouvernement’) has replaced the term ‘armed forces’. Given this fact and the broad character of this term, it has to be understood as including not only the regular armed forces of a State, but rather all different kinds of armed personnel provided they participate in the required protracted armed violence, including, where applicable, units of national guards, the police forces, border police or other armed authorities of a similar nature.

The term ‘organized armed groups’ implies some kind of organization, capable of carrying 1000 out protracted armed violence. It is important to note, however, that the Statute, given the experiences of the last twenty years after the adoption of Add. Prot. II deliberately does not require that such armed forces have a responsible command or that they effectively exercise control over part of the territory of a State¹⁶⁹². In other words, it is clear that article 8 para. 2 (f) has not adopted the stricter threshold of article 1 para. 1 of Add. Prot. II. Thus, there might also exist an armed conflict involving guerilla groups acting in small independent operational groups or similar forms of armed groups, provided that there is indeed protracted armed violence on a larger scale which can be characterized as an armed conflict.

E. Article 8 para. 3: Maintenance of law and order by legitimate means

Literature: See Preliminary Remarks on article 8 para. 2 (c)-(f) and para. 3, and Baptista, E. C., *Jus cogens em direito internacional* (1997); Dupuy, R. J. and Leonetti, A., ‘La notion de conflit armé à caractère non-international’, in: A. Cassese (ed.), *The New Humanitarian Law of Armed Conflict* (1979) 258; Furet, M.-F., Martinez, J.-C. and Dorandeu, H., *La guerre et le droit* (1979) 173–175 and 187–188; Hannikainen, L., *Peremptory Norms (Jus Cogens) in International Law: Historical Development, Criteria, Present Status* (1988); Kasto, J., *Jus Cogens and Humanitarian Law* (1994); Milanovic, M. and Hadzi-Vidanovic, V., ‘A taxonomy of armed conflict’, in: N. D. White (ed.), *Research Handbook on International Conflict and Security Law* (2013) 256.

¹⁶⁸⁷ For details see Sandoz *et al. Commentary* (1987), mn 4461.

¹⁶⁸⁸ UN Doc A/CONF.183/C.1/L.59, introductory paragraph to Section D, second sentence, p. 8.

¹⁶⁸⁹ UN Doc A/CONF.183/C.1/L.62.

¹⁶⁹⁰ *Prosecutor v. Tadić*, IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal, Appeals Chamber, 2 October 1995, para. 70.

¹⁶⁹¹ *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, paras. 231, 232; *Prosecutor v. Bashir*, ICC-02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest, 4 March 2009, para. 60; *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07, Decision on the confirmation of charges, Pre-Trial Chamber I, 26 September 2008, para. 239; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 234.

¹⁶⁹² *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 536; *Prosecutor v. Bemba*, ICC-01/05-01/08, Pre-Trial Chamber II, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor, 15 June 2009, para. 236.

- 1001 The wording of article 8 para. 3 of the Statute is taken from article 3 para. 1 of Add. Prot. II. The first part of that last provision which provides that ‘nothing in this Protocol [*i. e.* Add. Prot. II] shall be invoked for the purpose of affecting the sovereignty of a State’ was however not retained since that might have undermined the whole idea of the ICC as such. It is noteworthy that while the Preparatory Commission drafting the elements of crimes under article 9 of the Statute specifically provided in the introduction to the elements on war crimes that both article 8 para. 2 (d) and article 8 para. 2 (f) limit the jurisdiction of the Court, no reference is made to article 8 para. 3 in the text of the elements of crimes as such nor in its introduction.
- 1002 It has to be further noted that the addition of a provision which – somewhat in line with the idea contained in article 3 para. 2 of Add. Prot. II – would have excluded the jurisdiction of the Court where an external party had interfered in the conflict¹⁶⁹³ as indeed proposed during the drafting of the Statute, was not included in the text of the Statute.
- 1003 The fact that article 8 para. 3 of the Statute refers to the responsibility of a Government to maintain or re-establish law and order, as compared to Add. Prot. II, which refers to the responsibility of the Government, is to be considered a pure technical change which does not alter the substance of the provision. In practice therefore, article 8 para. 3 of the Statute might, if ever, only legitimize actions taken on behalf of the respective Government of the State in which the internal armed conflict is taking place and its armed forces, but not actions by members of armed forces of a third State, or action taken by insurgents or non-governmental armed groups. Accordingly, the first question the Court would have to ask itself in a given case is whether an accused who is relying on article 8 para. 3 of the Statute, was indeed acting on behalf of the legitimate Government of the State concerned.
- 1004 Of course, it may at times be disputed who the respective Government is at a given time. In particular, difficulties in the application of article 8 para. 3 may arise where, in the course of a non-international armed conflict, States begin to recognize the rebel forces as the new legitimate Government of a country and where a change of the Government is at issue. With respect to article 8 para. 3 of the Statute, the question is raised up until which point in time an accused may claim to have acted on behalf of the old government and from when on an accused could claim having acted on behalf of the new government. Of course, recognition respectively de-recognition, which in any case may take different forms¹⁶⁹⁴, by individual States can hardly be decisive as to whether an accused may rely on article 8 para. 3 of the Statute. For the sake of legal certainty in the realm of article 8 para. 3 of the Statute, a change in the Government should only be assumed once the aspirant Government has gained widespread control over the country and where it has been widely recognized¹⁶⁹⁵.
- 1005 The Statute of the ICC provides that a person who commits a crime within the jurisdiction of the Court shall be individually responsible and liable for punishment. Thus, a provision like article 8 para. 3 of the Statute, which refers to the powers and responsibilities of the organs of a State seems at first glance to be misplaced in the Statute. Still, it has to be noted that whenever a Government is taking an action which is legitimate under article 8 para. 3 of the Statute, any participation therein can *ipso facto* not give rise to individual criminal responsibility. Accordingly article 8 para. 3 of the Statute would have been better placed in article 21¹⁶⁹⁶.
- 1006 The fact that article 8 para. 3 of the Statute only refers to action which is undertaken to maintain or re-establish law and order in the State or to defend the unity and territorial integrity of the State clarifies that action undertaken for other purposes, *i. e.* for example to pursue a genocidal policy, can never be justified. Thus, one might say, that article 8 para. 3 of the Statute not only excludes illegitimate *means* but also the pursuance of illegitimate *goals*.

¹⁶⁹³ The proposal contained in UN Doc A/CONF.183/C.1/L.74 was submitted by Indonesia, the Philippines, Thailand and Vietnam.

¹⁶⁹⁴ *Ibid.*

¹⁶⁹⁵ Milanović and Hadzi-Vidanovic, in: White and Henderson (ed.), *Handbook* (2013) 256.

¹⁶⁹⁶ For details see McAuliffe deGuzman, *article 21*.

The most crucial part of the provision under consideration are the last words which underline that only ‘legitimate means’ might be used to maintain or re-establish law and order in the State or to defend the unity and territorial integrity of the State. If the State’s authority had been totally reserved in that regard, the part of the Statute on internal armed conflict would have run the risk to be almost completely deprived of its very substance and meaning¹⁶⁹⁷. 1007

The reference to ‘legitimate means’ in a way therefore refers back to the list of war crimes contained in article 8 para. 2 (c) and (e) of the Statute, since any act which would run counter to one of the specific prohibitions contained therein cannot be considered legitimate. Otherwise these specific prohibitions would themselves have become pure shells. Accordingly, even reasons of state security might not be invoked in order to justify the commission of any of the war crimes listed in article 8 para. 2 (c) and (e) of the Statute¹⁶⁹⁸. 1008

This interpretation of para. 3 is further confirmed by the fact that at least the content of common article 3 is by now considered to constitute a peremptory norm of general customary international law¹⁶⁹⁹, derogation of which is not allowed by virtue of article 53 of the Vienna Convention on the Law of Treaties. 1009

¹⁶⁹⁷ See for a parallel proposition with regard to article 3 para. 1 Add. Prot. II, Sandoz *et al.* (eds.), *Commentary* (1987) mn 4501.

¹⁶⁹⁸ *Ibid.*

¹⁶⁹⁹ See for even more far-reaching propositions Hannikainen, *Peremptory Norms* (1988) 620–621; Kasto, *Jus Cogens* (1994) 50–51 and Baptista, *Jus Cogens* (1997) 464 and 474.

Article 8bis Crime of aggression

1. For the purpose of this Statute, 'crime of aggression' means the planning, preparation, initiation or execution, by a person in a position effectively to exercise control over or to direct the political or military action of a State, of an act of aggression which, by its character, gravity and scale, constitutes a manifest violation of the Charter of the United Nations.

2. For the purpose of paragraph 1, 'act of aggression' means the use of armed force by a State against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with the Charter of the United Nations. Any of the following acts, regardless of a declaration of war, shall, in accordance with United Nations General Assembly resolution 3314 (XXIX) of 14 December 1974, qualify as an act of aggression:

- (a) The invasion or attack by the armed forces of a State of the territory of another State, or any military occupation, however temporary, resulting from such invasion or attack, or any annexation by the use of force of the territory of another State or part thereof;
- (b) Bombardment by the armed forces of a State against the territory of another State or the use of any weapons by a State against the territory of another State;
- (c) The blockade of the ports or coasts of a State by the armed forces of another State;
- (d) An attack by the armed forces of a State on the land, sea or air forces, or marine and air fleets of another State;
- (e) The use of armed forces of one State which are within the territory of another State with the agreement of the receiving State, in contravention of the conditions provided for in the agreement or any extension of their presence in such territory beyond the termination of the agreement;
- (f) The action of a State in allowing its territory, which it has placed at the disposal of another State, to be used by that other State for perpetrating an act of aggression against a third State;
- (g) The sending by or on behalf of a State of armed bands, groups, irregulars or mercenaries, which carry out acts of armed force against another State of such gravity as to amount to the acts listed above, or its substantial involvement therein.

Literature: Ambos, K., 'The Crime of Aggression after Kampala', (2010) 53 *GYbIL* 463; Anggadi, F., French, G. and Potter, J., 'Negotiating the Elements of the crime of aggression', in: S. Barriga. and C. Kreß(eds.), *The Travaux Préparatoires of the Crime of Aggression* (CUP 2012) 58; Barriga, S., 'Negotiating the Amendments on the crime of aggression', in: S. Barriga and C. Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (CUP 2012) 3; Barriga, S. and Grover, L., 'A Historic Breakthrough on the Crime of Aggression', (2011) 105 *AJIL* 517; Bertram-Nothnagel, J. F., 'A Seed for World Peace Planted in Africa: The Provisions on the Crime of Aggression Adopted at the Kampala Review Conference for the Rome Statute of the International Criminal Court', (2010) 2 *African Legal Aid Quarterly* 9; Blokker, N. and Kreß, C., 'A Consensus Agreement on the Crime of Aggression: Impressions from Kampala', (2010) 23 *LeidenJIL* 889; von Braun, L. and Micus, A., 'Judicial Independence at Risk: Critical Issues regarding the Crime of Aggression Raised by Selected Human Rights Organizations', (2012) 10 *JICJ* 111; Broms, B., 'The Definition of Aggression', (1977) 154 (I) *RdC* 299; Bruha, T., *Die Definition der Aggression* (Duncker & Humblot 1980); Cassese, A., 'On Some Problematical Aspects of the Crime of Aggression', (2007) 20 *LeidenJIL* 841; Cherif Bassiouni, M. and Ferencz, B., 'The Crime Against Peace and Aggression: From its Origins to the ICC', in: M. Cherif Bassiouni (ed.), *International Criminal Law*, I (Martinus Nijhoff 3rd edition 2008); Clark, R. S., 'Amendments to the Rome Statute of the International, Criminal Court Considered at the First Review Conference on the Court, Kampala, 31 May-11 June 2010', (2010) 2 *GoJIL* 689; Clark, R.S., 'The Crime of Aggression', in: C. Stahn., and G. Sluiter(eds.), *The emerging practice of the International Criminal Court* (Martinus Nijhoff 2009) 709; Creegan, E., 'Justified Uses of Force and the Crime of Aggression', (2012) 10 *JICJ* 59; Dinstein, Y., 'The Distinction Between War Crimes and Crimes Against Peace', (1994) 24 *IsYbHumRts* 1; Dinstein, Y., *War, Aggression and Self-Defence* (CUP, 5th edition, 2011); Ferencz, B., *Defining International Aggression: The Search for World Peace* (Oceana 1975); Ferencz, D. M., 'The Crime of

Aggression: Some Personal Reflections on Kampala', (2010) 23 *LeidenJIL* 905; Gaja, G., 'The Long Journey Towards Repressing Aggression', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court*, I (OUP 2002) 427; Glaser, S., 'Quelques remarques sur la définition de l'aggression en droit international penal', in: S. Hohenleitner, L. Lindner and F. Nowakowski(eds.), *Festschrift Rittler* (Scientia 1957) 383; Glueck, S., *The Nuremberg Trial and Aggressive War* (Knopf 1946); Gray, C., *International Law and the Use of Force* (OUP, 2nd edition, 2004); Griffiths, R. L., 'International Law, the Crime of Aggression and the *Ius Ad Bellum*', (2002) 2 *ICLRev* 301; Heller, K. J., 'Retreat from Nuremberg: the Leadership Requirement in the Crime of Aggression', (2007) 18 *EJIL* 477; Heller, K. J., 'The Uncertain Legal Status of the Aggression Understandings', (2012) 10 *JICJ* 229; Heinsch, C. R., 'The Crime of Aggression after Kampala: Success or Burden for the Future?', (2010) 2 *GoJIL* 713; Hummrich, M., *Der völkerrechtliche Straftatbestand der Aggression* (Nomos 2001); Kaul, H.-P., 'Is It Possible to Prevent or Punish Future Aggressive War-making?', (2011) *FICHL Occasional Paper Series* 1; Kemp, G., *Individual Criminal Liability for the International Crime of Aggression* (Intersentia 2010); Kreß, C., 'The Crime of Aggression Before the First Review Conference', (2007) 20 *LeidenJIL* 851; Kreß, C., 'Time for Decision: Some Thoughts on the Immediate Future of the Crime of Aggression: A Reply to Andreas Paulus', (2009) 20 *EJIL* 1129; Kreß, C., Barriga, S., Grover, L. and von Holtzendorff, L., 'Negotiating the Understandings on the crime of aggression', in: S. Barriga, and C. Kreß, (eds.), *The Travaux Préparatoires of the Crime of Aggression* (CUP 2012) 81; Kreß, C. and von Holtzendorff, L., 'The Kampala Compromise on the Crime of Aggression', (2010) 8 *JICJ* 1179; McDougall, C., *The Crime of Aggression under the Rome Statute of the International Criminal Court* (CUP 2013); Mancini, M., 'A Brand New Definition for the Crime of Aggression: The Kampala Outcome', (2012) 81 *NordJIL* 227; Manson, R., 'Identifying the Rough Edges of the Kampala Compromise', (2010) 21 *CLF* 417; May, L., *Aggression and Crimes Against Peace* (CUP 2008); Milanovic, M., 'Aggression and Legality: Custom in Kampala', (2012) 10 *JICJ* 165; Müller-Schieke, I. K., 'Defining the Crime of Aggression Under the Statute of the International Criminal Court', (2001) 14 *LeidenJIL* 409; Murphy, S. D., 'Aggression, Legitimacy and the International Criminal Court', (2009) 20 *EJIL* 1147; O'Connell, M. E. and Niyazmatov, M., 'What is Aggression? Comparing the *Jus ad Bellum* and the ICC', (2012) 10 *JICJ* 189; Paulus, A., 'Second Thoughts on the Crime of Aggression', (2009) 20 *EJIL* 1117; Politi, M., 'The ICC and the Crime of Aggression: A Dream that Came Trough and the Reality Ahead', (2012) 10 *JICJ* 267; Randelzhofer, A. and Dörr, O., 'Article 2 (4)', in: B. Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (OUP, 3rd ed., 2012) 200; Randelzhofer, A. and Nolte, G., 'Article 51', in: B. Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (OUP, 3rd ed., 2012) 1397; Reisinger Coracini, A., 'Evaluating Domestic Legislation on the Customary Crime of Aggression Under the Rome Statute's Complementarity Regime', in: C. Stahn and G. Sluiter(eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff 2009) 727; Reisinger Coracini, A., 'The International Criminal Court's Exercise of Jurisdiction over the Crime of Aggression – at Last ... in Reach ... over Some', (2010) 2 *GoJIL* 745; Rosenfeld, F., 'Individual Civil Responsibility for the Crime of Aggression', (2012) 10 *JICJ* 249; Sayapin, S., *The Crime of Aggression in International Criminal Law* (Springer 2014); von Schaack, B., 'Negotiating at the Interface between Law and Politics: The Crime of Aggression', (2011) 49 *ColJTransnatL*, 505; von Schaack, B., 'Par in Pare Imperium Non Habet: Complementarity and the Crime of Aggression', (2012) 10 *JICJ* 133; von Schaack, B., 'The Aggression Amendments: points of Consensus and Dissension', in American Society of International Law (ed.), *Proceedings of the 105th Annual Meeting*, (2012) *ASIL* 154; Schabas, W. A., 'Origins of the Criminalization of Aggression: How Crimes Against Peace Became the "Supreme International Crime"', in: M. Politand G. Nesi(eds.), *The International Criminal Court and the Crime of Aggression* (Ashgate 2004) 17; Scharf, M. P., 'Universal Jurisdiction and the Crime of Aggression', (2012) 53 *HarvILJ* 357; Scheffer, D., 'The Complex Crime of Aggression under the Rome Statute', (2010) 23 *LeidenJIL* 897; Schmalenbach, K., 'Das Verbrechen der Aggression vor dem Internationalen Strafgerichtshof: Ein politischer Erfolg mit rechtlichen Untiefen', (2010) 65 *JZ* 745; Sellars, K., 'Delegitimizing Aggression, First Steps and False Starts after the First World War', (2012) 10 *JICJ* 7; Sellars, K., *'Crimes Against Peace' and International Law* (CUP 2013); Solera, O., *Defining the Crime of Aggression* (Cameron May 2007); Stone, J., 'Hopes and Loopholes in the 1974 Definition of Aggression', (1977) 71 *AJIL* 224; Trahan, J., 'A Meaningful Definition of the Crime of Aggression', (2012) 33 *PennJIL* 101; Trahan, J., 'Is Complementarity The Right Approach For The International Criminal Court's Crime of Aggression? Considering the Problem of "Overzealous" National Court Prosecutions', (2012) 45 *CornJIL* 569; Trahan, J., 'The Rome Statute's Amendment on the Crime of Aggression: Negotiations at the Kampala Review Conference', (2011) 11 *ICLRev* 49; Ventura, M. and Gillett, M., 'The Fog of War: Prosecuting Illegal Uses of Force as Crimes Against Humanity', (2013) 12 *WashUGlobalStudLRev* 523; Weigend, T., 'In general a principle of justice: The Debate on the 'Crime against Peace' in the Wake of the Nuremberg Judgement', (2012) 10 *JICJ* 41; Weisboard, N., 'Judging Aggression', (2011) 50 *ColJTransnatL* 82; Wenaweser, C., 'Reaching the Kampala Compromise on Aggression: The Chair's Perspective', (2010) 23 *LeidenJIL* 883; Werle, G., 'The Crime of Aggression between International and Domestic Criminal Law', in: S. Manacorda and A. Nieto Martín (eds.), *Criminal Law between War and Peace* (Cuenca 2009) 405; Wills, A. G., 'The Crime of Aggression and the Resort to Force against Entities in *Statu Nascendi*', (2012) 10 *JICJ* 83; Zimmermann, A., 'Amending the Amendment Provisions of the Rome Statute: The Kampala Compromise on the Crime of Aggression and the Law of Treaties', (2012) 10 *JICJ* 209; Zimmermann, A., 'The Creation of a Permanent International Criminal Court', (1998) *MPYbUNL* 169; Zourek, J., 'Enfin une définition de l'agression', (1974) 20 *AFDI* 9.

See also the literature on articles 5, 15bis and 15ter.

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A. Introduction

Article 8bis consists of three parts. Article 8bis para. 1 defines the ‘crime of aggression’,¹ consisting of an ‘act of aggression’ which, ‘by its character, gravity and scale, constitutes a manifest violation of the Charter of the United Nations’. Article 8bis para. 2 then defines such an ‘act of aggression’² by largely referring to the wording of United Nations General Assembly Resolution 3314 (XXIX) of 14 December 1974 (hereinafter: GA Resolution 3314 [‘Definition of Aggression’]).³ The chapeau of article 8bis para. 2 accordingly sets out the notion of an ‘act of aggression’ in a generic manner, while article 8bis para. 2 lit. a)-g) then lists specific types of such acts of aggression. Finally, article 8bis para. 1 also defines the various modalities of the crime of aggression, as well as circumscribes who might commit any such crime of aggression.

Under the Kampala amendment, the first sentence of article 9 para. 1 now also provides that Elements of Crimes under article 9, as adopted by the contracting parties at Kampala, shall assist the Court in the interpretation and application of article 8bis, too. The respective elements of crimes relating to article 8bis have been adopted as Annex II of Resolution RC/Res. 6, and have accordingly been incorporated into the overall elements of crimes without any specific issues arising as to their legal relevance and impact on the interpretation of the statutory provision concerned, *i. e.* article 8bis³.

¹ Also see Ambos (2010) 53 *GYbIL* 463, 482, who differentiates between the ‘micro level’ of the individual crime (para. 1) and the ‘macro level’ of the collective State act of aggression (para. 2).

² UN Doc A/RES/29/3314 (XXIX) (14 December 1974), Annex: Definition of Aggression.

³ See generally on the normative relevance and impact of the elements of crimes adopted under article 9 Godirov and Clark, *article 9, passim*.

B. Drafting history of article 8bis

- 3 While the drafting history of article 8bis prior to the Kampala Review Conference is discussed above⁴, it is worth noting that the main debates concerning the crime of aggression that took place during the said conference focused on the conditions for the Court's exercise of its jurisdiction when it comes to the crime of aggression. In particular, the **Kampala negotiations focused on the respective role of the Security Council**.
- 4 Somewhat in contrast thereto no changes occurred during the Kampala Review Conference *vis-à-vis* the **substance of the definition of the crime of aggression**, which was adopted verbatim as already contained in the proposal by the **Special Working Group on the Crime of Aggression (SWGCA)**⁵.
- 5 While the Kampala Review Conference did not bring along discussions on the definition of aggression itself or on the Elements of Crimes (of which a complete draft text was already existent⁶), the President's First Paper reflected progress on the drafting of the two Understandings related to the substance of the crime of aggression, namely **Understandings no. 6 and 7**, which aim to further define the **content and substance of the crime**⁷.

C. Relationship of article 8bis with other provisions of the Statute

I. Article 5 para. 2

- 6 With the entry into force of the amendment on the crime of aggression in accordance with para. 1 of the enabling Resolution RC/Res.6, **article 5 para. 2 of the Statute lost its relevance**. From the moment defined in article 15bis/ter para. 2 and 3 onwards, the Court will furthermore be able, in accordance with article 5 para. 1, to exercise its jurisdiction with regard to the crime of aggression, subject to the temporal limitations laid down in article 15bis/ter para. 2.

II. Article 10

- 7 Understanding no. 4, as adopted by the Kampala Review Conference with regard to the amendment on the crime of aggression, which ought to be taken into account as an additional tool of interpretation within the meaning of article 31 para. 2 lit. b) of the Vienna Convention on the Law of Treaties⁸, provides that **article 8bis** defining the crime of aggression (and accordingly also the underlying acts of aggression) ought to have **no bearing on general international law**. It provides:

'It is understood that the amendments that address the definition of the act of aggression and the crime of aggression do so for the purpose of this Statute only. The amendments shall, in accordance with article 10 of the Rome Statute, not be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than this Statute.'

⁴ Zimmermann, *article 5*, mn 30 *et seq.*

⁵ ICC- ASP/8/Res. 6, 26 November 2009.

⁶ Anggadi, French and Potter, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 58, 59.

⁷ President's First Paper, 10 June 2010, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 774. For the drafting process of the Understandings, also see Kreß, Barriga, Grover and von Holtzendorff, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 81, 91 *et seq.* For details on the respective Understandings and their drafting details, see mn 38.

⁸ 1155 UNTS 331.

Said understanding thus not only contains an explicit reference to article 10 of the Rome Statute, but mirrors article 10, reference to which can therefore be made⁹. Indeed given that article 8bis, containing the definition of the crime of aggression, was inserted into Part 2 of the Rome Statute, Understanding no. 4 is redundant since the very same effect is already reached by article 10, which specifically refers to the interpretation of ‘this part’ *i. e.* Part 2.

III. Articles 15bis and 15ter

While article 8bis contains the substantive definition of the crime of aggression, articles 15bis and 15ter contain the requirements for the Court to exercise its treaty-based jurisdiction (article 15bis) respectively its jurisdiction to be exercised on the basis of a Security Council referral (article 15ter).

IV. Article 20 para. 3

Para. 7 of the enabling resolution adopted at the Kampala Review Conference (Resolution RC/Res.6) provides that the chapeau of article 20 para. 3, as revised, will also refer to persons who have been tried by another court for conduct also ‘proscribed under Article (...) 8bis.’ They shall accordingly, as a matter of principle and subject to the *bona fide* character of the domestic proceedings as defined in article 20 para. 3, not be tried by the Court with respect to the same conduct. This is true notwithstanding the adoption of Understanding no. 5 of the ‘Understandings regarding the amendments to the Rome Statute of the International Criminal Court on the crime of aggression’, which *inter alia* provides that ‘the amendments [on the crime of aggression] shall not be interpreted as creating the (...) obligation to exercise domestic jurisdiction with respect to an act of aggression committed by another State’. While it has been claimed that this Understanding aims at discouraging States from proceeding with domestic cases for the commission of the crime of aggression, the inclusion of a reference to article 8bis into the text of article 20 para. 3 confirms, if there was need, that the principle of complementarity fully applies also when it comes to the crime of aggression. At the same time, the sole legal effect of any possible lack of genuine domestic proceedings under the principle of complementarity is that the ICC could then exercise its jurisdiction; yet, to state the obvious, this does not amount to any form of legal obligation to prosecute any possible crime of aggression.

Given the fundamental distinction between *jus ad bellum* and *jus in bello* rules, it is however only domestic proceedings addressing violations of the *jus ad bellum* amounting to a crime of aggression that can bar the Court from exercising its jurisdiction with regard to article 8bis.

V. Article 25 para. 3bis

In line with article 8bis para. 1 according to which the crime of aggression may only be committed by ‘a person in a position effectively to exercise control over or to direct the political or military action of a State’, article 25 para. 3bis provides that, while the various forms of perpetration, as well as aiding and abetting, as foreseen in article 25 para. 3, also apply with regard to the crime of aggression, any person to be eventually held criminally responsible with regard to the said crime by the Court must have been in a position required by both article 8bis para. 1 and article 25 para. 3bis.

⁹ See Triffterer/Heinze, *article 10, passim*, in particular mn 13.

VI. Article 31 para. 1 lit. c)

- 13 Article 31 para. 1 lit. c) refers to the notion of **self-defense** as a possible ground excluding criminal responsibility under the Statute under specific narrow circumstances. Yet, this reference is only made so as to exclude criminal responsibility with regard to certain specific acts. Said provision **does not** however, by the same token, also **address the issue of inter-State self-defense** under article 51 of the Charter of the United Nations¹⁰ respectively under the applicable rule of customary international law. Moreover, to the extent military force is being used within the limits of article 51 of the Charter respectively customary international law, such action does not amount to a violation of the Charter of the United Nations at all, and even less a manifest violation thereof which, therefore, *ipso facto*, excludes such action to even constitute an act of aggression within the meaning of article 8bis para. 2.

D. Article 8bis para. 1

I. ‘For the purpose of this Statute (...)’

- 14 The introductory words of article 8bis para. 1, ‘[f]or the purpose of this Statute’ are identical to the very same formula used in articles 6, 7 and 8 para. 2 respectively. The phrase confirms, in line with article 10¹¹, that the definition of the crime of aggression, just like the definition of genocide under article 6, of crimes against humanity under article 7, or finally of war crimes under article 8, is meant to be **only relevant for the purpose of the Court’s exercise of jurisdiction**.
- 15 The drafters of the Kampala amendment found it appropriate and necessary, however, to further confirm this as part of the enabling Resolution RC/Res.6, which in its Annex III contains ‘Understandings regarding the amendments to the Rome Statute of the International Criminal Court on the crime of aggression’. **Understanding no. 4** accordingly provides:

‘It is understood that the amendments that address the definition of the act of aggression and the crime of aggression do so for the purpose of this Statute only. The amendments shall, in accordance with article 10 of the Rome Statute, not be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than this Statute.’

- 16 This does not prejudice, as indeed article 10 confirms, however, that the definition of the crime of aggression, when compared with articles 6, 7 and 8, is even more closely interrelated with customary international law generally, and the Charter of the United Nations in particular, than those other provisions, and might thus influence the further development of general international law beyond the parameters of international criminal law, the saving clause in the chapeau of article 8bis para. 1 notwithstanding.

II. ‘(...) ‘crime of aggression’ (...)’

- 17 Article 8bis is centered around the term of the **‘crime of aggression’ instead of referring to a ‘war of aggression’**, the latter terminology having been used in both, the statutes of the two post-World War II International Military Tribunals¹², as well as in article 5 of GA Resolution 3314 (‘Definition of Aggression’). Indeed, while the latter distinguished between ‘aggression’

¹⁰ 1 UNTS 16.

¹¹ See generally on article 10, Triffterer/Heinze, in this volume, in particular, mn 2.

¹² Article 6 lit. a) of the Charter of the International Military Tribunal (1950) 1 *Trials of War Criminals before the Nuernberg Military Tribunals under Control Council Law No. 10*, xi; article 5 lit. a) of the Charter of the

as such (giving rise to international responsibility only¹³) and a ‘war of aggression’ (only the latter amounting to a ‘crime against international peace’ under the terms of the aforesaid resolution¹⁴), article 8bis instead chooses another approach by using the terms ‘act of aggression’ as defined in para. 2 (committed by a State) and the ‘crime of aggression’ as defined in para. 1 (committed by an individual). Article 8bis thus avoids any reference to the loaded notion of a ‘war of aggression’.

Article 8bis para. 1 provides that certain ‘acts of aggression’, namely those which due to their character, gravity and scale, constitute manifest violations of the Charter of the United Nations, entail **individual criminal responsibility** under the Court’s statute. Article 8bis thereby confirms the idea that certain qualified violations of the prohibition of the use of force and thus the *jus ad bellum*, just like serious violations of the *jus in bello*, as well as acts of genocide and crimes against humanity, do not only entail State responsibility, but also carry with them individual criminal sanctions under international law.

This approach, at least as a matter of principle, stands in line with both, **article 6 lit. a) of the Statute of the International Military Tribunal and with article 5 lit. a) of the Charter of the International Military Tribunal for the Far East**, under which the ‘planning, preparation, initiation or waging of a war of aggression, or a war in violation of international treaties, agreements or assurances’, respectively the ‘planning, preparation, initiation or waging of a declared or undeclared war of aggression, or a war in violation of international law, treaties, agreements or assurances’, constituted a crime against peace. This approach had then been followed in article 5 para. 2 of GA Resolution 3314 (‘Definition of Aggression’) according to which a ‘war of aggression’ was said to constitute a crime against international peace. Finally, it had been the ILC which incorporated in its 1996 **Draft Code of Crimes against the Peace and Security of Mankind** the crime of aggression.¹⁵

The concept of individual criminal responsibility for the crime of aggression is also mirrored in State practice, since a significant, although not yet overwhelming number of States have, albeit with variations, incorporated the crime of aggression into their respective domestic law or are in the process of doing so¹⁶. What is more is that recent domestic court decisions¹⁷ have also confirmed the **customary law** character of the individual criminal responsibility for the crime of aggression arising under international law.

III. ‘(...) means the planning, preparation, initiation or execution (...)’

The phrase ‘(...) planning, preparation, initiation or execution (...)’ is, mainly for obvious historical reasons, largely identical to the formula used in both, article 6 lit. a) of the Charter of the International Military Tribunal in Nuremberg and in article 5 lit. a) of the Charter of the International Military Tribunal for the Far East, except that in the English version of article 8bis para. 1 the term ‘waging of a war’ was replaced by the term ‘execution’, which is due to the fact that the term ‘war of aggression’ was replaced by the word ‘act of aggression’. This seems to constitute, however, a mere linguistic change rather than a change entailing a difference in substance, even more so since the French version had retained the term ‘l’exécution d’un acte d’agression’. In the equally authentic French versions of the two texts there are however further differences when one compares the Nuremberg and Tokyo formula with the current wording. More specifically, the phrase ‘la direction, la préparation, le déclenchement ou la poursuite’ (of a war of aggression) was

International Military Tribunal for the Far East, in: Boister and Cryer (eds.), *Documents on the Tokyo International Military Tribunal, Charter, Indictment and Judgments* (2008) 8.

¹³ See article 5 para. 2, 2nd sentence of GA Resolution 3314 (‘Definition of Aggression’).

¹⁴ See article 5 para. 2, 1st sentence of GA Resolution 3314 (‘Definition of Aggression’).

¹⁵ International Law Commission, *ILC Yearbook 1996*, ii (part ii), 15, 42.

¹⁶ As to the current status of States having incorporated the crime of aggression into their domestic law see <http://crimeofaggression.info/documents/1/Status_Report-ENG.pdf> last accessed September 2015, 6 *et seq.*

¹⁷ See e.g. the decision of the House of Lords, *R v. Jones et al.* (2006) 45 *ILM* 992.

replaced by the ‘**planification, la préparation, le lancement ou l’exécution**’ of an act of aggression. These changes were not all strictly necessitated by the above-mentioned change in terminology of a ‘war of aggression’ (as used in both, the Nuremberg and the Tokyo statutes) versus the ‘act of aggression’ terminology, as used in the Kampala amendment to the Rome Statute.

- 22 Any proposition that the first three forms of conduct, as contained in article 8bis, namely the planning, preparation or initiation of an act of aggression are identical as far as their substance is concerned, would make the three terms largely redundant. They thus have to be understood as comprising **different, albeit similar, forms of committing the crime of aggression** as defined in article 8bis para. 1. Accordingly, the mere participation in a single one of the four alternative stages of committing the crime already entails criminal responsibility, provided however that the act of aggression has eventually been committed in the first place¹⁸.

1. ‘(...) planning (...)’

- 23 At first glance, the use of the term ‘**planning**’ (‘**la planification**’ in French) might imply that even the mere preparation of plans for a future act of aggression, provided such act of aggression were to reach the threshold provided for in article 8bis para. 1, could already amount to the commission of the crime of aggression, even if the aggression as such were then not to take place. Such a far-reaching understanding of the notion of ‘planning’ would have been in line with the fact that under article 2 para. 4 of the Charter of the United Nations already the threat of the use of force does amount to a violation of international law generally, and the Charter of the United Nations in particular¹⁹. Yet, the **third of the Elements of Crimes** concerning article 8bis, adopted simultaneously in Kampala with the amendment proper, confirms that the respective act of aggression must indeed have been committed. It specifically provides:

‘The act of aggression – the use of armed force by a State against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with the Charter of the United Nations – was committed.’²⁰

- 24 Accordingly, the **act of aggression must have actually taken place** so as to render the planning thereof a crime under international law entailing individual criminal responsibility. This deliberate limitation to **exclude mere attempts of aggression** from the scope of application of article 8bis, which must be taken at face value, stands in line with **customary international law**, given that all relevant precedents only considered acts of aggression that had actually taken place to eventually constitute a crime of aggression²¹. Article 25 para. 3 lit. f), providing for criminal responsibility in case of attempt, does not contradict this requirement that the actual act of aggression must have taken place since the term ‘attempt’, as used in article 25 para. 3 lit. f), applies to the individual act of participation in a given crime (of aggression as it were) rather than to the act of aggression committed by a State, which act has to be completed²². A 2005 SWGCA discussion paper mentioned two (albeit one might say rather academic) examples of such attempts to commit the crime of aggression: first, when a high-level State official begins to participate in a meeting aimed at preparing an act of aggression, before being prevented from taking part in the actual

¹⁸ See mn 15 as to the requirement that the act of aggression has indeed taken place.

¹⁹ Randelzhofer and Dörr, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 42–43; Stürchler, *The Threat of Force in International Law* (2009).

²⁰ See RC/Res.6, Annex II, Amendments to the Elements of Crimes for Article 8bis, Elements, para. 3, which reads:

‘The act of aggression – the use of armed force by a State against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with the Charter of the United Nations – was committed.’

²¹ ICC–ASP/4/32, Annex II.B, 380.

²² Mancini (2012) 81 *NordJIL* 227, 242.

decision-making; and second, when a high-ranking military officer is close to giving an important order in the course of the execution of the use of force, but is prevented from completing the act of ordering²³.

In line with an interpretation of article 8bis in conformity with customary international law, the term ‘planning’ does not cover the general consideration of political plans to eventually, at a later stage only, commit an act of aggression. Rather, it is only the **participation in the development of specific (military or other) plans and operations** of the State concerned with the commitment of a specific act of aggression that ought to fall within the meaning of the term ‘planning’, in order not to excessively extend the scope of application *ratione temporis* of the crime.

Such a narrow interpretation is confirmed by the French (but also the Spanish) text of article 8bis para. 1, which, unlike the Nuremberg and Tokyo precedents, does not use the term ‘direction’ anymore. Yet, this term would have already excluded any such temporal extension, while the French term ‘planification’ (and ‘planifica’ in the Spanish text), as now used in the context of article 8bis, even more strongly confirms that the notion of ‘**planning**’ **solely refers to the ability of the perpetrator to direct the aggression** by way of drawing up ‘a design or scheme’²⁴ for the aggression that is then being committed.

This limited understanding of the notion of ‘planning’ is further confirmed by the context of article 8bis in that the group of possible offenders is defined as those persons able ‘to exercise control over or to direct the political or military action of a State’. This limitation of the scope *ratione personae* of the crime underlines that it is only concrete and specific actions constituting (qualified) violations of the prohibition of the use of force (rather than mere threats of force) that are being criminalized, but not acts which do not yet amount to such violations.

2. ‘(...) preparation (...)’

Similar considerations do apply, *mutatis mutandis*, to the notion of ‘preparation’: only those offenders that fulfill the leadership criteria laid down in article 8bis and then participate (within the meaning of article 25) in an act of aggression, be it only in its very initial stages, *i. e.* when the aggression is still only being prepared, but not yet implemented, commit the crime of aggression, provided the further criteria of article 8bis are also fulfilled.

In contrast to the ‘planning’ of an act of aggression, the ‘preparation’ of such an act refers to the **taking of concrete steps to implement the plan**²⁵. *Inter alia*, such preparation may consist, depending on which specific alternative of article 8bis para. 2 is being committed by the State concerned, *e. g.* in the transport of weaponry or other military material to be used for the act of aggression, in the actual deployment of troops to the vicinity of a border to start hostilities, or in acts of a similar nature that will, when seen from an outside perspective, form part and parcel of the forthcoming actual violation of the prohibition of the use of force.

In that regard one has to, in particular, take note of the decision of the ICJ in the *Nicaragua* case, according to which ‘in international law there are no rules, other than such rules as may be accepted by the State concerned, by treaty or otherwise, whereby the level of armaments of a sovereign State can be limited’²⁶. Hence, the participation by a person exercising control of a State in the military build-up of a given State is, in and of itself, legal under international law, and may thus *a fortiori* neither be considered to entail individual criminal responsibility under the heading of ‘preparation’ of the crime of aggression even if, later on, an act of aggression is being committed by that very State.

²³ ICC–ASP/2/10, Annex II., as summarized in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 471, 480.

²⁴ Greenspan, *The Modern Law of Land Warfare* (1959) 455.

²⁵ Greenspan, *The Modern Law of Land Warfare* (1959) 455.

²⁶ *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep. 1986, 14, 135, para. 269.

3. ‘(...) initiation or execution (...)’

- 31 The ‘initiation’ of an act of aggression describes the **very commencement** of the use of armed force, as defined in article 8bis para. 2. Given that various of the alternative acts of aggression as defined in article 8bis para. 2 (such as a naval blockade²⁷ or the mere extension of the presence of armed forces in foreign territory beyond the termination of a stationing agreement²⁸) do not require the actual start of hostilities²⁹, the question when exactly the respective ‘act of aggression’ is being initiated depends on which form of such an act of aggression is being considered.
- 32 Finally, the term ‘execution’ covers **all subsequent acts** of actually carrying out and performing acts of aggression, following the initiation of such acts, as described above³⁰.

IV. ‘(...) by a person in a position effectively to exercise control over or to direct the political or military action of a State (...)’

1. General issues

- 33 The crime of aggression can be committed **only by leaders of the State**, to which the underlying act of aggression is attributable. Without this limiting criterion, every individual soldier of the armed forces having contributed to the hostilities would otherwise, as a matter of principle, have to face trial. Article 8bis thus constitutes the only one of the four crimes, for which the Court has substance-matter jurisdiction under article 5 of the Rome Statute, which limits the range of potential perpetrators of such a crime. This pays tribute to the different **nature of the crime of aggression**, which, in contrast to the Statute’s other crimes listed in article 5, is not focused on the protection of individuals or on the protection of a given protected group, but rather on the protection of a State from the use of armed force by another State³¹ and thereby by the same token also aims at the protection of the international legal system with the prohibition of the use of force at its core.
- 34 Already **article II para. 2 lit. f) of Law No. 10 of 20 December 1945 by the Control Council for Germany**³² considered a ‘high political, civil or military (including General Staff) position [...] or [a] high position in the financial, industrial or economic life’ a prerequisite in order to fall within the group of possible offenders when it comes to crimes against peace. In the same vein in 1950, the ILC concluded that only ‘high-ranking military personnel and high State officials’ could be capable of waging a war of aggression³³. Accordingly, the consent that also for purposes of the Court’s Statute, the crime of aggression ought to remain a leadership crime became established early in the drafting process for what is now article 8bis, namely in the 2002 Coordinator’s Paper of the Preparatory Committee’s Ninth Session³⁴.

²⁷ See mn 128.

²⁸ See mn 139.

²⁹ But see Dinstein, *War, Aggression and Self-Defence* (5th edition 2011) 141.

³⁰ See mn 31.

³¹ Heinsch (2010) 2 *GoJIL* 713, 722; also see Dinstein (1994) 24 *IsYbHumRts.* 1, 4 *et seq.*

³² Control Council Law No. 10 (1950) 1 *Trials of War Criminals before the Nuernberg Military Tribunals under Control Council Law No. 10*, xvi.

³³ International Law Commission, *Principles of International Law recognized in the Charter of the Nuernberg Tribunal and in the Judgment of the Tribunal, with commentaries*, ILC Yearbook 1950, ii, 376, para. 117.

³⁴ PCNICC/2002/WGCA/RT.1, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 398: ‘For the purpose of this Statute, a crime of aggression means an act committed by a person who, being in a position to exercise control over or direct the political or military action of a State [...]’ In the Coordinator’s paper of the tenth session of the Preparatory Committee, the word ‘effectively’ has been added to the definition, PCNICC/2002/WGCA/RT.1/Rev.1, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 412: ‘[...] being in a position effectively to exercise control over or to direct the political or military action of a State [...]’.

2. ‘(...) by a person (...)’

The use of the term ‘by a person’³⁵ in article 8bis para. 1 exercising control over or directing the political or military action of a State does not indicate that only one person can be responsible of the crime of aggression. As a matter of fact, footnote 1 attached to the second Element of Crimes adopted concerning the crime of aggression and related to the leadership requirement confirms in unequivocal terms that ‘[w]ith respect to an act of aggression, **more than one person** may be in a position that meets these criteria of exercising such degree of control’³⁶. This stands in line with the judgment of the United States Military Tribunal which, in the *High Command* case, stressed that even in a dictatorship, more than one individual can bear responsibility for the planning, preparation, initiation or the execution of an act of aggression³⁷.

3. ‘(...) in a position effectively to exercise control over or to direct the political or military action (...)’

In practice, the group of people exercising sufficient control over or directing the political or military action of a State, in order to be covered by the leadership requirement as set out in article 8bis para. 1, encompasses at the very least **heads of States and governments, as well as ministers of defense and other military leaders** such as high-level generals³⁸. Given the wording of the provision which refers to the ability to *effectively* exercise or direct the action of the State from which the act of aggression emanates, it is the factual capability to exercise such control or direction that is decisive, rather than the formal rank, *de jure* position or title of the person concerned³⁹. Accordingly, also mere *de facto* heads of States or government or *de facto* commanders of armed forces of a State, who are in a position of effective control of their respective State, are subject to the Court’s aggression-related substance-matter jurisdiction.

At the same time, heads of State exercising **merely ceremonial functions**, but not being able, neither *de jure* nor *de facto*, to participate in the decision-making process which leads to the alleged act of aggression contemplated in article 8bis para. 2, are not capable of committing the crime of aggression within the meaning of the Court’s Statute.

In order to possibly commit the crime of aggression, a person concerned must either have **alternatively been able to exercise control over or to direct the political or military action** of the State in question. While the ‘to direct’ limb of the phrase hints more at a positive action taken by the person concerned, the ‘to control’ limb seems to indicate that the crime of aggression might also be committed by way of supervision, provided the person concerned could thereby exercise effective influence on the course of action leading to the act of aggression.

Within the framework of the SWGCA, it was considerably debated whether **industrialists who are closely involved with the State’s actions** should be covered by this provision. The post-1945 Nuremberg trials against high-ranking German industrialists demonstrated the potential of industrialists’ involvement in the crime of aggression. As a matter of fact, article II para. 2 lit. f) of Control Council Law No. 10 of 1945 included persons as possible indictees

³⁵ Emphasis added.

³⁶ RC/Res.6, Annex II, Amendments to the Elements of Crimes for Article 8bis, Elements, para. 2, fn. 1, emphasis added.

³⁷ *High Command* case (*United States of America v. Wilhelm von Leeb et al.*) (1950) 12 *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, 462, 486: ‘No matter how absolute his authority, Hitler alone could not formulate a policy of aggressive war and alone implement that policy by preparing, planning and waging such a war’.

³⁸ Heinsch (2010) 2 *GoJIL* 713, 722.

³⁹ UN Doc PCNICC/2002/WGCA/L.1/Add.1 (18 January 2002), Preparatory Commission for the International Criminal Court, Historical Review of Developments relating to Aggression, Addendum, 32, referring to the Nuremberg trials; Werle and Jessberger, *Principles of International Criminal Law* (3rd edition 2014) 542.

of crimes against peace, who ‘held high position in the financial, industrial or economic life’ of Germany, one of its Allies, co-belligerents or satellites. In the trial of the major war criminals, Gustav Krupp, the head of the Krupp AG, was indicted *inter alia* for participation in the Nazi conspiracy to commit crimes against peace and its eventual commission⁴⁰. The final judgment stressed that business men cooperated in Hitler’s aggressive war and made themselves parties to his plan⁴¹. Though in the subsequent *I.G. Farben and Krupp* cases, all defendants were acquitted of charges with regard to crimes against peace due to a lack of evidence, the respective tribunals stated that this should not be interpreted as excluding respective responsibility in general⁴². In the *High Command* and in the *Ministries* cases, the tribunals adopted a ‘shape or influence’ criterion, relying on whether the defendants had had the power to shape or influence the State’s policy⁴³. In the *Roechling* case, the leader of the coal and metal business Roechling was convicted of having encouraged and contributed to the preparation and conduct of aggressive wars⁴⁴.

- 40 However, a SWGCA proposal to use language closer to that of the Nuremberg decisions, namely the ‘**shape and influence**’ formula instead of the ‘exercise control over or to direct’ formula was **rejected**, which might be perceived as a legitimate decision, given that in democracies the ‘shape and influence’ criterion might affect an excessively large range of individuals⁴⁵. On the other side, the actual terms of article 8bis para. 1 do not *per se* exclude economic (or religious, or revolutionary) leaders from criminal responsibility, as long as their position allows them to exercise control over or to direct a State’s political or military action⁴⁶.
- 41 It is further sufficient that any possible indictor has exercised control over or directed **either the political or the military action** of the State concerned. In the former case, *i. e.* in the case of a political direction or control, there must however be a link between such a political role on the one hand, and the military action giving rise to the indictment relating to the crime of aggression on the other.
- 42 Finally, the term ‘political or military action’ ought to be understood in light of the overall object and purpose of the provision. Accordingly, it is only the control or direction of ‘political or military action’ that leads to an act of aggression that is relevant in order to determine whether a person can have possibly committed the crime of aggression.

4. ‘(...) of a State (...)’

- 43 It is only persons that direct the actions of a State that are suitable offenders under article 8bis para. 1. Article 8bis para. 1 thus reiterates the **inter-state character of the crime of aggression**, as laid down in the chapeau of article 8bis para. 2 with its **double statehood requirement** (‘by a State’/‘against (...) another State’)⁴⁷.

⁴⁰ Before being considered medically unfit for trial, (1947) 1 *Trial of the Major War Criminals before the International Military Tribunal*, 27, 42, 75.

⁴¹ Judgment, (1948) 22 *Trial of the Major War Criminals before the International Military Tribunal* 424 *et seq.* 468.

⁴² *Farben* case (*United States of America v. Krauch et al.*) (1952) 8 *Trials of War Criminals before the Nuernberg Military Tribunals under Control Council Law No. 10*, 1081, 1125 *et seq.*; *Krupp* case (*United States of America v. Krupp et al.*) (1950) 9 *Trials of War Criminals before the Nuernberg Military Tribunals under Control Council Law No. 10*, 390, 393; also see Heller (2007) 18 *EJIL* 477, 483 *et seq.*

⁴³ *High Command* case (*United States of America v. Wilhelm von Leeb et al.*) (1950) 12 *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, 462, 489; *Ministries* case (*United States v. von Weizsäcker et al.*) (1952) 14 *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, 314, 425.

⁴⁴ *Roechling* case (*Military Government of the French Zone of Occupation in Germany v. Roechling et al.*) (1952) 14 *Trials of War Criminals before the Nuernberg Military Tribunals under Control Council Law No. 10*, 1075, 1095. Later on, the conviction was reversed by the Superior Military Government Court of the French Zone of Occupation in Germany.

⁴⁵ Ambos (2010) 53 *GYbIL* 463, 490.

⁴⁶ Ambos (2010) 53 *GYbIL* 463, 490; Heinsch (2010) 2 *GoJIL* 713, 723; Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 260; Werle and Jessberger, *Principles of International Criminal Law* (3rd edition 2014) 550.

⁴⁷ See *mn* 91 *et seq.*

Since the text of article 8bis para. 1 refers to ‘a’ State (rather than to ‘his or her State’), **there is no requirement that the offender possesses the nationality of the State** from which the underlying act of aggression would then emanate. As a matter of fact, there have been situations in the past where a ruler of State A (also) controlled the political or military action of State B, leading State B to then commit an act of aggression.

V. ‘(...) of an act of aggression (...)’

Given that **article 8bis para. 2 contains an explicit definition** of what is meant by the term ‘act of aggression’, as used in article 8bis para. 1⁴⁸, the (anyhow limited) practice of the Security Council under article 39 of the Charter of the United Nations, which uses the same terminology of ‘act of aggression’ is only relevant in that it sheds light on the meaning of the various terms used in article 8bis para. 2.

VI. ‘(...) which, by its character, gravity and scale constitutes a manifest violation of the Charter of the United Nations.’

1. ‘(...) constitutes a (...) violation of the Charter of the United Nations’

In order to eventually constitute a crime of aggression, the underlying act of aggression must, first and foremost, constitute a violation of the Charter. According to **article 2 para. 4 of the Charter of the United Nations**⁴⁹, all Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations. The Charter itself knows two exceptions to this provision, namely either an authorization by the Security Council to use force under Chapter VII (possibly combined with Chapter VIII in case of military action by a regional organization or arrangement) or the right of self-defense under article 51 of the Charter (the Charter’s enemy State clauses in articles 53 and 107 having become obsolete⁵⁰).

Unlike article 2 para. 4 of the Charter of the United Nations, which in its last part refers to the use of force ‘inconsistent with the Purposes of the United Nations’⁵¹, article 8bis simply refers to (aggravated) uses of force in (manifest) ‘violation of the Charter’. It is however generally acknowledged that for purposes of the Charter prohibition of the use of force, such acts are lawful not only in those cases that are explicitly specified in the Charter itself as exceptions to article 2 para. 4, but also in **scenarios universally recognized under customary international law as accordingly not amounting to a violation of the Charter**⁵². Given that article 8bis para. 1 in turn refers back to the question as to whether a given use of force constitutes a violation of the Charter, exceptions to the prohibition of the use of force, as recognized in customary international law, are also relevant when it comes to make a finding on the crime of aggression as set out in article 8bis.

In line with article 2 para. 4 of the Charter, which is addressed to all members of the organization, article 8bis para. 1 refers to **violations of the Charter of the United Nations (rather than violations of customary law)**, which as a matter of fundamental rules of treaty

⁴⁸ See mn 88 *et seq.*

⁴⁹ 15 *UNCIO* 335.

⁵⁰ As to the possibility of deleting the enemy state clauses from the Charter as part of an overall reform see UN Docs. A/RES/50/52 (11 December 1995), para. 3; A/RES/60/1 (16 September 2005), para. 177, as well as Eitel, in: Varwick and Zimmermann (eds.), *Die Reform der Vereinten Nationen – Bilanz und Perspektiven* (2006) 315.

⁵¹ As to this notion see Randelzhofer and Dörr, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 37 *et seq.*

⁵² Randelzhofer and Dörr, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 38.

law only applies to its contracting parties. In the unlikely (but not completely academic⁵³) event that individuals being nationals of a State, which is not a member of the United Nations, but nevertheless bound by the Kampala amendment on the crime of aggression, are responsible for the use of armed force, the question arises whether such acts may then possibly amount to ‘violations of the Charter’ despite the fact that the State concerned is not bound by the Charter as such. Yet, an interpretation of article 8bis in light of its object and purpose seems to indicate that what is meant by article 8bis are not (manifest) violations of the Charter of the United Nations *per se*, but rather (also) violations of the substantive **parallel customary law prohibition on the use of force**⁵⁴ as *enshrined* in the Charter, also being binding upon non-member States by virtue of customary law.

- 49 As confirmed by **no. 2 of the introduction to the Elements of Crimes** relevant for article 8bis, as adopted in Kampala, ‘[t]here is no requirement to prove that the perpetrator has made a legal evaluation as to whether the use of armed force was inconsistent with the Charter of the United Nations.’

2. ‘(...) by its character, gravity and scale constitutes a *manifest* violation of the Charter of the United Nations.’

- 50 a) **General questions.** In contrast to the rather broad definition of aggression, as contained in the GA Resolution 3314 (‘Definition of Aggression’) for the purposes of State responsibility, and so as to eventually provide guidance to the Security Council when making a determination under article 39 of the Charter of the United Nations, which does not require any aggressive intent and, besides contains, as will be shown below, a broad list of possible acts of aggression⁵⁵, article 8bis **limits criminal accountability to severe acts by using a threshold** that can be found neither in the Charter of the United Nations, nor in GA Resolution 3314 (‘Definition of Aggression’). This **threshold clause** captures the ‘qualitative difference’ between an *act* of aggression and the individual *crime*⁵⁶.
- 51 This part of article 8bis para. 1 has accordingly been criticized for providing a *carte blanche* for all uses of armed force that do not yet amount to a certain scale⁵⁷, thereby **eventually leading to a weakening of the general prohibition of the use of force**, as contained in article 2 para. 4 of the Charter of the United Nations and in customary international law, at least when it comes to the use of military force below the threshold now laid down in article 8bis. On the other hand, a **comparison with the regime of international humanitarian law**, where during the last 20 years a line of jurisprudence involving only serious violations of international humanitarian law has evolved, indicates that the prosecution of merely such grave violations can nevertheless strengthen the overall obedience towards the general rule (even if not all violations of international humanitarian law were falling within the jurisdiction of the various international criminal courts and tribunals)⁵⁸.
- 52 As the drafting history indicates, the said restriction of manifest violations of the Charter of the United Nations was inserted in order ‘to **exclude some borderline cases**’⁵⁹ of the use of

⁵³ See *e.g.* the situation of Palestine having become a contracting party of the Rome Statute without being at the same time a member of the United Nations, and possibly also became bound by the Kampala amendment on the crime of aggression under the principle codified in article 40 para. 5 of the Vienna Convention on the Law of treaties, given that Palestine acceded to the Rome Statute after the Kampala amendment had already entered into force; as to the various ways to become bound by the aggression-related amendments see Zimmermann and Freiburg, article 15bis, mn 13–14.

⁵⁴ As to this questions, *i.e.* the identity in content of the treaty-based prohibition of the use of force and the respective customary law prohibition see *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep. 1986, 14, 93 *et seq.*, paras. 174 *et seq.*

⁵⁵ See mn 107 *et seq.*

⁵⁶ Ambos, *Treatise on ICL II* (2014) 199.

⁵⁷ Heinsch (2010) 2 *GoJIL* 713, 726; Paulus (2009) 20 *EJIL* 1117, 1122.

⁵⁸ Heinsch (2010) 2 *GoJIL* 713, 731; also see Öberg (2009) 873 *RevRC* 163.

⁵⁹ Informal inter-sessional meeting of the Special Working Group on the Crime of Aggression, Assembly of State Parties, 5th session 2006, ICCASP/5/SWGCA/INF.1 (5 September 2006), para. 19; emphasis added.

force, which, while amounting to a violation of article 2 para. 4 of the Charter of the United Nations, did not warrant to be considered a crime of aggression. More specifically, the threshold clause is meant to serve a twofold purpose:

For one the formula was meant to **exclude ‘(...) minor border skirmishes and other small-scale incidents’**⁶⁰ from the scope of application of article 8bis. This was meant to take into account the judgment of the ICJ in the *Nicaragua* case (as confirmed by both the Court itself in the *Oil Platforms* case, and by the Eritrea-Ethiopia Claims Commission). In the former case, the Court had observed for one that it is ‘necessary to distinguish the most grave forms of the use of force (those constituting an armed attack) from other less grave forms’⁶¹. It also found that in considering whether a given operation amounts to an armed attack, ‘its scale and effects’ have to be taken into account⁶². By the same token the Court had further found that ‘a mere frontier incident’ does not yet amount to an armed attack⁶³, while the Eritrea-Ethiopia Claims Commission even went further when stating that ‘[l]ocalized border encounters between small infantry units, even those involving the loss of life, do not constitute an armed attack for purposes of the Charter [of the United Nations]’⁶⁴. Accordingly, it was argued that a somewhat more limited use of military force, while prohibited under article 2 para. 4 of the Charter, should even less constitute a crime of aggression.

At the same time the restriction was also inserted so as to **exclude from its scope of application acts whose illegal character would be debatable** rather than manifest⁶⁵.

The need for this restriction was however seriously debated in the SWGCA. In the end the opponents of any such limitation agreed in return for the removal of other restrictions. It is against this background that the requirement of a ‘war of aggression’ was deleted from former drafts, and that any limitations to the list of potential acts of aggression (as defined in GA Resolution 3314 [‘Definition of Aggression’]) were rejected. Instead, article 8bis now contains the criterion that any act of aggression within the meaning of article 8bis para. 2 must also by its character, gravity and scale constitute a manifest violation of the Charter of the United Nations.

This narrow concept was confirmed in **Understandings no. 6 and 7** annexed to RC/Res. 6 (2010), which provide:

‘6. It is understood that aggression is the most serious and dangerous form of the illegal use of force; and that a determination whether an act of aggression has been committed requires consideration of all the circumstances of each particular case, including the gravity of the acts concerned and their consequences, in accordance with the Charter of the United Nations.’

respectively

‘7. It is understood that in establishing whether an act of aggression constitutes a manifest violation of the Charter of the United Nations, the three components of character, gravity and scale must be sufficient to justify a ‘manifest’ determination. No one component can be significant enough to satisfy the manifest standard by itself.’

Understanding no. 6, just like article 8bis para. 2 itself, draws largely on language forming part of GA Resolution 3314 (‘Definition of Aggression’). In line with preambular paragraph 5 of the annex to the said resolution, which contains the definition of aggression, Understanding no. 6 perceives aggression as ‘the most serious and dangerous form of the illegal use

⁶⁰ Barriga, in: Barriga and Krefß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 3, 29.

⁶¹ *Military and Paramilitary Activities in and against Nicaragua* (*Nicaragua v. United States of America*) (Merits), ICJ Rep. 1986, 14, 101, para. 191; see also *Oil Platforms* (*Iran v. USA*), ICJ Rep. 2003, 161, 187, para. 51.

⁶² *Military and Paramilitary Activities in and against Nicaragua* (*Nicaragua v. United States of America*) (Merits), ICJ Rep. 1986, 14, 103, para. 195.

⁶³ *Military and Paramilitary Activities in and against Nicaragua* (*Nicaragua v. United States of America*) (Merits), ICJ Rep. 1986, 14, 103, para. 195.

⁶⁴ Eritrea-Ethiopia Claims Commission, *Jus ad Bellum* (Partial Award, Ethiopia’s Claims 1–8, 19 December 2005), (2009) 135 ILR 479, para. 11.

⁶⁵ Barriga, in: Barriga and Krefß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 3, 29.

of force', without however thereby adding much (if anything) to the actual definition contained in article 8bis itself, given that the very text of article 8bis even requires a *manifest* violation of international law.

57 What is more is that Understanding no. 6, almost (though not completely verbatim) echoing article 2 of GA Resolution 3314 ('Definition of Aggression'), 'requires consideration of all the circumstances of each particular case, including the gravity of the acts concerned and their consequences, in accordance with the Charter of the United Nations'. While article 2 of the GA Resolution 3314 ('Definition of Aggression') was meant to acknowledge the **prerogatives of the Security Council** in making (or not making) a determination of aggression, as contemplated in article 39 of the Charter of the United Nations⁶⁶, this part of Understanding no. 6 in turn is addressed to the organs of the Court when making determinations as to whether an *act* of aggression has been committed. In doing so, the gravity of the acts concerned and their consequences, in accordance with the Charter of the United Nations, have to be then taken into account. It is thus somewhat striking that under the Kampala formula, the **gravity of the relevant act serves a twofold purpose**: under Understanding no. 6 it contributes to determine whether (in line with GA Resolution 3314 ['Definition of Aggression']) even **an act of aggression has taken place**. Once this first threshold is fulfilled, any such act (accordingly thereby amounting to an act of aggression) must then be judged upon once again *inter alia* in light of its **gravity** in order to determine whether it amounts to a manifest violation of the Charter and thus constitutes a **crime of aggression**. It is however somewhat difficult to see what different factors could then be taken into account in order to determine the gravity of such an act when it comes to this second layer of gravity. What is more is that Understanding no. 6 refers to the gravity of the relevant act *and its consequences*, while article 8bis para. 1 simply refers to the gravity as such. This seems to imply that for purposes of the second step, *i.e.* the process of determining a manifest violation of the Charter, and thus potentially a crime of aggression, the consequences of the act ought not to be further taken into account. This is due to the fact, that such consequences seem to not *ipso jure* form part of the concept of 'gravity', as confirmed by the wording of Understanding no. 6 where, as shown, the notion of 'gravity' and the 'consequences' of an act are put side by side.

58 Article 8bis para. 1 mentions three specific criteria to determine whether an act of aggression constitutes a manifest violation of the Charter of the United Nations, namely the character, gravity and scale of such an act. Understanding no. 7 then further attempts to clarify the **relationship between the three factors of character, gravity and scale**.

For one, by referring in the plural to the fact that the three components of character, gravity and scale must be sufficient ('doivent être suffisamment importants' in the French version), to justify a 'manifest' determination, it seems to provide that all of those three components must be fulfilled to the degree necessary⁶⁷. On the other hand, the wording of the last sentence of Understanding no. 7, which refers to the fact that '[n]o one component can be significant enough to satisfy the manifest standard by itself' leaves in the blur **whether all three components – character, gravity and scale – must be fulfilled**⁶⁸, or whether the fulfillment of two of them would be sufficient. During the drafting process of what was to become Understanding no. 7, a consensus on this issue was hard to reach. Notably, in particular the United States, despite of not even being a State party of the Statute and thus not being subject to the Court's jurisdiction under article 15bis para. 5⁶⁹, favored a cumula-

⁶⁶ Article 2 of the Definition of Aggression reads: 'The first use of armed force by a State in contravention of the Charter shall constitute prima facie evidence of an act of aggression although the Security Council may, in conformity with the Charter, conclude that a determination that an act of aggression has been committed would not be justified in the light of other relevant circumstances, including the fact that the acts concerned or their consequences are not of sufficient gravity.'

⁶⁷ Werle and Jessberger, *Principles of International Criminal Law* (3rd edition 2014) 549.

⁶⁸ Ambos (2010) 53 *GYbIL* 463, 484.

⁶⁹ Zimmermann and Freiburg, article 15bis, mn 34 *et seq.*

tive approach, thereby arguably *per se* excluding humanitarian interventions from the scope of application of article 8bis, given the alleged humanitarian character of such military operations⁷⁰. Not least the Iranian delegation argued in turn that the fulfillment of two of these three criterions ought to be sufficient; however, the final compromise as proposed by Canada and the United States was adopted without opposition⁷¹.

The final wording of what is now Understanding no. 7 constitutes a **compromise**, which, however, does not necessarily solve the issue. On the one hand, the second sentence of Understanding no. 7, and in particular the phrase '*No one component (...) by itself*' could be read as a support for a strict interpretation of the manifest standard, *i.e.* one under which the fulfillment of only two of the three elements would suffice for an act of aggression to amount to a manifest violation of the Charter of the United Nations.

On the other hand, an interpretation of article 8bis para. 1 as such in line with its very wording, as required by article 31 para. 1 of the Vienna Convention on the Law of Treaties, militates in favor of a cumulative requirement, since article 8bis para. 1 uses the conjunctive 'and' instead of an 'or' ('by its character, gravity *and* scale'). Likewise, the first sentence of Understanding no. 7 refers to '*the three components of character, gravity and scale*'⁷² which '*must be sufficient*'. While this part of Understanding no. 7 is not fully conclusive, given that it could be also read as meaning that apart from those three components there is no need for further criteria to be also fulfilled, it seems that the last sentence of Understanding no. 7 at least requires that *two* of the components are fulfilled. Such interpretation, *i.e.* that **one component is not sufficient, while a fulfilment of all the three of them is not required either**, would also be in line with the character of Understanding no. 7 as a compromise formula. Such result can also be understood as being compatible with the very wording of article 8bis para. 1 ('character, gravity and scale'), since the 'and' contained therein could very well be understood as not necessarily requiring that all three components of 'character and gravity and scale' are fulfilled at the same time.

b) '*(...) by its character (...)*'. The term 'character' refers, as confirmed by the French wording ('par sa nature'), to the **nature of the act of aggression** to be possibly qualified as a crime of aggression. Given the drafting history of article 8bis para. 1, this is to be understood as referring to the (actual) subjective motivation of the persons responsible for the use of force, *i.e.* whether they rather aim at occupying or annexing foreign territory or whether instead they, for example, aim at protecting fundamental human rights of a given population⁷³.

c) '*(...) gravity (...)*'. The terms 'gravity' and 'scale' are intertwined and somewhat hard to distinguish. Yet, given that it cannot be assumed that the text contains redundant wording, one might say that the gravity requirement relates more to the **seriousness or significance of the use of force**, *i.e.* constitutes more of a qualitative criterion, while the scale is more a quantitative criterion. This is confirmed, once again, by the French and Spanish texts of article 8bis para. 1, in which the terms 'gravité'/'gravedad' versus 'ampleur'/'escala' make this distinction clearer. Accordingly, the notion of 'gravity' involves a determination as to the **nature of the means used**. To give but one example, it thus seems easier to assume that the invasion or bombardment of a foreign country, contemplated in article 8bis para. 2 lit. a) and b) respectively can, by their very nature, more easily fulfill the criterion of gravity, than, for example, a mere violation of a stationing agreement, provided for in article 8bis para. 2 lit. e).

In determining the gravity of an act of aggression, the **amount of damage caused** to the attacked state ought to also be taken into account. In this regard, it has to be noted, however, that for purposes of article 8bis it is **irrelevant whether such damages by the same token did**

⁷⁰ See mn 54.

⁷¹ Kreß, Barriga, Grover and von Holtzendorff, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 81, 96 *et seq.*

⁷² Emphasis added.

⁷³ See also mn 77.

(or did not) amount to a violation of applicable rules of *jus in bello* (and possibly even war crimes within the meaning of article 8). This is due to the fundamental distinction of *jus ad bellum* and *jus in bello*, only the former being regulated by article 8bis.

- 63 d) ‘(...) and scale (...)’. As previously mentioned⁷⁴, the notion of ‘scale’ (‘ampleur’ in French/‘escala’ in Spanish) refers to the **level or magnitude** of the alleged act of aggression. In order to evaluate such ‘scale’, one has to take into account the use of armed force *ratione loci* and *ratione temporis*. Put otherwise, the more widespread and the longer such force is being employed, the easier it is to make a positive finding as to the required scale of the military operation, so as to constitute a crime of aggression.
- 64 It is worth noting, however, that **only those parts of the military operation that by the same token run counter to the prohibition of the use of force** might be taken into account. Thus, for example, a military use of force justified under article 51 of the Charter of the United Nations might constitute an illegal use of force to the extent to which the alleged acts of self-defense are no longer proportionate, *e.g.* because they extend far beyond the actual armed confrontation and threat⁷⁵. In the same vein, what might constitute, like in the case of the attack of the United States against Iraq in 2003, an act of aggression, can later turn into an occupation in line with international law, once the Security Council, acting under Chapter VII of the Charter, provides for a legal basis for such an occupation.⁷⁶
- 65 e) ‘(...) constitutes a manifest violation (...)’. aa) **General questions.** According to the Amendments to the Elements of Crimes relating to article 8bis adopted in Kampala, ‘[t]he term ‘manifest’ is an objective qualification’⁷⁷, which is thus **independent from subjective opinions**⁷⁸ as to the legality or illegality of the respective military operation or indeed, as to its character as a manifest violation of the Charter of the United Nations. As a matter of course, as again the Elements of Crimes relating to article 8bis confirm, there is neither a ‘requirement to prove that the perpetrator has made a legal evaluation as to the ‘manifest’ nature of the violation of the Charter of the United Nations’.⁷⁹ The perpetrator must have been aware, however, as again confirmed by the Elements of Crimes relating to article 8bis, ‘of the factual circumstances that established that such a use of armed force was inconsistent with the Charter of the United Nations’, and, besides, he must have also been aware of the further ‘factual circumstances that established such a manifest violation of the Charter of the United Nations’⁸⁰.

The very same considerations would then accordingly also apply *mutatis mutandis* to the various components constituting the manifest character of the violation of the Charter of the United Nations, namely the factual elements determining the character, the gravity, and the scale of the act of aggression.

- 66 In practice, the Court might have difficulties assessing whether a given act of aggression constitutes a *manifest* violation of the Charter of the United Nations. As a court of international criminal law, some consider its **legitimacy to rule on questions of *jus ad bellum*** as doubtful⁸¹, especially concerning ‘grey area’ cases. An excessive use of its respective authority might provide States with a further reason to criticize the Court⁸². On the other

⁷⁴ See mn 62.

⁷⁵ See *e.g.* the example of the taking of an airport several hundred kilometers away from the actual front given by the ICJ, *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, ICJ Rep. 2005, 168, 223, para. 147.

⁷⁶ UN Doc. S/RES/1483 (22 May 2003).

⁷⁷ RC/Res.6, Annex II, *Amendments to the Elements of Crimes for Article 8bis*, Introduction, para. 3.

⁷⁸ Heinsch (2010) 2 *GoJIL* 713, 727.

⁷⁹ See RC/Res.6, Annex II, *Amendments to the Elements of Crimes for Article 8bis*, Elements, Introduction, para. 4.

⁸⁰ RC/Res.6, Annex II, *Amendments to the Elements of Crimes for Article 8bis*, Elements, paras. 4, 6; see also further Pigaroff and Robinson, *article 30, passim*.

⁸¹ McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 158; Fife, in: Bergsmo (ed.), *Human Rights and Criminal Justice for the Downtrodden: Essays in Honour of Asbjorn Eide* (2003) 53, 73; Kreß (2007) 20 *LeidenJIL* 851, 859.

⁸² McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013), 163.

hand, the long and tedious process of including the crime of aggression into the Rome Statute indicates that, eventually, the State parties must have been very aware of the responsibility and competence they were thereby referring to the ICC.

At the same time, the requirement of a ‘manifest’ violation might lead to a situation in which in almost all relevant cases justifications for an illegal use of force might be adduced that are, while being wrong on substance, not that far-fetched so as to enable the State concerned, as well as the alleged offenders, to at least make a plausible claim that the said use of force was not ‘manifestly’ illegal⁸³, which involves the **risk of making article 8bis de facto** not only jurisdiction-wise (given the Court’s limited scope of jurisdiction under article 15bis⁸⁴) but also substance-wise, largely a *lettre morte* or, at best, **symbolic in nature**.

The broad notion of ‘manifest’ violations of the prohibition of the use of force and the ensuing ‘grey areas’ when it comes to contentious cases of the use of force has to be also seen in light of the principle of *nullum crimen, nulla poena sine lege certa* and in light of **article 22 para. 2**, which provides that ‘[t]he definition of a crime shall be strictly construed, (...) shall not be extended by analogy’, and that ‘[i]n case of ambiguity, the definition shall be interpreted in favor of the person being investigated, prosecuted or convicted’⁸⁵. That provision will prove its particular relevance with regard to criminal responsibility arising from the above-mentioned grey areas of the use of force. In such instances, the Court will then have to take into account not only the case law of the ICJ, but also relevant State practice (as well as the practice of the political organs of the United Nations) concerning previous, somewhat similar situations of the use of force⁸⁶.

bb) Contentious cases of ‘manifest’ violations of the Charter of the United Nations. While there is no fixed ‘canon’ of scenarios where the issue will most likely arise, whether a given military action will amount to a violation of the Charter of the United Nations, let alone a ‘manifest’ one, issues of preventive/pre-emptive self-defense, self-defense against non-state actors operating from the territory of another State, humanitarian intervention, implicit authorizations and revitalization of previous Security Council resolutions, interventions upon invitation, as well as the rescue of one State’s own nationals abroad will be among the most likely scenarios in which the issue of whether such uses of forces amount to a manifest violation of the Charter of the United Nations will arise.

aaa) Preventive and pre-emptive self-defense. Article 51 of the Charter of the United Nations provides that nothing in the Charter shall impair the **inherent right of individual or collective self-defense**, if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security. This definition has, ever since its incorporation into the Charter, given rise to a number of controversies.

For one, while the ICJ (and following its jurisprudence also the Ethiopian-Eritrean Claims Commission)⁸⁷ has held that the **term of armed attack is narrower than the scope of article 2 para. 4**⁸⁸, only the gravest forms of the use of force constituting armed attacks⁸⁹, the matter has remained somewhat controversial⁹⁰. This raises the question whether an **armed response to a use of force, which is short of an armed attack** within the meaning of the jurisprudence of the ICJ would then not only be unlawful under the Charter, but rather also *manifestly* unlawful within the meaning of article 8bis para. 1.

⁸³ See for such proposition Paulus (2009) 20 *EJIL* 1117, 1122 *et seq.*

⁸⁴ For details see Zimmermann and Freiburg, *article 15bis, passim*, in particular mn 4 and 5.

⁸⁵ For details as to article 22, see Broomhall, in this volume.

⁸⁶ Schmalenbach (2010) *JZ* 745, 747.

⁸⁷ See already mn 53.

⁸⁸ Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 6.

⁸⁹ *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep. 1986, 14, 101, para. 191; *Oil Platforms (Iran v. USA)*, ICJ Rep. 2003, 161, 186, para. 51.

⁹⁰ Wilmshurst (2006) 55 *ICL* 963.

- 71 If an armed attack occurs, the exercise of the right of self-defense must be both, **necessary and proportionate**⁹¹. However, surpassing the threshold of necessity and proportionality will not automatically lead to a manifest violation of the Charter of the United Nations.
- 72 Finally, article 51 does not *expressis verbis* refer to a right of **anticipatory self-defense**. However, it is widely accepted that States have a right of anticipatory self-defense against an *imminent* attack⁹² under customary law, as the customary right of self-defense exists alongside the Charter of the United Nations⁹³, provided there is ‘a necessity of self-defense, instant, overwhelming, leaving no choice of means, and no moment for deliberation’ as set out in the famous *Caroline formula*⁹⁴. Such instances of preventive self-defense involving the use of armed force would then not amount to a violation of the Charter, let alone a manifest one.
- 73 In contrast thereto, instances of alleged ‘pre-emptive’ self-defense against a possible attack which is said to occur in the farer future, as alluded to in the United States National Security Strategy of 2002, which stipulated that the right of **pre-emptive self-defense** which would be legal ‘even if uncertainty remains as to the time and place of the enemy’s attack’⁹⁵, would not only amount to a violation of the Charter as such, but also to a manifest one. This assumption is supported by the unequivocal reaction by the international community to Israel’s bombing of the Iraqi nuclear reactor *Osirak* in 1981⁹⁶, and to the US-led **invasion of Iraq** in 2003⁹⁷. At the very least, as of today, the ICJ has clarified in its judgment in the *Armed Activities* case between the DRC and Uganda that ‘Article 51 of the Charter may justify a use of force in self-defence only within the strict confines there laid down’ and that ‘[i]t does not allow the use of force by a State to protect perceived security interests beyond these parameters’ given that ‘[o]ther means are available to a concerned State, including, in particular, recourse to the Security Council’⁹⁸. Given this unequivocal 2005 statement by the principal judicial organ of the United Nations, it stands to reason that any future instance of such alleged ‘pre-emptive’ self-defense would amount to a ‘manifest’ violation of the Charter of the United Nations.
- 74 **bbb) Self-defense against non-State actors.** Self-defense against non-State actors, namely terrorist groups, operating from the territory of another State, remains a matter of dispute. For purposes of article 8bis, this raises the question whether the use of military force against such groups, when taking place in a third State (the ‘target State’), constitutes a manifest violation of the Charter.
- If the target State itself can be held responsible for the acts carried out by such groups under the regular rules of State responsibility, and further provided such terrorist acts are comparable to acts of regular armed forces, the right to self-defense would be triggered⁹⁹. This would then in turn not only exclude a manifest violation of the Charter, but any such violation *tout court*.
- 75 Were this however not the case, *i. e.* in situations in which the acts of the non-state actor are **not attributable to a State**, the ICJ in its Advisory Opinion on the *Construction of a Wall* case found that the inherent **right of self-defense only applies ‘in the case of armed attack by one State against another State’**¹⁰⁰. This approach has however been challenged not only

⁹¹ *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep. 1986, 14, 94, para. 176; *Oil Platforms, (Iran v. USA)*, ICJ Rep. 2003, 161, 198, para. 76; *Legality of the Threat or Use of Nuclear Weapons*, Advisory Opinion, ICJ Rep. 1996, 226, 245, para. 41.

⁹² Bowett (1972) 66 AJIL 1, 4.

⁹³ *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep. 1986, 14, 94, para. 176.

⁹⁴ (1857) 29 BFSP 1126, 1138.

⁹⁵ <<http://georgewbush-whitehouse.archives.gov/nsc/nss/2002/nss5.html>> last accessed September 2015.

⁹⁶ UN Doc S/RES/487 (19 June 1981); Sifris (2003) 4 MelbJIL 521, 537.

⁹⁷ Also see mn 80.

⁹⁸ *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, ICJ Rep. 2005, 168, 223, para. 148.

⁹⁹ Shaw, *International Law* (7th edition 2014) 823.

¹⁰⁰ *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, ICJ Rep. 2004, 136, 194, para. 139, emphasis added.

by the practice of the Security Council when adopting Resolution 1368 one day after the terrorist attacks of 9/11 in which it referred to ‘the inherent right of individual or collective self-defence in accordance with the Charter’¹⁰¹. This was affirmed by Resolution 1373, as the Security Council, acting under Chapter VII, adopted several measures on international terrorism, obliging all states to ‘[t]ake the necessary steps to prevent the commission of terrorist acts’¹⁰². What is more is that the ICJ in its *Armed Activities case between the DRC and Uganda* left it deliberately open whether attacks emanating from non-State actors may trigger the right of self-defence¹⁰³. Yet, there is at least some amount of **State practice** indicating that large-scale terrorist attacks, especially when originating from the territory of States which deliberately failed to prevent them, can amount to an armed attack in the sense of article 51 of the Charter of the United Nations, hence triggering the right of self-defence¹⁰⁴.

At the very least and given the current debate on the matter, it thus seems to be safe to assume that the use of military force as a reaction to armed attacks emanating from non-State actors would *not amount to a ‘manifest’ violation* of the Charter of the United Nations, as required by article 8bis para. 1 in order for such use of force to eventually constitute a crime of aggression. 76

ccc) Humanitarian intervention/Responsibility to Protect. In cases of massive human rights violations where the Security Council does not authorize the use of force, and where self-defence is not applicable either, it has been argued that the concept of **humanitarian intervention** may justify the use of force¹⁰⁵. This concept is an attempt to legalize the use of armed force in and directed against a foreign state for the prevention or discontinuation of massive human rights violations. State practice referred to, in order to justify the legality of such behavior, encompasses the interventions by India in Bangladesh (1971), Vietnam in Cambodia (1978), Tanzania in Uganda (1979), the USA in Grenada (1983) and, most prominently, NATO member States in **Kosovo (1999)**. 77

However, one might doubt whether these examples do indeed fulfill the requirements to provide for a new rule of customary international law, namely extensive and uniform state practice as well as sufficient *opinio iuris*¹⁰⁶, even more so since both of the two interventions for *primarily* humanitarian reasons, the Indian invasion in Bangladesh¹⁰⁷ as well as the NATO intervention in Kosovo¹⁰⁸, were condemned by a majority of States, while even the NATO states themselves (apart from Belgium), in front of the ICJ, did not rely on the concept of humanitarian intervention¹⁰⁹.

One may argue that the approval of the relatively new concept of the ‘**Responsibility to Protect**’ (R2P) implies that humanitarian intervention has by now amounted to international custom, or is currently in the process of doing so. Still, even under the concept of ‘R2P’ it is mainly, if not exclusively, the Security Council that might provide for an authorization to use military force¹¹⁰. 78

¹⁰¹ UN Doc S/RES/1368 (12 September 2001), preambular part, para. 3.

¹⁰² UN Doc S/RES/1373 (28 September 2001), para. 2(b).

¹⁰³ *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, ICJ Rep. 2005, 168, 223, para. 147.

¹⁰⁴ Shaw, *International Law* (7th edition 2014) 824–5; also see UN Doc S/RES/1701 (11 August 2006) referring to the attacks by Hezbollah in Lebanon upon Israel; more restrictive Tams (2009) 20 *EJIL* 359, 378 *et seq.*

¹⁰⁵ Lillich (1967) 53 *IowaLRev* 325, 347; Greenwood (2000) 49 *ICLQ* 926; cf. Simma (1999) 10 *EJIL* 1.

¹⁰⁶ Article 38(1) lit.b ICJ Statute; *North Sea Continental Shelf (Germany v. Denmark)*, ICJ Rep. 1969, 3, 43 para. 74; *Right of Passage over Indian Territory (Portugal v. India)*, ICJ Rep. 1960, 6, 40.

¹⁰⁷ UN Doc A/RES/2793(XXVI) (7 December 1971); Schachter (1984) 82 *MichLRev* 1620, 1629.

¹⁰⁸ China (UN Doc S/PV/3988 [24 March 1999]); Russia (*ibid.*); India (UN Doc S/1999/328 [26 March 1999]); Non-Aligned Movement (UN Doc S/1999/451 [21 April 1999]); Rio Group (UN Doc A/53/884 [26 March 1999]); Group of 77 (UN Doc A/55/74 [12 May 2000]), para. 54.

¹⁰⁹ *Legality of Use of Force (Serbia and Montenegro v. Belgium)*, ICJ, Oral Pleadings of Belgium, CR 99/15, 11, para. 16.

¹¹⁰ World Summit Outcome, UN Doc A/RES/60/1 (24 October 2005), paras. 79, 139; UN Doc S/RES/1674 (28 April 2006); UN Doc A/59/565 (2 December 2004), para. 203.

- 79 Yet, if one were to take the position that a humanitarian intervention constitutes a violation of the Charter of the United Nations, it still remains a matter of discussion whether, by its *character*, it would then also constitute a *manifest violation* thereof and could thus also amount to a crime of aggression. It was during the Kampala Review Conference, that the then Legal Adviser of the US Department of State insisted that the inclusion of that sentence had to be understood in a way that any humanitarian intervention carried out, in order to prevent genocide, war crimes, or crimes against humanity, could *ipso facto* not constitute a *manifest violation* of the Charter of the United Nations¹¹¹. A respective understanding to that effect as proposed by the United States was however not adopted¹¹². Yet, this does not automatically indicate that such humanitarian intervention would then amount to a *manifest violation* of the Charter, in light of its goals and hence its character¹¹³.
- 80 **ddd) Implicit authorizations by the Security Council and ‘revitalization’ of previous Security Council authorizations.** Chapter VII of the Charter of the United Nations enables the Security Council to authorize measures which are necessary to maintain peace and security, including the authorization to use military force. In 2003, the United States, as well as the United Kingdom, given the **absence of an explicit Security Council authorization** to use military force against Iraq, tried to justify their invasion of Iraq by relying on an ‘implicit’ authorization contained in Security Council Resolution 1441 (2002) and/or on an alleged ‘revitalization’ of the authorization to use all necessary means to restore peace and security in the region as contained in Resolution 678 (1990)¹¹⁴. Those attempts were however vehemently rejected by the majority of States¹¹⁵, although due to the lack of precedence and in light of the somewhat divided scholarly views on the matter, the invasion **might not have, at the time, amounted to a manifest violation** of the Charter of the United Nations¹¹⁶.
- 81 It is in light of these very experiences that the Security Council has in its more recent practice either specifically stated that it only authorized measures under article 41 of the Charter (*i. e.* non-military measures)¹¹⁷, or that the use of military force would require an additional resolution¹¹⁸. At least in those latter cases, the use of military force without such additional explicit authorization would then amount to a manifest violation of the Charter of the United Nations, and hence constitute a crime of aggression.
- 82 **eee) Intervention upon invitation.** Another contentious scenario which might, depending upon the circumstances of the individual case, amount to a manifest violation of the Charter as contemplated in article 8bis, relates to ‘**interventions upon invitation**’, *i. e.* military interventions by foreign troops in an internal armed conflict upon the invitation of the legitimate government of the State concerned¹¹⁹. Given a valid (rather than a fabricated)

¹¹¹ Statement by Harold Koh to the Conference, 4 June 2010, available at <<http://www.State.gov/s/l/releases/remarks/142665.htm>> last accessed September 2015.

¹¹² Mancini (2012) 81 *NordJIL* 227, 236.

¹¹³ McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 162.

¹¹⁴ UN Doc S/2003/350 (21 March 2003); UN Doc S/2003/351 (21 March 2003); Foreign & Commonwealth Office UK, Iraq: Legal Position Concerning the Use of Force (17 March 2003), <<http://www.parliament.the-stationery-office.co.uk/pa/cm200203/cmselect/cmstaf/405/3030407.htm>> last accessed September 2015.

¹¹⁵ Russia, France, China and Chile (UN Doc S/PV.4714 [7 March 2003]); the Non-Aligned Movement and the League of Arab States (UN Doc S/PV.4726 [26 March 2003]); Belgium (UN Doc A/58/PV.8 [23 September 2003]); Germany (Federal Administrative Court, Judgment of 21 June 2005, 2 WD 12.04).

¹¹⁶ Ambos, *Treatise on International Criminal Law*, ii (2014) 201.

¹¹⁷ See the practice relating to sanctions on Iran: UN Docs. S/RES/1737 (23 December 2006); S/RES/1747 (24 March 2007); S/RES/1803 (3 March 2008); S/RES/1929 (9 June 2010).

¹¹⁸ See already UN Doc S/RES/1737 (23 December 2006), para. 24 c), which ‘[adopt further appropriate measures under Article 41 of Chapter VII of the Charter of the United Nations to persuade Iran to comply with these resolutions and the requirements of the IAEA, and] underlines that further decisions will be required should such additional measures be necessary’, thereby not even referring to measures according to article 42 but only to article 41 of the Charter of the United Nations; the same provision has been repeated verbatim in the following resolutions.

¹¹⁹ Nolte, ‘Intervention by Invitation’, in: *MPEPIL*, mn 1.

official invitation by the government of the territorial State concerned, that State's sovereignty is considered not to be violated by following up on the invitation, hence neither amounting to an illegal use of force, nor even less an act of aggression, as defined in article 8bis. This view is supported, *inter alia*, by recent State practice including the sending of a Regional Assistance Mission to the Solomon Islands (created by the Pacific Islands Forum in order to restore international security)¹²⁰, as well as the French intervention in Mali since 2012.

However, in situations when the respective government is **no longer to be considered the effective government of the State** concerned (and thus no longer able to represent the State or to issue a legally valid 'invitation' or consent), intervention to support such government becomes illegal¹²¹. Yet, depending on the facts of the ground, which in many cases will be disputed, such use of force might not yet be 'manifestly' illegal, as required by article 8bis so as to constitute a crime of aggression.

On the other hand, where the intervening State uses a **fabricated 'invitation'** forced upon the respective government, any such military intervention would then constitute an obvious and manifest violation of the Charter of the United Nations¹²².

fff) Rescue of nationals abroad. While in the 19th century, it has been a common practice to use military force in order to protect nationals abroad, the adoption of the Charter of the United Nations rendered such actions more controversial, since attacks on individuals abroad do not amount to an armed attack against the home State of the persons concerned itself¹²³. Still, there is relevant State practice and *opinio juris*, which indicates that at least a significant number of States take the position that military operations limited in their scale, duration and purpose are legal under international law. Most prominently, following the Israeli rescue operation in the **Entebbe** incident, the debates in the Security Council were inconclusive and the opinion of States on the matter were divided, even when the UN Secretary General, Kurt Waldheim, condemned these actions as a serious violation of Uganda's sovereignty¹²⁴. The position taken in 1993 by the United Kingdom FCO might be taken as a guideline in that respect. The United Kingdom argued that '[f]orce may be used (...) against threat to one's nationals if: (a) there is good evidence that the target attacked would otherwise continue to be used by the other State in support of terrorist attacks against one's nationals; (b) there is, effectively, no other way to forestall imminent further attacks on one's nationals; (c) the force employed is proportionate to the threat'¹²⁵.

On the other hand, and somewhat similar to interventions upon invitation, the concept of using military force, in order to (allegedly) rescue threatened nationals **may give rise to abuse**, the invasion of Grenada in 1983 and of Panama in 1989 by the United States possibly being examples at hand¹²⁶. It would thus, once again, depend on the circumstances of the specific case to determine whether indeed, the operation was not only limited in kind, but also aiming at rescuing nationals genuinely in danger, or whether instead the concept was only relied on to justify an otherwise manifest violation of the Charter of the United Nations.

¹²⁰ French (2005) 24 *AfricanYbIL* 337, 426 *et seq.*

¹²¹ Shaw, *International Law* (7th edition 2014) 835; Nolte, 'Intervention by Invitation', in: *MPEPIL*, mn 11.

¹²² As to the necessary degree of consent and further details see Nolte, 'Intervention by Invitation', in: *MPEPIL*, mn 12.

¹²³ Shaw, *International Law* (7th edition 2014) 829; Beyerlin (1977) *ZaöRV* 213, 220.

¹²⁴ Shaw, *International Law* (7th edition 2014) 829; cf. UN Doc S/PV.1939 (9 July 1976), para. 13.

¹²⁵ (1993) 64 *BYbIL* 732.

¹²⁶ Shaw, *International Law* (7th edition 2014) 830, also see there for further practice.

E. Article 8bis para. 2

I. General questions

- 87 Both the chapeau of, as well as the list of acts amounting to acts of aggression contained in Art 8bis para. 2, mirror the **wording of articles 1 and 3 of GA Resolution 3314 ('Definition of Aggression')** adopted by the United Nations General Assembly in 1974. The definition of aggression contained in the said resolution aimed, as confirmed by operative paragraph 4 of the resolution, at guiding the Security Council, when making a determination on the existence of an act of aggression within the meaning of article 39 of the Charter of the United Nations. Notwithstanding, the SWGCA nevertheless supported its adaption to the context of criminal responsibility, an aspect which has been somewhat heavily criticized¹²⁷.

II. Chapeau

1. 'For the purpose of paragraph 1 (...)'

- 88 The introductory words of article 8bis para. 2 confirm that the definition of what constitutes an act of aggression under this very paragraph is only meant to be relevant in order to find out **whether or not a crime of aggression within the meaning of article 8bis para. 1 has been committed**. In line with Understanding no. 4 already discussed above¹²⁸, neither article 8bis para. 2 nor indeed article 8bis *in toto* are meant to have a direct impact on general international law in line with article 10.

2. '(...) 'act of aggression' (...)'

- 89 As confirmed by the list of examples forming part of article 8bis para. 2, an 'act of aggression' requires a **lower degree of gravity than the notion of an 'armed attack'** within the meaning of article 51 of the Charter of the United Nations. As a matter of fact, as shown above¹²⁹, short-term military actions, while already arguably amounting to an act of aggression, do not necessarily constitute an armed attack, or indeed a crime of aggression as defined in article 8bis.

3. '(...) means the use of armed force (...)'

- 90 Article 8bis aims primarily at upholding the general prohibition of the use of force, as contained in article 2 para. 4 of the Charter of the United Nations, the latter prohibiting both the threat and use of force generally. By using the formula 'use of *armed* force', the wording of article 8bis para. 2 embraces a **more restrictive approach than article 2 para. 4 of the Charter of the United Nations**, the wording of which refers to the 'use of force' in general (as well as the threat of force, which in any event would exceed the adequate subject of criminalization given the current status of customary law on the matter)¹³⁰. Hence undeniably, political or economic force is not covered by article 8bis¹³¹. It ought to be noted, however, that even the scope of article 2 para. 4 is limited to the use of military force, as confirmed by para. 7 of the Preamble of the Charter of the United Nations, as well as by article 44 thereof, and, finally, by the Friendly Relations Declaration¹³².

¹²⁷ Heinsch (2010) 2 *GoJIL* 713, 723.

¹²⁸ See mn 7.

¹²⁹ *Supra* mn 53.

¹³⁰ Kreß and von Holtzendorff (2010) 8 *JICJ* 1179, 1190.

¹³¹ Broms (1977) 154 (I) *RdC* 299, 342.

¹³² UN Doc A/RES/25/2625 (24 October 1970); as to further details see Randelzhofer and Dörr, in: Simma et al. (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 17 et seq.

4. ‘(...) by a State (...)’

As already indicated by article 8bis para. 1 (‘by a person in a position effectively to exercise control over or to direct the political or military action of a State’)¹³³, article 8bis para. 2 clarifies for good that **an act of aggression in the sense of this provision can only be committed by a State, not by private actors**¹³⁴. Accordingly, leaders and high-rank members of paramilitary or terrorist groups cannot be capable of the crime of aggression with respect to acts committed by those groups. The prosecution of such private individuals under such circumstances remains entirely within the various States’ domestic jurisdiction.

Under certain circumstances, the commission of **armed force by private actors can nevertheless be attributable to a State** under the regular rules of State responsibility, as codified in the ILC Articles on State Responsibility¹³⁵ and, in particular, article 8 thereof. Accordingly, the ‘**effective control standard**’, as developed by the ICJ in its *Nicaragua* judgment, and more recently confirmed in its judgment on the merits in the (Bosnian) *Genocide* case, applies in order to eventually determine whether an act of aggression, even when committed by private actors, is nevertheless attributable to a State and thus constitutes ‘the use of armed force by a State’ within the meaning of article 8bis para. 2¹³⁶.

A specific form of such ‘indirect’ use of force by a State is then referred to in article 8bis para. 2 lit. g) as one possible act of aggression¹³⁷.

5. ‘(...) against the sovereignty, territorial integrity or political independence of another State, or in any other manner inconsistent with the Charter of the United Nations.’

This formula largely resembles the wording of article 2 para. 4 of the Charter of the United Nations, except that in line with article 1 of GA Resolution 3314 (‘Definition of Aggression’) the words ‘**against the sovereignty**’ were added and that the words ‘inconsistent with the purposes of the United Nations’ were replaced by the words ‘inconsistent with the Charter of the United Nations’. While – with regard to GA Resolution 3314 – the addition of ‘sovereignty’ resulted from the focus of the newly independent (former colonial) countries on their sovereignty, the term ‘inconsistent with the Charter of the United Nations’ was meant to cover also formal provisions of the Charter, such as those of Chapter VI¹³⁸.

These words must however not be read in a way to imply that the provision is meant to only cover those instances of the use of military force which are directed against or aim at altering or abolishing another State’s sovereignty, territorial integrity or political independence¹³⁹. As a matter of fact, the respective latter parts of the wording of both, article 1 of the GA Resolution 3314 (‘Definition of Aggression’), and already beforehand the similar formula of ‘in any other matter inconsistent with Purposes of the United Nations’ in article 2 para. 4 of the Charter of the United Nations are meant to reconfirm the **general character of the prohibition of the use of force**¹⁴⁰. The notion of ‘integrity’ should be understood as ‘inviolability’, prohibiting any kind of forcible trespassing involving the use of military force¹⁴¹.

¹³³ See mn 43.

¹³⁴ Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 260.

¹³⁵ UN Doc A/56/83 (12 December 2001).

¹³⁶ See mn 146 *et seq.*

¹³⁷ See mn 144 *et seq.*

¹³⁸ Bruha, *Die Definition der Aggression* (1980) 114.

¹³⁹ Randelzhofer and Dörr, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 37.

¹⁴⁰ Randelzhofer and Dörr, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 37 and 39 (referring to the travaux préparatoires of article 2 para. 4).

¹⁴¹ Randelzhofer and Dörr, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 37; Dinstein, *War, Aggression and Self-Defence* (5th edition 2011) 91.

- 96 The term ‘of another State’ indicates that **only situations involving two States** are covered¹⁴². Neither mere inner-State conflicts, nor acts against private actors are encompassed unless, obviously, such acts, while being directed against non-State actors take place on the territory of another State. The term’s standing within the provision does *not* mean that the use of armed force ‘in any other manner inconsistent with the Charter of the United Nations’ does not require an action *directed* against another State.
- 97 The applicability of article 8bis para. 2, as indeed the applicability of the prohibition of the use of force in general, does not depend on the *de facto* effectiveness of another State’s sovereignty, or put otherwise the prohibition (and eventually the exposure to punishment under article 8bis) **also encompasses the use of armed force against so-called ‘failed States’**¹⁴³.
- 98 The last alternative ‘**or in any other manner inconsistent with the Charter of the United Nations**’ serves to fill in possible gaps in the scope of application of article 8bis para. 2. At the same time, it ensures that the use of military force that is in line with the Charter, and in particular when justified as an exercise of the right to self-defense under article 51 of the Charter of the United Nations, or when authorized by the Security Council under Chapter VII of the Charter, does not amount to an act of aggression¹⁴⁴. At the same time, the more formalistic notion of the ‘Charter of the United Nations’ in article 8bis para. 2 (in contrast to ‘the Purposes of the United Nations’ formula, as used in article 2 para. 4 of the Charter of the United Nations) indicates that also instances of the use of armed force allegedly in line with such purposes might amount to an act of aggression¹⁴⁵.

6. ‘Any of the following acts (...) in accordance with United Nations General Assembly resolution 3314 (XXIX) of 14 December 1974 (...)’

- 99 The phrase ‘[a]ny of the following acts’ must be read as meaning ‘*all* of the following acts’ rather than as ‘*only* the following acts’, since the list of acts enumerated in article 8bis para. 2 (just like the one in GA Resolution 3314 [‘Definition of Aggression’]) was **not meant to be an exhaustive** one.¹⁴⁶ Indeed, the chapeau of article 8bis para. 2 2nd sentence states that the provision has to be interpreted in accordance with GA Resolution 3314 (‘Definition of Aggression’), article 4 of which in turn explicitly provides that ‘*[t]he acts enumerated above are not exhaustive and [that] the Security Council may determine that other acts [also] constitute aggression under the provisions of the Charter*’. This is confirmed by the drafting history of the GA Resolution 3314 (‘Definition of Aggression’), according to which the list of acts of aggression laid down in lit. a) – g) (and accordingly now also the list of acts contained in article 8bis para. 2) was not intended as an exclusive and strict rule, but rather as interpretation material for the Security Council¹⁴⁷.
- 100 During the drafting process in the SWGCA of what is now article 8bis, there were proposals such as one by Germany, which wanted to introduce a more clearly defined narrow definition of what amounts to an act of aggression, restricting the potential scope of such acts¹⁴⁸. In the end, however, there was no majority for such proposals. The majority of delegations in favor of the current text held, as summarized in the Official Records of the SWGCA, that even ‘[a]cts other than those listed could [...] be considered acts of aggression,

¹⁴² Brooms (1977) 154 (I) RdC 299, 342.

¹⁴³ Randelzhofer and Dörr, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 200, mn 40; for further details see Geiß, *Failed States* (2005) 123 *et seq.*

¹⁴⁴ Brooms (1977) 154 (I) RdC 299, 343.

¹⁴⁵ See also already mn 77.

¹⁴⁶ For a different view, see Ambos (2010) 53 GYBIL 463, 487.

¹⁴⁷ Brooms (1977) 154 (I) RdC 299, 355.

¹⁴⁸ Kreß (2009) 20 EJIL 1129, 1136.

provided that they were of a similar nature and gravity to those listed and would satisfy the general criteria contained in the chapeau of paragraph 2¹⁴⁹.

While this **open-ended character of the list of possible acts of aggression** seems to be relatively unproblematic (and even necessary) in the context of Security Council decisions under article 39 of the Charter of the United Nations, this vagueness might conflict with the **criminal law principle of legality**, as enshrined in article 22¹⁵⁰. However, it seems to be generally acknowledged that the principle of legality has a narrower scope in international law as compared to domestic (criminal) law¹⁵¹. Accordingly, other clauses of international criminal law comprise somewhat similar open-ended elements as well, such as article 3 ICTY Statute¹⁵², or specifically within the framework of the Rome Statute itself article 7 para. 1 lit. k) ICC Statute, which refers to '[o]ther inhumane acts of a *similar character* intentionally causing great suffering, or serious injury to body or to mental or physical health'¹⁵³. Notwithstanding, it is still recommendable to ensure that the notion of what constitutes a crime of aggression (and accordingly also as a *condicio sine qua non* what constitutes an act of aggression) is not expanded too extensively. Any other possible acts of aggression not listed as such in article 8bis para. 2 lit. a) – g) should accordingly be narrowly construed and may only be considered as such provided they possess *mutatis mutandis* the same character and gravity as one or more of the acts listed¹⁵⁴.

At the same time, as the first introductory provision of the Elements of Crimes pertaining to article 8bis confirms, 'any of the acts referred to in article 8bis, paragraph 2, qualify as an act of aggression.' Put otherwise, it must be assumed that **any of the acts listed can, as a matter of principle, reach the threshold, as set out in article 8bis para. 1**. Finding otherwise would not only run counter to the provision just quoted but also, and even more importantly, to the very structure of article 8bis *in toto*.

Finally, over time, the military operations of a State may fulfill one or even more of the alternatives listed in article 8bis para. 2 even if they, when they began, did not yet amount to an act of aggression.

7. '(...) regardless of a declaration of war (...)'

In modern international law, a declaration of war does no longer constitute a necessary requirement for either the existence of an armed conflict, or indeed an act of aggression. It was already during the drafting process of the **1933 Convention for the Definition of Aggression**¹⁵⁵ that the requirement of such a declaration had become obsolete, given that article 2 para. 1 of the said treaty had referred to a declaration of war as one among several examples of acts of aggression, indicating its character as nothing but one specific form of aggression.

After World War II, declarations of war have become very rare. With the Geneva Conventions of 1949¹⁵⁶, such declarations have also lost their legal significance for purposes of international humanitarian law, since common **article 2 para. 1 of the four Geneva Conventions** provides that the Conventions 'shall *apply to all cases of declared war or of any other armed conflict* which may arise between two or more of the High Contracting Parties, *even if the state of war is not recognized by one of them*'. Accordingly, it does not

¹⁴⁹ ICC-ASP/6/20/Add.1, Assembly of States Parties to the Rome Statute of the International Criminal Court, Resumed Sixth Session, New York, 2–6 June 2008, Official Records, Annex II, Report of the Special Working Group on the Crime of Aggression, 14, para. 34.

¹⁵⁰ See generally Broomhall, *article 22*, in this volume.

¹⁵¹ Heinsch (2010) 2 *GoJIL* 713, 724.

¹⁵² 'The International Tribunal shall have the power to prosecute persons violating the laws or customs of war. Such violations shall include, *but not be limited to*: [...]'.
¹⁵³ Emphasis added; as to this provision see Hall and Stahn, *article 7*, mn 95 *et seq.*

¹⁵⁴ Clark (2010) 2 *GoJIL* 689, 696.
¹⁵⁵ 147 *LNTS* 69.

¹⁵⁶ 75 *UNTS* 31; 75 *UNTS* 85; 75 *UNTS* 135; 75 *UNTS* 287.

matter for purposes of article 8bis whether one or both parties refer to their use of military force eventually constituting an act of aggression as a mere ‘police operation’, a ‘humanitarian’ or ‘peacekeeping operation’, or simply deny being involved in any such use of force in the first place.

8. ‘(...) shall (...) qualify as an act of aggression:’

- 106 The acts named in article 8bis para. 2 lit. a) – g) do not constitute examples of *crimes* of aggression, but merely of *acts* of aggression. In order for such an act to also qualify as a crime of aggression coming within the jurisdiction of the Court, it therefore must also fulfill the additional conditions set out in article 8bis para. 1.

III. Article 8bis para. 2 lit. a) – g)

1. Lit. a): invasion, attack, military occupation or annexation

- 107 a) **General issues.** Article 8bis para. 2 lit. a) refers to the **classic form of aggression**, subdivided into the invasion, the attack, the military occupation or annexation of the territory of a foreign State. This provision reflects customary international law¹⁵⁷. At most, one can discuss whether the inclusion of military occupation and annexation was really necessary or is, at least partially, redundant given that both forms of aggression presuppose that an invasion or attack has previously taken place¹⁵⁸.
- 108 b) ‘(...) invasion (...)’. An ‘invasion’ requires that the aggressor State’s armed forces illegally trespass another State’s frontiers, thereby breaching the principle of the **inviolability of State borders**¹⁵⁹. It does not matter whether such invasion then takes place by land forces, by way of a military operation via the sea, or by airborne troops. Classical examples of an invasion would be the **invasion of Poland by German troops in September 1939**, or the **invasion of Kuwait by Iraqi armed forces in 1990**.
- 109 c) ‘(...) or attack (...)’. The term ‘attack’ describes ‘the act of falling upon with force or arms, of commencing battle’, ‘an offensive operation’; an onset or an assault¹⁶⁰. Given the context within which the term ‘attack’ is used in article 8bis, namely for purposes of the *jus ad bellum*, the *jus in bello* definition of ‘attack’ as contained in **article 49 para. 1 of the Additional Protocol I to the Geneva Conventions**¹⁶¹ (namely that ‘attack’ means ‘acts of violence against the adversary, whether in offence or in defence’) is **irrelevant**. At the same time, any such act must not necessarily amount to an armed attack within the meaning of article 51 of the Charter of the United Nations¹⁶², in order for it to constitute an ‘attack’ within the meaning of article 8bis para. 2. Rather, it is article 8bis para. 1 that would determine the necessary threshold so as for the act of aggression concerned in form of an ‘attack’ to eventually even amount to a crime of aggression.
- 110 It ought to be also noted that **any use of armed force in line with international law** and, in particular, either in exercise of the right of self-defense under article 51 of the Charter of the United Nations, or by virtue of an authorization by the Security Council under Chapter VII of the Charter, **does not constitute an ‘attack’** within the meaning of article 8bis para. 2 lit. a).
- 111 d) ‘(...) by the armed forces of a State (...)’. In order for either an invasion or an attack to constitute an act of aggression for purposes of GA Resolution 3314 (‘Definition of Aggres-

¹⁵⁷ Dinstein, ‘Aggression’, in: *MPEPIL*, mn 25; also indicated by *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, Separate Opinion of Judge Simma, *ICJ Reports* 2005, 334, 335, para. 3.

¹⁵⁸ Broms (1977) 154 (I) *RdC* 299, 348.

¹⁵⁹ Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 266.

¹⁶⁰ Cf. Oxford English Dictionary Online.

¹⁶¹ 1125 UNTS 3.

¹⁶² As to the threshold requirements for a use of force amounting to an armed attack see already mn 37.

sion'), and accordingly now also for purposes of article 8bis para. 2 lit. a), it must (at least also) involve the **armed forces** of the invading respectively attacking State. The provision thus constitutes a *lex specialis* to the **general rules of attribution**, as having been codified in the ILC's Articles on State Responsibility. More specifically, any forms of invasion or attack taking place by 'armed bands, groups, irregulars or mercenaries', the acts of which could eventually be (also) attributed to the sending State under article 8 of the ILC Articles of State Responsibility, are governed by article 8bis para. 2 lit. g).

For purposes of *jus in bello*, the 'armed forces' of a party to an armed conflict (and thus also of a State when it comes, as in then scenarios covered by article 8bis, to international armed conflicts) are defined in article 43 para. 1 Additional Protocol I to the Geneva Conventions as **all organized armed forces, groups and units which are under a command** responsible to that State for the conduct of its subordinates, regardless of whether they **constitute land, naval or air forces**. Given that this definition was not only adopted in 1977, *i. e.* after GA Resolution 3314 ('Definition of Aggression') had been adopted, but also for purposes of *jus in bello*, it cannot, as such, be considered as authoritative when it comes to article 8bis para. 2 lit. a), but may serve as a helpful tool in defining the group of persons, action of which is relevant to determine whether an invasion respectively an attack has taken place. In any event, given the object and purpose of the provision, namely to protect the attacked respectively the invaded State, the acts of any organs of a State which involve the use of military force are to be considered acts of 'armed forces', such acts by non-organs being covered by article 8bis para. 2 lit. g). 112

e) '(...) of the territory of another State (...)'. In order to make a finding as to whether an act of aggression in the form of an 'invasion' or 'attack' has taken place, the Court will eventually have to make a finding as to whether (as might be claimed) the alleged aggressor State has a valid **title to the territory** concerned, or rather not. If the former were the case, there would be not an invasion of or attack of the territory of another State, even if the said other State had effective control of such territory. Put otherwise, the provision does protect the sovereignty of the invaded or attacked State. In contrast thereto, where the **attacked State only exercised *de facto* control over the territory**, sovereignty however lying with the invading State, there would not be, as required, an invasion or attack of the territory of another State. 113

It is worth noting that the first part of article 8bis para. 2 lit. a) dealing with the invasion or attack of 'the territory of another State' does not, unlike the latter part thereof, also refer to the invasion or attack of 'the territory of another State *or part thereof*'. It stands to reason, however, that it is the very act of invading or attacking a foreign State that amounts to an act of aggression as such, even if the aim is to 'only' do so on **limited geographic basis**. 114

f) '(...) or any military occupation, however temporary, resulting from such invasion or attack (...)'. Under article 42 of the Hague Regulations of 1907, having codified customary law on the matter, (military) '**occupation**' refers to situations where a State's military forces exercise effective control and authority over the territory of another State¹⁶³. In line with article 49 para. 2 of the 4th Geneva Convention, a situation of occupation may also arise where the said occupation (*i. e.* in the case of article 8bis the one which is the result of an invasion or attack) meets with no armed resistance. 115

The words 'however temporary' confirm that even a temporary occupation, *i. e.* one which is limited in time, amounts to an act of aggression. Yet, in order to reach the threshold provided for in article 8bis para. 1, a certain **minimum duration** of the occupation is required so as to provide for a violation of the prohibition of the use of force serious enough 116

¹⁶³ Convention (IV) respecting the Laws and Customs of War on Land and its Annex: Regulations concerning the Laws and Customs of War on Land, in: Scott, *The proceedings of the Hague Conferences* (1920) 621; also see *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, ICJ Rep. 2005, 168, 230, para. 173.

to constitute a crime of aggression. This is true, in particular, where the occupation is not only limited in time, but also merely extent to a small border area only.

- 117 Notwithstanding the fact that the part of article 8bis para. 2 lit. a) dealing with occupation does not, contrary to the part dealing with annexation of territory, *explicitly* state that even a **partial occupation** (just like a partial annexation) amounts to an act of aggression, an interpretation of the provision in line with customary international law provides that this is the case, a possible *argumentum e contrario* notwithstanding.
- 118 Under the terms of article 8bis para. 2 lit. a), the occupation must result from an ‘invasion’ or ‘attack’, and must thus be the **result of a use of force in violation of international law**. Thus, an occupation of foreign territory which came about as the result of an exercise of the right of self-defense does not, as such, constitute an act of aggression¹⁶⁴. During the drafting of GA resolution 3314 (‘Definition of Aggression’), the question whether an ‘**excessive defensive**’ occupation caused by the exercise of the right of self-defense, but lasting for several years or even decades after the initial exercise of such a right, constitutes an act of aggression, could not be agreed upon. Accordingly, the question was deliberately left open¹⁶⁵, nor was it addressed again when article 8bis was drafted. However, an unreasonably long-lasting occupation might amount to an ‘excess’ of self-defense, and might then, depending on the specific circumstances, constitute an act of aggression by and of itself¹⁶⁶.
- 119 While, under the terms of article 8bis para. 2 lit. a), the *invasion* or *attack* must be directed against the territory of a foreign State, the **provision does not require the ensuing occupation to then necessarily also relate to the territory of another State**. This is confirmed by the very text of article 8bis para. 2 lit. a), which refers to ‘*any* military occupation’. As a matter of fact, as the case of Palestine demonstrates, even an **inter-State armed conflict** might lead to the occupation of territory which, at least at the time the occupation took place, did not form part of a foreign State, or later on did not possess that status anymore.
- 120 Finally, where the **Security Council**, like in the case of Iraq, *ex post facto* legitimizes an **occupation regime**, even one created by a violation of the Charter of the United Nations¹⁶⁷, this either does not constitute an occupation covered by article 8bis para. 2 lit. a) in light of its object of purpose, or at the very least such an occupation would then not amount to a violation of the Charter, and even less a manifest one, the illegality of the prior invasion or attack notwithstanding.
- 121 g) ‘(...) or any annexation by the use of force of the territory of another State or part thereof (...)’. ‘**Annexation**’ covers the forcible acquisition of a State’s territory by another state in violation of international law. Additionally, an annexation normally requires a previous effective occupation, combined with the intention to appropriate the territory permanently¹⁶⁸. Under article 8bis para. 2 lit. a), any such annexation must be the result of the use of force.
- 122 In line with the practice of the Security Council, even **acts of a State purporting to extend its domestic laws** to occupied territory and assimilating it to its own territory, while not formally ‘annexing’ as such, might nevertheless amount to a (*de facto*) **annexation**¹⁶⁹ also covered by that part of article 8bis para. 2 lit. a) here under consideration. In particular, this might be true where an occupying power physically separates part of the occupied territory adjacent to its own territory from the remainder of the occupied territory and, at the same

¹⁶⁴ Bruha, *Die Definition der Aggression* (1980) 246.

¹⁶⁵ Bruha, *Die Definition der Aggression* (1980) 245 *et seq.*

¹⁶⁶ For the question whether an excessive exercise of the right of self-defense may generally amount to a manifest violation of the Charter of the United Nations, see mn 71.

¹⁶⁷ UN Doc S/RES/1483 (22 May 2003).

¹⁶⁸ Hofmann, ‘Annexation’, in: *MPEPIL*, mn 1.

¹⁶⁹ Hofmann, ‘Annexation’, in: *MPEPIL*, mn 33; see e.g. UN Doc S/RES/497 (17 December 1981), para. 1: ‘[...] the Israeli decision to impose its laws, jurisdiction and administration in the occupied Syrian Golan Heights is null and void and without international legal effect’.

time, transfers its own population into that very part of the occupied territory, while eventually simultaneously clearing it from the indigenous population¹⁷⁰.

2. Lit. b): bombardment or use of weapons

a) ‘**Bombardment by the armed forces of a State against the territory of another State** (...)’. The term ‘bombardment’ describes any attack from land, sea, or air bases with heavy weapons which, like artillery, shells, missiles, or aircraft, are capable of destroying enemy targets at a greater distance beyond the specific battle lines¹⁷¹. In contrast to article 8bis para. 2 lit. a), lit. b) encompasses cases which do not require the attacking State’s armed forces to physically cross the border. The notion of ‘bombardment’ against the territory of another State covers not only situations where the weapon system is located on the attacking State’s territory, but also where such systems have already been deployed on the territory of the State being attacked.

Given that article 8bis para. 2 lit. b) criminalizes violations of the *jus ad bellum*, it does not (only) criminalize bombardments of certain protected persons or objects, deriving from the principles of proportionality and distinction inherent in the *jus in bello* and criminalized by various provisions of article 8. Rather, the norm refers generally to **bombardments of another State’s territory in general**¹⁷².

The further elements of the provision covering bombardments, namely that such bombardment is undertaken by ‘the armed forces of a State’ and is further directed ‘against the territory of another State’ are identical to the terms used in article 8bis para. 2 lit. a), reference to which is therefore made¹⁷³.

b) ‘(...) or the use of any weapons by a State against the territory of another State’. The second alternative of article 8bis para. 2 lit. b) refers to the use of ‘**any weapons**’. Accordingly, while during the drafting process of what was to become GA Resolution 3314 (‘Definition of Aggression’) it had been proposed to introduce a specific reference to weapons of mass destruction, those weapons were in the end only referred to in the fifth preambular paragraph of the said resolution. Article 8bis in turn does not contain any such reference at all. However, the term ‘use of any weapons’¹⁷⁴ is broad enough to include the different kinds of weapons of mass destruction.

As in the case of the first alternative of article 8bis para. 2 lit. b) referring to ‘bombardments’, the use of weapons must be **directed against another State**¹⁷⁵. It is worth noting, however, that the second alternative of article 8bis para. 2 lit. b) generally refers to ‘the use of any weapons by a State’. This stands in contrast to the first alternative thereof, which requires the ‘bombardment by the armed forces of a State’¹⁷⁶. It thus stands to reason that any such use of weapons therefore constitutes an act of aggression by the respective State, whenever the action involved can be attributed to the attacking State under general rules of the law of State responsibility, even when not emanating from the armed forces of this State as such.

3. Lit. c): blockade

Article 8bis para. 2 lit. c) criminalizes ‘[t]he blockade of the ports or coasts of a State by the armed forces of another State’. The term ‘blockade’ describes **belligerent operations to prevent vessels from entering or exiting ports or coastal areas belonging to another nation**.

¹⁷⁰ See for such proposition *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory*, Advisory Opinion, ICJ Rep. 2004, 136, 184, para. 121.

¹⁷¹ McDonald and Bruha, ‘Bombardment’, in: *MPEPIL*, mn 1.

¹⁷² Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 267.

¹⁷³ See mn 111 *et seq.* and mn 113.

¹⁷⁴ Emphasis added.

¹⁷⁵ For further details see mn 113.

¹⁷⁶ Emphasis added.

It can take various forms, such as interdiction operations by vessels, or by mining the access routes to harbors. While a blockade has always been a common measure of economic warfare and constitutes a violation of the State's territory, it can also be directed against the armed forces of another State, in order to prepare an invasion or to cut off the other State's troop supply¹⁷⁷. Given that a blockade does not necessarily involve the actual use of armed force, it is lit. c) of article 8bis para. 2 that raises in particular the question whether such operations would always reach the threshold provided for in article 8bis para. 1¹⁷⁸.

Under **international humanitarian law** (once States have entered into an armed conflict), a blockade is only prohibited if it has the sole purpose of starving the civilian population or denying it other objects essential for its survival, or if the damage to the civilian population is, or may be expected to be, excessive in relation to the concrete and direct military advantage anticipated from the blockade¹⁷⁹. However, since article 8bis generally, and article 8bis para. 2 lit. c) in particular, do not criminalize violations of the *jus in bello*, but rather those of the *jus ad bellum*, such restrictions do not apply. Rather, **any blockade may constitute an act of aggression**, even if it abided by the limitations set out in international humanitarian law.

- 129 The blockade must then have the effect of blocking access to either the ports or the coasts of a State. Given that the provision uses both terms in the plural, it stands to reason that the **blockade of one single port** does not fulfill the necessary criteria in order to constitute a blockade within the meaning of article 8bis para. 2 lit. c), unless such port would provide for the only access to the coasts of the victim State, and would thus by the same token amount to a blockade of the coasts of such victim State.

- 130 Since the provision covers only the coastal part of a State's transportation system, **landlocked States are not protected**. As a matter of fact, already when GA Resolution 3314 ('Definition of Aggression') was drafted, a proposal in the respective Special Committee aimed at introducing an equivalent for the barring of passage to the open sea, but a majority of States was not willing to expand the scope of what is now the equivalent provision in article 8bis para. 2 lit. c). While one might assume an exception for land-locked States (and therefore an act of aggression) in extreme cases, e.g. when a State cuts off all communication routes of another State¹⁸⁰ for purposes of State responsibility, no such analogy seems to be permissible, given the unequivocal wording of article 8bis para. 2 lit. c) in light of article 22 para. 2 1st sentence¹⁸¹.

- 131 Article 8bis para. 2 lit. c) once again requires that the **blockade is being undertaken by the term 'armed forces' of the attacking State**, and may thus be carried out by land, air or naval forces¹⁸².

4. Lit. d): attack on the land, sea or air forces, or marine and air fleets of another State

- 132 Article 8bis para. 2 lit. d), which refers to '[a]n attack by the armed forces of a State on the land, sea or air forces, or marine and air fleets of another State', is *mutatis mutandis* identical to lit. a), reference to which is therefore made¹⁸³. Its special purpose consists in the **protection of State positions abroad**. At least for purposes of article 8bis para. 2 lit. d) it is however only military facilities that are considered to constitute such protected positions, but

¹⁷⁷ Heintschel von Heinegg, 'Blockade', in: MPEPIL, mn 1; Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 268.

¹⁷⁸ See mn 46 *et seq.*

¹⁷⁹ Doswald-Beck (ed.), *San Remo Manual on International Law Applicable to Armed Conflicts at Sea* (1995), Article 102.

¹⁸⁰ Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 24.

¹⁸¹ For details see Broomhall, *article 22*, mn 36 *et seq.*

¹⁸² Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 24; see as to the notion of 'armed forces' also mn 111 *et seq.*

¹⁸³ *Supra* mn 109 *et seq.*

not diplomatic missions and nationals¹⁸⁴. On the other hand, the provision also applies to military positions of a State on disputed territory¹⁸⁵. The term ‘fleets’ was chosen carefully to indicate that an attack on commercial fishing vessels or civilian aircraft would not amount to an act of aggression within the meaning of article 8bis para. 2 lit. d)¹⁸⁶. Even less would then boarding and search operations against commercial vessels, regardless of their legality under international law, fulfill the criteria laid down in article 8bis para. 2 lit. d).

The 2003 judgment of the ICJ in the *Oil Platforms* case had left open whether ‘the mining of a single military vessel might be sufficient to bring into play the “inherent right of self-defence” and would thus also constitute an armed attack¹⁸⁷. Such determination is then in turn relevant for purposes of article 8bis para. 1, when it comes to the gravity of the act and in order to decide whether such operation would then also eventually amount to a crime of aggression.

It remains unclear whether the attack has to directly target such military positions (e.g. by shooting at a ship or killing its crew), or whether the provision also applies when the attack merely forcefully hinders a plane or a ship to follow its course¹⁸⁸. At the very least, however, such latter operations will hardly ever fulfill the ‘character’, ‘gravity’, and ‘scale’ criteria, as contained in article 8bis para. 1¹⁸⁹.

Given its wording, which specifically relates to attacks ‘on the *land, sea or air* forces, or *marine and air* fleets of another State¹⁹⁰, article 8bis para. 2 lit. d) **does not cover attacks on a State’s objects stationed in outer space**¹⁹¹. This is confirmed by the fact that GA Resolution 3314 (‘Definition of Aggression’) was adopted seven years after the Outer Space Treaty¹⁹², which leads to the conclusion that the drafters excluded space objects deliberately from the scope of application of the provision, and the same is true with respect to the Kampala Review Conference, which again could have easily included space objects into the definition of protected military ‘outposts’.

5. Lit. e): violation of stationing agreements and unlawful extension of presence

a) **General issues.** Article 8bis para. 2 lit. e) stipulates that ‘[t]he use of armed forces of one State which are within the territory of another State with the agreement of the receiving State, in contravention of the conditions provided for in the agreement or any extension of their presence in such territory beyond the termination of the agreement’ constitutes an act of aggression. The provision has been drafted not the least in the light of post-World War II practice of forming military alliances, which routinely provide for army installments of one State within other member States¹⁹³, but which may be misused against either the receiving State, or indeed for military action against a third State, thereby exposing the receiving State in turn then being the object of military counter-attacks.

The paragraph includes two specific forms of acts of aggression, one being the use of force in contravention of the specific conditions of the agreement providing for the stationing of troops, while the second encompasses the use of force after the armed forces should have already left the foreign territory due to the lapse or termination of the agreement.

b) **Violations of stationing agreements.** With respect to the first alternative, namely ‘[t]he use of armed forces of one State which are within the territory of another State with the

¹⁸⁴ Verdross and Simma, *Universelles Völkerrecht* (3rd edition 1984) 290, mn 473.

¹⁸⁵ Randelsofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 26, with reference to the Argentinian invasion on the Falkland Islands in 1982.

¹⁸⁶ Broms (1977) 154 (I) *RdC* 299, 351.

¹⁸⁷ *Oil Platforms, (Iran v. USA)*, ICJ Rep. 2003, 161, 195, para. 72.

¹⁸⁸ Bruha, *Die Definition der Aggression* (1980) 117.

¹⁸⁹ See mn 50 *et seq.*

¹⁹⁰ Emphasis added.

¹⁹¹ Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 273.

¹⁹² 610 UNTS 205.

¹⁹³ Broms (1977) 154 (I) *RdC* 299, 352.

agreement of the receiving State, in contravention of the conditions provided for in the agreement', it ought to be noted that it requires that the stationing forces are being 'used', the French text using the term '*emploi*'. This does not seem to imply, however, that such troops then have to necessarily use military force against the territorial State in the sense of an attack. On the other hand, the term 'use of armed forces' implies that there must be **some element of genuine coercion** inherent in the behavior of the troops of the sending State, a mere technical violation of a stationing agreement not amounting to the actual use of armed forces within the meaning of the provision.

- 138 In line with the text of the provision, the said armed forces must find themselves on the territory of the receiving State with the agreement of the receiving State. Given the further wording, such '**agreement**' has to take the form of a treaty, as confirmed by both the English and the French text, first using the general wording 'with the agreement'/'avec l'agrément', but then later referring to the conditions set out in the respective 'agreement'/'accord'.
- 139 c) **Unlawful extension of presence.** With respect to the second case, namely the 'extension of [the] presence [of armed forces]¹⁹⁴ of one State which are within the territory of another State with the agreement of the receiving State] beyond the termination of the agreement', it ought to be noted that, as the ICJ held in the *Armed Activities* case, an agreement 'facilitat[ing] the orderly withdrawal of (...) foreign forces (...) carries no implication as to [their] (...) military presence having been accepted as lawful'¹⁹⁵. At most, the principle of *bona fide* might imply that States must be given a reasonable amount of time to withdraw their troops, once a stationing agreement has been terminated¹⁹⁶.

6. Lit. f): allowing one's territory to be used for an act of aggression

- 140 Article 8bis para. 2 lit. f) regulates a State assisting another State in perpetrating an act of aggression by allowing its territory to be used by said other State to commit an act of aggression.
- For one, the State must use the territory which was placed at its disposal to actually commit an 'act of aggression' against a third State within the meaning of article 8bis para. 2 lit. a) – e), or lit. g).
- 141 Furthermore, given the fact that the territory must have been placed at the disposal of the State undertaking the act of aggression, it is **only the voluntary provision of territory** that itself then constitutes an act of aggression. Accordingly, cases in which a State has unsuccessfully tried to prevent such misuse¹⁹⁷, or in which the State has been illegally invaded and occupied itself by the aggressor State, which now uses the territory to commit acts of aggression against additional States, are not covered by article 8bis para. 2 lit. f). On the other hand, it does not matter whether the territorial State had placed its territory at the disposal of the State committing the act of aggression by way of a treaty, or otherwise.
- 142 As a matter of principle, it is obviously **not prohibited to allow another State to use one's territory for the stationing of armed forces or the installment of arms**¹⁹⁸. In order for the receiving State therefore to itself commit an act of aggression, it must be aware of the kind of use of its territory to be made by the primary aggressor State in order to itself then qualify as an aggressor State¹⁹⁹. What is more is that the provision further requires that there must be some specific '*action* [...]' in allowing its territory [...], which it has placed at the disposal of another State, to be used by that other State for perpetrating an act of aggression against a

¹⁹⁴ As to the notion of armed forces see mn 111 *et seq.*

¹⁹⁵ *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, ICJ Rep. 2005, 168, 210, paras. 97, 99.

¹⁹⁶ Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 29.

¹⁹⁷ Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 30, with further references.

¹⁹⁸ Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 269.

¹⁹⁹ Brooms (1977) 154 (I) RdC 299, 353.

third State'²⁰⁰. Put otherwise, the conclusion of a stationing agreement by the host State without then taking any further steps towards allowing an act of aggression to take place does not yet fulfill the requirements underlying article 8bis para. 2 lit. f). This is confirmed by the drafting history of that part of GA Resolution 3314 ('Definition of Aggression') mirroring article 8bis para. 2 lit. f). In particular, the wording 'with the acquiescence and agreement of the former' contained in a draft of the said resolution was substituted by the current wording, in order to exclude merely passive behavior from the scope of lit. f)²⁰¹.

Finally, it is only the status of the host State *vis-à-vis* the Rome Statute generally and the Kampala amendments specifically that is relevant when it comes to determine whether the Court has jurisdiction under article 15bis para. 4 and para. 5 respectively.

7. Lit. g): sending of irregular forces

a) General issues. Article 8bis para. 2 lit. g) covers forms of 'indirect' aggression by sending irregular forces of various kinds into another State to then carry out acts of armed force in such latter State. In accordance with article 8bis para. 1, it is then not the actual persons carrying out the acts of armed violence belonging to non-State armed groups that eventually commit a crime of aggression, but rather the persons controlling or directing the State policy of sending such irregular forces into another State.

b) 'The sending by or on behalf of a State (...)'. While what is now article 8bis para. 2 lit. g) had been very controversial during the drafting process of what was to become GA Resolution 3314 ('Definition of Aggression'), in its *Nicaragua* case, as later confirmed in the *Armed Activities on the Territory of the Congo* case, the ICJ considered it to constitute a reflection of customary international law²⁰².

The term 'sending' implies (and thus also requires) a sufficiently close link between the 'sending' State and the non-State group actually carrying out the armed operations, so that the latter would then have to either be qualified as *de facto* organs of the sending State, or at least as being controlled by the 'sending' State within the meaning of article 8 of the ILC Articles on State Responsibility²⁰³.

This triggers the question as to the necessary degree of control that is required to equate the sending and conduct of the mentioned non-State actors – armed bands, groups, irregulars and mercenaries – with direct acts of the sending State under the said article 8 of the ILC Articles. In its *Nicaragua* judgment, the ICJ held that such control must amount to 'effective control'. By 'effective control', the Court meant a situation where the State directly controls the perpetration of specific acts²⁰⁴.

As is well-known, the Appeals Chamber of the ICTY contested the *Nicaragua* judgment's effective control test. In its *Tadić* case, the Tribunal argued that the *Nicaragua* test was inconsonant with both the logic of the law of State responsibility and with judicial, as well as with State practice²⁰⁵, the required degree of control being one of 'overall' control over subordinate armed forces or military or paramilitary units 'going beyond the mere financing and equipping of such forces and involving also participation in the planning and supervision of military operations'²⁰⁶.

²⁰⁰ Emphasis added.

²⁰¹ See Bruha, *Die Definition der Aggression* (1980) 263.

²⁰² *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep. 1986, 14, 103, para. 195; also see *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, ICJ Rep. 2005, 168, 222, para. 146.

²⁰³ Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 33.

²⁰⁴ *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)* (Merits), ICJ Rep. 1986, 14, 64 *et seq.*, para. 115.

²⁰⁵ *The Prosecutor v. Duško Tadić*, No. IT-94-1, Judgment, Appeals Chamber, 15 July 1999, paras. 115–45.

²⁰⁶ *The Prosecutor v. Duško Tadić*, No. IT-94-1, Judgment, Appeals Chamber, 15 July 1999, para. 145.

- 149 In its 2007 judgment in the *Bosnian Genocide* case, the ICJ however rightly upheld the position laid out in the *Nicaragua* judgment and plainly rejected the criticism brought up by the ICTY in the *Tadić* case. The Court argued that the *overall* control criterion was useful for concluding whether a State was involved in a conflict on another State's territory and hence whether a conflict was international, but underlined that the ICTY was not called upon to decide on questions of State responsibility²⁰⁷. Accordingly, **in order for insurgents to having been sent 'by or on behalf of a State' for purposes of article 8bis para. 2 lit. g), they must either qualify as *de facto* organs, or be within the effective control of the 'sending' State.**
- 150 c) '(...) of armed bands, groups, irregulars or mercenaries (...)'. For purposes of the *jus ad bellum* issue addressed in article 8bis para. 2 lit. g) 'armed bands' and 'groups' do *not* seem to require a certain degree of organization and organizational coherence and hierarchy, such as a command structure and the capacity to sustain military operations. This is confirmed by an *argumentum e contrario* with article 8 para. 2 lit. f), which unlike article 8bis para. 2 lit. g) here under consideration, **refers to 'organized' armed groups**. The term 'groups' should also encompass **private military and security companies**²⁰⁸.
- 151 'Irregulars' are understood as opposed to the term of 'regular armed forces' as used in international humanitarian law. Under **article 43 para. 1 of the Additional Protocol I to the Geneva Conventions**, the armed forces of a State party to a conflict consist of all organized armed forces, groups and units which are under a command responsible to that Party for the conduct of its subordinates, even if that Party is represented by a government or an authority not recognized by an adverse Party. In contrast thereto, the term 'irregular forces' comprises militia or voluntary corps²⁰⁹ not subject to a formal chain of command, and not forming part of the armed forces of a party to a conflict.
- 152 The term 'mercenary' is defined in both, **article 47 of the Additional Protocol I to the Geneva Conventions** and in **article 1 of the 1989 International Convention Against the Recruitment, Use, Financing and Training of Mercenaries**²¹⁰. Accordingly, a mercenary is any person who is **specialty recruited** locally or abroad in order to fight in an armed conflict; is motivated to take part in the hostilities essentially by the desire for private gain and, in fact, is promised, by or on behalf of a party to the conflict, material compensation substantially in excess of that promised or paid to combatants of similar rank and functions in the armed forces of that party; is neither a national of a party to the conflict nor a resident of territory controlled by a party to the conflict; is not a member of the armed forces of a party to the conflict; and has not been sent by a State which is not a party to the conflict on official duty as a member of its armed forces.
- 153 The third parties listed in article 8bis para. 2 lit. g), namely armed bands, groups, irregulars and mercenaries, are not meant to encompass single individuals (although the last two may theoretically do so) since they were supposed to commit acts similar in gravity to the one otherwise listed in article 8bis para. 2²¹¹.
- 154 d) '(...) which carry out acts of armed force against another State of such gravity as to amount to the acts listed above (...)'. The various actors just referred to (*i. e.* armed bands, groups, irregulars and mercenaries) must actually 'carry out acts of armed force against another State of such gravity as to amount to the acts listed above', *i. e.* **as listed in article 8bis para. 2 lit. a) – f)**. Not only must they therefore use 'armed force' as defined above²¹², but

²⁰⁷ *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v. Serbia and Montenegro)*, ICJ Rep. 2007, 43, 210, para. 404.

²⁰⁸ Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 270.

²⁰⁹ Cf. Convention (IV) respecting the Laws and Customs of War on Land and its Annex: Regulations concerning the Laws and Customs of War on Land, 18 October 1907, Regulation 1.

²¹⁰ 2163 UNTS 75.

²¹¹ Brooms (1977) 154 (I) RdC 299, 354.

²¹² See mn 111.

those acts must also be directed against a third State. Finally, such acts must be similar in gravity to the other acts mentioned in article 8bis. It is worth noting, however, that the comparison only relates to the gravity of their acts but not to their scale, or indeed their character²¹³.

e) ‘(...) or its substantial involvement therein.’. In contrast to the first alternative of article 8bis para. 2 lit. g), *i. e.* the ‘sending by or on behalf of a State’, the second alternative, *i. e.* ‘[the State’s] substantial involvement’, pays tribute to the difficulties of providing evidence for the first alternative²¹⁴. This second alternative is vaguer than the first one and has not yet been sufficiently addressed by international courts. In the *Armed Activities* case, the ICJ did not properly differentiate between these two alternatives of article 3 lit. g) of GA Resolution 3314 (‘Definition of Aggression’) (now reproduced in article 8bis para. 2 lit. g)), but merely indicated that this form of State aggression generally **requires a careful assessment of the standard and burden of proof**²¹⁵. 155

As a matter of principle, **allowing non-State actors to make use of one’s territory in order to prepare for acts of aggression** similar to those listed in article 8bis para. 2 against persons or property situated in another State may be considered as the respective host State’s ‘substantial involvement’ within the meaning of article 8bis para. 2 lit. g)²¹⁶. It remains doubtful, however, whether a mere failure to take repressive measures against such acts (be it for a lack of ability or willingness) ought to be already considered to give rise to a substantial involvement, and thus eventually even give rise to a punishment for a crime of aggression. 156

8. Other forms of aggression not listed

Given that article 8bis para. 2 merely repeats the respective wording of GA Resolution 3314 (‘Definition of Aggression’), modern methods of warfare, such as the use of ‘cyber-force’, unforeseeable in 1974, but a major topic in modern international law²¹⁷, have not been listed in article 8bis either. However, as shown above, the list of possible acts of aggression, as contained in article 8bis para. 2, is not exhaustive²¹⁸, although any other acts should be interpreted narrowly and must equate the character of the acts listed in order to also amount to an act of aggression for purposes of article 8bis para. 2. 157

In that context, it is worth noting that in the context of the notion of ‘armed attacks’ in the sense of article 51 of the Charter of the United Nations, the ICJ has held that the **exercise of the right to self-defense does not depend on the type of weapon employed for a given attack**²¹⁹. Still, it remains difficult to interpret this statement in a way that electronic measures could be treated as ‘weapons’ in the sense of article 8bis para. 2 lit. b)²²⁰. At the very least, methods of ‘cyber warfare’ would have to bring about destructive effects comparable to those of conventional weapons, such as the disabling of the State’s infrastructure²²¹ in order to constitute an act of aggression within the meaning of article 8bis para. 2. 158

²¹³ For the content of these three terms see mn 61 *et seq.*

²¹⁴ Broms (1977) 154 (I) *RdC* 299, 354.

²¹⁵ *Armed Activities on the Territory of the Congo (DRC v. Uganda)*, ICJ Rep. 2005, 168, 222, para. 146.

²¹⁶ Sayapin, *The Crime of Aggression in International Criminal Law* (2014) 260.

²¹⁷ See generally Schmitt (ed.), *Tallin Manual on the International Law Applicable to Cyber Warfare* (2013).

²¹⁸ *Supra* mn 99 *et seq.*

²¹⁹ *Legality of the Threat of Use of Nuclear Weapons*, Advisory Opinion, ICJ Rep. 1996, 226, 244, para. 39.

²²⁰ For a different view, see Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 43.

²²¹ Randelzhofer and Nolte, in: Simma *et al.* (eds.), *The Charter of the United Nations: A Commentary* (3rd edition 2012) 1397, mn 43, with further references.

F. Article 8bis and the exercise of domestic jurisdiction over the crime of aggression

- 159 The exercise of the Court's jurisdiction with regard to the crime of aggression is, just as with regard to the other crimes within the jurisdiction of the Court, governed by the **principle of complementarity** set out, in particular, in article 17. In accordance therewith, no. 5 of the 'Understandings regarding the amendments to the Rome Statute of the International Criminal Court on the crime of aggression', adopted as part of the enabling Resolution RC/Res.6, underlines 'that the amendments [i.e. articles 8bis, 15bis and 15ter] shall not be interpreted as creating the right or obligation to exercise domestic jurisdiction with respect to an act of aggression committed by another State'²²².
- 160 For one, the phrase confirms, if ever there had been need, that the principle of complementarity underlying the Court's overall jurisdictional scheme, **does not carry with it an implicit obligation to punish the respective crime**, which crime is subject to the Court's complementary jurisdiction.²²³ On the other hand, said formulation leaves it deliberately open, however, whether States are entitled or eventually even obliged, under general international law, to exercise their domestic criminal jurisdiction with regard to the crime of aggression committed by their own nationals, individuals other than their own nationals or, eventually, even exercise universal jurisdiction in that regard.

²²² RC/Res.6, Annex III, *Understandings Regarding the Amendments to the Rome Statute of the International Criminal Court on the Crime of Aggression*, para. 5.

²²³ Werle and Jessberger, *Principles of International Criminal Law* (3rd edition 2014) 556.

Article 9 Elements of Crimes

1. Elements of Crimes shall assist the Court in the interpretation and application of articles 6, 7, 8 and 8 *bis*. They shall be adopted by a two-thirds majority of the members of the Assembly of States Parties.

2. Amendments to the Elements of Crimes may be proposed by:

- (a) Any State Party;
- (b) The judges acting by an absolute majority;
- (c) The Prosecutor.

Such amendments shall be adopted by a two-thirds majority of the members of the Assembly of States Parties.

3. The Elements of Crimes and amendments thereto shall be consistent with this Statute.

Literature: Badar, M.E., 'Dolus Eventualis and the Rome Statute without it?', (2009) 12 *NCLRev* 433; Barriga, S. and Kress, C., *The Travaux Préparatoires of the Crime of Aggression* (2012); Barriga, S. and Grover, L., 'A Historic Breakthrough on the Crime of Aggression', (2011) 105 *AJIL* 517; Bassiouni, M.C. (ed.), *The Statute of the International Criminal Court: A Documentary History* (1998); *id.*, *Substantive Criminal Law* (1978); Beddard, R. 'Retrospective Crime', (1995) 145 *NLJ* 663; Campbell, T., *Seven Theories of Human Society* (1980); Clark, R.S., 'The Mental Element in International Criminal Law: The Rome Statute of the International Criminal Court and the Elements of Offences', (2001) 12 *CLF* 291; *id.*, 'Drafting a General Part to a Penal Code: Some Thoughts Inspired by the Negotiations on the Rome Statute of the International Criminal Court and by the Court's First Substantive Law Discussion in the Lubanga Dyilo Confirmation Proceedings', (2008) 19 *CLF* 519; *id.*, 'Elements of Crimes in Early Confirmation Decisions of the Pre-Trial Chambers of the International Criminal Court', (2008) 6 *NZYbIL* 209; *id.*, 'Negotiating Provisions Defining the Crime of Aggression, its Elements and the Conditions for ICC Exercise of Jurisdiction Over It', (2009) 20 *EJIL* 1103, 1106-13; *id.*, 'Amendments to the Rome Statute of the International Criminal Court Considered at the First Review Conference on the Court, Kampala, 31 May-11 June 2010', (2010) 2 *GoJIL* 689; Dewey, J., 'Logical Method and Law', (1924) 10 *CornLQ* 17; Dörmann, K., Doswald-Beck, L. and Kolb, R., *Elements of War Crimes Under the Rome Statute of the International Criminal Court: Sources and Commentary* (2002); Finnin, S., *Elements of Accessorial Modes of Liability: Article 25 (3) (b) and (c) of the Rome Statute of the International Criminal Court* (2012); Friman, H., 'Offences and Misconduct against the Court', in: R.S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 605; Glaser, S., *Infraction internationale* (1957); Kelsen, H., 'Will the Judgment of the Nuremberg Trial Constitute a Precedent in International Law?', (1947) 1 *ILQ* 153; *id.*, *Pure Theory of Law* (1989); McLachlan, C.L., 'The Principle of Systemic Integration and Article 31 (3) (c) of the Vienna Convention', (2005) 54 *ICLQ* 2779; Meron, T., 'International Criminalization of Internal Atrocities', (1995) 89 *AJIL* 554; Oosterveld, V., 'Gender-Based Crimes against Humanity', in: L. N. Sadat (ed.), *Forging a Convention for Crimes Against Humanity* (2011) 78; Plawski, S., *Etude des principes fondamentaux du droit international pénal* (1972); Pound, R., *An Introduction to the Philosophy of Law* (1951); Popper, *The Poverty of Historicism* (1957); Robinson, P.H., 'Should the Criminal Law Abandon the Actus Reus/Mens Rea Distinction?', in: S. Shute, J. Gardner, and J. Horder (eds.), *Action and Value in Criminal Law* (1993) 187; Trahan, J., 'The Rome Statute's Amendment on the Crime of Aggression: Negotiating at the Kampala Review Conference', (2011) 11 *ICLRev* 49; Triffterer, O., 'Kriminalpolitische und dogmatische Überlegungen zum Entwurf gleichlautender 'Elements of Crimes' für alle Tatbestände des Völkermordes', in: B. Schünemann *et al.* (eds.) *Festschrift für Claus Roxin* (2001) 1114; Wise, E.M., 'Part 3. General Principles of Criminal Law', 13^{ter} *NEP* (1998) 49.

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A. Introduction/General remarks

- 1 Article 9 deals with the elements of crimes enumerated in articles 6, 7 and 8 and potentially the crime of aggression when the amendment process concerning it is completed pursuant to article 5 para. 2 of the Statute¹. 'Elements' are those basic building blocks of a physical ('material') or mental kind that taken together constitute 'the crime' or provide the necessary and sufficient conditions for the prosecution to establish 'guilt'. Initially when the Statute was being drafted, and at some later stages of its consideration, it was not intended to include such an article. As can be seen from the draft prepared by the ILC² and several reports of the Preparatory Committee, the respective text was absent in the Draft Statute. After some delegations expressed their concerns about the conformity of the definitions of crimes within the subject-matter jurisdiction of the ICC with the *nullum crimen sine lege* principle, the Preparatory Committee, at one of its meetings, took note of the proposal to elaborate the precise elements of crimes³. It was argued that the crimes 'should be defined with the clarity, precision and specificity required for criminal law in accordance with the principle of legality (*nullum crimen sine lege*)'⁴. Furthermore, it was suggested that each crime should be 'defined in a separate article identifying the essential elements of the offences and the minimum qualitative and quantitative requirements'⁵. Those requirements were meant to include, *inter alia*, the indication of circumstances in which, perpetrators by which and victims against which certain acts would constitute a crime⁶. The way the negotiations

¹ Article 9 as adopted in 1998 does not refer specifically to elements for the crime of aggression, but Res. F annexed to the Final Act contemplated the drafting of 'a provision on aggression, including the definition and Elements of Crimes of aggression and the conditions under which the International Criminal Court shall exercise its jurisdiction with regard to the crime'. For the text of the Final Act and Annexes thereto see UN Doc A/CONF.183/10, reproduced in Vol. I of the official records of the Conference, UN Doc A/CONF.183/13, p. 67 (2002). The aggression Amendments adopted in 2010 in Kampala contemplate (a) adding a reference to Elements for the new article 8bis in article 9, and (b) a negotiated list of Elements for aggression. See ICC Doc. RC/Res. 6 (2010), Annex I, para. 6 (amendment to article 9) and Annex II (amendments to Elements of Crimes re aggression). Modes of liability under article 25(3) of the Statute have taken on significant importance in the early jurisprudence of the Court. For some creative suggestions about drafting Elements for those provisions, see Finnin, *Elements of Accessorial Modes of Liability: Article 25 (3) (b) and (c) of the Rome Statute of the International Criminal Court* (2012).

² 1994 ILC Draft Statute.

³ 1996 Preparatory Committee I, p. 17, para. 56, p. 41, para. 180. The Preparatory Committee also noted that not all delegations welcomed the proposal. The U.S. was, throughout, the most insistent delegation on the elements issue. For the view that precise elements of crimes should be elaborated see also *ad hoc* Committee Report p. 12, para. 57. For the reports of the Preparatory Committee see Bassiouni (comp.), *The Statute of the International Criminal Court: A Documentary History* (1998).

⁴ 1996 Preparatory Committee I, note 3, p. 16, para. 52.

⁵ *Ibid.*, para. 53.

⁶ *Ibid.*

developed from 1996 onwards, it was contemplated that the detail in the definition of the crimes within the jurisdiction of the Court (war crimes, in particular) would far exceed that in such instruments as the Nuremberg and Tokyo Charters and the Statutes of the Tribunals for Former Yugoslavia and Rwanda. There would, moreover, for the first time in the constituent instrument of an international tribunal – or indeed in any concluded international criminal law treaty – be a comprehensive general part to go with the special part. Adding possibly even more detailed elements would take the principle of legality up yet another level.

That a person may only be convicted and punished on the basis of law is a long and well-established legal principle. Indeed, it is one of the most fundamental principles that underlie the concept of the rule of law. It derives from a broader principle that legal consequences of human behaviour must be predictable. To ensure this, the law should be precisely formulated. This is widely recognized not only by academic writers⁷, but also by international case law. Thus, for instance, the European Court of Human Rights has insisted that:

‘... a norm cannot be regarded as a ‘law’ unless it is *formulated with sufficient precision* to enable a citizen to regulate his conduct: he must be able – if need be with appropriate advice – to foresee, to a degree that is reasonable in the circumstances, the consequences which a given action may entail’⁸ (emphasis added).

It does not take much imagination to realize the utmost importance of this passage in the field of criminal law. Given its repressive character, a person must not only be able to foresee but, indeed, has the right to know in advance what types of conduct will be regarded as criminal by the competent authorities. This principle has been approved by the European Court of Human Rights in the *Kokkinakis* case, where it stated that:

‘... an offence must be clearly defined by law. This condition is satisfied where *the individual can know* from the wording of the relevant provision and, if need be, with the assistance of the court’s interpretation of it, what acts and omissions will make him liable’⁹ (emphasis added).

Another important value involved is that, in the absence of precise definitions, there is always the possibility of arbitrary enforcement by the prosecution.

Now, the question arises with regard to the degree of certainty of the definitions of crimes: what does it mean to ‘be clearly defined by law’? It might be argued, for instance, that for a definition to be clear, it should be precisely stated. But does that take us any further from the initial uncertainty? The other possible way of addressing the question is, perhaps, to say that a definition should be narrowly formulated. But this is a misleading point also, since ‘clarity’, ‘precision’ and ‘narrowness’ are different notions¹⁰. There is, yet, another term that is used – ‘specificity’¹¹. Specificity, as opposed to generality, of a provision refers to its detailed character. This is quite understandable. The more detailed a provision is, the easier its application. It is also important from the point of view of predictability, *i.e.* if a particular legal provision is detailed, that a person can reasonably be expected to be able to foresee the legal consequences of his or her conduct which falls within the scope of that provision. But one has to bear in mind that ‘detailed’ is not to be understood as limited to a particular set of factual situations known to lawmakers in advance¹². Of course, it goes without saying that,

⁷ See literature.

⁸ See *Sunday Times v. UK*, 2 EHRR 245, Series A, Vol. 30, para. 49.

⁹ See *Kokkinakis v. Greece*, Series A 260-A (1993).

¹⁰ ‘Clarity’ refers to the state or quality of being easy to understand; ‘precision’ means accuracy; ‘narrowness’ is to be understood as ‘limited in range or scope’. It should be noted, however, that among the three, the first and the second notions, that is, ‘clarity’ and ‘precision’ are to some extent interdependent, since one can reasonably say that the more accurate a definition is, the clearer its meaning, while such logical a connection can hardly be made with regard to the notion of ‘narrowness’. For the differences among the meanings of the said notions see *e.g.* Crowther (ed.), *Oxford Advanced Learner’s Dictionary of Current English* (1998) 203, 206, 772, 773, 907.

¹¹ *Supra* note 4.

¹² This is quite apart from the more philosophical query concerning the prescriptive, rather than descriptive, nature of legal propositions.

when the law is being drafted, lawmakers do reflect in the text their conceptualized vision of some past events that gave rise to the moral necessity to criminalise a particular type of conduct¹³. But this is just the point that, when doing so, they do not compile a complete catalogue of prohibited acts or omissions, but rather define them by means of general terms like, for instance, ‘making improper use of a flag of truce’ or ‘committing outrages upon personal dignity’¹⁴. General terms, in order to satisfy the requirements of *nullum crimen sine lege* principle, should be certain, that is to say, beyond reasonable doubts¹⁵. In other words, there must be a common understanding among legal professionals as to their core meaning. On the other hand, it also seems to be widely accepted that terms should not be given an absolute meaning. In the case of *Sunday Times v. UK*, the European Court of Human Rights has insisted that:

‘... whilst certainty is highly desirable, it may bring in its train excessive rigidity and the law must be able to keep pace with changing circumstances. Accordingly, many laws are inevitably couched in terms which, to a greater or lesser extent, are vague ...’¹⁶.

- 4 However, the very fact that we recognize the inherent vagueness of terms we use should not be exaggerated. Not unreasonably, it can be argued that vague terms can cause ambiguity which, in turn, makes us unable to ensure full respect for the rights of the accused¹⁷. This is especially true of the non-retroactivity principle, since vague terms are potentially capable of being interpreted in such a way that extends the original definition of a particular crime to such factual situations which were not intended to be covered by that definition¹⁸. As the European Commission of Human Rights held in the *Gay News* case:

‘... it is excluded ... that any acts not previously punishable should be held by the courts to entail criminal liability, or that existing offences should be extended to cover facts which previously did not constitute a criminal offence’¹⁹.

¹³ The phrase ‘events that gave rise to the moral necessity’ should not be understood as expressing the author’s opinion as to the possibility of derivation of ‘ought’ from ‘is’ – it is just a figure of speech.

¹⁴ ‘Even ‘the war’ or ‘the army’ are abstract concepts, strange as this may sound to some. What is concrete is the many who are killed; or the men and women in uniform, etc. ...’; Popper, *The Poverty of Historicism* (1957) 136.

¹⁵ It is because we define our practice by means of language, we very often come to confusion or misunderstanding about what that practice really is. Therefore, it becomes crucial that we, first of all, have a clear concept before defining it. The lack of such a concept can easily lead to the ‘extreme generality [of the definition] amounting to vacuity when ill-defined and amorphous concepts are used to cover very many different things to no significant explanatory benefit’. Campbell, *Seven Theories of Human Society* (1980) 44. It may be worth mentioning here the name of a Polish scholar R. Lemkin who is said to be the first to invent in 1944 the term ‘genocide’ instead of previously used one – ‘the Holocaust’ – which was given quite specific meaning, viz., the mass killing of Jews by the Nazis before and during the Second World War.

¹⁶ *Supra* note 8.

¹⁷ For the view that ambiguity in terms can affect the rights of the accused see note 3, *Ad Hoc* Committee Report, p. 12, para. 57.

¹⁸ This concern has been reflected in article 22 para. 2 of the *Rome Statute* which provides that ‘the definition of a crime shall be strictly construed and shall not be extended by analogy’.

¹⁹ See *Gay News & Lemon v. UK*, Vol. 28, D. R. 77, para. 9. Note: in the mentioned volume that case is referred to as *X Ltd. & Y v. UK*. It should be noted, however, that the two phrases used in the Commission’s decision, – ‘not previously punishable’ and ‘previously did not constitute a criminal offence’, – have different implications. The former implies that certain act was either permitted, or at least not prohibited, or, while prohibited, not sanctioned by an appropriate penal provision. The latter, quite obviously, means that an act was not considered as criminal prior to the entry into force of a particular enactment. But this, by itself, is not to say that that act was legal, since while all criminal acts are illegal, not all illegal acts are criminal. It deserves to be mentioned here, how an academic writer as eminent as Professor Hans Kelsen addressed this query in his comments on the judgment of the Nuremberg Tribunal: ‘A retroactive law providing individual punishment for acts which were illegal though not criminal at the time they were committed, seems ... to be an exception to the rule against ex post facto laws. The London Agreement is such a law. It is retroactive only in so far as it established individual criminal responsibility for acts which at the time they were committed constituted violations of existing international law, but for which this law has already provided only collective responsibility ... Since ... the persons who committed these acts were certainly aware of their immoral character, the retroactivity of the law applied to them can hardly be considered as absolutely incompatible with justice’. Kelsen (1947) 1 *ILQ* 153. Interestingly, the International Military Tribunal characterized the principle *nullum crimen sine lege* as ‘not a

So far, only some substantial issues of the definitions were being considered, in particular that they should be certain and contain the essential elements of crimes. But defining crimes is also a matter of method. During the Preparatory Committee's meetings different views were expressed with regard to the method of the definitions²⁰. The view that crimes which had already reached the customary law status should be included into the Statute seemed to be widely accepted, even though there were doubts as to whether particular crimes were, at the moment, part of the customary international law. Obtaining a consensus on just which crimes were currently part of customary law was no mean feat. Not surprisingly, quite a number of delegations viewed the Statute as a codifying instrument and therefore opposed the idea that newly made crimes be included into it. Others, given that the application of the Statute was to be prospective, had few qualms about engaging in progressive development of the law. Apart from that, delegations had to come to an agreement not only on which crimes should be within the subject-matter jurisdiction of the ICC, but also on how to define them. Some delegations favoured that crimes 'should be defined by enumeration of the specific offences rather than by reference to the relevant legal instruments'²¹. By doing so they were seeking to 'provide greater clarity and transparency, to underscore the customary law status of the definitions, to avoid a lengthy debate on the customary law status of various instruments, to avoid possible challenges by States that were not parties to the relevant agreements, to avoid the difficulties that might arise if the agreements were subsequently amended and to provide a uniform approach to the definitions of the crimes irrespective of whether they were the subject of a convention'²². There was also a suggestion to combine the two approaches.

Those who thought of the Statute as merely a procedural instrument put forward an argument that the elaboration of the precise elements of crimes would duplicate or even interfere with the work of the ILC on the Draft Code of Crimes against the Peace and Security of Mankind²³. Other delegations were of the opinion that the crimes should be defined exhaustively rather than illustratively 'so as to ensure the principle of legality, to provide greater certainty and predictability ... and to ensure respect for the rights of the accused'²⁴. Some of them proposed that 'the constituent elements of crimes should be set forth in the Statute or in an annex to provide ... additional guidance to the Prosecutor and the Court ... and to avoid any political manipulation of the definitions'²⁵. This proposal was opposed by several delegations. They regarded such a scrupulous elaboration of elements of crimes as a 'complex and time-consuming task'. Furthermore, they considered it unnecessary 'to provide the detailed elements of crimes, [since] ... the general definitions contained in the relevant instruments had been sufficiently precise for their practical application'²⁶. Reference was also made to the statutes of the two international criminal tribunals – for the

limitation of sovereignty, but ... in general a principle of justice'. On this view it was not unjust to punish those who knew they were acting in 'defiance of all international law'. Nevertheless the Tribunal considered that the acts had been made criminal by 1939: 'The Charter makes the planning or waging of war of aggression or a war in violation of international treaties a crime; and it is therefore not strictly necessary to consider whether and to what extent aggressive war was a crime before the execution of the London Agreement In the opinion of the Tribunal, the solemn renunciation of war as an instrument of national policy necessarily involves the proposition that such a war is illegal in international law [R]esort to a war of aggression is not merely illegal, but is criminal', cited from (1947) 41 *AJIL* 172.

²⁰ 1996 *Preparatory Committee I*, note 3, p. 16, para. 54.

²¹ *Ibid.*

²² *Ibid.*

²³ *Ibid.*, para. 52. As it turned out the ILC's final version of its Draft Code, which became available during the 1996 meetings of the Preparatory Committee, was a pale shadow of former efforts. Its very general listing of offences was quickly over-shadowed by much more detailed drafting in the Rome Statute. For the 1996 Draft Code, see *Report of the International Law Commission*, UN GAOR, 51st Sess., Supp. No. 10, at 9, UN Doc A/51/10 (1996).

²⁴ *Ibid.*, para. 55. See also notes 8, 9 and 17.

²⁵ *Ibid.*, p. 17, para. 56.

²⁶ *Ibid.*

former Yugoslavia and for Rwanda – which merely enumerate the crimes within their subject-matter jurisdiction and lack any provision whatsoever concerning the constituent elements thereof²⁷. It should, perhaps, be noted here, that several crimes were not included into the Statute purportedly because, apart from the political considerations, there was no appropriate definition, identifying the essential elements of the crimes concerned, which the majority of delegations could accept²⁸. Nevertheless, the lack of such a definition did not prevent the inclusion of the crime of aggression within the subject-matter jurisdiction of the ICC, subject to being defined later²⁹.

- 7 The concern was also expressed as to whether it would be necessary or possible at all to elaborate precise elements for each crime included into the Statute³⁰. Thus, for instance, article 7 para. 1 (k) refers to ‘other inhumane acts’³¹. The wording does not, by itself, make it clear which acts should be deemed to be ‘inhumane acts of a similar character’, even though it does provide for a particular harm requirement. This encouraged some delegations to oppose the inclusion of the said provision into the Statute. They argued that it ‘... would not provide the clarity and precision required by the principle of legality, would not provide the necessary certainty concerning crimes that would be subject to international prosecution and adjudication, would not sufficiently guarantee the rights of the accused and would place

²⁷ See, for instance, articles 2 (Grave breaches of the Geneva Conventions), 3 (Violations of the laws or customs of war), 4 (Genocide) and 5 (Crimes against humanity) of the Statute of the ICTY.

²⁸ They were the so-called treaty-crimes, such as *crimes of terrorism* (e.g. offences under the Convention for the Suppression of Unlawful Acts against the Safety of Civil Aviation, Convention for the Suppression of Unlawful Seizure of Aircraft, Convention on the Prevention and Punishment of Crimes against Internationally Protected Persons, including Diplomatic Agents, International Convention against the Taking of Hostages, Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation, Protocol for the Suppression of Unlawful Acts against the Safety of Fixed Platforms located on the Continental Shelf), and *crimes involving the illicit traffic in narcotic drugs and psychotropic substances* (e.g. 1961 Single Convention on Narcotic Drugs, 1988 UN Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances). See Res. E adopted at the end of the Rome Conference and annexed to the Final Act of the Conference, note 1, regretting ‘that no generally acceptable definition of the crimes of terrorism and drug crimes could be agreed upon for the inclusion, within the jurisdiction of the Court...’ and recommending that the matter be taken up at a Review Conference. It was not possible to obtain a consensus that these matters should be addressed at the first Review Conference in 2010 and the matter is being addressed at glacial pace in a Working Group on Amendments.

²⁹ See article 5 para. 2 of the *Rome Statute* and note 1. For more on the successful efforts to define the crime of aggression, see Barriga and Kress (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012); Barriga and Grover (2011) 105 *AJIL* 517; Clark (2010) 2 *GoJIL* 689; Trahan (2011) 11 *ICLRev* An important part of the drafting of the amendments entailed fitting the new material into the existing structure of the general part of the Statute and the existing Elements of Crimes. See Elements of the Crime of Aggression, Proposal Submitted by Samoa, UN Doc PCNICC/2002/WGCA/SP.2 (2002) and Clark (2009) 20 *EJIL* 1103, 1106–13.

³⁰ Interestingly, delegations that favoured the further elaboration of elements of crimes within the subject-matter jurisdiction of the Court seemed to be not very much concerned about the offences against the administration of justice contained in articles 70 and 71 of the Statute, since none of their proposals dealt with elements thereof. Does this mean that those offences were considered to be of such minor importance that the elaboration of their elements could be left entirely to the Court and to domestic tribunals? Or, are the definitions of the offences against the administration of justice so clear that they can be taken for granted? And, if so, what about the weight of the principle of legality so jealously advocated by all delegations? During the work of the Preparatory Commission after Rome, no serious effort was made to devise elements for these offenses, although the Rules that spell out some of the ‘principles and procedures’ governing them suggest that the general principles of criminal law contained in Part 3 of the Statute will apply, perhaps with some awkwardness. See generally, discussion of articles 70 and 71 in this Commentary and Friman, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 605. Nor did the principle of legality or the desire for further elements extend to explicating the grounds for the exclusion of responsibility contained in article 31 of the Statute – they are left quite open-ended.

³¹ Subparagraph (k) of article 7, para. 1 reads as follows: ‘Other inhumane acts of a similar character intentionally causing great suffering, or serious injury to body or to mental or physical health’. As adopted, the Elements of Crimes try to deal with the open-ended nature of this subparagraph by defining ‘character’ in a footnote asserting that: ‘It is understood that ‘character’ refers to the nature and gravity of the act’. In the course of discussion of the provision and its elements, candidates for inclusion in the category included mutilation, human experimentation and particularly violent assaults. For other potential examples, see Oosterveld, in: Sadat (ed.), *Forging a Convention for Crimes Against Humanity* (2011) 78, 99–100.

an onerous burden on the Court to develop the law³². No doubt these general words have to be read *ejusdem generis* in light of the specific proscriptions that precede them in article 7.

Disputes as to whether precise elements of crimes should be elaborated and included into the Statute continued at the Rome Conference as well. Although all delegations agreed that crimes should be defined with clarity and precision, not all of them were in favour of further elaboration of their constituent elements³³. The main disputable issues were the placement of elements (in the Statute or in an annex, or otherwise) and their legal force. The delegation of the United States of America proposed at the Rome Conference to make in the text of article 5 (Crimes within the jurisdiction of the Court) a cross-reference to an annex, where elements were supposed to be placed³⁴. After several discussions a particular article XX appeared in the Bureau Proposal paper³⁵. There it was proposed that elements of crimes should be 'formulated, interpreted and applied in a manner consistent with the terms of articles' defining crimes within the subject-matter jurisdiction of the ICC. According to the paragraph 4 of article XX, it appeared that the Prosecutor could not exercise his or her power to commence an investigation before elements were adopted³⁷. A few days after the Bureau proposed to insert article XX into the Part 2 of the Draft Statute, the delegation of the United States of America proposed to modify the text by adding, *inter alia*, wording which was said to be aimed at revealing the real purpose of having the precise elements of crimes elaborated³⁸. None the less, some delegations doubted that this proposal was intended to impose additional limitations on the Court's jurisdiction.

The final version of the provision concerning Elements of Crimes appeared in the Draft Statute in 16 July 1998 formulated by the Bureau of the Committee of the Whole³⁹. It was

³² 1996 Preparatory Committee I., note 3, p. 25, para. 101.

³³ Several of the NGOs represented at the Rome Conference did not welcome the proposal either. Thus, for instance, International Commission of Jurists commented: '... the ICJ considers that the current definition of crimes in the Draft Statute generally meets the requirements of the principle of *nullum crimen sine lege*. There is no need at this stage for any further elaboration on the material and mental elements of crimes'. *Definition of Crimes, ICJ Brief No. 1* to the UN Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court (June 1998), p. 3.

³⁴ See UN Doc A/CONF.183/C.1/L.8 submitted to the Committee of the Whole on 19 June 1998. The text of the US's proposal read as follows: 'At the end of the 'Crimes within the jurisdiction of the Court' section, add the following language:

'Definitional elements for these crimes, contained in annex XXX, shall be an integral part of this Statute, and shall be applied by the Court in conjunction with the general provisions of criminal law, in its determinations'. This proposal was accompanied by proposal containing suggested definitional elements, UN Doc A/CONF.183/C.1/L.10. This was a revised version of material circulated in New York towards the end of the Preparatory Committee's work but not taken up in the draft of the Statute sent to Rome.

³⁵ The Bureau – the steering body of the Committee of the Whole – proposed on 10 July 1998 that a separate article, dealing with elements of crimes, be placed in Part 2 of the Draft Statute (Jurisdiction, admissibility and applicable law). See UN Doc A/CONF.183/C.1/L.59. It should be noted, however, that previously on 6 July 1998 the Bureau, in its discussion paper submitted to the Committee of the Whole, referred to the need to draft a specific provision concerning elements of crimes. See UN Doc A/CONF.183/C.1/L.53 (bold text at p. 10). The Bureau's proposal was opposed by a number of delegations. NGOs, as has already been mentioned (see note 33), also expressed their concerns as to whether it was really needed to further work on those elements. Thus, a representative of the International Committee of the Red Cross, in her statement of 8 July 1998, said: 'If such a document [annex containing elements of crimes] is drafted, it is of imperative importance that it be done with extreme care. A great deal of existing law is to be found in detailed treaty provisions and in both international and national law that interprets international humanitarian law provisions. An inaccuracy could create the danger of such a document amounting to unintended international legislation rather than a reflection of existing law'. (Information conveyed by New Zealand). See UN Doc A/CONF.183/INF/10.

³⁶ See UN Doc A/CONF.183/C.1/L.59.

³⁷ The original text of paragraph 4 of the Bureau's proposed article XX reads as follows: 'Elements of crimes shall be adopted before the Prosecutor commences an investigation'. See note 35.

³⁸ The new proposal of the US delegation concerning the Bureau paper of 10 July 1998 was to continue paragraph 1 of article XX by the following sentence: 'They [elements of crimes] shall be applied by the Court in reaching determinations as to guilt'. See UN Doc A/CONF.183/C.1/L.69 (14 July 1998). Detailed draft elements had been submitted by the US delegation to the Committee of the Whole on 19 June 1998. See note 34, UN Doc A/CONF.183/C.1/L.10.

³⁹ See UN Doc A/CONF.183/C.1/L.76/Add.2.

numbered article 9 and its text was slightly amended compared with the previously proposed ones. Delegations agreed, after all, to include such an article into the Statute and adopted it in the so-called 'package deal'⁴⁰.

B. Analysis and interpretation of elements

I. Paragraph 1

- 9 'Crime', as a concept, is a theoretical construction. This is why definition is so important⁴¹. Defining, in its turn, is not merely a matter of choosing among terms. If we accept that a word is, to a considerable extent, a name of a concept, then it becomes quite clear why it is necessary to be consistent in terminology when defining that concept. From this point of view, it may be of interest to note that the term 'definitional elements', used in the draft annex proposed by the United States delegation⁴², does not seem to be entirely satisfactory, since it may be understood either as elements of the crimes as such or as elements of the definitions of crimes. Of course, elements of crimes are expressed in definitions but, this is just the point that, they are quite often expressed by means of different terms. Thus, for instance, pursuant to article 30 of the general part of the Statute, a mental element is an indispensable constituent element of all crimes within the subject-matter jurisdiction of the ICC. It is, therefore, essential for criminal liability under the *Rome Statute*. Nevertheless, it can be easily noticed that in the 'special part' of the Statute, articles 6, 7 and 8, the mental element of various crimes is not defined identically⁴³. Different terms are used in the Statute to express the mental element of crimes: 'deliberately', 'with knowledge', 'intentional[ly]', 'with the intent', 'with the intention', 'wilful[ly]', 'wantonly'. These appear, on their face, to be elements of definitions and led to some difficulties when the Preparatory Commission came to elaborate on the Elements of Crimes. The problem arose largely because the general part provisions were, to a substantial degree, drafted by Justice officials without careful regard to what was happening with the special part; the special part materials were, for the most part, negotiated by Foreign Affairs and Military officials with careful regard to existing treaty

⁴⁰ The ultimate document adopted at Rome, A/CONF.183/C.1/L.76/Add.2, came out late at night on 16 July 1998 – the day before the Rome Conference finished its work. There was no discussion of substantive issues concerning the Statute in the Committee of the Whole during that day. Most delegations were unwilling to break the hard-won compromise on the next and final day of the Conference when the Committee did not meet until the evening. In the evening, procedural motions were adopted taking remaining proposed amendments off the table and then the Bureau's proposed Statute was adopted as a package without amendment.

⁴¹ During the Preparatory Committee's sessions, delegations had to make a choice between the two proposed words 'definition' and 'description'. The Preparatory Committee, at one of its meetings, noted that 'the choice of using the word 'description' or 'definition' was dependent upon answering the question whether the definition of crimes would be solely within the Statute (in which case the term 'definition' would be appropriate) or whether further elaboration of the elements of the definition of a crime in the Statute might be contained in an annex (in which case the term 'description' might be appropriate given that this term could encompass both the statutory definition and the annexed elaboration of elements)'. See 1996 Preparatory Committee II, note 3, p. 82. Ultimately, the word 'definition' was chosen (see e.g. article 22 para. 2 of the *Rome Statute*). Needless to say, for some, the word 'description' is an unhappy term, in particular for the purposes of criminal law (see note 12). As was suggested elsewhere: '... just as the mere describing of certain conduct as violating international law does not make it so, yet it may be so as a general principle of international law, so also describing certain conduct as criminal under international law does not *ipso facto* make it an international crime. ... [T]he actual crime's existence and character are dependent not on [its description in a particular international instrument] but on general principles of international law'. See Study on Ways and Means of Ensuring the Implementation of International Instruments Such as the International Convention on the Suppression and Punishment of the Crime of *Apartheid*, including the Establishment of the International Jurisdiction Envisaged by the Convention, (E/CN.4/1426, 1981), p. 6, para. 28 and p. 7, para. 33.

⁴² See UN Doc A/CONF.183/C.1/L.10.

⁴³ The drafters of the aggression amendments in the new article 8 *bis* seem to have been aware of the problem and avoided using any 'mental' words that might cause confusion with article 30.

language, much of which had state responsibility rather than individual criminal responsibility in mind. In drafting the Elements, most of these varying ways of expressing culpability elements were rendered in terms of intent and knowledge⁴⁴.

Once we realize that ‘crime’ is a theoretical construction, it becomes crucial to identify its constituent elements in order to have clear legal criteria as to who may be held criminally responsible and for what⁴⁵. Consequently, one has to be very careful when defining crimes so as to duly reflect all the necessary requirements concerning the principle of *nullum crimen sine lege*. This is particularly true of the international criminal law, since number, content and meaning of those elements can and, indeed, do vary from one legal system to another. Thus, for instance, in civil law countries causation is not considered to be a separate element of a crime, while in common law systems it typically is. It is important that such conceptual difficulties not be overlooked or underestimated.

1. ‘Elements of Crimes’

Article 9 of the *Rome Statute* refers to the Elements of Crimes within the jurisdiction of the ICC without explaining further what is meant⁴⁶. In the Preparatory Committee’s reports the principal issues concerning the said elements were addressed in the ‘*General Principles of Criminal Law*’ part of the Draft Statute. There two separate articles were drafted: article 28 *Actus Reus* and article 29 *Mens Rea*⁴⁷. These two articles, together with other relevant provisions, were meant to provide for clear guidance in respect of *corpus delicti* of crimes included into the Draft Statute. At an early stage of the drafting in New York, the ‘*actus reus*’ article included an effort to deal with causation, but this was omitted before Rome. In Rome, the draft on the floor asserted in paragraph 1 that conduct for which a person can be criminally responsible can constitute either an act or an omission or a combination thereof. Paragraph 2 asserted that, unless it was otherwise provided, a person can be responsible for an omission only where (a) the omission is part of the definition of the crime either expressly or by necessary implication, or (b) that person failed to perform an act that he has an obligation to perform in order to prevent the resulting crime. Subsequently, at the Rome Conference, article 28 was deleted, in part at least since it was said to be redundant⁴⁸; article 29 was renamed ‘mental element’ and became article 30 of the Statute.

With the provision on *actus reus*, formerly contained in draft article 28 removed, it was left to article 30 to provide a structure of what might reasonably be regarded as the elements of the crimes within the jurisdiction of the Court. Article 30 was the focus of much discussion during the drafting of the Elements by the Preparatory Commission, since it appeared to provide a key to the connections between the special and general parts of the Statute. Article 30, as has been noted, is headed ‘mental element’. It asserts, in paragraph 1, that

⁴⁴ See note 49 and para. 2 of the General Introduction to the Elements, quoted in the text following that note.

⁴⁵ See note 6.

⁴⁶ Compare with article 22 (Elements of an International Crime) of the Draft Convention on the Establishment of an International Penal Tribunal for the Suppression and Punishment of the Crime of Apartheid and other International Crimes. See (E/CN.4/1426, 1981), p. 37. That draft asserted that an international crime ‘shall contain four elements: a material element, a mental element, a causal element and harm’. ‘Material element’ was further described as a voluntary act or omission. A serious defect of this important effort to address the subject was its failure to come to grips with ‘circumstance’ elements, a defect addressed in article 30 of the Rome Statute. On the other hand, note the references in the text to the absence of a causation provision in the Rome Statute. Causation had been addressed in the Apartheid Draft.

⁴⁷ Such terminology is widely used in both common law and civil law countries.

⁴⁸ See Report of the Working Group on General Principles of Criminal Law, UN Doc A/CONF.183/C.1/WGRP/L.4/Add.1 (29 June 1998) and note the following comment in ‘Chairman’s suggestion for articles 21, 26 and 28’, UN Doc A/CONF.183/C.1/WGGP/L.1 (15 June 1998): ‘Another option would be to have no article dealing with omission. It seems that the substantive content of paragraph 2 (a) is largely covered by whatever is stated in the definitions of the crimes, and paragraph 2 (b) would to some extent be covered by article [28] on command responsibility at least if the approach is taken to state this as a responsibility rather than non-immunity.’ One suspects that another part of the explanation for its deletion was simply that it had become too hard to achieve a consensus on it.

[u]nless otherwise provided, a person shall be criminally responsible and liable for punishment for a crime within the jurisdiction of the Court only if the *material elements* are committed with intent and knowledge' (emphasis added). The reference to 'material elements' (a term which replaced 'physical elements' late in the day with no explanation on the record) invites the question: what might be material elements? An examination of the definitions of intent and knowledge that follow in paragraphs 2 and 3 suggests that the drafters conceived material elements as being of three possible types: conduct elements; consequence elements and circumstance elements. These terms represent concepts that are all familiar in various legal systems, although the terminology varies. Thus article 30 para. 2 (a) defines 'intent' in relation to 'conduct' ('a person has intent where ... that person means to engage in the conduct'). It defines intent also 'in relation to a consequence' in para. 2 (b) (where 'that person means to cause that consequence or is aware that it will occur in the ordinary course of events'). Finally, knowledge is defined in a way which introduces the concept of a 'circumstance'. (Para. 3 says that 'knowledge' means awareness that a circumstance exists or a consequence will occur in the ordinary course of events.) A reasonable inference from these definitions of mental elements is that they are defined with reference to the appropriate non-mental ('material') elements that were at the basis of the drafters' conceptual scheme.

Conduct, one normally thinks of as amounting to an act or omission. A consequence (or a 'result', or 'harm') is what follows from the act or omission. There is, however, overlap and many participants in the Rome process and afterwards seemed to have different notions of what constituted each of these categories. Moreover, some legal systems, especially in the common law, have a distinct category of element called 'causation'. Causation represents a link between conduct and consequence. As a result of the omission of the earlier draft on *actus reus* (which itself hardly contained a comprehensive understanding of causation) there is no specific reference to causation in the Rome Statute. It must probably be subsumed in some way in either conduct or consequences. The reference to 'circumstances' was a crucial one and caused much debate during the drafting of the Elements. It is seldom defined, yet we know it when we see it. It relates to the nature of the prohibited conduct, or to the nature of the consequences, or to the situation in which they occur. It is not something in itself that the perpetrator 'does', but is rather part of the 'scene'. In bigamy, that I am already married is a circumstance element when I am charged with going through a second ceremony already being married. That the property belonged to another is a circumstance element in theft or wilful damage. International Criminal Law is rife with similar possibilities. Did this take place in and armed conflict (national or international)? Was the victim protected by the Geneva Conventions? Was the killing (to be a crime against humanity) part of a widespread or systematic attack on a civilian population? The drafters of the Elements ultimately decided to adopt a structure thus based on article 30's distinction between mental and material elements and on the three kinds of material elements therein mentioned.

- 12 The requirement of 'intent and knowledge' was understood as a default rule during the drafting of the Elements, to be departed from if clearly required by the Statute (and in a few other instances when it was thought sensible in light of existing case-law or the instincts of the participants)⁴⁹. Accordingly, the General Introduction to the Elements provides, in relevant part:

⁴⁹ For the argument that the drafters of article 30 meant to exclude liability as a general rule based on negligence (as that term is understood by either common lawyers or civil lawyers), recklessness (as understood by common lawyers) and *dolus eventualis* (as understood by civil lawyers) see Clark (2001) 12 *CLF* 299 *et seq.*; *id.* (2008) 19 *CLF* 519 at 525 and 529, cited in Decision of Trial, Chamber, 14 March 2012, *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06, para. 1011 note 2722; Badar (2009) 12 *NCLR* 433. The Elements do not contain any references to culpability based on recklessness or *dolus eventualis*. Controversially, however, they do include a few examples of forms of negligence (all of them cases where some sort of mistake may be involved): Elements, article 6 (e), Genocide by forcibly transferring children (perpetrator 'knew or should have known that the person or persons were under the age of 18 years'); article 8 para. 2 (b) (vii) -1, -2 and -4, War crimes of improper use of flags, insignias, emblems, etc. ('Perpetrator knew or should have known of the prohibited nature

- ‘2. As stated in article 30, unless otherwise provided, a person shall be criminally responsible and liable for punishment for a crime within the jurisdiction of the Court only if the material elements are committed with intent and knowledge. Where no reference is made in the Elements of Crimes to a mental element for any particular conduct, consequence or circumstance listed, it is understood that the relevant mental element, *i.e.*, intent, knowledge or both, set out in article 30 applies. Exceptions to the article 30 standards, based on the Statute, including applicable law under its relevant provisions are indicated below.

...

7. The elements of crimes are generally structured in accordance with the following principles:
As the elements of crimes focus on the conduct, consequences and circumstances associated with each crime, they are generally listed in that order;
When required, a particular mental element is listed after the affected conduct, consequence or circumstance;
Contextual circumstances are listed last.’

The category ‘contextual circumstances’ was a spin-off from ‘circumstance’ that some participants thought was an unnecessary (but probably harmless) division of the circumstance category. In practice it refers to only three items, a manifest pattern of similar conduct in the case of genocide⁵⁰; a widespread or systematic attack against a civilian population, in the case of crimes against humanity; and an armed conflict, in the case of war crimes. These are the basic circumstance elements that give the crimes the ‘international’ character that makes them appropriate for jurisdiction in an international tribunal.

a) Material Elements of Crimes. It is useful to say some more about each of the material elements derived from article 30, conduct, circumstances and consequences. It will also be helpful to say a little about ‘causation’ which represents either a ‘missing’ element, to be filled in later by the Court, or something implicit in conduct and consequences. 13

aa) Conduct. ‘Conduct’, in most criminal law usages, comprises both an act and an omission⁵¹. For a conduct to be punishable or to constitute a crime, it must be voluntary, 14

of such use’); article 8 para. 2 (b) (xxvi), and article 8 para. 2 (e) (vii), War crime of using, conscripting or enlisting children in international and non-international conflict, respectively (‘knew or should have known that such person or persons were under the age of 15 years’). Whether these examples were compliant with article 30 and the meaning of existing ‘case-law’ (if any) was hotly debated before a consensus was arrived at. Sooner or later they are bound to give rise to arguments based on article 9 para. 3 about their consistency with the Statute. In *Lubanga Dyilo*, the Trial Chamber did not need to address the issue, since the prosecution undertook to prove, and the Chamber found, that Lubanga ‘was fully aware that children under the age of 15 had been, and continued to be, enlisted and conscripted by the UPC/FPLC and used to participate actively in hostilities during the timeframe of the charges.’ (Para. 1347.) Thus, subjective knowledge was present.

⁵⁰ This was a highly disputed addition in the Elements. While many participants thought it was implicit in the basic understanding of what constitutes genocide, others noted that there is no specific language to that effect in article 6 of the Statute or in the Genocide Convention, from which article 6 is taken. It, too, will no doubt give rise to argument before the Court about whether it is consistent with the Statute, as required of the Elements by article 9 para. 3. Equally controversial was the mental element that should be applied to it. Some participants saw it as merely a jurisdictional element (albeit of a ‘material/circumstance’ kind) to which no mental element was necessary. Others thought that it should be subject to article 30’s intent and knowledge standard. The result was a convoluted compromise that tells to Court that it is on its own without any ‘assistance’ from the Elements: ‘Notwithstanding the normal requirement for a mental element provided for in article 30, and recognizing that knowledge of the circumstances will usually be addressed in proving genocidal intent, the appropriate requirement, if any, for a mental element regarding this circumstance will need to be decided by the Court on a case-by-case basis’. (Introduction to Elements for Genocide.) It should perhaps be noted that the ‘additional element’ added by the Preparatory Commission requires proof of a ‘manifest pattern’ which is presumably determined objectively; it does not require proof of a plan or policy. One is reminded of the *dictum* of the Appeals Chamber of the ICTY that ‘the existence of a plan or policy is not a legal ingredient of the crime. However, in the context of proving specific intent, the existence of a plan or policy may become an important factor in most cases. The evidence may be consistent with the existence of a plan or policy, or may even show such existence, and the existence of a plan or policy may facilitate proof of the crimes’. (*Prosecutor v. Jelisić*, Case No. IT-95-10-AA, Judgement, Appeals Chamber, 5 July 2001).

⁵¹ The draft article on *actus reus* provided: ‘Conduct for which a person may be criminally responsible and liable for punishment as a crime can constitute either an act or an omission, or a combination thereof’. See Preparatory Committee (Consolidated) Draft, p. 64, article 28.

that is to say, it must have been willed by a perpetrator⁵². The two notions 'act' and 'omission' are in no way self-evident. Nor is it always *prima facie* clear where the distinction between them lies, since they can both lead to the same result⁵³. Furthermore, one can reasonably ask: when does a failure to act amount to an omission for the criminal law purposes? Or, what are the legal implications of the difference between 'causing harm' and 'letting harm occur'⁵⁴?

Many delegations questioned the appropriateness of omissions for the purposes of the *Rome Statute*. It was argued that crimes within the jurisdiction of the ICC can be committed only by an act. Indeed, it follows from the wording of the definitions that many crimes stipulated in the Statute are capable of being committed only by some kind of violent act. Such terms as 'deliberately inflicting', 'forcibly transferring', 'attack', 'employing the weapons', 'rape', 'torture', 'taking of hostages', *etc.* leave no doubt as to whether a crime so defined can be committed by an omission.

- 15 Quite obviously, for a person to be held criminally responsible for an omission, a particular crime should be defined in terms of failure to act. The draft article on *actus reus* contained a specific reference to this requirement providing that '... a person may be criminally responsible and liable for a punishment for an omission where ... the omission is specified in the definition of the crime'⁵⁵. As has been noted the very definitions of most of the crimes under the *Rome Statute* explicitly provide that they can be committed only by an act. Yet, there are some that can be said to provide room for such an interpretation that encompasses omissions as well. Thus, such a crime as wilful killing (article 8 para. 2 (a) (i)) is capable of being interpreted in such a way that includes faults of omission too. In that case it would cover, for instance, failure to feed prisoners of war, or to provide medical care to wounded persons, or to rescue shipwrecked persons belonging to hostile armed forces⁵⁶. Coming back to the question whether a failure to act amounts to an omission for the purposes of criminal law, it has to be kept in mind that a person may only be held criminally responsible for an omission when there existed a prior duty to act. Here, the specific question arises in respect of the source of such duty. The draft article on *actus reus* made criminal responsibility for an omission conditional upon pre-existing duties under the Statute⁵⁷. A provision so worded could raise concerns as to its scope. It might be understood, if taken literally, in its strictest sense according to which the Statute is the only source of such duties⁵⁸. On the other hand, there are those who would argue that a criminal statute can hardly be said to establish 'primary' duties to act or abstain from acting in a certain way. Indeed, it is the *Hague Conventions* of 1907, the *Geneva Conventions* of 1949 together with the two Additional Protocols of 1977, a number of other international instruments (and

⁵² The term 'willed conduct' in this context should, perhaps, be clarified in a sense that it refers to the controllability thereof as opposed to *actio libera in causa*. Furthermore, the word 'willed', here, is not to be understood as imposing a particular *mens rea* threshold, such as 'specific intention', *etc.*

⁵³ Is, for example, 'starvation' a result of the deprivation of access to food (in which case it, seemingly, constitutes an act) or failure to feed (in which case it constitutes an omission)?

⁵⁴ Is, for instance, failure to feed prisoners to be qualified as 'causing harm' or 'letting harm to occur'? And, does the distinction really make a practical difference?

⁵⁵ Preparatory Committee (Consolidated) Draft, note 51, pp. 64 *et seq.*, article 28 para. 2 (a).

⁵⁶ Pictet (ed.), *Commentary on the Geneva Convention I* (1952) 371; *id.* (ed.), *Commentary on the Geneva Convention II* (1960) 267; *id.*, *Commentary on the Geneva Convention III* (1960) 626 *et seq.*; *id.* (ed.), *Commentary on the Geneva Convention IV* (1958) 597. A footnote to the Elements asserts that the conduct element of extermination – one of the crimes against humanity (article 7 para. 1 (b)) – 'could include the deprivation of access to food and medicine'.

⁵⁷ The draft article 28 provided that: '... a person may be criminally responsible and liable for punishment for an omission where the person ... is ... under a pre-existing [legal] obligation *under this Statute* to avoid the result of [the] crime ...'. Preparatory Committee (Consolidated) Draft, note 51, pp. 64–65 (paragraph 2 (b)). (Emphasis added.).

⁵⁸ The Preparatory Committee noted that some 'delegations thought that, in the context of the offences of the Statute, breach of an obligation under the Statute to avoid the result of a crime was sufficient'. See note 51 (fn. 15, p. 66).

possibly customary law) that proscribe particular types of conduct. Therefore, the source of pre-existing duties is potentially much wider than the Statute itself. However one makes the analysis, it will be impossible to interpret the Statute in some instances without a reference out to such sources in order to understand duties.

Omissions are criminally punishable only where a person failed to prevent the harm from which victims have a special right or, speaking in Hohfeldian terms, privilege to be protected. Persons entitled to a special protection and their respective rights are well determined. Yet, the Statute's most specific aspect of criminally punishable omissions (article 28) is failure of a person occupying a particular position of power to prevent the commission of a crime by his or her subordinates. Here a person appears to be responsible for crimes committed by others. But this is so only at first glance. In fact, it is just a figure of speech. No one may be held responsible for crimes which he or she has not committed or participated in their commission himself or herself. Individual responsibility is a fundamental principle of criminal law. What indeed a commander or other superior is responsible for is his or her own criminal conduct, that is to say, failure 'to take all necessary and reasonable measures within his or her power to prevent or repress [the commission of crimes within the jurisdiction of the Court] or to submit the matter to the competent authorities for investigation and prosecution'⁵⁹. Moreover, in this context, the very crimes that have been committed by subordinates are conceived of as being a result of superior's failure to exercise control properly over them as explained article 28 mn 22 *et seq.*

bb) Circumstances. Acts and omissions do not take place in a vacuum. In most, if not in all, instances human beings act or abstain from acting because they think, rightly or wrongly, that those particular circumstances so require. It is therefore very important in order to justly evaluate human conduct to take into account the attendant circumstances. An act that *prima facie* seems to be a crime does not necessarily lead to perpetrator's responsibility or punishment. Thus, for instance, a person who commits such an act while defending himself or herself may not be held criminally liable provided that the method of defence was proportionate to the real danger to his or her life. This is a matter of grounds for excluding of criminal responsibility⁶⁰. Apart from that, the same acts committed in different circumstances are not qualified identically. Thus, such acts as rape, torture, deportation, *etc.* can be qualified either as crimes against humanity or war crimes, depending, *inter alia*, upon the attendant circumstances. In the *Rome Statute* those circumstances are generally defined in the chapeau of the respective articles. There, the special thresholds have been provided for, so as to distinguish particular categories of crimes. Let us take, for instance, torture. This

⁵⁹ See article 28 paras. 1 (b) and 2 (c) of the *Rome Statute*. Interestingly, and quite in contrast to the argument suggested in the text, this provision has been commented in such a way that makes the Statute itself a source of the duty concerned. See Wise, 'Part 3. General Principles of Criminal Law', *13ter NEP* (1998) 49 *et seq.* Here, the author, while commenting on responsibility of commanders and other superiors, writes: 'In this instance, the Statute itself imposes a duty to act'. Some remain of the opinion that a criminal statute does not impose a duty, but rather reinforces one provided for elsewhere. Thus, concerning the responsibility of commanders it is article 87 of the Add. Prot. I that stipulates duties 'to prevent or suppress', the breach of which serves as a ground of criminal responsibility of commanders and other superiors (see also article 86 of the Protocol). On the relationship between treaties and the general law, see McLachlan (2005) 54 *ICLQ* 2779.

⁶⁰ During the discussion of the Elements by the Preparatory Commission post-Rome, some delegations were strongly of the view that the grounds of exclusion of responsibility should be regarded as 'elements' of the relevant crimes. Others took a different view. No definitive conclusion was reached and the Preparatory Committee took a pragmatic approach by simply leaving the issue for another day. This pragmatic conclusion is recorded in paragraph 5 of the General Introduction to the Elements thus: 'Grounds for excluding criminal responsibility or the absence thereof are generally not specified in the elements listed under each crime'. In the United States, the Model Penal Code includes within the definition of 'element of an offense' such 'conduct', 'attendant circumstances' and 'result of conduct' as 'negatives an excuse or justification for such conduct'. The most important practical effect of this definition, under the structure of the Code, is that the burden of proving that the conditions for the defence are *not met* lies with the prosecution – the burden of proof in respect of all elements lies on the prosecution. Justifications and excuses, in the Model Penal Code, seem to be examples of 'attendant circumstances'.

offence, in order to be qualified as a crime against humanity, needs to be committed 'as part of a widespread or systematic attack directed against any civilian population'⁶¹. It follows from the wording of this provision that isolated acts of torture, while being criminally punishable under national jurisdictions, do not constitute a crime against humanity, as defined in the *Rome Statute*, and consequently, do not fall within the jurisdiction of the ICC. So, it might be argued that if the circumstances mentioned above are present, then even a single act of torture can lead to criminal responsibility of a perpetrator⁶². However, this is excluded by article 7 para. 2 lit. a of the *Rome Statute*. That article defines 'attack directed against any civilian population', in the context of which certain acts need be committed so as to be qualified as crimes against humanity, as 'a course of conduct involving the multiple commission of [those] acts'. The phrase 'multiple commission of acts' explicitly provides that a single act does not constitute a crime against humanity, even if committed as part of a widespread or systematic attack directed against any civilian population.

- 18 Furthermore, some crimes can only be committed in very specific circumstances. These are the so-called 'war crimes'. The very term explicitly provides that there must be an armed conflict so as to particular offences can be qualified as 'war crimes'. Indeed, such acts as 'bombarding of towns which are undefended and which are not military objectives', 'killing a combatant who has surrendered at discretion', etc. clearly imply, by their definition, active hostilities and do not raise conceptual difficulties. But the issue is complicated by the fact that quite a number of crimes can be committed both in time of peace and in time of war. Thus, for instance, genocide is such a crime⁶³. So are crimes against humanity⁶⁴. In this view, if we, again, take torture as an example, but this time committed during an armed conflict, we can be slightly puzzled. What does make torture a war crime? Is it sufficient that it merely be committed during an armed conflict? In case of the positive answer to the latter question, do we not assume that crimes against humanity cannot be committed during an armed conflict? Can the nature of an armed conflict (international or non-international) affect the qualification of torture as a war crime as opposed to a crime against humanity?

Again, the very term 'torture' does not specify acts by means of which it can be committed. From this point of view, what does make 'torture' different from 'inhumane treatment' or 'outrages upon personal dignity'? Can, for instance, rape be regarded as a form of torture? If it can, then how is it supposed to be differentiated from rape as a separate crime provided for by article 7 para. 1 (g) and article 8 para. 2 (b) (xxii)⁶⁵?

⁶¹ See article 7 para. 1 of the Statute.

⁶² As the ICTY has held: '... a single act by a perpetrator taken within the context of a widespread or systematic attack against a civilian population entails criminal responsibility and an individual perpetrator need not to commit numerous offences to be held liable'. See *Prosecutor v. Tadić*, No. IT-94-1-T, Judgement and Opinion, Trial Chamber, 14 July 1997, para. 649.

⁶³ Article 1 of the Convention on the Prevention and Punishment of the Crime of Genocide provides that 'genocide, whether committed in time of peace or in time of war, is a crime under international law'. Somewhat surprisingly, article 6 of the *Rome Statute* which defines the crime concerned in terms of the *Genocide Convention* lacks the specific reference to the possibility of committing genocide in time of peace as well as in time of war, but that must be implicit.

⁶⁴ '... customary international law no longer requires any nexus between crimes against humanity and armed conflict'. See *Prosecutor v. Tadić*, No. IT-94-1-A, Decision on Jurisdiction, Appeals Chamber, 15 July 1999, para. 141.

⁶⁵ Obviously, the last three questions cannot be satisfactorily answered if only the conduct element of crimes is taken into consideration. As paragraph 9 of the General Introduction to the Elements puts it: 'A particular conduct may constitute one or more crimes'. Circumstances, or 'contextual circumstances', are crucial in determining whether, for instance, a homicide may be prosecuted as genocide, a crime against humanity or a war crime – or all three. Like many legal words, 'circumstance' may have more than one meaning, depending upon context. We have already discussed in the text the use of 'circumstance' to denote one of the material elements of a crime. Note, however, how the word is used in paragraph 3 of the General Introduction to the Elements: 'Existence of intent and knowledge can be inferred from relevant facts and circumstances'. Here 'circumstances' is used to describe physical characteristics of the situation which, in themselves, are probably not 'elements' of the offence but which enable the fact-finder to draw relevant inferences about one of the elements. Intent to kill, for example, may be inferred from the use of a machete on someone's head. Note also the reference

Apart from that, some acts can be qualified as a particular crime only when there is a connection with other crimes. Thus, for instance, persecution has been defined in the *Rome Statute* in such a way that makes its adjudication by the ICC conditional upon the connection of the crime concerned with any other crime within the subject-matter jurisdiction of the Court. Consequently, persecution on specified grounds of persons belonging to any identifiable group or collectivity does not amount to a crime against humanity, as defined in the *Rome Statute*, if committed out of the context of any crime defined in articles 6, 7 and 8 of the Statute. That the attendant circumstances or context in which acts are committed do serve as a qualifying criterion can also be illustrated by the crime of apartheid. Article 7 para. 2 (h) of the *Rome Statute* defines apartheid as inhumane acts committed in the context of an institutional regime of systematic oppression and domination by one racial group over any other racial group or groups. It is this particular context, *inter alia*, that makes it possible to make a distinction between the two crimes – apartheid and genocide⁶⁶.

A context is not necessarily composed only of factual circumstances. For the qualification of quite a number of crimes specific legal requirements are indispensable. Thus, for a deportation or forcible transfer of population to be a crime against humanity, there must be two legal requirements: first, persons being deported or forcibly transferred must be lawfully present in the area concerned, and second, deportation or forcible transfer must be conducted without grounds permitted under international law⁶⁷. Here, as in the case of torture considered above, a particular conceptual difficulty can arise. How should acts of deportation or transfer defined respectively in article 7 para. 2 (d) and article 8 para. 2 (a) (vii) be differentiated? Obviously, the fact that deportation or transfer is taking place during an armed conflict does not, by itself, make it a war crime⁶⁸. There must be a connection with the course of an armed conflict⁶⁹. In other words, the qualifying criterion is not just an overlap in time, but also, and most importantly, an interconnectedness between the acts concerned and the conduct of military operations, including their planning and preparation. The last comment equally concerns any other war crime enumerated in article 8 para. 2.

Crimes can also be qualified, *inter alia*, on the basis of their object. Thus, the object of 19 crimes against humanity is a civilian population only, while acts constituting war crimes can, and normally are, directed against persons belonging to armed forces too. Furthermore, war crimes can also be committed against the civilian population in occupied territories, while victims of crimes against humanity can be any civilian population, including the population of the Occupying Power, if there is one. Apart from that, the object of war crimes can be not only human beings, but also property, installations, material, vehicles, the natural environment, historic monuments, hospitals and any other object specifically defined and protected

in article 28 para. a (i) of the *Rome Statute* (responsibility of military commander) to 'the circumstances at the time' which phrase is used to set up the possibility of negligence liability. 'Circumstances' when used to describe a situation for evidentiary purposes typically (but not invariably) appears in the plural. 'Circumstance' when used to describe an element typically (but not invariably) appears in the singular.

⁶⁶ In the Preamble of the International Convention on the Suppression and Punishment of the Crime of Apartheid (1973), which also has a normative dimension, there is a reference to the overlapping character of acts of genocide and apartheid. Thus, it says that 'certain acts of [genocide] may also be qualified as acts of apartheid'.

⁶⁷ See article 7 para. 1 (d) and 7 para. 2 (d) of the Statute. In an example of a finesse used many times in drafting The Elements, para. 3 of the Elements of the 'crime against humanity of deportation or forcible transfer of population' requires the prosecution to prove only that: 'The perpetrator was aware of the factual circumstances that established the lawfulness of such presence'. This drafting technique is used to avoid the difficulties connected with the 'mistake of law' defence in article 32 of the Statute. The element in question is regarded as a factual one and thus the emphasis is shifted to the perpetrator's evaluation of the facts rather than an evaluation of the (more difficult) legal situation. Whether such efforts are consistent with the Statute may provide room for future argument pursuant to article 9 para. 3 of the *Rome Statute*. For a similar finesse, see note 73.

⁶⁸ Otherwise we will not be able to reasonably argue that crimes against humanity can be committed both in time of war and in time of peace. Furthermore, it is now well-established that crimes against humanity need not be connected with military conduct (see note 64).

⁶⁹ That there must be a connection with an armed conflict is implicit in all war crimes. But, perhaps, most explicitly it has been provided for in paragraph 2 (e) (viii) of article 8 which criminalises 'ordering the displacement of the civilian population for reasons related to the conflict ...' (emphasis added).

by international humanitarian law. The object of some crimes like, for instance, murder, extermination, deportation, taking of hostages, *etc.* is defined in general terms. However, there are crimes that have a very specific object. Among such crimes ‘forcibly transferring children of the group to another group’, ‘compelling a prisoner of war to serve in the forces of a hostile Power’ can be exemplified. The very definitions of these crimes explicitly state the object against which certain acts are directed: children and a prisoner of war, respectively. Yet, the definitions of some other crimes do not verbally name their object, but the natural meaning of their context leave no doubt as to what a certain criminal act is directed against. Thus, for instance, ‘forced pregnancy’ can only be understood as some kind of violent acts the victim of which is a woman, since, naturally, only women are capable of being impregnated⁷⁰. Despite the fact that such crimes as ‘rape’, ‘sexual slavery’ and ‘enforced prostitution’ are mostly committed against women, men also can be victimized by the crimes concerned⁷¹. The Elements follow the Statute in taking a gender neutral approach to such crimes by using the word ‘persons’ to describe victims, except in those cases like ‘forced pregnancy’ that can only be committed against women.

- 20 cc) **Consequences.** ‘Material element of a crime’ can also include some kind of harmful result. Needless to say, that for harm to be a constituent element of a crime, it must be provided for by a definition thereof⁷². In other words, whenever a crime is conceived of as including harmful result and a definition of that result is provided, harm becomes an indispensable material element of the crime concerned which the *Rome Statute* subsumes under the category of ‘consequences’. For the qualification of most of the crimes within the subject-matter jurisdiction of the ICC, causing a certain physical result is decisive. Thus, crimes defined in terms of ‘killing’, ‘murder’, ‘extermination’, ‘physical destruction’, ‘loss of life’ are all about causing death to human beings. The definitions of some other crimes concern physical (bodily) or mental harm. Wherever the object of a crime is something tangible (property, installations, hospitals, buildings dedicated to a certain purpose, such as religion, education, art, *etc.*) or defined in terms of a certain area (towns, villages, or other areas immune from military operations), or even conceived of more generally, as in case with natural environment, the damage caused to such an object constitutes a harmful result. Apart from physical, mental and property kinds of harm, there can also be moral ones. Thus, harm caused by acts constituting such crimes as persecution, imprisonment, enforced disappearance, deprivation of the rights of fair and regular trial, conscripting or enlisting children under the age of fifteen into armed forces, *etc.* is clearly moral, since it concerns the basic human rights. All these can be considered ‘consequences’.
- 21 The consequence requirement can be explicitly provided for by a definition (*e.g.* ‘wilful killing’, ‘extensive destruction of property’) or be implicit in the concept of a crime (*e.g.* ‘bombarding of towns which are undefended and which are not military objectives’, ‘rape’). If a definition of a crime, apart from the reference to harm itself, contains also a particular value-judgment in respect of the harm concerned, then the actually caused harm must be of a certain character which meets a statutory evaluative requirement. Such an evaluative requirement can, as harm itself, be either explicitly provided for by a definition (*e.g.* ‘causing

⁷⁰ For the statutory definition of ‘forced pregnancy’ see article 7 para. 2 (f).

⁷¹ In quite a number of national jurisdictions the statutory object of such crime as rape can only be women. Moreover, there may well be a case where a criminal law provision is worded or judicial practice is developed in such a way that excludes criminal responsibility of a man who has raped his wife.

⁷² Article 22 (Elements of an International Crime) of the Draft Convention on the Establishment of an International Penal Tribunal for the Suppression and Punishment of the Crime of Apartheid and other International Crimes provided that ‘[t]he element of harm shall depend upon the definition of the crime ...’. See E/CN.4/1426, 1981, p. 37. That harm must be provided for by a definition of a crime does not mean, however, that it must necessarily be verbally stated; it is possible to arrive at the respective conclusion by means of deduction if a particular crime has been conceived of as including a certain harm requirement. Thus, for instance, the concept of crimes defined in terms of directing attacks against civilian population or certain objects perhaps implies that there must be some harmful result, even though definitions of such crimes in the Statute and the Elements do not contain any reference to harm.

serious bodily or mental harm’, ‘wilfully causing *great* suffering, or *serious* injury to body or health’) or implicit in the concept of a crime (e.g. ‘torture’, ‘inhumane treatment’, ‘outrages upon human dignity’)⁷³.

It has been mentioned above that a consequence is a constituent element of a crime only when it has been so conceived and its definition provided. It is therefore not an indispensable element of all crimes. Indeed, the concept of such crimes as ‘declaring that no quarter will be given’, ‘declaring abolished, suspended or inadmissible in a court of law the rights and actions of the nationals of a hostile party’, ‘ordering the displacement of the civilian population for reasons related to the conflict, unless the security of the civilians involved or imperative military reasons so demand’ does not require any harmful result. It means that merely ‘declaring’ or ‘ordering’ constitutes, in this context, a completed crime⁷⁴. Harm, in this case, would be contingent upon the subsequent acts of subordinates and serve as an aggravating factor – or as an element of further crimes, responsibility for which might fall to be decided under articles 25 and 28 of the Statute.

dd) Causation. Whenever a crime is conceived of as including both act/omission and a certain harmful result, a specific conceptual difficulty arises. This is a matter of causation. It is quite common to think that the connection between act/omission and a certain harmful result is of factual nature. However, this is too much simplistic an approach. Of course, if a soldier shoots at civilians not taking part in hostilities or combatants who have surrendered at discretion and they immediately die, such a connection between the act of the former and death of the latter can be explained in terms of cause-in-fact, since the act and the result concerned are physical and therefore capable of being linked to each other as cause and effect. But suppose that those combatants died not immediately, but subsequently in a hospital where they were intentionally deprived of medical care. What, in this case, would be the cause of their death? Obviously, the very fact that the wounded died not immediately, but subsequently, did not break the chain of causation. Speaking in physical terms, the cause (but perhaps now *one* cause) had always been the same, *i.e.* they died because they were shot. Moreover, deprivation of medical care is not a physical act, if it is an act at all, and it is conceptually difficult to view it as the physical cause of death of the wounded persons concerned. But what is it, then, that medical personnel are responsible for? Yet we have little difficulty in concluding that it is entirely appropriate to attribute the deaths, as a legal matter, both to the soldier who did the shooting and the medical personnel who failed to act or who acted improperly. Legal cause, then, can very much be a question of legal attribution. There can be more than one cause and not every one of them need to be regarded as ‘but for’ antecedents of the proscribed result.

Another, perhaps even more puzzling example, is the crime of ‘making improper use of a flag of truce ... resulting in death or serious personal injury’. It is evident that making

⁷³ Para. 4 of the General Introduction to the Elements provides that ‘With respect to mental elements associated with elements involving value judgement, such as those using the terms ‘inhumane’ or ‘severe’, it is not necessary that the perpetrator personally completed a particular value judgement, unless otherwise indicated’. On how this provision came about, see Clark (2001) 12 *CLF* 322 *et seq.* For similar efforts to avoid difficulties with circumstance elements involving ‘legal’ evaluations, see note 67.

⁷⁴ That ‘ordering’, in this context, constitutes a completed crime is important. It is important inasmuch as it differs from giving orders to commit any other crime within the subject-matter jurisdiction of the ICC. In the latter case ‘ordering’ is a form of participation in or contribution to the commission of a crime ‘which in fact occurs or is attempted’. See article 25 para. 3 (b) of the *Rome Statute*. Two issues – qualification of a crime and determination of the role that a person played in the commission thereof – must be conceptually differentiated. However, there seems to be an exception to this. Article 25 para. 3 (e) provides that a person who ‘in respect of the crime of genocide, directly and publicly incites others to commit genocide’ shall be criminally responsible and liable for punishment. Direct and public incitement to commit genocide was criminalised already in 1948 by the article III (c) of the *Genocide Convention* and conceived of as having a feature of a completed crime, *i.e.* no subsequent act or harm is required so as to a person be held criminally responsible and liable for punishment. Like an attempt, it is an ‘inchoate’ offence. The *Genocide Convention*, article III (b), also criminalised the inchoate offence of conspiracy to commit genocide, even where the genocide did not occur. This is not carried forward into the *Rome Statute*.

improper use of a flag of truce or of the military insignia and uniform of the enemy or of the United Nations cannot by itself cause death or serious personal injury. In this view, what meaning is to be given to the word ‘resulting’? Furthermore, the principle of causation is unhelpful for determination of criminal responsibility of commanders or superiors, as defined in article 28 of the *Rome Statute*, or any person who orders, solicits or induces the commission of a crime. The consequences of such an order or incitement cannot be consistently described or explained in terms of factual causation. Some notions of attribution are essential⁷⁵.

- 24 It was once proposed, however, to define causal element as follows: ‘conduct is the cause of a result when it is an antecedent but for which the result in question would not have occurred ...’⁷⁶. The concept of ‘but for’ is at the very core of this definition. It provides that if a particular result would have occurred but for an antecedent conduct, then the latter cannot be regarded as its cause. Thus, as is seen, this concept is of an exclusionary nature and is hard to apply to cases where multiple causes are involved. Nor is it of any help for the matter of imputation of criminal responsibility⁷⁷. ‘But for’ causation is especially unhelpful in analyzing the responsibility of those such as aiders or abettors or participants in a group with a common purpose whose responsibility falls to be determined under article 25 of the Statute. Their actual contribution of a ‘causal’ nature may be quite minimal – certainly not of a ‘but for’ nature – and yet their criminal responsibility is believed to be appropriate. The draft article 28 on *actus reus* also contained a reference to causation. The linguistic form of it was, however, optional, that is, three alternative words were proposed to be used in respect of the connection between the harm and individual’s conduct: ‘caused’, ‘accountable’, and ‘attributable’⁷⁸. If the choice is limited only to these terms, then, to be consistent, the last one is preferable⁷⁹. After all, the question to be solved by the Court is not – ‘What is the cause of a particular harmful result?’, but rather – ‘Who is [justly] responsible for that result?’⁸⁰.

- 25 **b) Mental Elements of Crimes.** A material element of a crime is thus necessary but not sufficient for the qualification thereof. Most, if not all, of the questions, posed above, cannot be satisfactorily answered if a particular mental state of a perpetrator is not taken into consideration. Moreover, and as far as criminal responsibility is concerned, a person may be held liable for punishment only if his or her conduct was voluntary or willed⁸¹. It is, indeed, an elementary point that only when a person controlled his or her conduct, is it just to

⁷⁵ In this regard, comments during the drafting process that causation was ‘largely a factual matter which the Court itself could consider and decide upon’ missed the mark. 1996 Preparatory Committee I, note 3, p. 45, para. 198; Preparatory Committee Decisions Feb. 1997, p. 27, fn. 22; Zutphen Draft, p. 59, fn. 97.

⁷⁶ See article 22, Draft Convention on the Establishment of an International Penal Tribunal for the Suppression and Punishment of the Crime of Apartheid and other International Crimes, (E/CN.4/1426, 1981), p. 37.

⁷⁷ ‘Imputation, which expresses itself in the concept of responsibility, is ... not the connection between a certain behavior and an individual who thus behaves – as assumed by traditional theory; for this, no connection by a legal norm is necessary, because the behavior and the behaving individual cannot be separated ... Imputation, implied in the concept of responsibility, is the connection between a certain behavior, namely a delict, with a sanction’. Kelsen, *Pure Theory of Law* (1989) 81.

⁷⁸ See e.g. 1998 Preparatory Committee, note 51, p. 65, article 28 para. 3: ‘A person is only criminally responsible under this Statute for committing a crime if the harm required for the commission of the crime is caused by and [accountable] [attributable] to his or her act or omission’.

⁷⁹ ‘The idea that an accused can be held responsible only for harmful results which are attributable to his own conduct is, in fact, somewhat wider than a causation rule. It carries forward the basic proposition ... that criminal responsibility is individual and therefore a matter of what the accused has or has not done – not a matter of what others have done or what extraneous circumstances have accidentally produced’. Wise, ‘Part 3. General Principles of Criminal Law’, *13ter NEP* (1998) 49.

⁸⁰ ‘That an individual is responsible for his behavior means that he may be punished for this behavior; and that he is irresponsible, or not responsible, means that he, for the same behavior ... may not be punished. That means, that in the first case a definite behavior is, in the second case this behavior is not, connected with punishment; that the behavior is or is not a condition for punishment; that punishment is or is not imputed to the behavior’. Kelsen, *Pure Theory of Law* (1989) 81.

⁸¹ See note 52.

impute responsibility to him or her. An appropriate mental state on the part of a person who is responsible for the material element is therefore indispensable for determination of guilt. Apart from that, it is also very important for the qualification of crimes. For instance, it is the specific mental state requisites that lie at the very basis of the concept of such crime as genocide, and that are conceived of as providing a criterion for differentiation thereof from such a crime against humanity as extermination. To put it in other way, mental state requisites are conceived of as constituting a *mental element* of a crime. The latter, as a crime itself, is a theoretical construction and it is therefore of utmost importance to be consistent in terminology so as to a definition be in accordance with a concept.

aa) Intent, knowledge or both. The principal issues of mental element of crimes are generally defined in article 30. There it has been provided that '[u]nless otherwise provided, a person shall be criminally responsible and liable for punishment for a crime within the jurisdiction of the Court only if the material elements are committed with intent and knowledge'. The conjunctive 'and' implies that the mental element is composed of two sub-elements: first, intellectual sub-element – *knowledge*; second, moral sub-element – *intent*. This means (at least for many civil lawyers) that the state of mind of a perpetrator must encompass both sub-elements in order that responsibility be imputed to him or her. Common lawyers tend to see the 'and' as disjunctive – in some situations intent (as to result, for example) is crucial; in others (such as circumstance elements) it is knowledge that is important⁸².

It has already been mentioned more than once that it is indispensable that conduct be voluntary. By this it is meant that a person must control his or her behaviour, *i. e.* be aware of what he or she is doing so as to be held responsible. Without this requirement there can be no responsibility⁸³. Awareness of the nature of a conduct implies awareness of the attendant circumstances. For quite a number of crimes, as defined in the *Rome Statute*, it is required that a person be aware of not only what he or she is doing, but also of what conduct others are engaged in or even of what others are intending or have planned to do. For instance, the intent of the perpetrator 'to destroy in whole or in part a national, ethnical, racial or religious group, as such' (which must presuppose some awareness) is decisive for the qualification of the accused conduct as genocide⁸⁴; awareness of a widespread or systematic attack is needed in order to qualify a particular conduct as a crime against humanity; a person to be held responsible for a conduct contributing to the commission or attempted commission of a crime by a group must be aware of the intention of the group to commit that crime; the knowledge of what forces or subordinates were doing or about to do is also indispensable for criminal responsibility of commanders or other superiors.

bb) Inferring knowledge. For the purpose of criminal responsibility, knowledge can (in some situations) be not only actual but also imputed. In the first case, it is a matter of proof. It has to be proved that a person knew, at the time the crime was being committed, that he or she was engaged in criminal conduct. Of course, as paragraph 3 to the General Introduction to the Elements notes, 'Existence of intent and knowledge can be inferred from relevant facts and circumstances'. In the case of imputed knowledge, what is required is proof that there existed events of which a person in the situation of the accused cannot be reasonably said to be unaware. Not knowing what is known to everyone is, although possible, not a reasonable defence. The specific aspect of this appears in respect of criminal responsibility of commanders⁸⁵. Thus, article 28 para. 1 (a) has made responsibility of a commander conditional; *inter alia*, upon attributed knowledge of crimes committed by forces under his or her effective

⁸² Clark (2001) 12 CLF 302 *et seq.* The General introduction to the Elements, reproduced in Annex II of this work, reflects this ambiguity when it refers to 'intent, knowledge or both'.

⁸³ See article 32 para. 1 of the *Rome Statute*.

⁸⁴ Note also the 'contextual element' note 50, added to genocide by the Preparatory Commission.

⁸⁵ The specificity of a commander's responsibility is in his or her ability to control armed forces. That position imposes a special duty to know what those forces are doing or about to do. The negligent attitude to the duty

command and control. The phrase ‘owing to the circumstances at the time, should have known’ makes it impossible for a commander to reasonably deny knowing about criminal conduct which forces under his or her effective command and control were engaged in. This is the most striking application in the Statute itself of the ‘unless otherwise provided’ language at the beginning of article 30 of the Statute. Article 28 provides an explicit exception to the intent and knowledge standard both with a kind of negligence standard for military commanders and, a recklessness or *dolus eventualis* standard (in article 28 para. b) for other superiors.

- 28 **cc) Knowledge of consequences.** Knowledge, as defined in article 30 para. 3, means awareness not only of an existing circumstance but also ‘that a consequence will occur in the ordinary course of events’. Knowledge about a consequence that is likely to occur is perhaps better called foresight. Foresight, however, is even more complex a concept than knowledge. It is ‘knowledge’ about what has not yet occurred. The issue is also complicated by the degree of uncertainty in the likelihood of a particular result. Did the given act inevitably lead to the result the foresight of which is attributed to a perpetrator, or may be that result was only one of several possible consequences of the act concerned? Furthermore, for the purpose of criminal responsibility, foresight is never taken separately, but only in connection with intent or recklessness. Indeed, foresight of particular consequences is very important for determination that a person acted or abstained from acting intentionally or recklessly. From this point of view, it is somewhat strange that article 30 defined both knowledge and intent in terms of ‘awareness that a consequence will occur in the ordinary course of events’. Since recklessness seems to have been rejected as a basis of responsibility under the Statute (and, at least in the Elements, none of the drafting leaves this as a possibility) then the appropriate standard (knowledge) involves foresight of a near certainty – awareness that it *will occur* in the ordinary course of events.
- 29 **dd) Intent as to conduct and consequences.** Knowledge about the attendant circumstances is, of course, very important. But for quite a number of crimes within the jurisdiction of the ICC it is not sufficient that a person merely be aware of what conduct he or she is engaged in. The statutory definitions of those crimes clearly provide that there must be some kind of intent. The concept of intent is also complex. It has, as defined in article 30 para. 2, two contextual meanings: one is related to conduct, another – to a consequence. It follows from this that, whenever a crime is conceived of as including both conduct and harmful result, it has to be proved before the Court that a person acted or abstained from acting intentionally and that the result in question was also intended. If the concept of a crime does not encompass harm, then it is enough to prove that an act or omission was intended. It is not required, it should be noted, that a person specifically intends to commit ‘a crime’. If it is proved that he or she was acting intentionally in respect of conduct of a consequence or knowingly in respect of a circumstance, then it becomes irrelevant whether a perpetrator was aware of criminal nature of the conduct concerned, unless there exist situations provided for in articles 32 and 33 para. 1 (a), (b) and (c)⁸⁶.
- 30 **ee) Knowledge and the causation puzzle.** In addition, it should be noted that intent also provides, to some extent, a solution to the puzzling issue of causation, considered above. That is to say that, when it is proved that a person, engaged in criminal conduct, intended the occurrence of a particular harmful result, that result can be said to be caused by him or her.

concerned creates a risk of the forces becoming uncontrolled. Uncontrolled armed forces, in their turn, are potentially capable of committing crimes.

⁸⁶ A full appreciation of intent and knowledge requires an understanding of how mistakes of fact and law amount to a denial of the relevant mental element. Articles 32 and 33 present potential grounds for the exclusion of responsibility related in particular to knowledge in respect of circumstance elements. For the different approaches to the exceedingly difficult questions of mistake of law in this context, see Triffterer, *Article 32*, this Commentary, and Clark (2001) 12 CLF 308 *et seq.* See also note 73 concerning elements involving a ‘value judgement’.

Thus, for instance, if a person, who is in charge of providing medical care to wounded, intentionally deprives them of it in the knowledge that such a deprivation will inevitably lead to their death, then, for the purpose of criminal responsibility, the conduct concerned can be regarded as the cause of the harmful result in question. This is so, even though it may be quite appropriate to regard another cause as also relevant, such as a particular physical act or series of acts – a shooting or shootings for instance.

2. ‘shall assist’

It has been mentioned that the text of article 9 reflects the political compromise reached at the very end of the Rome Conference. The phrase ‘shall assist’ is one of the results of that compromise. It substituted for the previously proposed wording. Indeed, during the Rome Conference it was suggested that elements of crimes ‘shall be applied by the Court in reaching determinations as to guilt’⁸⁷. Undoubtedly, ‘shall be applied’ is much stricter wording than ‘shall assist in application’. It implies that annexed elements of crimes are as binding as the main provisions of the *Rome Statute*, that the Court has very narrow discretion, if at all, concerning application thereof, and that the definitions of crimes are not certain enough to be applied as such⁸⁸. From this point of view, the phrase ‘shall assist in application’ is quite flexible. It connotes that it is the definitions of crimes, first of all, that are to be applied, that the Court does have, to a reasonable extent, discretion in the interpretation thereof, and that the binding force of the statutory definitions of crimes and annexed elements is hardly the same.

3. ‘interpretation and application’

It has long become common to a considerable number of jurists to think that the process of adjudicating is composed of three stages: first, finding or choosing a particular rule to be applied; second, interpreting the found or chosen rule; third, applying the interpreted rule. Such mode of thinking is largely formed by the positivistic, in particular extreme versions of analytical jurisprudence. It conceives law as a logically complete system of rules that provide all possible and correct answers to individual cases. Furthermore, and as far as logic is concerned, the concept of judicial process is definitely affected by the syllogistic pattern of reasoning. This is to say that, all a judge has to do, according to such a conception, is to deduce a particular conclusion from the two given premises. The simplest way of describing this process is the following:

- Rule ‘R’ provides that a certain type of conduct is a crime (major premise);
- A person ‘A’ had been engaged in that type of conduct (minor premise);
- ‘A’ has committed a crime; or, ‘A’ is a criminal (conclusion).

This, it has to be said, is too much simplistic a conception. First of all, a judge never starts from the major premise. What is done at the beginning of the process of adjudication is an examination of a particular factual situation brought before the Court. A judge must be convinced that all necessary evidence has been duly scrutinized before he or she could decide whether the conduct in question is a crime. Furthermore, it is not always *prima facie* clear which provision is to be applied to a given case. Is, for instance, forced castration or

⁸⁷ See UN Doc A/CONF.183/C.1/L.69; also UN Doc A/CONF.183/C.1/L.8.

⁸⁸ These considerations, *inter alia*, encouraged a number of delegations during the Diplomatic Conference to oppose the elaboration of elements of crimes with a view of their being annexed to the Statute. It is also worth considering, how the very idea of elaboration of elements of crimes corresponds to the requirements for necessary qualifications that candidates for election to the Court ought to meet (see article 36 para. 3 (b) of the *Rome Statute*). After all, those who meet those requirements are not lay people or soldiers in the field, who need be clearly instructed of what they are allowed or not allowed to do. Nor is a criminal statute a military manual. On the other hand, probably the main proponents of drafting elements were the military members of the United States delegation. For them, the paradigm of elements seems to have been (not unreasonably) military manuals. Their concern, in particular, was for articulating clear rules for soldiers and they were more concerned with the material than the mental elements.

sterilization a war crime, as defined in article 8 para. 2 (b) (x) and (e) (xi), or a crime against humanity, as defined in article 7 para. 1 (g), or a crime of genocide, as defined in article 6 para. d? Indeed, the reasoning process is not as one that has been described above. But nor is it totally contrary to it. The two premises are interrelated. Examination of facts and choosing a rule to be applied constitute a harmonic process and cannot be separated⁸⁹. Moreover, since any rule is to an extent vague, the contextual interpretation thereof is unavoidable⁹⁰. For this, judges do use discretion. It is wrong to think that discretion in application is used only when a case is hard, *i. e.* when it is not clear whether it falls under any legal provision. Given the constant changes that take place in circumstances, it is even necessary to keep the law flexible so that it can be easily adapted to new situations⁹¹. Of course, criminal law provisions may not be interpreted to the detriment of an accused and extended by analogy⁹². But this is not to be understood as prohibition of developing law by judges. Thus, the very Statute allows the ICC to ‘apply principles and rules of law as interpreted in its previous decisions’⁹³. Furthermore, as the European Commission of Human Rights held in one of its decisions:

‘... constituent elements of an offence such as e.g. the particular form of culpability required for its completion may not be essentially changed, at least not to the detriment of the accused, by the case law of courts. On the other hand, it is not objectionable that existing elements of the offence are clarified and adapted to new circumstances which can reasonably be brought under the original concept of the offence’⁹⁴.

- 34 It follows from this passage that law-applying and law-developing are to a considerable extent interrelated. Indeed, application of law, including criminal law, is a creative rather than a mechanical process. That detailed rules are easy to be applied is true only with regard to simple cases. For hard cases, detailed rules are unhelpful. Moreover, paradoxically, the more detailed rules are, the more cases are left uncovered by them⁹⁵. From this point of view, again, what weight is to be given to the Elements of Crimes? Obviously, they should not be treated as having the same binding force as the statutory definitions of crimes. They are to operate as guidance rather than rules⁹⁶.

4. Adoption

- 35 Article 9 provides that elements of crimes ‘shall be adopted by a two-thirds majority of the members of the Assembly of States Parties’. This provision should be read within the context of Annex I (F) (5) (b) to the Final Act⁹⁷ and article 112 para. 2 (a). In the first mentioned document it has been provided that elements of crimes shall be drafted by the Preparatory Commission. It should be noted, however, that during the Preparatory Committee’s sessions it was once proposed that elements of crimes be elaborated by absolute majority of judges, provided that elements so elaborated did not create any new crime. Elements elaborated by

⁸⁹ Dewey (1924) 10 *CornellLQ* 17.

⁹⁰ By ‘contextual interpretation’ here is meant that an interpreting authority must take into account the context to which a rule is applied. It does not refer to any particular rule of interpretation, such as the ‘mischief rule’.

⁹¹ ‘... the law must be able to keep pace with changing circumstances’, note 8, *Sunday Times v. UK*. (Notice again the different meaning of ‘circumstances’ in this statement from its meaning in article 30 of the *Rome Statute*. See note 65).

⁹² See *Rome Statute* article 22 para. 2.

⁹³ See *Rome Statute* article 21 para. 2.

⁹⁴ See *Gay News & Lemon v. UK*, Vol. 28, D. R. 77, para. 9.

⁹⁵ ‘As the relations with which the law must deal become more numerous and situations calling for legal treatment become more complicated, it is no longer possible to have a simple, definite, detailed rule for every sort of case that can come before a tribunal ...’; Pound, *An Introduction to the Philosophy of Law* (1951) 77.

⁹⁶ It should perhaps be noted that the words ‘interpretation and application’ which appear in this article and in article 119, the dispute settlement provision in the Statute, are common words in compromissory clauses of treaties. As such, they carry much interpretative baggage. See generally the useful discussion in Judge Higgins’s Separate Opinion in *Oil Platforms (Iran v. U.S.)*, Preliminary Objection, 1996 *ICJ* 847.

⁹⁷ For the Final Act see note 1.

the Court were supposed to be subject to further approval by States Parties. It was also suggested that elements not yet approved might provisionally be applied by the Court prior to their approval, but an element not approved should lapse after all⁹⁸. Later, at the Rome Conference, it was proposed that elements of crimes be adopted by the Preparatory Commission itself⁹⁹. But some delegations considered that the proposal gave too much competence to the Preparatory Commission and that it could lead to the practice of international legislating beyond the consent of sovereign States. It was therefore decided, for the sake of compromise, to entrust it to the Assembly of States Parties. The Preparatory Commission could only recommend draft elements of crimes for adoption. It is the Assembly of States Parties which had the final say in this issue, although it in fact adopted the Preparatory Commission's language unchanged¹⁰⁰.

According to article 9, for elements of crimes to be adopted, the decision ought to be reached by a two-thirds majority of the members of the Assembly of States Parties. This provision is to be kept in contrast to the one stipulated in article 112 para. 7 (a) which says that, unless a consensus can be reached, 'decisions on matters of substance must be approved by a two-thirds majority of those present and voting provided that an absolute majority of States Parties constitute the quorum for voting'. It is clear from the text of article 9 that there must be a two-thirds majority of the total number of the members of the Assembly of States Parties, not just of those taking part in voting, in order that elements of crimes be adopted.

In actual practice, the Assembly of States Parties adopted the Elements at its first meeting by consensus, exactly as they came from the Preparatory Commission with no attempt to improve upon that body's efforts¹⁰¹.

II. Paragraph 2

1. 'Amendments to the Elements ...'

Paragraph 2 of article 9 deals with procedural aspects of amendments to the elements of crimes, *i. e.* subjects entitled to propose them and their adoption. It provides that amendments to the elements of crimes shall be adopted by a two-thirds majority of the members of the Assembly of States Parties. As is seen, the rule of adoption of amendments to the elements is identical to the one of adoption of the very elements of crimes. But there are some substantial issues which do not seem to be evidently easy to resolve. Thus, for instance, why have such a strict rule of amending the elements? Does it not treat amendments to the elements of crimes as a matter of subsequent legislation? To what extent, if at all, has the Court discretion in developing the original elements of crimes? What if amendments significantly changed the elements? What, then, about cases previously adjudicated by the Court? How is the Court to decide a case before it, if the elements were amended during the trial? Of course, one can say that such a strict rule of amending the elements is necessary in order to keep them consistent with the principle of *nullum crimen sine lege* and also reflect the consent of sovereign States, that amending the elements is, indeed, a matter of legislation, that the Court is to apply the law as it is and not to develop it, let alone the creation thereof, that the amended elements are subject to the principle of *lex posterior derogat legi priori*, if new elements are more favourable to the person being investigated, prosecuted or convicted, and to the principle of *lex ad praeteriam non valet*, if new elements are to the detriment of him or her.

There is hardly any reasonable argument that could be put forward against these considerations, except for the one that concerns the role of courts in developing law. But

⁹⁸ For the details of the proposal see Zutphen Draft, p. 50.

⁹⁹ The proposal submitted by the delegation of the U.S. of America. See UN Doc A/CONF.183/C.1/L.69.

¹⁰⁰ See *Rome Statute* article 112 para. 2 (a).

¹⁰¹ Doc. ICC-ASP/1/3, para. 22 (2002). The Elements of the Crime of Aggression were likewise adopted by consensus at the Kampala Review Conference.

the difficulty is one of the reasonableness of having at all such a provision included into the Statute, its interpretation within the context of other provisions thereof, and the legal force of elements and amendments thereto. Does such a strict rule of adopting and amending the elements give to the latter the same binding force as the statutory definitions of crimes? Obviously not. This is clear also from the differences between the rules for amending the Statute itself and the rules for amending the Elements of Crimes. Are amendments to the Elements conceived of as changes in the original concepts of the crimes? Definitely not. Why, then, have such a rule? Why not leave it completely to the Court? Unfortunately, these questions are now rhetorical. None the less, it still does make sense to ask whether the Court may itself elaborate concrete elements of crimes and provisionally apply them on an *ad hoc* basis when questions arise that are not dealt with in the Elements as adopted (or in the Court's opinion dealt with wrongly), provided that the principle of *nullum crimen sine lege*, defined in article 22, is respected.

2. Subjects entitled to propose amendments

- 37 a) **Any State Party.** That any State Party to an international treaty may propose amendments thereto, is an elementary point, which derives from the principle of sovereign equality of States. All States Parties to an international treaty ought to have equal rights with regard to its concluding and amending. A treaty that disrespects this principle cannot be valid *ab initio*. Why only States Parties are entitled to propose amendments is also quite clear. According to the *pacta tertiis nec noscent prosunt* principle, States, not bound by an international treaty, are not entitled under it either. It has, however, be kept in mind that amendments to the Elements of Crimes are subject to a procedure very different from the one designed for amendments to the statutory provisions¹⁰².
- 38 b) **The judges.** Article 9 para. 2 provides that the judges acting by an absolute majority may also propose amendments to the Elements of Crimes. Provided that there are 18 judges of the Court¹⁰³, 10 of them shall constitute an absolute majority. The principal issues of the role of judges in developing law have been briefly considered above. It is somewhat regrettable that judges have not been expressly allowed to elaborate elements of crimes on a case by case basis. Instead, they would have to do what judges were in principle not supposed to do. They would have to draft amendments and then propose them to the Assembly of States Parties. The inconsistency of this task with judicial functions is evident. The judges would be supposed to draft in advance legal provisions which they would have to apply subsequently. One suspects that the judges will find a way simply to make rulings of law that they will avoid characterizing as being concerned with elements, thereby avoiding the theoretical complications in having them 'ratified' by the Assembly of States Parties.
- 39 c) **The Prosecutor.** That the Prosecutor also has been entitled to propose amendments to the elements of crimes is hardly surprising. After all, if judges may do that, why should not the Prosecutor? Furthermore, because the Prosecutor ought to investigate all facts and evidence relevant to an assessment of whether there is criminal responsibility, and, in doing so, investigate incriminating and exonerating circumstances equally¹⁰⁴, he or she is required to very well know what the constituent elements of crimes are. This requirement connotes knowing about changing circumstances in which crimes are committed. If the Prosecutor considers that, owing to the significantly changed circumstances, that were not previously intended to be covered by original elements of crimes, there is a need to criminalise particular aspects of human behaviour, he or she may initiate the amending process by

¹⁰² Note, however, that those amendments 'to provisions of an institutional nature' that fall within article 122 of the Statute are to be adopted by a very similar process to that provided for adopting and amending The Elements.

¹⁰³ According to article 36 para. 2 the number of judges can be increased, as well as reduced, but not below 18.

¹⁰⁴ *Rome Statute*, article 54 para. 1 (a).

proposing to the Assembly of States Parties newly drafted elements. Moreover, the Prosecutor is probably in the best position to assess whether there are any shortcomings or gaps in the law to be applied. Needless to say there are some limits on the extent to which the Assembly of States Parties can interpret or re-interpret the meaning of the definitions in the Statute for the benefit of the judges or the Prosecutor by re-examining The Elements. At some point, an amendment to the Statute itself would become necessary. The Prosecutor has no formal power to recommend amendments to the Statute itself but would have to convince a State Party to do so¹⁰⁵.

III. Paragraph 3

Paragraph 3 of article 9 provides that ‘the elements of crimes and amendments thereto shall be consistent with [the] Statute’. This provision clearly means that the relation between the Statute and the annexed elements of crimes, as well as amendments thereto, is not subject to the *lex posterior derogat legi priori* principle. Furthermore, it follows that the statutory definitions of crimes rank higher than annexed elements thereof. Consequently, the principle to be applied here is *lex superior derogat legi inferiori*. It becomes much clearer when this provision is taken in the light of article 51 para. 5 related to the Rules of Procedure and Evidence. That article provides that ‘in the event of conflict between the Statute and the Rules of Procedure and Evidence, the Statute shall prevail – (emphasis added)’. So, it is for the Court to decide to what extent annexed elements of crimes and amendments thereto are consistent with the Statute¹⁰⁶. It also seems that the Court has the power of judicial review in respect of the former.

C. Special remarks: The juridical weight of the Elements of Crimes

Paragraph 1 of article 9 says that the Elements ‘shall assist’ the Court. Implicit in the notion of assistance is that sometimes the Elements will not be helpful – they may be unhelpful or just plain wrong and in such instances should be put aside by the Court. This conclusion is underscored by paragraph 3’s admonition that the Elements ‘shall be consistent with this Statute’. Reading the two paragraphs together, it is apparent that The Elements have less juridical weight than the Statute itself. The Court should, no doubt, give substantial deference to the conclusions of the Preparatory Commission and the Assembly of States Parties as to what the appropriate standards are. Ultimately, though, it is the Court’s call on whether what is promulgated in The Elements is consistent with the Statute itself (including the principles of interpretation contained in article 21 thereof).¹⁰⁷

¹⁰⁵ See Clark, *Article 121*, mn 6.

¹⁰⁶ It is this consideration, *inter alia*, that makes strange the provision entitling the Court to propose amendments to the elements of crimes.

¹⁰⁷ Note that, in terms of the dispute settlement provisions in article 119 of the *Rome Statute*, deciding upon the compatibility of a particular Element with the Statute will always arise in the consideration of a case involving a particular individual and therefore will inevitably be a matter ‘concerning the judicial functions of the Court’ and thus within its competence to decide. See Clark, *Article 119*, mn 11.

Article 10

Nothing in this Part shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than this Statute.

Literature: Acquaviva, G., 'Was a Residual Mechanism for International Criminal Tribunals Really Necessary?', (2011) 9 *JICJ* 789; Ambos, K., 'The Crime of Aggression after Kampala', (2010) 53 *GYbIL* 463; Arsanjani, M.H. and Reisman, W.M., 'The International Criminal Court and the Congo', in: L.N. Sadat and M.P. Scharf (eds.), *The Theory and Practice of International Criminal Law* (Martinus Nijhoff Publishers 2008) 325; Baughen, S., 'Holding Corporations to Account: Crafting ATS Suits in the UK?', (2013) 2 *BritJAmLS* 533; Bos, '1948–1998: The Universal Declaration of Human Rights and the Statute of the International Criminal Court' (1998–1999) 22 *FordhamILJ* 229; A. Chandrachasan, N., 'Continuing Relevance of Customary International Law in the Development of International Humanitarian Law', (2009) 21 (2) *SriLankaJIL* 55; Conforti, B. and Focarelli, C., *The Law and Practice of the United Nations* (Martinus Nijhoff Publishers 4th edition 2010); Denis, C., 'Critical Overview of the "Residual Functions" of the Mechanism and its Date of Commencement (including Transitional Arrangements)', (2011) 9 *JICJ* 819; Edwards, G.E., 'International Human Rights Law Challenges to the New International Criminal Court: The Search and Seizure Right to Privacy', (2001) 26 *Yale JIL* 323; Globke, C., *Die Auslieferung an den Internationalen Strafgerichtshof* (Mohr Siebeck 2009); Greenawalt, A.K.A., 'The Pluralism of International Criminal Law', (2011) 86 *IndLJ* 1063; Grover, L., *Interpreting Crimes in the Rome Statute of the International Criminal Court* (CUP 2014); *id.*, 'A Call to Arms: Fundamental Dilemmas Confronting the Interpretation of Crimes in the Rome Statute of the International Criminal Court', (2010) 21 *EJIL* 543; Heinsch, R., 'The Crime of Aggression After Kampala', (2010) 2 *GoJIL* 713; Heinze, A., *International Criminal Procedure and Disclosure* (Duncker & Humblot 2014); Heller, K., 'The Uncertain Legal Status of the Aggression Understandings', (2012) 10 *JICJ* 229; Krefß, C. *et al.*, 'Negotiating the Understandings on the crime of aggression', in: Barriga and Krefß (eds.), *The Trauwaux Préparatoires of the Crime of Aggression* (CUP 2012) 81; Lüders, B., *Die Strafbarkeit von Völkermord nach dem Römischen Statut für den Internationalen Strafgerichtshof* (BWV Berliner Wiss.-Verlag 2004); Kim, Y.S., *The International Criminal Court (A Commentary of the Rome Statute)* (Wisdom House 2003); Lyons, C.W., 'Ineffective Amnesty: The Legal Impact on Negotiating the End to Conflict', (2012) 47 *WakeForestLRev* 799; Mancini, M., 'A Brand New Definition for the Crime of Aggression', (2012) 81 *NJIL* 227; McDougall, C., *The Crime of Aggression under the Rome Statute of the ICC* (CUP 2013); Meyer, T., 'Codifying Custom', (2011–2012) 160 *UPaLRev* 995; Milanović, M., 'Is the Rome Statute Binding on Individuals?', (2011) 9 *JICJ* 25; Nabil Jurdi, N., 'The Domestic Prosecution of the Crime of Aggression After the International Criminal Court Review Conference', (2013) 14 *MelbJIL* 129; Olásolo, H., *Estudios de derecho penal internacional* (Instituto Nacional de Ciencias Penales 2010); Paust, J., 'The International Criminal Court Does Not Have Complete Jurisdiction Over Customary Crimes Against Humanity and War Crimes', (2009–2010) 43 *JohnMarshallLRev* 681; Pinto Soares, P., 'Positive Complementarity and the Law Enforcement Network', (2013) 46 *IsLRev* 320; Rayfuse, R., 'The Draft Code of Crimes against the Peace and Security of Mankind', (1997) 8 *CLF* 43; Sadat, L.N., 'Custom, Codification and Some Thoughts About the Relationship Between the Two', (1999–2000) 49 *DePaulLRev* 909; *id.*, *The International Criminal Court and the Transformation of International Law* (Transnational Publishers 2002); *id.*, 'Crimes Against Humanity in the Modern Age', (2013) 107 *AJIL* 334; Saif-Alden Wattad, M., 'The Rome Statute and Captain Planet', (2009) 19 *FordhamEnvtlLRev* 265; Sató, H., 'Modes of International Criminal Justice and General Principles of Criminal Responsibility', (2012) 4 *GoJIL* 765; *id.*, 'The Defense of Superior Orders in International Law', (2009) 9 *ICLRev* 117; Sheppard, D., 'The International Criminal Court and "Internationally Recognized Human Rights"', (2010) 10 *ICLRev* 43; Trahan, J., 'The Rome Statute's Amendment on the Crime of Aggression', (2011) 11 *ICLRev* 49; van der Vyver, J.D., 'Prosecuting the Crime of Aggression in the International Criminal Court', (2010–2011) 1 *NatSec&ArmedConflictLRev* 1; Young, R., 'Internationally Recognized Human Rights' Before the International Criminal Court', (2011) 60 *ICLQ* 189.

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A. General remarks: Drafting history and purpose

Article 10 is the only article in the Statute without a heading. This is due to the fact that early proposals left open the question of whether a comparable rule should be included in this Statute as a separate article or be placed in article 5, which at that time (partly as draft article 20) was already headed 'Crimes within the jurisdiction of the Court'¹. The Draft was nominated 'Y' with the note that it was 'relating to the part of the Statute dealing with the definition of crimes'². In addition, it was mentioned that '[a]rticle 21 paragraph 3 (*Nullum crimen sine lege*), and article 20 (Applicable law) deal with related issues'³.

At that time, the purpose of the draft was not to limit the further development of the recently established and increasingly recognized punishability of crimes under international law⁴; the mere fact that there was dispute over which of these crimes should fall under the jurisdiction of the Court and that a compromise may limit them to 'the most serious crimes of international concern' (article 1), should not bar their progressive development towards new crimes within this category nor raise the impression that the lack of an agreement about an international jurisdiction for certain crimes would mean that such crimes and their punishability directly under international law do not exist. At that stage, for instance, aggression was not included in article 5. The discussion touched the problem of whether a codification of international law should merely declare and systematize existing rules or also include 'progressive development'⁵. With regard to aggression the finally achieved compromise was, for example, the acknowledgement of such a crime and the acceptance of the jurisdiction of the Court over all its alternatives, but the exercise of the jurisdiction had been postponed by former article 5 para. 2 until 'a provision is adopted...defining the crime and setting out the conditions under which the Court shall exercise jurisdiction with respect to this crime'.

When the issue was finally decided at the end of the Rome Conference in favour of a separate article, no appropriate heading covering all aspects addressed was at hand. In addition, some participants hoped that article 10 of the Draft Statute⁶ might make way for the definition of aggression⁷, which is now provided for in article 8*bis*. According to this idea, article 9 of the Draft Statute⁸ could later be amended by article 10 Draft Statute as its new

¹ See also Arsanjani and Reisman, in: Sadat and Scharf (eds.), *Theory and Practice of ICL* (2008) 325, 333.

² See Report of the Preparatory Committee on the Establishment of an International Criminal Court, A/CONF.183/2/Add.1, 14 April 1998, p. 25; see also Bassiouni, *The Legislative History of the International Criminal Court*, ii (2005) 83–84; Bennouna, 'Article 10', in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article*, i (2012) 561.

³ Report of the Preparatory Committee on the Establishment of an International Criminal Court, A/CONF.183/2/Add.1, 14 April 1998, p. 25. The quoted sentences were repeated with the same wording, only referring to the old numbers for articles 20 and 21 from the Zutphen Draft; see Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, A/AC.249/1998/L.13, 4 February 1998, p. 32.

⁴ See also Arsanjani and Reisman, in: Sadat and Scharf (eds.), *Theory and Practice of ICL* (2008) 325, 333.

⁵ See article 15, ILC Statute, adopted by the General Assembly in resolution 174 (II) of 21 November 1947, as amended by resolutions 485 (V) of 12 December 1950, 984 (X) of 3 December 1955, 985 (X) of 3 December 1955 and 36/39 of 18 November 1981; see also Rayfuse (1997) 8 *CLF* 43, 78 *et seq.* In fact, while a majority of states where in favour of that clause, 'India and the United States supported the deletion of Article Y', see Kim, *International Criminal Court* (2003) 198.

⁶ Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute, article 10, which concerned the relationship between the U.N. Security Council and the International Criminal Court, in Bassiouni, *The Statute of the International Criminal Court* (1998) 132–133; Barriga and Kreß (eds.), *The Trauvaux Préparatoires of the Crime of Aggression* (2012), p. 251.

⁷ Cf. the 1998 Rome Summary Records (18 June) (excerpts), *inter alia* statement of Diaz Paniagua in Barriga and Kreß (eds.), *The Trauvaux Préparatoires of the Crime of Aggression* (2012), p. 263, para. 81 ('[...] the crime of aggression should be included in the Statute, but [...] the definition should be discussed in the context of article 10.'). Fadhil (Sudan) in *ibid.*, p. 266, para. 125; Hamdan (Lebanon) in *ibid.*, p. 267, para. 131.

⁸ Report of the Preparatory Committee on the Establishment of an International Criminal Court, Draft Statute, article 9, which was headed 'Acceptance of the jurisdiction of the Court', see Bassiouni, *The Statute of the International Criminal Court* (1998) 131.

paragraph 4 and then renamed number 10, while the definition of the crime of aggression and 'the conditions under which the Court shall exercise jurisdiction with respect to this crime' could be included in a new article 9.

Following years of intensive deliberations and preparatory work of the 'Special Working Group on the Crime of Aggression', the States Parties agreed on a definition of the crime of aggression, including special conditions for the exercise of its jurisdiction,⁹ at the first Review Conference of the ICC¹⁰. However, the view was expressed that article 8*bis* significantly departs from customary international law¹¹. As a result, an 'Understanding'¹², based on a U.S. proposal¹³, was added to the amendments to reiterate, recalling article 10, that those amendments must 'not be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than this Statute.'¹⁴ However, the legal status of these Understandings – and their legal value – remains unclear¹⁵. Since the Understandings are annexed to Resolution RC/Res. 6, they could not become part of the Rome Statute itself¹⁶. Some therefore doubt that they have any effect whatsoever, considering that article 21 does not refer to understandings as such¹⁷, and arguing that article 31 para. 2 VCLT is not applicable in these circumstances¹⁸. Be that as it may, even if Understandings had a bearing on the interpretation of the Rome Statute through a contextual interpretation¹⁹, it is unlikely that this is of any relevance with regard to Understanding 4, since it resembles article 10 to a large extent²⁰.

- 3 Earlier drafts for a Statute did not provide any rule comparable with what is now article 10²¹. Such a provision did not appear necessary or advisable whatsoever, since constant development and permanent improvement was somehow guaranteed by the sources of

⁹ Resolution RC/Res.6, The Crime of Aggression (28 June 2010). For a detailed analysis see Ambos, *Treatise on ICL II* (2014) 34 *et seq.*; Ambos (2010) 53 *GYbIL* 463 *et seq.*; Trahan (2011) 11 *ICLRev* 49, 49; van der Vyver (2010–2011) 1 *NatSec&ArmedConflictLRev* 1, 1; Mancini (2012) 81 *NJIL* 227.

¹⁰ For an analysis of the Review Conference see Ambos, *Treatise on ICL I* (2013) 34 *et seq.*

¹¹ RC/11, Annex III, Report of the Working Group on the Crime of Aggression, p. 47, para. 16 ('Furthermore, a view was expressed that the definition on aggression would not reflect customary international law and that this should be recognized in the understandings. Only the most serious forms of illegal use of force constituted aggression.'). See also Koh (Legal Adviser, U.S. Department of State), Statement at the Review Conference of the International Criminal Court, available at <<http://www.state.gov/s/l/releases/remarks/142665.htm>> accessed 24 May 2015.

¹² Annex III of Resolution RC/Res.6 contains seven 'Understandings regarding the amendments to the Rome Statute of the International Criminal Court on the crime of aggression', see in more detail Heller, (2012) 10 *JICJ* 229–248.

¹³ Trahan (2011) 11 *ICLRev* 49, 73–76. There is a certain irony in the fact that the US made this proposal, considering that it supported the deletion of article Y (being now article 10) at the Rome Conference, see Kim, *International Criminal Court* (2003) 198.

¹⁴ Review Conf. Res. RC/Res.6, ICC Doc. ICCASP-RC/11, Annex III, Understanding 4 (June 11, 2010); van der Vyver (2010–2011) 1 *NatSec&ArmedConflictLRev* 1, 51.

¹⁵ See generally McDougall, *Aggression* (2013) 113 *et seq.*

¹⁶ McDougall, *Aggression* (2013) 113; Heller, (2012) 10 *JICJ* 229, 234 *et seq.*

¹⁷ Heinsch (2010) 2 *GoJIL* 713, 730; McDougall, *Aggression* (2013) 114.

¹⁸ Heller, (2012) 10 *JICJ* 229, 237 *et seq.*; Heinsch (2010) 2 *GoJIL* 713, 730; McDougall, *Aggression* (2013) 114 *et seq.*, who – however – is in favour of applying article 32 para. 1 VCLT, see *ibid.* at 117 *et seq.*

¹⁹ A broad contextual interpretation would necessarily also have to take into account these 'Understandings'. A way to conduct such a contextual interpretation within the Rome Statute is described in Heinze, *International Criminal Procedure* (2014) 92 *et seq.*

²⁰ In the same vein Heller (2012) 10 *JICJ* 229, 232. It can be assumed, however, that the question about the legal value of Understanding 4 would have become more relevant if the U.S.A. had succeeded in adding a clause that went beyond the wording of article 10, reading: '[...] and shall not be interpreted as constituting a statement of the definition "crime of aggression" or "act of aggression" under customary international law.', see Krefß in: Barriga and Krefß (eds.), *The Trauwaux Préparatoires of the Crime of Aggression* (2012) 81, 93. This 'would have explicitly divorced the new treaty definition from existing customary international law' and was therefore opposed by a large number of delegations, see *ibid.*

²¹ See for the 1926 Bellot and ILA as well as the AIDP and the 1937 Draft Statute of the League of Nations, the 1951 Draft Code, Draft Statute and 1954 Draft Code Triffterer, 'Preliminary Remarks' (2008), mn 2 *et seq.* with further references. See also Bassiouni, *The Legislative History of the International Criminal Court*, ii (2005) 95, where no other drafts are mentioned.

international law as mentioned in article 38 ICJ Statute. It was important to leave all doors open for establishing a most effective direct enforcement model as soon as possible²². Examples for such a development are, for instance, the Genocide Convention 1948²³ and the Geneva Conventions 1949²⁴. Genocide had been experienced in the Second World War in all its cruel appearances. But all endeavours to include political and cultural groups and thus to broaden the scope of genocide in these directions were unsuccessful²⁵. However, it was not questioned that former codifications of the definition of war crimes could *not* bar the amendments to that definition introduced by the Add. Prot. I and II 1977²⁶, since this progressive development was independent from the source of international law²⁷. Moreover, both the Conventions against Apartheid²⁸ and Torture²⁹ show that there was and still is an open development in that regard. Accordingly, the renewed mandate of the ILC in 1981³⁰ concerning the Draft Code has been extended to 'take into account' the progressive development of international law since 1954³¹.

The Statutes for the ICTY and the ICTR are without a corresponding regulation. At that time, it appeared self-evident that the jurisdiction of both *ad hoc* Tribunals, limited to certain criminological appearances restricted by a time period and under territorial aspects, as expressed in common article 1 of the ICTY and of the ICTR Statute, could neither bar the interpretation of the existing international law beyond their limited aims nor prejudice its future development.

However, once the Preparatory Committee was charged with drafting 'a widely acceptable consolidated text of a convention'³², it was considered more important to find possibilities for a compromise than to strive for a perfect solution in one or the other direction – even at that early stage of the drafting process.

²² For the legal possibilities within the ILC see, for instance, Rayfuse (1997) 8 *CLF* 43, 43 *et seq.* with further references; Ambos, *Treatise on ICL I* (2013) 16 *et seq.*, and in general for international criminal law Triffterer, 'Preliminary Remarks' (2008), mn 14 *et seq.* Prior to the 'resurrection' of the ICC project in 1989, there was 'little law and even fewer mechanisms to enforce the three "core" crimes deemed most heinous of all at Nuremberg', see Sadat (1999–2000) 49 *DePaullRev* 909, 909.

²³ Convention on the Prevention and Punishment of the Crime of Genocide, 9 December 1948, 78 UNTS 277, which came into force on 12 January 1951. See Ambos, *Treatise on ICL I* (2013) 10.

²⁴ In more detail, see Ambos, *Treatise on ICL I* (2013) 11 *et seq.*

²⁵ Cf. Schabas, 'Article 6', in this volume, mn 16.

²⁶ Cf. Cottier, 'Article 8', in this volume, mn 7, 11, 17.

²⁷ Cottier, 'Article 8', in this volume, mn 7 ('The main sources of this IHL branch are the four Geneva Conventions of 1949 as well as the two Additional Protocols of 1977 and customary international law, which is of popular relevance with regard to the law applicable to non-international armed conflicts.', fn. omitted); Chandrasaran (2009) 21 *Sri Lanka JIL* 55, 61 ('The Additional Protocols 1 & 11 of 1977, further codified and developed existing customary rules relating to international armed conflict and to a lesser extent non international armed conflict.'). Even the 1907 Hague Convention on Laws and Customs of War contained a clause that read: 'The provisions contained in the Regulations referred to in Article 1, as well as in the present Convention, do not apply except between Contracting Powers, and then only if all the belligerents are parties to the Convention.', see Convention Respecting the Laws and Customs of War on Land, 18 October 1907, article 2; see also Meyer (2011–2012) 160 *UPaLRev* 995, 1040.

²⁸ Apartheid was declared a crime against humanity in a series of international instruments, from the Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes against Humanity (GA Res. 2391 (XXIII) of 26 November 1968, entered into force 11 November 1970. See article 1(b): '[...] and inhuman acts resulting from the policy of apartheid [...]') to the International Convention on the Suppression and Punishment of the Crime of Apartheid (GA Res. 3068 (XXVIII)), 28 UN GAOR Supp. (No. 30) at 75, UN Doc.A/9030 (1974), 1015 UNTS 243, entered into force 18 July 1976. See article 1(1): 'The States Parties to the present Convention declare that apartheid is a crime against humanity [...]'. See generally Ambos, *Treatise on ICL II* (2014) 113 *et seq.*

²⁹ Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (GA Res. 39/46 of 10 December 1984, entered into force 26 June 1987).

³⁰ GA Res. 36/106, 10 December 1981; also in *YbILC* 1983 II 2, 12 *et seq.*; 1984 II 2, 9 *et seq.*; 1985 II 2, 9 *et seq.*

³¹ See GA Res. 36/106 in *UNYbILC* 1983 II 2, 12, para. 38 ('[...] taking duly into account the results achieved by the process of the progressive development of international law; [...]').

³² See GA Res. [on the report of the Sixth Committee (A/51/627)], UN Doc.A/RES/51/207 of 16 January 1997 (emphasis added), available at <<http://www.un.org/ga/documents/gares51/ga51-207.htm>> accessed 19 February 2015.

This attitude was confirmed by the fact that on 15 December 1997 the General Assembly adopted Resolution 52/160³³ (without a voting), in which it mandated the Diplomatic Conference to finalize and adopt a *convention* on the establishment of an international criminal court³⁴. It recognized ‘the importance of concluding the work of the conference through the promotion of *general agreement* on matters of substance’³⁵. The precondition of such an agreement was, of course, that this progressive development could not be barred by any target or result.³⁶ This precondition seems to be without an alternative from both a theoretical and practical point of view: New conventions may be created on the subject matter and other aspects and the laws and customs of war may do the same within their respective legal framework.

- 5 The Rome Statute itself is the best example of the fact that elements of crimes may be codified, thereby providing more detailed guidance on the interpretation of crimes than it has been the case with earlier codifications. This becomes self-evident comparing the definitions in the Statutes of the ICTY and the ICTR with those contained in the Rome Statute, for example with regard to ‘other inhumane acts’ as crimes against humanity: Unlike the rather general reference to ‘other inhumane acts’ in the Statutes of the *ad hoc* Tribunals, article 7 para. 1 (k) of the Rome Statute defines these acts in more specific terms³⁷.
- 6 Against this background the purpose of article 10 appears as a kind of ‘reservation clause’³⁸, as it is contained in the Statute notwithstanding article 120, according to which ‘[n]o reservations may be made to this Statute’, for instance in article 124 with regard to war crimes for a period of seven years. Article 10 clarifies that all articles in Part 2 are limited to the purpose of building an agreement between the States Parties and shall have no binding effect going beyond the subject matter and the scope of the Statute and the Party’s agreements. This means that States are bound, for instance, by the definitions of crimes, as contained in articles 6–8, when exercising their national jurisdiction on behalf of the international community as a whole over crimes falling within the jurisdiction of the Court and also when cooperating (vertically) with the Court, which is exercising its complementary jurisdiction. But otherwise, with regard to their (merely) internal *ius puniendi* over other crimes under international law and cooperation on the horizontal level with other states, they are free to decide scope and notion of these issues. With regard to the introduction of article 8bis, article 10 and Understanding 4³⁹ have the effect that the amendments should not be interpreted as creating the right or obligation to exercise domestic jurisdiction with respect to an act of aggression committed by another State⁴⁰.

³³ See GA RES/52/160 [on the report of the Sixth Committee (A/52/651)], 15 December 1997, available at <http://www.un.org/en/ga/search/view_doc.asp?symbol=A/RES/52/160> accessed 24 May 2015.

³⁴ See also Report of the Preparatory Committee on the Establishment of an International Criminal Court, Introduction and Draft Organization of Work, UN Doc. A/Conf.183/2 (1998), paras. 6 *et seq.*, available at <http://www.legal-tools.org/uploads/tx_ltpdb/doc18476.pdf> accessed 24 May 2015.

³⁵ See GA RES/52/160 [on the report of the Sixth Committee (A/52/651)], 15 December 1997, p. 1 (emphasis added), available at <http://www.un.org/en/ga/search/view_doc.asp?symbol=A/RES/52/160> accessed 24 May 2015.

³⁶ See also Grover, *Interpreting Crimes in the Rome Statute of the International Criminal Court* (2014) 265.

³⁷ With regard to the lack of precision of that category, see, e.g., *Prosecutor v. Kupreškić*, No. IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, para. 563. With regard to ‘other inhumane acts’ having a different scope than its antecedents like the Nuremberg Charter and the ICTR and ICTY Statutes, see *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the confirmation of charges, PTC I, 30 September 2008, para. 450. For further references see Ambos, *Treatise on ICL II* (2014) 114 *et seq.*

³⁸ It could also be labelled as a ‘preservation’ clause to preserve the ‘role of custom in the development of normative standards of conduct in the area of international criminal justice’, see Sadat, *ICC and Transformation of International Law* (2002) 263. In the same vein Satō (2009) 9 *ICLRev* 117, 136, or a ‘without prejudice clause’, see Grover, *Interpreting Crimes in the Rome Statute of the International Criminal Court* (2014) 264, 265.

³⁹ Annex III of Resolution RC/Res.6.

⁴⁰ Review Conference of the Rome Statute, International Criminal Court, Non-Paper by the Chair: Further Elements for a Solution on the Crime of Aggression, ICC Doc RC/WGCA/2 (25 May 2010) [4]; Nabil Jurdi (2013) 14 *MelbJIL* 129, 138–140.

The ‘reservation’ in article 10 appears to be understandable, since codifications like the Rome Statute have advantages and disadvantages⁴¹. The advantage is that both the provisions and especially elements of crimes are more precise than they *usually* are when defined by the laws and customs of war or other customary international law. A codification increases certainty and awareness of prohibitions and thereby vindicates the rule of law and the possibility of achieving a preventive effect⁴². However, the Rome Statute illustrates very clearly that its articles represent a *minimum* amount of consent in many aspects. States thus shape international law by codifying parts of the unwritten rules on the subject. -The purpose of article 10 is *first*, to avoid the impression that what has thus been codified is the only possible interpretation or a reflection of the minimum consent in the community of nations as a whole and *second*, to guard against these impressions being used to thwart the future development of international law outside the Statute⁴³. The Statute thus expresses what is in any event accepted in international law. ‘Nothing in this Part (therefore) shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than (which means not laid down in) this Statute’ (brackets added).

Up to the last minute and during the Rome Conference, it was proposed to include the draft, headed ‘Y’,⁴⁴ in article 5, ‘since it [article 10] applies to all (at that time only) three crimes within the Court’s jurisdiction’ and was not only applicable within the context of war crimes⁴⁵. When aggression was included at the last minute of the Rome Conference – with the two conditions described in former article 5 para. 2 – the need to leave open additional interpretation and development had increased still further.

B. Analysis and interpretation of elements

Article 10 is construed differently compared to all other articles in the Statute, combining two elements of legal drafting: With regard to all articles in Part 2 – in which article 10 is situated approximately in the middle – it first presupposes a permissible interpretation (as also mentioned in article 9) of these articles and, second, prescribes that this interpretation shall have no ‘limiting or prejudicing’ effect on ‘existing or developing rules of international law for the purposes other than this Statute’⁴⁶, which means *outside* the Statute on the national and the international level.

I. Subject matters

The scope of article 10 includes and combines three subject matters with regard to which it provides an exception at the end.

1. Articles and rules ‘in this Part’

The introductory wording refers to Part 2 as a whole, *scil.* articles 5–21 inclusive. ‘Nothing in this Part’ comprehends each provision and rule within these articles. The restriction to Part 2 reflects the result of the drafting process: Even the original idea of including what is

⁴¹ In more detail Grover (2010) 21 *EJIL* 543, 570.

⁴² See, for instance, Olásolo, *Estudios de derecho penal internacional* (2010) 61 *et seq.*; Grover (2010) 21 *EJIL* 543, 570 with further references. About ‘legal certainty’ as a goal of codification Heinze, *International Criminal Procedure* (2014) 107 *et seq.* with further references.

⁴³ In the same vein Sató (2009) 9 *ICLRev* 117, 136.

⁴⁴ In more detail Schabas, *The International Criminal Court* (2010) 269.

⁴⁵ Bassiouni and Wexler, *Model Draft Statute for the International Criminal Court*, 13ter NEP (1998) 4, brackets added; Sadat (1999–2000) 49 *DePaulLRev* 909, 917.

⁴⁶ About the phrase ‘[f]or the purpose of this Statute’ in other articles of the Rome Statute see Paust (2009–2010) 43 *JohnMarshallLRev* 681, 682.

now article 10 in a paragraph of article 5 involved a reference to both article 5 itself and the following articles providing for definitions of the crimes listed in article 5. This proposal extended to the case the draft called 'Y' should be situated as a separate article in this part.

As previously mentioned, during the drafting process, Part 2 was headed only 'crimes within the jurisdiction of the Court', which listed not only definitions of crimes but also more or less comprehensive regulations for the exercise of the jurisdiction of the Court. Part 2 is now more comprehensively named 'Jurisdiction, admissibility and applicable law' and contains much more detailed regulations on the subject matter than the original one in the drafting process. This extension was necessary, because Part 2 contains two of the most difficult compromises achieved at the Rome Conference, first on the question of complementarity and second on trigger mechanisms.

Compromises necessarily result in the parties giving up parts of their original demands. Against this background it becomes clear why the mutual concessions that were made to achieve the compromise were limited to the original motivating purpose as far as possible: to establish the ICC and not destroy the hope of the community of nations that its basic legal values would be protected by an international criminal jurisdiction inherent to this community. This compromise can therefore not be applied to law *outside* the Statute by interpreting the rules of Part 2 as 'limiting or prejudicing in any way existing or developing rules of international law'. The aim was to leave space for a 'limiting or prejudicing' internal interpretation of Part 2 but to exclude its effect beyond the scope of this Statute. In particular, the compromises regulated in Part 2 shall not bar the development 'outside' the Statute.

- 12 Article 10 expresses no opinion on the interpretation of articles and rules in other Parts of the Rome Statute. Its applicability is rather limited to Part 2. Nevertheless, the drafting process of the provision indicates that a limiting or prejudicing interpretation of all those articles outside Part 2, which were adopted as a compromise or describe a *status quo*, should equally not bar the interpretation of 'existing or developing rules of international law for purposes other than this Statute'⁴⁷. This applies, for instance, to article 25, which covers – together with all other articles in Part 3 – only some of the general principles of criminal law that have to be applied by the ICC in accordance with article 21⁴⁸. Thus, article 10 can be viewed as generally rejecting the provisions of the Rome Statute to be universally binding law and was even used for an attempt to argue against the influence of the Rome Statute on the 'jurisprudence of other courts applying ICL'⁴⁹.

International cooperation and judicial assistance, described in Part 9, may also need additional regulations to guarantee the most effective prevention of crimes under international criminal law and to exclude impunity for abuses of power. The very structure of the Rome Statute as a convention between the States Parties supports this notion. States Parties to the Rome Statute can only agree upon a limiting and prejudicing interpretation 'within the jurisdiction of the Court' and within the boundaries of the Statute, notwithstanding the Statute's actual influence on the evolution of ICL by establishing minimum rules of conduct.⁵⁰

Amendments and Review Conferences have, therefore, a limited power to change the law for internal purposes. They may, but they not necessarily have binding effect, for example, on present and future regional *ad hoc* Tribunals, when they interpret the Statute in a certain dimension.

⁴⁷ In the same vein Satō (2012) 4 *GoJIL* 765, 796.

⁴⁸ See also Milanović (2011) 9 *JICJ* 25, 30. Crit. Baughen (2013) 2 *BritJAmLS* 533, 546 with fn. 77.

⁴⁹ Greenawalt (2011) 86 *IndLJ* 1063, 1108: 'If the Rome Statute happens to fill some gaps in substantive ICL primarily for the convenience of agreeing on a single approach for purposes of the ICC's own jurisprudence, then there is no particular reason why the ICC's approach should dictate the jurisprudence of other courts applying ICL.' This view, however, disregards the actual influence of the Rome Statute on the evolution of international law and serves as an illustrating example that article 10 can be read in two ways, which will be elaborated in more detail below (mn 16).

⁵⁰ See mn 16.

2. Scope of international law concerned: 'existing or developing rules'

The scope of the formulation 'existing or developing rules of international law' covers the whole legal order of the community of nations, whatever rules belonging to this field are addressed. Although there is no explicit reference to customary international law, it nevertheless is 'the thrust of the text'⁵¹. Thus, article 10 is to be read as a reminder that the Part 2 provisions cannot be invoked to narrow or otherwise negatively affect existing or developing customary rules. This being said, it seems that in some instances the Statute 'arguably goes beyond customary law'⁵². The introduced article 8*bis*, for instance, may help broaden the scope of application of the existing customary rule on the crime of aggression⁵³. This is an illustrating example that the Rome Statute and the amendments to it will eventually influence the evolution of customary international law⁵⁴.

Since international criminal law is part of international law insofar as that term comprehends the legal order of the community of nations, it is also concerned with the law of immunities and privileges, that may develop differently from what is now generally accepted or agreed upon by the States Parties to the Statute⁵⁵. The question becomes vital with regard to article 27 and the draft articles on State responsibility; the latter were adopted by the ILC at its 53rd session (2001)⁵⁶.

Even though the individual criminal responsibility is regulated outside Part 2, the relevant article 25 refers in paragraph 4 expressly to the fact that 'no provision in this Statute relating to individual criminal responsibility should affect the responsibility of States under international law'. This confirms that the interpretation of articles and rules of Part 2 cannot bar such a development or claim to be obeyed as a binding guideline. Of course, it is up to the progressively developing process concerning international law to consider the jurisprudence of the ICC in the same manner as is already done with regard to the ICTY and the ICTR. Theoretically, the development of changes in humanitarian law, for instance defining new crimes against humanity – not yet falling within the jurisdiction of the Court –, cannot be blocked by the Statute. However, from a practical point of view, it can be expected that on subject matters the Statute deals with in a compromising way, such a (progressive) development outside the possibilities provided for by review or an amendment of the Statute appears improbable.

⁵¹ Schabas, *The International Criminal Court* (2010) 270. In the same vein Satō (2009) 9 *ICLRev* 117, 136 ('This provision might be significant in enabling some "vacuum" of customary international law to be preserved consciously.').; Saif-Alden Wattad (2009) 19 *FordhamEnvtlLRev* 265, 270 with fn. 26; Globke, *Auslieferung* (2009) 302. For a more differentiated view see Milanović (2011) 9 *JICJ* 25, 30 ('The point of this article is obviously to divorce the Statute from customary law, although this is not necessarily fatal to the jurisdictional reading of the Statute.').

⁵² Milanović (2011) 9 *JICJ* 25, 30; Grover (2010) 21 *EJIL* 543, 564 with further references.

⁵³ Mancini (2012) 81 *NJIL* 227, 246.

⁵⁴ Mancini (2012) 81 *NJIL* 227, 246.

⁵⁵ In 2011, the PTC I of the ICC found that there was no difference in that regard, see *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-139, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, PTC I, 12 December 2011, paras. 9 *et seq.*, 43 ('[T]he Chamber finds that customary international law creates an exception to Head of State immunity when international courts seek a Head of State's arrest for the commission of international crimes. There is no conflict between Malawi's obligations towards the Court and its obligations under customary international law; [...]'). See also *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-140-tENG, Decision pursuant to article 87(7) of the Rome Statute on the refusal of the Republic of Chad to comply with the cooperation requests issued by the Court with respect to the arrest and surrender of Omar Hassan Ahmad Al Bashir, PTC I, 13 December 2011, para. 13. For a general analysis see Werle and Jessberger, *Principles of International Criminal Law* (2014) 270 *et seq.*, 277 with further references; Ambos, *Treatise on ICL I* (2013) 406 *et seq.*, 413.

⁵⁶ The Commission has dealt with this topic on its 51st Session in Geneva, 3 May–23 July 1999; see GA Res. 53/102 (9 Dec. 1998). See in more detail Triffterer/Burchard, 'Article 27', in *this volume*, mn 11 *et seq.*

3. Interpretation ‘limiting or prejudicing in any way’

- 14 This element concerns the interpretation of articles or rules contained in this Part in a certain way. The provision precludes only an interpretation which is ‘*limiting or prejudicing in any way*’. A ‘*limiting*’ interpretation is narrowing or thwarting the enlargement of the scope of what is regulated in an article or rule of the Statute⁵⁷. ‘*Prejudicing*’ includes both possibilities, making them a binding rule for future applications in the subject matter, which has already been dealt with under mn 13⁵⁸.
- 15 In that regard, the establishment of both the *ad hoc* and hybrid or ‘mixed’ Tribunals needs to be mentioned. Especially the hybrid or ‘mixed’ tribunals are Janus-faced in that regard: On the one hand, they are situated on site (except the STL), i. e. ‘where the crimes of their subject matter jurisdiction took place’⁵⁹. This ensures ‘a certain proximity to the local, crime-affected population’⁶⁰ and thereby contributes to the positive complementarity paradigm of the ICC⁶¹. On the other hand, the establishment of these tribunals, as well as Truth and Reconciliation Commissions, is not advisable after the ICC has come into operation and exercises its jurisdiction over the crimes in question⁶². Nevertheless, there may be exceptional circumstances, like for governments in transition, which make it preferable for the Security Council to establish an *ad hoc* Tribunal parallel to the ICC. This is particularly important with regard to *ad hoc* Tribunals for crimes committed outside the jurisdiction of the ICC. Thus, what is defined in article 17 para. 2 with regard to unwillingness will only be applicable to cases before the ICC and cannot be ‘interpreted as limiting or prejudicing in any way’ the law to be applied in cases before the ICTY and the ICTR (and the Mechanism for International Criminal Tribunals⁶³). The same is true for present or later established post-conflict institutions like the Truth and Reconciliation Commission or special hybrid courts, dealing with crimes under international law.

II. Interpretation ‘for purposes other than this Statute’

- 16 The formulation ‘for purposes other than this Statute’ implies that for purposes of the Statute every admissible interpretation of any article or rule may limit or prejudice the applicability of other ‘existing or developing rules’⁶⁴. For instance, article 9 provides for the development of *new* scope and notions of elements of crimes only as long as they are ‘consistent with this Statute’ in accordance with paragraph 3. Furthermore, the elements of crimes state at the end of each of the definitions of the specific forms of genocide: ‘The conduct took place in the context of a manifest pattern of similar conduct directed against

⁵⁷ Similarly Grover, *Interpreting Crimes in the Rome Statute of the International Criminal Court* (2014) 267 (‘The reference to “limiting” might be to the exclusion of some crimes under customary international law or retrogressive definitions of crimes in the Rome Statute’).

⁵⁸ See also Triffterer, ‘Preliminary Remarks’ (2008), mn 63.

⁵⁹ Ambos, *Treatise on ICL I* (2013) 51.

⁶⁰ Ambos, *Treatise on ICL I* (2013) 51.

⁶¹ For a definition see Review Conference, Resolution ICC-ASP/8/Res.9. In more detail see Pinto Soares (2013) 46 *ISLRev* 320 *et seq.*

⁶² In the same vein Wilmschurst, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 181, 199 with further references (‘It is to be expected that there would be opposition if the establishment of similar courts under the UN auspices were proposed in the future with jurisdiction coinciding with that of the ICC’).

⁶³ Established by SC Resolution 1966 (2010) of 22 December 2010. See <<http://www.unmict.org/en>> accessed 24 May 2015; Acquaviva (2011) 9 *JICJ* 789, 793; Denis (2011) 9 *JICJ* 819.

⁶⁴ See also Arsanjani and Reisman, in: Sadat and Scharf (eds.), *Theory and Practice of ICL* (2008) 325, 334 (‘While this may not exclude interpretations involving reasonable adaptation of a particular provision to specific circumstances, it would appear [...] to be a far cry from a general license to engage in extensive interpretation of the Statute’).

that group or was conduct that could itself effect such destruction'⁶⁵. This contextual element is not provided for in the wording of article 6 and has been rejected by both the *ad hoc* Tribunals⁶⁶ and the ICJ⁶⁷. Nevertheless, the Pre-Trial Chamber in Al Bashir affirmed the necessity of such an element, clarifying that only then the 'threat against the existence of the targeted group [...] becomes concrete and real, as opposed to just being latent and hypothetical'⁶⁸. For the Chamber, article 10 became 'meaningful insofar as it provides that the definition of the crimes in the Statute and the Elements of Crimes shall not be interpreted "as limiting or prejudicing in any way existing or developing rules of international law for purposes other than this Statute"'⁶⁹. As a result, the majority of the Pre-Trial Chamber considered that 'Elements of Crimes and the Rules must be applied unless the competent Chamber finds an irreconcilable contradiction between these documents on the one hand, and the Statute on the other hand'⁷⁰.

Another example is article 8 para. 3, which is in part phrased similarly to article 10. Especially with regard to this regulation, the purpose of article 10 becomes obvious: Whatever the development in international law with regard to article 2 para. 7 of the UN Charter may be⁷¹ – where the jurisdiction of the ICC is concerned, the approach authorized by article 8 para. 3 may be interpreted in a limiting or prejudicing way for the application of the Statute of the ICC, but not for the outside development of rules of international law concerning this subject matter.

Finally, in its decision authorizing the Prosecutor to proceed with an investigation in the Kenya situation, the majority of Pre-Trial Chamber II referred to the jurisprudence of other tribunals with regard to the element 'State or organizational policy' in Article 7 para. 2 (a)⁷². It did so with regard to, *inter alia*, the form and content of the 'policy' and the entity behind

⁶⁵ See Elements of Crimes, ICC-ASP/1/3, Article 6 (a)-4, 6 (b)-4, 6 (c)-5, 6 (d)-5, 6 (e)-7; Ambos, *Treatise on ICL II* (2014), 17; Schabas, *The International Criminal Court* (2010) 272.

⁶⁶ See *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-3, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, PTC I, 4 March 2009, paras. 117 *et seq.*; *Prosecutor v. Jelisić*, No. IT-95-10-A, Judgement, Appeals Chamber, 5 July 2001, para. 48; *Prosecutor v. Kayishema and Ruzindana*, No. ICTR-95-1-A, Judgement, Appeals Chamber, 1 June 2001, para. 138; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgement, Trial Chamber, 12 December 2012, para. 745.

⁶⁷ Cf. ICJ, *Bosnia and Herzegovina v. Yugoslavia*, Judgment, 26 February 2007, paras. 373 ('The *dolus specialis*, the specific intent to destroy the group in whole or in part, has to be convincingly shown by reference to particular circumstances, unless a general plan to that end can be convincingly demonstrated to exist; and for a pattern of conduct to be accepted as evidence of its existence, it would have to be such that it could only point to the existence of such intent.') and 376; see also Bennouna, 'Article 10', in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article*, i (2012) 565. The ICJ confirmed its view in *Croatia v. Serbia*, Judgment, 3 February 2015, para. 143 *et seq.* It also clarified, that the criterion applied by the ICTY Trial Chamber in the Judgment in the Tolimir case (see *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgement, Trial Chamber, 12 December 2012, para. 745) was 'in substance identical with that laid down by the Court in its 2007 Judgment', see para. 148.

⁶⁸ *Prosecutor v. Bashir*, ICC-02/05-01/09-3, 4 March 2009, para. 124. Drawing on the *telos* of article 6 to argue in favour of a contextual element Ambos, *Treatise on ICL II* (2014), 18.

⁶⁹ *Prosecutor v. Bashir*, ICC-02/05-01/09-3, 4 March 2009, para. 127.

⁷⁰ *Prosecutor v. Bashir*, ICC-02/05-01/09-3, 4 March 2009, para. 128. Accordingly, the context element may be regarded 'as part of the (subjective) offence definition, more concretely, the "intent to destroy" requirement, as its "carrier" or "holder"', see Ambos, *Treatise on ICL II* (2014), 18; Lüders, *Völkermord* (2004), 93 *et seq.*

⁷¹ The non-intervention clause in this article reads: 'Nothing contained in the present Charter shall authorise the United Nations to intervene in matters which are essentially within the domestic jurisdiction of any state or shall require the Members to submit such matters to settlement under the present Charter; but this principle shall not prejudice the application of enforcement measures under Chapter VII.' However, the interpretation of that article does not allow for an application to the human rights field, *scil.* states cannot 'plead this rule as a bar to international concern and consideration of internal human rights', see Shaw, *International Law* (6th ed. 2008) 273. In other words, article 2 para. 7 of the Charter cannot bar the development of human rights law. See in detail Conforti and Focarelli, *Law and Practice* (2010) 165 *et seq.*

⁷² *Situation Kenya*, ICC-01/09-19, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, PTC II, 31 March 2010, para. 86 *et seq.* About this decision in more detail see Sadat (2013) 107 *AJIL* 334, 368 *et seq.*

that policy⁷³. In his dissenting opinion, Judge Kaul questioned these jurisprudential references to other tribunals. He instead invoked article 10⁷⁴ and conducted a careful and lengthy analysis of both the historic origins of crimes against humanity and article 7 para. 2 (a)⁷⁵.

Nevertheless, since a codification of international law also includes 'progressive development'⁷⁶, the provisions of the Rome Statute 'will eventually influence the evolution of international law'⁷⁷ and state practice⁷⁸. As an example serves the interpretation of article 7: Notwithstanding the interpretive provision of article 10, Article 7 is increasingly regarded as codifying the customary international law of crimes against humanity⁷⁹, *inter alia* by the European Court of Human Rights⁸⁰, the Inter-American Court of Human Rights⁸¹, U.S. federal courts⁸², the UK House of Lords⁸³ and the UK Court of Appeal⁸⁴. Moreover, the case law of the ICTY points to the Rome Statute to that effect⁸⁵. As *Sadat* puts it, '[i]t is an explicit

⁷³ *Situation Kenya*, ICC-01/09-19, 31 March 2010, para. 86 *et seq.* About these elements see in more detail Ambos, *Treatise on ICL II* (2014), 67 *et seq.* with further references.

⁷⁴ *Situation Kenya*, ICC-01/09-19, 31 March 2010, Dissenting Opinion of Judge Hans-Peter Kaul, para. 32: '[...] to conduct a careful analysis before drawing an analogy with or relying on the jurisprudence of other tribunals. Article 10 of the Statute reinforces the assumption that the drafters of the Statute may have deliberately deviated from customary rules as evinced in the jurisprudence of other courts and tribunals in providing that "[n]othing in this Statute shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than in the Statute."' (Fn. omitted).

⁷⁵ *Situation Kenya*, ICC-01/09-19, 31 March 2010, Dissenting Opinion of Judge Hans-Peter Kaul, para. 33 *et seq.* See for further examples Lyons (2012) 47 *WakeForestLRev* 799, 823 *et seq.*

⁷⁶ See *mn* 1.

⁷⁷ Schabas, *The International Criminal Court* (2010) 271.

⁷⁸ Grover (2010) 21 *EJIL* 543, 571 with further references in fn. 183.

⁷⁹ *Sadat* (2013) 107 *AJIL* 334, 372–374.

⁸⁰ *Korbely v. Hungary*, No. 9174/02, Judgment, 19 September 2008, Dissenting Opinion of Judge Loucaides ('[O]ne may take the recent Rome Statute of the International Criminal Court as declaratory of the definition in international law of this crime.'). See also Schabas, *The International Criminal Court* (2010) 271.

⁸¹ *González Medina and Family v. Dominican Republic*, Judgment (Preliminary objections, merits, reparations and costs), 27 February 2012, para. 128 with fn. 154; *García and Family Members v. Guatemala*, Judgment (Merits, Reparations and Costs), 29 November 2012, para. 97 with fn. 138; *Gudiel Alvaraz et al. ('Diario Militar') v. Guatemala*, Judgment (Merits, Reparations and Costs), 20 November 2012, para. 193 with fn. 190; *The Río Negro Massacres v. Guatemala*, Judgment (Preliminary Objection, Merits, Reparations and Costs), 4 September 2012, para. 115 with fn. 189; *Contreras et al. v. El Salvador*, Judgment (Merits, Reparations and Costs), 31 August 2011, para. 82 with fn. 102; *Gelman v. Uruguay*, Judgment (Merits and Reparations), 24 February 2011, para. 65 with fn. 64, para. 67.

⁸² *Wiwa v. Royal Dutch Petroleum Co.* Not Reported in F.Supp. 2 d, 2002 WL 319887 S.D.N.Y., February 28, 2002, at 9–10.

⁸³ *R. v. Bow Street Metropolitan Stipendiary Magistrate Ex p. Pinochet Ugarte* (No.1) [2000] 1 A.C. 61 House of Lords at 78 ('The Rome Statute of the International Criminal Court (adopted by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court on 17 July 1998) provides for jurisdiction in respect of genocide as defined, crimes against humanity as defined but in each case only with respect to crimes committed after the entry into force of this statute.'). See also *R. v. Bow Street Metropolitan Stipendiary Magistrate Ex p. Pinochet Ugarte* (No.2) [2000] 1 A.C. 119 House of Lords.

⁸⁴ *UK Court of Appeal, SK (Zimbabwe) v. Secretary of State for the Home Department* [2012] 1 W.L.R. 2809 Court of Appeal (Civil Division), 2835 ('This citation of authority and learning no doubt needs to be treated with care. The ICTY Statute is not the same as the Rome Statute, for the former lists the crimes against humanity without specifying requirements and elements and instead derives those from customary international law; and it has been said (by Professor Cassese) that the Rome Statute's requirement of the "in connection with" link is not required by customary international law. Nevertheless, in my judgment it is not possible to read such texts without the strong impression that the drafters and interpreters of the various Statutes, which after all are by and large equally based on the same material, are uniformly seeking the same ingredients for such crimes: a combination of flexibility and definition, and a concentration on the most serious of crimes, marked by really serious consequences, so that, in one or another form, under one or another label, the crimes against humanity will be recognised for what they are intended to be. [...]').

⁸⁵ See, e.g., *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, Trial Chamber II, 31 July 2003, para. 672 with fn. 1329; *Prosecutor v. Slobodan Milošević*, No. IT-02-54-T, Judgment, Trial Chamber III, 16 June 2004, fn. 43 and accompanying text; *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, Trial Chamber II, 15 March 2002, para. 473 with fn. 1424; *Prosecutor v. Krstić*, No. IT-98-33-T, Judgment, Trial Chamber, 2 August 2001, para. 522. For further examples see Schabas, *The International Criminal Court* (2010) 271.

acknowledgment that the Statute establishes minimum rules of conduct and that others (and the Court itself) must read it that way at all times⁸⁶. However, the references mentioned as examples of the codification of customary international law and the view that the Statute establishes minimum rules of conduct somehow invalidate article 10 as promoting the progressive development of international law outside the Statute, since article 10 ‘cuts both ways’ and can also be used to ‘stress the differences between the text in the Statute and their less prolix ancestors in the Geneva Conventions and related instruments’⁸⁷.

C. Special remarks: Relation to articles 21 and 22

During the drafting process it has been repeatedly mentioned that what are now articles 21 and 22 ‘deal with related issues’⁸⁸. Article 21 provides article 10 with substance and specificity⁸⁹. This is true with regard to article 21 para. 3, according to which even the interpretation of the Statute, that shall be applied ‘in the first place’, ‘must be consistent with recognized human rights, and be without any adverse distinction founded on grounds such as gender ...’⁹⁰. As article 10 promotes the continuing existence of customary law, allowing it ‘to develop alongside treaty law even where the two contain identical rules’⁹¹, article 21 para. 3 has the same function with regard to ‘internationally recognized human rights’, which continue ‘to evolve inexorably’⁹². Despite the fact that its meaning is still unclear⁹³, the phrase ‘internationally recognized human rights’ recognizes customary international human rights⁹⁴. In a dissenting opinion to a decision of the ICC Appeals Chamber, Judge Pikiš therefore pointed out that ‘[i]nternationally recognized may be regarded those [sic] human rights acknowledged by customary international law and international treaties and conventions’⁹⁵. Article 21 therefore enables the judges ‘to develop jurisdictional boundaries by importing extraneous materials as part of the task of identifying applicable law’⁹⁶. As described elsewhere in this volume⁹⁷, an ICC Trial Chamber has once declined to apply an

⁸⁶ Sadat (1999–2000) 49 *DePaulLRev* 909, 923. Diff. Grover (2010) 21 *EJIL* 543, 571.

⁸⁷ See Schabas, *An Introduction to the International Criminal Court* (2011) 93, who, *inter alia*, offers the example of Judge Schomburg’s separate and partially dissenting opinion in *Prosecutor v. Galić*, No. IT-98-29-A, Judgement, Appeals Chamber, 30 November 2006, p. 218, para. 20: ‘[...] [E]ven though I am fully aware of Article 10 of the Statute of the International Criminal Court, it must be pointed out that the Rome Statute does not have a provision referring to terrorization against a civilian population. If indeed this crime was beyond doubt part of a customary international law, in 1998 (!) states would undoubtedly have included it in the relevant provisions of the Statute or in their domestic legislation implementing the Statute.’, fn. omitted. See also Grover (2010) 21 *EJIL* 543, 571.

⁸⁸ See mn 1.

⁸⁹ Bassiouni, *Introduction to International Criminal Law* (2013), 657.

⁹⁰ Generally McAuliffe deGuzman, ‘article 21’, in *this volume*, mn 48 *et seq.*; Bennouna, ‘Article 10’, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article*, i (2012) 563 *et seq.*

⁹¹ Grover, *Interpreting Crimes in the Rome Statute of the International Criminal Court* (2014) 268.

⁹² Schabas, *An Introduction to the International Criminal Court* (2011) 211.

⁹³ For a detailed interpretation of the phrase ‘internationally recognized human rights’ see, e.g., Sheppard (2010) 10 *ICLRev* 43, 48 *et seq.*; Young (2011) 60 *ICLQ* 189 *et seq.*; Edwards (2001) 26 *YaleJIL* 323, 378 *et seq.*

⁹⁴ Grover, *Interpreting Crimes in the Rome Statute of the International Criminal Court* (2014) 119, 120; Bos (1998–1999) 22 *FordhamLLJ* 229, 234 (‘In so far as human rights instruments are universally recognized as part of international customary law, the ICC must respect them in its proceedings.’).

⁹⁵ *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-424, Decision on the Prosecutor’s ‘Application for Leave to Reply to “Conclusions de la défense en réponse au mémoire d’appel du Procureur”’, AppC, 12 September 2006, Separate opinion of Judge Georgios M. Pikiš, para. 3; about this decision see also Sheppard (2010) 10 *ICLRev* 43, 48.

⁹⁶ Young (2011) 60 *ICLQ* 189, 207.

⁹⁷ McAuliffe deGuzman, ‘article 21’, in *this volume*, mn 52.

article of the statute by invoking article 21 para. 3⁹⁸. This provision therefore proved to be a tool for ‘interpreting the Court’s sources of law expansively or even disregarding them entirely’ in case a Court’s provision falls short of human rights protections⁹⁹ – just as article 10 addresses, *inter alia*, those provisions that fall short of custom.

Other ‘principles and rules of international law ...’ rank – article 21 para. 1 (b) – ‘[i]n the second place’ (following the Statute) and shall be applied (only) ‘where appropriate’¹⁰⁰. It goes without saying that what has been declared to be ‘appropriate’ for cases within the jurisdiction of the Court, may not be appropriate for those within an internationalized (national) jurisdiction.

- 18 Article 22 para. 3 (originally drafted for the same Part as article 10 and now situated at the beginning of Part 3) proceeds along the same line as article 10, by stipulating that a (progressive) development of law ‘independently of this Statute’ shall not be limited or prejudiced by article 22 or its interpretation (‘This article shall not affect ...’).¹⁰¹ However, this only applies to the principle *nullum crimen sine lege* and with regard to ‘the characterization of any conduct as criminal under international law’¹⁰². This supports the notion, that the application of article 10 as a general rule is not limited to Part 2 where the article is situated, especially considering the drafting process, where – as already mentioned – the reference to article 10 was made in the context of what is now article 21, ‘Applicable law’, and even the bounds of Part 2 in article 22, ‘*Nullum crimen sine lege*’, which is now situated in Part 3¹⁰³.

⁹⁸ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-3003-tENG, Decision on an Amicus Curiae Application and on the ‘Requête Tendante à Obtenir Présentations des Témoins DRC-D02-P-0350, DRC-D02-P-0236, DRC-D02-P-0228 aux Autorités Néerlandaises aux fins d’asile’ (Articles 68 and 93(7) of the Statute), TC II, 9 June 2011, para. 73. The decision was later overturned on appeal, see *Prosecutor v. Ngudjolo Chui*, No. ICC-01/04-02/12-158, Order on the implementation of the cooperation agreement between the Court and the Democratic Republic of Congo concluded pursuant article 93 (7) of the Statute, AppC, 20 January 2014, para. 29.

⁹⁹ McAuliffe deGuzman, ‘article 21’, in *this volume*, mn 52.

¹⁰⁰ See McAuliffe deGuzman, ‘article 21’, in *this volume*, mn 9 *et seq.*; see also Triffterer, ‘Preliminary Remarks’ (2008), mn 64 *et seq.*

¹⁰¹ See also Grover, *Interpreting Crimes in the Rome Statute of the International Criminal Court* (2014) 267 *et seq.*

¹⁰² See Broomhall, ‘article 22’, in *this volume*, mn 51; see also Triffterer, ‘Preliminary Remarks’ (2008), mn 62. According to Grover, ‘[l]egality is an adjudicative tool, meaning that the outcomes it produces do not speak to whether conduct is condemned or not by the international community.’, Grover, *Interpreting Crimes in the Rome Statute of the International Criminal Court* (2014) 268.

¹⁰³ See mn 1 and 16; see also Bassiouni, *Introduction to International Criminal Law* (2013), 657 with fn. 24.

Article 11

Jurisdiction *ratione temporis*

1. The Court has jurisdiction only with respect to crimes committed after the entry into force of this Statute.

2. If a State becomes a Party to this Statute after its entry into force, the Court may exercise its jurisdiction only with respect to crimes committed after the entry into force of this Statute for that State, unless that State has made a declaration under article 12, paragraph 3.

Literature: Bourgon, S., 'Jurisdiction *ratione temporis*', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002); Cazala, J., 'Article 11 – Compétence *ratione temporis*', in: J. Fernandez and X. Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire Article par Article* (Éditions A. Pedone 2012); Condorelli, L. and Villalpando, S., 'Can the Security Council Extend the ICC's Jurisdiction?', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002); Heri, C., 'Enforced Disappearance and the European Court of Human Rights' *ratione temporis* Jurisdiction: A Discussion of Temporal Elements in *Janowiec and Others v. Russia*', (2014) 12 *JICJ* 751; Rastan, R., 'Testing Cooperation: The ICC and National Authorities', (2008) 21 *LeidenJIL*. 431; *id.*, 'Jurisdiction', in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court* (OUP 2015); Saland, P., International Criminal Law Principles, in: R.S. Lee (ed.), *The International Criminal Court: the Making of the Rome Statute: Issues, Negotiations and Results* (Kluwer Law International 1999); Sarooshi, D., *The United Nations and the Development of Collective Security: the Delegation by the UN Security Council of its Chapter VII Powers* (Clarendon 1999); *id.*, 'The Peace and Justice Paradox', in: D. McGoldrick *et al.* (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (Hart 2004); Schabas, W., *Genocide in International Law* (CUP 2nd edition 2009); El Zeidy, M., 'The Ugandan Government Triggers the First Test of the Complementarity Principle: An Assessment of the First State's Party Referral to the ICC', (2005) 5 *ICLRev* 83.

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A. Introduction/General remarks

Article 11 establishes the temporal threshold for the activation of the Court's jurisdiction 1 at the date of entry into force of the Statute, which occurred on 1 July 2002. Whereas the other facets of the Court's jurisdiction – jurisdiction *ratione materiae*, *ratione personae* and *ratione loci* – may be modified or applied in the alternative, paragraph 1 of article 11 represents an absolute bar on the scope of the Court's competence.¹ Paragraph 2 of article 11 regulates the activation of the Court's temporal jurisdiction for States joining the ICC after its entry into force. For those signatory States that deposited the instruments necessary to bring the Statute into force, temporal threshold will apply from the date of the entry into force of the Statute itself, per article 11(1). For those States that become Parties to the Statute thereafter temporal jurisdiction will apply from the first day of the month after the 60th day

¹ Subject-matter jurisdiction may evolve through amendment to the Statute. Personal and territorial jurisdiction can be exercised in the alternative for genocide, crimes against humanity and war crimes, are modified to be applied cumulatively for aggression, and might be applied either alternatively or cumulatively for any other category of crimes to be added to the Statute. Although the Assembly of States Parties theoretically may amend any aspect of the ICC Statute at any time, any amendment of article 11 would also require modification to articles 22 and 24 and is thus unlikely.

following the deposit by such State of its instrument of ratification, acceptance, approval or accession.² Nonetheless, article 11(2) recalls that an acceding State may also lodge a declaration under article 12(3) with respect to the time period during which it remained a non-Party State, thereby investing the Court with jurisdiction from an earlier time although no earlier than the restriction contained in article 11(1).

- 2 Article 11 should be read together with article 24 which provides that no-one will be held criminally responsible under the Statute for conduct prior to the entry into force of the Statute.³ The two provisions obtain the same result: article 11 specifies procedurally the date from which the prospective exercise of temporal jurisdiction should be calculated, while article 24 encapsulates the principle of non-retroactivity itself.⁴ Article 22(1) further enshrines the principle that no person shall be criminally responsible under the Statute unless the conduct in question constitutes, at the time it takes place, a crime within the jurisdiction of the Court (*nullum crimen sine lege*). While the latter focusses on the necessity for an appropriate statutory prohibition existing at the time the offence is committed, the reference to ‘crime within the jurisdiction of the Court’ necessarily includes the notion of the temporal restriction expressed in article 11.⁵
- 3 The drafting history for articles 11 (temporal jurisdiction), 22 (*nullum crimen sine lege*) and 24 (non-retroactivity) is closely interrelated and together provides the context for the chapter under review. The early ILC Draft Statutes did not contain a provision on temporal jurisdiction. This is because the jurisdictional scheme was linked from the outset to existing crimes under international treaties which had already entered into force. The mandate of the ILC to study the desirability and possibility of establishing a mechanism for the adjudication of international crimes first arose from the General Assembly’s adoption of the Genocide Convention, with its accompanying reference in article VI to the possibility of prosecution before an ‘international penal tribunal’. Part B of the resolution that adopted the Genocide Convention invited the ILC to consider the establishment of ‘an international judicial organ for the trial of persons charged with genocide or other crimes over which jurisdiction will be conferred upon that organ by international convention’.⁶ Thus, early on the question of an international criminal court was framed as one which would serve as a procedural vehicle for the application of crimes which were codified elsewhere.⁷ As the ILC’s work progressed on the parallel project to develop a Code of Crimes Against the Peace and Security of Mankind, it was envisaged that the future court would either apply the Code of Crimes once adopted as a treaty or otherwise exercise jurisdiction by reference to specified crimes that were prohibited under other multilateral treaties in force. This explains why, as late as 1994, the

² See Article 126.

³ See Pangalangan, in: Triffterer/Ambos (3rd ed.) mn 12, who notes the notion of conduct in article 24 includes both acts and omissions. See also Saland, in: Lee (ed.), *The International Criminal Court: the Making of the Rome Statute* (1999) 196–197.

⁴ Pangalangan, in: Triffterer/Ambos (3rd ed.) mn 8.

⁵ See Broomhall, in Triffterer/Ambos (3rd ed.) mn 52.

⁶ A/RES/260 (III) B, 9 December 1948. The wording is based on a Sixth Committee resolution adopted on the joint proposal of The Netherlands and Iran assigning consideration of the creation of an international tribunal to the ILC, in view of intractable differences during the negotiation of the genocide convention as to the viability of establishing such a court at that time; A/C.6/248. See discussion in Schabas, *Genocide in International Law* (2009) 444–454. While the General Assembly had called for the codification of international offences as early as 1946 (see *infra* note 10), the mandate to also consider the establishment of a court as a corollary to the draft code of crimes was first posited in 1948.

⁷ As the commentary to the ILC draft Statute recalled, one of the basic ideas underlying the jurisdictional scheme was that ‘the court should exercise jurisdiction over crimes of an international character defined by existing treaties, and that—as a corollary—the statute itself would be primarily procedural and adjectival’; A/49/10, p. 36. This same concept appears in the 1992 Report of the Working Group on the Question of an International Criminal Jurisdiction, see Report of the International Law Commission on the work of its forty-fourth session, A/47/10, reprinted in 1992 *YbILC* Vol II., pp. 67–68. As the commentary to the 1994 ILC Statute goes on to observe: ‘It is not its function to define new crimes. Nor is it the function of the statute authoritatively to codify crimes under general international law. With respect to certain of these crimes, this is the purpose of the draft Code of Crimes against the Peace and Security of Mankind ...’; *ibid.*, p. 38.

final ILC draft Statute presented to the General Assembly contained only a provision on *nullum crimen sine lege* linked to the relevant entry into force date under each treaty.⁸ Given the existence of a relevant temporal limitation for the crimes contained in each of these instruments which were external to the draft Statute, and absent codification of substantive law in the Statute itself, the Commission appears to have considered unnecessary the need to define a temporal threshold for the exercise of ICC jurisdiction. Since the entry into force of each instrument differed, it would in any event have been difficult to establish a uniform temporal bar.

Considerations of non-retroactivity, nonetheless, played a central role in early discussions on the *nullum crimen* principle and are often referred to interchangeably in documents from this period. The concept of non-retroactivity forms a key focus of debates in the ILC during the 1950s, with concern often expressed for the need to avoid the criticism levelled in Nuremberg and Tokyo with respect to the retroactive application of penal law.⁹ Indeed, one of the first decisions of the General Assembly, after affirming the principles of international law recognized by the Charter of the Nuremberg Tribunal and the judgment of the Tribunal, was to call for the codification of relevant offences thereunder in an 'International Criminal Code'.¹⁰ Thus, throughout the subsequent discussions within the United Nations surrounding the draft code and the draft statute, central focus was given to the need to ensure that any international criminal jurisdiction asserted by the future court would be done on the basis of offences clearly articulated in extant applicable law.

After the ILC presented its finalized text for the draft Statute in 1994, States were quick to reject in the Ad Hoc Committee the approach of applying substantive law by reference. Instead, the Committee moved to elaborate the crimes within the draft Statute itself, based largely on the same *nullum crimen* concerns: '[a]s regards the specification of crimes, the view was expressed that a procedural instrument enumerating rather than defining the crimes would not meet the requirements of the principle of legality (*nullum crimen sine lege* and *nulla poena sine lege*) and that the constituent elements of each crime should be specified to avoid any ambiguity and to ensure full respect for the rights of the accused'.¹¹ With the idea of including substantive crimes came for the first time discussion on the need to

⁸ Draft article 39 provided that an accused would not be held guilty: (a) in the case of genocide, aggression, war crimes and crimes against humanity 'unless the act or omission in question constituted a crime under international law'; and (b) in the case of other treaty crimes 'unless the treaty in question was applicable to the conduct of the accused at the time the act or omission occurred'; *Report of the International Law Commission on its forty-sixth session, A/49/10(1994)*, reprinted in 1994 *YbILC* Vol II, pp. 55-56, referring to crimes under draft article 20(a)-(e). The same approach had been adopted in article 41 of the earlier 1993 ILC draft Statute which applied *nullum crimen sine lege* by reference to crimes in force through other instruments, except that 1993 draft foresaw three categories of applicable law: '(a) a treaty which was in force [and applicable with respect to the accused]; (b) customary international law; or (c) national law enacted in conformity with the relevant treaty'; *Report of the International Law Commission on its forty-fifth session, A/48/10(1993)*, reprinted in 1993 *YbILC* Vol II, p. 119, referring to crimes under draft articles 22 and 26. The bracketed text was contained in the draft provision and accompanying commentary in view of the difference of opinion within the Commission as to whether, for the principle of legality to apply, the State party must have domestically incorporated the relevant crime pursuant to the relevant treaty obligation or whether criminal responsibility could flow directly under international law from the treaty concerned.

⁹ Question of International Criminal Jurisdiction, Report by RJ. Alfaro, Special Rapporteur, A/CN.4/15, 3 March 1950, reproduced in 1950 *YbILC* Vol II, pp. 14-16.

¹⁰ A/RES/95(1), 11 December 1946: 'Directs the Committee on the codification of international law established by the resolution of the General Assembly of 11 December 1946, to treat as a matter of primary importance plans for the formulation, in the context of a general codification of offences against the peace and security of mankind, or of an International Criminal Code, of the principles recognized in the Charter of the Nuremberg Tribunal and in the judgment of the Tribunal'. The following year the General Assembly, in resolution 177(II) of 21 November 1947, tasked the ILC with the formulation of the Nuremberg principles as well as a draft code of crimes against the peace and security of mankind.

¹¹ *Report of the Ad Hoc Committee on the Establishment of an International Criminal Court*, A/50/22, 6 September 1995, p. 12. For discussion on the negotiations over subject-matter jurisdiction in terms of 'core crimes' and other 'treaty crimes' see Zimmerman, in: Triffterer (ed.), *Commentary on the Rome Statute of the International Criminal Court* (2008), art. 5, at mn 1-7.

establish a general temporal bar: ‘Several delegations were of the view that it would be important to include in the statute the principle of the non-retroactivity of its provisions’.¹²

- 6 This basic link to the principle of non-retroactivity, considered as ‘fundamental to any criminal legal system’, was recalled in subsequent Preparatory Committee discussions which recognized both the need for the principle of non-retroactivity to be ‘clearly spelled out in the Statute’ and that ‘the temporal jurisdiction of the Court should be limited to those crimes committed after the entry into force of the Statute’.¹³ The compilation prepared by the informal working group at the 1996 sessions of the Preparatory Committee dealing with general principles of criminal law developed three proposals, under the overall heading draft ‘Article A’, to deal with the separate, but related concepts of *nullum crimen/nulla poena sine lege*, non-retroactivity and the temporal start-date of jurisdiction. The first essentially retained the approach of the ILC in article 39 of the 1994 draft Statute, but added that the conduct must not only have constituted a crime within the jurisdiction of the Court, but also that ‘such conduct occurred after the entry into force of this Statute’.¹⁴ Proposal 2 combined a temporal specification with the principle of *nullum crimen sine lege*: ‘This Statute applies only to a conduct that is done after the entry into force of this Statute, and no conduct shall be punished by this Court unless it is an offence under the definition of the crimes of this Statute’.¹⁵ Proposal 3, entitled ‘Jurisdiction *ratione temporis*’ essentially contained the three elements that found their way into the final adopted text for article 11: (i) date of entry into force of the Statute; (ii) date of entry into force for States acceding to the Statute at a later date; and (iii) declarations lodged by States to cover the period between (i) and (ii). Specifically, proposal 3 provided: ‘The Court has jurisdiction only in respect of acts committed after the date of entry into force of this Statute’; ‘When a State becomes party to this Statute after its entry into force, the Court has jurisdiction only in respect of acts committed by its nationals or on its territory or against its nationals after the deposit by that State of its instrument of ratification or accession’; and ‘A non-party State may, however, by an express declaration deposited with the Registrar of the Court, agree that the Court has jurisdiction in respect of the acts that it specifies in the declaration’.¹⁶ The only part of Proposal 3 that did not survive in any form into the final text is draft paragraph 2, which dealt with the possibility of temporal overlap with the mandate of pre-existing *ad hoc* tribunals established by the Security Council and the latter’s primacy: ‘The Court has no jurisdiction in respect of crimes for which, even if they have been committed after the entry into force of this Statute, the Security Council, acting under Chapter VII of the Charter of the United Nations, has decided before the entry into force of this Statute to establish an *ad hoc* international criminal tribunal. The Security Council may, however, decide otherwise’.¹⁷
- 7 When the issue was taken up anew in 1997, the Preparatory Committee largely left the proposals untouched, save for their placement. The February 1997 session reproduced *nullum crimen sine lege* as article A, based largely on article 39 of the 1994 ILC draft Statute, while non-retroactivity appeared as new article *Abis*.¹⁸ The latter contained a draft paragraph 2 which retained in bracketed holding text the bulk of the 1996 Proposal 3 as described above. The August 1997 session further adopted, in bracketed optional text, an untitled article 21*ter* relating to the temporal jurisdiction: paragraph 1 contained in un-bracketed text

¹² Report of the Ad Hoc Committee, A/50/22, p. 12.

¹³ Report of the Preparatory Committee on the Establishment of an International Criminal Court, A/51/22, Vol. I, 13 September 1996, pp. 43–44. The discussion linked these concepts to the *nullum crimen/nulla poena sine lege* principle.

¹⁴ Report of the Preparatory Committee on the Establishment of an International Criminal Court, A/51/22, Vol. II, 13 September 1996, p. 79.

¹⁵ *Ibid.*, p. 80.

¹⁶ *Ibid.*

¹⁷ *Ibid.*

¹⁸ Decisions taken by the Preparatory Committee at its session held from 11 to 21 February 1997, A/AC.249/1997/L.5, 12 March 1997, pp. 19–20.

the existing formulation of present day article 11(1).¹⁹ The rest of the paragraph in bracketed text recalled the second element of the 1996 Proposal 3, but omitted any reference to the third element related to declarations.²⁰ Paragraph 2 of article 21*ter* maintained the reference to Security Council established tribunals.²¹

The draft text submitted to the Rome Conference following the inter-sessional meeting in Zutphen in January 1998 retained the formula adopted by the February 1997 Preparatory Committee in article A (*nullum crimen since lege*), renumbered as article 15, and article *Abis* (non-retroactivity), renumbered as article 16,²² while article 8, now entitled 'Temporal jurisdiction', replicated article 21*ter* from the August 1997 session with the accompanying explanatory note: 'N.B. There is an interrelationship between this article and article 16[A *bis*] (Non-retroactivity).'

In Rome, the initial proposal of the Bureau of the Committee of the Whole was to combine the provisions on temporal jurisdiction and non-retroactivity.²³ The proposal, formulated in three parts, consisted of paragraph 1, corresponding to the present article 24(1); paragraph 1*bis*, corresponding to the present article 11(2); and paragraph 2, corresponding to the present article 24(2). The wording of each mirrored closely the texts as finally adopted, save for minor modification. For example, the phrase appearing in the Zutphen draft to describe the activation of temporal jurisdiction for acceding States was changed from 'after the deposit by that State of its instrument of ratification or accession' to the more precise wording 'after the entry into force of this Statute for that State', which mirrors the formulation of present in article 126.

The Bureau proposal also deleted the draft paragraph on previously established ad hoc Tribunals. As noted above, the provision would have granted exclusive jurisdiction to such tribunals, established by the Security Council under Chapter VII of the UN Charter, where they were created prior to the entry into force of the Statute and continued to exercise temporal jurisdiction thereafter. The practical impact of the provision would have been limited to the territory of the former Yugoslavia in the light of open-ended prospective jurisdiction of the ICTY, since the temporal jurisdiction of the ICTR was already limited to events occurring during 1994. This question was not just theoretical, since after the adoption of the Rome Statute the ICTY asserted jurisdiction over events occurring first in Kosovo and later in Macedonia. The risk of competing jurisdictions may well have been limited in the light of complementary. Although the ICTY is not a State with jurisdiction within the meaning of article 17, the ICC Prosecutor may well have reflected on the object and purpose of article 17 and article 53(1)(b), and consulted with the ICTY Prosecutor in the same way it is meant to consult and seek additional information from national authorities, in determining whether to proceed. With the adoption of completion strategies for the ICTY and the cut-off date for the submission of pending indictments in December 2004, this question has now become moot.

In the final package presented by the Bureau, it decided to separate out the provisions on temporal jurisdiction and non-retroactivity into the placement they now more appropriately occupy in Part 2 on jurisdiction, admissibility and applicable law, and Part 3 on general principles of criminal law, respectively.²⁴

¹⁹ The only difference is the words 'in respect of' as opposed to the finally adopted 'with respect to'.

²⁰ The concept of declarations nonetheless continued to be treated in draft article 21*bis* and 22.

²¹ *Decisions taken by the Preparatory Committee at its session held from 4 to 15 August 1997*, A/AC.249/1997/L.8/Rev.1, 14 August 1997, p. 5.

²² *Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands*, A/AC.249/1998/L.13, 4 February 1998. Paragraph 2 of article 16[*Abis*], which contained bracketed holding text from former 1996 Proposal 3, was now deleted with the explanation that the proposals were treated under other provisions, namely articles 7[21 *bis*] (Preconditions to the exercise of jurisdiction), 8[21*ter*] (Temporal jurisdiction) and 9[22] (Acceptance of the jurisdiction of the Court).

²³ See A/CONF.183/C.1/L.53 (6 July 1998) and A/CONF.183/C.1/L.59 (10 July 1998).

²⁴ The final wording of article 11 as adopted appears in the Bureau's package proposal for Part 2; A/CONF.183/C.1/L.76/Add.2 (16 July 1998).

- 12 In relation to the operation of article 11 with other provisions of the Statute, discussions in Rome also examined the tension between the notion of ‘continuing crimes’ and the Court’s limitations *ratione temporis*. For example, during the 9th meeting of the Committee of the Whole the representative of Lebanon pointed out that draft article 8 on temporal jurisdiction ‘did not cover acts that began before but continued after the entry into force of the Statute. Care should be taken not to bar prosecution for such acts, and the words “unless the crimes continue after that date” should be added at the end of paragraph 1’.²⁵ As Per Saland, Chairman of the Working Group on General Principles of Criminal Law, observes, the impossibility of reaching consensus on the issue was ultimately resolved in Rome by keeping the construction ambiguous, thereby leaving it to the Court to settle the issue.²⁶ As discussed below, the Preparatory Commission returned to the issue in the context of the elements of the crimes of enforced disappearance,²⁷ reducing the scope for some of the ambiguity, while leaving other issues unresolved.

B. Analysis and interpretation of elements

I. Paragraph 1: Entry into force of the Statute

- 13 The temporal parameters of the Court’s jurisdiction are restricted to crimes committed after its entry into force, which occurred on 1 July 2002. This date also serves as the entry into force of the Statute with respect to the territory and nationals of those States that deposited their instruments of ratification, acceptance, approval or accession as part of the 60 needed to bring the treaty into effect.²⁸
- 14 The phrase ‘jurisdiction ... with respect to crimes’ refers to the crimes listed in article 5. Although the term ‘crime’ in article 5 is distinguished from the use of ‘offence’ under article 70 of the Statute, it is axiomatic that the Court will not be faced with alleged offences against the administration of the Court that pre-date the actual investigation or prosecution of such crimes. Article 11 does not treat the Court’s temporal jurisdiction with respect to new crimes added to the Statute, which are regulated separately according to the amendment procedure in article 121. Instead, it establishes an absolute bar on the retroactive exercise of ICC jurisdiction prior to its entry into force. With respect to prospective temporal jurisdiction, the start-date for the exercise of jurisdiction over war crimes committed on the territory or by the nationals of a State Party may be postponed for an initial 7 year period pursuant to article 124.²⁹
- 15 Whereas the treaty-based limitations on the exercise of personal and territorial jurisdiction can be overcome by a Security Council referral, this is not the case for the Court’s temporal parameters.³⁰ Under the former, the Security Council does not amend the jurisdictional scheme of the Statute, but instead enables an extension of the existing bases of jurisdiction to the territory and/or nationals of States that would not otherwise be amenable to the Court’s reach. The ability to do so flows from the Council’s powers under Chapter VII of the United Nations Charter to take compulsory measures with respect to UN Member States, as well as

²⁵ A/CONF.183/C.1/SR.9, 20 Nov. 1998, para. 73.

²⁶ Saland, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues, Negotiations and Results* (1999) 196–197, referring to the lack of agreement on the choice of a verb to go with the word ‘conduct’ in article 24 – such as ‘committed’, ‘occurred’, ‘commenced’ or ‘completed’ – was only resolved by suggesting the removal of any verb, even if stylistically it did not read well in English, enabling thereby the Court to settle the issue.

²⁷ See commentary on article 7 in this edition.

²⁸ See article 126 on entry into force provisions.

²⁹ See *infra* note 76.

³⁰ See commentary below on art. 11(2), mn 28, *et seq.*, for States that become Party to the Statute after its entry into force.

the obligation of UN Member States to accept and carry them out.³¹ The Council's actions, thus, modify the obligations of the concerned UN Member State(s) towards the ICC: creating obligations where there were none, and enabling the exercise of ICC jurisdiction which would otherwise be invalid. The ICC Statute does not create or confer the Council's power in this regard, but merely provides a procedural vehicle (article 13(b)) to enable the Court to recognize and act upon such measures, which are based on authority external to the Statute itself.³² By contrast, the Council cannot alter or modify the ICC Statute, for example by amending the temporal bar contained in article 11, just as it cannot amend the subject-matter jurisdiction of the Court or the operation of any other provision. Unlike the *ad hoc* Tribunals, the ICC is not a subsidiary organ of the Council in the sense that the principal organ possesses the competence to determine the membership, structure, mandate and duration of existence of its subsidiary organ.³³ Since the ICC is a distinct international organization, the Security Council cannot authorize the Court to exceed the scope of its own powers under the Statute and so act *ultra vires* its own legislative framework.³⁴ For this reason, other international courts and tribunals, including the varying categories of 'hybrid' or 'internationalized' jurisdictions, such as the Special Court for Sierra Leone, the Extraordinary Chambers in the Courts of Cambodia, Special Panels for Serious Crimes in East Timor or the Extraordinary African Chambers within the courts of Senegal, may continue to be set up by the international community to deal with historical allegations notwithstanding the establishment of the ICC.³⁵

1. Continuing crimes

In terms of crimes that pre-date the Statute's entry into force, but whose occurrence continues past 1 July 2002, it may be worth distinguishing between two different categories of 'continuing crimes': (a) conduct where the *actus reus* is partly completed in the past, the effects of which continue to this day; and (b) conduct that constitutes an ongoing course of criminal activity, all of whose material elements continue to occur on a daily basis.³⁶ In the case of the former, the notion of continuing crimes is particularly helpful because of the bifurcated character of certain crimes. For example, the crime of enforced disappearance involves (i) arrest, detention or abducted (first stage), followed by (ii) refusal to acknowledge that deprivation of freedom or to give information on the fate or whereabouts of that individual (second stage), which together form the *actus reus*, but may be separated over extended periods of time.³⁷ The term 'continuing crimes' serves to emphasise the persisting responsibility of State

³¹ See Articles 25 and 103, United Nations Charter.

³² The same considerations apply to article 16 of the Statute. See Rastan, in: Stahn (ed.), *The Law and Practice of the International Criminal Court* (2015), p. 157 at fn. 75.

³³ Sarooshi, *The United Nations and the Development of Collective Security: the Delegation by the UN Security Council of its Chapter VII Powers* (1999) 130; Condorelli and Villalpando, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court* (2002) 572.

³⁴ Sarooshi, in: McGoldrick et al. (eds.), *The Permanent International Criminal Court: Legal and Policy Issues* (2004) 106–107. The principle of attribution holds that an international organisation cannot act beyond the powers attributed to it by its constituent treaty; cf. Schermers and Blokker, *International Institutional Law: Unity within Diversity* (2011) 157; Rastan, (2008) 21 *LeidenJIL* 431–444. The principle is also sometimes referred to as the 'principle of speciality'; see *Legality of the Use by a State of Nuclear Weapons in Armed Conflict, Advisory Opinion*, 8 July 1996, ICJ Report 1996, para. 25.

³⁵ Cazala, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour pénale internationale: Commentaire article par article* (2012) 570.

³⁶ See El Zeidy (2005) 5 *ICLRev* 83–119, 90–99. See also Williams, in: Triffterer (ed.), *Commentary* (2008), art. 11, mn 2; and Ambos, *Treatise on International Criminal Law*, Volume II (2014), p. 112, referring to the concept of 'Dauerdelikt'.

³⁷ For the crime of enforced disappearance under article 7(1)(i) of the Rome Statute, the material elements require that the perpetrator arrested, detained or abducted an individual (originating act) and subsequently refused to acknowledge that deprivation of freedom or to give information on the fate or whereabouts of that individual (ongoing act); or in the alternative, that the perpetrator (i) refused to acknowledge the arrest, detention or abduction, or to give information on the fate or whereabouts of such person or person, and (ii) such refusal was preceded or accompanied by that deprivation of freedom.

authorities in these circumstances.³⁸ As described below, although footnote 24 of the elements of crimes has clarified the exercise of jurisdiction with respect to bifurcated crimes which only partly occur within the temporal jurisdiction of the Court, there appears to be much greater scope with respect to conduct that constitutes an ongoing course of criminal activity.

2. Continuing crimes under human rights instruments

- 17 Established in 1980 by the United Nations Human Rights Commission to examine questions relevant to enforced or involuntary disappearances of persons, the Working Group on Enforced or Involuntary Disappearance has in particular helped develop the conceptual elements of the definition of enforced disappearance and the attendant notion of continuing crimes, leading to the adoption in 1992 of the United Nations Declaration on the Protection of All Persons from Enforced Disappearance. With regard to article 17 of the Declaration,³⁹ the Working Group stated in its General Comment of 2011: '[w]hen an enforced disappearance began before the entry into force of an instrument or before the specific State accepted the jurisdiction of the competent body, the fact that the disappearance continues after the entry into force or the acceptance of the jurisdiction gives the institution the competence and jurisdiction to consider the act of enforced disappearance as a whole, and not only acts or omissions imputable to the State that followed the entry into force of the relevant legal instrument or the acceptance of the jurisdiction'.⁴⁰ The Working Group further held that 'one consequence of the continuing character of enforced disappearance is that it is possible to convict someone for enforced disappearance on the basis of a legal instrument that was enacted after the enforced disappearance began, notwithstanding the fundamental principle of non-retroactivity. The crime cannot be separated and the conviction should cover the enforced disappearance as a whole'.⁴¹ Nonetheless, following the entry into force of the International Convention for the Protection of All Persons from Enforced Disappearance, the Committee on Enforced Disappearance, which was established thereunder, took the opposite approach based on the much more restrictive language of article 35 of the Convention.⁴² In particular, article 35 limits the Committee's competence 'solely in respect of enforced disappearances which commenced after the entry into force of this Convention' or in the case of acceding States, 'enforced disappearances which commenced after the entry into force of this Convention for the State concerned'.⁴³ Accordingly, the Committee held that it will not adjudicate cases that commenced before the Convention entered into force for the State concerned.⁴⁴

³⁸ See e.g. *Chapman Blake v. Guatemala*, Merits, IACtHR Series C No 36, IHRL 1419 (IACtHR 1998), [1998] IACtHR 1 (24 January 1998). See also discussion in Pangalangan, in this volume, art. 24, mn 13.

³⁹ Article 17(1) of the Declaration on the Protection of All Persons from Enforced Disappearance provides: 'Acts constituting enforced disappearance shall be considered a continuing offence as long as the perpetrators continue to conceal the fate and the whereabouts of persons who have disappeared and these facts remain unclarified'; A/RES/47/133 (18 December 1992).

⁴⁰ Working Group on Enforced or Involuntary Disappearances, *General Comment on Enforced Disappearance as a Continuous Crime*, para. 3, reproduced in *Report of the Working Group on Enforced or Involuntary Disappearances*, UN Doc.A/HRC/16/48, 26 January 2011, p. 12. The Working Group was established by the Human Rights Commission by resolution 20 (XXXVI) of 29 February 1980 and most recently renewed by Human Rights Council resolution A/HRC/RES/27/1 of 25 September 2014.

⁴¹ *Ibid.*, para. 5.

⁴² The Committee on Enforced Disappearances and the Working Group on Enforced or Involuntary Disappearances continue to coexist side by side in view of their separate and independent mandates, although they are intended to collaborate and coordinate their activities.

⁴³ Article 35 of the International Convention for the Protection of All Persons from Enforced Disappearance provides: '1. The Committee shall have competence solely in respect of enforced disappearances which commenced after the entry into force of this Convention. 2. If a State becomes a party to this Convention after its entry into force, the obligations of that State vis-à-vis the Committee shall relate only to enforced disappearances which commenced after the entry into force of this Convention for the State concerned'; A/61/448 (20 December 2006), UNTS Vol. 2715, entered into force 23 December 2010.

⁴⁴ Committee on Enforced Disappearances, *Statement on the Ratione Temporis Element in the Review of Reports Submitted by States Parties under the International Convention for the Protection of All Persons from Enforced Disappearance*, 15 November 2013, Annex IV, p. 19.

In a number of decisions on communication received pursuant to the First Optional Protocol (individual complaints mechanisms) to the ICCPR, the Human Rights Committee has declared that ‘it could not consider an alleged violation of human rights said to have taken place prior to the entry into force of the Covenant for a State party, unless it is a violation that continues after that date or has effects which themselves constitute a violation of the Covenant after that date’.⁴⁵ Thus, for example, in *Ibrahima Gueye et al. v. France*, it held that the discriminatory effects of legislation enacted prior to the Optional Protocol came into force for France constituted a present day violation of article 26 of the Covenant.⁴⁶ In other cases, including those of enforced disappearance, the Committee was not satisfied that the violations persisted after the relevant entry into force date based on the facts of the case at hand.⁴⁷

At the regional level, the Inter-American Court of Human Rights (IACtHR) has since the late 1980s pioneered the development of case law on the continuing nature of violations under the American Convention on Human Rights, including in cases of enforced disappearance.⁴⁸ As the Inter-American Court has held: ‘the Court has competence to examine human rights violations that are continuing or permanent even though the initial act violating them took place before the date on which the Court’s contentious jurisdiction was accepted, if the said violations persist after the date of acceptance, because they continue to be committed; thus, the principle of non-retroactivity is not violated’.⁴⁹ In the case of *Rio Negro Massacres v. Guatemala*, e.g. based on the foregoing the IACtHR held itself competent to examine alleged continuing human rights violations arising from facts occurring between 1980 to 1982, prior to the entry into force its contentious jurisdiction for Guatemala in 1987, in relation to forced disappearance; the absence of an impartial and effective investigation into the facts of the case; the adverse effects on the personal integrity of the next of kin and survivors in relation to investigation of the facts; the failure to identify those who were executed and disappeared; the ‘destruction of the community’s social fabric’, and forced displacement.⁵⁰ However, the Inter-American Court did not consider itself competent to rule on other allegations which occurred prior to 9 March 1987 for which no continuing violation could be established.⁵¹

A similar approach has been followed broadly by the European Court of Human Rights (ECtHR), although more recent cases have sought to define the outer scope of its temporal jurisdiction vis-à-vis continuing crimes. In *Cyprus v. Turkey*, in relation to alleged article 2 violations (right to life) that occurred in 1974, the ECtHR held that the ongoing failure of Turkey to discharge the procedural obligation to investigate such violations amounted to a

⁴⁵ *Ibrahima Gueye et al. v. France*, Human Rights Committee, Communication No. 196/1986, 6 April 1989, para. 5.3. See also *Miguel A. Millan Sequeira v. Uruguay*, Communication No. 6/1977, UN Doc.CCPR/C/OP/1 at 52 (1984), para. 16; *Sandra Lovelace v. Canada*, Communication No. R.6/24, UN Doc.Supp.No. 40 (A/36/40) at 166 (1981), para. 7.3; *Eugeniusz Kurowski v. Poland*, Human Rights Committee, Communication No. 872/1999, 11 April 2003, para. 6.4.

⁴⁶ *Ibrahima Gueye et al. v. France*, para. 10.

⁴⁷ See *Norma Yurich v. Chile*, Communication No. 1078/2002, UN Doc.CCPR/C/85/D/1078/2002 (2005) and *Cifuentes Elgueta v. Chile*, HRC Communication No. 1536/2006, UN Doc.CCPR/C/96/D/1536/2006, 28 July 2009, para. 8.5. In both cases the Committee observed that the original acts of arrest, detention or abduction, as well as the refusal to give information about the deprivation of freedom occurred before the entry into force of the Covenant for the State party, and no acts of refusal to give information appeared to continue after the entry into force of the Optional Protocol (individual complaint mechanism). It also considered as relevant the fact that upon ratifying the Optional Protocol, Chile made a declaration to the effect that the Committee’s competence applied only in respect of acts occurring after the entry into force for Chile of the Optional Protocol or, in any event, acts which began after 11 March 1990.

⁴⁸ See e.g. *Velásquez Rodríguez v. Honduras*, Merits, Judgment of July 29, 1988. Series C No. 4, para. 155–185, *Chapman Blake v. Guatemala*, Preliminary objections, IACtHR Series C no 27, (1996), para. 39; *González Medina and family members v. Dominican Republic*, Preliminary objections, merits, reparations and costs, Judgment of February 27, 2012. Series C No. 240, para. 50.

⁴⁹ *Rio Negro Massacres v. Guatemala*, Judgment of 4 September 2012, IACtHR, para. 37.

⁵⁰ *Ibid.*, para. 38.

⁵¹ *Ibid.*, para. 39.

continuing violation.⁵² In *Veeber v. Estonia*, the ECtHR similarly stated that while the Convention is binding on each of the Contracting States only in respect of facts occurring after its entry into force in respect of that Party, it ‘recalls that it has endorsed the notion of a continuing violation of the Convention and its effects as to temporal limitations of the competence of Convention organs.’⁵³ In more recent decisions, the ECtHR sought to clarify further the distinction between the substantive obligations under the Convention (e.g. right to life) and the ‘detachable’ procedural obligations that attach thereto (obligation to carry out an effective investigation) and which may persist even if the alleged act occurred prior to the relevant entry into force date, and in so doing placing conditions on their application.⁵⁴ In a set of principles developed in the cases of *Šilih v. Slovenia* and *Janowiec and Others v. Russia*, the ECtHR held that its temporal jurisdiction as regards compliance with the procedural obligation of Article 2 in respect of deaths that occur before the critical date is not open-ended. It developed a three-tiered test to govern its application: (i) where the death occurred before the critical date, the ECtHR’s temporal jurisdiction will extend only to the procedural acts or omissions in the period subsequent to that date; (ii) the procedural obligation will come into effect only if there was a ‘genuine connection’ between the death as the triggering event and the entry into force of the Convention; and (iii) a connection which is not ‘genuine’ may nonetheless be sufficient to establish the ECtHR’s jurisdiction if it is needed to ensure that the guarantees and the underlying values of the Convention are protected in a real and effective way.⁵⁵ Applying these principles, in the *Šilih* case, the ‘genuine connection’ standard was satisfied since the lapse of time between the triggering event and the ratification date remained reasonably short, and a significant proportion of the investigative steps required for ensuring compliance with the procedural obligation under Article 2 were carried out after the ratification date. By contrast, in *Janowiec and Others v. Russia*, which dealt with much older violations related to the notorious Katyn massacre during WWII, the ECtHR held that the time lapse between the deaths (1940) and the ratification date (5 May 1998) was too long in absolute terms for a ‘genuine connection’ to be established between the death of the applicants’ relatives and the entry into force of the Convention in respect of Russia.⁵⁶ In relation to the alternative ‘convention values’ test in *Janowiec*, the ECtHR set out its understanding by holding ‘reference to the underlying values of the Convention to mean

⁵² See e.g. *Cyprus v. Turkey*, 25781/94, Judgment (Merits), 10 May 2001, para. 136: ‘... the Court concludes that there has been a continuing violation of Article 2 on account of the failure of the authorities of the respondent State to conduct an effective investigation aimed at clarifying the whereabouts and fate of Greek-Cypriot missing persons who disappeared in life-threatening circumstances’.

⁵³ See also *Papamichalopoulos and Others v. Greece*, Judgment, 24 June 1993, paras. 40–46, and *Loizidou v. Turkey*, Judgment (Merits), 18 December 1996, para. 41.

⁵⁴ *Šilih v. Slovenia*, Judgment (Merits and Just Satisfaction), 9 April 2009, para. 159: ‘the procedural obligation to carry out an effective investigation under Article 2 has evolved into a separate and autonomous duty ... In this sense it can be considered to be a detachable obligation arising out of Article 2 capable of binding the State even when the death took place before the critical date’.

⁵⁵ *Janowiec and Others v. Russia*, Judgment (Merits and Just Satisfaction), 21 October 2013, para. 141. See also *Šilih v. Slovenia*, Judgment (Merits and Just Satisfaction), 9 April 2009, para. 162–163. In *Varnava and Others v. Turkey*, the Court further clarified the distinction between the obligation to investigate a suspicious death and the obligation to investigate a suspicious disappearance: ‘A disappearance is a distinct phenomenon, characterised by an ongoing situation of uncertainty and unaccountability in which there is a lack of information or even a deliberate concealment and obfuscation of what has occurred... This situation is very often drawn out over time, prolonging the torment of the victim’s relatives. It cannot therefore be said that a disappearance is, simply, an “instantaneous” act or event; the additional distinctive element of subsequent failure to account for the whereabouts and fate of the missing person gives rise to a continuing situation. Thus, the procedural obligation will, potentially, persist as long as the fate of the person is unaccounted for; the ongoing failure to provide the requisite investigation will be regarded as a continuing violation... This is so, even where death may, eventually, be presumed.’

⁵⁶ *Janowiec and Others v. Russia*, Judgment (Merits and Just Satisfaction), 21 October 2013, paras. 157. Recalling its findings in *Šilih*, the Court also stated: ‘for a “genuine connection” to be established, both criteria must be satisfied: the period of time between the death as the triggering event and the entry into force of the Convention must have been reasonably short, and a major part of the investigation must have been carried out, or ought to have been carried out, after the entry into force’; *ibid.*, paras. 147–148.

that the required connection may be found to exist if the triggering event was of a larger dimension than an ordinary criminal offence and amounted to the negation of the very foundations of the Convention. This would be the case with serious crimes under international law, such as war crimes, genocide or crimes against humanity, in accordance with the definitions given to them in the relevant international instruments.⁵⁷ It nonetheless held in the case at hand that although the ‘Convention values’ clause could apply to events that predated Russia’s adherence to the Convention, it should not be applied to events which occurred prior to the adoption of the Convention itself, on 4 November 1950.⁵⁸

3. Continuing crimes under the Rome Statute

Although the question of continuing crimes was left unresolved in Rome, it was expressly addressed by the Preparatory Commission in footnote 24 of the elements of crimes for the crime of enforced disappearance. The footnote states that both stages of the material elements of the crime need to occur after the entry into force of the Statute, as part of an attack that is within the temporal jurisdiction of the Court.⁵⁹ This clarification removes the scope for the Court to interpret article 7(1)(i) as permitting the type of continuing crimes approach sustained in other fora when examining the persisting responsibility of States to provide redress for disappearance that commenced prior to the relevant statutory temporal limitation clause. It might be argued that footnote 24 is highly specific to the crime of enforced disappearance and as such does not to provide guidance for other crimes within the jurisdiction of the Court. The more reasonable position, in the light of the debates surrounding the adoption of footnote 24 and the matters of principle it addresses, is that it provides guidance also for how other crimes should be addressed where only one part of the material elements carries over into the temporal jurisdiction of the Court and the other part remains completed in the past.

Distinguishable from the above are cases that constitute ‘continuing crimes’ in the sense of an ongoing course of criminal activity. In these cases, the conduct repeats itself, meaning all of the material elements of the crime recur each day and may therefore be properly described as a series of discrete acts that are completed each time they are committed. Since the acts concerned can be distinguished between those that occur prior to and those that occur after the relevant entry into force date, issues related to temporal limitations or the principle of non-retroactivity do not arise in the same way. Even if the conduct has identical parameters in terms of location, subject-matter, and participants (such as repeat acts of torture in detention committed by the same perpetrator against the same victim), those acts that occur after the relevant entry into force date will fall within the applicable temporal scope, even if it formed part of a course of conduct or ongoing criminal activity that began at an earlier date.

By way of example, Trial Chamber I in its Judgment in the *Lubanga* case observed that the crime of the conscription or enlistment of children under the age of fifteen years occurred every day that the underage children continued to be illegally recruited. As the Trial Chamber stated: ‘These offences are continuous in nature. They end only when the child

⁵⁷ *Ibid.*, para. 150. As the Court further observed: ‘The heinous nature and gravity of such crimes prompted the contracting parties to the Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes Against Humanity to agree that they must be imprescriptible and not subject to any statutory limitation in the domestic legal order.’

⁵⁸ See *Janowiec and Others v. Russia*, Judgment (Merits and Just Satisfaction), 21 October 2013, Joint Partly Dissenting Opinion of Judges Spielmann, Villiger and Nussberger and Partly Dissenting and Partly Concurring Opinion or Judge Wotjyczek. See discussion in Heri, ‘Enforced Disappearance and the European Court of Human Rights’ *ratione temporis* Jurisdiction: A Discussion of Temporal Elements in *Janowiec and Others v. Russia*, (2014) 12 JICJ 751–768.

⁵⁹ Elements of Crimes, article 7(1)(i). As Ambos observes, this means that the Statute excludes individual acts of enforced disappearance committed after the entry into force of the Statute, but before the collective attack; *Treatise on International Criminal Law*, Volume II (2014), p. 112. Nonetheless, since the relevant conduct must always have a nexus with the chapeau of article 7 any individual act would perforce need to occur within the context of the attack in question.

reaches 15 years of age or leaves the force or group'.⁶⁰ In its confirmation decision, the Pre-Trial Chamber had similarly held: 'the crime of enlisting and conscripting is an offence of a continuing nature – referred to by some courts as a "continuous crime" and by others as a "permanent crime"'. The crime of enlisting or conscripting children under the age of fifteen years continues to be committed as long as the children remain in the armed groups or forces and consequently ceases to be committed when these children leave the groups or reach age fifteen'.⁶¹

- 24 These observations appear to lend support to the proposition that for the crime of conscription or enlistment of children the moment of first recruitment may not be the decisive factor. Although the initial act of recruitment will constitute a discrete event, arguably the essence of the probation is not merely the original moment of conscription or enlistment, but rather the child's continuing membership in the armed group or force, for the duration of such membership while under the age of fifteen years.⁶² In line with the reasoning in *Lubanga*, because the act of underage membership occurs every day that the child remains enlisted or conscripted, it may be said to commence and be completed on each successive day it continues to occur. In contrast to the bifurcated *actus reus* for the crime of enforced disappearance which may be separated over time, with possibly only the denial part occurring within the temporal jurisdiction of the ICC, all of material elements of the crime of conscription or enlistment of children (continuing membership of an armed group or force for the duration of such membership while under the age of fifteen years) occur each successive day.⁶³ The ICC could thus exercise jurisdiction where an underage child was recruited prior to the entry into force of the Statute⁶⁴ and continued, post entry into force date, to be a member of such armed group or force while under the age of fifteen.⁶⁵ The same considerations would apply to the use of children under the age of fifteen to participate actively in hostilities where, again, this straddled the applicable temporal threshold.

The above reasoning appears to be supported by footnote 25 of the Elements, which deals with the material elements for the first stage of the crime of enforced disappearance, namely: arrest, detention and abduction. The footnote clarifies that 'detention' for the purpose of article 7(1)(i) includes 'a perpetrator who maintained an existing detention'. This means that

⁶⁰ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 618 <<https://www.legal-tools.org/doc/677866/>>. The term 'continuing crimes' is also referred to by Pre-Trial Chamber III in its article 15 authorisation decision: 'Bearing in mind the volatile environment in Côte d'Ivoire, the Chamber finds it necessary to ensure that any grant of authorisation covers investigations into "continuing crimes" – those whose commission extends past the date of the application. Thus, crimes that may be committed after the date of the Prosecutor's application will be covered by any authorisation, insofar as the contextual elements of the continuing crimes are the same as for those committed prior to 23 June 2011. They must, at least in a broad sense, involve the same actors and have been committed within the context of either the same attacks (crimes against humanity) or the same conflict (war crimes). Therefore if the authorisation is granted, it will include the investigation of any ongoing and continuing crimes that may be committed after the 23 June 2011 as part of the ongoing situation'. However this appears to be a misnomer, since the Chamber here appears to be referring to the continuing nature not of specific acts, but of related crimes in general; *Situation in the Republic of Côte d'Ivoire*, Situation No. ICC-02/11, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', Pre-Trial Chamber III, ICC-02/11-14-Corr, 15 November 2011, para. 179 <<https://www.legal-tools.org/doc/e0c0eb/>>; on this point see Judge Fernández de Gurmendi's separate and partially dissenting opinion to the Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire, ICC-02/11-15, paras. 64–70 <<https://www.legal-tools.org/doc/ea2793/>>.

⁶¹ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on Confirmation of Charges, Pre-Trial Chamber I, 29 January 2007, para. 248 <<https://www.legal-tools.org/doc/b7ac4f/>>.

⁶² Rastan, in: Stahn (ed.), *The Law and Practice of the International Criminal Court* (2015), p. 173.

⁶³ The elements provide in relevant part that: (i) 'The perpetrator conscripted or enlisted one or more persons into [the national armed forces][an armed force or group]...'; and (ii) 'Such person or persons were under the age of 15 years'; Elements of Crimes, article 8(2)(b)(xxvi) and article 8(2)(c)(vii).

⁶⁴ I.e. entry into force of the Statute within the meaning of article 11(1) or entry into force of the Statute for the State concerned within the meaning of article 11(2).

⁶⁵ See similarly El Zeidy (2005) 5 *ICLRev* 90–99.

a case of enforced disappearance may fall within the temporal jurisdiction of the Court without impacting on article 11 or footnote 24, where a perpetrator detains a person prior to July 2002, continues to hold that person in detention after that date, and thereafter refuses to give information on the fate or whereabouts of the person (i. e. disappearance in custody) – since in this scenario all of the materials elements of the crime (i. e. both stages of the crime of enforced disappearance) would occur after the entry into force of the Statute.

These same considerations would hold for any other crimes all of whose material parameters continue to occur after the temporal threshold of the Court jurisdiction, even if they formed part of a course of conduct that commenced at an earlier date, without offending articles 11, 22 and 24 of the Statute. 25

The above reasoning could also apply to modes of participation with regard to acts committed after the entry into force of the Statute that were in furtherance of, to take one mode of liability as an example, an order given prior thereto. If such an order remained in effect and crimes continued to be committed as a consequence thereof, assuming the evidentiary nexus for this proposition could be satisfied, it appears reasonable to argue that an accused who gave the standing order could be held criminally responsible under the Statute for ongoing acts committed in pursuance thereof. The same logic could be applied with respect to other modes of liability under the Statute.

The above distinction between ongoing crimes that repeat themselves and crimes that were partially completed in the past also finds support in the approach taken by the ICTR Appeals Chamber in the *Nahimana et al.* case. In particular, in that case the Trial Chamber had found that the crime of direct and public incitement to commit genocide ‘is an inchoate offence that continues in time until the completion of the acts contemplated’, thereby justifying its extension beyond the express temporal restriction contained in the ICTR Statute, which limits the Tribunal’s jurisdiction to events occurring during 1994. In so doing, the Trial Chamber found that articles in the local publication *Kangura* and RTLM radio broadcasts, including those occurring prior to 1994, constituted one continuing incitement to commit genocide such that the Tribunal could convict the appellants on the basis of the totality of the articles and broadcasts (i. e. including those occurring in 1993).⁶⁶ The Appeals Chamber reversed this finding holding that the crime of direct and public incitement to commit genocide is completed as soon as the discourse in question is uttered or published, even though the effects of incitement may extend in time.⁶⁷ It found that even if it could be concluded that the totality of the articles and broadcasts constituted one continuing incitement to commit genocide, the appellants could only be convicted for acts of direct and public incitement to commit genocide carried out during 1994.⁶⁸ As such, alleged crimes occurring in before the temporal start-date of 1 January 1994 fell outside of the Tribunal’s competence, even if they were connected to or formed part of a broader ongoing crime.⁶⁹ 26

Finally, setting aside the question of continuing crimes, international courts and tribunals have accepted the admission of evidence which pre-dates the applicable temporal jurisdiction for contextual purposes. In the above *Nahimana* case, for example, the Appeals Chamber held that a Trial Chamber may validly admit evidence relating to pre-1994 acts and rely on it where such evidence is aimed at clarifying a given context; establishing by inference the elements (in particular, criminal intent) of criminal conduct occurring in 1994; or demonstrating a deliberate pattern of conduct.⁷⁰ Thus, in relation to the case at hand, the Appeals 27

⁶⁶ *Prosecutor v. Nahimana, Barayagwiza and Ngeze*, No. ICTR-99-52-T, Judgment, Trial Chamber, 3 December 2003, para. 1017.

⁶⁷ *Prosecutor v. Nahimana, Barayagwiza and Ngeze*, No. ICTR-99-52-A, Judgment, Appeals Chamber, 28 November 2007, para. 723.

⁶⁸ *Ibid.*, paras. 724–725.

⁶⁹ *Ibid.*, para. 723.

⁷⁰ *Nahimana et al.* (Appeals Chamber Judgment), note 67, paras. 310, 315, citing *inter alia* to *Prosecutor v. Aloys Simba*, No. ICTR-01-76-AR72.2, Decision on Interlocutory Appeal Regarding Temporal Jurisdiction, Appeals Chamber, 29 July 2004, p. 4; *Prosecutor v. Aloys Ntabakuze*, No. ICTR-97-34-A, Decision on the Interlocutory Appeal against the Decision of 13 April 2000 of Trial Chamber III, Appeals Chamber, 13 November 2000, p. 5; *Prosecutor v. Nahimana, Barayagwiza and Ngeze*, No. ICTR-99-52-A, Decision on the Inter-

Chamber opined that ‘the 1993 broadcasts could explain how the RTLM listeners perceived the 1994 broadcasts and the impact these broadcasts may have had. Similarly, the pre-1994 Kangura issues were not necessarily inadmissible, since they could be relevant and have probative value in certain respects’.⁷¹ A similar approach was taken by Pre-Trial Chamber II in its confirmation decision in the *Bemba* case in relation to Prosecution submissions that the Court could infer the accused’s *mens rea* by referring to prior behaviour of his troops in the Central African Republic (CAR) in 2001 and in the Democratic Republic of the Congo (DRC) in 2002, prior to the 2002 intervention in the CAR which formed the subject matter of the case.⁷² Both events fell outside of the temporal scope of the case, while the former fell outside of the temporal scope of the Statute altogether.⁷³

II. Paragraph 2: Entry into force for particular States

- 28 For States that become Parties after 1 July 2002, paragraph 2 of article 11 stipulates that the temporal jurisdiction of the Court will apply from the entry into force of the Statute for that State. As provided in article 126, this will occur on the first day of the month after the 60th day following the deposit of by that State of its instruments of ratification, acceptance, approval or accession with the Secretary-General of the United Nations. Nonetheless, the State concerned may have already expressed its consent to the exercise of the Court’s jurisdiction by lodging a declaration pursuant to article 12(3) of the Statute. In such case, the temporal jurisdiction of the Court may have already been activated, possibly with open-ended formulation, meaning that there will be a seamless transition from the temporal jurisdiction exercised in accordance with article 12(3), while the State remained a non-Party State, and that exercised pursuant to the treaty accession provisions of article 126.⁷⁴ It is also possible that the transition between temporal jurisdiction exercised pursuant to a declaration and as a State Party is not seamless, meaning a declaration may have been lodged for a confined time period in the past, resulting in a gap. Although temporal jurisdiction will not be contiguous in this instance, it will still represent an exception to the rule set out in article 126(2) insofar as the Court will have the possibility to exercise jurisdiction with respect to an earlier period. Finally, where a new State Party has not previously lodged a declaration it may do so at the time of accession to the Statute or

locutory Appeal, Appeals Chamber, 5 September 2000, p. 6, and Separate Opinion of Judge Shahabuddeen, paras. 21, 26 and 32.

⁷¹ *Nahimana et al.* (Appeals Chamber Judgment), note 67, para. 725. See also Bourgon, in Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 550–551, who observes that evidence of preparatory and planning for genocide that pre-dates the Court’s temporal jurisdiction may be relevant to establishing the *mens rea* of the accused, citing in support the Separate Opinion of Judge Shahabuddeen in *Prosecutor v. Nahimana, Barayagwiza and Ngeze*, No. ICTR-99-52-A, Decision on the Interlocutory Appeal, Appeals Chamber, 5 September 2000, para. 11. See *a contrario* Joint Separate Opinion of Judge Lal Chand Vohrah and Judge Rafael Nieto-Navia, *ibid.*

⁷² *Prosecutor v. Bemba, Situation in the Central African Republic*, Situation No. ICC-01/05-01/08, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, ICC-01/05-01/08-424, 15 June 2009, para. 373 <<https://www.legal-tools.org/doc/07965c/>>.

⁷³ Although the Chamber ultimately disagreed both with the Prosecutor’s assertion that Bemba’s *mens rea* under article 30 could be generally inferred from alleged past behaviour of his troops as well as the correspondence of the facts at hand, it did nonetheless consider itself competent to examine the earlier incidents for the purpose of its determination in the case at hand; *ibid.*, para. 377.

⁷⁴ See e.g. the open-ended article 12(3) declaration lodged on 18 April 2003 by Côte d’Ivoire accepting the exercise of jurisdiction for crimes committed in its territory since 19 September 2002; *Situation in the Republic of Cote d’Ivoire*, Situation No. ICC-02/11, Corrigendum to ‘Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Cote d’Ivoire’, Pre-Trial Chamber III, ICC-02/11-14-Corr, 15 November 2011, para. 10 <<https://www.legal-tools.org/doc/e0c0eb/>>. By letter of 3 May 2011 Côte d’Ivoire re-affirmed the continuing validity of 18 April 2003 declaration; *ibid.*, para. 11. Côte d’Ivoire subsequently deposited its instrument of ratification on 15 February 2013.

anytime thereafter.⁷⁵ It is also possible that a State on becoming a Party to the Statute or at any time thereafter lodges a declaration pursuant to article 12(3). Thus, article 11(2) provides that the conditions on the start of the Court's temporal jurisdiction, which are linked to entry into force of the Statute for that State, apply 'unless that State has made a declaration under article 12, paragraph 3.'

Article 11, paragraph 2, uses the same restraining formulation as article 11, paragraph 1, when regulating that the Court may exercise its jurisdiction 'only with respect to' crimes committed after the relevant start date. Nonetheless, the logic contained in the phrase 'the Court may exercise its jurisdiction only with respect to crimes committed after the entry into force of this Statute for that State' does not mean that the Court is barred from exercising jurisdiction over that State's nationals who commit crimes on the territory of another State Party (or a State that has lodged a declaration). Pursuant to articles 12(2) and 12 (3), the ordinary regime for the exercise of ICC jurisdiction on the basis of the territoriality principle will apply: the phrase '[i]f a State becomes a Party to this Statute' does not endow new States Parties with the right of an opt-out over the earlier exercise of ICC jurisdiction with respect to its nationals. For the same reason, the phrase does not mean that the Security Council cannot provide jurisdiction with respect to the territory or nationals of that State for the time period before it became a State Party. It merely serves to describe, without prejudice to either articles 12 or 13, the relevant start date of the Court's temporal jurisdiction for that State.⁷⁶

Where the ICC exercises jurisdiction on the basis of active personality in relation to alleged crimes committed on the territory of a non-Party State by the nationals of several States Parties, the temporal start date for the exercise of jurisdiction may create uneven results. For example, assuming such nationals are deployed as part of a multinational coalition, the entry into force provisions might result in temporal jurisdiction applying for the nationals of some States Parties from 1 July 2002 in accordance with article 11(1), while for other States Parties temporal jurisdiction might apply from a later date in accordance with article 11(2).⁷⁷ To reduce the impact of any such discrepancy on the distribution of alleged crimes attributed within the situation, the Court could prompt the State Party concerned to consider remedying any temporal limitation in line with the process envisaged in Rule 44(1), whereby '[t]he Registrar, at the request of the Prosecutor, may inquire of a State that is not a Party to the Statute or that has become a Party to the Statute after its entry into force, on a confidential basis, whether it intends to make the declaration provided for in article 12, paragraph 3'.

Finally, it should be noted that article 11 governs the exercise of temporal jurisdiction for the Statute as a whole; it does not regulate the exercise of temporal jurisdiction with respect to amendments to the Statute for new crimes, which are treated in article 121. Thus, for example, an entirely separate jurisdictional regime has been created thereunder for the crime of aggression, including both for the entry into force of the amendment as well as for its exercise with respect to particular States.⁷⁸

⁷⁵ See e.g. declaration lodged in February 2004 by Uganda extending the exercise of the temporal jurisdiction by the Court back to 1 July 2002; *Prosecutor v. Kony et al., Situation in Uganda*, Situation No. ICC-02/04-01/05, Decision on victims' applications for participation a/0010/06, a/0064/06 to a/0070/06, a/0081/06, a/0082/06, a/0084/06 to a/0089/06, a/0091/06 to a/0097/06, a/0099/06, a/0100/06, a/0102/06 to a/0104/06, a/0111/06, a/0113/06 to a/0117/06, a/0120/06, a/0121/06 and a/0123/06 to a/0127/06, Pre-Trial Chamber II, ICC-02/04-01/05-282, 14 march 2008, para. 78 <<https://www.legal-tools.org/doc/12ef1e/>>. As Uganda deposited its instrument of ratification on 14 June 2002, the Statute entered into force for Uganda on 1 September 2002.

⁷⁶ In this sense, article 11(2) operates differently to article 124, which does provide an express right for State Parties to *opt-out* of the Court's jurisdictional regime over war crimes, even if committed by that State Party's nationals on the territory of another State, since the provision articulates an express exception to the operation of article 12, stating: 'Notwithstanding article 12, paragraph 1 and 2 ...'. Although the provision refers only to the first two paragraphs of article 12, its application must logically extend also to jurisdiction exercised pursuant to article 12(3), since the latter refers itself back to article 12(2). For discussion see Zimmerman, in: Triffterer (ed.), *Commentary* (2008) art.124, mn 5–7, who notes that two possible readings on the restrictive scope of such a notification.

⁷⁷ See Rastan, in: Stahn (ed.), *The Law and Practice of the International Criminal Court* (2015), p. 170.

⁷⁸ See Zimmerman 'Article 15bis' and 'Article 15ter'. See also [Zimmerman/Geiß], Article 8(2)(e)(xiii)–(xv).

Article 12

Preconditions to the exercise of jurisdiction

1. A State which becomes a Party to this Statute thereby accepts the jurisdiction of the Court with respect to the crimes referred to in article 5.

2. In the case of article 13, paragraph (a) or (c), the Court may exercise its jurisdiction if one or more of the following States are Parties to this Statute or have accepted the jurisdiction of the Court in accordance with paragraph 3:

- (a) The State on the territory of which the conduct in question occurred or, if the crime was committed on board a vessel or aircraft, the State of registration of that vessel or aircraft;
- (b) The State of which the person accused of the crime is a national.

3. If the acceptance of a State which is not a Party to this Statute is required under paragraph 2, that State may, by declaration lodged with the Registrar, accept the exercise of jurisdiction by the Court with respect to the crime in question. The accepting State shall cooperate with the Court without any delay or exception in accordance with Part 9.

Literature: Ambos, K., 'International Core Crimes, Universal Jurisdiction And § 153 *et seq.* of The German Criminal Procedure Code: A Commentary On The Decisions Of The Federal Prosecutor General And The Stuttgart Higher Regional Court In The Abu Ghraib/Rumsfeld Case', (2007) 18 *CLF* 43; *id.*, 'Prosecuting Guantánamo in Europe: Can and Shall the Masterminds of the "Torture Memos" be Held Criminally Responsible on the Basis of Universal Jurisdiction?' (2009) 42 *CaseWResJIL* 405; Buchan, R., 'The Mavi Marmara Incident And the International Criminal Court', (2014) 25 *CLF* 465; Lauterpacht, H., 'Law of nations and the punishment of war crimes', (1944) 21 *BYbIL* 58; Joyner, C.C., 'Arresting Impunity: The Case for Universal Jurisdiction in Bringing War Criminals to Accountability', (1996) 59 *LAPE* 153; Kaul, H.P., 'Preconditions to the Exercise of Jurisdiction', in: Cassese A. *et al.*, *The Rome Statute of The International Criminal Court: A Commentary* (Oxford University Press 2002) 583; Kirsch, P. and Holmes, J.T., *The Rome Conference on an International Criminal Court: The Negotiating Process*, (1999) 93 *AJIL* 1; Kress, C. and von Holtzendorff, L., 'The Kampala Compromise on the Crime of Aggression' (2010) 8 *JICJ* 1179; Politi, M., 'The Establishment of an International Criminal Court at a Crossroads: Issues and Prospects After the First Session of the Preparatory Committee', (1997) 13 *Nouvelles Etudes Pénales* 115; *id.*, 'The ICC and the *Crime of Aggression*: A Dream that Came Through and the Reality Ahead', (2012) 10 *JICJ* 267; Scheffer, D. J., 'The United States and the International Criminal Court', (1999) 93 *AJIL* 17; *id.*, 'Fourteenth Waldemar A. Solf Lecture in International Law: A Negotiator's Perspective on the International Criminal Court', (2001) 167 *MillRev* 1; *id.*, 'How to turn the tide using the Rome Statute's temporal jurisdiction', (2004) 2 *JICJ* 26; Stahn, C., 'The "End", the "Beginning off the End" or the "End of the Beginning"? Introducing Debates and Voices on the Crime of "Aggression"', (2010) 23 *LeidenJIL* 875; Zimmermann, A., 'Palestine and the International Criminal Court: *Quo Vadis?* Reach and Limits of Declarations under Article 12(3)', (2013) 11 *JICJ* 303.

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A. Introduction/General remarks

Article 12 on preconditions for the actual exercise of jurisdiction is fundamental to an effective ICC. The views of States were wide ranging and until the proverbial eleventh hour on 17 July 1998, in Rome, where under the Rules of Procedure of the Conference the text had to be adopted by midnight, article 12 was still a make or break provision. Even after the Conference it retains its notoriety as one of the most controversial, if not the most controversial issues.¹ Article 12 is intimately related to article 5 on crimes within the jurisdiction of the ICC², article 13 on exercise of jurisdiction³ article 17 on complementarity⁴ and article 124 (the transitional provision)⁵. In effect these provisions dealing with the intertwined aspects of jurisdiction 'were the most complex and most sensitive, and for that reason remained subject to many options as long as possible'⁶. They were, beyond doubt, indicative of the necessity to adopt a package deal. The approach taken is firstly that the offence *ratione materiae* is found in the list of core crimes contained in article 5 and defined in articles 6, 7 and 8. Secondly, the preconditions for the ICC exercising jurisdiction in the specific case must be met. Thirdly, the case must be initiated in accordance with the provisions of article 13.

From the ILC Draft Statute⁷, to the Draft Statute prepared by the Preparatory Committee⁸ and finally to the negotiations at the Rome Conference⁹, a fundamental issue in all stages of the debate was whether in cases other than where the situation was referred to the Prosecutor by the UN Security Council, acting under Chapter VII of the UN Charter¹⁰, the ICC would have vested in it inherent jurisdiction to prosecute the crimes listed in article 5 on account of ratification or acceptance of the Statute. Alternatively, would State consent be a precondition and if so for which crimes, on what basis and by which State or States.

I. The ILC Draft

The 1994 Draft Statute¹¹ was complicated and geared towards producing a Court that would operate on a restrictive consent basis and with strict Security Council control under article 23. The crimes listed were broader than article 5 of the Rome Statute. Article 21 para. 1 (a) provided for inherent jurisdiction in a case of genocide, with no additional requirement of acceptance¹². However, article 21 para. 1 (b) stipulated that the Court could exercise its jurisdiction for the other crimes referred to in article 20, namely aggression, war crimes, crimes against humanity and certain treaty crimes¹³, where the complaint was brought in accordance with article 25 para. 2 and the jurisdiction of the Court over the particular crime was accepted, under article 22, by the custodial State and by the State on the

¹ Scheffer (1999) 93 *AJIL* 17, 21.

² See A. Zimmermann, *article 5*, mn 10 second edition.

³ See S. A. Williams/W. A. Schabas, *article 13*, mn 1 second edition.

⁴ See S. A. Williams/W. A. Schabas, *article 17*, mn 2 second edition.

⁵ See A. Zimmermann, *article 124*, mn 4-7 second edition.

⁶ Kirsch and Holmes (1999) 93 *AJIL* 1, 2.

⁷ 1994 ILC Draft Statute, 29.

⁸ UN Doc.A/CONF.183/2/Add.1 (3 Apr. 1998).

⁹ See Bureau Discussion Paper, UN Doc.A/CONF.183/C.1/L.53 (6 July 1998) 11-12 [then article 7] and Bureau Proposal, UN Doc.A/CONF.183/C.1/L.59 (10 July 1998) 10-12 [then articles 7*bis* and 7*ter*.].

¹⁰ See article 13 (b).

¹¹ 1994 ILC Draft Statute.

¹² The complaint was to be brought under article 25 para. 1, 1994 ILC Draft Statute, by a State Party which was also a contracting party to the *Convention on the Prevention and Punishment of the Crime of Genocide*, 78 UNTS 277(1951), as envisaged by article VI.

¹³ Article 20 (e) and Annex. Examples included the anti-terror violence conventions such as the 1970 *Hague Convention for the Suppression of Unlawful Seizure of Aircraft*, 860 UNTS 105 and the 1988 *UN Convention Against Illicit Traffic in Narcotic Drugs and Psychotropic Substances*, UN Doc.E/CONF.82/15(19 Dec. 1988), reprinted in (1989) 28 *ILM* 497.

territory of which the act or omission in question occurred, a type of 'ceded jurisdiction'¹⁴. As well, in a case where the custodial State had received a request¹⁵ under an international agreement from another State to surrender a person for prosecution, unless the request was rejected, the acceptance by the requesting State was required. Under article 22 the ILC Draft detailed the modalities of acceptance by States Parties. It can be classified as an 'opting in' system with States specifying the crimes for which jurisdiction was accepted¹⁶. The Court did not have inherent jurisdiction, therefore, based on a State ratifying or acceding but needed a special declaration whether at the time of becoming a Party or at a later time. The ILC was of the view that this approach best reflected its general approach to the Court's jurisdiction¹⁷, that it is based on State consent with the 'Court intervening upon the will of the States concerned, rather than whenever required for protecting the interests of the international community'¹⁸. Article 23 para. 1 provided for referral by the UN Security Council acting under Chapter VII of the UN Charter for crimes referred to in article 20. With respect to aggression article 23 para. 2 detailed the prerequisite that the Security Council first determine that a State had committed aggression before a complaint of or directly related to an act of aggression could be brought. The consent regime in the ILC Draft was criticized as being 'complicated and cumbersome at best'¹⁹, and likely 'to cripple the proposed Court at worst'²⁰.

II. The Preparatory Committee's Draft

- 4 In both the *Ad Hoc* Committee²¹ set up by the General Assembly to review the ILC 1994 Draft Statute and in the Preparatory Committee established in 1996²², the same fundamental questions were raised. In the Preparatory Committee there was widespread, albeit not uniform, agreement that there should be inherent jurisdiction over genocide²³. However, as in the *Ad Hoc* Committee, there were different views on whether war crimes and crimes against humanity should be so treated²⁴.

States supporting inherent jurisdiction for all core crimes underscored the need for it because of the gravity of the crimes. Those opposing stressed State sovereignty, the consensual nature of the Court and the necessity of such to obtain maximum State support. In fact, some States argued that the preconditions of State consent set out in article 21 para. 1 (b) of the ILC Draft should have been more expansive including also the mandatory consent of the States of nationality of the accused and the victim. In the Zutphen Draft Report²⁵ which was produced to facilitate the last Preparatory Committee session the options on jurisdictional preconditions were contained in articles 6 [21] and 7 [21bis] as produced by the Working Groups of the Preparatory Committee²⁶. The articles had square brackets indicating again various alternatives and diverse positions of States.

¹⁴ It must, however, be recalled that the ILC Draft reduced the conditions for the exercise of jurisdiction set out in its earlier 1993 Draft. See Report of the ILC on the Work of its Forty-Fifth Session, 3 May-23 July 1993, UN GAOR, 48th Sess., Supp. No. 10, UN Doc. A/48/10. See Crawford (1994) 88 *AJIL* 140; Warbrick (1995) 44 *I&C CompLQ* 466, and Blakesley (1997) 13 *NEP* 177, 204.

¹⁵ Article 21 para. 2.

¹⁶ See 1994 ILC Draft Statute, commentary to article 22, 82. Note that in its 1993 Draft, the ILC Working Group had proposed two alternatives to this article, which were based on 'opting out'. 1994 ILC Draft Statute, 83. Under the 'opting out' approach, the Court's jurisdiction would have been accepted by all States Parties except for those crimes expressly designated.

¹⁷ *Ibid.*, 83.

¹⁸ Politi (1997) 13 *NEP* 149. See the *Ad Hoc* Committee Report.

¹⁹ Sadat and Wexler (1997) 13 *NEP* 163, 173.

²⁰ *Ibid.*

²¹ UN Doc.A/RES/49/53 (9 Dec. 1994).

²² UN Doc.A/RES/50/46.

²³ 1996 Preparatory Committee I, 29.

²⁴ Politi, (1997) 13 *NEP* 149-150.

²⁵ Zutphen Draft.

²⁶ Preparatory Committee Decisions Aug. 1997, 3.

III. Rome 1998 – the options

The several options contained in the Draft Statute²⁷ of the Preparatory Committee as well as other proposals were put before delegations in the Committee of the Whole. These ranged from the proposals on universal jurisdiction by Germany and automatic jurisdiction using broad bases of jurisdiction by South Korea at one end of the spectrum to the restrictive mandatory consent of all interested States proposed by some delegations. The Bureau discussion paper tried to narrow the options and its subsequent proposal likewise did so, while still retaining alternatives²⁸. The final package struck a compromise. Nevertheless, the then entrenched positions of some delegations proved to be irreconcilable. The result was that the consensus approach to adoption was thwarted and an unrecorded vote was called for late in plenary on 17 July 1998, the Statute being adopted by 120 votes in favour to 7 against with 21 abstentions. Article 12 as adopted is not as restrictive as it could have been.

1. The German proposal

The German proposal contained in article 9 para. 1, further option of the Draft Statute was based on the rationale that States individually have a legitimate basis at international law to prosecute the crimes listed in article 5 based on universal jurisdiction. It was submitted that the ICC should have the same capacity that contracting States have.

It has been well established in customary and conventional international law that certain crimes are against the universal interest, offend against universal public policy and are universally condemned. Thus, the perpetrators are considered *hostis humanis generis*, enemies of humankind and any State that obtains custody over them has a legitimate ground to prosecute in the interest of all States based on universal jurisdiction over the offence. The State needs no direct connection with the crime²⁹. It merges jurisdiction over the person with jurisdiction over the offence³⁰. In this way such serious and heinous crimes will not escape justice by falling into a jurisdictional vacuum. There is no requirement that any other States involved through territorial locus of the crime, nationality of the accused or victims must consent. The origins of universal jurisdiction can arguably be traced to international piracy on the high seas³¹, the slave trade³² and more latterly to war crimes³³, crimes against

²⁷ UN Doc.A/CONF.183/2/Add.1, articles 6 (b), 7, 9 (further option) and further option for article 7.

²⁸ Kirsch and Holmes (1999) 93 *AJIL* 1, 9.

²⁹ Ambos (2007) 18 *CLF* 43, 54–46; Ambos (2009) 42 *CaseWResJIL* 405, 421 and 443–444; Joyner (1996) 59 *LAPE* 167; Randall (1988) 66 *TexasLRev* 785 and American Law Institute, Restatement (Third) (1987) The Foreign Relations Law of the United States § 404.

³⁰ Lauterpacht (1944) 21 *BYbIL* 58, 61.

³¹ As to the right of every State to seize a pirate ship or aircraft on the high seas or otherwise outside the jurisdiction of any State and arrest the persons on board see article 19 United Nations *Convention on the Law of the Sea*, 1982, UN GAOR, Vol. XVII, 139; (1982) 21 *ILM* 1245, The *SS Lotus Case (France v. Turkey)* (1927), PCIJ Series A, No 10, 70 per Justice Moore and *In re Piracy Jure Gentium*, (1924) A.C. 586 (Sp. Ref. J.C.P.C.).

³² See Green (1984) *International Law* 179. The assimilation of slave-trader to pirate probably stems from the fact that slave trading was declared by the British Parliament to be piracy (1824), 5 Geo. IV, c. 113, ss. 9–10. See *R. v. Zulueta*, 1 Cat. & K. 215, 1 Cox C.C. 20 and *LeLouis* (1817), 2 Dods. 210. There is no indication that the 1926 *Slavery Convention*, 60 LNTS 253, as amended by the *Protocol of 1953*, 182 UNTS 51, or the *Supplementary Convention of 1956*, Canada Treaty Series No. 7 subjected alleged perpetrators to universal jurisdiction. But for rights of visit on the high seas of suspected slave-trading steps see article 110 para. 1 (b) of the *United Nations Convention on the Law of the Sea* 1982. Note Bassiouni and Nanda (1972) 12 *Santa ClaraLRev* 424.

³³ The International Military Tribunal at Nuremberg was established under the *London Charter* of 8 Aug. 1945 82 UNTS 279. The IMT held that the allied powers in signing the Charter had ‘done together what any one of them might have done singly; for it is not to be doubted that any nation has the right thus to set up special courts to administer law’: (1948) *Trials Of The Major War Criminals* 22 461. See article 6 (b) of the Charter. See also e.g., under Control Council Order No. 10, *Trial of Otto Sandrock and Three Others* (‘The Almelo Trial’) 1 *LRTWC* 35, 42 (1945); the ‘*Hostages Case*’ 8 *LRTWC*, Case No. 47, 43 (1947) and the *Remmele* trial, 15 *LRTWC* 44 (1947). Note also the application of the principle for grave breaches of the four 1949 *Geneva Conventions*:

humanity³⁴ and genocide³⁵. The International Court of Justice has yet to make a definitive pronouncement on the subject, although the views of several of its judges, which vary considerably, were set out in individual opinions in the *Arrest Warrant* case³⁶. The *ad hoc* international criminal tribunals have recognised universal jurisdiction by authorising the transfer of cases to States under this principle³⁷. The transfer of cases by the two Tribunals on the basis of universal jurisdiction has been frequently described to the Security Council in the bi-annual reports of the Presidents and Prosecutors, without any objection from members of the Council³⁸.

The German proposal attracted strong support from some delegations³⁹ and from many of the NGOs⁴⁰. The view central to this proposal was that to limit the potential of the ICC by requiring some form of State consent beyond ratification would detract from the effectiveness of the Court and even the rationale and philosophical underpinnings of it. Thus, the impact of the German proposal would have been to give the ICC universal jurisdiction⁴¹ over the

Article 49 *Geneva Convention (I) for the Amelioration of the Condition of Wounded and Sick in Armed Forces in the Field*, 75 UNTS 31; article 50 *Geneva Convention (II) for the Amelioration of the Wounded, Sick and Shipwrecked Armed Forces at Sea*, 75 UNTS 85; article 129 *Geneva Convention (III) Relative to the Treatment of Prisoners of War* 75 UNTS 135 and article 146 *Geneva Convention (IV) Relative to the Protection of Civilian Persons in Time of War* 75 UNTS 287; First Add. Prot. of 1977, 1999 Canada Treaty Series No. 2 and article 28 of the 1954 *Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict* 249 UNTS 240. There is also national legislation to support universal jurisdiction, as detailed by the ICRC, *Universal Jurisdiction v. State Consent*, Doc. ICRC/NYC (12 Oct. 1997), 2. Domestic prosecutions also evidence the use of universal jurisdiction: see *Polyukhovich v. Commonwealth of Australia* (1991), 172 CLR 501, 562–3, 565 (Aust.H.C.): Note also in a civil claim context the discussion of universal jurisdiction in *Kadić v. Karadžić*, 70 F.3d 232, 243 (2nd cir. 1995).

³⁴ On account of the grammatical construction of article 6 (c) the Charter the IMT was restricted in its jurisdiction to crimes against humanity connected to the conduct of the war: 1 *Trials Of The Major War criminals* 17 (1947); Secretary General of the United Nations, *Memorandum, The Charter And judgment Of The Nuremberg Tribunal* 66 (1949). Prosecutions by the Allied Military Tribunals acting under Control Council Order No. 10 were not so restricted. See *Alstoetter et al., The Justices Trial VI LRTWC* 1, 45–46 (1947). Domestic consideration includes *Attorney General of Israel v. Eichmann*, 36 I.L.R. 26 (1961–1962); *Demjanjuk v. Petrovsky*, 776 F.2d 571, 582 (1985, U.S. CA. Sixth Cir.) *Fédération nationale des déportés et internés résistants et patriotes et al. v. Barbie* 78 I.L.R. 125, 130 (1983) (Cass.Crim.) and *R. v. Finta* 1 S.C.R. 701 (1994). Note also article 5 para. 2 of the 1984 *Torture Convention*, 1465 UNTS 85.

³⁵ The 1948 *Genocide Convention* 78 UNTS 277 does not provide for universal jurisdiction, but for jurisdiction by the State where the offence was committed and by an international penal tribunal (article VI). However, the Convention does not prohibit States using other bases of jurisdiction and it has been argued that universal jurisdiction may be exercised on the basis of customary international law. As to what is not prohibited is permitted see the *SS Lotus Case (France v. Turkey)* (1927), PCIJ Series A, No 10, 70. Concerning genocide as a crime under customary international law see *Reservations to the Convention on Genocide* (Ad. Op.) (1951) ICJ Rep. 23; *Attorney-General of Israel v. Eichmann* (1961), 36 ILR 18, 39 (Dist. Ct.); (1962), 36 ILR 277, 304 (Supreme Ct.) and Restatement, (Third) (1987) The Foreign Relations Law of the United States § 404, Reporter's Note on § 404, 256. Note Beresin: Bassiouni (ed.), *International Criminal Law: Crimes* (1986) 271, 275. Further, it is submitted that the interest in the prevention of genocide is an *erga omnes* obligation. See *Barcelona Traction, Light and Power Company Ltd. Case* (Prelim. Obj.) (*Belgium v. Spain*), (1970) ICJ Rep. 32; GA Res. 96 I and Joyner (1996) 59 LAPE 167, 168.

³⁶ *Arrest Warrant of 11 April 2000 (Democratic Republic of Congo v. Belgium)*, Judgment, [2002] ICJ Reports 3.

³⁷ Rules of Procedure and Evidence [of the International Criminal Tribunal for the former Yugoslavia], Rule 11bis, paras. (A)(ii) and (iii), as amended 10 June 2004; Rules of Procedure and Evidence of the International Criminal Tribunal for Rwanda, Rule ii bis, paras. (A)(ii) and (iii), as amended 15 May 2004; *Prosecutor v. Bagaragaza*, No. ICTR-2005-86-11bis, Decision on Prosecutor's Request for Referral of the Indictment to the Kingdom of the Netherlands, Trial Chamber, 13 Apr. 2007.

³⁸ E.g., UN Doc.S/PV. S/PV.4999, 5, 18–19.

³⁹ E.g., UN Doc.A/CONF.183/SR.3, para. 21 (Czech Republic), para. 42 (Latvia), para. 76 (Costa Rica); UN Doc.A/CONF.183/SR.4, para. 12 (Albania), paras. 20–21 (Germany); UN Doc.A/CONF.183/SR.6, para. 4 (Belgium), para. 69 (Luxembourg); UN Doc.A/CONF.183/SR.8, para. 18 (Bosnia and Herzegovina), para. 62 (Ecuador).

⁴⁰ E.g., ICRC (UN Doc.A/CONF.183/SR.4, para. 70), I Commission of Jurists, Lawyers Committee for Hum. Rts., AI and Hum. Rts. Watch. Also: UN Doc.A/CONF.183/SR.2, para. 119; UN Doc.A/CONF.183/SR.3, para. 123; UN Doc.A/CONF.183/SR.4, para. 70.

⁴¹ Note that Germany also called this 'the German version of automatic jurisdiction'. See statement by H.-P. Kaul, Acting Head of the German Delegation in the Committee of the Whole, 9 July 1998, 1. Thus, Germany

listed crimes with no need for a separate consent of interested States. As Germany indicated⁴² the universal principle's application would have eliminated loopholes. For example, if consent of at least the territorial State was necessary and if genocide was committed in State X against nationals of State X and X is not a Party to the Statute and the Security Council does not refer the matter to the ICC⁴³ the crime would not be cognizable by the Court. Similarly, it is true in the case of internal armed conflicts that the territorial State and State of nationality will often be one and the same. The ICC would only have jurisdiction if that State had long before the conflict become a State Party or if not through political domestic pressures agreed *ad hoc* or again if the Security Council acted under Chapter VII⁴⁴. As well, the restrictions of State consent would mean that even where the custodial State was a Party to the Rome Statute and wanted to surrender the accused to the ICC, the Court would not be able to exercise jurisdiction without the consent of the other involved States.

If the German proposal had been marketable in Rome, the end result would have been the deletion of article 12 [article 7 in the Draft Statute] on preconditions. Related to this issue, it must be emphasized, is the safeguard contained in article 17 on complementarity. The ICC would have only exercised such universal jurisdiction where a national system was unwilling or unable to investigate and/or prosecute effectively. Therefore, the universal principle would not have divested national criminal courts of their primary role in prosecutions of listed crimes.

Clearly, the universal principle would have given the ICC jurisdiction if the core crimes were committed in the territory of any State, Party or non-Party to the Statute. However, non-States Parties would have been under no international legal obligation to cooperate with the Court. Therefore, the second prong of the German proposal contained in article 9 para. 2 further option, was that non-States Parties could accept the obligation to cooperate on an *ad hoc* basis, with respect to any listed crime⁴⁵.

2. The Korean proposal

Sensing opposition to the German concept of universal jurisdiction, the Republic of Korea's proposal⁴⁶, that appeared two days into the Conference on 17 June 1998, provided for so-called automatic jurisdiction. The Korean view was that by becoming a Party a State would be considered to have accepted the jurisdiction of the ICC. The jurisdictional nexus was that any one or more of four involved States Parties have consented to the ICC exercising jurisdiction over a case; either the territorial State, the states of nationality of the accused and the victim or the custodial State. This proposal differed from those below in that it allowed for the selective consent by ratification of one of the four States including the custodial State. In reality there was no difference in philosophy between the German and Korean proposals, as the universal principle is based solely upon the person accused being in the custody of the prosecuting State. The Korean proposal enjoyed wide support⁴⁷ but was not acceptable to many States who wanted a second layer of State consent⁴⁸.

used 'inherent' and 'automatic' in the same way to mean that the ICC should be vested with universal jurisdiction upon ratification by States. This must be contrasted with the term 'automatic' as used in the Korean Proposal, the United Kingdom Proposal, the Bureau Proposal and in the final text of the Statute where although acceptance of the Court's jurisdiction is automatic there are preconditions. However, they did not require a second State consent as did the opt-in and State consent regimes.

⁴² Statement by H.-P. Kaul, Acting Head of the German Delegation, Rome Conference, 19 June 1998.

⁴³ See article 13 (b).

⁴⁴ Bertram-Nothnagel, Report to the Union Internationale des Avocats 10 (12 Aug. 1998).

⁴⁵ Contrast the Statutes of the ICTY and the ICTR set up by UN Security Resolutions 827 (25 May 1993) and 955 (8 Nov. 1994), acting under Chapter VII of the Charter, which obligate all States to cooperate.

⁴⁶ UN Doc.A/CONF.183/C.1/L.6 (18 June 1998). A similar proposal had been made earlier by Sweden: ICRC (UN Doc.A/CONF.183/SR.4, para. 70), I Commission of Jurists, Lawyers Committee for Hum. Rts., AI and Hum. Rts. Watch, 4.

⁴⁷ Terra Viva, *Seoul Floats a Compromise on Jurisdiction*, No. 6, 7 (22 June 1998) and The International Criminal Court Monitor, 1 (10 July 1998): 79 % of the States present supported the Korean Proposal.

⁴⁸ *Ibid.*

3. The United Kingdom proposal

- 9 The United Kingdom⁴⁹, in further option for article 7 para. 1, provided for jurisdiction by States Parties of the ICC for crimes listed in article 5, with necessarily the same in built safeguard of complementarity. However, in article 7 para. 2 the further requirement was that both the custodial State and the State where the crime occurred consented to the jurisdiction of the ICC by being States Parties. Concern was expressed that to get the cumulative consents would be difficult⁵⁰. On 19 June 1998, the proposal was amended to delete the custodial State⁵¹.

4. The United States proposal

- 10 In cases where the Security Council does not trigger the Court's jurisdiction, the United States supported⁵² as fundamental the consent of the territorial State *and* the State of nationality of the accused person, or at a minimum only the consent of the State of nationality⁵³. The United States insisted that the ICC have no jurisdiction over the nationals of non-States Parties to the Statute. It was argued that to do so would violate article 34 the 1969 *Vienna Convention on the Law of Treaties*⁵⁴, as treaties cannot be binding on non-Party third States. The position was that it would not be acceptable for United States citizens to be accountable in a Court not accepted by the United States. The United States made it clear that it could not adhere to a text that allowed for United States forces operating abroad to be brought even conceivably before the ICC, even where the United States had not become a Party to the Statute. The United States position was that this would derogate from the ability of the United States to act as a major player in multinational humanitarian and peacekeeping operations. Protection against frivolous and arbitrary charges and other forms of inappropriate investigations and prosecution was called for⁵⁵. Of course, the United States position still left open referral of a situation by the Security Council acting under Chapter VII of the Charter as provided for in article 13 (b) of the Statute, subject of course to the veto of one of the P5. This in the United States view was the only way 'to impose the court's jurisdiction on a non-party state'⁵⁶. In effect this proposal would have resulted in an ICC controlled by the Security Council, a type of permanent *ad hoc* criminal tribunal⁵⁷.

The indispensable requirement of the acceptance of the State of nationality of the accused was not acceptable to the overwhelming majority of States as it was seen as causing a probable paralysis of the ICC. Other States had tried to assuage the United States concerns by stressing the provisions on complementarity contained in article 17 of the Statute and judicial cooperation in article 98 para. 2, that requires consent of the sending State as a precondition for the surrender to the ICC by the 'host' State of persons present in that State pursuant to international agreements. This would have meant that U.S. forces on for example peace-keeping missions or elsewhere abroad under Status of Forces Agreements would not have been amenable to prosecution before the ICC unless the U.S. consented.

⁴⁹ UN Doc.A/AC.249/WG.3/DP.1.

⁵⁰ See e.g., Lawyers Committee for Hum. Rts., Exercise of ICC Jurisdiction: The Case for Universal Jurisdiction 1 ICC Briefing Series 8 (May 1998)5.

⁵¹ ICRC (UN Doc.A/CONF.183/SR.4, para. 70), ICJ Brief, 3.

⁵² UN Doc.A/CONF.183/C.1/L.70 (14 July 1998).

⁵³ See testimony of Ambassador D. Scheffer, Head of the United States Delegation in Rome, before the United States Senate Foreign Relations Committee, 23 July 1998.

⁵⁴ 1155 UNTS 331 (1969).

⁵⁵ The passive personality basis of jurisdiction in the Korean proposal would have been a protective deterrent for such forces, giving jurisdictional acceptance to the State of nationality of victims.

⁵⁶ Testimony of Ambassador D. Scheffer, Head of the United States Delegation in Rome, before the United States Senate Foreign Relations Committee, 23 July 1998.

⁵⁷ Podgers (1998) ABAJ Sept 64, 67.

5. State 'opt-in' and case-by-case proposals

The State 'opt-in' proposal in article 6 para. 2, article 7, option 1 and article 9, option 1 of the Draft Statute was markedly different from the previous proposals as it required an actual second consent other than being a Party to the Statute. This declaration of consent over specified crimes could have been placed at the time of ratification or at a later stage. The thrust of the proposal was that before the ICC could assume jurisdiction as many as five States potentially would have had to have consented to the exercise of jurisdiction by the Court over the crime in question: that is the custodial State, the territorial State, the State that had requested extradition of the person from the custodial State, unless the request was rejected, the State of nationality of the accused and the State of nationality of the victim. The ICC would have been less competent under this proposal than States are currently under international law to prosecute domestically, where the consent of other involved States is not necessary⁵⁸.

The case-by-case approach contained in article 7, option 2 of the Draft Statute would have needed the specific consent of the States outlined *above* in the 'opt-in' Proposal. Ratification would, therefore have had little meaning in practical reality and States would have been able to render immune from consideration of the Court any individual when it seemed politically desirable. This proposal would have rendered the ICC ineffective in many cases.

In effect, both the opt-in and case-by-case consent proposals would have been jurisdiction 'à la carte'. This would have resulted in practical terms in a significantly weakened Court with most often the ICC only having jurisdiction when the Security Council referred a situation to it, with the built in Charter problem of the veto power. This would have been particularly so should both proposals have been adopted and States had preferred to follow the case-by-case approach. States as a result could have ratified with no intention of ever allowing cases to go before the Court. This would have resulted in an ineffectual Court in the majority of cases and as well have 'foment[ed] selectivity and arbitrariness'⁵⁹.

6. The Bureau Compromise

The Bureau discussion paper⁶⁰ 'had narrowed the range of options but had deliberately taken a cautious approach'⁶¹. The Proposal⁶² had likewise retained several options. Both of these had dropped the German Proposal⁶³. The Bureau Proposal in article 7 para. 1 adopted the Korean Proposal for genocide alone. For war crimes and crimes against humanity, three options were presented in article 7 para. 2: (1) the Korean Proposal, (2) the acceptance by the territorial and custodial States and in (3) the acceptance by the State of nationality of the accused alone. Some States voiced strong objections against the Korean Proposal stating that it was quasi-universal jurisdiction. However, other States pointed out that it would have been in keeping with the ability at international law of the custodial State to prosecute itself for international crimes, *stricto sensu*. They viewed the other options as too restrictive, in particular option 3 based on nationality of the accused. As well, article 7*bis* on acceptance of jurisdiction in both the discussion paper for treaty crimes and possibly for one or more of the core crimes and in Option 2 of the Proposal for crimes against humanity and war crimes was controversial as it replicated the opt-in regime. Article 7*bis* Option 1 reproduced the

⁵⁸ Lawyers Committee for Hum. Rts., Exercise of ICC Jurisdiction: The Case for Universal Jurisdiction 1 *ICC Briefing Series* 8 (May 1998)5.

⁵⁹ Hum. Rts. Watch, *Justice in the Balance: Recommendations for an Effective International Criminal Court* 46 (1998).

⁶⁰ UN Doc.A/CONF.183/c.1/L.53 (6 July 1998) 11-13.

⁶¹ Kirsch and Holmes (1999) 93 *AJIL*, 9.

⁶² UN Doc.A/CONF.183/C.1/L.59 (10 July 1998) 10-12.

⁶³ According to The Rome Treaty Conference Monitor, 10 July 1998, 2 '23 states displayed their dismay that universal jurisdiction was not reflected'. Note also the reaction of the German Delegation, as expressed in Statement by H.-P. Kaul, Acting Head of the German Delegation, Rome Conference, 19 June 1998.

automatic jurisdiction over all core crimes by States Parties. Thus, as late as 10 July 1998, with only one week left there was no consensus. The United States and other States emphasized that ‘universal jurisdiction or any variant of it’ was unacceptable⁶⁴.

The result was the introduction into the final package by the Bureau of a new article on preconditions on 17 July 1998, the present article 12 in the Statute. This article combines State acceptance of jurisdiction with preconditions for the exercise of jurisdiction by the ICC. It allows disjunctively for the acceptance, by being States Parties, of one or more of the territorial State or the State of nationality of the accused. The transitional provision contained in article 124⁶⁵ was also part of the compromise to gain the agreement of France to the Statute⁶⁶. It provides that States Parties may opt out of the ICC’s war crimes jurisdiction for a period of seven years when the alleged crimes were committed in its territory or by its nationals. States that had lobbied for the opt-in acceptance and the preconditional conjunctive approach or the State of nationality of the accused alone remained opposed. From the outset issues of jurisdiction had been a key concern for the United States⁶⁷. For the United States it was the four words ‘one or more of’ that caused the ultimate dissent. On this issue the United States proposed an amendment during the last hours of the Conference in the Committee of the Whole⁶⁸. It reads:

‘With respect to States not party to the Statute the Court shall have jurisdiction over acts committed in the territory of a State not party, or committed by officials or agents of a State not party in the course of official duties and acknowledged by the State as such, only if the State has accepted jurisdiction in accordance with this article.’

The amendment was resoundingly defeated by a no-action motion⁶⁹, adopted by 113 in favour to 17 against with 25 abstentions.

B. Analysis and interpretation of elements

I. Paragraph 1: Jurisdiction over crimes

- 13 States by becoming parties to the Statute accept the jurisdiction of the ICC for the crimes provided in article 5 of the Statute, namely, genocide, crimes against humanity, war crimes and aggression⁷⁰. It follows option 1 of the Bureau Proposal in article 7*bis*. Article 12 para. 1 therefore assumes the position of automatic jurisdiction over the listed crimes, with no possibility to opt out. However, as far as the crime of aggression is concerned, it seems that in 2010 States Parties have established a different jurisdictional regime. On the one hand, should the amendment come into force, the Court would exercise its jurisdiction in accordance with article 12⁷¹; on the other hand, prior to ratification or acceptance of the Kampala amendment, a State Party might lodge a declaration with the Registrar whereby it would exclude the Court’s jurisdiction over any act of aggression it would commit⁷². Nevertheless, by ratifying or accepting the amendment, it would allow the Court to exercise

⁶⁴ Kirsch (Nov.-Dec. 1998) *ASIL Newsletter* 1, 8.

⁶⁵ See A. Zimmermann, *article 124*, mn 1 second edition.

⁶⁶ The United States had earlier argued for a ten year transitional period for war crimes and crimes against humanity. Statement by David Scheffer, US Ambassador at Large for War Crimes Issues, American University, Washington, DC, September 2000.

⁶⁷ The Rome Treaty Conference Monitor, 18 July 1998, No. 26, 2.

⁶⁸ UN Doc. A/CONF.183/C.1/L.90 (16 July 1998).

⁶⁹ Proposed by Norway. Sweden and Denmark spoke for and China and Qatar against. UN Doc.A/CONF.183/C.1/SR.42, paras. 20–31.

⁷⁰ RC/Res.6, Annex I.

⁷¹ According to article 15*bis* (4).

⁷² As for the uncertainties and possible contrasts with article 121(5) see Cryer et al., *Introduction ICL* (2014) 324.

its jurisdiction in relation to any act of aggression which might occur on its territory, every time such an act is committed by another Party who has ratified the amendment, or, alternatively, by any accepting State under paragraph 3 of article 12, which has not lodged a similar declaration⁷³.

II. Paragraph 2

1. Acceptance by States Parties

In cases where pursuant to article 13 (a) or (c), a situation is referred to the Prosecutor by a State Party⁷⁴ or where the Prosecutor has initiated an investigation *proprio motu*⁷⁵, State acceptance is necessary⁷⁶. As discussed above, this complex and controversial issue resulted in a compromise put to the Committee of the Whole in the final package. It was an attempt by the Bureau to find a middle ground between the opposite positions of States: between those who had for the most part a preference for universal jurisdiction or a list of alternative States (territorial State, State of nationality of the accused or the victim and the custodial State) where it was sufficient that one had accepted the jurisdiction of the Court by ratifying and those that insisted on either State Party acceptance by the State of nationality of the accused or even the stricter requirement that there be acceptance conjunctively from a list of States as had been proposed in the ILC Draft⁷⁷. Article 12 as adopted by the Conference is the accommodation that was struck. It reduced the preconditions. The jurisdictional nexus is that the territorial State or the State of nationality of the accused are States Parties. These are the two primary bases of jurisdiction over the offence in international criminal law⁷⁸ and are universally accepted.

2. The different subparagraphs

a) **Territorial jurisdiction.** Territorial jurisdiction is a manifestation of State sovereignty⁷⁹. A State has plenary jurisdiction over persons, property and conduct occurring in its territory,

⁷³ In accordance with article 121 para. 5. See Kress and von Holtzendorff (2010) 8 *JICJ* 1179, 1214. See also Politi (2012) 10 *JICJ* 267, 279.

⁷⁴ In accordance with article 14.

⁷⁵ In accordance with article 15.

⁷⁶ As for the inapplicability of article 12, paragraph 2, to article 13 (b), namely in case of a referral by the UN Security Council, see: *Prosecutor v. Ahmad Muhammad Harun* ('Ahmad Harun') and *Ali Muhammad Al Abd-Al-Rahman* ('Aukushayb'), No. ICC-02/05-01/07-1-Corr, Decision on the Prosecution Application under Article 58 (7) of the Statute, Pre-Trial Chamber I, 27 April 2007, para. 16; *Prosecutor v. Jean-Pierre Bemba Gombo*, No. ICC-01/05-01/08-320, Fourth Decision on Victims' Participation, Pre-Trial Chamber III, 12 December 2008, para. 59; *Prosecutor v. Omar Hassan Ahmad Al Bashir* ('Omar Al Bashir'), No. ICC-02/05-01/09-3, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 36; *Situation in the Libyan Arab Jamahiriya*, No. ICC-01/11-01/11-1, Decision on the 'Prosecutor's Application Pursuant to Article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al-Islam Gaddafi And Abdullah Al Senussi', Pre-Trial Chamber I, 27 June 2011, para. 9. In line with this interpretation of the Statute, according to the Kampala amendment State consent is irrelevant in the case of a UN Security Council's referral pertaining to an alleged crime of aggression. See RC/Res.6, Annex III, Understanding 2.

⁷⁷ At the outset of the Conference many delegations including China, France, India, Mexico and several non-aligned States had supported the 'state consent' proposal, requiring consent even from States Parties for each prosecution.

⁷⁸ The various UN Conventions dealing with international terrorism use these bases of jurisdiction along with passive personality and the presence of the accused (custodial State) to allow for extradition or prosecution by domestic criminal courts. See e.g., article 6 of the 1979 *International Convention Against the Taking of Hostages*, 1316 UNTS 205 and article 6 of the 1997 *International Convention on the Suppression of Terrorist Bombings*, UN Doc. A/RES/52/164.

⁷⁹ *Compania Naviera Vascongado v. Steamship Cristina*, (1938) A.C. 485, 496. The territorial principle has been interpreted in some domestic courts to allow for criminal prosecution when a significant portion of the elements of the crime occur in the State. See, the Canadian case of *Libman v. The Queen*, (1985) 2 Supreme Court Reports 178. The territory of a State includes its land mass, internal waters, the twelve nautical mile territorial sea and the airspace above all of the former. Jurisdiction is recognised at international law as extending to conduct

subject only to obligations or limitations imposed by international law⁸⁰. This is the universally accepted working rule in international criminal law and can be found in bilateral extradition treaties and multilateral conventions⁸¹. Thus if a listed crime is committed in State A, a State Party to the ICC Statute, by a national of State B, whether or not State B is a State Party, State A will have enabled the ICC to take jurisdiction, whether the alleged offender is present in State A or in another custodial State Party⁸². The ICC is not, as has been argued by the United States, taking jurisdiction over non-States Parties, in violation of article 34 of the *Vienna Convention on the Law of Treaties*⁸³. When an alien commits a crime, whether a domestic common crime or an international crime such as hostage taking, on the territory of another State, a prosecution in the latter State is not dependent on the State of nationality being a Party to the pertinent treaty or otherwise consenting⁸⁴. It is not a case of a non-State Party being bound and the ICC overreaching its jurisdiction, but rather the individual being amenable to the jurisdiction of the ICC where crimes are committed in the territory of a State Party. There is no rule of international law prohibiting the territorial State from voluntarily delegating to the ICC its sovereign ability to prosecute⁸⁵.

At the time of ratification a few States made declarations concerning the territorial scope of the Rome Statute. In contrast with many other multilateral international instruments, there is no specific provision for this in the Statute. The Netherlands made a harmless but reassuring statement to the effect that the Statute applies not only to its European territory but also to the Netherlands Antilles and Aruba. More troublesome was Denmark's declaration that it does not intend the Statute to apply to the Faroe Islands and Greenland⁸⁶. While this was no doubt motivated by admirable sentiments of respect for local autonomy, it had the effect of excluding the reach of the Court from a territory which, on its own, has no right to correct the situation, because neither the Faroe Islands nor Greenland are sovereign States and as a result they cannot accede to the Statute. Were a case to arise, the Court might well take the lead from analogous cases before the European Court of Human Rights⁸⁷ and rule the Danish declaration to be an illegal reservation without any effect, in accordance with article 120 of the Statute, thereby recognising jurisdiction over the disputed territories. The ILC Special Rapporteur on the question of reservations has written that

'a statement by which a State purported to exclude the application of a treaty to a territory meant that it sought "to exclude or to modify" the legal effect which the treaty would normally have, and such a statement therefore constituted, according to the Special Rapporteur, a "true" reservation, *rationae loci*'⁸⁸.

committed on board maritime vessels and aircraft registered in a State. See *e.g.*, article 6 para. 1 (a) of the *Convention for the Suppression of Unlawful Acts Against the Safety of Maritime Navigation* (1988), 27 ILM 672. Note Sadat Wexler (1998) 13 NEP 25 includes also the State of registration of spacecraft or space stations.

⁸⁰ See *e.g.*, *North Atlantic Status of Forces Agreement*, 1951, 1953 Canada Treaty Series No. 13, and the *Agreement Concerning the Jurisdictional Immunities of U.N. Forces Between the United Nations and Cyprus*, 1964, 492 UNTS 57.

⁸¹ Furthermore, international terrorism conventions oblige States parties to amend their domestic law to provide for wide bases of jurisdiction including universality and also utilize the principle of *aut dedere, aut judicare*, obliging States to extradite or prosecute.

⁸² Once the preconditions of article 12 para. 2 have been met, other States Parties are obliged to cooperate with the ICC. See Kreß and Prost, *article 86*, mn 2-7 second edition. on the general obligation to cooperate, and Kreß and Prost, *article 89* mn 5-13 on the surrender of persons to the Court.

⁸³ 1155 UNTS 331 (1969).

⁸⁴ Note *United States v. Fawaz Yunis*, 924 F. 2d 1086 (D.C. Cir. 1991). Prosecution was based on the passive personality principle for hijacking and hostage taking. Lebanon, the State of nationality was not a Party to the 1979 *International Convention Against the Taking of Hostages*, 1316 UNTS 205, or the 1970 *Hague Convention for the Suppression of Unlawful Seizure of Aircraft*, 860 UNTS 105.

⁸⁵ The argument that such delegation is either illegal or unprecedented has been put forward since the adoption of the Statute, by Scheffer (1999) 32 *Cornell LJ* 529.

⁸⁶ See also the declaration by New Zealand concerning Tokelau.

⁸⁷ *Loizidou v. Turkey* (Preliminary Objections), Series A, No. 310.

⁸⁸ Report of the ILC on the Work of its Fiftieth Session, 20 Apr.-12 June 1998, 27 July-14 Aug. 1998, UN Doc.A/53/10 and Corr.1, para. 498.

The problem has become largely hypothetical, because Denmark withdrew the declaration in 2006.

According to article 12 para. 2(a) the Court may also exercise its jurisdiction with respect to crimes committed on board a vessel or aircraft, if the State of registration is a State Party to the Statute. It is on the basis of this provision that on 14 May 2013 the Union of the Comoros referred to the Court the situation regarding the 31 May 2010 Israeli interception of a humanitarian aid flotilla bound for the Gaza Strip. While the flotilla was comprised of eight vessels, the Court could have exercised its jurisdiction only over those acts which occurred on board of the Mavi Marmara, the Rachel Corrie, and Eleftheri Mesogios/Sofia, which were registered in the States Parties of Comoros, Cambodia, and Greece, respectively. In this respect, the Court could have acted regardless of the nationality of those allegedly responsible for the commission of the crimes at issue. In November 2014, Prosecutor Fatou Bensouda decided not to proceed to open an investigation as she considered that the situation did not meet the requirement of ‘gravity’⁸⁹.

Moreover, as far as the crime of aggression is concerned, when the Kampala amendments enter into force, the Court will not be able to exercise its jurisdiction over nationals of States not Parties, no matter where these acts might occur⁹⁰. This is an evident departure from the spirit of article 12, whose explicit reference in article 15*bis* para. 4 might find an explanation only if interpreted as aiming to regulate the preconditions to the Court’s exercise of its jurisdiction over aggression committed by nationals of a State Party within the territory of another State Party, or in all cases that might arise after a non-party State’s acceptance of the Court’s jurisdiction under article 12 para. 3.

b) Nationality of the accused. The nationality basis of jurisdiction is well entrenched in the domestic law of the majority of States. By virtue of such State practice and *opinio juris* it is a permissive rule derived from international custom that establishes extraterritorial jurisdiction⁹¹. Civil law jurisdictions provide for its use extensively and relate it to domestic common crimes as well as to crimes against the common interests of States. It is a corollary to their rules concerning the non-extradition of nationals. Common law States, on the other hand, use it for the most part only with regard to crimes prescribed by international law as envisaged in article 5 of the Rome Statute and international treaty crimes such as are contained in the international terrorism conventions⁹². In this context it is universally accepted.

None of the initial prosecutions appear to have been based on nationality of the accused. In the prosecutions concerning the situations in Uganda, the Democratic Republic of Congo, Sudan (Darfur), Kenya, Central African Republic, Côte d’Ivoire, and Libya there are no allegations that the accused persons are nationals of a State Party. Nor did the Security Council give the Court jurisdiction over acts of Sudanese or Libyan nationals committed outside of their own States. It adopted such an approach when the International Criminal Tribunal for Rwanda was established, authorising the international tribunal to prosecute crimes on Rwandan territory and crimes committed by Rwandan nationals in neighbouring States⁹³.

The Prosecutor has examined the possibility of cases based on nationality rather than territory. In his first report on communications submitted in accordance with article 15, the Prosecutor noted that there had been several allegations of acts perpetrated by nationals of

⁸⁹ Referral under Articles 14 and 12(2)(a) of the Rome Statute arising from the 31 May 2010, Gaza Freedom Flotilla situation 14 May 2013 from Comoros, 14 May 2013; OTP, Situation on Registered Vessels of Comoros, Greece and Cambodia. Article 53(1) Report, 6 November 2014. See also OTP, Situation in the Republic of Korea Article 5 Report, 23 June 2014, paras. 38–40. Cf. Buchan (2014) 25 CLF 465, 498.

⁹⁰ In accordance with article 15*bis* para. 5.

⁹¹ *The Steamship Lotus* (France v. Turkey) (1927), PCIJ Ser. No. 10.

⁹² See e.g., the 1973 *Convention on the Prevention and Punishment of Internationally Protected Persons Including Diplomatic Agents*, 1977 Canada Treaty Ser. No. 43, article 3 para. 1 (b).

⁹³ UN Doc.S/RES/955 (1994).

coalition forces during the invasion of Iraq, in 2003⁹⁴. Iraq is not at present a State Party to the Rome Statute. He pursued this in more depth in his second report, in February 2006, and especially in the statement concerning Iraq-related prosecutions. There he indicated that inquiries had been made concerning nationals of States Parties with respect to acts perpetrated on the territory of Iraq⁹⁵. However, on the same occasion the then Prosecutor Moreno Ocampo announced his decision not to seek an authorization to initiate an investigation in relation to the Iraqi situation as the ‘gravity’ requirement appeared not to be met. On 13 May 2014, Prosecutor Bensouda decided to re-open a preliminary examination of the situation in Iraq. In particular, her office will analyse alleged crimes attributed to the armed forces of the United Kingdom deployed in Iraq between 2003 and 2008⁹⁶. Should the Prosecutor decide to open an investigation, the Court’s jurisdiction would then be based on article 12 para. 2(b)⁹⁷. With respect to the crime of aggression, according to article 15*bis* para. 5 the Court cannot exercise its jurisdiction over those acts committed by nationals of States Parties within the territory of a State not Party to the Statute. Therefore, the jurisdictional regime envisaged for the crime of aggression significantly departs from that of article 12 para. 2(b).

An exception to the general principle of jurisdiction over nationals is explicitly set out in the Rome Statute with respect to persons under the age of eighteen at the time of the offence⁹⁸.

III. Paragraph 3: Acceptance by non-States Parties

- 19 In addition to the territorial and personal jurisdiction that results from ratification of the Statute with respect to a State Party, article 12 para. 3 also contemplates the possibility of a non-party State accepting the jurisdiction of the Court on an *ad hoc* basis. The provision requires such a State to lodge a declaration with the Registrar by which it accepts the exercise of jurisdiction by the Court ‘with respect to the crime in question’. The Statute describes such a State as an ‘accepting State’. The final sentence in article 12 para. 3 says that ‘[t]he accepting State shall cooperate with the Court without any delay or exception in accordance with Part 9’. However, there does not seem to be any consequence should an accepting State fail to cooperate as required⁹⁹.
- 20 Article 12 para. 3 is the residue of a provision in the 1994 ICL Draft Statute by which State consent was contemplated on a case-by-case basis. Article 12 para. 3 allows the Court to exercise jurisdiction if a non-party State makes a declaration ‘with respect to the crime in question’ committed on its territory or by one of its nationals. The reference to ‘crime’ rather than ‘situation’ might have implied that this is not analogous to a referral by a State Party or by the Security Council.¹⁰⁰ The text of article 12 para. 3 could indeed seem ambiguous in this respect. Does this refer to one of the crimes listed in article 5? In other words, are non-party States to make declarations accepting the jurisdiction of the Court with respect to one or more of genocide, crimes against humanity, war crimes, and aggression? Or is the provision to mean the acceptance of jurisdiction with respect to a specific incident or situation¹⁰¹?

⁹⁴ ‘Communications Received by the office of the Prosecutor of the ICC’, 16 July 2003, 2.

⁹⁵ ‘Letter of Prosecutor dated 9 February 2006’ (Iraq).

⁹⁶ OTP, Prosecutor of the International Criminal Court, Fatou Bensouda, re-opens the preliminary examination of the situation in Iraq, 13 May 2014.

⁹⁷ See OTP, Report on Preliminary Examination Activities 2014, 6 December 2014, paras. 44–45.

⁹⁸ Article 26.

⁹⁹ On article 12 para. 3, see: Stahn *at al.* (2005) 99 *AJIL* 421; Freeland (2006) 75 *NordicJIL* 211; Stahn (2006) 75 *JIL* 243. See also, e.g., *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte d’Ivoire’s challenge to the admissibility of the case against Simone Gbagbo, Pre-Trial Chamber I, 11 December 2014, on the occasion of which Pre-Trial Chamber I merely reminded Côte d’Ivoire of its obligation to surrender Simone Gbagbo to the Court.

¹⁰⁰ Scheffer (2004) 2 *JICJ* 26.

¹⁰¹ Kaul, in: Cassese *at al.* (eds), *The Rome Statute of The International Criminal Court: A Commentary* (2002) 583, 616. Also: Bassiouni, (1999)32 *CornellILJ* 443, 453–454; Bassiouni, *The Legislative History of the International Criminal Court: Introduction, Analysis and Integrated Text* (2005) 84–85.

To prevent abusive and one-sided use of article 12 para. 3 the ASP has modified its application somewhat. Rule 44 of the Rules of Procedure and Evidence states:

Declaration provided for in article 12 para. 3

1. 'The Registrar, at the request of the Prosecutor, may inquire of a State that is not a Party to the Statute or that has become a Party to the Statute after its entry into force, on a confidential basis, whether it intends to make the declaration provided for in article 12, paragraph 3.
2. When a State lodges, or declares to the Registrar its intent to lodge, a declaration with the Registrar pursuant to article 12, paragraph 3, or when the Registrar acts pursuant to sub-rule 1, the Registrar shall inform the State concerned that the declaration under article 12, paragraph 3, has as a consequence the acceptance of jurisdiction with respect to the crimes referred to in article 5 of relevance to the situation and the provisions of Part 9, and any rules thereunder concerning States Parties, shall apply.'

The provision in the Rules was promoted by the Americans in an attempt to 'fix' what they considered to be perverse consequences of article 12 para. 3¹⁰². The United States argued that article 12 para. 3 would allow a Saddam Hussein to invoke the jurisdiction of the Court for crimes committed by the United States in Iraq, and yet prevent it from doing the same with atrocities committed by the regime against the people of the country¹⁰³. The Rule means such a one-sided manipulation of the jurisdiction is impossible. Some supporters of the American position have taken the view that reciprocity flows automatically from the logic of a 'sensible reading' of article 12 para. 3 in any event, and that there is no need for a rule to clarify things¹⁰⁴. Others have claimed that even with the rule 44, the problem persists. According to Jack Goldsmith,

'[t]his vague provision does not, as many have stated, guarantee that Article 12(3) parties will consent to jurisdiction for all crimes related to the consent. But even if it did, the Iraqis of the world could consent under Article 12(3) and simply not show up. Rule 44(3) improves the anomaly of Article 12(3), but does not fix it'¹⁰⁵.

In any case, the Trial Chamber has noted that

'while States may choose to consent or not to the jurisdiction of the Court through declarations provided for in article 12(3) of the Statute, the scope of such declarations is predetermined by the ICC legal framework. Most notably rule 44 of the Rules explicitly limits the discretion of States in framing the situation that may be investigated by the Court. This rule mandates the Registrar to remind accepting States that "the declaration under article 12, paragraph 3, has as a consequence the acceptance of jurisdiction with respect to the crimes referred to in article 5 of relevance to the situation and the provisions of Part 9, and any rules thereunder concerning States Parties, shall apply" (emphasis added). Rule 44 of the Rules was adopted in order to ensure that States that chose to stay out of the treaty could not use the Court "opportunistically". Indeed, there were concerns that the wording of article 12(3) of the Statute, and specifically the reference to the acceptance of jurisdiction "with respect to the crime in question", would allow the Court to be used as a political tool by States not party to the Statute who could selectively accept the exercise of jurisdiction in respect of certain crimes or certain parties to a conflict'¹⁰⁶.

Therefore, the Court has made it clear that when States lodge a declaration under para. 3 they cannot give the Court jurisdiction over certain crimes only¹⁰⁷; rather, with regard to a precise 'situation', they may expressly stipulate in this sense, but always acting in compliance

¹⁰² Scheffer (1999) 93 *AJIL* 17, 18–20.

¹⁰³ Scheffer (2001) *MillRev* 167 1, 8.

¹⁰⁴ Wedgwood (1999) 32 *CornellILJ* 535, 541 (1999).

¹⁰⁵ Goldsmith (2003) 70 *UChicagoLRev* 89, fn. 11.

¹⁰⁶ *Prosecutor v. Laurent Koudou Gbagbo*, No. ICC-02/11-01/11-212, Decision on the 'Corrigendum of the challenge to the jurisdiction of the International Criminal Court on the basis of articles 12(3), 19(2), 21(3), 55 and 59 of the Rome Statute filed by the Defence for President Gbagbo (ICC-02/11-01/11-129)', Pre-Trial Chamber I, 15 August 2012, para. 59. See: Kaul, in: Cassese et al. (eds), *The Rome Statute of The International Criminal Court: A Commentary* (2002) 583, 616. Also: Bassiouni, (1999) 32 *CornellILJ* 443, 453–454; Bassiouni, *The Legislative History of the International Criminal Court: Introduction, Analysis and Integrated Text* (2005) 84–85.

¹⁰⁷ As for the crime of aggression, it is still unclear how article 12 para. 3 could reconcile with article 15bis para. 4 and the possibility of opting out. See Stahn (2010) 23 *LeidenJIL* 875, 880.

with the legal framework provided by the ICC Statute¹⁰⁸. Importantly, the Court still needs to investigate the exact content of such a framework¹⁰⁹. In this respect, it seems that States' discretion might be limited to the sphere of the jurisdiction *ratione temporis*¹¹⁰. In particular, States might indicate a starting date or a specific situation for the entire duration of which the Court would have jurisdiction. Even in such cases, however, '[t]he relevant timeframe of the investigation, if authorised, will be determined by the Chamber on the basis of the Prosecutor's Request and the supporting materials, as well as the victims' representations under Article 15 of the Statute¹¹¹'.

Moreover, it should be recalled that a declaration under article 12 para. 3 does not trigger the exercise of jurisdiction, and the Prosecutor is under no obligation with respect to article 53 of the Statute should he or she decide not to proceed¹¹². Indeed, '[u]pon receipt of a referral or a declaration pursuant to article 12 para. 3, the Office will open a preliminary examination of the situation at hand. However, it should not be assumed that a referral or an article 12 para. 3 declaration will automatically lead to the opening of an investigation'¹¹³.

- 21 Declarations under article 12 para. 3 have been lodged on behalf of Côte d'Ivoire, Uganda, Palestine, Egypt, and Ukraine. Côte d'Ivoire signed the Rome Statute on 30 November 1998, but it only ratified it in February 2013. However, on 11 October 2011 Pre-Trial Chamber III authorised the Prosecutor to initiate an investigation with regard to the crimes allegedly committed in conjunction with the elections that took place in November 2010. The jurisdictional basis for such an investigation is a declaration that Côte d'Ivoire lodged on 18 April 2003¹¹⁴. Subsequently, Pre-Trial Chamber III broadened the period covered by the investigation, which at first had 28 November 2010 as its starting date, and extended it to those facts that have been unfolding since 19 September 2002, that is, the date indicated in the 2003 declaration¹¹⁵. This suggests that declarations lodged under article 12 para. 3 may have both a retroactive and a prospective application¹¹⁶. The possibility for a declaration to backdate the Court's jurisdiction with respect to the accepting State seems to find confirma-

¹⁰⁸ See *Prosecutor v. Laurent Koudou Gbagbo*, No. ICC-02/11-01/11-321, Judgment on the appeal of Mr Laurent Koudou Gbagbo against the decision of Pre-Trial Chamber I on jurisdiction and stay of the proceedings, Appeals Chamber II, 12 December 2012, para. 84.

¹⁰⁹ *Ibid.*, fn 152.

¹¹⁰ As for the jurisdiction *ratione materiae*, see *Prosecutor v. Laurent Koudou Gbagbo*, note 108, para. 59. Moreover, it is likely that the Court will deem contrary to the spirit of rule 44 any limitations to both the jurisdictions *ratione personae* and *ratione loci*. Compare with Williams and Schabas in the Second edition of this Commentary (2007) 559.

¹¹¹ *Situation in the Republic of Cote D'Ivoire*, No. ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', Pre-Trial Chamber III, 15 November 2011, para. 15.

¹¹² *Prosecutor v. Laurent Koudou Gbagbo*, note 108, para. 57. See also OTP, Policy Paper on Preliminary Examinations, November 2013, fn. 25; Müller (2010) 8 *JICJ* 1267, 1278.

¹¹³ OTP, Policy Paper on Preliminary Examinations, November 2013, para. 76.

¹¹⁴ Republic of Côte d'Ivoire, Declaration Accepting the Jurisdiction of the International Criminal Court, 18 April 2003. See *Situation in the Republic of Côte D'Ivoire*, No. ICC-02/11-14, Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire, Pre-Trial Chamber III, 3 October 2011, para. 15. Note that subsequent to the 2003 declaration, Côte d'Ivoire submitted two letters, in 2010 and 2011. However, both Pre-Trial Chamber I and Appeals Chamber II have made it clear that the Court's jurisdiction is only determined by the first document. See *Prosecutor v. Laurent Koudou Gbagbo*, note 108, para. 66; *Prosecutor v. Laurent Koudou Gbagbo*, ICC-02/11-01/11-321, Judgment on the appeal of Mr Laurent Koudou Gbagbo against the decision of Pre-Trial Chamber I on jurisdiction and stay of the proceedings, Appeals Chamber II, 12 December 2012, para. 92. Compare with *e.g. Prosecutor v. Laurent Koudou Gbagbo*, No. ICC-02/11-01/11-9-Red, Public redacted version of 'Decision on the Prosecutor's Application Pursuant to Article 58 for a warrant of arrest against Laurent Koudou Gbagbo', Pre-Trial Chamber III, 30 November 2011, para. 12.

¹¹⁵ *Situation in the Republic of Côte D'Ivoire*, No. ICC-02/11-36, Decision on the 'Prosecution's provision of further information regarding potentially relevant crimes committed between 2002 and 2010', Pre-Trial Chamber III, 22 February 2012, para. 37. See Republic of Côte d'Ivoire, Declaration Accepting the Jurisdiction of the International Criminal Court, 18 April 2003. Compare with *Situation in the Republic of Côte D'Ivoire*, note 111, para. 212.

¹¹⁶ See Zimmermann (2013) 11 *JICJ* 303, 311.

tion in the *travaux préparatoires* and in the declaration lodged with the Registrar by Uganda¹¹⁷. In support of his application for arrest warrants of leaders of the Lord's Resistance Army, the Prosecutor included a 'Declaration on Temporal Jurisdiction', dated 27 February 2004, whereby the Republic of Uganda accepted the exercise of the Court's jurisdiction for crimes committed following the entry into force of the Statute on 1 July 2002. Because Uganda ratified the Rome Statute on 14 June 2002, it only entered into force with respect to Uganda on 1 September 2002, two months after the entry into force of the Statute itself. As indicated by the Prosecutor in a letter to the President of the Court, article 12 para. 3 was indeed the authority for Uganda's 'Declaration of Temporal Jurisdiction'¹¹⁸. Thus, both a State Party and a non-party State can, no matter when a declaration under article 12 para. 3 is lodged, backdate the Court's jurisdiction in its regard to any date after 1 July 2002. Then, it would be up to the Court to judge whether such an extension would be compatible with 'the ICC legal framework'¹¹⁹. In this respect, it seems that the Court is likely to uphold a backdated jurisdiction regarding a single, ongoing situation of crisis¹²⁰. These considerations may be relevant to the debate related to the declaration lodged on 23 January 2009 by Ali Khashan, acting as Minister of Justice of the Government of Palestine. Through such a declaration the Palestinian Authority accepted the Court's jurisdiction for 'acts committed on the territory of Palestine since 1 July 2002'. Following a preliminary examination, on 3 April 2012 the Office of the Prosecutor issued a decision according to which:

'The Office could in the future consider allegations of crimes committed in Palestine, should competent organs of the United Nations or eventually the Assembly of States Parties resolve the legal issue relevant to an assessment of article 12 or should the Security Council, in accordance with article 13(b), make a referral providing jurisdiction'¹²¹.

Indeed,

'In interpreting and applying article 12 of the Rome Statute, the Office has assessed that it is for the relevant bodies at the United Nations or the Assembly of States Parties to make the legal determination whether Palestine qualifies as a State for the purpose of acceding to the Rome Statute and thereby enabling the exercise of jurisdiction by the Court under article 12(1). The Rome Statute provides no authority for the Office of the Prosecutor to adopt a method to define the term "State" under article 12(3) which would be at variance with that established for the purpose of article 12(1)'¹²².

Subsequently, on 29 November 2012 the General Assembly of the United Nations accorded Palestine the status of 'non-member observer State'¹²³. Also, on 8 December 2014 for the very first time, Palestine was invited to participate in the ASP as an observer State¹²⁴. On 1 January 2015 Mahmoud Abbas, President of the State of Palestine, lodged a declaration under article 12 para. 3 with the Registrar, whereby accepting the Court's jurisdiction over the crimes allegedly committed within the occupied Palestinian territory, including East Jerusalem, since 13 June 2014¹²⁵. According to such a declaration, this is 'without prejudice to any other declaration the State of Palestine may decide to lodge in the future'. The following day, Palestine also transmitted to the United Nations documents relating to its

¹¹⁷ Wills (2014)12 *JICJ* 407, 415.

¹¹⁸ The Prosecutor, Luis Moreno Ocampo, Letter to the President of the International Criminal Court, 17 June 2004, ICC-01/04-1.

¹¹⁹ See *Prosecutor v. Laurent Koudou Gbagbo*, note 108, para. 59.

¹²⁰ *Ibid.*, para. 63.

¹²¹ OTP, Decision on the Situation in Palestine, 3 April 2012, para. 8.

¹²² OTP, Decision on the Situation in Palestine, 3 April 2012, para. 6.

¹²³ UN Doc. A/RES/67/19 (29 November 2012).

¹²⁴ See e.g. Sengupta (8 December 2014) *NYTimes* <<http://www.nytimes.com/2014/12/09/world/middleeast/palestinians-become-observers-at-meeting-on-international-criminal-court.html>> accessed 13 December 2014.

¹²⁵ Palestine, Declaration Accepting the Jurisdiction of the International Criminal Court, 31 December 2014; ICC, ICC-CPI-20150105-PR1080, Palestine declares acceptance of ICC jurisdiction since 13 June 2014, 5 January 2015; ASP, ICC-ASP-20150107-PR1082, The State of Palestine accedes to the Rome Statute, 7 January 2015.

accession to the Statute¹²⁶. A few days after the UN Secretary General's acceptance of Palestine's accession to the Statute, on 16 January 2015, the Office of the Prosecutor opened a preliminary examination of the situation in Palestine. Since, in relation to such a state, the Statute was supposed to enter into force only in April 2015, this decision must rely on the declaration lodged pursuant to article 12 para. 3.¹²⁷

On 13 December 2013, lawyers acting on behalf of the Egyptian Freedom and Justice Party sought to accept the Court's jurisdiction pursuant to article 12 para. 3 with respect to alleged crimes committed on the territory of the State of Egypt from 1 June 2013. However, the Office of the Prosecutor concluded that as a matter of international law the applicants lacked the *locus standi* to accept the Court's jurisdiction on behalf of Egypt as they were not in possession of 'full powers'. By applying the legal test of 'effective control,' the Office of the Prosecutor concluded that the head of the Freedom and Justice Party, Dr Morsi, had no longer the legal capacity to incur new international legal obligations on behalf of the State of Egypt. Therefore, on 25 April 2014 the Registrar communicated to the applicants the Prosecutor's decision to disregard the declaration¹²⁸.

Following a declaration lodged with the Registrar on 9 April 2014 by the then acting President of Ukraine, Oleksandr Turchynov¹²⁹, the Office of the Prosecutor announced the initiation of a preliminary examination concerning Ukraine. The declaration in question, which refers *expressis verbis* to a Parliamentary act (*i.e.*, the Declaration of Verkhovna Rada of Ukraine), accepts the Court's jurisdiction over alleged crimes committed within Ukraine's territory from 21 November 2013 to 22 February 2014. As for the compatibility of the Declaration of Verkhovna Rada of Ukraine with the 'legal framework of the Statute', a number of issues might need to be taken into consideration. In particular, such an act makes reference to a specific category of crimes (crimes against humanity), limits the Court's jurisdiction over those senior officials who were at office at the relevant time and, most importantly, indicates the names of Yanukovych Viktor Fedorovich, ex President of Ukraine, Pshonka Viktor Pavlovich, ex Prosecutor-General of Ukraine, and Zakharchenko Vitalii Yuriovich, ex Minister of Internal Affairs of Ukraine. Thus, apart from providing a limited temporal jurisdiction, it seems that Ukraine has attempted to restrict the Court's *ratione materiae* and *ratione personae* jurisdiction. In this respect, should the Prosecutor decide to ask for an authorization to initiate an investigation, he or she might consider that by lodging such a declaration Ukraine has agreed to comply with the relevant provisions of the Statute, such as article 5. Indeed, the Prosecutor has already deemed that he is not bound by the wording of a State referral when it is contrary to the principles of the Statute¹³⁰; therefore, there is no reason to believe that he or she would act in a different way in case of a *proprio motu* investigation following a declaration under article 12 para. 3. Rather, it is likely that the Prosecutor will treat this as a mere tool through which a State not Party has conferred jurisdiction to the Court over a 'situation'.

¹²⁶ ICC, ICC-CPI-20150105-PR1080, Palestine declares acceptance of ICC jurisdiction since 13 June 2014, 5 January 2015.

¹²⁷ ICC, ICC-OTP-20150116-PR1083, The Prosecutor of the International Criminal Court, Fatou Bensouda, opens a preliminary examination of the situation in Palestine, 16 January 2015.

¹²⁸ OTP, ICC-OTP-20140508-PR1003, The determination of the Office of the Prosecutor on the communication received in relation to Egypt, 8 May 2014. See also *Request Under Regulation 46(3) of the Regulations of the Court*, No. ICC-RoC46(3)-01/14-3, Decision on the 'Request for review of the Prosecutor's decision of 23 April 2014 not to open a Preliminary Examination concerning alleged crimes committed in the Arab Republic of Egypt, and the Registrar's Decision of 25 April 2014', Pre-Trial Chamber II, 12 September 2014.

¹²⁹ Ukraine, Declaration Accepting the Jurisdiction of the International Criminal Court, 9 April 2014.

¹³⁰ The Prosecutor, Luis Moreno Ocampo, Letter to the President of the International Criminal Court, 17 June 2004, ICC-01/04-1. Note: *Prosecutor v. Calliste Mbarushimana*, ICC-01/04-01/10-451, Decision on the 'Defence Challenge to the Jurisdiction of the Court', Pre-Trial Chamber I, 26 October 2011, ft 41.

C. Conclusions

Article 12 is a product of compromise supported by the overwhelming majority of States. 22 It endeavours to satisfy the many interests that were evidenced at the Rome Conference and before. It is far from perfect but was all that was possible at the time. At the time of its adoption, it looked like a serious gap, to the extent that the acceptance of the Statute by the custodial State does not act as a precondition for the exercise of jurisdiction by the ICC¹³¹. Many believed that it would result in atrocities going unpunished because the territorial State or State of nationality would not be parties or would not consent *ad hoc*, and the UN Security Council would fail to act. The First Edition of this Commentary, published in 1999, said that 'in all probability it may be assumed that the States likely to be the locus of such crimes or whose nationals are suspect will not be among the first to ratify or otherwise agree to be bound by the Statute. Initially at least once the ICC is operative, reliance will have to be on the Security Council'¹³². Many other writers were sharply critical¹³³.

That projection was probably too conservative. Many of the first countries to ratify the Statute were themselves the scene of armed conflict, with the attendant atrocities, war crimes and other acts falling within the jurisdiction of the Court. They include, for example, Fiji, Sierra Leone, Colombia, Uganda, Democratic Republic of Congo, Afghanistan, Cambodia, Macedonia and Burundi. These ratifications were unexpected, particularly by those who insisted that the Court should be premised on universal jurisdiction because conflict-afflicted States, primarily in the South, would never join. Obviously, they tend to disprove the arguments that were advanced at Rome by those who were critical of the compromise on jurisdiction in article 12. They suggest that States are ratifying the Statute precisely because they view the Court as a promising and realistic mechanism capable of addressing civil conflict, human rights abuses and war. This is entirely consistent, of course, with the logic of those who have argued over the years that international justice contributes to peace and security.

Indeed, we might ask, in hindsight, whether sixty ratifications would have been achieved so quickly had the broad universal jurisdiction proposal actually been adopted. The problem with the universal jurisdiction approach is that it leaves little incentive for States to join the Court. One way or another, whether or not States ratify the Statute, if the Court is based on universal jurisdiction, crimes committed on their territory are subject to its jurisdiction in any case. On the other hand, under the current regime as set out in article 12, States must ratify the Statute if they wish to send a message of deterrence that war crimes, crimes against humanity, genocide, and possibly aggression in the near future will not go unpunished on their territories. This they seem to be doing, in ever-increasing numbers. In other words, far from dooming the Court to inactivity, the limited jurisdictional scheme of article 12 would appear to have contributed to the rate of ratification.

¹³¹ Lawyers Committee for Hum. Rts., *The Rome Treaty for an ICC: A Brief Summary of the Main Issues*, 2 ICC Briefing Series. 1.

¹³² See Williams on Article 12 in the first edition of this Commentary (1999) 341.

¹³³ Kaul, in: Cassese at al. (eds), *The Rome Statute of The International Criminal Court: A Commentary* (2002) 583, 616. Also, Glasius, *The International Criminal Court* (2006) 61–76.

Article 13

Exercise of jurisdiction

The Court may exercise its jurisdiction with respect to a crime referred to in article 5 in accordance with the provisions of this Statute if:

- (a) A situation in which one or more of such crimes appears to have been committed is referred to the Prosecutor by a State Party in accordance with article 14;
- (b) A situation in which one or more of such crimes appears to have been committed is referred to the Prosecutor by the Security Council acting under Chapter VII of the Charter of the United Nations; or
- (c) The Prosecutor has initiated an investigation in respect of such a crime in accordance with article 15.

Literature: Akande, D., 'The Effects of Security Council Resolutions and Domestic Proceedings on State Obligations to Cooperate with the ICC', (2012) 10 *JICJ* 299; Condorelli, L. and Ciampi A., 'Comments on the Security Council Referral of the Situation in Darfur to the ICC', (2005) 3 *JICJ* 590; Fernandez de Gurmendi, S.A., 'The Role of the Prosecutor', in: Lee, R.S. (ed.), *The International Criminal Court: The Making of The Rome Statute* (Martinus Nijhoff Publishers 1999) 175; Politi, M., 'The Establishment of an International Criminal Court at a Crossroads: Issues and Prospects After the First Session of the Preparatory Committee', (1997) 13 *NEP* 115; Stahn, C., 'Libya, the International Criminal Court and Complementarity A Test for "Shared Responsibility"', (2012) 10 *JICJ* 325; Wilmshurst, E., 'Jurisdiction of the Court', in: Lee, R.S. (ed.), *The International Criminal Court: The Making of The Rome Statute* (Martinus Nijhoff Publishers 1999) 140; Yee, L., 'The ICC and the Security Council', in: Lee, R.S. (ed.), *The International Criminal Court* (1999) 143.

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A. Introduction/General remarks

- 1 The issue of how a case would be initiated, the so-called 'trigger mechanisms' for the exercise of jurisdiction by the ICC was, along with the other jurisdictional issues, of 'the most complex and most sensitive'¹ nature. The views expressed by States at all stages were wide-ranging and often immovable. The debate may be summed up as revolving around the following questions: (1) What was the role that the Security Council would play? (2) Should States Parties, and if so which, have to refer situations to the Prosecutor? (3) Should the Prosecutor, independently of the Security Council and States Parties, be able to initiate an investigation?

In the Rome Statute² a number of provisions relate to article 13. These are article 12 on preconditions to the exercise of jurisdiction, article 14 on referral by a State Party, article 15 on the role of the Prosecutor and the checks and balances on that role and article 16 on the deferral of investigation or prosecution following a Security Council resolution under Chapter VII of the UN Charter. To avoid overlap with the discussion in this commentary

¹ Kirsch and Holmes, (1999) 93 *AJIL* 2.

² 2187 UNTS 90 (2002) (hereinafter: 'Rome Statute').

of these articles, the background and analysis of article 13 will not delve into the complexities of their interrelationship in the course of the negotiations. In order to comprehend the inextricably intertwined nature of these provisions they should be read together.

1. The ILC Draft

In the commentary to article 12 on preconditions it is highlighted that jurisdictional issues as a whole were complicated and the thrust of the International Law Commission's 1994 Draft Statute³ was geared towards State consent and Security Council control. In contrast to the Statutes of the ICTY⁴ and the ICTR⁵, the ILC Draft Statute did not give the Prosecutor any independent powers to begin an investigation *ex officio*⁶.

The trigger mechanisms for the crime of genocide were distinguished from the other crimes covered. Article 21 para. 1 (a) and article 25 para. 1 provided for inherent jurisdiction of the ICC over the crime of genocide, in other words no additional requirement of acceptance by States Parties was necessary. The complaint initiating the preliminary phase of the criminal procedure was to be lodged by a State Party to the Statute that was also a Contracting Party to the *Genocide Convention*⁷ and consequently entitled to rely on article VI of that agreement. For all the other listed crimes article 25 para. 2 of the ILC Draft provided that a State Party that had accepted the jurisdiction of the ICC with respect to the particular crime or crimes under the 'opting-in' scheme set out in article 22 of that Draft, which necessitated a special declaration, could lodge a complaint with the Prosecutor alleging that such a crime appeared to have been committed. The ILC believed that resort to the ICC should be restricted to States Parties and that this might encourage ratification and in practical terms ensure cooperation with the Court in matters such as the provision of evidence⁸.

Article 25 para. 4 of the ILC Draft stipulated that where the Security Council under article 23 para. 1 had referred a matter to the ICC acting under Chapter VII of the UN Charter, then State Party acceptance under article 21 and the lodging of a State complaint would not be necessary⁹. The type of situation envisaged was, for example, where in similar circumstances the Security Council had the authority to establish *ad hoc* tribunals under Chapter VII. It would have allowed the Security Council to use the ICC as an alternative to setting up future *ad hoc* tribunals. Some ILC members had wanted to extend this power also to the UN General Assembly, particularly because of the veto power potentially being exercised by one or more of the P5. However, it was decided on further consideration that this would not be in keeping with the Charter, as the General Assembly does not have powers therein to affect directly the rights of States against their will¹⁰. Article 23 para. 2, dealing specifically with acts of aggression laid down the stricture that the trigger for the ICC to take jurisdiction would only be where the Security Council had determined that a State had committed the act of aggression which was the subject of the complaint.

A difficult issue was present in draft article 23 para. 3. There it was provided that no prosecution could be commenced under the Statute arising from a 'situation' which was

³ 1994 ILC Draft Statute, 29.

⁴ UN Doc. SC/RES. 827 (25 May 1993), Annex, article 18.

⁵ UN Doc. SC/RES. 955 (8 Nov. 1994), Annex, article 17.

⁶ In the Rome Statute the term *proprio motu* is used but the meaning of an investigation by the Prosecutor on an independent initiative is the same. According to the commentary to article 25 of the 1994 ILC Draft Statute, 90, one member of the Commission had suggested such an independent role where it appeared that otherwise a crime within the ICC's jurisdiction would not be investigated. However, other members stressed the need for State Party or Security Council support, at least at the initial stage of development.

⁷ *Convention on the Prevention and Punishment of Genocide*, 78 UNTS 277 (1948).

⁸ 1994 ILC Draft Statute, 89.

⁹ The ILC understood that the UN Security Council would not normally refer actual cases against individuals but 'matters' in the sense of situations to which Chapter VII of the UN Charter applied. The Prosecutor would then have had the responsibility of determining which individuals should be charged.

¹⁰ 1994 ILC Draft Statute, 86.

‘being dealt with’ by the Security Council under Chapter VII, unless the Security Council decided otherwise. The Security Council could, therefore, have obstructed the ICC from acting. Several members of the ILC, as well as States, had grave reservations with respect to this provision, as the Security Council would have been able to block prosecutions by having a situation placed on its agenda. Thus, ‘the processes of the Statute [could have been] prevented from operating through political decisions’¹¹ taken by the Security Council. Of concern too was that article 23 para 3 would introduce into the Statute substantial inequality between States members of the Security Council and non-State members and between the P5 and other States. The compromise suggested in the ILC was to delete draft article 23 para. 3 and to include in the preamble a provision that would provide for the paramountcy of the UN Charter¹².

2. The Ad Hoc Committee

- 6 In 1995 the *Ad Hoc* Committee on the Establishment of an ICC was set up by the General Assembly. With respect to trigger mechanisms a number of questions were raised arising out of the work of the ILC¹³. Diverse views were presented by delegations. Amongst the suggestions were that complaints concerning genocide should not be limited to States Parties to the *Genocide Convention*¹⁴. Others took the view that only States with a direct interest in the case, such as the custodial State, the territorial State or the State of nationality of the victim or suspect and which were able to furnish documents and other evidence should be entitled to lodge complaints. The argument for this was that it would avoid substantial costs that would be involved in lengthy investigations relating to frivolous or otherwise politically motivated or unsubstantiated complaints¹⁵. Further suggestions were made that complainant States should pay some portion of the costs of proceedings but this was opposed by other delegations¹⁶. As well, it was put forward that victims of crimes or their relatives be authorized to trigger the jurisdiction of the Court and that a special commission be set up within the structure of the Court to review such and determine whether the necessary criteria were present to support the initiation of further action¹⁷.
- 7 It was here in the *Ad Hoc* Committee that some delegations proposed that the role of the Prosecutor should be more fully elaborated and expanded to include the right to initiate *proprio motu* an investigation without State complaint or referral by the Security Council¹⁸. However, different views were expressed on this fundamental issue.
- 8 Several delegations agreed with the ILC’s provisions concerning the ability of the Security Council to refer matters to the Court as it would obviate the need for further *ad hoc* tribunals and also that such referrals under Chapter VII of the UN Charter would it was stated enhance the Court’s effectiveness¹⁹. Emphasis was laid on the fact that it would be a referral of a matter or situation and not a specific case against an individual. Different views were expressed as to whether such referral obviated the need for State consent²⁰. Several other delegations, to the contrary, expressed serious reservations, even opposition to such a role for the Security Council, stating that it would reduce ‘the credibility and moral authority of the court, excessively limit its role and undermine its independence, impartiality and autonomy’²¹ as well as politicize the new institution.

¹¹ 1994 ILC Draft Statute, Commentary, 87 para. 13.

¹² *Ibid.*, 88 para. 15.

¹³ *Ad Hoc* Committee Report, paras. 112–118.

¹⁴ *Convention on the Prevention and Punishment of Genocide*, 78 UNTS 277 (1948).

¹⁵ 1994 ILC Draft Statute, para. 112.

¹⁶ *Ibid.*

¹⁷ *Ibid.*, para. 117.

¹⁸ *Ibid.*, para. 113.

¹⁹ *Ibid.*, para. 120.

²⁰ *Ibid.*, para. 120.

²¹ *Ibid.*, para. 121.

3. The Preparatory Committee

These issues necessarily re-emerged at the first session of the Preparatory Committee in 1996. There was, however, ‘little significant movement’²². The divergent views on the role of the Security Council remained²³. Concerning State complaints, whilst some delegations were satisfied with the ability to do so for crimes, others felt that substantial modification was needed. They were uneasy with complaints against specific individuals or crimes but argued that ‘situations be referred to the Prosecutor’²⁴.

It was evident that there was growing support among delegations for empowering the Prosecutor with independent power to initiate investigations and thus to trigger the ICC’s jurisdiction *proprio motu* on the basis of information from any source²⁵. However, even in the so-called like-minded group of States, that supported an effective and impartial ICC, there were differences on the precise parameters of such a role²⁶. On the other hand some delegations were of the view that widespread acceptance of the Statute would not be achieved if the Prosecutor was to have such a role²⁷.

In the 1997 session of the Preparatory Commission these remained contentious issues and the debate was ‘long and difficult’²⁸. Draft article 21 contained the trigger mechanisms. Clearly, there was strong support for State Party referral but there remained the divergence of opinion on the issues of inherent jurisdiction versus ‘opt-in’, referrals of ‘matters’, ‘situations’ or ‘crimes’²⁹ or whether referral should be limited to States Parties with a ‘direct interest’³⁰. The ability of the Prosecutor to initiate prosecutions³¹ and the role of the Security Council³² were potential deal-breakers. These divergent views presented in alternative format in square brackets rendered it questionable whether at that stage consensus could be reached as the hard-line taken by some delegations did not reflect conciliatory action. If such a text had gone to Rome, it would have made the ‘process of decision making ... very difficult indeed’³³.

The Inter-Sessional meeting in Zutphen followed the same approach in article 6[21] as to trigger mechanisms and the substance of complaints by States, referral by the Security Council and the *proprio motu* investigatory powers of the Prosecutor in articles 10[25], 45[23] and 46[25]*bis* respectively. The potential titles in article 6[21] both in square brackets indicated options: ‘exercise of jurisdiction’ and ‘preconditions to exercise of jurisdiction’. As these suggest this article sought to present together trigger mechanisms and also preconditions to the ICC exercising jurisdiction³⁴.

The last session of the Preparatory Committee took place in March–April 1998. All of the jurisdictional issues were on the table ‘without any expectation that ... [they] would be resolved’³⁵. The hope was that they would be clarified for the Rome Conference. A number

²² Wilmschurst in: Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute* (1999) 131.

²³ 1996 Preparatory Committee I, paras. 129–144. Volume I contains the Proceedings of the Committee in March–April and August 1996. Volume II contains the Proposals.

²⁴ *Ibid.*, paras. 145–148.

²⁵ *Ibid.*, paras. 149–151. See article 25 para. 2*quat.* in square brackets 1996 Preparatory Committee II and Fernandez de Gurmendi, in: Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute* (1999) 177.

²⁶ Fernandez de Gurmendi, in: Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute* (1999) 177.

²⁷ *Ibid.* See also 1996 Preparatory Committee I, paras. 149–151.

²⁸ Wilmschurst in: Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute* (1999) 131.

²⁹ Preparatory Committee Decisions Dec. 1997, article 25, Option 1.

³⁰ *Ibid.*, Option 2.

³¹ *Ibid.*, article 25*bis* contained the substance of the role of the Prosecutor.

³² *Ibid.*, article 23 with several options for the various paragraphs detailed the role of the Security Council.

³³ Wilmschurst in: Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute* (1999) 131, 132.

³⁴ See Zutphen Draft. Note that articles 10[23] dealt with the role of the Security Council, article 45[25] with complaints by States and article 46[25*bis*] with the Prosecutor.

³⁵ *Ibid.*

of proposals were put forward by States including the United Kingdom³⁶ and Germany covering jurisdictional issues³⁷. As well, specifically on the role of the Prosecutor proposals by Argentina and Switzerland³⁸ that had been put forward in the August 1997 session and had been included in the Zutphen draft appeared in article 12 of the 1998 Preparatory Committee Draft Statute, providing for *proprio motu* powers with certain checks and balances³⁹.

4. The Rome Conference

- 11 Trigger mechanisms were discussed in the Committee of the Whole during the first and second weeks of the Rome Conference⁴⁰. With a few exceptions it appeared to be acceptable to delegations that States Parties could refer 'situations' to the ICC. The roles of the Prosecutor and the Security Council were the key issues remaining there.

The relevant articles in the Draft Statute on the role of the Prosecutor were article 6 para. 1 (c) and para. 2, articles 7, 9, 12 and 13 and article 6 lit. (b) of further option. The Conference was still divided on giving independent powers to the Prosecutor to investigate and prosecute. However, the majority of delegations were in favour of the *proprio motu* role for the Prosecutor subject to the safeguards against abuse provided in article 13. The NGOs also were pressing for an independent Prosecutor as essential for an effective and credible ICC. The thrust of the argument was that State complaints and Security Council referral were insufficient in that the ICC would operate on behalf of the international community as a whole and the ICC Prosecutor should have the same investigatory and prosecutorial powers, including the ability to receive information from any source, as in the cases of the ICTY and the ICTR⁴¹. Without this it would have been difficult to see what cases would go before the ICC, other than 'nationals from States that have "fallen out of favour"'⁴². The track record in international human rights has illustrated the unwillingness of States to lay complaints⁴³. The same concerns surfaced in Rome that had been expressed in the Preparatory Committee, in essence that to give the Prosecutor such power would overwhelm the Prosecutor and overburden the ICC and would lead to an abuse of prosecutorial power. Some States feared 'an overzealous or politically motivated Prosecutor targeting unfairly or in bad faith, highly sensitive political situations'⁴⁴. As before, these concerns were met by the various checks and balances contained in draft article 13, which was to become article 15 in the final Statute as well as final articles 19 on challenges to the jurisdiction of the Court and article 42 on the rigorous qualifications necessary for the Prosecutor and the method of election by the Assembly of States Parties.

- 12 The Bureau Discussion Paper presented to the Committee of the Whole on 6 July 1998⁴⁵, contained in article 6 the trigger mechanisms. With respect to the Prosecutor article 6 (c) presented two options. Option 1 provided for the Prosecutor to initiate an investigation in accordance with article 12 containing the checks and balances and Option 2 provided for no such prosecutorial role. During the discussions that followed many delegations spoke in favour of Option 1. However, some States indicated that more safeguards were needed. The

³⁶ UN Doc. A/AC.249/1998/WG.3/DP.1 (1998).

³⁷ UN Doc. A/AC.249/1998/DP.2 (1998).

³⁸ Preparatory Committee Decisions Aug. 1997.

³⁹ Preparatory Committee (Consolidated) Draft, 2–167. As to the checks and balances on the Prosecutor note the proposal submitted by Argentina and Germany at the last session of the Preparatory Committee in Apr. 1998 contained in UN Doc. A/AC.249/1998/WG.4/DP.35 (25 Mar. 1998). This appeared as article 13 in the Preparatory Committee Draft Statute.

⁴⁰ Wilmschurst in: Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute* (1999) 131, 133.

⁴¹ See article 18 para. 1 of the Statute of the ICTY and article 17 para. 1 of the ICTR.

⁴² I Commission of Jurists, Exercise of Jurisdiction and Complementarity, *ICJ Brief No. 2* (June 1998) 2.

⁴³ Human Rights Watch, *Justice In The Balance* (1998) 65.

⁴⁴ Fernandez de Gurmendi in: Lee (ed.), *The International Criminal Court* (1999) 181.

⁴⁵ UN Doc. A/CONF.183/C.1/L.53.

Bureau Proposal that followed on 10 July 1998⁴⁶, replicated article 6 Option 1 with no alternative Option. It indicated as a note that additional safeguards might be added and consequently the drafting of article 6 changed. However, even though informal consultations were held on additional safeguards, new proposals were not submitted⁴⁷. In the remaining days of the Conference, there was still no consensus on the *proprio motu* role of the Prosecutor. The final package that emerged on 16 July 1998 included as article 13 the Bureau Proposal on the *proprio motu* role of the Prosecutor in conjunction with article 15.

The triggering of the Court's jurisdiction by the Security Council remained until the end a matter of controversy with 'a small but vocal minority opposing any role' for it. The provisions of the Preparatory Committee's Draft Statute concerning the Security Council were contained in article 6 para. 1 (a), article 10, and articles 6 [second] (b) and 10 of Further Option. Both article 6 and the further option for article 6 had several square brackets as to 'matters' or 'situations' being the subject of the referral and whether or not reference should be made to Chapter VII of the Charter. The majority of delegations supported the need to give the Security Council such a role as had been discussed in the negotiations leading to Rome. It 'acknowledge[d] the enforcement powers of the Council' under the Charter⁴⁸. In the Preparatory Committee the possibility of the Security Council referring specific cases to the ICC for prosecution had been rejected and the issue was whether the term 'situation' or 'matter' be inserted. Those delegations that preferred 'situation' did so because of its more general nature, rejecting 'matter' as being 'too specific for the independent functioning of the Court'⁴⁹. Both the Bureau Discussion Paper and Proposal as well as the final package used 'situation' as does article 13 (b) of the Statute as adopted. 'Situation' is also found in article 13 (a) on State Party referrals. Necessarily, once the Security Council refers a situation to the Prosecutor, the Prosecutor is independent and the Security Council cannot influence the conduct of the individual criminal prosecutions that may result.

Those delegations that had opposed any Security Council involvement had argued that it would politicize the ICC and undermine its credibility. As before Rome the arguments of inequality based on the role of the P5 was presented and that the veto would be used to stop referrals involving these States or their more indirect interests. Some objections were also presented that the Security Council lacked the capacity to refer to the ICC under the Charter. However, that argument was rejected in the context of the ability of the Security Council to create the ICTY acting under Charter VII in the case of *Prosecutor v. Dusho Tadić*⁵⁰. A similar reply was applicable to the prospective ICC.

B. Analysis and interpretation of elements

The ICC has jurisdiction over the criminal offences listed in article 5, namely, genocide, crimes against humanity, war crimes and the crime of aggression. These crimes are defined in articles 6, 7, 8 and 8bis⁵¹. As far as the crime of aggression is concerned, however, the application of article 13 lit. (a) and (c) and article 13 (b) will be subject to the conditions set out in articles 15bis and 15ter⁵².

⁴⁶ UN Doc. A/CONF.183/C.1/L.59.

⁴⁷ Fernandez de Gurmendi in: Lee (ed.), *The International Criminal Court* (1999) 186–187.

⁴⁸ Yee, in: Lee (ed.), *The International Criminal Court* (1999) 147.

⁴⁹ Yee, in: Lee (ed.), *The International Criminal Court* (1999) 148.

⁵⁰ *Prosecutor v. Tadić*, No. IT-94-1-T, Decision on the Defence Motion on Jurisdiction, Trial Chamber 10 Aug. 1995. Also: *Prosecutor v. Milošević*, No. IT-02-54-T, Decision on Preliminary Motions, Trial Chamber, 8 Nov. 2001; *Prosecutor v. Kanyabashi*, No. ICTR-96-15-T, Decision on the Defence Motion on Jurisdiction, Trial Chamber II, 18 June 1997, para. 27.

⁵¹ RC/Res. 6, Annex I.

⁵² *Ibid.*, paras 3 and 4. See also Annex III to the same Resolution, Understandings 1 and 3.

I. Paragraph 1: State Party referral

- 15 States Parties can trigger the exercise of jurisdiction by the Court with respect to the crimes contained in article 5. There can be no *ad hoc* referrals by non-party States, even those that have made declarations pursuant to article 12 para. 3. Any State Party may refer a situation to the Court. This power is not restricted to States with a direct interest or involvement in the situation. Referral by a State Party must be done in accordance with article 14. It is worth noting that Pre-Trial Chamber I has held that

‘pursuant to articles 13 and 14 of the Statute, a State Party may only refer to the Prosecutor an entire “situation in which one or more crimes within the jurisdiction of the Court appear to have been committed”. Accordingly, a referral cannot limit the Prosecutor to investigate only certain crimes, e.g. crimes committed by certain persons or crimes committed before or after a given date; as long as crimes are committed within the context of the situation of crisis that triggered the jurisdiction of the Court, investigations and prosecutions can be initiated. In the case at hand, as the situation of crisis referred was ongoing at the time of the Referral (“situation qui se déroule dans mon pays”), the boundaries of the Court’s jurisdiction can only be delimited by the situation of crisis itself’.⁵³

II. Paragraph 2: Referral by the Security Council

- 16 Article 13 lit. b triggers the jurisdiction of the Court, but it also may create jurisdiction in the case of crimes committed on the territory of a State that has not yet joined the Court⁵⁴. Moreover, in referring the situation to the Court the Security Council can backdate the jurisdiction *ratione temporis* to any time after the entry into force of the Statute (i.e., 1 July 2002)⁵⁵. The Security Council may also, acting pursuant to article 13 lit. b, trigger the jurisdiction of the Court with respect to a State that has already ratified or acceded to the Statute.

The Relationship Agreement between the United Nations and the Court makes specific provision for cooperation in the event of a Security Council referral.

1. When the Security Council, acting under Chapter VII of the Charter of the United Nations, decides to refer to the Prosecutor pursuant to article 13, paragraph (b), of the Statute, a situation in which one or more of the crimes referred to in article 5 of the Statute appears to have been committed, the Secretary-General shall immediately transmit the written decision of the Security Council to the Prosecutor together with documents and other materials that may be pertinent to the decision of the Council. The Court undertakes to keep the Security Council informed in this regard in accordance with the Statute and the Rules of Procedure and Evidence. Such information shall be transmitted through the Secretary-General.
[...]
3. Where a matter has been referred to the Court by the Security Council and the Court makes a finding, pursuant to article 87, paragraph 5 (b) or paragraph 7, of the Statute, of a failure by a State to cooperate with the Court, the Court shall inform the Security Council or refer the matter to it, as the case may be, and the Registrar shall convey to the Security Council through the Secretary-General the decision of the Court, together with relevant information in the case. The Security Council, through the Secretary-General, shall inform the Court through the Registrar of action, if any, taken by it under the circumstances’.⁵⁶

⁵³ *Prosecutor v. Calliste Mbarushimana*, No. ICC-01/04-01/10-451, Decision on the ‘Defence Challenge to the Jurisdiction of the Court’, Pre-Trial Chamber I, 26 October 2011, para. 27.

⁵⁴ See, e.g., *Prosecutor v. Omar Hassan Ahmad Al Bashir* (‘Omar Al Bashir’), No. ICC-02/05-01/09-3, Decision on the Prosecutor’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 40.

⁵⁵ See, e.g., *Prosecutor v. Bahr Idriss Abu Garda*, No. ICC-02/05-02/09-1, Decision on the Prosecutor’s Application under Article 58, Pre-Trial Chamber I, 7 May 2009, para. 2.

⁵⁶ Negotiated Relationship Agreement Between the International Criminal Court and the United Nations, article 17.

If it triggers the Court's jurisdiction, the Council must live within the parameters of the Statute with respect to such matters as jurisdiction. For example, it could not request that the Court consider the atrocities committed by the Khmer Rouge in Cambodia during the late 1970s because article 11 of the Statute clearly declares that the Court cannot judge crimes committed prior to the entry into force of the Statute. In such cases, the Council would be required to set up an additional *ad hoc* tribunal. For the same reason, the Council could not transfer the powers of the existing *ad hoc* tribunals to the International Criminal Court.

Whether the Security Council must also meet the other admissibility criteria and respect the principle of complementarity when it refers a situation is a matter that seems to have been intentionally left unresolved at the Rome Conference⁵⁷. Article 18 seems to imply that a Security Council referral need not meet the admissibility criteria of article 17 because it contemplates challenges based on admissibility only in the case of a State Party referral or a case based upon the Prosecutor's *proprio motu* authority. However, the Prosecutor has made it abundantly clear, in reports to the Security Council, that even a situation referred by the Council must be admissible pursuant to the provisions of article 17⁵⁸. There have been no objections from members of the Council. Most importantly, the Court has held that 'the entire legal framework of the Statute, including its complementarity and cooperation regimes, applies also in the situations following a referral by the Security Council under article 13(b) of the Statute'⁵⁹. The Court has indeed considered the admissibility of the cases arising both from Darfur, Sudan and Libya⁶⁰. In respect of the latter situation, the Appeals Chamber has confirmed a decision by Pre-Trial Chamber I according to which, pursuant to article 17 para. 1(a), the case against Abdullah Al-Senussi was declared inadmissible before the Court⁶¹.

Referral to the International Criminal Court by the Security Council of the situation in Darfur, in western Sudan, was proposed by the International Commission of Inquiry in its January 2005 report. The Commission said that resort to the International Criminal Court would have at least six major merits. First, it said that the Court was established 'with an eye to crimes likely to threaten peace and security', and that this was 'the main reason why the Security Council may trigger the Court's jurisdiction under article 13 para. b'. Second, the Commission said that investigation and prosecution of crimes perpetrated in Darfur would 'be conducive, or contribute to, peace and stability in Darfur, by removing serious obstacles to national reconciliation and the restoration of peaceful relations'. The Commission said investigation and prosecution in the Sudan of persons with authority and prestige, who wielded control over the State apparatus, was difficult or even impossible. It said that holding trials in The Hague, 'far away from the community over which those persons still wield authority and where their followers live, might ensure a neutral atmosphere and prevent the trials from stirring up political, ideological or other passions'. Third, it argued that only the authority of the Court, reinforced by that of the United Nations Security Council, 'might compel both leading personalities in the Sudanese Government and the heads of rebels to submit to investigation and possibly criminal proceedings'. Fourth, the Commission said the

⁵⁷ Philips (1999) 10 CLF 61, 73.

⁵⁸ See, e.g., UN Doc. S/PV.5216, 2; UN Doc. S/PV.5321, 3; UN Doc. S/PV.5459, 4; UN Doc. S/PV.5589, 2.

⁵⁹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11-354, Decision on Libya's postponement of the execution of the request for arrest and surrender of Abdullah Al-Senussi pursuant to article 95 of the Rome Statute and related Defence request to refer Libya to the UN Security Council, Pre-Trial Chamber I, 14 June 2013, para. 20. See also e.g.: *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11-254, Decision requesting Libya to provide observations concerning the Court's request for arrest and surrender of Abdullah Al-Senussi, Pre-Trial Chamber I, 18 January 2013, para. 10.

⁶⁰ See e.g. *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11-163, Decision on the postponement of the execution of the request for surrender of Saif Al-Islam Gaddafi pursuant to article 95 of the Rome Statute, Pre-Trial Chamber I, 1 June 2012, para. 28 and fn 34.

⁶¹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11-565, Judgment on the appeal of Mr Abdullah Al-Senussi against the decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on the admissibility of the case against Abdullah Al-Senussi', Appeals Chamber, 24 July 2014. See also: *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11-466-Red, Decision on the admissibility of the case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013.

Court was best suited to ensure a 'veritably fair trial'. Fifth, the International Criminal Court could be activated immediately, as opposed to alternative mechanisms such as mixed or internationalised courts. Finally, proceedings before the Court 'would not necessarily involve a significant financial burden for the international community'⁶². The Commission said that the Sudanese justice system was unable and unwilling to address the situation in Darfur⁶³.

In March 2005, after several weeks of backroom discussions during which the United States proposed several other options in order to address impunity in Darfur, before ultimately conceding the referral, the Security Council sent the 'Situation in Darfur' to the Court. The representative of Argentina to the Security Council noted this was 'the first time that the Security Council, making use of article 13 of the Rome Statute, has referred to the Prosecutor a situation in which – according to the report, whose veracity we do not doubt – it appears that one or more types of crimes over which the Court has jurisdiction have been committed. We believe that this is undoubtedly a crucial precedent'⁶⁴. Resolution 1593 reads as follows:

'The Security Council,

Taking note of the report of the International Commission of Inquiry on violations of international humanitarian law and human rights law in Darfur (S/2005/60),

Recalling article 16 of the Rome Statute under which no investigation or prosecution may be commenced or proceeded with by the International Criminal Court for a period of 12 months after a Security Council request to that effect,

Also recalling articles 75 and 79 of the Rome Statute and encouraging States to contribute to the ICC Trust Fund for Victims,

Taking note of the existence of agreements referred to in Article 98–2 of the Rome Statute,

Determining that the situation in Sudan continues to constitute a threat to international peace and security, Acting under Chapter VII of the Charter of the United Nations,

1. Decides to refer the situation in Darfur since 1 July 2002 to the Prosecutor of the International Criminal Court;
2. Decides that the Government of Sudan and all other parties to the conflict in Darfur, shall cooperate fully with and provide any necessary assistance to the Court and the Prosecutor pursuant to this resolution and, while recognizing that States not party to the Rome Statute have no obligation under the Statute, urges all States and concerned regional and other international organizations to cooperate fully;
3. Invites the Court and the African Union to discuss practical arrangements that will facilitate the work of the Prosecutor and of the Court, including the possibility of conducting proceedings in the region, which would contribute to regional efforts in the fight against impunity;
4. Also encourages the Court, as appropriate and in accordance with the Rome Statute, to support international cooperation with domestic efforts to promote the rule of law, protect human rights and combat impunity in Darfur;
5. Also emphasizes the need to promote healing and reconciliation and encourages in this respect the creation of institutions, involving all sectors of Sudanese society, such as truth and/or reconciliation commissions, in order to complement judicial processes and thereby reinforce the efforts to restore long- lasting peace, with African Union and international support as necessary;
6. Decides that nationals, current or former officials or personnel from a contributing State outside Sudan which is not a party to the Rome Statute of the International Criminal Court shall be subject to the exclusive jurisdiction of that contributing State for all alleged acts or omissions arising out of or related to operations in Sudan established or authorized by the Council or the African Union, unless such exclusive jurisdiction has been expressly waived by that contributing State;
7. Recognizes that none of the expenses incurred in connection with the referral including expenses related to investigations or prosecutions in connection with that referral, shall be borne by the United Nations and that such costs shall be borne by the parties to the Rome Statute and those States that wish to contribute voluntarily;
8. Invites the Prosecutor to address the Council within three months of the date of adoption of this resolution and every six months thereafter on actions taken pursuant to this resolution;
9. Decides to remain seized of the matter.'

⁶² Report of the International Commission of Inquiry on Darfur to the United Nations Secretary-General, Pursuant to Security Council Resolution 1564 of 18 September 2004', Geneva, 25 Jan. 2005, paras. 571–572.

⁶³ *Ibid.*, para. 586.

⁶⁴ UN Doc. S/PV.5158, 7.

Although Resolution 1593 purports to exclude jurisdiction over 'nationals, current or former officials or personnel from a contributing State outside Sudan which is not a party to the Rome Statute of the International Criminal Court'⁶⁵, it also does so with respect to all other jurisdictions, except those of the State of nationality of the suspect. This is quite plainly contrary to treaty provisions binding upon virtually all United Nations Member States, including the United States. **It is well known that the four Geneva Conventions oblige a State Party 'to search for persons alleged to have committed, or to have ordered to be committed, such grave breaches, and [to] bring such persons, regardless of their nationality, before its own courts'**⁶⁶. Similar duties are imposed by the Convention Against Torture⁶⁷.

In its statement at the time Resolution 1593 was adopted, the French representative appeared to refer to this difficulty, noting 'that the jurisdictional immunity provided for in the text we have just adopted obviously cannot run counter to other international obligations of States and will be subject, where appropriate, to the interpretation of the courts of my country'⁶⁸. The representative of Brazil described operative paragraph 6 as 'a legal exception that is inconsistent in international law'⁶⁹. Moreover, Denmark said:

'We also believe that the International Criminal Court (ICC) may be a casualty of resolution 1593 (2005). Operative paragraph 6 of the resolution is killing its credibility – softly, perhaps, but killing it nevertheless. We may ask whether the Security Council has the prerogative to mandate the limitation of the jurisdiction of the ICC under the Rome Statute once the exercise of its jurisdiction has advanced. Operative paragraph 6 subtly subsumed the independence of the ICC into the political and diplomatic vagaries of the Security Council. Nevertheless, that eventuality may well be worth the sacrifice if impunity is, indeed, ended in Darfur; if human rights are, indeed, finally *protected and promoted*; and if, indeed, the rule of law there is upheld'⁷⁰.

On 26 February 2011, the UN Security Council adopted Resolution 1970, whereby it referred to the Court the situation in the Libyan Arab Jamahiriya since 15 February 2011⁷¹. This second Security Council referral adopted almost the same language of the one concerning the situation in Darfur, Sudan. As a consequence, it maintained the same flaws observed as for the former one⁷². In this respect, it should however be recalled that the Court has constantly considered that such Security Council Resolutions impose obligations only on Sudan and Libya⁷³. This means that all the other States which are not Parties to the Statute are by no means prevented from complying with their international obligations. Yet, had

⁶⁵ The provision is also similar to one included in a 2003 Security Council resolution concerning Liberia. See: UN Doc. S/RES/1497 (2003), para. 7.

⁶⁶ Convention for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field, 75 UNTS 31 (1949), article 49; Convention for the Amelioration of the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea, 75 UNTS 85 (1950), article 50; Convention Relative to the Treatment of Prisoners of War, 75 UNTS 135 (1950), article 129; Convention Relative to the Protection of Civilian Persons in Time of War, 75 UNTS 287 (1950), article 146.

⁶⁷ Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, (1987) 1465 UNTS 85, article 5.

⁶⁸ UN Doc. S/PV.5158, 8.

⁶⁹ *Ibid.*, 11.

⁷⁰ *Ibid.*, 6.

⁷¹ UN Doc. S/RES/1970 (2011).

⁷² See Stahn (2012) 10 *JICJ* 325, 328.

⁷³ *Prosecutor v. Saif-Al-Islam Gaddafi And Abdullah Al-Senussi* No. ICC-01/11-01/11-420, Decision on the request of the Defence of Abdullah Al-Senussi to make a finding of non-cooperation by the Islamic Republic of Mauritania and refer the matter to the Security Council, Pre-Trial Chamber I, 28 August 2013, paras. 14–15. See also *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-162, Decision Regarding Omar Al-Bashir's Potential Travel to the United States of America, Pre-Trial Chamber II, 18 September 2013, paras. 10–11; *Prosecutor v. Saif-Al-Islam Gaddafi And Abdullah Al-Senussi* No. ICC-01/11-01/11-477, Decision on the 'Defence Application on behalf of Mr. Abdullah Al Senussi for Leave to Appeal against the 'Decision on the request of the Defence of Abdullah Al-Senussi to make a finding of non-cooperation by the Islamic Republic of Mauritania and Refer the matter to the Security Council'', Pre-Trial Chamber I, 13 November 2013, para. 10; *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-199, Decision Regarding the Visit of Omar Hassan Ahmad Al Bashir to the Federal Republic of Ethiopia, Pre-Trial Chamber II, 29 April 2014, paras. 12–13.

such Resolutions been also addressed to other non-party States to the Statute, they might have imposed conflicting obligations upon them.

The answer to such incompatibility may lie in article 103 of the Charter of the United Nations, according to which: '[i]n the event of a conflict between the obligations of the Members of the United Nations under the present Charter and their obligations under any other international agreement, their obligations under the present Charter shall prevail'. The Court has indeed relied on this provision, together with article 25 of the UN Charter, when it has assessed the obligations upon States Parties and both Sudan and Libya to 'cooperate fully' with the Court⁷⁴.

Whatever the legality of paragraphs 6 of both Resolutions, they are most certainly incompatible with the Rome Statute⁷⁵. It should be recalled that when Uganda referred its conflict to the Court in such a way as to exclude jurisdiction over certain individuals, the Prosecutor responded with his own interpretation by which no such exception *ratione personae* could be effective⁷⁶. This is why the concept of referral in the Rome Statute relates to 'situations' rather than 'cases'. The language was adopted specifically to avoid the danger of one-sided referrals, which could undermine the legitimacy of the institution. In this respect, Pre-Trial Chamber I has affirmed that the Security Council, when referring a situation to the Court, 'has also accepted that the investigation into the said situation, as well as any prosecution arising therefrom, will take place in accordance with the statutory framework provided for in the Statute, the Elements of Crimes and the rules as a whole'⁷⁷. When the Security Council performed a similar manoeuvre, however, both Prosecutors were silent. They might have sent the Resolutions back telling the Security Council that it was impossible to proceed on such bases, and to reprise the adoptions without paragraphs 6.

Assuming that paragraphs 6 of both Resolutions 1593 and 1970 are illegal, the question of severability arises. If the impugned paragraphs cannot be excised from the Resolutions, then the entire referrals might be invalid. Certainly a future scenario cannot be automatically excluded whereby the Prosecutor seeks authorization to proceed with a case against an individual in a peacekeeping force who is not a national of a State Party for acts committed e.g. in Sudan. How could the Prosecutor rule this out at the present time? Even if the current Prosecutor were to undertake not to take such an initiative, she could not bind his successor. And this leads to the possibility that the Court might rule on the legality of paragraphs 6 – and the Resolutions as a whole – after a prosecution had already been undertaken and perhaps, even, after one had been completed. Would the Court then declare the Resolutions and the referrals to be valid, notwithstanding the offending paragraph, which it would deem inoperative? Or would it refuse to sever paragraphs 6 and conclude that the referrals as a whole were fatally flawed?

- 18 The important question of funding arises with respect to both referrals by the Security Council. In the case of tribunals formally created by the Council, it is normal that they be financed out of United Nations resources. The International Criminal Court is not a United Nations organ, and it seems unreasonable that its facilities be offered to the United Nations free of charge, so to speak. Article 115 of the Rome Statute contemplates two sources of funds for the Court, assessed contributions made by States Parties and '[f]unds provided by the United Nations, subject to the approval of the General Assembly, in particular in relation to

⁷⁴ See e.g., *Prosecutor v. Omar Hassan Ahmad Al Bashir* ('Omar Al Bashir'), note 54, paras. 245–247; *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11-72, Decision on Libya's Submissions Regarding the Arrest of Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 7 March 2012, para. 12; *Prosecutor v. Omar Hassan Ahmad Al Bashir* ('Omar Al Bashir'), No. ICC-02/05-01/09-195, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir's Arrest and Surrender to the Court, Pre-Trial Chamber II, 9 April 2014, paras 30–31.

⁷⁵ Compare with Akande (2012) 10 *JICJ* 299, 309.

⁷⁶ *Situation in Uganda*, No. ICC-02/04-01/05, Decision to Convene a Status Conference on the Investigation in the Situation in Uganda in Relation to the Application of Article 53, 2 Dec. 2005, paras. 3–4.

⁷⁷ *Prosecutor v. Omar Hassan Ahmad Al Bashir* ('Omar Al Bashir'), note 54, para. 45; *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, note 59, para. 20.

the expenses incurred due to referrals by the Security Council'. But paragraph 7 of Resolution 1593 and paragraph 8 of Resolution 1970 state that 'none of the expenses incurred in connection with the referral including expenses related to investigations and prosecutions in connection with that referral, shall be borne by the United Nations'; rather, 'such costs shall be borne by the parties to the Rome Statute and those states that wish to contribute voluntarily'. When Resolution 1593 was adopted, the United States delegate said:

We are pleased that the resolution recognizes that none of the expenses incurred in connection with the referral will be borne by the United Nations and that, instead, such costs will be borne by the parties to the Rome Statute and those that contribute voluntarily. That principle is extremely important and we want to be perfectly clear that any effort to retrench on that principle by this or other organizations to which we contribute could result in our withholding funding or taking other action in response. That is a situation that we must avoid⁷⁸.

According to Professor Condorelli, '[t]he Security Council's unilateral ruling out of the provision of funds by the United Nations to the Court in connection with Darfur is thus at odds not only with the decision to refer, but also with the duty of good faith negotiations, which flows from the obligation mutually agreed upon between the ICC and the United Nations. The position of the United Nations is unlikely to be flexible on this point'⁷⁹. However, during the debate on Resolution 1593 none of the members of the Security Council took exception to the provision in question. Like most initiatives in the Security Council, the Resolution was a diplomatic conference. Those States favouring referral to the Court must have felt they had the better of the Americans, and that the poisonous paragraphs injected by the latter did not fatally compromise the referral itself.

Article 13 para. b requires that the Security Council act under Chapter VII of the Charter of the United Nations. Resolutions 1593 and 1970 specifically declare that the Council is acting under Chapter VII. There can be little doubt that the application of Chapter VII in the context of both the Darfur and the Libyan conflicts was consistent with the Charter. As the Appeals Chamber of the International Criminal Tribunal for the former Yugoslavia has noted, 'there is a common understanding, manifested by the "subsequent practice" of the membership of the United Nations at large, that the "threat to the peace" of article 39 [of the Charter of the United Nations] may include, as one of its species, internal armed conflicts'⁸⁰. The Court is likely to show great deference for a determination by the Security Council that it is exercising its authority under article 39, although a challenge based upon the claim that the Council might be acting irregularly or *ultra vires* (that is, outside of its powers) cannot be excluded. As the Appeals Chamber of the International Criminal Tribunal for the former Yugoslavia has noted, '[t]he Security Council is thus subjected to certain constitutional limitations, however broad its powers under the constitution may be'⁸¹. In other words, the Security Council cannot refer *any* situation to the Court.

Both Prosecutors have made bi-annual reports to the Security Council on the progress, or lack of it, in implementing Resolutions 1593 and 1970⁸². This notwithstanding, the Prosecutor is under no obligation to do so pursuant to the Statute and the Security Council

⁷⁸ UN Doc. S/PV.5158, 3–4.

⁷⁹ Condorelli and Ciampi (2005) 3 *JICJ* 590, 594. See also: Fletcher and Ohlin (2006) 4 *JICJ* 428, 429–430.

⁸⁰ *Prosecutor v. Tadić*, No. IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, 2 Oct. 1995, (1997) 105 I.L.R. 453, 35 *ILM* 32, para. 30.

⁸¹ *Prosecutor v. Tadić*, No. IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, 2 Oct. 1995, (1997) 105 I.L.R. 453, 35 *ILM* 32, para. 28.

⁸² As for the situation in Darfur, Sudan see: UN Doc. S/PV.5216; UN Doc. S/PV.5321; UN Doc. S/PV.5459; UN Doc. S/PV.5589; UN Doc. S/PV.5687; UN Doc. S/PV.5789; UN Doc. S/PV.5905; UN Doc. S/PV.6028; UN Doc. S/PV.6135; UN Doc. S/PV.6230; UN Doc. S/PV.6336; UN Doc. S/PV.6440; UN Doc. S/PV.6548; UN Doc. S/PV.6688; UN Doc. S/PV.6778; UN Doc. S/PV.6887; UN Doc. S/PV.6974; UN Doc. 7080; UN Doc. S/PV.7199; UN Doc. S/PV. 7337. As for the situation in Libya, see: UN Doc. S/PV.6528; UN Doc. S/PV. 6647; UN Doc. S/PV. 6772; UN Doc. S/PV.6855; UN Doc. S/PV.6962; UN Doc. S/PV.7059; UN Doc. S/PV.7173; UN Doc. S/PV.7306.

‘invites’ rather than ‘orders’ the Prosecutor to present such reports. In December 2014, in her report concerning the situation in Darfur, Sudan, Prosecutor Bensouda claimed that ‘[i]t is becoming increasingly difficult for me to appear before the Council to update it when all I am doing is repeating the same things I have said over and over again, most of which are well known to the Council’⁸³. Indeed,

‘[i]n the almost 10 years that my Office has been reporting to the Council, no strategic recommendation has ever been provided to my Office, and neither have there been any discussions resulting in concrete solutions to the problems we face in the Darfur situation. We find ourselves in a stalemate that can only embolden perpetrators to continue with their brutality. As I have stated previously on many occasions, we must engage to define a new approach to the Darfur situation. That requires strategic thinking and changes from all sides. Faced with an environment where my Office’s limited resources for investigations are already overstretched, and given the Council’s lack of foresight on what should happen in Darfur, I am left with no choice but to put investigative activities in Darfur on hold as I shift resources to other urgent cases, especially those where trial is approaching. It should thus be clear to the Council that unless there is a change of attitude and approach to Darfur in the near future, there will continue to be little or nothing to report to it for the foreseeable future. The question for the Council to answer is what meaningful purpose my reporting was intended to serve and whether that purpose is being achieved’⁸⁴.

III. Paragraph 3: Independent prosecutor

- 20 The Prosecutor has the power to initiate an investigation with respect to crimes listed in article 5. The *proprio motu* power is essential to the effective functioning and independence of the ICC. Article 15 must be complied with. It is this article that provides the necessary safeguards against abuse of the prosecutorial function.

C. Conclusion

- 21 Article 13 is a vital part of the complex and interwoven jurisdictional provisions in the Rome Statute. Together with articles 11, 12, 14–19, it demonstrates the package deal nature of the negotiating process and the final product. Article 13 strikes the right balance and is of crucial importance in the establishment of an effective ICC. However, as far as the situations triggered by the UN Security Council are concerned, they relate to States not Party to the Statute, which do not ‘cooperate fully’ with the Court, in disregard of the mandatory nature of the Security Council’s decisions. At the same time, the Council does not provide for any help in terms of financial or strategic support for the purposes of implementing such Resolutions. This jeopardizes the effectiveness of the Court, whose relationship with the Security Council is in fact put at risk. In this respect, the report submitted in December 2014 by Prosecutor Bensouda is emblematic of such a contradictory relationship⁸⁵.

⁸³ UN Doc. S/PV.7337.

⁸⁴ UN Doc. S/PV.7337.

⁸⁵ UN Doc. S/PV.7337.

Article 14

Referral of a situation by a State Party*

1. A State Party may refer to the Prosecutor a situation in which one or more crimes within the jurisdiction of the Court appear to have been committed requesting the Prosecutor to investigate the situation for the purpose of determining whether one or more specific persons should be charged with the commission of such crimes.
2. As far as possible, a referral shall specify the relevant circumstances and be accompanied by such supporting documentation as is available to the State referring the situation.

Other relevant provisions: Rule 45, see Annex I. Regulations 45 and 46 of the Regulations of the Court.

Literature: Akhavan, P., 'The Lord's Resistance Army Case: Uganda's Submission of the First State Referral to the International Criminal Court', (2005) 99 *AJIL* 403; Akhavan, P., 'Self-Referrals Before the International Criminal Court: Are States the Villains or the Victims of Atrocities?', (2010) 21 *CLF* 03; Amnesty International, 'The International Criminal Court. Making the Right Choices – Part I: Defining the crimes and permissible defences and initiating a prosecution', (1997) *AI Index IOR* 40/001/97 and 'Part V: Recommendations to the diplomatic conference', (1998) *AI Index IOR* 40/010/98; Arsanjani, M.H. and Reisman, M., 'The Law-In-Action of the International Criminal Court', (2005) 99 *AJIL* 385; Bakker, C.A.E., 'Le principe de complémentarité et les "auto-saisines": un regard critique sur la pratique de la Cour pénale internationale', (2008) *RGDIP* 361; Bergsmo, M., 'The Jurisdictional Régime of the International Criminal Court' (Part II, Article 11–19), (1998) 6 *EJCLCJ* 29; Bitti, G., 'Article 53', in: Fernandez, J. and Pacreau, X. (eds.), *Statut de Rome de la Cour pénale internationale. Commentaire article par article*, ii (Pedone 2012) 1173; Bitti, G., 'Chronique Internationale: Chronique de jurisprudence de la Cour pénale internationale', (2010) 4 *RSC* 959; Buchan, R., 'The Mavi Marmara Incident and the International Criminal Court', (2014) 25 *CLF* 465; de Frouville, O., 'Article 14, Renvoi d'une situation par un Etat partie', in: Fernandez, J. and Pacreau, X. (eds.), *Statut de Rome de la Cour pénale internationale. Commentaire article par article* i (Pedone 2012) 619; El Zeidy, M.M., 'Ad Hoc Declarations of Acceptance of Jurisdiction: The Palestinian Situation under Scrutiny', in: Stahn, C. (ed.), *The Law and Practice of the International Criminal Court* (OUP 2015, 179); El Zeidy, M.M., 'The Ugandan Government Triggers the First Test of the Complementarity Principle: An Assessment of the First State's Party Referral to the ICC', (2005) 5 *ICLRev* 83; El Zeidy, M.M., 'The legitimacy of withdrawing State Party referrals and ad hoc declarations under the Statute of the International Criminal Court', in: Stahn, C. and Sluiter, G. (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff 2009) 55; El Zeidy, M.M., *The Principle of Complementarity in International Criminal Law* (Martinus Nijhoff 2008) 211 *et seq.* and 274 *et seq.*; European Law Students' Association and No Peace Without Justice, *Handbook on the Draft Statute for the International Criminal Court* (ELSA, the European Law Students' Association 2nd edition 1998); Gaeta, P., 'Is the Practice of "Self-Referrals" a Sound Start for the ICC?', (2004) 2 *JICJ* 949; Gaja, G., 'Issues of Admissibility in Case of Self-referrals', in: Politi, M. and Gioia, F. (eds.), *The International Criminal Court and National Jurisdictions* (Ashgate 2008) 49; Human Rights Watch, *Justice in the Balance. Recommendations for an Independent and Effective International Criminal Court* (Human Rights Watch 1998); Kirsch, P. and Robinson, D., 'Referral by States Parties', in: Cassese, A., Gaeta, P. and Jones, J.R.W.D. (eds.), *The Rome Statute Of The International Criminal Court: A Commentary*, Vol. I (OUP 2002) 619; Kleffner, J., 'Auto-referrals and the complementarity nature of the ICC', in: Stahn, C. and Sluiter, G. (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff 2009) 41; Kress, C., '"Self-Referrals" and "Waivers of Complementarity", Some Considerations in Law and Policy', (2004) 2 *JICJ* 944; Lawyers' Committee for Human Rights, *The International Criminal Court Trigger Mechanism and the Need for an Independent Prosecutor*, International Criminal Court Briefing Series 1, Vol. IV (July 1997); Maged, A., 'Withdrawal of Referrals – A Serious Challenge to the Function of the ICC', (2006) 6 *ICLRev* 419; Marchesi, A., 'Initiation of Proceedings Before the International Criminal Court', in: Lattanzi, F. (ed.), *The International Criminal Court. Comments on the Draft Statute* (Napoli: Editoriale scientifica 1998) 127; Müller, A.Th. and Stegmiller, I., 'Self-Referrals on Trial, From Panacea to Patient', (2010) 8 *JICJ* 1267; Olásolo, H., *The Triggering Procedure of the International Criminal Court* (Martinus Nijhoff 2005); Rastan, R., 'Situation and case: defining the parameters', in: Stahn, C. and El Zeidy, M.M. (eds.), *The International Criminal Court and Complementarity. From Theory to Practice*, Vol. I (CUP 2012) 421; Rastan, R., 'The Jurisdictional Scope of Situations Before the International Court', (2012) 23 *CLF* 1; Robinson, D., 'The Controversy over Territorial State Referrals and Reflections on ICL Discourse', (2011) 9 *JICJ* 355; Schabas, W., '"Complementarity in Practice": Some Uncomplimentary Thoughts', (2008) 19 *CLF* 5; Schabas W., 'Prosecutorial Discretion and gravity', in: Stahn, C. and Sluiter, G. (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff 2009) 229;

* The views expressed herein are those of the authors alone and do not reflect the views of the International Criminal Court.

Schabas, W., ‘Article 14’, in: Schabas, W. (ed.), *The International Criminal Court: A Commentary on The Rome Statute* (OUP 2010) 305; Scharf, M. and Dowd, P., ‘No Way Out? The Question of Unilateral Withdrawals or Referral to the ICC and Other Human Rights Courts’, (2009) 9 *ChicJIL* 573; Stegmiller, I., ‘The International Criminal Court and Mali: Towards More Transparency in International Criminal Law Investigations?’, (2013) 24 *CLF* 475.

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A. Drafting history/General remarks

- 1 The right of States to initiate proceedings before the ICC by lodging a complaint was never questioned during the preparatory process. In fact, the first proposal on the subject introduced by the Special Rapporteur on a draft Code of Offences against the Peace and Security of Mankind limited the right of initiating proceedings to States.¹ One year later, the Special Rapporteur suggested that both States and international organizations should have the right to bring complaints before the Court.²

While the Special Rapporteur’s proposals do not specify which States should be entitled to lodge complaints, the first report of the ‘Working Group on the question of an international criminal jurisdiction’, set up by the ILC in 1992, limits the right of complaint to ‘any State party which has accepted the court’s jurisdiction with respect to the offence in question’ and to any ‘State which has custody of the suspect and which would have jurisdiction under the relevant treaty to try the accused for the offence in its own court’.³ In article 29 of its 1993 Draft Statute, the Working Group refers to ‘[a]ny State Party with jurisdiction over a particular crime under the terms of an international convention and which has accepted the jurisdiction of the Court pursuant to article 23 of the Statute with respect to the crime or other State with such jurisdiction and which has accepted the jurisdiction of the Court pursuant to article 23; or any State which has accepted to the Court’s jurisdiction under article 26...’.⁴

- 2 Article 25 of the Draft Statute that was adopted by the ILC in 1994, after having reconsidered the articles elaborated by the Working Group, reads as follows:

- ‘1. A State party which is also a Contracting party to the Convention on the Prevention and Punishment of the Crime of Genocide of 9 December 1948 may lodge a complaint with the Prosecutor alleging that a crime of genocide appears to have been committed.
2. A State party which accepts the jurisdiction of the Court under article 22 with respect to a crime may lodge a complaint with the Prosecutor alleging that such a crime appears to have been committed.

¹ The Special Rapporteur submitted, as a test of opinion, the following draft provision: ‘Criminal proceedings in respect of crimes against peace and security of mankind shall be instituted by States’ (Ninth Report of the Special Rapporteur on a draft Code of Offences against the Peace and Security of Mankind, UN Doc. A/CN.4/435, (1991) 2 *YbILC*, Part 1).

² According to the Special Rapporteur’s revised proposal, ‘[o]nly States and international organizations shall have the right to bring complaints before the Court’ (Tenth Report of the Special Rapporteur on a draft Code of Offences against the Peace and Security of Mankind, UN Doc. A/CN.4/442, (1992) 2 *YbILC*, Part 1).

³ Report of the ILC on the Work of its Forty-Fourth Session, UN GAOR, 47th Sess., Supp. No. 10, UN Doc. A/47/10 (1992), Annex, paras. 514–516.

⁴ Report of the ILC on the Work of its Forty-Fifth Session, UN GAOR, 48th Sess., Supp. No. 10, UN Doc. A/48/10 (1993), 111–12. In 1993 the Working Group was reconvened with the specific task of elaborating a draft statute for an international criminal court.

3. As far as possible a complaint shall specify the circumstances of the alleged crime and the identity and whereabouts of any suspect, and be accompanied by such supporting documentation as is available to the complainant State.
4. In a case in which article 23(1) applies, a complaint is not required for the initiation of an investigation.⁵

Thus, unlike the Working Group's Draft, the ILC's Draft limited the right of complaint to States Parties to the Statute. The main argument in favour of this option was that the necessary cooperation of States with the Court can be legally imposed only on States Parties.⁶ Also, such a limitation could, according to the Commission, have the effect of encouraging ratifications.⁷ However, insofar as it assigned the right of complaint only to States Parties having accepted the Court's jurisdiction over the crime referred to in the complaint, it assumed a mechanism of *ad hoc* acceptance of jurisdiction. Since the Diplomatic Conference adopted a system of 'automatic' jurisdiction, the ILC's provision on State complaints was no longer viable.⁸

Being a State Party, however, is not sufficient for a State to be entitled to lodge a 3
complaint. Draft article 25 lays down the further requirement that the complainant State be a party to the 1948 Genocide Convention if the complaint concerns an alleged case of genocide; or that the complainant State has accepted the Court's jurisdiction over the crime that is the object of the complaint, if the complaint concerns any of the other crimes falling within the Court's jurisdiction. The limitation of the right to lodge complaints of genocide to States Parties to the 1948 Genocide Convention (as well as to the Statute of the Court) was the object of strong criticism ever since it was proposed. Its opponents pointed out that customary law allowed any State to try persons allegedly responsible of acts of genocide, on the basis of universal jurisdiction, and that it would therefore be inconsistent to prevent States entitled to try a person 'directly' from lodging a complaint before the ICC.⁹

Draft article 25 was discussed in the sessions of the *Ad hoc* Committee in 1995 and of the 4
Preparatory Committee in 1996, during which both extension and restriction of the categories of States entitled to lodge complaints were proposed. During the sessions of the *Ad hoc* Committee, proposals aimed at extending the possibility of lodging complaints included that States entitled to lodge a complaint concerning genocide should not be limited to States Parties to the 1948 Genocide Convention and the more far-reaching proposal that any State Party be entitled to lodge a complaint in relation to any crime falling within the Court's jurisdiction; conversely, restrictive proposals were aimed at limiting complainant States to the territorial, custodial or the national State of the victim or of the alleged perpetrator, *i.e.* to the States with a 'direct interest' in the case.¹⁰ This restrictive approach was reiterated during the 1996 sessions of the Preparatory Committee, but was strongly

⁵ 1994 ILC Draft Statute.

⁶ In 1993 'the Working Group felt that the interests of the international community in providing a universal mechanism for prosecuting, punishing and deterring international crimes wherever they occur weighed in favour of making this particular treaty institution available to all States', Report of the ILC, note 4.

⁷ Report of the Working Group on a Draft Statute for an International Criminal Court, UN Doc.A/CN.4/L.491/Rev.2/Add.2.

⁸ Acceptance of the Court's jurisdiction over the crimes listed in the Statute is in principle implicit in the ratification of the Statute. Article 124, however, allows States which ratify the Statute to opt-out from the Court's jurisdiction over war crimes for a period of seven years.

⁹ This reasoning was extended from genocide to crimes against humanity and war crimes also in a paper submitted by the delegation of Germany to the last session of the Preparatory Committee, according to which 'Under current international law, all States may exercise *universal* criminal jurisdiction concerning acts of genocide, crimes against humanity and war crimes, regardless of the nationality of the offender, the nationality of the victims and the place where the crime was committed. [...] Given this background, there is no reason why the ICC [...] should not be in the very same position to exercise universal jurisdiction for genocide, crimes against humanity and war crimes in the same manner as the Contracting States themselves [...]' (*The jurisdiction of the International Criminal Court. An informal discussion paper submitted by Germany*, 23 March 1998, UN Doc. A/AC.249/1998/DP.2).

¹⁰ *Ad hoc* Committee Report, 25.

opposed by those who believed that the crimes under the Statute, such as genocide, crimes against humanity and war crimes, are, in their nature, of concern to the international community as a whole.¹¹ Some delegations that spoke during the Preparatory Committee sessions favoured specific acceptance of jurisdiction for each crime falling within the Court's jurisdiction as a condition, in addition to ratification, for lodging complaints.¹²

- 5 At this point in the negotiations, there was also a change in terminology. During the 1996 sessions of the Preparatory Committee it was proposed, for the first time, that State complaints should in fact be understood as a State entitlement to refer 'situations', leaving to the Prosecutor the task of prosecuting individual persons suspected of having committed a crime in the context of the 'situation' concerned.¹³ This division of roles, aimed to avoid the awkwardness of States, as such, selecting individual suspected perpetrators for prosecution by the ICC, gained grounds as the negotiations progressed and ultimately found its way into the Statute.¹⁴
- 6 The different positions expressed during the discussions which took place in 1996 are reflected in a rather lengthy draft text which includes all the possible alternatives.¹⁵ The different options are also reflected in a later, shorter version of the draft provision, included as article 25 in the report of the August 1997 session of the Preparatory Committee. This text, which was accepted without changes as article 45 of the 'Zutphen Draft', became article 11 of the Final Draft Statute adopted by the Preparatory Committee in its April 1998 session and presented to the Rome Diplomatic Conference. The text reads as follows:

Paragraph 1

Option 1

[[A State which is also a Contracting Party to the Convention on the Prevention and Punishment of the Crime of Genocide of 9 December 1948][A State Party [which accepts the jurisdiction of the Court under article 9 with respect to a crime]] may lodge a complaint [referring a [matter] [situation] in which one or more crimes within the jurisdiction of the Court appear to have been committed to][with] the Prosecutor [alleging that [a crime of genocide][such a crime][a crime under article 5, subparagraphs [(a) to (d) or any combination thereof]] appears to have been committed][and requesting that the Prosecutor investigate the situation for the purpose of determining whether one or more specific persons should be charged with the commission of such crimes.]]

Option 2

[A State Party [which accepts the jurisdiction of the Court under article 9 with respect to a crime][that has direct interest] listed under (a) to (d) below may lodge a complaint with the Prosecutor alleging that [such a crime] [a crime under article 5 [(a) to (d) or any combination thereof]] appears to have been committed:

- (a) a State on the territory of which the act [or omission] in question occurred;
- (b) a State of the custody;
- (c) a State of the nationality of the suspect;
- (d) a State of the nationality of the victims.]

¹¹ 1996 Preparatory Committee I, 34, para. 147.

¹² *Id.*, para. 148. The author of the previous commentary added that 'also, as a result of the 'complementary' nature of the ICC, any State with a specific connection with the alleged facts is in a position to fulfil its obligation to punish before any proceedings before the Court are initiated. If it does not do so, then, the international community and each of its members have an additional interest in prosecuting the crime in question', see the section on restriction of State complaints in Marchesi, in: Lattanzi (ed.), *The International Criminal Court. Comments on the Draft Statute* (1998) 127.

¹³ According to the Report 'Some delegations were uneasy with a regime that allowed any State party to select individual suspects and lodge complaints with the Prosecutor with respect to them, for this could encourage politicisation of the complaint procedure. Instead, according to these delegations, States Parties should be empowered to refer 'situations' to the Prosecutor in a manner similar to the way provided for the Security Council in article 23 para. 1. Once a situation was referred to the Prosecutor, it was noted, he or she could initiate a case against an individual. It was suggested, however, that in certain circumstances a referral of a situation to the Prosecutor might point to particular individuals as likely targets for investigation' (1996 Preparatory Committee I, 34, para. 146).

¹⁴ 'As the PrepCom negotiations continued over the years, this view gathered support, and in fact became the clearly predominant view. By the time of the Rome Conference, support for referral of situations rather than cases was sufficiently clear that the issue was hardly controversial', Kirsch and Robinson, in: Cassese et al (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (2002) 621.

¹⁵ 1996 Preparatory Committee II, 108–109.

[2. A State Party, which, for a crime under article 5 subparagraph (e), has accepted the jurisdiction of the Court pursuant to article 9 and is a party to the treaty concerned may lodge a complaint with the Prosecutor alleging that such a crime appears to have been committed.]

[3. As far as possible, a complaint shall specify the relevant circumstances and be accompanied by such supporting documentation as is available to the complainant State.]

[4. The Prosecutor shall notify the Security Council of all complaints lodged under article 11].⁷

During the Diplomatic Conference, trigger mechanisms were the object of considerable 7 debate, both formal and informal. The discussion concentrated, however, mainly on the role of the SC and the powers of the Prosecutor, rather than on the referral mechanism of States. The issue of jurisdiction, which is closely connected to the initiation of proceedings by States, was also the object of difficult negotiations that lasted until the final moments of the Conference. As for State referrals as such, a provision which extends the right of referral to all States Parties to the Statute with respect to all the crimes falling within the Court's jurisdiction was adopted without much opposition in the overall context of the numerous interrelated issues being negotiated at the Diplomatic Conference.¹⁶

At the time, commentators observed that State referrals, a typical interstate trigger 8 mechanism, may not be particularly suitable for the purpose of individual criminal justice, even when the proceedings are to take place before an international body such as the ICC. Furthermore, State referrals, according to several commentators, at most provide an *additional* means of initiation of proceedings. Certain precedents, including the failure of the interstate complaint procedure provided for by the ICCPR, indicated that Governments are not generally inclined to set off independent international inquiries into human rights violations by other Governments: consideration of human rights issues in international *fora* is tendentially limited to political bodies, such as the United Nations Commission on Human Rights, where it is frequently selective and instrumental to other aims.¹⁷ Skepticism over State complaints as a means of initiating proceedings before the Court did not however translate, during the drafting process, into any concrete proposal of eliminating State complaints.¹⁸ Rather, the main aim of those who did not believe that the system should rely entirely on a possibly ineffective and politically biased method of initiating an investigation was to ensure that the Prosecutor also be assigned *ex officio* powers of initiation of proceedings.¹⁹ As mentioned, a number of proposals were made with the aim either of extending or of further restricting the categories of States entitled to lodge complaints according to the ILC's Draft.

B. Analysis and interpretation of elements

I. Paragraph 1

1. 'A State Party'

As shown by the *travaux préparatoires*, the only requirement provided for in article 14 for 9 States to enjoy a right of referral before the Court is that they be Parties to the Statute. None of the other additional requirements provided for either in the ILC's Draft or in the

¹⁶ One aspect concerning State complaints which was debated during the Conference was whether to maintain or delete the provision in No. 4 of Draft article 11 (article 25 of the August 1997 Draft; article 45 of the Zutphen Draft) according to which '[t]he Prosecutor shall notify the Security Council of all complaints lodged under article 11'. Conference document A/CONF.183/C.1/L.53 of 6 July 1998 maintains both options, while Conference document A/CONF.183/C.1/L.59 of 10 July 1998 no longer mentions notification to the SC.

¹⁷ See, *inter alia*, Amnesty International (1997) *AI Index IOR 40/001/97 95 et seq.* and European Law Students' Association (ed.), *Handbook on the Draft Statute for the International Criminal Court* (1998) 46.

¹⁸ It is worth pointing out that deletion of Draft article 11, but *not elimination of State complaints*, was proposed by a group of experts convened in Chicago in mid-1998, who suggested that 'the detailed provisions of this article unnecessarily encumber the Statute and [should] be moved to the Rules of Procedure and Evidence' (but not of state complaints) (*Model Draft Statute for the International Criminal Court Based on the Preparatory Committee's Text to the Diplomatic Conference, Rome, June 15 – July 17, 1998, 13ter NEP* (1998) 28).

¹⁹ See, in particular, Lawyers' Committee for Human Rights, *Court*.

restrictive proposals made during the Preparatory Committee sessions have been retained as a condition. Most importantly, no direct ‘interest’ must be demonstrated by the State referring a situation to the ICC.

- 10 Whether or not a State can be considered a State Party is to be assessed in light of the statutory provisions, in particular articles 125 and 126. The State must have ratified, accepted, approved or acceded to the Statute and the relevant instrument must have been deposited with the Secretary-General of the UN. Following the deposit of the 60th instrument of ratification, acceptance, approval or accession, the Statute entered into force on 1 July 2002. For any other State ratifying, accepting, approving or acceding to the Statute after the deposit of the 60th instrument of ratification, acceptance, approval or accession, the Statute enters into force ‘on the first day of the month after the 60th day following the deposit by such State’, in accordance with article 126(2). As a result, the referral will trigger the Court’s intervention for crimes which have taken place after the date the Statute entered into force for the State (article 11(2)). Should the Prosecutor intend to intervene in relation to crimes committed before that date, then the Court’s exercise of jurisdiction can only be triggered through another mechanism.
- 11 The Statute does not determine who on behalf of the State can submit the referral. To respond to this question, one may draw upon rules of international law in the context of treaty-making, as laid down in the VCLT, in particular articles 7 and 8. Article 7(1)(a) VCLT encapsulates the basic principle that a person is only considered to be representing a State or to express the consent of the State to be bound if he or she produces appropriate ‘full powers’.²⁰ The production of such powers is a ‘fundamental safeguard’ for other States (or, in our case, the Court) that this person is acting ‘with the necessary authority’.²¹ Article 7(2)(a) VCLT deviates from this principle insofar as heads of State or government or ministers of foreign affairs (*ex officio* representatives) are exempted from producing full powers as they are considered to have such powers by virtue of their official functions.²² That means that, as a matter of international law, referrals signed by any of these office-holders will be presumed having been submitted with the requisite authority on behalf of the State. Conversely, referrals signed by other persons will only be considered to bind the State if full powers have been presented.²³ Article 8 VCLT sets out the consequence of the lack of authorization and clarifies that any ‘act [...] performed by a person who cannot be considered under article 7 [VCLT] as authorized to represent a State for that purpose is without legal effect unless afterwards confirmed by that State’. Finally, domestic law may impact the validity of

²⁰ ‘For the purpose of the present Convention: [...] (c) ‘full powers’ means a document emanating from the competent authority of a State designating a person or persons to represent the State for negotiating, adopting or authenticating the text of a treaty, for expressing the consent of the State to be bound by a treaty, or for accomplishing any other act with respect to a treaty’ (article 2(c) VCLT).

²¹ Aust, A., *Modern Treaty Law and Practice* (CUP 2000) 57. Alternatively, article 7(1)(b) VCLT provides that a person may act without producing full powers if ‘it appears from the practice of the States concerned or from other circumstances that their intention was to consider that person as representing the State for such purposes and to dispense with full powers’.

²² These three office-holders are also referred to as the ‘Big Three’, see Aust, *Modern Treaty Law and Practice* (2000) 60. This well-established rule in international law has been confirmed repeatedly by the ICJ: ‘In this connection, the Court observes that, in accordance with its consistent jurisprudence, it is a well-established rule of international law that the Head of State, the Head of Government and the Minister for Foreign Affairs are deemed to represent the State merely by virtue of exercising their functions, including for the performance, on behalf of the said State, of unilateral acts having the force of international commitments’, see *Case Concerning Armed Activities on the Territory of the Congo (New Application: 2002)*, ICJ, Judgment of 3 February 2006, ICJ Reports 2006, para 46 (with further references to previous case law); see also *Legal Status of Eastern Greenland (Denmark v. Norway)*, PCIJ, 1933, PCIJ Ser A/B No. 53, 71.

²³ As has been acknowledged by the ICJ, other officials may act on behalf of the State if the issue upon which they are acting falls under the purview of their official responsibilities and field of competence. Nevertheless, the ICJ paid due regard to the circumstances of the case before accepting the submission that the person represented the State, see *Case Concerning Armed Activities on the Territory of the Congo (New Application: 2002)*, ICJ, Judgment of 3 February 2006, ICJ Reports 2006, paras 47–48 (addressing the question whether the Minister of Justice could bind Rwanda).

the act only under very narrowly defined circumstances, namely in case the ‘violation was manifest and concerned a rule of [the State’s] internal law of fundamental importance’ (article 46(1) VCLT).²⁴ This approach, however, does not apply when the act is performed by *ex officio* representatives who are presumed beyond all dispute under international law to have authority to represent and bind the State they represent. Doubts as to the authority of the representative to lodge a referral should be clarified as soon as possible. The Prosecutor of the Court, as the receiving body of the referral instrument, will regularly have to pay heed to this point and, if need be, request verification of the power to make a referral on behalf of the State.

State Party referrals play a significant role in the Court’s operation. At the time of writing, 12 out of the ten situations referred to the ICC Prosecutor, six have been referred by States Parties pursuant to article 14 thus triggering the Court’s exercise of jurisdiction. Only two have been referred by the SC (Darfur, Sudan; Libya) and two situations have been triggered by the Prosecutor’s activation of his *proprio motu* powers (Kenya; Côte d’Ivoire). Yet, these developments were not predictable at the time when Luis Moreno Ocampo assumed his responsibilities as the Court’s first Prosecutor. In his report to the Second ASP on 8 September 2003 he alluded to his *proprio motu* powers under article 15 but expressed a clear preference for State referrals.²⁵ The referrals of the Republic of Uganda (2003) and the DRC (2004) are the result of the Prosecutor’s persistent and active efforts to receive State Party referrals.²⁶

The first referral to be received by Prosecutor Moreno Ocampo emanated from the Republic 13 of Uganda and made reference to the “situation concerning the Lord’s Resistance Army” in northern and western Uganda.²⁷ The referral letter was dated 16 December 2003 and submitted confidentially;²⁸ receipt of the referral was publicly announced on 29 January 2004.²⁹ As to the

²⁴ Kovacs, P., ‘Article 7 Convention of 1969’, in: Corten, O. and Klein, P. (eds.), *The Vienna Convention on the Law of Treaties*, Vol. I (OUP 2011), para. 46.

²⁵ ‘Our role could be facilitated by a referral or active support from the DRC. The Court and the territorial State may agree that a consensual division of labour could be an effective approach. Groups bitterly divided by conflict may oppose prosecutions at each others’ hands and yet agree to a prosecution by a Court perceived as neutral and impartial. The Office could cooperate with the national authorities by prosecuting the leaders who bear most responsibility for the crimes. National authorities with the assistance of the international community could implement appropriate mechanisms to deal with other individuals responsible. A referral or active support from African and Western countries that have taken a role in the peace process as well as other States Parties would show their commitment to the goal of putting an end to the atrocities in the region’; see Second ASP to the Rome Statute of the ICC, *Report of the Prosecutor of the ICC, Mr Luis Moreno Ocampo*, 8 September 2003 (available at <http://legal.un.org/icc/asp/aspfra.htm>).

²⁶ See the Prosecutor’s statement in the ‘Report on the Activities performed during the first three years (June 2003–June 2006)’, 7: ‘While *proprio motu* power is a critical aspect of the Office’s independence, the Prosecutor adopted the policy of inviting and welcoming voluntary referrals by territorial states as a first step in triggering the jurisdiction of the Court. This policy resulted in referrals for what would become the Court’s first two situations: Northern Uganda and the DRC. The method of initiating investigations by voluntary referral has increased the likelihood of important cooperation and on-the-ground support’. Questioning the legal basis for the Prosecutor to actively seek such referrals, see El Zeidy, *Principle of Complementarity* (2008) 215–216; and Kress (2004) 2 JICJ 947.

²⁷ See *Prosecutor v. Joseph Kony, Vincent Otti, Okot Odhiambo, Dominic Ongwen*, ICC-02/04-01/05-68, Decision to convene a status conference on the investigation in the situation in Uganda in relation to the application of article 53, PTC II, 2 December 2005, para. 4 (<http://www.legal-tools.org/doc/1adafl/>). However, the Prosecutor, in the press release ‘President of Uganda refers situation concerning the Lord’s Resistance Army (LRA) to the ICC’, 2004, ICC-20040129-44 (available on the website of the Court), made reference to crimes allegedly committed (only) in Northern Uganda.

²⁸ See, *Prosecutor v. Joseph Kony, Vincent Otti, Okot Odhiambo, Dominic Ongwen*, ICC-02/04-01/05-68, Decision to convene a status conference on the investigation in the situation in Uganda in relation to the application of article 53, PTC II, 2 December 2005, para. 4 (<http://www.legal-tools.org/doc/1adafl/>). The Chamber confirmed that the actual referral letter is attached as annex A to the Prosecutor’s request for a warrant of arrest against Joseph Kony and four Lord’s Resistance Army commanders, which is, however, to date not publically accessible.

²⁹ See Press Release ‘President of Uganda refers situation concerning the Lord’s Resistance Army (LRA) to the ICC’, 2004, ICC-20040129-44 (available on the website of the Court) and Prosecutor’s Information to the

authority submitting the referral, it is noted that the information publicly available is unclear. According to PTC II, the referral letter was signed by the Attorney-General of the Republic of Uganda.³⁰ The Prosecutor, in turn, stated, in a press release dated 29 January 2004, that 'President Yoweri Museveni took the decision to refer the situation' to the Court.³¹ A few months later, he informed the Presidency that his office had 'received a referral from the government of Uganda'.³² Despite these inconsistencies, it seems that the Prosecutor at the time was satisfied that the referral letter was lodged by an authority having full powers to do so.

At the time of the referral, the Republic of Uganda was a State Party. It had signed the Statute on 17 March 1999 and had deposited its instrument of ratification on 14 June 2002. Accordingly, for Uganda, the Statute entered into force on 1 September 2002, pursuant to article 126(2). This means that the referral could only trigger the Court's exercise of jurisdiction in relation to crimes committed after the Statute entered into force for Uganda, *i.e.* as of 1 September 2002. Uganda, however, sought the Court's intervention in response to crimes allegedly committed as of 1 July 2002. With a view to closing the two-month gap, Uganda lodged, at the same time, an *ad hoc* declaration under article 12(3), as provided for under article 11(2), thus extending the temporal jurisdiction back to 1 July 2002.³³ After having concluded the preliminary examination, the Prosecutor decided, on 29 July 2004, to open an investigation into the situation.³⁴

- 14 The second referral was submitted by the Democratic Republic of the Congo (DRC), a State Party to the Statute since 1 July 2002. The referral letter was dated 3 March 2004 and submitted confidentially³⁵; receipt of the referral was publicly announced on 19 April 2004.³⁶ The referral letter was signed by the President of the DRC, Joseph Kabila, who outlined the situation as 'qui se déroule dans mon pays depuis le 1^{er} juillet 2002, dans laquelle il apparaît que des crimes relevant de la compétence de la Cour Pénale Internationale ont été commis'.

Presidency dated 17 June 2004 as annexed to *Situation in Uganda*, ICC-02/04-1, Decision Assigning the Situation in Uganda to Pre-Trial Chamber II, Presidency, 5 July 2004 (<http://www.legal-tools.org/doc/b904bb/>). On 29 January 2004, the Prosecutor held a press conference with the President of the Republic of Uganda in London.

³⁰ *Prosecutor v. Joseph Kony, Vincent Otti, Okot Odhiambo, Dominic Ongwen*, ICC-02/04-01/05-68, Decision to convene a status conference on the investigation in the situation in Uganda in relation to the application of article 53, PTC II, 2 December 2005, para. 4 (<http://www.legal-tools.org/doc/1ada1/>).

³¹ See Press Release 'President of Uganda refers situation concerning the Lord's Resistance Army (LRA) to the ICC', 2004, ICC-20040129-44 (available on the website of the Court).

³² Prosecutor's Information to the Presidency dated 17 June 2004 as annexed to *Situation in Uganda*, No. ICC-02/04-1, Decision Assigning the Situation in Uganda to Pre-Trial Chamber II, Presidency, 5 July 2004 (<http://www.legal-tools.org/doc/b904bb/>). As soon as the Prosecutor receives a referral by a State Party, he or she shall inform the Presidency in writing, pursuant to regulation 45 of the Regulations of the Court. Subsequently, the Presidency assigns the situation to an existing PTC or constitutes a PTC to which it assigns the situation pursuant to regulation 46 of the Regulations of the Court. The assignment of the situation number is effectuated by the Registry according to regulation 27 of the Regulations of the Registry. The situation carries the number ICC-02/04 (being the second referral accepted in 2004) and is currently assigned to PTC II.

³³ Prosecutor's Information to the Presidency dated 17 June 2004 as annexed to *Situation in Uganda*, No. ICC-02/04-1, Decision Assigning the Situation in Uganda to Pre-Trial Chamber II, Presidency, 5 July 2004 (<http://www.legal-tools.org/doc/b904bb/>) ('In addition to the referral, the government of Uganda has made a declaration under article 12, paragraph 3, of the Rome Statute, accepting the jurisdiction of the Court as of the entry into force of the Rome Statute, and hence, temporal jurisdiction extends back to 1 July 2002'). See also *Prosecutor v. Joseph Kony, Vincent Otti, Okot Odhiambo, Dominic Ongwen*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony issued on 8 July 2005 as amended on 27 September 2005, PTC II, 27 September 2005, para. 32 (<http://www.legal-tools.org/doc/b1010a/>).

³⁴ See OTP Press Release 'Prosecutor of the International Criminal Court opens an investigation into Northern Uganda', 2004, ICC-OTP-20040729-65 (available on the website of the Court).

³⁵ The referral letter of the DRC is contained in annex A1 to *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-32-AnxA1, Submission of Formatted and Redacted Documents, Office of the Prosecutor, 12 March 2006 (notification date) (<http://www.legal-tools.org/doc/d22114/>).

³⁶ See OTP Press Release 'Prosecutor receives referral of the situation in the Democratic Republic of Congo', 2004, ICC-OTP-20040419-50 (available on the website of the Court); *Situation in the Democratic Republic of Congo*, ICC-01/04-1, Decision Assigning the Situation in the Democratic Republic of the Congo to Pre-Trial Chamber I, Presidency, 5 July 2004 (<http://www.legal-tools.org/doc/218294/>).

After having concluded the preliminary examination, the Prosecutor decided, on 23 June 2004, to open an investigation into the situation.³⁷ It was the Court's first investigation.

The third referral stems from the Central African Republic (CAR), a State Party to the Statute since 1 July 2002. The CAR referral letter was dated 18 December 2004³⁸ and was signed by a duly authorised representative of then CAR President François Bozizé.³⁹ It is reported that the referral involves crimes under the jurisdiction of the Court 'committed anywhere on the territory of the Central African Republic since 1 July 2002'.⁴⁰ Upon concluding the preliminary examination, the Prosecutor decided to open an investigation into the situation on 22 May 2007.⁴¹

The fourth referral was submitted by the Republic of Mali, a State Party since 1 July 2002. The referral letter is dated 18 July 2012 and signed by the State's Minister of Justice.⁴² It is noted that the Prosecutor appears to have accepted that the referral was made on behalf of the Malian government.⁴³ In the referral, the Republic of Mali makes reference to the commission of crimes against humanity and war crimes which have been committed 'depuis le mois de Janvier 2012 sur son territoire', asking the Prosecutor to 'déterminer si une ou plusieurs personnes identifiées devraient être accusées des crimes'. Upon conclusion of the preliminary examination, the Prosecutor decided to open the investigation into the situation on 16 January 2013.⁴⁴

The fifth referral was submitted by the Union of the Comoros, a State for which the Statute had entered into force on 1 November 2006.⁴⁵ The letter of referral, dated 14 May 2013, was signed by two Turkish lawyers.⁴⁶ They presented a power of attorney given by the State's Minister of Justice who authorized them to represent the Union of the Comoros before the ICC.⁴⁷ In her notification to the Presidency, the Prosecutor expressed her acceptance inasmuch as she referred to the lawyers as 'legal representatives of the Government of the Union of the Comoros'.⁴⁸ The 14 May 2013 referral letter made reference to crimes allegedly

³⁷ See OTP Press Release 'The Office of the Prosecutor of the International Criminal Court opens its first investigation', 23 June 2004, ICC-OTP-20040623-59 (available on the website of the Court). The situation carries the number ICC-01/04 (being the first referral accepted in 2004) and is currently assigned to PTC I.

³⁸ The actual referral letter is attached as annex 1A to the Prosecutor's further submission of information to the request for a warrant of arrest against Jean-Pierre Bemba Gombo, see *The Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-739, Prosecution's Response to Motion Challenging the Admissibility of the Case by the Defence for Jean-Pierre Bemba Gombo pursuant to Articles 17 and 19(2)(a) of the Rome Statute, OTP, 29 March 2010, paras 6 *et seq.* (<http://www.legal-tools.org/doc/a5e670/>). The referral letter is to date not publically accessible.

³⁹ Prosecutor's Information to the Presidency dated 22 December 2004 as annexed to *Situation in the Central African Republic*, ICC-01/05-1, Decision assigning the situation in the Central African Republic to Pre-Trial Chamber III, Presidency, 19 January 2005 (<http://www.legal-tools.org/doc/5532e5/>).

⁴⁰ *Ibid.* See also OTP Press Release 'ICC – Prosecutor receives referral concerning Central African Republic', 7 January 2005, ICC-OTP-20050107-86 (available on the website of the Court).

⁴¹ See OTP Press Release 'Prosecutor opens investigation in the Central African Republic', 22 May 2007, ICC-OTP-20070522-220 (available on the website of the Court). The situation carries the number ICC-01/05 (being the first referral submitted in 2005) and is currently assigned to PTC II (previously PTC III).

⁴² See *Situation in the Republic of Mali*, ICC-01/12-1-Anx, Decision Assigning the Situation in the Republic of Mali to Pre-Trial Chamber II, Presidency, 19 July 2012 (<http://www.legal-tools.org/doc/793de5/>).

⁴³ OTP, *Situation in Mali. Article 53(1) Report*, 16 January 2013, para. 2 ('On 18 July 2012, the Malian Government referred "the Situation in Mali since January 2012" to the ICC').

⁴⁴ OTP, *Situation in Mali. Article 53(1) Report*, 16 January 2013; OTP Press Release 'ICC Prosecutor opens investigation into war crimes in Mali: "The legal requirements have been met. We will investigate"', 16 January 2013, ICC-OTP-20130116-PR869 (available on the website of the Court). The situation carries the number ICC-01/12 (being the first referral submitted in 2012) and is currently assigned to PTC I (previously PCT II).

⁴⁵ The Union of the Comoros had signed the Statute on 22 September 2000 and subsequently deposited its ratification instrument of the Statute on 18 August 2006.

⁴⁶ *Situation on Registered Vessels of the Union of Comoros, the Hellenic Republic and the Kingdom of Cambodia*, ICC-01/13-1-Anx1, Decision assigning the Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic and the Kingdom of Cambodia to Pre-Trial Chamber I, Presidency, 5 July 2013, p. 2 (<http://www.legal-tools.org/doc/d5e455/>).

⁴⁷ *Ibid.*, 20.

⁴⁸ Prosecutor's Information to the Presidency dated 26 June 2004 contained in *Situation on Registered Vessels of the Union of Comoros, the Hellenic Republic and the Kingdom of Cambodia*, ICC-01/13-1-Anx2, Decision Assigning

committed in international waters during the raid by the Israeli Defense Forces on the Humanitarian Aid Flotilla ('Gaza Freedom Flotilla'), bound to Gaza. The Gaza Freedom Flotilla, which had departed from the Republic of Turkey, consisted of eight vessels in total, six of which were purportedly attacked on 31 May 2010; a seventh vessel was attacked on 6 June 2010. It was submitted that the majority of the crimes ('nine victims were killed on board and more than dozens were seriously injured')⁴⁹ had taken place on the vessel MV Mavi Marmara, registered in the Union of the Comoros. Two other vessels were registered to the Hellenic Republic and the Kingdom of Cambodia. Bearing in mind the jurisdictional parameters to be assessed under article 53(1)(a), the Prosecutor deemed it necessary to receive further clarifications regarding the scope of the referral. As regards the territorial jurisdiction, the Prosecutor enquired whether the referral concerned only the MV Mavi Marmara vessel carrying the Comoros flag or also other flotilla vessels bearing State Party flags. As regards the temporal jurisdiction, the Prosecutor sought information as to whether the referral also encompassed the 6 June 2010 incident. In relation to the temporal scope of the referral, the Union of the Comoros responded that its referral encompasses 'all other crimes flowing from this initial incident [*i.e.* the Flotilla raid on 31 May 2010] including crimes committed on 6 June 2010 and onwards'.⁵⁰ In terms of territorial scope, the Union of the Comoros clarified that the referral also 'encompasses other flotilla vessels bearing State Party flags in addition to the Mavi Marmara'.⁵¹

The latter clarification puts a spotlight on a noteworthy detail: a State Party, for the first time in the history of the ICC, referred a situation to the Court involving potential crimes that have occurred not only on its territory or, as in the present case, on board of a vessel registered to that State (commonly referred to as 'self-referral'); but also the alleged crimes that occurred on board of vessels registered to other State Parties, the Hellenic Republic and the Kingdom of Cambodia, which did not lodge a referral nor officially joined the Union of the Comoros in their referral initiative. Given the fact that the Court's activities hitherto had been triggered by 'self-referrals' (*i.e.* referrals of the territorial State), this type of referral to date is an exceptional novelty. Upon conclusion of the preliminary examination, the Prosecutor decided not to open an investigation into the situation.⁵²

the Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic and the Kingdom of Cambodia to Pre-Trial Chamber I, Presidency, 5 July 2013 (<http://www.legal-tools.org/doc/d23b51/>). The situation carries the number ICC-01/13 (being the first referral submitted in 2013) and is currently assigned to PTC I.

⁴⁹ *Situation on Registered Vessels of the Union of Comoros, the Hellenic Republic and the Kingdom of Cambodia*, ICC-01/13-1-Anx1, Decision assigning the Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic and the Kingdom of Cambodia to Pre-Trial Chamber I, Presidency, 5 July 2013, 3 and 5 (<http://www.legal-tools.org/doc/d5e455/>). The Union of the Comoros also submitted that, in addition to the nine victims killed, 'more than 600 civilians from more than thirty countries on board of the Gaza flotilla were victimized by the conduct of the [Israeli Defense Forces]', *ibid.*, 9.

⁵⁰ *Situation on Registered Vessels of the Union of Comoros, the Hellenic Republic and the Kingdom of Cambodia*, ICC-01/13-1-Anx2, Decision assigning the Situation on Registered Vessels of the Union of the Comoros, the Hellenic Republic and the Kingdom of Cambodia to Pre-Trial Chamber I, Presidency, 5 July 2013, 2 (First letter dated 29 May 2013) (<http://www.legal-tools.org/doc/d23b51/>).

⁵¹ *Ibid.*, 3 (Second letter dated 21 June 2013).

⁵² OTP, *Situation on Registered Vessels of Comoros, Greece and Cambodia*. Article 53(1) Report, 6 November 2014, filed in the situation record under No. ICC-01/13-6-AnxA (<http://www.legal-tools.org/doc/6b833a/>); OTP Press Release 'Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, on concluding the preliminary examination of the situation referred by the Union of Comoros: "Rome Statute legal requirements have not been met"', 6 November 2014. Even though the Prosecutor concluded that there was a reasonable basis to believe that war crimes (but not crimes against humanity) had been committed, at least in the context of the interception and takeover of the Mavi Marmara vessel by the Israeli Defense Forces, she considered that the potential cases arising from an investigation into the situation 'would not be of sufficient gravity to justify further action by the Court and would therefore be inadmissible pursuant to articles 17(1)(d) and 53(1)(b) of the Statute', see OTP, *Situation on Registered Vessels of Comoros, Greece and Cambodia*. Article 53(1) Report, 6 November 2014, 59–60. Upon notification of the Prosecutor's decision (rule 105(1)), the referring State submitted a request to PTC I with a view to reviewing the Prosecutor's decision not to initiate an investigation (article 53(3)(a), rule 107). Upon review, PTC I, by majority, requested the Prosecutor to reconsider her decision, Situation on Registered Vessels of the Union of Comoros, the Hellenic Republic and the Kingdom of Cambodia,

Another point worthy of attention in the fifth referral letter was Comoros' mentioning that the ICC 'will also have jurisdiction over this matter if it decides to accept the declaration made by the Palestinian Authority under Article 12(3) of the Rome Statute in January 2009', as the Flotilla raid is 'directly linked to the Gaza situation'.⁵³ It is recalled that prior to receiving the Comoros referral, on 3 April 2012, former Prosecutor Moreno Ocampo had declined to make a legal determination as to the qualification of Palestine as a State for the purpose of lodging a declaration under article 12(3).⁵⁴ Consequently, the Prosecutor did not proceed upon the *ad hoc* declaration by the Palestinian Authority.⁵⁵ The scenario raised by the Comoros referral begs the question as to what are the effects of a referral if the Court's jurisdiction for the events in question was already triggered previously by another mechanism. Should the events for which the Court's intervention is sought coincide or be linked, then the Prosecutor may proceed on the basis which first triggered the Court's jurisdiction.

The sixth referral emanates from the CAR which already had referred a situation to the Court in 2004. Violence erupted again on CAR territory in late 2012 prompting the ICC Prosecutor, Fatou Bensouda, to make three statements in relation to the events at the time.⁵⁶ Eventually, on 7 February 2014, the Prosecutor announced the opening of a new preliminary examination of the allegations of crimes on CAR territory since 1 September 2012, which appeared to fall under the jurisdiction of the Court.⁵⁷ The Prosecutor's *proprio motu* initiative was based on her analysis of reports available to her and she indicated that she

No. ICC-01/13-34, Decision on request of the Union of the Comoros to review the Prosecutor's decision not to initiate an investigation, PTC I, 16 July 2015 (<http://www.legal-tools.org/doc/2f876c/>); the partly dissenting opinion is registered under No. ICC-01/13-34-Anx-Corr (<http://www.legal-tools.org/doc/0fceb2/>). The Prosecutor appealed the PTC I decision. Prior to the Prosecutor's decision in November 2014, one commentator had argued that all article 53(1) requirements, including the gravity test, were met, see Buchanan (2014) 25 *CLF* 465.

⁵³ *Ibid.*, 6–7.

⁵⁴ On 22 January 2009, the Palestinian Authority had lodged a declaration under article 12(3) accepting the exercise of jurisdiction of the Court for 'acts committed on the territory of Palestine since 1 July 2002'. On 3 April 2012, the former ICC Prosecutor rendered his decision, stating that for the purpose of interpreting article 12, 'it is for the relevant bodies at the United Nations or the Assembly of States Parties to make the legal determinations whether Palestine qualifies as a State for the purpose of acceding to the Rome Statute and thereby enabling the exercise of jurisdiction by the Court under article 12(1). The Rome Statute provides no authority for the Office of the Prosecutor to adopt a method to define the term "State" under article 12(3) which would be at variance with that established for the purpose of article 12(1)'; see OTP, 'Update on Situation in Palestine', 3 April 2012 (available on the website of the Court). In a later statement, Prosecutor Fatou Bensouda added that the 'Office of the Prosecutor of the ICC has never been in a position to open an investigation for lack of jurisdiction (...)'. Indeed, she confirmed that the jurisdiction over the situation in Palestine had not been triggered yet ('The Office's approach to Palestine will be no different if the Court's jurisdiction is ever triggered over the situation.'), see OTP Press Release 'Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda: "The Public Deserves to know the Truth about the ICC's Jurisdiction over Palestine"', 2 September 2014 (available on the website of the Court). For a critical analysis of Palestine's *ad hoc* declarations, see El Zeidy, in: Stahn (ed.), *The Law and Practice of the International Criminal Court* (2015).

⁵⁵ In light of the 2012 decision of the Prosecutor, it can only be speculated why the Union of the Comoros took this position. Perhaps the referring State was of the view that the 2009 *ad hoc* declaration had not lost its validity but was considered to become 'operative' at a later stage. Indeed, this moment arrived with the adoption of GA Res. 67/19 of 29 November 2012 (UN Doc A/RES/67/19), granting Palestine the status of a 'non-member observer State' in the UN. The question of whether the 2009 *ad hoc* declaration was still valid became moot with Palestine's accession to the Rome Statute and the lodging of a new *ad hoc* declaration under article 12(3) which backdated the Court's potential intervention to events having taken place 'in the occupied Palestinian territory, including East Jerusalem' as of 13 June 2013 without making any reference any longer to the first *ad hoc* declaration, see 'Declaration Accepting the Jurisdiction of the International Criminal Court', dated 31 December 2014 and signed by President of the State of Palestine, Mahmoud Abbas (declaration available on the website of the Court).

⁵⁶ See OTP Press Releases 'Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, in relation to situation in Central African Republic', 22 April 2013; 'Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, in relation to situation in Central African Republic', 7 August 2013; 'Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, in relation to the escalating violence in the Central African Republic', 9 December 2013 (all statements available on the website of the Court).

⁵⁷ See OTP Press Release, 'Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, on opening a new Preliminary Examination in Central African Republic', 7 February 2014 (available on the website of the Court).

would ‘[engage] with the CAR authorities with a view to discussing ways and means to bring perpetrators to account, including at the national level’. Perhaps as a result of those discussions, the CAR presented its second referral to the Court on 30 May 2014, requesting the Court’s intervention for the events that have taken place on its territory since 1 August 2012.⁵⁸ The referral letter was signed by incumbent CAR President Catherine Samba Panza who defined the situation in general terms as follows:

‘Depuis au minimum le mois d’août 2012, avec l’apparition et le développement de différents groupes armés sur le territoire national, des crimes parmi les plus graves ont été commis à Bangui et dans le reste du pays tels que des meurtres, des viols et autres violences sexuelles, des actes de pillages, des déplacements, forces de populations et autres’.

Upon conclusion of the preliminary examination already underway at the time of the referral, the Prosecutor decided to open an investigation into the situation CAR II on 24 September 2014.⁵⁹

- 19 All of the above referrals are examples of what is commonly referred to as ‘self-referrals’.⁶⁰ Their permissibility under articles 13(a) and 14 is discussed controversially in academic writings. The arguments advanced pertain, *inter alia*, to the drafters’ intention at the time,⁶¹ the compatibility of such practice with the States’ obligation to prosecute domestically international crimes (para. 6 of the Preamble of the Statute),⁶² and other practical consequences and policy considerations.⁶³
- 20 Not only the Prosecutor, but also the Judges of the Court seem to have accepted the practice of ‘self-referrals’ as such without raising any critical questions. Indeed, PTC I in the *Lubanga* case, albeit in the context of admissibility, embraced the concept of ‘self-referrals’ and declared it to be ‘consistent with the ultimate purpose of the complementarity regime’.⁶⁴ In its decision on admissibility of 10 March 2009, PTC II in the *Kony et al* case did not address this matter.⁶⁵ Equally, the AC in the admissibility proceedings in the *Katanga/Ngudjolo* case did not cast a critical eye on the practice of ‘self-referrals’. But with the following sentence it may have implied to open the discussion at an appropriate later stage:

⁵⁸ *Situation in the Central African Republic II*, No. ICC-01/14-1-Anx1, Decision assigning the situation in the Central African Republic II to Pre-Trial Chamber II, Presidency, 18 June 2014 (<https://www.legal-tools.org/doc/9304eb/>).

⁵⁹ OTP, *Situation in the Central African Republic II. Article 53(1) Report*, 24 September 2014; OTP Press Release, ‘Statement of the Prosecutor of the International Criminal Court, Fatou Bensouda, on opening a second investigation in the Central African Republic’, 24 September 2014, ICC-OTP-20140924-PR1043 (available on the website of the Court). The situation carries the number ICC-01/14 (being the first referral rebutted in 2014) and is currently assigned to PTC II.

⁶⁰ In relation to the referral of the Union of the Comoros, the referral captures also the vessel of other States Parties which had not joined the referral or otherwise referred the (same) situation to the Court, see mn 17.

⁶¹ See, for example, Schabas, in: Schabas (ed.), *The International Criminal Court: A Commentary on the Rome Statute* (2012) 311; Arsanjani and Reisman (2005) 99 *AJIL* 386–387; arguing against such an interpretation of the drafting history, Robinson (2011) 9 *JICJ* 355.

⁶² See a discussion in El Zeidy, *Principle of Complementarity* (2008) 220–221; Kress (2004) 2 *JICJ* 945–946. Both authors propose, having regard to the ultimate goal of preventing impunity, that the States be accorded the choice to seize the Court with a referral. Referring in agreement to the interpretation put forth by those two authors, the AC in the *Katanga/Ngudjolo* case confirmed: ‘Moreover, there may be merit in the argument that the sovereign decision of a State to relinquish its jurisdiction in favour of the Court may well be seen as complying with the “duty to exercise [its] criminal jurisdiction”, as envisaged in the sixth paragraph of the Preamble’, see *The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-1497 (OA 8), Judgment on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, AC, 25 September 2009, para. 85 and footnote 179 (<http://www.legal-tools.org/doc/ba82b5/>).

⁶³ See, for example, Gaeta (2004) 2 *JICJ* 949; Arsanjani and Reisman (2005) 99 *AJIL* 385; El Zeidy, *Principle of Complementarity* (2008) 222; Kress (2004) 2 *JICJ* 948; de Frouville, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour pénale internationale. Commentaire article par article* (2012) 628–629.

⁶⁴ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-8-Corr, Decision on the Prosecutor’s Application for a warrant of arrest, Article 58, PTC I, 10 February 2006, para. 35 (<http://www.legal-tools.org/doc/c60aaa/>).

⁶⁵ *Prosecutor v. Joseph Kony, Vincent Otti, Okot Odhiambo, Dominic Ongwen*, ICC-02/04-01/05-377, Decision on admissibility of the case under article 19(1) of the Statute, PTC II, 10 March 2009 (<http://www.legal-tools.org/doc/44f5b3/>).

‘[T]he Appeals Chamber is mindful that the Court, acting under the relevant provisions of the Statute [i.e. article 17(1)(c) and (d), article 19(1), and article 53] and depending on the circumstances of each case, may decide not to act upon a State’s relinquishment of jurisdiction in favour of the Court’ (emphasis added).⁶⁶

2. ‘may refer...a situation...’

Any State Party is free to refer a situation to the Court; the entitlement to refer a situation is not reserved for a particular category of States (‘a’ State Party).⁶⁷ The Statute also does not establish an obligation on the State Party to justify its motives for doing so. Under the Statute, State Party referrals are on a par with SC referrals⁶⁸ but differ on one important point: while the SC is called upon to refer situations to the Prosecutor ‘acting under Chapter VII of the Charter of the United Nations’ (i.e. only situations involving a threat to international peace and security), States Parties may refer any situation ‘in which one or more crimes within the jurisdiction of the Court appear to have been committed’, without there being a threat to international peace and security.

The referral is a written declaration⁶⁹ by way of a unilateral act that has binding effects.⁷⁰ As a consequence, it requires the Prosecutor to consider its content in the framework of a preliminary examination without, however, obligating him or her to actually opening an investigation.⁷¹ During the preliminary examination, the Prosecutor evaluates the information made available and assesses whether the criteria under article 53(1)(a)-(c) are met. At the end of this process, the Prosecutor makes a determination as to whether an investigation should be initiated. Should the determination be in the negative, the Prosecutor will inform the referring State⁷² which, in turn, may request a review of the Prosecutor’s determination.⁷³ In case the Prosecutor makes an affirmative determination, he or she will initiate the investigation.⁷⁴ As can be seen, the referral itself only *prompts* the Prosecutor to look into a

⁶⁶ *The Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1497 (OA 8), Judgment on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009, para. 85 (<http://www.legal-tools.org/doc/ba82b5/>).

⁶⁷ See also Kirsch and Robinson, in: Cassese et al (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol I (2002) 622–623.

⁶⁸ The activation of the Prosecutor’s *proprio motu* investigative powers requires that authorization be given first by the PTC, in accordance with article 15(4). No such judicial intervention is required following a State or SC referral. In relation to the crime of aggression, the Prosecutor may only open an investigation into that crime, following a State party referral, if the Pre-Trial Division has authorised such investigation, unless the SC has previously made a determination of an act of aggression (article 15bis). In this regard, the State Party referral is treated similar to the Prosecutor’s *proprio motu* initiative in respect to other article 5 crimes.

⁶⁹ Rule 45 imposes the written form (‘A referral of a situation to the Prosecutor shall be in writing’) but does not ask for a particular type of document. Thus, given the clear wording of rule 45, a situation cannot be referred orally to the Prosecutor.

⁷⁰ ‘When it is the intention of the State making the declaration that it should become bound according to its terms, that intention confers on the declaration the character of a legal undertaking, the State being thenceforth legally required to follow a course of conduct consistent with the declaration. An undertaking of this kind, if given publicly, and with an intent to be bound, even though not made within the context of international negotiations, is binding’, see *Nuclear Tests Case (Australia v. France)*, ICJ Reports 1974, Judgment of 20 December 1974, ICJ, para. 43. In the case of article 14, the binding nature of the referral is to activate the Court’s operation in relation to the situation at hand.

⁷¹ See also regulation 25 of the Regulations of the Office of the Prosecutor (‘The preliminary examination and evaluation of a situation by the Office [of the Prosecutor] may be initiated on the basis of: [...] (b) a referral from a State Party or the Security Council’ (emphasis added)). Given the clear language employed in article 53(1) and rule 104 (‘shall’), the use of the word ‘may’ in regulation 25 of the Regulations of the Office of the Prosecutor must be understood as permissive in nature. It does not grant the Prosecutor discretion. The Statute, which must be applied in the first place (article 21(1)(a)), is determinative on this question.

⁷² Rule 105(1) and (3).

⁷³ Article 53(3)(a). See the request for review submitted by the Union of the Comoros on 29 January 2015.

⁷⁴ The initiation of the investigation is publicly announced by way of a press release. In recent years, the Court’s second Prosecutor, Fatou Bensouda, publishes an *Article 53(1) Report* in which she details her assessment of the preliminary examination under article 53(1)(a)-(c) and informs the general public of her conclusion.

particular set of events; it aims at *activating* international investigative and prosecutorial activities of the Prosecutor's Office but does not anticipate the Prosecutor's final determination under article 53(1). Whether or not (or to what extent) the Prosecutor will investigate, is a question to be determined by the ICC Prosecutor, subject to the PTC's article 53(3) review powers.⁷⁵

- 23 The referral, once submitted to the Prosecutor, is binding insofar as it definitely requires the Prosecutor to act. To what extent, if any, the referral can be unilaterally withdrawn by the referring State is nowhere regulated in the statutory documents. As the Court was never confronted with such a scenario, it is of no surprise that to date no case law exists addressing this question. Whether or not this avenue is open to referring States has been discussed in scholarly writings. Those arguing against such a possibility emphasize that it would be incompatible with the procedural regime established in the Statute and contravene the object and purpose of the Statute.⁷⁶ Indeed, the referral produces legal consequences in that it activates the Court's operation in a particular situation. Once the referral is unilaterally pronounced, the State Party has no means to stop the process it set off. By the same token, any later amendment of a referral by the State (*e.g.* imposing an end-date for the referral) may prove to be inadmissible if it is aimed at influencing the Prosecutor's prosecutorial choices and excluding certain individuals from the Court's reach.⁷⁷
- 24 The referral is addressed to the Prosecutor who acknowledges receipt. Subsequently, the Prosecutor may seek further clarifications and, for example, enquire into the requisite authority of the submitting person or the scope of the referral.⁷⁸ As soon as the situation has been referred to the Prosecutor, he or she shall inform the Presidency about it.⁷⁹ Thereafter, the Presidency shall assign the situation to a newly constituted or existing PTC.⁸⁰ The assignment of the situation to a PTC does not signify the initiation of judicial proceedings. Rather, it ensures that questions, for which judicial intervention may be required at this stage, can be brought before a Chamber.⁸¹
- 25 The subject-matter of a referral is a 'situation in which one or more crimes within the jurisdiction of the Court appear to have been committed'. The term 'situation' is nowhere defined in the Statute. As mentioned before, the drafters of article 14 clearly preferred the notion 'situation' so as to prevent States from referring specific crimes or cases against specific suspects and thus use the Court for political agendas.⁸² Hence, the 'situation' set out

⁷⁵ By the same token, the chapeau of article 13 is cautiously phrased ('The Court *may* exercise its jurisdiction (...)')(emphasis added)).

⁷⁶ Arguing against a possibility of withdrawal, see, for example, El Zeidy, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009), 55; Müller and Stegmüller (2010) 8 JICJ 1290 *et seq*; de Frouville, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour pénale internationale. Commentaire article par article* (2012), 640–642; Ambos, *Internationales Strafrecht* (2014) § 8 mn 17 (case 1); arguing in favour of allowing the State to withdraw its referral, at least within a very narrow temporal window, see Scharf and Dowd (2009) 9 *ChicJIL* 573; and Maged, (2006) 6 *ICLRev* 419, who advocates for an amendment of the Rules.

⁷⁷ One may argue, however, that any negative consequences of amendments by the State may be circumvented by the Prosecutor by invoking his or her article 15 powers.

⁷⁸ See, for example, the clarifications sought by the Prosecutor from the Union of the Comoros, mn 17.

⁷⁹ Regulation 45 of the Regulations of the Court; regulation 25(2) of the Regulations of the Office of the Prosecutor.

⁸⁰ Regulation 46 of the Regulations of the Court.

⁸¹ For example, the taking of statements at the seat of the Court during the preliminary examination phase pursuant to rule 104(2) in conjunction with rule 47. The PTC assigned with the situation remains the competent Chamber for all (pre-trial) cases emanating therefrom. Regulation 46(2) of the Regulations of the Court foresees that upon request of a presiding judge of a pre-trial chamber, 'the President of the Pre-Trial Division may decide to assign a matter, request or information arising out of that situation to another Pre-Trial Chamber in the interests of the administration of justice'.

⁸² Concerns had been expressed at the time that the referring State should not be able to 'limit the referral to include crimes committed by one side to a conflict in a situation (...) or restrict the nationality of those who can be investigated and prosecuted. (...) [Rather], [t]he prosecutor must be free to investigate all persons who may be responsible for crimes within the court's jurisdiction in a situation', note 17, Amnesty International (1997) *AI Index* IOR 40/001/97 34.

in the referral may not be so specific so as to pinpoint to a specific person or group of persons or indicate specific crimes.⁸³ What can be inferred from the above is that the concept of a 'situation' must be understood in a generic and broad fashion: a description of facts, defined by space and time, which circumscribe the prevailing circumstances at the time ('conflict scenario').⁸⁴ The prevailing circumstances or conflict scenario establish the broader context in which 'one or more crimes within the jurisdiction of the Court appear to have been committed'. A 'crime' refers to the legal definition of a criminal behavior; the crimes within the jurisdiction of the ICC are listed in article 5 (jurisdiction *ratione materiae*). Accordingly, the State Party in the referral will regularly set out its own assessment as to whether one or more crimes pursuant to article 5 appear to have been committed.⁸⁵ Considering that the referral does not bind the Prosecutor in the article 53(1) determination, it is not necessary that the State Party present a comprehensive and in-depth legal analysis covering all crimes.⁸⁶ As the requirement 'within the jurisdiction of the Court' suggests, this assessment may also encompass all other jurisdictional facets.⁸⁷ To what extent the situation fits in the jurisdictional regime of the Statute will be determined by the Prosecutor (article 53(1)) and, ultimately, by the Judges (article 19(1)). The State Party is free to analyse the jurisdictional prerequisites and present its own conclusions. In fact, it is most likely that the referring State will have conducted a first analysis prior to referring the situation. Yet, the assessment of those prerequisites, even less their correct determination, is not a *conditio sine qua non* ingredient for lodging the referral.⁸⁸

The referring State's own assessment at this stage must not meet exacting standards. The Statute stipulates that the crimes only 'appear to have been committed'. While the term 'appear' lacks statutory definition, guidance may be found in jurisprudence of the Court

⁸³ Depending on the circumstances, the mentioning of specific crimes or specific perpetrators may be unavoidable. Such information assists the Prosecutor in identifying potential targets of the investigation. But this information will not restrict the Prosecutor in his or her prosecutorial choices targeting one or more individuals.

⁸⁴ The information could also refer to the State's own nationals who appear to have committed crimes. Should the Prosecutor intend to go beyond the factual boundaries of the scenario encompassed in the referral, he or she must invoke the *proprio motu* powers under article 15.

⁸⁵ In the jurisprudence of the Court, the component 'one or more crimes (...) have been committed' has been interpreted broadly so as to encompass also future crimes (*i.e.* crimes which had not occurred at the time of the State referral), as long as a nexus is established between the future crime(s) and the situational scope underlying the State referral at the time, see *infra* mn 33.

⁸⁶ Referring States have treated this aspect of the referral quite differently. Examples range from setting out a catalogue of specific crimes which, in the view of the State concerned, appear to have been committed, such as murder, rape, pillaging, *etc.* (see referrals of the Republic of Mali or CAR [in relation to CAR II]) to making reference only to the Statute without any further specification (see the DRC referral in which reference is made merely to the '*crimes relevant de la compétence de la Cour Pénale Internationale*'). As can be seen, the minimalist approach adopted by the DRC (which essentially repeated the text of article 14) was not considered by the Court to impact the validity of the referral.

⁸⁷ In its judgment of 14 December 2006, the AC held: '[t]he notion of jurisdiction has four different facets: subject-matter jurisdiction also identified by the Latin maxim jurisdiction *ratione materiae*, jurisdiction over persons, symbolized by the Latin maxim jurisdiction *ratione personae*, territorial jurisdiction – jurisdiction *ratione loci* – and lastly jurisdiction *ratione temporis*. These facets find expression in the Statute. The jurisdiction of the Court is laid down in the Statute: Article 5 specifies the subject-matter of the jurisdiction of the Court, namely the crimes over which the Court has jurisdiction, sequentially defined in articles 6, 7, and 8. Jurisdiction over persons is dealt with in articles 12 and 26, while territorial jurisdiction is specified by articles 12 and 13(b), depending on the origin of the proceedings. Lastly, jurisdiction *ratione temporis* is defined by article 11'; see *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-772 (OA 4), Judgment on the Appeal of Mr. Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to Article 19(2)(a) of the Statute of 3 October 2006, AC, 14 December 2006, paras 21–22 (<http://www.legal-tools.org/doc/1505f7/>).

⁸⁸ Another commentator, however, interprets article 14(2) to impose a stricter verification exercise as to the jurisdictional prerequisites. He proposes that 'if a State Party's referral fails to comply with the formal and material requirements provided for in [articles 13(a) and 14], it should be treated as an [article 15(1) communication] of the *notitia criminis*', see Olásolo, *The Triggering Procedure of the International Criminal Court* (2005) 105.

which interprets the term (albeit in different procedural context), such as PTC III's interpretation of the term in the context of adjourning the confirmation of charges hearing.⁸⁹ Applying the rationale of PTC III to our discussion, it follows that the threshold of 'appear' within the meaning of article 14 is not high; it involves a *prima facie* assessment and does not require to be premised on a comprehensive evidentiary discussion. Simply put: the *possibility* that crimes within the jurisdiction of the Court have been committed suffices. Again, this approach complies with the procedural regime established in the Statute: the referral is only meant to call upon the Court to act.

- 27 As seen above, while the State Party chiefly marks out the scope of the situation by reference to acts defined by time and space, and/or perpetrators, it is at first the Prosecutor who will determine whether the 'situation' complies with the procedural regime of the Statute, in particular its jurisdictional parameters. For the investigation (and selection of 'cases') will only take place within the boundaries of a 'situation' over which the Court is empowered to exercise jurisdiction. In the case law of the Court, a 'situation' has been defined by reference to the 'territorial, temporal and possibly personal parameters'.⁹⁰ The temporal parameter gives clarity as to whether the alleged crime falls within the period set out in article 11. The territorial and personal parameters are in the alternative. The territorial parameter enquires whether the crime occurred on the territory of a State Party pursuant to article 12(2)(a) (extending to vessels registered to States Parties) or of a State which lodged an *ad hoc* declaration under article 12(3). The personal parameter pertains to the perpetrator of the crime(s) who is a national of a State Party (article 12(2)(b)) or a non-State Party which lodged an article 12(3) declaration.
- 28 The drafters' preference for non-specific referrals (in relation to suspects or crimes) has also been adopted and promoted in the practice of the Court. Indeed, in the context of the first referral from Uganda, this was a live issue as the referring State made reference to the 'situation concerning the Lord's Resistance Army in northern and western Uganda', directing the Prosecutor's attention to one side of the conflict. In response, former Prosecutor Moreno Ocampo clarified that he would not restrict his investigation to crimes committed by the LRA only but, as a matter of law, consider all groups committing crimes in Northern Uganda, including the Ugandan Army.⁹¹ When assigning the situation to PTC II, the

⁸⁹ In the *Bemba* case, PTC III, in the context of adjourning the confirmation of charges hearing pursuant to article 61(7)(c)(ii), explained, for example: 'In the English language, the word "appear" means to "give a specified impression". (...) At this stage the Chamber is not called upon to prove that the requirements of the "different crime" are definitely satisfied. To make its determination under article 61(7)(c)(ii) of the Statute, the Chamber deems it sufficient to rather make a *prima facie* finding that it has doubts as to the legal characterization of the facts as reflected in the document containing the charges', *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-388, Decision Adjourning the Hearing pursuant to Article 61(7)(c)(ii) of the Rome Statute, PTC III, 3 March 2009, para. 25 (<http://www.legal-tools.org/doc/81d7a9/>).

⁹⁰ *Situation of the Democratic Republic of the Congo*, ICC-01/04-101-tEN-Corr, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, PTC I, 17 January 2006, para. 65 (<http://www.legal-tools.org/doc/2fe2fc/>). This decision was reversed on appeal but on other grounds. The AC did not find fault with the definition of 'situation' as such and PTC I's approach was endorsed by other PTCs. For the definition of the jurisdictional parameters, see the AC Judgment of 14 December 2006, note 87. For a comprehensive analysis of the jurisdictional confines of a situation, see Rastan, in: Stahn and El Zeidy (eds.), *The International Criminal Court and Complementarity*, Vol. I (2011) 421.

⁹¹ 'We notified Uganda that we would interpret the referral as concerning all crimes under the Statute committed in Northern Uganda and that our investigation would be impartial. In a July 2004 report to the Parliament the Government of Uganda confirmed their understanding of this interpretation. [...] We analyzed the gravity of all crimes in Northern Uganda committed by the LRA and Uganda forces. Crimes committed by the LRA were much more numerous and of much higher gravity than alleged crimes committed by the [Uganda army]. We therefore started with an investigation of the LRA. At the same time, we also collected information on other groups from a variety of sources' (emphasis added), see 'Statement by the Chief Prosecutor on the Ugandan Arrest Warrants', 14 October 2005, 2–3 (available on the website of the Court). In a statement to the diplomatic corps in 2004, the Prosecutor stated: 'I am unable to share the referral itself, as it contains detailed information provided in confidence. (...) However, I can confirm that the scope of the referral will be interpreted in accordance with principles underlying the Statute' (emphasis added), see OTP, 'Statement of the Prosecutor Luis Moreno Ocampo to Diplomatic Corps', 12 February 2004, 5 (available on the website of the

Presidency went even further and decided to assign to the Chamber the ‘situation in Uganda’, without restricting the situation to Northern Uganda, as referred to by the Prosecutor.⁹² The same even-handed approach was also taken, for example, in the situation CAR II insofar as Prosecutor Fatou Bensouda announced extending her investigation into crimes allegedly committed by all groups involved in the armed conflict.⁹³

Conversely, the State’s *prima facie* findings as regards the qualification of the crimes did not have a binding effect on the Prosecutor’s article 53(1) determination following a referral. The Republic of Mali, for example, referred the situation to the Prosecutor indicating that ‘[ces] faits sont constitutifs de crimes contre l’Humanité et Crimes de Guerre qui relèvent de la Compétence de la Cour Pénale Internationale (CPI) en vertu des articles 7 et 8 de son Statut’.⁹⁴ Nonetheless, following her preliminary examination, the Prosecutor found that ‘[at] this stage, the information available does not provide a reasonable basis to believe that crimes against humanity under Article 7 have been committed in the Situation in Mali’.⁹⁵ Consequently, she determined that there was ‘only’ a reasonable basis to believe that war crimes had been committed.⁹⁶ Finally, the Prosecutor’s decision not to open an investigation into the events surrounding the Gaza Freedom Flotilla, following a referral by the Union of the Comoros, is another example that the examination of the jurisdictional parameters of the ‘situation’ of the referring State is not binding upon the Prosecutor. Contrary to what the referring State suggested,⁹⁷ the Prosecutor initially opined that the potential cases arising from the investigation would not be of sufficient gravity to justify further action by the ICC (article 53(3)(b)) and consequently declined to open an investigation in 2014.

As regards the description of the factual scope of the ‘situation’, the practice has been rather flexible. Following a minimalist approach, the DRC referred generally to ‘la situation

Court). Nevertheless, fact is that the OTP, during the time this situation is before the Court, initiated proceedings only against LRA commanders and did not expand its investigation to other armed groups nor to the Ugandan forces. The fact that over 11 years have passed since the referral reached the Prosecutor begs the question whether the OTP will enquire into the criminal conduct of other actors, including the Ugandan Army, at all or whether the Prosecutor has taken an implicit decision not to prosecute other perpetrators (article 53(2)).

⁹² It is questionable, however, whether an administrative act, such as the assignment of a situation to a Chamber, which goes beyond the wording of the referral, can expand the geographical scope of the referral. In this respect, the Statute does not bestow any authority on the Presidency.

⁹³ The Prosecutor determined that the alleged crimes committed in the situation ‘are mostly attributable to armed groups such as Séléka and anti-balaka’ groups. She also included in her assessment the purported criminal conduct of CAR armed forces and the Presidential Guard of former CAR President Bozizé; however, she stated that more information was needed to make a determination as to whether they qualify as crimes falling under the jurisdiction of the Court, see OTP, *Situation in the Central African Republic II. Article 53(1) Report*, 24 September 2014, 27–28, paras 9 and 10 (available on the website of the Court).

⁹⁴ See Mali’s referral letter contained in *Situation in the Republic of Mali*, ICC-01/12-1-Anx, Decision Assigning the Situation in the Republic of Mali to Pre-Trial Chamber II, Presidency, 19 July 2012, 2 (<http://www.legal-tools.org/doc/94d977/>).

⁹⁵ OTP, *Situation in Mali. Article 53(1) Report*, 16 January 2013, 27, para. 128.

⁹⁶ This independence and objectivity in assessing the facts of the situation during the preliminary analysis, including all parties to a conflict, is not the *domaine réservé* of the Prosecutor. One may argue that this approach is equally applicable to the judicial assessment of *proprio motu* authorization requests for the commencement of an investigation under article 15(4). This seems to have been the rationale followed by the Majority Judges of PTC III in the article 15 authorization process regarding the situation of Côte d’Ivoire, when they, in deviation of the conclusions presented by the Prosecutor, expanded their analysis of the Prosecutor’s article 15(3) request and supporting material, *inter alia*, to both parties of the conflict with regard to, in particular, crimes against humanity allegations, see *Situation in the Republic of Côte d’Ivoire*, ICC-02/11-14-Corr, Corrigendum to ‘Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d’Ivoire’, 15 November 2011 (<http://www.legal-tools.org/doc/e0c0eb/>). Critically seen by dissenting judge, see *Situation in the Republic of Côte d’Ivoire*, ICC-02/11-15-Corr, Corrigendum to ‘Judge Fernández de Gurmendi separate and partially dissenting opinion to the Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d’Ivoire’, PTC III, 5 October 2011 (<http://www.legal-tools.org/doc/eb8724-1/>); Rastan (2012) *CLF* 1.

⁹⁷ See for the State’s assessment of gravity in the referral of the Union of the Comoros, as annexed to the Presidency’s decision assigning the situation to PTC I, note 46, paras 25–28 (‘The crimes committed meet the test of gravity provided for under Articles 17(1)(d) and 53 of the Rome Statute’).

qui se déroule dans mon pays depuis le 1^{er} juillet 2002 dans laquelle il apparaît que des crimes relevant de la compétence de la Cour Pénale Internationale ont été commis’ and did not single out any particular conflict nor specify the prevailing circumstances on its territory at the time. The Republic of Mali extended the scope of the referral to the entire territory (‘la situation au Mali depuis le mois de Janvier 2012’) but specified further in the referral the geographical area (‘Nord du territoire’) and the nature of the crimes which appeared to have been committed, thus allowing to identify or narrow down the pertinent factual contours of the ‘situation’. And on the other end of the spectrum, the Union of the Comoros described in a detailed manner the incidents involving the Gaza Freedom Flotilla for which it sought the Court’s intervention. Interestingly, it was in relation to the most detailed referral of the Union of the Comoros that the Prosecutor requested clarifications. One may argue, however, that this became necessary because of the way in which the Union of the Comoros had presented its referral and not because the incidents had been described specifically.

- 31 To date, the former and present Prosecutors have not dismissed any referral instrument outright. Rather, any shortcomings or ambiguities were cured by way of interpretation⁹⁸ or the seeking of further clarifications from the referring State.⁹⁹ Limitations to the States’ freedom in framing the ‘situation’ is given by PTC I in the context of the *Mbarushimana* case:

‘The Statute cannot be interpreted as permitting a State to permanently abdicate its responsibilities by referring a wholesale of present and future criminal activities comprising the whole of its territory, without any limitation whether in context or duration. Such an interpretation would be inconsistent with the proper functioning of the principle of complementarity.’¹⁰⁰

- 32 The scope of the situation is also important in the context of case selection. As highlighted by PTC I, ‘it is only within the boundaries of the situation (...) for which the jurisdiction of the Court was activated that subsequent prosecutions can be initiated’.¹⁰¹ In other words, a case cannot exceed the parameters of a referred situation under investigation. This question became a live issue for the first time in the *Mbarushimana* case. More specifically, it was, *inter alia*, the temporal occurrence of the crimes for which Callixte Mbarushimana was prosecuted that intrigued the Chamber to enquire whether or not they were covered by the referred situation (‘situation qui se déroule dans mon pays depuis le 1^{er} juillet 2002’).
- 33 In August 2010, the Prosecutor requested the issuance of a warrant of arrest for Callixte Mbarushimana (article 58) who was believed to bear criminal responsibility for the commission of crimes against humanity and war crimes committed by a particular armed group in the Kivu provinces of the DRC since early 2009. Before issuing the warrant of arrest, the Chamber requested further clarifications: leaving behind a literal reading of articles 13(a) and 14, the Judges accepted that the ‘the subject-matter of the referral consists of events that either *occurred before or are still ongoing* at the time of its submission to the Prosecutor’ (emphasis added).¹⁰² Considering however the time lapse between the submission of the DRC referral and the events described in the article 58 application, the Prosecutor was requested to explain ‘in what manner and to what extent such events [*i.e.* those presented in the article 58 application] are linked to the *situation of crisis* that triggered the DRC investigation’ (emphasis added).¹⁰³

⁹⁸ See the referral of the Republic of Uganda.

⁹⁹ See the referral of the Union of the Comoros.

¹⁰⁰ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-451, Decision on the ‘Defence Challenge to the Jurisdiction of the Court’, PTC I, 26 October 2011, para. 21 (<http://www.legal-tools.org/doc/864f9b/>).

¹⁰¹ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-1, Decision on the Prosecutor’s Application for a Warrant of Arrest against Callixte Mbarushimana, PTC I, 28 September 2010, para. 6 (<http://www.legal-tools.org/doc/04d4fa/>).

¹⁰² *Situation in the Democratic Republic of Congo*, ICC-01/04-575, Decision requesting clarification on the Prosecutor’s Application under Article 58, PTC I, 6 September 2010, para. 6 (<http://www.legal-tools.org/doc/b63d59/>). In interpreting the component ‘one or more crimes (...) appear to have been committed’ in article 14, the Chamber read the provision in context with article 53(1)(a) which requires that there is a ‘reasonable basis to believe that a crime within the jurisdiction of the Court *has been or is being committed*’ (emphasis added).

¹⁰³ *Ibid.*, para. 11.

Following the observations of the Prosecutor, the Chamber rendered its decision on the warrant of arrest on 28 September 2010 in which it first addressed, as a matter of jurisdiction, whether the case fell within the DRC situation as encompassed by the referral. The Judges commenced their enquiry by noting the wide geographical ('dans mon pays') and temporal ('qui se déroule... depuis le 1^{er} juillet 2002') parameters set out in the DRC referral letter. They then proceeded to analyze the temporal limits of the 'situation' by using the test they previously had developed with a view to ascertaining the nexus between the events for which *Mbarushimana* was prosecuted and the events which prompted the DRC to refer the 'situation' to the Court:

'The Prosecutor's Application refers to crimes allegedly committed between January 2009 and the date of the application, within the context of an armed conflict in the Kivu Provinces, DRC. In the view of the Chamber, for the case at hand not to exceed the parameters defining the DRC situation under investigation, the crimes referred to in the Prosecutor's Application must have occurred in the context of the ongoing situation of crisis that triggered the jurisdiction of the Court through the above mentioned referral. In the view of the Chamber, it is only within the boundaries of the situation of crisis for which the jurisdiction of the Court was activated that subsequent prosecutions can be initiated. Such a situation can include not only crimes that had already been or were being committed at the time of the referral, but also crimes committed after that time, in so far as they are sufficiently linked to the situation of crisis referred to the Court as ongoing at the time of the referral (emphasis added).'¹⁰⁴

Having analysed the information provided by the Prosecutor, the Chamber found that the relevant armed group associated with *Mbarushimana* was involved in the commission of crimes in the East of the DRC, in particular the South Kivu province, already around the time of the referral. As a result, the Judges accepted 'on a *prima facie* basis' that the case fell 'within the context of the DRC situation of crisis encompassed by the referral' and issued a warrant of arrest for *Mbarushimana*.¹⁰⁵

Subsequently, the Defense lodged a challenge to the jurisdiction of the Court which was rejected by the Chamber.¹⁰⁶ In response to the Defense argument that the Prosecutor had not proven that the armed group associated with *Mbarushimana* had committed crimes prior to the lodging of the DRC referral, the Chamber reiterated that crimes committed after the lodging of the referral would fall within the jurisdiction of the Court provided they were linked to the situation of crisis: 'It is the existence, or non-existence, of such link, and not the particular timing of the events underlying an alleged crime, that is critical in determining whether that crime may or may not fall within the scope of the referral'.¹⁰⁷

The 'situational linkage' jurisprudence, as proposed in the *Mbarushimana* case, was later noted by PTC III in the context of its authorization of the commencement of the Prosecutor's *proprio motu* investigation into the situation in the Republic of Côte d'Ivoire.¹⁰⁸ In a decision dated 3 November 2011, the Majority of PTC III authorized the commencement of the investigation in relation to crimes committed as of 28 November 2010, extending it to any 'continuing crimes' past the date of the Prosecutor's article 15 application.¹⁰⁹ In a

¹⁰⁴ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-1, Decision on the Prosecutor's Application for a Warrant of Arrest against Callixte Mbarushimana, PTC I, 28 September 2010, para. 6 (<http://www.legal-tools.org/doc/04d4fa/>).

¹⁰⁵ *Ibid.*, para. 7.

¹⁰⁶ *Prosecutor v. Callixte Mbarushimana*, ICC-01/04-01/10-451, Decision on the 'Defence Challenge to the Jurisdiction of the Court', PTC I, 26 October 2011 (<http://www.legal-tools.org/doc/864f9b/>).

¹⁰⁷ *Ibid.*, para. 41. For an analysis of the Chamber's jurisprudence on this point, see Rastan (2012) *CLF* 1; Bitti (2010) 4 *RSC* 959.

¹⁰⁸ The Republic of Côte d'Ivoire had lodged *ad hoc* declarations under article 12(3) and former Prosecutor Moreno Ocampo decided to trigger the Court's jurisdiction by activating his *proprio motu* powers under article 15.

¹⁰⁹ A corrigendum of this decision was filed on 15 November 2011, see *Situation in the Republic of Côte d'Ivoire*, ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', PCT III, 15 November 2011 (<http://www.legal-tools.org/doc/e0c0eb/>); the dissenting opinion is registered under ICC-02/11-15-Corr, Corri-

second decision, the Chamber extended the temporal scope of its authorization to crimes committed as of 19 September 2002 until 28 November 2010.¹¹⁰ The procedural framework is, of course, different; but one point may be useful for the purpose of our discussion: unlike PTC I, the Majority Judges of PTC III in their first authorization decision do not adopt the 'situation of crisis' term as their own but rather offer some objective criteria according to which the nexus between the crimes and the overall 'situation' is established.

'Thus, the crimes that may be committed after the date of the Prosecutor's application will be covered by any authorization, *insofar as the contextual elements of the continuing crimes are the same* as for those committed prior to [the lodging of the Prosecutor's article 15 application]. They must, at least in a broad sense, *involve the same actors* and have been committed *within the context of either the same attacks* (crimes against humanity) *or the same conflict* (war crimes). Therefore, if the authorization is granted, it will include the investigation of any ongoing and continuing crimes that may be committed after [the lodging of the Prosecutor's article 15 application] as part of the ongoing situation'. (emphasis added)¹¹¹

- 35 The Prosecutor seems to have accepted the *Mbarushimana* formula and applied it in the context of the CAR II referral. It is recalled that the first referral of the CAR encompassed crimes within the jurisdiction of the Court 'committed anywhere on the territory of the CAR since 1 July 2002'.¹¹² Hence, one could have argued that this referral gave the Prosecutor the basis to investigate also the events since September 2012. Yet, in her Article 53(1) Report, following the second referral of the CAR, Prosecutor Fatou Bensouda explained that the second referral constituted

'a new situation unrelated to the "situation of crisis" previously referred to the ICC by the CAR authorities in December 2004.

Although certain individuals may have played roles in both of these differing situations, a distinction between the two periods is apparent both with regard to the armed groups involved, and the political context of the events. The previous situation in the CAR, which began in 2002, involved armed groups which originated from the north-western region of the country and at least one armed group from the Democratic Republic of the Congo ("DRC"). In contrast, the roots of the recent situation can be traced to the armed groups which emerged in the north-east of the country in 2007, notably the Union des forces démocratiques pour le rassemblement (Union of Democratic Forces for Unity, "UFDR"). The emergence of these armed groups can be linked in particular to the weakness of state authority in the north-east. The group included fighters from that region and from the neighbouring states of Chad and Sudan. These groups evolved into the Séléka coalition which from 2012 onwards progressively gained control of territory and eventually overthrew the Government.

The above-mentioned factors contributed to the Office's conclusion that the serious allegations of crimes potentially falling within the jurisdiction of the ICC and committed since August 2012 constituted a new situation.¹¹³

gendum to Judge Fernández de Gurmendi's separate and partially dissenting opinion to the Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire, 5 October 2011 (<http://www.legal-tools.org/doc/eb8724/>).

¹¹⁰ *Situation in the Republic of Côte d'Ivoire*, ICC-02/11-36, Decision on the 'Prosecution's provision of further information regarding potentially relevant crimes committed between 2002 and 2010', PTC III, 22 February 2012 (<http://www.legal-tools.org/doc/de6177/>).

¹¹¹ *Situation in the Republic of Côte d'Ivoire*, ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', PTC III, 15 November 2011, para. 179 (<http://www.legal-tools.org/doc/e0c0eb/>). In the Chamber's second authorization decision delivered on 22 February 2012, however, these criteria were not stipulated again. For an analysis of the Chamber's authorization decisions, see Rastan (2012) CLF 1. Likewise, PTC II, in the *Mudacumura* case (which shares great similarities with the *Mbarushimana* case) did not make explicit reference to the concept of 'situation of crisis' but offers the formula that the crimes 'are sufficiently linked to the situation which initially triggered the referral to the Court', see *Prosecutor v. Sylvestre Mudacumura*, ICC-01/04-01/12-1-Red, Decision on the Prosecutor's Application under Article 58, PTC II, 13 July 2012, para. 14 (<http://www.legal-tools.org/doc/ecfae0/>).

¹¹² See, mn 15.

¹¹³ OTP, *Situation in the Central African Republic II. Article 53(1) Report*, 24 September 2014, 15–16, paras 9 and 10.

3. ‘for the purpose of determining...’

As noted earlier, by means of the referral the State Party neither instructs the Prosecutor to 36 open an investigation nor limits the Prosecutor’s future prosecutorial choices; rather, the State *requests* the Prosecutor to investigate the ‘situation’, *i.e.* the conflict scenario ‘in which one or more crimes within the jurisdiction of the Court appear to have been committed’, ‘for the purpose of determining whether one or more specific persons should be charged with the commission of such crimes’. Upon taking an affirmative decision under article 53(1), the Prosecutor opens an investigation into the ‘situation’ with a view to identifying, amidst a plurality of individuals and events, specific perpetrators and specific incidents during which one or more article 5 crimes seem to have been committed.¹¹⁴

‘At any time after the initiation of the investigation’,¹¹⁵ the Prosecutor shall approach the 37 PTC with an application for the issuance of a warrant of arrest or summons to appear if there are ‘reasonable grounds to believe’ that the person identified has committed one or more crimes falling under the jurisdiction of the Court (article 58(1) and (7)). As of the moment the warrant of arrest or summons to appear has been issued by the competent PTC, proceedings in relation to a particular ‘case’ commence, which run in parallel to those related to the ‘situation’; both proceedings are conducted before the same PTC. As PTC I explained on 17 January 2006:

‘The Chamber considers that the Statute, the Rules of Procedure and Evidence and the Regulations of the Court draw a distinction between situations and cases in terms of the different kinds of proceedings, initiated by any organ of the Court, that they entail. (...) Situations, which are generally defined in terms of temporal, territorial and in some cases personal parameters, such as the situation in the territory of the Democratic Republic of the Congo since 1 July 2002, entail the proceedings envisaged in the Statute to determine whether a particular situation should give rise to a criminal investigation (...) as well as the investigation as such. Cases, which comprise specific incidents during which one or more crimes within the jurisdiction of the Court seem to have been committed by one or more identified suspects, entail proceedings that take place after the issuance of a warrant of arrest or summons to appear.’¹¹⁶

II. Paragraph 2

As far as possible, a referral shall specify the relevant circumstances and be accompanied by 38 such supporting documentation as is available to the State referring the situation’. A similar provision is included throughout the preparatory process in the draft article dealing with State complaints.¹¹⁷ The only change made during the Diplomatic Conference was to adjust the language to referral of situations as opposed to complaints relating to specific crimes.

The provision has, in general, attracted little attention. The only comment we wish to recall, which was made shortly before the Rome Conference, is that it should not ‘become the basis for declaring that the court lacks jurisdiction or that cases investigated are inadmissible because the referral did not submit all the information the state could have with more diligence’.¹¹⁸

¹¹⁴ ‘L’enquête ouverte dans la situation que l’on peut qualifier “d’enquête-mère” va donc donner naissance à des enquêtes dans des affaires, que l’on peut qualifier “d’enquêtes-filles”, enquêtes à géométrie variable qui peuvent coexister pendant de nombreuses années’, Bitti, in: *Statut de Rome de la Cour pénale internationale. Commentaire article par article* (2012) 1183.

¹¹⁵ Article 58(1).

¹¹⁶ See, for example, *Situation in the Democratic Republic of the Congo*, No. ICC-01/04-101-TEN-Corr, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, PTC I, 17 January 2006, para. 65 (<http://www.legal-tools.org/doc/2fe2fc/>). The definitions of ‘situation’ and ‘case’ have been embraced and referred to by all PTCs ever since. For a vivid description, see Olásolo, *The Triggering Procedure of the International Criminal Court* (2005).

¹¹⁷ See article 25 para. 3 of the ILC’s Draft and article 25 of the Preparatory Committee’s 1997 Draft (which became article 45 in the Zutphen Draft and article 11 of the Draft presented to the Diplomatic Conference).

¹¹⁸ Amnesty International (1997) *AI Index IOR 40/001/97* 34, note 17.

- 39 Together with or following the submission of the referral instrument, States Parties regularly provided the Prosecutor with a report/memorandum and other supporting material on the crimes for which the State sought the Court's intervention.¹¹⁹

¹¹⁹ For more information, see the referral letters of, for example, the Republic of Mali, the Union of the Comoros and the Central African Republic (CAR II).

Article 15

Prosecutor

1. The Prosecutor may initiate investigations *proprio motu* on the basis of information on crimes within the jurisdiction of the Court.

2. The Prosecutor shall analyse the seriousness of the information received. For this purpose, he or she may seek additional information from States, organs of the United Nations, intergovernmental or non- governmental organizations, or other reliable sources that he or she deems appropriate, and may receive written or oral testimony at the seat of the Court.

3. If the Prosecutor concludes that there is a reasonable basis to proceed with an investigation, he or she shall submit to the Pre-Trial Chamber a request for authorization of an investigation, together with any supporting material collected. Victims may make representations to the Pre-Trial Chamber, in accordance with the Rules of Procedure and Evidence.

4. If the Pre-Trial Chamber, upon examination of the request and the supporting material, considers that there is a reasonable basis to proceed with an investigation, and that the case appears to fall within the jurisdiction of the Court, it shall authorize the commencement of the investigation, without prejudice to subsequent determinations by the Court with regard to the jurisdiction and admissibility of a case.

5. The refusal of the Pre-Trial Chamber to authorize the investigation shall not preclude the presentation of a subsequent request by the Prosecutor based on new facts or evidence regarding the same situation.

6. If, after the preliminary examination referred to in paragraphs 1 and 2, the Prosecutor concludes that the information provided does not constitute a reasonable basis for an investigation, he or she shall inform those who provided the information. This shall not preclude the Prosecutor from considering further information submitted to him or her regarding the same situation in the light of new facts or evidence.

Literature: Jones, J.R.W.D., 'The Office of the Prosecutor', in: A. Cassese *et al.*, *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (2002) 269.

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A. Introduction/General remarks

- 1 Article 15 of the Statute lays down the procedure for initiating investigations by the Prosecutor acting on his or her own motion (*proprio motu*). It should be read in conjunction with article 13 para. c which provides for three ways of ‘triggering’ the Court’s jurisdiction: by State Party referral, by Security Council referral or by the Prosecutor’s initiation of an investigation ‘in accordance with article 15’. The ability of the ICC Prosecutor to initiate investigations *proprio motu* was the most controversial aspect of the Court’s trigger mechanism and was one of the main political/legal issues that had to be resolved before the Statute could be assured of adoption. Both opponents and proponents of the Prosecutor’s *proprio motu* power – and the chasm was very wide – agreed that its inclusion or absence would fundamentally affect the Court’s structure and functioning. The idea was considered so radical at the start of the ICC process that the ILC had not even provided for it in the 1994 ILC Draft Statute¹. In fact, the commentary to the ILC Draft Statute mentions that only one member of the Commission suggested that the Prosecutor should be able to initiate an investigation in the absence of a complaint. Other members felt that investigations and prosecutions should not be undertaken without State Party or Security Council support, ‘at least not at the present stage of development of the international legal system’².
- 2 Debates within the *Ad Hoc* Committee held in 1995 disproved the ILC’s view. Many delegations supported an enhanced role for the Prosecutor who, it was said, should be able to work on behalf of the international community rather than just on behalf of a State Party or the Security Council³. The poor record of the state complaint mechanism within the human rights treaty system and the fortunate competence of the Prosecutor of the ICTY/R were also used to buttress the cause of expanded prosecutorial powers⁴. The opposing view was that the lack of a State Party or Security Council referral should be taken to mean that a crime was not of international concern. There should, therefore, be no reason for the Prosecutor to act on his or her own motion⁵.
- 3 The 1996 Preparatory Committee debates continued to mirror, and further elaborate, the two basically different positions with respect to *proprio motu* power⁶. The March–April 1996 Preparatory Committee session was, however, important, because it was at this meeting that the idea of judicial review of *proprio motu* proceedings was introduced⁷. It was suggested that a case initiated by the Prosecutor be submitted to a chamber of the Court which would, upon a hearing, decide whether it should be pursued or discontinued. The proceedings would be *in camera* and confidential in order to prevent publicity and to protect the ‘interest of the States’⁸. Interestingly enough, the proposal on judicial review as a mechanism that would prevent abuse of prosecutorial discretion was not inserted in the compilation of specific drafting proposals issued after the completion of the Preparatory Committee’s work. The text adopted⁹ simply reproduced the corresponding articles of the Statutes of the ICTY and the ICTR, which read:

¹ 1994 ILC Draft Statute (<https://www.legal-tools.org/doc/17ad09/>).

² *Id.*, p. 90.

³ See *Ad Hoc* Committee Report, p. 26 (<https://www.legal-tools.org/doc/b50da8/>).

⁴ *Ibid.*

⁵ *Ibid.*

⁶ See 1996 Preparatory Committee I, p. 35 (<https://www.legal-tools.org/doc/e75432/>).

⁷ See *ibid.*, Draft Summary, Trigger Mechanism, UN Doc. A/AC.249/CRP.5, pp. 8–9 (<https://www.legal-tools.org/doc/bec01c/>). Pursuant to the Draft Summary, judicial review was to be applied not only when proceedings were initiated by the Prosecutor, but also when a complaint was ‘lodged by a state or an individual’. The notion that State Party initiated proceedings needed pre-investigation judicial review was abandoned and the idea that individuals could be a separate trigger mechanism never had any serious support.

⁸ *Ibid.*, p. 9.

⁹ See 1996 Preparatory Committee II, p. 109 (<https://www.legal-tools.org/doc/03b284/>).

The Prosecutor shall initiate investigations *ex-officio* or on the basis of information obtained from any source, particularly from Governments, United Nations organs, inter-governmental and non-governmental organizations. The Prosecutor shall assess the information received or obtained and decide whether there is sufficient basis to proceed¹⁰.

The August 1997 Preparatory Committee session did not add very much to the proposal already on the table with respect to *proprio motu* power¹¹. The provisions included in the Committee's report reflected attempts to either narrow the sources of information which could serve as a basis for prosecutorial action or to expand them¹². It should be understood that the idea of *proprio motu* powers as such was still contested and not assured of majority support¹³. 4

By the time the last Preparatory Committee session was held in March-April 1998, it was clear that there were still two solid positions on the issue of *proprio motu* power to initiate investigations. The first group of states – primarily the so-called 'like-minded' ones – were of the view that the Court must have an independent Prosecutor if it was to be effective in punishing and deterring serious crimes of concern to the international community as a whole. Their rationale was that without a *proprio motu* power, the Court would be prevented from acting in situations where, for political or other reasons, neither a State Party nor the Security Council were able or willing to initiate proceedings. These delegations believed that the Prosecutor should have independent authority to trigger the Court's jurisdiction, which means that the first judicial check on prosecutorial action would coincide with the confirmation of an indictment¹⁴. The second group of delegations based their opposition to prosecutorial independence on concerns about the risks of politically motivated or frivolous *proprio motu* proceedings. They interpreted prosecutorial independence to mean that the Prosecutor should have full freedom to decide whom to investigate once the Court's jurisdiction was triggered by a State Party or the Security Council, but that the Prosecutor should not be granted a separate, *proprio motu*, triggering power¹⁵.

Given the depth of opposition to an independent Prosecutor it became clear that the fears 5 of States belonging to the second group would have to be addressed by means of additional checks on prosecutorial power if the proposition of a *proprio motu* Prosecutor was to stand any chance of success. A compromise solution, that provided the basis for what eventually became article 15 of the Rome Statute, was introduced, interestingly in retrospect, by Argentina and Germany in March 1998¹⁶. The proposal laid out some sources that could submit information on the alleged commission of a crime to the Prosecutor and the Prosecutor's right to seek additional information from other sources. Most importantly, it obliged the Prosecutor to seek authorisation from the Pre-Trial Chamber before proceeding with an investigation on his or her initiative, thus introducing early judicial review of

¹⁰ *Ibid.*, article 25 (2*quat*); ICTY Statute, article 18 para. 1; and ICTR Statute, article 17 para. 1.

¹¹ See Preparatory Committee Decisions Aug. 1997, p. 9, article 25*bis* (<https://www.legal-tools.org/doc/11411b/>). It was at this session that the term *proprio motu*, which eventually prevailed, was introduced into the Draft Statute.

¹² The relevant text reads:

'[Article 25*bis* Prosecutor

The Prosecutor [may] [shall] initiate investigations [*ex officio*] [*proprio motu*] [or] on the basis of information [obtained] [he may seek] from any source, in particular from Governments, United Nations organs [and intergovernmental and non-governmental organizations]. The Prosecutor shall assess the information received or obtained and decide whether there is sufficient basis to proceed. [The Prosecutor may, for the purpose of initiating an investigation, receive information on alleged crimes under article 20 (a) to (d) from Governments, intergovernmental and non-governmental organizations, victims and associations representing them, or other reliable sources]. The entire article was in brackets, signifying lack of agreement about its inclusion in the Draft Statute.'

¹³ Article 25*bis* was reproduced without change, although renumbered article 46, in the Zutphen Draft, p. 86.

¹⁴ The term indictment was abandoned in later drafting work, so the Statute, as finally adopted, refers to the confirmation of 'charges'. See, e.g., article 61.

¹⁵ See CICC Report on the March-April 1998 session of the Preparatory Committee on the Establishment of an International Criminal Court, NGO Coalition for an International Criminal Court (1998), pp. 23–24 (<https://www.legal-tools.org/doc/ef5a84/>).

¹⁶ See Proposal submitted by Argentina and Germany, article 46, Information submitted to the Prosecutor, UN Doc. A/AC.249/1998/WG.4/DP.35 (25 March 1998) (<https://www.legal-tools.org/doc/896cf4/>).

proceedings initiated on the Prosecutor's own motion. That proved decisive. The text also specified the criteria which would guide the Pre-Trial Chamber in authorising the commencement of an investigation: First, the Pre-Trial Chamber would have to conclude, based on the Prosecutor's request and on the accompanying material, that there is 'a reasonable basis to proceed'. Second, the Chamber would have to assess that the case 'appears to fall within the jurisdiction of the Court'. Third, the Pre-Trial Chamber would have to have 'regard' for the Draft Statute's provisions on admissibility.

The major part of article 15 of the Statute is identical to the Argentine-German proposal, except that it leaves out the Pre-Trial Chamber's duty to take issues of admissibility into account when authorising the start of an investigation. Both the initial proposal and article 15 do, however, provide that authorisation shall be without prejudice to subsequent determinations by the Court as to the jurisdiction and admissibility of a case.

The joint proposal was well received at the March-April 1998 Preparatory Committee session and proved important to the acceptance of a Prosecutor with *proprio motu* power. It was reproduced, with no changes, in the Draft ICC Statute that was submitted to the Diplomatic Conference¹⁷.

- 6 While opening statements in the plenary session of the Conference showed majority support for the proposition that the Prosecutor should be able to trigger the Court's jurisdiction¹⁸, it was uncertain until the very end whether *proprio motu* power – even with the additional safeguard of the Pre-Trial Chamber – would survive. Of the several key issues that were at the heart of the compromise on which the Statute rests, the retention of an independent role for the Prosecutor seemed the most tenuous¹⁹. The uncertain outcome of the debate on prosecutorial independence²⁰ was reflected in the first of two Bureau papers, issued on 6 July 1998, the aim of which was to narrow down drafting options on the major issues of the Statute. The paper provided for two possibilities: the inclusion of a *proprio motu* power along with Pre-Trial Chamber supervision or the omission of the corresponding article from the Draft Statute²¹. Numerically, at least, the tide seemed to turn after a Committee of the Whole debate showed that the majority of delegations favoured the retention of a *proprio motu* power²². The second Bureau paper provided for only two options: keeping a *proprio motu* triggering role for the Prosecutor as already described or keeping it and adding further safeguards before the Prosecutor can act²³. As evidenced by article 15, the first option prevailed.

¹⁷ See Preparatory Committee (Consolidated) Draft, article 13 (<https://www.legal-tools.org/doc/66f2fb/>). The Draft Statute still contained article 12 as well (formerly numbered 46 and 25*bis*). Articles 12 and 13 obviously overlapped in content and contained different terms ['sufficient basis' (article 12) and 'reasonable basis' (article 13)] to describe the point at which the Prosecutor would determine that he or she should proceed with an investigation.

¹⁸ See NGO Coalition Trigger Mechanisms and Admissibility Team, Draft Summary of Country Positions on articles 10–20 based on Opening Statements, 22 June 1998 (on file with authors).

¹⁹ Certain delegates told the authors privately in Rome that *proprio motu* powers were being used as a bargaining chip in finalising the 'package' and that an independent role for the Prosecutor might be entirely omitted from the Statute.

²⁰ An especially strong stand against *proprio motu* powers was enunciated in a speech delivered on behalf of the US delegation. See 'The Concerns of the United States Regarding the Proposal for a Proprio Motu Prosecutor', 22 June 1998 (<https://www.legal-tools.org/doc/6dae4d/>). For an NGO rebuttal of US claims, see Lawyers Committee for Human Rights: 'Response to US Concerns Regarding the Proposal for a Proprio Motu Prosecutor', 24 June 1998 (on file with authors).

²¹ See Bureau Discussion Paper, Part 2, Jurisdiction, Admissibility and Applicable Law, UN Doc. A/CONF.183/C.1/L.53 (1998), pp. 16–17 (<https://www.legal-tools.org/doc/30dcec/>). This document merged what were previously articles 12 and 13 into a single article – 12 – entitled 'Prosecutor', thus eliminating the already mentioned textual overlap. It also introduced the breakdown of paragraphs that was adopted for article 15. The final text of article 15 further streamlined the wording, particularly of article 12 para. 1.

²² See The Numbers: NGO Coalition Special Report on Country Positions, CICC Monitor, 10 July 1998. According to the Report, 76 percent of delegations that participated in the Committee of the Whole debate supported *proprio motu* powers (61 states in favour, 19 against) (on file with authors).

²³ See Bureau Proposal, Part 2, Jurisdiction, Admissibility and Applicable Law, UN Doc. A/CONF. 183/C.1/L.59 (1998), pp. 14–15 (<https://www.legal-tools.org/doc/3a3c70/>).

It is a sign of the developing nature of international law that a *proprio motu* power was included in the Statute despite the ILC's initial rejection of the idea. On the other hand, it is clear that the international community was unwilling, at this stage of the evolution of international law, to model the ICC Prosecutor after prosecutors in national criminal justice systems. The insertion of Pre-Trial Chamber authorisation for the commencement of *proprio motu* investigations is proof of that reluctance. This comes as no surprise. It is true that Pre-Trial Chamber review is not the only check on prosecutorial discretion provided for in the Statute. Other safeguards against potential abuse of power may be found, for example, in the admissibility provisions, in the thresholds on definitions of crimes within the Court's jurisdiction and in the criteria laid down for election of the Prosecutor. An additional obstacle to unwarranted prosecutorial activism is judicial confirmation of charges against persons suspected of crimes within the Court's jurisdiction. Finally, the restrictions on the Court's exercise of jurisdiction and possible Security Council deferral of an investigation or prosecution also provide checks on proceedings initiated *proprio motu*.

Nevertheless, it came as a surprise to many that States were willing to accept an independent international prosecutor who can freely conduct preliminary examination of allegations of core international crimes and make public statements about such activities. An international prosecutor is not a part of an executive in the way national prosecutors are, nor does he or she relate to public interest in the same manner. It is clear that the role given to the Pre-Trial Chamber as the authoriser of Prosecutor-initiated investigations was the decisive factor for many States. The Pre-Trial Chamber represents the inherent constitutional check on the Prosecutor which some States required in order to accept a *proprio motu* power to initiate investigations. This makes the practice of the Prosecutor pursuant to articles 13 para. c and 15 and his or her general approach towards the Pre-Trial Chamber vital for the way some States perceive the Court.

The Prosecutor did not actually invoke article 15 until November 2009, in an application to initiate an investigation with respect to the post-election violence in Kenya.²⁴ On 23 June 2011, the Prosecutor filed his request for authorization from the Pre-Trial Chamber to commence an investigation into crimes allegedly committed during the post election violence in Côte d'Ivoire since November 2010.²⁵ Authorizations were made by the Pre-Trial Chamber in both situations.²⁶

B. Analysis and interpretation of elements

I. Paragraph 1

Article 15 para. 1 states the basic principle that the Prosecutor may initiate investigations on his or her own motion on the basis of information on crimes within the jurisdiction of the Court. The inclusion of this principle in the Statute facilitated the adoption of article 13 para. c, which provides that the Court's jurisdiction may be exercised over relevant crimes if the Prosecutor has initiated an investigation in respect of such crimes in accordance with article 15. Adequate familiarity with article 15 is, therefore, necessary for a proper understanding of

²⁴ Situation in Kenya, No. ICC-01/09-3, Request for Authorization of an Investigation pursuant to Article 15, 26 November 2009 (<https://www.legal-tools.org/doc/c63dcc/>).

²⁵ Situation in the Republic of Côte d'Ivoire, No. ICC-02/11-3, Request for authorization for an investigation pursuant to article 15, 23 June 2011 (<https://www.legal-tools.org/doc/1b1939/>).

²⁶ Situation in the Republic of Kenya, No. ICC-01/09-19, Decision pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 March 2010 (<https://www.legal-tools.org/doc/338a6f/>); Situation in the Republic of Côte d'Ivoire, No. ICC-02/11-14, Decision pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Côte d'Ivoire, Pre-Trial Chamber III, 3 October 2011 (<http://www.legal-tools.org/doc/7a6c19/>).

the mechanisms for the activation of the Court's jurisdiction contained in article 13. Moreover, article 15 has been referred to as the ultimate expression of prosecutorial independence in the Statute and hailed as one of its great achievements. At the same time it has been invoked in criticism of the Statute as an example of its alleged jurisdictional overreach. Both approaches amount to erroneous representations of the reality of the Statute's jurisdictional regime.

1. 'may initiate'

- 9 It is no coincidence that article 15 uses both the term 'may' and the term 'initiate'. The Prosecutor's initiation right is unconditional and discretionary, but carefully balanced by the need for authorisation by a Pre-Trial Chamber. It is activated through the Prosecutor's own motion, and not through other parties such as States or the Security Council. Article 15 para. 1 refers to 'initiate', not start. This is an important distinction which critics of the Court sometimes fail to point out. The Prosecutor can not start investigations on his own motion.

States were not prepared to accept such a power for the Prosecutor.

The Prosecutor is empowered to take certain initial steps to obtain and analyse information with a view to determining whether there is a reasonable basis to proceed with an actual investigation, as elaborated by article 15 paras. 2 and 3. Article 15 does not itself provide guidance for the exercise of the Prosecutor's discretion in the same way as, for example, article 53 para. 1 does. The link between articles 15 and 53 has been established by Rule 48 of Rules of Procedure and Evidence, which provides that in determining whether there is a reasonable basis to proceed with an investigation under article 15 para. 3, the Prosecutor shall consider the factors set out in article 53, paragraph 1(a) to (c). The power to initiate investigations under article 15 para. 1 would seem to reflect a notion of prosecutorial independence, which again seeks support in the fundamental interest of impartial justice. There is no unequivocal notion of prosecutorial independence in international criminal law and justice. Actors in international criminal justice will have different views on the scope of the notion. But it is clear that the exercise of the discretion to initiate an investigation may not be arbitrary. Not only is the discretion carefully framed by narrow jurisdictional parameters. Its actual exercise must be guided by the principle reflected in article 1's emphasis on 'the most serious crimes of international concern'. It is the seriousness of the alleged crimes that must lead the Prosecutor's exercise of discretion under article 15 para. 1. Herein lies some protection against the application of double standards in the Prosecutor's selection of crimes to target, as well as a part of the defence against frivolous or politically motivated charges built into the Statute.

2. 'investigations'

- 10 Paragraph 1 uses the word 'investigations'. This should not be misconstrued. Paragraph 6 of article 15 refers to 'the *preliminary examination* referred to in paragraphs 1 and 2' (emphasis added), an expression which more adequately captures the nature of the activities which the Prosecutor may undertake during the initiation phase. That is a helpful term. When initiating an investigation, the Prosecutor may take investigative steps such as those outlined in article 15 para. 2, but not conduct an actual investigation. The Prosecutor may conduct a preliminary examination to determine whether there is a reasonable basis to proceed with an investigation. Only when the Pre-Trial Chamber has judicially approved a prosecutorial request to proceed may a full investigation be launched.

3. 'proprio motu'

- 11 The expression '*proprio motu*' should be understood as in one's own motion. The point is that the Prosecutor may act on his or her own initiative, without any formal referral act or formal duty to initiate. This language goes to the core of articles 13 para. c and 15 insofar as

it encapsulates the principle of prosecutorial independence, widely considered as one of the components of impartial justice. The decision to initiate an investigation would fall squarely within prosecutorial discretion or the equivalent in most national jurisdictions. It should be the norm, not the exception. The version of article 15 that emerged from the negotiation process was, however, reduced in scope and judicially curtailed in a way which may help to reduce State concerns – some of which are entirely legitimate – that the Prosecutor is not appropriately accountable. At the time this third edition was completed, such State concerns still persisted.

4. ‘on the basis of information’

The Prosecutor may not initiate an investigation without any basis in alleged facts. The Prosecutor must respond to information on crimes within the jurisdiction of the Court that has come into the possession of his or her Office. There is no requirement, however, that the information has come from a specific source. The source is irrelevant according to article 15 para. 1, as long as information is in the possession of the Office of the Prosecutor and the decision to initiate an investigation is based on such information. The Prosecutor is obliged to protect the confidentiality of all information submitted under article 15 paras. 1 and 2.²⁷

II. Paragraph 2

1. First sentence

The first sentence of paragraph 2 provides that the Prosecutor ‘shall analyse the seriousness of the information received’. Although ‘information received’ would primarily seem to refer to the information on which the decision to initiate investigations was made pursuant to paragraph 1, the term would also apply to information which the Office of the Prosecutor receives after the decision has been made to start a preliminary examination. It would seem that *all* incoming information is covered by ‘information received’. In its early practice the Office of the Prosecutor has chosen to use the term ‘communication’ to describe the initial material received.

The use of the word ‘shall’ makes it clear that this is a binding obligation on the Prosecutor. It is essential that information submitted to the Prosecutor be properly considered, both as a matter of basic prosecutorial professionalism and in order to maintain confidence in the Office of the Prosecutor, without which it will gradually become difficult to prepare and prosecute cases, especially all those that depend on witness testimony.

The extent of consideration required is described as ‘analyse’, which would seem to point to sufficient attention by a qualified member of the Office of the Prosecutor with a view to assessing the seriousness of the information at hand.

The theme of the analysis is ‘seriousness’, a purely evidentiary test, as opposed to one of appropriateness. The seriousness of the information may both concern the nature of the alleged crimes and the strength of the incrimination contained in the information.

2. Second sentence

The second sentence of paragraph 2 refers to the preceding sentence and depends to a certain extent on it for its correct interpretation. The Prosecutor may, for the purpose of analysing the seriousness of the information received, ‘*seek additional information* from States, organs of the United Nations, intergovernmental or non-governmental organizations, or other reliable sources that he or she deems appropriate, and may receive written or oral testimony at the seat of the Court’ (emphasis added). This provision authorises the Prosecutor to take investigative steps in the course of the preliminary examination, thus

²⁷ Rule 46 of the Rules of Procedure and Evidence.

seeking information additional to that on which the decision to initiate an investigation was based. The investigative steps must be taken for the purpose of analysing the seriousness of the information received. The object must be to obtain additional information which will shed more light on the alleged criminal conduct and the responsibility for it. An initial allegation will normally be insufficient for the Prosecutor to make a balanced, professional judgement of whether to proceed to the Pre-Trial Chamber with a request for a full investigation. Many negotiating States were clearly concerned that it should not be possible for the Prosecutor to act prematurely, on an inadequate basis. Paragraph 2 places the obligation on the Prosecutor to properly consider the material received and grants the power to seek further information when necessary.

- 15 The sources which the Prosecutor may turn to for further information must be 'reliable'. Paragraph 2 mentions the examples of States, organs of the United Nations, intergovernmental and non-governmental organisations, but the use of the broad formulation 'other reliable sources' make it unnecessary to establish which sources would more specifically fall within the listed categories. Only the Prosecutor can determine whether or not a source is sufficiently reliable to be approached with a request to provide information on alleged criminal conduct to his or her Office. The provision does not provide guidance for the interpretation of the reliability standard, but simply refers to 'reliable sources that he or she deems appropriate'. Facing judicial scrutiny by the Pre-Trial Chamber of both his or her request to proceed to a full investigation and the supporting material, the Prosecutor will necessarily be concerned with the reliability of the information on the alleged criminal conduct. This will normally be the main concern of the Prosecutor when considering what is an appropriate source.
- 16 Receiving 'written or oral testimony at the seat of the Court' is a further investigative step that paragraph 2 provides for the Prosecutor's preliminary examination. Both written and oral testimony of the nature referred to here would be investigative steps that can be taken without any compulsory measures and will not necessarily require the consent of one or more States in order to be executed. The information may be an oral statement, a written account or documentary evidence. These are generally speaking practical sources of evidence in war crimes prosecutions, that can be very significant in specific cases, but at the same time the work of the *ad hoc* Tribunals shows that it is only in exceptional cases that a potential witness will find his or her own way to the seat of the Court. Paragraph 2 *in fine* does, however, empower the Prosecutor to facilitate such gathering of information more actively. The term 'seat of the Court' should include possible field offices and temporary arrangements which the Office of the Prosecutor of the permanent Court may establish and which may prove to be more accessible to witnesses relevant to the new situation which the Prosecutor is preliminarily examining. Rule 47 of the Rules of Procedure and Evidence gives further guidance to the taking of testimony under article 15 para. 2.
- 17 The purpose of article 15 para. 2 would be defeated if one adopted an unnecessarily restrictive interpretation of the paragraph, suggesting that it is exhaustive in its listing of investigative steps which the Prosecutor may take during the preliminary examination. The Prosecutor's decision to request the Pre-Trial Chamber to authorise a full investigation must be well-founded and sound. States negotiating article 15 shared the concern that a prosecutorial power to initiate investigations *proprio motu* must not be allowed to lead to frivolous or politically motivated charges being advanced. Delegates were not only concerned with the rights of individuals who may be considered suspects at the preliminary stage. The mere fact that the Prosecutor requests authorisation from the Pre-Trial Chamber to fully investigate a situation contains the potential of what may be experienced as embarrassment by the Governments of the territorial State(s) and State(s) of nationality. In other words, there were obvious interests behind the current structure of article 15 para. 2 which allows for necessary investigative steps to be taken to ensure that the Prosecutor's conclusion on reasonable basis pursuant to paragraph 3 is well-founded.

In order to obtain further information, the Prosecutor in practice did not limit preliminary examination activities to his or her office in The Hague. Field missions were carried out by the Prosecutor, *inter alia*, in Colombia, Georgia, and Guinea.²⁸ The ability of the Prosecutor to seek out relevant information in places where the alleged crimes have taken place during the preliminary examination phase has also been explicitly spelled out in the OTP's policy paper.²⁹

If the Prosecutor were to be in doubt how far paragraph 2 goes, he or she could turn to the Pre-Trial Chamber for further guidance.

III. Paragraph 3

The situation where the Prosecutor concludes his or her preliminary examination pursuant to paragraphs 1 and 2 is the subject of paragraph 3. If the Prosecutor's conclusion is that 'there is a reasonable basis to proceed with an investigation, he or she shall submit to the Pre-Trial Chamber a request for authorization of an investigation, together with any supporting material collected'. In other words, to continue the inquiry into alleged criminal conduct by means of a full investigation, the Prosecutor must submit an application for authorisation to the Pre-Trial Chamber with supporting material. In cases where the Court's jurisdiction is triggered through article 13 (c), this is the only way the Prosecutor can get from a preliminary examination to the stage of an actual investigation with the associated powers under article 54. When triggering is done pursuant to article 13 (a) or (b), article 15 does not apply and the Prosecutor proceeds directly to the article 53 stage. Rule 50 of the Rules of Procedure and Evidence contains further guidance on the procedure for authorizations by the Pre-Trial Chamber.

1. 'reasonable basis'

The test against which the Prosecutor must make his or her determination is one of 'reasonable basis'. This is an evidentiary test, not one of appropriateness. Rule 48 provides that the Prosecutor 'shall consider the factors set out in article 53, paragraph 1(a) to (c)' when determining whether there is a reasonable basis to proceed. It is clear that the phrase 'reasonable basis to proceed' is identical in both paragraphs 3 and 4 and in the chapeau of article 53, paragraph 1. These provisions, as noted by the pre-trial judges in the Kenya decision, 'prescribe the same standard to be considered both by the Prosecutor and the Pre-Trial Chamber'.³⁰ Although it is for the Prosecutor to determine what 'reasonable basis' means for the consideration of the information at hand, he or she knows that the Pre-Trial Chamber will apply the same test when it considers the Prosecutor's request pursuant to paragraph 4. The Prosecutor's conclusion cannot be arbitrary, but must be reasoned. He or she may not engage in a mere prediction of what the Pre-Trial Chamber will accept, but, rather, must exercise prosecutorial discretion independently by critically assessing the reliability of the information. In the situations of both Kenya and Côte d'Ivoire, the Prosecutor in reaching his conclusion examined each of the factors set out in article 53(1)(a)-(c), namely, jurisdiction, admissibility (including gravity), and interests of justice. A policy paper on preliminary examinations further spells out the Prosecutor's understanding of the requirements of a 'reasonable basis' test.³¹ Needless to say, the practice of the Pre-Trial Chamber is the key source for the determination of the more precise content of 'reasonable basis'.³²

²⁸ ASP, 'Report on the activities of the Court', ICC-ASP/12/28, 21 October 2013, paras. 72–74 (<https://www.legal-tools.org/doc/b22709/>).

²⁹ Office of the Prosecutor, 'Policy Paper on Preliminary Examinations', November 2013, para. 85 (<https://www.legal-tools.org/doc/acb906/>).

³⁰ Kenya (Pre-Trial Chamber II Decision), para 21.

³¹ Office of the Prosecutor (Policy Paper), p. 8–17.

³² Rule 48 of the Rules of Procedure and Evidence.

- 22 The Prosecutor must also consider the reference to ‘the most serious crimes of international Concern’ in article 1. This language provides general guidance as to the nature of the conduct that may be subjected to investigation and prosecution by the Office of the Prosecutor. Paragraph 3, just as paragraph 4, aims in part at protecting the Court from frivolous or politically motivated charges. At the same time it is necessary to keep in mind that the ‘reasonable basis’ test is not one of beyond reasonable doubt, and all that is at stake in paragraphs 3 and 4 is whether the Prosecutor should be allowed to investigate a situation, not if one or more specific individuals should be liable to criminal responsibility and punishment. The test of a ‘reasonable basis’ does not rise to the level of ‘reasonable grounds’ in article 58 or ‘substantial grounds’ in article 61.

2. ‘proceed with an investigation’

- 23 Proceeding with an investigation is the natural step for the Prosecutor once the preliminary examination has reached the point where he or she concludes that there is a reasonable basis to proceed. By ‘investigation’ is meant a full investigation pursuant to articles 53 and 54, with the possibilities and limitations which those provisions entail. To ‘proceed’ with an investigation is to move from article 15 into the realm of article 53 and other provisions in Part 5 of the Statute. The Prosecutor is not requesting the Pre-Trial Chamber to start proper investigations immediately upon authorisation pursuant to paragraph 4. Article 53 applies regardless of how the Court’s jurisdiction has been triggered under article 13, also in the cases of prosecutorial initiation of investigations pursuant to articles 13 (c) and 15.

3. ‘shall’

- 24 The Prosecutor ‘shall’ submit a request for authorisation with supporting material to the Pre-Trial Chamber when he or she has concluded that there is a reasonable basis to proceed with an investigation. This is a binding obligation on the Prosecutor. He or she is not at liberty to exercise discretion in applying to the Chamber to proceed when he or she considers that there is a sufficient basis. One could take the position that Article 53, on the other hand, provides a further opening for prosecutorial discretion in this regard, by incorporating a consideration of interests of justice in the Prosecutor’s final determination of whether to actually proceed with an investigation following authorisation by the Pre-Trial Chamber. Although the precise relationship between articles 15 and 53 was far from clear to the negotiating delegations, it would be erroneous to suggest that the burden on the Prosecutor is lighter under article 15 than in the article 13 (a) and (b) situations. After the Rome Conference, Rule 48 of the Rules clarified that, in reaching a conclusion that there is a reasonable basis to proceed with an investigation, the Prosecutor must consider the same factors he or she assesses upon reception of a referral by a State or the Security Council, which are contained in Article 53, paragraph 1 (a) to (c). Article 53 ensures an equal prosecutorial burden in all triggering modes outlined in article 13. New circumstances may arise after the Pre-Trial Chamber has given its authorisation under article 15 para. 4 which further justifies the applicability of article 53 on articles 13 (c) and 15 situations.

4. ‘supporting material’

- 25 The ‘supporting material collected’ will primarily be material which the Office of the Prosecutor has gathered pursuant to article 15 para. 2. The use of the word ‘collected’ does not exclude the initial information which the Prosecutor received and on which the decision to initiate an investigation pursuant to paragraph 1 was made. The reference to ‘any’ material should not be misconstrued to mean any and all. That would defeat the purpose of the provision, which is to ensure that the Prosecutor’s request is sufficiently substantiated for the Pre-Trial Chamber to be able to apply the ‘reasonable basis’ test. The Prosecutor is obliged to

forward as much supporting material as is required to show to the Chamber that his or her conclusion under paragraph 3 is well-founded and that the preliminary examination should proceed to a proper investigation.

Pre-Trial Chamber II noted in its decision on Kenya that, due to the limited powers the Prosecutor has during this preliminary phase, the information available to the Prosecutor is not expected to be ‘comprehensive’ or ‘conclusive’, compared to evidence gathered during the investigation.³³

5. Victim representations

It is clear from the discussion of paragraphs 1 and 2 above that the Prosecutor may receive information from victims. This is likely to be an important source for the Prosecutor also at the stage of preliminary examination, prior to the actual investigation, which will normally rely heavily on witness testimony. The value of the second sentence of paragraph 3 is that victims are entitled to make representations to the Pre-Trial Chamber as well, in accordance with the relevant provisions of the Rules (see Rule 50). It is, of course, for the Prosecutor and Pre-Trial Chamber to determine the relevancy and weight of any information coming from victims.

In both situations of Kenya and Côte d’Ivoire, as soon as the Prosecutor informed the Presidency of his intention to make a request under article 15, paragraph 3 of the Statute to open an investigation *proprio motu*, the OTP published a notice on the ICC website informing the victims of those crimes to make representations to the ICC. Following the Prosecutor’s requests, the Pre-Trial Chamber directed the Victims Participation and Reparations Section (VPRS) to receive victims’ representations on the subject and summarize these representations into one consolidated report.³⁴ The reports produced by the VPRS played an important role in the Pre-Trial Chamber’s assessment of the Prosecutor’s requests. This can be seen from the Chamber’s extensive reference to these two reports in its decisions on both situations. Some information contained in the reports has been considered by the judges as being able to ‘corroborate the Prosecutor’s submissions.’³⁵

IV. Paragraph 4

Paragraph 4 regulates the Pre-Trial Chamber’s exercise of discretion in response to a request by the Prosecutor pursuant to paragraph 3. The power to authorise a full investigation rests with the Pre-Trial Chamber alone. Whilst the Prosecutor may decide to *initiate* an investigation, the authority to *start* a full investigation is the Pre-Trial Chamber’s prerogative. This is the sobering reality of the Statute, in contrast to the picture which some have tried to paint of an ICC Prosecutor with powers so far-reaching as to constitute a liability to the efficacy of the Court. The Prosecutor’s investigative autonomy pursuant to articles 13 (c) and 15 is clearly judicially curtailed.

More specifically, paragraph 4 empowers the judges to consider the Prosecutor’s request with supporting material against a reasonable basis standard and the jurisdictional threshold of the Statute, with a view to authorising the commencement of the investigation. On first appearance, by including a cumulative two-fold test, paragraph 4 goes beyond paragraph 3 which only includes the same test of ‘reasonable basis’. This, however, does not necessarily

³³ Kenya (Pre-Trial Chamber II Decision), note 26, para. 27.

³⁴ Situation in the Republic of Kenya, No. ICC-01/09-4, Order to the Victims Participation and Reparations Section Concerning Victims’ Representations Pursuant to Article 15(3) of the Statute, Pre-Trial Chamber III, 10 December 2009, para. 9 (<https://www.legal-tools.org/doc/908205/>); Situation in the Republic of Côte d’Ivoire, No. ICC-02/11-6, Order to the Victims Participation and Reparations Section Concerning Victims’ Representations Pursuant to Article 15(3) of the Statute, Pre-Trial Chamber III, 6 July 2011, para. 9 (<https://www.legal-tools.org/doc/45f4fd/>).

³⁵ See for example Kenya (Pre-Trial Chamber II Decision), note 26, para. 196.

suggest a double standard between these two paragraphs. The Pre-Trial Chamber in its decision on Kenya noted that ‘there is a degree of redundancy in article 15(4) of the Statute insofar as the first requirement necessitates assessment of a ‘reasonable basis to proceed’ under article 53(1)(a) of the Statute and the second requirement equally prescribed assessment of whether ‘the case appears to fall within the jurisdiction of the Court’”.³⁶ As such, in the view of the pre-trial judges, a review of article 53 paragraphs (1)(a)–(1)(c) would make it unnecessary for the Chamber to duplicate its assessment of jurisdiction under article 15(4) of the Statute.³⁷ In any event, the reach of the expression ‘the jurisdiction of the Court’ under either this paragraph or article 53 paragraph (1)(a) is wide, insofar as it includes all of the Court’s jurisdictional requirements, not only the subject-matter jurisdiction. The requirement of article 12 that either the territorial State or a State of nationality of an alleged perpetrator has accepted the Court’s jurisdiction is an important distinguishing feature of the jurisdictional regime of the Court. Likewise, the Pre-Trial Chamber must not find that the Court’s jurisdiction is excluded because article 124 on temporary opt-out for the war crimes category applies, if the situation is to proceed to investigation. The pre-trial judges indeed held in practice that ‘an examination of the necessary jurisdiction prerequisites under the Statute must be undertaken’, which includes jurisdiction *ratione materiae* referred to by article 5, jurisdiction *ratione temporis* specified under article 11, and jurisdiction *ratione personae* embodied in article 12 of the Statute.³⁸

- 30 The Pre-Trial Chamber must not necessarily find that all jurisdictional requirements of the Statute are clearly satisfied. Paragraph 4 only requires that ‘the case *appears* to fall within the jurisdiction of the Court’ (emphasis added). The Chamber has full discretion in its determination of this appearance. It would seem that the purpose of paragraph 4 is not to require a thorough examination of this question at the preliminary stage of the process. The paragraph places an obligation on the Chamber to conduct an ‘examination of the request and the supporting material’. If there is no indication during this examination that the Court does not have jurisdiction over the case, the Pre-Trial Chamber should be able to conclude that ‘the case appears to fall within the jurisdiction of the Court’. Article 19 provides for further judicial consideration of the jurisdictional requirements. Article 15 para. 4 *in fine* points to this article when it states that the Pre-Trial Chamber’s jurisdictional finding pursuant to paragraph 4 will be ‘without prejudice to subsequent determinations by the Court with regard to the jurisdiction and admissibility of a case’.
- 31 Like in paragraph 3, the ‘reasonable basis’ standard in paragraph 4 is purely evidentiary and 27 not one of appropriateness. As confirmed by the pre-trial judges in the Kenya case, it is identical with the standard that paragraph 3 sets for the Prosecutor prior to the submission of the request to the Pre-Trial Chamber. In other words, when making a judicial determination as to the authorization of an investigation, the pre-trial judges must embark on the same analysis of whether the requirements set out in article 53, paragraphs (1)(a)–(c) are satisfied. The more precise content of the ‘reasonable basis’ test has gradually emerged through the practice of the Pre-Trial Chamber. In the Kenya decision, the Pre-Trial Chamber pointed out that the ‘reasonable basis to believe’ test set out in article 53(1)(a), which is one constitutive element of article 53(1), is the lowest evidentiary standard provided for in the Statute.³⁹ The Chamber then noted that the Statute contains three higher evidentiary standards in the course of the different stages of the proceedings, including ‘reasonable ground to believe’ under article 58 (for the issuance of an arrest warrant or summons for appear), ‘substantial grounds to believe’ pursuant to article 61, paragraph 7 (for the confirmation of charges), and ‘beyond reasonable doubt’ envisaged by article 66, paragraph 3 (for the finding of guilt).⁴⁰

³⁶ *Ibid.*, para. 66.

³⁷ *Ibid.*, para. 68.

³⁸ *Ibid.*, paras. 37–39.

³⁹ *Ibid.*, para. 27.

⁴⁰ *Ibid.*, para. 28.

According to the Chamber, among all three thresholds, the one required for the issuance of an arrest warrant pursuant to article 58 of the Statute is closest to the ‘reasonable basis to believe’ standard in article 53(1)(a).⁴¹ As such, the majority judges agreed that the threshold in article 53(1)(a) requires ‘the Chamber be satisfied that there exists a sensible or reasonable justification for a belief that a crime falling within the jurisdiction of the Court ‘have been or is being committed’’.⁴² This approach was subsequently endorsed by the majority pre-trial judges in the Côte d’Ivoire decision.⁴³ It is however not yet settled in the present ICC jurisprudence as to how low this standard is, a question asked by Judge Kaul in his dissent opinion to the Kenya decision.⁴⁴ In fact, the applicable standard is inseparable from the methodology the Chamber employs in examining the Prosecutor’s requests. Judge Kaul pointed out that ‘the Pre-Trial Chamber’s decision pursuant to article 15(4) of the statute is not of a mere administrative or procedural nature, and should by no means be a “rubber-stamping instance”’.⁴⁵ It instead requires a ‘substantial and genuine examination’ by the judges of the Prosecutor’s requests following a ‘serious, thorough and well-considered approach’.⁴⁶ On the other hand, a relatively generous approach than the one applied by the majority in both situations was suggested by Judge Fernández in her separate opinion to the Côte d’Ivoire decision. In her view, the examination to be conducted by the Pre-Trial Chamber should be of ‘a limited nature’ and confined to ‘ascertain the accuracy of the statement of facts and reasons of law advanced by the Prosecutor’, which seems to suggest an even lower threshold.⁴⁷

The pre-trial judges must keep in mind the reference to ‘the most serious crimes of concern to the international community as a whole’ in preambular paragraph 9 and ‘the most serious crimes of international concern’ in article 1. This language provides general guidance to the Pre-Trial Chamber. However, the Chamber’s application of the ‘reasonable basis’ standard should primarily be steered by the underlying purpose of paragraph 4, that of providing a judicial filter which will protect the Court from the damaging effects of frivolous or politically motivated charges. While the Pre-Trial Chamber judges⁴⁸ in both situations of Kenya and Côte d’Ivoire – majority as well as dissenting⁴⁹ – have all acknowledged that the ‘reasonable basis’ standard should be construed and applied against the above underlying purpose of paragraph 4, they obviously cannot agree on how to implement it in practice. It is important for the judges, in implementing the Pre-Trial Chamber’s supervisory role over the Prosecutor’s *proprio motu* power in the future, to fully take into account the implications of the limited purpose of this paragraph 4. Provided the Prosecutor observes basic standards of prosecutorial professionalism and demonstrates that an investigation strategy has been adopted by his or her Office – the latter remained questionable at the time this third edition was being completed – there should be a presumption that, when the Prosecutor has made a request pursuant to paragraph 3 and has submitted material in support of the application, there is a reasonable basis to proceed to a regular investigation.

⁴¹ *Ibid.*, para. 29.

⁴² *Ibid.*, para. 35.

⁴³ Côte d’Ivoire (Pre-Trial Chamber III Decision), note 26, para. 24.

⁴⁴ Situation in the Republic of Kenya, No. ICC-01/09-19-Corr, Dissenting Opinion of Judge Hans-Peter Kaul to the Decision pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, para. 15 (<https://www.legal-tools.org/doc/f0caaf/>).

⁴⁵ *Ibid.*, para. 19.

⁴⁶ *Ibid.*, paras. 15, 19.

⁴⁷ Situation in the Republic of Côte d’Ivoire, No. ICC-02/11-15, Judge Fernández de Gurmendi’s separate and partially dissenting opinion to the Decision pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Côte d’Ivoire, 3 October 2011, para. 28 (<https://www.legal-tools.org/doc/ea2793/>).

⁴⁸ Kenya (Pre-Trial Chamber II Decision), para. 16; *Supra* note 3, Côte d’Ivoire (Pre-Trial Chamber III Decision), note 26, para. 21.

⁴⁹ Kenya (Dissenting Opinion of Judge Kaul), note 44, para. 15; Côte d’Ivoire (Judge Fernández’s separate and partially dissenting opinion), note 26, para. 17.

- 32 The power that the Pre-Trial Chamber possesses under paragraph 4 is to ‘authorize the commencement of the investigation’. With such an authorisation the Prosecutor may proceed to the consideration of launching a full investigation. Article 53 para. 1 provides guidance to the Prosecutor for this independent consideration which the Prosecutor is obliged to undertake. If the Court’s jurisdiction has been triggered by a referral by a State Party or the Security Council pursuant to article 13 (a) and (b) respectively, article 15 does not apply and thus, the question of a Pre-Trial Chamber authorisation of the commencement of the full investigation becomes moot. In those situations the Prosecutor proceeds to the consideration under article 53 para. 1 directly.

The Pre-Trial Chamber may ‘request additional information from the Prosecutor and from any of the victims who have made representations, and, if it considers it appropriate, may hold a hearing’.⁵⁰ The Chamber shall issue its decisions with reasons and give notice to victims who have made representations.⁵¹

V. Paragraph 5

- 33 Paragraph 5 concerns the situation where the Pre-Trial Chamber refuses to accept the Prosecutor’s request to authorise a full investigation pursuant to paragraph 4, whether because it does not find that there is a reasonable basis to proceed or that the case does not appear to fall within the jurisdiction of the Court. The paragraph provides that such refusal ‘shall not preclude the presentation of a subsequent request by the Prosecutor based on new facts or evidence regarding the same situation’. The term ‘shall not preclude’ does not mean that the Prosecutor can present his or her second request to the Pre-Trial Chamber as soon as new facts or evidence have been uncovered. The obligation to ‘analyse the seriousness of the information received’ in paragraph 2 applies to the Prosecutor with regard to the new facts or evidence as well. If the Prosecutor upon consideration of the new material concludes that there is a reasonable basis to proceed with a full investigation, he or she may submit a new request pursuant to paragraph 5.

VI. Paragraph 6

1. First sentence

- 34 The final paragraph of article 15 regulates the situation where the Prosecutor has determined that there is no reasonable basis for an investigation. Article 15 para. 3 makes it clear that the Prosecutor has full discretion in the determination of whether the information he or she has obtained and analysed amounts to a reasonable basis. If the conclusion is negative, paragraph 6, first sentence, places an obligation upon the Prosecutor to ‘inform those who provided the information’ promptly and responsibly.⁵² The discussion of paragraph 1 and 2 above shows that the Prosecutor may receive information from any source and can seek additional information from States, organs of the UN, intergovernmental or non-governmental organisations, or ‘other reliable sources that he or she deems appropriate’. The overall number of sources made available to the Prosecutor at the stage of his or her preliminary examination can in other words be very high and the range broad. The intention of the drafters of article 15 para. 6 was not, however, to add another burden to the responsibilities of the Prosecutor.

Rather, by using the expression ‘those who provided the information’, the drafters would seem to have singled out those that bring a situation to the Prosecutor’s attention and on whose information the Prosecutor will base his or her decision to initiate a preliminary

⁵⁰ Rule 50 para. 4 of the Rules of Procedure and Evidence.

⁵¹ Rule 50 para. 5 of the Rules of Procedure and Evidence.

⁵² Rule 49 para. 1 of the Rules of Procedure and Evidence.

examination pursuant to article 15 para. 1. These sources should stand out as the original providers of information to the Prosecutor. The Prosecutor is obliged under article 15 para. 6 to inform such sources of his or her conclusion that there is no reasonable basis to proceed with an investigation upon the conclusion of the preliminary examination. It may be necessary for the Prosecutor to develop guidelines on how to fulfil the requirements of this paragraph.

By ‘preliminary examination’ in paragraph 6 is meant the investigative steps which the Prosecutor may take after he or she is seized of a situation but prior to his or her determination of whether there is a reasonable basis to proceed with an investigation pursuant to paragraph 3. These steps include, but are not limited to, analysing information received from any source, seeking information from a broad range of reliable sources indicated in the text, and receiving written or oral testimony at the seat of the Court. The Prosecutor also has an evidence preservation capacity pursuant to article 54 para. 3 (f) *i.f.* which may be relevant in this context. The use of the term ‘preliminary examination’ with reference to article 15 paras. 1 and 2 is helpful in the sense that it gives the investigative activities in question a name, in distinction from investigation proper pursuant to article 53.

It worth noting that the OTP has, in its policy paper, defined the scope of preliminary examination narrower than that envisaged by this paragraph. According to the policy paper, different from the information arising from referrals by a State Party or the Security Council, the information on alleged crimes received under article 15 does not automatically lead to the start of a preliminary examination of a specific situation.⁵³ An initial phase of assessment, which aims to filter out information on crimes that are manifestly outside the jurisdiction of the Court, is a precondition for the Prosecutor to open an a preliminary examination on the basis of article 15 communications.⁵⁴ In other words, preliminary examination only applies to article 15 communications that were not rejected by the initial assessment. This approach seems to have distinguished initial assessment from preliminary examination. No matter how to make the delimitation, these investigative activities as a whole may only be ‘preliminary’, that is, at one point in time the Prosecutor must pause to make the determination of whether there is a reasonable basis to proceed with a full investigation. The preliminary examination should not be used as a pretext for conducting the actual investigation. It is, however, the Prosecutor who decides *when* the determination pursuant to article 15 para. 3 will be made. The way this discretionary power has been exercised by the Prosecutor has been subjected to serious criticism.⁵⁵ The term ‘reasonable basis’ in paragraph 6 is to be interpreted in the same way as in paragraphs 3 and 4 which have been discussed above. Paragraph 6 does not prescribe any mode to be used by the Prosecutor when informing those who provided the information. Insofar as the text simply refers to ‘inform’, it is up to the Prosecutor to choose how to inform the relevant sources of information, pursuant to the Rules of Procedure and Evidence.

2. Second sentence

Article 15 para. 6 *in fine* provides that a negative determination pursuant to article 15 para. 3, which has been communicated to those who initially provided information to the Prosecutor in accordance with the first sentence of paragraph 6, does not ‘preclude the Prosecutor from considering further information submitted to him or her regarding the same situation in the light of new facts or evidence’. Based on the experience of the two *ad hoc* Tribunals it is to be expected that there will be a steady flow of information coming in to the Office of the Prosecutor as soon as the Prosecutor embarks upon a preliminary examination

⁵³ Office of the Prosecutor (Policy Paper), note 29, paras. 75, 80.

⁵⁴ *Ibid.*, paras. 75, 78.

⁵⁵ See Chan, *Judicial Oversight over Article 12(3) of the ICC Statute* (Torkel Opsahl Academic EPublisher 2013, <https://www.legal-tools.org/doc/bc46c4/>), and Xiao and Zhang, *A Realist Perspective on China and the International Criminal Court* (Torkel Opsahl Academic EPublisher 2013, <https://www.legal-tools.org/doc/9ff2b7/>).

of a situation. The mode of initial inquiry provided for in article 15 paras. 1 and 2 remains open to the Prosecutor even after his or her determination that there is no reasonable basis to proceed with a full investigation provided new facts or evidence is available. The Prosecutor is the arbiter of whether the requirement that there be new facts or evidence is satisfied. Normally the promise of new facts or evidence will lie precisely in the further information that has been submitted to the Office of the Prosecutor.

Article 15bis

Exercise of jurisdiction over the crime of aggression (State referral, *proprio motu*)

1. The Court may exercise jurisdiction over the crime of aggression in accordance with article 13, paragraphs (a) and (c), subject to the provisions of this article.

2. The Court may exercise jurisdiction only with respect to crimes of aggression committed one year after the ratification or acceptance of the amendments by thirty States Parties.

3. The Court shall exercise jurisdiction over the crime of aggression in accordance with this article, subject to a decision to be taken after 1 January 2017 by the same majority of States Parties as is required for the adoption of an amendment to the Statute.

4. The Court may, in accordance with article 12, exercise jurisdiction over a crime of aggression, arising from an act of aggression committed by a State Party, unless that State Party has previously declared that it does not accept such jurisdiction by lodging a declaration with the Registrar. The withdrawal of such a declaration may be effected at any time and shall be considered by the State Party within three years.

5. In respect of a State that is not a party to this Statute, the Court shall not exercise its jurisdiction over the crime of aggression when committed by that State's nationals or on its territory.

6. Where the Prosecutor concludes that there is a reasonable basis to proceed with an investigation in respect of a crime of aggression, he or she shall first ascertain whether the Security Council has made a determination of an act of aggression committed by the State concerned. The Prosecutor shall notify the Secretary-General of the United Nations of the situation before the Court, including any relevant information and documents.

7. Where the Security Council has made such a determination, the Prosecutor may proceed with the investigation in respect of a crime of aggression.

8. Where no such determination is made within six months after the date of notification, the Prosecutor may proceed with the investigation in respect of a crime of aggression, provided that the Pre-Trial Division has authorized the commencement of the investigation in respect of a crime of aggression in accordance with the procedure contained in article 15, and the Security Council has not decided otherwise in accordance with article 16.

9. A determination of an act of aggression by an organ outside the Court shall be without prejudice to the Court's own findings under this Statute.

10. This article is without prejudice to the provisions relating to the exercise of jurisdiction with respect to other crimes referred to in article 5.

Literature: Ambos, K., 'The Crime of Aggression after Kampala', (2010) 53 *GYbIL* 463; Clark, R. S., 'Amendments to the Rome Statute of the International Criminal Court Considered at the First Review Conference on the Court, Kampala, 31 May-11 June 2010', (2010) 2 *GoJIL* 689; Heller, K. J., 'The Uncertain Legal Status of the Aggression Understandings', (2012) 10 *JICJ* 229; Kref, C. and von Holtzendorff, L., 'The Kampala Compromise on the Crime of Aggression', (2010) 8 *JICJ* 1179; McDougall, C., *The Crime of Aggression under the Rome Statute of the International Criminal Court* (CUP 2013); Reisinger Coracini, A., 'The International Criminal Court's Exercise of Jurisdiction over the Crime of Aggression – at Last ... in Reach ... over Some', (2010) 2 *GoJIL* 745; Schmalenbach, K., 'Das Verbrechen der Aggression vor dem Internationalen Strafgerichtshof: Ein politischer Erfolg mit rechtlichen Untiefen', (2010) *JZ* 745; Zimmermann, A., 'The Creation of a Permanent International Criminal Court', (1998) *MPYbUNL* 169; Zimmermann, A., 'Amending the Amendment Provisions of the Rome Statute: The Kampala Compromise on the Crime of Aggression and the Law of Treaties', (2012) 10 *JICJ* 209.

See also the further references *supra* at article 5 and article 8bis, as well as those *infra* at article 15ter.

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A. Article 15bis within the Statute's overall jurisdictional scheme

Of the three different ways of triggering the Court's jurisdiction established under article 13, article 15bis, as introduced into the Statute as part of the Kampala compromise on the crime of aggression, relates to article 13 paras. a) and c) only. Accordingly, article 15bis deals with referrals by a State party and with *proprio motu* investigations by the Prosecutor. Specific questions related to Security Council referrals in turn are addressed in article 15ter, as far as the crime of aggression is concerned.

While the enabling Resolution RC/Res. 6, adopted at the Diplomatic Conference in Kampala, '[r]ecall[s] paragraph 1 of article 12 of the Rome Statute', it is worth noting that article 15bis contains significant deviations from the regular jurisdictional scheme underlying article 12 of the Statute. This is a result of the long and difficult process of finding an agreement on both, the definition of the crime of aggression as such and the parameters, under which the court should eventually be in a position to exercise its jurisdiction over the crime of aggression.

Article 15bis also deviates from article 5 para. 2 (*ante* Kampala), which stated that the Court shall exercise its jurisdiction over the crime of aggression once a provision is adopted in accordance with articles 121 and 123 defining the crime and setting out the conditions under which the Court shall exercise jurisdiction. While it would not have been in accordance with the very wording of article 5 to interpret it in the sense that a mere adoption could have sufficed for the Court to be able to exercise its aggression-related jurisdiction,¹ Resolution RC/Res.6 clarified, while being adopted under article 5 para. 2 ICC Statute, that the amendment and its entry into force is governed by article 121 para. 5.²

B. Drafting history of article 15bis

While the SWGCA, in preparation for the Kampala conference, had formulated only one draft for what was to become the current article 8bis, there were various alternatives for what is now article 15bis. The most controversial question was whether proceedings should possibly also be initiated by actors other than the United Nations Security Council. The permanent members of the Security Council, as well as some other States, had proposed that a determination by the Security Council under article 39 United Nations Charter should be required for the exercise of the Court's jurisdiction³. This position was opposed particularly by States that are members of the Non-Aligned Movement. During the Kampala Conference,

¹ For a more detailed discussion of the matter see Zimmermann (2012) 10 *JICJ* 209, 212 *et seq.*, as well as Clark, *article 121*, mn 11 *et seq.*

² RC/Res. 6, para. 6, no. 1.

³ For a significant more detailed discussion as to the drafting history of current article 15bis prior to the Kampala Conference see Zimmermann, *article 5*, mn 30 *et seq.* Werle and Jessberger, *Principles of International*

it became clear that the insistence on a monopoly for the Security Council to trigger the Court's jurisdiction concerning the crime of aggression would hinder any consensus to eventually be reached. The final compromise, reached on the very last day of the Kampala Conference⁴, as now reflected in article 15bis, therefore provides that it is not only the Security Council, but also State Parties to the Statute and the Prosecutor that can initiate proceedings even with respect to an alleged crime of aggression.

Given its principled position on the matter, France, despite the fact of not having formally opposed the consensus leading to the adoption of article 15bis, still took the position in an explanatory declaration that 'it cannot associate itself with [the] text as it disregards the relevant provisions of the Charter of the United Nations enshrined in article 5 of the Rome Statute'. According to France, article 15bis, as adopted, 'restricts the role of the United Nations Security Council and contravenes the Charter of the United Nations under the terms of which the Security Council alone shall determine the existence of an act of aggression'⁵.

In order to differentiate between proceedings triggered by State Parties or *proprio motu* by the Prosecutor on the one hand and the Security Council on the other hand, as well as for the sake of clarity, it was decided to include, apart from article 8bis containing the substance of the crime of aggression, **two separate additional articles** into the Rome Statute by way of an amendment: **article 15bis dealing with State referrals and proceedings initiated by the Prosecutor *proprio motu***, and **article 15ter covering Security Council referrals**.

C. Article 15bis para. 1: exercise of jurisdiction over the crime of aggression in accordance with article 13 paras. (a) and (c)

I. 'The Court (...)'

- 3 Since article 34 defines what is to be understood by 'the Court', the introductory words of article 15bis para 1 confirm, if there was any need, that accordingly **all organs of the Court** are subject to the jurisdictional limitations provided for by article 15bis.

II. '(...) may exercise jurisdiction (...)'

- 4 Somewhat in contrast to article 15bis para. 3, the English version of article 15bis para. 1 specifies that the Court **may (rather than shall) exercise** its jurisdiction if the respective requirements set out in article 15bis are fulfilled. It must be noted, however, that both the equally authentic French and Spanish texts refer in paras. 1 and 2 to the fact that the Court can exercise ('peut exercer'/'podrá ejercer') its jurisdiction in accordance with article 13 para. a) and c). Thus the English 'may' ought to be better understood as circumscribing the Court's ability ('can'/'peut'/'podrá') to exercise jurisdiction rather than providing some specific form of discretion beyond any discretion otherwise provided for in the Statute.

III. '(...) over the crime of aggression (...)'

- 5 By referring to the exercise of jurisdiction over the **crime of aggression**, article 15bis para. 1 also confirms that the underlying **act of aggression**, while in most, if not all, cases triggering State responsibility as a matter of general international law, is not the object of the

Criminal Law (3rd ed. 2014) 546 *et seq.*; Ambos, *Treatise on International Criminal Law, Volume II: The Crimes and Sentencing* (2014) 190 *et seq.*

⁴ Barriga, in: Barriga and Krefß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 3, 32.

⁵ Statement of France (with which the United States of America associated themselves) in explanation of position before the adoption of resolution RC/Res.6 on the crime of aggression, Review Conference of the Rome Statute of the International Criminal Court, Off. Rec., Annex VII, p. 122.

proceedings before the Court as such. Nevertheless, the Court will obviously have to consider it and possible grounds excluding the alleged illegality of any such underlying acts of aggression. It is indeed this interconnection that gave rise to the concerns as to the role of the Security Council. It stands to reason, however, that any determination by the Court that an act of aggression has been committed by organs of a State (eventually evoking those organs' individual criminal responsibility) cannot provide for any form of *de jure* binding effect as to the legal relations between the States involved in the use of armed force, even if, *de facto* and politically, such a determination might be of relevance. This holds true despite the fact that there is no provision similar to article 15bis para. 9, which would *expressis verbis* exclude any such external effect of the Court's decisions for purposes of State responsibility.

IV. '(...) in accordance with article 13, paragraphs (a) and (c) (...)'

In line with the compromise reached in Kampala, Article 15bis para. 1 provides first that '[t]he Court may exercise jurisdiction over the crime of aggression in accordance with article 13, paragraphs (a) and (c)'.⁶ Article 15bis therefore does not cover or regulate Security Council referrals, which are governed exclusively by article 15ter read in conjunction with, and subject to, article 13 para. (b).

Yet, and to state the obvious, article 16, enabling the Security Council to request the Court not to commence respectively or to proceed with an investigation or prosecution, also applies to the crime of aggression when such an investigation or prosecution has been triggered by either a State party or *proprio motu* by the Prosecutor, as confirmed by article 15bis para. 8.⁷

V. '(...) subject to the provisions of this article.'

Para. 1 of article 15bis further clarifies that, while acknowledging the possibility of State referrals and investigations by the prosecutor under article 13 paras. (a) and (c) respectively even when it comes to the crime of aggression, any such proceedings are subject to the specific requirements and conditions, as contained in article 15bis paras. 2–10.

D. Article 15bis para. 2

I. General nature and effect of article 15bis para. 2

During the negotiation process, the issues related to the **entry into force** of the amendment on the crime of aggression and the extent of the Court's **jurisdiction *ratione temporis*** concerning this crime proved to be among the most intricate and disputed ones. This led to the solution now contained in article 15bis paras. 2 and 3 (and further set out in Understanding no. 3), the compatibility of which with the amendment provisions of the Rome Statute remains, to say the least, doubtful⁸. Likewise, the inter-relationship between article 15bis para. 2, article 15bis para. 3 and Understanding no. 3 is complex and bears significant legal difficulties.

As far as the Court's *treaty-based* jurisdiction with regard to the crime of aggression is concerned, those issues are governed by article 15bis paras. 2 and 3 while article 15ter paras. 2 and 3 regulate the same questions when it comes to the Court's aggression-related jurisdiction triggered by a Security Council referral under Chapter VII of the Charter of the United Nations.

⁶ As to the specific content of article 13, paras. (a) and (c) see Schabas and Pecorella, *article 13*, mn 15 and 20 respectively.

⁷ As to details on article 16, see Bergsmo, Pejic and Zhu, *article 16*, *passim*.

⁸ See generally Zimmermann (2012) 10 *JICJ* 209, *passim*.

While article 15bis paras. 2 and 3 are inter-related (just as *mutatis mutandis* article 15ter para. 2 and 3 concerning Security Council referrals), they still **deal with different issues**. It is to be noted at the outset, however, that neither of the two provisions (nor indeed the parallel provisions in article 15ter) regulate the **entry into force of the Kampala amendment** as such. Rather, para. 1 of Resolution RC/Res.6 adopted at the Kampala Diplomatic Conference provides that the entry into force takes place in accordance with article 121 para. 5, any doubts regarding the applicability of said provision notwithstanding⁹.

In contrast thereto, article 15bis para. 2 regulates for which crimes of aggression the Court has **jurisdiction *ratione temporis***, while article 15bis para. 3 regulates the ‘**activation**’ of the Court’s aggression-related substance-matter jurisdiction.

Under article 15bis para. 2 (just like under article 15ter para. 2) the Court will thus only be able to exercise its jurisdiction *with respect to* crimes of aggression ‘committed one year after the ratification or acceptance of the amendments by thirty States Parties’. Put otherwise, article 15bis para. 2 circumscribes the Court’s temporal jurisdiction rather than providing for the entry into force of the amendment or providing for the ‘activation’ of the Court’s jurisdiction concerning the crime of aggression. Article 15bis para. 2 therefore constitutes a *lex specialis* to article 11 para. 2 to the extent to which the issue is specifically governed by article 15bis para. 2. Thus, under article 15bis para. 2, even with regard to a State ratifying the Rome Statute after the amendment as such has entered into force pursuant to article 121 para. 5, the Court may not exercise its jurisdiction with respect to a crime of aggression committed by that State’s nationals, unless 30 States have by then already ratified or accepted the amendment, additionally one year has lapsed since that 30th ratification or acceptance, and the condition provided for in article 15bis para. 3 has also been fulfilled.¹⁰

II. ‘The Court may exercise jurisdiction (...)’

- 9 This part of article 15bis para. 2 is identical to the introductory words of article 15bis para. 1 without raising any additional or separate issues of interpretation.¹¹

It is worth noting, however, that unlike article 24 para. 1 in relation to which article 15bis para. 2 (respectively article 15ter para. 2) constitutes *lex specialis* which stipulates that ‘[n]o person shall be criminally responsible under this Statute for conduct prior to the entry into force of the Statute’, article 15bis para. 2 (respectively article 15ter para. 2) does not address the (substantive) criminal liability of the offender. Rather it merely limits the Court’s temporal jurisdiction. Notwithstanding this conceptual difference the effect is the same, namely that a person committing a crime of aggression within the meaning of article 8bis prior to the critical date shall not face prosecution by the Court.

III. ‘(...) with respect to crimes of aggression committed one year after the ratification or acceptance of the amendments by thirty States Parties.’

1. ‘with respect to crimes of aggression (...)’

- 10 The phrase ‘(...) with respect to crimes of aggression committed (...)’¹² confirms that it must be the specific **crime of aggression**, as set out in article 8bis para. 1, that must have taken place after the lapse of the one-year period after the 30th ratification or acceptance, rather than the underlying *act* of aggression, although in most cases, though not necessarily, both will coincide.

⁹ For details see Zimmermann (2012) 10 JICJ 209 *et seq.*, *passim*; McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 252; Ambos, *Treatise on International Criminal Law, Volume II: The Crimes and Sentencing* (2014) 216 *et seq.*

¹⁰ See *infra* mn 15.

¹¹ See mn 4.

¹² Emphasis added.

2. ‘with respect to crimes of aggression (...)’

The wording of article 15bis para. 2 further confirms that the **ratification** of the Kampala amendment by thirty States and the additional lapse of a one-year period constitute a *condicio sine qua non* for the Court’s exercise of its aggression-related temporal jurisdiction. 11

Article 15bis para. 2, by specifically using the words ‘with respect to’ rather than simply stating that the Court may only exercise its jurisdiction ‘one year after the ratification or acceptance of the amendments by thirty States Parties’, indicates that the fulfillment of this condition defines the extent of the Court’s temporal jurisdiction concerning the crime of aggression, namely those crimes committed one year after the 30th ratification or acceptance, as defined below¹³. Article 15bis para. 2 therefore does not seem to define the time-frame when such jurisdiction, once established, may be *exercised*. This latter question is then, under the Statute as such, regulated by article 15bis para. 3. Put otherwise, *under the wording of article 15bis para. 2*, the Court can accordingly in principle also exercise its jurisdiction *with respect to* crimes committed prior to the decision provided for in article 15bis para. 3, but can effectively do so only after this decision was made.¹⁴

3. ‘(...) committed one year after the ratification or acceptance of the amendments by thirty States Parties.’

a) **Continuous crimes of aggression.** In order to fall within the Court’s temporal jurisdiction the respective crime of aggression (and thus normally also the underlying act of aggression) must have been committed, as article 15bis para. 2 confirms, at least one year after the ratification or acceptance of the amendments by thirty States Parties. Yet, at least certain of the acts of aggression defined in article 8bis para. 2, such as article 8bis para. 2 lit. a) 2nd alternative (‘any military occupation, however temporary, resulting from such invasion or attack’) or lit. g) 2nd alternative (‘any extension of their presence [*i.e.* the presence of troops] in such [foreign] territory beyond the termination of the agreement’), are of a **continuous character** within the meaning of article 14 para. 2 ILC Articles on State Responsibility, *i.e.* the breach of the obligation ‘extends over the entire period during which the act continues and remains not in conformity with the international obligation’.¹⁵ 12

While said standard has primarily been developed for purposes of State responsibility, it nevertheless has also been adopted, albeit reluctantly, for purposes of international criminal law¹⁶. Given the nature of the abovementioned acts of aggression, individuals might very well come within the Court’s **jurisdiction *ratione temporis*** with regard to the commission of the crime of aggression provided the commission of the (continuous) act of aggression itself occurred within the jurisdictional reach *ratione temporis* of the Court.

b) ‘(...) **ratification or acceptance of the amendments (...)**’. It is noteworthy that article 15bis para. 2 (just like article 15ter para. 2), contrary to the wording of article 121 paras. 4 and 5, refers to the ‘**ratification or acceptance**’ of the amendments by thirty States parties rather than to the *deposit of an instrument of ratification or acceptance*. This difference in wording, even if its drafters might eventually have thought to use a formula which was only shorter yet was meant to be identical in content, could also be perceived as implying that any such ‘*ratification/acceptance*’ refers to the amendment becoming *binding* for the ratifying/accepting State, rather than referring to the *act of depositing* the instrument of ratification or acceptance. Under article 121 para. 5, however, any such ratification/acceptance only takes effect one year *after the deposit of the instrument of ratification/acceptance*. If this prolonged process is applicable, the likelihood of reaching the necessary thirty ratifications before the 13

¹³ See *infra* mn 12.

¹⁴ As to the impact of Understanding no. 3 on this interpretation of article 15bis para. 2 see *infra* mn 20.

¹⁵ UN DOC A/56/83 (12 December 2001).

¹⁶ See Pangalangan, article 24, mn 13 *et seq.*

decision contemplated in article 15bis para. 3 (respectively in article 15ter para. 3) will be taken after 1 January 2017 decreases. In other words, this might postpone the Kampala amendment on the crime of aggression becoming effective.

- 14 c) '(...) ratification or acceptance of the amendments (...)'. It is not entirely clear what article 15bis para. 2 means when it refers to the 'acceptance' of the amendments alongside a possible 'ratification'. At the time of writing, 23 States, namely Andorra, Austria, Belgium, Botswana, Costa Rica, Croatia, Cyprus, the Czech Republic, Estonia, Georgia, Germany, Latvia, Liechtenstein, Luxembourg, Malta, Poland, Samoa, San Marino, Slovakia, Slovenia, Spain, Trinidad and Tobago, as well as Uruguay, have so far acceded to the amendment on the crime of aggression by submitting a formal declaration to the depositary.¹⁷ It is thus beyond doubt that those 23 ratifications are to be counted towards the quorum required by article 15bis para. 2 (respectively by article 15ter para. 2).

Besides, twelve more States, including most recently the State of Palestine¹⁸, have acceded to the Rome Statute *after* the Kampala amendment on the crime of aggression had been adopted, *i.e.* after 11 June 2010,¹⁹ without expressing an intention *not* to be bound by the treaty, as amended. At the same time, no State having ratified the Rome Statute after the Kampala Diplomatic Conference, has so far also ratified or acceded to the amendment on the crime of aggression. This stands in line with the practice concerning the amendment to article 8²⁰ where similarly none of the States having become parties to the Rome Statute after the Kampala Conference has so far separately acceded to the article 8 amendment.

The wording of article 15bis para 2 (and the parallel wording of article 15ter, para. 2) refers to the fact that '[t]he Court may exercise jurisdiction only with respect to crimes of aggression committed one year after the ratification or acceptance of the amendments by thirty States Parties'²¹. This raises two questions: for one, has a State, ratifying the Rome Statute after 11 June 2010, thereby also automatically *accepted* the Kampala amendment, and, secondly, can such a State then accordingly be also counted towards the necessary quorum of thirty States.

In that regard, it is worth recalling preambular paragraph 3 of Resolution RC/Res.5, also adopted in Kampala, and dealing with the amendments to article 8 of the Rome Statute. The said provision specifically '[c]onfirm[ed] that, in light of the provision of **article 40, paragraph 5, of the Vienna Convention on the Law of Treaties**, States that subsequently become States Parties to the Statute will be allowed to decide whether to accept the amendment contained in this resolution at the time of ratification, acceptance or approval of, or accession to the Statute'. In contrast thereto, Resolution RC/Res.6, dealing with the crime of aggression, contains no such provision. Yet, given that the principle underlying article 40 para. 5 of the Vienna Convention on the Law of Treaties constitutes customary international law²², it still applies, the lack of any specific reference to article 40 para. 5 of the Vienna Convention on the Law of Treaties notwithstanding. As a matter of fact, at least those States that have ratified the Rome Statute after the Kampala amendment on the crime of aggression has entered into force for the first State have thus, to use the formula contained in

¹⁷ See https://treaties.un.org/pages/ViewDetails.aspx?src=TREATY&mtdsg_no=XVIII-10-b&chapter=18&lang=en (accessed September 2015).

¹⁸ See as to the question of Palestinian statehood and the status of Palestine vis-à-vis the Rome Statute generally Zimmermann (2013) 11 *JICJ* 303 *et seq. passim*; see also the depositary note concerning Palestine, CN.12.2015.TREATIES-XVIII.13 (2 January 2015), as well as the communications by Canada (23 January 2015), <https://treaties.un.org/doc/Publication/CN/2015/CN.62.2015-Eng.pdf>; by the United States of America (23 January 2015), <https://treaties.un.org/doc/Publication/CN/2015/CN.64.2015-Eng.pdf>; and by Israel (23 January 2015), <https://treaties.un.org/doc/Publication/CN/2015/CN.63.2015-Eng.pdf>.

¹⁹ These States include Cabo Verde, Côte d'Ivoire, Grenada, Guatemala, Maldives, Moldova, Philippines, Seychelles, St. Lucia, Tunisia, Vanuatu and most recently the State of Palestine, see https://treaties.un.org/pages/ViewDetails.aspx?src=TREATY&mtdsg_no=XVIII-10&chapter=18&lang=en (accessed September 2015).

²⁰ On the content of this amendment see Geiß, *article 8*, mn 973 *et seq.*

²¹ Emphasis added.

²² See for such proposition *inter alia* Villiger, *Commentary on the 1969 Vienna Convention on the Law of Treaties* (2009) article 40, mn 15.

article 40 para. 5 of the Vienna Convention on the Law of Treaties, 'become parties to the treaty *after the entry into force of the amending agreement*'.²³ This is due to the fact that, as shown²⁴, the entry into force of the Kampala amendment on the crime of aggression is not governed by the jurisdictional clauses contained in article 15bis paras. 2 and 3 (respectively in article 15ter paras. 2 and 3), but rather by article 121 para. 5. It thus seems that at least those States that have (or will have) ratified the Rome Statute after that date ought to be counted towards the quorum laid down in article 15bis para. 2 unless they have expressed a different intention, in line with article 40 para. 5 of the Vienna Convention on the Law of Treaties.

This understanding is confirmed by the fact that article 15 para. 2 specifically refers to the '*ratification or acceptance of the amendments*'²⁵, an *ex post* ratification of the amendment then being a specific form of acceptance under article 40 para. 5 of the Vienna Convention on the Law of Treaties. In fact, none of the States that ratified the Rome Statute after the Kampala review conference has submitted a declaration expressing an intention not to be considered as a party to the amended treaty within the meaning of the said article 40, para. 5. Accordingly, such States will then, just like States that had become parties prior to the entry into force of articles 8bis, 15bis and 15ter, also have the right to opt out from the Court's jurisdiction on the crime of aggression under article 15bis para. 4.

It is true that the wording of article 15bis para. 2 (just like that of article 15ter para. 2) specifically refers to the '*ratification or acceptance of the amendments by thirty States parties*' rather than to the acceptance by thirty States *tout court*. Yet, article 2 para. 1 lit. g) of the Vienna Convention on the Law of Treaties defines a '[State] party' as meaning 'a State which has consented to be bound by the treaty and for which the treaty is in force'. This might be understood as also comprising newly acceding States.

On the other hand, it seems that delegations participating in the Kampala Conference, when using the formula '[t]he Court may exercise jurisdiction only with respect to crimes of aggression committed one year after the ratification *or acceptance* of the amendments by thirty States Parties' in article 15bis para. 2, simply meant to replicate the wording of article 121 paras. 4 and 5, which refer to the point in time after instruments of ratification or acceptance have been deposited. It thus seems that the drafters of article 15bis para. 2 (and of article 15ter para. 2) omitted the reference to the deposition of instruments only to be more concise rather than to convey another meaning, as outlined above. Yet, this intention is neither reflected in the *travaux préparatoires* of the provision, nor in the text itself.

The contrary position, namely that 30 States need to formally ratify or accept the amendments as such, rather than either ratify or accede to the amended treaty *in toto*, in order for the amendments to become applicable, stands in line, however, with a press communiqué distributed by the ICC on the occasion of San Marino's ratification of the amendment on the crime of aggression, which stated that '[t]he Court may exercise jurisdiction over the crime of aggression once thirty States Parties have *ratified* the amendments'²⁶ instead of using the more precise terminology '*ratified or accepted*' formula used in article 15bis (and in article 15ter), para. 2.

This somewhat more restrictive position also seems to be shared by the depositary, the United Nations Secretary General. More specifically, the United Nations Secretary General has taken the position that new parties to the Statute must explicitly ratify the amendments, or are otherwise deemed to be party to the original 1998 version of the Rome Statute as agreed upon in Rome.²⁷

²³ McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 265.

²⁴ *Supra* mn 1, 8.

²⁵ Emphasis added.

²⁶ Press Release No. ICC-ASP-20141119-PR1065, Assembly of States Parties to the International Criminal Court, 19 November 2013, see http://www.icc-cpi.int/en_menus/icc/press%20and%20media/press%20releases/Pages/PR1065.aspx.

²⁷ Cf. e.g. the depositary notification for Cote d'Ivoire, referring to the Rome Statute as agreed upon in Rome on 17 July 1998: <https://treaties.un.org/doc/Publication/CN/2013/CN.150.2013-Eng.pdf>.

In the end, this discussion could turn out to be rather theoretical when it comes to answering the question from what moment onwards the Court will be able to exercise its aggression-related jurisdiction, given the current momentum in the ratification process. As a matter of fact, by mid-2015, 23 ratifications have already been submitted, leaving a considerable amount of time to reach the necessary thirty ratifications before 2017. Nonetheless, the very same issue might still be relevant for yet another purpose.

At least when taken at face value and leaving aside Understanding no. 3 for the time being²⁸, article 15bis para. 2 determines the earliest point in time with regard to which the Court may exercise its aggression-related treaty-based jurisdiction, namely covering all such crimes ‘committed one year after the ratification or acceptance of the amendments by thirty States Parties’. Accordingly, provided one were to share the position that States acceding to the Statute post-Kampala were to be counted towards the quorum of thirty States, the decision to be reached after January 1, 2017 under article 15bis para. 3 might retroactively activate the Court’s jurisdiction *ratione temporis* for crimes of aggression committed in 2014, *i. e.* after 30 States had become bound by the Kampala amendment including those States that ratified the Statute after the Kampala amendment had already entered into force.

E. Article 15bis, para. 3: Activation of the Court’s treaty-based aggression-related jurisdiction

I. General nature and effect of article 15bis para. 3

- 15 Leaving aside once again the complexities of the amendment process leading to the adoption of the amendment on the crime of aggression at the Kampala Review Conference, which puts into question its compatibility with regular rules of the law of treaties²⁹, article 15bis para. 3 (as well as article 15ter para. 3 regarding the Court’s Security Council-based jurisdiction) provides that the Court may only exercise its aggression-related jurisdiction once a **decision** has been taken to that effect **after 1 January 2017** by the same majority of States Parties as is required for the adoption of an amendment to the Statute.

This has rightly been described as an ‘**activation**’ of the Court’s aggression-related jurisdiction which might thus be considered existing, but still ‘dormant’ pending this very decision. In a way, the current situation is thus somewhat similar to the one prior to the entry into force of the Kampala amendment under article 5 para. 1 lit. d) and para. 2 as it then stood, which provided that while the Court already had jurisdiction over the crime of aggression from the very beginning of its existence, it could not yet exercise it.³⁰

II. ‘The Court shall exercise jurisdiction over the crime of aggression (...)’

- 16 The use of the word ‘**shall**’ in article 15bis para. 3 as compared to the ‘**may**’ in paras. 1, 2 and 5 of article 15bis (‘*ejercerá*’/‘*podrá ejercer*’ in Spanish; ‘*peut exercer*’/‘*exerce*’ in French) seems to imply that, once the decision has been made under article 15bis para. 3, the Court is duty-bound to exercise its jurisdiction, obviously subject to those statutory rules governing such an exercise of jurisdiction.

As in paras. 1, 2 and 4 of article 15bis, para. 3 once again reconfirms that the Court will only exercise jurisdiction vis-à-vis **natural persons** allegedly having committed a crime of aggression (rather than exercising jurisdiction concerning alleged acts of aggression).³¹

²⁸ On the relevance of Understanding no. 3 as to the activation of the Court’s jurisdiction see *infra* mn 20.

²⁹ Zimmermann (2012) 10 *JICJ* 209.

³⁰ For further details see Zimmermann, *article 5*, mn 27 *et seq.*

³¹ See mn 5, 10, 25.

III. ‘(...) in accordance with this article (...)’

The wording of article 15bis para. 3 further clarifies and once more confirms that any exercise of jurisdiction over the crime of aggression shall take place in accordance with article 15bis as constituting *lex specialis* to the regular jurisdictional rules also contained in the Statute. 17

IV. ‘(...) subject to a decision to be taken after 1 January 2017 (...)’

Article 15bis para. 3 further provides that in order to ‘activate’ the Court’s jurisdiction, a positive decision in that regard has to be taken after 1 January 2017. Under the wording of article 15bis para. 3, the purpose of the provision is not to regulate the Court’s temporal jurisdiction (that question being decided by article 15bis para. 2), but rather to determine only from what point onwards the Court ought to actually exercise its jurisdiction. 18

The formula ‘subject to a decision’ contained in article 15bis para. 3 (as well as in 15ter para. 3) implies, however, that the States Parties might decide otherwise, *i.e.* might provide that the Court shall not have jurisdiction for acts of aggression eventually committed in the period between the 30th ratification has become effective and the point in time the decision under para. 3 was taken (if ever there was such period at all, *i.e.* if the decision under article 15bis para. 3 is taken only after the threshold required by article 15bis para. 2 was reached).

V. ‘(...) by the same majority of States Parties as is required for the adoption of an amendment to the Statute.’

The last part of article 15bis para. 3, by using the phrase ‘the same majority of States Parties as is required for the adoption of an amendment to the Statute’, makes reference to article 121 para. 3.³² Accordingly, any decision under article 15bis para. 3 to activate the Court’s jurisdiction requires a positive decision by **two thirds of the State Parties to the Statute**, in accordance with article 121, para. 3 rather than a two-thirds majority of those States present and voting when any such decision is to be taken. The term ‘States Parties’ in this context is referring to the then current number of States Parties rather than to the current number of States Parties. 19

The decision in question, just like the adoption of an amendment, can either be taken at a meeting of the Assembly of States Parties or, should the opportunity arise, at a Review Conference.

F. Jurisdiction *ratione temporis*, activation of the Court’s jurisdiction and Understanding no. 3

The already complex questions of the Court’s temporal jurisdiction on the one hand and of the ‘activation’ of its aggression-related jurisdiction on the other, as laid out in article 15bis/ter para. 2 (regulating the former) and in article 15bis/ter para. 3 (regulating the latter), is further complicated by the terms of **Understanding no. 3**, adopted by the negotiating States in Kampala as Annex III of the enabling Resolution RC/Res. 6, whereby the Kampala amendment on the crime of aggression was adopted. This understanding provides in quite unequivocal terms: 20

‘It is understood that in case of article 13, paragraph (a) or (c), the Court may exercise its jurisdiction only with respect to crimes of aggression committed after a decision in accordance with article 15bis, paragraph 3, is taken, and one year after the ratification or acceptance of the amendments by thirty States Parties, whichever is later.’

³² On article 121 para. 3 see Clark, *article 121*, mn 9; Werle and Jessberger, *Principles of ICL* (2014) 555.

In that regard, one has to first note that by making reference to article 13, paragraph (a) or (c) only, the understanding was meant to only govern the Court's *treaty-based* aggression-related jurisdiction, a fact further confirmed by the exclusive reference in the text of Understanding no. 3 to article 15bis para. 3 (but not to article 15ter para. 3).³³

What is more is that the Understanding reverses the effect of the **quorum** provided for in article 15bis para. 2 on the one hand³⁴, and of the **decision** referred to in article 15bis para. 3 on the other³⁵ as proscribed by the two provisions.

With regard to the former, the text of the Understanding, contrary to the content of article 15bis para. 2, foresees that the Court may only exercise its jurisdiction a year after the ratification or acceptance of the amendments by thirty States Parties. It thus seems that the said Understanding, contrary to the wording of article 15bis para. 2 (which instead uses the phrase 'with respect to') provides for a definite time-frame for the *exercise* of jurisdiction by the Court, rather than circumscribing the *extent of the Court's temporal jurisdiction*, regardless of when such jurisdiction would then actually be exercised. This is true notwithstanding the heading of Understanding no. 3, which refers to 'Jurisdiction *ratione temporis*'.

With regard to the latter, *i.e.* article 15bis para. 3, it provides that the Court's **jurisdiction *ratione temporis*** is limited in that 'the Court may exercise its jurisdiction only *with respect to* crimes of aggression committed after a decision in accordance with article 15bis, paragraph 3, is taken'. This stands, once again, in contrast to the actual wording of article 15bis para. 3 which, as shown above³⁶, conversely merely regulates the exercise, by the Court of its jurisdiction rather than circumscribing its temporal jurisdiction.

Given that, at best, the said Understanding constitutes an agreement relating to the text of the amendment made in connection with the conclusion of the treaty within the meaning of **article 32 para. 2 lit. a) of the Vienna Convention on the Law of Treaties**, it may only serve as an interpretative tool, which may not, however, set aside the clear text of the treaty as such. It is thus submitted that the Understanding's aim was only to further define what was previously agreed upon while not *limiting* the effect of article 15bis para. 2 and para. 3 respectively. Put otherwise, the temporal limitations as to the *reach* of the Court's temporal jurisdiction (as laid down in article 15bis para. 2), and as to the *exercise* of such jurisdiction (as laid down in article 15bis para. 3) would stand unabated while Understanding no. 3 would add further limitations, as set out above.

Thus, on the whole and taking the *combined* effect of article 15bis para. 2, article 15bis para. 3 and Understanding no. 3 into account,

- the Court will only be able to exercise its jurisdiction one year after the 30th ratification or acceptance has become effective³⁷ and after the decision contemplated in article 15bis para. 3 has been made and
- the Court's jurisdiction may then be only exercised with respect to crimes of aggression committed after the 30th ratification or acceptance has become effective and after the decision provided for in article 15bis para. 3 has been made.

³³ As to the parallel provision in article 15ter see Zimmermann and Freiburg, *article 15ter*, mn 6.

³⁴ See mn 8 *et seq.*

³⁵ See mn 15 *et seq.*

³⁶ *Supra* mn 8.

³⁷ See mn 13 *et seq.*

G. Article 15bis para. 4

I. Jurisdiction *ratione personae* and opting-out option
(Article 15bis para. 4 1st sentence)

1. ‘The Court may (...)’

The introductory words of article 15bis para. 4 are identical to the ones used in article 15bis para. 1; both phrases should thus also be interpreted in the same manner, *i.e.* as merely circumscribing the extent of the Court’s jurisdiction³⁸, the present provision being concerned with the Court’s jurisdiction *ratione personae*.

2. ‘(...) in accordance with article 12 (...)’

a) **Article 12 para. 1.** By using the words ‘in accordance with article 12’ article 15bis provides that, as a matter of principle, the general rules governing the Court’s exercise of jurisdiction as enshrined in article 12³⁹ also apply when it comes to the crime of aggression, subject however to the extent to which article 15bis constitutes a *lex specialis*.

Subject to a State party’s exercise of the opt-out possibility provided for in article 15bis para. 4, a State that is a contracting party is, under article 12 para. 1, thus deemed to have accepted the Court’s jurisdiction also with regard to the crime of aggression, as contained in article 5 para. 1 lit. d),⁴⁰ regardless of whether it has, in one way or the other, specifically accepted the Kampala amendments on the crime of aggression.

b) **Article 12 para. 2.** Accordingly, the Court is thus, as a matter of principle and subject to article 15bis para. 5⁴¹, in a position to *first* exercise its treaty-based aggression-related jurisdiction with regard to crimes of aggression committed on either the **territory of a State party or committed against vessels or aircraft registered in a State party**, provided that in any case the said State party has not opted out from the Court’s aggression-related jurisdiction. In the latter respect, *i.e.* concerning possible crimes of aggression committed against vessels or aircraft registered in a State party, it is particularly worth noting that under article 8bis para. 2 lit. d) even the attack against the sea or air forces, or the marine and air fleets of another State can amount to the crime of aggression⁴².

Besides, under article 12 para. 2 lit. b), the Court may also, again subject to both article 15bis para. 5 and the opting-out option available to State parties, exercise its treaty-based aggression-related jurisdiction provided the accused is a national of a State party.

c) **Article 12 para. 3.** Article 12 para. 3 enables States, not parties to the Statute, to accept the exercise of jurisdiction by the Court with respect to the crime in question, by way of a declaration lodged with the Registrar. However, in line with **Rule 44 of the Court’s Rules of Procedure and Evidence**, article 12 para. 3 has to be understood as an acceptance of jurisdiction with regard to an overall situation and with respect to all ‘crimes referred to in article 5 of relevance to the situation’.

In that regard it seems to be in line with the object and purpose of article 15bis para. 5, namely to protect third States, not parties of the Statute to also allow article 12 para. 3 declarations to apply to the crime of aggression, the categorical wording of article 15 para. 5

³⁸ See mn 4.

³⁹ For further details see Schabas and Pecorella, article 12, *passim*; Ambos, *Treatise on ICL II* (2014) 219.

⁴⁰ McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 254; Kreß and von Holtzendorff (2010) 8 JICJ 1179, 1213.

⁴¹ See *infra* mn 34 *et seq.*

⁴² For details see Zimmermann and Freiburg, article 8bis, mn 132 *et seq.*

‘the Court *shall not exercise* its jurisdiction’ notwithstanding. Moreover, given the interpretation of article 12 para. 3, as laid down in Rule 44 of the Rules of Procedure and Evidence, any such declaration does also entail the acceptance of the Court’s treaty-based aggression-related jurisdiction by the State making the declaration.

Given the unequivocal wording of article 12 para. 3, which only refers to States which are *not* parties to this Statute as eventually making such declarations, it does not apply *as such* to ‘non-accepting’ State parties which have opted out from the Court’s treaty-based, aggression-related jurisdiction under article 15bis para. 4. At the same time, there appears to be no reason why a State should not be permitted to partially withdraw its opting-out declaration by means of an *ad hoc* declaration in accordance with the idea underlying article 12 para. 3.

3. ‘(...) exercise jurisdiction over a crime of aggression (...)’

- 25 Once again, these introductory words of article 15bis para. 4 are identical to the ones used in article 15bis para. 1, reference to which⁴³ is therefore made.

4. ‘(...) arising from an act of aggression committed by a State Party (...)’

- 26 Under article 15bis para. 4, the initiation of proceedings requires the **aggressor State’s consent**. As a matter of principle, Article 15bis para. 4 therefore provides for the Court’s treaty-based, aggression-related jurisdiction only if the underlying act of aggression has been, as the provision puts it, ‘committed by a State party’. Accordingly, the said act of aggression, as defined in article 8bis para. 2, must be attributable to a State Party of the Statute under the regular rules of States responsibility as they have been enshrined in the ILC’s Articles on State Responsibility. For the purposes of article 15bis para. 4 it therefore does not matter whether such a State Party has ratified or otherwise accepted⁴⁴ the Kampala amendments on the crime of aggression, unless such a State Party has opted out from the Court’s treaty-based, aggression-related jurisdiction⁴⁵.

The crime of aggression must furthermore ‘**arise from**’ (‘résultant d’un acte d’agression’ in the French version of the text and ‘resultante de un acto de agresión’ in the Spanish text) an act of aggression attributable to a State Party that has not made an opting-out declaration. Article 15bis para. 4 does not require, however, that the act of aggression is then necessarily committed by a national of a State Party. Indeed, there might be scenarios in which *the act of aggression* (rather than the crime of aggression) is committed by nationals of third States, but where the act is nevertheless attributable to a State Party which has not made an opting-out declaration, *e.g.* under article 8 of the ILC Articles on State Responsibility. Provided the crime of aggression was then committed by nationals of a State Party bound by the amendments and occurred on the territory of such a State, the Court is in a position to exercise its treaty-based, aggression-related jurisdiction.

5. ‘(...) unless that State Party has previously declared that it does not accept such jurisdiction by lodging a declaration with the Registrar.’

- 27 a) **General questions.** Article 15bis, para. 4 *presupposes* the **consent of States Parties** to the Court’s exercise of its treaty-based, aggression-related jurisdiction. However, a State party has the option to declare that it does not accept the Court’s treaty-based jurisdiction over the crime of aggression by lodging a declaration with the Registrar. This provision is remarkable, given its absence in the likewise newly introduced article 8 para. 2 (e) lit. (xiii), (xiv) and (xv) ICC Statute. The establishment of such an opt-out procedure for the crime of aggression became a necessary negotiation strategy during the Kampala Review Conference, aiming

⁴³ See mn 4.

⁴⁴ For detail as to this question see mn 13 *et seq.*

⁴⁵ Krefß and von Holtzendorff (2010) 8 *JICJ* 1179, 1213.

mainly at convincing France and Great Britain to stop insisting on the monopoly of the Security Council when it comes to the crime of aggression.⁴⁶

Yet, this compromise, as enshrined in the **opt-out procedure**, is hardly, if at all, compatible with article 121, para. 5, which under the enabling resolution adopted at the Kampala Diplomatic Conference constitutes the treaty provision providing for the entry into force of the Kampala amendments and which states that amendments only apply vis-à-vis those States Parties which have accepted them⁴⁷. As a matter of fact, article 15bis, para. 4 attempts to force States parties which are not willing to accept the Court's treaty-based, aggression-related jurisdiction to formally opt out of this jurisdiction, instead of simply allowing them to remain silent and rely on their non-acceptance of the amendment. Put otherwise, once the conditions of article 15bis, paras. 2 and 3 are fulfilled, the amendment will enter into force for all States parties except those that have submitted an opting-out declaration, making it thus *mutatis mutandis* (but for the opting-out option) subject to the amendment procedure provided for in article 124 para. 4.

Given the doubts about the compatibility of the opting-out procedure as laid down in the Kampala amendments with the amendment provisions of the Statute, States might, at any given moment prior to the critical date, make declarations taking just this position. By the same token, they might then indicate that they therefore do not feel the need to formally lodge an opt-out declaration, in order not to be bound by the amendment, given that article 121 para. 5 has to be interpreted just in this manner.

b) Scope *ratione personae* of opt-out declarations. The opt-out option applies to all State parties to the Rome Statute, irrespective of whether they have previously ratified the amendment, have otherwise accepted it by ratifying the Statute after the amendment had already been adopted⁴⁸, or finally have not accepted the Kampala amendments at all.⁴⁹

There is no hint in the text of article 15bis para. 4 that would prevent even a State that has itself participated in bringing about the 'activation' of the Court's treaty-based, aggression-related jurisdiction by way of its ratification or acceptance from 'protecting' its own citizens from the Court's jurisdiction by submitting an opting-out declaration to the Registrar in accordance with article 15bis para. 4.

In contrast thereto, the opting-out option under article 15bis para. 4 is not available to **non-State parties**, them being protected against the Court exercising its treaty-based, aggression-related jurisdiction vis-à-vis their nationals or concerning acts on their territory by article 15bis para. 5.

c) Timing and effects *ratione temporis* of opt-out declarations. Opt-out declarations under article 15bis para. 4 may be lodged with the Registrar even before the Court's treaty-based, aggression-related jurisdiction becomes activated under article 15bis paras. 2 and 3⁵⁰, and might also accompany a notification of ratification of the Kampala amendments.⁵¹

It is not, however, beyond doubt whether the term '**previously**' refers to a point in time prior to the commission of an act of aggression, or rather to one prior to the exercise, by the Court, of its jurisdiction in a given case. However, the very structure of the text, which links the declaration to the commission of the act of aggression, seems to militate in favor of an interpretation requiring the declaration to be made prior to the act of aggression rather than to the exercise of jurisdiction by the Court.⁵² It is also only this interpretation, which is fully

⁴⁶ Kreß and von Holtzendorff (2010) 6 *Vereinte Nationen* 260, 262; Ambos, *Treatise on ICL II* (2014) 193.

⁴⁷ For further details see Zimmermann (2012) 10 *JICJ* 209, 220 *et seq.*; Ambos (2010) 53 *GYbIL* 463, 504; Schmalenbach (2010) *JZ* 745, 750 *et seq.*

⁴⁸ See for such possibility mn 14.

⁴⁹ Clark (2010) 2 *GoJIL* 689, 704; McDougall, *The Crime of Aggression under the Rome Statute of the ICC* (2013) 253.

⁵⁰ For details see mn 8 *et seq.*

⁵¹ See also mn 13.

⁵² Ambos (2010) 53 *GYbIL* 463, 505; Reisinger Coracini (2010) 2 *GoJIL* 745, 777.

in line with the object and purpose of the provision. Were it otherwise, a State could commit an act of aggression and would, if the Court started an investigation, subsequently still be able to bar the Court from exercising its jurisdiction, almost until the very last minute before proceedings are about to begin. Nonetheless, given that article 15bis para. 4 does not contain any precise deadline, no specific period of time has to lapse between the point in time at which the declaration is made and the time during which the act of aggression takes place, in order for the former to be effective.

In order to prevent States from misusing the opt-out option, a certain **minimum period of time** is required before such a declaration becomes effective, thereby ensuring that the opt-out did not occur with the specific plan in mind to commit an act of aggression within the immediate future. As a matter of fact, to paraphrase the ICJ in its *Nicaragua* judgment concerning the right of a State to denounce a declaration under article 36 para. 2 ICJ Statute accepting the jurisdiction of the ICJ, it appears from the requirement of good faith that such unilateral declarations should be treated, by analogy, according to the law of treaties, which requires a reasonable time for withdrawal even when it comes to treaties that contain no provision regarding the duration of their validity.⁵³ The necessary time to have lapsed before any such opting out becomes effective would then depend on the circumstances of the specific case.

In the normal course of events lodging such a declaration in the immediate **temporal context of an act of aggression** with the intent to prevent the Court from exercising jurisdiction in this case, will not, however, fulfill the definition of the crime of aggression's planning and preparation phase.⁵⁴ As a matter of fact, the sole aim of such opting out might simply be to avoid having the use of force by one State, albeit eventually a controversial one, not being exposed to judicial scrutiny rather than pursuing a plan to commit the crime of aggression.

Despite the fact that an opt-out declaration under Article 15 para. 4 2nd sentence concerning the Court's treaty-based, aggression-related jurisdiction may be made for an unlimited period of time, it could still from the very beginning be made, if a State party wishes, for a limited time period, given that it can also be revoked at any time.⁵⁵

- 30 **d) Breadth of declarations to be made under article 15bis para. 4.** Article 15bis, para. 4 further raises the issue of whether an opt-out declaration can also be limited to one of the **jurisdictional links** provided for in article 12, *i. e.* the nationality of the perpetrator *or* the place of the offence. Unlike article 124, the very wording of which refers to declarations, pursuant to which either war crimes committed by a State party's nationals or those committed on its territory (or both) may be excluded from the jurisdiction of the Court, article 15 para. 4 refers generally to the Court's jurisdiction 'over a crime of aggression, arising from an act of aggression committed by a State Party' that may be excluded by way of an opting-out declaration. This might at first glance invite an *e contrario* argument. On the other hand, one has to take into account the fact that an opting-out declaration under article 15bis para. 4 limits the Court's otherwise existing treaty-based, aggression-related jurisdiction. It thus seems to be appropriate to also allow for a more limited opting-out declaration to be made under article 15bis para. 4⁵⁶, third parties being protected anyhow by virtue of article 15bis para. 5.

- 31 **e) Addressee of opt-out declarations.** Article 15 para. 4 expressly states that an opt-out declaration ought to be lodged with the Court's **Registrar**. This stands in contrast to possible

⁵³ See *mutatis mutandis* *Military and Paramilitary Activities in and against Nicaragua* (Nicaragua v. United States of America), Judgment (Jurisdiction of the Court and Admissibility of the Application) ICJ Rep. 1984, 392, 419, para. 63, as well as *Land and Maritime Boundary between Cameroon and Nigeria* (Cameroon v. Nigeria: Equatorial Guinea intervening), Judgment (Preliminary Objections) ICJ Rep. 1998, 275, 295, para. 33.

⁵⁴ But see for a somewhat different position Reisinger Coracini (2010) 2 *GoJIL* 745, 777.

⁵⁵ On this issue see *infra* mn 32.

⁵⁶ See also McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 267.

opting-out declarations to be made under article 124, which is silent on the matter and in reliance on which the only two declarations made so far under article 124 were both addressed to the depositary rather than to the Registrar.⁵⁷

II. Withdrawal of opt-out declarations (Article 15 para. 4, 2nd sentence)

1. ‘The withdrawal of such a declaration may be effected at any time (...)’

As the text of article 15 para. 4 2nd sentence unequivocally confirms, and given the character of an opting-out declaration as a unilateral act limiting the obligations of a State party arising under the Statute it may, just like generally reservations to treaties under the law of treaties and declarations made under article 124⁵⁸, be **withdrawn** at any time.

Given that the opting-out declaration has to be lodged, under article 15bis para. 4 1st sentence with the Court’s Registrar, the *actus contrarius* of withdrawing such a declaration would then also have to be addressed to the Registrar. This is *mutatis mutandis* confirmed by the practice under article 124, as France, which had previously made a declaration under article 124, in 2008 notified the depositary (*i.e.* the addressee of its original article 124 declaration) of its intention to withdraw it.⁵⁹

It is somewhat surprising though, that the drafters of article 15bis para. 4 2nd sentence thought it appropriate to choose a different **wording** as compared to article 124 (article 15bis: ‘The withdrawal of such a declaration may be effected at any time (...)’/‘Le retrait d’une telle déclaration peut être effectué à tout moment (...)’ – article 124: ‘A declaration under this article may be withdrawn at any time.’/‘Il peut à tout moment retirer cette déclaration.’). Yet, it still seems that the content of both provisions is nevertheless identical.

Once the **period of time** for which an opting-out declaration was made under article 15 para. 4 2nd sentence lapses, the Court may fully exercise its treaty-based, aggression-related jurisdiction even with regard to a crime of aggression arising from an act of aggression committed by the State Party that had previously lodged the opting out-declaration.

The wording of article 15 para. 4 2nd sentence is silent on the question, whether, once an opting out-declaration has been withdrawn, the Court may then **retroactively** exercise its jurisdiction with regard to a crime of aggression arising from an act of aggression committed by the State Party prior to the said withdrawal. Yet, in order to provide for a full *effet utile* of the provision, it seems that the Court would still, *i.e.* even after the opting-out declaration concerning the Court’s treaty-based, aggression-related jurisdiction has expired, not be able to exercise its jurisdiction with regard to such a crime of aggression arising from an act of aggression committed by the State Party prior to the withdrawal of the declaration.

2. ‘(...) and shall be considered by the State Party within three years.’

The last part of the 2nd sentence of article 15 para. 4 contains an obligation of a State Party having lodged an opt-out declaration with the Registrar to *bona fide* contemplate (‘envisager’ in the French text) a withdrawal of such a declaration previously made. Obviously, this **does not entail an obligation to actually withdraw any such declaration**, and, besides, said obligation only becomes applicable three years after any such declaration has been made. Accordingly, not withdrawing such a declaration does not amount to a violation of the Statute.

Unlike article 124, article 15bis para. 4 is not subject to a **mandatory reassessment procedure** by a review conference.

⁵⁷ For details see Zimmermann, *article 124*, mn 16.

⁵⁸ On the withdrawal of declarations made under *article 124* see Zimmermann, *article 124*, mn 9 and 15.

⁵⁹ Zimmermann, *article 124*, mn 9.

H. Article 15bis, para. 5: Exclusion of jurisdiction concerning non-parties

I. General questions

- 34 Article 15bis para. 5, the relevant wording of which is *mutatis mutandis* identical to article 121 para. 5, provides that in respect of a **State that is not a party to the Statute**, the Court shall not exercise its jurisdiction when the crime of aggression was committed by that State's nationals or on its territory. Article 15bis para. 5 thus derogates, when it comes to the crime of aggression, from the Court's general jurisdictional set-up provided for in article 12, under which even crimes committed by nationals of a State that is not a contracting party come within the Court's jurisdiction, provided they are committed on the territory of a contracting State. Put otherwise, given the combined effect of article 15bis para. 5 and para. 4, the Court's treaty-based, aggression-related jurisdiction is limited to acts of aggression committed between the currently 123 contracting parties of the Rome Statute minus those States that decide to lodge an opt-out declaration with the Registrar under article 15bis para. 4.

II. 'In respect of a State that is not a party to this Statute (...)'

- 35 The first part of article 15bis para. 5 clarifies that it only deals with the legal situation of states that are not parties to the Statute at the relevant time, while the legal situation of states that are parties to the Statute, but have not ratified or accepted the Kampala amendment on the crime of aggression, is governed by article 15bis para. 4.⁶⁰

III. '(...) the Court shall not exercise its jurisdiction over the crime of aggression when committed by that State's nationals or on its territory.'

- 36 Article 15bis para. 5 applies to proceedings both, directed against nationals of a state not a party to the Statute and related to a crime of aggression committed on the territory of such a state, even when committed by a national of a State party and committed against such a non-State party.

One might argue though that properly understood, article 15bis para. 5 was meant to leave the option open for the Court to exercise jurisdiction where either nationals of a State not a party to the Statute commit a crime of aggression *on the territory of a state party*, or *where nationals of a State Party* commit the crime of aggression on the territory of a third state not a State Party of the Statute, *i. e.* where an alternative jurisdictional link exists. In line with the debate surrounding the proper understanding of article 121 para. 5, this is commonly referred to as the so-called '**positive understanding**' of article 15bis para. 5.⁶¹ Such an understanding is refuted, however, if there is need, by the equally authentic French texts of both, article 15bis para. 5 and article 121 para. 5, which clarify that the phrase is intended to provide for a full exclusion of jurisdiction vis-à-vis the State Party that does not accept the amendment,⁶² given that the French version of article 15bis, para. 5 provides that '[l]a Cour n'exerce pas sa compétence à l'égard du crime d'agression'⁶³ quand celui-ci est commis par des ressortissants de cet État ou sur son territoire.⁶⁴ This stands in contrast to the wording of

⁶⁰ For details see mn 21.

⁶¹ With respect to article 121 para. 5: Reisinger Coracini (2008) 21 *LeidenJIL* 699, 707.

⁶² Zimmermann (2012) 10 *IJCJ* 209, 217; see also McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 256.

⁶³ Emphasis added.

⁶⁴ Article 121 para. 5 in turn reads: 'La Cour n'exerce pas sa compétence à l'égard d'un crime faisant l'objet de cet amendement lorsque ce crime a été commis par un ressortissant d'un État Partie qui n'a pas accepté l'amendement ou sur le territoire de cet État'; emphasis added.

article 124, the wording of which foresees that the state making the declaration under article 124 ‘*does not accept*’ the jurisdiction of the Court.⁶⁵ Yet, even this latter formula is understood in light of its object and purpose as barring the Court’s war crime-related jurisdiction *in toto vis-à-vis* the state that has made a declaration under article 124, even if otherwise a jurisdictional link were to exist (**‘negative understanding’** of article 124)⁶⁶. *A fortiori* such a negative understanding must then also apply to article 15bis para. 5. Accordingly, the Court may, under no circumstances (apart from article 15ter), exercise its jurisdiction with regard to a given crime that has been committed by nationals of a non-ratifying State party or on its territory, even if the Court would otherwise enjoy jurisdiction on the basis of the crime being committed on the territory or by the nationals of another contracting party⁶⁷. This leads to the somewhat counter-intuitive result that even where a state, not party to the Statute, is the victim of the underlying act of aggression committed by nationals of a state that has fully accepted the Court’s treaty-based, aggression-related jurisdiction, the Court cannot exercise such jurisdiction, subject however to a declaration made by the respective third state under article 12 para. 3, accepting the Court’s jurisdiction *ad hoc*.⁶⁸

I. Article 15bis, para. 6

I. General questions

Under article 15 paras. 6–9, the Court’s exercise of its treaty-based, aggression-related 37 jurisdiction does not depend on a previous **determination by the Security Council of an act of aggression** committed by the State concerned. This constitutes one of the fundamental results reached during the Kampala Review Conference.

Paras. 6–9 then lay down, in significant further detail, the various aspects of the relationship between the Court (and mainly the Prosecutor) on the one hand, and the Security Council on the other: according to article 15bis, para. 6, when the Prosecutor wishes to proceed with an investigation in respect of a crime of aggression, he or she shall first ascertain whether the Security Council has made such a determination.⁶⁹ If it has, the Prosecutor may proceed (para. 7).⁷⁰ If the Security Council has not made such a determination within six months after the date of **notification**, further investigations require both an authorization by the Pre-Trial Division in accordance with the procedure contained in article 15 and that the Security Council has not decided otherwise in accordance with article 16 (para. 8).⁷¹ Finally, para. 9 provides that any finding on the existence of an act of aggression by an organ outside the Court shall not bind the Court.⁷²

II. ‘Where the Prosecutor concludes that there is a reasonable basis to proceed with an investigation in respect of a crime of aggression (...)’

The introductory words of article 15bis para. 6 are identical to the ones used in article 15 38 para. 3 except that in the English and French texts the word ‘if/“si”’ (as used in article 15

⁶⁵ Emphasis added.

⁶⁶ See Zimmermann, *article 124*, mn 14.

⁶⁷ Werle and Jessberger, *Principles of ICL* (2014) 554; Schmalenbach (2010) JZ 745, 749; cf. Ambos (2010) 53 GYbIL 463, 506; see also the statement by Japan, RC/11, Annex VII, at 121, criticizing that ‘(...) the new article 15bis 1quarter [now article 15bis para. 5] (...) solidifies a blanket and automatic impunity of nationals of non-State Parties (...)’.

⁶⁸ See mn 24.

⁶⁹ For details see *infra* mn 39.

⁷⁰ For details see *infra* mn 41.

⁷¹ For details see *infra* mn 42.

⁷² For details see *infra* mn 45.

para. 3) were replaced by the word ‘where’/‘lorsque’ in article 15bis para. 6, while the Spanish text uses the very same terminology ‘si’ (i. e. amounting more to an ‘if’) on both occasions. This leads to the conclusion that there is no difference in meaning. At most, one could say that article 15bis para. 6 employs the term ‘where’, in order to express the idea that situations might arise where the Prosecutor concludes that there is a reasonable basis to proceed with an investigation generally, without, however, reaching the same conclusion concerning the crime of aggression. It ought to be noted, however, that there might be also cases in which the prosecutor concludes that there is a reasonable basis to proceed with an investigation specifically in respect of a crime of aggression, without at the same time reaching the same conclusion as to the other crimes listed in article 5, and indeed obviously *vice versa*.

Given the identical standard used in both, article 15bis para. 3 and article 15bis para. 6, namely that there must be a ‘reasonable basis to proceed with an investigation’, the standard developed in the Court’s jurisprudence as to what is meant by ‘reasonable basis to proceed’ under article 15 para. 3⁷³ also applies when it comes to article 15bis para. 6 with the sole difference that said ‘reasonable basis’ refers to a sub-category of crimes listed in article 5 only, namely the crime of aggression.

III. ‘(...) he or she shall first ascertain whether the Security Council has made a determination of an act of aggression committed by the State concerned.’

- 39 The second part of the first sentence of article 15bis para. 6 constitutes the first element in the close interrelationship that the Statute establishes between the Court on the one hand and the Security Council on the other. In order to avoid any contradictions between the Court and the Security Council to the extent possible and without infringing upon the independence of the Court and its organs, article 15 para. 6 obliges the Prosecutor, before moving ahead with any further steps concerning a possible crime of aggression to *first* clearly establish, as confirmed by the French term ‘s’ assure’, whether the Council has not already dealt with the matter and made a **determination that an act of aggression has indeed been committed**.

Under article 15bis para. 6 any such determination can only be made by the Security Council as such by way of a resolution adopted under **Chapter VII** of the Charter. This is due to the fact that the language used in article 15bis para. 6, namely the words ‘determine’ and ‘act of aggression’, were taken from article 39 of the Charter of the United Nations. Such a determination cannot thus be made by the President of the Security Council by way of a Presidential Statement and even less so by way of a statement by the Security Council’s President made to the press, the latter being made anyhow not on behalf of the Security Council, but rather on behalf of its individual members.

As a matter of practice, the Security Council would then normally, provided it ever were to make such a determination, integrate it into the preamble of the respective resolution. Any such determination, to state the obvious, would not however, by the same token, also provide for a referral to the Court under article 15ter.⁷⁴

In the past, the Security Council has only used the term ‘act of aggression’ on two occasions, namely in 1985, when it condemned Israeli air raids on PLO targets in Tunisia as an ‘act of aggression’ respectively an ‘act of armed aggression’⁷⁵ and when it demanded that South Africa ceases ‘all acts of aggression’ against Angola⁷⁶.

Under article 15bis para. 9 any such determination, even when made, would however not be binding upon the Court.⁷⁷

⁷³ For details see Bergsmo, Pejić and Zhu *article 15*, mn 20 *et seq.*

⁷⁴ For further details see Zimmermann and Freiburg, *article 15ter*, mn 4.

⁷⁵ UN Doc S/RES/573 (5 October 1985), operative paras. 1 and 2.

⁷⁶ UN Doc S/RES/577 (6 December 1985), *passim*.

⁷⁷ For details see *infra* mn 45.

The ‘**State concerned**’ referred to in para. 6 is the state the alleged ‘act of aggression’ of which gives rise to the investigation for the possible commission of a crime of aggression.

J. Information of the United Nations (Article 15bis para. 6 2nd sentence)

Under article 15bis para. 6 2nd sentence, the Prosecutor is under an obligation to keep the **Secretary-General of the United Nations** informed of the situation before the Court and to provide the United Nations with relevant information and documents concerning possible proceedings. This obligation supplements the more general obligations arising under the Relationship Agreement concluded between the Court and the United Nations. The obligation enshrined in article 15bis para. 6 2nd sentence is not contained in article 15 and is thus unique to the crime of aggression, demonstrating the particular relevance of such proceedings for the United Nations, and, in particular, the Security Council. It goes without saying that any such information received by the Secretary General would then, as a matter of course, be forwarded to the **Security Council** by the Secretary General, given that the main purpose of this information is to trigger the 6-month period provided for in article 15bis para. 8 to commence and, by the same token, to provide the Security Council with a 6-month period to consider whether to make use of its powers under article 16.⁷⁸

K. Article 15bis para. 7: Determination by the Security Council of an act of aggression and start of investigations

Once the Security Council has made a determination within the meaning of article 15bis para. 6⁷⁹, the Prosecutor may then proceed with a full **investigation** pursuant to articles 53 and 54 in respect of a crime of aggression (rather than a mere preliminary examination), thus moving from the proceedings from article 15 into the realm of article 53 and other provisions in Part 5 of the Statute,⁸⁰ without the need of a formal Security Council or State referral.

It is indeed worth noting that, unlike in the case of possible investigations concerning other crimes listed in article 5, a **State referral** is of no relevance when it comes to investigating a crime of aggression. In case a situation is referred to the Prosecutor by a State, possibly involving both crimes under article 5 lit. a) – c) and the crime of aggression, the Prosecutor would thus be in a position to immediately start investigations with regard to the former, but would have to wait for six months before doing so with respect to the alleged crime of aggression. Even then, the Prosecutor would eventually have to seek authorization by the **Pre-Trial Division** under article 15bis para. 8, provided that no relevant determination by the Security Council is forthcoming.⁸¹

L. Article 15bis para. 8: Lack of determination by the Security Council of an act of aggression and authorization of investigations by the Pre-Trial Division

I. ‘Where no such determination is made within six months after the date of notification (...)’

Article 15bis para. 8 addresses the situation in which the Security Council, after having been informed via the Secretary General of a pending preliminary investigation concerning a

⁷⁸ See *infra* mn 42 *et seq.*

⁷⁹ See mn 39.

⁸⁰ See *mutatis mutandis* Bergsmo, Pejić and Zhu, *article 15*, mn 21.

⁸¹ See *infra* mn 42 *et seq.*

possible crime of aggression, does not make a finding of an act of aggression, as outlined above⁸², within the prescribed six month period either because the Security Council simply remains silent on the matter or because a draft resolution that would have made such a determination has failed to garner the necessary majority, as required by article 27 of the Charter of the United Nations.⁸³

The six month period contemplated in article 15bis begins, as the text puts it, with ‘the date of notification’, *i.e.* at the point in time at which the Secretary General has been informed by the Prosecutor pursuant to article 15bis para. 6 2nd sentence.⁸⁴

II. ‘(...) the Prosecutor may proceed with the investigation in respect of a crime of aggression, provided that the Pre-Trial Division has authorized the commencement of the investigation in respect of a crime of aggression in accordance with the procedure contained in article 15 (...)’

- 43 In case the Security Council fails to make a determination within the meaning of article 15bis para. 7⁸⁵ (or indeed even determines that no act of aggression has been committed in a given case), Article 15bis para. 8 provides for an alternative, namely that the Prosecutor, seeking to act *proprio motu*, must then seek permission by the Pre-Trial Division of the Court.

As the text itself confirms by making reference to the procedure contained in article 15, the procedure is *mutatis mutandis* identical to the one provided for in the said provision as far as the other crimes listed in article 5 are concerned.⁸⁶ The sole, yet important, difference lies in the fact that while article 15 paras. 3 and 4 provide for an authorization by a Pre-Trial Chamber consisting of three judges (article 39 para. 2 lit. b) (iii)), article 15bis para. 8 requires an authorization by the **Pre-Trial Division** consisting of no less than six judges (article 39 para. 1 2nd sentence), which confirms the relevance and political sensitivity of the decision to eventually enable such an investigation to go forward.

III. ‘(...) and the Security Council has not decided otherwise in accordance with article 16.’

- 44 This part of article 15bis para. 8 confirms in a declaratory manner the prerogatives of the Security Council provided for in **article 16**⁸⁷. Accordingly, the Council, acting under Chapter VII of the Charter of the United Nations, may also request the Court not to commence or proceed with an investigation or prosecution for a (renewable) period of 12 months with respect to an alleged crime of aggression. It seems, however, given the placement and the context of the provision as forming part of article 15bis, article 15bis para. 8 enables the Security Council to ‘tailor’ its request under article 16 to exclusively concern the crime of aggression. Put otherwise, it seems that the Security Council might prevent, for a renewable period of twelve months, the Court from investigating the crime of aggression, while at the same time letting the Court consider the very same facts concerning possible violations of the *jus in bello*, acts of genocide or crimes against humanity.

⁸² See mn 39.

⁸³ As to the voting requirements under article 27 UN Charter see Zimmermann, *article 27, passim*, in Simma *et al.* (eds.), *The Charter of the United Nations* (3rd ed. 2012).

⁸⁴ For details see mn 40.

⁸⁵ See mn 41.

⁸⁶ For details on article 15 see Bergsmo, Pejić and Zhu, *article 15, passim*.

⁸⁷ See Bergsmo, Pejić and Zhu, *article 16, passim*.

M. Article 15bis para. 9: Independence of the Court

Article 15bis para. 9 confirms that the Court, when asked to make a finding on a crime of aggression, which under article 8bis presupposes that an act of aggression has been committed for which a state then incurs state responsibility, is not bound by a finding made by an institution which does not form part of the Court. A literal reading of the wording seems to imply that the Court would not be bound only by a *positive determination* that an act of aggression has occurred. This is due to the fact that article 15bis para. 9 refers to '[a] determination of an act of aggression'⁸⁸ rather than stating that a determination *on* an act of aggression by an organ outside the Court would be without prejudice to the Court's own findings under this Statute. On the other hand, para. 9, in its English version, does *not* make use of the definite article 'the'⁸⁹, which would have further reinforced this limited understanding of para. 9 as applying to positive determinations only as being not binding for the Court. At the same time, the French text does just this when referring to '[l]e constat d'un acte d'agression'⁹⁰ rather than referring to '*un* constat d'un acte d'agression'. This is further confirmed by the Spanish version ('La determinación de que *hubo* acto de agresión'⁹¹), which by using a past tense defines a determination in terms of article 15bis para. 9 as the positive assertion that an act of aggression has occurred.

It seems, however, that an interpretation in line with the provision's object and purpose, namely to safeguard the judicial integrity and independence of the Court, invites a broader interpretation. It follows that any form of determination relating to an act of aggression, be it a *positive* or a *negative* one (for example one stating that a state allegedly having committed an act of aggression had instead acted in the exercise of its right under article 51 of the Charter of the United Nations), cannot therefore have an impact on the Court's ability to independently make a determination concerning the act of aggression that has possibly led to the commission of a crime of aggression. As a matter of fact, were it otherwise and would accordingly an *argumentum e contrario* apply, the reference to article 16 in article 15bis para. 8 would at least be partially redundant, since any negative determination that no act of aggression has occurred would then at least *de facto* bar the Court from exercising its jurisdiction in a meaningful manner, without the need for the Security Council to make use of its article 16 powers.

During the negotiations leading to the adoption of the Kampala amendments on the crime of aggression, it was the independence of the Court vis-à-vis the Security Council that formed the core of the debate. The reference in the text to any 'organ outside the Court', the findings of which shall not prejudice to the Court's own findings under this Statute, is however broader. Accordingly, article 15bis para. 9 does not apply only to determinations by the Security Council as to the existence or non-existence of an act of aggression, but also to judicial findings made for purposes of State responsibility *e.g.* by the **International Court of Justice**, or by **arbitral tribunals** such as the Ethiopian-Eritrean Claims Commission. In line with the jurisprudence of the International Court of Justice⁹², the underlying judicial philosophy of which applies *mutatis mutandis*, the Court should however, in principle, accept as highly persuasive relevant findings made by other judicial bodies that have dealt with the underlying act of aggression.

⁸⁸ Emphasis added.

⁸⁹ Article 15bis para. 9 would have thus read: 'The determination of an act of aggression by an organ outside the Court shall be without prejudice to the Court's own findings under this Statute.'

⁹⁰ Emphasis added.

⁹¹ Emphasis added.

⁹² *Application of the Convention on the Prevention and Punishment of the Crime of Genocide* (Croatia v. Serbia), Judgment (Merits), ICJ Rep. 2015, para. 182; see also *Application of the Convention on the Prevention and Punishment of the Crime of Genocide* (Bosnia and Herzegovina v. Serbia and Montenegro), Judgment (Merits), ICJ Rep. 2007, 43, 134, para. 223.

Finally, the last words of article 15bis para. 9 ('the Court's own findings *under this Statute*') are in line with the first sentence of Understanding no. 4, namely that any findings, by the Court, on the commission on a crime of aggression are not supposed to have a bearing on the general concept of the prohibition of the use of force under general international law.⁹³

N. Article 15bis para. 10: Relationship with Article 5

- 46 Setting out the parameters of the exercise, by the Court, of its treaty-based, aggression-related jurisdiction, article 15bis contains manifold deviations from article 12, 13 and 15. In order to avoid these peculiarities to have any impact on the exercise of the Court's jurisdiction with respect to the other crimes referred to in article 5, namely genocide, crimes against humanity and war crimes, article 15bis para. 10 specifies that the Court's exercise of its jurisdiction remains unaffected. This, however, may lead to **practical hurdles**, for example, when nationals of various states are suspects in the same proceedings involving both violations of the *jus ad bellum*, as well as possibly also acts of genocide, crimes against humanity and war crimes. In such a scenario a split jurisdictional regime might apply. This would depend on whether certain suspects might also be prosecuted for having committed the crime of aggression or rather not, because their home state is either not a contracting party of the Statute or because, while being a state party, it has opted out from the Court's aggression-related jurisdiction under article 15bis para. 4.

O. Understanding no. 5: domestic jurisdiction over the crime of aggression

- 47 Understanding no. 5 adopted at the Kampala conference⁹⁴ provides:

'It is understood that the amendments shall not be interpreted as creating the right or obligation to exercise domestic jurisdiction with respect to an act of aggression committed by another State.'

It thereby confirms in a declaratory manner that the inclusion of the amendments on the crime of aggression in the Statute have no bearing on the exercise of domestic jurisdiction over the crime of aggression, either by way of obliging a State to do so or by implying a parallel right. It is noteworthy however that the said Understanding refers solely to the exercise of **domestic jurisdiction** with respect to an act of aggression *committed by another State*. This might be perceived as implying *e contrario* that, when it comes to the exercise of domestic jurisdiction with respect to an act of aggression committed by the forum State, the amendments might have created such an obligation, while a right to do so exists as a matter of course anyhow. Yet, under the principle of complementarity a State is not *obliged* to exercise criminal jurisdiction over its own nationals, the sole consequence of a non-exercise of domestic jurisdiction with respect to an alleged crime of aggression being that the Court would then be in a position to do so, provided it has jurisdiction.

⁹³ See also Zimmermann and Freiburg, *article 8bis*, mn 15.

⁹⁴ As to the normative relevance of those understandings see Heller (2012) 10 *JICJ* 229.

Article 15^{ter}

Exercise of jurisdiction over the crime of aggression (Security Council referral)

1. The Court may exercise jurisdiction over the crime of aggression in accordance with article 13, paragraph (b), subject to the provisions of this article.
2. The Court may exercise jurisdiction only with respect to crimes of aggression committed one year after the ratification or acceptance of the amendments by thirty States Parties.
3. The Court shall exercise jurisdiction over the crime of aggression in accordance with this article, subject to a decision to be taken after 1 January 2017 by the same majority of States Parties as is required for the adoption of an amendment to the Statute.
4. A determination of an act of aggression by an organ outside the Court shall be without prejudice to the Court's own findings under this Statute.
5. This article is without prejudice to the provisions relating to the exercise of jurisdiction with respect to other crimes referred to in article 5.

Literature: See the literature on articles 5, 8^{bis} and 15^{bis}, as well as Ambos, K., 'The Crime of Aggression after Kampala', (2010) 53 *GYbIL* 463; Blokker, N., 'The crime of aggression and the United Nations Security Council', (2007) 20 *LeidenJIL* 867; Clark, R. S., 'Amendments to the Rome Statute of the International Criminal Court', (2010) 2 *GoJIL* 689; McDougall, C., *The Crime of Aggression under the Rome Statute of the International Criminal Court* (CUP 2013); Reisinger Coracini, A., 'The International Criminal Court's Exercise of Jurisdiction over the Crime of Aggression – at Last ... in Reach ... over Some', (2010) 2 *GoJIL* 745; Schmalenbach, K., 'Das Verbrechen der Aggression vor dem Internationalen Strafgerichtshof: Ein politischer Erfolg mit rechtlichen Untiefen', (2010) *JZ* 745; Stein, M. S., 'The Security Council, the International Criminal Court, and the Crime of Aggression', (2005) 16 *Indl&ComplRev* 1.

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A. Article 15^{ter} within the Statute's overall jurisdictional scheme

Of the three different ways of triggering the Court's jurisdiction established under article 13, article 15^{ter}, as introduced into the Statute as part of the Kampala compromise on the crime of aggression along article 15^{bis} and 8^{bis}, relates to article 13 para. (b). Accordingly, article 15^{ter} exclusively deals with **referrals by the Security Council**, while State referrals, as well as proceedings started *proprio motu* by the Prosecutor, are addressed in turn, as far as the crime of aggression is concerned, by article 15^{bis}.

While article 15^{bis} contains significant deviations from the regular jurisdictional scheme underlying the Court's Statute, **article 15^{ter} is much more in line with the regular jurisdictional scheme otherwise applying in case of Security Council referrals**, as provided for in article 13 para. (b). Not the least, this holds true for the fact that in case of a Security Council referral, as opposed to when the Court exercises its treaty-based aggression-related

jurisdiction¹, the Court might even, as confirmed by Understanding no. 2, be able to exercise its aggression-related jurisdiction, when respective crimes of aggression were committed on the territory of a State not having accepted the Court's aggression-related jurisdiction, or by nationals of such a State.²

B. Drafting history of Article 15ter

- 2 As shown³, the content of article 15bis, and in particular the question whether the Court should be in a position to exercise its treaty-based jurisdiction concerning the crime of aggression, regardless of whether the Security Council had previously made a determination as to the occurrence of an act of aggression or not, constituted one of the most vividly debated issues prior to and during the Kampala Review Conference. In contrast thereto, during the negotiation process there existed, by and large, a consensus that *mutatis mutandis* the jurisdictional scheme underlying article 13 para. (b) should also apply when it comes to the crime of aggression alongside the eventual exercise, by the Court, of its treaty-based, aggression-related jurisdiction.

From early on, the Special Working Group agreed in principle that a Security Council referral should not depend on whether the respective States had ratified the amendments,⁴ an assumption not challenged during the Kampala Review Conference. However, during the Conference, the participants discussed (initiated by a proposal by Argentina, Brazil and Switzerland [ABS]) whether Security Council referrals should be possible after a single ratification of the amendments, in accordance with article 121 para. 5. Though this idea has not been adopted eventually, the respective ABS proposal turned out as the momentum triggering the introduction of a separate article 15ter. A further proposal by the ABS States (handed in together with Canada on 9 June 2010) featured a consent-based jurisdiction regime, including an opt-out option, and a non-exclusive Security Council filter,⁵ and constituted the basis for the final drafting process.

C. Article 15ter para. 1: exercise of jurisdiction over the crime of aggression in accordance with article 13 para. (b)

I. General issues

- 3 Given that article 15ter para. 1 is, *mutatis mutandis*, identical to article 15bis para. 1, the very same considerations which apply to article 15bis para. 1 as outlined above⁶, also apply with regard to article 15ter para. 1 with the obvious exception that the last part of article 15ter para. 1 makes reference to article 13 para. (b), rather than to paras. (a) and (c).

II. 'The Court may exercise jurisdiction over the crime of aggression in accordance with article 13, paragraph (b) (...).'

- 4 In line with the compromise reached in Kampala, Article 15ter para. 1 provides that '[t]he Court may exercise jurisdiction over the crime of aggression in accordance with article 13,

¹ For details see Zimmermann and Freiburg, *article 15bis*, mn 21 *et seq.*

² For details see *infra* mn 4.

³ See Zimmermann and Freiburg, *article 15bis*, mn 2.

⁴ Barriga, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 3, 40.

⁵ Barriga, in: Barriga and Kreß (eds.), *The Travaux Préparatoires of the Crime of Aggression* (2012) 3, 49, 51; also see Ambos, *Treatise on ICL II* (2014) 192 *et seq.*

⁶ See Zimmermann and Freiburg, *article 15bis*, mn 3–7.

paragraph (b).⁷ Article 15ter thus exclusively covers Security Council referrals, State referrals and proceedings initiated *proprio motu* by the Prosecutor being regulated by article 15bis para. 1.⁸

Such referrals are then governed by the regular requirements contained in article 13 para. (b), namely that the situation has been referred to the Prosecutor by the Security Council acting under Chapter VII of the Charter of the United Nations.⁹

As already indicated by the very term itself, any such ‘referral’ by the Security Council **does not require an explicit previous determination of an act of aggression**, nor would such a referral amount to one, even less so since the Council rarely ever makes such specific determinations.¹⁰ What is more, one might even wonder, whether the Security Council even has to formally act under Chapter VII, or whether instead a reference to Chapter VII might be implied in any such referral.¹¹

In contrast to article 15bis para. 4, article 15ter does not provide for the possibility of a State’s opting out of the Court’s aggression-related Security Council-based jurisdiction. The Court may thus exercise its jurisdiction under article 15ter regardless of whether a State Party has opted out from the Court’s treaty-based aggression-related jurisdiction under article 15bis para. 4 or whether it is not a State Party at all. This is confirmed by Understanding no. 2 which provides:

‘It is understood that the Court shall exercise jurisdiction over the crime of aggression on the basis of a Security Council referral in accordance with article 13, paragraph (b), of the Statute irrespective of whether the State concerned has accepted the Court’s jurisdiction in this regard.’

III. ‘(...) subject to the provisions of this article.’

Para. 1 of article 15ter further clarifies that, while acknowledging the possibility of Security Council referrals under article 13 para. (a) even when it comes to the crime of aggression, such proceedings are then subject to the specific requirements and conditions contained in article 15ter paras. 2–5, as constituting *lex specialis*.

One issue, however, not addressed as such in article 15ter is whether the Security Council may, when referring a situation under article 13 para. (b) in conjunction with article 15ter para. 1, either make a **selective referral** by only referring the crime of aggression, or, on the contrary, while referring a situation as such, could by the same token refrain from also endowing the Court with a Security Council-based aggression-related jurisdiction. Yet, given that under article 13 para. (b), the Security Council refers ‘a situation’ rather than a specific crime¹², and further given that article 15ter para. 1 makes reference to the Court, exercising its jurisdiction ‘in accordance with article 13, paragraph (b)’ in case of a Security Council referral potentially involving the commission of the crime of aggression, it seems that the Security Council is faced with an **either/or-situation**: it can either refer a situation as such (thereby enabling the Court to also exercise substance-matter jurisdiction vis-à-vis the crime of aggression), or not refer such a situation at all (thereby preventing the Court from prosecuting any of the other crimes listed in article 5, unless the Court could exercise its

⁷ As to the specific content of article 13, paras. (a) and (c) see Schabas and Pecorella, article 13, mn 15 and 20 respectively.

⁸ See Zimmermann and Freiburg, article 15bis, mn 6.

⁹ For further details see Schabas and Pecorella, article 13, mn 16 *et seq.*

¹⁰ See already Zimmermann and Freiburg, article 15bis, mn 39.

¹¹ As to the question whether the Security Council may implicitly act under Chapter VII, without formally invoking its Chapter VII powers see generally Zimmermann, ‘Humanitarian Assistance and the Security Council’, Israeli Law Review (forthcoming 2015).

¹² Apart from the wording of article 13, this is also confirmed by article 44 para. 2 Rules of Procedure and Evidence. While this provision relates to article 12 para. 3 of the Statute, it underscores that even where the Statute (mistakenly) refers to the acceptance, by a State, of the Court’s jurisdiction with respect to a ‘crime in question’, any such acceptance relates to an overall situation rather than a specific crime; for further details see Schabas and Pecorella, article 13, mn 15 *et seq.* with further references.

treaty-based jurisdiction over those crimes, but had no jurisdiction over the crime of aggression, given the jurisdictional limitations contained in article 15bis paras. 4 and 5).¹³

One might also assume, however, that as a third alternative the Security Council could *de facto* limit the Court's substance-matter jurisdiction by deliberately **circumscribing the Court's temporal jurisdiction in a specific manner**. The Security Council could thus refer a 'situation' covering only a limited period of time, e.g. 'the situation in State x from date y to date z', thereby enabling investigations only with regard to the alleged crimes having taken place during that specific period, such as the initial crime of aggression, without providing the Court with jurisdiction over e.g. war crimes, which might have taken place only after that date, or indeed *vice versa*.

With regard to the question of whether the Security Council might circumscribe the individuals who shall face prosecution, States as well as the Court seem to have accepted a division of roles between the Security Council and the Prosecutor¹⁴, given that Security Council Resolution 1593 (2005)¹⁵, as well as Security Council Resolution 1970 (2011)¹⁶, have both specifically excluded certain groups of individuals from the Court's jurisdiction. However, when it comes to limiting a 'situation' not by way of defining the individuals coming within the Court's jurisdiction *ratione personae*, but by way of referring a certain period of time only, such a limitation would still comply with the Security Council's position towards the Court, as the Council would not try to act as a Prosecutor, who has to select individual defendants when assessing the results of his own investigations. Rather, the Security Council would merely make use of its **prerogatives under Chapter VII of the Charter**, in order to assess which factual situations (and if so within what limits) constitute a threat to international peace and security in accordance with article 39 of the Charter of the United Nations.

It is also worth noting that where the Court is in a position to exercise its treaty-based jurisdiction over the crimes listed in articles 5 para. 1 lit. (a) to (c), but not its treaty-based jurisdiction related to the crime of aggression due to the jurisdictional aggression-specific limitations contained in article 15bis paras. 4 and 5, a Security Council referral under article 13 para. (b) (in conjunction with article 15ter para. 1) would *de facto* amount to such a **partial referral**.

D. Entry into force and jurisdiction *ratione temporis* over the crime of aggression (article 15ter paras. 2 and 3; Understanding no. 1)

- 6 Article 15ter paras. 2 and 3, as well as Understanding no. 1, are *mutatis mutandis* identical to article 15bis paras. 2 and 3 respectively except that Understanding no. 1 refers to 'a decision in accordance with article 15ter, paragraph 3', while Understanding no. 3 refers to such a decision taken 'in accordance with article 15bis, paragraph 3'. Accordingly, the same considerations that apply to those latter provisions¹⁷ also apply to the former.

It is worth noting however that these two understandings, as adopted in Kampala, as well as article 15bis para. 3 and article 15ter para. 3 *each* refer to 'a decision'. This could be taken to imply that there ought not to necessarily be one single decision, identical in content, even if for all practical purposes it is to be expected that there will be only one such decision laying

¹³ See Schmalenbach (2010) JZ 745, 751.

¹⁴ McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 276 *et seq.*; For the opposing view, see Condorelli and Villalpando, in: Cassese, *The Rome Statute of the International Criminal Court: A Commentary, Volume ii* (2002) 627, 633, who argue that the Security Council may limit the referral of a situation to certain individuals, but that such a limitation does not prevent the Prosecutor from stopping to proceed on these grounds or from initiating further investigations.

¹⁵ UN DOC S/RES/1593 (31 March 2005), Situation in Darfur, para. 6.

¹⁶ UN DOC S/RES/1970 (26 February 2011), Situation in Libya, para. 6.

¹⁷ See Zimmermann and Freiburg, *article 15bis*, mn 8 *et seq.*

down identical parameters for the exercise of both, the Court's treaty-based and its Security Council-based aggression-related jurisdiction.

E. Article 15ter para. 4: Independence of the Court

Article 15ter para. 4 is completely identical to article 15bis para. 9. Accordingly, the same considerations applying to this latter provision¹⁸ also apply to the former. It is worth noting, however, that even a referral by the Security Council under Chapter VII in conjunction with article 13 para. (b) and article 15ter para. 1 does not necessarily *per se* amount to such a determination, given that article 39 of the Charter of the United Nations does not require an act of aggression to have taken place in order to trigger the Security Council's Chapter VII powers. Accordingly, and on the whole, even once the Security Council has referred a situation to the Court, the latter remains independent and may deviate from the findings of the Security Council.¹⁹

F. Article 15ter para. 5: Relationship with Article 5

Once more, Article 15ter para. 5 is completely identical to article 15bis para. 10. Accordingly, the same considerations which apply to this latter provision²⁰ also apply to the former.

¹⁸ See Zimmermann and Freiburg, *article 15bis*, mn 45.

¹⁹ Clark (2010) 2 *GoJIL* 689, 703; Reisinger Coracini (2010) 2 *GoJIL* 745, 749; Werle and Jessberger, *Principles of ICL* (2014) 553; for a view with a differing emphasis see McDougall, *The Crime of Aggression under the Rome Statute of the International Criminal Court* (2013) 278, who stresses that 'this paragraph should not be taken to mean that Security Council resolutions determining that an act of aggression has occurred will be of no material effect in the Court reaching its own conclusion as to whether the definition of an act of aggression under Article 8bis (2), or indeed the crime of aggression under Article 8bis (1), has been met'.

²⁰ See Zimmermann and Freiburg, *article 15bis*, mn 46.

Article 16

Deferral of investigation or prosecution

No investigation or prosecution may be commenced or proceeded with under this Statute for a period of 12 months after the Security Council, in a resolution adopted under Chapter VII of the Charter of the United Nations, has requested the Court to that effect; that request may be renewed by the Council under the same conditions.

Literature: Bourgon, S., 'Jurisdiction *ratione temporis*', in: A. Cassese, P. Gaeta and J.R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, i (2002) 554; Cryer, R., 'The Security Council, Article 16 and Darfur', *Oxford Transitional Justice Research Working Paper Series*, 29 October 2008 (<https://www.legal-tools.org/doc/2871fa/>); Frowein, J.A. and Kirsch, N., 'Article 39' in: Simma, B., Khan, D.-E., Nolte, G. and Paulus, A. (eds.) *The Charter of the United Nations: A Commentary* (OUP 3rd edition 2012) 1272; Mokhtar, A., 'The Fine Art of Arm-twisting: The US, Resolution 1422 and Security Council Deferral Power under the Rome Statute', (2003) 3 *ICLRev* 295; Scheffer, D., 'The Security Council's Struggle over Darfur and International Justice', *The Jurist*, 20 August 2008 (<https://www.legal-tools.org/doc/6ca103/>).

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A. Introduction/General remarks

- 1 Article 16 empowers the Security Council to prevent or stop an ICC investigation or prosecution for a renewable period of 12 months by means of a resolution adopted under Chapter VII of the UN Charter. It defines one critical aspect of a three-pronged relationship between the Court and the Security Council provided for in the Statute and its Amendment: apart from the power to defer proceedings, the Council can also trigger the Court's jurisdiction¹, and play a role with respect to the crime of aggression². The drafting of the article was very contentious, reflecting the widely divergent views expressed throughout the negotiating process on what the link should be between the Court as a judicial body and the Security Council as a political organ of the United Nations. Even when it became clear in Preparatory Committee negotiations, that a majority of States supported some form of Security Council deferral power, the modalities of its exercise remained controversial. The present wording of article 16 emerged only in the last stages of the Diplomatic Conference³.
- 2 The initial 1994 ILC Draft Statute had defined the relationship between the ICC and the Security Council very differently⁴. In fact, rather than granting the Council the power to defer

¹ Article 13 (b).

² Amendments to the Rome Statute of the International Criminal Court on the Crime of Aggression, Resolution RC/Res. 6, 11 June 2010, annex I, art. 15bis(8).

³ See the Bureau's 10 July 1998 Proposal, UN Doc. A/CONF.183/C.1/L.59 ('Part 2. Jurisdiction, admissibility and applicable law'), p. 13.

⁴ See 1994 ILC Draft Statute, II, B, I ('Draft Statute for an international criminal court'), article 23 para. 3, p. 85. The totality of the relationship between the ICC and the Security Council was initially provided for in one article of the ILC Draft Statute. Article 23 para. 1 dealt with the Council's power to trigger the Court's jurisdiction, subparagraph 2 specified its role in proceedings related to an act of aggression, and subparagraph 3 defined what eventually evolved into the Council's deferral power in article 16 of the Statute. The ILC Draft did not envisage any enforcement role for the Council. The entire article was renumbered article 10 in the so-called

proceedings, article 23 para. 3 provided that '[n]o prosecution may be commenced under this Statute arising from a situation which is being dealt with by the Security Council as a threat to or breach of the peace or an act of aggression under Chapter VII of the Charter, unless the Security Council otherwise decides'. As envisaged by the ILC, the burden would rest on the Court to monitor the Security Council's agenda in order to determine whether a prosecution could be initiated. The Council would not need to request deferral because the ICC would have to exercise self restraint with respect to prosecutions arising from situations being dealt with by the Council under its Chapter VII authority, unless the Council otherwise decided. The ILC commentary to the Draft Statute specified that the relationship between the two bodies was structured analogously to the relationship between the Security Council and the UN General Assembly pursuant to article 12 of the UN Charter⁵. Although the commentary clarified that the Council 'should be acting'⁶ to maintain or restore international peace and security for the Court to be precluded from commencing a prosecution arising out of a Chapter VII situation, the ILC Draft did not require that the Council pass a resolution on deferral. In other words, no permanent member of the Council would be able to prevent the Council from blocking a prosecution by the Court. The commentary also noted the view of some ILC members who thought that article 23 para. 3 of the ILC Draft Statute was 'undesirable', because 'the processes of the Statute should not be prevented from operating through political decisions taken in other forums'⁷. The commentary included the view that article 23 as a whole should possibly be omitted because of the inequality it created between members of the Security Council and non-member States, as well as between the Council's permanent members and other States⁸. It was even suggested that a savings clause referring to 'the paramountcy of the Charter' be inserted in a preambular paragraph to the ICC Statute as a way of resolving the ICC-Security Council relationship⁹.

More elaborate explanations of the different positions with respect to article 23 para. 3 ILC Draft Statute were presented in the discussions held within the *Ad Hoc* Committee in 1995¹⁰ and later the Preparatory Committee¹¹. Three basic views were enunciated. According to the *first*, the Security Council's power to approve prosecutions had to be retained as an acknowledgment of the Council's primary responsibility for the maintenance of international peace and security under article 24 para. 1 of the UN Charter. The ICC, it was said, should not be able to act 'in defiance'¹² of the Charter or to insert itself in 'delicate'¹³ matters being dealt with by the Council. Proponents of this position maintained that article 23 para. 3 ILC Draft Statute should be amended to include not only Chapter VII situations, but all situations which were being dealt with by the Council¹⁴. Pursuant to a *second* view, article 23 para. 3 ILC Draft Statute should be deleted because it infringed on the judicial independence of the Court¹⁵. It was noted that the Council had been seized of a high number of situations – without effectively dealing with them – for decades, and that the ICC would be precluded from taking action in similar situations in the future under the ILC proposal. More importantly, it was emphasized that the International Court of Justice was not subject to

Zutphen Draft, pp. 39–41, and only became article 16, devoted solely to the Council's deferral power, at the conclusion of the Rome Conference.

⁵ Article 12 para. 1 of the UN Charter provides: 'While the Security Council is exercising in respect of any dispute or situation the functions assigned to it in the present Charter, the General Assembly shall not make any recommendations with regard to that dispute or situation unless the Security Council so requests'.

⁶ 1994 ILC Draft Statute, note 4, p. 87.

⁷ *Ibid.*, p. 45.

⁸ *Ibid.*

⁹ *Ibid.*

¹⁰ See *Ad Hoc* Committee Report, pp. 28–29.

¹¹ See 1996 Preparatory Committee I, pp. 33–34.

¹² *Ibid.*, p. 33.

¹³ *Ibid.*

¹⁴ *Ibid.* See also the Statement of the United States Delegation 'Trigger Mechanism: The Role of the Security Council and of Complaints by States, articles 23 and 25', Apr. 1996 (on file with the authors).

¹⁵ 1996 Preparatory Committee I, note 11, p. 33.

similar Security Council control and that the UN Charter allowed concurrent action by the two bodies with respect to the same situation¹⁶. The *third* view was that some safeguard for the Charter position of the Security Council should be preserved, but that article 23 para. 3 ILC Draft Statute was not adequate in that it was too broad and vague. It lacked criteria for determining when a situation was being ‘dealt with’ by the Council, or an interpretation of what ‘threat to or breach of the peace’ meant. It also failed to limit the amount of time that the Council could be seized of a Chapter VII situation. A suggestion was made to amend the provision so that the ICC would be empowered to proceed with a prosecution if the Council did not take action ‘within a reasonable time’¹⁷. It was also proposed that the paragraph be amended to permit the ICC to initiate a prosecution unless the Security Council formally asked the Court not to do so in accordance with article 27 of the UN Charter¹⁸.

- 4 The breakthrough in ICC negotiations on article 23 para. 3 ILC Draft Statute came at the August 1997 session of the Preparatory Committee when Singapore formally proposed an amendment reversing the structure of the ICC-Security Council relationship as initially provided for in the 1994 ILC Draft Statute. Under the Singapore text, which became the basis of the second option of article 23 para. 3 ILC Draft Statute in further drafting work,

‘[n]o investigation or prosecution may be commenced or proceeded with under this Statute where the Security Council has, acting under Chapter VII of the Charter of the United Nations, given a direction to that effect’¹⁹.

The proposal substituted Security Council approval of ICC proceedings with the notion of a deferral power and prepared the ground for what is now article 16 of the ICC Statute. Canada added to the Singapore proposal by suggesting the 12 month renewable deferral period²⁰ and Costa Rica further proposed that deferral be requested by a ‘formal and specific decision’ of the Security Council²¹. Even though the Singapore proposal included both investigation and prosecution within the ambit of the Security Council’s deferral power, it should be noted that the corresponding text of option 2 of article 23 para. 3 ILC Draft Statute as agreed on during the August 1997 Preparatory Committee session still referred only to prosecution²².

- 5 It was UK support, as expressed in the course of the December 1997 session of the Preparatory Committee, that signaled a breakthrough in terms of the political viability of the Singapore proposal. The UK was the first permanent Security Council member to endorse the change of emphasis in ICC-Security Council relations provided for in Singapore’s amendment²³.

Furthermore, it was a British text for article 10 para. 2 (formerly article 23 para. 3 ILC Draft Statute), introduced at the March–April 1998 Preparatory Committee session, that served as a basis for the final wording of what is now article 16²⁴. Pursuant to the UK

¹⁶ *Ibid.*

¹⁷ 1996 Preparatory Committee I, note 11, p. 34.

¹⁸ *Ibid.* For the wording of the specific proposals, see 1996 Preparatory Committee II, pp. 75–77.

¹⁹ Proposal by Singapore on article 23, Non-Paper/WG.3/No.16 (8 Aug. 1997) (<https://www.legal-tools.org/doc/8ec1f1/>).

²⁰ Under the Canadian text, ‘[n]o investigation or prosecution may be commenced or proceeded with under this Statute for a period of twelve months where the Security Council has, acting under Chapter VII of the Charter of the United Nations, notified the Court to that effect. Notification that the Security Council is continuing to act may be renewed at twelve month intervals’, see Proposal Submitted by Canada for article 23 (11 Aug. 1997) (on file with the authors).

²¹ Under the Costa Rican text, ‘[n]o investigation or prosecution may be commenced or proceeded with under this statute where the Security Council has, acting under Chapter VII of the Charter of the United Nations, taken a formal and specific decision, and limited for a certain period of time, to that effect’, see Proposals by Costa Rica on article 23: Paragraph 3 on Singapore’s Proposal, Non-Paper/WG.3/No.23 (11 Aug. 1997) (<https://www.legal-tools.org/doc/2fde08/>).

²² Preparatory Committee Decisions Aug. 1997, p. 8.

²³ See Legal Experts Agree on an Outline for a Global Criminal Court, *New York Times*, 14 Dec. 1997, p. A 8.

²⁴ Proposal by the United Kingdom of Great Britain and Northern Ireland: Trigger Mechanism, UN Doc. A/AC.249/1998/WG.3/DP.1 (25 Mar. 1998).

proposal, which was also included in the Draft ICC Statute which the Preparatory Committee forwarded to the Rome Conference,

‘[n]o investigation or prosecution may be commenced or proceeded with under this Statute [for a period of twelve months] after the Security Council [, acting under Chapter VII of the Charter of the United Nations,] has requested the Court to that effect; that request may be renewed by the Council under the same conditions’²⁵.

As may be noted, the text includes investigation, as well as prosecution, within the scope of the Council’s deferral power.

By the time the first of two Bureau papers narrowing down drafting options on the major issues of the ICC Statute was released at the Rome Conference, the initial 1994 ILC proposal on Security Council approval of ICC proceedings had been omitted²⁶. Debates in the Committee of the Whole had shown that the majority of States supported some variant of the Singapore proposal, while a minority still favoured no role for the Council at all²⁷. As a result, the *first* Bureau paper provided three options for article 10 para. 2 – its retention in the wording that had been suggested by the UK, a revised version of the UK proposal²⁸, or the deletion of the paragraph as such²⁹. The *second* Bureau paper essentially contained the same three options, the first of which became article 16 of the ICC Statute. It is essentially the UK wording, amended to provide that a Security Council request for deferral must be made in the form of a resolution adopted under Chapter VII of the UN Charter. Option 2 contained a modified variant of the deferral process. It limited the Council’s power by specifying that deferral could only result in the suspension of ICC proceedings, which implied that the Council could not prevent the opening of an investigation or prosecution as such. It also omitted specific reference to a 12 month deferral period, suggesting that a suspension of an investigation or prosecution could be shorter as well³⁰. Option 3, once again, provided for the deletion of any reference to a Security Council deferral power.

The drafting history of article 16 gives rise to at least three comments. *First*, political considerations were not surprisingly given more weight than legal arguments in the determination of the appropriate role for the Security Council in ICC proceedings. *Secondly*, the Security Council’s deferral power confirms its decisive role in dealing with situations where the requirements of peace and justice seem to be in conflict. *Thirdly*, article 16 provides an unprecedented opportunity for the Council to influence the work of a judicial body.

It was clear from the start of the ICC process that the ICC-Security Council relationship was one of the main political problems that had to be resolved if the negotiations were to reach a successful conclusion. Security Council influence over ICC proceedings was a key element of the so-called ‘package’ of issues – which also included subject-matter jurisdiction, complementarity, exercise of jurisdiction and the trigger mechanism – with a crucial bearing on the Court’s independence and efficacy. Striking a widely acceptable balance between these elements was at the heart of the three and half years of preparatory work on the ICC Statute and of the five-week Rome Conference.

²⁵ Preparatory Committee (Consolidated) Draft, p. 39.

²⁶ See Bureau Discussion Paper of 6 July 1998, ‘Part 2. Jurisdiction, admissibility and applicable law’, UN Doc. A/CONF.183/C.1/L.53 (1998), pp. 15–16.

²⁷ See The Numbers: NGO Coalition Special Report on Country Positions, CICC Monitor, 10 July 1998 (on file with the authors).

²⁸ Bureau Discussion Paper, note 26, did not indicate what those revisions might be. Option 2 of article 10 para. 2, on p. 16, just says ‘A revised version of option 1’. The revisions were, however, included in the next Bureau paper, note 3, mentioned below.

²⁹ Bureau Discussion Paper, note 26, pp. 15–16.

³⁰ Article 10, option 2 reads: ‘In the event that the Court is requested by the Security Council, acting by resolution adopted under Chapter VII of the Charter of the United Nations, to suspend its investigation or prosecution of a situation for a specified period of time, then the Court shall suspend such activity for such a period of time; that request may be renewed by the Security Council under the same conditions’, see Bureau’s Proposal, note 3, p. 13.

- 9 It was a widely held view among delegates and observers in the negotiating process that the initial article 23 para. 3 ILC Draft Statute subordinated the Court to Security Council control in a way which would have significantly undermined its ability to operate. To have required, in effect, the Council's approval of prosecutions, given the fact that Chapter VII situations are precisely those in which most crimes within the Court's jurisdiction are likely to be committed, could have made the Court ineffective. The veto of one permanent Security Council member would have sufficed to prevent or stop the ICC from acting, thereby rendering the Court politically dependent on the Council. The importance of the Singapore proposal, as incorporated into article 16, is that it allows the Court to proceed if only one permanent Security Council member objects to the issuance of a resolution requesting deferral. Because of the public nature of such a resolution and, most likely, the public nature of the crimes that the Court will be asked to desist from addressing, deferral will be politically more difficult to justify than approval.
- 10 While article 16 requires that the Security Council take positive action to prevent or stop an ICC investigation or prosecution, it is conceivable that some requests for deferral will garner the necessary nine Council votes and no use of the veto power. As deferral can only be requested by a resolution adopted under Chapter VII of the UN Charter, it is likely that the ICC will be prevented or stopped from acting exactly in those serious situations where crimes within the Court's jurisdiction have been committed. In practice, article 16 allows the Council to request the Court not to investigate or prosecute when the requisite majority of its members conclude that judicial action – or the threat of it – might harm the Council's efforts to maintain international peace and security pursuant to the Charter. This is not an easy argument to go forward with insofar as the Council has established international criminal jurisdictions with the justification that this would contribute to the maintenance and restoration of peace³¹. Article 16 will be the vehicle for resolving conflicts between the perceived requirements of peace and justice where the Council assesses that the peace efforts need to be given priority over international criminal justice. This might raise problems of selectivity and political control over prosecutorial discretion which one must hope will not affect the Court's long term credibility. The permanent members of the Security Council that are ICC State Parties have a particular responsibility in this regard. Article 16 is also unprecedented in terms of the legal relationship it establishes between the Security Council and a judicial body. Neither the ICJ in its work nor national courts dealing with crimes arising from situations on the Security Council's agenda under Chapter VII are under an express obligation to defer proceedings upon a request by the Council.
- 11 The practice of the UN Security Council since 2002 as regards article 16 has been deeply controversial. In resolution 1422 (2002) of 12 July 2002, the Council requested, 'consistent with the provisions of Article 16 of the Rome Statute, that the ICC, if a case arises involving current or former officials or personnel from a contributing State not a Party to the Rome Statute over acts or omissions relating to a United Nations established or authorized operation, shall for a twelve-month period starting 1 July 2002 not commence or proceed with investigation or prosecution of any such case, unless the Security Council decides otherwise'³². The resolution also expressed 'the intention to renew the request [...] under the same conditions each 1 July for further 12-month periods for as long as may be necessary'³³. The resolution was very controversial, generating broad public debate³⁴. Nevertheless, one

³¹ See the reference to how the establishment of the ICTY 'would contribute to the restoration and maintenance of peace' in UN Security Council resolution 808 (1993) of 22 Feb. 1993 (preambular paragraph nine) and 827 (1993) of 25 May 1993 (preambular paragraph six). Interestingly, the corresponding resolution 955 (1994) of 8 Nov. 1994 refers to how the establishment of the ICTR 'would contribute to the process of national reconciliation and to the restoration and maintenance of peace' (preambular paragraph seven).

³² Operative paragraph 1.

³³ *Ibid*, operative paragraph 2.

³⁴ See the comprehensive report by Amnesty International: 'The unlawful attempt by the Security Council to give US citizens permanent impunity from international justice', May 2003, AI Index IOR 40/006/2003.

year later, on 12 June 2003, the Council adopted resolution 1487 (2003) which repeated the request to the Court for another 12-month period with the same expression of intention to continue the requests for as long as may be necessary³⁵. Resolutions 1422 and 1487 were criticized by a considerable number of government representatives at the time of adoption³⁶ and generated broad public debate, which questioned the compatibility of these resolutions with article 16 of the Rome Statute³⁷.

In resolution 1497 (2003) of 1 August 2003, concerning the situation in Liberia, the Council did not refer to article 16, but nonetheless decided 'that current or former officials or personnel from a contributing State, which is not a party to the Rome Statute of the International Criminal Court, shall be subject to the exclusive jurisdiction of that contributing State for all alleged acts or omissions arising out of or related to the Multinational Force or United Nations stabilization force in Liberia, unless such exclusive jurisdiction has been expressly waived by that contributing State'³⁸. The lack of reference to Article 16 did not immunize resolution 1497 from criticisms of its inconsistency with the Rome Statute. During the passage of this resolution, a number of states similarly claimed that the Security Council did not invoke article 16 in a manner envisaged by its drafters.

In resolution 1593 (2005) of 31 March 2005, whereby the Council referred the situation in Darfur to the Prosecutor of the Court, operative paragraph 6 provided that officials or personnel from a contributing State outside Sudan which is a non-State Party shall be subjected in the same way to the exclusive criminal jurisdiction of that State in connection with AU or UN operations in Sudan³⁹. It is not clear upon which legal basis this paragraph relies. In the preamble of the resolution, the Council simply recalled 'article 16 of the Rome Statute under which no investigation or prosecution may be commenced or proceeded with by the International Criminal Court for a period of 12 months after a Security Council request to that effect'⁴⁰. It is not obvious why a resolution referring a situation to the ICC should contain this deferral provision. An identical operative paragraph 6 and preambular reference to article 16 of the Rome Statute was included in the resolution 1970 (2011) of 26 February 2011, which referred the situation in Libya to the ICC.

Article 16 was also an issue before the Security Council when the African Union called for a deferral of the situation in Darfur following the application by the ICC Prosecutor for an arrest warrant against the Sudanese President in 2008. In the Kenya situation, the Security Council was once again asked to consider a deferral resolution, which would have postponed the ICC proceedings against the Kenyan President and his deputy, who face charges related to 2008 post-election violence. So far the Security Council has not approved any deferral requests in relation to these situations.

B. Analysis and interpretation of elements

1. 'investigation or prosecution'

The article 16 bar to ICC proceedings pursuant to a Security Council deferral request applies to both 'investigation' and 'prosecution'. The inclusion of 'investigation' within the Council's deferral power was initially proposed in August 1997 by Singapore and reiterated

³⁵ See the first and second operative paragraphs.

³⁶ Statements of the Representatives of Canada, Germany, Argentina, Ukraine, Colombia, Samoa, Malaysia, Fiji, Cuba, UN SCOR, 57th Sess., 4568th mtg., UN Doc.S/PV.4568, 10 July 2002; see also Statements of the Representatives of Netherlands, Switzerland, France, Greece, New Zealand, Argentina, Uruguay, Malawi, South Africa, Brazil, Nigeria, Trinidad and Tobago, UN SCOR, 58th Sess., 4772nd mtg., UN Doc.S/PV.4772, 12 June 2003.

³⁷ *E.g.*, see Mokhtar (2003) 3 *ICLRev*, 295, 307–317.

³⁸ Operative paragraph 7.

³⁹ Operative paragraph 6.

⁴⁰ Second preambular paragraph.

in the March 1998 UK text that eventually became the basis for article 16. The ICC Statute does not define either an investigation or a prosecution, but indicates that an investigation involves action that may be taken with respect to both a situation and/or an individual⁴¹, whereas a prosecution comprises only actions taken with respect to a specific person. Both investigations and prosecutions are the responsibility of the Office of the Prosecutor, headed by the Prosecutor⁴².

- 13 An investigation comprises the totality of investigative actions undertaken by the Prosecutor under the ICC Statute after an investigation has started in order to ensure the confirmation of charges against an individual suspected of having committed crimes within the Court's jurisdiction. Investigations are initiated by the Prosecutor upon the referral of a situation either by a State Party to the Statute or the Security Council⁴³, or by the Prosecutor acting *proprio motu*⁴⁴. The Prosecutor shall initiate an investigation if he or she finds, after having evaluated the information made available to him or her, that there is a reasonable basis to proceed, considering the factors provided for in article 53 para. 1 (a)-(c). When the Prosecutor initiates an investigation *proprio motu*, he or she must first obtain the authorization of the Pre-Trial Chamber as specified in article 15 before article 53 comes into play.
- 14 The drafting history of the ICC Statute makes it clear that the term 'situations' that may be referred to the Prosecutor by a State Party or the Security Council was deliberately used to exclude the referral of individual cases for investigation⁴⁵. The Statute is silent on whether the Prosecutor may *proprio motu* initiate an investigation with a specific individual in mind, but it would be only logical to assume that he or she may do so.
- 15 Since both 'investigation' and 'prosecution' can be prevented or stopped by the Security Council under article 16, it has no practical significance to draw a temporal line or otherwise distinguish between the two phases when interpreting the article. Under one possible reading, prosecution comprises actions taken after the Pre-Trial Chamber has issued a warrant of arrest or a summons to appear pursuant to article 58⁴⁶. The more realistic view, however, is that prosecution comprises actions taken once charges against an individual have been confirmed in accordance with article 61⁴⁷. Based on this reading, it is fair to assume that prosecution under the Rome Statute encompasses the totality of actions undertaken by the Prosecutor to secure the conviction of a person against whom charges have been confirmed in accordance with article 61. Prosecution ends with the rendering of a final judgment, if necessary on appeal.
- 16 It may not be concluded, however, that by referring to both 'investigation' and 'prosecution', article 16 extends the Security Council's deferral power to the totality of activities of the Prosecutor. The Statute clearly states that steps taken by the Prosecutor prior to the Pre-Trial Chamber's authorization of an investigation only constitute a 'preliminary examination', not the beginning of an investigation⁴⁸. Indeed, the purpose of the authorization is to enable the Prosecutor to start an investigation. Among the steps which the Prosecutor can take before an investigation starts are seeking 'information from States, organs of the United Nations, intergovernmental or non-governmental organizations, or other reliable sources that he or

⁴¹ See, e.g., articles 14, 15 and 55.

⁴² See article 42 paras. 1 and 2.

⁴³ See articles 13 (a) and 14, and 13 (b) respectively; and article 53 paras. 1 and 2.

⁴⁴ See articles 13 (c) and 15; and article 53 paras. 1 and 2.

⁴⁵ The commentary to the 1994 ILC Draft Statute already stated that the Security Council 'would not normally refer to the Court a 'case' in the sense of an allegation against named individuals', see 1994 ILC Draft Statute, note 4, p. 85. The initial ILC proposition under article 25 of the 1994 Draft Statute was that States Parties would be able to lodge complaints with the Prosecutor against specific individuals. That position, as evidenced by the wording of article 14 of the Rome Statute, was modified in the ICC negotiating process.

⁴⁶ This reading could also be based on article 53 para. 2 of the Statute which implies that a sufficient basis for prosecution may be a warrant or summons issued under article 58.

⁴⁷ Article 61 also has a higher standard of evidence required ('substantial' as opposed to 'reasonable' grounds to believe that the person committed the crime charged).

⁴⁸ See article 15 para. 6.

she deems appropriate', receiving 'written or oral testimony at the seat of the Court', as well as analysing the information received⁴⁹. The Security Council cannot prevent the Prosecutor from taking these steps on the basis of article 16. The practice of the Office of the Prosecutor of in-depth preliminary examination serves interests of both quality and rational administration of justice. There is a presumption that the Office can undertake the same types of activities in an article 16 situation as it has been doing in its established preliminary examination practice.

2. 'commenced or proceeded with'

Article 16 provides that no investigation or prosecution may be commenced or proceeded with after a Security Council deferral request has been issued. Two questions may be posed with respect to this element of article 16. The *first* is when is an investigation or prosecution 'commenced', and the *second* is, how is the Council informed that an investigation is about to commence?

As regards the first question, the commencement of an investigation does not depend on how the Court's jurisdiction is triggered. The investigation is commenced when the Prosecutor determines that there is a 'reasonable basis to proceed' with an investigation and renders a decision to that effect. The Statute does not specify whether such a decision must be formal, but this may be implied from the text of article 53 para. 3, which explicitly refers to and elaborates the consequences of the Prosecutor's 'decision not to proceed'⁵⁰. Article 53 para. 1 does not, however, entail any formal procedure which the Prosecutor must go through to open an investigation, except (i) the obligation to consider the criteria in *litera* (a)-(c), and (ii) to inform the Pre-Trial Chamber if a decision not to proceed is only based on an interest of justice consideration. The Prosecutor must consider whether there is a reasonable basis to proceed with an investigation both under article 15 para. 3 and article 53 para. 1. In the latter case there is only judicial supervision of the Prosecutor's conclusion if he or she decides that an investigation would not serve the interests of justice⁵¹. When peace considerations reach the level of interests of justice, the system of the Rome Statute is that the Prosecutor can decide not to commence an investigation or prosecution on that basis, whereas it is the UN Security Council that can suspend investigations or prosecutions on that basis.

As to the second question, the Statute does not oblige the Court to inform the Security Council about the commencement of an investigation. Article 18 para. 1, however, requires the Prosecutor to notify States Parties and other States that 'would normally exercise jurisdiction over the crimes concerned' that a situation has been referred to the Court by a State Party pursuant to article 13 (a) and that the Prosecutor has determined that there would be a reasonable basis to commence an investigation. The article also obliges the Prosecutor to notify the above-mentioned States if he or she initiates an investigation *proprio motu*. Even though the Prosecutor has no duty to inform the Security Council as such about the commencement of an investigation initiated upon a State Party referral or on his or her own motion, the Council members will have ample opportunity to learn of it even if the investigation is not based on a referral of a situation by the Council itself. The practice of the

⁴⁹ See article 15 para. 2.

⁵⁰ Regulation 12, Section 4, Part 2 of the Draft Regulations of the Office of the Prosecutor, prepared at the Court in 2003, addresses the 'Decision to start or not to start investigation'.

⁵¹ The relationship between articles 15 and 53 was not adequately considered by the negotiating delegations. On the one hand, the burden on the Prosecutor cannot be lighter when the Court's jurisdiction is triggered through article 13 (c) rather than article 13 (a) or (b). Article 53 para. 1 (b) requires that the Prosecutor considers whether the case would be admissible under article 17. Article 15 para. 3 does not. On the other hand, it is only when the Prosecutor decides *not* to proceed with an investigation under article 53 para. 1 that the Pre-Trial Chamber may stand in the Prosecutor's way, which may in some situations serve the object and purpose of the Statute.

Office of the Prosecutor so far suggested that it would announce a decision by the Prosecutor to open an investigation through a press release⁵².

- 20 Article 16 permits the Security Council not only to prevent the start of an investigation or prosecution, but also to stop an investigation or prosecution already underway. It contains no express guidelines for dealing with the many evidentiary and practical problems which are likely to be caused by the issuance of a deferral request once proceedings have begun. Does such a deferral request mean that a person arrested by a custodial state must be set free? What will happen to potential witnesses who are co-operating with the Prosecutor prior to the Council's issuance of a deferral request, whose lives may be in danger absent continued protection by the Court? The drafters of the Statute knew of the implications of a request aimed at deferring ongoing proceedings, but rigid approaches which lead to unreasonable results, such as putting lives at risk or violating international human rights, should be avoided. As the result of a Belgian proposal submitted to the Rome Conference, a *nota bene* was incorporated in the last draft of article 10, option 1, pointing to the need for 'further discussion' of preservation of evidence⁵³. The discussion did not lead to the inclusion of relevant language in article 16.
- 21 In principle, the Security Council may regulate how measures can be taken by the Court in response to the procedural and evidentiary implications of a deferral request by the Council, in a Chapter VII decision pursuant to article 16⁵⁴. Although the Prosecutor may conduct measures of preliminary examination as described in article 15 para. 2 also after the issuance of a deferral request, those measures are entirely inadequate when faced, for example, with the threat of imminent destruction of evidence. In the face of such problems caused by article 16 deferral, and absent Security Council guidance, the Prosecutor may apply article 54 para. 3 (f) to take steps for the necessary preservation of evidence. He or she may wish to turn to the Pre-Trial Chamber to ensure that measures are taken, which are consistent with the requirements both of a successful resumption of an investigation or prosecution or essential interests of justice.

3. 'period of 12 months'

- 22 Article 16 provides that the Security Council may request the deferral of proceedings for a period of 12 months. The actual wording of the article suggests that the Council's deferral request must pertain to the time period specified, but the Council may of course decide that the period be shorter. If viewed in light of Article 16, the Security Council resolution 1497, which contains no time limit, arguably goes against this period requirement. It should be assumed that the 12 month period starts running not from the day on which the deferral request is adopted by the Security Council, but from the date it is received by the Court.

4. 'resolution adopted under Chapter VII'

- 23 The requirement that a deferral request be issued in the form of a Chapter VII Security Council resolution was the last textual modification of article 16 agreed to at the Rome Conference. As the drafting history suggests, the purpose of this amendment was to ensure that the Council takes a formal vote on deferral in keeping with article 27 of the UN Charter⁵⁵. It was emphasized that, otherwise, the mere discussion of a Chapter VII situation

⁵² See, e.g., the ICC press release 'ICC-OTP-PR-20070522-220_EN' dated 22 May 2007, 'Prosecutor opens investigation in the Central African Republic' (<https://www.legal-tools.org/doc/7c1d44/>); see also ICC press release 'ICC-OTP-20130116-PR869' dated 16 January 2013, 'ICC Prosecutor opens investigation into war crimes in Mali: "The legal requirements have been met. We will investigate"' (<https://www.legal-tools.org/doc/f98b58/>).

⁵³ See Bureau's Proposal, note 3, p. 13.

⁵⁴ It is an open, but not very practical question, whether this would apply to Chapter VII decisions pursuant to article 13 (b) as well.

⁵⁵ It is noted that article 13 (b) of the ICC Statute, which confirms the Security Council's *referral* power, applies the term 'acting under Chapter VII' of the UN Charter, rather than on the basis of 'a resolution adopted under Chapter VII' as specified in article 16.

in consultations could maybe be deemed as Security Council ‘action’ with respect to that situation, providing a ground for barring Court proceedings⁵⁶. The majority of delegations felt that this would unduly harm the independence of the Court.

Obliging the Council to issue a Chapter VII resolution serves two other purposes as well. 24 *First*, it ensures that the deferral of an investigation or prosecution is undertaken on the basis of a legally binding Security Council decision, thereby establishing a legal duty on states not to act contrarily to the deferral request. *Secondly*, given that a Chapter VII resolution pertains to threats to the peace, breaches of the peace and acts of aggression, issuing such a resolution may make the Council acknowledge implicitly that ICC proceedings would be detrimental to the maintenance of international peace and security. In political terms, the costs of such an acknowledgment to Security Council credibility might prove high.

It is generally understood that according to Article 39 of the UN Charter, any resolution adopted under Chapter VII should be prefaced by a determination that there exists a ‘threat to the peace, breach of the peace, or act of aggression’⁵⁷. Curiously, the Security Council resolutions 1422, 1487, and 1497, though adopted under Chapter VII, contain no such determination, which results in a perilous relationship with the UN Charter and article 16 of the Rome Statute.

While it is only logical to conclude that Security Council deferral requests will be directed 25 at investigations or prosecutions triggered by a State Party referral or initiated by the Prosecutor acting *proprio motu*, an interesting question is whether article 16 also applies to proceedings triggered by the Council itself. The wording of article 16 would permit that interpretation, but there may be reasons why this is not an entirely sound conclusion. It was understood from the beginning of the ICC process after the 1994 ILC Draft Statute that the referral of a situation to the Prosecutor by the Security Council would in reality be analogous to the establishment of an *ad hoc* criminal tribunal⁵⁸. The ICTY or ICTR Statutes do not recognize any power of the Council to prevent or stop the Tribunals from investigating or prosecuting specific individuals. In addition, the argument that Article 16 can be used as a check on Security Council referrals is not easy to substantiate from the perspective of the drafting history of the Rome Statute⁵⁹. In practice, however, the interpretation that article 16 applies in cases of a Security Council referral has been consistently supported by states. The preambular reference to article 16 in referral resolutions 1593 and 1970 gives the impression that the deferral provision is capable of application in relation to situations that the Security Council itself has referred to the ICC. It can also be demonstrated from the fact that none of the states that addressed the possible deferral in the debates on the Al-Bashir case argued that the Security Council did not have the power to invoke article 16 in that situation⁶⁰.

5. ‘request may be renewed under the same conditions’

Article 16 provides that a request for deferral of ICC proceedings may be renewed under 26 the same conditions as the initial one, which means that renewal must be effected by a

⁵⁶ See, e.g., Role of the Security Council According to article 23 ILC Draft, Statement by H.-P. Kaul, Head of the German Delegation, 8 Aug. 1997, p. 2 (on file with the authors).

⁵⁷ Frowein and Kirsch, in: Simma et al. (eds.), *The Charter of the United Nations: A Commentary* (2012) 1272, 1294.

⁵⁸ This proposition was already acknowledged by the ILC in its commentary to the 1994 Draft Statute, see 1994 Draft Statute, note 4, p. 85. Article 12 para. 2 of the ICC Statute eliminates the need for State consent to the conduct of ICC proceedings when they have been triggered by the Council. The Statute also provides that the Security Council may be called on to serve as an enforcement mechanism when States Parties fail to co-operate in Court proceedings triggered by the Council, see article 87 para. 7.

⁵⁹ One view is that the original intent underpinning article 16 was to block premature state party referrals or *proprio motu* investigations by the Prosecutor, see Scheffer, *The Jurist*, 20 August 2008 (<https://www.legal-tools.org/doc/6ca103/>) 2; for an opposite view, see Cryer, *Oxford Transitional Justice Research Working Paper Series*, 29 October 2008 (<https://www.legal-tools.org/doc/2871fa/>) 2.

⁶⁰ See UNSC 5947th Mtg., UN Doc.S/PV. 5947, 31 July 2008; see also UNSC 6028th Mtg., UN Doc.S/PV. 6028, 3 December 2008.

Security Council resolution adopted under Chapter VII of the UN Charter. The wording strictly speaking suggests that a new request for deferral would apply for an additional 12 month period, not a shorter or longer one. It must be assumed that non-renewal of a deferral request automatically allows the ICC to take up an investigation or prosecution where it was left off. In other words, any new deferral request further suspends ICC action, but does of course not permanently stop it. At the same time, it must be noted that article 16 contains no express limitation on the number of times a request for deferral may be renewed, which theoretically means that a deferral could be indefinite as a matter of practice. This could lead to a situation which would defeat the balance of interests on which article 16 is based. It is not clear whether, under the terms of article 16, the Council could allow the 12 month period of a deferral request to expire and then resubmit it after a certain period of time, during which the Court has resumed proceedings.

Article 17

Issues of admissibility

1. Having regard to paragraph 10 of the Preamble and article 1, the Court shall determine that a case is inadmissible where:

- (a) The case is being investigated or prosecuted by a State which has jurisdiction over it, unless the State is unwilling or unable genuinely to carry out the investigation or prosecution;
- (b) The case has been investigated by a State which has jurisdiction over it and the State has decided not to prosecute the person concerned, unless the decision resulted from the unwillingness or inability of the State genuinely to prosecute;
- (c) The person concerned has already been tried for conduct which is the subject of the complaint, and a trial by the Court is not permitted under article 20, paragraph 3;
- (d) The case is not of sufficient gravity to justify further action by the Court;

2. In order to determine unwillingness in a particular case, the Court shall consider, having regard to the principles of due process recognized by international law, whether one or more of the following exist as applicable:

- (a) The proceedings were or are being undertaken or the national decision was made for the purpose of shielding the person concerned from criminal responsibility for crimes within the jurisdiction of the Court referred to in article 5;
- (b) There has been an unjustified delay in the proceedings which in the circumstances is inconsistent with an intent to bring the person concerned to justice;
- (c) The proceedings were not or are not being conducted independently or impartially, and they were or are being conducted in a manner which, in the circumstances, is inconsistent with an intent to bring the person to justice;

3. In order to determine inability in a particular case, the Court shall consider whether, due to a total or substantial collapse or unavailability of its national judicial system, the State is unable to obtain the accused or the necessary evidence and testimony or otherwise unable to carry out its proceedings.

Literature: Alai, C. and Mue, N., 'Complementarity and the Impact of the Rome Statute and the International Criminal Court in Kenya', in C. Stahn, and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, ii (CUP 2011) 1222; Ambos, K., *The Colombian Peace Process and the Principle of Complementarity of the International Criminal Court: An Inductive, Situation-based Approach* (Springer 2010); Apuuli, K.P., 'The International Criminal Court (ICC) and the Lord's Resistance Army (LRA) Insurgency in Northern Uganda', (2005) 15 *CLF* 408; *id.*, 'The ICC Arrest Warrants for the Lord's Resistance Army Leaders and Peace Prospects for Northern Uganda', (2006) 4 *JICJ* 179; Arbour, L. and Bergsmo, M., 'Conspicuous Absence of Jurisdictional Overreach', in: H. von Hebel *et al.* (eds.), *Reflections on the International Criminal Court* (T.M.C. Asser Press 1999) 131; Arsanjani, M.N., 'Reflections on the Jurisdiction and Trigger Mechanisms of the International Criminal Court', in: H. von Hebel *et al.* (eds.), *Reflections on the International Criminal Court* (T.M.C. Asser Press 1999) 57; Benzing, M., 'The Complementarity Regime of the International Criminal Court: International Criminal Justice Between State Sovereignty and the Fight Against Impunity', (2004) 7 *MPYbUNL* 591; Bitti, G., 'Article 21 of the Statute of the International Criminal Court and the Treatment of Sources of Law in the Jurisprudence of the ICC', in: C. Stahn and G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff Publishers 2009) 281; *id.*, 'Article 21 of the Statute of the International Criminal Court and the Respect for the Hierarchy of Sources of Law before the ICC', in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court* (OUP, forthcoming 2015); Bleich, J.L., 'Complementarity', (1997) 13 *NEP* 231; Bos, A., 'Foreword', in: C. Stahn and G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff 2009); Buergenthal, T., 'Truth Commissions Functions and Due Process', in: C. Tomuschat *et al.* (eds.), *Völkerrecht als Wertordnung. Common Values in International Law* (N.P. Engel Verlag 2006) 103; Burke-White, W., 'Complementarity in Practice: The International Criminal Court as Part of a System of Multilevel Global Governance in the Democratic Republic of Congo', (2004) 18 *LeidenJIL* 557; *id.*, 'Implementing a Policy of Positive Complementarity in the Rome System of Justice', (2008) 19 *CLF* 59; Cassese, A., 'From Nuremberg to Rome: International Military Tribunals to the International Criminal Court', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (OUP 2002) 7; Clarke, W., Herbst, J., 'Somalia and the Future of Humanitarian

Intervention', (1996) 75 *Foreign Affairs* 70; Crawford, J., *The Creation of States in International Law*, 2nd ed., (OUP 2006); De Guzman, M. M., 'Gravity and the Legitimacy of the International Criminal Court', (2009) 32 *FordhamILJ* 1400; *id.*, 'Choosing to Prosecute: Expressive Selection at the International Criminal Court', (2012) 33 *MichJIL* 265; Dugard, J., 'Possible Conflicts of Jurisdiction with Truth Commissions', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 693; El Zeidy, M.M., 'The Principle of Complementarity: A New Machinery to Implement International Criminal Law', (2002) 23 *MichJIL*, *id.*, 'The United States Dropped the Atomic Bomb of Article 16 of the ICC Statute: Security Council Power of Deferrals and Resolution 1422', (2002) 35 *VandJTransnatL* 1503; *id.*, 'The Ugandan Government Triggers the First Test of the Complementarity Principle', (2005) 5 *ICLRev* 83; *id.*, 'Some Remarks on the Question of the Admissibility of a Case during Arrest Warrant Proceedings before the International Criminal Court', (2006) 19 *LeidenJIL* 741; *id.*, 'The Gravity Threshold under the Statute of the International Criminal Court', (2008) 19 *CLF* 35; *id.*, *The Principle of Complementarity in International Criminal Law* (Martinus Nijhoff Publishers 2008); *id.*, 'From Primacy to Complementarity and Backwards: (Re) visiting Rule 11 *bis* of the Ad hoc Tribunals', (2008) 57 *IC&CompLQ* 408; *id.*, 'Admissibility in International Criminal Law', in: W. Schabas and N. Bernaz (eds.), *Routledge Handbook of International Criminal Law* (Routledge 2010) 211; *id.*, 'Commentary on the "Prosecutor v. Radoslav Brđjanin, Decision on Application for Disqualification"', in: A. Klip and G. Sluiter (eds.), *Annotated Leading Cases of International Criminal Tribunals*, xix (Hart Publisher 2010) 280; *id.*, 'The Genesis of Complementarity', in: C. Stahn and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, Vol. I (CUP 2011) 71; *id.*, 'Ad hoc Declarations of Acceptance of Jurisdiction: The Palestinian Situation under Scrutiny', in Stahn C. (ed.), *The Law and Practice of the International Criminal Court* (OUP 2015) 179; Fairlie, M.A. and Powderly, J., 'Complementarity and Burden Allocation', in: C. Stahn and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, i (CUP 2011) 642; Gaeta, P., 'Is the Practice of "Self-Referrals" a Sound Start for the ICC?', (2004) 2 *JICJ* 949; Gioia, F., 'State Sovereignty, Jurisdiction, and "Modern" International Law: The Principle of Complementarity in the International Criminal Court', (2006) 19 *LeidenJIL* 1095; Gurulé, J., 'United States Opposition to the 1998 Rome Statute Establishing an International Criminal Court: Is the Court's Jurisdiction Truly Complementary to National Criminal Jurisdictions', (2001-2) 35 *CornILLJ* 1; Harris, DJ, O'Boyle, M. and Warbrick, C., *Law of the European Convention on Human Rights* (Butterworths 1995); Hayner, P.B., *Unspeakable Truths: Facing the Challenge of Truth Commissions* (Rutledge, 2002); Heller, KJ., 'The Shadow Side of Complementarity: The Effect of Article 17 of the Rome Statute on National Due Process', (2006) 17 *CLF* 255; Holmes, J.T., 'The Principle of Complementarity', in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (Kluwer Law International 1999) 41; *id.*, 'Complementarity: National Courts Versus the ICC', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (OUP 2002) 674; Jurdi, N. N., *The International Criminal Court and National Courts: A Contentious Relationship* (Ashgate 2013); Kirsch, P. and Holmes, J.T., 'The Rome Conference on the International Criminal Court: The Negotiating Process', (1999) 93 *AJIL* 2; Kleffner, J., *Complementarity in the Rome Statute and National Criminal Jurisdictions* (OUP 2008); Klip, A., 'Complementarity and Concurrent Jurisdiction', (2004) 19 *Nouvelles Etudes Pénales* 173; Kress, C., "'Self-Referrals" and "Waivers of Complementarity": Some Considerations in Law and Policy', (2004) 2 *JICJ* 944; Llewellyn, J.J., 'A Comment on the Complementary Jurisdiction of the International Criminal Court: Adding Insult to Injury in Transitional Contexts?', (2001) 24 *DalhousieLJ* 192; Meyer, F., 'Complementing Complementarity', (2006) 6 *ICLRev* 549; Mokhtar, A., 'The Fine Art of Arm-Twisting: The U.S. Resolution 1422 and Security Council Deferral Power under the Rome Statute', (2002) 3 *ICLRev* 295; Murphy, R., 'Gravity Issues and the International Criminal Court', (2006) 17 *CLF* 281; Müller A. and Stegmiller, I., 'Self-Referrals on Trial: From Panacea to Patient', (2010) 8 *JICJ* 1267; Newton, M., 'Comparative Complementarity: Domestic Jurisdiction Consistent with the Rome Statute of the International Criminal Court', (2001) 167 *MillRev* 20; Nouwen, S., 'Complementarity in Uganda: Domestic Diversity or International Imposition?', in: C. Stahn and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, Vol. II (CUP 2011) 1120; *id.*, *Complementarity in the Line of Fire: The Catalysing Effect of the International Criminal Court in Uganda and Sudan* (CUP 2013); Nseroko, D.D.N., 'The International Criminal Court: Jurisdictional and Related Issues', (1999) 10 *CLF* 87; Olásolo, H., 'The Triggering Procedure of the International Criminal Court, Procedural Treatment of the Principle of Complementarity, and the Role of the Office of the Prosecutor', (2005) 5 *ICLRev* 121; Philips, R.B., 'The International Criminal Court Statute: Jurisdiction and Admissibility', (1999) 10 *CLF* 61; Rastan, R., 'Situation and Case: Defining the Parameters', in: C. Stahn, and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, i (CUP 2011) 421; Robinson, D., 'Serving the Interests of Justice: Amnesties, Truth Commissions and the International Criminal Court', (2003) 14 *EJIL* 481; *id.*, 'The inaction controversy: Neglected words and new opportunities', in: C. Stahn, and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, Vol. I (CUP 2011) 460; Rojo, E., 'The Role of Fair Trial Considerations in the Complementarity Regime of the International Criminal Court: From "No Peace Without Justice" to "No Peace with Victor's Justice"', (2005) 18 *LeidenJIL* 829; Ryngaert, C., *Jurisdiction in International Law* (OUP 2008); Schabas, W.A., 'The Relationship between Truth Commissions and International Courts: The Case of Sierra Leone', (2003) 25 *HRQ* 1035; *id.*, 'Prosecutorial Discretion and Gravity', in: C. Stahn and G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff Publishers 2009) 229; *id.*, 'Complementarity in Practice: Some Uncomplimentary Thoughts', (2008) 18 *CLF* 5; Schabas, W. A., 'The rise and fall of complementarity', in: C. Stahn, and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, Vol. I (CUP 2011) 150; Scharf, M., 'The Amnesty Exception to the Jurisdiction of the International

Criminal Court', (1999) 32 *CornILJ* 507; Slade, T. N. and Clark, R. S., 'Preamble and Final Clauses', in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (Kluwer Law International 1999) 421; Ssenyonjo, M., 'Accountability of Non-State Actors in Uganda for War Crimes and Human Rights Violations: Between Amnesty and the International Criminal Court', (2005) 10 *JConflict&SecurityL* 405; Stahn, C., 'The Ambiguities of Security Council Resolution 1422 (2002)', (2003) 14 *EJIL* 85; *id.*, 'Complementarity, Amnesties and Alternative Forms of Justice: Some Interpretative Guidelines for the International Criminal Court', (2005) 3 *JICJ*. 695; *id.*, 'Complementarity: A Tale of Two Notions', (2008) 19 *CLF* 87; *id.*, 'Taking Complementarity Seriously: on the sense and sensibility of "classical", "positive", and "negative" complementarity"', in: C. Stahn, and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, i (CUP 2011) 233; Stahn, C., and El Zeidy, M.M. (eds.), *The International Criminal Court and Complementarity: From Theory to Practice* (CUP 2011); Van der Wilt, H.G. and Lyngdorf, S., 'Procedural Obligations under the European Convention on Human Rights: Useful Guidelines for the Assessment "Unwillingness" and "Inability" in the Context of the Complementarity Principle', (2009) 9 *ICLRev* 39; Wierda, M. and Otim, M., 'Courts, Conflict and Complementarity in Uganda', in: C. Stahn and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice, Vol. II* (CUP 2011) 1155; Yang, L., 'On the Principle of Complementarity in the Rome Statute of the International Criminal Court', (2005) 4 *ChineseJIL* 121; Zartman, W. I., 'Introduction: Posing the Problem of State Collapse', in Zartman(ed.), *Collapsed States: The Disintegration and Restoration of Legitimate Authority* (Rienner 1995).

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A. Introduction/General remarks

The concept of admissibility in international criminal procedure concerns the forum allocation of cases between national and international criminal jurisdictions. In the domain of international criminal law, when two judicial systems coexist (whether at the horizontal or vertical level),¹ each empowered to exercise competence over the same case(s), it becomes quite common to establish mechanisms to regulate which jurisdiction proceeds and under what conditions.² Admissibility in international criminal procedure or international criminal

¹ [The views expressed in this chapter are those of the authors and do not necessarily reflect those of the International Criminal Court]. In this context, horizontal refers to the conflict of jurisdiction between inter-state judicial systems while the vertical refers to conflict of jurisdiction between one or more national justice systems and an international judicial organ. This concept should be clearly distinguished from the notion of admissibility of evidence, which lies at the heart of the law of evidence. The latter is beyond the scope of this chapter.

² In the same vein, Schabas, *An Introduction to the International Criminal Court*. (4th ed., CUP 2011) 187. For instance, at the horizontal level, there is a growing tendency to solve possible conflicts of jurisdiction in the context of crimes under international law through the principle of 'subsidiarity'. According to this principle, the territorial State or the State of nationality enjoys 'jurisdictional priority' as far as it proves ability and willingness to prosecute. In other words, any other State which demands to prosecute international crimes, say on the basis of universal jurisdiction, can do so only as far as the State directly affected fails to do so. Thus, there is a sort of an admissibility test, which assists in resolving issues of competing jurisdictional claims. See Ryngaert, *Jurisdic-*

law seeks to solve the potential conflict of jurisdiction that might arise between the two tier legal fora, the national and the international.

This is actually the *status quo* if one follows the development of international criminal law over the last seventy years and in particular, the last two decades. Starting with the attempts undertaken by official, unofficial and semi-official bodies during the Second World War (1941–1943), these bodies proposed the establishment of an international judicial forum or an inter-Allied court, which was meant to function alongside domestic courts, to prosecute the Nazis for their crimes committed in the course of the war.³ There was a growing tendency to organize the relationship between the proposed court and domestic jurisdictions by creating a procedure which allowed the international machinery to exercise its competence only under exceptional circumstances. The underlying idea was to give preference to the role of domestic courts and solve any possible conflict of jurisdiction at both levels through a sort of admissibility procedure, which aimed at filtering the cases to be dealt with before the international forum.⁴ In essence, this is similar to the existing mechanism under the Rome Statute,⁵ as designed by its drafters.

- 2 The experience of the Nuremberg International Military Tribunal (IMT), which finally overruled these initiatives, was notably different. The three main Allied powers (Britain, the United States and the Soviet Union) made a statement in the Moscow Declaration of 30 October 1943,⁶ later referred to in the London Agreement of 8 August 1945 establishing the IMT,⁷ that German war criminals should be judged and punished in the countries in which their crimes were committed. However, this declaration was limited to the case of relatively minor offenders. ‘German criminals whose offenses [had] no particular geographical localization [and who were labelled as major war criminals] [would] be punished by joint decision of the government of the Allies’.⁸ The joint decision resulted in the creation of the IMT, which was called upon to try only the ‘major war criminals’, while the remaining offenders referred to in both the Moscow Declaration and the London Agreement were to be dealt with before national criminal jurisdictions under the confines of Control Council Law No. 10.⁹

tion in *International Law* (OUP 2008) 211–18. See more recently, *Report of the Secretary General: The Scope and Application of the Principle of Universal Jurisdiction*, UN Doc. A/68/113, 26 June 2013, para. 25; also *Report on the Scope and Principle of Universal Jurisdiction: Information provided by the Kingdom of Spain*, No. 094 FP, 29 April 2013, in particular para. 16; *Report of the Secretary-General Prepared on the Basis of Comments and Observations of Governments: The Scope and Application of the Principle of Universal Jurisdiction*, UN Doc. A/65/181, 29 July 2010, 26 (observations by Chile and Cuba).

³ See for example the work done by the London International Assembly, the International Commission for Penal Reconstruction and Development and the United Nations War Crimes Commission. The London International Assembly was established in 1941 under the auspices of the League of Nations Union, although it was not an official body. Its mandate was mainly to make recommendations in relation to the question of war crimes committed during the course of World War II and to find solutions to ensure effective punishment for those who bear responsibility for these crimes. See on the London International Assembly, *Historical Survey of the Question of International Criminal Jurisdiction*, UN Doc. A/CN.4/7/Rev.1, 1949, at 18; *International Commission for Penal Reconstruction and Development: Proceedings of the Conference held in Cambridge on the 14th November, 1941, Between Representatives of Nine Allied Countries and of the Department of Criminal Science in the University of Cambridge*, at 11; *United Nations War Crimes Commission Progress Report*, Doc C.48, 12 September 1944.

⁴ *Ibid.*

⁵ *Rome Statute of the International Criminal Court, Adopted by the United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court*, 17 July 1998, UN Doc.A/CONF.183/9 [hereinafter Rome Statute], article 17.

⁶ *The Tripartite Conference at Moscow*, October 19–30, 1943, reprinted in: *International Conciliation*, No. 395, at 599–605 (1943) [hereinafter Moscow Declaration].

⁷ *London Agreement of August 8, 1945*, reprinted in: (1947) 1 *Trial of Major War Criminals Before the International Military Tribunal* 8 [hereinafter London Agreement] 8.

⁸ *Ibid.*

⁹ *Allied Control Council Law No. 10, Punishment of Persons Guilty of War Crimes, Crimes against Peace and Crimes against Humanity*, 20 December 1945, *Official Gazette of the Control Council for Germany*, No. 3, 31 January 1946; also, Cassese, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (OUP 2002) 7.

Therefore, this allocation of cases between the IMT and domestic courts, including military tribunals, did not give rise to the need to further establish conditions or criteria to regulate which forum was to proceed with the case under consideration. The Allies' decision to divide the responsibilities between the two tier jurisdictions in this categorical manner, on the basis of the accused's level of responsibility, resolved from the *outset* any possible conflict of jurisdiction that could have arisen and thus actually served as an admissibility procedure. This filtering process was carried out in accordance with article 14 of the IMT Charter.¹⁰ The situation in the Far East was quite similar. The International Military Tribunal for the Far East (IMTFE) was created 'for the just and prompt trial and punishment of the major war criminals in the Far East'. The remaining Japanese war criminals lacking a 'leadership background' were dealt with in their respective 'occupied or colonized territories'.¹¹

When the *ad hoc* tribunals were established in the early 1990s the idea that these tribunals would exercise exclusive jurisdiction over the core crimes referred to in their statutes was rejected (retaining instead also the competence of national courts). This led to the inevitable conclusion to set up a system by which to resolve the positive conflict of jurisdiction between the two level fora. The Statutes of the International Criminal Tribunal for the Former Yugoslavia (ICTY)¹² and the International Criminal Tribunal for Rwanda (ICTR)¹³ as well as their respective Rules of Procedure and Evidence¹⁴ embody identical provisions which serve this purpose. The Statute of the Special Court for Sierra Leone thereafter followed the same path.¹⁵ Although the statutory provisions governing these tribunals speak of 'primacy' and do not explicitly rely on the term 'admissibility' or 'complementary jurisdiction', as is the case with the Rome Statute, they manage to remedy the potential conflict of jurisdiction between the tribunals and any domestic court by way of setting out certain defined criteria to that effect in their respective Rules of Procedure and Evidence.¹⁶

Moreover, responding to a settled plan for complementing the mandates of the *ad hoc* tribunals (particularly the ICTY and ICTR),¹⁷ these tribunals began to develop new methods to reallocate cases by amending their Rules of Procedure and Evidence. These amendments actually created a filtering system more akin to an admissibility mechanism, which guaranteed that not every case that came or was already before the tribunal would be dealt with.¹⁸

The Rome Statute comes with the most complex and developed system of admissibility the field of international criminal law has experienced. This is not surprising. The drafters of the Rome Statute had in mind the creation of a *permanent* international institution expected to function as a residual jurisdiction: a court which operates under exceptional circumstances, when there are no genuine prospects that domestic courts will respond to certain grave atrocities by way of investigating, prosecuting and trying alleged perpetrators responsible for

¹⁰ *Charter of the International Military Tribunal*, 8 August 1945, article 14(b) <<http://avalon.law.yale.edu/imt/imtconst.asp>> accessed 5 March 2015.

¹¹ El Zeidy, in: Stahn and El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice* (CUP 2011) 71, 124–125.

¹² *Statute of the International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in the Territory of the Former Yugoslavia since 1991*, SC Res. 827/1993, reprinted in: (1993) *ILM* 1192, article 9.

¹³ *Statute of the International Tribunal for the Prosecution of Persons Responsible for Serious Violations of International Humanitarian Law Committed in Rwanda*, SC Res. 955/1994, reprinted in: (1994) *ILM* 1598, article 8.

¹⁴ See *ICTY Rules of Procedure and Evidence*, UN Doc. IT/32/Rev. 49, 22 May 2013, Rule 9 [hereinafter *ICTY Rules*]; *ICTR Rules of Procedure and Evidence*, UN Doc. ITR/3/Rev. 22, 10 April 2013, Rule 9 [hereinafter *ICTR RPE*].

¹⁵ See *Agreement between the United Nations and the Government of Sierra Leone on the Establishment of a Special Court for Sierra Leone*, signed on 16 January 2002, annex: Statute of the Special Court for Sierra Leone, article 8; *Rules of Procedure and Evidence*, Rule 9 [hereinafter *SCSL RPE*].

¹⁶ See for instance, *ICTY Rules*, Rule 9; *ICTR RPE*, Rule 9.

¹⁷ See for instance, SC Res. 1503 (2003), UN Doc. S/RES/1503 and SC Res. 1534 (2004), UN Doc. S/RES/1534.

¹⁸ For a detailed discussion see, El Zeidy, in: Schabas and Bernaz (eds.), *Routledge Handbook of International Criminal Law* (Routledge 2011) 211, 213–217; also El Zeidy (2008) 57 *Id&CompLQ* 408.

one or more of the core crimes referred to in the Rome Statute. The sort of exceptional circumstances which limit the role of the Court's exercise of its jurisdiction is reflected in what is known as article 17,¹⁹ under the heading 'Issues of admissibility'.²⁰

Article 17 dealing with admissibility issues is the cornerstone of the Rome Statute of the International Criminal Court (ICC). Paragraphs 1(a)-(c) embody the principle of complementarity which is one of the 'underlying principles' of the Statute.²¹ That the aim of the Statute is not to negate State sovereignty is also manifested in article 17, which illustrates clearly that the concerns of States with respect to their sovereign interests in criminal justice were at the forefront of the negotiations from the earliest stages. Article 17 provides for inbuilt safeguards that preserve national interests and judicial integrity on the domestic level. This pivotal article was essential for the Statute to be marketable in Rome.

Article 17 also reflects another fundamental principle of international law, that 'it is the duty of every State to exercise its criminal jurisdiction over those responsible for international crimes',²² as the preamble to the Rome Statute states. Only when they fail to fulfil this duty should the Court operate to ensure there is no impunity gap.

The ICC may not proceed with a case when the concerned States are investigating, prosecuting, or trying in good faith. The prevailing view during the negotiations of the Rome Statute was that the ICC was not to have primacy over national criminal courts, which is the situation with the *ad hoc* tribunals,²³ but rather would complement them. However, '[d]efining the precise nature of this relationship was both politically sensitive and legally complex'.²⁴ This is apparent if one observes the close connection and interplay between article 17 and other provisions such as preamble paragraph 10, articles 1, 12, 15, 18, 19, 20, 53 and 95. At the outset of the negotiations at the Rome Conference, some States were of the view that the primary obligation to prosecute the crimes under consideration lay with States themselves and that the ICC would only have a role to play when 'the national judicial system was unable to investigate or punish transgressors'.²⁵ Other States and many non-governmental organizations (NGOs) wanted a more effective role for the Court, arguing that the ICC should be able to intervene 'where the proceedings under a national judicial system were ineffective and where a national judicial system was unavailable'.²⁶

The importance of 'complementarity' has been confirmed by the first Prosecutor of the ICC in his public statements. According to Prosecutor Moreno Ocampo, '[a]s a general rule, the policy of the Office of the Prosecutor will be to undertake investigations only where there is a clear case of failure to act by the State or States concerned'.²⁷ He has insisted that:

'The principle of complementarity represents the express will of States Parties to create an institution that is global in scope while recognising the primary responsibility of States themselves to exercise criminal jurisdiction. The principle is also based on considerations of efficiency and effectiveness since States will generally have the best access to evidence and witnesses.'²⁸

¹⁹ Rome Statute, article 17.

²⁰ This provision is complemented by a number of articles which aim at elaborating on the full process of the admissibility proceedings. The core of these provisions are found under the headings 'Preliminary Rulings Regarding Admissibility' (article 18) and 'Challenges to the Jurisdiction of the Court or the Admissibility of a Case', article 19. See, Nsereko, D., 'Article 18', in this volume; *id.*, 'Article 19'. Also of relevance to the operation of admissibility in the course of trial proceedings, see Coracini, R. A., 'Article 20', in this volume.

²¹ See also, Arsanjani, in: von Hebel *et al.* (eds.), *Reflections on the International Criminal Court* (1999) 57, 67.

²² Preamble, para. 6; See also, Slade and Clark, in: Lee (ed.), *The Making of the Rome Statute* (Kluwer Law International 1999) 421.

²³ But see margin 5 above.

²⁴ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41. See also as to the complexity and sensitivity of the jurisdictional issues as a whole, Kirsch and Holmes (1999) 93 *AJIL* 2.

²⁵ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 42.

²⁶ *Ibid.*

²⁷ Paper on some Policy Issues before the Office of the Prosecutor (2003), 2.

²⁸ *Ibid.*

Moreover, according to the Prosecutor, ‘the system of complementarity is principally based on the recognition that the exercise of national criminal jurisdiction is not only a right but also a duty of States’.²⁹

I. The ILC Draft and the Ad Hoc Committee

In the 1994 Draft Statute of the International Law Commission (ILC)³⁰ the third paragraph of the Preamble provided that the ICC was intended to complement national criminal justice systems in those cases where trial procedures ‘may not be available or may be ineffective’. The ILC made clear in its commentary that the Court was intended to operate in cases where there was no prospect of trial in national courts. Specifically, it stated that: ‘The emphasis is thus on the Court as a body which will complement existing national jurisdictions and existing procedures for international judicial cooperation in criminal matters.’³¹ It would not, therefore, take primacy over national courts and would not effect bilateral inter-State extradition or other forms of international judicial assistance. The purposes set out in the Preamble, including complementarity, were intended to assist in the interpretation and application of the Statute, particularly the exercise of the power conferred by draft article 35 dealing with issues of admissibility. Some members of the ILC believed that the Preamble should be an operative part of the Statute.³²

Article 35 of the draft Statute set out three grounds of inadmissibility. Firstly, when the case had been duly investigated by a State with jurisdiction over the crime and the decision of that State not to proceed to prosecution was apparently well founded. Secondly, where the crime was under investigation by a State which had or may have had jurisdiction over it, and there was no reason for the Court to take any future action with respect to the crime at that time. Thirdly, the crime was not of such gravity to justify any further action by the ICC. The rationale behind this provision was that the ICC should only be dealing with cases outlined in the Preamble, that is where it was really desirable to do so. However, some members were of the view that it was not necessary as the relevant factors could be taken into consideration at the jurisdictional level, notably under draft article 20(e) dealing with crimes within the jurisdiction of the Court and draft article 21 dealing with preconditions to the exercise of jurisdiction. To challenge the jurisdiction of the ICC on the basis that there existed an effective or available trial procedure in a State with jurisdiction over the criminal offence, the ILC proposed in draft article 34(a) that the interested State must do so before the commencement of the trial. In addition the accused could challenge under article 34(b) the jurisdiction at that time or at any later stage of the trial.

Further, in article 42, para. 1 the draft Statute affirmed the *non bis in idem* principle. A person could not be prosecuted before any other court for criminal conduct for which he or she had already been tried by the ICC and conversely not by the ICC where a prosecution had occurred in another court.

The ILC Draft was considered by the Ad Hoc Committee on the Establishment of an International Criminal Court set up by the General Assembly in 1994.³³ In its 1995 Report³⁴ the Committee stated that many delegations had noted that the commentary to the Preamble clearly indicated that the ILC did not intend that the ICC should replace national criminal courts.³⁵ The Report described the principle of complementarity as ‘an essential element in

²⁹ *Ibid.*, 5.

³⁰ *Report of the International Law Commission on the Work of its Forty-Sixth Session, Draft Statute for an International Criminal Court*, UN GAOR, 49th Sess., Supp. No. 10, UN Doc. A/49/10 (1994) 29.

³¹ *Ibid.* 44.

³² *Ibid.*

³³ UN GA Res. 49/53 (9 December 1994).

³⁴ *Report of the Ad Hoc Committee on the Establishment of an International Criminal Court*, UN GAOR, 50th Sess., Supp. No. 22, UN Doc. A/50/22 (1995).

³⁵ *Ibid.*, para. 29.

the establishment of an international criminal court'.³⁶ However, it was found that further elaboration of the principle was necessary 'so that its implications for the substantive provisions of the draft statute could be fully understood'.³⁷ There was a divergence of opinion on primacy of jurisdiction in the Committee. Some delegations emphasized that the principle of complementarity should create a strong presumption favouring national criminal court jurisdiction, in that States had a vital interest in prosecuting violations of their laws.³⁸ For example, the United States requested that the Preamble be amended to clarify the primary obligation on States to prosecute the listed crimes and if a State had a judicial system in active operation and entertained a *bona fide* investigation and/or prosecution then the ICC should not be able to intervene.³⁹ Other delegations, to the contrary did not want to create such a presumption. Rather, while national courts would have concurrent jurisdiction with the ICC, the latter would have primacy of jurisdiction.⁴⁰ A view was also expressed that a balanced approach was necessary, in that the primacy of national courts should be safeguarded, but at the same time the ICC should not be merely residual to national jurisdictions.⁴¹

The ILC Draft provided that the ICC had the capacity to decide that a case before it was inadmissible. Some delegations, for example China,⁴² had expressed concerns about this authority. However, not to have permitted the ICC to examine the effectiveness of domestic processes would have undermined the Court.

- 9 Two views on placement of the concept of complementarity were expressed. One view was that the principle of complementarity could be elaborated in the Preamble. According to article 31 of the 1969 *Vienna Convention on the Law of Treaties*, a preamble to a treaty is considered an integral part of a treaty for the purposes of interpretation and application.⁴³ The second view was that a reference to this important principle in the Preamble alone was insufficient and it should also be placed in an article in the Statute. There would in this manner be no doubt about the vital nature of complementarity in the interpretation and the application of other articles in the Statute.⁴⁴

As one commentator has noted, the approach put forward by the ILC 'contributed to the eventual resolution of the complementarity question. ... The fact that a pre-eminent international legal body such as the ILC would accept this important principle gave added weight during the negotiations on this point'.⁴⁵

II. The Preparatory Committee

- 10 This issue first came before the Preparatory Committee in March–April 1996. Similarly as in the Ad Hoc Committee there were widely differing views expressed by States as to 'how, where, to what extent and with what emphasis complementarity should be reflected in the

³⁶ *Ibid.*

³⁷ *Ibid.*

³⁸ *Ibid.*, para. 31.

³⁹ Bleich (1997) 13 *NEP* 231, 235–236, referring to a United States statement made to the *Ad Hoc Committee* on 31 March 1995, UN Doc. A/AC.244/1/Add.2, at 9. The United States position was that a national jurisdiction would only be considered unavailable or ineffective where the alleged crime did not fall within the jurisdiction of the State; where the State declined to exercise its jurisdiction without first having a full and appropriate investigation or in otherwise unreasonable manner or where the judicial process in the State is not *bona fide*.

⁴⁰ *Report of the Ad Hoc Committee on the Establishment of an International Criminal Court*, UN GAOR, 50th Sess., Supp. No. 22, UN Doc. A/50/22 (1995), para. 32.

⁴¹ *Ibid.*, para. 33.

⁴² Bleich (1997) 13 *NEP* 231, 234, where he notes that China preferred that the decision rest with domestic courts or the Security Council.

⁴³ *Report of the Ad Hoc Committee on the Establishment of an International Criminal Court*, UN GAOR, 50th Sess., Supp. No. 22, UN Doc. A/50/22 (1995), para. 37.

⁴⁴ *Ibid.*, para. 36.

⁴⁵ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 44.

statute⁴⁶. The Committee in its 1996 Report⁴⁷ observed that it was crucial that a proper balance be struck between the ICC and national authorities in order to make the Statute acceptable to a large number of States. Some States wanted to add to the no good faith and no credible national justice system grounds for the ICC assuming jurisdiction that of sham trials⁴⁸. Others had made the point that the limited resources of the ICC should not be exhausted by it taking up cases that could more easily as well as effectively be dealt with by national courts. Further, as the exercise of police power and criminal law is a State prerogative, the jurisdiction of the ICC was said to be an exception to that prerogative⁴⁹. The ILC preambular text was criticized at the same time by some as too vague and others as too intrusive⁵⁰. With respect to article 35 of the ILC draft Statute the central article on admissibility, several delegations felt that the three grounds listed seemed too narrow. It was suggested that it include *non bis in idem*, contained in article 42 and speciality contained in article 55 of that draft. As well, the view was expressed that it should be expanded to encompass cases not only being investigated but which were being prosecuted or had been prosecuted, subject to qualifications in respect of impartiality, diligent prosecution and so on⁵¹. The further observation was made that draft article 35 (b) referred to a crime that was under investigation as a ground for inadmissibility. However, there was no mention of whether the investigation was ineffective, whether certain procedures were unavailable or whether it was part of a sham trial. Several States came forward with proposals containing approaches that differed from the ILC draft Statute and these were included in the Report⁵². These issues were not dealt with again until the August 1997 session when a number of States introduced new proposals and informal consultations were initiated⁵³.

In order to try to get consensus on the topic of complementarity by the end of the August 11 1997 session, the coordinator of the informal sessions concentrated on the main issue, leaving procedural challenges to admissibility, *ne bis in idem* and other related matters until later⁵⁴. The negotiating approach was a rolling text and after the preliminary stage no square brackets were used, except for the first paragraph, which had not been discussed at that time⁵⁵. This was to be in contrast to other articles in the draft Statute. Draft article 35 was produced by the coordinator following a week of intense negotiations. This was 'one of the great achievements of the August 1997 Preparatory Committee'⁵⁶.

Paragraph 1 provided that the ICC should determine of its own motion that a case was 12 inadmissible. Then in addition other alternatives were presented in four sets of square brackets. Admissibility could be raised on the application of the accused or at the request of an interested State or a State which had jurisdiction over the crime at any time prior to the commencement of proceedings.

In order to achieve consensus, a text box introduced the draft article. It provided that the draft that followed was 'intended to facilitate the work towards the elaboration of the Statute

⁴⁶ *Report of the Preparatory Committee on the Establishment of an International Criminal Court, i* (Proceedings of the Preparatory Committee During March-April and August 1996), UN GAOR, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996), para. 153 [hereinafter 1996 Preparatory Committee I]. Volume II contains the Proposals.

⁴⁷ *Ibid.*, paras. 153-169.

⁴⁸ *Ibid.*, para. 154.

⁴⁹ *Ibid.*, para. 153.

⁵⁰ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 45.

⁵¹ *Report of the Preparatory Committee on the Establishment of an International Criminal Court, i*, UN GAOR, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996), para. 164.

⁵² *Report of the Preparatory Committee on the Establishment of an International Criminal Court, ii*, UN GAOR, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996), para. 159.

⁵³ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 45. Holmes, Acting Head of the Canadian Delegation was appointed to coordinate these informal consultations and to report back to the Preparatory Committee.

⁵⁴ *Ibid.*

⁵⁵ *Ibid.*, 46.

⁵⁶ Amnesty International, *The International Criminal Court: Making the Right Choices - Part V: Recommendations to the Diplomatic Conference 35* (May 1998).

of the Court'. It represented a 'possible way to address the issue of complementarity and [was] without prejudice to the views of any delegation'. It was stated that the draft text did 'not represent agreement on the eventual content or approach to be included in this article'. In addition, nine footnotes were included to explain the text. Finally, following a last minute argument by Mexico that more time was necessary to look at this article, after the fourth paragraph of the article an alternative approach was presented and the following language suggested: 'The Court has no jurisdiction where the case is being investigated or prosecuted, or has been prosecuted, by a State which has jurisdiction over it.' This disclaimer alternative would have given the ICC no ability to review the genuine nature of the proceedings.

- 13 Although some States including France, the United Kingdom and the United States were of the view that the ICC should not act as an appeals tribunal or engage in judicial review of national decisions, whereas others were committed to giving the ICC a role to take jurisdiction where national proceedings were ineffective, a wide degree of consensus began to emerge. The Court would not take jurisdiction unless the State with criminal jurisdiction over the offence was unable or unwilling to carry out the investigation or prosecution. To obtain this consensus concessions were made on all sides. Inability was not controversial in principle and was added to the draft article. The issue of unwillingness was more difficult to negotiate as some delegations had concerns regarding State sovereignty and also constitutional guarantees in domestic systems against double jeopardy. However, at the end of the day the majority view was that if unwillingness was not a ground for the ICC to assume jurisdiction and refute the presumption that a national system was handling the case in an adequate manner it would be almost a signal to States that they could easily prevent the ICC from taking jurisdiction by initiating an investigation or prosecution. Nevertheless, some States continued to remain opposed and therefore the text box and the alternative approach remained included.
- 14 The majority of the delegations accepted the text 'as an acceptable and welcome compromise ... [and] that view ultimately prevailed in Rome'⁵⁷ with minor re-drafting, changes to numbering of other articles referred to and deletion of the alternatives contained in the square brackets in paragraph 1. The Inter-Sessional Meeting in Zutphen suggested the deletion of the first paragraph as the interests of the accused and interested States were met in then article 12[36] on challenges to jurisdiction⁵⁸. It was also agreed that complementarity should be emphasized in the Preamble. However, the Preamble redrafting did not occur in the Preparatory Committee⁵⁹. Article 15 of the draft Statute contained in the final Report of the Preparatory Committee followed the Zutphen suggestions. There was general agreement that if a crime was not serious enough the case should be inadmissible. Amongst the footnotes that accompanied the text were numbers 42 and 43. Footnote 42 noted that article 15 para. 1 (c) 'should also address, directly or indirectly, cases in which there was a prosecution resulting in conviction or acquittal, as well as discontinuance of prosecutions and possibly also pardons and amnesties'. It was agreed that these issues would be revisited in the light of revisions to article 18 on *ne bis in idem*. The issue of national amnesty or pardon preventing a prosecution before the ICC was acutely controversial. Footnote 43 stated that some delegations would have preferred the inclusion at the end of para. 1 of a new subparagraph that would have stated that 'the accused is not liable under article 92 (Rule of speciality) to be prosecuted before or punished by the Court'.
- 15 As an adjunct to article 15 was the proposal made by the United States delegation at the March-April 1998 Preparatory Committee to the effect that a new article 16 be included that *would* provide for complementarity at an earlier stage, prior to an investigation being commenced. This proposal was not acceptable to the like-minded group of States and was

⁵⁷ *Ibid.*, 46–47.

⁵⁸ *Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands*, UN Doc. A/AC.249/1998/L.13. See article 11[35].

⁵⁹ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 47.

‘received with great scepticism’⁶⁰. Its general thrust was that it would have created lengthy procedures that would have affected the Prosecutor’s ability and was not necessary given the other safeguards contained in article 15 but also articles 13 and 17. It was put into the Draft Statute, but entirely in square brackets.

The Preparatory Committee’s text accomplished many things, but two major improvements on the ILC text must *be* emphasized. Article 15 expanded the grounds where the ICC can assume jurisdiction and introduced the principle of good faith. For a case to be inadmissible a Statute must have acted genuinely in investigating and prosecuting. On account of the inter-twined nature of the various jurisdictional articles it was to be of great importance in the lead-up time to Rome and the actual negotiations there that there was a good conception on the part of States as to how complementarity would work. It was, therefore, to assist in having a more focused debate on the issues of preconditions and trigger mechanisms. 16

III. The Rome Conference

During the negotiations leading up to the adoption of the Statute on 17 July 1998, the complementarity principle was a pivotal issue in the debate. The ICC was not seeking to undermine or detract from national criminal jurisdiction, but would only assume jurisdiction where a State was unwilling or able to do so in good faith. It was an amazing feat to have sent to Rome a text uncluttered with square brackets and this principle was soon seen as, in effect, the cornerstone to the successful adoption of the Statute. It was recognized that despite the disclaimer contained in the text box that the text represented ‘the agreement of an overwhelming number of delegates. [...] Any attempt by a government to [have weakened article 15 would have] endangere[d] agreement on the rest of the consolidated text and [have] caused the diplomatic conference to fail.’⁶¹ 17

In essence the article could not be opened up for substantial change or the package based on compromise would have folded. This was made clear in the general debate in the Committee of the Whole by the coordinator. Not all States were completely satisfied but saw the article as a delicately balanced compromise. However, some delegations including China, Egypt, Mexico, Indonesia, India and Uruguay wanted to reopen the negotiations⁶². Thus, the intention of the coordinator, who had continued with his role at the request of the Bureau of the Committee of the Whole in Rome, was to ‘resist holding informal consultations for as long as possible’⁶³ for two reasons. First, he viewed open-ended consultations as almost an invitation to delegations to suggest new proposals which could have led to the complementarity article being unraveled⁶⁴. Second, he was of the view that bilateral contacts with delegations would afford him a better opportunity of gauging concerns of States opposed to the Draft Statute’s text and their bottom lines⁶⁵. Three problems with the text surfaced as indicated by the coordinator⁶⁶. These were that some States viewed paragraph 2 as giving the ICC too much discretion in deciding whether a State was unwilling, and that no objective criteria were included to guide the Court. ‘Undue delay’ in paragraph 2 (b) was found to be too low a threshold for unwillingness. Lastly, ‘partial collapse’ of a national judicial system as a ground for the ICC to determine inability was viewed as not sufficient. 18

⁶⁰ International Commission of Jurists, *Exercise of Jurisdiction and Complementary*, ICJ Brief No. 2, 11 (June 1998).

⁶¹ Amnesty International, *The International Criminal Court: Making the Right Choices – Part V: Recommendations to the Diplomatic Conference* 35 (May 1998).

⁶² Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 52.

⁶³ *Ibid.*

⁶⁴ *Ibid.*

⁶⁵ *Ibid.*

⁶⁶ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 53.

- 19 In the weeks that followed these concerns were addressed. In the Bureau Discussion Paper of 6 July 1998⁶⁷ and the Bureau Proposal of 10 July 1998⁶⁸, both submitted to the Committee of the Whole, the first concern was met by including in the determination of what constitutes unwillingness in paragraph 2 (c) after the phrase ‘The proceedings were not or are not being conducted independently or impartially’ the following language ‘in accordance with the norms of due process recognized by international law [...]’. At the end of the day following further bilateral consultations the coordinator refined the language to read ‘having regard to the principles of due process recognized by international law’ and this was inserted not in paragraph 2 (c) but rather in the chapeau to paragraph 2 in the final package where it thus applied to all parts of the paragraph. The second concern that of ‘undue delay’ in paragraph 2 (b) was resolved by the use of the term ‘unjustified delay’ which addressed the fears of those delegations that did not want the ICC second guessing national decisions. ‘Unjustified’ was viewed as providing for a higher standard than ‘undue’ and that it was implicit that a State would have the right to in fact justify its actions in delaying proceedings domestically before the Court could determine that a case was indeed admissible. It went also into the final package. The issue of ‘partial collapse’ proved to be more difficult to solve. Some delegations argued that there could be a partial collapse in a country of its national judicial system, yet it would not necessarily mean that an investigation and/or prosecution could not take place in good faith. The adjective ‘partial’ which had been present since the 1997 August Preparatory Committee’s Report, remained in the Bureau’s Discussion Paper and Proposal. However, in the final package presented to the Committee of the Whole the Bureau changed the text to read ‘substantial collapse’, in line with a proposal from Mexico.⁶⁹
- 20 Concerning the Preamble, article 15 para. 1 of the Preparatory Commission’s Draft Statute had referred to article 3 of the Preamble and footnote 39 to that reference in the text had noted that suggestions had been made that complementarity should be further clarified either in article 15 itself or elsewhere in the Statute. The draft Preamble had emphasized that ‘such a court is intended to be complementary to national criminal justice systems in cases where such trial procedures may not be available or may be ineffective’. Again a footnote, number 2, had indicated that some delegations had expressed their opposition to this wording and had asked that the wording be made consistent with article 1 and thus read ‘Emphasizing further that such a court shall be complementary to national criminal jurisdictions’. According to the coordinator although the need for a preambular reference was discussed in Rome delegations decided that it was not necessary as article 15 of the draft, to become article 17 of the final Statute, already had elaborated on it⁷⁰. The Drafting Committee at the Rome Conference, however, suggested that to make the text as clear as possible there should be a reference to complementarity in both article 1 on ‘The Court’ and the Preamble. The final package, thus, contained in the chapeau to article 17, references to paragraph 10 of the Preamble and article 1 where complementarity is mentioned. It was this latter reference that had not been in the draft Statute or the Bureau Discussion Paper or Proposal. The wording was made consistent as had been noted in footnote 2 mentioned above.
- 21 The United States proposal for the bracketed article 16 in the Preparatory Commission’s Draft Statute on preliminary rulings on admissibility was on the table in Rome for the first time for all practical purposes. Admittedly, it had been submitted at the March–April session of the Preparatory Commission in 1998, but there had been no time for discussion. Thus, during the period between April and June, when the Conference began in Rome, the United States was able to submit a revised proposal, which took into account concerns that had been expressed⁷¹. The text that appeared in the Bureau’s Discussion Paper as article 16 was

⁶⁷ UN Doc. A/CONF.183/C.1/L.53, 17–19.

⁶⁸ UN Doc. A/CONF.183/C.1/L.59, 15–16.

⁶⁹ UN Doc. A/CONF.183/C.1/L.14/REV.1.

⁷⁰ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 55.

⁷¹ *Ibid.*, 69. See UN Doc. A/CONF.183/C.1/L.25 (29 June 1998) for the revised proposal.

modified from the revised proposal. Concerns were raised by some States and NGOs concerning article 16, but ‘a growing number of delegations [...] stated [...] that bilaterally to the coordinator that [it] [...] was key to their acceptance of the complementarity regime and the *proprio motu* role of the Prosecutor’⁷². Further consultations produced further improvements in the text and the Bureau included it in the Proposal and finally in the package. It was apparent that article 18, as it was finally to be numbered, had become inextricably linked to article 17 on complementarity.

The complementarity principle strikes a balance between state sovereignty and an effective and credible ICC. Without it there would have been no agreement. As has been analysed here and elsewhere in this Commentary, article 17 is linked to a network of inter-related provisions which indicate the fact that this Statute’s adoption was probably the most complex multilateral negotiation ever undertaken. 22

B. Analysis and interpretation of elements

I. Paragraph 1

It is clear from the drafting history that the sophisticated admissibility regime created by the Rome Statute seeks to balance the supranational power entrusted to the Court with the power of national jurisdictions in such a way as to ensure States that ‘they would remain master over their own judicial proceedings’ as long as they do not *allow* perpetrators of serious crimes to go unpunished.⁷³ Article 17, as it stands, is drafted in a manner which aims at achieving this delicate result. However, as Pre-Trial Chamber II has noted, ‘the exercise of national criminal jurisdiction by States [being a right or even more an existing duty] is not without limitations. These limits are encapsulated in the provisions regulating the inadmissibility of a case, namely articles 17–20 of the Statute’,⁷⁴ which govern the exceptions to the exercise of national jurisdiction. 23

Article 17(1) sets out, in sequence, a set of requirements to be examined before the Court can make an inadmissibility determination. The chapeau of article 17 is drafted in the negative. It uses the term ‘inadmissible’ as opposed to ‘admissible’. The 1994 Draft Statute prepared by the ILC, which inspired the Rome Statute, relied on the same term.⁷⁵ The ILC did not tackle the reason behind this formulation. Nor did the 1995 *Ad hoc Committee* which replaced the ILC in revising said draft directly address this issue.⁷⁶ But it was clear in the course of the negotiations which followed before the Preparatory Committee in 1996 that the drafters intended to place the emphasis in favour of national proceedings, in the sense that the exercise of jurisdiction by the ICC is not the rule, but rather the exception.⁷⁷

Article 17(1)(a)-(c) embodies three different scenarios depending on the stage and nature of national proceedings. These sub-paragraphs mainly organize the relationship between

⁷² Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 71.

⁷³ Bos, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff 2009) xvii.

⁷⁴ *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-101, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011 <<https://www.legal-tools.org/doc/dbb0ed/>> accessed 5 March 2015, para. 44.

⁷⁵ *Report of the International Law Commission on the Work of its Forty – Sixth Session* (2 May – 22 July 1994), with *Annex Draft Statute for an International Criminal Court*, UN Doc. A/49/10, 1994 YILC Vol. II, Part Two, Article 35, 52.

⁷⁶ *Report of the Ad hoc Committee on the Establishment of an International Criminal Court*, UN GAOR, 50th Sess., Supp. No. 22, UN Doc. A/50/22 (1995), paras 29–51.

⁷⁷ *Report of the Preparatory Committee on the Establishment of an International Criminal Court*, UN GAOR, 51st Sess., Vol. 1, Supp. No. 22, UN Doc.A/51/22 (1996), para. 154 (noting that complementarity ‘is not a question of the Court having primary jurisdiction or even concurrent jurisdiction. Rather, its jurisdiction should be understood as having an exceptional character’).

national jurisdictions and the ICC by way of checking the existence or absence of domestic efforts with respect to a given situation or case. Accordingly, they are commonly represented by the term ‘complementarity’ and they are treated as the first limb of the admissibility provision. The fourth scenario lies under sub-paragraph (d) and is known as the gravity test. Gravity represents the second limb of the admissibility provision. It follows that article 17(1)(a)-(c) (‘complementarity’) together with sub-paragraph (d) (‘gravity’) form what is commonly known as the ‘admissibility’ or ‘inadmissibility’ determination. The ICC has endorsed this distinction in its case-law.⁷⁸

- 24 Although the Statute does not indicate in technical terms whether the two components are to be studied in any particular order, in one of the early communications received by his Office, the Prosecutor appeared to have opted for assessing the issue of gravity before the issue of complementarity.⁷⁹ Seven years later, the Prosecutor followed the same methodology in responding to a referral received on behalf of the Union of the Comoros concerning the ‘31 May 2010 Israeli interception of a humanitarian aid flotilla bound for the Gaza Strip’.⁸⁰ The Prosecutor’s assessment was confined to the criterion of gravity, and she found no need to proceed with an examination of complementarity.⁸¹ By contrast, in one of the early cases before the Court, Pre-Trial Chamber I, for instance, spoke of complementarity as being ‘the first part of the admissibility test’.⁸² Since then, it has been quite common practice for the Chambers of the Court to start an admissibility determination with an examination of complementarity,⁸³ unless the element of gravity has been particularly challenged.⁸⁴ Yet, following this order in making an admissibility determination does not have, as such, any substantial value rather than merely following the structure of article 17(1) or the circumstances underlying each particular case.⁸⁵ Starting with the regime of complementarity, article 17(1)(a) requires that the ‘case [be at least in the process] of being investigated or prosecuted by a State which has jurisdiction over it’, in order to enter a finding of inadmissibility, ‘unless the State is unwilling or unable genuinely to carry out the investigation or prosecution’. The reference to the term State in this context should extend to States which are entitled to join

⁷⁸ *Situation in the Democratic Republic of the Congo*, ICC-01/04-520-Anx2, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 5 March 2015, para. 29. However, the Appeals Chamber in one of its early decisions divided the admissibility provision into three prongs. It stated that admissibility refers ‘in the first place to complementarity (article 17(1)(a) to (b), in the second place to *ne bis in idem* (articles 17(1) (c), 20) and thirdly to the gravity of the offence (article 17(1) (d))’, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-772, Judgment on the Appeal of Mr. Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to article 19(2)(a) of the Statute of 3 October 2006, Appeals Chamber, 14 December 2006 <<https://www.legal-tools.org/doc/1505f7/>> accessed 5 March 2015, para. 23.

⁷⁹ *Letter of Prosecutor dated 9 February 2006* (Iraq) 9.

⁸⁰ *Situation on Registered Vessels of Comoros, Greece and Cambodia: Article 53(1) Report*, 6 November 2014, 3.

⁸¹ *Ibid.*, para. 148.

⁸² *Situation in the Democratic Republic of the Congo*, No. ICC-01/04-520-Anx2, Decision on the Prosecutor’s Application for Warrants of Arrests, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 5 March 2015, paras. 30 and 41.

⁸³ See, *inter alia*, *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012 <<https://www.legal-tools.org/doc/96c3c2/>>, para. 38; *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-101, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011 <<https://www.legal-tools.org/doc/dbb0ed/>>, paras. 48 *et seq.*

⁸⁴ *Prosecutor v. Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 January 2012 <<https://www.legal-tools.org/doc/4972c0/>> accessed 5 March 2015, paras. 39–40 (noting that the Defence did not challenge the admissibility of the case on the basis of complementarity, but rather on the ground of lack of sufficient gravity. Accordingly, the Chamber begun its examination and confined it to this latter element).

⁸⁵ *Ibid.*; *Situation on Registered Vessels of Comoros, Greece and Cambodia: Article 53(1) Report*, 6 November 2014.

the treaty in accordance with article 125 of the Statute,⁸⁶ and also those none-State parties with jurisdiction over the situation/case.⁸⁷ Nonetheless, providing an overly narrow interpretation to article 17 could lead to an increase in the impunity gap.

There may, for example, be entities whose status is contested but which enjoy an undisputed control of the territory and have the capacity to exercise jurisdiction. An example is Taiwan which, although unable to become a State Party in accordance with article 125 of the Statute because of the controversy surrounding its status at the United Nations, might otherwise be granted a limited standing before the Court as a State with jurisdiction within the meaning of article 17. Less clear cut examples might concern categories relating to disputed territories, such as Kosovo (which is recognised by many Western Countries, but is disputed by Russia) or South Ossetia (which is recognised by Russia, but disputed by the Western Countries). In these situations the Court might nonetheless be willing to consider arguments as to the entity's standing for the purpose of articles 17 and 19(2)(a), notwithstanding their controversial status under international law. More problematic would be entities which exhibit less State-like competencies. For example, under international humanitarian law and article 28 of the Rome Statute, civilian and military commanders of organized groups bear responsibility for crimes committed by their subordinates, and have a duty to prevent and punish such crimes, including by means of internal disciplinary or court martial procedures.⁸⁸ However, it is less clear that such forms of punishment would equate to the exercise of criminal jurisdiction by 'a State', or that such organised armed groups would have standing for the purpose of articles 17 and 19(2)(a).

The situation might be different in case of the application of article 20(3), where the accused person would have gone through a proper trial for the same conduct shaping the case of the ICC Prosecutor. In a scenario as such, it may be argued that the element of lack of State involvement in the trial proceeding might not be the decisive factor. Rather the decisive factor might rest on the fact that the person should not be tried twice for the same conduct even if his trial was not conducted by a State-like entity.

The requirement in the first sentence of article 17(1)(a) that 'the case is being investigated or prosecuted' opened the door in the early years of the Court's operation for experts to envisage the most practical interpretation of this provision to cover scenarios where a State does not act or decides voluntarily to relinquish the exercise of jurisdiction in favour of the Court due to good cause without necessarily being labelled as an 'unwilling' or 'unable' state.

Before Prosecutor Luis Moreno Ocampo took office, in July 2003, the Office of the Prosecutor commissioned an expert study on what it termed 'complementarity in practice'. Several prominent authorities on international criminal law, both academics and practitioners, participated in preparing a report.⁸⁹ Using terms like 'partnership', 'dialogue with States' and 'burden-sharing', they argued for the desirability of a benign and constructive relationship between national justice systems and the ICC. The expert report emphasised forms of cooperation and assistance. Amongst other things, it contemplated what was labelled as 'uncontested admissibility'. The document set out a rather novel construction of the scope of the duty of States to bring perpetrators to justice: 25

'Article 17 specifies the consequences for admissibility where a state is investigating or prosecuting, but does not expressly oblige states to act. However, paragraph 6 of the preamble refers to the "duty" of States to exercise criminal jurisdiction. While the preamble does not as such create legal

⁸⁶ This encompasses the category which fall under the 'all States' formula such as Palestine, Summary of Practice of the Secretary-General As Depositary of Multilateral Treaties, UN Doc ST/LEG/7/Rev.1, paras 81–2; see also in relation to Palestine, El Zeidy, M. M., 'Ad hoc Declarations of Acceptance of Jurisdiction: The Palestinian Situation under Scrutiny', in Stahn C. (ed.), *The Law and Practice of the International Criminal Court* (OUP 2015), 199.

⁸⁷ See for example, Rome Statute, articles 17(1)(a)–(c), 18(1), (2), 19(2)(b).

⁸⁸ Rome Statute, article 28. For a discussion, see Kleffner, J., *Complementarity in the Rome Statute and National Criminal Jurisdiction* (OUP 2008), 109–110.

⁸⁹ Informal Expert paper: 'The Principle of Complementarity in Practice' (2003) (on file with the author), ICC-01/04-01/07-1008-AnxA.

obligations, the provisions of the Statute may be interpreted in the light of the preamble. The duty to “exercise criminal jurisdiction” should be read in a manner consistent with the customary obligation *aut dedere aut judicare*, and is therefore satisfied by extradition and surrender, since those are criminal proceedings that result in prosecution. However, as noted above, the reference to a duty also reflects the spirit of the Statute that States are intended to carry the main burden of investigating and prosecuting. This is necessary for the effective operation of the ICC. In the types of situations described here, to decline to exercise jurisdiction in favour of prosecution before the ICC is a step taken to enhance the delivery of effective justice, and is thus consistent with both the letter and the spirit of the Rome Statute and other international obligations with respect to core crimes. This is distinguishable from a failure to prosecute out of apathy or a desire to protect perpetrators, which may properly be criticized as inconsistent with the fight against impunity.⁹⁰

In effect, the experts developed a theory by which a State respected its obligation to prosecute by failing to prosecute. A State would be judged on its compliance with the duty to prosecute by an analysis of its motives rather than its actions.

The Prosecutor himself began to endorse this philosophy, by which the Court’s operations might result from cooperation rather than antipathy:

‘[T]here may be cases where inaction by States is the appropriate course of action. For example, the Court and a territorial State incapacitated by mass crimes may agree that a consensual division of labour is the most logical and effective approach. Groups bitterly divided by conflict may oppose prosecutions at each others’ hands and yet agree to a prosecution by a Court perceived as neutral and impartial.’⁹¹

This philosophy of prosecutorial initiative was intimately linked to the concept of ‘self-referral’, by which States triggered the jurisdiction of the Court with respect to crimes committed on their own territory. Although a self-referral would lead to a scenario of inaction or inactivity, these are two distinct concepts. The former is a question of jurisdiction while the latter is one related to admissibility.⁹²

- 26 The concept of ‘uncontested admissibility’ was further developed by an expert consultation held under the auspices of the Office of the Prosecutor in late 2003. It concluded that ‘[t]here may also be situations where the Office of the Prosecutor (OTP) and the State concerned agree that a consensual division of labour is in the best interests of justice; for example, where a conflict-torn State is unable to carry out effective proceedings against persons most responsible’.⁹³ Moreover, ‘[t]here may even be situations where the admissibility issue is further simplified, because the State in question is prepared to expressly acknowledge that it is not carrying out an investigation or prosecution’.⁹⁴

Two scenarios were envisaged. In the first, the experts considered the case of a suspect who had fled to a third state: ‘All interested parties may agree that the ICC has developed superior evidence, witnesses and expertise relating to that situation, making the ICC the more effective forum. Where the third State has not investigated, there is simply no obstacle to admissibility under Article 17, and no need to label the State as “unwilling” or “unable” before it can co-operate with the Court by surrendering the suspect.’ Under the second scenario, a State ‘incapacitated by mass crimes’ or alternatively ‘groups bitterly divided by conflict’ who feared prosecution at each other’s hands would ‘agree to leadership prosecution by a Court seen as

⁹⁰ *Ibid.*, p. 19, fn. 24.

⁹¹ ‘Paper on Some Policy Issues before the Office of the Prosecutor’ (2003) 5, <http://www.icc-cpi.int/nr/rdonlyres/1fa7c4c6-de5f-42b7-8b25-60aa962ed8b6/143594/030905_policy_paper.pdf> accessed 7 March 2015.

⁹² For a discussion on self-referrals, their validity and consequences, see Kres (2004) 2 *JICJ* 944; Gaeta (2004) 2 *JICJ* 949; El Zeidy (2005) 5 *ICLRev* 83; *id.*, *The Principle of Complementarity in International Criminal Law: Origin, Development and Practice* (Martinus Nijhoff 2008) 211–222, 274–283; Müller and Stegmüller (2010) 8 *JICJ* 1267; Chaitidou, E., ‘Article 14’, this volume.

⁹³ Informal Expert paper: ‘The Principle of Complementarity in Practice’ (2003) 3, ICC-01/04-01/07-1008-AnxA.

⁹⁴ *Ibid.* 18. Also 20. This was actually the case with the first referrals before the ICC in the situations of Uganda, Democratic Republic of the Congo, and Central African Republic. The practice continued in relation to subsequent referrals such as the situations in Mali and Central African Republic II. For a detailed discussion, see Chaitidou, E., ‘Article 14’, this volume.

neutral and impartial. In such cases, declining to exercise primary jurisdiction in order to facilitate international jurisdiction is not a sign of apathy or lack of commitment.⁹⁵

This philosophical approach to complementarity underpins five situations currently before the Court: those in Uganda, the Democratic Republic of Congo (DRC), Central African Republic I and II (CAR), and Mali. So far this philosophy has been accepted without much question by the Pre-Trial Chambers. For instance, in authorising the issuance of warrants of arrest concerning the Uganda situation, Pre-Trial Chamber II assigned to the situation and the cases related thereto, invoked a letter of 28 May 2004 from the Government of Uganda stating it had been 'unable to arrest [...] persons who may bear the greatest responsibility' for the relevant crimes; that 'the ICC is the most appropriate and effective forum for the investigation and prosecution of those bearing the greatest responsibility' for those crimes; and that the Government of Uganda 'has not conducted and does not intend to conduct national proceedings in relation to the persons most responsible'.⁹⁶ Similarly, in the case against Jean-Pierre Bemba emanating from the CAR situation, Pre-Trial Chamber III acknowledged that 'the CAR judicial authorities abandoned any attempt to prosecute Mr. Jean-Pierre Bemba for the crimes referred to in the Prosecutor's Application' and still it proceeded with the issuance of a warrant of arrest against him.⁹⁷

1. Inactivity

Pursuant to the 'uncontested admissibility' theory developed by the Office of the Prosecutor, the complementarity test is satisfied by inactivity, rather than by an overt manifestation of a State's unwillingness or inability to proceed. Although the concept of inactivity has been endorsed by the Pre-Trial Chambers in their jurisprudence, the exact scope of article 17(1)(a)-(b) remained controversial and unsettled for several years from the beginning of the Court's operation. This uncertainty resulted from some conflicting academic writings on the subject, coupled with an admissibility decision issued by Trial Chamber II in June 2009⁹⁸. Also, the absence of any judicial pronouncement at the time on the part of the Appeals Chamber regarding the actual scope of this provision and how it was intended to operate in practice contributed to such uncertainty.

In *Lubanga*, Pre-Trial Chamber I stated: 'The first part of the test relates to national investigations, prosecutions and trials concerning the case at hand insofar as such case would be admissible only if those States with jurisdiction over it have *remained inactive in relation to that case* or are unwilling or unable, within the meaning of article 17(1)(a) to (c), 2 and 3 of the Statute' (emphasis added).⁹⁹ According to the Pre-Trial Chamber this interpretation rests on '*a contrario* [reading] of article 17, paras. 1(a) to (c) of the Statute'.¹⁰⁰ Having examined the available information, the Pre-Trial Chamber concluded that 'no State with jurisdiction over the case [...] against Mr [...] Lubanga is acting, or has acted in relation to [such case]. Accordingly, in the absence of any acting State, the Chamber need not make any analysis of unwillingness or inability'.¹⁰¹ Similarly, in *Abu Garada*, the same

⁹⁵ *Ibid.* 19.

⁹⁶ *Situation in Uganda*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony Issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 September 2005 <<https://www.legal-tools.org/doc/b1010a/>> accessed 5 March 2015, para. 37.

⁹⁷ *Prosecutor v. Jean Pierre Bemba Gombo*, ICC-01/05-01/08-14-tENG, Decision on the Prosecutor's Application for a Warrant of Arrest against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 10 June 2008 <<https://www.legal-tools.org/doc/fb80c6/>> accessed 5 March 2015, para. 21.

⁹⁸ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 June 2009 <<https://www.legal-tools.org/doc/e4ca69/>> accessed 5 March 2015.

⁹⁹ *Situation in the Democratic Republic of the Congo*, ICC-01/04-520-Anx2, Decision on the Prosecutor's Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 5 March 2015, para. 29.

¹⁰⁰ *Ibid.*, fn. 19.

¹⁰¹ *Ibid.*, para. 40.

Chamber, albeit with a different composition, also noted that according to the information provided by the Prosecutor,

‘no State with jurisdiction over the case against Mr Abu Garda is acting, or has acted, in the manner described in article 17 of the Statute in relation to the facts alleged in this case. Accordingly, in the absence of any State action, it is not necessary to address any issues relating to the unwillingness or inability of any given State to investigate or prosecute the case.’¹⁰²

- 28 By contrast, in its decision of 16 June 2009, Trial Chamber II put forward a different interpretation of article 17(1) to the effect that a case shall be determined admissible only if the relevant state was deemed unwilling to carry out the proceedings. According to the Trial Chamber, there are two types of unwillingness envisaged by article 17, one explicit and the other implicit. As to the latter, the Chamber said:

‘[A] State may not want to protect an individual, but, for a variety of reasons, may not wish to exercise its jurisdiction over him or her. This second form of ‘unwillingness’, which is not expressly provided for in article 17 of the Statute, aims to see the person brought to justice, but not before national courts. The Chamber considers that a State which chooses not to investigate or prosecute a person before its own courts, but has nevertheless every intention of seeing that justice is done, must be considered as lacking the will referred to in article 17.’¹⁰³

This interpretation deviated from the prevailing view endorsed by the Pre-Trial Chambers, and together with few scholarly writings, caused some uncertainty about the correct construction of article 17. It was not until 25 September 2009 that this controversial question was settled. On that date, the Appeals Chamber rendered its first judgment on the subject-matter in relation to an appeal lodged against the 16 June 2009 Decision and stated:

‘Such an interpretation is not only irreconcilable with the wording of the provision, but is also in conflict with a purposive interpretation of the Statute. The aim of the Rome Statute is ‘to put an end to impunity’ and to ensure that ‘the most serious crimes of concern to the international community as a whole must not go unpunished’. This object and purpose of the Statute would come to naught were the said interpretation of article 17 (1) of the Statute as proposed by the Appellant to prevail. It would result in a situation where, despite the inaction of a State, a case would be inadmissible before the Court, unless that State is unwilling or unable to open investigations. The Court would be unable to exercise its jurisdiction over a case as long as the State is theoretically willing and able to investigate and to prosecute the case, even though that State has no intention of doing so. Thus, a potentially large number of cases would not be prosecuted by domestic jurisdictions or by the International Criminal Court.’¹⁰⁴

- 29 Thus, article 17(1) as a whole requires the Court to initially check the existence or absence of one or more of the following four scenarios before making its determination on the inadmissibility of a given case: (1) the State having jurisdiction is investigating or prosecuting the case (article 17(1)(a)); (2) the State has investigated and concluded that there is no basis on which to prosecute (article 17(1)(b)); (3) the person has already been tried for the conduct which forms the subject of the complaint (article 17(1)(c)); and (4) the case is of insufficient gravity to proceed before the Court (article 17(1)(d)).

If for example, the answer to the first scenario is in the negative, the plain language of article 17(1) will render the case admissible before the Court. Accordingly, there is no need to examine a State’s ‘unwillingness’ or ‘inability’ under article 17(2) and (3) as argued in the

¹⁰² *Prosecutor v. Bahar Idriss Abu Garada*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 8 February 2010 <<https://www.legal-tools.org/doc/cb3614/>> accessed 5 March 2015, para. 29.

¹⁰³ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 June 2009 <<https://www.legal-tools.org/doc/e4ca69/>> accessed 3 March 2015, para. 77.

¹⁰⁴ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07-1497, Judgment on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009 <<https://www.legal-tools.org/doc/ba82b5/>> accessed 5 March 2015, para. 79.

16 June 2009 Decision and rejected by the Appeals Chamber in the 25 September 2009 Judgment. In the latter judgment, the Appeals Chamber proceeded on this point by saying:

‘[I]n considering whether a case is inadmissible under article 17(1)(a) and (b)[...], the initial questions to ask are (1) whether there are ongoing investigations or prosecutions, or (2) whether there have been investigations in the past, and the State having jurisdiction has decided not to prosecute the person concerned. It is only when the answers to these questions are in the affirmative that one has to look to the second halves of sub-paragraphs (a) and (b) and to examine the question of unwillingness and inability. To do otherwise would be to put the cart before the horse. It follows that in case of inaction, the question of unwillingness or inability does not arise; inaction on the part of a State having jurisdiction (that is, the fact that a State is not investigating or prosecuting, or has not done so) renders a case admissible before the Court, subject to article 17(1)(d)[...].’¹⁰⁵

The Appeals Chamber also made a similar pronouncement in a more recent judgment rendered on 30 August 2011, where it stated that ‘it should be underlined, however, that determining the existence of an investigation must be distinguished from assessing whether the State is ‘unwilling or unable genuinely to carry out the investigation or prosecution’, which is the second question to consider when determining the admissibility of a case’.¹⁰⁶

It follows that the ‘unwillingness’ or ‘inability’ tests will only come into play if there is an affirmative finding on the part of the Court that national proceedings are underway (i. e., in a scenario of action where there are at least on-going investigations on the part of the State). In this case, the Court needs to test the quality of such proceedings. 30

2. ‘same case’

An affirmative finding on the part of the Court that national proceedings are taking place renders a case inadmissible *only* in so far as the investigation, prosecution or trial is proven by evidence and targets the same ‘case’ which is the subject of the Court’s consideration. Therefore, not every investigation, prosecution or trial conducted at the national level will satisfy the first three scenarios for the purpose of securing a decision of inadmissibility in favour of the State concerned. There may still be scenarios whereby a State has indeed initiated an investigation but still the Court considers that that State remains inactive. This is due to the fact that the relevant State failed to prove by way of providing the necessary evidence that the ongoing investigations target the same case.¹⁰⁷ 31

Depending on the particular stage of the proceedings, the scope and the level of assessment of a case before the Court varies. At the early stages of the proceedings, namely in the course of investigating an entire *situation* referred to the Court by either a State Party¹⁰⁸ or the Security Council acting under Chapter VII of the UN Charter,¹⁰⁹ or the Prosecutor acting *proprio motu*,¹¹⁰ the admissibility assessment will be against the backdrop of a potential case. 32

¹⁰⁵ *Ibid.*, para. 78; see also Robinson, ‘The inaction controversy: Neglected words and new opportunities’, in: C. Stahn, and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, i (CUP 2011) 462 *et seq.*

¹⁰⁶ *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya against the Decision of Pre-Trial Chamber II of 30 May 2011 Entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 August 2011 <<https://www.legal-tools.org/doc/ac5d46/>> accessed 5 March 2015, para. 41.

¹⁰⁷ *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte D’Ivoire’s Challenge to the Admissibility of the Case against Simone Gbagbo, Pre-Trial Chamber I, 11 December 2014 <<https://www.legal-tools.org/doc/ef697a/>> accessed 5 March 2015, paras 34 and 40; *Situation in the Democratic Republic of the Congo*, No. ICC-01/04-520-Anx2, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 5 March 2015, para. 37; *Prosecutor v. Ahman Harun & Ali Kushayb*, ICC-02/05-01/07-1-Corr, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 April 2007 <<https://www.legal-tools.org/doc/e2469d/>> accessed 5 March 2015, paras 21, 24.

¹⁰⁸ Rome Statute, articles 13(a) and 14(1).

¹⁰⁹ *Ibid.*, article 13(b).

¹¹⁰ *Ibid.*, articles 13(c) and 15.

This notion was introduced for the first time by Pre-Trial Chamber II in its decision of 31 March 2010 authorizing the Prosecutor to initiate an investigation in relation to the situation in the Republic of Kenya.¹¹¹ The rationale underlying the assessment of admissibility against the backdrop of a potential case is that at the early stages of the investigation into a situation, it is unlikely that suspects will have been identified or the precise conduct or its legal characterization will be that clear. This does not mean that at the early stages of an investigation, a certain level of precision is not required. To the contrary, it is required that the contours or defining parameters of the potential case are known 'such that the Court is able to compare [what is being investigated by the State] against what is being investigated by the [ICC] Prosecutor'.¹¹²

The idea of a potential case was further clarified in the 31 March 2010 Decision by the same Pre-Trial Chamber II when it stated:

'[T]he reference to a "case" in article 53(l)(b) of the Statute [same as reflected in article 17] does not mean that the text is mistaken but rather that the Chamber is called upon to construe the term "case" in the context in which it is applied. The Chamber considers, therefore, that since it is not possible to have a concrete case involving an identified suspect for the purpose of prosecution, prior to the commencement of an investigation, the admissibility assessment at this stage actually refers to the admissibility of one or more potential cases within the context of a situation.'¹¹³

In the 30 August 2011 Judgment, the Appeals Chamber adopted the same line of reasoning when it said:

'The meaning of the words "case being investigated" in article 17(1)(a) of the Statute must therefore be understood in the context to which it is applied. For the purpose of proceedings relating to the initiation of an investigation into a situation (articles 15 and 53(1) of the Statute), the contours of the likely cases will often be relatively vague because the investigations of the Prosecutor are at their initial stages. The same is true for preliminary admissibility challenges under article 18 of the Statute. Often, no individual suspects will have been identified at this stage, nor will the exact conduct nor its legal classification be clear.'¹¹⁴

- 33 The admissibility assessment should be more precise and rigorous after the Prosecutor has conducted his/her investigation (in the context of articles 15 and 53(1) of the Statute) and is in a position to request the relevant Pre-Trial Chamber to issue a warrant of arrest or a summons to appear pursuant to article 58 of the Statute (and in the context of article 19 of the Statute as explained in the following section). At this stage, admissibility is assessed against a 'concrete case', where there is an actual identified suspect and an exact criminal conduct known to the Court. Therefore, the defining elements of a concrete case have been confirmed by the Appeals Chamber as the 'individual and the alleged conduct'.¹¹⁵

For the purpose of an admissibility determination of a concrete case, the Appeals Chamber noted that domestic investigations 'must cover the same individual and substantially the same conduct as alleged in the proceedings before the Court'.¹¹⁶ Although articles 20(3) together with article 90(1) of the Statute refer to the 'same person' and the 'same conduct',

¹¹¹ *Situation in the Republic of Kenya*, ICC-01/09-19, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 March 2010, <<https://www.legal-tools.org/doc/338a6f/>> accessed 5 March 2015, para. 48.

¹¹² *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya against the Decision of Pre-Trial Chamber I of 31 May 2013 Entitled 'Decision on the Admissibility of the Case against Saif Al-Islam Gaddafi', Appeals Chamber, 21 May 2014 <<https://www.legal-tools.org/doc/0499fd/>> accessed 5 March 2015, para. 84.

¹¹³ *Ibid.*, para. 48. Also for the criteria to be applied in the assessment of a potential case, see paras 49–50.

¹¹⁴ *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya against the Decision of Pre-Trial Chamber II of 30 May 2011 Entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 August 2011 <<https://www.legal-tools.org/doc/ac5d46/>> accessed 5 March 2015, para. 39.

¹¹⁵ *Ibid.*, para. 40.

¹¹⁶ *Ibid.*, para. 40.

which confirms that this is the correct test,¹¹⁷ the Appeals Chamber surprisingly deviated from the language of the Statute by adding the word ‘substantially’, without providing any explanation regarding the legal basis or the rationale for this addition.¹¹⁸ In clarifying the scope of ‘substantially the same conduct’, the Appeals Chamber stated in its 21 May 2014 Judgment on the appeal against the decision on the admissibility of the case against Saif Al-Islam Gaddafi that this test encompasses the conduct of the suspect and ‘that [conduct] described in the incidents under investigation which is imputed to the suspect’.¹¹⁹ In this case, it was Saif Al-Islam Gaddafi’s use of the Security Forces to commit the crimes through the direct perpetrators in the course of the various incidents described in the arrest warrant decision. The Appeals Chamber’s reference to imputation of conduct of the physical perpetrators to the suspect suggests on its face that the Appeals Chamber requires that the domestic authorities investigate and charge on the basis of the same mode of liability. Although it is easier to make an admissibility assessment by the Court if the domestic authorities relied on the same mode of participation, requiring the State to investigate on the basis of the exact mode of liability is far reaching. It should be sufficient that the relevant State charge on the basis of different modes of liability in so far as the investigation captures the core conduct of the suspect as framed by the ICC Prosecutor.¹²⁰ Arguably, the Appeals Chamber made the above pronouncement without further clarification in view of the particular facts of this case which involves a mode of liability of indirect co-perpetration without realizing that it might raise a question as such.

The Appeals Chamber’s wording also suggests that an admissibility determination before 34 the Court is incident-specific and that the question of sameness of cases depends on the degree of overlap between the incidents investigated by the Court and those carried out at the national level. Certainly, the more straight forward test should have been one which involves an examination of whether the State is investigating the same incidents as those before the Court. However, since the Appeals Chamber added the term substantially to the test, it became clear that the question of investigating all the incidents subject of the Prosecutor’s case is no more required. What is required as the Appeals Chamber noted, ‘is a judicial assessment of whether the case that the State is investigating sufficiently mirrors the one the Prosecutor is investigating’.¹²¹ This requires a considerable overlap between the incidents investigated by the national authorities and those which form the Prosecutor’s case. The

¹¹⁷ Rastan, in: Stahn and El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice* (2011) 421, 444.

¹¹⁸ Notably, the Appeals Chamber in its final findings in paragraph 47 stated that the ‘same person/same conduct test applied by the Pre-Trial Chamber was the correct test’. Thus, there is no mention of the term ‘substantial’ in this paragraph. See, *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya against the Decision of Pre-Trial Chamber II of 30 May 2011 Entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 August 2011 <<https://www.legal-tools.org/doc/ac5d46/>> accessed 5 March 2015, para. 47; see also in the context of interpreting article 4 of Protocol 7 to the *European Convention on Human Rights*, the European Court of Human Rights (ECtHR) has considered that a determination of the same offence which triggers the *ne bis in idem* prohibition could either arise from ‘identical facts or facts which were substantially the same’ (emphasis added), ECtHR, *Marguš v. Croatia*, Application no. 4455/10, Judgment of 27 May 2014, para. 114; *Sergey Zolotukhin v. Russia*, Application no. 14939/03, Judgment of 10 February 2009, para. 82. It is not clear whether the Appeals Chamber was guided by the language and less restrictive approach of the ECtHR or not, given that the jurisprudence of the Appeals Chamber lacks any reference to that effect.

¹¹⁹ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Appeals Chamber, Judgment on the Appeal of Libya against the Decision of Pre-Trial Chamber I of 31 May 2013 Entitled ‘Decision on the Admissibility of the Case against Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014 <<https://www.legal-tools.org/doc/0499fd/>> accessed 5 March 2015, paras 62 and 70.

¹²⁰ But see, Nouwen, *Complementarity in the Line of Fire: The Catalysing Effect of the International Criminal Court in Uganda and Sudan* (CUP 2013) 106 (arguing that the ‘Court has defined the term ‘case’ so narrowly that domestic proceedings are not considered to have taken place in the same ‘case’ unless they cover the same person, conduct, incidents and, possibly, mode of criminal responsibility as the case before the Court’).

¹²¹ *Ibid.*, para. 73.

present approach leaves the State with some discretion to pick and choose some of the incidents to be investigated, including those which suffer from weak evidence, and which could accordingly lead to an acquittal of the suspect(s).

- 35 Obviously the substantially same conduct test involves not only an objective assessment but also a subjective one because what may appear to sufficiently mirror the Prosecutor's case may vary from one Chamber to the other. The real problem lies in the difficulty to draw the demarcation line between what may and may not constitute substantially the same incidents. If, for instance, the Prosecutor's case focuses on ten incidents and the domestic authorities have investigated only six or seven of ten, would this number meet the test? Or should the test not necessarily rely on the number of incidents investigated, but rather on the significance of the suspect's conduct even in the context of a limited number of incidents? By deviating from the strict test envisaged by the Statute, and introducing an open-ended notion, the Appeals Chamber left the door open for several questions that apparently cannot be answered in the abstract but on the basis of the facts of future cases to be examined. Clearly the Appeals Chamber preferred a more flexible approach and a lower degree of scrutiny in the course of an admissibility determination. The *substantially* same conduct approach adopted by the Appeals Chamber, initially in the 30 August 2011 Judgment and later developed in the Libya case, led the Defence team in a different case to argue for a very broad interpretation of the same conduct test.¹²²

3. Burden of proof

- 36 With respect to the burden of proof and evidentiary aspects, Pre-Trial Chamber II clarified in the 30 May 2011 Decision, that the relevant State must submit concrete evidence revealing ongoing investigations at the national level.¹²³ This finding has been upheld by the Appeals Chamber in the 30 August 2011 Judgment. The Appeals Chamber expressly ruled that the relevant State challenging the admissibility of a case bears the burden of proof.¹²⁴ In order to discharge its burden, the State 'must support its statement [that it is investigating the relevant case] with tangible proof to demonstrate that it is actually carrying out relevant investigations [...] there must be evidence with probative value',¹²⁵ and of 'a sufficient degree of specificity'.¹²⁶ This may take the form of 'interviewing witnesses or suspects, collecting

¹²² *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-436-Red, Decision on the 'Requête relative à la recevabilité de l'affaire en vertu des Articles 19 et 17 du Statut', Pre-Trial Chamber I, 11 June 2013 <<https://www.legal-tools.org/doc/8b3a54/>> accessed 5 March 2015, para. 9 (where the Defence argued in favour of a broad interpretation of conduct thereby allowing a finding of inadmissibility even if the national proceedings covered different crimes (economic crimes) or factual allegations than those captured under the case before the Court). Notably, the Court left the door open and did not respond to the argument whether or not this is a possible interpretation. Instead, the Chamber found that there is a situation of inactivity in relation to Gbagbo 'since November 2011'. *Ibid.*, paras 27–28. But see the most recent judgment rendered by the Appeals Chamber where it confirmed an earlier finding of Pre-Trial Chamber I concerning economic crimes in its decision of 11 December 2014 regarding Simone Gbagbo. Referring to the relevant part of the Pre-Trial Chamber's decision which states that 'the conduct underlying the alleged economic crimes was "clearly of a different nature" from the conduct alleged in the proceedings before the Court', the Appeals Chamber found that 'it was not unreasonable for the Pre-Trial Chamber' to arrive at this conclusion. *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the appeal of Côte D'Ivoire against the decision of Pre-Trial Chamber I of 11 December 2014 entitled "Decision on Côte D'Ivoire's challenge to the admissibility of the case against Simone Gbagbo", Appeals Chamber, 27 May 2015, para. 99.

¹²³ *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-101, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011 <<https://www.legal-tools.org/doc/dbb0ed/>>, paras 60 and 64–65.

¹²⁴ *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya against the Decision of Pre-Trial Chamber II of 30 May 2011 Entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 August 2011 <<https://www.legal-tools.org/doc/ac5d46/>> accessed 5 March 2015, paras 61, 83.

¹²⁵ *Ibid.*, para. 61.

¹²⁶ *Ibid.*, paras 61–62.

documentary evidence, or carrying out forensic analysis'.¹²⁷ More recently, Pre-Trial Chamber I clarified that the required evidence for the purposes of article 17 is not confined to 'evidence on the merits of the national case that may have been collected as part of the purported investigation to prove the alleged crimes'.¹²⁸ Rather the required evidence may extend to 'all material capable of proving that an investigation or prosecution is ongoing'.¹²⁹ This includes 'directions, order and decisions issued by authorities in charge [...] as well as internal reports, updates, notifications or submissions contained in the file [related to the domestic proceedings]'.¹³⁰

It follows that Chambers of the Court have imposed a quite demanding admissibility assessment. Not every investigation will satisfy the first limb of the complementarity test, let alone future promises of investigative activities or judicial reform as it was with the Kenya cases four years ago.¹³¹ Finally, although the burden of proof mainly rests on the State, sometimes the burden of proof might be shared with other parties apart from the challenging State. This may be the case, if for instances, the Defence puts forward certain factual allegations in the course of the admissibility proceedings. In this case, it will be for the Defence to sufficiently substantiate these factual allegations.¹³²

4. 'unwilling or unable'

As mentioned earlier, the 'unwilling or 'unable' tests come into play if it has been proven that the same case is at least being investigated by the relevant State with jurisdiction over that case. Only then these criteria become relevant in order to consider the quality or seriousness of the purported investigations. In this regard, it is worth noting that the current practice of the Court in relation to the assessment of admissibility based on the notion of inaction or inactivity makes the demarcation line between this criterion and unwillingness or inability not easy to discern. The level of detail imposed on States for meeting their burden of proof that they are carrying out the required national investigations led to an overlap between the criterion of inaction and that of unwillingness or inability set out in the second half of the provision. This is so because in order to determine whether or not there are indeed investigations on the ground, Chambers have also been testing, *inter alia*, the quality

¹²⁷ *Ibid.*, paras 1 and 40.

¹²⁸ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-239, Decision Requesting Further Submissions on Issues Related to the Admissibility of the case against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 7 December 2012 <<https://www.legal-tools.org/doc/f8a7cf/>> accessed 5 March 2015, paras. 10–11; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte D'Ivoire's Challenge to the Admissibility of the Case against Simone Gbagbo, Pre-Trial Chamber I, 11 December 2014 <<https://www.legal-tools.org/doc/ef697a/>> accessed 5 March 2015, para. 29.

¹²⁹ *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte D'Ivoire's Challenge to the Admissibility of the Case against Simone Gbagbo, Pre-Trial Chamber I, 11 December 2014 <<https://www.legal-tools.org/doc/ef697a/>> accessed 5 March 2015, para. 29.

¹³⁰ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-239, Decision Requesting Further Submissions on Issues Related to the Admissibility of the case against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 7 December 2012 <<https://www.legal-tools.org/doc/f8a7cf/>> accessed 5 March 2015, paras 10–11; *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte D'Ivoire's Challenge to the Admissibility of the Case against Simone Gbagbo, Pre-Trial Chamber I, 11 December 2014 <<https://www.legal-tools.org/doc/ef697a/>> accessed 5 March 2015, para. 29.

¹³¹ *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-101, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011 <<https://www.legal-tools.org/doc/dbb0ed/>>, para. 64; *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya against the Decision of Pre-Trial Chamber II of 30 May 2011 Entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 August 2011 <<https://www.legal-tools.org/doc/ac5d46/>> accessed 5 March 2015, para. 41.

¹³² *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi against the Decision of Pre-Trial Chamber I of 11 October 2013 Entitled 'Decision on the Admissibility of the Case against Abdullah Al-Senussi', Appeals Chamber, 24 July 2014 <<https://www.legal-tools.org/doc/ef20c7/>> accessed 5 March 2015, para. 167.

of the domestic investigations. The level of detail now required for this in the evidence presented was initially meant for testing the State's unwillingness and inability. Such an overlap has been acknowledged in two of the recent decisions issued by Pre-Trial Chamber I.

In *Al-Senussi*, Pre-Trial Chamber I recognized that:

'[T]he two limbs of the admissibility test [i.e., inactivity and unwillingness or inability], while distinct, are nonetheless, intimately and inextricably linked. Therefore, evidence put forward to substantiate the assertion of ongoing proceedings covering the same case [...] before the Court may also be relevant to demonstrate their genuineness. Indeed, evidence related, *inter alia*, to the appropriateness of the investigative measures, the amount and type of resources allocated to the investigation, as well as the scope of the investigative powers of the persons in charge of the investigation are relevant for both limbs since such aspects, which are significant to the question of whether there is no situation of "inactivity" at the national level, are also relevant indicators of the State's willingness and ability genuinely to carry out the concerned proceedings.'¹³³

Similarly, in *Simone Gbagbo*, the Chamber argued in similar terms that '[c]onsiderations with respect to the quantity and quality of the alleged investigative steps may [...] be relevant to the determination of whether an "investigation" is indeed being conducted, like they may be to the assessment of genuineness of the concerned investigation in order to establish [...] whether the State is "unwilling" or "unable" to carry it out'.¹³⁴

39 Nevertheless, despite this apparent overlap, there might be situations in which testing the quality or seriousness of an ongoing investigation will require additional analysis and details. This would be the case if, for example, subsequent to a finding of inadmissibility, the domestic process is experiencing a deliberate prolongation. This would reveal a lack of will to bring the person to justice. Such information will not be available if an admissibility determination is conducted at relatively early stages of the domestic investigations. It will become clear that there was a deliberate delay in the proceedings only after a certain lapse of time from the start of the investigation. Such a scenario fits better the criterion of unwillingness rather than inactivity. This may be identified by way of conducting a *proprio motu* assessment by the relevant Chamber in accordance with article 19(1) or based on new facts presented by the Prosecutor under article 19(10). At this stage, it becomes clear that despite the existence of an investigation, the State is unwilling genuinely to carry out the proceedings.

40 Hitherto, the notion of 'unwilling' has received little attention in the jurisprudence of the Court. This is in part due to the fact that the Prosecutor as well as the Chambers of the Court have heavily relied on the criterion of 'inaction' or 'inactivity', which made it unnecessary to delve into this criterion. By contrast, recent jurisprudence has tackled some of the elements of inability, especially in the cases emanating from the situation in Libya as it will be discussed in more detail below. Although an assessment of inability, same as in the case of unwillingness, requires first to prove the existence of ongoing investigations, one of the Pre-Trial Chambers surprisingly disregarded this two tier test and examined inability despite its initial finding that there was a situation of inactivity on the part of the State.¹³⁵ By so doing, the Chamber mixed the two limbs of the admissibility test.

5. 'genuinely'

41 Paragraph (1) of Article 17 conditions the words 'unwilling or unable' with the adjective 'genuinely'. In *Lubanga*, Pre-Trial Chamber I alluded to this important dimension of the

¹³³ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, para. 210.

¹³⁴ *Prosecutor v. Simone Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte D'Ivoire's Challenge to the Admissibility of the Case against Simone Gbagbo, Pre-Trial Chamber I, 11 December 2014 <<https://www.legal-tools.org/doc/ef697a/>> accessed 5 March 2015, para. 30.

¹³⁵ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-344-Red, Decision on the Admissibility of the Case against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 31 May 2013 <<https://www.legal-tools.org/doc/339ee2/>> accessed 5 March 2015, paras 134–135, 137–138.

complementarity determination.¹³⁶ The term ‘genuinely’ would seem to be an implied reference to the tests set out in paragraph (2) of Article 17. For example, Article 17(2) addresses a situation where some form of trial is underway, but it provides guidelines for assessing whether the trial is in fact ‘genuine’.

During the drafting of the Statute, the matter of inability, at least in principle, was not particularly controversial. However, unwillingness was a different story. The sensitive issue was that the ICC would be passing judgment on the performance of national systems. Many delegations took the position that subjective criteria should be deleted. However, as some subjectivity on the part of the Court was necessary, the term ‘genuinely’ was adopted as being ‘the least objectionable word’, rather than ‘effectively’ or ‘diligently’, for example.¹³⁷

Neither the Statute nor the Rules or the Regulations of the Court define the term ‘genuine’.⁴² Equally, in both *Gaddafi* and *Al-Senussi*, the most recent decisions on the subject, which have tackled the second limb of the admissibility test, no reference was made to the meaning of the word ‘genuine’. Instead, the Pre-Trial Chamber entered a purely factual and collective finding on the ability of Libya under article 17(3) without providing any legal interpretation to each and every *relevant* element of article 17(3) related to the circumstances of the case.¹³⁸

The plain meaning of the word ‘genuine’ is ‘authentic or real – something that has the quality of what it is purported to be or to have’.¹³⁹ The drafting history does not seem to provide clear guidance for the usage of the term.¹⁴⁰ One commentator argued that the concept carrying the most ‘resemblance to genuineness is perhaps the concept of good faith’.¹⁴¹ This interpretation finds support in two decisions of the European Court of Justice where it used the terms ‘good faith’ and ‘genuine’ interchangeably.¹⁴²⁴³

Reading the word ‘genuinely’ in its context (‘unless the State is unwilling or unable *genuinely* to carry out the investigation or prosecution’) suggests that the term genuinely applies to the last part of the sentence – namely, to qualify the phrase ‘to carry out the investigation or prosecution’. Based on this interpretation, the Court should be satisfied that the investigation or prosecution carried out by the State in question is ‘genuine’ or is conducted in good faith before deciding to defer to the national jurisdiction. To say otherwise means that any national proceedings, even if insufficient, will act as a stumbling block in the face of the ICC.¹⁴³ For an investigation to be deemed genuine it requires the State to use ‘all the legal means at its disposal’ in the conduct of a serious criminal process that identifies the suspects involved and leads to actual trial and appropriate punishment if necessary.¹⁴⁴

¹³⁶ *Situation in the Democratic Republic of the Congo*, Pre-Chamber I, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, ICC-01/04-520-Anx2, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 5 March 2015, para. 32.

¹³⁷ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 49.

¹³⁸ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-344-Red, Decision on the Admissibility of the Case against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 31 May 2013 <<https://www.legal-tools.org/doc/339ee2/>> accessed 5 March 2015, paras 215 and 218; also, para. 216 refers to the overall finding of unwillingness; *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, paras 294 *et seq.*, and 311.

¹³⁹ *Black’s Law Dictionary*, (West Group 7th edition 1999) 695.

¹⁴⁰ Holmes, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 674.

¹⁴¹ *Ibid.*

¹⁴² Case C-499/99 *Commission v. Kingdom of Spain* [2002] ECR I-6031, para. 24; Case C-105/02 *Commission v. Federal Republic of Germany* [2006], paras 93–94; Case C-275/04 *Commission v. Kingdom of Belgium* [2006], paras. 82–83.

¹⁴³ ICC, *Report on Preliminary Examination Activities 2013*, November 2013, para. 138 (noting that [t]he Office will evaluate whether specific national proceedings have been or are being carried out genuinely’); see also, Informal Expert Paper: *The Principle of Complementarity in Practice*, (2003), at 8, fn 8–9.

¹⁴⁴ *Paniagua Morales et al.* (‘Panel Blanca’), *Judgment of 8 March 1998*, IACtHR (Ser. C) No. 37 (1998), in particular paras 94, 139, 160, 169, 171 and 178; See also *Garrido and Baigorria v. Argentina*, Reparations (Art. 63(1) American Convention on Human Rights), *Judgment of 27 August 1998*, IACtHR (Ser. C) No. 39 (1998) para. 73.

Certainly this calls for an *objective*¹⁴⁵ scrutiny in testing the quality of national proceedings as a whole from the moment it starts until the phase it has reached by the time of the admissibility assessment.¹⁴⁶

6. Decision not to prosecute by State

44 According to sub-paragraph (b) of Article 17(1), a case is also inadmissible where the Court determines that it has in fact been investigated by a State that has jurisdiction over it and the State has decided not to prosecute the person concerned. Similar to the situation of article 17(1)(a), sub-paragraph (b) follows a division between two phases. The first phase revolves around the existence or absence of domestic proceedings, while the second phase comes into play to test how genuine the national decision is or was pursuant to article 17(2) and/or (3). **The test under the first half of sub-paragraph (b) is cumulative due to the existence of the conjunction ‘and’: ‘[t]he case has been investigated [...] and the State has decided not to prosecute’.** Thus, it must be first determined whether the State has carried out investigations which meet the requirements specified under sub-paragraph (a) and developed above. If the answer is in the affirmative there is a need to check whether the State has thereafter decided not to prosecute. If the State has taken such decision not to prosecute, there is also a need to check that the decision not to prosecute did not result from the State’s unwillingness or inability to carry out genuine proceedings.¹⁴⁷

45 The key element under sub-paragraph (b) lies in defining the scope of a decision not to prosecute. Not every decision taken by the State constitutes a decision not to prosecute. Arguably, only final decisions closing an investigation and preventing a prosecution against a suspect/accused before any court may constitute a decision not to prosecute. In *Katanga*, the Appeals Chamber was confronted with a similar question regarding the scope of a decision not to prosecute. Referring to a decision issued by the DRC’s *Auditeur Général* on 17 October 2007 to close domestic proceedings against Germain Katanga, the Appeals Chamber stated:

‘This decision was not a decision not to prosecute in terms of article 17 (1) (b) of the Statute. It was, rather, a decision to surrender the Appellant to the Court and to close domestic investigations against him as a result of that surrender. The thrust of this decision was not that the Appellant should not be prosecuted, but that he should be prosecuted, albeit before the International Criminal Court.’¹⁴⁸

The Appeals Chamber believed that this interpretation is in line with the purpose of the provision and the overall purpose of the Statute mirrored in its preamble namely, to put an end to impunity. It proceeded by stating the rationale underlying this interpretation:

¹⁴⁵ See by analogy the parallel standard applied by the International Court of Justice in the *Nuclear Tests Case (Australia v. France)*, 1974 ICJ, 20/12/1974, para. 57; *Nuclear Tests Case (New Zealand v. France)*, 1974 ICJ, 20/12/1974, paras 58 and 60; *Interpretation of Peace Treaties with Bulgaria, Hungary, and Romania (First Phase)*, *Advisory Opinion of 30/03/1950*, (1950) ICJ Reports, at 74.

¹⁴⁶ *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-1497, Judgement on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009 <<https://www.legal-tools.org/doc/ba82b5/>> accessed 5 March 2015, para. 56 (noting that the ‘admissibility of a case must be determined on the basis of facts as they exist at the time of the proceedings concerning the admissibility challenge’); also *Prosecutor v. William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang*, ICC-01/09-01/11-234, Decision on the ‘Filing of Updated Investigation Report by the Government of Kenya in the Appeal against the Pre-Trial Chamber’s Decision on Admissibility’, Appeals Chamber, 28 July 2011 <<https://www.legal-tools.org/doc/3d65de/>> accessed 5 March 2015, para. 10.

¹⁴⁷ See, *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-1497, Judgement on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009 <<https://www.legal-tools.org/doc/ba82b5/>> accessed 5 March 2015, para. 76 (noting that ‘in article 17 (1) (b), unwillingness and inability refer to the decision of a State, after investigation, not to prosecute the person concerned: “unless the decision resulted from the unwillingness or inability of the State genuinely to prosecute”’).

¹⁴⁸ *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-1497, Judgement on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009 <<https://www.legal-tools.org/doc/ba82b5/>> accessed 5 March 2015, para. 82.

‘If the decision of a State to close an investigation because of the suspect’s surrender to the Court were considered to be a “decision not to prosecute”, the peculiar, if not absurd, result would be that because of the surrender of a suspect to the Court, the case would become inadmissible. In such scenario, neither the State nor the ICC would exercise jurisdiction over the alleged crimes, defeating the purpose of the Rome Statute. Thus, a “decision not to prosecute” in terms of article 17 (1) (b) of the Statute does not cover decisions of a State to close judicial proceedings against a suspect because of his or her surrender to the ICC (footnotes omitted).’¹⁴⁹

A year later, the Appeals Chamber had to rule once more on a similar question concerning the scope of a decision not to prosecute in the context of the case against Jean-Pierre Bemba arising from the CAR situation. In responding to an argument put forward by the accused that the decision of the Public Prosecutor of Bangui Regional Court to dismiss the charges against him on 16 September 2004 was not determinative to terminate the proceedings, the Appeals Chamber stated:

‘[N]either the Court of Appeal of Bangui [Judgment of 16 December 2004] nor the Court of Cassation [Judgment of 11 April 2006] agreed that the prosecution against Mr Bemba should end; instead, both determined that charges which had been dismissed by the Senior Investigating Judge against Mr Bemba should be upheld, and simultaneously submitted the matter to the competent authority in order for the matter to be referred to the ICC. [...]’¹⁵⁰ In sum, there is nothing to indicate that the Trial Chamber erred in its determination that there was no decision not to prosecute within the meaning of article 17 (1) (b) of the Statute. In the view of the Appeals Chamber, the Trial Chamber correctly relied on the judgments of the Court of Appeal of Bangui and the Court of Cassation as indicating *prima facie* the current status of the judicial proceedings in the case of *État Centrafricain c. Ange-Félix Patassé, et al.* These appellate decisions were also not decisions not to prosecute within the meaning of article 17 (1) (b) of the Statute.’¹⁵¹

It follows from the above that decisions not to prosecute do not encompass those national 46
decisions to refer a situation to the ICC, be it a judicial decision and/or a political decision from the executive. Rather a decision not to prosecute for the purpose of rendering a case admissible before the Court must be one which aims at evading justice. Even then the decision should attain finality in order to satisfy sub-paragraph (b).

Also of the relevance to the discussion on decisions not to prosecute, is the debate at the 47
Rome Conference about the attitude that the Court should take to alternative methods of accountability. So far the Court has not taken up these questions in a judicial decision. At the Rome Conference, South Africa was the most insistent on this point, concerned that approaches like its Truth and Reconciliation Commission, which offered amnesty in return for truthful confession, would be treated by the Court as a decision not to prosecute, thereby opening the door to international prosecution. While there was widespread sympathy with the South African model, many delegations recalled the disgraceful amnesties accorded by South American dictators to themselves, the most poignant being that of former Chilean president Augusto Pinochet. But drafting a provision that would legitimise the South African experiment yet condemn the Chilean one proved elusive. It has been suggested that, at the very least, genuine but non-judicial efforts at accountability that fall short of criminal prosecution might have the practical effect of convincing the Prosecutor to set priorities elsewhere.¹⁵²

¹⁴⁹ *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-1497, Judgement on the Appeal of Mr. Germain Katanga against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 September 2009 <<https://www.legal-tools.org/doc/ba82b5/>> accessed 5 March 2015, para. 83.

¹⁵⁰ *Prosecutor v. Jean Pierre Bemba Gombo*, ICC-01/05-01/08-962-Corr, Judgment on the Appeal of Mr Jean-Pierre Bemba Gombo against the Decision of Trial Chamber III of 24 June 2010 Entitled ‘Decision on the Admissibility and Abuse of Process Challenges’, Appeals Chamber, 19 October 2010 <<https://www.legal-tools.org/doc/37e559/>> accessed 5 March 2015, para. 68; For the Trial Chamber decision, see *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, Trial Chamber III, 24 June 2010 <<https://www.legal-tools.org/doc/a5de24/>> accessed 6 March 2015.

¹⁵¹ *Ibid.*, para. 74.

¹⁵² For a comprehensive discussion of these issues, see: Stahn (2005) 3 *JICJ* 695.

In his early reports to the Security Council on Darfur, the Prosecutor of the International Criminal Court has acknowledged the significance of such alternative approaches to accountability, suggesting that these are relevant to the exercise of his discretion, but without, however, indicating that they may pose an obstacle to admissibility of a case.¹⁵³ Speaking of traditional reconciliation mechanisms in Darfur, he said: ‘These are not criminal proceedings as such for the purpose of assessing the admissibility of cases before the International Criminal Court, but they are an important part of the fabric of reconciliation for Darfur, as recognized in resolution 1593 (2005).’¹⁵⁴

- 48 Judges of the Court might consider that a sincere truth commission project amounts to a form of investigation that does not suggest ‘inactivity’, ‘unwillingness’ or ‘inability’ on the part of the State to genuinely administer justice, thereby meeting the terms of article 17(1)(a) and (b).¹⁵⁵ However, one of the legal problems of this approach lies in the fact that an investigation carried out by a non-judicial body such as a truth commission is not a criminal investigation *stricto sensu*, and as such, it would not necessarily lead to a prosecution. When sub-paragraph (a) refers to a ‘prosecution’, which is always a judicial activity, carried out by a purely judicial organ of the relevant State, one gets the sense that article 17(1) is concerned with ‘judicial proceedings’ as opposed to alternative mechanisms of justice. However, perhaps there is some room for accepting a ‘preliminary investigation’ carried out by a truth commission such as, the Israeli Kahan Commission of Inquiry established to investigate the 1982 Sabra and Shatila massacre, in so far as it is empowered to recommend a criminal prosecution,¹⁵⁶ and is acting on behalf of the State.
- 49 Should that not be enough, the Statute also declares inadmissible a case that is not ‘of sufficient gravity to justify further action by the Court’.¹⁵⁷ Moreover, the Prosecutor is invited to consider, in determining whether or not to investigate a case, whether ‘[t]aking into account the gravity of the crime and the interests of victims, there are nonetheless substantial reasons to believe that an investigation would not serve the interests of justice’.¹⁵⁸ Yet judicial attitudes are impossible to predict, and judges or prosecutors might well decide that it is precisely in cases like the South African one where a line must be drawn establishing that amnesty for such crimes is unacceptable.¹⁵⁹
- 50 The issue of amnesty initially proved to be a complication in the prosecutions relating to one of the earliest situations before the Court namely, the *Situation in Uganda*, which was referred to the ICC in December 2003 in accordance with article 14 of the Rome Statute. Arrest warrants for five leaders of the Lord’s Resistance Army were issued in mid-2005, and they appeared to have provoked the rebels to sue for peace. On a visit to the Court, the Ugandan Minister for Security, Amama Mbabazi, noted that the issuance of warrants had

¹⁵³ UN Doc. S/PV.5321, at 3.

¹⁵⁴ UN Doc. S/PV.5459, at 3.

¹⁵⁵ On the different types of truth commissions and their mandates see Buergeth, in: Tomuschat *et al.* (eds.), *Volkerrecht als Wertordnung. Common Values in International Law* (N.P. Engel Verlag 2006) 103; Hayner, *Unspeakable Truths: Facing the Challenge of Truth Commissions* (Rutledge 2002). On the relationship between truth commissions and international courts see Schabas (2003) 25 *HumRtsQ* 1035. See also in the context of the ICC, Stahn (2005) 3 *JICJ* 695; Robinson (2003) 14 *EJIL* 481.

¹⁵⁶ Ambos, *The Colombian Peace Process and the Principle of Complementarity of the International Criminal Court: An Inductive, Situation-based Approach* (Springer 2010) 61–62, fn. 121. The Kahan Commission, officially known as ‘Commission of Inquiry into the Events at the Refugee Camps in Beirut’, was established by the Israeli government on 28 September 1982. However this might not be the case with respect to the Truth, Justice and Reconciliation Commission in Kenya which was agreed upon to establish an ‘accurate, complete and historical record of gross human rights violations committed between 12 December 1963 and 28 February 2008’. The Commission was suffering from credibility problems and thus even if it had the ability to ‘unearth evidence’ and recommend prosecutions, this would not have been sufficient to meet the requirements of article 17. See, Alai and Mue, in: Stahn and El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, ii (CUP 2011) 1222, 1123–1224, 1230.

¹⁵⁷ Rome Statute, article 17(1)(d).

¹⁵⁸ *Ibid.*, article 53(1)(c).

¹⁵⁹ Nsereko (1999) 10 *CLF* 87, 119–20; Scharf (1999) 32 *CornILJ* 507; Dugard, in: Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 693.

contributed to driving the Lord's Resistance Army leaders to the negotiating table. In September 2006, Jan Egelund, the United Nations Under-Secretary-General for Humanitarian Affairs and Emergency Relief made similar observations in a briefing to the Security Council.¹⁶⁰ Speaking to the Assembly of States Parties in November 2006, Prosecutor Moreno Ocampo said:

'The Court's intervention has galvanized the activities of the states concerned. [...] Thanks to the unity of purpose of these states, the LRA has been forced to flee its safe haven in southern Sudan and has moved its headquarters to the DRC border. As a consequence, crimes allegedly committed by the LRA in Northern Uganda have drastically decreased. People are leaving the camps for displaced persons and the night commuter shelters which protected tens of thousands of children are now in the process of closing. The loss of their safe haven led the LRA commanders to engage in negotiations, resulting in a cessation of hostilities agreement in August 2006.'¹⁶¹

But to the extent that the charges against the Lord's Resistance Army might have helped to provoke peace negotiations, they also soon proved to be a potential obstacle to their successful completion.¹⁶² Jan Egelund reported to the Security Council that in meetings with internally displaced persons, civil society and the parties themselves, the 'International Criminal Court indictments were the number one subject of discussion [...] All expressed a strong concern that if the indictments were not lifted, they could threaten the progress in these most promising talks ever for northern Uganda'.¹⁶³ The rebel leaders quite predictably have insisted that the arrest warrants be withdrawn as a condition for the peace settlement. President Yoveri Museveni of Uganda, who had triggered the prosecutions two years earlier when he referred the situation in northern Uganda to the Court, asked the Prosecutor to withdraw the warrants. He promised those who had been charged that they would have immunity from arrest in Uganda.¹⁶⁴ Richard Goldstone, who was the first operational prosecutor of the ICTY, remarked:

'It would be fatally damaging to the credibility of the international court if Museveni was allowed to get away with granting amnesty. I just don't accept that Museveni has the right to use the International Criminal Court like this.'¹⁶⁵

Opinions have been sharply divided on how to react to the demands from the Lord's Resistance Army, and from President Museveni.¹⁶⁶ Some take the extreme view that under no conditions can there be any compromise with prosecution, whatever the consequences in terms of prolonging the conflict. Others see it more strategically, noting the positive contribution to the peace process of the arrest warrants. They argue that the warrants should be maintained, at least as long as they continue to have this effect, although without lifting this to the level of absolute principle. Actually maintaining these warrants for so many years has proved to be merited. After ten years from their issuance, the ICC has managed to obtain custody of Dominick Ongwen, a member of the Lord's Resistance Army whose arrest has been sought by the Court. Ongwen surrendered to the ICC¹⁶⁷ with the cooperation of a number of States including his home country Uganda, making it even more compelling to wait further for an arrest of the remaining suspects or their voluntary appearance.

¹⁶⁰ UN Doc. S/PV.5525, at 4.

¹⁶¹ *Opening Remarks*, Luis Moreno Ocampo, Fifth Session of the Assembly of States Parties, 23 November 2006.

¹⁶² This is discussed by Apuuli (2005) 15 *CLF* 408; Apuuli (2006) 4 *JICJ* 179; Ssenyonjo (2005) 10 *JConflict&SecurityL* 405.

¹⁶³ UN Doc. S/PV.5525, 4.

¹⁶⁴ McGreal, (9 January 2007) *The Guardian*.

¹⁶⁵ *Ibid.*

¹⁶⁶ See generally, Nouwen in: Stahn and El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice* (2011) 1120, 1130–1131, 1138; Wierda and Otim, in: Stahn and El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice* (2011) 1155.

¹⁶⁷ *Prosecutor v. Joseph Kony et al.*, ICC-02/04-01/05-424, Decision Severing the Case against Dominic Ongwen, Pre-Trial Chamber II, 6 February 2015 <<https://www.legal-tools.org/doc/16fb19/>> accessed 6 March 2015, 3; also, Transcript of Hearing, 26 January 2015, No. ICC-02/04-01/05-T-10-ENG, <<http://www.icc-cpi.int/iccdocs/doc/doc1908336.pdf#search=ICC-02%2F04-01%2F05-T-10-ENG>> accessed 7 March 2015.

- 52 There is some authority for the view that so-called ‘blanket amnesties’ are prohibited by customary international law,¹⁶⁸ and there is a growing tendency to that effect.¹⁶⁹ However, this argument is not without its flaws. For example, States seem prepared to respect the amnesty for the crime against humanity of apartheid that has provided the underpinning for the democratic transition in South Africa. Although theoretically many States are in a position to prosecute former South African officials, on the basis of universal jurisdiction, there is simply no political willingness to upset the political compromises made by former President Nelson Mandela and others. To put it differently, some ‘blanket amnesties’ seem to have been endorsed by the international community, and this suggests that the claims of a prohibitive customary norm are overstated¹⁷⁰.

One way of addressing the question of amnesty in conflicts such as that of Uganda or any other conflict of a similar nature might be for the Security Council to invoke article 16 of the Rome Statute and order a deferral of the prosecutions,¹⁷¹ in the interests of promoting international peace and security. When the matter was discussed in September 2006, at a symposium organised by the Office of the Prosecutor, Gareth Evans, who headed the International Crisis Group, remarked:

‘I have no doubt that dealing with impunity and pursuing peace can work in tandem even in an ongoing conflict situation: these are not necessarily incompatible objectives. The prosecutor’s job is to prosecute and he should get on with it with bulldog intensity. If a policy decision needs to be made, in a particular case, to give primacy to peace, it should be made not by those with the justice mandate, but with the political and conflict resolution mandate, and that is the Security Council. The Statute allows for this in Article 16, and this is the way the international community should be thinking about it.’¹⁷²

Deference to the Security Council, acting under article 16, may be the way to resolve the difficulty, assuming the wisdom of staying international justice in the interests of peace-making.

7. Double jeopardy

- 53 The third ground is one accepted by the majority of States in their domestic practice. A case shall be inadmissible where the person in question has already been tried for the criminal conduct that is the subject of the complaint. In this regard, there is a clear interplay between article 17(1)(c) and article 20(3). The reference to the term ‘conduct’ under sub-paragraph 1(c) is reiterated in article 20(3): ‘conduct also proscribed under article 6, 7, 8 or 8 bis’. In such a case a trial before the ICC for the ‘same conduct’ proscribed under articles 6, 7, 8 and 8 *bis* would be impermissible because of the *ne bis in idem* rule contained in article 20 para. 3.¹⁷³ Defining the term conduct for the purposes of articles 17(1)(c) and 20(3) should be reconciled with the interpretation, given to conduct for the purposes of sub-paragraph (a). Accordingly, a trial of the accused by a national court for substantially the same conduct should also suffice to block a second trial before the ICC.

¹⁶⁸ *Prosecutor v. Kallon*, SCSL-04-15-AR72(E) and *Prosecutor v. Kamara*, SCSL-04-16-AR72(E), Decision on Challenge to Jurisdiction: Lomé Accord Amnesty, Appeals Chamber, 13 March 2004. See also, *Prosecutor v. Kondewa*, SCSL-2004-14-AR72(E), Separate Opinion of Justice Robertson, 25 May 2004.

¹⁶⁹ See more recently, *inter alia*, *Gelman v. Uruguay*, Judgment of February 24, 2011 (Merits and Reparations), IACtHR, paras. 195–197, 215–227; *Case of Gomes Lund et al. (Guerrilha do Araguaia) v. Brazil. Preliminary Objections, Merits, Reparations and Costs*, Judgment of November 24, 2010. IACtHR, Series C No. 219, para. 171.

¹⁷⁰ For a twofold distinction between blanket and conditional amnesties Ambos, *Treatise ICL I*, 2013, pp. 422 *et seq.*

¹⁷¹ El Zeidy (2002) 35 *VandJTransnatL* 1503; Mokhtar (2002) 3 *ICLRev* 295; Stahn (2003) 14 *EJIL* 85.

¹⁷² ICC, *Newsletter*, No. 9, October 2006, 5.

¹⁷³ See the detailed discussion in Coracini, R. C., ‘Article 20’, this volume; also El Zeidy, *The Principle of Complementarity in International Criminal Law* (2008) 283–298; generally, Stahn, ‘Taking Complementarity Seriously’, in: C. Stahn, and M.M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, i (CUP 2011) 242.

8. Insufficient gravity

The final ground of inadmissibility is where the case is not of sufficient gravity to justify further action by the ICC. The idea of introducing gravity as a constituent element of the admissibility provision was first advanced by Professor James Crawford in the course of a meeting of the ILC's working group which took place in May 1994.¹⁷⁴ Professor Crawford proposed that the working group 'ought to consider whether an international criminal court should not have the power to stay a prosecution on specified grounds [such as] the fact that the acts alleged were not of sufficient gravity to warrant trial at the international level'.¹⁷⁵ This idea would prevent the proposed court from being 'swamped by peripheral complaints involving minor offenders',¹⁷⁶ he added. Also, the idea was logical since it would help the proposed court to manage the 'case-load [against] the resources available'¹⁷⁷ and respond to the concerns expressed by many States that the 'court might exercise jurisdiction in cases that were not of sufficient international significance', said other members.¹⁷⁸ Accepting gravity as an integral element of the admissibility provision gained support within the Preparatory Committee in 1996,¹⁷⁹ and during the Rome Conference. The draft provision appearing in the Bureau Discussion Paper at the Rome Conference was retained without any change¹⁸⁰ and finally appeared under article 17(1)(d) of the Statute.¹⁸¹

Article 17(1)(d) of the Rome Statute states that a case may be declared inadmissible when it 'is not of sufficient gravity to justify further action by the Court'.¹⁸² According to the structure of article 17(1), gravity is an essential component for the Court's admissibility determination. Thus, a State may have been inactive with respect to national proceedings, which prompts the ICC's intervention; yet the Court may still determine that the case is inadmissible because it 'is not of sufficient gravity to justify further action by the Court'. Although the core crimes falling within the jurisdiction of the Court are all serious, the reference to gravity aims at filtering the type of cases to be dealt with before the Court. This view was confirmed in one of the early decisions on the subject-matter in the *Lubanga* case, in which Pre-Trial Chamber I stated:

'[T]he gravity threshold is in addition to the drafters' careful selection of crimes included in articles 6 to 8 of the Statute [...]. Hence, the fact that a case addresses one of the most serious crimes for the international community as a whole is not sufficient for it to be admissible before the Court'.¹⁸³

As a result, 'the relevant conduct must present particular features which render it especially grave'.¹⁸⁴ It went on to explain the concept:

'The Chamber holds that the following two features must be considered. First, the conduct which is the subject of a case must be either systematic (pattern of incidents) or large-scale. If isolated instances of criminal activity were sufficient, there would be no need to establish an additional gravity threshold beyond the gravity-driven selection of the crimes (which are defined by both

¹⁷⁴ 'Summary Record of the 2330th Meeting' (1994) *YbILC*, i, 9.

¹⁷⁵ *Ibid.*

¹⁷⁶ *Ibid.*

¹⁷⁷ 'Summary Record of the 2333rd Meeting' (1994) *YbILC*, i, 33.

¹⁷⁸ 'Summary Record of the 2356th Meeting' (1994) *YbILC*, i, 193.

¹⁷⁹ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 47.

¹⁸⁰ See *Bureau Discussion Paper*, UN Doc. A/CONF. 183/C.1/L.53, article 15(1)(d), 6 July 1998; *Bureau Discussion Paper*, UN Doc. A/CONF. 183/C.1/L.59/Corr.1, article 15(1)(d), 11 July 1998.

¹⁸¹ *Report of the Committee of the Whole*, UN Doc. A/CONF.183/8, article 17[15](1)(d), 17 July 1998; *Rome Statute*, article 17(1)(d).

¹⁸² See, generally, Murphy, (2006) 17 *CLF* 281.

¹⁸³ *Situation in the Democratic Republic of the Congo*, ICC-01/04-520-Anx2, Decision on the Prosecutor's Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 6 March 2015, para. 41; See generally, De Guzman, (2009) 32 *Fordham ILJ* 1400. For a critical view see also, De Guzman (2012) 33 *MichJIL* 265, 286–289.

¹⁸⁴ *Ibid.*, para. 45.

contextual and specific elements) included within the material jurisdiction of the Court. Second, in assessing the gravity of the relevant conduct, due consideration must be given to the social alarm such conduct may have caused in the international community.¹⁸⁵

In the specific circumstances of the *Lubanga* case, the Pre-Trial Chamber said the ‘social alarm’ component of the gravity test was particularly relevant, ‘due to the social alarm in the international community caused by the extent of the practice of enlisting into armed groups, conscripting into armed groups and using to participate actively in hostilities children under the age of fifteen’.¹⁸⁶ In support of this affirmation, the Pre-Trial Chamber cited a United Nations report, and two of the indictments at the Special Court for Sierra Leone charging enlistment of child soldiers.¹⁸⁷

Pre-Trial Chamber I said that the gravity threshold was intended to ensure that the Court pursued cases only against ‘the most senior leaders’ in any given situation under investigation.¹⁸⁸ It said that this factor was comprised of three elements. The first is the position played by the accused person. The second is the role played by that person, ‘when the State entities, organizations or armed groups to which they belong commit systematic or large-scale crimes’. The third is the role played by such State entities, organizations or armed groups in the overall commission of crimes. According to the Chamber, because of the position such individuals play they are also ‘the ones who can most effectively prevent or stop the commission of those crimes’.¹⁸⁹ The Chamber explained that the gravity threshold was ‘a key tool provided by the drafters to maximize the Court’s deterrent effect. As a result, the Chamber must conclude that any retributory effect of the activities of the Court must be subordinate to the higher purpose of prevention’.¹⁹⁰

The Pre-Trial Chamber further justified its emphasis on senior leaders with reference to current practice at the *ad hoc* United Nations international criminal tribunals. It noted Security Council Resolution 1534, which mandates the ‘completion strategy’ of the *ad hoc* tribunals. The Resolution calls for them to ‘concentrate on the most senior leaders suspected of being responsible’. Reference was also made to Rule 28(A) of the Rules of Procedure and Evidence of the ICTY, which authorises the Bureau to block the approval of indictments that do not meet the ‘senior leaders’ standard, and to Rule 11 *bis*, which establishes ‘the gravity of the crimes charged and the level of responsibility of the accused’ as the standard to be imposed in transferring cases from the international to the national courts.¹⁹¹ Rulings by the *ad hoc* tribunals pursuant to Rule 11*bis* may provide useful guidance to the ICC in applying the concept of gravity to admissibility decisions.¹⁹² The Pre-Trial Chamber compared the *ad hoc* tribunals, with their limited jurisdiction over one crisis situation, to the ICC, with its broad personal, temporal and territorial jurisdiction. ‘In the Chamber’s view, it is in this context that one realises the key role of the additional gravity threshold set out in article 17(1)(d) of the

¹⁸⁵ *Ibid.*, para. 46.

¹⁸⁶ *Ibid.*; also paras 65–66.

¹⁸⁷ But see Human Security Centre, *Human Security Report 2005: War and Peace in the 21st Century* (OUP 2005) 113–116. The Report calls Sub-Saharan Africa the epicentre of the phenomenon of child soldiers, although it also says that ‘the number of armed conflicts has been declining for more than a decade. And when wars end, soldiers—including child soldiers—are usually demobilised. So it is more likely that the number of child soldiers serving around the world has declined rather than increased in recent years’.

¹⁸⁸ *Situation in the Democratic Republic of the Congo*, ICC-01/04-520-Anx2, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 6 March 2015, para. 50.

¹⁸⁹ *Ibid.*, paras 51–53.

¹⁹⁰ *Ibid.*, para. 48.

¹⁹¹ *Ibid.*, paras 55–58.

¹⁹² See, e.g., *Prosecutor v. Ademi et al.*, IT-04-78-PT, Decision for Referral to the Authorities of the Republic of Croatia Pursuant to Rule 11*bis*, Referral Bench, 14 September 2005, <<https://www.legal-tools.org/en/doc/908808/>> accessed 7 March 2015, para. 28; *Prosecutor v. Stankovic*, IT-96-23/2-PT, Decision on Referral of Case Under Rule 11*bis*, Referral Bench, 17 May 2005, para. 19; *Prosecutor v. Janković*, IT-96-23/2-PT, Decision on Referral of Case Under Rule 11*bis*, Referral Bench, 22 July 2005, para. 19.

Statute in ensuring the effectiveness of the Court in carrying out its deterrent function and maximising the deterrent effect of its activities', the Pre-Trial Chamber concluded.¹⁹³

Pre-Trial Chamber I also referred approvingly to the Prosecution's Policy Paper, issued in September 2003, which stated:

'The global character of the ICC, its statutory provisions and logistical constraints support a preliminary recommendation that, as a general rule, the Office of the Prosecutor should focus its investigative and prosecutorial resources on those who bear the greatest responsibility, such as the leaders of the State or organisation allegedly responsible for those crimes.'¹⁹⁴

But the judges also noted that because the gravity threshold was comprised within article 17, it was not an issue to be left to the discretion of the Prosecutor.¹⁹⁵

When applying these criteria to the case *sub judice*, the Pre-Trial Chamber found that the *Lubanga* case met this test, while the case brought against his co-perpetrator, Bosco Ntaganda, failed to meet an essential requirement, namely Ntaganda was not among the most senior leaders. Pre-Trial Chamber I found that he was the third in the chain of command of the military wing of the *Union des Patriotes Congolais/Forces Patriotiques pour la libération du Congo* (UPC/FPLC) movement.¹⁹⁶ In particular, the Pre-Trial Chamber did not believe that during the relevant period, Ntaganda was a key actor in the decision-making process of the UPC/FPLC's policies/practices or had *de jure* or *de facto* power to change them or prevent their implementation.¹⁹⁷ Accordingly, the Pre-Trial Chamber rejected the Prosecutor's request to issue a warrant of arrest against Ntaganda. Despite its developed explanation referred to above, Pre-Trial Chamber I's decision failed to stand on appeal. In its judgment of 13 July 2006, the Appeals Chamber expressed disagreement with the Pre-Trial Chamber's line of reasoning¹⁹⁸ and in particular, the limitation it imposed on the Court's jurisdiction when it required that the Prosecutor focus only on the most senior leaders. According to the Appeals Chamber, the 'test developed by the Pre-Trial Chamber [was] based on a flawed interpretation of article 17(1)(d) of the Statute¹⁹⁹ [...] [and] the imposition of rigid standards primarily based on top seniority may result in neither retribution nor prevention being achieved'.²⁰⁰ The Appeals Chamber proceeded by saying that the Pre-Trial Chamber's pronouncement that 'any perpetrators other than those at the very top [we]re automatically excluded from the exercise of the jurisdiction of the Court',²⁰¹ 'could severely hamper the preventive, or deterrent, role of the Court which is the cornerstone of the creation of the [ICC]'.²⁰² The Appeals Chamber considered that making an assessment of the particular role of the suspect varies 'considerably depending on the circumstances of the case' and thus such an assessment should not be carried out 'excessively on formalistic grounds'.²⁰³

¹⁹³ *Situation in the Democratic Republic of the Congo*, ICC-01/04-520-Anx2, Decision on the Prosecutor's Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 6 March 2015, para. 60.

¹⁹⁴ *Ibid.*, para. 61, citing *Paper on Some Policy Issues Before the Office of the Prosecutor* (2003) 7.

¹⁹⁵ *Ibid.*, para. 62. The debate has evolved somewhat differently at the Special Court for Sierra Leone, although this can easily be explained by the applicable legal provisions: *Prosecutor v. Brima et al.*, SCSL-04-16-T, Judgment, Trial Chamber, 20 June 2007, para. 653.

¹⁹⁶ *Situation in the Democratic Republic of the Congo*, ICC-01/04-520-Anx2, Decision on the Prosecutor's Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 6 March 2015, paras 86-9.

¹⁹⁷ *Ibid.*, para. 87.

¹⁹⁸ *Situation in the Democratic Republic of the Congo*, ICC-01/04-169, Judgment on the Prosecutor's appeal against the decision of Pre-Trial Chamber I entitled 'Decision on the Prosecutor's Application for Warrants of Arrest, Article 58', Appeals Chamber, 13 July 2006, paras 68-82.

¹⁹⁹ *Ibid.*, para. 73.

²⁰⁰ *Ibid.*, para. 74.

²⁰¹ *Ibid.*, para. 75.

²⁰² *Ibid.*

²⁰³ *Ibid.*, para. 76.

- 57 The Appeals Chamber's finding is not beyond criticism either. Although it rejected the test established by the Pre-Trial Chamber,²⁰⁴ it failed to provide an alternative one, thus, leaving it for the different Chambers to decide. Further, one fails to understand why excluding low-level perpetrators may work against retribution, prevention and deterrence. Cases involving low-level perpetrators may equally be dealt with effectively at the national level be it before the courts of the territorial State or any other State on the basis of universality. The ICC was never meant to deal with all cases in the world involving the commission of crimes falling within the jurisdiction of the Court. To the contrary, it was meant only to address a limited number of cases and particularly those which are of certain degree of seriousness. The seriousness of a particular case certainly involves the role and the position played by the suspect in relation to the commission of the crimes, because based on that position and role the suspect enjoys the power to direct or orchestrate when, how and whether a crime will be committed. This is unlikely to be the case with low-level perpetrators who are not in a position to do so. It may be argued that investigations of low-level perpetrators are warranted because they could lead to the person who is at the top of the hierarchy. However, this is not sufficient *per se* to justify dealing with 'peripheral cases', which the ILC's working group aimed at preventing by introducing the element of gravity. Certainly the assessment of the level and role of a particular suspect is relative and depends on the facts of each particular case. However, it should be noted that the decision to focus on a low-level perpetrator also falls within the prosecutorial strategy. As such, the assessment should be carried out carefully before seizing the relevant Pre-Trial Chamber. It is for the Prosecutor to conduct a thorough investigation until her office manages to reach the appropriate stage where the necessary evidence regarding those at the top of the hierarchy becomes available. Instead of charging low level perpetrators, the Prosecutor may rely on their testimonies as witnesses. By doing so, a similar goal which aims at reaching those who are at the top of the hierarchy could be achieved. Otherwise, and if one follows the Appeals Chamber's logic on this particular point, the additional gravity threshold under the Rome Statute becomes futile.
- 58 Similar to the assessment of complementarity, a gravity determination varies depending on the stage of proceedings before the Court. At the preliminary stages of the proceedings (article 53(1)(b)) the gravity assessment is also carried out against the backdrop of a potential case that would arise from investigating a particular situation. In the 31 March 2010 Decision, Pre-Trial Chamber II defined the parameters of a potential case to include: '(i) the groups of persons involved that are likely to be the object of an investigation [...]; and (ii) the crimes within the jurisdiction of the Court allegedly committed during the incidents that are likely to be the focus of an investigation [...]'.²⁰⁵ The Chamber proceeded by clarifying that the first element involves an examination of whether 'such groups of persons capture those who may bear the greatest responsibility for the alleged crimes committed'.²⁰⁶

²⁰⁴ This does not suggest that all the findings of the Appeals Chamber were incorrect. Rather, the Appeals Chamber's reasoning on this particular element was not that convincing.

²⁰⁵ *Situation in the Republic of Kenya*, ICC-01/09-19, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 March 2010 <<https://www.legal-tools.org/doc/338a6f/>> accessed 6 March 2015, para. 59; *Situation in Côte d'Ivoire*, ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', Pre-Trial Chamber III, 15 November 2011 <<https://www.legal-tools.org/doc/e0c0eb/>> accessed 6 March 2015, para. 204.

²⁰⁶ *Situation in the Republic of Kenya*, ICC-01/09-19, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 March 2010 <<https://www.legal-tools.org/doc/338a6f/>> accessed 6 March 2015, para. 60; *Situation in Côte d'Ivoire*, ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', Pre-Trial Chamber III, 15 November 2011 <<https://www.legal-tools.org/doc/e0c0eb/>> accessed 6 March 2015, para. 204. Thus, realizing that the Appeals Chamber's approach in the 13 July 2006 Judgment could be misleading and might result in an abuse of application in future cases in the sense of *mainly* focusing on less serious situations involving low-level perpetrators, Pre-Trial Chambers II and III re-introduced the idea of concentrating on those who are at the top of the echelon.

With respect to the second element, the Chamber considered that a quantitative assessment of gravity is not sufficient.²⁰⁷ Sometimes the commission of crimes is accompanied by some aggravating or qualitative factors which make them specifically grave.²⁰⁸ For instance, United Kingdom troops were present in Iraq as a result of an act of aggression. The act was committed in violation of the prohibition on the use of force, arguably the most sacred principle of the contemporary legal order. The ICC cannot yet exercise jurisdiction over the crime of aggression.²⁰⁹ But aggression is nevertheless described in the Rome Statute as a 'grave crime' that 'threaten[s] the peace, security and well-being of the world',²¹⁰ and one of 'the most serious crimes of concern to the international community as a whole'.²¹¹ Logically, there is an additional dimension of gravity when war crimes are committed by troops as a result of an act of aggression. Although much fewer in number,²¹² perhaps the crimes of the United Kingdom troops should be judged as being inherently more serious than those of rebel groups trying to overthrow an authoritarian regime, such as the Government of Uganda, which has itself been condemned by the International Court of Justice for serious violations of international human rights and humanitarian law.²¹³ It follows that assessing the gravity of the crimes whether in the context of a situation (potential case) or a concrete case involves a quantitative as well as qualitative dimension.²¹⁴ What differs is the level of rigor in conducting such assessment which will depend on the stage of the proceedings. In reaching conclusions regarding the qualitative and quantitative dimensions, one may consider the factors referred to in rule 145(1)(c) and (2)(b)(iv) of the Rules of Procedure and Evidence regarding sentencing. Both Pre-Trial Chambers and the Prosecutor have unified their approach towards the assessment of gravity and have accepted these factors for carrying out such assessment.

Indeed, in the Kenya situation, Pre-Trial Chamber II concluded that the following factors 'could provide useful guidance' in ruling on gravity:

- '(i) the scale of the alleged crimes (including assessment of geographical and temporal intensity);
- (ii) the nature of the unlawful behaviour or of the crimes allegedly committed; (iii) the employed means for the execution of the crimes (i. e., the manner of their commission); and (iv) the impact of the crimes and the harm caused to victims and their families';²¹⁵

²⁰⁷ *Situation in the Republic of Kenya*, ICC-01/09-19, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 March 2010 <<https://www.legal-tools.org/doc/338a6f/>> accessed 6 March 2015, para. 62; *Situation in Côte d'Ivoire*, ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', Pre-Trial Chamber III, 15 November 2011 <<https://www.legal-tools.org/doc/e0c0eb/>> accessed 6 March 2015, para. 203.

²⁰⁸ *Ibid.*; also Schabas, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009) 229, 245–246.

²⁰⁹ *Rome Statute*, article 15bis (2) and (3).

²¹⁰ *Ibid.*, Preamble para. 3.

²¹¹ *Ibid.*, Preamble para. 4.

²¹² It must be noted that the Prosecutor indicated that the crimes of British troops in Iraq appeared to be dealt with adequately by the country's own justice system. Thus, the Iraq investigation would ultimately have stumbled on the complementarity threshold. Clearly, however, the Prosecutor's decision not to proceed against British troops in Iraq was predicated on 'gravity', viewed in a purely quantitative manner, and not on an alleged failure of the United Kingdom to investigate and prosecute the allegations. See also: *Report on the Activities of the Court*, No. ICC-ASP/5/15, <http://www.icc-cpi.int/iccdocs/asp_docs/library/asp/ICC-ASP-5-15_English.pdf> accessed 7 March 2015, para. 58.

²¹³ *Case Concerning Armed Activities on the Territory of the Congo (Democratic Republic of the Congo v. Uganda)*, Judgment of 19 December 2005, (2005) ICJ Rep. 168.

²¹⁴ *Prosecutor v. Bahar Idriss Abu Garda*, ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 8 February 2010 <<https://www.legal-tools.org/doc/cb3614/>> accessed 6 March 2015, para. 31.

²¹⁵ *Situation in the Republic of Kenya*, ICC-01/09-19, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 March 2010 <<https://www.legal-tools.org/doc/338a6f/>> accessed 6 March 2015, para. 62.

Similarly, Pre-Trial Chamber I relied on the same factors for assessing gravity in the *Côte d'Ivoire* situation,²¹⁶ and the Prosecutor has equally followed this path in conducting such an assessment. This is best exemplified in the most recent examination of gravity in the context of the flotilla incident.²¹⁷ In reflecting on the scale of the crimes and number of victims, the Prosecutor considered that the killing of a total of ten passengers out of five-hundred and the injury of fifty to fifty-five passengers was not sufficient to meet the gravity test.²¹⁸ The Prosecutor also did not deem the 'mistreatment and harassment of passengers' by the Israeli Defence Forces as sufficient to satisfy the factor of 'nature' of commission, given that the Israeli Defence Forces' behaviour did not amount to 'torture or inhuman treatment'.²¹⁹ Nor did she consider that the impact of these crimes and the manner of their commission rose to the required level.²²⁰ Having examined these factors, the Prosecutor found that the 'potential case(s) that could be pursued as a result of an investigation into this situation [was] limited to an event encompassing a limited number of victims [...] with limited countervailing qualitative considerations'.²²¹ Accordingly, the 'flotilla incident d[id] not fall within the intended and envisioned scope of the Court's mandate',²²² the Prosecutor concluded.

- 60 The flotilla incident represents the most recent practice before the Court which reveals the core nature of the gravity assessment. This examination can never be purely objective. A high level of subjectivity will always be involved. An application of any of the factors referred to above will be always relative. What the Prosecutor has deemed insufficient to satisfy the factors underlying the gravity test in the flotilla incident may be satisfactory for another organ of the Court empowered to carry out the same examination.²²³ It follows that when it comes to the assessment of gravity, there is no hard rule to follow, particularly if, for instance, the situation/case does not involve an uncontested number of victims, such as hundreds of victims. This renders an examination of gravity more difficult to control than that of complementarity.

II. Paragraph 2

- 61 It is clear from a textual interpretation that the list set out in article 17(2) is exhaustive, and thus, should not be extended beyond what is provided in the text of sub-paragraphs (a)-(c). The chapeau of article 17(2) stipulates that for the purpose of determining 'unwillingness' in a certain case, the 'Court shall consider, whether one or more of the following exist, as applicable'. Some scholars argued that the scenarios referred to under article 17(2) are merely illustrative.²²⁴ This view stands to be corrected. Reading the phrase 'shall consider'

²¹⁶ *Situation in Côte d'Ivoire*, ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', Pre-Trial Chamber III, 15 November 2011 <<https://www.legal-tools.org/doc/e0c0eb/>> accessed 6 March 2015, para. 204.

²¹⁷ *Situation on Registered Vessels of Comoros, Greece and Cambodia: Article 53(1) Report*, 6 November 2014; see also Regulation 29(2) of the *Regulations of the Office of the Prosecutor*.

²¹⁸ *Situation on Registered Vessels of Comoros, Greece and Cambodia: Article 53(1) Report*, 6 November 2014, para. 138.

²¹⁹ *Ibid.*, para. 139.

²²⁰ *Ibid.*, paras 140–141.

²²¹ *Ibid.*, para. 144.

²²² *Ibid.*, para. 142.

²²³ *Situation on Registered Vessels of Comoros, Greece and Cambodia*, ICC-01/13-34, Decision on the request of the Union of the Comoros to review the Prosecutor's decision not to initiate an investigation, Pre-Trial Chamber I, 16 July 2015 <<http://www.legaltools.org/doc/2f876c/>> accessed 9 September 2015; see also, Partly dissenting opinion of Judge Péter Kovács, ICC-01/13-34-Anx-Corr, <<http://www.legal-tools.org/doc/c854cf/>> accessed 9 September 2015, paras 14–29, (where the dissenting judge introduced for the first time in the jurisprudence of the Court, the idea of comparative gravity).

²²⁴ Hall, C.K., *Suggestions Concerning International Criminal Court Prosecutorial Policy and Strategy and External Relations*, 28 March 2003, <http://www.icc-cpi.int/iccdocs/asp_docs/library/organs/otp/hall.pdf> accessed 7 March 2015, at 16; Robinson (2003) 14 *EJIL* 481 500.

together with the last phrase ‘whether one or more of the *following* exist’ suggests that the list is exhaustive rather than ‘illustrative’. Had the drafters intended such an interpretation they could have used the formulations ‘such as’, ‘for example’ or ‘including but not limited to’ which appear under some other provisions of the Statute.²²⁵ Moreover, article 17 is drafted in the negative form indicating a preference to genuine national proceedings. ‘Unwillingness’ is an exception to this rule, and accordingly, the provision should not be broadly construed by treating the list under paragraph (2) as illustrative rather than exhaustive.

The language of the three sub-paragraphs uses the word ‘proceedings’ which demonstrates 62 that testing the willingness of a State comes into play only if at least investigative actions are underway and there is a need to test the quality of these proceedings as mentioned earlier. The quality of national proceedings may be detected by three alternative, yet related tests. The first test aims at determining whether the national proceedings are aimed at ‘shielding the person from criminal responsibility’, while the second and third mainly rely on the duration of the proceedings and/or whether they were carried out independently or impartially. The first test encompasses an element of subjectivity when it comes to the assessment of the quality of proceedings in view of States’ actual intentions.²²⁶ As argued by one commentator, in order to prove that the respective State was ‘shielding the person from criminal responsibility’, the Prosecutor should prove a ‘devious intent on the part of the State, contrary to its apparent actions’.²²⁷ Arguably this is not the case in relation to the second and third criteria given that they lean more towards objectivity of assessment. Inserting key elements such as ‘unjustified delay’ in sub-paragraph 2(b) and the lack of ‘independence or impartiality’ in sub-paragraph (c) certainly enhances objectivity of assessment and reduces the element of subjectivity²²⁸ – a result which the drafters aimed to achieve.

The Court’s assessment regarding sub-paragraphs (a)-(c) should be carried out having 63 regard to principles of ‘due process recognized by international law’.²²⁹ As noted in the procedural history, this phrase was supposed to serve sub-paragraph (c), and it was finally agreed in Rome, after entering bilateral negotiations, that the term serves the entire paragraph on unwillingness. The insertion of this phrase cannot be superfluous. Apparently it requires that the Court’s assessment of the quality of justice, as mirrored in sub-paragraph 2(a)-(c) takes into consideration both procedural and substantive rights (covering the entirety of the domestic process) embodied in human rights instruments and developed in the jurisprudence of regional and international judicial bodies. This reading is also in line with article 21(3), which requires that the ‘application and interpretation’ of the Statute ‘must be consistent with internationally recognized human rights’. The latter requirement has been endorsed in the jurisprudence of the Court.²³⁰ Although due process of law may include the

²²⁵ *Rome Statute*, articles 90 (6) and 97 (chapeau). See also the chapeau of article 53(1) which stipulates that ‘[i]n deciding whether to initiate an investigation, the Prosecutor *shall consider whether* [(a)...(c)]’. The list of the three conditions which flow from the chapeau of article 53(1) has always been considered as exhaustive and nowhere in the practice of the Court is there a slightest indication that the usage of the phrase ‘the Prosecutor shall consider whether’ refers to an illustrative list.

²²⁶ In the same vein, Ambos, *The Colombian Peace Process and the Principle of Complementarity of the International Criminal Court: An Inductive, Situation-based Approach* (Springer 2010) 66–67.

²²⁷ Arbour et al. in: von Hebel et al. (eds.), *Reflections on the International Criminal Court* (T.M.C. Asser Press. 1999) 131.

²²⁸ See also rule 51 of the Rules of Procedure and Evidence which makes clear that ‘[i]n considering the matters referred to in article 17, paragraph 2, and in the context of the circumstances of the case, the Court may consider, *inter alia*, information that the State referred to in article 17, paragraph 1, may choose to bring to the attention of the Court showing that its courts meet internationally recognized norms and standards for the independent and impartial prosecution of similar conduct, or that the State has confirmed in writing to the Prosecutor that the case is being investigated or prosecuted’. This does not deny the fact that even in applying international standards to determine the quality of domestic proceedings a subjective element will quite often be involved given that the assessment will vary from one case to another depending on the particular circumstances of each case.

²²⁹ *Rome Statute*, article 17(2).

²³⁰ *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-772, Judgment on the Appeal of Mr. Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to article 19(2) (a) of the

rights of the accused,²³¹ a violation of the person's rights should not in and of itself be the decisive factor in an admissibility determination. Article 17 rests on a core idea, namely the existence or absence of genuine national proceedings. This is the determinative factor in ruling on admissibility. Due process becomes applicable only insofar as it is relevant to the interpretation of sub-paragraphs (a)-(c). This interpretation finds support in the 11 October 2013 Al-Senussi Decision.²³² The Defence invoked a number of alleged human rights violations, which included, *inter alia*, the lack of access to a lawyer, illegal rendition, lack of independence of the national judge and allegations of torture. Having considered these allegations the Chamber correctly concluded that the 'assessment of Libya's [...] willingness to carry out its proceedings against Mr Al-Senussi [...] is limited to those considerations that have the potential to bear upon any of the scenarios envisaged under article 17(2)'.²³³ On appeal, the Appeals Chamber endorsed the stated principle, but it apparently went beyond it when it stated:

"Taking into account the text, context and object and purpose of the provision, this determination is not one that involves an assessment of whether the due process rights of a suspect have been breached *per se*. In particular, the concept of proceedings "being conducted in a manner which, in the circumstances, is inconsistent with an intent to bring the person concerned to justice" should generally be understood as referring to proceedings which will lead to a suspect evading justice, in the sense of not appropriately being tried genuinely to establish his or her criminal responsibility, in the equivalent of sham proceedings that are concerned with that person's protection. However, there may be circumstances, depending on the facts of the individual case, whereby violations of the rights of the suspect are so egregious that the proceedings can no longer be regarded as being capable of providing any genuine form of justice to the suspect so that they should be deemed, in those circumstances, to be "inconsistent with an intent to bring the person to justice".²³⁴

- 64 Thus, although the Appeal Chamber upheld the Pre-Trial Chamber's principled interpretation, it went further and apparently accepted that the Court may render a finding of admissibility in case of 'egregious' human rights violations against the suspect and read an additional element in sub-paragraph (c) (respect of the suspect's human rights). Although gross human rights violations or procedural irregularities may taint any judicial process, unfortunately article 17 was not *per se* designed to operate as a remedy for such irregularities in the sense of other provisions such as articles 59 and 67. Rather the provision was drafted to resolve the positive conflict of jurisdiction between the two tier fora. Surprisingly, the Appeals Chamber seemed to understand this point somehow elsewhere in the judgment, when it clarified that the 'Court was not established to be an international court of human rights [...]. [I]f the interpretation of the Defence were adopted, [...] [a] case could be admissible merely because domestic proceedings do not fully respect the due process rights

Statute of 3 October 2006, Appeals Chamber, 14 December 2006 <<https://www.legal-tools.org/doc/1505f7/>> accessed 6 March 2015, paras 36–39; *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06-1119, Decision on Victims' Participation, Trial Chamber I, 18 January 2008 <<https://www.legal-tools.org/doc/4e503b/>> accessed 6 March 2015, paras 34–35. Also on article 21 and the extensive jurisprudence related thereto, see Bitti, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Martinus Nijhoff Publishers 2009) 281; *id.*, in: Stahn (ed.), *The Law and Practice of the International Criminal Court* (OUP, forthcoming 2015).

²³¹ *Baena-Ricardo et al. (270 Workers v. Panama)*, Judgment of February 2, 2001, IACtHR (Ser. C) No. 72 (2001), para. 137 (where the Court defined the term 'due process' as consisting of 'the right of all persons to a hearing, with due guarantees and within a reasonable time, by a competent, independent, and impartial judge or tribunal, previously established by law, in the substantiation of any accusation of a criminal nature made against him or her or for the determination of her or his rights').

²³² *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, para. 235.

²³³ *Ibid.*, para. 243.

²³⁴ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi against the Decision of Pre-Trial Chamber I of 11 October 2013 Entitled 'Decision on the Admissibility of the Case against Abdullah Al-Senussi', Appeals Chamber, 24 July 2014 <<https://www.legal-tools.org/doc/ef20c7/>> accessed 5 March 2015, paras 2–3 and 230.

of a suspect'.²³⁵ It is apparent from reading the entire judgment that the Appeals Chamber was struggling to find the right balance, which is certainly not easy to draw.²³⁶ Be that as it may, the Appeals Chamber apparently went beyond the plain meaning and intended purpose of article 17(2), namely to prevent a State from hiding a suspect or an accused from criminal responsibility on the basis of one or more of the scenarios set out in subparagraph (a)-(c), as will be discussed in more detail below. It seemingly did this in order to reconcile articles 17 and 21(3) of the Statute. Yet, it did so in a rather confusing way. In one instance the Appeals Chamber correctly acknowledged that due process rights are not the determinative factor in deciding on the inadmissibility of a case, while in the last sentence of paragraph 230 quoted above, the Appeals Chamber seems to have left room for the contrary. By doing so, the Appeals Chamber opened the door for the ICC to sit as a purely human rights court and provided it with a mandate that was not entrusted to it by the drafters of the Statute.

1. 'shielding the person'

At the outset one should know that drawing an exhaustive list of all scenarios which reflect a State's intention to 'shield a person from criminal responsibility' is not possible. This depends to a great extent on the factual circumstances of each particular case. It is possible, however, to provide some guidelines on the basis of an analysis of the practice of other international judicial bodies. This could be a useful guidance to the Court in making its determination and as stated above in line with article 21(3) which requires that the 'application and interpretation of law [...] be consistent with internationally recognized human rights'.²³⁷

Article 17(2)(a) is a test for discerning the bad faith of a State by way of checking the effectiveness of national proceedings. Thus any intentional deficiency or serious negligence in conducting national proceedings that lead to negative results, through certain acts or omissions, might reflect a State's intention to 'shield [the] person from criminal responsibility'. It follows that the more thorough and serious the domestic investigation is, the more difficult it will be to find proof of an 'intent to shield' and vice versa. In this regard, the European Court of Human Rights (ECtHR) implicitly endorsed this line of reasoning in a number of cases related to a violation of the right to life and the prohibition of torture. The ECtHR made it clear that a criminal investigation must be serious and effective. For an investigation to be considered effective certain conditions have to be met. Failing to meet these conditions without adequate justification creates a presumption that the State is shielding the person concerned from criminal responsibility.

In *Nachova*, the ECtHR Grand Chamber provided the following elements for ruling that national criminal proceedings were effective: 1) The national authorities must take all reasonable steps available to secure the evidence concerning the incident, including eye-witness testimony and forensic evidence; 2) The conclusions of the investigation must be based on thorough, objective and impartial analysis of all the relevant elements; and 3) any deficiency in the investigation which undermines its ability to establish the circumstances of the case or the person responsible is liable to fall foul of the required measure of effectiveness.²³⁸ When the ECtHR applied these elements to the facts and circumstances of the case it concluded that: 1) The investigating authorities disregarded some relevant facts including highly technical ones; 2) There was a lack of strict examination of all the material circumstances; and 3) the national authorities conducted the investigation in an excessively

²³⁵ *Ibid.*, para. 219.

²³⁶ *Ibid.*, paras 219, 230 and fn. 449 (where it is clear that the Appeals Chamber was trying to attain a balance).

²³⁷ See generally Bitti, in: Stahn (ed.), *The Law and Practice of the International Criminal Court* (forthcoming 2015).

²³⁸ *Nachova and others v. Bulgaria*, Applications Nos. 43577/98 and 43579/98, ECtHR, Judgment of 6 July 2005, para. 113.

narrow legal framework, ignoring indispensable and obvious investigative steps.²³⁹ In view of its examination, the ECtHR concluded that the ‘authorities ignored those significant facts and, without seeking any proper explanation, merely [...] terminated the investigation. The investigator and the Prosecutors thus *shielded* Major G. from prosecution’ (emphasis added).²⁴⁰ This suggests that the failure of a State to meet these conditions set out by the ECtHR renders national proceedings ineffective. Said deficiencies in the proceedings if accompanied by a lack of ‘proper explanation’ by the State, indicate that the State is acting in bad faith for the purpose of shielding the person concerned. Similarly, in *Timurtas*, the ECtHR relied on similar conditions to test the quality of national proceedings including the State’s failure to provide convincing explanations. Yet, instead of using the phrase ‘shielding from prosecution’, it said that the national investigations ‘had been perfunctory and superficial’.²⁴¹ Additional factors which reveal the ineffectiveness of national proceedings may also be found in other decisions of the ECtHR. In *Kuznetsov*, the Court considered that the lack of ‘any contemporaneous records which could demonstrate step by step the nature of the investigation carried out into the allegations’ is a factor which reveals the State’s bad faith in carrying out a serious investigation.²⁴² Moreover, in *Tepe*, the failure to involve a ‘forensic specialist’ in cases that involved unnatural death and the decision of the prosecutor to refrain from carrying out a ‘full medico-legal autopsy’, which would have provided valuable information, were considered ‘striking omission[s]’,²⁴³ which contributed, *inter alia*, to the view that the investigation was ineffective, and by implication the State intended to carry out improper proceedings.

- 66 The Inter-American Court on Human Rights (IACtHR) adopted similar standards in testing the quality of domestic investigations and the intention of the relevant State *vis-à-vis* said proceedings. In *Velasquez-Rodriguez*, the IACtHR stated that investigations must be carried out in a ‘serious manner and not as mere formality preordained to be ineffective’. These investigations must have an ‘objective and be assumed by the State as its own legal duty’ aiming at an ‘effective search for the truth’ by the government.²⁴⁴ Accordingly, the State must ‘use the means at its disposal [...] to identify those responsible, [and] to impose the appropriate punishment’.²⁴⁵ When the IACtHR applied these standards, it concluded that domestic proceedings were ineffective, in violation of article 1(1) of the Convention.²⁴⁶ Despite the fact that the IACtHR did not explicitly pronounce that the deficiency in conducting effective investigations resulted from the State’s bad faith to ‘shield’ the person from prosecution, this conclusion may be deduced from the Court’s overall reasoning. Differently, in *Mack*, after identifying further deficiencies in the national proceedings such as ‘altering or hiding’ the report of the police investigations by substituting the original with another, under orders from a State’s authority, and the manipulation of evidence by the

²³⁹ *Ibid.*, paras 114–117.

²⁴⁰ *Ibid.*, para. 116.

²⁴¹ *Timurtas v. Turkey*, Application 23531/94, ECtHR, Judgment (Merits and Just Satisfaction) of 13 June 2000, paras 88 and 110.

²⁴² *Kuznetsov v. Ukraine*, Application No. 39042/97, ECtHR, Judgment (Merits and Just Satisfaction) of 29 April 2003, para. 106.

²⁴³ *Tepe v. Turkey*, Application No. 27244/95, ECtHR, Judgment (Merits and Just Satisfaction) of 9 May 2003, paras 181–182.

²⁴⁴ *Velasquez Rodriguez v. Honduras*, Judgment of 29 July 1988, IACtHR (Ser. C) No. 4 (1988), para. 177; *Villagran Morales et al. v. Guatemala* (The ‘Street Children’ Case), Judgment of 19 November 1999, IACtHR (Ser. C) No. 63 (1999), para. 226.

²⁴⁵ *Ibid.*, para. 211.

²⁴⁶ These reasons may be summarized as follows: 1) Failure of the organs of Executive Branch to carry out a serious investigation, as there was no investigation of public allegations of a series of disappearances; 2) The investigation carried out in accordance with the Commission’s decision was done by the armed forces, the body accused of being involved in the practice; 3) No proceedings were initiated under national law to establish the responsibility of the perpetrators and punish them; and 4) Ignoring the Commission’s request for information; this was interpreted by the Commission as evidence for the accuracy of the allegations against the State. *Ibid.*, paras 179–180.

Ministry of National Defence, the IACtHR concluded that these acts in view of the circumstances of the case 'demonstrate[d] that there was an attempt to cover-up those responsible[...] and this constitute[d] an obstruction of justice and an inducement for those responsible of the facts to remain in situation of impunity'.²⁴⁷

Although these scenarios are by no means exhaustive, they may serve as guidelines for the Court.

2. Unjustified delay

A State will be determined by the Court to be unwilling where there has been an unjustified (unjustifiable) delay in the proceedings which in the circumstances is seen to be inconsistent with an intent to bring the person concerned to justice. The coordinator of the negotiations at the Rome Conference was of the view that this subparagraph was added to offset the onus of proof that will be on the Prosecutor to establish bad faith in paragraph 2(a). Again, as in subparagraph (a) above, what is being determined is the good faith of the involved State. If it were determined, for instance, that the duration of the proceedings was lengthy, this would not be sufficient *per se* to render the case admissible before the Court. There is an additional common element which must accompany these findings namely, that the delay was according to the particular circumstances of the case 'inconsistent with an intent to bring the person to justice'.²⁴⁸ This requirement suggests that the drafters intended to set the bar higher before making any negative finding against the will of the relevant State to carry out its proceedings. Also, there is an apparent overlap between this element and the requirement of shielding the person from criminal responsibility. A delay in conducting national proceedings in such a manner which reveals intent not to bring the person to justice is actually a form of shielding that person from criminal responsibility. Certainly any such finding pursuant to article 17(2) cannot be reached in the abstract. Rather the Court must look into the investigative actions carried out by the State in order to assess whether there was an element of bad faith or the State conducted genuine proceedings. Pre-Trial Chamber I has recently addressed this criterion in the 13 October 2013 Al-Senussi Decision. However, the Chamber failed to provide proper *legal* analysis as to the intended scope of this provision, the meaning of terms such as 'unjustified delay' or 'inconsistent with an intent to bring the person concerned to justice', and the interplay between this sub-paragraph and subparagraph (a). Instead, the Pre-Trial Chamber made a purely factual and subjective analysis without setting out the parameters of the law being guided by the ample jurisprudence developed by international human rights bodies and other international criminal tribunals regarding the ways of assessing delays in criminal proceedings. In making its determination on the length of the proceedings against Al-Senussi, the Chamber correctly considered the dates on which the case moved from one stage to the other, the dates of witnesses' interviews, and the wide scope of factual allegations brought against the suspect. In view of these circumstances, the Chamber concluded that 'a period of less than 18 months between the commencement of the investigation [...] and the referral of the case [...] to the accusation Chamber cannot be considered to constitute an unjustified delay inconsistent with an intent to bring [the suspect] to justice'.²⁴⁹ Although the Chamber's conclusion may be factually justified, the overall assessment remains subjective and quite arbitrary, given that it has not been conducted against a well-defined legal standard as is the case with other human rights bodies or other international criminal tribunals. This does not mean that the ICC must

²⁴⁷ *Myrna Mack Chang v. Guatemala*, Judgment of 25 November 2003, IACtHR (Ser. C) No. 101 (2003), paras. 166–173.

²⁴⁸ *Rome Statute*, article 17(2).

²⁴⁹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, paras 227–229.

automatically transfer the exact standard. Rather it means that the ICC should have developed its own standard being guided by the rich jurisprudence of these judicial bodies.

- 68 Turning to the requirements of sub-paragraph (b), in order to make a finding on the basis of this provision, three questions have to be answered. First, whether there has been a delay in the proceedings; secondly, whether such a delay was ‘unjustified’; and, thirdly, whether such an ‘unjustified delay’ was, in the circumstances of the situation or case, accompanied by the intention not ‘to bring the person concerned to justice’. These elements are accordingly cumulative. The terms ‘unjustified’ and the ‘intent to bring the person to justice’ are key for the interpretation of this provision. The term ‘unjustified’ provides the State with the opportunity to explain the reason, if any, for the delay before the Court makes a determination on admissibility, rendering this test more objective.²⁵⁰ The intention not ‘to bring the person concerned to justice’ presumably obliges the Court to inquire into the circumstances of each situation or case separately, in order to determine whether, according to the facts of a given case, the intention was to avoid the accused facing justice. Thus, the underlying meaning of ‘unjustified delay’ under Article 17(2)(b) does not target or cover any sort of delay that has no link or connection with the idea of shielding an accused from facing justice; rather it *directly* affects the domestic proceedings leading to the punishment of the alleged perpetrators. In making an overall evaluation of compliance with article 17(2)(b), as stated earlier the Court is to be guided by ‘the principles of due process recognized by international law’. The Court ‘must’ also make sure that its conclusions are ‘consistent with internationally recognized human rights’. Neither the Statute nor the Rules or Regulations of the Court state what may constitute a delay within the meaning of Article 17(2)(b). Nor do they spell out what may constitute a ‘justified’ or ‘unjustified’ delay. Human rights instruments aim at guaranteeing a trial within a ‘reasonable time’²⁵¹ and without ‘undue delay’.²⁵² This ‘underlines the importance of rendering justice without delays which might jeopardise its effectiveness and credibility’.²⁵³ They are also designed to ensure that an accused does not have to ‘lie under a charge for too long’²⁵⁴ in a ‘state of uncertainty about his fate’.²⁵⁵ When reading the cases decided by the bodies monitoring the application of these instruments, one may observe that the protection underlying the right is not triggered until ‘an individual is subject to a ‘charge’’. When compared to the language mirrored in article 17(2)(b), it becomes apparent that the provision of the Statute is broader in reach and application. Under the Rome Statute, an investigation begins with a ‘situation’ as opposed to a ‘case’. This means that in the early phases of an investigation there are no concrete identifiable suspects for the

²⁵⁰ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 54; see also *ICC Rules of Procedure and Evidence*, No. ICC-ASP/1/3 and Corr.1, part II.A (2002), Rule 51. It should be noted, however, that article 14(3) (c) of the *International Covenant on Civil and Political Rights* (ICCPR), adopted 16 December 1966, entered into force 23 March 1976, 999 UNTS 171, talks of ‘undue delay’; yet, the Human Rights Committee (HRC) still requires the State to provide it with explanation of any sort of unwarranted delay. See, *inter alia*, *Sahadeo v. Guyana*, HRC, Communication No. 728/1996, UN Doc.CCPR/C/73/D/728/1996, 10 November 1996.

²⁵¹ *European Convention for the Protection of Human Rights and Fundamental Freedoms* (ECHR), signed 4 November 1950, entered into force 3 September 1953, 213 UNTS 221, ETS. 5, articles 5(3) and 6(1); *American Convention on Human Rights* (Pact of San José) (ACHR), signed 22 November 1969, entered into force 18 July 1978, OASTS 36, O.A.S. Off. Rec. OEA/Ser.L/V/II.23, doc.21, rev. 6 (1979), articles 7(5) and 8(1). This term appears in article 5(3) as well as article 6(1). Although the periods may overlap, article 6(1) is broader in scope as it covers delays in the entire proceedings in relation to all parties. Thus, this section is confined to looking at issues relating to article 6(1). For the distinction between the protection of articles 5(3) and 6(1) see *Matznetter v. Austria*, Application No. 2178/64, ECtHR, Judgment (Merits) of 10 November 1969, para. 12; *Stogmuller v. Austria*, Application No. 1602/62, ECtHR, Judgment (Merits) of 10 November 1969, para. 5.

²⁵² ICCPR, articles 9(3) and 14(3) (c). While article 14(3) (c) speaks of trial ‘without undue delay’, article 9(3) mentions ‘trial within a reasonable time’.

²⁵³ *H. v. France*, Application No. 10073/82, ECtHR, Judgment (Merits and Just Satisfaction) of 24 October 1989, para. 58.

²⁵⁴ *Wemhoff v. Germany*, Application No. 2122/64, ECtHR, Judgment (Merits and Just Satisfaction) of 27 June 1968, para. 18.

²⁵⁵ *Stogmuller v. Austria*, Application No. 1602/62, ECtHR, Judgment (Merits) of 10 November 1969, para. 5.

purpose of prosecution. It follows that the evaluation of the speed or delay resulting from the domestic process would begin during the situation phase, which is earlier than is required under the human rights instruments, namely to have an identified person who is 'subject to a charge', or arrest, or being officially notified that he will be prosecuted.²⁵⁶ Moreover, article 17(2)(b) is concerned with a broader pattern of events, in the sense that it is not designed to address delays that touch upon the rights of the accused *stricto sensu*, but rather to address delays relating to the *entire* criminal process within the general scheme of events; that is, a delay which directly impacts on the idea of bringing an accused to justice. This line of reasoning does not intend to argue that the standard designed by the human rights bodies developed below is not applicable by analogy to the ICC criminal process. Rather, it tends to show that the criterion of 'unjustified delay', in the context of the ICC, serves a broader goal, and thus, the Court should adjust the standard to the unique nature of the ICC judicial procedure. It also follows that there are phases in the criminal process that require assessment, which might have been outside the scope of the jurisprudence of these human rights bodies when they examined delays in national proceedings. Nonetheless, the standards applied by these bodies may still serve as guidelines for the ICC in assessing the entire criminal process. Assessing a delay in national proceedings cannot be carried out according to strict time limits. Finding a violation of the principle of reasonableness of time varies depending on the particularities of each case. In *König*, the ECtHR ruled that the 'reasonableness of the duration of proceedings covered by Article 6 para. 1 (art. 6-1) of the Convention [in civil as well as in criminal matters] must be assessed in each case according to its circumstances'.²⁵⁷ Similarly, in *Ratiani*, according to the Human Rights Committee (HRC) 'what constitutes "undue delay" depends on the circumstances of each case'.²⁵⁸ As the ICTR stated in one of its early decisions, this assessment cannot be 'translated into a fixed number of days, months or years'.²⁵⁹ Nevertheless, the assessment of the duration of a criminal process has always been carried out within certain confines and according to a set of criteria initially developed by the ECtHR and later followed by the IACtHR as well as the *ad hoc* tribunals. In the leading *König* case, the ECtHR developed three criteria on the basis of which an assessment of the duration of the criminal proceedings may take place. The Court referred to the following three criteria: 1) the complexity of the case; 2) the conduct of the applicant; and 3) the conduct of the judicial authorities.²⁶⁰ The Court continues to apply the same criteria.²⁶¹ In *Lazariu*, one of the most recent cases, the ECtHR reiterated 'that the

²⁵⁶ *Eckle v. Germany*, Application No. 8130/78, ECtHR, Judgment (Merits) of 15 July 1982, para. 73; *Wemhoff v. Germany*, Application No. 2122/64, ECtHR, Judgment (Merits and Just Satisfaction) of 27 June 1968, para. 19. The IACtHR considers the starting point for examining national proceedings is the arrest of the accused. See *Suarez – Rosero v. Ecuador*, Judgment of 12 November 1997, IACtHR (Ser. C) No. 35 (1997), para. 70. This is the period that begins in the application of article 6(1) proceedings. However, the period regarding article 5(3) of the Convention and its counterparts in the other human rights instruments begins on the day the accused is taken into custody or detention. See, *inter alia*, *Labita v. Italy* Application No. 26772/95, ECtHR, Judgment (Merits and Just Satisfaction) of 6 April 2000, paras 145 and 147.

²⁵⁷ *König v. Germany*, Application No. 6232/73, ECtHR, Judgment (Merits) of 28 June 1978, para. 99; also, *Palka v. Poland*, Application No. 49176/99, ECtHR, Judgment (Merits and Just Satisfaction) of 11 October 2005, para. 28.

²⁵⁸ *Ratiani v. Georgia*, HRC, Communication No. 975/2001, UN Doc. CCPR/C/84/D/975/2001, 4 August 2005, para. 10.7.

²⁵⁹ *Prosecutor v. Andre Rwamakuba*, No. ICTR-98-44C-PT, Decision on Defence Motion for Stay of Proceedings, Article 20 of the Statute, Trial Chamber III, 3 June 2005, <<https://www.legal-tools.org/en/doc/b76164/>> accessed 7 March 2015, para. 26.

²⁶⁰ *König v. Germany*, Application No. 6232/73, ECtHR, Judgment (Merits) of 28 June 1978, para. 99.

²⁶¹ With the exception that the phrase 'judicial authorities' appearing in the third condition was replaced by the broader term 'relevant authorities' to cover acts or omissions attributed to any responsible organ of the State. Also in some decisions a related element was added – namely 'the importance of what is at stake for the applicant in litigation'. See, *inter alia*, *Majewski v. Poland*, ECtHR, Judgment (Merits and Just Satisfaction) of 11 October 2005, para. 38. But this element has no significant application in the context of this study, as it is confined to civil rights before administrative courts. On this point see *Buchholz v. Germany*, Application No. 7759/77, ECtHR, Judgment (Merits) of 6 May 1981, para. 49.

reasonableness of the length of proceedings must be assessed in the light of the circumstances of the case' and with reference to the same criteria spelled out above.²⁶²

- 69 The IACtHR also followed the same path. In *Lacayo*, the IACtHR recognizing the similarity between article 8(1) of the American Convention on Human Rights and article 6(1) of the European Convention on Human Rights, accepted that the criteria developed by the ECtHR equally applied.²⁶³ In *Mugiraneza*, the Appeals Chamber of the ICTR also developed criteria inspired to a great extent by those of the ECtHR. The Appeals Chamber found it necessary to consider the following factors: '1) The length of the delay; 2) The complexity of the proceedings, such as the number of charges, the number of accused, the number of witnesses, the volume of evidence, the complexity of facts and law; 3) The conduct of the parties; 4) The conduct of the relevant authorities; and 5) The prejudice to the accused if any'.²⁶⁴ Complexity encompasses all aspects necessary for deciding a case such as those referred to in *Mugiraneza*. Also the ECtHR spoke of similar elements revealing the complexity of a case and which accordingly render the delay justified. These may include a large amount of documentary evidence,²⁶⁵ the number of suspects involved,²⁶⁶ the number of witnesses,²⁶⁷ the size and complexity of the acts committed²⁶⁸ or the nature of the charges,²⁶⁹ the possibility of reaching these witnesses.²⁷⁰ Quite often delays in criminal proceedings can be attributed to other factors apart from the unique nature of the case. Delays may be caused by a certain behavior on the part of the suspect,²⁷¹ or the relevant authorities. This latter element is the most relevant for making a finding under article 17(2)(b). This is so because the actions undertaken or disregarded by the relevant authorities investigating or prosecuting a particular situation/case reflect their intention in relation to bringing a person to justice. The jurisprudence of the ECtHR and the IACHR could be also useful in this regard.²⁷²

²⁶² *Lazariu v. Romania*, Application No. 31973/03, ECtHR, Judgment (Merits) of 13 November 2014, para. 147. Notably, in this case the Court also referred to the element of 'what was at stake for the applicant in the dispute'.

²⁶³ *Genie- Lacayo v. Nicaragua*, Judgment of 29 January 1997, IACtHR (Ser. C) No. 30 (1997), para. 77.

²⁶⁴ *Prosecutor v. Prosper Mugiraneza*, No. ICTR-99-50-AR73, Decision on Prosper Mugiraneza's Interlocutory Appeal from Trial Chamber II Decision of 2 October 2003 Denying the Motion to Dismiss the Indictment, Demand Speedy Trial and for Appropriate Relief, Appeals Chamber, 27 February 2004, <<https://www.legal-tools.org/en/doc/87a7a4/>> accessed 7 March 2015.

²⁶⁵ *Ferrantelli and Santangelo v. Italy* (1), Application No. 19874/92, ECtHR, Judgment (Merits and Just Satisfaction) of 7 August 1996, para. 42 (where the Court, despite thinking the case complex when 'examined as a whole', reached the conclusion that the time requirement in article 6(1) had not been complied with because, 'and this is the decisive consideration, the applicants were not convicted with final effect until sixteen years after the events').

²⁶⁶ *Hager v. Finland*, Application No. 14724/02, ECtHR, Judgment (Merits and Just Satisfaction) of 17 January 2006, para. 29; *Eckle v. Germany*, Application No. 8130/78, ECtHR, Judgment (Merits) of 15 July 1982, paras 81, 85–87 (where the Court found that in the circumstances of the case as a whole, the delay was excessive and unjustified, despite the large amount of evidentiary material); and in the context of the IACtHR, *Genie- Lacayo v. Nicaragua*, Judgment of 29 January 1997, IACtHR (Ser. C) No. 30 (1997), paras 69 and 78 (noting that although the case was complex, due to 'very extensive' investigations and 'evidence copious' when weighed in light of the entire circumstances, a period of 5 years since the date when an order to initiate proceedings was issued was deemed lengthy and violated article 8(1) of the Convention).

²⁶⁷ *Wemhoff v. Germany*, Application No. 2122/64, ECtHR, Judgment (Merits and Just Satisfaction) of 27 June 1968, para. 20 (opinion of the Commission shared by the Court).

²⁶⁸ *Neumeister v. Austria*, Application No. 1936/63, ECtHR, Judgment (Merits) of 27 June 1968, para. 20.

²⁶⁹ *Calleja v. Malta*, Application No. 75274/01, ECtHR, Judgment (Merits and Just Satisfaction) of 7 April 2005, para. 128.

²⁷⁰ *Neumeister v. Austria*, Application No. 1936/63, ECtHR, Judgment (Merits) of 27 June 1968, para. 20; *Wemhoff v. Germany*, Application No. 2122/64, ECtHR, Judgment (Merits and Just Satisfaction) of 27 June 1968, para. 20 (opinion of the Commission shared by the Court).

²⁷¹ *Rylski v. Poland*, Application No. 24706/02, ECtHR, Judgment (Merits) of 4 July 2006, para. 76; *Corigliano v. Italy*, Application No. 8304/78, ECtHR, Judgment (Merits and Just Satisfaction) of 10 December 1982, paras 40 and 42.

²⁷² *Eckle v. Germany*, Application No. 8130/78, ECtHR, Judgment (Merits) of 15 July 1982, paras 27, 29–33, 74, 83–84; *Pelissier and Sassi v. France*, Application No. 25444/94, ECtHR, Judgment (Merits and Just Satisfaction) of 25 March 1999, paras 25–26 and 73; *Philis v. Greece* (no. 2) (1), Application No. 19773/92, ECtHR, Judgment (Merits and Just Satisfaction) of 27 June 1997, para. 40; *Genie- Lacayo v. Nicaragua*, Judgment

3. Lack of impartiality or independence

Should the ICC determine that the proceedings were not or are not being conducted 70 independently or impartially and are in fact being conducted in a manner which in the circumstances is inconsistent with an intent to bring the person to justice, the case will be admissible. Originally, this was to be put under the heading of inability, in the sense that the State could not provide for impartial proceedings and procedural guarantees for the accused person. However, during negotiations in Rome it appeared that proceedings could be defective even if they are not a sham. This would be the case if, for example, the State was acting in good faith, but other persons acted to cause a mistrial or to taint the evidence.²⁷³

Just as in the case of article 17(2)(b), Pre-Trial Chamber I refrained in its 11 October 2013 71 Al-Senussi Decision from developing the legal standard in relation to the interpretation of article 17(2)(c) and engaged in a purely factual analysis. In making its findings on the issue of impartiality and independence, the Chamber, for instance, considered that statements issued by public officials and which might violate the suspect's presumption of innocence are not sufficient to taint the domestic process. What matters is whether these statements were made by members of the judicial authorities dealing with the case.²⁷⁴ The Chamber also considered the information presented by the Libyan government under rule 51 of the Rules of Procedure and Evidence²⁷⁵ which showed that its courts met international human rights standards. This included information related to the conduct of judicial proceedings against the former Libyan prime minister in a different case and the acquittal of the former foreign minister.²⁷⁶ In light of this information and some other relevant information, the Chamber concluded that it was not persuaded that there was 'a systemic lack of independence and impartiality of the judiciary such that would demonstrate, alone or in combination with other relevant circumstances, that the proceedings against [the suspect]', were not conducted independently or impartially within the meaning of article 17(2)(c).²⁷⁷ Although this conclusion could be factually correct if applied against a well-developed legal standard, the Chamber refrained from doing so. It spoke of Libya meeting international human rights standards without showing what these international standards were, what is the meaning of independence or impartiality in the context of article 17(2) and how other international judicial bodies and regional human rights bodies have carried out this assessment. Thus, in making such a determination, the Court should have been guided by the ample jurisprudence of the regional human rights bodies and other international criminal tribunals in order to establish its own legal standard in resolving questions related to the quality of domestic investigations in terms of impartiality or independence.²⁷⁸

of 29 January 1997, IACtHR (Ser. C) No. 30 (1997), para. 80; *Cantos v. Argentina*, Judgment of 28 November 2002, IACtHR (Ser. C) No. 97 (2002), para. 56.

²⁷³ Holmes, in: Lee (ed.), *The Making of the Rome Statute* (1999) 41, 51. The only problem here is that article 17 speaks of unwillingness of a State. So if there were persons who are not affiliated with the State who intended to taint evidence, it is quite difficult to conclude that the State was unwilling due to partial proceedings, especially that these irregularities were not caused by the State. Although this is a narrow interpretation, the plain reading of article 17 'unless the State is unwilling' may suggest so. The recent jurisprudence of the Court tends to go in this direction. See *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, para. 241.

²⁷⁴ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, para. 241.

²⁷⁵ *ICC Rules of Procedure and Evidence*, No. ICC-ASP/1/3 and Corr.1, part II.A (2002), Rule 55(2).

²⁷⁶ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, paras 253–255.

²⁷⁷ *Ibid*, paras 241–258.

²⁷⁸ El Zeidy, *The Principle of Complementarity in International Criminal Law* (2008), 166–171, 175–203 (providing detailed examples based on the jurisprudence of the human rights bodies and international criminal tribunals on how to test these elements); Van der Wilt and Lyngdorf (2009) 9 *ICLRev* 39.

72 Article 14(1) of the International Covenant on Civil and Political Rights states that 'everyone shall be entitled' to a fair hearing by an independent and impartial tribunal.²⁷⁹ Further, article 6(1) of the European Convention on Human Rights,²⁸⁰ as well as Article 8(1) of the American Convention on Human Rights, employ similar language.²⁸¹ However, these provisions speak of an 'independent and impartial tribunal'. This language is quite different than that found in article 17(2)(c) which refers to national proceedings 'not being conducted independently or impartially'. It is possible to examine independence or impartiality of proceedings through the scope of independence and impartiality of a tribunal. National proceedings conducted by a tribunal which lacks independence or impartiality will certainly have a bearing or impact on the national process. To put it differently, a tribunal which falls short of prerequisites of independence and impartiality raises doubt about the independence or impartiality of the national proceedings conducted by this judicial body.²⁸² The notion of 'independence' refers to a body which is 'independent of the executive and also of the parties'.²⁸³ In *Crociani et al.*, the ECtHR also spoke of independence from Parliament as being a feature of an independent tribunal.²⁸⁴ Also in *Fell*, the ECtHR referred to other aspects of independence when it required that a tribunal should pay 'regard to the manner of appointment of its members and the duration of their term of office, the existence of guarantees against outside pressures and the question whether the body presents an appearance of independence'.²⁸⁵ These elements referred to in *Fell* have been developed in legal doctrine²⁸⁶ and in subsequent jurisprudence.²⁸⁷ On the other hand, impartiality 'denotes absence of prejudice or bias'.²⁸⁸ The IACtHR reached the conclusion that 'lack of necessary independence' has an effect on rendering 'impartial decisions'.²⁸⁹ This conclusion finds support in legal doctrine. According to one commentator, a judicial body lacking independence of the executive will not 'comply with the requirement of impartiality in cases to which the executive is a party'.²⁹⁰ In one of its early decisions, the ICTY Trial Chamber ruled that 'whether a court is independent and impartial depends [...] upon its constitution, its judges and the way in which they function'.²⁹¹ Same as in assessing delays in the criminal process, the ECtHR also developed criteria for testing independence and impartiality. In *Piersack*, the ECtHR elaborated a two tier test, one subjective and the other objective. In relation to the subjective test, it relied 'on the personal conviction of a given judge in a given case'.²⁹² In

²⁷⁹ ICCPR, article 14 (1).

²⁸⁰ ECHR, article 6 (1).

²⁸¹ ACHR, article 8 (1).

²⁸² In *Norman*, the Appeals Chamber of the SCSL argued in similar terms when it stated: '[A]n objection that the Court lacks judicial independence is basically, and in substance, an objection to the fairness of the trial and an allegation that the right of the accused to a fair hearing is likely to be infringed by the trial'. *Prosecutor v. Sam Hinga Norman*, No. SCSL-2004-14-AR72 (E), Decision on Preliminary Motion Based on Lack of Jurisdiction (Judicial Independence), Appeals Chamber, 13 March 2004, para. 4.

²⁸³ *Ringeisen v. Austria*, Application No. 2614/65, ECtHR, Judgment (Merits) of 16 July 1971, para. 95.

²⁸⁴ *Crociani, Palmiotti, Tanassi, Lefebvre D'ovidio v. Italy*, Application Nos. 8603/79; 8722/79; 8723/79, Eur. Comm. H.R., Decision of 18 December 1980 on the Admissibility of the Applications, at 212, 221.

²⁸⁵ *Campbell and Fell v. The United Kingdom*, Application No. 7819/77; 7878/77, ECtHR, Judgment (Merits and Just Satisfaction) of 28 June 1984, para. 78.

²⁸⁶ Harris, D. J. et al., *Law of the European Convention on Human Rights* (Butterworths 1995), 232.

²⁸⁷ See, *inter alia*, *Barbera, Messegue and Jabardo v. Spain*, Application No. 10590/83, ECtHR, Judgment (Merits) of 6 December 1988, paras 53-59; *Ocalan v. Turkey*, Application No. 46221/99, ECtHR, Judgment (Merits and Just Satisfaction) of 12 March 2003, para. 119; *Thomas Eccles and others v. Ireland*, Application No. 12839/87, Eur. Comm. H.R., Decision of 9 December 1988 on the Admissibility of the Application; *Sramek v. Austria*, Application No. 8790/79, ECtHR, Judgment (Merits and Just Satisfaction) of 22 October 1984, para. 42.

²⁸⁸ *Piersack v. Belgium*, Application No. 8692/79, ECtHR, Judgment (Merits) of 1 October 1982, para. 30.

²⁸⁹ *Judicial Guarantees in States of Emergency* (Arts. 27(2), 25 and (8) American Convention on Human Rights), *Advisory Opinion OC-9/87* of 6/10/1987, IACtHR (Series A) No. 9, para. 24.

²⁹⁰ Harris, D. J. et al., *Law of the European Convention on Human Rights* (1995) 234.

²⁹¹ *Prosecutor v. Duško Tadić a/k/a 'Dule'*, No. IT-94-1-T, Decision on the Defence Motion on Jurisdiction, Appeals Chamber, 10 August 1995, para. 32.

²⁹² *Piersack v. Belgium*, Application No. 8692/79, ECtHR, Judgment (Merits) of 1 October 1982, para. 30.

Demicoli, the Court spoke of the ‘interest of a particular judge in a given case’.²⁹³ Also a judge was deemed partial if he/she ‘had displayed any hostility or ill-will’,²⁹⁴ had acted ‘with personal bias’,²⁹⁵ or made special arrangements to be assigned with a case based on personal reasons.²⁹⁶ Regarding the objective test, as stated in *Marin*, it aims at considering whether a judge ‘offered guarantees sufficient to exclude any legitimate doubt in this respect’.²⁹⁷ The distinction in application between the subjective and objective tests was pointed out in *Warsicka*, where the ECtHR said in relation to the latter that ‘quite apart from the personal conduct of any of the members of that body, there are ascertainable facts which may raise doubts as to its impartiality’.²⁹⁸ Appearance is an important factor and the key factor is whether the lack of impartiality ‘can be held to be objectively justified’.²⁹⁹ The ECtHR has tackled different factual examples representing these elements in other jurisprudence.³⁰⁰ Applying either of the two tests depends on the particular circumstances of the case *sub judice*. As stated in *Micallef*,

‘there is no watertight division between subjective and objective impartiality since the conduct of a judge may not only prompt objectively held misgivings as to impartiality from the point of view of the external observer (objective test) but may also go to the issue of his or her personal conviction (subjective test).’³⁰¹

In the context of international criminal tribunals, it is worth referring to one of the first notable judgments issued by the ICTY Appeals Chamber. In *Furundžija*, the Appeals Chamber inspired by the jurisprudence of the ECtHR, developed a set of conditions for testing impartiality. According to the Appeals Chamber:

‘A. A Judge is not impartial if it is shown that actual bias exists.

B. There is an unacceptable appearance of bias if:

i) a Judge is a party to the case, or has a financial or proprietary interest in the outcome of a case, or if the Judge’s decision will lead to the promotion of a cause in which he or she is involved, together with one of the parties. Under these circumstances, a Judge’s disqualification from the case is automatic; or ii) the circumstances would lead a reasonable observer, properly informed, to reasonably apprehend bias.’³⁰²

The ICC may develop its own legal standard according to the established practice of these judicial bodies and adjust it to its procedure which is certainly quite distinct in nature.

²⁹³ *Demicoli v. Malta*, Application No. 13057/87, ECtHR, Judgment (Merits and Just Satisfaction) of 27 August 1991, para. 40.

²⁹⁴ *De Cubber v. Belgium*, Application No. 9186/80, ECtHR, Judgment (Merits) of 26 October 1984, para. 25.

²⁹⁵ *Hauschildt v. Denmark*, Application No. 10486/83, ECtHR, Judgment (Merits and Just Satisfaction) of 24 May 1989, para. 47.

²⁹⁶ *Kyprianou v. Cyprus*, Application No. 73797/01, ECtHR, Judgment (Merits and Just Satisfaction) of 15 December 2005, para. 119.

²⁹⁷ *Valentina Marin v. Romania*, Application No. 47448/13, ECtHR, Decision of 2 September 2014, para. 22; *Langborger v. Sweden*, Application No. 11179/84, ECtHR, Judgment (Merits and Just Satisfaction) of 22 June 1989, para. 32.

²⁹⁸ *Warsicka v. Poland*, Application No. 2065/03, ECtHR, Judgment (Merits) of 16 January 2007, para. 37.

²⁹⁹ *Morel v. France*, Application No. 34130/96, ECtHR, Judgment (Merits) of 6 June 2000, para. 42; *Ferarantelli and Santangelo v. Italy*, Application No. 19874/92, ECtHR, Judgment (Merits and Just Satisfaction) of 7 August 1996, para. 58.

³⁰⁰ See, *inter alia*, *Fehr v. Austria*, Application No. 19247/02, ECtHR, Judgment (Merits and just Satisfaction) of 3 February 2005, para. 30; *Depiets v. France*, Application No. 53971/00, ECtHR, Judgment (Merits) of 10 February 2004, para. 35.

³⁰¹ *Micallef v. Malta*, Application No. 17056/06, ECtHR, Judgment of 15 October 2009, para. 95.

³⁰² *Prosecutor v. Anto Furundžija*, IT-95-17/1-A, Judgement, Appeals Chamber, 21 July 2000, <<https://www.legal-tools.org/en/doc/c96f8e/>> accessed 7 March 2015, para. 189; for further details on the test, see, El Zeidy, in: Klip and Sluiter (eds.), *Annotated Leading Cases of International Criminal Tribunals*, xix (Hart Publisher 2010) 280.

III. Paragraph 3: Collapse or unavailability of the national judicial system

- 74 When determining the inability of the State to investigate or prosecute in a particular case, the ICC shall consider whether, due to a total or substantial collapse or unavailability of its national judicial system, the State is unable to obtain either the accused or the necessary evidence and testimony or otherwise carry out the proceedings. Situations such as ‘Somalia, lacking a central government, or a state of chaos due to a civil war or natural disasters, or any other event which leads to public disorder’³⁰³ were contemplated. When the Rome Statute was being drafted, the proposed complementarity mechanism was harshly criticised by experienced international criminal law personalities such as the Prosecutor of the *ad hoc* tribunals. Louise Arbour argued essentially that the regime would work in favour of rich, developed countries and against poor countries. Although the Court’s Prosecutor might easily make the claim that a justice system in an underdeveloped country was ineffective and therefore ‘unable’ to proceed, essentially for reasons of poverty, the difficulties involved in challenging a State with a sophisticated and functional justice system would be virtually insurmountable. It was feared that there was a danger that the provisions of article 17 would become a tool for overly harsh assessments of the judicial machinery in developing countries.
- 75 However, the current practice before the Court does not seem to be heading in that direction. Pre-Trial Chamber I’s acknowledgement of the revival of the justice system in Ituri in 2005 is a welcome development in this respect.³⁰⁴ In *Lubanga*, Pre-Trial Chamber I ruling on the request for issuing a warrant of arrest against the suspect corrected the Prosecutor’s position regarding the capacity of the Congolese justice system to carry out domestic proceedings. It noted the fact that Lubanga had been detained for nearly a year, and that proceedings were underway against him before national courts, which indicated that the Prosecutor’s position ‘that the DRC national justice system continues to be unable in the sense of article 17(1)(a) to (c) and (3), of the Statute does not wholly correspond to the reality any longer’.³⁰⁵ The Chamber still issued the warrant of arrest despite the Chamber’s acknowledgment of the DRC’s improved capacity to proceed because the State had not been investigating the same case as before the Court, and thus, there remained a situation of inactivity.

In the *Situation in Central African Republic*, the Prosecutor explained a rather lengthy delay between referral and his decision to initiate an investigation arguing that there was uncertainty about whether or not the State concerned was able to prosecute.³⁰⁶ Several years later, Trial Chamber III noted two decisions issued by the Bangui Court of Appeal and the *Cour de Cassation*, the country’s highest judicial body, ‘describing the court’s inability to undertake [the proceedings before the Court]’.³⁰⁷ The same Chamber also noted the position of the CAR representative who ‘stressed that [...] the presence of the MLC militia on the territory of CAR, as well as the areas of conflict, ma[d]e it impossible, given the security considerations, to organise and hold a trial against Mr Bemba on the territory of the CAR’.³⁰⁸ In a more recent development in the situation of Mali referred to the Court on

³⁰³ Arsanjani, in: von Hebel et al. (eds.), *Reflections on the International Criminal Court* (1999) 57, 70.

³⁰⁴ *Situation in the Democratic Republic of the Congo*, ICC-01/04-520-Anx2, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 February 2006 <<https://www.legal-tools.org/doc/73acb4/>> accessed 5 March 2015, para. 36.

³⁰⁵ *Ibid.*

³⁰⁶ *Situation in the Central African Republic*, ICC-01/05-7, Prosecution’s Report Pursuant to Pre-Trial Chamber III’s 30 November 2006 Decision Requesting Information on the Status of the Preliminary Examination of the Situation in the Central African Republic, Pre-Trial Chamber III, 15 December 2006 <<https://www.legal-tools.org/doc/1dd66a/>> accessed 6 March 2015, paras 9 and 12–20.

³⁰⁷ *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, Trial Chamber III, 24 June 2010 <<https://www.legal-tools.org/doc/a5de24/>> accessed 6 March 2015, paras. 134, 245.

³⁰⁸ *Ibid.*

18 July 2012, the Malian authorities indicated to the Prosecutor that the 'Malian courts were, following the withdrawal of the judicial services from the northern cities, unable to prosecute crimes allegedly committed by armed groups in Mali'.³⁰⁹ The Prosecutor has decided to open an investigation into alleged crimes committed on the territory of Mali since January 2012. Arguably the Prosecutor has done so mainly on the basis of the fact that, *inter alia*, 'no judicial proceedings have been instituted'³¹⁰ and that 'no other State with jurisdiction is conducting or has conducted national proceedings'.³¹¹ In all of these situations referred to the Court, it was these States initially acknowledging their lack of ability to carry out proceedings related to these situations rather than the Court. This suggests that at least the practice of the Court in relation to under developed countries has been so far moderate, despite the conclusions reached by Pre-Trial Chamber I in the *Gaddafi* and *Al-Senussi* case.³¹²

Article 17(3) sets out a number of scenarios whereby the Court can make a finding on the admissibility of the case on the basis of this criterion. To determine inability 'the Court shall consider whether, due to a total or substantial collapse or unavailability of its national judicial system, the State is unable to obtain the accused or the necessary evidence and testimony or otherwise unable to carry out its proceedings'.³¹³ Unlike the notion of unwillingness, the test of inability is much less subjective and rather inspired by elements of objectivity. The test has nothing to do, for instance, with determining the intentions of a State to shield a person from criminal responsibility. Rather, the test quite often relies on more straightforward facts revealing whether the State is actually in a position to conduct domestic proceedings in relation to a particular situation/case. This is clear from the scenarios provided in this provision such as the inability: 1) to obtain the accused; 2) to obtain the necessary evidence; or 3) to obtain the necessary testimony. Since the inability of the State could be the result of different reasons, the drafters of the Statute desired to close any gap and therefore added the phrase 'or otherwise unable to carry out its proceedings'. This latter insertion was intended to serve as a catch all clause for those situations which were not envisaged.³¹⁴ For the Court to make a finding on the inadmissibility of the case on this ground, it is not sufficient to show, for instance, that the State cannot obtain the accused. Rather it must be shown that the inability to obtain the accused was due to either a 'total or substantial collapse' of the State's 'national justice system' or its 'unavailability'. So far, the Court has been cautious to make any judicial pronouncement regarding a 'total or substantial collapse' of any State's judicial system. Libya, for example, could currently represent a scenario of failed State³¹⁵. Logically, such failure signals a sort of collapse in the organs of the State including its national judicial system. As observed by Prof. Crawford, 'failed State would seem to encompass various instances of governmental crisis and breakdown'.³¹⁶ It resembles a situation of 'State collapse [...] where the structure, authority (legitimate power), law, and political order have fallen apart and must be reconstituted in some form, old or new'.³¹⁷ It also reveals that 'a state's fundamental institutions have so deteriorated that it needs long-term external help, not to

³⁰⁹ *Situation in Mali: Article 53(1) Report*, 16 January 2013, para. 137; Also Referral Letter by the Government of Mali, 13 July 2012 <http://www.icc-cpi.int/en_menus/icc/situations%20and%20cases/situations/icc0112/Pages/situation%20index.aspx> accessed 6 March 2015.

³¹⁰ *Ibid.*, para. 138.

³¹¹ *Ibid.*, para. 140.

³¹² See mn 77–79.

³¹³ *Rome Statute*, article 17(3). For a detailed discussion on the legal interpretation of the different elements of article 17(3), see El Zeidy, *The Principle of Complementarity in International Criminal Law* (2008) 223 *et seq.*

³¹⁴ *Ibid.* 223–224.

³¹⁵ Engel, A., 'Libya As A Failed State: Causes, Consequences, Options', *The Washington Institute for Near East Policy*, Number 24–November 2014, p. 1, available at, http://www.washingtoninstitute.org/uploads/Documents/pubs/ResearchNote24_Engel-3.pdf.

³¹⁶ Crawford, J., *The Creation of States in International Law*, 2nd ed., (OUP 2006) 720.

³¹⁷ *Ibid.*; Zartman, W. I., 'Introduction: Posing the Problem of State Collapse', in Zartman(ed.), *Collapsed States: The Disintegration and Restoration of Legitimate Authority* (Rienner 1995) 1.

institutionalized foreign control but to create stronger domestic institutions capable of self-government'.³¹⁸ Nevertheless, what matters for the purpose of article 17(3) is the impact of such failure or the extent of the collapse on the actual operation of the national judicial system and on those relevant organs involved in the national proceedings. At least a 'substantial collapse' of the national judicial system is required to meet the threshold of article 17(3). This entails a collapse "of such intensity [which] affects a significant or considerable part of the domestic justice system – a degree of intensity that is sufficient to paralyze the system in fulfilling its functions regarding investigation, prosecution, trial and execution of sentence".³¹⁹ Maybe the collapse of such nature was not that clear when the Court ruled on the two admissibility challenges against Saif Al-Islam and Al-Senussi. However, nowadays there is a clear change of circumstance and it is for the Prosecutor to make an assessment as to whether the available information supports a finding that the present situation in Libya is of such an intensity that affects the proper functioning of its national justice system. Despite the apparent existence of new facts, the Prosecutor has not so far requested a review of the 11 October 2013 Al-Senussi Decision pursuant to article 19(10) of the Statute.³²⁰

- 77 Be it as it may, relying on the element of 'unavailability' of the State's national judicial system instead of its collapse has been the prevailing trend before the Court in its jurisprudence on inability. In the 24 June 2010 Bemba Decision,³²¹ Trial Chamber III considered, *inter alia*, the decision of the *Cour de Cassation* referred to above, the difficulty in securing the presence of Bemba due to his 'alleged power', the lack of necessary protective measures for witnesses, the 'complexity and the extent of the prosecution case', the expected lengthy duration of proceedings and the limited 'judicial services' available, and concluded that the 'national judicial system [in] CAR [was] *unavailable* [...] to handle these proceedings' (emphasis added).³²² Although the Chamber could have also relied on alternative elements of inability such as the inability to obtain the accused or the necessary evidence, it has not done so. This is understandable given that there were *various* reasons which impeded the national authorities from carrying out the national process. The Chamber apparently relied on the broader phrase 'otherwise unable to carry out its proceedings', in order to capture the wide range of problems facing the country. In a more recent and elaborate decision on inability (the 31 May 2013 Gaddafi Decision), Pre-Trial Chamber I found that Libya was neither able to secure the accused or obtain the necessary testimony, nor otherwise able to carry out the proceedings against Saif Al-Islam Gaddafi. The Chamber's finding was linked to the unavailability of the Libyan justice system.³²³ According to the Chamber, Libya 'continued to face substantial difficulties in exercising its judicial powers fully across the entire territory. Due to these difficulties, [...] its national system

³¹⁸ Clarke, W., Herbst, J., 'Somalia and the Future of Humanitarian Intervention', (1996) 75 *Foreign Affairs* 84.

³¹⁹ See also, El Zeidy, *The Principle of Complementarity in International Criminal Law* (2008) 224–226.

³²⁰ Rome Statute, article 19(10); rule 62 of the RPE. However, see *Ninth Report of the Prosecutor of the International Criminal Court to the UN Security Council Pursuant to UNSCR 1970(2011)*, para. 16 (noting that on the basis of the Prosecutor's access to the data regarding the national proceedings against Al-Senussi, the information obtained from the United Nations Support Mission in Libya, the Libyan Prosecutor General's office, and from independent civil society, she concluded that her office 'is not in possession of new facts that would fully satisfy [...] that the basis on which the case against Mr Al-Senussi had previously been found inadmissible before the ICC has been negated').

³²¹ Although in this decision Trial Chamber III failed to provide a legal interpretation to the different constituent elements of article 17(3), it still relied on this provision from a purely factual perspective to arrive at its conclusion.

³²² *Prosecutor v. Jean-Pierre Bemba Gombo*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, Trial Chamber III, 24 June 2010 <<https://www.legal-tools.org/doc/a5de24/>> accessed 6 March 2015, paras 245–246.

³²³ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-344-Red, Decision on the Admissibility of the Case against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 31 May 2013 <<https://www.legal-tools.org/doc/339ee2/>> accessed 5 March 2015, para. 205.

cannot yet be applied in full in areas or aspects relevant to the case, being thus ‘unavailable’ within the terms of article 17(3) of the Statute’.³²⁴

With respect to the inability to obtain the accused, there were several allegations by the Libyan government that the suspect will be transferred from his place of detention under the custody of a militia in Zintan.³²⁵ However, the Libyan authorities failed to secure such transfer to Tripoli,³²⁶ where his trial should have been conducted. As such, the Chamber considered that this is a form of inability to obtain the accused within the meaning of article 17(3) of the Statute.³²⁷ Also, the failure of the central government to conduct interviews with two witnesses held in detention, beyond the reach of the Libyan authorities was a factor in determining that Libya was unable to obtain the necessary testimony as provided in article 17(3).³²⁸ The same holds true with respect to the lack of witness protection programmes, which was another indication for the Chamber that Libya lacked the means to protect witnesses who agreed to testify.³²⁹ Further, the lack of independent legal representation for the suspect by way of securing a qualified lawyer to defend the suspect throughout the proceedings was an indication that Libya was ‘otherwise unable to carry out its proceedings’.³³⁰ This was due to the fact that the lack of a counsel constituted a bar to the conduct of a trial, which in effect meant that Libya was unable to carry out its national proceedings against the suspect.

By contrast, in the 11 October 2013 Al-Senussi Decision, the same Chamber did not consider that the lack of witness protection programmes and absence of control by the central government over certain ‘detention facilities’ constituted inability. Instead, the Chamber believed that these factors were decisive only in the 31 May 2013 Gaddafi Decision as they ‘prevent[ed] Libya from obtaining “the necessary evidence and testimony”’.³³¹ This was not the case in the 11 October 2013 Al-Senussi Decision where Libya managed to gather ‘a considerable amount of evidence’ against the suspect despite the security concerns or lack of governmental control in relation to some prisons.³³² Thus, according to this precedent, the decisive factor in making a ruling on the State’s inability is whether the domestic proceedings have been ‘prejudiced’ by the existence of security challenges.³³³ In the context of the *Al-Senussi* case, the Chamber considered that the overall progressive steps undertaken in relation to the judicial proceedings against him ‘[did] not result in Libya’s inability genuinely to carry out its proceedings’.³³⁴ This indicates that a determination of inability should not be conducted in the abstract and thus it requires a case-by-case assessment.

³²⁴ *Ibid.*

³²⁵ *Ibid.* para. 206.

³²⁶ *Ibid.* paras. 206–207.

³²⁷ *Ibid.* para. 208.

³²⁸ *Ibid.* para. 210.

³²⁹ *Ibid.* para. 211.

³³⁰ *Ibid.* paras. 213–214.

³³¹ *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 October 2013 <<https://www.legal-tools.org/doc/af6104/>> accessed 5 March 2015, para. 297.

³³² *Ibid.* para. 298.

³³³ *Ibid.* paras. 299–301.

³³⁴ *Ibid.* paras. 301 and 303.

Article 18

Preliminary rulings regarding admissibility

1. When a situation has been referred to the Court pursuant to article 13 (a) and the Prosecutor has determined that there would be a reasonable basis to commence an investigation, or the Prosecutor initiates an investigation pursuant to articles 13 (c) and 15, the Prosecutor shall notify all States Parties and those States which, taking into account the information available, would normally exercise jurisdiction over the crimes concerned. The Prosecutor may notify such States on a confidential basis and, where the Prosecutor believes it necessary to protect persons, prevent destruction of evidence or prevent the absconding of persons, may limit the scope of the information provided to States.

2. Within one month of receipt of that notification, a State may inform the Court that it is investigating or has investigated its nationals or others within its jurisdiction with respect to criminal acts which may constitute crimes referred to in article 5 and which relate to the information provided in the notification to States. At the request of that State, the Prosecutor shall defer to the State's investigation of those persons unless the Pre-Trial Chamber, on the application of the Prosecutor, decides to authorize the investigation.

3. The Prosecutor's deferral to a State's investigation shall be open to review by the Prosecutor six months after the date of deferral or at any time when there has been a significant change of circumstances based on the State's unwillingness or inability genuinely to carry out the investigation.

4. The State concerned or the Prosecutor may appeal to the Appeals Chamber against a ruling of the Pre-Trial Chamber, in accordance with article 82. The appeal may be heard on an expedited basis.

5. When the Prosecutor has deferred an investigation in accordance with paragraph 2, the Prosecutor may request that the State concerned periodically inform the Prosecutor of the progress of its investigations and any subsequent prosecutions. States Parties shall respond to such requests without undue delay.

6. Pending a ruling by the Pre-Trial Chamber, or at any time when the Prosecutor has deferred an investigation under this article, the Prosecutor may, on an exceptional basis, seek authority from the Pre-Trial Chamber to pursue necessary investigative steps for the purpose of preserving evidence where there is a unique opportunity to obtain important evidence or there is a significant risk that such evidence may not be subsequently available.

7. A State which has challenged a ruling of the Pre-Trial Chamber under this article may challenge the admissibility of a case under article 19 on the grounds of additional significant facts or significant change of circumstances.

Literature: John T. Holmes, *Complementarity: National Courts versus the ICC*, in: Antonio Cassese/Paola Gaeta/John R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* 667 (2002); *id.*, *Jurisdiction and Admissibility*, in: Roy S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* 321 (2001); *id.*, *The Principle of Complementarity*, in: Roy S. Lee (ed.), *The International Criminal Court: the Making of the Rome Statute – Issues – Negotiations – Results* 41 (1999); Héctor Olásolo, *The Triggering Procedure of the International Criminal Court* (2005); Jann K. Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007); Mohamed M. El Zeidy, *The Principle of Complementarity in International Criminal Law* (2008); Joe Stigen, *The Relationship Between the International Criminal Court and National Jurisdictions: The Principle of Complementarity* (2008); William A. Schabas, 'Article 18: Preliminary Rulings Regarding Admissibility/Décision préliminaire sur la recevabilité', in: *The International Criminal Court: A Commentary On The Rome Statute* 353 (2010); Joe Stigen, 'The Admissibility Procedures', in: Carsten Stahn/Mohamed El Zeidy (eds.), *The International Criminal Court and Complementarity: from Theory to Practice* 503, Vol. I (2011); Silvain Sana, 'Article 18: Décision préliminaire sur la recevabilité', in: Julian Fernandez/Xavier Paccreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire Article par Article* 711, Vol. I (2012).

A. Introduction

I. Historical developments and drafting history

This provision was first proposed for inclusion into the Statute as article 11*bis* during the 1 last Preparatory Committee proceedings – less than four months before the Statute was finalised – at the urging of the United States¹. It was included in the Preparatory Committee Draft and repositioned as article 16 without substantive alteration². The ILC Draft³ did not contain anything like it, since it did not provide for an independent Prosecutor with the power to initiate investigations *proprio motu*. Under the ILC Draft, only States and the Security Council could trigger the jurisdiction of the Court⁴. It was only after it became apparent during the Preparatory Committee and the Rome Diplomatic Conference meetings that a majority of States favoured an independent Prosecutor with *proprio motu* powers, that the provision was introduced as a check on the Prosecutor's powers.

The drafters of the Statute recognized that States already had jurisdiction over the crimes 2 that the ICC was being set up to try. They also recognized the advantages of national jurisdiction over that of the ICC⁵. So, unlike the drafters of the Statutes of the Yugoslavia and Rwanda Tribunals who gave those Tribunals primacy over national courts, the drafters of the ICC Statute made the ICC's jurisdiction secondary or complementary to that of States⁶. States have a prior right to exercise that jurisdiction. As long as they are exercising it genuinely and effectively, the Court must defer to them. Thus where both a State and the Court have simultaneously asserted jurisdiction over the same situation or case, the Court must yield to State jurisdiction. But, under the ILC Draft, the earliest stage at which 'an interested State' could have asserted its jurisdiction and stopped the Court's involvement was at the post-investigation phase, after charges would have already been framed and proffered against a particular individual or individuals⁷. However, a number of States, notably the United States, favoured an arrangement where an interested State could stop the Court's involvement at an earlier stage. What eventually became article 18 was inserted at their insistence, as it would help them attain that desideratum⁸.

Preparatory Committee Draft article 16 contained five subsections. It applied to *all* the 3 mechanisms by which the Court's jurisdiction could be triggered – State Party referral, UN Security Council referral or the Prosecutor acting *proprio motu*. Once the Prosecutor had determined that a sufficient basis existed to commence an investigation, a public announce-

¹ See *Proposal submitted by the United States of America: Article 11 bis – Preliminary rulings regarding admissibility*, UN Doc. A/AC.249/1998/WG.3/DP.2 (25 Mar. 1998). This proposal was included as Article 11 *bis* in the Preparatory Committee's draft of Part 2 of the Statute: *Draft Statute for the International Criminal Court – Part 2: Jurisdiction, Admissibility and Applicable Law*, UN Doc.A/AC.249/1998/CRP.8 (2 Apr. 1998), pp. 33–34.

² See *Report of the Preparatory Committee on the Establishment of an International Criminal Court – Addendum: Part One – Draft Statute for the International Criminal Court*, UN Doc.A/CONF.183/2/Add.1 (14 Apr. 1998), pp. 42–43.

³ See ILC Draft Statute for an International Criminal Court, in *Report of the International Law Commission on the Work of its Forty-sixth Session* (2 May – 22 July 1994), UN Doc.A/49/10 (1994), in: *Yearbook of the International Law Commission 1994 – Volume II, Part Two* (1997), UN Doc.A/CN.4/SER.A/1994/Add.1 (Part 2), pp. 26–74.

⁴ ILC Draft articles 21, 23, 25, *Ibid.*, pp. 41–46.

⁵ See *Report of the Ad hoc Committee on the Establishment of an International Criminal Court*, UN Doc.A/50/22 (6 Sep. 1995), para. 31.

⁶ See paragraph 10 of the Preamble, as well as articles 1 and 17 of the Statute.

⁷ See ILC Draft article 35, *supra* note 3, p. 52, concerning 'Issues of admissibility' under which 'the accused' or 'an interested State' could challenge the admissibility of 'a case' already before the Court, on the ground, *inter alia*, that the case 'has been duly investigated' or is 'under investigation'.

⁸ See Statement of the US Delegation on Article 11*bis* – *Preliminary Rulings Regarding Admissibility*, UN Doc.A/AC.249/1998/WG.3/DP.2 (3 Apr. 1998). Generally see Bleich (1997) 13 NEP 230.

ment would follow and only States Parties would be formally notified. A State with jurisdiction would then have an undetermined number of days in which to inform the Court that it was investigating the same matter, and the Prosecutor would have to defer to that State upon its request ‘unless the Prosecutor determine[d] that there [was] a total or partial collapse or unavailability of the State’s national judicial system, or the State [was] unwilling or unable’ to carry out genuine investigations and prosecutions. Such a determination had to be confirmed by the Pre-Trial Chamber before an investigation could start. The relevant State could appeal the Pre-Trial Chamber’s confirmation but would need either a two-thirds majority or a unanimous Appeals Chamber bench in order to succeed. A deferral by the Prosecutor to a State’s investigation would be open to review by the Prosecutor at either a six month or one year interval and he or she could request periodic reports from that State on the progress of its investigations and prosecutions. States Parties would have to respond to such requests without undue delay. A challenge pursuant to Preparatory Committee Draft article 16 did not prejudice a State’s right to challenge the admissibility of a case pursuant to what is now article 19⁹.

- 4 Upon the introduction of Preparatory Committee Draft article 16 at the Diplomatic Conference, the United States representative posited that due to the support for the referral of overall situations to the Court by the UN Security Council, a State party, or the Prosecutor acting *proprio motu*, ‘it would [...] seem necessary to provide for a procedure, at the outset of a referral, which would recognize the ability of national judicial systems to investigate and prosecute the crimes concerned.’ Under the proposal, ‘the Prosecutor would be able to proceed immediately to conduct an independent investigation if, in the face of a challenge by a national judicial system, the Prosecutor could persuade the judge to allow him to do so.’ The proposed article ‘concerned an overall matter referred to the Court at an earlier stage, when no particular suspects had been identified’ and was intended to be consistent with (but independent from) what is now contained in article 19 paras. 2 and 4, where a State or the person concerned could challenge the admissibility of a concrete case relating to specific persons¹⁰.
- 5 The initial reaction of States to the Draft article 16 was mixed; some States supported it¹¹ or only parts of the article¹², others opposed it¹³ or expressed doubt¹⁴, while various other States awaited further clarifications before they would take a firm stance on the matter¹⁵.
- 6 The United States eventually submitted a revised version of Preparatory Committee Draft article 16 containing seven subsections¹⁶ which was incorporated into a Bureau discussion paper on jurisdiction, admissibility and applicable law and was left open for further discussions; no alternative proposals for article 16 were provided to the delegates¹⁷. This version

⁹ Preparatory Committee Draft article 16 paras. 1–5.

¹⁰ UN Doc.A/CONF.183/C.1/SR.11 (22 Jun. 1998), para. 25 (Mr. Scheffer – United States of America).

¹¹ UN Doc.A/CONF.183/C.1/SR.11 (22 Jun. 1998), paras. 27 (Mr. Gonzalez Glavez – Mexico), 29 (Mr. Salinas – Chile), 33 (Mr. Bazel – Afghanistan); UN Doc.A/CONF.183/C.1/SR.12 (23 Jun. 1998), paras. 2 (Mr. Nagamine – Japan), 3 (Ms. Cueto – Cuba), 5 (Mr. Effendi – Indonesia), 10 (subject to a reservation regarding the criteria for determining unwillingness) (Mr. Rama Rao – India), 22 (subject to improved drafting) (Mr. Bello – Nigeria), 40 (Mr. Niyomrerks – Thailand).

¹² UN Doc.A/CONF.183/C.1/SR.11 (22 Jun. 1998), para. 47 (Ms. Le Fraper du Hellen – France); UN Doc.A/CONF.183/C.1/SR.12 (23 Jun. 1998), para. 1 (Mr. Abdelkader Mahmud – Iraq).

¹³ UN Doc.A/CONF.183/C.1/SR.11 (22 Jun. 1998), paras. 28 (Mr. Corthout – Belgium), 40 (Ms. Lehto – Finland), 43 (Mr. Yopez Martinez – Venezuela), 46 (Ms. Wyrozumska – Poland); UN Doc.A/CONF.183/C.1/SR.12 (23 Jun. 1998), paras. 16 (Mr. Zellweger – Switzerland), 21 (Ms. Kolshus – Norway), 25 (Mr. Fadl – Sudan), 34 (Mr. Stillfried – Austria), 46 (Mr. Diaz Paniagua – Costa Rica).

¹⁴ UN Doc.A/CONF.183/C.1/SR.11 (22 Jun. 1998), paras. 34 (Ms. Wilmshurst – United Kingdom), 35 (Ms. Diop – Senegal); UN Doc.A/CONF.183/C.1/SR.12 (23 Jun. 1998), paras. 13 (Mr. Nyasulu – Malawi), 26 (Mr. Politi – Italy), 35 (Mr. Minoves Triquell – Andorra), 36 (Ms. Wong – New Zealand).

¹⁵ UN Doc.A/CONF.183/C.1/SR.11 (22 Jun. 1998), paras. 36 (Mr. Skillen – Australia), 38 (Mr. Syquia – The Philippines), 39 (Mr. Zimmermann – Germany), 41 (Ms. Vargas – Colombia), 42 (Mr. Nathan – Israel).

¹⁶ See *Proposal submitted by the United States of America: Article 16 – Preliminary rulings regarding admissibility*, UN Doc.A/CONF.183/C.1/L.25 (29 Jun. 1998).

¹⁷ See *Bureau Discussion Paper: Part 2 – Jurisdiction, admissibility and applicable law*, UN Doc.A/CONF.183/C.1/L.53 (6 Jul. 1998), article 16 paras. 1–7.

dropped the requirement of a public announcement when the Prosecutor determined that a sufficient basis to commence an investigation existed, expanded the notification requirements of the Prosecutor to include 'any non-States Parties that may have jurisdiction' and permitted such notification on a confidential basis 'to protect persons or prevent destruction of evidence'. It set a one-month deadline upon which a State could inform the Prosecutor that it was investigating the relevant matter. Additionally, the Prosecutor's ability to review deferrals was set to six months after the date of the referral but was also expanded to any time where 'significant change[s] of circumstances indicat[ed] that the State ha[d] become unwilling or unable to genuinely carry out the investigation.' The Prosecutor could also seek the Pre-Trial Chamber's permission, pending a ruling on his or her determination that a State was unwilling or unable to proceed with an investigation, to pursue investigative steps where a unique opportunity arose to obtain important evidence or where there was a significant risk that such evidence would subsequently become unavailable. The requirement of a two-thirds majority or a unanimous Appeals Chamber bench for a successful appeal of the Pre-Trial Chamber's decision on the Prosecutor's determination was dropped and the Prosecutor was also afforded the opportunity to appeal. Pending the outcome of an appeal, the Appeals Chamber could authorize the Prosecutor to proceed with an investigation¹⁸.

Some States were still not entirely convinced with the article or opposed it outright¹⁹, with some expressing the view that it imposed hurdles upon the functioning of the Court²⁰. Nevertheless, it received support from numerous other States²¹, particularly in light of the principle of complementarity and the Prosecutor being afforded *proprio motu* powers²², or that it would be more palatable upon further redrafting²³.

In light of further discussions, the article was again amended and presented as part of a larger Bureau proposal on articles relating to jurisdiction, admissibility and applicable law²⁴. Significantly, this version dropped from within its ambit the trigger mechanism of a UN Security Council referral and altered the standard for the Prosecutor's determination to commence an investigation from 'sufficient basis' to 'reasonable basis'. While the Prosecutor's notification obligation could still be effected on a confidential basis to States and non-States Parties, he or she could also 'limit the scope of the information provided' so as to protect persons, prevent destruction of evidence and additionally, to prevent the absconding of persons. Further, the Prosecutor's ability to determine formally whether a State was unwilling or unable to investigate upon that State's request for a deferral (subject to confirmation by the Pre-Trial Chamber) was changed. Now, authority had to be sought from the Pre-Trial Chamber in order for the Prosecutor to proceed with his or her

¹⁸ *Ibid.*, article 16 paras. 1–6.

¹⁹ UN Doc.A/CONF.183/C.1/SR.29 (9 Jul. 1998), paras. 156 (Mr. Oumarmaiga – Mali), 178 (Ms. Kasyanju – Tanzania); UN Doc.A/CONF.183/C.1/SR.30 (9 Jul. 1998), paras. 13 (Mr. Onkelinx – Belgium), 70 (Ms. Daskalopoulou-Livada – Greece), 118 (Mr. Yañez-Barnuevo – Spain); UN Doc.A/CONF.183/C.1/SR.31 (9 Jul. 1998), paras. 17 (Mr. Ngatse – Congo), 25 (Ms. La Haye – Bosnia and Herzegovina), 43 (Mr. Pandler – Hungary).

²⁰ UN Doc.A/CONF.183/C.1/SR.29 (9 Jul. 1998), para. 66 (Mr. Dabor – Sierra Leone); UN Doc.A/CONF.183/C.1/SR.30 (9 Jul. 1998), para. 17 (Mr. Robinson – Jamaica); UN Doc.A/CONF.183/C.1/SR.31 (9 Jul. 1998), para. 38 (Ms. Plejić-Marković – Croatia).

²¹ UN Doc.A/CONF.183/C.1/SR.30 (9 Jul. 1998), paras. 31 (Mr. Bello – Nigeria), 34 (Ms. Shahan – Libyan Arab Jamahiriya), 78 (Mr. Effendi – Indonesia), 80 (Mr. Azoh-Mbi – Cameroon), 90 (Ms. Mekhemar – Egypt), 96 (Ms. Lehto – Finland), 104 (Mr. Güney – Turkey); UN Doc.A/CONF.183/C.1/SR.31 (9 Jul. 1998), paras. 11 (Mr. De Saram – Sri Lanka), 22 (Mr. Abdalla Ahmed – Iraq), 30 (Mr. Hadi – United Arab Emirates).

²² UN Doc.A/CONF.183/C.1/SR.29 (9 Jul. 1998), paras. 102 (Mr. Wenaweser – Liechtenstein), 145 (Mr. Ivan – Romania), 186 (Mr. Kaul – Germany); UN Doc.A/CONF.183/C.1/SR.30 (9 Jul. 1998), para. 24 (Mr. Hafner – Austria); UN Doc.A/CONF.183/C.1/SR.31 (9 Jul. 1998), paras. 29 (Mr. Nega – Ethiopia), 42 (Mr. Mirzaee Yengejeh – Iran).

²³ UN Doc.A/CONF.183/C.1/SR.29 (9 Jul. 1998), paras. 123 (Mr. Rwelamira – South Africa), 161 (Mr. Al Hussein – Jordan); UN Doc.A/CONF.183/C.1/SR.30 (9 Jul. 1998), paras. 62 (Mr. Krokmal – Ukraine), 123 (Mr. Politi – Italy); UN Doc.A/CONF.183/C.1/SR.31 (9 Jul. 1998), paras. 19 (Mr. Mahmood – Pakistan), 37 (Mr. Gonzalez Galvez – Mexico).

²⁴ See *Bureau Proposal: Part 2 – Jurisdiction, admissibility and applicable law*, UN Doc.A/CONF.183/C.1/L.59 (10 Jul. 1998), article 16 paras. 1–7.

investigation (rather than the Chamber confirming (or not) the Prosecutor's determination). The Prosecutor could still defer to a State's investigation if the State with jurisdiction was not notified by the Prosecutor of his or her determination or if the State failed to inform the Prosecutor of its investigation within the one-month deadline. Pre-Trial Chamber oversight was also added to the Prosecutor's review of deferrals upon significant changes in the State's willingness and ability to genuinely investigate. However, where the State concerned failed to provide information to the Prosecutor on the progress of its investigations and/or prosecutions, the Prosecutor could seek a ruling from the Pre-Trial Chamber on the State's unwillingness or inability to carry out such actions²⁵.

- 9 While the amended article 16 still provoked some opposition among States, such opposition was noticeably less than that to previous versions²⁶. Instead, States either supported the provision as presented²⁷, or expressed reservations as to its drafting (rather than opposing the article as a whole)²⁸, with States again stressing complementarity and its utility as a check on the Prosecutor's *proprio motu* powers²⁹. Further behind the scenes negotiations and redrafting ensued, eventually leading to the article's text as it presently appears in the Statute and to the repositioning into its final resting place as article 18³⁰. It was adopted together with other provisions on jurisdiction, admissibility and applicable law the following evening by the Committee of the Whole³¹ and approved as part of the final Statute that same evening³².

II. Purpose

- 10 This provision serves four principal purposes. First, it underscores the primary responsibility and right of States Parties to investigate and prosecute crimes within the Court's jurisdiction. As sovereign States they have a right to prosecute and punish crimes that take place on their territory or otherwise fall within their jurisdiction. They also have a duty as members of the family of nations to investigate and prosecute those crimes. In a sense, then, the provision aims at giving them 'the right to act first', *Recht des ersten Zugriffs*³³. Second, the provision enables States to assert their superior jurisdiction at an early stage, before the Prosecutor gets involved through investigations where, '[o]ften[] no individual suspects will have been identified [...], nor will the exact conduct nor its legal classification be clear.'³⁴

²⁵ *Ibid.*, article 16 paras. 1–5. It is worth noting in this context that the records do not appear to show specific discussions among States that would shed light on the reason(s) why the UN Security Council trigger mechanism was dropped from article 16 para. 1.

²⁶ UN Doc.A/CONF.183/C.1/SR.33 (13 Jul. 1998), paras. 21 (Mr. Caflisch – Switzerland), 85 (Ms. Plejić-Marković (Croatia); UN Doc.A/CONF.183/C.1/SR.34 (13 Jul. 1998), paras. 58 (Mr. Rwelamira – South Africa), 100 (Ms. Wyrozumska – Poland).

²⁷ UN Doc.A/CONF.183/C.1/SR.34 (13 Jul. 1998), paras. 52 (Mr. Güney – Turkey), 84 (Mr. Panin – Russian Federation); UN Doc.A/CONF.183/C.1/SR.35 (13 Jul. 1998), paras. 36 (Mr. Effendi – Indonesia), 65 (Mr. Al Adhami – Iraq), 75 (Mr. Pandler – Hungary).

²⁸ UN Doc.A/CONF.183/C.1/SR.33 (13 Jul. 1998), paras. 67 (Mr. Asamoah – Ghana), 72 (but reserving its position on the article) (Mr. Westdickenberg – Germany); UN Doc.A/CONF.183/C.1/SR.34 (13 Jul. 1998), paras. 30 (Mr. Van Boven – The Netherlands), 37 (Mr. Yañez-Barnuevo – Spain), 113 (Mr. Gonzalez Galvez – Mexico); UN Doc.A/CONF.183/C.1/SR.35 (13 Jul. 1998), paras. 13 (Mr. Bello – Nigeria), 43 (Mr. Rodriguez Cedeño – Venezuela), 55 (Mr. Mahmood – Pakistan), 74 (Mr. Da Costa Lobo – Portugal); UN Doc.A/CONF.183/C.1/SR.36 (13 Jul. 1998), para. 39 (Mr. Minoves Triquell – Andorra).

²⁹ UN Doc.A/CONF.183/C.1/SR.34 (13 Jul. 1998), paras. 8 (Mr. Saland – Sweden), 90 (Mr. Vergne Saboia – Brazil); UN Doc.A/CONF.183/C.1/SR.35 (13 Jul. 1998), paras. 17 (Mr. Politi – Italy), 32 (Mr. Bouguetaia – Algeria), 48 (Mr. Manongi – Tanzania), 52 (Mr. Wenaweser – Liechtenstein), 82 (Ms. O'Donoghue – Ireland), 85 (Ms. Skeleman – Botswana).

³⁰ See Part 2 – Jurisdiction, admissibility and applicable law, UN Doc.A/CONF.183/C.1/L.76/Add.2 (16 Jul. 1998), article 18 paras. 1–7.

³¹ UN Doc.A/CONF.183/C.1/SR.42 (17 Jul. 1998), paras. 35–36.

³² UN Doc.A/CONF.183/SR.9 (17 Jul. 1998), paras. 8–10.

³³ See Ambos (1997) 53 *RevlCommJurists* 45.

³⁴ *Prosecutor v. Muthaura et al.*, Case No. ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the

Third, it ensures that the Prosecutor, in the exercise of his or her discretionary powers, is accountable to some superior authority. Some States, accustomed to a prosecutor who, under their national systems, is accountable to some higher authority (such as the Minister of the Interior and ultimately Parliament) were wary of an international Prosecutor who was accountable to nobody. They feared that their national sovereignty might be compromised by decisions of a lone individual who, under the guise of investigations, might have other hidden political agendas or ulterior motives aimed at embarrassing targeted States. The provision serves to allay these fears via the involvement of the Pre-Trial Chamber, composed as it is of independent judges from different nations and legal systems. The Chamber helps check what some States perceived as a 'loose cannon' Prosecutor with unbridled powers by vesting it with the power to grant or to withhold authorization for his or her investigations. Fourth, the involvement of the Chamber at such an early stage of the proceedings also serves to protect the Prosecutor from unfounded accusations of bias and from political manipulations on the part of some powerful States. This is all the more important since any State Party may refer a situation in *another* State Party to the Prosecutor for investigation and prosecution³⁵. However, as of 31 May 2015, there have been no public decisions issued by the Court pursuant to article 18 proceedings.

III. Scope

Article 18 applies only when the Prosecutor is acting in response to a referral by a State Party under article 13 para. (a) or when he or she is acting on his or her own initiative under articles 13 para. (c) or 15 (which can also be exercised subsequent to an *ad hoc* declaration under article 12 para. 3³⁶). The article does not apply where the Prosecutor is acting in response to a referral by the Security Council, under Chapter VII of the United Nations Charter³⁷. While the *travaux préparatoires* reveal that article 18 was not so originally restricted³⁸, it remains unclear exactly why Security Council referrals were removed from within its scope³⁹. However, it should be noted that the Council has primacy in matters involving international peace and security. Its decisions are binding on all States. Judicial proceedings are among the measures that it may opt for as a means of maintaining or restoring international peace and security. Once it has opted for and sanctioned such measures, there is no need for the Prosecutor to seek and obtain any further authorization from the Pre-Trial Chamber or from any other authority. The Prosecutor must forthwith proceed to investigate the situation referred to him or her under article 13 para. (b) of the

Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 38; *Prosecutor v. Ruto et al.*, Case No. ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 39.

³⁵ See article 13 para. (a).

³⁶ See for example, *Situation in the Republic of Côte d'Ivoire*, Case No. ICC-02/11-14-Corr, Corrigendum to 'Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire', Pre-Trial Chamber III, 15 Nov. 2011 (where the Prosecutor sought authorization from the Pre-Trial Chamber to exercise his *proprio motu* powers to commence an investigation into the situation in Côte d'Ivoire's following that State's article 12 para. 3 declaration).

³⁷ See article 13 para. (b).

³⁸ See *Proposal submitted by the United States of America: Article 11 bis – Preliminary rulings regarding admissibility*, UN Doc. A/AC.249/1998/WG.3/DP.2 (25 Mar. 1998), article 11 *bis* para. 1; Preparatory Committee Draft article 16 para. 1; *Proposal submitted by the United States of America: Article 16 – Preliminary rulings regarding admissibility*, UN Doc.A/CONF.183/C.1/L.25 (29 Jun. 1998), article 16 para. 1; *Bureau Discussion Paper: Part 2 – Jurisdiction, admissibility and applicable law*, UN Doc.A/CONF.183/C.1/L.53 (6 Jul. 1998), article 16 para. 1; *supra* notes 1, 9, 16, 17.

³⁹ See *Bureau Proposal: Part 2 – Jurisdiction, admissibility and applicable law*, UN Doc.A/CONF.183/C.1/L.59 (10 Jul. 1998), article 16 para. 1; *supra* notes 24, 25.

Statute, unless he or she determines that there is no reasonable basis to proceed⁴⁰. If his or her findings so warrant, the Prosecutor must then commence the necessary criminal proceedings against the person(s) concerned. It should also be recalled that by virtue of rule 163 subrule 2, article 18 has no application to (article 70) offences against the administration of justice.

IV. Source of the rule

- 12 The rule requiring judicial authorization to commence criminal investigations appears to be novel. There would appear to be no precedent for it either in international law or national or comparative law. Generally speaking, most of the developed legal systems of the world do not assign a role to the judiciary at the initial stages of criminal investigations. The only time when the judiciary gets involved in the process is when the investigators seek its authorization to use coercive measures, such as arrest and detention, search and seizure, or wiretapping and surveillance. It is only when the investigations are under way or when they are over but before trial that the judiciary gets involved, usually to confirm the indictment or charges before the suspect can be arraigned. In confirming the indictment or charge, the judiciary seeks to establish that the indictment or charge discloses a *prima facie* case or *einen hinreichenden Tatverdacht* (sufficient suspicion). This role may be played by a Grand Jury, as in the United States; or by a magistrate at a preliminary hearing, as in many Commonwealth countries; or by a *juge d'instruction* (investigating judge) in France and other countries of the French civil law tradition; or by a Prosecution Review Board, as in Japan. The Statute and Rules of both the ICTY and the ICTR also require a judge to review an indictment and, if satisfied that it discloses a *prima facie* case, confirm it before an arrest warrant for the accused person named therein can be issued⁴¹.

B. Analysis and interpretation of elements

I. Paragraph 1

1. 'Situation'

- 13 Generally, a referral from a State Party should not be limited to specific cases, in the sense of an allegation against a named individual or individuals for having committed a specific crime or crimes. A situation includes a whole set of circumstances, such as a war, a conflict or any other untoward episode, in which one or more of the crimes within the Court's jurisdiction might have been committed⁴². The purpose of the Prosecutor's investigation is to find out what, if any, crimes have been committed in the situation and by whom. The practice of the Court so far tends to suggest that the referring State or the Security Council

⁴⁰ For example, on 31 March 2005 the Security Council, via Resolution 1583 (2005), referred the situation in the Darfur region of the Sudan to the ICC Prosecutor and on 6 June 2005 he announced 'that the statutory requirements for initiating an investigation were satisfied'. See ICC Press Release, *The Prosecutor of the ICC Opens Investigation in Darfur*, ICC-OTP-0606-104, 6 June 2005. Similarly, on 26 February 2011 the Security Council, via Resolution 1970 (2011), unanimously referred 'the situation in the Libyan Arab Jamahiriya since 15 February 2011 to the Prosecutor of the International Criminal Court.' On 3 March 2011, only 5 days after the referral, the Prosecutor announced that after a preliminary examination he had determined that an investigation was 'warranted'. See ICC Press Statement, *ICC Prosecutor to Open an Investigation in Libya*, 2 March 2011. This practice is now part of the ICC Prosecutor's policy on preliminary examinations where the Security Council refers situations to his or her office: ICC Prosecutor, *Policy Paper on Preliminary Examinations*, November 2013, paras. 73, 76, 80, 92, notes 53, 61.

⁴¹ Article 19 ICTY Statute and rule 47 ICTY Rules of Procedure and Evidence; article 18 ICTR Statute and rule 47 ICTR Rules of Procedure and Evidence. Generally see Nsereko, in: Klip and Sluiter (eds.), *Annotated Leading Cases of International Criminal Tribunals* Vol. IV (2002).

⁴² For other provisions referring to 'situation' see article 13 paras. a and b, article 14 para. 1, and 15, paras. 5 and 6.

have the power to define both the geographical and temporal scope of a 'situation' they refer to the Prosecutor. Thus, in the first referral by the Security Council, the Council limited the situation to the Darfur region of the Sudan⁴³, while its second referral the situation included the whole country of Libya⁴⁴. Regarding temporal limits, the Democratic Republic of the Congo and the Central African Republic fixed the dates of the situations they referred to be 'since 1 July 2002', the date when the Rome Statute came into force, across their entire territory⁴⁵. The Security Council similarly fixed 1 July 2002 as the starting date for the Darfur situation⁴⁶, and 15 February 2011 for the Libyan situation⁴⁷. However, the referral of particular parties in a given situation is viewed more cautiously. Thus, while the Ugandan referral spoke of the 'situation concerning the Lord's Resistance Army'⁴⁸, subsequent ICC documents have referred, additionally, to the territory of 'northern and western Uganda' together with the Prosecutor's conclusion that 'the scope of the referral encompasses all crimes committed in Northern Uganda in the context of the ongoing conflict involving the LRA'⁴⁹. Similar misgivings are to be expected when the Security Council specifically excludes persons from the ambit of the situations it refers to the ICC Prosecutor⁵⁰.

2. 'Reasonable basis'

The Prosecutor need not act on the allegations of a State Party (or a State that has accepted the Court's jurisdiction on an *ad hoc* basis) unless he or she is satisfied, after a preliminary examination, that there is 'a reasonable basis' to do so⁵¹. For this reason, therefore, any State that refers a situation to the Prosecutor must also furnish him or her with sufficient credible information to help him or her decide whether there is indeed substance in the allegations to justify him or her going forward with the matter⁵². This is equally true where the Prosecutor acts *proprio motu* on information received from sources mentioned in article 15 of the Statute. He or she must be satisfied that on the strength of such information there is 'a reasonable basis' to proceed with an investigation⁵³. It must be stressed, though, that 'reasonable basis' is not the same as 'reasonable grounds to believe'. The latter is a higher

⁴³ Resolution 1593 (2005), 31 March 2005, para. 1.

⁴⁴ Resolution 1970 (2011), 26 February 2011, para. 4.

⁴⁵ See ICC Press Release, *Prosecutor Receives Referral of the Situation in the Democratic Republic of Congo*, ICC-OTP-20040419-50, 19 April 2004; ICC Press Release, *Prosecutor Receives Referral Concerning Central African Republic*, ICC-OTP-20050107-86, 7 January 2005.

⁴⁶ *Supra* note 43.

⁴⁷ *Supra* note 44.

⁴⁸ See ICC Press Release, *President of Uganda Refers Situation Concerning the Lord's Resistance Army (LRA) to the ICC*, ICC-20040129-44, 29 January 2004.

⁴⁹ *Situation in Uganda*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 Sep. 2005, paras. 30–31; *Situation in Uganda*, ICC-02/04-01/05-54, Warrant of Arrest for Vincent Otti, Pre-Trial Chamber II, 8 Jul. 2005, paras. 30–31; *Situation in Uganda*, ICC-02/04-01/05-55, Warrant of Arrest for Raska Lukwiya, Pre-Trial Chamber II, 8 Jul. 2005, paras. 18–19; *Situation in Uganda*, ICC-02/04-01/05-56, Warrant of Arrest for Okot Odhiambo, Pre-Trial Chamber II, 8 Jul. 2005, paras. 20–21; *Situation in Uganda*, ICC-02/04-01/05-57, Warrant of Arrest for Dominic Ongwen, Pre-Trial Chamber II, 8 Jul. 2005, paras. 18–19.

⁵⁰ See for example, *supra* note 43, para. 6 (where the Security Council purports to exclude 'nationals, current or former officials or personnel from a contributing State outside Sudan which is not a party to the Rome Statute'); *supra* note 44, para. 6 (where the Security Council purports to exclude 'nationals, current or former officials or personnel from a State outside the Libyan Arab Jamahiriya which is not a party to the Rome Statute').

⁵¹ This is also true of referrals by the Security Council. See generally ICC Prosecutor, *Policy Paper on Preliminary Examinations*, November 2013, *supra* note 40.

⁵² With respect to a Security Council referral, all members of the United Nations are also duty bound under the UN Charter, depending on the terms of the referring resolution, to cooperate with the Prosecutor by way of furnishing information and other logistical or material support to enable him or her to execute his or her mandate under the referral. See article 25, UN Charter. In practice, however, the Security Council resolutions that referred the situations in the Darfur region of the Sudan and in Libya have simply 'urge[d]' UN member states to cooperate with the Court: *supra* note 43, para. 2; *supra* note 44, para. 5.

⁵³ See article 15 para. 3, article 53 para. 1.

standard that is used when issuing an arrest warrant or issuing a summons to appear⁵⁴ and is inappropriate at the pre-investigation stage⁵⁵.

3. 'shall notify all States Parties'

- 15 Where the Prosecutor decides that there is a reasonable basis for mounting an investigation, he or she must notify (1) 'all States Parties' and (2) 'those States which, taking into account the information available, would normally exercise jurisdiction over the crimes concerned'.
- 16 The purpose of the notification would seem to be twofold: (1) to give information to the general assemblage of the States Parties; and (2) to put those States that otherwise have jurisdiction over the crimes involved on notice that the Prosecutor intends to initiate an investigation into the matter. In the second situation, the State concerned is given an opportunity either to assert its superior jurisdiction or to let the Prosecutor go forward with his or her investigation.
- 17 A question arises whether the Prosecutor has an obligation to notify States that are not Party to the Statute. The answer to the question turns on the meaning of the clause 'and those States which [...] would normally exercise jurisdiction over the crimes concerned'. One possible construction of the clause is to limit it to States Parties, 'and [particularly] those States which [...] would normally exercise jurisdiction over the crimes concerned'. Indeed these States are the only ones that are contractually entitled to know of the activities of the Prosecutor and have bound themselves under the complementarity principle to exercise jurisdiction. The other construction is to say that the clause refers to States that are not parties to the Statute⁵⁶. An example of a State that 'would normally exercise jurisdiction over the crimes concerned' is one whose national commits one of the crimes within the Court's jurisdiction or the State on whose territory such a crime is committed. The view that the intention of the drafters was to include States that are not parties appears to be strengthened by the deliberate use of the conjunction 'and'. If, however, this was their intention, then why did they provide in paragraph 5 that 'States Parties shall respond to such requests without undue delay'? Does this not tend to suggest that their intention was to limit the application of article 18 to States Parties only? In any case, a State that is not a Party to the Statute cannot invoke its provisions to claim treatment similar to that accorded to States Parties. Light can be brought to bear on this ambiguity by reverting to the *travaux préparatoires*. Draft article 16 para. 1 (the precursor to what is now article 18 para. 1) made explicit reference to 'non-States Parties' in the Prosecutor's notification requirement.⁵⁷ However, this language was subsequently deleted⁵⁸. Although the records do now show

⁵⁴ See article 58 para. 1(a). This was the position taken by Pre-Trial Chambers II and III: *Situation in Republic of Kenya*, ICC-01/09-19-Corr, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 Mar. 2010, paras. 27–35; *Situation in the Republic of Côte d'Ivoire*, ICC-02/11-14-Corr, Corrigendum to Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d'Ivoire, Pre-Trial Chamber III, 15 Nov. 2011, para. 24.

⁵⁵ But see Ventura (2013) 12(1) *The Law and Practice of International Courts and Tribunals* 49–80.

⁵⁶ This appears to be the view taken by the Office of the Prosecutor. See ICC Prosecutor, *Paper on Some Policy Issues before the Office of the Prosecutor*, September 2003, p. 5: '[t]he exercise of the Prosecutor's functions under article 18 of notifying States of future investigations will alert States with jurisdiction to the possibility of taking action themselves. In a case where multiple States have jurisdiction over the crime in question the Prosecutor should consult with those States best able to exercise jurisdiction [...] with a view to ensuring that jurisdiction is taken by the State best able to do so.' See also *Situation in Republic of Kenya*, Case No. ICC-01/09-19-Corr, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 Mar. 2010, para. 51.

⁵⁷ See *Bureau Discussion Paper: Part 2 – Jurisdiction, admissibility and applicable law*, UN Doc.A/CONF.183/C.1/L.53 (6 Jul. 1998), article 16 para. 1; *Bureau Proposal: Part 2 – Jurisdiction, admissibility and applicable law*, UN Doc.A/CONF.183/C.1/L.59 (10 Jul. 1998), article 16 para. 1; *supra* notes 17, 18, 24, 25.

⁵⁸ See *Part 2 – Jurisdiction, admissibility and applicable law*, UN Doc.A/CONF.183/C.1/L.76/Add.2 (16 Jul. 1998), article 18 para. 1.

clearly the reason(s) for this removal, it could serve as an indication of the drafters' intention to exclude States that are not Parties to the Statute.

The Prosecutor determines the method of notification to States that are entitled to be so notified⁵⁹. As to what authorities in those States he or she must address the notification is a matter on which both the Statute and the Rules are silent. The Prosecutor will presumably address the notification to the authorities that the States Parties are required to designate for the purpose of receiving requests for cooperation⁶⁰.

According to the Rules, the notification must contain, at the very minimum, information about acts that may constitute crimes under the Statute⁶¹. This is necessary because it is that kind of information that enables the State to respond to the Prosecutor's notification appropriately. To this end, a State that considers the information insufficient is entitled to request the Prosecutor for additional information or for further and better particulars; but it does not affect the one-month time limit referred to in article 18 para. 2. The Prosecutor is obliged to respond to such a request 'on an expedited basis'⁶².

4. 'on a confidential basis'

The Prosecutor may notify the State(s) entitled to be notified of his or her intentions to commence investigations on a confidential basis. He or she may also decide to limit the scope of the information he or she provides to the relevant State(s). The purpose of such limitations is to ensure that the information does not fall into the wrong hands, which, as a result, may hurt innocent individuals, particularly potential witnesses and other information providers, or may destroy valuable evidence, or assist suspects and witnesses to abscond. How much information the Prosecutor is entitled to withhold from States is a matter on which both the Statute and the Rules are silent; it is one that is apparently left to the discretion and good judgment of the Prosecutor. A problem may, however, arise when a State requests the Prosecutor for additional information or for further and better particulars, as noted above, to enable it to decide whether to defer to the Prosecutor or to commence or facilitate its ongoing investigations. Would the Prosecutor be entitled to withhold the additional information or further and better particulars on account of the risks involved in furnishing it? For the sake of avoiding unnecessary conflict, it would be advisable for the Prosecutor and the State concerned to reach some amicable understanding under which the Prosecutor would furnish the State with some additional information on condition that the State keeps it confidential and ensures that it is not used to cause political disadvantages for States possibly involved, to hurt people, or to let others abscond or destroy evidence.

⁵⁹ The practice to date is to communicate the notification by way of a letter. See, for example, *Situation in the Democratic Republic of Congo*, ICC-01/04-19, Decision to Hold Consultation under Rule 114, Pre-Trial Chamber I, 21 Apr. 2005, p. 2; *Situation in Uganda*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 Sep. 2005, para. 36; *Situation in Uganda*, ICC-02/04-01/05-54, Warrant of Arrest for Vincent Otti, Pre-Trial Chamber II, 8 Jul. 2005, para. 36; *Situation in Uganda*, ICC-02/04-01/05-55, Warrant of Arrest for Raska Lukwiya, Pre-Trial Chamber II, 8 Jul. 2005, para. 24; *Situation in Uganda*, ICC-02/04-01/05-56, Warrant of Arrest for Okot Odhiambo, Pre-Trial Chamber II, 8 Jul. 2005, para. 26; *Situation in Uganda*, ICC-02/04-01/05-57, Warrant of Arrest for Dominic Ongwen, Pre-Trial Chamber II, 8 Jul. 2005, para. 24; *Prosecutor v. Lubanga and Ntaganda*, ICC-01/04-02/06-20-Anx2, Decision on the Prosecutor's Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 Feb. 2006, para. 22(iii); *Prosecutor v. Bemba Gombo*, ICC-01/05-01/08-14-tENG, Decision on the Prosecutor's Application for a Warrant of Arrest Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 Jun. 2008, para. 17.

⁶⁰ See article 87 para. 1(a). Also see rules 176 and 177.

⁶¹ Rule 52 para. 1.

⁶² *Ibid.*, para. 2.

II. Paragraph 2

1. ‘Within one month of receipt’

- 21 States that wish to forestall the Prosecutor’s investigations must respond within one month after receiving the notification. Given the urgency of the matter and the need to move fast before valuable evidence is destroyed or witnesses have disappeared, one month is deemed ample time within which States may respond⁶³. Since the precise time for a State to respond is prescribed, it behoves the Prosecutor to ensure that the notification is served personally on the State officials designated to receive it and that such officials issue receipts for it.

2. ‘a State may inform the Court’

- 22 Any State that receives the Prosecutor’s notification and otherwise has jurisdiction in the matter may respond to the Prosecutor’s notification. In its response, such a State may inform the Court that ‘it is investigating or has investigated its nationals or others within its jurisdiction with respect to criminal acts’ that might amount to crimes under the Statute. What if a State has not investigated the criminal acts alleged prior to receiving the Prosecutor’s notification but, prompted by the notification, now wishes to institute investigations into those acts? Is it precluded from requesting the Prosecutor to defer to its jurisdiction? It is submitted that it is not. The spirit and general tenor of the Statute is to give due deference to State jurisdiction. Thus a State that has not yet started investigations but is otherwise able and willing to do so must be given a chance to do so under article 18 para. 2. It is in this spirit that it may request for and the Prosecutor should furnish it with additional information to enable it to do so.
- 23 Where the Prosecutor decides to assert international jurisdiction upon receiving no responses or information from States that otherwise have jurisdiction, he or she should include the lack of response from States in the application for either authorization to investigate⁶⁴, or the issuance of an arrest warrant or, as the case may be, a summons to appear. That statement serves to inform the Pre-Trial Chamber that the Prosecutor has fulfilled his or her obligation under article 18, para. 1, and that the State concerned has been afforded the opportunity to assert its right to exercise jurisdiction but has declined, failed or neglected to do so⁶⁵.

⁶³ The Rules, *ibid.*, explicitly provide that any request by a State for additional information ‘shall not affect the one-month time limit provided for in article 18, paragraph 2’.

⁶⁴ But see the comments of Pre-Trial Chamber II which could be read as suggesting that article 18 only applies upon the granting of authorization to the Prosecutor to investigate: ‘defining the scope of the potential case(s) at this stage may well serve an effective application of article 18 of the Statute, which is immediately applicable when a Pre-Trial Chamber authorises the commencement of an investigation [pursuant to the exercise of the Prosecutor’s *proprio motu* power].’ *Situation in Republic of Kenya*, ICC-01/09-19-Corr, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 Mar. 2010, para. 51 (emphasis added). The Prosecutor appears to have gone further and submitted that ‘such notification can only occur after an affirmative determination of the Chamber on the Prosecutor’s application [to commence a *proprio motu* investigation].’ *Situation in the Republic of Kenya*, ICC-01/09-3, Request for Authorisation of an Investigation Pursuant to Article 15, Office of the Prosecutor, 26 Nov. 2009, para. 113 (emphasis added); *Situation in the Republic of Côte d’Ivoire*, ICC-02/11-3, Request for Authorisation of an Investigation Pursuant to Article 15, Office of the Prosecutor, 23 Jun. 2011, para. 180 (emphasis added).

⁶⁵ See *Situation in the Democratic Republic of Congo*, ICC-01/04-19, Decision to Hold Consultation under Rule 114, Pre-Trial Chamber I, 21 Apr. 2005, pp. 2–3; *Situation in Uganda*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 Sep. 2005, para. 36; *Situation in Uganda*, ICC-02/04-01/05-54, Warrant of Arrest for Vincent Otti, Pre-Trial Chamber II, 8 Jul. 2005, para. 36; *Situation in Uganda*, ICC-02/04-01/05-55, Warrant of Arrest for Raska Lukwiya, Pre-Trial Chamber II, 8 Jul. 2005, para. 24; *Situation in Uganda*, Case No. ICC-02/04-01/05-56, Warrant of Arrest for Okot Odhiambo, Pre-Trial Chamber II, 8 Jul. 2005, para. 26; *Situation in Uganda*, ICC-02/04-01/05-57, Warrant

3. ‘the Prosecutor shall defer to the State’s investigation’

Along with the information that it is investigating or has investigated the possible crimes disclosed by the Prosecutor’s notification, a State may ‘request’ the Prosecutor to defer to its investigation. Such a State must, however, make the request in good faith and for genuine reasons, not merely for the purpose of stymieing the Prosecutor’s efforts or frustrating the ends of international justice. To ensure that the State is acting genuinely and in good faith, the Rules require that any State that requests the Prosecutor for deferral must do so in writing and must at the same time furnish the Prosecutor with information concerning its investigation⁶⁶. If the Prosecutor considers such information to be inadequate, he or she may ask that State for additional information⁶⁷. When the State complies, the Prosecutor must defer to the State’s investigation without any more ado, unless the Pre-Trial Chamber orders otherwise. In as much as the Prosecutor has no choice in the matter but to defer, the ‘request’ is really not a request. It is a demand or an assertion by the State of its right to primacy. This demand is predicated on the presumption that the State’s assertion and exercise of its jurisdiction is regular, fair and otherwise effective, until the contrary is proven. Where the State concerned does not respond at all to the Prosecutor’s notification or, if it does, it does not ‘request’ the Prosecutor to defer to its investigations, then the Prosecutor may go ahead with his or her investigations. In such a case it is conceivable that both the State and the Prosecutor may be simultaneously investigating the same matter. However, if the Prosecutor proceeds to file a case before the Court whilst the State’s investigations or proceedings are still pending, such a case may be ruled inadmissible by the Court under article 17 of the Statute, unless it is shown that it falls under one of the exceptions of that article.

4. ‘unless the Pre-Trial Chamber [...] decides to authorize the investigation’

The Pre-Trial Chamber, rather than the Trial Chamber, deals with the pre-trial phase of the cases before the Court⁶⁸. This arrangement helps to preserve the Trial Chamber’s independence and impartiality. The Pre-Trial Chamber was the price that the advocates of an effective and independent Prosecutor had to pay. The Chamber serves to counterbalance the Prosecutor’s *proprio motu* powers and to ensure accountability in the exercise of those powers.

Notwithstanding a State’s assertion of its right to primacy, the Chamber may, in the interests of international justice and on an application by the Prosecutor, override that right and authorize the Prosecutor to carry on with the investigations. Where the Prosecutor makes such an application⁶⁹, he or she must do so in writing and must set out ‘the basis for the application’. The Prosecutor must also furnish the Pre-Trial Chamber with the information concerning the investigations of the relevant State, which that State has provided to him or her when it requested the deferral⁷⁰. This information apprises the Chamber of the nature

of Arrest for Dominic Ongwen, Pre-Trial Chamber II, 8 Jul. 2005, para. 24; *Prosecutor v. Lubanga and Ntaganda*, ICC-01/04-02/06-20-Anx 2, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 Feb. 2006, para. 22(iii)-(iv); *Prosecutor v. Bemba Gombo*, ICC-01/05-01/08-14-tENG, Decision on the Prosecutor’s Application for a Warrant of Arrest Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 Jun. 2008, para. 17. With regard to the Kenya Situation, the Kenyan Government did not inform the Prosecutor of any ongoing investigations and did not request the Prosecutor to defer to it, but instead indicated to him that he may apply for authorization to open an investigation. The Prosecutor applied for and obtained the Pre-Trial Chamber’s authorization to investigate. However, the Kenyan Government subsequently challenged the Court’s jurisdiction under article 19, para. 2(b). See *Prosecutor v. Ruto, et al.*, ICC-01/09-01/11-19 and ICC-01/09-02/11-26, Application on behalf of the Government of the Republic of Kenya Pursuant to Article 19 of the ICC Statute, Government of Kenya, 31 Mar. 2011, para. 3.

⁶⁶ Rule 53.

⁶⁷ *Ibid.*

⁶⁸ See also articles 15, 39 and 57.

⁶⁹ Regulation 38 para. 1(b) limits such an application (and responses thereto) to no more than 100 pages.

⁷⁰ Rule 54 para. 1.

and extent of the State's investigations. Lastly, the Prosecutor must notify the relevant State of the application and provide it with a summary of the basis of such an application⁷¹. This notification enables the State to respond to or to oppose the application, if it so wishes.

- 27 In accord with the principle that he who asserts must prove, the Prosecutor bears the evidentiary and legal burden to prove by a preponderance of evidence that valid grounds exist to justify the Pre-Trial Chamber granting him or her the authority to carry out the investigations. It is suggested that that evidence must be cogent. This suggestion is predicated on complementarity, a fundamental principle of the ICC regime, which gives primacy to State jurisdiction. That primacy should not be overridden save on cogent or substantial grounds.
- 28 The issues of the admissibility of specific cases before the Court under article 17 are, to some extent, similar to those that confront the Pre-Trial Chamber on an application by the Prosecutor under article 18 para. 2 for authority to investigate. They both involve overriding a State's jurisdiction in favour of international jurisdiction. For that reason the Rules specifically require the Pre-Trial Chamber to consider, to the extent possible, 'the factors in article 17 in deciding whether to authorize an investigation'⁷². These factors include the State's unwillingness or inability genuinely to investigate. The Prosecutor may also rely on these factors, particularly as they are amplified under article 17 paras. 2–3, in his or her application before the Pre-Trial Chamber. In addition, pending the Pre-Trial Chamber's decision, the relevant State may postpone the execution of requests under Part IX (International cooperation and judicial assistance) as per article 95. However, the Appeals Chamber has held that article 95 has no application in article 19 appellate proceedings. Therefore, to be able to postpone such matters, a State must seek and obtain from the Appeals Chamber suspensive effect of the impugned decision⁷³. It would be odd if this were not likewise in the context of article 18.
- 29 The Rules leave it to the Pre-Trial Chamber to adopt the most appropriate procedures to follow in disposing of the Prosecutor's application⁷⁴. They also vest in the Chamber the discretion to hold or not to hold a hearing. Whatever procedure the Chamber adopts, it must afford the State that requested the deferral an opportunity to be heard before it makes any final decision on the Prosecutor's application⁷⁵. Additionally, it must communicate the decision and its reasoning to the Prosecutor and to the State concerned as soon as possible⁷⁶.

III. Paragraph 3: 'State's investigation shall be open to review'

- 30 The Prosecutor may review his or her deferral to a State's investigation at the lapse of six months since the deferral or 'at any time when there has been a significant change of circumstances'. The changed circumstances must relate to or be 'based on the State's unwillingness or inability genuinely to carry out the investigation'. A State's unwillingness or inability genuinely to carry out the investigation, when properly proven, entitles the Prosecutor to assert international jurisdiction and, with authorization from the Pre-Trial Chamber, to investigate the matter. That a State has a prior right to investigate is no license

⁷¹ Rule 54 para. 2.

⁷² Rule 55 para. 2. See *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 37; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 38.

⁷³ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision on the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, para. 27.

⁷⁴ Rule 55 para. 1.

⁷⁵ Rule 55 para. 2.

⁷⁶ Rule 55 para. 3.

for it to sit back and do nothing or to carry out the investigations in such a tardy and inefficient manner so as to appear to be calculated to shield the perpetrators of international crimes from justice. In order to completely oust international jurisdiction and to stop the Prosecutor's involvement, a State's exercise of its national jurisdiction must be and must appear to be genuine and effective.

Where the Prosecutor alleges a change of circumstances, he or she may apply in writing to the Pre-Trial Chamber for authorization to investigate⁷⁷. As before, the Prosecutor must accompany the application with the 'basis for the application'⁷⁸ together with any information provided by the relevant State pursuant to article 18 para. 5⁷⁹. He or she must also notify the State concerned of the application⁸⁰. The Prosecutor must prove upon a preponderance of evidence that the alleged change of circumstances does indeed exist. The Pre-Trial Chamber conducts the proceedings in the same way as has been outlined in para. 18 above⁸¹. Importantly, the Chamber must afford the State concerned an opportunity to be heard or to oppose the Prosecutor's application for authorization to investigate a matter which is already supposedly under investigation at the national level⁸².

IV. Paragraph 4

1. Appeal against the decision of the Pre-Trial Chamber

The Prosecutor or a State aggrieved by a decision of the Pre-Trial Chamber may appeal against that decision to the Appeals Chamber in accordance with article 82 of the Statute. Reference to article 82 underscores the parties' right to appeal, among other things, against a decision of either the Pre-Trial or Trial Chamber 'with respect to jurisdiction or admissibility' (article 82 para. 1(a)). According to the Rules, a party wishing to appeal against the decision of the Pre-Trial Chamber must file the appeal 'not later than five days from the date upon which such party is notified of the decision'⁸³.

2. 'on an expedited basis'

The procedures before the Pre-Trial Chamber and any resulting appeals, though necessary, delay the Prosecutor's investigative initiatives. To avoid such delays, article 18 para. 4 provides that the appeal against the Pre-Trial Chamber's decision 'may be heard on an expedited basis'. Although neither the Statute nor the Rules spell out the full import of such expedited procedures, it must perforce involve skipping some procedural steps and giving priority to the appeal over other work before the Appeals Chamber. It is doubtless within the rights of the party appealing to ask the Appeals Chamber to hear the appeal on an expedited basis. Such party bears the burden to show the need for adopting this procedure. The Chamber, for its part, has the discretion to grant or to turn down the request. Where the interests of justice so demand, the Appeals Chamber may also order, on its own motion, that the appeal be heard on an expedited basis pursuant to the inherent power of any Chamber to regulate the proceedings of which it is seized. However, before making such an order, the Chamber must give both parties an opportunity to be heard on the matter.

3. Effect of the decision pending appeal

According to article 82 para. 3 of the Statute, '[a]n appeal shall not of itself have suspensive effect unless the Appeals Chamber so orders, upon request, in accordance with the Rules of

⁷⁷ Rule 56 para. 1.

⁷⁸ *Ibid.*

⁷⁹ Rule 56 para. 2.

⁸⁰ Rule 56 para. 3.

⁸¹ *Ibid.*

⁸² Rule 56 and 54.

⁸³ Rule 154 para. 1.

Procedure and Evidence'. Rule 156 sub-rule 5 provides that, '[w]hen filing the appeal, the party appealing may request that the appeal have suspensive effect in accordance with article 82, paragraph 3.' The import of these provisions is that where the Pre-Trial Chamber has authorized the Prosecutor to commence an investigation, the Prosecutor is entitled to proceed forthwith and to receive full co-operation from the State concerned, unless the Appeals Chamber orders otherwise. However, to avoid the friction between the Prosecutor and the State concerned that this course of action is likely to engender, it might be prudent, depending on the particular circumstances of a case, for the Appeals Chamber, if the State so requests, to suspend the operation of the Pre-Trial Chamber's decision pending the finalization of the appeal. However, as the Appeals Chamber has pointed out, 'neither article 82(3) of the Statute nor rule 156(5) of the Rules of Procedure and Evidence stipulate in which circumstances suspensive effect should be ordered'. Consequently, 'this decision is left to the discretion of the Appeals Chamber. Therefore, when faced with a request for suspensive effect, the Appeals Chamber will consider the specific circumstances of the case and the factors it considers relevant for the exercise of its discretion'⁸⁴. Nevertheless, the Court has considered various factors in determining whether to grant suspensive effect. These include whether the impugned decision '(i) 'would create an irreversible situation that could not be corrected, even if the Appeals Chamber eventually were to find in favour of the appellant', (ii) would lead to consequences that 'would be very difficult to correct and may be irreversible', or (iii) 'could potentially defeat the purpose of the appeal'⁸⁵. Needless to say, the onus lies on the appealing party to satisfy the Appeals Chamber upon a preponderance of evidence that there are indeed compelling reasons to warrant the exercise of its discretion to suspend the Pre-Trial Chamber's decision pending the outcome of the appeal.

V. Paragraph 5: 'periodically inform the Prosecutor'

- 35 Where the Prosecutor defers to a State's investigations, he or she may request that State to keep the Prosecutor periodically apprised of the progress of the investigations. According to the provision, 'States Parties shall respond to such requests without undue delay'. This is as it should be, because when a State undertakes to investigate and to prosecute international crimes, it does so on behalf of the entire international community⁸⁶. So, it is only proper that such a State be required to account for the way it executes its mandate to the Prosecutor who would otherwise be responsible for investigating and prosecuting those crimes on behalf of the international community. Failure on the part of that State to respond on time, or at all,

⁸⁴ *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-1290, Decision on the Request of Mr. Thomas Lubanga Dyilo for Suspensive Effect of his Appeal Against the Oral Decision of Trial Chamber I of 18 January 2008, Appeals Chamber, 22 Apr. 2008, para. 7. See also *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-1347, Decision on the Requests of the Prosecutor and the Defence for Suspensive Effect of the Appeals Against Trial Chamber I's Decision on Victim's Participation of 18 January 2008, Appeals Chamber, 22 May 2008, para. 10; *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-1444, Reasons for the Decision on the Request of the Prosecutor for Suspensive Effect of his Appeal Against the 'Decision on the Release of Thomas Lubanga Dyilo', Appeals Chamber, 22 Jul. 2008, para. 8.

⁸⁵ *Prosecutor v. Bemba*, ICC-01/05-01/08-817, Decision on the Request of Mr Bemba to Give Suspensive Effect to the Appeal Against the 'Decision on the Admissibility and Abuse of Process Challenges', Appeals Chamber, 9 Jul. 2010, para. 11. See also *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-391, Decision on the Requests of Mr Ruto and Mr Sang for Suspensive Effect, Appeals Chamber, 29 Feb. 2012, paras. 9–10; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-401, Decision on the Request of Mr Kenyatta and Mr Muthaura for Suspensive Effect, Appeals Chamber, 29 Feb. 2012, paras. 9–10; *Prosecutor v. Lubanga*, ICC-01/04-01/06-2953, Decision on the Admissibility of the Appeals Against Trial Chamber I's 'Decision Establishing the Principles and Procedures to be Applied to Reparations and Directions on the Further Conduct of Proceedings', Appeals Chamber, 14 Dec. 2012, para. 82; *Prosecutor v. Katanga*, ICC-01/04-01/07-3344, Decision on the Request for Suspensive Effect of the Appeal Against Trial Chamber II's Decision on the Implementation of Regulation 55 of the Regulations of the Court, Appeals Chamber, 16 Jan. 2013, para. 6.

⁸⁶ See, for example, *The Attorney General of Israel v. Eichmann*, 36 ILR 277, at 304; and *Demjanjuk v. Petrovsky*, 776 F. 2d 582 (1985), U.S. Court of Appeals, 6th Circuit; Mohacs and Polt (1996) 67 *IREvPenall* 334; Triffterer, 2nd edition, *Preliminary Remarks*, mn 15 *et seq.* and 50.

would be grounds for the Prosecutor to review the deferral and to seek the Pre-Trial Chamber's authorization to commence investigations.

VI. Paragraph 6: 'preserving evidence'

The phrase 'to pursue necessary investigative steps' means no more than to investigate. 36 The powers given to the Pre-Trial Chamber to authorize the Prosecutor to investigate under this paragraph are 'exceptional' or unusual because the Prosecutor's application for authority to investigate would still be pending, or the Prosecutor would have already deferred to the State's investigations (as per article 18 para. 2). So, authority will not ordinarily be granted, unless the Prosecutor shows, with cogent evidence, an urgent need for it⁸⁷. The purpose of authorizing these 'investigative steps' is to preserve evidence that is in danger of getting lost, or to take advantage of 'a unique opportunity to obtain important evidence' that may otherwise not be available afterwards. This provision is mirrored somewhat in article 19 para. 8, with the important exception that it does not include the 'exceptional basis' language of paragraph 6. This suggests that under paragraph 6 it may be more onerous for the Prosecutor to obtain authorization than it would be under article 19 para. 8. An example of an exceptional situation that would justify the Pre-Trial Chamber authorizing the Prosecutor to take steps under this paragraph would include a war that paralyses the national authorities' investigations, uproots or displaces potential witnesses, or results in fatalities or in evidence being destroyed. It is to be noted that investigative steps authorized by the Pre-Trial Chamber pursuant to article 18 para. 6 override any postponement by a State to carry out or execute requests for cooperation under Part IX as per article 95.

VII. Paragraph 7

1. 'A State which has challenged a ruling'

A State that unsuccessfully challenged an article 18 ruling of the Pre-Trial Chamber before 37 the Appeals Chamber is given another bite at the cherry to challenge the admissibility of a case under article 19 of the Statute. The challenge must be referred to the same Pre-Trial Chamber if the challenge is mounted before the confirmation of the charges. If the challenge is mounted after confirmation, it must be referred to the Trial Chamber⁸⁸. The Pre-Trial Chamber or, as the case may be, the Trial Chamber determines the admissibility of the case in accordance with article 17.

2. 'may challenge the admissibility of a case'

The admissibility challenge will be directed at a *case* founded on the outcome of the 38 Prosecutor's investigations. As noted earlier, a case, as opposed to a situation, is a specific allegation against a specific individual or individuals accusing him, her or them of committing specific crimes. A case's contours are defined by the information contained in the warrant of arrest or, as the case may be, a summons to appear issued by the Pre-Trial Chamber⁸⁹.

⁸⁷ Regulation 38 para. 2(c) limits an application by the Prosecutor (and responses thereto) pursuant to article 18 para. 6 to no more than 50 pages.

⁸⁸ See article 19 para. 6.

⁸⁹ See *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Appeals Chamber, 30 Aug. 2011, para. 39; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Appeals Chamber, 30 Aug. 2011, para. 40.

3. 'additional significant facts or significant change of circumstances'

- 39 The grounds for the challenge must be 'additional significant facts' or 'significant change of circumstances'. The State concerned must show that, because of these facts or change of circumstances, it is now investigating or prosecuting or has investigated or prosecuted the case in question. Possible facts or change in circumstances may include the end of a war, the coming to power of a new government that is better disposed to exercise national jurisdiction fairly and effectively, and genuine national peace and reconciliation arrangements under which the defendants might have been granted amnesty or pardon.

Article 19

Challenges to the jurisdiction of the Court or the admissibility of a case

1. The Court shall satisfy itself that it has jurisdiction in any case brought before it. The Court may, on its own motion, determine the admissibility of a case in accordance with article 17.

2. Challenges to the admissibility of a case on the grounds referred to in article 17 or challenges to the jurisdiction of the Court may be made by:

- (a) An accused or a person for whom a warrant of arrest or a summons to appear has been issued under article 58;
- (b) A State which has jurisdiction over a case, on the ground that it is investigating or prosecuting the case or has investigated or prosecuted; or
- (c) A State from which acceptance of jurisdiction is required under article 12.

3. The Prosecutor may seek a ruling from the Court regarding a question of jurisdiction or admissibility. In proceedings with respect to jurisdiction or admissibility, those who have referred the situation under article 13, as well as victims, may also submit observations to the Court.

4. The admissibility of a case or the jurisdiction of the Court may be challenged only once by any person or State referred to in paragraph 2. The challenge shall take place prior to or at the commencement of the trial. In exceptional circumstances, the Court may grant leave for a challenge to be brought more than once or at a time later than the commencement of the trial. Challenges to the admissibility of a case, at the commencement of a trial, or subsequently with the leave of the Court, may be based only on article 17, paragraph 1 (c).

5. A State referred to in paragraph 2 (b) and (c) shall make a challenge at the earliest opportunity.

6. Prior to the confirmation of the charges, challenges to the admissibility of a case or challenges to the jurisdiction of the Court shall be referred to the Pre-Trial Chamber. Decisions with respect to jurisdiction or admissibility may be appealed to the Appeals Chamber in accordance with article 82.

7. If a challenge is made by a State referred to in paragraph 2 (b) or (c), the Prosecutor shall suspend the investigation until such time as the Court makes a determination in accordance with article 17.

8. Pending a ruling by the Court, the Prosecutor may seek authority from the Court:

- (a) To pursue necessary investigative steps of the kind referred to in article 18, paragraph 6;
- (b) To take a statement or testimony from a witness or complete the collection and examination of evidence which had begun prior to the making of the challenge; and
- (c) In cooperation with the relevant States, to prevent the absconding of persons in respect of whom the Prosecutor has already requested a warrant of arrest under article 58.

9. The making of a challenge shall not affect the validity of any act performed by the Prosecutor or any order or warrant issued by the Court prior to the making of the challenge.

10. If the Court has decided that a case is inadmissible under article 17, the Prosecutor may submit a request for a review of the decision when he or she is fully satisfied that new facts have arisen which negate the basis on which the case had previously been found inadmissible under article 17.

11. If the Prosecutor, having regard to the matters referred to in article 17, defers an investigation, the Prosecutor may request that the relevant State make available to the Prosecutor information on the proceedings. That information shall, at the request of the

State concerned, be confidential. If the Prosecutor thereafter decides to proceed with an investigation, he or she shall notify the State to which deferral of the proceedings has taken place.

Directly relevant rules: Rules 58–62; 122 sub-rule 2; 133; 154 sub-rule 1; 156.

Literature: Bergsmo, M. (ed.), *Complementarity And The Exercise Of Universal Jurisdiction For Core International Crimes* (2010); Cameron, I., 'Jurisdiction and Admissibility Issues Under the ICC Statute', in: D. McGoldrick (ed.), *The Permanent International Criminal Court* (2004) 65; El Zeidy, M.M., 'The Principle of Complementarity: A New Machinery to Implement International Law', (2002) 23 *MichJIL* 869; id., *The Principle Of Complementarity In International Criminal Law* (2008); Ellis, M.S., *Sovereignty and Justice: Balancing the Principle of Complementarity Between International and Domestic War Crimes Tribunals* (2014); Fernández de Gurmendi, S.A. and Friman, H., 'The Rules of Procedure and Evidence of the International Criminal Court', (2000) 3 *YblHumL* 289; Fourmy, O., 'Powers of the Pre-Trial Chambers', in: A. Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, ii (2002) 1207; Holmes, J.T., 'Complementarity: National Courts versus the ICC', in: A. Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 667; id., 'Jurisdiction and Admissibility', in: R.S. Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 321; id., 'The Principle of Complementarity', in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues – Negotiations – Results* (1999) 41; *Informal expert paper: The principle of complementarity in practice*, ICC-OTP 2003; International Criminal Court, ICC Legal Tools, ICC Preparatory Works and Statute Amendments, *National Implementing Legislation, Publications* (<http://www.legal-tools.org>) (available 2014); Kleffner, J.K., *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007); id. and Kor, G., *Complementary Views On Complementarity* (2006); Nsereko, D., 'The ICC and Complementarity in Practice', (2013) 26 *LeidenJIL* 247; Olásolo, H., *The Triggering Procedure of the International Criminal Court* (2005); Schabas, W.A., 'Article 19: Challenges to the Jurisdiction of the Court or the Admissibility of a Case/Contestation de la compétence de la Cour ou de la recevabilité d'une affaire', in: id. (ed.), *The International Criminal Court: A Commentary on the Rome Statute* (2010) 361; Stigen, J., *The Relationship Between the International Criminal Court and National Jurisdictions: The Principle of Complementarity* (2008); id., 'The Admissibility Procedures', in: C. Stahn and M. El Zeidy (eds.), *The International Criminal Court and Complementarity: From Theory to Practice*, i (2011) 503; Trigeaud, L., 'Article 19: Contestation de la compétence de la Cour ou de la recevabilité d'une affaire', in: F. Fernandez and X. Pacreau (eds.), *Statut de Rome de la Cour Pénale Internationale: Commentaire article par article*, i (2012) 735.

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A. Introduction/General remarks

The 1994 International Law Commission's Draft Statute of the International Criminal Court (ILC Draft Statute) included a provision (article 34) permitting challenges to the Court's jurisdiction, in accordance with the rules, 'to ensure that the Court adheres carefully to the scope of jurisdiction defined by the Statute'¹. Challenges to jurisdiction could be made 'prior to or at the commencement of the hearing, by an accused or any interested State' and, 'at any later stage of the trial, by an accused'². In addition, article 24 stated that '[t]he Court shall satisfy itself that it has jurisdiction in any case brought before it'³. Independently of these two provisions, article 35 of the ILC Draft Statute also provided that the Court might, 'on application by the accused or at the request of an interested State, at any time prior to the commencement of the trial, or on its own motion, decide, having regard to the purposes of this Statute, that a case before it is inadmissible' on grounds which are now found, in a more detailed and modified form, in article 17 of the *Rome Statute*⁴. The ILC Draft Statute provided that the accused and an interested State had the right to be heard and that the challenges would be decided by the Trial Chamber, or the Appeals Chamber, if the Trial Chamber considered that because of the importance of the issues they should be referred to that Chamber⁵. This scheme, although modified in a number of important respects, in particular, by the addition of the separate article 18 procedure (based on a US proposal) for challenging admissibility at an earlier stage than the article 19 procedure, has largely been retained in the *Rome Statute*⁶. One particular problem that has been carried over from the

¹ 1994 ILC Draft Statute, Commentary to article 34.

² 1994 ILC Draft Statute, article 34.

³ 1994 ILC Draft Statute, article 24.

⁴ 1994 ILC Draft Statute, article 35. The ILC explained:

'Article 35 allows the court to decide, having regard to certain specified factors, whether a particular complaint is admissible and in this sense it goes to the exercise, as distinct from the existence, of jurisdiction. This provision responds to suggestions made by a number of States, in order to ensure that the court only deals with cases in the circumstances outlined in the preamble, that is to say where it is really desirable to do so'; 1994 ILC Draft Statute, Commentary to article 35.

⁵ 1994 ILC Draft Statute, article 36.

⁶ The structure and purpose of the two articles are similar, but, as explained below in more detail, there are a number of significant differences. For example, article 18 applies only to admissibility challenges by any States (as per article 18 para. 2); article 19 applies to admissibility and jurisdictional challenges by States and by the accused (as per article 19 para. 2(a)-(c)). Article 18 para. 2 requires the Prosecutor, after a State admissibility challenge, to defer to a State investigation; article 19 para. 7 requires the Prosecutor to suspend the investigation after a State admissibility challenge, but not after a State jurisdictional challenge or a challenge on either ground by an individual. Article 18 applies when a State has referred a situation or the Prosecutor is acting *proprio motu* (as per article 18 para. 2); article 19 applies also to referrals by the Security Council under article 13 para. (b). Article 18 para. 2 permits the relevant Chamber to authorize the investigation to continue after a State admissibility challenge pending a determination; article 19 does not contain this option. Article 18 para. 4 expressly authorizes expedited interlocutory appeals; article 19 does not. Article 18 para. 5 requires States Parties to respond without delay to Prosecutor requests for information about deferred investigations and prosecutions; article 19 para. 11 does not. Article 18 para. 6 permits the relevant Chamber to authorize certain investigative steps during a deferral of an investigation only on an exceptional basis; article 19 para. 8(a)-(c) permits the relevant Chamber to authorize a broader range of investigative steps and without requiring an exceptional basis. Article 18 para. 2 requires a State making an admissibility challenge to do so within a month after it receives notification from the Prosecutor that he or she has determined there would be a reasonable basis to commence an investigation following a State referral or acting *proprio motu*; article 19 para. 5 simply requires that a State entitled to make a challenge shall do so at the earliest opportunity, but without mentioning a time limit or consequences for failing to do so. The practice of the Prosecutor in all the situations referred by States, the Security Council and when acting *proprio motu*, has been to commence investigations before identifying specific cases to prosecute. Since States will generally not know, when the Prosecutor notifies them concerning an investigation, which case(s) he or she intends to prosecute, it will only be able to mount an article 18 challenge effectively by listing every single investigation or prosecution it is conducting or has conducted. It is thus possible that article 18 challenges will be limited in comparison to those under article 19. Indeed, as of 31 May 2015, not a single State has made an article 18 challenge with regard to any of the situations that have been referred to the Court by States Parties or initiated

ILC Draft Statute (and occurs in other articles), is that ‘Court’, which is defined in article 34 as having six organs, is sometimes used in the *Rome Statute* to mean simply the Pre-Trial Chamber or the Trial Chamber, and sometimes it appears to include the Office of the Prosecutor and other organs as well⁷. In article 19, the term ‘Court’ is used in both its broader and narrower senses, as indicated below⁸.

B. Analysis and interpretation of elements

I. Paragraph 1: The Court’s satisfaction of jurisdiction and *proprio motu* admissibility determination of a case

- 2 In contrast to the Nuremberg Charter, which the International Military Tribunal found precluded it from considering challenges to its jurisdiction⁹, the *Rome Statute* requires the Court to determine whether it has jurisdiction in any case before it. This provision accords with the generally accepted principle of the administration of justice, according to which international courts have the power to ascertain their jurisdiction in a particular matter before them. As stated by the Appeals Chamber of the ICTY in *Tadić*, the power of a court to determine whether it has competence:

‘is part, and indeed a major part, of the incidental or inherent jurisdiction of any judicial or arbitral tribunal, consisting of its “jurisdiction to determine its own jurisdiction”. It is a necessary component in the exercise of the judicial function and does not need to be expressly provided for in the constitutive documents of those tribunals’¹⁰.

- 3 The Court has explicitly recognized that it too possesses this inherent power. For example, a Pre-Trial Chamber held that:

‘[i]t is a well-known and fundamental principle that any judicial body, including any international tribunal, retains the power and the duty to determine the boundaries of its own jurisdiction and competence. Such a power and duty, commonly referred to as “*Kompetenz-Kompetenz*” in German and “*la compétence de la compétence*” in French, [...] is enshrined in article 19, paragraph 1, of the Statute, pursuant to which “the Court shall satisfy itself that it has jurisdiction in any case brought before it”[...].’¹¹

by the Prosecutor *proprio motu*, although with respect to the latter there are signs that Kenya considered this option: *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-19 and ICC-01/09-02/11-26, Application on behalf of the Government of the Republic of Kenya Pursuant to Article 19 of the ICC Statute, Government of Kenya, 31 Mar. 2011, para. 3.

⁷ This particular matter caused complications in the *Kenyatta* case where it became a contested issue as to whether the Prosecutor or a Chamber could issue requests for cooperation to States Parties under article 93 para. 1 (which refers only to ‘the Court’). See *Prosecutor v. Kenyatta*, ICC-01/09-02/11-908, Decision on Prosecution’s Applications for a Finding of Non-Compliance Pursuant to Article 87(7) and for an Adjournment of the Provisional Trial Date, Trial Chamber V(b), 31 Mar. 2014, paras. 16–33.

⁸ When ‘Court’ means the Pre-Trial Chamber for the purposes of article 19: ‘Orders or rulings of the Pre-Trial Chamber issued under article[] [...] 19 [...] must be concurred in by a majority of its judges’. *Rome Statute*, article 57 para. 2(a).

⁹ Trials of German Major War Criminals (with the dissenting opinion of the Soviet Member), Nuremberg, 30 Sep. and 1 Oct. 1946, 38 (London: H.M.S.O., Cmd. 6964).

¹⁰ *Prosecutor v. Tadić*, IT-94-I-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 Oct. 1995, para. 18. The Appeals Chamber of the Special Tribunal for Lebanon has further held ‘that a customary rule has evolved on the inherent jurisdiction of international courts, a rule which among other things confers on each one of them the power to determine its own jurisdiction (so-called *compétence de la compétence* or *Kompetenz-Kompetenz*).’ *In re El Sayed*, CH/AC/2010/02, Decision on Appeal of Pre-Trial Judge’s Order Regarding Jurisdiction and Standing, Appeals Chamber, 10 Nov. 2010, para. 43.

¹¹ *Situation in Uganda*, ICC-02/04-01/05-147, Decision on the Prosecutor’s Application that the Pre-Trial Chamber Disregard as Irrelevant the Submission Filed by the Registry on 5 December 2005, Pre-Trial Chamber II, 9 Mar. 2006, paras. 22–23.

This view has been echoed in other decisions¹². Therefore, the requirement in this paragraph that the Court satisfy itself in any case before it that it has jurisdiction was not strictly necessary¹³.

The statutory duty of the Court to satisfy itself that it has jurisdiction (*ratione personae, loci, materiae and temporis*) is limited to ‘any case’ which is ‘brought before it’, which is narrower than ‘a situation’ within the meaning of articles 13, 14 and 18. The concept of a ‘case’ implies that an individual or individuals had been targeted during an investigation of a ‘situation’. This is reinforced by the requirement that a ‘case’ once identified by the Prosecutor must then be ‘brought before’ the Court (either before the Pre-Trial or Trial Chamber), which further implies that formal proceedings beyond the initiation of an investigation of a situation and the questioning of a suspect under article 55 (in those instances where it was possible to do so before an arrest warrant or summons was sought). Indeed, this is confirmed by the basic understanding of the difference between a ‘case’ and a ‘situation’ as articulated by a Pre-Trial Chamber in the following – now often repeated – holding:

‘[T]he Statute, the Rules of Procedure and Evidence and the Regulations of the Court draw a distinction between situations and cases in terms of the different kinds of proceedings, initiated by any organ of the Court, that they entail. Situations, which are generally defined in terms of temporal, territorial and in some cases personal parameters, [...] entail the proceedings envisaged in the Statute to determine whether a particular situation should give rise to a criminal investigation as well as the investigation as such. Cases, which comprise specific incidents during which one or more crimes within the jurisdiction of the Court seem to have been committed by one or more identified suspects, entail proceedings that take place after the issuance of a warrant of arrest or a summons to appear’¹⁴.

¹² See *Prosecutor v. Kony et al.*, ICC-02/04-01/05-377, Decision on Admissibility of the Case under Article 19(1) of the Statute, Pre-Trial Chamber II, 10. Mar. 2009, para. 45; *Prosecutor v. Bemba*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 Jun. 2009, para. 23; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-01, Decision on the Prosecutor’s Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, Pre-Trial Chamber II, 8 Mar. 2011, para. 8; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-01, Decision on the Prosecutor’s Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Kenyatta and Mohammed Hussein Ali, Pre-Trial Chamber II, 8 Mar. 2011, para. 8.

¹³ This provision had its origin in article 24 of the ILC Draft Statute, which stated that ‘[t]he Court shall satisfy itself that it has jurisdiction in any case brought before it’. The ILC commentary on this provision explained: ‘This article is intended to spell out the duty of the court (and of each of its organs, as appropriate) to satisfy itself that it has jurisdiction in a given case. Detailed provisions relating to challenges to jurisdiction are contained in article 34. But even in the absence of a challenge there is an *ex officio* responsibility on the court in matters of jurisdiction’.

¹⁴ 1994 ILC Draft Statute, Commentary to article 24.

The formulation in article 24 of the ILC Draft Statute was retained unchanged throughout the drafting process until the 1998 Zutphen Draft. See 1996 Preparatory Committee II p. 159 (the first sentence of the French proposal under then article 36 on verification of jurisdiction in the Preparatory Committee’s 1996 compilation of proposals); Preparatory Committee Decisions Aug. 1997, p. 318 (Article 24). In the Zutphen Draft, adopted in Jan. 1998, this provision, then numbered article 0 [24] para. 1, was marked for deletion as unnecessary ‘in view of a similar text in paragraph 1 of article 12 [36]’. Zutphen Draft p. 165. The text of article 12 [36] modified the wording slightly to read: ‘At all stages of the proceedings, the Court (a) shall satisfy itself as to its jurisdiction over a case pursuant to article 24’. (The final phrase was deleted because this draft article was to be deleted.) *Ibid.*, p. 167. In the New York Draft, which was the final text sent to the Rome Conference, these provisions of the Zutphen Draft were left unchanged. Preparatory Committee (Consolidated) Draft, articles 14 and 17.

¹⁴ *Situation in the Democratic Republic of the Congo*, ICC-01/04-101-tENG-Corr, Decision on the Application for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 17 Jan. 2006, para. 65 (leave to appeal this decision was denied and the Appeals Chamber subsequently denied an appeal on procedural grounds: *Situation in the Democratic Republic of the Congo*, ICC-01/04-168, Judgment on the Prosecutor’s Application for Extraordinary Review of Pre-Trial Chamber I’s 31 March 2006 Decision Denying Leave to Appeal, Appeals Chamber, 13 Jul. 2006). See also *Situation in the Democratic Republic of the Congo*, ICC-01/04-02/06-20-Anx2, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 Feb. 2006, para. 21; *Situation in the Democratic Republic of the Congo*, ICC-01/04-93, Decision Following the Consultation held on 11 October 2005 and the Prosecution’s Submission on Jurisdiction and Admissibility Filed on 31 October 2005, Pre-Trial Chamber I, 9 Nov. 2005, p. 4: ‘at this stage of the proceedings

As a corollary, ‘an initial determination on whether the case against [the accused] fall[s] within the jurisdiction of the Court [...] is a prerequisite for the issuance of a warrant of arrest’ or a summons to appear¹⁵. It is similarly a prerequisite for the confirmation of charges in a given case¹⁶. However, the Court would not have a duty under article 19 para. 1 to make a determination on its own motion that it had jurisdiction over an investigation into a situation (as opposed to a case) being conducted by the Prosecutor¹⁷. This is particularly important, as part of the investigation of the situation by the Prosecutor will be to determine whether the Court does have jurisdiction (see article 53 para. 1(a)). Of course, if it were clear that the Prosecutor was acting wholly outside of the Court’s jurisdiction (such as investigating a situation which arose and ended before the *Statute* entered into force) the Pre-Trial Chamber could exercise the Court’s inherent power to determine its own jurisdiction as articulated above – since article 19 para. 1 would not apply.

no warrant of arrest or summons to appear has been issued and thus no case has arisen’; *Situation in Republic of Kenya*, ICC-01/09-19-Corr, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 Mar. 2010, para. 41: ‘the Statute is drafted in a manner which tends to solve questions of admissibility at different stages of the proceedings [...]. These stages begin with a ‘situation’ and end with a concrete ‘case’, where one or more suspects have been identified for the purposes of prosecution’.

¹⁵ *Situation in the Democratic Republic of the Congo*, ICC-01/04-02/06-20-Anx2, Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 Feb. 2006, para. 18. It must be emphasized that this decision also determined that an *admissibility* determination was similarly a prerequisite for the issuance of an arrest warrant or a summons to appear. On that point, this decision is no longer good law as it has been overruled by the Appeals Chamber (see *Situation in the Democratic Republic of the Congo*, ICC-01/05-169, Judgment on the Prosecutor’s Appeal Against the Decision of Pre-Trial Chamber I entitled ‘Decision on the Prosecutor’s Application for Warrants of Arrest, Article 58’, Appeals Chamber, 13 Jul. 2006, paras. 42–45). Nevertheless, the view that a *jurisdiction* determination is a prerequisite continues to be good law, having been repeated in a number of article 58 decisions: *Prosecutor v. Ntaganda*, ICC-01/04-02/06-1-Red-t-ENG, Decision on the Prosecution Application for a Warrant of Arrest, Pre-Trial Chamber I, 6 Mar. 2007, para. 23; *Prosecutor v. Harun and Abd-Al-Rahman (Kushayb)*, ICC-02/05-01/07-1-Corr, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 Apr. 2007, para. 13; *Prosecutor v. Bemba*, ICC-01/05-01/08-14-t-ENG, Decision on the Prosecutor’s Application for a Warrant of Arrest Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 Jun. 2008, para. 11; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-01, Decision on the Prosecutor’s Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, Pre-Trial Chamber II, 8 Mar. 2011, para. 9; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-01, Decision on the Prosecutor’s Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, Pre-Trial Chamber II, 8 Mar. 2011, para. 9; *Prosecutor v. Ntaganda*, ICC-01/04-02/06-36-Red, Decision on the Prosecutor’s Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 7; *Prosecutor v. Mudacumura*, ICC-01/04-01/12-1-Red, Decision on the Prosecutor’s Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 9.

¹⁶ See *Prosecutor v. Bemba*, ICC-01/05-01/08-424, Decision Pursuant to Article 67(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 Jun. 2009, para. 24; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 Jan. 2012, para. 25; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 23 Jan. 2012, para. 23.

¹⁷ Prior editions of this commentary to article 19 alluded to a debate as to whether a situation or a case is before the Court when the Pre-Trial Chamber authorizes the Prosecutor to commence a *proprio motu* investigation pursuant to article 15 paras. 3–4 (which uses the word ‘case’). This has since been resolved, with Pre-Trial Chamber II holding that the use of ‘case’ in that context, in light of its prior analysis of the same word appearing in article 53 para. 1(b), ‘shall be understood as relating to potential cases within the *situation* at stake’. Thus, the Chamber proceeded to ‘authorize[] the commencement of an investigation into the *situation* in the Republic of Kenya in relation to crimes against humanity [...] committed between 1 June 2005 and 26 November 2009’ (emphasis added). See *Situation in Republic of Kenya*, ICC-01/09-19-Corr, Decision Pursuant to Article 15 of the Rome Statute on the Authorization of an Investigation into the Situation in the Republic of Kenya, Pre-Trial Chamber II, 31 Mar. 2010, para. 64, Disposition. See also *Situation in the Republic of Côte d’Ivoire*, ICC-02/11-14-Corr, Corrigendum to ‘Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d’Ivoire’, Pre-Trial Chamber III, 15 Nov. 2011, para. 18. In other words, since the Chamber only authorizes the Prosecutor to investigate a *situation proprio motu*, Article 19 remains inapplicable.

When the Court is making a determination as to whether it has jurisdiction over the case with which it is seized:

‘it must meet the following three conditions: (i) the crime must be one of the crimes set out in article 5 of the Statute (jurisdiction *ratione materiae*); (ii) the crimes must have been committed within the timeframe specified in article 11 of the Statute (jurisdiction *ratione temporis*); an (iii) the crime must satisfy one of the other two criteria laid down in article 12 of the Statute, namely, it must either have been committed on the territory of a State Party or by a national of that State, or have been committed on the territory of a State which has made a declaration under article 12(3) of the Statute or by nationals of that State.’¹⁸

Nonetheless, the UN Security Council can modify the last of these criteria so as to include the territory and nationals of States who are not parties to the Court by referring a situation to the Prosecutor pursuant to article 13 para. (b).

In contrast to the *duty* of the Court to determine whether it has *jurisdiction* in a case brought before it, the second sentence of paragraph 1 simply provides that the Court (the Pre-Trial Chamber or Trial Chamber) *may*, on its own motion (*proprio motu*), determine the *admissibility of a case* in accordance with article 17¹⁹. The provision does not thus impose a duty but merely confers discretion on the Court in the matter. To date, the Pre-Trial Chambers have considered the exercise of this discretion in the context of applications for warrants of arrest or summonses to appear or in the course of confirmation proceedings. In its earliest decision on the matter in *Lubanga and Ntaganda*, the Appeals Chamber laid down guidelines which Pre-Trial Chambers should follow when considering whether or not to exercise their discretion:

‘[A] Pre-Trial Chamber should exercise its discretion only when it is appropriate in the circumstances of the case, bearing in mind the interests of the suspect. Such circumstances may include

¹⁸ *Prosecutor v. Bemba*, ICC-01/05-01/08-14-tENG, Decision on the Prosecutor’s Application for a Warrant of Arrest Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 Jun. 2008, para. 12. See also *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-9-Red, Decision on the Prosecutor’s Application Pursuant to Article 58 for a Warrant of Arrest Against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 Nov. 2011, para. 9; *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-3, Decision on the Prosecutor’s Application Pursuant to Article 58 for a Warrant of Arrest Against Charles Blé Goudé, Pre-Trial Chamber III, 6 Jan. 2012, para. 8; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-2-Red, Decision on the Prosecutor’s Application Pursuant to Article 58 for a Warrant of Arrest Against Simone Gbagbo, Pre-Trial Chamber III, 2 Mar. 2012, para. 8; *Prosecutor v. Ntaganda*, ICC-01/04-02/06-36-Red, Decision on the Prosecutor’s Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 8; *Prosecutor v. Mudacumura*, ICC-01/04-01/12-1-Red, Decision on the Prosecutor’s Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 10.

¹⁹ The second sentence of paragraph 1 had its origin in article 35 of the ILC Draft Statute, which provided that ‘[t]he Court may [...] of its own motion, decide, having regard to the purposes of this Statute set out in the preamble, that a case before it is inadmissible’ on grounds similar to those now found in article 17. During the drafting of the Statute, the formulation in article 35 of the ILC Draft Statute shifted significantly from giving the Court the discretion on its own motion to determine simply that a case was inadmissible to giving it a broader discretion to determine admissibility. In the *Ad Hoc* Committee in 1995:

‘[S]ome delegations put forward the view that it would be preferable if the principles set out in article 35 in regard to admissibility and conferring a discretion upon the court to decide that a case before the court was inadmissible on the grounds set out in subparagraphs (a) to (c) were laid down as a condition rather than by way of conferring a discretionary power’.

In the 1996 Preparatory Committee I, p. 39:

‘[T]he view was expressed that the Court should be able to declare, at any time and of its own motion [...] a case inadmissible. In this respect, it was also noted that the Court should retain the right to recommence proceedings after a fundamental change of circumstances, or to review its own decision on the admissibility of a case’.

The Preparatory Committee’s 1996 compilation of proposals did not include any modification of the language concerning the ability of the Court to determine on its own motion the inadmissibility of a case. See 1996 Preparatory Committee II, pp. 159 *et seq.* However, at its Aug. 1997 session, the Preparatory Committee draft of what was now article 36 (Challenges to the jurisdiction of the Court or the admissibility of a case) stated in paragraph 1: ‘At all stages of the proceedings, the Court [...] (b) may, on its own motion, determine the admissibility of the case pursuant to article 35 [the predecessor of article 17]’. Preparatory Committee Decisions Aug. 1997, p. 318 (Article 36).

The same phrasing with regard to the Court’s discretion to determine admissibility was retained in the Zutphen draft, adopted in January 1998, in what was now numbered article 12 [36] para. 1. (Zutphen Draft, 44) and in the New York draft, which was the final text sent to the Rome Conference (Preparatory Committee (Consolidated) Draft, article 17).

instances where a case is based on the established jurisprudence of the Court, uncontested facts that render a case clearly inadmissible or an ostensible cause impelling the exercise of *proprio motu* review. In these circumstances it is also imperative that the exercise of this discretion take place bearing in mind the rights of other participants.²⁰

In that particular case the Appeals Chamber held that the Pre-Trial Chamber had erred in holding that admissibility was a mandatory consideration and that in exercising what should have been their discretion, 'the Pre-Trial Chamber [ha]d not give[n] sufficient weight to the interests of [the accused].' This was particularly so because the Chamber acted *ex parte* (Prosecutor only) and *before* the accused was able to challenge the matter pursuant to article 19 para. 2(a). If the matter was then taken to the Appeals Chamber, it too would potentially decide on admissibility prior to article 19 para. 2(a) proceedings. In such circumstances '[t]he right of the suspect to challenge the admissibility of the case before the [Court] thus would be seriously impaired'.²¹

- 7 Following the above guidelines, the majority of Pre-Trial Chambers have declined to exercise their discretion at the arrest warrant or summons to appear stage²². Only a small number of Pre-Trial Chambers in a few cases have gone against this trend where domestic proceedings concerning the accused existed, as occurred in *Harun and Abd-Al-Rahman (Kushayb)*²³, *Ngudjolo*²⁴ and *Katanga*²⁵. *Bemba* is a rare case where the Pre-Trial Chamber exercised its

²⁰ *Situation in the Democratic Republic of the Congo*, ICC-01/05-169, Judgment on the Prosecutor's Appeal Against the Decision of Pre-Trial Chamber I entitled 'Decision on the Prosecutor's Application for Warrants of Arrest, Article 58', Appeals Chamber, 13 Jul. 2006, para. 52.

²¹ *Situation in the Democratic Republic of the Congo*, ICC-01/05-169, Judgment on the Prosecutor's Appeal Against the Decision of Pre-Trial Chamber I entitled 'Decision on the Prosecutor's Application for Warrants of Arrest, Article 58', Appeals Chamber, 13 Jul. 2006, paras 42–45, 48–51, 53.

²² See *Prosecutor v. Ntaganda*, ICC-01/04-02/06-1-Red-tENG, Decision on the Prosecution Application for a Warrant of Arrest, Pre-Trial Chamber I, 6 Mar. 2007, paras. 10–15; *Prosecutor v. Al Bashir*, ICC-02/05-01/09-3, Decision on the Prosecutor's Application for a Warrant of Arrest Against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 Mar. 2009, paras. 46–51; *Prosecutor v. Abu Garda*, ICC-02/05-02/09-15-AnxA, Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber I, 7 May 2009, para. 4; *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-1, Second Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber I, 27 Aug. 2009, para. 4; *Prosecutor v. Al Bashir*, ICC-02/05-01/09-94, Second Decision on the Prosecutor's Application for a Warrant of Arrest, Pre-Trial Chamber I, 12 Jul. 2010, para. 44; *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-1, Decision on the Prosecutor's Application for a Warrant of Arrest Against Callixte Mbarushimana, Pre-Trial Chamber I, 28 Sep. 2010, para. 9; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-01, Decision on the Prosecutor's Application for Summonses to Appear for Francis Kimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, Pre-Trial Chamber II, 8 Mar. 2011, para. 12; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-01, Decision on the Prosecutor's Application for Summonses to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, Pre-Trial Chamber II, 8 Mar. 2011, para. 12; *Situation in the Libyan Arab Jamahiriya*, ICC-01/11-01/11-1, Decision on the 'Prosecutor's Application Pursuant to Article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al-Islam Gaddafi and Abdullah Al-Senussi', Pre-Trial Chamber I, 27 Jun. 2011, paras. 11–12; *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-9-Red, Decision on the Prosecutor's Application Pursuant to Article 58 for a Warrant of Arrest Against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 Nov. 2011, paras. 22–24; *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-3, Decision on the Prosecutor's Application Pursuant to Article 58 for a Warrant of Arrest Against Charles Blé Goudé, Pre-Trial Chamber III, 6 Jan. 2012, para. 12; *Prosecutor v. Hussein*, ICC-02/05-01/12-1-Red, Decision on the Prosecutor's Application under Article 58 Relating to Abdel Raheem Muhammad Hussein, Pre-Trial Chamber I, 1 Mar. 2012, para. 10; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-2-Red, Decision on the Prosecutor's Application Pursuant to Article 58 for a Warrant of Arrest Against Simone Gbagbo, Pre-Trial Chamber III, 2 Mar. 2012, para. 12; *Prosecutor v. Ntaganda*, ICC-01/04-02/06-36-Red, Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 13; *Prosecutor v. Mudacumura*, ICC-01/04-01/12-1-Red, Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 18.

²³ See *Prosecutor v. Harun and Abd-Al-Rahman (Kushayb)*, ICC-02/05-01/07-1-Corr, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 Apr. 2007, paras. 18–25.

²⁴ See *Prosecutor v. Ngudjolo*, ICC-01/04-01/07-3, Decision on the Evidence and Information Provided by the Prosecution for the Issuance of a Warrant of Arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 Jul. 2007, paras. 17–22.

²⁵ See *Prosecutor v. Katanga*, ICC-01/04-01/07-4, Decision on the Evidence and Information Provided by the Prosecution for the Issuance of a Warrant of Arrest for Germain Katanga, Pre-Trial Chamber I, 6 Jul. 2007, paras. 17–21.

discretion where it appeared that the judicial authorities in the Central African Republic had abandoned their attempts to prosecute the accused on the ground that he enjoyed immunities as Vice-President of the Democratic Republic of the Congo.²⁶ However, the general practice is for the Court to wait for an admissibility challenge pursuant to article 19 para. 2 before venturing into the subject, absent clear circumstances requiring an admissibility determination at an earlier stage in the interests of justice. Indeed, this is consistent with the linear approach intended by the drafters of articles 15, 18 and 19²⁷. Where no such challenge is filed, and the matter has not been broached in the arrest warrant or summons to appear decision, it may be appropriate for the Chamber to undertake the analysis *proprio motu* at the confirmation of charges stage²⁸.

The Court can nonetheless react to new developments pursuant to article 19 para. 1:

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‘Considered as a whole, the *corpus* of [the Statute’s] provisions delineates a system whereby the determination of admissibility is meant to be an ongoing process throughout the pre-trial phase, the outcome of which is subject to review depending on the evolution of the relevant factual scenario. Otherwise stated, the Statute as a whole enshrines the idea that a change in circumstances allows (or even, in some scenarios, compels) the Court to determine admissibility anew.’²⁹

Thus, even though in the cases arising from the situation in Uganda the Pre-Trial Chamber originally exercised its discretion and held them to be admissible when issuing arrest warrants (without much elaboration³⁰), it deemed it necessary to revisit the issue years later. This was in light of comments made by the government of Uganda and the establishment of a specialised division of the High Court of Uganda with jurisdiction over serious crimes committed during an armed conflict in the country.³¹ The Pre-Trial Chamber found

²⁶ *Prosecutor v. Bemba*, ICC-01/05-01/08-14-tENG, Decision on the Prosecutor’s Application for a Warrant of Arrest Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 Jun. 2008, paras. 20–22.

²⁷ The exact relationship between articles 15, 18 and 19, the final versions of which were adopted only on the last day of the Rome Diplomatic Conference, was not resolved in the *Rome Statute*. When it came to drafting the *Rules*, France proposed an integrated approach that would have required admissibility and jurisdiction challenges to be made at the article 15 stage, while other states preferred a linear approach. According to two of the key participants in the negotiations:

‘The Rules settle this matter following a ‘linear’ approach, according to which both schemes – the Article 15 procedure and the Articles 18 and 19 regime – are not to be merged but considered separately and consecutively. Consequently, it is clear that the Article 15 procedure is not the appropriate forum for states and other parties to raise jurisdiction or admissibility challenges. The Prosecutor must include an assessment of admissibility in his or her determination whether to seek authorization from the Pre-Trial Chamber to initiate an investigation, but notice to states shall only be provided after a positive decision to commence an investigation is taken. In respect of an investigation triggered in accordance with Article 15, such notice will arguably only be given upon authorization by the Pre-Trial Chamber, which would then normally provide the eligible states and others with the first practical opportunity to raise issues of jurisdiction and admissibility’.

Friman and Fernández (2000) 3 *YblHumL* 289, 295. See also Holmes, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 328–329.

²⁸ See *Prosecutor v. Abu Garda*, ICC-02/05-02/09-243-Red, Decision on Confirmation of Charges, Pre-Trial Chamber I, 8 Feb. 2010, paras. 25–34; *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-121-Corr-Red, Corrigendum on the ‘Decision on Confirmation of Charges’, Pre-Trial Chamber I, 7 Mar. 2011, paras. 25–28.

²⁹ *Prosecutor v. Kony et al.*, ICC-02/04-01/05-377, Decision on Admissibility of the Case under Article 19(1) of the Statute, Pre-Trial Chamber II, 10. Mar. 2009, para. 28.

³⁰ *Situation in Uganda*, ICC-02/04-01/05-1-US-Exp, Decision on the Prosecutor’s Application for Warrants of Arrest under Article 58, Pre-Trial Chamber II, 8 Jul. 2005, p. 2; *Situation in Uganda*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 Sep. 2005, para. 38; *Situation in Uganda*, ICC-02/04-01/05-54, Warrant of Arrest for Vincent Otti, Pre-Trial Chamber II, 8 Jul. 2005, para. 38; *Situation in Uganda*, ICC-02/04-01/05-55, Warrant of Arrest for Raska Lukwiya, Pre-Trial Chamber II, 8 Jul. 2005, para. 26; *Situation in Uganda*, ICC-02/04-01/05-56, Warrant of Arrest for Okot Odhiambo, Pre-Trial Chamber II, 8 Jul. 2005, para. 28; *Situation in Uganda*, ICC-02/04-01/05-57, Warrant of Arrest for Dominic Ongwen, Pre-Trial Chamber II, 8 Jul. 2005, para. 26.

³¹ See *Prosecutor Kony et al.*, ICC-02/04-01/05-320, Decision Initiating Proceedings under Article 19, Requesting Observations and Appointing Counsel for the Defence, Pre-Trial Chamber II, 21 Oct. 2008, pp. 6–7; *Prosecutor v. Kony et al.*, ICC-02/04-01/05-377, Decision on Admissibility of the Case under Article 19(1) of the Statute, Pre-Trial Chamber II, 10. Mar. 2009, paras. 33–44. Given this precedent, there is nothing that prevents Pre-Trial Chambers from undertaking similar action notwithstanding the fact that they have previously expressly *refused* to exercise their discretion to consider admissibility pursuant to article 19 para. 1.

that the cases continued to be admissible before the Court. On appeal, the Appeals Chamber was able to give further clarification on the matter. It held that:

[it]will not interfere with the Pre-Trial Chamber's exercise of discretion to make a determination *proprio motu* on the admissibility of a case merely because the Appeals Chamber, if it had the power, might have made a different ruling. [...] [T]he Appeals Chamber's functions extend to reviewing the exercise of discretion by the Pre-Trial Chamber to ensure that the Chamber properly exercised its discretion. However, the Appeals Chamber will not interfere with the Pre-Trial Chamber's exercise of discretion under article 19(1) of the Statu[t]e to determine admissibility, save where it is shown that that determination was vitiated by an error of law, an error of fact, or a procedural error, and then, only if the error materially affected the determination. This means in effect that the Appeals Chamber will interfere with a discretionary decision only under limited conditions.³²

The Appeals Chamber found that, according to the circumstances of the case, the Pre-Trial Chamber did not abuse its discretion. It based its finding on the grounds that: (i) the Pre-Trial Chamber's proceedings were not in camera but public; (ii) the Prosecutor, victims and the Government of Uganda participated; (iii) *ad hoc* Defence Counsel was appointed by the Chamber to facilitate submissions from a defence perspective; and (iv) the case did not involve gravity considerations (which were not susceptible to change). Further, it found that the issue of predetermination did not arise as the Pre-Trial Chamber's ruling was based on a 'factual scenario [that] was identical to the factual scenario prevailing at the time when the Chamber issued the warrants of arrest', since despite the creation of a specialised division of the High Court of Uganda, there was still inaction by the authorities with respect to the case³³. The Appeals Chamber also held that in circumstances where the suspects had not yet appeared before the Court, they were not entitled to legal representation when the Court exercises its article 19 para. 1 discretion with respect to admissibility³⁴.

- 9 Lastly, it is important to recall, as a Pre-Trial Chamber has correctly held, that it is 'beyond controversy that the accused will always be entitled to raise a [jurisdictional or admissibility] challenge under article 19(2) of the Statute, whether or not the Chamber has exercised its powers under article 19(1)'³⁵.
- 10 Regarding the procedure applicable to determinations of jurisdiction and admissibility when the relevant Chambers are acting on their own motion, the Appeals Chamber has stated that:

'rule 58(2) [...] gives the relevant Chamber broad discretion over the conduct of proceedings pursuant to articles 19(1) and (2) of the Statute. The Appeals Chamber, however, finds that such discretion is not unlimited. It has to be exercised in conjunction with other relevant legal provisions'³⁶.

With regard to the standard of proof, Pre-Trial Chamber II in the first five cases in the Uganda situation simply found that the cases 'appear[ed] to be admissible'³⁷. This was a

³² *Prosecutor v. Kony et al.*, ICC-02/04-01/-5-408, Judgment on the Appeal of the Defence Against the 'Decision on the Admissibility of the Case under Article 19(1) of the Statute' of 10 March 2009, Appeals Chamber, 16 Sep. 2009, paras. 79–80.

³³ *Prosecutor v. Kony et al.*, ICC-02/04-01/-5-408, Judgment on the Appeal of the Defence Against the 'Decision on the Admissibility of the Case under Article 19(1) of the Statute' of 10 March 2009, Appeals Chamber, 16 Sep. 2009, paras. 85–86.

³⁴ *Prosecutor v. Kony et al.*, ICC-02/04-01/-5-408, Judgment on the Appeal of the Defence Against the 'Decision on the Admissibility of the Case under Article 19(1) of the Statute' of 10 March 2009, Appeals Chamber, 16 Sep. 2009, paras. 63–68.

³⁵ *Prosecutor v. Kony et al.*, ICC-02/04-01/05-377, Decision on Admissibility of the Case under Article 19(1) of the Statute, Pre-Trial Chamber II, 10 Mar. 2009, para. 26.

³⁶ *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-321, Judgment on Appeal of Mr Laurent Gbagbo Against the Decision of Pre-Trial Chamber I on Jurisdiction and Stay of Proceedings, Appeals Chamber, 12 Dec. 2012, para. 39.

³⁷ *Situation in Uganda*, ICC-02/04-01/05-1-US-Exp, Decision on the Prosecutor's Application for Warrants of Arrest under Article 58, Pre-Trial Chamber II, 8 Jul. 2005, p. 2; *Situation in Uganda*, ICC-02/04-01/05-53, Warrant of Arrest for Joseph Kony issued on 8 July 2005 as Amended on 27 September 2005, Pre-Trial Chamber II, 27 Sep. 2005, para. 38; *Situation in Uganda*, ICC-02/04-01/05-54, Warrant of Arrest for Vincent Otti, Pre-Trial Chamber II, 8 Jul. 2005, para. 38; *Situation in Uganda*, ICC-02/04-01/05-55, Warrant of Arrest for Raska Lukwiya, Pre-Trial Chamber II, 8 Jul. 2005, para. 26; *Situation in Uganda*, ICC-02/04-01/05-56, Warrant of

relatively low standard of proof. Pre-Trial Chamber I, on the other hand, stated in the *Lubanga and Ntaganda* case that it was applying the intimate conviction (*intime conviction*) approach when determining whether there was a reasonable basis to issue arrest warrants, albeit a more restrictive version than is sometimes employed. This was because the judges would be 'bound, pursuant to article 58 para. 1 of the Statute, by the factual basis and the evidence and information provided by the Prosecution in the Prosecution's Application, the Prosecution's Submission and the Prosecution's Further Submission'³⁸. This language was reproduced almost *verbatim* in the subsequent decision concerning the arrest warrant in *Ntaganda*³⁹. While both decisions in these cases were originally issued under seal, the above language has not been repeated in any subsequent public arrest warrant or summons to appear decision to date.

Subsequent decisions on arrest warrants or summonses to appear, made without the participation of the suspects⁴⁰, reveal inconsistencies and ambiguity as to the evidentiary standard which the Prosecutor has to meet with respect to jurisdiction and admissibility. Some decisions have simply held that, on the basis of the evidence and information presented, the case fell within the jurisdiction of the Court and appeared to be (or was) admissible.⁴¹ Others have repeated such language but have confined it only to jurisdiction⁴². Some have seemingly applied the 'reasonable grounds to believe' test⁴³, while others have

Arrest for Okot Odhiambo, Pre-Trial Chamber II, 8 Jul. 2005, para. 28; *Situation in Uganda*, Case No. ICC-02/04-01/05-57, Warrant of Arrest for Dominic Ongwen, Pre-Trial Chamber II, 8 Jul. 2005, para. 26.

³⁸ *Situation in the Democratic Republic of the Congo*, ICC-01/04-02/06-20-Anx2, Decision on the Prosecutor's Application for Warrants of Arrest, Article 58, Pre-Trial Chamber I, 10 Feb. 2006, para. 14–15. The doctrine of *intime conviction*, which dates to the French Revolution, but has its roots in Roman law, means that the judge or juror decides, according to his or her conscience rather than according to formal rules of proof.

³⁹ *Prosecutor v. Ntaganda*, ICC-01/04-02/06-1-Red-tENG, Decision on the Prosecution Application for a Warrant of Arrest, Pre-Trial Chamber I, 6 Mar. 2007, paras. 18–19, 24–25.

⁴⁰ One noticeable exception to this occurred in the *Kony et al.* case, where the Pre-Trial Chamber reconsidered admissibility years after it had issued warrants of arrest. In doing so, it invoked rule 58 sub-rule 2 and permitted the Prosecutor, victims, the Ugandan Government and a specially appointed Defence Counsel to make submissions. See *Prosecutor v. Kony et al.*, ICC-02/04-01/05-320, Decision Initiating Proceedings under Article 19, Requesting Observations and Appointing Counsel for the Defence, Pre-Trial Chamber II, 21 Oct. 2008, pp. 7–8.

⁴¹ See *Prosecutor v. Harun and Abd-Al-Rahman (Kushayb)*, ICC-02/05-01/07-1-Corr, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 Apr. 2007, para. 25; *Prosecutor v. Ngudjolo*, ICC-01/04-01/07-3, Decision on the Evidence and Information Provided by the Prosecution for the Issuance of a Warrant of Arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I, 6 Jul. 2007, paras. 16, 22 (but also utilising the 'reasonable grounds to believe' standard with respect to the crimes at issue at para. 12); *Prosecutor v. Katanga*, ICC-01/04-01/07-4, Decision on the Evidence and Information Provided by the Prosecution for the Issuance of a Warrant of Arrest for Germain Katanga, Pre-Trial Chamber I, 6 Jul. 2007, paras. 16, 21 (but also utilising the 'reasonable grounds to believe' standard with respect to the crimes at issue at para. 12); *Prosecutor v. Bemba*, ICC-01/05-01/08-14-tENG, Decision on the Prosecutor's Application for a Warrant of Arrest Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber III, 10 Jun. 2008, paras. 19, 22 (but also utilising the 'reasonable grounds to believe' standard with respect to the crimes at issue at para. 13).

⁴² *Prosecutor v. Abu Garda*, ICC-02/05-02/09-15-AnxA, Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber I, 7 May 2009, para. 3; *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-1, Second Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber I, 27 Aug. 2009, para. 3; *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-9-Red, Decision on the Prosecutor's Application Pursuant to Article 58 for a Warrant of Arrest Against Laurent Koudou Gbagbo, Pre-Trial Chamber III, 30 Nov. 2011, para. 16 (but also utilising the 'reasonable grounds to believe' standard with respect to the crimes at issue at para. 11 and relying on its prior decision authorizing an investigation at paras. 12–15); *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-3, Decision on the Prosecutor's Application Pursuant to Article 58 for a Warrant of Arrest Against Charles Blé Goudé, Pre-Trial Chamber III, 6 Jan. 2012, para. 9 (relying on the analysis it had previously conducted in the *L. Gbagbo* case); *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-2-Red, Decision on the Prosecutor's Application Pursuant to Article 58 for a Warrant of Arrest Against Simone Gbagbo, Pre-Trial Chamber III, 2 Mar. 2012, para. 9 (relying on the analysis it had previously conducted in the *L. Gbagbo* case); *Prosecutor v. Ntaganda*, ICC-01/04-02/06-36-Red, Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 12; *Prosecutor v. Mudacumura*, ICC-01/04-01/12-1-Red, Decision on the Prosecutor's Application under Article 58, Pre-Trial Chamber II, 13 Jul. 2012, para. 17.

⁴³ *Prosecutor v. Al Bashir*, ICC-02/05-01/09-3, Decision on the Prosecutor's Application for a Warrant of Arrest Against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 Mar. 2009, para. 28(i) (but also simply

held that jurisdiction must ‘attain the degree of certainty’⁴⁴. Given that this analysis is regularly conducted first at the article 58 para. 1(a) or article 58 para. 7 stage (at least with respect to jurisdiction), it would be reasonable for the Court to apply the ‘reasonable grounds to believe’ test.

- 12 It should also be noted that in some instances when the Chambers applied article 19 para. 1 at the confirmation of charges stage or in the course of final judgments, they simply referred back to their prior determinations in earlier proceedings and found that conditions had not changed;⁴⁵ alternatively, they undertook a rudimentary analysis particularly in light of past findings in the relevant case⁴⁶. As aforementioned, the exception to this has been in cases where no article 19 para. 2 challenges were filed by the persons concerned⁴⁷.

II. Paragraph 2: Challenges

- 13 Under article 18 para. 7, States which might have had their preliminary challenges to the admissibility of an investigation rejected by the Court, may still make a further challenge to a case pursuant to article 19. However, article 18 para. 7 requires that the State, when making an article 19 challenge must demonstrate the existence of ‘additional significant facts or significant changes of circumstances’. The aim of this requirement is to limit the possibilities of frivolous challenges. As of 31 May 2015, there have been no public article 18 challenges by States. Consequently, there have been no cases arising out of article 18 para. 7 and article 19 wherein this requirement would have been tested. However, ways by which frivolous challenges can be further minimized are dealt with below in the discussions of paragraphs 4, 5, 6 and 7. In contrast to challenges to admissibility under article 18 or, if there are new developments, under article 19, States are limited to one challenge to jurisdiction, absent exceptional circumstances. However, nothing prevents a State from filing an article 19 challenge without first having filed one under article 18. The procedure for considering these challenges is discussed below at the end of this section.

stating that the case ‘falls within the jurisdiction of the Court’ at paras. 35, 40); *Situation in the Libyan Arab Jamahiriya*, ICC-01/11-01/11-1, Decision on the ‘Prosecutor’s Application Pursuant to Article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al-Islam Gaddafi and Abdullah Al-Senussi’, Pre-Trial Chamber I, 27 Jun. 2011, para. 5; *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-1, Decision on the Prosecutor’s Application for a Warrant of Arrest Against Callixte Mbarushimana, Pre-Trial Chamber I, 28 Sep. 2010, para. 3 (but also simultaneously applying a *prima facie* standard at para. 7); *Prosecutor v. Hussein*, ICC-02/05-01/12-1-Red, Decision on the Prosecutor’s Application under Article 58 Relating to Abdel Raheem Muhammad Hussein, Pre-Trial Chamber I, 1 Mar. 2012, para. 5 (but also simply stating that the case ‘falls within the jurisdiction of the Court’ at para. 9).

⁴⁴ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-01, Decision on the Prosecutor’s Application for Summons to Appear for William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, Pre-Trial Chamber II, 8 Mar. 2011, para. 9 (but also relying on its prior decision authorizing an investigation at paras. 10–11); *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-01, Decision on the Prosecutor’s Application for Summonses to Appear for Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, Pre-Trial Chamber II, 8 Mar. 2011, para. 9 (but also relying on its prior decision authorizing an investigation at paras. 10–11).

⁴⁵ See for example *Prosecutor v. Lubanga*, ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, 29 Jan. 2007, paras. 164–166; *Prosecutor v. Bemba*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 Jun. 2009, paras. 22–26; *Prosecutor v. Lubanga*, ICC-01/04-01/06-2842, Judgment Pursuant to Article 74 of the Statute, 14 Mar. 2012, para. 9; *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-3-tENG, Judgment Pursuant to Article 74 of the Statute, Trial Chamber II, 18 Dec. 2012, paras. 15–16; *Prosecutor v. Katanga*, ICC-01/04-01/07-3436-tENG, Judgment Pursuant to Article 74 of the Statute, Trial Chamber II, 7 Mar. 2014, paras. 14–15.

⁴⁶ *Prosecutor v. Ntaganda*, ICC-01/04-02/06-309, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Bosco Ntaganda, 9 Jun. 2014, para. 7; *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges Against Laurent Gbagbo, Pre-Trial Chamber I, 12 Jun. 2014, para. 18; *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-186, Decision on the Confirmation of Charges Against Charles Blé Goudé, Pre-Trial Chamber I, 11 Dec. 2014, para. 11.

⁴⁷ See *Prosecutor v. Abu Garda*, ICC-02/05-02/09-243-Red, Decision on Confirmation of Charges, Pre-Trial Chamber I, 8 Feb. 2010, paras. 25–34; *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-121-Corr-Red, Corrigendum on the ‘Decision on Confirmation of Charges’, Pre-Trial Chamber I, 7 Mar. 2011, paras. 25–28.

1. Admissibility

Paragraph 2 specifies that ‘[c]hallenges to the admissibility of a case on the grounds referred to in article 17’ may be made by certain individuals or States. This provision thus limits the grounds for challenges to admissibility to those listed in article 17. In this context the Appeals Chamber has noted that:

‘a challenge to admissibility [...] is not the mechanism under which to raise alleged violations of human rights of the accused in the course of the prosecutorial process. [...] Unless alleged prejudices and violations are relevant to the criteria of article 17 of the Statute, they cannot render the case inadmissible’⁴⁸.

It is also important to underline that ‘[g]enerally speaking, the admissibility of a case must be determined on the basis of the facts as they exist at the time of the proceedings concerning the admissibility challenge’⁴⁹. The Appeals Chamber has further clarified that ‘the expression “time of the proceedings” [...] clearly refer[s] to the time of the proceedings on the admissibility challenge before the [relevant] Chamber and not subsequent proceedings on appeal’⁵⁰. A Pre-Trial or Trial Chamber can nonetheless ask for further submissions in admissibility challenge proceedings should it be deemed necessary and appropriate⁵¹. Where circumstances change subsequent to a challenge, the correct course of action is to approach the relevant Chamber on the basis of article 19 para. 4 (by the concerned person or a State) or article 19 para. 10 (by the Prosecutor, where Court has determined that the case is inadmissible)⁵². Furthermore, a determination on the admissibility of a case ‘is made on the basis of the case brought by the Prosecutor without delving into consideration of the evidence put forward to sustain those charges’, as this would conflate a Chamber’s inquiry into the admissibility of a case with that of the merits of the same case.⁵³

⁴⁸ *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1497, Judgment on the Appeal of Mr. Germain Katanga Against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 Sep. 2009, para. 113. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr. Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’, Appeals Chamber, 24 Jul. 2014, para. 230.

⁴⁹ *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1497, Judgment on the Appeal of Mr. Germain Katanga Against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 Sep. 2009, para. 56. See also *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the Appeal of Côte d’Ivoire Against the Decision of Pre-Trial Chamber I of 11 December 2014 entitled ‘Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo’, Appeals Chamber, 27 May 2015, para. 32.

⁵⁰ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-234, Decision on the ‘Filing of Updated Investigation Report by the Government of Kenya in the Appeal Against the Pre-Trial Chamber’s Decision on Admissibility’, Appeals Chamber, 28 Jul. 2011, para. 10; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-202, Decision on the ‘Filing of Updated Investigation Report by the Government of Kenya in the Appeal Against the Pre-Trial Chamber’s Decision on Admissibility’, Appeals Chamber, 28 Jul. 2011, para. 9; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the Appeal of Côte d’Ivoire Against the Decision of Pre-Trial Chamber I of 11 December 2014 entitled ‘Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo’, Appeals Chamber, 27 May 2015, para. 32.

⁵¹ See for example, *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-239, Decision Requesting Further Submissions on Issues Related to the Admissibility of the Case Against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 7 Dec. 2012; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-44, Decision on Further Submissions on Issues Related to be Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 28 Aug. 2014.

⁵² See *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1497, Judgment on the Appeal of Mr. Germain Katanga Against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 Sep. 2009, para. 56; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled ‘Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014, para. 44; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr. Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’, Appeals Chamber, 24 Jul. 2014, paras. 57–58.

⁵³ *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-185, Decision on the Defence Challenge to the Admissibility of the Case Against Charles Blé Goudé for Insufficient Gravity, Pre-Trial Chamber I, 12 Nov. 2014, para. 17 (where

- 15 For a number of cogent reasons, the burden of proof of demonstrating the inadmissibility of a case falls on the person or State making the challenge⁵⁴. First of all, it is a fundamental principle of law that the party making allegations concerning a matter in dispute has the legal burden of proof (*onus probandi actori incumbit*)⁵⁵. Second, the Prosecutor will have conducted an extensive review of the admissibility criteria and, given the limited resources available and the limited number of cases he or she will be able to investigate, the Prosecutor would be unlikely to decide to investigate a particular case without a strong basis. Third, most States will already have had an opportunity to challenge the admissibility of a case under article 18. Fourth, it is particularly appropriate to impose the burden on States making challenges to admissibility pursuant to article 17 paras. (a) and (b), since these States will have most of the information relevant to the determination in their possession. Indeed, another general principle of law is that when the matters at issue are exclusively or largely within the knowledge of one party, the burden of proof may be regarded as resting on that party to provide a satisfactory explanation⁵⁶. The Court has accepted this notion – that the moving party bears the burden of proof in this context:

‘The Rome Statute framework does not expressly provide where the burden of proof lies on an admissibility [...] application [...] However, the compelling logic of the situation is that should an accused challenge the admissibility of the case under Article 19(2)(a) of the Statute [...], it falls to him to establish the facts and other relevant matters that are said to support the argument’⁵⁷.

the suspect submitted an admissibility challenge on the basis that the case against him was not of sufficient gravity to justify further action by the Court).

⁵⁴ See Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 227, (citing First Edition of this Commentary). Article 17 para. 1 does not allocate responsibility with respect to burdens of proof; it simply states the circumstances when the relevant Chamber must determine whether a case is admissible or inadmissible.

⁵⁵ Mawhinney (1993) *CanYbIL* 343, 354 (quoting a Canadian government brief citing ‘the fundamental principle of law expressed in the Latin maxim *actori incumbit probatio* – or, the burden of proof rests with the claimant’). See also Lillich (ed.), *Fact-Finding Before International Tribunals* (1990) 34; Kazazi, *Burden of Proof and Related Issues: A Study on Evidence Before International Tribunals* (1996) 369. Several states made this point clear during the drafting process. E.g., one of the first proposals concerning admissibility challenges provided that ‘[i]n every case, the State or person challenging a submission to the Court under paragraph 2 of this article [before initiation of the investigation] shall provide all information concerning the conduct of the investigations and the judicial procedures which may support a finding of inadmissibility in the case submitted to the Court’ and had to provide a memorandum in support of the challenge at the trial stage. 1996 Preparatory Committee II, pp. 161, 163 (articles 39 para. 5 and 116, para. 1). In the opening plenary session of the Rome Conference, the delegation of the Republic of Korea declared that ‘[t]he State Party that raised the question of complementarity should bear the burden of proof’, UN Diplomatic Conf. of Plenipotentiaries on the Establishment of an ICC, Rome, 15 June – 17 July 1998, Official Records, Vol. 2, 69–70).

⁵⁶ See, e.g., *Avşar v. Turkey*, Judgment, Application No. 2567/94 [2001] ECHR, 10 Jul. 2001, para. 392; *Salman v. Turkey*, Judgment, Application No. 21986/93 [2000] ECHR, 27 Jun. 2000, para. 100; (‘Where the events in issue lie wholly, or in large part, within the exclusive knowledge of the authorities, as in the case of persons within their control or custody, strong presumptions of fact will arise in respect of injuries and death occurring during such detention. Indeed, the burden of proof may be regarded as resting on the authorities to provide a satisfactory and convincing explanation’.) See also *El-Masri v. the Former Yugoslav Republic of Macedonia*, Judgment, Application No. 39630/09 [2012] ECHR, 13 Dec. 2012, para. 152. *Bleier v. Uruguay*, Communication No. 30/1978, Human Rights Committee, UN Doc. CCPR/C/OP/1 at 109 (1985), para. 13.3. As the ICJ stated in its first case, *Corfu Channel Case*, 1949 ICJ Rep. pp. 4, 18:

‘By reason of this exclusive [territorial] control [exercised by a State within its own frontiers], the other State, the victim of the breach of international law, is often unable to furnish direct proof of facts giving rise to international responsibility. Such a State should be allowed a more liberal recourse to inferences of fact and circumstantial evidence’.

This strongly suggests that when the Prosecutor is seeking a determination that a case is admissible pursuant to article 19 para. 3, he or she should not bear the burden of proof or, if he or she does, then the standard of proof should be relatively low (see discussion of article 19 para. 3, margin No. 34 below).

⁵⁷ *Prosecutor v. Bemba*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, Trial Chamber III, 24 Jun. 2010, para. 201. See also *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-451, Decision on the ‘Defence Challenge to the Jurisdiction of the Court’, Pre-Trial Chamber I, 26 Oct. 2011, para. 4. In addition, rule 58 sub-rule 1: ‘a request or application made under article 19 shall be made in writing and *contain the basis for it*’ (emphasis added).

The Appeals Chamber (with Judge Ušacka dissenting⁵⁸) has held likewise when States have challenged admissibility⁵⁹, although it may be reasonable, in certain circumstances, to place an evidentiary burden on the Defence to sufficiently substantiate allegations that they make⁶⁰.

With respect to the standard of proof required on admissibility questions, a number of factors suggest that it may differ to some extent depending on the stage of proceedings involved⁶¹. The standard of proof under article 19 para. 2 for a State or the person concerned to demonstrate inadmissibility should be a balance of probabilities or a preponderance of the evidence standard⁶² (rather than simply a *prima facie* case or beyond a reasonable doubt). At least one Pre-Trial Chamber has explicitly addressed this issue and has expressly endorsed this proposition. In *Bemba*, when the accused filed an admissibility challenge, Trial Chamber III opined that:

‘As to the standard of proof in these circumstances, although the Rome Statute framework [...] does not provide guidance, the overwhelming preponderance of national and international legal systems apply what is frequently called the ‘civil standard’ of proof (a balance of probabilities) when the burden lies upon the defence in criminal proceedings. There is no reason to depart from that approach in these circumstances’⁶³.

In *L. Gbagbo*, on the other hand, the Pre-Trial Chamber, required ‘tangible proof’ of Mr Gbagbo’s assertions that a national investigation or prosecution was ongoing⁶⁴. Similarly, in

⁵⁸ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red-Anx2, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled ‘Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi’ – Dissenting Opinion of Judge Ušacka, Appeals Chamber, 21 May 2014, para. 61: ‘I consider that placing the burden of proof to show that a State is investigating or prosecuting solely on the challenging State[] [...] appears unfair and undermines the principle of complementarity’. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565-Anx2, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’ – Separate Opinion of Judge Ušacka, Appeals Chamber, 24 Jul. 2014, para. 16.

⁵⁹ *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, para. 61; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, para. 62: ‘a State that challenges the admissibility of a case bears the burden of proof to show that the case is inadmissible’. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled ‘Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014, para. 178; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’, Appeals Chamber, 24 Jul. 2014, para. 166; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the Appeal of Côte d’Ivoire Against the Decision of Pre-Trial Chamber I of 11 December 2014 entitled ‘Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo’, Appeals Chamber, 27 May 2015, paras 29, 128.

⁶⁰ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’, Appeals Chamber, 24 Jul. 2014, para. 167.

⁶¹ Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 232.

⁶² The last edition of this Commentary suggested, as an alternative, a ‘clear and convincing’ standard. At least one Pre-Trial Chamber has rejected this in admissibility proceedings: *Prosecutor v. Bemba*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, Trial Chamber III, 24 Jun. 2010, para. 203.

⁶³ *Prosecutor v. Bemba*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, Trial Chamber III, 24 Jun. 2010, para. 203. This holding remained undisturbed on appeal: *Prosecutor v. Bemba*, ICC-01/05-01/08-962-Corr, Corrigendum to Judgment on Appeal of Mr Jean-Pierre Bemba Gombo Against the Decision of Trial Chamber III of 24 June 1020 entitled ‘Decision on the Admissibility and Abuse of Process Challenges’, Appeals Chamber, 19 Oct. 2010. For a list suggesting some of the factors relevant to the standard of proof for States and persons concerned to demonstrate inadmissibility in challenges pursuant to article 19 para. 2, see Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 235. However, these factors do not necessarily apply to the Prosecutor when seeking a ruling pursuant to article 19 para. 3 (see margin No. 34 below).

⁶⁴ *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-436-Red, Decision on the ‘Requête relative à la recevabilité de l’affaire en vertu des Articles 19 et 17 du Statut’, Pre-Trial Chamber I, 11 Jun. 2013, paras. 24–25.

the *Muthaura et al.* and *Ruto et al.* cases, the Appeals Chamber when dealing with Kenya's challenge to the cases, held that in order to discharge its burden 'the State must provide the Court with evidence of a sufficient degree of specificity and probative value that it is indeed investigating the case'⁶⁵. This approach was reiterated in the *Gaddafi and Al-Senussi* case⁶⁶ (albeit with Judge Ušacka dissenting⁶⁷) and the *S. Gbagbo* case⁶⁸. By deciding as they did, both the Pre-Trial Chamber and Appeals Chamber did not thereby pronounce themselves on the applicable standard of proof in the matters before them. Rather, they merely reiterated the fact that those who challenge the admissibility of a case bear the burden of proof and went on to suggest the nature and quality of evidence needed to discharge the burden. Nonetheless, there is evidently a need for the Appeals Chamber to clearly and definitively pronounce itself on this issue. It also needs to clarify whether the same standard applies to challenges brought by an individual or by a State. On this point there appears to be no rhyme or reason why there should be different standards.

2. Jurisdiction

- 17 Although challenges to admissibility are mentioned first in article 19 para. 2, rule 58 sub-rule 4 requires the Court to 'rule on any challenge or question of jurisdiction first and then on any challenge or question of admissibility'⁶⁹. Paragraph 2, like paragraph 1, does not define jurisdiction, but the concept is well understood and thus challenges can be made on any of the accepted jurisdictional grounds: territorial (*ratio loci*), subject matter (*ratione materiae*), personal (*ratione personae*) and temporal (*ratione temporis*) grounds. Grounds that fall outside of these parameters are not jurisdictional challenges and stand to be dismissed as such. This has been the case with challenges claiming abuse of process or

⁶⁵ *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 61; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 62. See also *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-44, Decision on Further Submissions on Issues Related to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 28 Aug. 2014, para. 7.

⁶⁶ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi', Appeals Chamber, 21 May 2014, para. 205.

⁶⁷ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red-Anx2, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi' – Dissenting Opinion of Judge Ušacka, Appeals Chamber, 21 May 2014, paras. 60, 62: 'the materials provided [by the State] should be taken at their face value[...] [...] [S]tringent standards would impose unnecessarily high requirements on States with a legal and judicial system in transition'. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565-Anx2, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on Admissibility of the Case Against Abdullah Al-Senussi' – Separate Opinion of Judge Ušacka, Appeals Chamber, 24 Jul. 2014, para. 16.

⁶⁸ See *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the Appeal of Côte d'Ivoire Against the Decision of Pre-Trial Chamber I of 11 December 2014 entitled 'Decision on Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo', Appeals Chamber, 27 May 2015, paras 29, 128.

⁶⁹ See *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-185, Decision on the Defence Challenge to the Admissibility of the Case Against Charles Blé Goudé for Insufficient Gravity, Pre-Trial Chamber I, 12 Nov. 2014, para. 10 (incorrectly citing rule 58 sub-rule 1). This requirement was based on the French proposed rules for Part 2 of the *Rome Statute*. U.N. Doc. PCNICC/1999/WGRPE/43, 23 Nov. 1999. An alternative proposal submitted by Bolivia, Chile, Colombia, Peru and Spain, providing that the Court could reject *in limine* clearly unfounded admissibility challenges, was rejected. UN Doc. PCNICC/2000/WGRPE (2) DP.2, 20 Mar. 2000. See Holmes, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 321, 345–346.

violations of human rights⁷⁰ and challenges relating to the interpretation/definition of crimes under the Statute⁷¹.

Although the Court has not specifically pronounced on the matter, jurisdictional challenges should, like admissibility challenges, be determined on the basis of the facts as they exist at the time of the challenge. Unlike with admissibility challenges, circumstances relating to the Court's jurisdiction are not generally – with one exception herein discussed – susceptible to change. Should changes indeed occur subsequent to a challenge, then the person or State can avail themselves of article 19 para. 4. On the other hand, the Prosecutor cannot invoke article 19 para. 10 as this only relates to a decision that a case is inadmissible, rather than one concerning jurisdiction. However, this limitation is offset by the Prosecutor's ability under article 19 para. 3 to seek a ruling on jurisdiction and the fact that the Court is under an ongoing *obligation* under article 19 para. 1 to satisfy itself that it has jurisdiction over cases (which is also not the case with admissibility where the Court has only the discretionary power to make a determination). In this respect, there have been three instances where the Court has lost its jurisdiction (*ratione personae*) subsequent to the issuing of a warrant of arrest or summons to appear or the decision confirming the charges. These relate to the *Kony et al.* (specifically the suspect Lukwiya), *Gaddafi et al.* (specifically the suspect M. Gaddafi) and the *Banda and Jerbo* (specifically the accused Jerbo) cases, where the person concerned died or, in the case of Jerbo, was presumed on the evidence presented to have died⁷². In such circumstances the Defence would be in a position to challenge the Court's jurisdiction. However this has not been the practice. Instead, in the case of Jerbo, the Defence notified the Trial Chamber of the information in their possession that their client had died and the Court itself noted article 19 para. 1 in terminating the proceedings⁷³.

As with admissibility, the burden of demonstrating that the Court lacks jurisdiction falls on the person or State making the challenge. It is also particularly appropriate to impose the burden on States making challenges to jurisdiction, since these States often will have most of the information relevant to the determination in their possession (see margin No. 15 above). This

⁷⁰ See *Prosecutor v. Lubanga*, ICC-01/04-01/06-772, Judgment on the Appeal of Mr. Thomas Lubanga Dyilo Against the Decision on the Defence Challenge to the Jurisdiction of the Court Pursuant to Article 19(2)(a) of the Statute of 3 October 2006, Appeals Chamber, 14 December 2006, paras. 20–24; *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-321, Judgment on the Appeal of Mr Laurent Koudou Gbagbo Against the Decision of Pre-Trial Chamber I on Jurisdiction and Stay of the Proceedings, Appeals Chamber, 12 Dec. 2012, paras. 100–102.

⁷¹ See *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-414, Decision on the Appeals of Mr William Samoei Ruto and Mr Joshua Arap Sang Against the Decision of Pre-Trial Chamber II of 23 January 2012 entitled 'Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute', Appeals Chamber, 24 May 2012, paras. 25–33; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-425, Decision on the Appeal of Mr Francis Kirimi Muthaura and Mr Uhuru Muigai Kenyatta Against the Decision of Pre-Trial Chamber II of 23 January 2012 entitled 'Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute', Appeals Chamber, 24 May 2012, paras. 32–38. But note the dissents of Judge Kaul in the preceding proceedings: *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-373, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute – Dissenting Opinion of Judge Kaul, Pre-Trial Chamber II, 23 Jan. 2012, paras. 23–40; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-382-Red, Decision on the Confirmation of Charges Pursuant to Article 61(7)(a) and (b) of the Rome Statute – Dissenting Opinion of Judge Kaul, Pre-Trial Chamber II, 23 Jan. 2012, paras. 30–45.

⁷² See *Prosecutor v. Kony et al.*, ICC-02/04-01/05-248, Decision to Terminate the Proceedings Against Raska Lukwiya, Pre-Trial Chamber II, 11 Jul. 2007; *Prosecutor v. Gaddafi et al.*, ICC-01/11-01/11-28, Decision to Terminate the Case Against Muammar Mohammed Abu Minyar Gaddafi, Pre-Trial Chamber I, 22 Nov. 2011; *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-512-Red, Decision Terminating the Proceedings Against Mr. Jerbo, Trial Chamber IV, 4 Oct. 2013.

⁷³ *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-512-Red, Decision Terminating the Proceedings Against Mr. Jerbo, Trial Chamber IV, 4 Oct. 2013, para. 16. In the case of M. Gaddafi, no Defence had been appointed to represent the suspect and in the case of Lukwiya, the Court had appointed *ad hoc* Defence to represent and protect the interests of the defence in proceedings relating to victim participation only (see *Prosecutor v. Kony et al.*, ICC-02/04-01/05-134, Decision on Legal Representation, Appointment of Counsel for the Defence, Protective Measures and Time-Limit for Submission of Observations on Applications for Participation a/0010/06, a/0064/06 to a/0070/06, a/0081/06 to a/0104/06 and a/0111/06 to a/0127/06, Pre-Trial Chamber II, 1 Feb. 2007, paras. 14–15).

principle has been accepted by the Court in article 19 para. 2 jurisdictional challenges brought by an accused⁷⁴. As to the standard of proof, jurisdictional challenges suffer from the same lack of clarity as admissibility challenges as alluded to above. None of the decisions relating to jurisdictional challenges have adequately addressed this matter, with one Pre-Trial Chamber explicitly refusing to engage with the issue⁷⁵. Whatever the correct standard, unless convincing reasons are presented, it should apply equally in both admissibility and jurisdictional challenges.

3. Right to challenge

- 20 Paragraph 2 provides that two types of persons and two groups of States may challenge admissibility of a case on the grounds referred to in article 17 or the jurisdiction of the Court over a case, although the grounds on which each may make such challenges are not exactly the same. These categories are based upon, but slightly different from, those in the ILC Draft Statute.
- 21 a) **Accused or persons sought.** Subparagraph (a) authorizes '[a]n accused or a person for whom a warrant of arrest or a summons to appear has been issued under article 58' to challenge jurisdiction or admissibility. As in the *Statutes of the ICTY and ICTR*, there is no definition of an accused in the *Rome Statute*, but paragraph 2 (a) distinguishes an accused from a person for whom an arrest warrant or summons has been issued, making clear that either may challenge jurisdiction or admissibility pursuant to article 19⁷⁶. During the Diplomatic Conference, the majority of States preferred limiting the right to challenge jurisdiction and admissibility to the accused (a person for whom charges had been confirmed). However, some States argued that suspects should have the right to challenge admissibility before the charges were confirmed and it may be that the wording of subparagraph (a) reflects a compromise between the two positions⁷⁷.

⁷⁴ *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-451, Decision on the 'Defence Challenge to the Jurisdiction of the Court', Pre-Trial Chamber I, 26 Oct. 2011, para. 4.

⁷⁵ *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-451, Decision on the 'Defence Challenge to the Jurisdiction of the Court', Pre-Trial Chamber I, 26 Oct. 2011, para. 5.

⁷⁶ Earlier versions of this procedure, at a time when the process would have involved confirming charges in an indictment, also permitted suspects to make such challenges. Article 34 of the ILC Draft Statute provided that challenges could be made to jurisdiction 'prior to or at the commencement of the hearing, by an accused or any interested State' and, 'at any later stage of the trial, by an accused'. The ILC Draft Statute also provided that the Court might, 'on application by the accused or at the request of an interested State, at any time prior to the commencement of the trial, or on its own motion, decide, having regard to the purposes of this Statute, that a case before it is inadmissible' on grounds which are now found, in a more detailed and modified form, in article 17 of the *Rome Statute*: ILC Draft Statute, article 35. The term 'accused' was not expressly defined, but it is clear that a suspect became an accused when the indictment was confirmed pursuant to article 28 para. 3 of the ILC Draft Statute, which occurred *before* the Prosecutor sought a warrant for that person's arrest (however, that person could have been previously subject to provisional arrest pursuant to article 28 para. 1). The 1996 Preparatory Committee's compilation of proposals included a variety of alternative proposals concerning challenges, but all of them provided that an accused could challenge either admissibility or jurisdiction. See 1996 Preparatory Committee II, pp. 157–164. Article 36 in the Preparatory Commission's Dec. 1997 report provided that challenges could be made by an accused or, in square brackets, 'a suspect', who was defined in a footnote as including 'a person who is the subject to [sic] an investigation', but it noted that another option would be 'to limit the right to challenge to a suspect arrested on the basis of a pre-indictment arrest warrant'. Preparatory Committee Decisions Aug. 1997, p. 34 note 15. Identical formulations were included in article 12 [36] in the Zutphen Draft, p. 44 note 63 and in article 17 para. 2 of the New York Draft, p. 52 note 48.

⁷⁷ It is difficult to discern the reasons for the two positions since none of those who favoured extending this right to suspects explained their position in the Committee of the Whole and only two of those favouring limiting it to the accused gave any reasons and they are not particularly enlightening. UN Diplomatic Conf. of Plenipotentiaries on the Establishment of an ICC, Rome, 15 June – 17 July 1998, Official Records, Vol. 2; United States, 22 June 1998, p. 215 (would complicate the Court procedures); Philippines, 22 June 1998, p. 216 (would be pointless). However, one of those involved in the drafting of article 19 has informed the authors that the reason for including persons for whom an arrest warrant or summons had been issued was to permit jurisdictional and admissibility challenges before the confirmation hearing, but not when a person had simply been identified as a suspect (a person for whom there are grounds to believe that he or she committed a crime).

The First Edition of this Commentary, published a year before the Preparatory Commission adopted the draft Rules of Procedure and Evidence, stated that it would be consistent with the structure of the *Rome Statute*, as well as with the approach at the time of the *Rules of Procedure and Evidence of the ICTY and ICTR*, to define a person as an accused when he or she was identified in the document containing the charges referred to in article 61 para. 3(a), which must be provided to the person concerned at ‘a reasonable time before the [confirmation] hearing’⁷⁸. It was suggested that this moment would appear to be a better reference point than the later stage when the charges are confirmed in accordance with article 61 para. 7(a). Thus once a person was identified he or she should then be considered as an accused under the *Statute* unless the charges are not confirmed or the person is acquitted or convicted⁷⁹.

However, it appears that the drafters of the *Rules of Procedure and Evidence*, noting that the first instance in the *Rome Statute* that the person charged is called an ‘accused’ is in article 61 para. 9 (after the charges have been confirmed), have identified the person charged simply as a ‘person’ or ‘person charged’ pending confirmation of the charges, and as an ‘accused’ thereafter⁸⁰. This exact matter arose in the Court’s first confirmation of charges hearing in *Lubanga*, when on the opening day Defence counsel objected to his client being referred to as ‘the accused’ in an official ICC newsletter. The following day the Pre-Trial Chamber clarified in court that Lubanga was *not* an accused but rather a suspect.⁸¹ A suspect only becomes an accused upon the charges being confirmed.

‘[A] person for whom a warrant of arrest [...] has been issued under article 58’ must be a person for whom ‘[t]here are reasonable grounds to believe [...] has committed a crime within the jurisdiction of the Court’ and whose arrest ‘appears necessary’ on specified grounds (article 58 para. 1). ‘[A] person for whom [...] a summons to appear has been issued under article 58’ is someone who the Pre-Trial Chamber believes would appear upon such a summons being served upon him or her. As a practical matter, if the arrest warrant is sealed, the person subject to the warrant will not be able to avail himself or herself of the right to challenge jurisdiction or admissibility until he or she is in the custody of the Court or national authorities.

⁷⁸ The document containing the charges is similar to an indictment outlining the charges submitted in a common law system either to a grand jury or to a judge for confirmation, but with more information than included in the arrest warrant.

⁷⁹ Rule 2(A) of the ICTY Rules previously defined an accused as ‘[a] person against whom an indictment has been submitted in accordance with Rule 47’. Due to an amendment on 25 Jul. 1997, an accused is now defined as ‘[a] person against whom one or more counts in an indictment have been confirmed in accordance with Rule 47’. Rule 47 distinguishes the submission of the indictment by the Prosecutor to a Judge for confirmation from the confirmation of the indictment. The ICTR Rules have also adopted the latter definition of an accused in its rule 2(A) and have maintained the general structure of the ICTY’s rule 47 in its own rule 47. Rules 2(A) and 47 of the Rules of Procedure and Evidence of the Residual Special Court for Sierra Leone and rules 2(A) and 68 of the Rules of Procedure and Evidence of the Special Tribunal for Lebanon are similar. Rule 2(A) of the Rules of Procedure and Evidence of the Mechanism for International Criminal Tribunals defines an accused as ‘[a] person indicted by the ICTY, the ICTR or the Mechanism in accordance with Article 1 of the [MICT] Statute’.

⁸⁰ Articles 58 and 59 use ‘the person’. With respect to the *Rules*, see, e.g., up to the confirmation hearing: rule 117 sub-rule 1 (‘the person’) and sub-rule 2 (‘the person arrested’); rule 118 sub-rule 1 (‘the person’), sub-rule 2 (‘a person’) and sub-rule 3 (‘the detained person’); rule 119 sub-rule 1 (‘the person’) and sub-rule 2 (‘[t]he person concerned’); rule 120 (‘the person in the custody of the Court’); rule 121 sub-rule 1 (‘[a] person subject to a warrant of arrest or a summons’), sub-rule 2(a) (‘[t]he person concerned’) and sub-rule 4 (‘the person’); rule 122 (title) (‘the person charged’); rule 123 (title) (‘the person concerned’) and (‘a person’); rule 124 sub-rule 1 (‘the person concerned’) and sub-rule 3 (‘the person’); rule 125 sub-rule 1 (‘the person concerned’); rule 126 (‘the person concerned’); rule 128 (‘the person concerned’) and, after the confirmation hearing: rule 128 (Amendment of the charges) (‘the accused’). However, the use of the terms is not entirely consistent. Rule 129 uses both ‘accused’ and ‘the person concerned’.

⁸¹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-T-32-EN, Transcript, Pre-Trial Chamber I, 10 Nov. 2006, p. 36, lines 15–22:

‘[T]he Presiding Judge would like to recall that it is inadmissible that, in this newsletter[] [...] the term ‘accused’ was used to refer to Thomas Lubanga Dyilo [...]. [T]he Chamber orders the Registrar to draft an explanatory note as soon as possible to inform the public that the status of Mr Thomas Lubanga Dyilo [...] is a suspect, not an accused person.’

- 25 A witness or any other person, such as a person accused of an ‘offence against the administration of justice’ under article 70, would not be authorized under article 19 to challenge the admissibility of a case or the Court’s jurisdiction over a case because they would neither be accused nor believed to have committed ‘a crime within the jurisdiction of the Court’, as identified in article 5⁸². The Court has therefore on a number of occasions denied article 19 para. 2(a) standing for *ad hoc* defence counsel and the Office of Public Counsel for the Defence when no arrest warrant or summons to appear had been issued⁸³.
- 26 **b) Investigating or prosecuting States.** ‘A State which has jurisdiction over a case’ may challenge the Court’s jurisdiction over a case or the admissibility of a case ‘on the ground that it is investigating or prosecuting the case or has investigated or prosecuted’⁸⁴. This formulation is narrower and more precise than the one used during the drafting of this provision⁸⁵. Given the text’s plain language, paragraph 2(b) can only include those States that have vested their courts with jurisdiction under national law over the relevant case. Such

⁸² Article 70 has been implemented by rule 163 sub-rule 2, which provides that ‘[t]he provisions of Part 2 [of the *Rome Statute*], and any rules thereunder, shall not apply, with the exception of article 21 [concerning applicable law]’. However, since under article 19 para. 1 the Court has a duty to decide whether it has jurisdiction over a case and may, on its own motion, determine whether a case is admissible, there is nothing that prevents it from considering any information relevant to these questions in proceedings ancillary to a case where the prosecution of offences against the administration of justice are involved. Thus, in *Bemba et al.* the Pre-Trial Chamber confirmed *proprio motu* that it did indeed have jurisdiction over the case in their decision on the confirmation of charges: *Prosecutor v. Bemba et al.*, ICC-01/05-01/13-749, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute, Pre-Trial Chamber II, 11 Nov. 2014, para. 8. In contrast to article 17, which provides that a case is inadmissible when a State is able and willing to investigate or prosecute genuinely a crime within the Court’s jurisdiction, article 70 para. 4(b) requires States Parties to submit offences against the administration of justice to their competent authorities for the purpose of prosecution on request by the Court ‘whenever it deems it proper’, leaving little scope for any admissibility challenge when the Court decides to prosecute the case itself.

⁸³ See *Situation in the Democratic Republic of the Congo*, ICC-01/04-93, Decision Following the Consultation held on 11 October 2005 and the Prosecution’s Submission on Jurisdiction and Admissibility Filed on 31 October 2005, Pre-Trial Chamber I, 9 Nov. 2005, p. 4; *Situation in Darfur, Sudan*, ICC-02/05-34, Décision relative aux conclusions aux fins d’exception d’incompétence et d’irrecevabilité, Pre-Trial Chamber I, 22 Nov. 2006, pp. 3–4; *Situation in Darfur, Sudan*, ICC-02/05-111-Corr, Corrigendum to Decision on the Applications for Participation in the Proceedings of Applicants a/0011/06 to a/0015/06, a/0021/07, a/0023/07 to a/0033/07 and a/0035/07 to a/0038/07, Pre-Trial Chamber I, 14 Dec. 2007, para. 25.

⁸⁴ In contrast, article 18 para. 1 uses a different formulation when it requires notice to all States Parties and to ‘those States which, taking into account the information available, would normally exercise jurisdiction over the crimes concerned’.

⁸⁵ Article 34 (Challenges to jurisdiction) of the ILC Draft Statute provided that ‘[c]hallenges to the jurisdiction of the Court may be made, in accordance with the Rules: (a) prior to or at the commencement of the hearing, by an accused or any interested State’. This provision did not define the term ‘any interested State’, but the ILC explained in the 1994 ILC Report, commentary on article 34 that:

‘The court can be called on to exercise its powers under article 34 either by the accused or by any interested State. The term ‘interested State’ is not defined but is intended to be interpreted broadly. For example a State which has lodged an extradition request with respect to an accused would be an ‘interested State’ for this purpose, as also a State whose cooperation had been sought under part seven of the statute’.

Similarly, article 35 (Issues of admissibility) of the ILC Draft Statute provided that ‘an interested State’ could request the Court to determine that a case was inadmissible, but gave no further definition and it required no connection with the case. There does not seem to be any significant difference intended between the two provisions regarding which interested States might challenge jurisdiction and which ones might challenge admissibility, simply because the first article uses ‘any’ and the second uses ‘an’.

In the Preparatory Commission’s 1996 discussions, it was suggested that the term ‘any interested State’ be defined and several possibilities were advanced during the discussions, including: the State of the accused’s nationality, the State of the victim’s nationality, the State with custody of the accused, the territorial State or any other State which could exercise jurisdiction, however other States said that any State should be able to make such a challenge. 1996 Preparatory Committee I, p. 39. However, only one of the compilation of proposals regarding article 35 (and none regarding article 34) suggested a definition. See 1996 Preparatory Committee II, p. 161 (French proposal limited challenges to any State party).

Article 36 para. 2 (Challenges to the jurisdiction of the Court or the admissibility of a case) of the draft proposed by the Preparatory Committee at its December 1997 session provided that admissibility and jurisdiction challenges could be made by ‘[A State] [An interested] [State Party] which has jurisdiction over the crime’. Preparatory Committee Decisions Dec. 1997, p. 34. This formulation was retained without change in article 12

jurisdiction can take the form of any of the different recognised jurisdictional bases: the territorial principle (or objective territorial principle), the nationality or active personality principle, passive personality principle, the protective principle, or the universality principle. It should be noted that attempts during the negotiations of this article to limit the right to make challenges to only States Parties failed⁸⁶. It would thus appear that *any* State – so long as it has jurisdiction over the relevant case – can file challenges under article 19 para. 2(b), including those States that are not States Parties to the *Rome Statute*.

The second limitation on States that may challenge the Court's jurisdiction or the admissibility of a case is inelegantly drafted, since whether a State is investigating or prosecuting a case has no bearing on the Court's *jurisdiction*, only on the *admissibility* of the case⁸⁷. Although the chapeau of paragraph 2 refers to '[c]hallenges to the admissibility of a case on the grounds referred to in article 17', subparagraph (b) appears to limit these grounds to those listed in article 17 para. 1 (a) and (b) (genuine State investigation or prosecution)⁸⁸ and para. (c) (*ne bis in idem*) (since a trial would necessarily have involved a prosecution), thus excluding para. (d) (insufficient gravity)⁸⁹. However, nothing in paragraph 2 prevents States that have referred a situation in their own territory to the Prosecutor from making an admissibility or jurisdictional challenge. Nevertheless, the State would have to demonstrate that circumstances have changed and that it is now able and willing to investigate and, if there is sufficient admissible evidence, to prosecute. It must also be noted that as per article 95, pending a ruling by the Pre-Trial or Trial Chamber, a State that submits an admissibility challenge may postpone complying with co-operation and judicial assistance

para. 2(b) [36] (Challenges to the jurisdiction of the Court or the admissibility of a case) of the Zutphen Draft and article 17 para. 2(b) of the New York Draft.

⁸⁶ Those who favoured limiting the right to challenge to only States Parties argued that States who were not Parties 'did not share the burden of obligations under the Statute, to share the privilege of challenging the jurisdiction of the Court' (Italy), UN Diplomatic Conf. of Plenipotentiaries on the Establishment of an ICC, Rome, 15 June – 17 July 1998, Official Records, Vol. 2, 23 June 1998, p. 220; and that the Court would not be able to determine whether they observed the principles of the *Statute* (Philippines). *Ibid.*, p. 216. Those who favoured extending the right to States who were not Parties asserted that 'if a State that was not a party was carrying out an effective prosecution in its own territory, there was no reason for the Court to intervene and also conduct a prosecution' (United Kingdom), *ibid.*, p. 215, and that it was more consistent with complementarity (Singapore). *Ibid.*, p. 219.

⁸⁷ One of those involved in the drafting of this provision explained that the limitation to challenges by States with jurisdiction 'was intended to forestall situations where a State could challenge (and delay) the Court from proceeding with a case on the ground that it was investigating when in fact the investigation or prosecution was sure to fail because the State lacked jurisdiction even as far as its own courts were concerned'. Holmes, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute – Issues – Negotiations – Results* (1999) 41, 67. However, whether the State concerned is investigating or prosecuting or has done so is not a ground to challenge the Court's jurisdiction, only the admissibility of the case.

⁸⁸ Paragraph 2(b), in contrast to article 17 para. 1(a) and (b), omits the qualifier 'genuinely'. However, the omission was probably inadvertent and in any event, in practice neither Pre-Trial Chamber I nor the Appeals Chamber omitted it in its analysis of the challenge by Libya (where genuineness was at issue). See *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-344-Red, Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 31 May 2013; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case Against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 Oct. 2013; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi', Appeals Chamber, 21 May 2014; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on the Admissibility of the Case Against Abdullah Al-Senussi', Appeals Chamber, 24 Jul. 2014.

⁸⁹ However, one Pre-Trial Chamber, instead of holding that a State cannot invoke gravity in an article 19 para. 2(b) challenge, has simply stated that: '[a]s to the second limb (gravity), since [...] Kenya does not contest this element, the Chamber shall confine its examination to [...] whether there are actually ongoing domestic proceedings (complementarity)'. See *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-96, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011, para. 45; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-101, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011, para. 49.

(Part IX) requests unless the Prosecutor has obtained specific authority from the Court under article 19 para. 8⁹⁰. As of 31 May 2015, three States – Kenya, Libya and Côte d'Ivoire have made challenges pursuant to article 19 para. 2 (b)⁹¹.

- 28 c) **Article 12 States.** Even if a State does not satisfy the requirements of subparagraph (b) (it is investigating or prosecuting the case or has done so) for making a challenge under article 19, it may still be able to do so if it is '[a] State from which acceptance of jurisdiction is required under article 12'. Such State acceptance is clearly not required if the Security Council refers a situation to the Prosecutor pursuant to article 13 para. (b). However, it is a prerequisite to a situation being referred to the Prosecutor by a State under article 13 para. (a) or to the Prosecutor initiating an investigation pursuant to articles 13 para. (c) and 15 para. 1. Such acceptance occurs pursuant to an article 12 para. 3 declaration by a State that is not a Party to the *Rome Statute* or when the State joins the Court (thereby accepting the Court's jurisdiction). In turn, this makes them subject to articles 12 para. 2(a) and (b). However, it must be noted that article 12 para. 2(b) refers to an 'accused' person who is a national of a State Party or of the State that has lodged an article 12 para. 3 declaration. Since, as discussed in the context of article 19 para. 2(a), a suspect does not become an accused until the charges are confirmed, this suggests that a State can only challenge admissibility or jurisdiction under article 19 para. 2(c) upon that eventuality. This perhaps explains why Kenya did not file its challenge under this provision in the *Ruto et al.* and *Muthaura et al.* cases and instead opted for article 19 para. 2(b)⁹². On the other hand, Côte d'Ivoire's challenge in the *S. Gbagbo* case before Pre-Trial Chamber I invoked article 19 para. 2(c) (in addition to article 19 para. 2(b)) when the confirmation of charges proceedings had not even begun⁹³. Unfortunately, in its decision, the Chamber did not address article 19 para. 2(c) but instead only relied upon article 19 para. 2(b)⁹⁴. Nevertheless, it should be noted that, as the Kenya example shows, a State capable of bringing forth an article 12 para. 2(c) challenge will also, by definition, be able to bring a challenge under article 12 para. 2(b). However, in contrast to paragraph 2(b), paragraph 2(c) is not drafted in a limiting fashion and thus a State could challenge admissibility on any ground under article 17, including insufficient gravity (article 17 para. 1(d)). It would be wise for the Court to adopt a liberal interpretation of the word 'accused' in this particular context. To adhere to a strict interpretation would incur the odd result that States that are not States Parties to the *Rome Statute* would be able to challenge admissibility whilst the relevant person is a suspect (although not on gravity grounds), whilst States Parties (or States that have filed an article 12 para. 3 declaration) would have to wait until charges are confirmed before they are able to file a challenge under paragraph 2(c).

⁹⁰ Article 95, however, has no application in article 19 appellate proceedings: *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, para. 27.

⁹¹ Côte d'Ivoire originally submitted an article 12 para. 3 declaration accepting the Court's jurisdiction (subsequently becoming a State Party) and thus its filing refers both to article 19 para. 2(b) and para. 2(c): *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-11-Red, Requête de la République de Côte d'Ivoire sur la recevabilité de l'affaire le Procureur c. Simone Gbagbo, et Demande de sursis à exécution en vertu des Articles 17, 19 et 95 du Statut de Rome, Government of Côte d'Ivoire, 30 Sep. 2013, paras. 16–17.

⁹² See *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-19 and ICC-01/09-02/11-26, Application on behalf of the Government of the Republic of Kenya Pursuant to Article 19 of the ICC Statute, Government of Kenya, 31 Mar. 2011, para. 1.

⁹³ See *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-11-Red, Requête de la République de Côte d'Ivoire sur la recevabilité de l'affaire le Procureur c. Simone Gbagbo, et Demande de sursis à exécution en vertu des Articles 17, 19 et 95 du Statut de Rome, Government of Côte d'Ivoire, 30 Sep. 2013, paras. 16–17.

⁹⁴ See *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 11 Dec. 2014, para. 26. This matter remained unaddressed on appeal: *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the Appeal of Côte d'Ivoire Against the Decision of Pre-Trial Chamber I of 11 December 2014 entitled 'Decision on Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo', Appeals Chamber, 27 May 2015.

As with subparagraph (b), States that fall within subparagraph (c) may also take advantage of article 95 and postpone the execution of co-operation and judicial assistance (Part IX) requests whilst the Pre-Trial or Trial Chamber consider an admissibility challenge unless the Court has specifically authorized the Prosecutor to collect evidence pursuant to article 19 para. 8⁹⁵.

d) **Certain aspects of the procedure for considering challenges.** A request or application made under article 19 must be made in writing and must ‘contain the basis for it’ as per rule 58 sub-rule 1⁹⁶. Where a filing is devoid of the basis for a challenge, the Court has held that ‘no admissibility challenge has been made as required by rule 58 of the Rules’⁹⁷. Regulation 38 sub-regulation 1(c) stipulates that a challenge pursuant to article 19 para. 2 must not exceed 100 pages in length unless otherwise ordered⁹⁸. Rule 58 sub-rule 2 gives the Chamber (the Pre-Trial Chamber, unless a Trial Chamber has been designated) considering a challenge or question concerning jurisdiction or admissibility or when acting on its own motion, the discretion to ‘decide on the procedure to be followed’ and to ‘take appropriate measures for the proper conduct of the proceedings’. This includes the holding of a hearing and joining this matter with ‘a confirmation or trial proceeding as long as this does not cause undue delay, and in this circumstance shall hear and decide on the challenge or question first’⁹⁹. In light of this broad discretionary mandate, the Appeals Chamber has upheld various exercises of discretion including decisions not to hold hearings¹⁰⁰, to decide challenges prior to

⁹⁵ As pointed out earlier on, article 95 ceases to apply once the Pre-Trial or Trial Chamber has disposed of the admissibility challenge: *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 11 Dec. 2014, para. 80. Article 95 has no application in article 19 appellate proceedings: *Prosecutor v. Gaddafi and Al-Senussi*, Case No. ICC-01/11-01/11-387, Decision the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, para. 27.

⁹⁶ There does not appear to be any difference between a request or an application under article 19. The term ‘request’ in that article appears only in paragraphs 10 (Prosecutor request to review a decision that a case is inadmissible) and 11 (Prosecutor request to a State for information about its investigation or prosecution). However, rule 58 sub-rule 2, which was drafted to make sure that both terms used in article 19 were covered, makes no distinction between requests or applications raising a challenge or question concerning jurisdiction or admissibility.

⁹⁷ *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-165, Decision on the Schedule for the Confirmation of Charges Hearing, Pre-Trial Chamber I, 22 Sep. 2014, para. 7 (where the Defence merely expressed its intention to raise an admissibility challenge).

⁹⁸ See *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-886-tENG, Decision on Urgent Application by Germain Katanga’s Defence for an Extension of the Page Limit, Trial Chamber II, 10 Feb. 2009, para. 2.

⁹⁹ Nevertheless, where a challenge is initiated in close proximity to the beginning of the confirmation of charges hearing, the Court has previously refused to entertain oral arguments relating to the challenge at that hearing: *Prosecutor v. Blé Goudé*, ICC-02/11-T-5-Red-ENG, Transcript, Pre-Trial Chamber I, 29 Sep. 2014, p. 5, lines 10–14. Several rules clarify the procedure to be followed at each successive stage. ‘If a question or challenge concerning jurisdiction or admissibility arises’ at a confirmation hearing, rule 122 (2) provides that ‘rule 58 applies’. Rule 60 provides:

‘If a challenge to the jurisdiction of the Court or to the admissibility of a case is made after a confirmation of the charges but before the constitution or designation of the Trial Chamber, it shall be addressed to the Presidency, which shall refer it to the Trial Chamber as soon as the latter is constituted or designated in accordance with rule 130’.

Rule 133 provides that ‘[c]hallenges to the jurisdiction of the Court or the admissibility of the case at the commencement of the trial, or subsequently with the leave of the Court, shall be dealt with by the Presiding Judge and the Trial Chamber in accordance with rule 58’ (for the sole ground for a challenge permitted at this stage, see discussion of article 19 para. 4, margin No. 42 below).

¹⁰⁰ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, paras. 110–114; *Prosecutor v. Muthaura et al.*, Case No. ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, paras. 108–112.

determining requests for assistance¹⁰¹, to deny further time for the parties to submit additional evidence¹⁰², to deny Defence requests for unredacted evidence¹⁰³, and with respect to the participation of the concerned person in proceedings¹⁰⁴. In determining appeals on such matters, the Appeals Chamber has spoken clearly:

‘[It] will not interfere with the [...] Chamber’s exercise of discretion [...] merely because the Appeals Chamber, if it had the power, might have made a different ruling. [...] [T]he Appeals Chamber will not interfere with the [...] Chamber’s exercise of direction [...] save where it is shown that [the] determination was vitiated by an error of law, an error of fact, or a procedural error, and then, only if the error materially affected the determination. This means in effect that the Appeals Chamber will interfere with a discretionary decision only under limited conditions’¹⁰⁵.

- 31 Rule 58 sub-rule 3 requires the Court to transmit the request or application to the Prosecutor and (when the request or application has been made by a State) to ‘the person referred to in article 19, paragraph 2, who has been surrendered to the Court or who has appeared voluntarily or pursuant to a summons’. The relevant Chamber must then ‘allow them to submit written observations to the request or application within a period of time determined by the Chamber’. This right to submit observations ‘extends to all the evidence provided in support of the challenge, irrespective of whether it was filed together with the challenge or submitted thereafter in the course of the admissibility proceedings’¹⁰⁶. However, the wording of rule 58 sub-rule 3 is unfortunate, because it does not explicitly require the Court, as confirmed by the Appeals Chamber¹⁰⁷, to inform a person who has been arrested and is being detained by national authorities but has not yet been surrendered to the Court,

¹⁰¹ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, paras. 122–124; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, paras. 120–122.

¹⁰² *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, paras. 97–101; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled ‘Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute’, Appeals Chamber, 30 Aug. 2011, paras. 95–99; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled ‘Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014, paras. 159–180.

¹⁰³ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’, Appeals Chamber, 24 Jul. 2014, paras. 78–81.

¹⁰⁴ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’, Appeals Chamber, 24 Jul. 2014, paras. 145–158 (where Al-Senussi had not been able to meet or instruct the Defence).

¹⁰⁵ *Prosecutor v. Kony et al.*, ICC-02/04-01/-5-408, Judgment on the Appeal of the Defence Against the ‘Decision on the Admissibility of the Case under Article 19(1) of the Statute’ of 10 March 2009, Appeals Chamber, 16 Sep. 2009, paras. 79–80.

¹⁰⁶ *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 11 Dec. 2014, para. 38 (but holding that in the specific circumstances before it, submissions from the Prosecution on the additional evidence presented by Côte d’Ivoire was not necessary to ensure the fairness of the admissibility proceedings nor would it assist in disposing of the challenge).

¹⁰⁷ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on Admissibility of the Case Against Abdullah Al-Senussi’, Appeals Chamber, 24 Jul. 2014, para. 146: ‘[t]he right to participate under rule 58(3) [...], however, does not extend to any person in respect of whom a warrant of arrest or summons to appear has been issued; it only applies to suspects who have either surrendered to the Court or who have appeared before it’ (emphasis in original).

or a person subject to a summons who has not yet purchased an airline ticket to the seat of the Court, that the request or application has been made or afford them a right to file submissions. Rule 58 sub-rule 3 is in marked contrast to rule 59 sub-rules 1 and 3, which require that those who referred a situation and victims be informed of the challenge or question (see margin No. 33 below).

Nevertheless, as the Appeals Chamber has also made clear, '[s]ave for these express stipulations [in rule 58 sub-rule 3], the [...] Chamber enjoys broad discretion in determining how to conduct the proceedings relating to challenges to the admissibility of a case'¹⁰⁸. Thus in practice, the Court has permitted suspects who technically fall outside of rule 58 sub-rule 3 to be notified of challenges and to submit written filings.¹⁰⁹ But the wording of this rule has also had, arguably, a negative effect. In the *Gaddafi and Al-Senussi* case – where the suspect had not been afforded the chance to communicate with or to instruct his Defence by the State authorities detaining him – the Appeals Chamber was able to point out, in dismissing his appeal, that the suspect did not have the *right* to submit his observations under the rule and that therefore the matter fell within the broad discretion of the Pre-Trial Chamber which had not exercised it erroneously¹¹⁰. This particular outcome is most unsatisfactory. Whilst correct in law on the most technical of grounds, both common sense and due process concerns indicate that such persons should be able to participate effectively and in a meaningful way in article 19 challenges by submitting written observations. Unfortunately, until the rule is amended, it has the potential to lead to further breaches of procedural fairness.

Sub-rule 4 requires that the Court (the relevant Chamber) 'rule on the challenge or question of jurisdiction first and then on any challenge or question of admissibility'. This had lead one Pre-Trial Chamber to opine that it 'must dispose of the challenge to the admissibility of the case prior to [...] determin[ing] [...] whether to confirm or not the charges under article 61(7) of the Statute'¹¹¹. Additionally, rule 59 sub-rule 1 requires the Registrar to inform the

¹⁰⁸ *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 87 and *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, para. 89. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi', Appeals Chamber, 21 May 2014, para. 160; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on Admissibility of the Case Against Abdullah Al-Senussi', Appeals Chamber, 24 Jul. 2014, para. 149.

¹⁰⁹ See *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-40, Decision on the Conduct of the Proceedings Following the Application of the Government of Kenya Pursuant to Article 19 of the Rome Statute, Pre-Trial Chamber II, 4 Apr. 2011, para. 12 (where the suspects had not yet made their initial appearances before the Court); *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-131, Decision on the Conduct of the Proceedings Following the Application of the Government of Kenya Pursuant to Article 19 of the Rome Statute, Pre-Trial Chamber II, 4 Apr. 2011, para. 12 (where the suspects had not yet made their initial appearances before the Court); *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-134, Decision on the Conduct of the Proceedings Following the 'Application on Behalf of the Government of Libya Pursuant to Article 19 of the Statute', Pre-Trial Chamber I, 4 May 2012, para. 11 (where the suspect was in custody in Libya); *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-325, Decision on the Conduct of the Proceedings Following the 'Application on Behalf of the Government of Libya Relating to Abdullah Al-Senussi Pursuant to Article 19 of the Statute', Pre-Trial Chamber I, 26 Apr. 2013, para. 8 (where the suspect was in custody in Libya); *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-15, Decision on the Conduct of Proceedings Following Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 15 Nov. 2013, para. 8 (where the suspect was in custody in Côte d'Ivoire).

¹¹⁰ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on Admissibility of the Case Against Abdullah Al-Senussi', Appeals Chamber, 24 Jul. 2014, paras. 145–158.

¹¹¹ *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-185, Decision on the Defence Challenge to the Admissibility of the Case Against Charles Blé Goudé for Insufficient Gravity, Pre-Trial Chamber I, 12 Nov. 2014, para. 10 (incorrectly citing rule 58 sub-rule 1).

Security Council or State Party that referred a situation to the Court pursuant to article 13 and ‘victims who have already have communicated with the Court in relation to that case or their legal representatives’ of any challenge or question concerning jurisdiction or admissibility under article 19 paras. 1–3. In making that notification, sub-rule 2 requires the Registrar to do so ‘in a manner consistent with the duty of the Court regarding confidentiality of information, the protection of any person and the preservation of evidence’ and shall provide with the notification ‘a summary of the grounds on which the jurisdiction of the Court or the admissibility of the case has been challenged’. As the Appeals Chamber has found, this rule (together with other provisions) reflect ‘an overarching concern to ensure that persons are not unjustifiably exposed to risk through the activities of the Court’¹¹². Since such considerations will vary greatly from case to case, so too will its application. Thus in the *Gaddafi and Al-Senussi* case, the Court was content with notifying victims and the Security Council of Libya’s admissibility challenge to Gaddafi’s case in its public redacted form together with its public annexes¹¹³. Yet, when Libya challenged the admissibility of the case against Al-Senussi, the Security Council was only notified of the public redacted version together with its public annexes, whereas the victims had access to the confidential redacted version¹¹⁴. Sub-rule 3 permits those notified to ‘make representation in writing to the competent Chamber within such time limit as it considers appropriate’. Such deadlines are obviously subject to the Chamber’s wide discretion. However, where victims have not participated in jurisdiction and admissibility proceedings either before the Pre-Trial or Trial Chamber, they will be constrained from doing so in appeal proceedings under article 19 para. 6¹¹⁵.

III. Paragraph 3: Right to seek rulings and to submit observations

- 34 The right of the Prosecutor to ‘seek a ruling from the Court regarding a question of jurisdiction or admissibility’ permits the Prosecutor to obtain a prompt ruling from the Court on these questions at any stage¹¹⁶ and however many times it may be necessary, whether the question related to an entire situation (in certain circumstances described below) or to an individual case¹¹⁷. Pursuant to Regulation 38 sub-regulation 2(b), a request under this article

¹¹² *Prosecutor v. Katanga*, ICC-01/04-01/07-475, Judgment on the Appeal of the Prosecutor Against the Decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorisation to Redact Witness Statement’, Appeals Chamber, 13 May 2008, para. 54.

¹¹³ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-134, Decision on the Conduct of the Proceedings Following the ‘Application on Behalf of the Government of Libya Pursuant to Article 19 of the Statute’, Pre-Trial Chamber I, 4 May 2012, para. 14.

¹¹⁴ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-325, Decision on the Conduct of the Proceedings Following the ‘Application on Behalf of the Government of Libya Relating to Abdullah Al-Senussi Pursuant to Article 19 of the Statute’, Pre-Trial Chamber I, 26 Apr. 2013, para. 14.

¹¹⁵ *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-400, Decision on ‘Observations on the ‘Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence’, Appeals Chamber, 20 Feb. 2012, paras. 12–15; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-390, Decision on ‘Observations on the ‘Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence’, Appeals Chamber, 20 Feb. 2012, paras. 12–15.

¹¹⁶ Where a case is found to be inadmissible by the Court, subsequent proceedings by the Prosecutor that seek to revisit the issue should proceed under article 19 para. 10 and not article 19 para. 3.

¹¹⁷ Neither article 34 (Challenges to jurisdiction) nor 35 (Issues of admissibility) of the ILC Draft Statute contained any provision expressly authorizing the Prosecutor to challenge admissibility or jurisdiction. Similarly, none of the Preparatory Commission’s 1996 compilation of proposals regarding these articles included such a provision. See 1996 Preparatory Committee II, pp. 152–164. However, apparently after the Office of the Prosecutor of the ICTY and the ICTR brought concerns to the attention of States, article 36 para. 2(b) (Challenges to the jurisdiction of the Court or the admissibility of a case) of the draft proposed by the Preparatory Committee at its Dec. 1997 session provided that ‘[t]he Prosecutor may seek a ruling from the Court regarding a question of jurisdiction or admissibility’. Preparatory Committee Decisions Dec. 1997, p. 34. This formulation was retained without change in article 12 para. 2(b) [36] (Challenges to the jurisdiction of the Court or the admissibility of a case) of the Zutphen Draft and article 17 para. 2(b) of the New York Draft.

must not exceed 50 pages in length unless otherwise ordered¹¹⁸. The Prosecutor has not, as of 31 May 2015, made a formal article 19 para. 3 request. Nevertheless, in accordance with the general principle of law that the party making allegations concerning a matter in dispute has the burden of proof (see margin No. 15 above), the Prosecutor would often have the burden of proof regarding jurisdiction and admissibility. However, in many instances the State or person concerned would have the exclusive, or almost exclusive, knowledge of the matters at issue and, therefore, the burden would appropriately shift towards that State or person under the equally important general principle of law that when the matters in issue are exclusively or largely within the exclusive knowledge of one party, the burden of proof may be regarded as resting on that party to provide a satisfactory and convincing explanation (see margin No. 15 above). In proceedings relating to admissibility challenges by States the Appeals Chamber has accepted such burden shifting¹¹⁹; there is no apparent reason why it should not apply equally in article 19 para. 3 proceedings. If either the State or the person concerned declined to provide the Prosecutor with information that was relevant to the existence or non-existence of jurisdiction or admissibility, and such information was not readily available from other sources, then jurisdiction and admissibility should be presumed¹²⁰.

Even if the ruling on the Prosecutor's motion did not have a *res judicata* effect on subsequent challenges, it would, as a practical matter, likely limit the scope of subsequent situation or case challenges (at least with respect to admissibility) to newly discovered information which could not have been discovered with due diligence or to significantly changed circumstances. If the Pre-Trial and Trial Chamber were to require that all challenges to jurisdiction or admissibility before the commencement of the trial had to be heard together with any application by the Prosecutor (see discussion below of paragraphs 4 and 5), this procedure could minimize the possibilities of delay and discourage frivolous State challenges made for the purpose of delay.

In contrast to the wording in paragraphs 1 and 2, the Prosecutor's ability under paragraph 3 to 'seek a ruling regarding a question of jurisdiction or admissibility' is not limited to a 'case'. Therefore, in certain circumstances, the Prosecutor could attempt to seek a ruling that the Court has jurisdiction over an entire situation or that the situation was admissible, although this view is not universally accepted¹²¹. In other words, the Prosecutor could perhaps seek a prompt determination that the Court has *jurisdiction* over crimes committed within a situation or, in certain clear-cut instances, that investigations and prosecutions were *admissible* in a situation where there is no doubt that the State's judicial system was unable or unwilling to genuinely investigate or prosecute, thus conserving the Court's resources so that these issues do not have to be relitigated case by case. Thus, the State concerned may still subsequently demonstrate to the Court that it is indeed able to investigate and prosecute genuinely in courts that function fairly and effectively. However, the Prosecutor has so far proceeded very cautiously and has not sought an early ruling pursuant to paragraph 3 on admissibility or jurisdiction with regard to any of the Court's situations. As a result, in the majority of cases it has been either a State or the accused that has challenged admissibility or jurisdiction.

The right guaranteed in the second sentence of paragraph 3 to those who have submitted a situation to the Prosecutor pursuant to article 13, as well as victims, to submit observations to the Court '[i]n proceedings with respect to jurisdiction or admissibility' ensures that all relevant points of view are heard (provided that the person subject to the proceedings is

¹¹⁸ See *Prosecutor v. Lubanga*, ICC-01/04-01/06-717, Reasons for the Appeals Chamber's Decision of 16 November 2006 on the 'Prosecution's Request for an Extension of the Page Limit', Appeals Chamber, 17 Nov. 2006, para. 8.

¹¹⁹ See *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on Admissibility of the Case Against Abdullah Al-Senussi', Appeals Chamber, 24 Jul. 2014, para. 167.

¹²⁰ See *supra* note 56.

¹²¹ Ideally, such a possibility should have been provided for in article 18. In any event, article 19 as a whole – as is apparent from its title – at least with respect to admissibility, applies to 'case[s]'.

informed, see discussion of rules 58 and 59 at margin Nos. 31–32 above)¹²². This includes the direct and *verbatim* views of individual victims, even where they make substantive or factual assertions relating to the merits of the crimes alleged (although these are only considered for the purposes of the jurisdiction or admissibility challenge)¹²³. This right is reinforced by rule 59 sub-rule 1, which requires the Registrar to inform '[t]hose who have referred a situation pursuant to article 13' and '[t]he victims who have already communicated with the Court in relation to that case or their legal representatives'¹²⁴ about 'any question or challenge of jurisdiction or admissibility which has arisen pursuant to article 19, paragraphs 1, 2 and 3'. However, in cases when it is not the State or the Security Council that referred the situation and the Prosecutor commences proceedings *proprio motu*, the Appeals Chamber has held that this rule does not apply. Nevertheless, the Chamber has also opined that soliciting the views of the relevant State or the Security Council falls within the Court's discretion pursuant to rule 58 sub-rule 2¹²⁵. When informing those entitled to receive such information, rule 59 sub-rule 2 requires the Registrar to do so 'in a manner consistent with the duty of the Court regarding the confidentiality of the information, the protection of any person and the preservation of evidence, with a summary of the grounds on which the jurisdiction of the Court or the admissibility of the case has been challenged'. Where jurisdiction or admissibility matters arise at the arrest warrant stage, where proceedings and filings are under seal and *ex parte* (Prosecutor only), the Appeals Chamber has rightly held that the second sentence of paragraph 3 should have no application, as it would produce absurd results¹²⁶.

38 Although nothing in article 19 para. 3 limits observations to being submitted in written form, rule 59 sub-rule 3 provides only for written representations in article 19 proceedings. Nevertheless, in the exercise of their wide discretion under rule 58 sub-rule 2, some Chambers have held hearings (in addition to receiving written submissions), and have permitted oral presentations by the person(s) concerned, victims and States¹²⁷. The term

¹²² One should bear in mind that although this provision appears – somewhat awkwardly – in a provision that permits the Prosecutor to request a ruling on jurisdiction and admissibility, its application is not limited to only such a circumstance. Rather, the Court has consistently applied it in the context of challenges pursuant to article 19.

¹²³ See *Prosecutor v. Blé Goudé*, ICC-02/11-02/11-185, Decision on the Defence Challenge to the Admissibility of the Case Against Charles Blé Goudé for Insufficient Gravity, Pre-Trial Chamber I, 12 Nov. 2014, paras 13–15 (where the victims had made such assertions in their observations to the suspect's admissibility challenge after the end of the confirmation of charges hearing).

¹²⁴ These victims encompass: 'a) those victims who have been admitted to participate in the Case or their legal representatives; and b) those applicants who have submitted applications to be admitted to participate with respect to the Case or their legal representatives[.]' *Prosecutor v. Kony et al.*, ICC-02/04-01/05-320, Decision Initiating Proceedings under Article 19, Requesting Observations and Appointing Counsel for the Defence, Pre-Trial Chamber II, 21 Oct. 2008, p. 7. With respect to the latter group, the practice of the Court has been to appoint the Office of Public Counsel for Victims to make submissions on their behalf whilst their applications are considered. In addition, unlike article 68 para. 3 which permits victim participation '[w]here the[ir] personal interests [...] are affected', article 19 para. 3 is not so constrained, thus 'accord[ing] a specific right of participation to victims': *Situation in the Democratic Republic of the Congo*, ICC-01/04-101-tENG-Corr, Decision on the Application for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-Trial Chamber I, 17 Jan. 2006, para. 62.

¹²⁵ *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-321, Judgment on the Appeal of Mr Laurent Koudou Gbagbo Against the Decision of Pre-Trial Chamber I on Jurisdiction and Stay of the Proceedings, Appeals Chamber, 12 Dec. 2012, paras. 38–43 (holding that the Pre-Trial Chamber nevertheless erred by not further applying rule 103). See also *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-340, Decision on 'Request by the Government of Kenya in Respect of the Confirmation of Charges Proceedings', Pre-Trial Chamber II, 20 Sep. 2011, para. 9.

¹²⁶ *Situation in the Democratic Republic of the Congo*, ICC-01/04-169, Judgment on the Prosecutor's Appeal Against the Decision of Pre-Trial Chamber I entitled 'Decision on the Prosecutor's Application for Warrants of Arrest, Article 58', Appeals Chamber, 13 Jul. 2006, paras. 30–31.

¹²⁷ See for example, *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1163-tENG, Order to Convene a Hearing (Rule 58(2) of the Rules of Procedure and Evidence), Trial Chamber II, 22 May 2009; *Prosecutor v. Bemba*, ICC-01/05-01/08-T-22-tENG, Transcript, Trial Chamber III, 27 Apr. 2010; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-207, Order Convening a Hearing on Libya's Challenge to the Admissibility of the Case Against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 14 Sep. 2012. While the Security Council has yet to be asked to appear in a hearing, the language of this provision is wide enough to include its participation should the

‘proceedings with respect to [...] admissibility’ is arguably broad enough to include proceedings dealing with preliminary challenges to admissibility under article 18. However, the linear approach to articles 15, 18 and 19, the placement of the provision in article 19 (but not in article 18), and the drafting history of article 18 suggest that this provision applies exclusively to article 19 proceedings¹²⁸.

IV. Paragraph 4: Limits on the number of challenges

Paragraph 4 limits persons or States referred to in paragraph 2 to one challenge to jurisdiction or to admissibility. However, a challenge by the concerned person does not preclude a State with jurisdiction from mounting its own challenge; and vice versa. In other words, both the person and the State have at least one chance to bring a challenge independent of each other. Neither is the concerned person nor a State precluded under this paragraph from filing one challenge on jurisdiction and another subsequent separate challenge on admissibility¹²⁹. As Pre-Trial Chamber II has stated (which is equally applicable to jurisdictional challenges):

‘[T]he Statute does not rule out the possibility that multiple determinations of admissibility may be made in a given case. Whilst as a general rule the accused may only raise issues of admissibility once, and that is at the commencement of the trial or prior to it, the power to bring a challenge under this heading is vested with the accused and a State which has jurisdiction over the case or whose acceptance of jurisdiction is required under article 13 of the Statute. Nowhere is it said that a challenge brought by either of the parties forecloses the bringing of a challenge by another equally legitimate party, nor that the right of either of the parties to bring a challenge is curtailed or otherwise affected by the Chamber’s exercise of its *proprio motu* powers [under article 19 para. 1]’¹³⁰.

Similarly, article 19 para. 4 does not preclude States from filing separate admissibility challenges with respect to multiple persons in the same case, as occurred in the Libya situation. Thus, Libya’s first challenge was ‘understood to only concern the case against Mr Gaddafi’, expressly excluding Al-Senussi¹³¹. In the second challenge which concerned Al-Senussi, the Pre-Trial Chamber emphasised that the challenge was independent from that concerning Gaddafi, noting ‘that the unfolding of the proceedings following the Admissibility Challenge [concerning Al-Senussi] cannot be made dependent upon procedural steps in, or

relevant Chamber deem it necessary. On the other hand, other Chambers have rejected holding a hearing altogether: *Prosecutor v. Mbarushimana*, ICC-01/04-01/10-451, Decision on the ‘Defence Challenge to the Jurisdiction of the Court’, Pre-Trial Chamber I, 26 Oct. 2011, paras. 62–63; *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-101, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011, paras. 36–42; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-96, Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute, Pre-Trial Chamber II, 30 May 2011, paras. 32–38.

¹²⁸ Proposals expressly authorizing victims to participate in admissibility proceedings conducted pursuant to article 18 were not adopted by the Preparatory Commission. See Fernández de Gurmendi and Friman (2000) 3 *YblHumL* 289, 315 note 160. However, the failure to provide such express authorization is, to some extent, offset by article 68 para. 3, which provides that ‘[w]here the personal interests of the victims are affected, the Court shall permit their views and concerns to be presented and considered at stages of the proceedings determined to be appropriate by the Court’, although this provision leaves the determination to the discretion of the Court.

¹²⁹ See *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-212, Decision on the ‘Corrigendum to the Challenge to the Jurisdiction of the International Criminal Court on the basis of Articles 12(3), 19(2), 21(3), 55 and 59 of the Rome Statute filed by the Defence for President Gbagbo (ICC-01/11-01/11-129)’, Pre-Trial Chamber I, 15 Aug. 2012 (resolving Gbagbo’s jurisdictional challenge); *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-436-Red, Decision on the ‘Requête relative à la recevabilité de l’affaire en vertu des Articles 19 et 17 du Statut’, Pre-Trial Chamber I, 11 Jun. 2013 (resolving Gbagbo’s admissibility challenge).

¹³⁰ *Prosecutor v. Kony et al.*, ICC-02/04-01/05-377, Decision on Admissibility of the Case under Article 19(1) of the Statute, Pre-Trial Chamber II, 10. Mar. 2009, para. 25.

¹³¹ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-134, Decision on the Conduct of the Proceedings Following the ‘Application on Behalf of the Government of Libya Pursuant to Article 19 of the Statute’, Pre-Trial Chamber I, 4 May 2012, para. 8.

conclusion of, proceedings [in the Gaddafi case] that, although related, are distinct'¹³². Kenya, on the other hand, took a different path. Rather than filing separate admissibility challenges for each of the accused, it filed one challenge that encompassed two separate cases involving multiple suspects¹³³.

- 40 Paragraph 4 also requires that a challenge 'take place prior to or at the commencement of the trial'¹³⁴. The Second Edition of this Commentary suggested that the Court should develop clear, easy to administer guidelines in their jurisprudence in this area. To date the Court has not been able to do so. The matter first arose in the *Katanga and Ngudjolo* case, where the accused filed his challenge after the Trial Chamber had been constituted but before the parties had made their opening statements, thereby raising the question of what 'commencement of the trial' means. The Trial Chamber, after a lengthy analysis, held that these words referred to the time when the Presidency constitutes a Trial Chamber¹³⁵. However, the Appeals Chamber declined to rule on the correctness of this determination, holding that the Trial Chamber's findings were mere *obiter dicta*. The Chamber nevertheless stressed that this 'd[id] not necessarily mean that [...] it agree[d] with the Trial Chamber's interpretation'¹³⁶. Without any clear guidance from the Appeals Chamber, another Trial Chamber, when faced with the same situation opted for a different interpretation, 'namely, that the commencement of the trial occurs when the opening statements are made, immediately before the beginning of the evidence'¹³⁷. Which of these two positions is correct will ultimately depend

¹³² *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-325, Decision on the Conduct of the Proceedings Following the 'Application on Behalf of the Government of Libya Relating to Abdullah Al-Senussi Pursuant to Article 19 of the ICC Statute', Pre-Trial Chamber I, 26 Apr. 2013, para. 10.

¹³³ See *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-19 and ICC-01/09-02/11-26, Application on behalf of the Government of the Republic of Kenya Pursuant to Article 19 of the ICC Statute, Government of Kenya, 31 Mar. 2011.

¹³⁴ The first proposals contained no limit on the number of challenges or their timing. Article 34 of the ILC Draft Statute did not expressly limit the number of jurisdictional challenges by interested States, but it did require that they be made 'prior to or at the commencement of the hearing', apparently, the trial. Article 35 of the ILC Draft Statute also did not expressly limit the number of admissibility challenges by interested States, but did require that they be made 'at any time prior to the commencement of the trial'. The Preparatory Commission's 1996 compilation of proposals regarding articles 34 and 35 did not contain any proposal expressly limiting the number of challenges. See Preparatory Committee II, pp. 152 -164 (as a practical matter, the French proposal requiring challenges by States Parties to be made within one month after notification of the Prosecutor's intent to investigate would have limited them to one such challenge). However, article 36 para. 3 (Challenges to the jurisdiction of the Court or the admissibility of a case) of the draft proposed by the 1996 Preparatory Committee at its Dec. 1997 session limited the number and timing of challenges:

'The admissibility of a case or the jurisdiction of the Court may be challenged only once by any person or State referred to in paragraph 2. The challenge must take place prior to or at the commencement of the trial. In exceptional circumstances, the Court may grant leave for a challenge to be brought more than once or at a time later than the commencement of the trial'.

Preparatory Committee Decisions Dec. 1997, p. 34. This formulation was retained without change in article 12 para. 3 [36] (Challenges to the jurisdiction of the Court or the admissibility of a case) of the Zutphen Draft and article 17 para. 3 of the New York Draft.

¹³⁵ *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 Jun. 2009, para. 49. For academic criticism of this decision see Dov Jacobs, 'The Importance of Being Ernest: The Timeliness of the Challenge to Admissibility in *Katanga*' (2010) 23(2) *LeidenJIL* 331-342.

¹³⁶ *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1497, Judgment on the Appeal of Mr. Germain Katanga Against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 Sep. 2009, para. 38.

¹³⁷ *Prosecutor v. Bemba*, ICC-01/05-01/08-802, Decision on the Admissibility and Abuse of Process Challenges, Trial Chamber III, 24 Jun. 2010, para. 210 (relying on *Prosecutor v. Lubanga*, Case No. ICC-01/04-01/06-1084, Decision on the Status Before the Trial Chamber of the Evidence Heard by the Pre-Trial Chamber and the Decisions of the Pre-Trial Chamber in Trial Proceedings and the Manner in which Evidence shall be Submitted, Trial Chamber I, 13 Dec. 2007, para. 39 (where the same issue had arisen in the context of article 61 para. 9)). The Appeals Chamber was not asked to rule on the matter: *Prosecutor v. Bemba*, ICC-01/05-01/08-962-Corr, Corrigendum to Judgment on the Appeal of Mr Jean-Pierre Bemba Gombo Against the Decision of Trial Chamber III of 24 June 2010 entitled 'Decision on the Admissibility and Abuse of Process Challenges', Appeals Chamber, 19 Oct. 2010.

on the context of the relevant case; there is certainly support within the *Statute* for both positions as articulated by the two Trial Chambers. However, until the Appeals Chamber makes a definitive ruling on the issue, this area of the law remains uncertain.

Since article 19 para. 2(b) can encompass a number of States, the Chamber considering an admissibility challenge, which requires the Prosecutor, pursuant to paragraph 7, to suspend the investigation, should rule on it as rapidly as possible (see discussion of article 19 para. 7, margin Nos. 54–55 below). Any other approach could lead to endless delays, particularly where the relevant Chamber is seized of multiple or successive challenges by different States to the admissibility of a case¹³⁸. Although the possibility for States to delay, and, therefore, to undermine the effectiveness of investigations and prosecutions is a potential danger to the Court, the long-standing failure of States to investigate and prosecute international crimes committed since the Second World War suggests that the chances of a large number of such challenges is minimal. Indeed, as of 31 May 2015, not a single State in the world that is able to exercise domestic jurisdiction over such crimes committed in any of the situations currently before the Court – other than the situation State itself – has filed any such challenges.

Paragraph 4 further requires that challenges must be made only once and before or at the commencement of trial so as to ensure a degree of finality. The paragraph nonetheless permits the Court ‘in exceptional circumstances’ to ‘grant leave for a challenge to be brought more than once or at a time later than the commencement of the trial’. These circumstances are not spelled out and since, as of 31 May 2015, no State or individual has attempted a second challenge, the Court has yet to clarify the matter. Nevertheless, it would be consistent with judicial economy and with due process to limit ‘exceptional circumstances’ in a challenge to *admissibility* by adopting a standard similar to that in article 84 para. 1(a) for revision of convictions or sentences. It would require that the challenge be based on newly discovered information, that the failure to discover that information was not the fault of the State making the new challenge and that the information be sufficiently important so that the decision on admissibility would have been different¹³⁹. Given that both the State and the Court have concurrent jurisdiction over the crimes, if the Court has determined that a case is admissible, the right of the accused to a prompt trial would appear to outweigh the State’s interest in trying the case; a transfer of the case to the State’s court would lead to delay¹⁴⁰. Therefore, the closer a case is to trial the more exceptional the circumstances would have to be to permit a second challenge to admissibility under article 17 para. 1(a) or (b). It is possible to imagine a situation where records of a previous trial in a State where the judicial system has broken down were not available through no fault of the person concerned at the time of the first challenge based on article 17 para. 1(c) (which provides that cases are inadmissible when the person concerned has already been tried unless that trial was designed to shield the person or was not independent or impartial (as per article 20 para. 3)). On the other hand, it is difficult to imagine exceptional circumstances which would permit a second

¹³⁸ In addressing such successive challenges, the relevant Chamber should bear in mind that States will have had an opportunity to make a challenge to admissibility if the Prosecutor, pursuant to article 18 para. 1, had notified them that a situation has been referred to the Court, and should limit successive challenges to raising newly discovered information or significantly changed circumstances. It should also be pointed out that two of the key participants in the drafting of the *Rules* noted that ‘[t]he most contentious question’ regarding rules to implement article 19 ‘was whether the Court, for the purpose of efficiency, could prompt all those who are eligible to submit a challenge to do so at one and at the same time. No such mechanism could be developed, however, due to the fact that the Statute only allows very specific limitations to the right to make a challenge’ Fernández de Gurmendi and Friman (2000) 3 *YbHumL* 289, 328.

¹³⁹ A less satisfactory, but still relatively strict standard to minimize the possibility of abusive successive challenges which Chambers could employ would be that contained in article 18 para. 7, which permits a State that has unsuccessfully challenged admissibility under article 18 to make a second challenge under article 19 ‘on the grounds of additional significant facts or significant change of circumstances’.

¹⁴⁰ It is true that some persons would prefer a trial in a national court, thinking that such a court might be more likely to acquit. That ground, absent an improbable showing that the Court would be biased, would not be a valid reason for granting the challenge.

challenge pursuant to article 17 para. 1(d), where a suspect would have originally alleged that a 'case was not of sufficient gravity to justify further action by the Court'. This is owing to the reality that, as the Appeals Chamber has rightly pointed out, 'a Chamber determines the gravity of a case only once in the course of the proceedings because the facts underlying the assessment of gravity are unlikely to change and a party may therefore be unable to raise the same issue again in future admissibility challenges'¹⁴¹. Furthermore, since the Court lacks the power to consider a case over which it has no *jurisdiction* and since it is under a continuing duty to satisfy itself that it has jurisdiction (as per article 19 para. 1), it would make less sense to read 'exceptional circumstances' more broadly in the case of a challenge to jurisdiction than to admissibility, particularly since such jurisdictional challenges cannot be used to force the Prosecutor to defer or suspend an investigation (see discussion of article 19 para. 7, margin Nos. 54–55 below).

- 43 The final sentence of paragraph 4 limits, to some extent, the possibility of successive frivolous challenges to admissibility at the commencement of the trial or at later stages by providing, first, that such challenges 'may be based only on article 17, paragraph 1(c)' (*ne bis in idem*) and, second, by reiterating that after the commencement of the trial such challenges may only be made 'with the leave of the Court'¹⁴². Thus, at this stage, a State making a challenge would not merely have to demonstrate that it had genuinely opened an investigation or commenced a prosecution, but also that it had obtained a final judgment of conviction or acquittal. In addition, the relevant Chamber would have discretion to refuse even to entertain such a belated challenge. These limitations make considerable sense to ensure finality, effectiveness and certainty in the Prosecutor's investigations and prosecutions. They further serve to minimize disruptions, including the transfer of proceedings to a completely different jurisdiction particularly at the trial stage, which would seriously impede efforts to secure justice without undue delay¹⁴³.
- 44 Notwithstanding, it should be noted, as outlined earlier, that in the *Katanga and Ngudjolo* case the Trial Chamber found that an accused's challenge was filed out of time, since it had held that a trial commenced when a Trial Chamber had been constituted. Ordinarily, such a challenge would have required leave, but due to the uncertainty surrounding the meaning of the words 'commencement of the trial' the Chamber exercised its discretion and proceeded to consider the challenge on its merits even though they did not concern article 17, paragraph 1(c) matters¹⁴⁴.

V. Paragraph 5: Prompt challenges by States

- 45 Paragraph 5 requires States which are permitted to make challenges to jurisdiction or admissibility pursuant to paragraph 2(b) (investigating or prosecuting State) and (c) (article 12

¹⁴¹ *Prosecutor v. Kony et al.*, ICC-02/04-01/-5-408, Judgment on the Appeal of the Defence Against the 'Decision on the Admissibility of the Case under Article 19(1) of the Statute' of 10 March 2009, Appeals Chamber, 16 Sep. 2009, para. 85.

¹⁴² Rule 133 provides that challenges at either stage 'shall be dealt with by the Presiding Judge and the Trial Chamber in accordance with rule 58'.

¹⁴³ The same considerations restricting the scope of challenges at each stage of the proceedings and particularly after the commencement of a trial would apply to determinations by the relevant Chamber on its own motion concerning the admissibility of a case pursuant to article 19 para. 1, a request by the Prosecutor for a ruling on admissibility at any stage pursuant to article 19 para. 3 or a reconsideration by the Prosecutor pursuant to article 53 para. 2(b).

¹⁴⁴ See *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 Jun. 2009, paras. 56–58. See also *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1497, Judgment on the Appeal of Mr. Germain Katanga Against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 Sep. 2009, para. 38: 'the Trial Chamber did not dismiss the admissibility challenge on the basis that it had not been made in time. Instead, the Trial Chamber considered the merits of the challenge and found the case to be admissible'.

State) to 'make a challenge at the earliest opportunity'¹⁴⁵. Whilst, regrettably, the provision itself does not provide further guidance, does not spell out any sanctions for dilatory challenges and a State challenge has yet to be rejected on these grounds, the Court has nonetheless issued some instructions for future cases where this possibility may arise.

The underlying rationale behind article 19 para. 5 was aptly articulated by a Trial Chamber 46 as being 'clearly aimed at avoiding challenges to admissibility needlessly hindering or delaying the proceedings, which means that they must be brought as soon as possible, preferably during the trial phase'¹⁴⁶. This should occur 'once [the State] is in a position to actually assert a conflict of jurisdictions' and thus '[t]he provision does not require a State to challenge admissibility just because the Court has issued a summons to appear' or a warrant of arrest; it 'must be seen in the context of the other provisions on admissibility, in particular article 17(1) of the Statute'¹⁴⁷. 'Therefore, as soon as a State can present its challenge in such a way that it can show a conflict of jurisdictions, it must be submitted'¹⁴⁸. In other words, a

¹⁴⁵ Article 34 para. (a) of the ILC Draft Statute required that jurisdictional challenges by an accused or by any interested State be made 'prior to or at the commencement of the hearing [apparently, the trial]', but article 34 para. (b) then permitted an accused to make such a challenge 'at any later stage of the trial'. The ILC explained in the 1994 ILC Draft Statute, commentary on article 34:

'Challenges under article 34 may be made, in accordance with procedures laid down in the rules, at any time after confirmation of an indictment up to the commencement of the hearing. In addition the accused may challenge the jurisdiction at any later stage of the trial, in which the court would have the discretion to deal with the challenge as a separate issue or to reserve it to be decided as part of its judgement at the conclusion of the trial'. Article 35 of the ILC Draft Statute provided that '[t]he Court may on application by the accused or at the request of an interested State at any time prior to the commencement of the trial [...] decide [...] that a case before it is inadmissible'. The ILC stated that '[i]ssues arising under article 35 should normally be dealt with as soon as possible after they are made': 1994 ILC Draft Statute, Commentary to article 35 (presumably, it should have read: 'after they arise').

'As for the time of raising the issue of admissibility', during the 1996 discussions in the Preparatory Committee, 'it was generally agreed that it should be prior to, or at the beginning of the trial and not later'. 1996 Preparatory Committee I, p. 39. However, the Preparatory Commission's 1996 compilation of proposals with regard to article 35 (Issues of admissibility) contained only one proposal, by France, imposing a deadline for challenges. See 1996 Preparatory Committee II, p. 161 (this proposal, requiring a State Party wishing to make such a challenge to do so within one month after receiving notice from the Prosecutor that he or she was planning to initiate an investigation, dropped out of the article 19 drafting process, but reappeared in a modified form in the US proposal which became article 18).

Article 36 para. 3 (Challenges to the jurisdiction of the Court or the admissibility of a case) of the draft proposed by the Preparatory Committee at its Dec. 1997 session limited the number and timing of challenges:

'The admissibility of a case or the jurisdiction of the Court may be challenged only once by any person or State referred to in paragraph 2. The challenge must take place prior to or at the commencement of the trial. In exceptional circumstances, the Court may grant leave for a challenge to be brought more than once or at a time later than the commencement of the trial'.

Preparatory Committee Decisions Dec. 1997, p. 35. Paragraph 2(b) listed a variety of definitions of States who could make jurisdictional or admissibility challenges. In addition, newly added article 36 para. 3*bis* provided that '[a] State referred to in paragraph 2 (b) of the present article shall make a challenge at the earliest opportunity' *Ibid*. These formulations were retained without change in article 12 paras. 3 and 3*bis* [36] (Challenges to the jurisdiction of the Court or the admissibility of a case) of the Zutphen Draft and article 17 paras. 3 and 4 of the New York Draft.

¹⁴⁶ *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 Jun. 2009, para. 44.

¹⁴⁷ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-307, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, paras. 46, 100; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-274, Judgment on the Appeal of the Republic of Kenya Against the Decision of Pre-Trial Chamber II of 30 May 2011 entitled 'Decision on the Application by the Government of Kenya Challenging the Admissibility of the Case Pursuant to Article 19(2)(b) of the Statute', Appeals Chamber, 30 Aug. 2011, paras. 45, 98. See also *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the Appeal of Côte d'Ivoire Against the Decision of Pre-Trial Chamber I of 11 December 2014 entitled 'Decision on Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo', Appeals Chamber, 27 May 2015, para. 35.

¹⁴⁸ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the Admissibility of the Case Against

State that is otherwise in a position to bring a challenge should not sit back, or vacillate and let proceedings before the Court continue, at cost in terms of time, human and financial resources, only to later come forward and abort them. States must act with due diligence.

- 47 In order to avoid such problems, the Court has a variety of approaches available, such as requiring that challenges be made by a particular date or before it considers an application by the Prosecutor under paragraph 3 for a ruling ‘regarding a question of jurisdiction or admissibility’. It would also be appropriate if the relevant Chamber determined that the longer the delay between notification of an investigation and the challenge, the less likely that it would be considered timely. Without effective criteria and procedures, States, particularly States hostile to the Court, could attempt to frustrate Court investigations and prosecutions by last-minute challenges to jurisdiction. And then, after such challenges are rejected, they may file new challenges to admissibility. Such challenges result in unwarranted delays and, ultimately, in a denial of justice. The dangers that a State could use such challenges prior to the arrest of a suspect to delay or prevent the arrest have been minimized by the provisions in article 19 para. 8.

VI. Paragraph 6: Allocation of responsibility and appeals

- 48 Article 36 para. 2 of the ILC Draft Statute envisaged that proceedings concerning jurisdiction and admissibility would ‘be decided by the Trial Chamber, unless it considers, having regard to the importance of the issues involved, that the matter should be referred to the Appeals Chamber’. The drafters of paragraph 6 decided, instead, that these matters would be decided by the Pre-Trial or Trial Chamber, with an automatic right to an interlocutory appeal to the Appeals Chamber¹⁴⁹. Paragraph 6 provides that prior to the confirmation of the charges (pursuant to article 61), challenges to the admissibility of a case or to the jurisdiction of the Court shall be referred to the Pre-Trial Chamber and that after the charges are confirmed, challenges on these grounds are to be referred to the Trial Chamber¹⁵⁰. Thus, in the *Bemba* case, the Pre-Trial Chamber held that since it ‘ha[d] decided to confirm some of the charges against [...] Bemba [...] the Defence ha[d] no more *locus standi* to challenge the admissibility of the case at the pre-trial level’ given that the Prosecutor’s leave to appeal that decision had been denied¹⁵¹. In conjunction with rule 60, the Chamber rejected the Defence’s motion for the disclosure of material for the purpose of an admissibility challenge.
- 49 Paragraph 6 also provides that ‘[d]ecisions with respect to jurisdiction or admissibility may be appealed to the Appeals Chamber in accordance with article 82’. Such decisions would include

Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014, para. 84. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-354, Decision on Libya’s Postponement of the Execution of the Request for Arrest and Surrender of Abdullah Al-Senussi Pursuant to Article 95 of the Rome Statute and related Defence Request to Refer Libya to the UN Security Council, Pre-Trial Chamber I, 14 Jun. 2013, para. 31:

‘The Chamber understands this reference [“at the earliest opportunity”] to indicate that a State shall seize the Chamber of an admissibility challenge as soon as there are grounds on the basis of which the case would be inadmissible before the Court. Indeed, a State is required to challenge admissibility without delay once in a position to demonstrate the inadmissibility of the case before the Court’.

¹⁴⁹ Article 36 para. 4 (Challenges to the jurisdiction of the Court or the admissibility of a case) of the draft proposed by the Preparatory Committee at its December 1997 session provided:

‘Prior to the confirmation of the indictment, challenges to the admissibility of a case or challenges to the jurisdiction of the Court, shall be referred to the Pre-Trial Chamber. After confirmation of the indictment, they shall be referred to the Trial Chamber’.

Preparatory Committee Decisions Dec. 1997, p. 35. The concept of confirmation of an indictment in article 28 of the ILC Draft Statute was replaced with the concept of confirmation of charges in article 61. Proposals by Australia, the Netherlands and by France introduced the interlocutory appeal. 1996 Preparatory Committee II, pp. 160–161.

¹⁵⁰ As noted in *supra* note 99, rule 60 provides that a challenge made after a confirmation of the charges, but before the Trial Chamber is constituted or designated, must be addressed to the Presidency, which will refer it to the Trial Chamber as soon it is constituted or designated.

¹⁵¹ *Prosecutor v. Bemba*, ICC-01/05-01/08-529, Decision on the ‘Requete aux fins divulgation des elements pertinents relatifs a l’admissibilite’, Pre-Trial Chamber II, 18 Sep. 2009, para. 14.

any decision with respect to challenges under article 19 and decisions on the Prosecutor's requests pursuant to paragraph 10 seeking review of an inadmissibility decision in the light of facts that have newly appeared. Article 82 para. 1(a) provides that '[e]ither party may appeal [...] (a) A decision with respect to jurisdiction or admissibility'¹⁵². Although the term 'party' generally refers to the Prosecutor and the Defence¹⁵³, the Court has permitted States to appeal rulings on their jurisdictional or admissibility challenges. The Appeals Chamber has:

'underst[ood] from the phrase "decision with respect to" that the operative part of the [impugned] decision itself must pertain directly to a question on the jurisdiction of the Court or the admissibility of a case. It is not sufficient that there is an indirect or tangential link between the underlying decision and questions of jurisdiction or admissibility. [...] [T]he specific reference [in article 19 para. 6] to article 82 of the Statute and the use of identical language in articles 19(6) and 82(1)(a) of the Statute indicate that the right to appeal a decision on jurisdiction or admissibility is intended to be limited only to those instances in which a Pre-Trial or Trial Chamber issues a ruling specifically on the jurisdiction of the Court or the admissibility of the case'¹⁵⁴.

This does not mean that the decision being appealed has to exclusively concern admissibility or jurisdictional matters. In one instance, '[a]lthough the impugned decision [wa]s a decision on an application for warrants of arrest, the decision by the Pre-Trial Chamber to reject the Prosecutor's application in respect of [...] Ntaganda was based on a ruling of the admissibility of the case against him'. As the Appeals Chamber held, 'to th[at] extent, the impugned decision [wa]s a decision 'with respect to [...] admissibility', as required by article 82(1)(a)'¹⁵⁵. In other words:

'it is the nature, and not the ultimate effect or implication of a decision, that determines whether an appeal falls under article 82(1)(a) of the Statute. Even if the ultimate impact of a decision of a Pre-Trial or Trial Chamber were to affect the admissibility of cases, that fact would not, in of itself, render the decision a 'decision with respect to [...] admissibility' under article 82(1)(a)'¹⁵⁶.

The Court has also clarified that since the scope of appeals proceedings is determined by 50 the scope of the proceedings before the Pre-Trial or Trial Chamber, '[f]acts which postdate the [i]mpugned [d]ecision fall beyond the possible scope of the proceedings before the Pre-

¹⁵² As discussed earlier, the Court has ruled that arguments relating to human rights violations or to the definition of crimes are not matters relating to jurisdiction or admissibility. See *supra* notes 48, 70, 71.

¹⁵³ See for example, *Prosecutor v. Lubanga*, ICC-01/04-01/06-1432, Judgment on the Appeals of the Prosecutor and the Defence Against Trial Chamber I's Decision on Victims' Participation of 18 January 2008, Appeals Chamber, 11 Jul. 2008, para. 93 (in the context of article 69 para. 3).

¹⁵⁴ *Situation in the Republic of Kenya*, ICC-01/09-78, Decision on the Admissibility of the 'Appeal of the Government of Kenya Against the 'Decision on the Request for Assistance Submitted on Behalf of the Government of the Republic of Kenya Pursuant to Article 93(10) of the Statute and Rule 194 of the Rules of Procedure and Evidence', Appeals Chamber, 10 Aug. 2011, paras. 15–16. See also *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-270, Decision on the 'Appeal Against the Single Judge's Decision on the "Request by Ms. Moraa Gesicho to Appear as Amicus Curiae"', Appeals Chamber, 17 Aug. 2011, para. 4; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-250, Decision on the 'Appeal Against the Single Judge's Decision on the "Request by Ms. Moraa Gesicho to Appear as Amicus Curiae"', Appeals Chamber, 17 Aug. 2011, para. 4; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-74, Decision on the Admissibility of the 'Appeal Against Decision on Application under Rule 103' of Ms Mishana Hosseinioun of 7 February 2012, Appeals Chamber, 8 Mar. 2012, paras. 10–11; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-126, Decision on 'Government of Libya's Appeal Against the 'Decision Regarding the Second Request by the Government of Libya for Postponement of the Surrender of Saif Al-Islam Gaddafi"' of 10 April 2012, Appeals Chamber, 25 Apr. 2012, paras. 12–16; *Prosecutor v. Katanga*, ICC-01/04-01/07-3424, Decision on the Admissibility of the Appeal Against the 'Decision on the Application for the Interim Release of Detained Witnesses DRC-D02-P0236, DRC-D02-P0228 and DRC-D02-P0350', Appeals Chamber, 20 Jan. 2014, paras. 32–34.

¹⁵⁵ *Situation in the Democratic Republic of the Congo*, ICC-01/05-169, Judgment on the Prosecutor's Appeal Against the Decision of Pre-Trial Chamber I entitled 'Decision on the Prosecutor's Application for Warrants of Arrest, Article 58', Appeals Chamber, 13 Jul. 2006, para. 18.

¹⁵⁶ *Situation in the Republic of Kenya*, ICC-01/09-78, Decision on the Admissibility of the 'Appeal of the Government of Kenya Against the 'Decision on the Request for Assistance Submitted on Behalf of the Government of the Republic of Kenya Pursuant to Article 93(10) of the Statute and Rule 194 of the Rules of Procedure and Evidence', Appeals Chamber, 10 Aug. 2011, para. 17.

Trial [or Trial] Chamber and therefore beyond the scope of the proceedings on appeal'¹⁵⁷. With respect to victims, it has been held that '[t]he legal instruments of the Court do not set out any specific procedure regarding the participation of victims in appeals brought under articles 19(6) and 82(1)(a) of the Statute'¹⁵⁸. However, the Court has adopted a scheme whereby 'only those victims who have made observations before the Pre-Trial or Trial Chamber are invited to make observations before the Appeals Chamber'¹⁵⁹. Therefore, unless victims have participated in the earlier jurisdiction or admissibility proceedings before a first-instance Chamber they will not be entitled to participate for the first time at the appeal stage.

- 51 Rule 154 sub-rule 1 requires that an appeal under article 82 para. 1(a) be filed 'not later than five days from the date upon which the party filing the appeal is notified of the decision'. As a general rule, the party making the appeal would have the burden to demonstrate that the decision should be reversed¹⁶⁰. As per rule 156 sub-rule 3, such appeals are conducted in writing (unless the Appeals Chamber decides to convene an oral hearing). They are subject to regulation 38 sub-regulation 1(c) (not regulation 37 sub-regulation 1), which therefore means that appeals and responses in article 19 appellate proceedings must not exceed 100 pages in length unless otherwise ordered¹⁶¹. While the Court's regulations do

¹⁵⁷ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-234, Decision on the 'Filing of Updated Investigation Report by the Government of Kenya in the Appeal Against the Pre-Trial Chamber's Decision on Admissibility', Appeals Chamber, 28 Jul. 2011, para. 13; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-202, Decision on the 'Filing of Updated Investigation Report by the Government of Kenya in the Appeal Against the Pre-Trial Chamber's Decision on Admissibility', Appeals Chamber, 28 Jul. 2011, para. 12. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi', Appeals Chamber, 21 May 2014, paras. 40–44; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on Admissibility of the Case Against Abdullah Al-Senussi', Appeals Chamber, 24 Jul. 2014, paras. 55–59, 193, 244(g); *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-75-Red, Judgment on the Appeal of Côte d'Ivoire Against the Decision of Pre-Trial Chamber I of 11 December 2014 entitled 'Decision on Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo', Appeals Chamber, 27 May 2015, paras 33, 43–45.

¹⁵⁸ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-390, Decision on the 'Observations on the "Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence"', Appeals Chamber, 20 Feb. 2012, para. 13; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-400, Decision on the 'Observations on the "Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence"', Appeals Chamber, 20 Feb. 2012, para. 13. But see the separate opinions of Judge Song: *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-390, Decision on the 'Observations on the "Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence"' – Separate Opinion of Judge Sang-Hyun Song, Appeals Chamber, 20 Feb. 2012, paras. 2–4; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-400, Decision on the 'Observations on the "Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence"' – Separate Opinion of Judge Sang-Hyun Song, Appeals Chamber, 20 Feb. 2012, paras. 2–4.

¹⁵⁹ *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-390, Decision on the 'Observations on the "Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence"', Appeals Chamber, 20 Feb. 2012, para. 13; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-400, Decision on the 'Observations on the "Directions on the Submission of Observations Pursuant to Article 19(3) of the Rome Statute and Rule 59(3) of the Rules of Procedure and Evidence"', Appeals Chamber, 20 Feb. 2012, para. 13.

¹⁶⁰ See Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 227.

¹⁶¹ *Prosecutor v. Lubanga*, ICC-01/04-01/06-717, Reasons for the Appeals Chamber's Decision of 16 November 2006 on the 'Prosecution's Request for an Extension of the Page Limit', Appeals Chamber, 17 Nov. 2006, paras. 6–9. However, where the Appeals Chamber invites observations under rule 103 (and responses thereto) or the appeals proceedings arise from a *proprio motu* decision of the Chamber pursuant to article 19 para. 1, then the page limit under regulation 37 sub-regulation 1 is applicable, that is, no more than 20 pages in length: *Prosecutor v. Kony et al.*, ICC-02/04-01/11-5408, Judgment on the Appeal of the Defence Against the 'Decision on the Admissibility of the Case under Article 19(1) of the Statute' of 10 March 2009, Appeals Chamber, 16 Sep. 2009, paras. 20–21; *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-266, Decision on Requests Related to Page Limits and Reclassification of Documents, Appeals Chamber, 16 Oct. 2012, para. 8; *Prosecutor v. L. Gbagbo*, ICC-02/11-01/11-268, Decision Further to the 'Directions on the Submissions of Observations' Issued on 31 August 2012 and on the Clarification Request of Mr Gbagbo, Appeals Chamber, 18 Oct. 2012, para. 4.

not foresee the filing of replies to responses pursuant to rule 154 sub-rule 1, the Appeals Chamber has previously exercised its discretion under regulation 28 to allow the relevant participants to do so in article 19 appellate proceedings¹⁶². In contrast to article 18 para. 4 which states that '[t]he appeal may be heard on an expedited basis', paragraph 6 contains no similar language. However, rule 156 sub-rule 4 (which governs the procedure for an appeal pursuant to rule 154) requires that '[t]he appeal shall be heard as expeditiously as possible', thereby correcting a weakness and inconsistency in paragraph 6¹⁶³.

A practice has emerged in cases where a Pre-Trial Chamber makes an admissibility or jurisdiction decision in the course of proceedings relating to the Prosecutor's application for a warrant of arrest or summons to appear. It is that the person concerned or the relevant State files an independent admissibility or jurisdictional challenge and, if aggrieved by the Pre-Trial Chamber's decision, files an appeal. Whilst an appeal against a ruling on jurisdiction or admissibility in an arrest warrant or summons to appear decision is possible (once the person concerned or the relevant State learns of its existence), it would be a most ill-advised endeavour. This is because such a decision would have been made without the participation of the concerned party and any appeal at that point in time would deprive the appellants of the chance to make their full case before the Pre-Trial Chamber; it would also entail tight filing deadlines hanging over the preparation of submissions (which, as aforementioned, is limited to five days)¹⁶⁴.

¹⁶² *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-442, Decision on the Libyan Government's Request to File Further Submissions, Appeals Chamber, 12 Sep. 2013, para. 12; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-508, Decision on Mr Al-Senussi's Request to File Further Submissions and Related Issues, Appeals Chamber, 6 Feb. 2014, para. 17.

¹⁶³ In this respect, the fastest time in which an admissibility appeal has been issued by the Court was two months and eleven days from the time when the decision was rendered (on 3 Oct. 2006) by the Pre-Trial Chamber in the *Lubanga* case: *Prosecutor v. Lubanga*, ICC-01/04-01/06-772, Judgment on the Appeal of Mr. Thomas Lubanga Dyilo Against the Decision on the Defence Challenge to the Jurisdiction of the Court Pursuant to Article 19(2)(a) of the Statute of 3 October 2006, Appeals Chamber, 14 December 2006. In stark contrast, the longest time in which an admissibility appeal has been issued by the Court was just shy of one year(!) from the time when the decision was rendered (on 31 May 2013) by the Pre-Trial Chamber in the *Gaddafi and Al-Senussi* case: *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled 'Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi', Appeals Chamber, 21 May 2014. In the latter case, the delay was of such concern that the Defence was compelled to file an urgent request seeking that a decision be issued by the Appeals Chamber: *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-537, Urgent Request for the Immediate Issuance of the Judgment on Libya's Appeal Against the 'Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi' with Public Annex A, Defence, 30 Apr. 2014.

¹⁶⁴ The experience in the *Lubanga* case is a good case study of the problems that can ensue by choosing this route. There, the suspect discovered the admissibility determination in his arrest warrant decision by the Pre-Trial Chamber after his arrival at the Court. Duty counsel treated this as notification of the decision pursuant to rule 154 sub-rule 1, triggering the five day deadline for the filing of an appeal and applied to the Pre-Trial Chamber for the disclosure of further information in order to prepare the appeal and for an extension of time in which to file the appeal. The Pre-Trial Chamber held that it was not competent to entertain the application: *Prosecutor v. Lubanga*, ICC-01/04-01/06-50, Decision on the Application by the Duty Counsel for the Defence dated 20 March 2006, Pre-Trial Chamber I, 22 Mar. 2006. The suspect then approached the Appeals Chamber but was denied an extension of time and was ordered to provide reasons in support of his appeal and to respond to the Prosecutor's submission that it was questionable whether the appeal should have been brought at that stage of the proceedings: *Prosecutor v. Lubanga*, ICC-01/04-01/06-129, Decision on the Appellant's Application for an Extension of the Time Limit for the Filing of the Document in Support of the Appeal and Order Pursuant to Regulation 28 of the Regulations of the Court, Appeals Chamber, 30 May 2006. The suspect then sought to discontinue the appeal without waiving his right to subsequently challenge the admissibility of the case and sought a formal acknowledgement of this position from the Appeals Chamber. The Appeals Chamber declined to treat this as a discontinuance because he sought to impose reservations, something that was not foreseen in the *Statute* or *Rules* and declined to grant an extension of time: *Prosecutor v. Lubanga*, ICC-01/04-01/06-176, Decision on Thomas Lubanga Dyilo's Brief Relative to Discontinuance of Appeal, Appeals Chamber, 3 Jul. 2006. Finally, the Appeals Chamber decided that it had no power to transfer the suspect's appeal back to the Pre-Trial Chamber, declined to rule on whether article 82 para. 1(a) gives a right to appeal an *ex parte* decision, deemed the appeal abandoned and dismissed it because the suspect's discontinuance still did not comply with the *Rules*: *Prosecutor v. Lubanga*, ICC-01/04-01/06-393, Decision on Thomas Lubanga Dyilo's Application for Referral to the Pre-Trial Chamber/In the Alternative, Discontinuance of Appeal, Appeals Chamber, 9 Sep. 2006.

- 53 In contrast to paragraph 7, which provides that in case of a State's challenge to admissibility the Prosecutor must suspend the investigation pending a decision by the Court, article 82 para. 3 provides that '[a]n appeal shall not of itself have suspensive effect unless the Appeals Chamber so orders, upon request, in accordance with the Rules of Procedure and Evidence'. Rule 156 sub-rule 5 provides that, '[w]hen filing the appeal, the party appealing may request that the appeal have suspensive effect in accordance with article 82, paragraph 3'¹⁶⁵. For this reason 'it is preferable that [the] request [...] be presented in the appeal together with the reasons in support of the request'¹⁶⁶. Whether or not the request will be granted is a matter within the discretion of the Appeals Chamber. 'Therefore, when faced with a request for suspensive effect, the Appeals Chamber will consider the specific circumstances of the case and the factors it considers relevant for the exercise of its discretion under the circumstances'¹⁶⁷. Such considerations include: that the impugned decision '(i) 'would create an irreversible situation that could not be corrected, even if the Appeals Chamber eventually were to find in favour of the appellant', (ii) would lead to consequences that 'would be very difficult to correct and may be irreversible', or (iii) 'could potentially defeat the purpose of the appeal'¹⁶⁸. Unless the Appeals Chamber decides otherwise, if the relevant Chamber has rejected the challenge, the Prosecutor would resume the investigation immediately, pending an appeal. However, the suspension of domestic or other proceedings that are independent of those before the Court will exceed the scope of a request for suspensive effect.¹⁶⁹ The Appeals Chamber has also held that a pending appeal does not have any implications for surrender requests. Therefore a State would continue to be obliged to surrender a suspect into the custody of the Court, should he or she be in their

¹⁶⁵ The draft Rules of Procedure and Evidence prepared by Australia, and submitted to the first session of the Preparatory Commission before the First Edition of this Commentary, did not refer to article 82 para. 3.

¹⁶⁶ *Prosecutor v. Bemba*, ICC-01/05-01/08-499, Decision on the Request for Suspensive Effect, Appeals Chamber, 3 Sep. 2009, para. 10. See also *Prosecutor v. Bemba*, ICC-01/05-01/08-817, Decision on the Request of Mr Bemba to Give Suspensive Effect to the Appeal Against the 'Decision on the Admissibility and Abuse of Process Challenges', Appeals Chamber, 9 Jul. 2010, para. 10; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, paras. 13–14.

¹⁶⁷ *Prosecutor v. Bemba*, ICC-01/05-01/08-499, Decision on the Request for Suspensive Effect, Appeals Chamber, 3 Sep. 2009, para. 11. See also *Prosecutor v. Ngudjolo*, ICC-01/04-02/12-12, Decision on the Request of the Prosecutor of 19 December 2012 for Suspensive Effect, Appeals Chamber, 20 Dec. 2012, para. 19; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, para. 22; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-480, Decision on the Request for Suspensive Effect and the Request to File a Consolidated Reply, Appeals Chamber, 22 Nov. 2013, para. 14.

¹⁶⁸ *Prosecutor v. Bemba*, ICC-01/05-01/08-817, Decision on the Request of Mr Bemba to Give Suspensive Effect to the Appeal Against the 'Decision on the Admissibility and Abuse of Process Challenges', Appeals Chamber, 9 Jul. 2010, para. 11. See also *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-391, Decision on the Requests of Mr Ruto and Mr Sang for Suspensive Effect, Appeals Chamber, 29 Feb. 2012, paras. 9–10; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-401, Decision on the Request of Mr Kenyatta and Mr Muthaura for Suspensive Effect, Appeals Chamber, 29 Feb. 2012, paras. 9–10; *Prosecutor v. Lubanga*, ICC-01/04-01/06-2953, Decision on the Admissibility of the Appeals Against Trial Chamber I's 'Decision Establishing the Principles and Procedures to be Applied to Reparations' and Directions on the Further Conduct of Proceedings, Appeals Chamber, 14 Dec. 2012, para. 82; *Prosecutor v. Katanga*, ICC-01/04-01/07-3344, Decision on the Request for Suspensive Effect of the Appeal Against Trial Chamber II's Decision on the Implementation of Regulation 55 of the Regulations of the Court, Appeals Chamber, 16 Jan. 2013, para. 6; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-56, Decision on Côte d'Ivoire's Request for Suspensive Effect of its Appeal Against the 'Decision on Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo' of 11 December 2014, Appeals Chamber, 20 Jan. 2015, para. 13.

¹⁶⁹ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-480, Decision on the Request for Suspensive Effect and the Request to File a Consolidated Reply, Appeals Chamber, 22 Nov. 2013, paras. 15–17 (where a request for the suspension of domestic criminal proceedings against the suspect was held to 'exceed[] the scope of an order for suspensive effect'). See also *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-56, Decision on Côte d'Ivoire's Request for Suspensive Effect of its Appeal Against the 'Decision on Côte d'Ivoire's Challenge to the Admissibility of the Case Against Simone Gbagbo' of 11 December 2014, Appeals Chamber, 20 Jan. 2015, para. 14: 'Côte d'Ivoire does not explain why the surrender of Ms Gbagbo to the Court would necessarily result in a suspension of the domestic proceedings'.

detention, during an appeal of an admissibility decision¹⁷⁰. It cannot claim that surrender defeats or frustrates the purpose of the appeal in that it would prevent domestic criminal processes from proceeding¹⁷¹. Given the need for criminal investigations to proceed expeditiously so as to obtain evidence while it is still fresh and thereby ensure its preservation as well as other considerations, the Appeals Chamber has tended to reject requests for suspensive effect¹⁷².

VII. Paragraph 7: Suspension of investigation

Paragraph 7 was introduced at the Diplomatic Conference to replace a bracketed 54 provision in the New York draft in article 54 (Investigation of alleged crimes) which would have *prevented* the Prosecutor from even *initiating* an investigation where it was challenged within one month after the Prosecutor notified States that he or she had received a referral from the Security Council, a State complaint or information from an individual¹⁷³. In contrast, this paragraph simply requires the Prosecutor to *suspend* an investigation *after it has been initiated* when an investigating or prosecuting State (paragraph 2 (b)) or an article 12 State (paragraph 2 (c)) has made a challenge until the relevant Chamber makes a determination in accordance with article 17;¹⁷⁴ the provision has no effect on domestic

¹⁷⁰ See *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision on the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, paras. 24–27 (holding that the Chamber had not been provided with information as to why the surrender of the suspect to the Court would prevent Libya from continuing with its domestic investigations and that article 95 did not apply to appellate proceedings); *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-446, Decision on the ‘Request for an Immediate Finding of Non-Compliance and Referral to United Nations Security Council’, Appeals Chamber, 17 Sep. 2013, para. 8.

¹⁷¹ See *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, para. 24; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-56, Decision on Côte d’Ivoire’s Request for Suspensive Effect of its Appeal Against the ‘Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo’ of 11 December 2014, Appeals Chamber, 20 Jan. 2015, para. 17.

¹⁷² See *Prosecutor v. Bemba*, ICC-01/05-01/08-817, Decision on the Request of Mr Bemba to Give Suspensive Effect to the Appeal Against the ‘Decision on the Admissibility and Abuse of Process Challenges’, Appeals Chamber, 9 Jul. 2010 (where the Trial Chamber rejected the accused’s admissibility challenge); *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-391, Decision on the Requests of Mr Ruto and Mr Sang for Suspensive Effect, Appeals Chamber, 29 Feb. 2012, paras. 9–10 (where the Pre-Trial Chamber rejected the accused’s jurisdictional challenges); *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-401, Decision on the Request of Mr Kenyatta and Mr Muthaura for Suspensive Effect, Appeals Chamber, 29 Feb. 2012 (where the Pre-Trial Chamber rejected the accused’s jurisdictional challenges); *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision on the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, (where the Pre-Trial Chamber rejected the State’s admissibility challenge); *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-480, Decision on the Request for Suspensive Effect and the Request to File a Consolidated Reply, Appeals Chamber, 22 Nov. 2013 (where the Pre-Trial Chamber accepted the State’s admissibility challenge); *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-56, Decision on Côte d’Ivoire’s Request for Suspensive Effect of its Appeal Against the ‘Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo’ of 11 December 2014, Appeals Chamber, 20 Jan. 2015 (where the Pre-Trial Chamber rejected the State’s admissibility challenge).

¹⁷³ Preparatory Committee (Consolidated) Draft, article 54 para. 3. That provision was based on article 26 para. 1bis (Investigation of alleged crimes) in the draft adopted by the Preparatory Committee at its Aug. 1997 session, which did not contain such a bar. Preparatory Committee Decisions Aug. 1997, p. 14.

¹⁷⁴ See *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1213-tENG, Reasons for the Oral Decision on the Motion Challenging the Admissibility of the Case (Article 19 of the Statute), Trial Chamber II, 16 Jun. 2009, para. 45; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled ‘Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014, para. 166. See also *Third Report of the Prosecutor of the International Criminal Court to the UN Security Council Pursuant to UNSCR 1970 (2011)*, Office of the Prosecutor, 16 May 2012, para. 30; *Fourth Report of the Prosecutor of the International Criminal Court to the UN Security Council Pursuant to UNSCR 1970 (2011)*, Office of the Prosecutor, 7 Nov. 2012, para. 12; *Fifth Report of the Prosecutor of the International Criminal Court to the UN Security Council Pursuant to UNSCR 1970 (2011)*, Office of the Prosecutor, 8 May 2013, para. 15; *Sixth Report of the Prosecutor of the International Criminal Court to the UN Security Council Pursuant to UNSCR 1970 (2011)*, Office of the Prosecutor, 14 Nov. 2013, para. 14.

investigations¹⁷⁵. Paragraph 7 in conjunction with paragraph 5, and in contrast to article 18 para. 2, does not impose any time limit for making such a challenge (but does mandate that it be filed ‘at the earliest opportunity’¹⁷⁶), thus leaving the Prosecutor and the relevant Chamber with a certain degree of uncertainty about whether an investigation might be suspended at any moment. Moreover, in further contrast to article 18 para. 2, there is no provision expressly authorizing the relevant Chamber to lift the suspension at the request of the Prosecutor pending a decision on the challenge. The possibility that a State might make a frivolous challenge to an investigation within this period is likely to encourage the Prosecutor to gather as much information as possible during the preliminary examination if he or she considers that there is a serious risk that the territorial State or another State might take this step¹⁷⁷. Of course, the adverse impact of a suspension on the investigation will encourage the relevant Chamber to reach a decision as quickly as possible on any challenges¹⁷⁸. The use of the word ‘suspend’, rather than ‘defer’, as in article 18 paras. 2 and 6, does not seem to have any significance (see discussion of article 19 para. 11, margin Nos. 69–70 below)¹⁷⁹.

- 55 The restrictive impact of this paragraph is mitigated in at least five significant respects. First, since article 17 addresses only admissibility, not jurisdiction, it is clear that any State challenge limited to jurisdiction¹⁸⁰ would not require the Prosecutor to suspend the investigation. Any other reading would mean that the Prosecutor would have to suspend the investigation until the Court makes a determination in accordance with article 17 – in effect indefinitely, since the Court would not be considering the question of admissibility (unless it did so on its own motion). The distinction can be explained, as governments would be more concerned with suspending an investigation that would be seen as disrupting past or current proceedings in their own courts than an investigation where the State had not taken any action. In any event, it is likely that in many cases where a State challenges the jurisdiction of the Court it would also challenge the admissibility of the case (unless it was seeking to delay the investigation or prosecution by successive frivolous challenges as noted above). Second, State challenges to jurisdiction or to admissibility do not require the Pre-Trial Chamber to suspend any investigative measures that it is taking on its own initiative pursuant to article 56 para. 3 relating to a unique investigative opportunity, since paragraph 7 expressly applies only to the Prosecutor¹⁸¹.

¹⁷⁵ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-480, Decision on the Request for Suspensive Effect and the Request to File a Consolidated Reply, Appeals Chamber, 22 Nov. 2013, para. 16.

¹⁷⁶ For the Court’s jurisprudence on the meaning of ‘at the earliest opportunity’, see the above commentary to article 19 para. 5.

¹⁷⁷ Too much reliance on the sentiment that other non-territorial States might file a challenge, however, would be misplaced. As of 31 May 2015 only three States – Kenya, Libya and Côte d’Ivoire – have challenged the admissibility of cases before the Court and in all of these instances they were the same situation States from which the cases had arisen. That is, every admissibility challenge that has been lodged with the Court has come from territorial States.

¹⁷⁸ See *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-547-Red, Judgment on the Appeal of Libya Against the Decision of Pre-Trial Chamber I of 31 May 2013 entitled ‘Decision on the Admissibility of the Case Against Saif Al-Islam Gaddafi’, Appeals Chamber, 21 May 2014, para. 166.

¹⁷⁹ The drafting history of articles 18 and 19 suggests that terms like ‘suspend’ and ‘defer’ were used interchangeably or without any significant differences in meaning. For example, the term ‘suspend’ was first used before the first draft of article 19 or before the much later draft of article 18 was tabled. During the *Ad Hoc* Committee discussion in 1995 about the procedure for determining jurisdiction and admissibility, it was suggested that ‘if a case was being investigated or was pending before a national court, the international criminal court should suspend the exercise of its jurisdiction, even though it might subsequently resume consideration of the case in accordance with article 42 of the draft statute’. *Ad Hoc* Committee Report, para. 51 (the rest of the reported discussion dealt primarily with substantive issues of admissibility and jurisdiction, see paras. 29–52). It could be argued that the word ‘defer’ refers to leaving a crime to the State to investigate and prosecute and that ‘suspend’ means dropping an investigation without the State taking any further action. However, the word ‘defer’ is used in article 18 to apply both when the challenging State ‘is investigating’ and when it ‘has investigated’ a crime and then closed the investigation without any intent to continue proceedings.

¹⁸⁰ As of 31 May 2015, no State has filed a challenge relating to the jurisdiction of the Court in any case.

¹⁸¹ Article 56 para. 1 provides that the Pre-Trial Chamber may authorize the Prosecutor to ‘take such measures as may be necessary to ensure the efficiency and integrity of the proceedings’. However, article 56 para. 3

Third, paragraph 8 (discussed below) permits the Prosecutor to seek permission from the Court to pursue a number of investigative steps pending a decision on admissibility. Fourth, challenges by the individual concerned do not require the Prosecutor to suspend an investigation. Fifth, suspension applies only to investigations, not prosecutions. As Pre-Trial Chamber II has stated, 'under the Court's statutory framework, lodging an admissibility challenge only results in the suspension of the Prosecutor's investigation related to the case'. It does not stop the judicial proceedings before the Court¹⁸². A late challenge once a prosecution has begun would not suspend such a prosecution¹⁸³.

VIII. Paragraph 8: Permitted steps

If a State has made a timely challenge to *admissibility*, thus forcing the Prosecutor under paragraph 7 to suspend an investigation, paragraph 8, which was introduced at the Diplomatic Conference, expressly authorizes the Prosecutor, '[p]ending a ruling by the Court' to 'seek authority from the Court' to continue to take the three types of significant investigative measures described below¹⁸⁴ (as demonstrated above, a challenge to *jurisdiction* does not require the Prosecutor to suspend an investigation). In marked contrast to the somewhat similar safeguard provision in article 18 para. 6 with respect to admissibility challenges, paragraph 8 does not limit the Prosecutor by requiring that he or she seek such measures only 'on an exceptional basis'. This suggests that the granting of an article 19 para. 8 request is a less onerous affair than under article 18 para. 6¹⁸⁵. In addition, paragraph 8 is an exception to a State's ability to postpone requests under Part IX of the *Statute* as per article 95. The *Rules* provide that the application by the Prosecutor shall be considered *ex*

provides that when the Prosecutor has failed to seek to take such measures and the Pre-Trial Chamber determines that 'such measures are required to preserve evidence that it deems would be essential for the defence at trial' and that the Prosecutor's failure is 'unjustified', 'the Pre-Trial Chamber may take such measures on its own initiative'. Had the drafters intended that a State's challenge would require suspension of measures that were 'required to preserve evidence that [...] would be essential for the defence at trial', they would have said so. It would be inconsistent with the scheme of article 19 para. 8, which is designed to permit the Prosecutor to take essential investigative steps during the suspension of an investigation pending a determination of a State challenge, to require a suspension of measures that the Pre-Trial Chamber had determined were essential and that the Prosecutor's refusal to undertake them was 'unjustified'. The measures that the Pre-Trial Chamber can take under article 56 para. 3 are not limited simply to measures safeguarding the rights of the defence during activities of the Prosecutor; they expressly include under article 56 para. 2(f), 'such other action as may be necessary to collect or preserve evidence'. As explained in the First Edition of this Commentary, this provision is 'an open-ended clause that empowers the Pre-Trial Chamber to create new measures or to expand the existing ones'.

¹⁸² *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-62, Decision on the 'Prosecution's Application Requesting Disclosure After a Final Resolution of the Government of Kenya's Admissibility Challenge' and Establishing a Calendar for Disclosure Between the Parties, Pre-Trial Chamber II, 20 Apr. 2011, paras. 8–9; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-64, Decision on the 'Prosecution's Application Requesting Disclosure After a Final Resolution of the Government of Kenya's Admissibility Challenge' and Establishing a Calendar for Disclosure Between the Parties, Pre-Trial Chamber II, 20 Apr. 2011, paras. 8–9.

¹⁸³ The moment when a prosecution begins is not spelled out in the *Rome Statute*, but since a suspect becomes an accused upon the confirmation of charges (see *supra* notes 80, 81), once that occurs any challenge cannot stop the subsequent prosecution and the proceedings before the Court.

¹⁸⁴ See *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-62, Decision on the 'Prosecution's Application Requesting Disclosure After a Final Resolution of the Government of Kenya's Admissibility Challenge' and Establishing a Calendar for Disclosure Between the Parties, Pre-Trial Chamber II, 20 Apr. 2011, paras. 8, 19; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-64, Decision on the 'Prosecution's Application Requesting Disclosure After a Final Resolution of the Government of Kenya's Admissibility Challenge' and Establishing a Calendar for Disclosure Between the Parties, Pre-Trial Chamber II, 20 Apr. 2011, paras. 8, 19.

¹⁸⁵ But note the view of one Pre-Trial Chamber that appears to suggest (erroneously) that the 'exceptional' criterion applies in both circumstances: *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-163, Decision on the Postponement of the Execution of the Request for Surrender of Saif Al-Islam Gaddafi Pursuant to Article 95 of the Rome Statute, Pre-Trial Chamber I, 1 Jun. 2012, para. 34 (emphasis added): 'the Prosecutor may be *exceptionally* authorised to collect [evidence] pursuant to articles 18(6) and 19(8)(a) and (b) of the Statute'.

parte, in camera and on an expedited basis¹⁸⁶. The evidence collected pursuant to such an application is liable to disclosure to the Defence¹⁸⁷.

57 In the first edition of this Commentary it was stated that, given the possibilities for delay, it was to be hoped that the Pre-Trial or Trial Chamber would decide admissibility challenges under articles 18 and 19 as a matter of priority and that the *Rules* would facilitate the rapid resolution of such challenges. The *Rules*, however, do not do so directly, but do go part way to addressing the problems that result from suspensions of investigations pending a determination of admissibility. First, they require that the Pre-Trial Chamber must rule on the application by the Prosecutor to take investigative steps pursuant to paragraph 8 ‘on an expedited basis’ (rules 61 and 57)¹⁸⁸. Second, the *Rules* permit the relevant Chamber to set time limits for the submission of written observations (rule 58 sub-rule 3) and representations (rule 59 sub-rule 3). Third, they provide that appeals, including appeals of article 19 determinations, ‘shall be heard as expeditiously as possible’ (rule 156 sub-rule 4). However, they do not expressly require that decisions on admissibility challenges or questions by the Pre-Trial or Trial Chamber under article 19 must be reached expeditiously¹⁸⁹.

58 Although paragraph 8 expressly authorizes the Prosecutor to seek three specified measures, the Prosecutor may have an inherent right to seek authority from the relevant Chamber to take additional measures not expressly listed in this paragraph which are necessary to preserve the Court’s jurisdiction or its ability to render a fair decision¹⁹⁰. In deciding whether to grant the Prosecutor’s request for authorization to take steps under paragraph 8, the relevant Chamber should bear in mind that delays in investigations are almost always detrimental to justice from the perspectives of the victims, the suspects and the accused. Here it is also relevant to note that investigations that are undertaken after charges are confirmed would also cease. To address these concerns in a manner consistent with the object and purpose of the *Rome Statute*, the relevant Chamber should give an expansive interpretation of the scope of the measures that can be taken by the Prosecutor. Further, it should attempt to resolve the challenge as expeditiously as possible so as to minimize the harm to the investigation necessarily caused by a suspension. A speedy determination will enable the Prosecutor to continue the investigation with minimal damage if the challenge is

¹⁸⁶ Rule 61 provides that when the Prosecutor applies to the relevant Chamber to take measures pursuant to paragraph 8, rule 57 applies. That rule states that ‘[a]n application to the Pre-Trial Chamber in the circumstances provided for in article 18 para. 6, shall be considered *ex parte* and *in camera*. The Pre-Trial Chamber shall rule on the application on an expedited basis’. Pursuant to regulation 38 sub-regulation 2(c) the application is limited to no more than 50 pages in length unless otherwise ordered.

¹⁸⁷ See *Prosecutor v. Ruto et al.*, ICC-01/09-01/11-62, Decision on the ‘Prosecution’s Application Requesting Disclosure After a Final Resolution of the Government of Kenya’s Admissibility Challenge’ and Establishing a Calendar for Disclosure Between the Parties, Pre-Trial Chamber II, 20 Apr. 2011, para. 19; *Prosecutor v. Muthaura et al.*, ICC-01/09-02/11-64, Decision on the ‘Prosecution’s Application Requesting Disclosure After a Final Resolution of the Government of Kenya’s Admissibility Challenge’ and Establishing a Calendar for Disclosure Between the Parties, Pre-Trial Chamber II, 20 Apr. 2011, para. 19.

¹⁸⁸ A French proposal to require that the Chamber rule within three days was rejected on the ground that it would be better to leave flexibility to the Chamber and to avoid having an application fail because the time limit was not met. Holmes, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 321, 344.

¹⁸⁹ A key participant in the drafting of the *Rome Statute* and the *Rules* has claimed that ‘[t]he procedures at the jurisdiction and admissibility stage are intended to be expedited ones, and this objective is reflected in the *Rules*’. See Holmes, *Jurisdiction and Admissibility*, in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 348. However, this intent is not always expressly stated in the *Rome Statute* or the *Rules* and it is up to the relevant Chamber to ensure that challenges to jurisdiction and admissibility are resolved as expeditiously as possible to prevent a series of frivolous challenges by States from delaying proceedings.

¹⁹⁰ In addition, as with regard to deferrals at the request of the Security Council pursuant to article 16, the Prosecutor may have the same power, as explained in the First Edition of this Commentary in the comment on that article (see margin No. 27), to apply article 54 para. 3(f) ‘to take steps for the necessary preservation of evidence’.

rejected and will enable the State to further continue with its investigation or prosecution as rapidly as possible if the challenge is successful¹⁹¹.

1. Necessity

The Court (Pre-Trial or Trial Chamber) may authorize the Prosecutor '[t]o pursue necessary 59 investigative steps of the kind referred to in article 18, paragraph 6'. However, the power of the Prosecutor to take investigative steps during a suspension of an investigation pursuant to article 19 para. 8(a) is considerably greater than under article 18 para. 6¹⁹². First, under article 18 para. 6 the Prosecutor may only seek authority from the Pre-Trial Chamber or Trial Chamber to take investigative steps 'on an exceptional basis'; article 19 para. 8 contains no such limitation and so the Prosecutor may seek authority to pursue such steps whenever he or she has to suspend an investigation pending determination of a State's challenge to admissibility. Second, since paragraph 8(a) speaks of 'investigative steps of the kind referred to in article 18 para. 6' rather than 'the same investigative steps' referred to in that provision, the steps identified in this subparagraph could be seen as broader than those in article 18 para. 6. Third, the necessary investigative steps identified in article 18 para. 6, are subject to two conditions that, significantly, have been omitted in article 19 para. 8(a). Those measures under article 18 para. 6 must be either: 'for the purpose of preserving evidence where there is a unique opportunity to obtain important evidence or there is a significant risk that such evidence may not be subsequently available'. Although these conditions are similar to those listed in article 56 para. 1 (which spells out the role of the Pre-Trial Chamber with respect to a unique investigative opportunity), they are not identical, and should be seen as an independent basis for the Prosecutor – as opposed to the Pre-Trial Chamber – to act¹⁹³. The broad wording of article 19 para. 8(a), together with the powers identified in subparagraphs (b) and (c), suggest that the Prosecutor is authorized to use most of the powers which he or she would have under article 54 and other articles to continue the investigation during a suspension pending a determination on the admissibility of a case¹⁹⁴.

2. Taking statements and completing prior steps

The Court (Pre-Trial or Trial Chamber) may also authorize the Prosecutor '[t]o take a 60 statement or testimony from a witness or complete the collection and examination of evidence which had begun prior to the making of the challenge'. As in subparagraph (a), there is no requirement in subparagraph (b) that there be a unique investigative opportunity or a significant risk that evidence will be unobtainable. Given the separation by the word 'or', the Prosecutor appears authorized to take a statement or testimony from a witness at *any time*, even if the statement or testimony did not begin before the challenge. When the Prosecutor is relying only on subparagraph (b), the completion of the collection and

¹⁹¹ It should be emphasised that an admissibility challenge does not affect a State's sovereign right to undertake its own investigation and prosecution: *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-480, Decision on the Request for Suspensive Effect and the Request to File a Consolidated Reply, Appeals Chamber, 22 Nov. 2013, para. 16.

¹⁹² The provision of broader powers to the Prosecutor under article 19 para. 8 to take investigative steps during the suspension of an investigation than under article 18 para. 6 makes perfect sense since the relevant Chamber will not have the same option under article 19 to lift the suspension pending a determination of the admissibility challenge that it does under article 18 para. 2.

¹⁹³ Despite the similar wording, there are significant differences between the two provisions. The first condition in article 18 para. 6 is that there be a unique opportunity to obtain evidence, but that evidence must be 'important'; there is no such requirement in article 56 para. 1. The alternative condition in article 18 para. 6 is that there be a significant risk that evidence (which need not be 'important') may not be subsequently available; article 56 para. 1 requires that the information may not be available for trial, but without requiring that this unavailability be a significant risk.

¹⁹⁴ Indeed, it is difficult to envisage any of the powers that the Prosecutor has under article 54 para. 2 that he or she could not have under paragraph 7(a). The only requirement is that they be 'necessary', but that is implicit in the exercise of most powers.

examination of other types of evidence, however, must have *begun before* the challenge. Nevertheless, the investigative steps that the Prosecutor may take under subparagraph (a) are so broad that they would necessarily include collection and examination of such other evidence and subparagraph (b). The purpose of subparagraph (b), which was added somewhat hastily in the later stages of the Rome Conference, along with the other safeguards in paragraph 7 and in article 18 para. 6, seems simply to be to clarify that the specific evidence it mentions can be collected by the Prosecutor. Since statements or testimony of a witness would normally be completed in a matter of hours or days, it is unlikely that a challenge would interrupt them. As it will not be known until the relevant stage of pre-trial proceedings or the trial whether a particular person will be called as a witness, the term ‘witness’ in the context of an investigation should be read broadly. This should include anyone who *might* be called to testify during the pre-trial proceedings or at trial, even if the Prosecutor *does not* call them. Additionally, persons who provide ‘written or oral testimony’ pursuant to article 15 para. 2 and persons whose testimony or statements lead to other persons who do testify or to relevant information which could be used at trial should also be encompassed¹⁹⁵.

- 61 To minimize the disruption of an investigation, which could be harmful to a prosecution by the Prosecutor or by a State, if the relevant Chamber upholds the admissibility challenge, the term ‘complete the collection and examination of evidence’ under this subparagraph should be given a broad reading. For example, if the Prosecutor has been able to excavate one grave site among many in a single massacre, the Prosecutor should be able to complete the excavation of all the grave sites where victims of that massacre might be located and to conduct forensic examinations of all the bodies. Since it will not be known until the relevant point in the pre-trial preparations or even the trial itself whether information that has been gathered and examined with the intention that it would be submitted as evidence will actually be submitted, this provision should be read to mean information that was being gathered and examined with the view to possible submission as evidence. A necessary corollary would be that the Prosecutor should be able to take any measures under this subparagraph, with the assistance of Court requests or orders if necessary, which are needed to protect such evidence pending the determination by the relevant Chamber whether the case is admissible or not. The potentially expensive and cumbersome deployment of protective and evidence-gathering measures, as well as the need to minimize disruption to victims and witnesses, calls for such an approach.

3. Preventing of the absconding of persons

- 62 The Prosecutor may also be authorized, ‘[i]n cooperation with the relevant States, to prevent the absconding of persons in respect of whom the Prosecutor has already requested a warrant of arrest under article 58’. The authorization under this subparagraph thus appears to apply even if the person absconded after an application, but before the arrest warrant could be issued¹⁹⁶. This express grant of authority is limited to persons for whom an *arrest warrant* has been requested under article 58 and does not cover persons for whom the Prosecutor requested only a *summons* to appear. The First and Second Edition of this Commentary speculated that it was likely that the Prosecutor would, as a precautionary measure, always request arrest warrants in the alternative, even when a summons might otherwise be appropriate (to ensure that effective measures could be taken during the suspension of the investigation if the person absconded). This has not come to pass in

¹⁹⁵ While the term ‘witness’ is not defined in the *Rome Statute* or in the *Rules*, a broad reading of the term with regard to paragraph 8 is consistent with the object and purpose of the *Statute* and paragraph 8 in particular.

¹⁹⁶ Since a State can only challenge a ‘case’ before the Court under article 19 (which suspends the Prosecutor’s investigation pursuant to article 19, para. 7 and triggers potential recourse to article 19 para. 8), this provision appears to suggest that a ‘case’ begins upon the Prosecutor’s *request* to the Pre-Trial Chamber to issue a warrant of arrest or summons to appear (otherwise the State would not be able to submit a challenge). Such a position would have to be reconciled with the Court’s existing jurisprudence that appears to indicate the contrary. See *supra* note 14.

practice¹⁹⁷. Nevertheless, should this be a concern for the Prosecutor, the Pre-Trial or Trial Chamber could issue a request to States Parties under article 87 para. 1(a) for cooperation and a request to States not Parties to the *Statute* under article 87 para. 5 to assist in locating the fugitive. While in a number of cases the request for an arrest warrant has been made confidentially and, although the relevant Chamber is not be able to request that the person concerned be arrested during its deliberation, it certainly can request that the person be located and subjected to surveillance or other measures short of arrest sufficient to ensure arrest as soon as it determines that the case is admissible and issues a warrant. All States Parties have an obligation under article 86 to ‘cooperate fully with the Court in its investigation and prosecution of crimes’ and this obligation would necessarily include an investigation which was continuing in a limited way pending a determination of an admissibility challenge.

Another reading of subparagraph (c) suggests that it can also potentially apply in cases where the relevant person is in State custody. This was raised during debates on whether Libya was obliged to hand over or retain the suspects in its custody during the duration of its admissibility challenges in the *Gaddafi and Al-Senussi* case. It is noteworthy that arrest warrants had in fact already been issued by the Court. Still, subparagraph (c) could be read to apply in such instances, since the Prosecutor would already have requested and obtained a warrant of arrest under article 58 as well. However, should a State wish to maintain a suspect in its custody while the Court considers its admissibility challenge, then the more appropriate approach would be to make use of article 95 to postpone such surrender¹⁹⁸ (at least during the initial consideration of the challenge by the Court¹⁹⁹). On the other hand, should the Prosecutor desire to have the suspect handed over to the Court, then he or she may overcome the article 95 postponement by invoking subparagraph (c).

IX. Paragraph 9: Acts of the Prosecutor or warrants not affected

Paragraph 9, which was introduced at the Diplomatic Conference, provides that ‘[t]he making of a challenge shall not affect the validity of any act performed by the Prosecutor or any order or warrant issued by the Court prior to the making of the challenge’. This means

¹⁹⁷ Indeed, the Prosecutor has only submitted one article 58 request where warrants of arrest were requested as an alternative to summonses to appear: *Prosecutor v. Harun and Abd-Al-Rahman (Kushayb)*, ICC-02/05-01/07-1-Corr, Decision on the Prosecution Application under Article 58(7) of the Statute, Pre-Trial Chamber I, 27 Apr. 2007, para. 110. In two other cases, the Prosecutor requested summonses to appear with no arrest warrants as alternatives (but reserved the right to recommend such action): *Situation in the Republic of Kenya*, ICC-01/09-01/09-30-Red2, Prosecutor’s Application Pursuant to Article 58 as to William Samoei Ruto, Henry Kiprono Kosgey and Joshua Arap Sang, Office of the Prosecutor, 15 Dec. 2010, paras. 218, 220, 223; *Situation in the Republic of Kenya*, ICC-01/09-31-Red, Prosecutor’s Application Pursuant to Article 58 as to Francis Kirimi Muthaura, Uhuru Muigai Kenyatta and Mohammed Hussein Ali, Office of the Prosecutor, 15 Dec. 201, paras. 207, 209, 212. Further, the Prosecutor has submitted two other article 58 requests where summonses to appear were requested as alternative to arrest warrants: *Prosecutor v. Abu Garda*, ICC-02/05-02/09-15-Anx A, Decision on the Prosecutor’s Application under Article 58, Pre-Trial Chamber I, 7 May 2009, para. 30 (but subsequently submitted that a summons to appear would be sufficient); *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-1, Second Decision on the Prosecutor’s Application under Article 58, Pre-Trial Chamber I, 27 Aug. 2009, para. 33 (but subsequently submitted that a summons to appear would be sufficient). For all other accused, the Prosecutor has submitted requests for warrants of arrest alone.

¹⁹⁸ See *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-163, Decision on the Postponement of the Execution of the Request for Surrender of Saif Al-Islam Gaddafi Pursuant to Article 95 of the Rome Statute, Pre-Trial Chamber I, 1 Jun. 2012, paras. 23–41; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-354, Decision on Libya’s Postponement of the Execution of the Request for Arrest and Surrender of Abdullah Al-Senussi Pursuant to Article 95 of the Rome Statute and related Defence Request to Refer Libya to the UN Security Council, Pre-Trial Chamber I, 14 Jun. 2013, paras. 18–40; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-15, Decision on the Conduct of the Proceedings Following Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 15 Nov. 2013, paras. 16–19.

¹⁹⁹ The Appeals Chamber has held that Article 95 does not apply to the appellate phase of admissibility challenges: *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, para. 27.

that a prior order or warrant (issued before the challenge), including a warrant based on a sealed application, can still be executed after the challenge, thus preventing uncooperative States – which could include States not Parties to the *Statute* – from frustrating the investigation and obstructing international justice. However, it should be noted in this context that a State which would otherwise be obligated to hand over a suspect on the basis of an arrest warrant may rely on article 95 of the *Statute* to request for the postponement of its execution. Nevertheless, as the Pre-Trial Chamber has stated:

‘[T]he arrest warrant remains valid in accordance with article 19(9) of the *Statute*, and accordingly [the relevant State] must ensure that all necessary measures are taken during the postponement in order to ensure the possibility of an immediate execution [...] should the case be found admissible’²⁰⁰.

The obligation to surrender is reactivated where the Pre-Trial or Trial Chamber rules that a case is admissible²⁰¹. It is also noteworthy in this regard that article 95 does not apply to appellate proceedings²⁰². For the reasons noted above, this paragraph encourages the Prosecutor to take actions and seek orders and arrest warrants at the earliest possible time.

X. Paragraph 10: New facts for review

- 65 Paragraph 10 provides that the Prosecutor may seek a review of a decision that a case is *inadmissible* under article 17 when ‘he or she is fully satisfied that new facts have arisen which negate the basis on which the case had previously been found inadmissible’²⁰³. ‘Thus, [article 19 para. 10] is clear evidence that the *Statute* assumes that the factual situation on the basis of which the admissibility of a case is established is not necessarily static, but ambulatory’²⁰⁴. In the absence of paragraph 10, the Prosecutor would have been able to seek a new ruling on the ‘question of [...] admissibility’ pursuant to article 19 para. 3, which does not restrict the time or number of such requests. Under general principles of law (see margin No. 15 above), the Prosecutor would have the burden of proof under paragraph 10 to demonstrate admissibility, unless the relevant information is exclusively or largely within the control of the State or

²⁰⁰ *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-163, Decision on the Postponement of the Execution of the Request for Surrender of Saif Al-Islam Gaddafi Pursuant to Article 95 of the Rome Statute, Pre-Trial Chamber I, 1 Jun. 2012, para. 40. See also *Prosecutor v. Gaddafi and Al-Senussi*, Decision on the ‘Urgent Application on Behalf of Abdullah Al-Senussi for Pre-Trial Chamber to Order the Libyan Authorities to Comply with their Obligations and the Orders of the ICC’, Pre-Trial Chamber I, 6 Feb. 2013, para. 29; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-354, Decision on Libya’s Postponement of the Execution of the Request for Arrest and Surrender of Abdullah Al-Senussi Pursuant to Article 95 of the Rome Statute and related Defence Request to Refer Libya to the UN Security Council, Pre-Trial Chamber I, 14 Jun. 2013, para. 40; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-15, Decision on the Conduct of the Proceedings Following Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 15 Nov. 2013, para. 19.

²⁰¹ See *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-47-Red, Decision on Côte d’Ivoire’s Challenge to the Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 11 Dec. 2014, para. 80.

²⁰² *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-387, Decision on the Request for Suspensive Effect and Related Issues, Appeals Chamber, 18 Jul. 2013, para. 27.

²⁰³ This provision appears to have originated in a French proposal regarding articles 34 and 35 of the ILC Draft *Statute* included in the Preparatory Committee’s 1996 compilation of proposals. That proposal provided that if the Court had determined that a case was inadmissible, ‘the Prosecutor of the Court may, if new facts arise, submit a request to the Court for a review of the decision of inadmissibility’. 1996 Preparatory Committee II, p. 161. At its Dec. 1997 session, the Preparatory Committee included article 35 para. 5 (in brackets) which read: ‘If the Court has decided that a case is inadmissible pursuant to article 35, the Prosecutor, may, at any time, submit a request for a review of the decision, on the grounds that conditions required under article 35 to render the case inadmissible no longer exist or that new facts arose’. Preparatory Committee Decisions Dec. 1997, p. 37. Apart from renumbering the references to what is now article 17, this formulation was retained without change in article 12 para. 5 [36] (Challenges to the jurisdiction of the Court or the admissibility of a case) of the Zutphen Draft and article 17 para. 6 of the New York Draft.

²⁰⁴ *Prosecutor v. Katanga and Ngudjolo*, ICC-01/04-01/07-1497, Judgment on the Appeal of Mr. Germain Katanga Against the Oral Decision of Trial Chamber II of 12 June 2009 on the Admissibility of the Case, Appeals Chamber, 25 Sep. 2009, para. 56. See also *Prosecutor v. Kony et al.*, ICC-02/04-01/05-377, Decision on Admissibility of the Case under Article 19(1) of the *Statute*, Pre-Trial Chamber II, 10. Mar. 2009, para. 27.

person concerned²⁰⁵. Rule 62 sub-rule 1 provides that the request for review is to be made to the Chamber that made the latest ruling on inadmissibility and that rules 58, 59 and 61 – those that concern proceedings under article 19 generally – will apply. Pursuant to those rules, the Prosecutor's request must be in writing and must contain the basis for it. The relevant Chamber will have a wide discretion as to the modalities of the proceedings and may hold a hearing. One matter that is left uncertain is whether Rule 62 sub-rule 1 also requires the Prosecutor to approach the Appeals Chamber directly should it have issued a final ruling that a case was inadmissible before the Court. A plain reading would suggest that that is indeed the case. However, this would entail the Appeals Chamber engaging in factual determinations that is not normally its function, which in turn would complicate appeals proceedings after a decision is rendered. Therefore, the more sensible and proper course would be for the Prosecutor to approach either the Pre-Trial or Trial Chamber, depending on the stage of proceedings at which the case sits at the relevant time²⁰⁶. Rule 62 sub-rule 2 requires notification to the State or States that made the successful challenge and permits them to make representations within a time limit to be determined, presumably by the relevant Chamber. This would appear to exclude the person concerned as well as victims. However, since rules 58 and 59 are also applicable, it would be within the Chamber's power to allow their views to be heard after being informed of the proceedings.

Although paragraph 10 is inelegantly worded, it appears to impose three requirements. 66
First, the Prosecutor be fully satisfied – largely a subjective test – that the other two requirements have been met. *Second*, it requires that 'new facts have arisen'. A comparison with the French text, which requires that the Prosecutor be certain that '*des faits nouvelle-ment apparus*' (facts newly appeared), and the Spanish text, which requires that the Prosecutor be fully convinced '*de que han aparecido nuevos hechos*' (that new facts have appeared)", suggests that this means that the facts *became known after* the initial decision rather than that the facts *had to have occurred since* the initial decision²⁰⁷. This would be consistent with the approach taken with respect to reviews of convictions and sentences under article 84 para. 1 ('[n]ew evidence has been discovered'). *Third*, these new facts must 'negate the basis on which the case had been previously found inadmissible'. The standard of proof should, at the very least, be higher than that for admissibility determinations under article 19 para. 1, as the Prosecutor must not only be satisfied that that new facts have arisen, but must be *fully satisfied*²⁰⁸.

There is no provision in paragraph 10 expressly authorizing the Prosecutor to seek review 67
of a decision by the Court that it had *no jurisdiction* over a case. Presumably, this omission

²⁰⁵ One authority on complementarity has contended that, although the Prosecutor normally would bear the burden of proof under article 10, that rule might have to be qualified. He argues that Part IX (International cooperation and judicial assistance) of the *Rome Statute* would not apply once the investigation which had been opened was then suspended and that, therefore, States (which would include States Parties) were under no obligation to respond positively to requests pursuant to article 19 para. 11: Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 227–228 (for the argument that an obligation to cooperate fully with the Court in its investigations applies to investigations in suspension, see discussion of article 19 para. 11, *mn* 69–70 below).

²⁰⁶ But see El Zeidy, *The Principle of Complementarity in International Criminal Law* (2008) 272 (suggesting that rule 62 sub-rule 1 'leaves room for the Appeals Chamber to rule on a request based on the emergence of new facts').

²⁰⁷ Indeed, an Austrian proposal that was not accepted contained the following formulation: 'by an accused or any State concerned only upon production of new relevant facts'. 1996 Preparatory Committee II, p. 158.

²⁰⁸ Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 231. But see Safferling, *International Criminal Procedure* (2012) 212: '[t]he hurdle to be passed by the Prosecutor in order to reapply is rather high'. It has been asserted that 'the standard of 'fully satisfied' should also be higher than the standard of proof under article 19 para. 2, because the standard for a successful request for review under article 19 para. 10 should be more demanding than the one applicable to the earlier finding of inadmissibility, which such a request seeks to have reviewed'. Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 237. However, it must be borne in mind that the reason the Prosecutor is seeking such a review is because the new facts which have appeared may well have been concealed by the State or the person concerned.

was an oversight. Notwithstanding, nothing in the *Rome Statute* prevents the Prosecutor, if he or she discovered information after the initial decision which could not have been expected to be found at the time of the litigation – for example, when an uncooperative State concealed information or evidence – from seeking a new ruling on the question of jurisdiction. This could be achieved pursuant to article 19 para. 3, which contains no restriction on the time for making the request or the number of times that such a request may be made by the Prosecutor. Otherwise, States which concealed relevant evidence or information could frustrate the Court's exercise of jurisdiction. In any event, the Court is under an ongoing obligation under article 19 para. 1 to assure itself that it has jurisdiction over all cases before them. Thus, it may be enough for the Prosecutor to simply call to the Court's attention new facts or matters that will trigger this obligation and invite it to make a ruling on jurisdiction *proprio motu*²⁰⁹.

- 68 As of 31 May 2015, there has been only one instance where a case has been held to be inadmissible by the Court (and upheld on appeal) (relating to the suspect Al-Senussi), and it was noted that the Prosecutor could seek a review of this decision pursuant to paragraph 10²¹⁰. The Prosecutor has to date not filed a paragraph 10 review request. As such, the Court is yet to be afforded the opportunity to explore this provision's intricacies and application.

XI. Paragraph 11: Information after a deferral

- 69 If the Prosecutor defers an investigation based on article 17 (concerning admissibility), then paragraph 11, permits him or her to request 'information on the proceedings' from the relevant State. Paragraph 11 has several sources²¹¹. The scope of the information which can be requested under this provision appears to be more focused than the information expressly required to be provided under article 18 para. 5, which relates to 'the progress of [the State's]

²⁰⁹ This would be similar to the practice of the Defence in the *Banda and Jerbo* case whereby it merely informed the Court of the reported death of their client (Jerbo) (rather than file a jurisdictional challenge), after which the Court noted article 19, para. 1 in terminating the proceedings: *Prosecutor v. Banda and Jerbo*, ICC-02/05-03/09-512-Red, Decision Terminating the Proceedings Against Mr. Jerbo, Trial Chamber IV, 4 Oct. 2013, para. 16.

²¹⁰ See *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-466-Red, Decision on the Admissibility of the Case Against Abdullah Al-Senussi, Pre-Trial Chamber I, 11 Oct. 2013, para. 312; *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-565, Judgment on the Appeal of Mr Abdullah Al-Senussi Against the Decision of Pre-Trial Chamber I of 11 October 2013 entitled 'Decision on Admissibility of the Case Against Abdullah Al-Senussi', Appeals Chamber, 24 Jul. 2014, para. 201. See also *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-567, Decision Following the Declaration of Inadmissibility of the Case Against Abdullah Al-Senussi before the Court, Pre-Trial Chamber I, 7 Aug. 2014, para. 6.

²¹¹ This provision appears to have originated in a French proposal in the Preparatory Committee in 1996 regarding article 36 (Procedure under articles 34 and 35) of the ILC Draft Statute. It provided, first, in paragraph 5, that, '[i]n every case, the State or person challenging a submission to the Court under paragraph 2 of this article [providing for challenges by a State party wishing to prosecute the same case] shall provide all information concerning the conduct of the investigations and the judicial procedures which may support a finding of inadmissibility in the case submitted to the Court'. Second, in paragraph 6, that if the Court determined provisionally that a case was inadmissible on the ground of article 35 para. (a) [that the case had been properly investigated], then 'the Prosecutor may question the State proceeding with the prosecution as to the status of the investigation and the action that will be taken on it'. 1996 Preparatory Committee II, p. 161.

The Preparatory Committee did not include such a provision in articles 34, 35 or 36, dealing with challenges to jurisdiction and admissibility, but included something similar in provisions governing the initiation and deferral of investigations. At the Aug. 1997 session of the Preparatory Committee, a somewhat similar provision was included in article 26bis para. (a), which supplemented article 26 (Investigation of alleged crimes) of the ILC Draft Statute. This provision stated:

'In the event that the Prosecutor defers investigation on the ground that a State is proceeding with a national investigation, then the Prosecutor may request that the relevant State make available to the Prosecutor, either periodically or on a reasonable request, a report on the progress of its investigation, which shall be confidential to the extent necessary. The Prosecutor shall notify the complainant State of the decision to defer to a State and shall notify the complainant State of any known outcome of such national investigation or prosecution'. Preparatory Committee Decisions Aug. 1997, p. 19. At its Dec. 1997 session, the Preparatory Committee included a similar provision in article 26ter (Deferral of an investigation by the Prosecutor). That article provided:

investigations and any subsequent prosecutions'. This makes sense since the Prosecutor would be seeking information concerning an individual case, rather than a situation²¹². Even though paragraph 11 does not expressly require a State to respond to the Prosecutor's request for information 'without undue delay', as in article 18 para. 5, if that State is a State Party to the *Statute*, it has an implicit obligation to respond positively and without undue delay. It would have made no sense to provide that the Prosecutor may request a State to make available information on the proceedings and yet exempt a State Party of any obligation to comply or to comply promptly. This provision would trigger the obligation of States Parties under article 26 of the Vienna Convention on the Law of Treaties and customary international law to comply with the request in good faith²¹³. However, save in the case of a Security Council referral (depending on the wording of the relevant resolution), a State that is not a State Party would not be under an obligation under the *Statute* to cooperate with the Court, but could nonetheless be approached pursuant to article 87 para. 5. Such information is essential for the Prosecutor to make an informed determination as to whether to continue the deferral.

The Prosecutor has a duty to keep the information confidential at the request of the investigating State so that the State's investigation is not undermined by the release of sensitive information, such as sealed indictments. Presumably, the Prosecutor could share this information with the other organs of the Court. The Prosecutor also has a duty to inform the investigating State if he or she resumes the investigation. It is not entirely clear whether paragraph 11 addresses only a *voluntary deferral* by the Prosecutor of an investigation based on an assessment that the factors listed in article 17 exist, or also a *suspension of an investigation pursuant to paragraph 7* after an admissibility challenge. In this context, it should be recalled that the provisions authorizing the Prosecutor to request States to provide information concerning their investigations and prosecutions, which were largely disconnected from the provisions that became articles 18 and 19, were drafted and adopted in haste during the closing days of the Diplomatic Conference. Given this fact, it is quite possible that the deferral mentioned in paragraph 11 was also intended to cover suspensions pursuant to article 19 para. 7. Such an interpretation would be consistent with the roughly parallel structure of articles 18 and 19 and the object and purpose of the *Statute*. It would not make sense to authorize the Prosecutor to seek such information from States only in mandatory deferrals under article 18 and when the Prosecutor voluntarily deferred an investigation

¹ In the event that the Prosecutor, having regard to the matters in article 35, defers an investigation, the Prosecutor [may request that] [may seek an order of the Court that] the relevant State shall make available to the [Prosecutor] [Court] information on the proceedings.

2. Any information so provided will, to the extent necessary, be kept confidential.

3. If the Prosecutor thereafter decides to proceed with an investigation, he or she shall notify the State in respect of whose proceedings deferral has taken place¹.

Preparatory Committee Decisions Dec. 1997, p. 27. In addition, at this session the Preparatory Committee included a completely different provision (subsequently abandoned) in article 26*bis*, which imposed a requirement on States Parties to keep the Prosecutor informed of all investigations and prosecutions of crimes within the Court's jurisdiction, permitted the Prosecutor to act on the basis of that information and then required States Parties to keep the Prosecutor regularly informed about national prosecutions of such crimes. *Id.*, p. 26. The formulations in articles 26*ter* and 26*bis* were retained respectively and without change in article 49 and article 48 of the Zutphen Draft and articles 56 and 55 of the New York Draft.

²¹² But see El Zeidy, *The Principle Of Complementarity In International Criminal Law* (2008) 273, who argues that, *inter alia*, '[t]he fact that the required information is related to a case stage does not necessarily mean that the scope of information required under Article 19(11) is broader than that under Article 18(5), as this will depend on the circumstances of each situation and case'.

²¹³ A State Party also has a duty to cooperate with the Court under article 86, which necessarily incorporates a good faith obligation to respond without delay. The request is directly related to an investigation, albeit one that has been temporarily suspended, since the information requested is necessary to determine whether the provisionally suspended investigation, while investigative steps pursuant to paragraph 8 could be taking place, should remain in suspension or be resumed. But see Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 212, who contends that under paragraph 11 'a State [including a State party] would seem to be under no obligation to respond positively to request(s) to make available information on its domestic proceedings'.

under article 19, but not when there was a mandatory suspension of an investigation pursuant to article 19 para. 7. Such a situation would be particularly odd given that the Prosecutor could be authorized to take far more intrusive investigative steps under paragraph 8. In any event, the Prosecutor, the Pre-Trial Chamber or the Trial Chamber could request States, during an article 18 para. 2 deferral or an article 19 para. 7 suspension, to cooperate with the Court by providing information on the proceedings²¹⁴. This approach ensures that the appropriate Chamber can make an informed decision on admissibility with respect to the investigation based on all the relevant evidence and information²¹⁵.

²¹⁴ See for example *Prosecutor v. Gaddafi and Al-Senussi*, ICC-01/11-01/11-239, Decision Requesting Further Submissions on Issues Related to the Admissibility of the Case Against Saif Al-Islam Gaddafi, Pre-Trial Chamber I, 7 Dec. 2012; *Prosecutor v. S. Gbagbo*, ICC-02/11-01/12-44, Decision on Further Submissions on Issues Related to be Admissibility of the Case Against Simone Gbagbo, Pre-Trial Chamber I, 28 Aug. 2014.

²¹⁵ An authority on complementarity has argued that 'it appears reasonable to allow inferences in favour of admissibility to be drawn when States fail entirely to respond to requests of the Prosecutor to furnish information on their proceedings in accordance with Article [...] 19 (11), or to provide information, which is incomplete or too unspecific to assess admissibility'. He further suggests the converse is true when 'a State is forthcoming with comprehensive information or even invites the OTP to attend the domestic proceedings, etc.'. Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions* (2007) 229. However, while the first approach is an excellent way to constrain States from preventing a determination that a case is admissible (on that approach, see also Stigen, *The Relationship Between the International Criminal Court and National Jurisdictions: The Principle of Complementarity* (2008) 178), the willingness of a State to provide information or access has no bearing on the question of whether it is able or willing to investigate. For example, as Amnesty International and other organizations conducting trial observations have frequently discovered, many States that provide information and access to courts conduct unfair trials.

Article 20

Ne bis in idem

1. Except as provided in this Statute, no person shall be tried before the Court with respect to conduct which formed the basis of crimes for which the person has been convicted or acquitted by the Court.

2. No person shall be tried by another court for a crime referred to in article 5 for which that person has already been convicted or acquitted by the Court.

3. No person who has been tried by another court for conduct also proscribed under article 6, 7, 8 or 8bis shall be tried by the Court with respect to the same conduct unless the proceedings in the other court:

- (a) Were for the purpose of shielding the person concerned from criminal responsibility for crimes within the jurisdiction of the Court; or
- (b) Otherwise were not conducted independently or impartially in accordance with the norms of due process recognized by international law and were conducted in a manner which, in the circumstances, was inconsistent with an intent to bring the person concerned to justice.

Literature: AIDP (ed), 'Resolution of Section IV Concurrent National and International Criminal jurisdiction and the Principle "Ne bis in idem"', adopted by the XVII. International Congress of Penal Law, 12–19 September 2004 in Beijing', (2004) 75 *RIDP* 802; Amar, A.R., 'Double Jeopardy Law Made Simple', (1997) 106 *YaleLJ* 1807; Bartsch, H.-J., 'Ne bis in idem: The European Perspective', (2002) 73 *RIDP* 1163; Bassiouni, M.C., *International Extradition and World Public Order*, iv (Oceana Publications 4th ed, 2002); Baum, L.M., 'Pursuing Justice in a Climate of Moral Outrage: An Evaluation of the Rights of the Accused in the Rome Statute of the International Criminal Court', (2001) 19 *WisconsinILJ* 197; Benzing, M. and Bergsmo, M., 'Some Tentative Remarks on the Relationship Between Internationalized Criminal Jurisdictions and the International Criminal Court', in: Romano C.P.R., Nollkamper, A. and Klefner, J.K. (eds), *Internationalized Criminal Courts* (OUP 2004) 407; Bernard, D., "'Ne Bis in Idem": Protector of Defendants' Rights or Jurisdictional Pointsman?', (2011) 9 *JICJ* 863; *id.*, *Juger et juger encore les crimes internationaux. Etude du principe ne bis in idem* (Larcier 2014); Biehler, A., Kniebühler, R., Lelieur-Fischer, J. and Stein, S. (eds), 'Freiburg Proposal on Concurrent Jurisdictions and the Prohibition of Multiple Prosecutions in the European Union' (2002) 73 *RIDP* 1185, available also at: <http://www.mpicc.de/shared/data/pdf/fa-ne-bis-in-idem.pdf> (accessed 1 September 2014); Birklbauer, A., 'Der Grundsatz "Ne bis in idem" in der Rechtsprechung europäischer Instanzen und die Auswirkung auf den Tatbegriff der öStPO', in: Moos, R., Jesionek, U. and Müller, O.F. (eds), *Strafprozessrecht im Wandel, Festschrift für Roland Miklau*, iii (StudienVerlag 2006) 45; Bogensberger, W., 'Die Anwendung des transnationalen Ne-bis-in-idem-Prinzips in Europa – and the Oscar for the development of standards goes to ... the Court', in: Moos, R., Jesionek, U. and Müller, O.F. (eds), *Strafprozessrecht im Wandel, Festschrift für Roland Miklau*, iii (StudienVerlag 2006) 91; Bohlander, M., 'Ne bis in idem', in: Bassiouni, M.C. (ed), *International Criminal Law* 541, iii (Nijhoff 2008); Burchard, C. and Brodowski, D., 'The Post-Lisbon Principle of Transnational Ne Bis in Idem: On the Relationship Between Article 50 Charter of Fundamental Rights and Article 54 Convention Implementing the Schengen Agreement: Case Note on District Court Aachen, Germany, (52 Ks 9/08 – 'Boere'), Decision of 8 December', (2010) 1 *NJECL* 310; Campanella, S., 'Il Ne bis in idem nella giustizia internazionale penale: riflessioni su un principio in itinere', in: Cassese, A., Chiavario, M. and De Francesco, G. (eds), *Problemi attuali della giustizia penale internazionale* (G. Giappichelli Editore 2005) 253; Carter, L.E., 'The Principle of Complementarity and the International Criminal Court: the Role of Ne Bis in Idem', (2010) 8 *SantaClaraJIL* 165; Conway, G., 'Ne Bis in Idem in International Law', (2003) 3 *ICLRev* 217; *id.*, 'Ne bis in idem and the International Criminal Tribunals', (2003) 14 *CLF* 351; Costa, J.E., 'Double Jeopardy and Non Bis in Idem: Principles of Fairness', (1998) 4 *University of California Davis JIL&Policy* 181; de la Cuesta, J.L., 'Concurrent National and International Criminal Jurisdiction and the Principle "ne bis in idem". General Report', (2002) 73 *RIDP* 707; Eicker, A., 'Der Grundsatz "ne bis in idem" – eine internationale menschenrechtliche Garantie?', in: Sutter, P. and Zelger, U. (eds), *30 Jahre EMRK-Beitritt der Schweiz: Erfahrungen und Perspektiven* (Stämpfli 2005) 105; El Zeidy, M.M., 'The Doctrine of double jeopardy in International Criminal and Human Rights Law', (2002) 6 *MediterraneanJHumRts* 183; *id.*, 'Some Remarks on the Question of the Admissibility of a Case during Arrest Warrant Proceedings before the International Criminal Court', (2006) 19 *LeidenJIL* 741; *id.*, 'The Principle of Complementarity: A New Machinery to Implement International Criminal Law', (2002) 23 *MichJIL* 869; Endriss, R. and Kinzig, J., 'Eine Straftat – zwei Strafen. Nachdenken über ein erweitertes "ne bis in idem"', (1997) *Strafverteidiger* 665; Epp, H., 'Der Grundsatz "ne bis in idem" im internationalen Rechtsbereich', (1979) *ÖJZ* 36; di Federico, G. (ed), *The EU Charter of Fundamental Rights: From Declaration to Binding Instrument* (Springer 2011); Eser, A., 'Non bis in idem', (1993) 11 *NEP* 48; Finlay, L., 'Does The International Criminal

Court Protect Against Double Jeopardy: An Analysis of Article 20 of the Rome Statute', (2012) 15 *University of California Davis JIL&Policy* 221; Henzelin, M., "'Ne bis in idem", un principe à géométrie variable', (2005) 123 *SchwZStR* 345; Friedland, M., *Double Jeopardy* (Clarendon Press 1969); Heugas-Darraspen, E., 'Article 20' in: Fernandez, J. and Pacreau, X. (eds), *Statut De Rome de la Cour Penale Internationale* (Pedone 2012) 749; Holmes, J.T., 'Complementarity: National Courts versus the ICC', in: Cassese, A., Gaeta, P. and Jones, J.R.W.D. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 673; Holmes, J.T., 'The Principle of Complementarity' in: Lee, R.S. (ed), *The International Criminal Court. Making of the Rome Statute* (Kluwer 1999) 41; Jung, H., "'Zur Internationalisierung" des Grundsatzes "ne bis in idem" in: Albrecht, P.A. et al. (eds), *Festschrift für Schüler-Springorum* (Heymann 1993) 499; Kielwein, G., 'Der Verbrauch der Strafklage im englischen Strafverfahren', (1956) *ZStW* 163; Kleffner, J.K. and Nollkaemper, A., 'The Relationship Between Internationalized Courts and National Courts', in: Romano, C.P.R., Nollkaemper, A. and Kleffner, J.K. (eds), *Internationalized Criminal Courts* (OUP 2004) 359; Kleffner, J.K., *Complementarity in the Rome Statute and National Criminal Jurisdictions*, (OUP 2008); Klip, A. and van der Wilt, H., 'National Report of the Netherlands', (2002) 73 *RIDP* 1091; Lagodny, O., 'Teileuropäisches "ne bis in idem" durch Art. 54 des Schengener Durchführungsübereinkommens (SDÜ)', (1997) *NStZ* 265; Lehouch, R.G., 'A Definition of Punishment for Implementing the Double Jeopardy Clause's Multiple-Punishment Prohibition', (1981) 90 *YaleLJ* 632; Law Commission of England and Wales (ed), *Double Jeopardy*, consultation paper No. 156 (1999), www.lawcom.gov.uk/wp-content/uploads/2015/03/lc267_Double_Jeopardy_Report.pdf (accessed 1 September 2014); Liebau, T., 'Ne bis in idem' in Europa (NWV 2005); Mansdörfer, M., *Das Prinzip ne bis in idem im europäischen Strafrecht* (Duncker & Humblot 2004); Mayer, M., *Ne-bis-in-idem-Wirkung europäischer Strafrechtsentscheidungen* (Peter Lang 1992); Morosin, M.N., 'Double Jeopardy and International Law: Obstacles to Formulating a General Principle', (1995) 64 *NordicJIL* 261; Muhammad, N., 'Due Process of Law for Persons Accused of Crime', in: Henkin, L. (ed), *The International Bill of Rights* (Columbia University Press 1981) 136; Neagu, N., 'The Ne Bis in Idem Principle in the Interpretation of European Courts: Towards Uniform Interpretation', (2012) 25 *LeidenJIL* 955; Neuhaus, R., *Der strafverfahrensrechtliche Tatbegriff – 'ne bis in idem'* (Bochum 1985); Olusanya, O., *Double Jeopardy Without Parameters: Re-characterization in International Criminal Law* (Intersentia 2004); Pralus, M., 'Étude en droit pénal internationale et en droit communautaire d'un aspect du principe non bis in idem: non bis', (1996) *RSC* 551; Pierini, JP, 'Il principio del ne bis in idem nello Statuto della Corte', in: Argiró, F. (ed), *La Corte Penale Internazionale: organi, competenza, reati, processo* (Milano 2006) 1361; Renaud, A., 'Nouveaux instruments contre la fraude et la principe: Ne bis in idem' (1996) 12 *Agon* 9; Roth, R., 'Non bis in idem transnational: vers de nouveaux paradigmes?', in: Braum, S and Weyembergh, A. (eds), *Le contrôle juridictionnel dans l'espace pénal européen = The judicial control in EU cooperation in criminal matters* (Parution 2009) 121; Scheschonka, E., *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das ISGH-Statut* (Lit-Verlag 2004); *id.*, 'Konkurrierende nationale und internationale Strafgerichtsbarkeit und der Grundsatz "Ne bis in idem"', in: Arnold J et al. (eds), *Festschrift für Albin Eser* (C.H. Beck 2005) 829; *id.*, 'Internationales "ne bis in idem" nach Art. 54 SDÜ', (1997) *StV* 383; *id.*, 'Strafrecht und Rechtshilfe im Geltungsbereich von Schengen II', (1995) *NJW* 1931; Schroeder, F.-C., 'Die Rechtsnatur des Grundsatzes "ne bis in idem"', (1997) *JuS* 227; Sedman, D., 'Article 20 ICCSt and the Principle of Ne bis in idem', in: Burchard, C., Triffterer, O. and Vogel, J. (eds), *The Review Conference and the Future of the International Criminal Court: Proceedings of the first AIDP Symposium for Young Penalists in Tübingen, Germany, co-organized by the AIDP YP Committee* (Wolters Kluwer/Carl Heymanns Verlag 2010) 277; Stein, S., *Zum europäischen ne bis in idem nach Artikel 54 des Schengener Durchführungsübereinkommens* (Peter Lang 2004); Specht, B., *Die zwischenstaatliche Geltung des Grundsatzes ne bis in idem* (Springer 1999); Spinellis, D., 'The ne bis in idem principle in "global" instruments', (2002) 73 *RIDP* 1149; Theofanis, R., 'The Doctrine of Res Judicata in International Criminal Law', (2003) 3 *ICLRev* 195; Van der Beken, T, Vermeulen, G. and Ongena, T, 'National Report of Belgium', (2002) 73 *RIDP* 811; Vervaele, J.A.E., 'The transnational ne bis in idem principle in the EU. Mutual recognition and equivalent protection of human rights', (2005) 1 *UtrechtLRev* 100; Walther, S., 'Cumulation of Offences', in: Cassese, A., Gaeta, P. and Jones, J.R.W.D. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 475; Wilkitzki, P., 'Völkerrechtliche Verbrechen und nationales Strafrecht, Tagungsbericht vom XIV. Internationalen Strafrechtskongress der Association Internationale de Droit Pénal' (1990), 102 *ZStW* 681; Wills, H.S., 'Cumulative Convictions and the Double Jeopardy Rule: Pursuing Justice at the ICTY and the ICTR', (2003) 17 *EmoryJILRev* 341; Wise, E.M., 'Part 2: Non bis in idem and applicable law', (1998) 13*bis* *NEP* 43; Van den Wyngaert, C. and Stessens, G., 'The International non bis in idem Principle: Resolving Some of the Unanswered Questions', (1999) 48 *ICLQ* 779; Van den Wyngaert, C. and Ongena, T., 'Ne bis in idem Principle, Including the Issue of Amnesty', in: Cassese, A., Gaeta, P. and Jones, J.R.W.D. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 705; Zapatero, L.A. (ed), *El principio de 'ne bis in idem' en el derecho penal europeo e internacional* (Univ de Castilla La Mancha 2007); Zilli, M., "'Ne bis in idem" e coisa julgada fraudulenta: a posição da Corte Interamericana de Direitos Humanos', in: K. Ambos et al. (eds), *Sistema interamericano de protección de los derechos humanos y derecho penal internacional* (Konrad-Adenauer-Stiftung 2011) 393, http://www.kas.de/wf/doc/kas_31766-1522-4-30.pdf?121011222421 (accessed 1 September 2014).

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A. General remarks

1. Introduction

The core idea of the *ne bis in idem* principle is that nobody should be judged twice for the same offence. *Ne bis in idem* corresponds to most aspects of the common law prohibition against 'double jeopardy'¹. The content and scope of the principle are not uniformly defined. In particular, ways to interpret the two decisive factors '*idem*' and '*bis*' vary considerably. This relates to identifying what is 'the same', defining the finality of a decision as well as the question, at what stage a subsequent procedure shall be barred. The consequences of *ne bis in idem* are twofold. From a substantive point of view it shields a person from being punished twice. With regard to procedure, it blocks a new prosecution². Depending on the context, *ne bis in idem* can be referred to in such areas as recharging an accused with the same or

¹ From the several distinct protections for criminal defendants embodied in 'double jeopardy', the pleas of *autrefois acquit* and *autrefois convict* and prohibition of multiple punishment are referred to as the closest counterparts of *ne bis in idem*. This conceptual and terminological discussion has to be left aside here. See, e.g., Mayer, *Ne-bis-in-idem-Wirkung europäischer Strafsentscheidungen* (1992) 15; Lehouck (1981) 90 *YaleLJ* 632–3; Friedland, *Double Jeopardy* (1969) 15–17.

² De la Cuesta (2002) 73 *RIDP* 710; Spinellis (2002) 73 *RIDP* 1149–50. One commentator recently concluded that the continuing discussion whether *ne bis in idem* has to be considered as part of substantive or procedural law should be closed with a clear 'as well as' (Mansdörfer, *Das Prinzip ne bis in idem im europäischen Strafrecht* (2004) 244). For an in-depth analysis see Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das ISTGH-Statut* (2004) 12 *et seq.*, 30 *et seq.*

another offence upon the same facts, framing an indictment, continuing offences, convicting and sentencing on multiple counts, new trials, appeals, revision, the relationship between courts in and between States, and the recognition of criminal judgements. It has, however, traditionally been held to be in force inside one jurisdictional regime only³.

- 2 In the negotiations of the Statute of the International Criminal Court, *ne bis in idem* had to be considered in a *sui generis* context. On the one hand, as the jurisdiction of the ICC is added to the existing mechanisms of national and international jurisdiction, the various competencies cumulate⁴. On the other hand, however, the risk of cumulating jurisdictional claims needs to be observed against the general perception that the enforcement of international criminal law lacks comprehensiveness, suffering from the historical pattern of impunity. The particularity underlying the ICC jurisdiction lies in the fact that the relationship between the ICC and States is not the same as between States; equality of sovereigns and, in cases of competing claims, the presumption of concurrency. The ICC's complementary jurisdiction prevails over States that are unable or unwilling to genuinely exercise their jurisdiction on behalf of the international community as a whole (indirect enforcement model). As a consequence, *ne bis in idem* applies fully only with regard to the decisions of the ICC. In case of national decisions, a retrial may, in exceptional circumstances, take place. *Ne bis in idem* has, therefore, been linked with the discussion on jurisdiction from early on. Article 20 partly mirrors the provisions on jurisdiction and admissibility. Whether a case goes as far as *bis in idem* depends on the stage at which the cumulative interests of the national and international jurisdiction become concrete.
- 3 The substantively identical provisions of the Statutes of the ICTY and ICTR served as important models for the formulation of *ne bis in idem* in the ILC Draft Statute. Their jurisdictional model is, however, decisively different from the Rome Statute. The *ad hoc* Tribunals have concurrent but primary jurisdiction with regard to national courts⁵. The ICC is deemed to be *complementary* to national courts, as expressed in paragraph 10 of the Preamble and in article 17. The ICC will attempt to gain universality and permanence, whereas the *ad hoc* Tribunals, by definition, exercise jurisdiction strictly limited in time and territory. In drafting the ICC Statute, it became evident that most States were not willing to accept the *ad hoc* solutions as permanent ones. As a result, article 20 differs considerably from the Statutes of the *ad hoc* Tribunals.
- 4 Article 20 was amended by the Kampala Review Conference⁶. Different from article 20 paras 1 and 2, which generically refer to crimes within the jurisdiction of the Court in accordance with article 5, article 20 para. 3 explicitly enumerates the relevant articles of the Rome Statute defining the core crimes. Originally this list only referred to articles 6, 7 and 8. In order to provide full *ne bis in idem* protection to a person who 'has been tried by another court for conduct also proscribed' by the definition of the crime of aggression, a reference to article 8*bis* was included in the chapeau of article 20 para. 3.

2. Protected interests

- 5 *Ne bis in idem* protects two kinds of interests. Firstly, it protects an *individual* who was once prosecuted for an offence from being further troubled upon the same grounds (*nemo debet bis vexari pro una et eadem causa*) and being subject to punishment several times (*ne*

³ See e.g. Decision of the Human Rights Committee of 16 July 1986 in the case of *A.P. v. Italy* (Communication No.204/1986, CCPR/C/31/D/204/1986, para. 7.3.). For details see mn 8, 13.

⁴ See, e.g., Pralus (1996) RSC 552–554; Oehler, *Internationales Strafrecht* (1983) mn 906, concerning the crimes under the universality principle.

⁵ See article 9 of the ICTY Statute, article 8 of the ICTR Statute. The Secretary-General states in his Report on the creation of the ICTY, however, that the Security Council did not intend to 'preclude or prevent the exercise of jurisdiction by national courts [...] Indeed national courts should be encouraged to exercise their jurisdiction in accordance with their relevant national laws and procedures'. UN Doc. S/25704 (3 May 1993), p. 1176, para. 64. See also Bassiouni and Manikas (eds), *The Law of the Criminal Tribunal for the Former Yugoslavia* (1996) 306–319; Weckel (1993) *Annuaire Français de Droit Internationale* 232.

⁶ Amendments to the Rome Statute of the International Criminal Court on the crime of aggression, Resolution RC/Res.6 adopted by consensus on 11 June 2010, Annex I, para. 7.

poena in idem). ‘The State with all its resources and power should not be allowed to make repeated attempts to convict an individual for an alleged offence, thereby subjecting him to embarrassment, expense and ordeal and compelling him to live in a continuing state of anxiety and insecurity, as well as enhancing the possibility that even though innocent he may be found guilty’⁷. This protection of the individual from State abuse and *ad infinitum* prosecutions is also the rationale behind the international recognition of the principle of *ne bis in idem* as a human right. Secondly, *ne bis in idem* has a function in protecting the authority and integrity of the legal system by confirming the finality of penal judgements. It thereby serves the ideal of legal certainty and helps prevent inconsistent results. A moot case must not be reopened (*factum praeteritum*) and a decision by a criminal court must not be obstructed by other criminal courts (*res iudicata pro veritate habetur*)⁸. It is to the first trial, therefore, that all efforts should be directed⁹. Lastly, the application of *ne bis in idem* serves the interest of judicial economy, by saving resources and court facilities.

The rationale of the principle changes when it is applied in a transnational context. State interests become more dominant while the individual has long been seen as the ‘object’ of interstate cooperation¹⁰. Also when examined with regard to international criminal jurisdiction, the *bis in idem* situation reflects a more general confrontation between domestic and international competencies. From the point of view of individuals, the internationalization of criminal justice creates paradoxical effects. On the one hand, an individual can – relying on his or her emerging legal competence under international law – refer to international instruments when challenging the judicial decisions or legislation of his or her own State. On the other hand, international jurisdiction may deprive the individual of the protection so far granted by his or her State of nationality. One example of this is the possibility of a second trial in the ICC after national criminal proceedings.

As a result, the principle of *ne bis in idem* occupies a central but controversial role in the ICC Statute. It can be viewed as the last safeguard in allocating the tasks of national and international criminal justice according to the notion of complementarity¹¹. As *ne bis in idem* is considered as absolute solely when it comes to the decisions of the ICC, the possibility of exceptions granted in paragraph 3 with regard to national decisions is the channel of the ‘international community’ for verifying the performance of national criminal justice. The explicit rationale is to avoid impunity, as stated in the Preamble of the ICC Statute, for example. Applying and interpreting the exceptions will draw the borderline between sufficient, *bona fide* criminal justice and ineffective or *mala fide* proceedings. It is clear that article 20 will be of different importance and acceptability to the parties concerned. The individual facing a second trial, the victim who was offered no justice or only a sham process nationally but who also bears the risk of re-victimisation; the State where the first trial was conducted and the ICC are destined to have contradicting views on the application of article 20.

3. *Ne bis in idem* in comparative, European and international law

National laws distinguish several aspects of *ne bis in idem*: the negative authority of judgements passed within the State, the reaction to judgements from other national jurisdic-

⁷ Justice Black for the U.S. Supreme Court, *Green v. United States* (1957) 355 U.S. 187–8. See also *Crist v. Bretz* (1978) 437 U.S. 34 *et seq.* A retrial increases the possibility that the accused will be found guilty: the person will not always have the stamina or the financial resources to effectively fight a second charge.

⁸ For the rationales of *ne bis in idem* see, e.g. de la Cuesta (2002) 73 RIDP 710; van den Wyngaert and Stessens (1999) 48 ICLQ 781 *et seq.* see also Conway (2003) 3 ICLRev 222 *et seq.*; Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004) 11 *et seq.*; Liebau, ‘*Ne bis in idem*’ in Europa (2005) 46 *et seq.* More with respect to ‘double jeopardy’, see Friedland, *Double Jeopardy* (1969) 3–5.

⁹ See Friedland, *Double Jeopardy* (1969) 4.

¹⁰ Van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 708. For developments towards a triangular relationship see e.g. Reisinger Coracini, in: Sluiter et al. (eds), *International Criminal Procedure* (OUP 2013) 95, 111–2.

¹¹ See Tallgren (1998) 67 NordJIL 107.

tions (horizontal or transnational *ne bis in idem*) and to those of international courts and tribunals (vertical *ne bis in idem*). These elements are shaped not only by a State's legal tradition but have become increasingly subject to international standardization. On the international level *ne bis in idem* is enshrined as a human right in regional and international documents and constitutes an important protection with regard to interstate cooperation in criminal matters, in particular extradition law. Against the background of the proliferating international adjudicating bodies, a further aspect has gained more and more importance, that of horizontal *ne bis in idem* between judgements of international courts and tribunals.

- 8 *Ne bis in idem* is part of most national legal systems. It is usually included in the 'general part' of substantive penal codes, codes of penal procedure, the constitution, or acknowledged as a general principle confirmed by case law¹². The roots of the principle can be traced back to antiquity. Its multifarious incarnations thereafter cannot be elaborated here in detail¹³. Some conceptual similarities can be frequently found in States affiliated either with the civil or common law tradition. In this context, the prohibition of appeals to the detriment of the accused in common law, the definition of *idem* on the basis of historic facts (conduct; *ipsum factum*) in civil law countries, and legal qualification (offence or charge; *idem crimen*) in the common law tradition are well known examples¹⁴. But also within these major legal systems differences in the domestic application of the principle exist. Jeopardy may attach at the stage when the jury is empanelled in jury trials, when the court starts to hear evidence, after termination of a trial – by a judgement on the merits of a case or also by other decisions – or only when all ordinary remedies have been exhausted. A *res iudicata* may bar the opening of subsequent procedures, permit a second judgement or may oblige to take into account previously served sentences when determining the punishment (principle of deduction)¹⁵. Exceptions to the principle also differ considerably¹⁶.
- 9 The recognition by a State of the negative authority of a judgement rendered abroad limits one of its most genuine, sovereign competences: the exercise of criminal jurisdiction according to its national law. States, therefore, are hesitant to accord general international validity to *ne bis in idem*. Its application is limited so far and, if recognized, varies decisively in different domestic legal systems, despite international attempts towards harmonization and regional integration¹⁷. States are parties to different, partly overlapping, bi- and multi-

¹² See de la Cuesta (2002) 73 RIDP 710. For an overview of constitutions guaranteeing *ne bis in idem* see Bassiouni (1993) 3 *Duke/Comp&IL* 262; see also the various country reports in (2002) 73 RIDP 773 *et seq.*

¹³ For the origins of the principle '*bis de eadem re ne sit actio*' and the motion '*exceptio rei iudicatae*' ('*exceptio rei in iudicium deductae*') in Roman or even Attic law see e.g. Liebau, '*Ne bis in idem*' in Europa (2005) 67; Mansdörfer, *Das Prinzip ne bis in idem im europäischen Strafrecht* (2004) 54 *et seq.*; Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004), 3 *et seq.* with further references. On the history, see also Friedland, *Double Jeopardy* (1969) 5–16; Mayer, *Ne-bis-in-idem-Wirkung europäischer Strafentscheidungen* (1992) 15–17; Kielwein (1956) ZStW 163.

¹⁴ See van den Wyngaert and Ongena (1999) 48 ICLQ 710 *et seq.*, 714; see also Amar (1997) 106 YaleLJ 1807, 1813 *et seq.*, Conway (2003) 14 CLF 359 *et seq.*, 363 *et seq.*, 368 *et seq.*; El Zeidy (2002) 6 *MediterraneanJHumRts* 187 *et seq.*; Morosin (1995) 64 NordJIL 268, all with further references.

¹⁵ For examples see de la Cuesta (2002) 73 RIDP 711 *et seq.*; Costa (1998) 4 *University of California Davis JIL & Policy* 186; Sadat, *The International Criminal Court and the Transformation of International Law* (2002) 187, note 53 with further references. See also comparative studies in Liebau, '*Ne bis in idem*' in Europa (2005) 67 *et seq.* 237 *et seq.*; Mansdörfer, *Das Prinzip ne bis in idem im europäischen Strafrecht* (2004) 57 *et seq.*, 274 *et seq.*; Stein, *Zum europäischen ne bis in idem nach Artikel 54 des Schengener Durchführungsübereinkommens* (2004) 197 *et seq.*; Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004), 156 *et seq.* With regard to the theory of 'continuing jeopardy', see e.g. Amar (1997) 106 YaleLJ 1838 *et seq.*

¹⁶ On exceptions see e.g. de la Cuesta (2002) 73 RIDP 714; Vander Beken *et al.* (2002) 73 RIDP 814.

¹⁷ For details see de la Cuesta (2002) 73 RIDP 715 *et seq.*; Amnesty International, too, seems more inclined to make a contribution towards criminal repression than the rights of the individual, stating categorically that *ne bis in idem* 'applies only to retrials by the same jurisdiction', see Amnesty International, *The International Criminal Court: Making the Right Choices – Part V* (1998) 39. As Pralus observes, the application is far easier in question of the subsidiary competencies. On the contrary, in the case of a competence regarded exclusive in the national law, like that of trying own national or crimes committed on the own territory, the recognition presupposes a

lateral treaties providing detailed obligations, which are not uniform in substance. Generally, the acknowledgement of transnational *ne bis in idem* is limited to final foreign judgements; pending criminal proceedings do not block subsequent proceedings in another State. The actual enforcement of a penalty is normally taken into consideration. *Ne bis in idem* is commonly excluded for foreign judgements with regard to conduct for which a State can establish territorial jurisdiction itself, although in such cases, the initiation of national proceedings may depend on a special permit by national organs. Particular State interests or the commission of certain types of offences may further limit the authority granted to a foreign judgement. Some States basically deny the application of transnational *ne bis in idem*. Nevertheless, in such cases, the principle of deduction is generally acknowledged¹⁸.

With regard to vertical *ne bis in idem*, national standards are assumingly less divergent, since they derive directly from distinct international obligations. The Statutes of the ICTY and the ICTR as well as the Rome Statute comprise regulations regarding the *res iudicata* effect of judgements of the international adjudicating body vis-à-vis domestic courts (downward *ne bis in idem*) as well as regarding the effect of national judgements on the international court or tribunal (upward *ne bis in idem*). By way of their establishment through Security Council Resolution, the Statutes of the ICTY and the ICTR are binding upon all member States of the United Nations. The same is true for the Rome Statute regarding its States parties. Nevertheless, these international obligations remain rudimentary and not fully enforceable if they are not supplemented by substantive as well as procedural implementation on the national level¹⁹.

Ne bis in idem is reflected in several regional multilateral treaties. The 7th Additional Protocol of the *European Convention of Human Rights* contains the principle, declaring it a fundamental right which cannot be derogated even in times of war or public emergency²⁰, as well as the *American Convention of Human Rights*²¹ and the *Arab Charter of Human Rights*²². The *African Charter on Human and People's Rights* does not mention *ne bis in idem*, however²³. Article 4 of the 7th Additional Protocol protects a person from being 'tried or punished again ... for an offence for which he has already been finally acquitted or convicted'²⁴. Its scope of application is expressly limited to criminal proceedings. Article 8

remarkable confidence in foreign judgment(s), Pralus (1996) *Rev. Science Criminelle* 565. But see the rather – exceptional – case of the Netherlands, where foreign judgements are generally accepted as *res iudicata*, Klip and van der Wilt (2002) 73 *RIDP* 1100 *et seq.* See in this regard also e.g. the English common law tradition (for details see Conway (2003) 3 *ICLRev* 233); Law Commission of England and Wales (ed), *Double Jeopardy*, consultation paper No. 156 (1999), www.lawcom.gov.uk/wp-content/uploads/2015/03/lc267_Double_Jeopardy_Report.pdf (accessed 1 September 2014) paras. 9.10–9.15; Vervaele (2005) 1 *UtrechtLRev* 100 and Egypt, El Zeidy (2002) 6 *MediterraneanHumRts* 199.

¹⁸ For examples see de la Cuesta (2002) 73 *RIDP* 722 *et seq.*, 724; Liebau, 'Ne bis in idem' in *Europa* (2005) 171 *et seq.*; van den Wyngaert and Stessens (1999) 48 *ICLQ* 782 *et seq.*, 797 *et seq.*

¹⁹ In this regard AIDP (ed) (2004) 75 *RIDP* 805.

²⁰ Article 4 para. 3 Protocol No. 7 E.T.S. No. 117, article 15 ECtHR. The 1950 ECtHR does not explicitly refer to *ne bis in idem* but the European Commission for Hum. Rts. has suggested application of article 6 of the Convention under certain circumstances, see Frowein and Peukert, *Europäische Menschenrechtskonvention. EMRK-Kommentar* (1996) Article 6, mn 173; Mayer, *Ne-bis-in-idem-Wirkung europäischer Strafscheidungen* (1992) 48–49.

²¹ San José, Costa Rica, 1969, 9 *ILM* 673 (1970).

²² Adopted by the League of Arab States on 15. Sep. 1994, see 18 Hum. Rts. L. J. 151 (1997); the Charter has not yet entered into force.

²³ Banjul 1981, 21 *ILM* 58 (1982).

²⁴ The ECtHR's jurisprudence on what constitutes an *idem* has not been coherent. Despite the wording, it applied a broad interpretation of the term 'offence', based on the 'same conduct' in *Grading v. Austria* (application no. 15963/90, judgment of 23 Oct. 1995, para 55). Later on, the court relied on the legal qualification of the underlying facts as the relevant criterion for establishing identity (*Oliveira v. Switzerland*, application no. 25711/94, judgment of 30 July 1998, para. 26). The ECtHR undertook to clarify its seemingly 'contradictory' jurisprudence in the case *Fischer v. Austria* (application no. 37950/97, judgement of 29 May 2001, para. 23). It confirmed the view that article 4 of Prot. No. 7 was not infringed by the fact that a single criminal act was split up into two separate offences and judged subsequently by two different courts. Nevertheless, the ECtHR was free to closely examine 'cases where one act, at first sight, appears to constitute more than one offence, whereas a closer

para. 4 of the American Convention prohibits an accused 'acquitted by a nonappealable judgment' from becoming 'subjected to a new trial for the same cause'²⁵. Article 16 of the Arab Charter states 'no one shall be tried twice for the same offence'. A few conventions on international cooperation in criminal matters also make reference to the principle²⁶.

- 12 In the European Union context further parallel tracks of development still have to be considered. *Ne bis in idem* is enshrined in the Charter of Fundamental Rights of the European Union, which gained the status of primary law with the entry into force of the Lisbon Treaty²⁷. Its article 50 protects persons from being 'tried or punished again in criminal proceedings for an offence for which he or she has already been finally acquitted or convicted'. As all provisions of the Charter, article 50 is 'addressed to the institutions, bodies, offices and agencies of the Union with due regard for the principle of subsidiarity and to the Member States only when they are implementing Union law' (article 51.1 of the Charter, emphasis added). It must be highlighted that *ne bis in idem* as referred to in article 50 'applies not only within the jurisdiction of one State but also between the jurisdictions of several Member States'²⁸. This corresponds to the *acquis* in Union law: The Schengen Convention introduced a transnational *ne bis in idem* into the common area of its States Parties²⁹. Its article 54 protects '[a] person whose trial has been finally disposed of' from

examination shows that only one offence should be prosecuted because it encompasses all the wrongs contained in the others. ... Thus, where different offences based on one act are prosecuted consecutively, one after the final decision of the other, the Court has to examine whether or not such offences have the same essential elements' (*ibid.*, para 25). For an analysis see e.g. Birkbauer, in: Moos et al. (eds), *Strafprozessrecht im Wandel, Festschrift für Roland Miklau* (2006) 45, 47 *et seq.*; Mansdörfer, *Das Prinzip ne bis in idem im europäischen Strafrecht* (2004) 99 *et seq.* With regard to determining the finality of a judgement, article 4 of Prot. No. 7 relies on domestic 'law and penal procedure'. But the Explanatory Report to Prot. No. 7 also refers to the definition underlying the European Convention on the International Validity of Criminal Judgments, E.T.S. No. 70. Thus, a decision is final 'if, according to the traditional expression, it has acquired the force of *res judicata*. This is the case when it is irrevocable, that is to say when no further ordinary remedies are available or when the parties have exhausted such remedies or have permitted the time-limit to expire without availing themselves of them' (Explanatory Report to Prot. No. 7 paras. 22 and 29).

²⁵ The IACtHR interprets the expression 'the same cause' as a much broader term in the victim's favour than the notion 'same offence' as used for instance in article 14 para. 7 ICCPR, see IACtHR, Case of *Loayza-Tamayo v. Perú*, series C no. 33 para 66, Judgment, 17 Sep. 1997. With regard to 'acquitted by a nonappealable judgment' the Inter American Commission of Hum. Rts. held that the acquittal must be a final judgment, implying that 'someone who, having been charged with a crime, has been exonerated from all criminal responsibility, since he has been acquitted because his innocence has been demonstrated, because his guilt has not been proven, or because it has been determined that the acts of which he is accused are not defined as crimes'. The term 'nonappealable judgment' is interpreted according to domestic law. However, any procedural act that is fundamentally jurisdictional in nature, and acquires the immutability and incontestability of *res judicata*, qualifies, *Garcia v. Peru*, Case 11.006, Decision, 17 Feb. 1995, Report No. 1/95.

²⁶ Among the most important ones in Europe are the 1957 European Convention on Extradition, E.T.S. No. 24 and its two additional protocols, E.T.S. Nos. 86 and 98, the 1970 European Convention on the International Validity of Criminal Judgments, E.T.S. No. 70, and the 1972 European Convention on the Transfer of Proceedings in Criminal Matters, E.T.S. No. 73. See, e.g., Bartsch (2002) 73 *RIDP* 1166; Dugard and van den Wyngaert (1998) 92 *AJIL* 188; Epp (1979) *ÖJZ* 3. For the Americas, see e.g., the 1992 Inter-American Convention on Mutual Assistance in Criminal Matters (A-55, OAS Treaty Series No. 75) and the 1993 Inter-American Convention on Execution of Criminal Sentences Abroad (A-57, OAS Treaty Series No. 76). See also article V para. 1 of the extradition treaty of the League of Arab States, Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004) 59 *et seq.*

²⁷ Article 6.1 Treaty on European Union (OJ C 83, 30 March 2010). For details see di Federico, in: di Federico (ed), *The EU Charter of Fundamental Rights: From Declaration to Binding Instrument* (Springer 2011) 15 *et seq.*

²⁸ Explanations relating to the Charter of Fundamental Rights, p. 32 (O J C 303, 14 December 2007).

²⁹ Convention of 19 June 1990, applying the Schengen Agreement of 14 June 1985, Schengen, *ILM* 84 (1991). For details e.g. Lagodny (1997) *NSiZ* 265; *in extensu*: Stein, *Zum europäischen ne bis in idem nach Artikel 54 des Schengener Durchführungsübereinkommens* (2004). The Schengen Convention has meanwhile been incorporated into the European Union framework by a Protocol attached to the Treaty of Amsterdam and forms part of the *acquis communautaire*. On the substantive differences between Art. 50 of the Charter of Fundamental Rights of the European Union and Art. 54 SDÜ see Ambos, *Internationales Strafrecht* (2014) 533 *et seq.*

being 'prosecuted in another Contracting Party for the same acts'³⁰. The Schengen Convention has meanwhile been incorporated into the European Union framework by a Protocol attached to the Treaty of Amsterdam³¹. It should also be mentioned that in the framework of the European Political Cooperation, the member States of the (former) European Communities have concluded a convention on double jeopardy³². Furthermore, the accumulation of administrative and penal sanctions to be imposed by national and community organs has generated regulation of *ne bis in idem*, for example, in the context of the protection of the financial interests of the Union³³. Other legal acts adopted within the area of freedom, security and justice, former third pillar, also refer to the *ne bis in idem* principle³⁴. Article 3 para. 2 of the 2002 Framework Decision on the European Arrest Warrant, for instance, allows a refusal of the execution of a European arrest warrant with regard to a person who has been finally judged by a member State³⁵.

Ne bis in idem was not included in the *Universal Declaration of Human Rights*, unlike 13 some other minimum guarantees on criminal procedure. The *UN Covenant on Civil and Political Rights* covers *ne bis in idem* in its article 14 para. 7. According to this provision, '[n]o one shall be liable to be *tried or punished* again for an *offence* for which he has already been *finally convicted or acquitted*'³⁶. A few international instruments on crime prevention

³⁰ Regarding the notion 'finally disposed of', the ECJ ruled that article 54 *Schengen Convention* applies to certain out of court settlements, final acquittals based on statutory limitation or lack of evidence (*Gözütok et Brügge*, Case C-187/01 et C-385/01, Judgement, 11 Feb. 2003, para. 48; *Gasparini*, Case C-467/04, Judgement, 28 Sep. 2006, para. 33; *van Straaten*, Case C-150/05, Judgement, 28 Sep. 2006, para 61) but not to a Prosecutor's decision not to 'pursue the prosecution on the sole ground that criminal proceedings have been started in another member State against the same defendant and for the same acts, without any determination whatsoever as to the merits of the case'. (*Miraglia*, Case C-469/03, Judgement, 10 Mar. 2005, para 34). *Idem* has to be understood in a broad way, 'as the existence of a set of facts which are inextricably linked together, irrespective of the legal classification given to them or the legal interest protected' (*van Esbroeck*, Case C-436/04, Judgement, 9 Mar. 2006, paras. 36 and 42). For details see e.g. Birkbauer, in: R. Moos et al. (eds), *Strafprozessrecht im Wandel, Festschrift für Roland Miklau* (2006) 54 *et seq.*; Bogensberger, in: Moos et al. (eds), *Strafprozessrecht im Wandel, Festschrift für Roland Miklau* (2006) 91, 95 *et seq.*; Schomburg, in: Arnold et al. (eds), *Festschrift für Albin Eser* (2005) 835; Stein, *Zum europäischen ne bis in idem nach Artikel 54 des Schengener Durchführungsübereinkommens* (2004) 73 *et seq.*; Vervaele (2005) 1 *UtrechtLRev* 110 *et seq.* for exceptions to the application of *ne bis in idem* see article 55 *Schengen Convention*.

³¹ On its relationship to article 50 of the Charter of Fundamental Rights see 'The Post-Lisbon Principle of Transnational Ne Bis in Idem: On the Relationship Between Article 50 Charter of Fundamental Rights and Article 54 Convention Implementing the Schengen Agreement: Case Note on District Court Aachen, Germany, (52 Ks 9/08 – 'Boere'), Decision of 8 December' (2010) 1 *New Journal of European Criminal Law* 310.

³² See Bulletin of the European Communities, Year 20. No. 5, 113 (1987). It has been ratified by few States, has not entered into force but is provisionally applicable in some EU member States. The Convention, largely identical to the Schengen Convention, can be seen as a first attempt to introduce Schengen into the framework of the European Communities, Bartsch (2002) 73 *RIDP* 1169.

³³ See *Corpus Iuris* introducing Penal Provisions for the Protection of the Financial Interests of the European Union (1997); Renaud (1996) 12 *Agon* 9; Vervaele (2005) 1 *UtrechtLRev* 106 *et seq.*; article 7 of the Convention on the Protection of the European Communities' Financial Interests (OJ C 316, 27 November 1995); article 10 of the Convention on the fight against corruption (OJ C 195, 25 June 1997).

³⁴ Article 4 of the Treaty of the Functioning of the European Union, C 83/47, 20 March 2010; Articles 9 of Protocol No. 36 on transitional provisions OJ 115, 9 May 2008, p. 322.

³⁵ Council Framework Decision on the European Arrest Warrant and the Surrender Procedure between member States of 13 June 2002 (OJ L 190, 18 July 2002, p. 1). See e.g. Bartsch (2002) 73 *RIDP* 1170, Schomburg, in: Arnold et al. (eds), *Festschrift für Albin Eser* (2005) 840; Vervaele (2005) 1 *UtrechtLRev* 116 *et seq.* See also the Initiative of the Hellenic Republic with a view to adopting a Council Framework Decision concerning the application of the '*ne bis in idem*' principle, OJ C 100, 26 Apr. 2003, p. 24; and the Green Paper on Conflicts of Jurisdiction and the Principle of *ne bis in idem*, Criminal Proceedings COM(2005) 696 final of 23 Dec. 2005, p. 3, neither of them having led to new legislation. For details see e.g., Bogensberger, in: Moos et al. (eds), *Strafprozessrecht im Wandel, Festschrift für Roland Miklau* (2006) 104 *et seq.*

³⁶ The last requirement 'finally convicted or acquitted' is to be judged 'in accordance with the law and penal procedure of each country' M. Nowak, *article 14*, UN CCPR Commentary mn 99 (2005). A deviating proposal requiring for the term 'finally convicted or acquitted' that all ordinary methods of judicial review and appeal have been exhausted and that all waiting periods had expired, was suggested but not adopted (*id.* mn 98).

refer to the principle³⁷. The United Nations Model Treaty on Extradition declares it a mandatory ground for refusal of an extradition when a final judgement has been rendered against the same ‘person in the requested State in respect of the offence for which the person’s extradition is requested’³⁸. Article 86 Geneva Convention III and article 117 para. 3 Geneva Convention IV prohibit the double punishment of prisoners of war and civilian internees ‘for the same act or on the same charge [count]’³⁹. Article 75 para. 4 (h) Add. Prot. I contains a more detailed regulation: ‘no one shall be *prosecuted or punished by the same Party* for an offence in respect of which a *final judgement acquitting or convicting* that person has been previously pronounced under the same law and judicial procedure’. The question whether *ne bis in idem* could be regarded as a general principle of international law or a customary norm has to be left aside here⁴⁰.

- 14 The fact that *ne bis in idem* is included in national laws, and in regional and international conventions could be seen as evidence of its internationally recognized position. It could also be seen as evidence of the way human rights ideology has influenced criminal law since World War II. The *ne bis in idem* principle differs, however, decisively from the other cornerstones of a criminal trial such as the principle of legality or the presumption of innocence: it is generally held to be in force inside one jurisdictional regime only. With the exception of European Union law, the relevant provisions of the international human rights conventions, the regional as well as the universal ones do ‘not guarantee *ne bis in idem* with regard to the national jurisdictions of two or more states’⁴¹. They provide for an international guarantee of the principle but not for its international application⁴². This ‘nationalisme pénal, soucieux de souveraineté plus que d’équité’ has been the target of considerable criticism⁴³.
- 15 Against this background, the principle of *ne bis in idem* has undergone a distinct development in the context of international criminal law enforcement. In the doctrine following the establishment of the ICC, international and national courts, when prosecuting crimes under international law, are sometimes seen to exercise the *ius puniendi* of the ‘international community’ as a whole to defend its highest values, ‘the peace, security and well-being of the world’ (Preamble para. 3). Final decisions taken within this system of

³⁷ See e.g. rule 30 para 1, Standard Minimum Rules for the Treatment of Prisoners, adopted by the First United Nations Congress on the Prevention of Crime and the Treatment of Offenders, held at Geneva in 1955, and approved by the Economic and Social Council by its Res. 663 C (XXIV) of 31 July 1957 and Res. 2076 (LXII) of 13 May 1977; article 36 para. 2 lit. a (iv) Single Convention on Narcotic Drugs. For further references see M. Pralus (1996) RSC 565–566.

³⁸ Article 3 lit. d. Adopted by GA Res. 45/116, subsequently amended by GA Res. 52/88.

³⁹ For details see El Zeidy (2002) 6 *Mediterranean JHumRts* 227.

⁴⁰ See in this regard e.g. Cassese, analysing that ‘[w]hile the ‘internal’ *ne bis in idem* principle may be held to be prescribed by a customary rule of international law, the legal status of the ‘international’ equivalent principle is still controversial’. However, although a customary rule with regard to all crimes has not yet crystallized, he ascertains that such a rule arguably has evolved with regard to international crimes, Cassese, *International Criminal Law* (2003) 319–20. On the question whether or not *ne bis in idem* can be regarded as a ‘general principle of law recognized by civilised nations’ according to article 38 ICJ Statute see e.g. Conway (2003) 3 *ICLRev* 229 et seq. (238); Morosin (1995) 64 *NordJIL* 262 et seq.; Theofanis (2003) 3 *ICLRev* 195. For both aspects see also Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004) 113 et seq. (145), 146 et seq. (205).

⁴¹ A.P. v. Italy, above note 3, § 7.3 of 2 Nov. 1987. See, e.g., Muhammad, in: Henkin (ed), *The International Bill of Rights* (1981) 136, 156. For a critical voice, see Nowak, above note 36, article 14, mn 99 with further references. On the discussion concerning the European Convention, see, e.g., Mayer, *Ne-bis-in-idem-Wirkung europäischer Strafsentscheidungen* (1992) 47–50; Pralus (1996) RSC 566–568. But see Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004) 63 et seq. interpreting article 8 American Convention on Hum. Rts. including a transnational protection.

⁴² See Bartsch (2002) 73 *RIDP* 1164.

⁴³ See Jung, who regards the avoidance of multiple judgements as ‘aus international-strafrechtlicher Sicht inzwischen als ein vorrangig zu lösendes Problem’, in: Albrecht et al. (eds), *Festschrift für Schüler-Springorum* (Heymann 1993) 500; Pralus (1996) RSC 564. See in this regard also the recommendation of the AIDP to incorporate international *ne bis in idem* as a human right into international and regional conventions (for references see de la Cuesta (2002) 73 *RIDP* 710; AIDP (ed.) 75 *RIDP* 803, II 1.2).

international criminal justice establish *ne bis in idem* as long as the *ius puniendi* of the international community is properly administrated; national decisions are thereby ultimately under the scrutiny of organs of the international community⁴⁴. A vertical *res iudicata* effect has been subsequently acknowledged in statutes of international courts and tribunals. The acceptance of a general, transnational, *ne bis in idem*, however, is still *de lege ferenda*.

In the early efforts to exercise criminal jurisdiction internationally, not much concern was expressed on possible violations of *ne bis in idem*. Article 11 of the Nuremberg Charter expressly allowed for retrials and additional punishment of persons convicted by the international military tribunal for membership in a criminal group or organization for any other crime⁴⁵. Article 51, 1951 ILC Draft Statute and article 50, 1953 ILC Draft Statute provided that '[n]o person who has been *tried and acquitted or convicted* before the Court shall be *subsequently tried* for the *same offence*'. But this downward *ne bis in idem* was limited to courts within the jurisdiction of those States which have conferred jurisdiction upon the Court with respect to the offence in question⁴⁶.

The Statutes of the *ad hoc* Tribunals establish *ne bis in idem* for a person who 'has been tried' for 'acts constituting serious violations of international humanitarian law'⁴⁷. These points of reference are identical regarding national judgements and those of the *ad hoc* Tribunals. Downward *ne bis in idem* is fully acknowledged by the Statutes⁴⁸. In cases of non-compliance by a national court, rule 13 authorizes a Trial Chamber to 'issue a reasoned order requesting that court permanently to discontinue its proceedings. If that court fails to do so, the President may report the matter to the Security Council'. Regarding upward *ne bis in idem*, a subsequent trial before an *ad hoc* tribunal is permissible in two cases. The 'ordinary crime exception' foresees that acquittals or convictions upon the same facts but for different crimes do not bar proceedings before an *ad hoc* tribunal⁴⁹. The second exception allows a

⁴⁴ Triffterer, 2nd edition, *Preliminary Remarks*, mn 39 *et seq.*; *id.* (2006), in: Austrian Federal Ministry for Foreign Affairs/Salzburg Law School on International Criminal Law, Humanitarian Law and Human Rights Law (eds), *The Future of the International Criminal Court – Salzburg Retreat* (2006) 26, 32, For an emerging customary rule on transnational *ne bis in idem* regarding international crimes, see Cassese, *International Criminal Law* (2003) 319–20.

⁴⁵ *Argumentum a contrario* it was argued that a conviction would have barred a retrial for the same crime before another court, see van den Wyngaert and Ongena, (1999) 48 *ICLQ* 718. The risk of multiple trials was not regarded as a problem to be focused on in the context of the earlier international prosecutions, see Lombois, *Droit Pénal Internationale* (1979) No. 41. Occasional references to the principle were made in the Nuremberg trials, see, e.g., *Der Prozess gegen die Hauptkriegsverbrecher vor dem Internationalen Militärgerichtshof*, Vol. XXII, 569 (1948). In the trial against the industrial leaders of Germany, the Tribunal stated: 'We conceive the only purpose of this Tribunal is to bring to trial war criminals that have not already been tried'. TWC before the Nuremberg Military Tribunals under Control Council Law No. 10, Vol. VI, 1213 (1952). In the trial against German jurists criticism was raised that a case was 'again tried in violation of the fundamental principles of justice that no man should be tried twice for the same offence', *ibid.*, Vol. III, 1147–8 (1951).

⁴⁶ Article 50, 1953 ILC Draft Statute 'Double jeopardy'. The previous text of article 51, 1951 ILC Draft Statute, though then titled 'Subsequent Trial', had not been altered except for minor redactional chances.

⁴⁷ See article 10 ICTY Statute and article 9 ICTR Statute respectively.

⁴⁸ The *ad hoc* Tribunals have not yet explicitly ruled on the scope of *idem*, defined as 'acts constituting serious violations of international humanitarian law'. The Secretary-General understood that '[a]ccording to the principle of *non-bis-in-idem*, a person shall not be tried twice for the same crime. In the present context, given the primacy of the International Tribunal, the principle of *non-bis-in-idem* would preclude subsequent trial before a national court'. See Report of the Secretary-General, note 5, para. 66. This guideline seems to support a narrow interpretation of *idem* relating to the same offence (see e.g. Bassiouni and Manikas (eds), *The Law of the Criminal Tribunal for the Former Yugoslavia* (1996) 319; Spinellis (2002) 73 *RIDP* 1155–6; see also rule 13 ICTY Rules of Procedure and Evidence referring explicitly to criminal proceedings 'instituted against a person before a court of any State for a crime for which that person has already been tried by the Tribunal'. However, with a view to the primacy of the *ad hoc* Tribunals a wide interpretation referring to the underlying conduct has also been advocated (see e.g. Schomburg, in: Arnold *et al.* (eds), *Festschrift für Albin Eser* (2005) 839–40; Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das ISiGH-Statut* (2004) 224).

⁴⁹ For Court practice see e.g. *Prosecutor v. Bagosora*, Case-No. ICTR-96-7-D, Decision on the Application by the Prosecutor for a Formal Request for Deferral, Trial Chamber, 17 May 1996; *Prosecutor v. Musema*, Case-No. ICTR-96-5-D, Decision on the Formal Request for Deferral presented by the Prosecutor, 12 March 1996. See

substantive review of national proceedings and a retrial, if the former were 'not impartial or independent, were designed to shield the accused from international criminal responsibility, or the case was not diligently prosecuted'. Upward *ne bis in idem* obliges the *ad hoc* tribunals to 'take into account the extent to which any penalty imposed by a national court on the same person for the same act has already been served'.

As for court practice, in the *Tadić* case before the ICTY the defence tried to establish a *bis in idem* situation because proceedings had already commenced in Germany. The claim was dismissed by the Trial Chamber, reasoning that 'the accused has not yet been the subject of a judgement on the merits on any of the charges for which he has been indicted'⁵⁰. Since only a final judgement on the merits of the case establishes *res iudicata*, decisions not to prosecute, termination of proceedings on procedural or formal grounds or interlocutory decisions do not bar further proceedings⁵¹. In the *Ntuyahaga* case, the ICTR dismissed the Defence's request to render an acquittal on formal grounds, arguing that 'an acquittal can only be considered at the stage where the Prosecutor has presented all her evidence, and the Chamber finds that the evidence is insufficient to sustain a conviction on any one count'. Lacking a judgement of the Tribunal, a subsequent national prosecution would not have been barred⁵².

Ne bis in idem also plays a role with regard to cumulative convictions, when one act of criminal conduct constitutes more than one separate offence (concoirs idéal d'infractions). Earlier decisions of the *ad hoc* tribunals did not oppose cumulative convictions and dealt with the issue of cumulative penalties at the sentencing stage, although jurisprudence was not fully consistent⁵³. Clarifying the issue, the Appeals Chamber in *Delalić* concluded 'that multiple criminal convictions entered under different statutory provisions but based on the same conduct are permissible only if each statutory provision involved has a materially distinct element not contained in the other. An element is materially distinct from another if it requires proof of a fact not required by the other'⁵⁴. Where this test is not met, the Chamber will convict under the more specific provision: 'Thus, if a set of facts is regulated by two provisions, one of which contains an additional materially distinct element, then a conviction should be entered only under that provision'⁵⁵.

- 17 The *ne bis in idem* of the Statutes of the *ad hoc* tribunals largely correspond to the respective provisions of the 1993 and 1994 ILC Draft Statutes. They were also exemplary for article 9 of the Statute of the Special Court for Sierra Leone, while section 11 of the Statute of the Special Panels with exclusive jurisdiction over serious criminal offences in East Timor is

thereto e.g. van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 719; Vander Beken et al. (2002) 73 RIDP 837.

⁵⁰ *Prosecutor v. Tadić*, Case No. IT-94-1-T, Decision on the Defence Motion on the Principle of *Non-Bis-In-Idem*, Trial Chamber, 14 November 1995, para. 24.

⁵¹ De la Cuesta (2002) 73 RIDP 729, 730. But see *Prosecutor v. Barayagwiza*, Case No. ICTR-97-19-AR72, Decision on the Prosecutor's Request for Review or Reconsideration, Appeals Chamber, 31 March 2000, where the Appeals Chambers held that a final judgement in the sense of article 25 ICTR Statute and rule 120 ICTR Rules of Procedure and Evidence is one which terminates the proceedings, including one dismissing an indictment (*ob. cit.* para 49); thereto Theofanis (2003) 3 ICLRev 204 *et seq.*

⁵² *Prosecutor v. Ntuyahaga*, Case No. ICTR-98-40-T, Decision on the Prosecutor's Motion to Withdraw the Indictment, Trial Chamber, 18 March 1999. See thereto van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 720; Vander Beken et al. (2002) 73 RIDP 814.

⁵³ For a discussion of the jurisprudence, see *Prosecutor v. Delalić et al.*, Case No. IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para. 395 *et seq.*, 402 *et seq.* See also Conway (2003) 14 CLF 363, 369 *et seq.* Walther, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 475; Werle, *Principles of International Criminal Law* (2005) mn 527 *et seq.*; Wills (2003) 17 EmoryILRev 341.

⁵⁴ See *Delalić et al.*, above note 53, para. 412, applying the 'Blockburger-test' (*Blockburger v. United States*, 284 U.S. 299, 304 (1932), para. 409). In the same decision, the Appeals Chamber confirmed the validity of the practice of cumulative charges (*ibid.*, para. 400).

⁵⁵ *Delalić et al.*, above note 53, para. 413. For a detailed analysis of the speciality test see Ambos, *Treatise on International Criminal Law*, ii (2014) 254 *et seq.*

based on article 20 Rome Statute⁵⁶. The 1996 ILC Draft Code contains an interesting article 12 on *ne bis in idem*⁵⁷. Its paragraph 1 contains an absolute *ne bis in idem* provision with regard to final acquittals and convictions of the international criminal court 'for a crime against the peace and security of mankind'. Paragraph 2 provides that '[a]n individual may not be tried again for a crime of which he has been finally convicted or acquitted by a national court'. This regulation does not only concern upward *ne bis in idem*, but also constitutes a codification of transnational *ne bis in idem*⁵⁸. It contains exceptions similar to the Statutes of the *ad hoc* Tribunals, allowing a retrial before an international criminal court. In addition, with regard to national courts, an individual tried by a State could be retried for a crime under the Draft Code by the territorial State or by a State that had been the main victim of the crime. The commentary envisages even the right of both of them to institute subsequent proceedings⁵⁹. Since such retrials are not restricted to exceptional cases of miscarriage of justice (as with regard to the ICC), *ne bis in idem* is nullified to a large extent. However, the ILC Draft Code is the first international document that tackles the problem of multiple trials for crimes under international law on the national level and enshrines a provision respecting transnational *ne bis in idem*.

4. The development up to the Rome conference

Four aspects of article 20 attracted major interest during the preparation work. The *first* 18 concerns the article's relationship with the notion of complementarity. Starting with the report of the *Ad Hoc* Committee in 1995, a frequent concern was that the article 'conferred upon the ICC a kind of supervisory role vis-à-vis national courts'⁶⁰. The *second* aspect of great interest had to do with the drafting of the exceptions to the principle, which raised the issue of subjectivity versus objectivity of language. The distinction between ordinary crimes and crimes of international concern, used in article 42 para. 2 (a) ILC Draft Statute, proved particularly problematic, since such a distinction 'was not common to all legal systems and could cause substantial legal problems'⁶¹. As for the *third*, the scope of the principle was controversial. The commentary of the 1994 ILC Draft Statute states that the first condition for the application of the principle would be that 'the first court actually exercised jurisdiction and made a determination on the merits with respect to the particular acts constituting the crime'; and the second condition would require there to be 'a sufficient measure of identity between the crimes which were the subject of the successive trials'⁶². Discussion was devoted to the question of what, exactly, should be seen as the same act, conduct, offence or crime⁶³. A further problem

⁵⁶ It should be noted that article 9 para. 1 Statute of the Special Court for Sierra Leone as well as section 11 para 2 of the Statute of the Special Panels limit downward *ne bis in idem* protection to retrials before a national court of Sierra Leone and East Timor, respectively. This is due to the establishment of these adjudicating bodies by a treaty between the United Nations and the government of Sierra Leone, which cannot impose obligations on third parties, and, respectively, by a regulation of the United Nations transitional administration in East Timor; nonetheless, the Statutes' protection of the individual is significantly reduced. For case law see e.g. *The Deputy General Prosecutor for Serious Crimes v. Wiranto et al.*, Case No. 05/2003, Legal Ruling Concerning the Applicability of *Ne bis in Idem* at the Arrest Stage of the proceedings. See also Kleffner and Nollkaemperin, in: Romano et al. (eds), *Internationalized Criminal Courts* (2004) 359, 373 *et seq.*

⁵⁷ 1996 ILC Draft Code. For the discussion on the 1991 version, see 1991 ILC Draft Code. For the changes in the Report of the Special Rapporteur, see Thirteenth Report on the Draft Code of Crimes against the Peace and Security of Mankind, by Mr. Doudou Thiam, 24 Mar. 1995, UN Doc. A/CN.4/466.

⁵⁸ For a further analysis see Swart (1993) 11 *NEP* 173 *et seq.*; Specht, *Die zwischenstaatliche Geltung des Grundsatzes ne bis in idem* (1999) 66 *et seq.* 87 *et seq.*; Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004) 54 *et seq.* See also Morosin (1995) 64 *NordJIL* 266.

⁵⁹ 1996 ILC Draft Code, p. 71. Article 55 of the Schengen Convention contains comparable exceptions to the general *ne bis in idem* expressed in article 54, see mn 11.

⁶⁰ *Ad Hoc* Committee Report, p. 9, para. 43.

⁶¹ *Ibid.*, see also para. 179.

⁶² 1994 ILC Draft Statute, p. 118.

⁶³ For an analysis of the concept of the 'same act' in a national context, see Neuhaus, *Der strafverfahrensrechtliche Tatbegriff – 'ne bis in idem'* (1985); Friedland, *Double Jeopardy* (1969) 89–115.

concerning the scope of *ne bis in idem* was caused by the differences between legal systems with regard to prosecutorial appeal and revision. Finally, the placement of the principle was debated: was it to be regarded as a general principle of criminal law, part of the procedural rules or part of the jurisdictional mechanism of the ICC⁶⁴.

- 19 As already mentioned above, article 42 '*Non bis in idem*' 1994 ILC Draft Statute was largely based on the corresponding regulations of the Statutes of the *ad hoc* Tribunals. It consisted of three paragraphs dealing with the *res iudicata* effect of judgements of the ICC with regard to other courts and *vice versa* (paragraphs 1 and 2). For the latter, it formulated exceptions relating to the legal qualification of a conduct as an 'ordinary crime' as well as with a view to proceedings that were not conducted impartially or independently, or with the purpose of shielding a person from international criminal responsibility (paragraph 2 *literae* a and b). Paragraph 3 permits the ICC to take into account served sentences when considering the penalty in a retrial. The 1995 *ad hoc* Committee underlined the paramount importance of the concepts of admissibility and *non bis in idem* for implementing the principle of complementarity⁶⁵. The most decisive phases of the preparatory work for the formulation of the *ne bis in idem* principle in the Rome Statute were the sessions of the Preparatory Committee in 1996 and 1998⁶⁶. The 1996 Preparatory Committee I discussed technical aspects of *non bis in idem* in the context of complementarity⁶⁷. In the compilation of all proposals, Preparatory Committee II 1996 the principle appears firstly as article D under 'General Principles of Criminal Law' and secondly as article 42 under 'The Trial'⁶⁸. Article 13 [42] of the Zutphen Draft, which was the basis for the discussions in the sixth session of the Preparatory Committee in 1998, reproduced article 42 of the ILC Draft Statute and the majority of the proposals contained in the Preparatory Committee II 1996 in the section on jurisdiction⁶⁹. During the final session of the Preparatory Committee in 1998, the article was largely rewritten and consolidated as well as renamed '*ne bis in idem*' (article 18)⁷⁰. At the Diplomatic Conference, the compromise of article 18 Preparatory Committee Draft was successfully maintained. No remarkable discussion on the substance of the provision took place. The draft article remained unchanged except for the editorial modifications in the references to crimes; a qualifier was added to paragraph 3 (b), and a minor addition was made to the chapeau of paragraph 3, as will be discussed below. Article 19 Preparatory Committee Draft, allowing for retrials by the ICC in cases where sentences were not properly enforced, was not included in the final package⁷¹.

Before analysing the elements of article 20 in detail, it shall be noted that while departing from a rather uniform language with regard to the constituent elements of *ne bis in idem* in all cases ('for acts constituting a crime', 'has [already] been tried') in article 42 of the 1994

⁶⁴ The 1994 ILC Draft Statute had placed its article 42 on *ne bis in idem* in 'Part 5. The Trial'. The 1996 Preparatory Committee II additionally listed the principle as article D under 'Part 3bis General Principles of Criminal Law'. The article was finally moved to 'Part 2. Jurisdiction, Admissibility and Applicable Law' in the Zutphen Draft. See e.g. Saland, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 213.

⁶⁵ *Ad Hoc* Committee Report, p. 20, para. 92.

⁶⁶ A French proposal was introduced in August 1996 (Draft Statute of the ICC, UN Doc. A/AC.249/L.3). It dealt with aspects of the jurisdictional model and *ne bis in idem* in a different setting. France proposed that it should always be possible to indict again based on new evidence. Major parts of the French proposal were endorsed by the various compilation papers prepared by informal groups during the August session that had been collected in the Preparatory Committee II 1996.

⁶⁷ Preparatory Committee I 1996, paras. 170–174.

⁶⁸ Preparatory Committee II 1996, pp. 86 and 202. During the August 1997 session of the Preparatory Committee the principle of *ne bis in idem* was marginally touched upon informal consultations on issues of admissibility (see Preparatory Committee Decisions Aug. 1997, p. 10–12, Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 56.

⁶⁹ Zutphen Draft, pp. 46–47.

⁷⁰ See article 18 Preparatory Committee Draft, pp. 45–46.

⁷¹ For details see mn 51 *et seq.* See also Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 51–56, 59–60.

ILC Draft Statute, the compromise established during the final session of the Preparatory Commission and subsequently adopted by the Rome Conference provides for evident variations in the wording regarding *idem* ('conduct which formed the basis of crimes', 'crime referred to in article 5', 'conduct also proscribed under article 6, 7 or 8') as well as *bis* ('has [already] been convicted or acquitted', 'has been tried').

B. Analysis and interpretation of elements

I. Paragraph 1

The 1994 ILC Draft Statute had not foreseen an express regulation prohibiting the Court 20 from trying somebody already convicted or acquitted by the Court itself. In the 1998 Preparatory Committee, some delegations expressed concern about this lack of a general statement according to which the ICC would be bound by the *ne bis in idem* principle in relation to earlier decisions of its own. Although this was understood as self-evident by other delegations, the general feeling was that it would provide clarification and would do no harm⁷². Drafting was proposed by Portugal: '1. No person shall be tried before the Court without prejudice to article 75 [revision, footnote omitted] or before another court for acts constituting a crime of the kind referred to in article 5 (20) for which that person has already been tried by the Court'⁷³. The U.S. delegation put forward the following proposal: 'Except as provided in this Statute, no person shall be tried before the Court for acts for which he has already been convicted or acquitted by the Court'⁷⁴. Their proposals were deemed useful and a paragraph was added to the draft article.

1. 'Except as provided in this Statute'

This is a catch clause to avoid listing the provisions in the Statute enabling subsequent 21 proceedings in a case, such as appeal and revision (on the reformulation of charges, see mn 24). Some delegations believed that no further drafting would have been needed to state that the means expressly provided for the ICC by the Statute do not contradict *ne bis in idem*. The substantive discussion on what exactly should be provided was conducted in the negotiations on Part 8 (Appeal and Revision) of the Statute. It reflected the general differences between the continental law and common law views on the acceptability of appeals by the prosecutor and of revision in general. The right of appeal was granted almost identically to the accused and the prosecutor, see article 81. This would not constitute an 'exception' to *ne bis in idem* for many civil law countries, where appeals are often considered as part of a proceeding and *ne bis in idem* only applies after all ordinary remedies have been exhausted (see also *infra* mn 23). However, although the Rome Statute allows for prosecutorial appeal, which is generally prohibited in common law systems, the language of this paragraph labelling it 'exceptional' seems at least to reflect the restraint of common law⁷⁵. It should be noted in this context that the Appeals Chamber may either reverse or amend a judgement itself, thereby enjoying all

⁷² Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 58.

⁷³ Portugal also argued that the title of the article should be changed from '*non bis*' to '*ne bis*' in *idem*, and that it should be in the part on 'the General Principles of Law', see UN Doc. A/AC.249/1998/WG.2/DP.6 (25 Mar. 1998), notes 1 and 2. This follows the commentary of Wise (1998) 13*bis* NEP 43 as well as the systematic of the 1996 ILC Draft Code. See also Eser (1993) 11 NEP 48, note 16.

⁷⁴ U.S. Delegation, 3/8/981.

⁷⁵ van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 722. See also e.g. Costa (1998) 4 *University of California Davis JIL&Policy* 198 *et seq.*; Baum (2001) 19 *WisconsinILJ* 222 argues that the absence of jury trials before the ICC may justify the ICC Prosecutor's right to appeal acquittals even from a double jeopardy perspective. For an analysis of relevant international provisions see e.g. Brady and Jennings, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 294.

powers of the Trial Chamber, or order a new trial before a different Trial Chamber, see article 83 para. 1 and 2 *lit.* a and b. Revision of a conviction or sentence may be claimed by or on behalf of a convicted person, if new evidence has been discovered, decisive evidence was false, forged or falsified, or in case of a serious misconduct of serious breach of duty by a judge, article 84, *lit.* a–c. A proposal to permit the prosecutor to seek revision on the basis of newly discovered evidence also to the detriment of the accused was met with strong criticism for being contrary to *ne bis in idem* and was omitted.

2. ‘conduct which formed the basis of crimes’

- 22 When should a second prosecution for a different offence be barred? It became evident in the negotiations that no single, mechanical test could cope with the variety of situations that might arise. Each of the paragraphs of article 20 contains a different formulation to describe the scope of *ne bis in idem*⁷⁶. The wording of paragraph 1, defining *idem* by the same historical facts, leaves room for a broad interpretation of the protection. Accordingly, a subsequent trial for a different qualification based on the same historical facts would be prohibited. If a person was acquitted for genocide, a new trial for crimes against humanity with respect to the same conduct would constitute an *idem*. Certainly, this broad protection is inherently confined to the subject matter jurisdiction of the ICC⁷⁷. The Court has no competence to try crimes other than those listed in article 5 and defined in its Statute. In order to avoid acquittals on the ground of wrong legal qualification of the facts, the Prosecutor benefits from the fact that the categories of crimes under the jurisdiction are partly overlapping. It was standard practice of the prosecutor of the *ad hoc* Tribunals to include several types of charges for each alleged incident and leave the classification to the judges. One might wonder whether this policy does not complicate the work of the defence and prolong the trials considerably. Forthcoming case law might slowly ease the problem as the definitions of the crimes become more concrete and the borders between the categories become more established⁷⁸

3. ‘convicted or acquitted by the Court’

- 23 The application of *ne bis in idem* involves determining the point in time and the circumstances in which it can be said that the first ‘jeopardy’ has been attached. Even proceedings terminated before judgement might raise the question of a *bis in idem* in the same court. The drafters of the ICC Statute, however, did not think that the protection should cover such cases⁷⁹. Paragraph 1 restricts the scope of the protection to a person ‘convicted or acquitted by the Court’. It targets the final decision of the ICC⁸⁰. However, the Rome Statute gives no clear indication of whether a conviction or acquittal rendered by the first instance is regarded as such a final decision or whether only a non-appealable judgment can establish *res iudicata*. The latter would be in conformity with the application of *ne bis in idem* by regional human rights organs, as well as the civil law tradition who consider a judgment as final only

⁷⁶ Critical Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 58 who comments that ‘[t]he rationale of this difference was never fully explained’.

⁷⁷ ‘The broad and the narrow interpretation coincide’, Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 722.

⁷⁸ The judges of the ICC expressed the view that they are bound by the facts underlying the charges against an accused but not by their legal qualification (*iura novit curia*): ‘In its decision under article 74, the Chamber may change the legal characterisation of facts to accord with the crimes under articles 6, 7 or 8, or to accord with the form of participation of the accused under articles 25 and 28, without exceeding the facts and circumstances described in the charges and any amendments to the charges’. (Regulation 55 para. 1). For the practice of the ICTY see above note 53.

⁷⁹ Similarly also the Trial Chamber of the ICTY: ‘there can be no violation of *non-bis-in-idem*, under any known formulation of that principle, unless the accused has already been tried’, *Tadić*, above note 50.

⁸⁰ See 1996 Preparatory Committee I, p. 39, para. 170.

after all ‘ordinary remedies’ have been exhausted⁸¹. According to this view, only decisions of the Appeals Chamber and those of a Trial Chamber against which no appeal has been filed within a period of 30 days (extendable) after notification of the appealing party could be considered as final (see rule 150). But relying on the wording and the discussion during the drafting process, it seems arguable that not only revision but also appeal is an exceptional measure with regard to the prohibition of a retrial after conviction or acquittal by the Court⁸². Hence, a Trial Chamber’s judgement on the merits of the case may suffice to trigger *ne bis in idem*. Appeal and revision before the ICC would still be in conformity with article 20 due to their exceptional character, but any other proceedings would be already barred through the Trial Chamber’s judgement. The latter interpretation is more favourable to the individual, in particular regarding its application under para. 2 (*infra* mn 29).

Before the final decision is taken, however, paragraph 1 is not applicable. It covers neither a ruling on inadmissibility nor decisions on amendment, withdrawal, reclassification⁸³ or non-confirmation of charges, see, e.g., article 61 para. 7 (c) (ii) and article 53 para. 4. Furthermore, it was made clear during the negotiations that *res iudicata* should not apply for proceedings discontinued for technical reasons⁸⁴. As there are no provisions on statutory limitations, it seems that new evidence found any time after such proceedings may reactivate investigation and lead to a new surrender and procedure on the confirmation of the charges⁸⁵.

II. Paragraph 2

1. ‘by another court’

Paragraph 2 establishes that a decision by the ICC is final with regard to any other proceeding before any other national or international court. This protection is absolute in terms of opening no exceptions⁸⁶. The focus during the negotiations was exclusively on national courts. The wording encompasses all civilian and military courts, be they permanent or *ad hoc*. At the Preparatory Committee 1998, attention was drawn to the fact that ‘by another court’ could mean courts of States parties only, as the Statute as a whole can in any case address parties only⁸⁷. This can, understandably, lead to unsatisfactory results from the point of view of the individual. There is, however, hardly anything the Statute could have done about it. It depends on the general respect for the ICC judgements whether an individual is – after conviction or acquittal by the ICC – to face secondary proceedings in a non-State party⁸⁸. It should be kept in mind that the notion ‘any other court’ is in not limited

⁸¹ See above notes 25 and 26. This was also the approach adopted by the 1996 ILC Draft Code, p. 68–9 ‘finally convicted or acquitted’ applies ‘only to a final decision on the merits of the charges against the accused which was not subject to further appeal or review’. See also AIDP (ed) (2004) 75 RIDP 802, I 5.2.

⁸² See mn 21; van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 722; Klip and van der Wilt (2002) 73 RIDP 1121; Staker, article 81, mn 7. See also e.g. *travaux préparatoires*, above note 36, the CCPR and *Prosecutor v. Barayagwiza*, Case No. ICTR-97-19-AR72, Decision on the Prosecutor’s Request for Review or Reconsideration, Appeals Chamber, 31 March 2000, para. 49.

⁸³ A reclassification may even occur at the latest possible time of the proceedings, *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-3319, Decision on the implementation of regulation 55 of the Regulations of the Court and severing the charges against the accused persons, Trial Chamber II (21 November 2012).

⁸⁴ See e.g. 1996 Preparatory Committee I, article 42, para 170, p. 39; 1996 ILC Draft Code, p. 69.

⁸⁵ Critical e.g. Costa (1998) 4 *University of California Davis JIL&Policy* 199; Conway (2003) 3 *ICLRev* 382 arguing for a strict construction of the provisions on prosecutorial appeal and revision.

⁸⁶ De la Cuesta (2002) 73 RIDP 732, van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 723.

⁸⁷ The same is true with regard to States that have accepted the jurisdiction of the Court with respect to a situation by declaration (article 12 para. 3, rule 44, see thereto e.g. Bassiouni (1999) 32 *CornellILJ* 443, 453–4 and States involved in a situation, which is referred to the ICC by the Security Council under Chapter VII of the Charter of the United Nations (article 13 *lit. b*).

⁸⁸ See also e.g. Palmisano, in: Lattanzi and Schabas, *Essays on the International Criminal Court* (1999) 391, 415. On the evolution of a customary *ne bis in idem* rule with regard to international crimes see Cassese,

per se. Its restrictive application only to States parties derives from the international law maxim *pacta tertiis nec nocent nec prosunt*, also enshrined in article 34 VCLT. Therefore, in a reversed situation, namely a first trial in a non-State party, the ICC will have to conform to paragraph 3 and exercise jurisdiction only if the criteria for exceptions of that paragraph are fulfilled⁸⁹. Truth and reconciliation commissions, even if organised as quasi-judicial bodies, do not qualify as courts in the sense of article 20⁹⁰.

- 26 As already mentioned, ‘by another court’ also encompasses international or internationalized courts. Courts in this context are to be understood as international adjudicating bodies, including, *e.g.*, the *ad hoc* international criminal tribunals, other mixed or hybrid courts and tribunals⁹¹ and potential regional criminal courts⁹². As a result of their distinctly temporary jurisdiction, jurisdictional conflicts between the ICC and the ICTR are categorically excluded, but with regard to the ICTY, at least theoretically possible⁹³. Due to the particular nature of the ICTY, established by Security Council Resolution under Chapter VII of the Charter of the United Nations, as well as its speciality, the ICTY would prevail already at the stage of establishing jurisdiction⁹⁴. Therefore, it is most unlikely that the question of the *res iudicata* effect of an ICC decision towards the ICTY would come up in practice. If such a case occurred, the ICTY Statute, since it was drafted before the establishment of an international criminal court, does not acknowledge any *ne bis in idem* protection from ICC judgements. The same is true *e.g.* with regard to the Statute of the Special Court for Sierra Leone. It has been suggested in this regard that the ICC, based on the interpretation of its complementary jurisdiction as an extended national jurisdiction, should be treated the same way as a national court⁹⁵. However, this practical solution may not completely capture the particular nature of the ICC jurisdiction. To avoid loopholes, it would be advisable to include reference to the *res iudicata* effect of ICC judgements in Statutes of international, regional, mixed or hybrid courts and tribunals, should they be established

2. ‘for a crime referred to in article 5’

- 27 Until the last session of the Preparatory Committee in 1998, the draft on this part read as follows: ‘for conduct constituting a crime referred to in article 5’⁹⁶. During the discussions,

International Criminal Law (2003) 320. A related problem on whether a conviction or acquittal on the merits by a court without jurisdiction bars subsequent proceedings, is recognized in and between States, see Friedland, *Double Jeopardy* (1969) 77–86.

⁸⁹ See *e.g.* Klip and van der Wilt (2002) 73 *RIDP* 1123, referring to Lattanzi, in: Politi and Nesi (eds), *The Rome Statute of the International Criminal Court. A Challenge to Impunity* (2002) 181; Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 70; Palmisano, in: Lattanzi and Schabas, *Essays on the International Criminal Court* (1999) 39, 395 *et seq.* See also articles 18 and 19 Rome Statute providing a possibility for non States-parties to challenge the admissibility of a case before the ICC. For details see *e.g.* Broomhall, *International Justice and the International Criminal Court* (2003) 88; El Zeidy (2006) 19 *LeidenJIL* 741; Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 77.

⁹⁰ Scharf (1999) 32 *CornellILJ* 507, 525; see also Dugard, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 702.

⁹¹ A classification of mixed or hybrid courts and tribunals as rather international or national is not necessary with regard to article 20, but may be relevant in the context of article 17. See thereto *e.g.* Benzing and Bergsmo, in: Romano et al. (eds), *Internationalized Criminal Courts* (2004) 407, 411 *et seq.*

⁹² See *e.g.* efforts of the African Union to establish a criminal chamber at the (proposed) African Court of Justice and Human Rights, Draft Protocol on Amendments to the Protocol on the Statute of the African Court of Justice and Human Rights as adopted by the African Union: Summit 2014, Doc. No. Ex.CL/846 (xxv) Annex 5.

⁹³ The temporal jurisdiction of the ICTR is limited to violations committed between 1 Jan. 1994 and 31 Dec. 1994 while the ICC’s jurisdiction *ratione temporae* concerns crimes committed after the entry into force of the Rome Statute on 1 July 2002. The ICTY’s jurisdiction for serious violations of international humanitarian law committed in the territory of the former Yugoslavia since 1991, on the other hand, is open-ended.

⁹⁴ See Bohlander, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 688 *et seq.* Given the absence of a respective provision in the Rome Statute as well as in the ICC Rules Bohlander *op. cit.* 690 suggested an amendment to the Rules to this effect.

⁹⁵ De la Cuesta (2002) 73 *RIDP* 735.

⁹⁶ This formulation was introduced by a Chairman’s working paper. Article 12[42] Zutphen Draft, p. 46 had used the formulation ‘acts’ instead of ‘conduct’, see also mn 39.

the question arose of whether this paragraph prohibited a national court from prosecuting somebody for murder or injury if the ICC had previously acquitted the same person for genocide, e.g. because of insufficient proof of his or her genocidal intent. If that was the proper interpretation, the reduction of wording was necessary. According to this view, a State should always have the right to charge for, e.g., murder or injury afterwards. References to various national legislations were made, emphasizing that they widely recognize the right to prosecute a person tried abroad. As a further justification it was supposed that the sentence imposed in the earlier trial is usually taken into account. In addition, it was suggested that the wording 'conduct constituting a crime' would restrict the right of interpretation by national courts, in a manner that contradicts the notion of complementarity. The fear was expressed that loopholes were inserted in the system of criminal repression because a national court could not try anew even if new evidence were found. This logic is, of course, somewhat in contradiction with the consequence of complementarity, according to which the ICC will only have jurisdiction if the national courts are unwilling or unable to prosecute. If the State obtains evidence and conducts a trial, the ICC has no jurisdiction to start with. The proposed scenario might become plausible only in cases where the domestic attitude or capability towards prosecution changes, after the ICC has already tried the case.

A proposal was made to improve the draft, but several delegations were of the view that additional drafting would just complicate matters. The result was to be achieved by merely interpreting the paragraph as it was: national courts can try crimes outside the jurisdiction of the ICC. Some delegations suggested that the proposed additions would undermine the protection of *ne bis in idem* completely. It was also pointed out that the accused should not be forced to bear the consequences of the fact that evidence was not found early enough. After elaborate discussions, the compromise 'for a crime referred to in article 5' was accepted. The idea is that since the ICC does not have jurisdiction over crimes under national law, there is a need to ensure that a person who commits such a crime does not escape responsibility simply because in the ICC trial it is not proven beyond reasonable doubt that the acts amounted to a crime under the jurisdiction of the ICC⁹⁷. As a result of this change, however, a person convicted by the ICC may consequently also be tried for crimes under national law for the same conduct⁹⁸. The wording even allows retrials for 'a crime referred to in article 5' that was not subject to the final judgement of the ICC. Furthermore, the Rome Statute is silent with regard to multiple subsequent procedures in different national systems. Considering the international character of the crimes in question, different States may be able to establish jurisdiction. The protection of the individual in these cases solely lies on the domestic acceptance of transnational *ne bis in idem*, which is limited⁹⁹.

⁹⁷ Amnesty International, above note 17, 39, supporting the drafting.

⁹⁸ Critical thereto, demanding that downward '*idem*' also has to be determined by the same facts, barring a national court to retry the accused on the basis of the same conduct which constituted the basis of the trial before the ICC, AIDP (ed) (2004) 75 RIDP 806 at III 2.1.; van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 724 also referring to the missing obligation to deduct the sentence imposed by the ICC; de la Cuesta (2002) 73 RIDP 732. In this line also Baum (2001) 19 *WisconsinILJ* 197, 223–4 claiming that the ICC downward *ne bis in idem* opens a loophole, although it is to be seen in conformity with the US Double Jeopardy Clause's dual sovereignty exception. Relying on a teleological interpretation Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004) 270 argues against the possibility of a national retrial after conviction by the ICC: the purpose of the provision was only to avoid impunity of a perpetrator acquitted by the ICC e.g. for lack of genocidal intent although the *actus reus* was beyond reasonable doubt.

⁹⁹ Although the Rome Statute is arguably not the proper instrument to encounter shortcomings in the general acceptance of transnational *ne bis in idem*, it is unfortunate that the chance to regulate at least issues directly linked to the prosecution of core crimes has not been taken up. It has been suggested that national implementation acts comprise a detailed regulation regarding *ne bis in idem* to counter such shortcomings and provide for a complete protection of the individual. See e.g. de la Cuesta (2002) 73 RIDP 733; AIDP (ed) 75 RIDP 804 *et seq.*, I 1, III 4 and 806, III 2.1.

3. ‘convicted or acquitted by the Court’

- 29 The term ‘convicted or acquitted by a final judgement of the Court’ was introduced by a proposal in the 1996 Preparatory Committee II¹⁰⁰ with regard to paragraph 2 as an alternative to the wording ‘has already been tried’ originally foreseen in the 1994 ILC Draft Statute. The implications of this change in language will be discussed in the context of paragraph 3 (*infra* mn 34). The term is to be understood identically as in paragraph 1, referring to a final decision on the merits of the case¹⁰¹. Before this decision has been rendered, *ne bis in idem* does not apply. An interpretation proposed by the U.S. Delegation suggested that ‘convicted or acquitted’ in the context of paragraph 2 means that national criminal systems can act also when the case has been withdrawn or stayed in the ICC. This would mean that in addition to the general right of States to always try the same conduct as crimes not falling under the jurisdiction of the ICC, they could also try a crime referred to in article 5, unless a conviction or acquittal was issued by the Court. This reveals a major imbalance with regard to article 17. A case will be inadmissible before the ICC as long as it is being investigated or prosecuted by a State (para. 1) or if a State has conducted an investigation and decided not to prosecute the person in question (para. 2). Besides, neither proceedings before the ICC, nor the ICC Prosecutor’s decision not to proceed bar the opening of national investigations and prosecution¹⁰².

III. Paragraph 3

- 30 Paragraph 3 contains the most complicated and controversial part of article 20. Providing the possibility of exceptions to *ne bis in idem*, it confirms that the protection does not cover national and international decisions equally. In the case of national decisions, the presumption of the application of *ne bis in idem* can be overruled by the ICC. The core idea is that certain criteria concerning the quality of criminal justice need to be fulfilled by national proceedings. This thesis contains an implication of the primacy of the ICC and was vehemently contested by some delegations. Others held it as an indispensable element if the system of international repression is to gain any credibility. The *credo* was: If criminal justice is said to be done, it is to be done properly.
- 31 The exceptions to *ne bis in idem* were difficult to define. It has been suggested that they will also be burdensome to prove. The most frequent question during the negotiations was: who has the competence to decide on the exceptions? Who has the burden of proof on whether the national decision is flawed in the way described? How to overcome the fears that exceptions expose national jurisdictions to unauthorized and summary evaluation by an international organ? How to define the exceptions in a way that is not ‘subjective’ but ‘objective’¹⁰³?
- 32 As noted earlier, article 42 of the ILC Draft Statute was built on the model of the *ad hoc* tribunals. Its paragraph 2 contained the exceptions: ‘(a) the acts in question were characterized by that court as an ordinary crime and not as a crime which is within the jurisdiction of

¹⁰⁰ 1996 Preparatory Committee II, article D, p. 86; article 42, p. 202. It may be noteworthy that at the same time the 1996 ILC Draft Code, referring in its *non bis in idem* provision uniformly to ‘convicted or acquitted’, was released and might have been a source of new language, see above mn 17.

¹⁰¹ For further consideration with regard to the finality of a judgment by the Court see above mn 23.

¹⁰² Klip and van der Wilt (2002) 73 *RIDP* 1121. See under this aspect also the possibilities of States to retry a person after ICC proceedings, whereas the ordinary crime exception was deleted also because of *ne bis in idem* arguments (see mn 33); Conway (2003) 14 *CLF* 358.

¹⁰³ The discussion seemed to take it for granted that objectivity of language as such could be achieved, if only the correct wording were found. See 1996 Preparatory Committee I, p. 39, paras. 172 and 174; ‘article 42 (b) should not include any wording which could be conducive to subjective interpretation’. See also Triffterer, 2nd edition, *Preliminary Remarks*, mn 50; Holmes, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 673 *et seq.*

the Court; or (b) the proceedings in the other court were not impartial or independent or were designed to shield the accused from international criminal responsibility or the case was not diligently prosecuted'. These grounds resemble to a great extent the grounds of deferral of a case in the Statutes of the *ad hoc* tribunals¹⁰⁴. Both the deferrals and the exceptions to *ne bis in idem* seem to stem from the basic *raison d'être* of international jurisdiction: it is to step in when national justice fails.

Subparagraph (a) was contested throughout the preparatory work¹⁰⁵. As pointed out in the ILC report, many legal systems do not recognize the distinction between 'ordinary' and other crimes. In many cases 'ordinary' crimes include very serious crimes subject to the most serious penalties¹⁰⁶. The exception boldly seemed to obligate a State to qualify these acts as 'international crimes'. It was held by some delegations that, according to the notion of complementarity, national and international courts must have the right to evaluate the facts differently without ICC interference. It was also not accepted that the person concerned should bear the risk of being tried twice because of the categorization of the crime in his or her trial¹⁰⁷. In the Preparatory Committee 1998, a deletion or modification of the wording of the exception was generally requested¹⁰⁸. A redrafting of *litera a* was proposed, based on the Commentary of the ILC Draft¹⁰⁹. Another proposal made the severity of the sentence imposed in the first trial an indicator of its appropriateness. As the only plausible compromise, the exception was deleted completely. Nevertheless, significant undercharging of conduct also proscribed under article 6, 7 and 8 as well as inadequacy of the sentence may be regarded as falling under one of the exceptions of paragraph 3¹¹⁰.

As for the remaining two exceptions, both previously contained in *litera b*, it was deemed that the least controversial way to define them was to adopt the language of complementarity in article 17, already agreed upon¹¹¹. The emphasis of the paragraph was reversed so as to underline the generality of the *ne bis in idem* principle and the marginality of the exceptions. A simple reference to article 17 was also proposed but rejected as it would have meant also

¹⁰⁴ According to article 9 of the ICTY Statute, its Prosecutor may formally request that the national courts defer where it appears to him (rule 9 ICTY Rules of Procedure and Evidence) 'that in any such investigations or criminal proceedings instituted in the courts of any state (i) the act being investigated or which is the subject of those proceedings is characterized as an ordinary crime; (ii) there is a lack of impartiality or independence, or the investigations or proceedings are designed to shield the accused from international criminal responsibility, or the case is not diligently prosecuted; ...'.

¹⁰⁵ *Ad Hoc* Committee Report, para. 43; 1996 Preparatory Committee I, para. 171, which records some support for the formulation as well. See also Amnesty, inquiring whether 'the ICC should not be able to retry a person who killed 500 people and was convicted in a national court or manslaughter, for which the maximum sentence is much shorter than for genocide?', above note 17 and 42.

¹⁰⁶ See 1994 ILC Draft Statute, p. 118.

¹⁰⁷ Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 57 *et seq.*; Conway, (2003) 14 *CLF* 358; Morosin, (1995) 64 *NordicJIL* 264 *et seq.* See also mn 32.

¹⁰⁸ See Wise (1998) 13*bis* *NEP* 44, who believes that this exception 'seems to put too much weight on labels. If the first sentence was sufficiently severe, why should it matter, for instance, that a soldier who unlawfully killed civilians was prosecuted for murder rather than a violation of the laws of war?' The problem of this example is that the ICC was denied any explicit competence to determine whether the sentence was 'sufficiently severe'. The proposals to that effect were deleted. The severity of the penalty must be, however, one element in deciding whether the 'proceedings [...] were for the purpose of shielding the person', article 20 para. 3 (a). Critical with regard to the abolition of the ordinary crime exception, see e.g. AIDP (ed) (2004) 75 *RIDP* 806, III 3.

¹⁰⁹ On the reasons of the ILC to include this exception, see 1994 ILC Draft Statute, p. 118, para. 6. The redrafting was proposed already in Preparatory Committee in 1996, see 1996 Preparatory Committee I, p. 39, para. 171. See also the Updated Siracusa Draft, pp. 87–88. See in this regard still Preparatory Committee Draft, p. 45, fn. 59.

¹¹⁰ Mn 46; van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 725 *et seq.*; Vander Beken et al. (2002) 73 *RIDP* 842–3. The ILC, using a comparable formulation in its 1996 Draft Code saw the possibility of fraudulent administration of justice as falling under the exception: 'The failure to impose a punishment that is proportional to the crime or to take steps to enforce a punishment may indicate an element of fraud in the administration of justice', see 1996 ILC Draft Code, p. 69.

¹¹¹ On the discussion on article 42 para. 2 (b) of the 1994 ILC Draft Statute, see 1996 Preparatory Committee I, p. 39, paras. 172–174; *Ad Hoc* Committee Report, p. 35, paras. 177–8 and 180.

including the additional complementarity criteria, such as delay and inability. Several delegations supported the idea that the compromise of August 1997 on complementarity should be introduced for article 20 as well, so as to avoid the reopening of endless debates. The interpretation of the exceptions under article 20 para. 3 was consequently meant to be in accordance with article 17 para. 2 *lit. a* and *c*. Point of reference with regard to establishing the threshold for exceptions will be the usual national practice in comparable cases¹¹². The exceptions are discussed below.

1. 'has been tried'

- 35 In contrast to paragraphs 1 and 2, both referring to 'convicted or acquitted by the Court', paragraph 3 provides *ne bis in idem* for a person who 'has been tried by another court'. The different wording suggests a different meaning, taking into account not only another court's final decision on the merits of the case, an acquittal or a conviction, but also other decisions terminating criminal proceedings¹¹³. With reference to interpreting the clause in conformity with the notion of complementarity, it was proposed that a *bona fide* effort by national authorities to prosecute would suffice in order to bar the ICC from exercising jurisdiction. A national decision not to proceed because of insufficient evidence or because prosecution would not serve the interest of justice would suffice¹¹⁴. But would this satisfy the requirement that a trial in fact has been conducted and a final decision has been reached?

To clarify which court decisions, other than acquittals or convictions, may fall under the notion 'has been tried', a closer look at article 17 where the same notion is used in *litera c* could be helpful. It is assumed that the three situations described in article 17 *literae a* to *c* cover a State's complete range of activities with regard to criminal procedure from the opening of an investigation until the final judgement, leaving no loopholes¹¹⁵. Ongoing criminal procedures at whatever stage fall under *litera a* ('is being investigated or prosecuted')¹¹⁶. *Litera b* covers situations where a procedure has come to an end ('has been investigated ... and ... decided not to prosecute'). The wording suggests that *e.g.* a decision not to proceed to trial falls under *litera b*¹¹⁷. *Litera c* therefore deals with procedures that have been terminated after reaching the trial stage. In this regard, the transfer of the decision-making competence from the prosecuting authority to the judicial organ has been identified as the decisive element¹¹⁸. Following this approach, any Court decision terminating proceedings according to the respective domestic criminal procedural law would fall under the notion 'has been tried'. This suggestion seems plausible under article 20 as well as under article 17¹¹⁹. It has further been suggested that a national decision is to be regarded as final even before all possible remedies are exhausted¹²⁰.

¹¹² In this regard also *e.g.* Holmes, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 679.

¹¹³ In this regard see *e.g.* de la Cuesta (2002) 73 RIDP 732, Klip and van der Wilt (2002) 73 RIDP 1121; Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 78.

¹¹⁴ See I. Tallgren, *Article 20*, First Edition of this Commentary, mn 26.

¹¹⁵ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 77.

¹¹⁶ For the requirement of criminal proceedings see *e.g.* Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 77; Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 76; Scharf (1999) 32 CornellILJ 507.

¹¹⁷ In this regard *e.g.* Broomhall (1999) 13quarter NEP 146.

¹¹⁸ Meißner, *Die Zusammenarbeit mit dem Internationalen Strafgerichtshof nach dem Römischen Statut* (2003) 77. The author further argues that there are no reasons why any decision by a prosecuting authority not to proceed should suffice under article 17 *lit. b* but not a Court's decision terminating proceedings under *litera c* (*id.*, 78).

¹¹⁹ The issue is not yet finally solved See *e.g.* de la Cuesta (2002) 73 RIDP 732 referring *i.a.* to plea-bargains, diversion and out-of-court settlements.

¹²⁰ Klip and van der Wilt (2002) 73 RIDP 1121; El Zeidy (2002) 23 MichJIL 869, 939. For a comparable proposal regarding the reverse situation see above mn 23.

However, the view that ‘convicted or acquitted’ and ‘has been tried’ differ in substance, is not uncontested¹²¹. This alternative interpretation has also been voiced and is supported by the drafting process, which seems to have used the two notions interchangeably. The 1994 ILC Draft Statute had originally foreseen similar wording ‘has [already] been tried’ defining the ‘bis’ with regard to national decisions as well as those of the ICC. In its Commentary the ILC expressly refers to situations ‘where the first court actually exercised jurisdiction and made a determination on the merits’. With regard to the Court it further explained that either acquittal or conviction should be regarded a final decision barring any subsequent prosecution¹²². The ICTY jurisprudence backs this approach. In the *Tadić* case, expressly referring to article 42 para. 2 1994 ILC Draft Statute, the ICTY held that ‘there can be no violation of *non-bis-in-idem*, ... unless the accused has already been tried. Since the accused has not yet been the subject of a judgement on the merits on any of the charges for which he has been indicted, he has not yet been tried for those charges’¹²³. The ILC used the same line of argument with regard to article 12, 1996 Draft Code when determining the scope of ‘convicted or acquitted’¹²⁴. On this basis, the 1996 Preparatory Committee I emphasized that the protection ‘should apply only to *res iudicata* and not to proceedings discontinued for technical reasons’¹²⁵. The notion ‘convicted or acquitted’ with regard to paragraph 2 was introduced by an alternative proposal and made its way into the Zutphen Draft, finally being decided upon in the concluding session of the Preparatory Committee¹²⁶. Paragraph 3 on the other hand remained with the originally proposed language. This may also be due to the delegations’ desire not to reopen the compromise reached for article 17 para. 1 (c) which confirms that ‘a trial by the Court is not permitted under article 20, paragraph 3’ when ‘the person concerned has already been tried for conduct which is the subject of the complaint’¹²⁷.

Whatever approach the Court will follow, it is clear that the ICC will be barred from exercising jurisdiction as soon as national authorities will undertake a *bona fide* effort to prosecute. This follows from the rules of admissibility implementing the principle of complementarity in article 17. Whether the Court’s jurisdiction will be precluded on grounds of *ne bis in idem* will depend on its interpretation of the notion ‘has been tried’. The ICC will need to carefully scrutinize the national decision in question, also taking due account of domestic provisions regarding the finality of decisions and judgements (article 21 para. 1 *lit.*

¹²¹ For Broomhall ‘previous trial’ means ‘a previous investigation and prosecution has taken place and led either to conviction or acquittal’, Broomhall (1999) 13 *quarter NEP* 146; see also Bassiouni (2000) 71 *RIDP* 1, 21; Werle, *Principles of International Criminal Law* (2005), mn 546. Further in this line above note 18, AIDP (ed.) (2004) 75 *RIDP* 806, III 2 (referring to article 20 para. 2); Spinellis, (2002) 73 *RIDP* 1155 (interpreting the notion ‘has been tried’ in the context of the Statutes of the *ad hoc* tribunals); Bernard (2011) 9 *JICJ* 863, 877.

¹²² 1994 ILC Draft Statute, p. 118.

¹²³ *Tadić*, above note 50, para. 24.

¹²⁴ ‘The phrase ‘finally convicted or acquitted’ is used in paragraphs 1 and 2 to indicate that the *non bis in idem* principle would apply only to a final decision on the merits of the charges against an accused which was not subject to further appeal or review. In particular, the word ‘acquitted’ is used to refer to an acquittal as a result of a judgement on the merits, not as a result of a discharge of proceedings’, 1996 ILC Draft Code, pp. 68–9.

¹²⁵ 1996 Preparatory Committee I, p. 39, para. 170. This view on the other hand contradicts note 21, introduced in the Preparatory Committee Decisions Aug. 1997, article 35 (results of informal consultations on article 35), p. 11, identically still to be found in the Preparatory Commission Draft, article 15 (Issues of Admissibility), p. 41, note 42. This note relating to the article on issues of admissibility stated that it ‘should also address, directly or indirectly, cases in which there was a prosecution resulting in conviction or acquittal, as well as discontinuance of prosecutions and possibly also pardons and amnesties. A number of delegations expressed the view that article 42 [*ne bis in idem*], as currently worded, did not adequately address these situations for [purpose] of complementarity. It was agreed that these questions should be revisited in light of further revisions to article 42 to determine whether the reference to article 42 was sufficient or whether additional language was needed in article 35 to address these situations’.

¹²⁶ 1996 Preparatory Committee II, Article D, p. 86 *et seq.*; see also Zutphen Draft, article 13 [42], p. 46.

¹²⁷ See above note 111. Backing the view that the two notions are being used interchangeably, see article 42, paragraph 2 *bis lit. c*, 1996 Preparatory Committee II, p. 203, where a proposal relating to what is now article 17 uses the notion ‘acquitted or convicted’ where today we read ‘tried’. See also article 13 [42] Zutphen Draft, p. 47.

c). The distinction of the different notions used in articles 17 and 20 will be of relevance, e. g. with regard to article 19 para. 4 limiting '[c]hallenges to the admissibility of a case, at the commencement of a trial, or subsequently with the leave of the Court' to article 17 para. 1 *lit. c*.¹²⁸ ICC jurisprudence has so far concentrated on distinguishing *ne bis in idem* from other complementarity scenarios under article 17. Occasional references to the substance of the principle's elements emphasized 'decision on the merits' and 'final decision or acquittal' aspects of the notion 'has been tried'¹²⁹. While the exceptional relevance of other decisions was not categorically excluded, the ICC underlined that a trial was intrinsically related to a competent organ and decisions taken during pre-trial proceedings would not trigger article 20¹³⁰.

- 38 As already mentioned above, truth and reconciliation commissions do not qualify as courts in the sense of article 20. Furthermore, procedures before truth and reconciliation commissions, even those designed to be quasi-judicial, independent investigation commissions, fall short of the notion 'has been tried'¹³¹. Blanket amnesties granted without formal investigation or prosecution do in no way bar the ICC from exercising its jurisdiction¹³²; for amnesties at the enforcement level after the conduct of national criminal proceedings, see *infra* mn 54.

2. 'by another court'

- 39 The term 'by another court' is to be understood as in paragraph 2. With regard to the particularities of upward *ne bis in idem*, some points should be underlined. As elaborated above, another court refers to national courts of States parties, as well as those of non-States parties¹³³. The court, however, is assumed to be of a penal nature, conducting procedures with a view to 'bringing the person concerned to justice'¹³⁴. It also comprises international, internationalized and regional courts and tribunals. Due to the primacy of *ad hoc* tribunals

¹²⁸ See e.g. *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-1213-tENG, Reasons for the oral decision on the Motion challenging the admissibility of the Case, Trial Chamber II (16 June 2009) paras. 49–50. Broomhall (1999) 13 *quarter NEP* 147; mn 48.

¹²⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, No. ICC-01/05-01/08-802, Decision on the admissibility and abuse of process challenges, Bemba Gombo, Trial Chamber III (24 June 2010) para. 248. Article 20 ICCSt has so far not been at the core of an ICC decision. An initially introduced admissibility challenge on *ne bis in idem* was eventually not followed up, see *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-T-33, Initial Appearance of Mathieu Ngudjolo Chui (11 February 2008) p. 22-3. For a summary account see Carter (2010) 8 *Santa Clara Journal of International Law* 165, 185-6.

¹³⁰ *Prosecutor v. Jean-Pierre Bemba Gombo*, No. ICC-01/05-01/08-802, Decision on the admissibility and abuse of process challenges, Bemba Gombo, Trial Chamber III (24 June 2010), para. 248.

¹³¹ See e.g. Dugard, above note 90, 702; van den Wyngaert and Ongena, in: Cassese *et al.* (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 727; Vander Beken *et al.* (2002) 73 *RIDP* 844; Scharf (1999) 32 *CornellILJ* 525. Even the question of whether the procedure before quasi judicial truth and reconciliation commissions might be considered relevant for the admissibility of a case according to article 17 paras. 1 and 2 is judged rather sceptically. Restorative justice therefore may be best taken into account at an earlier stage, when the Prosecutor decides not to initiate an investigation because it would not serve the interest of justice (article 53 para. 1 *lit. c*) see e.g. Dugard, in: Cassese *et al.* (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 701-2; Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 77; Scharf (1999) 32 *CornellILJ* 524; van den Wyngaert and Ongena, in: Cassese *et al.* (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 726-7. For a wide discretion of national decisions not to prosecute (article 17 para. 1 *lit. b*) including for reasons of national reconciliation see e.g. Nsereko (1999) 10 *CLF* 87, 119.

¹³² E.g. Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 77; Nsereko (1999) 10 *CLF* 119; van den Wyngaert and Ongena, in: Cassese *et al.* (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 726. With regard to a customary law prohibition of amnesties for certain crimes see *in extensu* above Dugard, above note 90, 695 *et seq.* But see on this question also e.g. Schabas (2004) 11 *University of California Davis JIL&Policy* 145.

¹³³ See above mn 24, text before note 88.

¹³⁴ See in this regard article 17 para. 2 (b) and (c), as well as preambular paragraph 10 and article 1: the ICC 'shall be complementary to national criminal jurisdictions' (emphasis added); see also Scharf (1999) 32 *CornellILJ* 525..

established by Security Council Resolution under chapter VII and the speciality of mixed and hybrid courts, it is unlikely that a case falling under the jurisdiction of these adjudicating bodies would be tried before the ICC. If that was the case, article 20 para. 3 would apply.

3. ‘for conduct also proscribed under article 6, 7 or 8 [...] with respect to the same conduct’

At the Preparatory Committee 1998 the Chairman’s working paper stated: ‘A person who has been tried by another court for conduct constituting a crime referred to in article 5 [...]’. As in paragraph 2, an issue was raised with regard to ‘conduct constituting a crime’. Some States emphasized that conduct can constitute a crime only if a court has determined that that conduct constitutes a crime. This would not be logical in the case of an acquittal. The chairman proposed reintroducing the language of the ILC Draft Statute ‘acts constituting a crime of the kind referred to in [...]’ (article 42 para. 2). It was also proposed that the word ‘offence’ should be introduced; or that ‘constituting a crime’ should just be deleted. Some delegations preferred the original version, explaining that ‘conduct constituting a crime’ was not problematic as the estimation would be first ‘purely qualification *de facto*’, and only thereafter qualification *de jure* in the trial. The compromise proposal, ‘conduct also proscribed’, was a way out of the debate. The term is to be understood broadly¹³⁵. If a national trial has taken place for the conduct – falling under the jurisdiction of the ICC – the person shall not be tried again by the ICC. The categorization used in the national trial, *i. e.*, whether it relied on definitions derived from international law or crimes under national law, *e. g.* murder or rape, is not relevant. It is accepted that specific elements defining the international character of the crime may not be fully reflected under national law¹³⁶. Another issue is that reducing the national charge to a minimum so that it does not correspond to the conduct in question might fall under the exceptions in *lit. a* or *lit. b*.

The proposal submitted by Japan at the Conference¹³⁷, and modified to read: ‘with respect to the same conduct’, was added to the chapeau. This seems to clarify the obvious: a person could be tried before the ICC for conduct other than the one for which the national proceedings had been taken against him or her. Following the same rationale in the context of challenges to the admissibility of a case, ICC jurisprudence relies on a ‘same person, same conduct’ test also when determining ‘a case’ in accordance with Article 17 para. 1 *lit. a* and *b*¹³⁸.

At the Rome Conference, the originally proposed formulation ‘conduct constituting a crime referred to in article 5’ was changed to ‘conduct also proscribed under article 6, 7 or 8’¹³⁹. The

¹³⁵ Spinellis (2002) 73 RIDP 1159. For an approach understanding ‘conduct also proscribed under article 6, 7 or 8’ as holding an intermediate position between the notions ‘conduct which formed the basis of crimes’ and ‘crime referred to in article 5’ see Scheschonka, *Der Grundsatz ne bis in idem im Völkerstrafrecht unter besonderer Berücksichtigung der Kodifizierung durch das ICTY-Statut und das IStGH-Statut* (2004) 272 *et seq.*

¹³⁶ For a different approach see *e. g.* Broomhall, *International Justice and the International Criminal Court* (2003) 91–2 supporting the admissibility of a case when a State has exercised its jurisdiction on narrower grounds; El Zeidy (2002) 23 *MichJIL* 933–4. With a view to the jurisprudence of other international courts, *e. g.* the ECtHR developing an ‘essential element’ test (above note 25), or the ICTY applying the Blockburger-test (above note 54), it will be interesting to observe in what way the ICC will take into account the contextual elements of ‘conduct also proscribed under articles 6, 7 and 8’ when evaluating national prosecutions for ‘ordinary crimes’ under the viewpoint of *ne bis in idem*.

¹³⁷ UN Doc. A/CONF.183/C.1/L.18 (24 June 1998), proposing ‘for the same conduct’.

¹³⁸ *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-262, Decision on the Evidence and Information Provided by the Prosecution for the Issuance of a Warrant Arrest for Mathieu Ngudjolo Chui, Pre-Trial Chamber I (6 July 2007), para 21; *Prosecutors v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-8-Corr 17-03-2006, Decision on the Prosecutor’s Application for an Arrest Warrant, Article 58, Pre-Trial Chamber I (10 February 2006) para. 31; most recently *Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Senussi*, No. ICC-01/11-01/11-565, Judgment on the appeal of Mr Abdullah Al-Senussi against the decision of Pre-Trial Chamber I of 11 October 2013 entitled ‘Decision on the admissibility of the case against Abdullah Al-Senussi’, Appeals Chamber (24 July 2014) paras. 98 *et seq.*

¹³⁹ The reason for this change has never been made clear (Van der Beken *et al.* (2002) 73 RIDP 842). One explanation could be that since upwards *idem* is defined by ‘conduct constituting a crime’ meaning the historical

latter language evidently differs from paragraph 2 which maintains a reference to article 5. While paragraph 3 refers to genocide, crimes against humanity and war crimes, it manifestly calls upon its lacuna on the crime of aggression. This silence of the Statute may give the impression that national judgments on charges of aggression would never become *res iudicata* vis-à-vis the ICC. In other words, the ICC would have a higher power to control and reopen national proceedings regarding charges of aggression, even if none of the exceptions applied. This presumption may support the – rarely expressed – opinion that there should be no national proceedings involving the crime of aggression. Nevertheless, to assume such intent behind the formulation would go too far¹⁴⁰. The lack of reference could simply go back to the fact that the exercise of jurisdiction over the crime of aggression was postponed at the Rome Conference. States parties addressed this imbalance in an amendment adopted at the first Review Conference¹⁴¹. Considering the adoption of the amendments on the crime of aggression in accordance with article 5 para. 2 and their entry into force for ratifying or accepting states as foreseen in article 121 para. 5, this intended unification will only be accomplished when all states parties have ratified the amendments¹⁴². Until that time, the two versions of Article 20 para. 3 will co-exist.

4. ‘the proceedings in the other court’

- 43 This phrase contains the core reference for the ICC to determine whether a State is shielding a person from criminal responsibility or whether norms of due process recognized by international law have been violated. Not only the decision terminating a national proceeding, be it a final judgement on the merits or a decision not amounting to a conviction or acquittal, is under scrutiny. Emphasis is put on the conduct of a procedure in the other court as such¹⁴³. If one of the exceptions applies, the other court’s decision does not trigger *ne bis in idem* vis-à-vis the ICC and the Court may retry the person concerned

The drafting history of article 20 shows that the origin of this phrase is to be found in article 17 para. 2, where ‘[t]he term ‘proceedings’ covers both investigations and prosecutions’¹⁴⁴. Being specified as ‘court proceedings’, however, the question may arise whether the same broad understanding can be maintained with regard to article 20. On the one hand, a literal reading of the phrase might suggest a narrower view¹⁴⁵. While prosecution is

facts relevant for subsumption under the legal qualification, the reference to those articles precisely defining the conduct elements which constitute criminal behaviour might have seemed more appropriate than referring to the article merely listing the groups of crimes. On the different notions see also Klip and van der Wilt (2002) 73 RIDP 1122 *et seq.*

¹⁴⁰ See also van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 725. Even more, considering the fact that a number of States have implemented the customary crime of aggression into national criminal law, see Reisinger Coracini, in: Belelli (ed), *International Criminal Justice* (2010) 547 *et seq.*

¹⁴¹ See the amended chapeau of Article 20 para. 3, Amendments to the Rome Statute of the International Criminal Court on the crime of aggression, Resolution RC/Res.6 adopted by consensus on 11 June 2010, Annex I, para. 7.

¹⁴² The Kampala compromise submits all amendments related to the crime of aggression to a uniform amendment regime. It is based upon the exceptional status of the crime of aggression in the unamended Rome Statute and the wide discretion provided under article 5 para. 2 for adopting a provision on the crime of aggression and defining the conditions for the Court’s exercise of jurisdiction. For details see Zimmermann on Art. 8*bis* and 15*bis*, *ter*. In this context, changes to the reference to articles 6, 7 and 8 in articles 9 and 20 were considered as ‘consequential amendments’ of the introduction of a new article 8*bis*. See Report of the Special Working Group on the Crime of Aggression, February 2009, Report of the Seventh Resumed Session of the Assembly of States Parties of the International Criminal Court, ICC-ASP/7/20/Add.1, Annex II, heading of para. 26. It remains to be seen whether this approach might have an impact on potential future additions to the list of crimes in article 5. Literally, amendments to article 20 on the basis of article 121 para. 5 seem to transgress the boundaries of the three distinct amendment procedures foreseen in articles 121 paras. 4 and 5 and article 122.

¹⁴³ Klip and van der Wilt (2002) 73 RIDP 1121.

¹⁴⁴ Preparatory Committee Draft, p. 41, note 45; for the drafting history see above mn 18.

¹⁴⁵ See El Zeidy (2002) 23 *MichJIL* 935 for such a scenario.

necessarily a procedure before a court¹⁴⁶, only particular types or stages of an investigation – if at all – are governed by a court, depending on domestic criminal procedure. On the other hand, with a view to the structure of article 17, embracing article 20 para. 3, as well as the object and purpose of the rules on admissibility, it seems unjustifiable that the investigation stage should be excluded from the ICC's scrutiny. In particular, since the evidence produced by such an investigation will be used during the court procedure¹⁴⁷.

Court procedures usually end with a judgment and the determination of the sentence in case of conviction. The question whether or not the term proceedings also cover the stage of enforcement of penalties is questionable. The Rome Statute does not give a clear answer. Considering the drafting history, it needs to be recalled that article 19 Preparatory Committee Draft was deliberately not included in the final text¹⁴⁸. However, a broad interpretation is not fully excluded by the wording. National proceedings at the enforcement level therefore might be taken as a reference for determining whether a State is unable or unwilling to bring a person to justice¹⁴⁹. But considering the fact that national proceedings have indeed taken place, it has been underlined that the 'onus will be higher on the Prosecutor' in such cases¹⁵⁰.

5. The different subparagraphs

The 'sham proceedings' exception to the application of *ne bis in idem* with respect to national and international criminal courts had already been envisaged at the XIV International Congress of Criminal Law in Vienna in 1989¹⁵¹. Apart from the 'ordinary crimes' exception, the ILC considered three possibilities for a retrial before an international criminal court, if the national court proceedings were 'not impartial or independent or were designed to shield the accused from international criminal responsibility or the case was not diligently prosecuted'¹⁵². In the commentary to its 1994 Draft Statute, the ILC explained how the exception in article 42 para. 2 (b) was designed 'to deal with exceptional cases only'¹⁵³. Furthermore, the words 'the case was not diligently prosecuted' were 'not intended to apply to mere lapses or errors on the part of the earlier prosecution, but to a lack of diligence of such a degree as to be calculated to shield the accused from real responsibility for the acts in question.'¹⁵⁴. The ILC draft thus had a comprehensive view of the different aspects that were later separated in the ICC Statute.

The exception is justified as follows: 'the court should be able to try an accused if the previous criminal proceeding for the same acts was really a 'sham' proceeding, possibly even designed to shield the person from being tried by the court'¹⁵⁵. The 1996 Draft Code of Crimes names 'the abuse of power or improper administration of justice by the national authorities' as examples of such a sham¹⁵⁶.

¹⁴⁶ See e.g. the definition of prosecution in Black's Law Dictionary, 6th edition, 1221 (1997): 'A criminal action, a proceeding instituted and carried on by due course of law, before a competent tribunal, for the purpose of determining the guilt or innocence of a person charged with crime'.

¹⁴⁷ See in this regard also El Zeidy (2002) 23 *MichJIL* 937. The author further notes that 'any other construction [than a wide interpretation of 'proceedings'] might lead to a complete blocking of the Court's jurisdiction'.

¹⁴⁸ See mn 53.

¹⁴⁹ See e.g. van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 727; reluctant e.g. El Zeidy (2002) 6 *Mediterranean JHUMRts* 239.

¹⁵⁰ Holmes, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 678.

¹⁵¹ See Wilkitzki (1990) 102 *ZStW* 681.

¹⁵² Article 42 para. 2 (b) of the 1994 Draft Statute, Article 12 para. 2 (b) of the 1996 Draft Code of Crimes.

¹⁵³ See 1994 ILC Report p. 119, para. 7.

¹⁵⁴ *Ibid.*

¹⁵⁵ *Ibid.*

¹⁵⁶ See ILC Commentary on article 12, para. 11, 1996 ILC Draft Code, p. 70. See also Amnesty International, above note 17, 39, criticizing that by requiring a 'purpose' to shield a person from criminal responsibility, the provision would not cover proceedings where a prosecutor, acting in good faith, was unable to secure a

This comprehensive provision was separated into two subparagraphs only during the last session of the Preparatory Commission in 1998, when its original co-exception on retrials after national proceedings for charges of ‘ordinary crimes’ was deleted. Still, their common root is evident in the exceptional character of both paragraphs. Also with a view to detecting sham trials, any deviations from usual national procedures, extraordinary jurisdictions or martial courts might more easily than regular proceedings draw attention under both *literae a* and *b*¹⁵⁷. The same is true with regard to even stronger indicators, such as the appointment of special investigators politically aligned with the accused or the establishment of secret tribunals¹⁵⁸.

- 46 a) ‘for the purpose of shielding from criminal responsibility for crimes within the jurisdiction of the Court’. Shielding a person from criminal responsibility is one way of not bringing that person to justice. Insofar as subparagraphs a and b overlap in their scope of application, subparagraph a may serve as a catch clause for situations where the purpose of shielding a person from criminal responsibility is realized without fulfilling the criteria listed under (b). It is difficult to decipher what kind of situations fall under this clause. An example of an exception under (a) might be a case where an atrocity amounting to genocide is charged as an evidently disproportionate ordinary crime, such as an assault¹⁵⁹. In this case, the process would be a ‘sham’, even if the court were acting independently, impartially and in accordance with due process rights.

Subparagraph (a) has been under strong criticism for the subjectivity involved in determining a ‘purpose of shielding’ from the preceding proceedings, as well as the difficulties and costs related to providing evidence on an eventual ‘sham’¹⁶⁰.

- 47 b) ‘not conducted independently or impartially in accordance with the norms of due process recognized by international law and were conducted in a manner which, in the circumstances, was inconsistent with an intent to bring the person concerned to justice’. This exception combines two elements. First, a lack of independence or impartiality as determined in accordance with the due process norms and second, a general appreciation on whether the manner in which the procedures were conducted was consistent or not with an intent to bring the person concerned to justice. The difficulties in interpreting this provision, in particular regarding the required ‘intent’ to bring a person to justice are similar to those mentioned under (a) above.

- 48 It was the proposal of Mexico concerning article 17 to qualify the words ‘independently and impartially’ with the phrase ‘in accordance with the norms of due process recognized by international law’¹⁶¹. As the formulations of article 17 were agreed to be taken to article 20 as well, the amendments of Mexico followed accordingly. No discussion took place on this addition in article 20. It seems to anchor the margin of appreciation of the ICC on human rights law and on the practice of the bodies interpreting that law. Most likely the ICC would have searched for practice and arguments from that direction anyway when determining the more detailed content of ‘independently and impartially’. The addition may in any case ease the worries by Amnesty that the terms ‘independently’ and ‘impartially’ could be read so narrowly as to exclude cases where the independence of the prosecutors and judges was not

conviction because the court, in practice, lacked the powers to seize evidence or compel witnesses to testify, for example, because of unsettled conditions in the country.

¹⁵⁷ See Kleffner, *Complementarity in the Rome Statute and National Criminal Jurisdictions*, (2008), note 249; Holmes, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 675.

¹⁵⁸ Holmes, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 675.

¹⁵⁹ See mn 33.

¹⁶⁰ See Bernard, *Juger et juger encore les crimes internationaux. Etude du principe ne bis in idem* (2014) 248–249, providing analysis on some of these criticisms.

¹⁶¹ UN Doc. A/CONF.183/C.1/L.14 (22 June 1998).

threatened and they acted impartially, but the procedures fell far short of international standards for a fair trial¹⁶².

As mentioned above, the indications of lack of independence or impartiality have to be read cumulatively with the rest of the subparagraph: ‘conducted in a manner which, in the circumstances, was inconsistent with an intent to bring the person concerned to justice’. In 1998, Amnesty worried that the term ‘intent’ could be read narrowly, so as to exclude those outside the proceedings. As a consequence, the provision would fail to address situations of threats to the prosecutor, the judges, lawyers, victims and witnesses, directly or indirectly, by external persons¹⁶³. This kind of restrictive reading does not seem plausible. A wide margin of appreciation remains for the Court, however, to decide what content it will give to this exception. This has provoked concern about the Court potentially turning into ‘a body for the protection of individuals and their basic human rights against States’¹⁶⁴.

As potential examples falling under this exception, one could think of a biased court that seems to act properly, the charge being adequate and the proceedings efficient. However, the members of the court have a preset opinion of the outcome of the trial. In such an example, the difference to the exception under subparagraph (a) is not clear-cut. One could further think of a State official exercising pressure on the court conducting the trial or of a biased investigative authority. A ‘sham’ proceeding ‘inconsistent with an intent to bring the person concerned to justice’ could go both ways: a bias in favour of the accused, ‘for the purpose of shielding the person concerned from criminal responsibility’, as well as a bias against the accused in a ‘show trial’.

IV. Application

Article 17 para. 1 (c) determines the duty of the Court itself to take into account *ne bis in idem*¹⁶⁵. Article 19 determines the right of any person or State to challenge the admissibility of a case or the jurisdiction of the Court. Contrasting with other grounds for inadmissibility according to article 17, a challenge on grounds of *ne bis in idem* can be brought before the Court not only at the pre-trial phase but also thereafter (see article 19 para. 4)¹⁶⁶.

Article 89 para. 2 discusses the possibility that the person sought for surrender brings a challenge before a national court on the basis of the principle of *ne bis in idem*. After immediate consultation with the Court to determine if there has been a relevant ruling on admissibility, the requested State shall proceed with the execution of the request, if the case is admissible. ‘If an admissibility ruling is pending, the requested State may postpone the execution of the request for surrender of the person until the Court makes a determination on admissibility’. Rule 181 further elaborates that ‘the Chamber dealing with the case, if the admissibility ruling is still pending, shall take steps to obtain from the requested State all the relevant information about the *ne bis in idem* challenge brought by the person’. Article 95

¹⁶² Amnesty International, above note 17, 39–40.

¹⁶³ *Ibid.*

¹⁶⁴ van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 725 referring to the fact that the separation of the exemptions originally combined e.g. in article 10 para 2 *lit. b* ICTY Statute widens the margin of interpretation; see also Nsereko (1999) 10 *CLF* 87, 116; Spinellis (2002) 73 *RIDP* 1160; Bernard, *Juger et juger encore les crimes internationaux. Etude du principe ne bis in idem* (2014) 242–7. The human rights emphasis of this provision has also been underlined in early ICC jurisprudence, see e.g. *Prosecutor v. Germain Katanga and Mathieu Ngudjolo Chui*, No. ICC-01/04-01/07-1213-tENG, Reasons for the oral decision on the Motion challenging the admissibility of the Case, Trial Chamber II (16 June 2009), para. 85.

¹⁶⁵ See also article 19 para. 1 first sentence: ‘The Court shall satisfy itself that it has jurisdiction in any case brought before it’.

¹⁶⁶ Mn 37. See also Sadat and Carden (2000) 88 *GeorgetownLaJ* 420 *et seq.* Generally see Hall, Nsereko and Ventura on Art. 19.

also enables a requested State to postpone the execution of a request for cooperation while an admissibility challenge is under consideration¹⁶⁷.

Article 20 might find application also in cases of competing requests. In article 90 para. 6 *lit. c* '[t]he possibility of subsequent surrender between the Court and the requesting State' appears as an inducement for cooperation with the ICC. When determining whether to surrender a person to a non-State party after its own trial, the ICC should, however, pay attention to *ne bis in idem*. Article 108 protects a person sentenced by the Court and in custody of the State of enforcement from becoming subject to prosecution, punishment or extradition to a third State without approval by the ICC.

V. Consequences in cases of violation

- 50 No explicit provision addresses violations of article 20. All that can be said here derives from article 87 paras. 5 and 7: If a State fails to comply with the requests by the Court, the matter may be referred to the Assembly of States Parties or to the Security Council. This relates to States parties and States who have entered into an *ad hoc* arrangement or arrangement with the Court¹⁶⁸.

VI. Conclusion

- 51 Article 20 confirms the important position of *ne bis in idem* as a judicial guarantee in the context of international criminal law. It covers three distinct situations involving the ICC. Paragraph 1 enshrines a general protection of a person convicted or acquitted by the Court from retrials before the Court itself. It defines *idem* by conduct (*idem factum*) and thereby implements a broad interpretation, which, however, is inherently limited by the subject matter jurisdiction of the Court. Only acquittals and convictions by the ICC establish *res iudicata*, whereby the Rome Statute leaves some flexibility with regard to interpreting the finality of such a judgment on the merits of a case. Paragraph 2 implements a downward *ne bis in idem* protection from subsequent national prosecution also upon convictions and acquittals of the ICC. This protection is absolute in terms of opening no exceptions, but its application is narrowly confined by 'crimes referred to in article 5'. Relying on the same legal qualification seems understandable, since an ICC judgment cannot establish *ne bis in idem* for crimes over which the Court does not have jurisdiction. However, as a consequence, an individual may face – even multiple – trials in third States as well as in States parties for the same conduct after having been finally judged by the ICC. This possibility is even more regrettable from the point of view of the individual, considering the absence of a prescription to deduct potential ICC sentences. Paragraph 3 relates to upward *ne bis in idem*. *Idem* is again broadly defined by the same conduct. A national *bona fide* prosecution bars subsequent proceedings before the ICC, if one of the exceptions does not apply. *Res iudicata* is established for a person who 'has been tried'. This formulation arguably encompasses not only judgments on the merits of a case but also other final court decisions. The protection is not absolute but subject to exceptions regarding the proper administration of international justice under the scrutiny of the Court. Again, also with regard to subsequent trials before the ICC, no mandatory deduction of sentences is prescribed.

¹⁶⁷ On the applicability of Article 95 to requests for arrest and surrender, see Prosecutor v. Saif Al-Islam Gaddafi and Abdullah Al-Seussi, No. ICC-01/11-01/11-163, Decision on the postponement of the execution of the request for surrender of Saif Al-Islam Gaddafi pursuant to article 95 of the Rome Statute, Pre-Trial Chamber I (1 June 2012), para. 37.

¹⁶⁸ See also Regulation 109; for details see Reisinger Coracini, above note 10, 105 *et seq.* The Rules of the *ad hoc* tribunals contain a particular procedural provision on this issue. Rather than making a finding and referring the matter, rule 13 ICTY Rules of Procedure and Evidence requests a Trial Chamber to issue a reasoned order requesting the other court to permanently discontinue its proceeding.

Article 20 serves not only as an important guarantee of individual rights in criminal proceedings. Closely linked to questions of admissibility according to article 17, the provision has to primarily be seen in a jurisdictional context, distributing and balancing the competences of the ICC and those of national courts according to the principle of complementarity. Judging article 20 from the perspective of the protection of human rights and state sovereignty, the latter has prevailed.

C. Special remarks

1. The minimum content of *ne bis in idem*: the principle of deduction

The principle of *ne bis in idem* is sometimes understood to have two aspects; the prohibition of a retrial, and the prohibition of a punishment for the same conduct that does not take into account the previous punishment already served. The principle of deduction forms part of most national legal systems. It usually finds application between States that do not acknowledge transnational *ne bis in idem* (mn 8). It is also included in the Statutes of the *ad hoc* tribunals, in the ILC Draft Code and Draft Statute¹⁶⁹.

The Preparatory Committee Draft, however, omitted paragraph 3 of the draft article on *ne bis in idem* suggested in the 1994 ILC Draft Statute as superfluous¹⁷⁰. It confined the matter to Part 7 of the Statute dealing with penalties. Article 78 para. 2 mandates that the ICC deduct any time ‘previously spent in detention in accordance with an order of the Court’. But the duty to ‘take into account the extent to which a penalty imposed by another court on the same person for the same act has already been served’ (article 42 para. 3, 1994 ILC Draft Statute) was watered down to optional deduction. This solution was criticised strongly by many delegations in the Preparatory Committee in 1998¹⁷¹. No return to the more definitive expression of the principle of deduction, however, took place. Article 78 para. 2, sentence 2 reads: ‘The Court may deduct any time otherwise spent in detention in connection with conduct underlying the crime’. The provision leaves too wide a margin of appreciation for the ICC. It must be expected that the ICC will apply this provision in accordance with the other international instruments referred to above. In the exceptional cases of a retrial by the ICC, a denial to deduct at least any deprivation of liberty fully would be difficult to justify.

2. Relevance of genuine enforcement of sentences

Criminal proceedings that have been conducted in a wholly appropriate manner may turn into a *de facto* sham trial at the stage of enforcement. A national judgement can be made a mockery of by an action which makes the sentence non-existent in practice. This issue was discussed already in the Siracusa Draft¹⁷², and referred to in the 1996 Preparatory Committee Report¹⁷³. At the March – April Preparatory Committee in 1998, Portugal proposed additions to paragraph 3, whereby a concluded trial before another court would not bar the ICC from exercising its jurisdiction when: ‘(c) the sentence was manifestly disproportionate to the gravity of the crime; (d) there was a manifestly unfounded decision on the suspension of the enforcement of a sentence or on a pardon, a parole or a commutation of sentence’¹⁷⁴. Likewise, the ILC believed in the Commentary to the Draft Code that ‘[t]he failure to impose a

¹⁶⁹ See articles 10 para. 3 and 9 para. 3 of the ICTY and ICTR Statutes, article 12 para. 3 of the 1996 ILC Draft Code and article 42 para. 3 of the 1994 ILC Draft Statute.

¹⁷⁰ The Zutphen Draft suggested giving further consideration as to whether paragraph 3 was already covered by article 70[BCE] (2) (Determination of the sentence). This article at the time provided only for optional deduction of ‘any time otherwise spent in detention in connection with conduct underlying the crime’.

¹⁷¹ See in this regard also Preparatory Committee Draft, p. 45 footnote 60.

¹⁷² It proposed ‘to clarify that the exception [...] for sham proceedings extends beyond trial, and includes clemency, parole, amnesty, pardon, and other proceedings ...’, see the Siracusa Draft, p. 45.

¹⁷³ See 1996 Preparatory Committee I, p. 39, paras. 173–4.

¹⁷⁴ See the Portuguese proposal, above note 73.

punishment that is proportional to the crime or to take steps to enforce a punishment may indicate an element of fraud in the administration of justice¹⁷⁵.

- 55 The comparison of the severity of sentences as a clear-cut rule was deemed too ambitious and controversial because of the differences of criminal policies internationally. Consequently, Portugal and Belgium put forward a renewed proposal to include at least the (d) of the earlier Portuguese proposal, containing the enforcement aspect. Several States supported the core idea of the proposal. It was also met with strong criticism, however. The application of the provision would have entailed stronger cooperation from States and their officials than many of them were ready to commit themselves to. The discussion resulted in a draft article 19 which was also included in the Preparatory Committee Draft:

‘Without prejudice to article 18, a person who has been tried by another court for conduct also proscribed under article 5 may be tried by the Court if a manifestly unfounded decision on the suspension of the enforcement of a sentence or on a pardon, a parole or a commutation of the sentence excludes the application of any appropriate form of penalty’.

Not surprisingly, a considerable number of delegations contested the inclusion of this article in the Rome Statute. Upon recommendation of the Coordinator the article was deleted in Rome on account of being too controversial¹⁷⁶. It remains to be seen whether the ICC will ever extend the temporal scope of its consideration of the exceptions in paragraph 3 (a) and (b) beyond the judgement by a national court¹⁷⁷.

- 56 Another open issue is the application and scope of *ne bis in idem* in relation to the definition of crimes. It needs to be asked whether the combined weaponry of the national and the ICC prosecutors might be too powerful from the perspective of the accused. In the field of the large-scale crimes within the jurisdiction of the ICC, the factual situation might be very complex and obscure. There are diverse national and international offences which may apply to a given course of conduct. In a national system there might already be two applicable systems: civil courts and military courts. In addition, it needs to be considered that the national ways to break the offences down into various degrees of participation are different from those of the ICC Statute. It is against the background of frequent impunity for international crimes that the ICC will have the difficult task of reflecting these genuine concerns.

3. Offences against the administration of justice

- 57 According to article 70 the ICC has jurisdiction over offences against its administration of justice when committed intentionally. These offences, *e.g.* giving false testimony or presenting false or forged evidence, are exclusively listed in article 70 para. 1 *literae* a to f. At the same time, paragraph 4 mandates each State Party to extend its criminal laws penalizing the listed offences when committed on its territory or by one of its nationals¹⁷⁸. Prosecution by competent States Parties is foreseen upon request by the ICC. To avoid retrials and double punishment also with regard to these offences¹⁷⁹, Rule 168 was introduced:

¹⁷⁵ See 1996 ILC Draft Code, p. 69.

¹⁷⁶ For details see Holmes, in: Lee (ed), *The International Criminal Court. Making of the Rome Statute* (1999) 60. He mentions in particular that some delegations ‘argued that the proposal was not absolutely necessary, as the provisions on admissibility could give the Court sufficient breadth to examine cases of pardons or amnesties made in bad faith’.

¹⁷⁷ For such a possibility see *e.g.* Holmes, in: Lee (ed), *The International Criminal Court* (1999) 76 *et seq.*; Scheschonka, *Der Grundsatz ne bis in idem* (2004) 289; van den Wyngaert and Ongena, in: Cassese et al. (eds), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 727. See also *mn* 44.

¹⁷⁸ Klip and van der Wilt (2002) 73 *RIDP* 1119 refer to the particular position of the host country in this regard.

¹⁷⁹ While it might be argued that offences according to article 70 may be subsumed under the wording of article 20 para. 1 (‘crimes’) it is literally excluded with regard to paras. 2 and 3 (‘crime referred to in article 5’, ‘conduct also proscribed under article 5, 7 or 8’). But even with regard to paragraph 1, the purpose of this provision as comprising article 70 is rather questionable.

‘In respect of offences under article 70, no person shall be tried before the Court with respect to conduct which formed the basis of an offence for which the person has already been convicted or acquitted by the Court or another court’.

In substance, this rule provides for a wide *ne bis in idem* based on ‘conduct’, which is acknowledged for convictions and acquittals by the ICC as well as for those of other courts. On the other side, this broad protection is inherently limited to offences listed in article 70, since the granted protection relates exclusively to retrials before the Court. The rule lacks a provision regarding downward *ne bis in idem*. This may be reasoned by the fact that national prosecution is foreseen ‘upon request’ (article 70 para. 4 *litera* b). However, this obligation to prosecute upon request does not interfere with a State’s right to prosecute without such a request according to its national laws. Retrials of offences against the administration of justice before another court after a proceeding before the ICC are not expressly excluded. Furthermore, despite constituting a competence to prosecute for at least two State Parties, the rule does not prevent both States from using their jurisdiction subsequently. The regulation of these competing competences is left to the laws of inter-state cooperation.

Article 21

Applicable law

1. The Court shall apply
 - (a) In the first place, this Statute, Elements of Crimes and its Rules of Procedure and Evidence;
 - (b) In the second place, where appropriate, applicable treaties and the principles and rules of international law, including the established principles of the international law of armed conflict;
 - (c) Failing that, general principles of law derived by the Court from national laws of legal systems of the world including, as appropriate, the national laws of States that would normally exercise jurisdiction over the crime, provided that those principles are not inconsistent with this Statute and with international law and internationally recognized norms and standards.
2. The Court may apply principles and rules of law as interpreted in its previous decisions.
3. The application and interpretation of law pursuant to this article must be consistent with internationally recognized human rights, and be without any adverse distinction founded on grounds such as gender as defined in article 7, paragraph 3, age, race, colour, language, religion, or belief, political or other opinion, national, ethnic or social origin, wealth, birth or other status.

Literature: Arsanjani, M.H., 'The Rome Statute of the International Criminal Court', (1999) 93 *AJIL* 22; Bitti, G., 'Article 21 of the Statute of the International Criminal Court and the Treatment of Sources of Law in the Jurisprudence of the ICC', in: Stahn C. and Sluiter G. (eds.), *The Emerging Practice of the International Criminal Court* (2009); Bitti, G., 'Article 21 of the Statute of the International Criminal Court and The Respect for the Hierarchy of Sources of Law Before the ICC', in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court* (forthcoming 2014); Cassese, A., 'The Statute of the International Criminal Court: Some Preliminary Reflections', (1999) 10 *EJIL* 144; Cheng, B.B., *General Principles of Law as Applied By International Courts And Tribunals* (1987); Cryer, R., 'Royalism and the King: Article 21 of the Rome Statute and the Politics of Sources', (2009) 12 *NCLR* 390; D'Amato, A.A., *The Concept of Custom in International Law* (1971); Danilenko, G.M., *Law-making in the International Community* (1993); Darcy S. and Powderly J. (eds), *Judicial Creativity at the International Criminal Tribunals* (2010); Degan, V.D., *Sources of International Law* (1997); Edwards, G.E., 'International Human Rights Law Challenges to the New International Criminal Court: The Search and Seizure Right to Privacy', (2001) 26 *Yale JIL* 323; Fan, M., 'Custom, General Principles, and the Great Architect Cassese', (2012) 10 *JICJ* 1063; Heinze, A., *International Criminal Procedure and Disclosure* (Duncker and Humblot 2014); Henkin, L. *et al.*, *International Law: Cases and Materials* 51–148 (3rd ed. 1993); Edwards, G.E., 'International Human Rights Law Challenges to the New International Criminal Court: The Search and Seizure Right to Privacy', (2001) 26 *YaleJIL* 323; Grover, L. *Interpreting Crimes in the Rome Statute of the International Criminal Court* (CUP 2014); Herczegh, G., *General Principles of Law and the International Legal Order* (1969); Jennings, R. and Watts, A. (eds.), *Oppenheim's International Law*, vol. 1 (9th ed. 1992); Pellet, A., 'Applicable Law', in: A. Cassese, P. Gaeta and J. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* 1051, ii (2002); Rosenne, S., 'Poor Drafting and Imperfect Organization: Flaws to Overcome in the Rome Statute', (2000) 41 *VandJIL* 164; Sadat, L.N., *The International Criminal Court and the Transformation of International Law: Justice for the New Millenium* (2002); *id.*, 'Custom, Codification and Some Thoughts About the Relationship Between the Two: Article 10 of the ICC Statute', (2000) 35 *DepaulLRev* 909; Saland, P., 'International Criminal Law Principles', in: R. S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues, Negotiations, Results* (1999) 189; Schabas, W.A., *An Introduction to the International Criminal Court* (2001); *id.*, *The International Criminal Court: A Commentary on the Rome Statute* (2010); Schachter, O., *International Law in Theory and Practice*, in: L. Damrosch *et al.* (eds.), *International Law: Cases and Materials* (2001) 118.; Simma, B. *et al.* (ed.), *The Charter of the United Nations: A Commentary* (3rd ed., 2012; Stephens, P.J., 'Collective Criminality and Individual Responsibility: The Constraints of Interpretation', (2014) 37 *FordhamILJ* 501; Stephens, P.J., 'Collective Criminality and Individual Responsibility: The Constraints of Interpretation', (2014) 37 *FordhamILJ* 501; Triffterer, O., 'Acts of Violence and International Criminal Law – A New Position of Power to Fight Abuse of Power?', (1997) 4 *CroatianAnnCL&Prac* 811, at 838; *id.*, *Dogmatische Untersuchungen zur Entwicklung des materiellen Völkerstrafrecht seit Nürnberg* (1966); *id.*, 'Can the Elements of Crimes Narrow or Broaden Responsibility for Criminal Behavior Defined in the Rome Statute', in: C. Stahn and G. Sluiter (eds), *The Emerging Practice of the International Criminal Court* (2008).

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A. Introduction/General remarks

Article 21 establishes a hierarchy of applicable law for the judges of the ICC to apply in adjudicating cases. The sources of law elaborated in article 21 derive generally from those contained in article 38 of the ICJ statute, which represents the most authoritative statement of the sources of general international law¹. Article 38 lists as sources: treaties, custom, general principles recognized by 'civilized' nations, and, as a subsidiary means for determining the law, judicial decisions and scholarly publications. Article 21 is generally modeled on this list, with modifications to account for the particularities of criminal law, in particular the need for clarity and specificity. For instance, article 21 departs from article 38 in establishing a hierarchy among sources of law.

Article 21 also reflects compromises reached in the negotiations. The principal issue at stake in drafting article 21 was how much discretion should be granted to the ICC's judges in light of the conflicting demands of the principle of legality on the one hand, and, on the other, the inevitability of lacunae in a nascent legal system. Two principal schools of thought emerged at the Preparatory Committee meetings regarding the appropriate degree of judicial discretion in discerning applicable law. A minority of states took the position that the principle of legality requires that judicial discretion be limited strictly in the criminal law context². Any doubt as to the relevant legal provision should be resolved, according to this view, by direct application of the appropriate national law. The majority position, on the other hand, sought to accommodate the unique nature of the international legal order by allowing the judges to discern and apply general principles of international criminal law. Article 21 represents a compromise between these two approaches: when all other sources fail, the Court must apply general principles derived from national laws, including, as the Court deems appropriate, those of the states that would normally exercise jurisdiction over the crime.

The negotiating history of article 21 reveals an evolution that led to the adoption of this compromise. The ILC's final Draft Statute for an International Criminal Court listed three

¹ While article 38 is binding only with respect to cases before the ICJ, it is considered evidence of customary law. See Jennings and Watts (eds.), *Oppenheim's International Law*, vol. 1 (9th edition 1992).

² See 1996 Preparatory Committee II, p. 105 ('It was stated by some delegations ... that the Court should not be empowered to legislate principles of criminal law').

sources of law, without specifying a hierarchy of application. The Court was to apply (a) the statute; (b) treaties and principles and rules of general international law; and (c) applicable rules of national law³. No guidance was provided as to which national laws should be considered applicable. The 1996 Report of the Preparatory Committee noted the extensive discussion of ‘whether the Court should be empowered to elaborate/legislate further the general principles of criminal law that are not written in the Statute’⁴. Among the proposals favouring wide judicial latitude was one that would have empowered the judges to elaborate elements of crimes and principles of liability and defences not included in the Statute⁵. These elements and principles would then be submitted to the States Parties for approval⁶. Some delegations, however, rejected the notion that the judges should be empowered to ‘legislate’ general principles of criminal law⁷. One delegation proposed that where the Statute itself did not contain the relevant law, the Court should apply directly the national law of the territorial state, the state of nationality of the accused, or the custodial state – in that order⁸.

- 4 At the Rome Conference, as in the earlier negotiations, contentious debate surrounded paragraph 1 (c) – the final source of law, which was divided into two vastly different options in the final draft of the Statute⁹. Option 1, broadly supported at the Conference¹⁰, provided that the Court would apply general principles of law derived from national laws of the legal systems of the world. Option 2, endorsed by a substantial minority¹¹, provided that the Court would apply national laws directly, and specified a hierarchy for determining which State’s laws would apply¹².
- 5 The compromise reached essentially melding the two options. On 8 July, the Working Group on Applicable Law issued a Working Paper stating: ‘Most delegations favoured option 1, but some still favour option 2. A view was expressed that the laws indicated in option 2 could be given as examples of the national laws referred to in option 1, so that the two options be combined’¹³. On 11 July, the Working Group transmitted to the Committee of the Whole the text of what was to become article 21, with the exception of paragraph 3, which was still under discussion¹⁴. The final text of paragraph 1 (c) reflects the compromise proposed in the Working Paper – options 1 and 2 are combined.
- 6 The Report of the Working Group shows that neither side of the debate felt completely vindicated by this solution. The Report notes that ‘[s]ome delegations were of the view that the phrase ‘including, as appropriate’ should be replaced by the word ‘especially’¹⁵. On the other hand, ‘[s]ome delegations express the view that, as a matter of principle, no reference to any national laws of States should be made. The Court ought to derive its principles from a general survey of legal systems and their respective national laws’¹⁶. Despite these lingering objections, the Committee of the Whole endorsed the Working Group’s compromise, adopting paragraph 1(c) without modification¹⁷.

³ See 1994 ILC Draft Statute, article 33, p. 103.

⁴ 1996 Preparatory Committee II, p. 104.

⁵ See *ibid.*, pp. 104–05.

⁶ See *ibid.*

⁷ See *ibid.*, p. 105.

⁸ See *ibid.*

⁹ In contrast, the first two sources in paragraphs 1 (a) and (b) were generally uncontroversial and paragraphs 2 and 3 were completely without brackets in the Final Draft. See Preparatory Committee Draft, article 20, p. 54. Note that article 20 became article 21 in the Rome Statute.

¹⁰ See Author’s notes of debate, Committee of the Whole (23 June 1998) (on file with author).

¹¹ See *id.*

¹² The Court would apply first the law of the State where the crime was committed, second, the law of the State of nationality of the accused, and finally, the law of the custodial state. See Preparatory Committee Draft, article 20, p. 54.

¹³ Working Paper on article 20, UN Doc. A/CONF.183/C.1/WGAL/L.1 (8 July 1998), p. 2, para. 3.

¹⁴ Report of the Working Group on Applicable Law, UN Doc. A/CONF.183/C.1/WGAL/L.2 (11 July 1998).

¹⁵ *Ibid.*, p. 2, para. 3.

¹⁶ *Ibid.*, p. 2, para. 4.

¹⁷ Compare *id.*, with Rome Statute, article 21.

Article 21 constitutes the first codification of the sources of international criminal law. The sources of general public international law have become well established since the adoption of the ICJ statute¹⁸. However, until the ICC was created, international criminal law lacked a permanent international forum. Moreover, the statutes of the ICC's predecessor international criminal tribunals contain no provisions specifying the applicable law. Hence, when the ICC Statute was adopted, limited relevant precedent or scholarly analysis existed regarding the sources of international criminal law.

In practice, the *ad hoc* international criminal tribunals generally apply first their statutes and rules of procedure and evidence, and, if those sources prove inconclusive, customary international law and general principles derived from the legal systems of the world.¹⁹ Although the U.N. Secretary General decreed that the ICTY should apply only rules 'which are beyond any doubt part of customary law',²⁰ the tribunals have unquestionably effectuated significant developments in international criminal law. These include, notably, the ICTY's holding that war crimes can be committed in internal armed conflict.²¹ Some commentators have been critical of the tribunals in this regard, arguing that they are insufficiently respectful of the principle of legality.²² In fact, some participants in the Rome Conference apparently feared that the ICC would follow what they called the 'Cassese approach', referring to the judge responsible for many of the ICTY's legal innovations.²³

Such fears stemmed not only from concerns about fairness to defendants, but also from the reluctance of some states to relinquish control over the law that could be applied to their nationals.

Some delegations preferred to safeguard this aspect of their sovereignty by mandating that, when faced with lacunae in the applicable statutory and customary law, the Court would apply directly the national law of relevant states. Other delegations felt strongly, however, that it would be inappropriate for an international court to apply anything other than international law. They argued that direct application of national law would involve inconsistent justice and would hinder the development of a coherent body of international criminal law.

Article 21 resolves this debate by requiring that the judges apply international law exclusively but granting them discretion to consider the national law of the states that would normally exercise jurisdiction in ascertaining general principles of law. This is an awkward compromise because of the inconsistency inherent in determining 'general principles' by references to specific national laws.

B. Analysis and interpretation of elements

I. Paragraph 1: 'The Court shall apply'

1. 'In the first place, this Statute, Elements of Crimes and its Rules of Procedure and Evidence'

The primacy of the Statute and Rules was never questioned in the negotiations. The Court has confirmed the hierarchy, holding that when faced with a lacuna in paragraph 1(a), the ICC must first seek to fill it by applying the Vienna Convention's rules of treaty interpreta-

¹⁸ See Statute of the ICJ, article 38; see also Triffterer, 2nd edition, Preliminary Remarks, mn 64 *et seq.*

¹⁹ See, e.g., *Prosecutor v. Erdemović*, IT-96-22-A, Judgment, Appeals Chamber, 7 October 1997, para. 40, at 28 (Joint Separate Opinion of Judge McDonald and Judge Vohrah). See Fan (2012) 10 *JICJ* 1063.

²⁰ See, e.g., ICCPR, entered into force 23 Mar. 1976, 999 UNTS 171, 6 *ILM* 368 (1967), article 15 para. 1 ('No one shall be held guilty of any criminal offence on account of any act or omission which did not constitute a criminal offence, under national or international law, at the time when it was committed').

²¹ *Prosecutor v. Tadić*, IT-94-1, Decision on the Defense Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 October 1995, paras. 96-137, available at <http://www.legal-tools.org/doc/866e17/>.

²² Fan (2012) 10 *JICJ* 1063, 1065 (citing Degan (2005) 4 *Chinese JIL* 45).

²³ *Id.* 1068.

tion and article 21(3)'s admonition to remain compliant with human rights norms. Only if this approach proves inadequate may the Court turn to the sources listed in paragraphs 1(b) and (c)²⁴. However, the hierarchy is less rigid than it appears because the rules of treaty interpretation enable the Court to refer to general principles and customary law in interpreting provisions of the Statute.²⁵ Hence, as William Schabas has noted, '[i]n practice, all of the sources listed in article 21 will be helpful to the Court in its effort to interpret the Statute'.²⁶

- 12 The most controversial aspect of this provision in the negotiations was whether elements of crimes should be elaborated for the Court or developed through the jurisprudence.²⁷ The delegation from the United States argued strongly for the elaboration and codification of elements on the grounds that they would serve the principle of *nullum crimen sine lege*²⁸. Many delegations opposed this proposal, preferring to afford the judges greater discretion to develop the elements of crimes. Ultimately, an accommodation was reached whereby Elements of Crimes would be adopted to 'assist' the Court rather than as binding supplements to the Statute.
- 13 This compromise resulted in an inconsistency in the Statute's references to the Elements. While article 9 defines the purpose of the Elements as merely to 'assist the Court in the interpretation and application of articles 6, 7, and 8',²⁹ article 21 states that the Court 'shall apply' the Elements. These provisions should be reconciled by reading them together. That is, the Court 'shall apply' the Elements *for the purpose of* 'assisting the Court ...'. This interpretation of the Statute comports with the intent of the majority of delegations that the Elements should not bind the Court, but should instead be used to assist the Court in interpreting the Statute.
- 14 However, even this reading of the Statute does not provide the judges with clear guidance with regard to Elements that add to, rather than clarifying, the definitions of crimes in the Statute. This issue arose in the *Bashir* case. In deciding whether to issue an arrest warrant for Sudanese president Omar Al Bashir for genocide, Pre-Trial Chamber I considered the elements of that crime. The Elements of Crimes for genocide include a contextual element that is not present in the Statute or in other definitions of the crime. This element requires that the conduct in question 'took place in the context of a manifest pattern of similar conduct directed against that group or was conduct that could itself effect such destruction'.³⁰ The Chamber was unable to agree about how to address this element. The majority held that the Court must apply the Elements of Crimes unless it finds 'an irreconcilable contradiction' between the Elements of crimes and the Statute.³¹ Since the contextual element does not contradict the Statute, the majority held that it must be applied. A dissenting judge, however, took the position that '[s]ince article 9(3) of the Statute requires that the Elements of Crimes be consistent with the Statute, it can be inferred that only the Statute outlines the operative definition of the crime'.³² She did not reach the question of whether the contextual element is consistent with the Statute because she found that, in any event, the contextual element was met.³³

²⁴ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest Against Omar Al Bashir, Pre-trial Chamber I, 4 March 2009, para. 126, available at <http://www.legal-tools.org/doc/d66468/>.

²⁵ Cryer (2009) 12 *NCLRev* 390, 393.

²⁶ Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (OUP 2010) 385.

²⁷ See Gadirov, revised by Clark, *article 9*.

²⁸ See U.S. Reference Paper: Elements of Offenses for the International Criminal Court, submitted to Preparatory Committee (27 March 1998) (on file with author) ('We believe criminal elements can give teeth to the concept of *nullum crimen sine lege*').

²⁹ This inconsistency has been cited as a failure in the drafting of the Rome Statute. See Rosenne (2000) 41 *VandJIL* 164, 167–68.

³⁰ Elements of Crimes, Genocide.

³¹ *Prosecutor v. Al Bashir*, ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest Against Omar Al Bashir, Pre-trial Chamber I, 4 March 2009, para. 128, available at <http://www.legal-tools.org/doc/d66468/>.

³² *Id.* paras. 17–18.

³³ *Id.* para. 20.

Robert Cryer has criticized the majority's approach, arguing that the Court should have interpreted the Statute in line with the customary international law definition of genocide and found that the contextual element is inconsistent with that definition.³⁴ He points out that the majority's approach effectively renders the Elements of Crimes binding, contrary to the will of the majority of the drafters.³⁵ While Cryer is correct that the drafters did not intend the Elements to be binding, the judges are understandably reluctant to decline to apply Elements of Crimes that do not contradict the statutory definitions. As a result, where the Elements of Crimes add requirements not present in customary international law, as they do for genocide, the Court's jurisprudence will likely contribute to the fragmentation of international criminal law.

Although paragraph 1 (a) does not specify a hierarchy for the application of these three sources, other articles of the Statute make clear that the Statute takes precedence over the Elements of Crimes and Rules. Article 9 paragraph 3 states that '[t]he Elements of Crimes and amendments thereto shall be consistent with this Statute'. Similarly, article 51 paragraph 5 provides that '[i]n the event of conflict between the Statute and the Rules of Procedure and Evidence, the Statute shall prevail'. The relationship is further clarified in an explanatory note to the Rules, which provides that the Rules are 'subordinate in all cases' to the Statute.³⁶

Interestingly, although both the Rules and the Elements rank below the Statute, the Court has, in a sense, treated the Rules as more subordinate to the Statute than the Elements. As explained above, the Court has held that the Elements of Crimes can be applied in a way that restricts the definitions of crimes. On the other hand, the same Pre-Trial Chamber of the Court has held that the Rules cannot be interpreted 'in such a way as to narrow the scope of an article of the Statute'.³⁷ On that basis the Chamber rejected the prosecutor's argument that the language of one of the Rules of Procedure implicitly excludes victims from participating during the investigation stage of a situation.³⁸

Paragraph 1 (a) also encompasses unlisted sources created under the Statute and Rules of Procedure and Evidence, such as the Court's regulations and codes of conduct. Thus, for instance, the Appeals Chamber has noted that the Code of Professional Conduct for Counsel, which is mandated in the Rules, is 'part of the Court's applicable law under article 21 (1) (a) of the Statute'.³⁹ Some of these instruments specify their position in the hierarchy of sources, but for others the judges will have to decide where they rank when conflicts arise.⁴⁰

The Court has sometimes taken the view that the law and procedures provided for in the Statute and Rules represent the universe of applicable law and procedures. For instance, the Appeals Chamber relied on this position to deny the prosecutor's request for 'extraordinary review' of the above-mentioned decision regarding victim participation.⁴¹ The prosecutor had argued that the absence from the Statute of a mechanism for review of a decision

³⁴ Cryer (2009) 12 *NCLRev* 390, 396-7.

³⁵ *Id.* 400.

³⁶ *International Criminal Court, Rules of Procedure and Evidence, UN Doc. PCNICC/2000/1/Add.1, Explanatory Note (2000).*

³⁷ *Situation in the Democratic Republic of Congo*, ICC-01/04-101, Decision on the Applications for Participation in the Proceedings of VPRS 1, VPRS 2, VPRS 3, VPRS 4, VPRS 5 and VPRS 6, Pre-trial Chamber I, 17 January 2006, para. 47, available at <http://www.legal-tools.org/doc/2fe2fc/>.

³⁸ *Id.* para. 49.

³⁹ *Prosecutor v. Muthaura & Kenyatta*, ICC-01/09-02/11-365 OA3, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber II dated 20 July 2011 entitled 'Decision with Respect to the Question of Invalidating the Appointment of Counsel to the Defence', Appeals Chamber, 10 November 2011, para. 48.

⁴⁰ Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (OUP 2010) 387 (noting that 'the relationship between these different forms of subordinate legislation has not been clarified, and in the event of conflict judges will have to find solutions based upon general principles of interpretation of legal texts'); Bitti, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (Brill 2009) 285, 291-92.

⁴¹ *Situation in the Democratic Republic of Congo*, ICC-01/04-168, Judgment on the Prosecutor's Application for Extraordinary Review of Pre-trial Chamber I's 31 March 2006 Decision Denying Leave to Appeal, Appeals Chamber, 13 July 2006, para. 39, available at <http://www.legal-tools.org/doc/004842/>.

denying leave to appeal is a lacuna that should be remedied by applying general principles of law as provided in article 21 (1) (c). The Appeals Chamber rejected this argument, holding that the Statute exhaustively sets forth when parties may appeal decisions of the Pre-Trial and Trial Chambers.⁴² The Appeals Chamber also applied this reasoning to reject a defendant's argument that his case should be found inadmissible under the doctrine of 'abuse of process' because he was 'unlawfully detained and ill-treated' by the national authorities that arrested him.⁴³ The Chamber held that 'abuse of process' is not a ground for finding a case inadmissible under article 17.⁴⁴ Although the Chamber recognized that some powers not explicitly granted in the Statute inhere in the judicial function, it held that the power to stay proceedings based on abuse of process is not such a power.⁴⁵

In other circumstances, however, the Court has taken a more liberal approach to applying its primary sources of law. For instance, a Trial Chamber has held that the Court has the implied power to subpoena witness testimony, even though the Statute only refers to the voluntary appearance of witnesses.⁴⁶ The Appeals Chamber has also controversially held that an accused need not be present during his or her trial under some circumstances⁴⁷ even though the Statute states that '[t]he accused shall be present during the trial'.⁴⁸ Some scholars have criticized the Court for such broad interpretations of the Statute.⁴⁹

2. 'In the second place, where appropriate'

- 19 The inclusion of the phrase 'where appropriate' serves to emphasize the discretion the Court enjoys in determining when treaties or principles and rules of international law are applicable.
- 20 a) 'applicable treaties'. The debate with regard to this provision surrounded whether to include 'relevant' treaties or to limit the source to 'applicable' treaties⁵⁰. In particular, the delegates debated whether the Vienna Convention on the Law of Treaties and the Convention Against Torture are applicable or merely relevant⁵¹. The drafters have been criticized for ultimately settling on the term 'applicable'⁵². As one commentator has pointed out, '[a] narrow reading of the term could prevent the Court from referring to the ICCPR or the European Convention on Human Rights on the grounds they are not 'applicable', but only relevant'⁵³. However, this fear is somewhat allayed by the requirement in paragraph 3 that

⁴² *Id.*

⁴³ *Prosecutor v. Lubanga*, ICC-01/04-01/06-772, Judgment on the Appeal of Mr. Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court Pursuant to Article 19(2)(a) of the Statute of 3 October 2006, Appeals Chamber, 14 December 2006, available at <http://www.legal-tools.org/doc/1505f7/>.

⁴⁴ *Id.* para. 34.

⁴⁵ *Id.* para. 35.

⁴⁶ *Prosecutor v. Ruto and Arap Sang*, ICC-01/09-01/11-1274-Corr2, Decision on Prosecutor's Application for Witness Summonses and resulting Request for State Party Cooperation, Trial Chamber V(A), 17 April 2014.

⁴⁷ *Prosecutor v. Ruto and Arap Sang*, ICC-01/09-01/11-1066, Judgment on the appeal of the Prosecutor against the decision of Trial Chamber V(a) of 18 June 2013 entitled 'Decision on Mr Ruto's Request for Excusal from Continuous Presence at Trial', Appeals Chamber, 25 October 2013, para. 56, available at <http://www.icc-cpi.int/iccdocs/doc/doc1669852.pdf>.

⁴⁸ Rome Statute art. 63.

⁴⁹ See e.g., Bitti, in: Stahn and Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009) 285.

⁵⁰ Saland, in: Lee (ed.), *The International Criminal Court: The Making Of The Rome Statute: Issues, Negotiations, Results* (1999) 215.

⁵¹ See *id.*

⁵² See Pellet, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1067–70; Sadat, *The International Criminal Court and the Transformation of International Law: Justice for the New Millennium* (2002) 177, para. 12.

⁵³ Sadat, *The International Criminal Court and the Transformation of International Law: Justice for the New Millennium* 177.

the application of law under the Statute must be consistent with internationally recognized human rights.

Applicable treaties include, for instance, the Geneva Conventions of 12 August 1949, 21 which are incorporated into the definition of war crimes. Moreover, the Court has held that the Vienna Convention on the Law of Treaties applies to its interpretation of the Rome Statute.⁵⁴ Other applicable treaties include those to which the Court is a party, such as the treaty governing the Court's relationship with the Netherlands.⁵⁵ The Court should avoid following the practice of the *ad hoc* tribunals, which have applied international agreements that are binding on the states that would normally have jurisdiction over the offence. Given the ICC's wide-ranging jurisdiction, this approach would contribute to the fragmentation of international criminal law.⁵⁶

In practice, the choice of the term 'applicable' may be less important than the drafters 22 believed because the Court is free to refer to all treaties in its search for the principles and rules of international law referenced in paragraph 1 (b). While treaties that are merely 'relevant' to the work of the Court cannot be applied directly, therefore, they can nonetheless provide evidence in support of the other sources. This makes sense because, as Leila Sadat has noted, it is unlikely that the drafters wished to deprive the Court of the possibility of referring to international treaties to assist them in deciding novel issues⁵⁷.

b) 'principles ... of international law'. The inclusion of 'principles ... of international 23 law' in paragraph 1 (b) as a source of law distinct from 'general principles' derived from national laws in paragraph 1 (c) has generated confusion. The Statute clearly defines the source of paragraph 1 (c)'s 'general principles': they are derived 'from national laws of legal systems of the world'. However, the Statute fails to identify the provenance of 'principles ... of international law' in paragraph 1 (b), raising the question of how these principles differ from the general principles in paragraph 1 (c).

There is widespread agreement that paragraph 1 (b) at a minimum includes customary 24 international law. The drafters may have used this formulation, rather than a direct reference to customary law, out of concern that the latter is insufficiently precise in the context of criminal law.⁵⁸ Commentators have taken different views of the meaning of 'principles' in this provision, however. Allain Pellet asserts that the inclusion of 'principles' in paragraph 1 (b) was a mistake, a 'verbal tic', and that subparagraph (b) is simply an awkward reference to customary international law⁵⁹. William Schabas, on the other hand, interprets this provision as encompassing not only custom but also general principles of law derived from the national legal systems of the world.⁶⁰ He finds support for this position in the drafting history. The 1993 draft Statute of the ILC contains a commentary explaining that 'principles and rules of general international law' includes 'general principles of law'.⁶¹ According to Professor Schabas, paragraph 1 (c)'s 'general principles' refer not to the general principles of international law but to principles derived from comparative law.⁶²

A third possibility, and the one that is most supported by the Court's case law, is that 25 paragraph 1 (b) includes both customary international law principles and other kinds of

⁵⁴ DRC (Appeals Chamber Judgment on Prosecutor's Application), note 41, para. 33.

⁵⁵ Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 390.

⁵⁶ See *id.*, 1069, para. 104 (citing decisions of the ICTY and criticizing this approach as 'open[ing] the way to an 'à la carte' jurisdiction').

⁵⁷ Sadat, *The International Criminal Court and the Transformation of International Law: Justice for the New Millennium* (2002) 177, para. 12.

⁵⁸ *Id.* 384.

⁵⁹ Pellet, in: Cassese, Gaeta, and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1072.

⁶⁰ *Id.*

⁶¹ *Id.* citing ILC, 'Report of the International Law Commission on the Work of its 45th Session (3 May–23 July 1993) UN Doc A/CN.4/SER.A/1993/Add.1 (Part 2) 111 para. 2.

⁶² Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 391.

principles that are not derived from national laws.⁶³ Oscar Schachter has identified five categories of general principles reflected in international legal discourse:

- (1) The principles of municipal law 'recognized by civilized nations'.
- (2) General principles of law 'derived from the specific nature of the international community'.
- (3) Principles 'intrinsic to the idea of law and basic to all legal systems'.
- (4) Principles 'valid through all kinds of societies in relationships of hierarchy and co-ordination'.
- (5) Principles of justice founded on 'the very nature of man as a rational and social being'⁶⁴.

The first category corresponds roughly to article 38 paragraph 1 (c) of the ICJ Statute, although the latter does not refer expressly to national laws but rather to 'the general principles of law recognized by civilized nations'. Article 38 (1)(c) has given rise to much controversy and a vast literature⁶⁵. The debate primarily pits those who believe general principles are derived exclusively from national laws against those who view this provision as encompassing principles derived from the international legal conscience, not linked to any particular domestic system⁶⁶. The travaux préparatoires reveal divergent views on this question among the drafters of the ICJ Statute⁶⁷.

The other four categories reflect general principles that are not derived from national laws. The second category – principles derived from the nature of the international community – includes such principles of coexistence as *pacta sunt servanda*, territorial integrity and self-defence⁶⁸. Similarly, the third category – principles intrinsic to the idea of law – includes principles of interpretation such as the maxim that later law supersedes earlier law if both have the same source⁶⁹. Finally, the last two categories reflect natural law doctrine and encompass such 'natural justice' concepts as equity and respect for human rights⁷⁰. The inclusion of 'principles ... of international law' as a source of law distinct from 'general principles' seems to reflect the drafters' intention to enable the Court to apply such principles even when they are neither derived from national laws nor part of customary international law.

- 26 Although the Court has yet to address directly whether the principles in subparagraph (b) extend beyond those contained in custom and national laws, there is some indication that the Court may answer this question affirmatively. For instance, in determining the meaning of 'sufficient gravity' for admissibility under article 17, Pre-Trial Chamber I considered under the heading 'principles and rules of international law' the rules and practice of the *ad hoc* tribunals concerning case selection.⁷¹ The Chamber made no attempt to establish that the rules and practices of the *ad hoc* tribunals in this regard are part of custom. Instead, the discussion suggests that the *ad hoc* tribunals are following principles derived from the nature of the legal system – in this case, principles that require international courts to prosecute only senior leaders responsible for widespread or systematic criminality. Although the Appeals

⁶³ Ambos, *Treatise on International Criminal Law* (2013) 76.

⁶⁴ Schachter, in: Damrosch et al. (eds.), *International Law: Cases and Materials* (2001) 118.

⁶⁵ See, e.g., Danilenko, *Law-making in the International Community* (1993) 174, para. 1; Jennings and Watts (eds.), *Oppenheim's International Law* 37.

⁶⁶ See Cheng, *General Principles of Law as Applied by International Courts and Tribunals* (1987) 2–4; Danilenko, *Law-making in the International Community* (1993) 173–76; Degan, *Sources of International Law* (1997) 14–15; Bernhardt (ed.), *Encyclopedia of Public International Law* (1995) 512. The view that principles may be derived from the international legal conscience is also reflected in the Martens Clause. See Hague Convention (No. IV) Respecting the Laws and Customs of War on Land, entered into force 26 January 1910, preamble, para. 8, 36 Stat. 2277 ('principles of the law of nations, as they result from the usages established among civilized peoples, from the laws of humanity, and the dictates of the public conscience').

⁶⁷ Schachter, in: Damrosch et al. (eds.), *International Law: Cases and Materials* (2001) 118.

⁶⁸ See *id.*, 121.

⁶⁹ See *id.*, 122.

⁷⁰ See *id.*, 122–23.

⁷¹ *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06-8-US-Corr, Decision Concerning Pre-trial Chamber I's Decision of 10 February 2006 and the Incorporation of Documents into the Record of the Case against Mr. Thomas Lubanga Dyilo, Pre-trial Chamber I, 24 February 2006, paras. 55–60, available at <http://www.legal-tools.org/doc/c60aaa/>.

Chamber overturned the decision, it did not address the Pre-Trial Chamber's approach to principles and rules as a source of law.⁷²

Likewise, in deciding on an application for participation from victims, one judge held that it is a general principle of law 'that the burden of proof of elements supporting a claim lies on the party making the claim' and that 'indirect proof' is admissible.⁷³ This decision also indicates that general principles may derive from the nature of the legal system and not only from custom or national laws.

The case law also indicates that the prosecutor and judges believe that article 38's 'general principles,' are reflected in paragraph 1 (c), rather than in paragraph 1 (b) as Professor Schabas has suggested. For instance, in requesting 'extraordinary review' of the denial of a request to appeal, the Prosecutor cited article 21(1)(c) as the relevant source of the alleged 'general principle' that such review is permitted; and the Appeals Chamber likewise cited paragraph 1 (c) in rejecting the argument.⁷⁴

c) 'rules of international law'. Paragraph 1 (b)'s reference to 'rules of international law' is curious in that it omits the word 'customary,' even though custom is the primary source of international law rules other than treaties. As already noted, the drafters may have eschewed the term out of concern that the concept of gradually evolving custom is too imprecise for the purposes of international criminal law. Oppenheim describes the crystallization of a customary rule in the following terms: 'Wherever and as soon as a line of international conduct frequently adopted by States is considered by States generally legally obligatory or legally right, the rule which may be abstracted from such conduct is a rule of customary international law'⁷⁵. As Oppenheim asserts, '[c]ustom is the oldest and the original source of international law ...'⁷⁶. As such, the phrase 'rules of international law' must be interpreted as a reference to customary rules.

The Court has not made significant use of customary rules as a source of law to date. In one case, a Pre-Trial Chamber found the customary law regarding modes of liability to be inapplicable because the Statute contains a provision directly on point.⁷⁷ With regard to the decision of the ICTY to follow the customary rule on the question, the Chamber noted: 'This is a good example of the need not to transfer the ad hoc tribunals' case law mechanically to the system of the Court'.⁷⁸

The Court has also resisted arguments that it should follow procedural rules adopted at the ad hoc tribunals when the ICC Statute is silent on a matter. Thus, in the *Lubanga* case, Trial Chamber I rejected the prosecutor's argument that the ICC should permit 'witness proofing' because it is common practice at the other tribunals. The Chamber asserted that the procedural rules and ICC jurisprudence of the ad hoc tribunals is not 'automatically applicable to the ICC' and that the Statute 'created a procedural framework which differs markedly from the ad hoc tribunals'.⁷⁹

⁷² See *Situation in the Democratic Republic of Congo*, ICC-01/04-169 23-09-2008 1/49 CB PT OA, Judgment on the Prosecutor's appeal against the decision of Pre-trial Chamber I entitled 'Decision on the Prosecutor's Application for Warrants of Arrest, Article 58', Appeals Chamber, 13 July 2006, available at <http://www.legal-tools.org/doc/87f8fe/>.

⁷³ *Prosecutor v. Kony et al.*, ICC-02/04-01/05, Decision on Victims' Applications for Participation a/0010/06, a/006406 to a/0070/06, a/0081/06 to a/0104/06 and a/0111/06 to a/0127/06, Pre-trial Chamber II, 10 August 2007, paras. 13, 15, available at <http://www.legal-tools.org/doc/957bbf/>.

⁷⁴ DRC (Pre-trial Chamber Judgment on the Prosecutor's Application), note 72, para. 39.

⁷⁵ Jennings and Watts (eds.), *Oppenheim's International Law* 30. For the admissibility of customary rules as sources of international criminal law see Triffterer, *Dogmatische Untersuchungen zur Entwicklung des materiellen Völkerstrafrecht seit Nürnberg* (1966) 35 et seq.; id. (1997) 4 *Croatian AnnCL&Prac* 811, at 838.

⁷⁶ Jennings and Watts (eds.), *Oppenheims's International Law* 25.

⁷⁷ *Prosecutor v. Germain Kantanga and Mathieu Ngudjolo Chui*, ICC-01/04-01/07, Decision on the Confirmation of Charges, Pre-trial Chamber I, 30 September 2008, paras. 506–508.

⁷⁸ *Id.* para. 508.

⁷⁹ *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, Decision Regarding the Practices Used to Prepare and Familiarise Witnesses for Giving Testimony at Trial, Trial Chamber I, 30 November 2007, paras. 43–45, available at <http://www.legal-tools.org/doc/ac1329/>.

- 31 The Court has been somewhat more willing to cite the precedent of the other international tribunals with regard to substantive questions not addressed in the ICC Statute.⁸⁰ For instance, in the *Lubanga* Confirmation of Charges decision, Pre-Trial Chamber I adopted a number of holdings from the ICTY jurisprudence, including the ‘overall control’ test for determining when a conflict is international in nature.⁸¹
- 32 Interestingly, while article 21 enables the Court to use customary international law as a source of law, the drafters also provided for the development of a body of international law that would exist alongside the Statute⁸². Article 10 states that nothing in Part 2 of the Statute ‘shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than [the] Statute’. The drafters’ intent in including this provision was apparently to ensure that the Statute is not treated as the definitive codification of international criminal law such that it operates to limit the application or development of international law outside the Statute⁸³. However, this provision is likely to have limited practical effect⁸⁴. In spite of article 10, other international courts look to the Rome Statute and jurisprudence to elucidate and apply customary international law⁸⁵.
- 33 d) **Established principles of the international law of armed conflict.** Some of the law of international armed conflict is directly applicable under paragraph 1 (a) because the Geneva Conventions are incorporated into the definition of war crimes as noted above. This paragraph serves to ensure that customary international law concerning armed conflict is also a source of law for the Court. The Court has yet to make significant use of this provision.

3. Sources applicable in the absence of (a) or (b)

- 34 a) ‘general principles of law derived by the Court from national laws of legal systems of the world including, as appropriate, the national laws of the States that would normally exercise jurisdiction over the crime’. As discussed in the introduction, this provision was the most controversial aspect of article 21 during the drafting process. The language of the article represents a compromise between delegates who argued that the Court should apply national laws directly and those who felt that ‘general principles’ ought to be entirely divorced from any reference to particular national systems. This compromise is rather awkward. As Per Saland, chairman of the Working Group that negotiated article 21 in Rome, has noted: ‘There is of course a certain contradiction between the idea of deriving general principles, which indicates that this process could take place before a certain case is adjudicated, and that of looking also to particular national laws of relevance to a certain case; but that price had to be paid in order to reach a compromise’⁸⁶. Although this compromise raises the spectre that the Court will apply inconsistent law in different cases, that danger may be largely averted through the exercise of the Court’s broad discretion to decide when it is ‘appropriate’ to refer to particular national laws. The less often the Court considers such reference appropriate, the more likely it will be to develop a cogent body of international law⁸⁷.
- 35 Furthermore, paragraph 1 (c) is clear that the ICC judges are not to apply the national laws of any particular State directly, but rather, to apply the principles underlying the laws of ‘the

⁸⁰ Bitti, in: C. Stahn & G. Sluiter (eds.), *The Emerging Practice of the International Criminal Court* (2009).

⁸¹ *Prosecutor v. Lubanga Dyilo*, No. ICC-01/04-01/06-2842, Judgment Pursuant to Article 74 of the Statute, Trial Chamber I, 14 March 2012, para. 541.

⁸² See Sadat (2000) 49 *DePaulLRev* 909, 918.

⁸³ See Triffterer, article 10.

⁸⁴ Sadat, *The International Criminal Court and the Transformation of International Law: Justice for the New Millennium* (2002) 923.

⁸⁵ See *id.* 920–22.

⁸⁶ Saland, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues, Negotiations, Results* (1999) 189, 215.

⁸⁷ The Conference rejected the view of some delegations that the phrase ‘including, as appropriate’ should be replaced with ‘especially’. See note 15 and accompanying text. The weight to be accorded to any particular national laws is therefore entirely in the discretion of the judges.

legal systems of the world'. This provision reflects the practice of other international courts, in particular the ICJ. As one ICJ judge explained: 'In my opinion, the true view of the duty of international tribunals [respecting the application of 'general principles'] is to regard any features or terminology which are reminiscent of the rules and institutions of private law as an indication of policy and principles rather than as directly importing these rules and institutions'⁸⁸. Judges of the *ad hoc* Tribunals have taken a similar approach to deriving general principles of law. In the *Erdemović* case, two ICTY judges described their task as follows: '[O]ur approach will necessarily not involve a direct comparison of the specific rules of each of the world's legal systems, but will instead involve a survey of those jurisdictions whose jurisprudence is, as a practical matter, accessible to us in an effort to discern a general trend, policy or principle underlying the concrete rules of that jurisdiction which comports with the object and purpose of the establishment of the International Tribunal'⁸⁹.

The ICJ has only rarely resorted to general principles as a source of law⁹⁰. Nonetheless, a number of international tribunals, treating article 38 as declaratory of customary law, have relied on general principles in deciding cases⁹¹. The general principles of law referred to in article 21 include such widely recognized principles as the principle of legality (*nullum crimen sine lege*)⁹² and the principle of proportionality⁹³.

The drafters of the ICJ Statute described the role of article 38's provision regarding 'general principles' as, in part, to avoid a situation of *non liquet*⁹⁴. Paragraph 1 (c) similarly serves to address the unavoidable occurrence of interstices in international criminal law. As a developing body of law, international criminal law does not currently contain answers to every legal question likely to arise in a criminal trial. One area in which the drafters anticipated such lacunae is the law governing grounds for excluding criminal responsibility. While the Statute elaborates some defences in article 31, it also specifies that: 'the Court may consider a ground for excluding criminal responsibility other than those referred to in paragraph 1 where such a ground is derived from applicable law as set forth in article 21'⁹⁵. In developing the international criminal law relating to defences, it will be important for the judges to draw on principles of criminal law derived from national legal systems.

⁸⁸ *South West Africa Case*, Advisory Opinion, 1950 ICJ 28, at 148 (11 July) (separate opinion of Judge McNair).

⁸⁹ *Prosecutor v. Erdemović*, IT-96-22-A, Judgment Appeals Chamber, para. 57, at 40.

⁹⁰ Jennings and Watts (eds.), *Oppenheim's International Law*, 37–38. For citations to cases where this source has been applied, see *id.*, 37–38, para. 5.

⁹¹ See *id.*, 39.

⁹² The ICCPR specifies that the notion of general principles does not conflict with the principle of *nullum crimen sine lege*, stating that the principle of legality 'shall [not] prejudice the trial and punishment of any person for any act or omission which, at the time when it was committed, was criminal according to the general principles of law recognized by the community of nations'. note 20, ICCPR, article 15 para. 2.

⁹³ As discussed above in reference to paragraph 1 (b), the inclusion of both 'principles ... of international law' and 'general principles of law' in the Statute leaves open to debate whether particular principles fall under paragraph 1 (b) or paragraph 1 (c). For example, while most of the world's legal systems recognize the principles of equity and legality, one could also argue that these principles are derived from natural law or the 'legal conscience of humanity'.

⁹⁴ *Prosecutor v. Erdemović*, IT-96-22-A, Judgment, Appeals Chamber, para. 57, at 39, citing P.C.I.J., Advisory Committee of Jurists, Procès-verbaux of the Proceedings of the Committee, 16 June – 24 July, 336 (1920).

⁹⁵ Rome Statute, article 31 para. 3. In including this provision, the drafters may have been influenced by the experience of the ICTY when it addressed the defence of duress in the *Erdemović* Judgement. In that case, the ICTY found that 'no rule may be found in customary international law regarding the availability or the non-availability of duress as a defence to a charge of killing innocent human beings'. *Prosecutor v. Erdemović*, No. IT-96-22-A, Judgment Appeals Chamber, para. 55, p. 38. Furthermore, after a survey of relevant national laws, the court found that '[i]t is clear from the differing positions of the principal legal systems of the world that there is no consistent concrete rule which answers the question whether or not duress is a defence to the killing of innocent persons'. *Ibid.*, para. 72, p. 63. Although the Statute provides for the defence of duress in article 31, the drafters anticipated that similar questions would arise with regard to the availability of other grounds for excluding criminal responsibility under international law.

38 The language of article 21 leaves a great deal of discretion to the judges in determining which national laws to consider in deriving ‘general principles’. ICJ article 38 limits the relevant principles to those ‘recognized by civilised nations’. This provision was probably originally intended to refer to the most ‘developed’ nations, though it is now taken to refer to all States⁹⁶. Article 21 similarly includes all of the world’s legal systems within its scope. Nonetheless, it is clear that an applicable principle need not be accepted unanimously by all the world’s legal systems⁹⁷. Rather, ‘[t]here must be evidence that it is applied by a representative majority’, including the world’s principal legal systems⁹⁸. In identifying general principles, therefore, the judges of the ICC are required to engage in comparative law analysis, but have broad discretion to decide which national laws to include in that analysis.

39 In particular, the judges have discretion to make the important decision of when to refer to the laws of the States that would normally exercise jurisdiction over the crime. Article 21 provides no guidance as to which States should be considered to fall into this category⁹⁹. Earlier proposals to apply national laws directly were more specific in this regard, directing the Court first to the national law of the State where the crime was committed, second to the laws of the State of nationality of the accused, and third to the laws of the custodial State¹⁰⁰. The first two represent widely recognized grounds of jurisdiction – territoriality and nationality – and the Court can be expected to refer to the law of these States when applying article 21 paragraph 1 (c). With respect to other less accepted bases of jurisdiction, including custody of the defendant and nationality of the victim, the Court will have to decide whether such States would ‘normally exercise jurisdiction’.

At least one commentator has argued that since the crimes in the Rome Statute are crimes of universal jurisdiction, any state can be considered one that ‘would normally exercise jurisdiction over the crime.’¹⁰¹ The legislative history shows that this was not what the statute’s drafters intended and it is unlikely that the Court will take this approach.

40 There is little jurisprudence applying paragraph 1(c) to date. In a few cases, the Court has rejected arguments based on this provision. In the *Lubanga* case, Trial Chamber I rejected the prosecutor’s argument that a general principle exists permitting ‘witness proofing’ noting that the practice is only accepted in two common law systems, and that the prosecutor had not cited any evidence of the practice in Romano-Germanic systems.¹⁰² Likewise, the Appeals Chamber rejected a request to disqualify defense counsel who previously worked for the prosecutor’s office, noting that the prosecution had cited only five jurisdictions in support of its claim that a general principle exists supporting such disqualification.¹⁰³

In a dissenting opinion, one judge has criticized his colleagues for their heavy reliance on German law to support the conclusion that the statute includes the ‘control theory’ of co-perpetration. Although the majority’s holding does not rest on paragraph 1(c), Judge Fulford asserts that the decision’s effect is to import a national law doctrine without determining ‘whether the policy considerations underlying the domestic legal doctrine are applicable at [the ICC] ...’.¹⁰⁴

⁹⁶ Bernhardt (ed.), *MPEPIL* (2003) 517.

⁹⁷ See *id.*; Heinze, *International Criminal Procedure and Disclosure* (2014), 48–50.

⁹⁸ *Id.*

⁹⁹ This issue arises in a number of places in the Rome Statute including, for example, articles 17–19.

¹⁰⁰ See notes 8, 12 and accompanying text.

¹⁰¹ See e.g., Edwards (2001) 26 *YaleJIL* 323, 408.

¹⁰² *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Judgment, Trial Chamber I, 14 March 2012, para. 41, available at <http://www.legal-tools.org/doc/677866/>.

¹⁰³ *Prosecutor v. Nourain and Jerbo Jamus*, ICC-02/05-03/09-252 OA, Judgment on the Appeal of the Prosecutor Against the Decision of Trial Chamber IV of 30 June 2011 entitled ‘Decision on the Prosecution’s Request to Invalidate the Appointment of Counsel to the Defence’, Appeals Chamber, 11 November 2011, para. 33, available at http://www.legal-tools.org/uploads/tx_ltpdb/doc1266895_06.pdf.

¹⁰⁴ *Prosecutor v. Lubanga Dyilo*, ICC-01/04-01/06, Judgment, Trial Chamber I, 14 March 2012, Separate Opinion of Judge Adrian Fulford, para. 10, available at <http://www.legal-tools.org/doc/677866/>.

The Court has also been reluctant to engage the law of the state that would normally exercise jurisdiction. For instance, in the Kenya situation, defendants requested an oral hearing, relying on Kenyan legal instruments. In declining the request, the Appeals Chamber noted that it is not permitted to apply national laws directly and that it has discretion to decide whether to consider the national laws of the states that would normally exercise jurisdiction. The Chamber found no reason to depart from Rule 156's presumption against an oral hearing.¹⁰⁵

b) 'provided that those principles are not inconsistent with this Statute and with international law and internationally recognized norms and standards'. Assuming that the Court conducts broad comparative law analysis in arriving at general principles, this provision should prove relatively unimportant since such general principles will inherently conform with international law, norms, and standards.¹⁰⁶

However, if the Court decides in the future to apply principles derived from the national systems that would normally exercise jurisdiction it will have to be careful to ensure that those principles are compatible with the Statute and with other relevant international norms.

II. Paragraph 2: 'The Court may apply principles and rules of law as interpreted in its previous decisions'

This paragraph provides for the discretionary use of precedent by the Court. The Court is not obligated to adhere to its prior decisions through a binding rule of *stare decisis*. Rather, paragraph 2 permits the judges, in their discretion, to accord precedential value to principles and rules of law identified in prior decisions. This provision represents a compromise between the common law approach to judicial decisions as binding precedent, and the traditional civil law view that judicial pronouncements in specific cases bind only the parties before the court.

The language of paragraph 2 stands in contrast to that of article 59 of the ICJ Statute, which specifies that 'the decision of the Court has no binding force except between the parties and in respect of that particular case'. Article 59 evidenced the reluctance on the part of the international community when drafting the ICJ Statute to accord a significant law-making role to the judges. In practice, however, the ICJ has looked to its prior holdings as evidence of relevant rules and principles of law. By explicitly suggesting the judges of the ICC may consider the Court's prior holdings, article 21 indicates an evolution in the attitude of the world community in this area¹⁰⁷. As a developing body of law, without the benefits of legislative guidance, international criminal law requires a certain amount of judicial discretion. In suggesting the judges may take into account their prior holdings, article 21 paragraph 2 contributes to the development of a consistent and predictable body of international criminal law, and thus serves the principle of legality.¹⁰⁸

The Court has frequently cited its prior decisions as important authority. For instance, in deciding on victims' applications to participate in proceedings, one judge explained that he

¹⁰⁵ *Prosecutor v. Muthaura, Kenyatta, and Hussein Ali*, ICC-01/09-02/11 OA 4, Decision on the 'Request to Make Oral Submissions on Jurisdiction under Rule 156(3)', Appeals Chamber, 1 May 2012, para. 11, available at http://www.legal-tools.org/uploads/tx_ltpdb/2012-05_1406077_01.PDF.

¹⁰⁶ In fact, this provision was in brackets in Option 1 of the Draft Statute debated in Rome. See note 9, Preparatory Committee Draft, article 20.

¹⁰⁷ Another commentator has perceived in this change simply a recognition that the difference between precedential and non-precedential systems of law is less significant in practice than in theory. See Sadat, *The International Criminal Court and the Transformation of International Law: Justice for the New Millenium* 179.

¹⁰⁸ There is some controversy in the scholarship on this point. Compare Cassese (1999) 10 *EJIL* 144, 164 (arguing that the judges can and should adopt *stare decisis*) with Pellet, in: Cassese et al. (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1066 (rejecting this view).

would ‘whenever appropriate, take into account the principles established and the practices followed so far by the Court in the area of victims’ participation.’¹⁰⁹ The Appeals Chamber used even stronger language when it declined to disqualify defense counsel who previously worked for the prosecution, relying on its prior interpretation of the relevant provision of the Code of Professional Conduct for counsel.¹¹⁰ The Appeals Chamber held that the question of what ‘privity to confidential information’ means was ‘resolved’ by its early decision.¹¹¹

In confirming charges against Katanga and Chui Pre-Trial Chamber I relied on many of its holdings in its decision confirming charging against Lubanga.¹¹² Chambers have also relied on decisions of other chambers. For instance, in a decision considering whether to grant the prosecutor leave to appeal a decision concerning victim participation, Pre-Trial Chamber I referred extensively to the relevant holdings of Pre-Trial Chamber II.¹¹³ Pre-Trial Chamber III likewise followed the holdings of Pre-Trial Chamber II with regard to the meaning of ‘policy’ in the definition of crimes against humanity.¹¹⁴

- 46 In other instances, however, the Court has departed from its prior holdings. This has been the case, for instance, with regard to the question of whether counsel may prepare witnesses for trial. While several trial chambers have disallowed the practice, Trial Chamber V has permitted witness preparation.¹¹⁵
- 47 As some scholars have argued, it is probably advisable for the judges of the pre-trial and trial chambers generally to follow holdings of the Appeals Chamber to promote consistency and coherence in the development of the law.¹¹⁶ It remains unclear, however, whether the ICC judges will accord special deference to the case law of the Appeals Chamber. In determining when leave to appeal should be granted, the Trial Chamber in the *Bemba* case asserted that it was ‘guided by the established jurisprudence of this Chamber and of the Court, citing appellate jurisprudence for the latter.’¹¹⁷ It gave no indication, however, that Appeals Chamber jurisprudence is entitled to special deference.

¹⁰⁹ *Prosecutor v. Kony et al.*, ICC-02/04-01/05, Decision on Victims’ Applications for Participation a/0010/06, a/006406 to a/0070/06, a/0081/06 to a/0104/06 and a/0111/06 to a/0127/06, Pre-trial Chamber II, 10 August 2007, para. 5, available at <http://www.legal-tools.org/doc/957bbf/>.

¹¹⁰ *Prosecutor v. Nourain and Jerbo Jamus*, ICC-02/05-03/09 OA, Judgment on the Appeal of the Prosecutor Against the Decision of Trial Chamber IV of 30 June 2011 Entitled ‘Decision on the Prosecution’s Request to Invalidate the Appointment of Counsel to the Defence’, Appeals Chamber, 11 November 2011, para. 32, available at http://www.legal-tools.org/uploads/tx_tpd/doc1266895_06.pdf.

¹¹¹ *Id.*

¹¹² *Prosecutor v. Katanga and Chui*, ICC-01/04-1/07-717, Decision on the Confirmation of Charges, Pre-trial Chamber I, 30 September 2008, para. 65, available at <http://www.legal-tools.org/doc/67a9ec/> (the evidentiary standard of ‘substantial grounds to believe’) para. 249 (‘national armed forces’) para. 250 (‘active participation in hostilities’) para. 520 (‘co-perpetration’).

¹¹³ *Situation in the Democratic Republic of Congo*, ICC-01-04-135-TEN, Decision on the Prosecution’s Application for Leave to Appeal the Chamber’s Decision of 17 January 2006 on the Applications for Participation in the Proceedings of VPRS I, VPRS 2, VPRS 3, VPRS 4, VPRS 5, and VPRS 6, Pre-trial Chamber I, 31 March 2006, para. 18, available at <http://www.legal-tools.org/doc/902494/>.

¹¹⁴ *Situation in the Côte d’Ivoire*, ICC-02/11-14-Corr, Corrigendum to ‘Decision Pursuant to Article 15 of the Rome Statute on the Authorisation of an Investigation into the Situation in the Republic of Côte d’Ivoire’, Trial Chamber III, 15 November 2011, paras. 43–6, available at <http://www.legal-tools.org/doc/e0c0eb/>.

¹¹⁵ See *Prosecutor v. Muthaura and Kenyatta*, ICC-01/09-02/11-588, Decision on witness preparation, Trial Chamber V, 2 January 2013, para. 30 and fn. 7, available at <http://www.legal-tools.org/doc/d907bd/>.

¹¹⁶ See, e.g., Schabas, *The International Criminal Court: A Commentary on the Rome Statute* (2010) 395; Gideon Boas (ed.), *International Criminal Law: Developments in the Case Law of the ICTY* (2003) 8.

¹¹⁷ *Prosecutor v. Bemba Gombo*, ICC-01/05-01/08-2487-Red, Public Redacted Version of ‘Decision on ‘Defence Request for Leave to Appeal the Decision on the Temporary Suspension of the Proceedings Pursuant to Regulation 55(2) of the Regulations of the Court and related Procedural Deadlines’ of 11 January 2013, Trial Chamber III, 16 January 2003, para. 12, available at <http://www.legal-tools.org/doc/91962c/>.

III. Paragraph 3: 'The application and interpretation of law pursuant to this article must be consistent with internationally recognized human rights, and be without any adverse distinction founded on grounds such as gender ...'

Although this paragraph was included without brackets in the Final Draft Statute debated in Rome¹¹⁸, it became one of the more contentious provisions of the Statute at the Conference. There was virtual unanimity among delegations as to the desirability of stipulating that the interpretation of law 'must be consistent with internationally recognized human rights'¹¹⁹. The need for the Court to adhere scrupulously to international human rights standards in exercising its functions is beyond question. In particular, the rights of the accused must be strictly respected¹²⁰.

The debate regarding this paragraph centred instead on the desirability of specifying the prohibited grounds of discrimination. This elaboration may be technically unnecessary since the prohibition of discrimination on the listed grounds is clearly encompassed in 'internationally recognized human rights'. Most instruments related to human rights and humanitarian law, however, have included such a non-discrimination clause. Many delegations therefore felt strongly that it was important to reaffirm the international community's commitment to the principle of non-discrimination in the context of the international criminal court.

The most contentious issue to emerge at the Conference with respect to this provision concerned the use of the term 'gender'. This debate affected not only article 21, but also several other articles where the term gender is used. A number of delegations argued adamantly that the term 'gender' is imprecise and should not be employed in the Statute¹²¹. In particular, a few delegations felt that the term gender incorporated a reference to homosexuality¹²². In order to avoid use of the term 'gender', some delegations favoured ending the paragraph with the words 'human rights'¹²³. However, many other delegations felt equally strongly about the importance of reaffirming in the Statute the prohibition against gender discrimination¹²⁴. An intense debate followed regarding whether the term 'gender' should be replaced with the more traditional term 'sex'. On one occasion the debate became so heated that the Chairman closed the meeting and reconvened it without the presence of non-governmental organizations for the only time during the conference¹²⁵. The majority view, which ultimately prevailed, was that the term 'gender' should be employed in order to clarify that sex is not simply a biological matter but involves the social construction of roles and power disparities¹²⁶. A definition of the term 'gender' was included in article 7, the first place where the term appears, stating: 'The term "gender" refers to the two sexes, male and female, within the context of society'¹²⁷. Thus, the

¹¹⁸ Preparatory Committee Draft, article 20, note 9.

¹¹⁹ See Zutphen Draft, p. 64, para. 117 (noting support for a proposal stating: 'The application and interpretation of the general sources of law must be consistent with international human rights standards and the progressive development thereof, which encompasses the prohibition on adverse discrimination of any kind, including discrimination based on gender').

¹²⁰ The Final Draft Statute contains a footnote stating: 'It was generally agreed that consistency with internationally recognized human rights would require that interpretation by the Court be consistent with the principle of *nullum crimen sine lege*'. Preparatory Committee Draft, article 20, note 9, para. 63.

¹²¹ Part of the problem appears to have been related to translation – there is no exact translation for 'gender' in Arabic. See 'Gender Dispute Haunts Rome Conference to the End' (11 July 1998) 1 *On the Record*, issue 18 (Whereas the French and Spanish translation for gender is 'male and female', the Arab translation reportedly comes out as a 'type of sex').

¹²² Saland, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues, Negotiations, Results* (1999) 189, 216.

¹²³ See, e.g., Proposal Submitted by Guatemala, Option 1, UN Doc. A/CONF.183/C.1/WGAL/L.4 (14 July 1998).

¹²⁴ See Author's personal notes of debate, Working Group on Applicable Law (13 July 1998) (on file with author).

¹²⁵ Saland, in: Lee (ed.), *The International Criminal Court: The Making of the Rome Statute: Issues, Negotiations, Results* (1999) 189, 216.

¹²⁶ See Author's personal notes of debate, Working Group on Applicable Law (13 July 1998) (on file with author).

¹²⁷ Rome Statute, article 7 para. 3. For an interpretation of this provision, see the commentary of Ch. K. Hall.

conference ultimately adopted the view that in applying and interpreting the law, the Court should be concerned not only with discrimination based on ‘sex’ but also with any discrimination related to socially constructed roles and power differentials.

- 51 This provision has the potential to broaden the Court’s powers significantly¹²⁸. As written, the provision applies to all sources of law in article 21. Thus, the Court could, for example, refuse to apply one of the Elements of Crimes or a Rule of Procedure and Evidence, if it found the provision to be inconsistent with the standards in paragraph 3¹²⁹. This paragraph is therefore one of the more important provisions of the Rome Statute. Indeed, Gilbert Bitti argues that the effect of the provision is to make internationally recognized human rights an additional source of law for the Court.¹³⁰
- 52 The ICC’s jurisprudence references this provision frequently, particularly with respect to the human rights of defendants and victims. Such references have occurred in the context of both interpreting and applying the law. In the Lubanga case, after declining to interpret the statute to include ‘abuse of process’ as a ground of inadmissibility, as discussed above, the Appeals Chamber nonetheless asserted that article 21 paragraph 3 requires the dismissal of any case in which a fair trial has become impossible due to breaches of the rights of the accused.¹³¹ Likewise, the Appeals Chamber has used this provision to interpret provisions of the statute in ways that protect people within the Court’s orbit. For instance, the Appeals Chamber interpreted Rule 81(4), which protects the identities of ‘witnesses, victims and members of their families’ prior to trial, to also include ‘persons at risk on account of the activities of the Court.’¹³² The Chamber cited jurisprudence of the European Court of Human Rights and held, ‘that the circumstances under consideration in the present appeal may give rise to a situation in which the withholding of certain information from the Defence may be necessary so as to preserve the fundamental rights of an individual put at risk by the activities of the ICC.’¹³³

One Trial Chamber has even declined to apply an article of the Statute, citing article 21 paragraph 3, although the decision was overturned on appeal. In the Katanga case, the trial chamber decided not to implement article 93(7)(b)’s requirement that witnesses transferred from state custody be returned when the purpose of the transfer has been fulfilled on the basis that the witnesses had asylum claims pending in the Netherlands.¹³⁴ The Chamber held that transferring them would violate in their human right to apply for asylum.¹³⁵ The Appeals Chamber disagreed, however, asserting that it was up to the Netherlands to determine whether the witness’ asylum claims required the Netherlands to intervene to take control of the witnesses until their claims were adjudicated.¹³⁶ Nonetheless, this decision and others indicate that the judges are willing to use this provision to reach outcomes they believe conform to human rights norms, even if this requires interpreting the Court’s sources of law expansively or even disregarding them entirely.

¹²⁸ See Arsanjani (1999) 93 *AJIL* 22, 29.

¹²⁹ See *id.*

¹³⁰ Bitti, in: Stahn (ed.), *The Law and Practice of the International Criminal Court* (forthcoming 2014).

¹³¹ Lubanga (Appeals Chamber Judgment on Jurisdiction Appeal) note 43, para. 37.

¹³² *Prosecutor v. Katanga*, ICC-01/04-01/07-475 OA, Judgment on the appeal of the Prosecutor against the decision of Pre-Trial Chamber I entitled ‘First Decision on the Prosecution Request for Authorisation to Redact Witness Statements’, Appeals Chamber, 13 May 2008, para. 57, available at <http://www.legal-tools.org/doc/4042e3/>.

¹³³ *Id.* para. 58.

¹³⁴ *Prosecutor v. Katanga and Ngudjolo Chui*, ICC-01/04-01/07-3003-tENG, Decision on an Amicus Curiae Application and on the ‘Requête Tendante à Obtenir Présentations des Témoins DRC-D02-P-0350, DRC-D02-P-0236, DRC-D02-P-0228 aux Autorités Néerlandaises aux fins d’asile’ (Articles 68 and 93(7) of the Statute), Trial Chamber II, 9 June 2011, para. 73, available at <http://www.legal-tools.org/doc/e411d5/>.

¹³⁵ *Id.*

¹³⁶ *Prosecutor v. Ngudjolo Chui*, ICC ICC-01/04-02/12-158, Order on the implementation of the cooperation agreement between the Court and the Democratic Republic of Congo concluded pursuant article 93 (7) of the Statute, Appeals Chamber, 20 January 2014, para. 29, available at <http://www.legal-tools.org/doc/d554f7/>.

PART 3

GENERAL PRINCIPLES OF CRIMINAL LAW

Article 22

Nullum crimen sine lege

1. A person shall not be criminally responsible under this Statute unless the conduct in question constitutes, at the time it takes place, a crime within the jurisdiction of the Court.

2. The definition of a crime shall be strictly construed and shall not be extended by analogy. In case of ambiguity, the definition shall be interpreted in favour of the person being investigated, prosecuted or convicted.

3. This article shall not affect the characterization of any conduct as criminal under international law independently of this Statute.

Literature: Acquaviva, G., 'At the Origins of Crimes Against Humanity: Clues to a Proper Understanding of the *Nullum Crimen* Principle in the Nuremberg Judgment', (2011) 9 *JICJ* 881; Ambos, K., 'General Principles of Criminal Law in the Rome Statute', (1999) 10 *CLF* 1; id., 'Current Issues in International Criminal Law', (2003) 14 *CLF* 225; id., 'Judicial Creativity at the Special Tribunal for Lebanon: Is There a Crime of Terrorism Under International Law?', (2011) 24 *LeidenJIL* 655; Bassiouni, M.C., 'Commentaries on the International Law Commission's 1991 Draft Code of Crimes against the Peace and Security of Mankind', (1993) 11 *NEP*; id., 'The International Criminal Court: Observations and Issues before the 1997-98 Preparatory Committee; and Administrative and Financial Implications', (1997) 13 *NEP*; Broomhall, B., *International Justice and the International Criminal Court: Between Sovereignty and the Rule of Law* (Oxford University Press 2003); Cassese, A., 'Balancing the Prosecution of Crimes Against Humanity and Non-Retroactivity of Criminal Law: The *Kolk and Kislyiy v. Estonia* Case Before the ECHR', (2006) 4 *JICJ* 410; Catenacci, M., 'The Principle of Legality', in: F. Lattanzi and W.A. Schabas (eds.), *Essays on the Rome Statute of the International Criminal Court*, Vol. I (il Sirente 1999) 85; Currat, P., 'L'interprétation du Statut de Rome', (2007) 20 *RQDI* 137; Di Filippo, M., 'Terrorist Crimes and International Co-Operation: Critical Remarks on the Definition and Inclusion of Terrorism in the Category of International Crimes', (2008) 19 *EJIL* 533; Gallant, K., *The Principle of Legality in International and Comparative Criminal Law* (Cambridge University Press 2009); Glaser, S., 'Nullum Crimen Sine Lege', (1942) 24 *JCLIL* 29; Glennon, M., 'The Blank-Prose Crime of Aggression', (2010) 35 *YaleJIL* 71; Henckaerts, J.-M., and Doswald-Beck, L. (eds.), *Customary International Humanitarian Law* (ICRC and Cambridge University Press 2005); Hogg, P.W. and Zwibel, C.F., 'The Rule of Law in the Supreme Court of Canada', (2005) 55 *TorontoLJ* 714; Jeffries, J.C., 'Legality, Vagueness and the Construction of Penal Statutes', (1985) 71 *VirgLRev* 189; Kirsch, S. and Oehmichen, A., 'Judges Gone Astray: The Fabrication of Terrorism as an International Crime by the Special Tribunal for Lebanon', (2011) 1 *DurhamLRev* 1; Kieß, C., 'Nulla Poena Nullum Crimen Sine Lege', in: R. Wolfrum (ed.), *The Max Planck Encyclopedia of Public International Law* (2008-), <<http://www.mpepil.com>>; Lamb, S., 'Nullum Crimen, Nulla Poena Sine Lege in International Criminal Law', in: A. Cassese, P. Gaeta and J.R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (Oxford University Press 2002) 733; Meron, T., 'Revival of Customary Humanitarian Law', (2005) 99 *AJIL* 817; Milanović, M., 'Is the Rome Statute Binding on Individuals? (And Why We Should Care)', (2011) 9 *JICJ* 25; id., 'Aggression and Legality: Custom in Kampala', (2012) 10 *JICJ* 165; Nilsson, J., 'The Principle *Nullum Crimen Sine Lege*', in: O. Olusanya (ed.), *Rethinking International Criminal Law: The Substantive Part* (Europa Law Publishing 2007) 37; Paulus, A., 'Second Thoughts on the Crime of Aggression', (2010) 20 *EJIL* 1117; Robinson, P.H., 'Fair Notice and Fair Adjudication: Two Kinds of Legality', (2005) 154 *UPALRev* 335; Saul, B., 'The Special Tribunal for Lebanon and Terrorism as an International Crime: Reflections on the Judicial Function', (2012) *Legal Studies Research Paper* No. 12/64; Shahabuddeen, M., 'Does the Principle of Legality Stand in the Way of Progressive Development of Law?', (2004) 2 *JICJ* 1007; Triffterer, O., 'Efforts to Recognize and Codify International Crimes (General Report, Part I)', in: *International Crimes and Domestic Criminal Law*, (1989) 60 *RIDP* 29; Van Schaack, B., '*Crimen Sine Lege*: Judicial Lawmaking at the Intersection of Law and Morals', (2008-2009) 97 *GeorgetownLJ* 119.

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A. Introduction/general remarks

- Article 22 sets out the application to the Statute of *nullum crimen sine lege* (‘no crime without law’). This maxim, along with that of *nulla poena sine lege* (‘no penalty without law’) reflected in article 23, comprises the principle of legality, a fundamental component of any criminal justice system aspiring to conform to the rule of law.¹ The article sets out the core prohibition of retroactive application of the criminal law, as well as two major corollaries of this prohibition, namely the rule of strict construction (including the forbidding of extension by analogy of the definitions of crimes) and the requirement that ambiguities be construed in favour of the suspect or accused.

I. Historical development

- The 1994 Draft Statute of the International Law Commission² applied the *nullum crimen* principle so as to reflect that Draft’s proposed jurisdictional distinction between crimes under general international law and treaty crimes. With respect to the latter, see mns 54–58. With respect to the former, article 39 (a) provided that an accused would not be held guilty of genocide, aggression, serious violations of the laws and customs applicable in armed conflict or crimes against humanity unless the act or omission in question constituted a crime under international law at the time it occurred. It therefore does no more than apply the prohibition against retrospective application of the criminal law. Provided the conduct was criminal under international law at the time of its occurrence, the ICC would be able to exercise jurisdiction, even where national courts, because of a failure to incorporate the relevant prohibitions into national law³ or because of national laws contrary to them, could not.
- As a constraint on law-making, the principle of legality was relied upon by those seeking to have the crimes within the jurisdiction of the Court defined expressly in the Statute, rather than leaving the Court to interpret general international law. The rationale was that general international law might not set out the elements of the offences with sufficient precision, particularly where the crime in question was not defined by treaty (as with aggression).⁴ The

¹ Cf. Ambos, *Treatise ICL I* (2013), pp. 88 *et seq.*

² International Law Commission, ‘Draft Statute for an International Criminal Court’, in: *Report of the International Law Commission on the Work of its Forty-Sixth Session*, UN GAOR, 49th Sess., Supp. No. 10, UN Doc. A/49/10 (1994), 43, p. 112; reprinted in: Bassiouni, *Compilation* (1998) 721, 734. Bassiouni omits the ILC’s running commentary to its Draft Statute.

³ Commentary to article 39, ILC Draft, note 1, paras. 2 and 4, pp. 113–114.

⁴ That international law does in fact meet *nullum crimen* standards has often been asserted, and incorporation by reference of definitions under international law (as proposed in the ILC Draft), has been allowed under

result was a move towards the vision, finally affirmed in the Rome Statute, of a Court of which the subject-matter jurisdiction is exhaustively defined in its constitutive instrument. Motivated in part by legitimate uncertainty as to customary international law's definitions of the offences in question, the move also resulted from the awareness of governments that they were designing an institution which could possibly bring indictments against even their highest-ranking officials. This awareness put a premium on the clear delimitation of the Court's jurisdiction.

Responding to such pressures, the ILC replaced its earlier proposal to define the Court's jurisdiction by reference to 'crimes under general international law'⁵ with a list specifying four such crimes (as well as treaty crimes).⁶ Despite acceding to Sixth Committee criticisms on this point, the ILC maintained that the Statute should be primarily adjectival and procedural, and was not intended to codify or define crimes.⁷

Thus, the Court would determine the exact contents of the listed prohibitions by resorting to the relevant sources of international law. Concerns about this approach were raised in the 1995 Ad Hoc Committee, where the view was expressed that the principle of legality required the definition and not merely the enumeration of crimes, and indeed that it required definitions of general principles, defences and the applicable procedural and evidentiary law as well.⁸ At the 1996 Preparatory Committee, there was widespread agreement that 'the crimes within the jurisdiction of the Court should be defined with the clarity, precision and specificity required for criminal law in accordance with the principle of legality (*nullum crimen sine lege*)' and that the fundamental principles of criminal law and the 'general and most important rules of procedure and evidence' should be clearly set out in the Statute for the same reason.⁹

The 1996 Preparatory Committee text contained three proposals. The first changed little of the content of the ILC Draft,¹⁰ but introduced the precursor to present article 22 para. 3 and a stipulation that the more lenient law would apply in case of an amendment between the commission of the offence and final judgment. It also introduced the requirement that any commission of a 'core' crime occur after the entry into force of the Statute. The second and third proposals also contained this latter requirement.¹¹ The second proposal contained a further prohibition on the use of analogy in construing punishable conduct or imposing sanctions.

With the moving of the provisions on jurisdiction *ratione temporis* into a separate provision, the February 1997 Preparatory Committee text reflected a modified version of the first 1996 proposal, with a two-pronged paragraph on non-retroactivity of 'core' crimes and treaty crimes, a bracketed paragraph prohibiting analogy and a precursor to article 22 para. 3.¹² This version, the basis for the present article, appeared without significant changes in the text

both national and international law: see Paust, in: Bassiouni, *Observations* (1997) 275, 275–276 and 282–288; also mn 15.

⁵ For the previous Draft to emerge from the ILC, see 'Report of the Working Group on the Draft Statute for an International Criminal Court', Annex to *Report of the International Law Commission on the Work of its Forty-Fifth Session*, UN GAOR, 48th Sess., Supp. No. 10, UN Doc. A/48/10 (1993), reprinted in: 33 *ILM* 256 (1994).

⁶ 1994 ILC Report, note 1, para. 60, p. 36; Commentary to ILC Draft, note 1, paras.5–6, 66–67 and para. 1, p. 71.

⁷ Commentary to article 20, ILC Draft, note 1, para. 4, p. 71.

⁸ Report of the Ad Hoc Committee on the Establishment of an International Criminal Court, UN GAOR, 50th Sess., Supp. No. 22, UN Doc. A/50/22 (1995), paras. 52 and 57, pp.10 and 12; reprinted in: Bassiouni, *Compilation* (1998) 667, 677 and 678.

⁹ Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN GAOR, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996), 2 Vols., paras. 52, 180 and 185, pp. 16, 41 and 42 (Vol. I), reprinted in: Bassiouni, *Compilation* (1998) 363, 383–384 and 408–409. For contemporary commentary, see Wise, in: Bassiouni, *Observations* (1997) 267. The extent to which the principle of *nullum crimen* would require such a codification of the general part is controversial.

¹⁰ 'Article A' of Part 3bis of the 1996 Preparatory Committee Report was compiled by an informal group and did not represent a text agreed by delegates: *ibid.*, Vol. 2, p. 79; Bassiouni, *Compilation* (1998), 500.

¹¹ The third proposal was the precursor of current article 11 (Jurisdiction *ratione temporis*).

¹² Decisions Taken by the Preparatory Committee at its Session Held from 11 to 21 February 1997, UN Doc. A/AC.249/1997/L.5 (1997), article A (*Nullum crimen*) and article Abis (Jurisdiction *ratione temporis*, as it was to

prepared at the inter-sessional Zutphen meeting in January 1998.¹³ The same wording appeared with insubstantial changes in the final Preparatory Committee Draft which was placed before the Diplomatic Conference.¹⁴

- 8 At the Diplomatic Conference, the basic structure devised for article 22 by the Preparatory Committee underwent little change. The suggested text of Per Saland, Chair of the Working Group on General Principles of Criminal Law,¹⁵ added to the prohibition on analogy in the second paragraph the requirement of strict construction and disallowed the proscription of conduct not clearly prohibited by the Statute.¹⁶ A note pointed out that the principle of legality would apply equally to all crimes within the jurisdiction of the Court, including crimes against the integrity of justice.¹⁷ The Working Group report which followed¹⁸ incorporated the strict construction requirement and, with the changes made by the Drafting Committee subsequently,¹⁹ resulted in the wording of the Bureau's Draft Statute²⁰ and finally of the adopted text. The Working Group, Drafting Committee and Bureau versions reflected the growing sense that treaty crimes would not be included in the initial Statute, and so omitted provision for them.

II. Purpose

- 9 The principle of legality reinforces a legal system's legitimacy by limiting the interventions of the criminal justice process to those which have been clearly prescribed by law in advance. It assumes a rational, autonomous legal subject and a known or knowable law. It posits that the deterrent effect of the law, which is its power to influence the decision-making of individuals in a socially constructive way, arises from its rational and knowable character. Where legal subjects make choices relying on the apparent sense of the law, and nonetheless find themselves tried and convicted, the law has effectively been applied *ex post facto* to them, and the administration of justice is accordingly brought into disrepute.²¹ A system supporting retroactivity and vagueness in definition lends increasing discretion to the judiciary and (in national systems) the police. In its extreme form, neglect of this principle coincides with an abandonment of the rule of law and is a characteristic of unfettered authoritarianism.²²
- 10 The principle plays a 'constitutional' role in maintaining the separation of powers as well. As a principle of legislation, *nullum crimen sine lege* constrains lawmakers to set out their intentions clearly and in advance of the conduct over which they wish the courts to exercise jurisdiction.²³ It thereby seeks to protect the subjects of the law from indeterminate executive

become known); Bassiouni, *Compilation* (1998) 343, 355. Article *Abis* included the proposal to apply the more lenient version in the event of amendment.

¹³ Report of the Inter-Sessional Meeting from 19 to 30 January 1998 in Zutphen, The Netherlands, UN Doc. A/AC.249/1998/L.13 (1998), article 15[A], p. 51; reprinted in: Bassiouni, *Compilation* (1998) 143, 173.

¹⁴ Draft Statute for the International Criminal Court, Part 1 of the Addendum to the Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN Doc. A/CONF.183/2/Add.1 (1998), article 21, p. 57; reprinted in: Bassiouni, *Compilation* (1998) 7, 39.

¹⁵ Chairman's suggestions for articles 21, 26 and 28, UN Doc. A/CONF.183/C.1/WG.GP/L.1 (15 June 1998).

¹⁶ This stipulation was dropped, presumably as being superfluous, from subsequent versions.

¹⁷ Article 22 does not apply to article 70 (Offences against the administration of justice) as such: see mn 34–35.

¹⁸ Report of the Working Group on General Principles of Criminal Law, UN Doc. A/CONF.183/C.1/WGGP/L.4 (18 June 1998), article 21, p. 2.

¹⁹ Draft report of the Drafting Committee to the Committee of the Whole, UN Doc. A/CONF.183/C.1/L.65/Rev.1 (14 July 1998), article 21, p. 1.

²⁰ Draft Statute for the International Criminal Court, UN Doc. A/CONF.183/C.1/L.76/Add.3 (16 July 1998), p. 1.

²¹ See the discussion in Ashworth and Horder, *Principles* (2013) 57–61 and in Jeffries (1985) 71 *VirgLRev* 189, 205–210.

²² See Bassiouni, *Crimes* (2011) 320–322, for a description of how the National Socialist government reversed Germany's traditional affirmation of the principles of legality.

²³ This constraint is constitutionally enforced in some jurisdictions, such as the United States and Canada, where judges are empowered to strike down legislation for vagueness and retroactivity: see Hogg and Zwibel (2005) 55 *TorontoLJ* 714, 722–723; Robinson (1995) 154 *UPALRev* 335, 356–359.

interference. The principle reflected in article 22 of the Statute reminds States Parties of the need for care in drafting amendments or additions to the crimes within the jurisdiction of the Court, as the Court will have only such scope of jurisdiction as the reasonably ascertainable and non-retroactive meaning of the words defining it (on the crime of aggression, see mn 60).

As a principle of interpretation, *nullum crimen* aims to limit the power of the (unelected) judiciary to interfere with liberty beyond the extent that a reasonable individual could understand from the words of the relevant prohibition. Just as legal subjects are presumed capable of knowing and have a duty to obey the law, so too is the lawmaker responsible for making the law clear and ascertainable, while the judiciary is obliged in principle to refrain from penalizing conduct not made criminal by the legislator through the wording of the law in question,²⁴ and is thus confined to interpreting and applying, but not making the law.²⁵

In the case of the ICC, the principle aims to provide certainty to both individuals and States. Individuals face the possibility of prosecution only with respect to the crimes which States Parties have clearly and exhaustively provided for in the Statute. For their part, States Parties are under an obligation to cooperate with the Court and to surrender jurisdiction to it in accordance with the complementarity provisions only in clearly delineated statutory circumstances. This is not because the provisions relating to the obligation to cooperate (for example) are subject to the rule of strict construction (mns 36–39), but because such provisions will only come into play when crimes within the jurisdiction of the Court, which are so subject, are being addressed. It was largely because of this ability to clarify and to limit the obligations of States, and because of the likelihood that many defendants will be State agents, that the principle of legality was incorporated into the Statute as explicitly as it was during negotiations.

The principle derives in part from a consciousness of the serious consequences for the accused that may flow from the criminal justice process, and therefore of the need to protect relatively powerless individuals from the interference of State (or inter-State) legal machinery.²⁶ In international law, the principle adds to this the certainty it provides to States as to the extent of the obligations they have undertaken.

III. Scope

The principle of *nullum crimen sine lege* as it exists under general international law can be distinguished from its manifestation in article 22 of the Statute.

As to the former (mn 25–27), *nullum crimen sine lege* has long been recognized as a principle of international law, and has had considerable influence on the process leading up to the adoption of the Rome Statute (see mn 2–8 and 27).²⁷ As a principle of general international law, *nullum crimen* is frequently referred to in asserting that a given form of conduct does or does not give rise to the criminal responsibility of individuals under international law. Such reference has been made notably in the jurisprudence of the ICTY and of the Special Court for Sierra Leone.²⁸ In this role, the principle is adapted to the

²⁴ See Ashworth and Horder, *Principles* (2013) 58 and Wise, in: Bassiouni, *Observations* (1997) 267, 272. The line between the ‘legislative’ and the ‘judicial’ is a matter of judgement and is never fixed however: Jeffries (1985) 71 *VirgLR* 189, 189 and 202–205.

²⁵ Ashworth and Horder, *Principles* (2013) 69.

²⁶ The same policy motivation pertains to the presumption of innocence and the standard of proof beyond a reasonable doubt: Ashworth and Horder, *Principles* (2013) 71.

²⁷ For a summary history of the development of the principle at international law, see Lamb, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 733, 735–742; see also Cassese, *International Criminal Law* (2013) 22–36.

²⁸ In the context of the ICTY, ‘...the application of the principle *nullum crimen sine lege* requires that the international tribunal should apply rules of international humanitarian law which are beyond any doubt part of customary law...’: Report of the Secretary-General Pursuant to Paragraph 2 of Security Council Resolution 808 (1993), UN Doc. S/25704 (3 May 1993), para. 34. The ICTY has examined the customary basis of various crimes cases that include *Prosecutor v. Duško Tadić*, IT-94-1, Decision on the Defence Motion for Interlocutory Appeal

particular means of establishing norms under international law, determining the existence (or non-existence) of crimes by reference to treaties, declarations, jurisprudence and other indicia of State practice and *opinio juris*, rather than simply by reference to legislative acts, as typically suffices at the national level. The principle is broader and considerably more tolerant of imprecision under general international law than it is under the Rome Statute and, *a fortiori*, under national law.²⁹ Professor Bassiouni asserts that it encompasses a broader allowance for prohibitions by analogy than do most domestic systems and is, in general, less rigid than its article 22 manifestation.³⁰ The reasons for this comparative breadth of the international principle lie both in the nature of international law, and in the fundamental interests being protected by international criminalization – namely, the protection of international peace and security and the affirmation of ‘the collective conscience of mankind’ – that require a different balance to be struck between substantive justice and the demands of legality at the international level.³¹ Thus, while continental jurists have a tendency to speak of the requirement that the law (usually meaning national law) be foreseeable (*lex praevia*), precise (*lex stricta*) and set down in writing (*lex scripta*),³² care must be taken to apply this articulation of the principle only *mutatis mutandis* to the Rome Statute and to general international law, where each of these requirements may be satisfied only in a comparatively broad sense.³³

- 16 Furthermore, to ensure the effective safeguard of these interests, the *nullum crimen* principle permits the prosecution of the acts of individuals regardless of whether national

on Jurisdiction, Appeals Chamber, 2 October 1995; *Prosecutor v. Zejnil Delalić et al.*, IT-96-21-A, Judgment, Appeals Chamber, 20 February 2001; and *Prosecutor v. Enver Hadžihasanović et al.*, IT-01-47-AR72, Decision on Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility, Appeals Chamber, 16 July 2003. For the Sierra Leone Special Court, see *Prosecutor v. Sam Hinga Norman*, SCSL-2004-14-AR72, Decision on Preliminary Motion Based on Lack of Jurisdiction (Child recruitment), Appeals Chamber, 31 May 2004; *Prosecutor v. Brima*, SCSL-2004-16-A, Judgment, Appeals Chamber, 22 February 2008, paras. 197–198 (determining forced marriage as the crime against humanity of ‘other inhumane acts’). For a discussion of the methods applied in assessing customary law in the jurisprudence of the ICTY, see Lamb, in: Cassese, Gaeta and Jones (eds.), *Commentary* (2002) 733,742–746; Nilsson, in: Olusanya (ed.), *Rethinking* (2007) 37; Meron (2005) 99 *AJIL* 817.

²⁹ ‘International law is the product of multipartite treaties, conventions, judicial decisions and customs which have received international acceptance or acquiescence. It would be sheer absurdity to suggest that the *ex post facto* rule, as known to constitutional states, could be applied to a treaty, a custom, or a common law decision of an international tribunal, or to the international acquiescence which follows the events. To have attempted to apply the *ex post facto* principle to judicial decisions of common international law would have been to strangle that law at birth’: *Prosecutor v. Milan Milutinović et al.*, IT-99-37-AR72, Decision on Dragoljub Ojdanić’s Motion Challenging Jurisdiction – Joint Criminal Enterprise, Appeals Chamber, 21 May 2003, para. 39, quoting *United States of America v. Altstötter et al.*, Trials of War Criminals Before The Nuremberg Tribunals Under Control Council Law No. 10, vol. III (‘the Justice case’), 974–975.

³⁰ [‘International criminal law] as it is now, and certainly as it was in 1945, requires the existence of a legal prohibition arising under conventional or customary international law, which is deemed to have primacy over national law and which defines certain conduct as criminal, punishable or prosecutable, or violative of international law. This minimum standard of legality has permitted the resort to the rule *ejusdem generis* [permitting analogy] with respect to analogous conduct, as well as permits the application of penalties by analogy...’: Bassiouni, *Crimes* (2011) 306.

³¹ Cassese, *International Criminal Law* (2013) 24–27. See also Broomhall, *International Justice and the International Criminal Court* (2003) 9–62. As Bassiouni has stated, ‘... the principles of legality in [international criminal law] ... are necessarily *sui generis*, because they must balance between the preservation of justice and fairness for the accused and the preservation of world order, taking into account the nature of international law, the absence of international legislative policies and standards, the *ad hoc* processes of technical drafting, and the basic assumption that [international criminal law] norms will be embodied into the national criminal law of the various states’: *Crimes* (2011) 304–305. Outside of the ICC regime, this state of affairs cannot be expected to change very quickly.

³² Ambos (1999) 10 *CLF* 1, 4; id. (2003) 14 *CLF* 225, 229–233; Cassese, *International Criminal Law* (2013) 23. See note 38 for the reference made to these terms in the confirmation of charges decision by Pre-Trial Chamber I in the case against Thomas Lubanga before the ICC.

³³ For example, Ambos discusses the application of the civil law-derived fourth element of ‘*lex certa*’ to Article 22 in a supple manner, notably because of the relative imprecision of certain crimes (e.g. ‘widespread, long term and severe damage’ to the environment (Article 8(2)(b)(iv)): *Treatise* (2013), 92.

law required, permitted, or was silent as to the relevant conduct. Any objection based on prior legality or on the fact that national law did not prohibit the international crime in question at the time it was committed can only be the result of misunderstanding the principle's proper scope.³⁴ The international criminal law that has pertained to the 'core crimes' from the Charter and Judgment of the Nuremberg Tribunal through the Rome Statute and up to the present is based on the principle that individual responsibility arises directly under international law. As such, the international principle of *nullum crimen*,³⁵ at least with respect to these crimes, does not require prohibition by national law. To allow otherwise would allow States to legislate their own agents out of their international responsibilities – something that the international community has deemed to be intolerable ever since Nuremberg.

Regarding the Statute's manifestation of the *nullum crimen* principle, article 22 is of limited application, and its scope is to be determined above all by reference to its wording. The article requires that conduct under consideration by the Court come within the definition of 'crimes within the jurisdiction of the Court' (mns 33) as interpreted narrowly in light of the corollary principles listed in article 22 (strict construction and the prohibition of extension by analogy),³⁶ and in principle bars a finding of criminal responsibility if it does not (mns 28). It does not apply to the rest of the Statute (e.g. to offences against the administration of justice, mns 34–35, or to article 87 para. 7 findings of non-cooperation), nor does it apply to the definition of crimes under international law outside the Statute (article 22 para. 3, mns 49–51). It should be noted, however, that the broader *nullum crimen* principle as it exists under general international law (mns 15–16) may come to bear before the ICC, as part of its applicable law defined by article 21, for purposes of interpreting other parts of the Statute (offences against the administration of justice, notably).³⁷

Like its counterpart under general international law, article 22 does not require that conduct be defined as criminal under the *national* law of any given State in order to give rise to criminal responsibility before the Court. Such a requirement would make the Court hostage to the legislative (in-)activity of States Parties, contrary to the fundamental conception of the ICC as a 'jurisdiction of last resort' in cases where States are ineffective.

Regarding the customary international law status of 'crimes within the jurisdiction of the Court', the situation is more complex. On the one hand, article 22 para. 1, in requiring that a given crime be within the jurisdiction of the Court, does not require that the Court determine that the crime in question gave rise to individual responsibility as a matter of customary international law at the time of its alleged commission, nor is any such duty imposed elsewhere in the Statute. On its face, article 22 requires only simple inclusion of a given crime in the Statute and the finding of temporal and other requisite aspects of jurisdiction. Indeed, Pre-Trial Chamber I, in its decision confirming the charges against Thomas Lubanga, found that the principle of legality was satisfied by the way in which the relevant crimes were included in the Statute.³⁸ Thus, one might anticipate that the ICC would not need to build on

³⁴ See Triffterer (1989) 60 *RIDP* 29, 60 for statements to the effect that national prohibition is required even with respect to 'core' international crimes in order for *nullum crimen* to be satisfied.

³⁵ On the application of the international principle of *nullum crimen* to any 'treaty crimes' incorporated into the Statute in future, see mn 54–58.

³⁶ Each of these corollaries is in turn subject to limited application (mn 36 *et seq.* and 40 *et seq.*).

³⁷ It has also been argued that international law allows criminalization of individual conduct by analogy in broader circumstances than does national law: Bassiouni, *Crimes* (2011) 306. This could affect the application of *nullum crimen* as a principle of international law outside the scope of the Statute where it comes into play in accordance with article 21 (Applicable law) (see mn 50 *et seq.*).

³⁸ 'Having regard to the principle of legality, the terms enlisting, conscripting and using children under the age of fifteen years to participate actively in hostilities are defined with sufficient particularity in articles 8(2)(b)(xxvi) and 8(2)(e)(vii), 22 to 24 and 77 of the Rome Statute and the Elements of Crimes, which entered into force 1 July 2002, as entailing criminal responsibility and punishable as criminal offences. ... Accordingly, there is no infringement of the principle of legality if the Chamber exercises its power to decide whether Thomas Lubanga Dyilo ought to be committed for trial on the basis of written (*lex scripta*), pre-existing criminal norms approved by States Parties to the Rome Statute (*lex praevia*), defining prohibited conduct and setting out the related

the jurisprudence developed in other international and hybrid courts and tribunals since the seminal 1995 *Tadić* decision.³⁹

- 20 Such a conclusion would be misleading, however. First, the need to determine the customary law basis for the crimes contained in the Rome Statute might arguably be derived from the ‘treaty crime’/‘core crime’ distinction (mns 54–58) that led to the exclusion of the former from the Statute. The Statute was confined to the latter on the assumption that these would already be applicable to the accused, i.e. on the basis of custom. Moreover, as a matter of fairness, the need to determine the customary nature of Rome Statute crimes would arise where the Court was called upon to exercise its jurisdiction over crimes allegedly committed on the territory and by the nationals of non-States Parties, in the case either of a Security Council referral under article 13 para. b, or of an *ad hoc* acceptance of ICC jurisdiction under article 12 para. 3. In such scenarios, the only legitimate basis for establishing the criminal responsibility of individuals would presumably – in the absence of relevant national criminal prohibitions at the time of the alleged conduct – be that of customary law. In future, therefore, the Court may well consider the customary law nature of Statute crimes in such cases.⁴⁰ In so doing, the Court will presumably begin by reviewing the criteria developed for such an examination, most influentially by the International Criminal Tribunal for the Former Yugoslavia.⁴¹ While the Statute does not expressly require this, the interests of justice, the human rights of the accused and the reputation of the Court all arguably rely upon it.
- 21 It is noteworthy that, while the *nullum crimen* principle under general international law is normally understood to include an element of notice (permitting an accused to have real or constructive knowledge that certain conduct was prohibited before the act alleged against him or her was committed) it appears that in the context of the Rome Statute this notice will arise under the separate provision on error of law (article 32).⁴²
- 22 Finally, given that *nullum crimen* acts as a principle of legislation as well as of interpretation (mn 10–11), it may be interesting to note that the Court is not given the power to strike down crimes of indeterminate scope. There is no ‘void for vagueness’ doctrine in the ICC. The absence of such a remedy for vagueness is presumably the result of both the general tendency towards limiting rather than expanding the power of the ICC judges *vis-à-vis* States Parties, and the feeling that States Parties as legislators could be trusted to delineate clearly the crimes which might ultimately be charged against their own agents.⁴³ The latter feeling is

sentence (*lex certa*), which cannot be interpreted by analogy *in malam partem* (*lex stricta*)’, *Prosecutor v. Lubanga Dyilo*, No. ICC-01/04-01/06, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 29 January 2007, paras. 302–303, citing Ambos, in: Haveman and Olusanya (eds.), *Sentencing and Sanctioning in Supranational Criminal Law* (2006) 17–22.

³⁹ See the sources at note 28.

⁴⁰ Indeed, while the Lubanga confirmation of charges decision relied primarily on inclusion of a sufficiently clear definition of the relevant crime within the Statute, it also went on to demonstrate that the relevant prohibition had emerged as a matter of international customary and treaty law before the alleged crimes of the accused had taken place: note 38, paras. 308–311. See also Schabas, *Introduction* (2011), 73–74; Meron (2005) 99 *AJIL* 817, 832; and in particular, Milanović (2011) 9 *JICJ* 25, 36–38.

⁴¹ The Appeals Chamber of the ICTY held that, in order for an offence to become subject to prosecution under article 3 of its Statute (Violations of the laws and customs of war), the following conditions had to be fulfilled: ‘(i) the violation must constitute an infringement of a rule of international humanitarian law; (ii) the rule must be customary in nature or, if it belongs to treaty law, the required conditions must be met ...; (iii) the violation must be ‘serious’, that is to say, it must constitute a breach of a rule protecting important values, and the breach must involve grave consequences for the victim. ...; (iv) the violation of the rule must entail, under customary or conventional law, the individual criminal responsibility of the person breaching the rule’: *Tadić*, note 28, para. 94. This formulation remains the starting point for subsequent discussions, with the fourth criterion being determinative. In *Tadić*, the Appeals Chamber analysed the latter by looking at ‘State practice indicating an intention to criminalize the prohibition, including statements by government officials and international organizations, as well as punishment of violations by national courts and military tribunals’: *ibid.*, para. 128 *et seq.* On the relationship between international treaty norms and individual criminal responsibility, see mn 54–58.

⁴² Lubanga (Confirmation of Charges), note 36, paras. 294–316.

⁴³ As one commentator has pointed out, this state of affairs has not prevented international judges from stepping in, as a matter of fact, to ‘legislate’ through gap-filling in the face of unclear norms: Van Schaack (2008–2009) 97 *GLJ* 199, 137, fn. 73 (discussing the first edition of this commentary).

given weight by the exhaustive attention paid to definitions during negotiations – a product, in large measure, of *nullum crimen* arguments (see mns 2–8). Proper judicial application of article 22 para. 2 should ensure, in any case, that vagueness is substantially reduced.

IV. Sources

As with most criminal law doctrine, the principle of legality and its corollaries originated in domestic law. Its lineage can be traced back to Roman law, although in its modern manifestation it is a product of the Enlightenment. Its entrenchment as a cornerstone of national law took place over the course of the late 18th and 19th centuries.⁴⁴ By the start of the First World War, it was recognized in the legal systems of all developed countries and their dependent territories, although not always in the same way.

In particular, there was a major difference between common law jurisdictions – in particular the United Kingdom – and Civil Code-based systems. For the former, the rule against retroactivity was a presumption which could be refuted by clear statutory wording. In the latter, the principle was more firmly adhered to. In the former, crimes could be developed by analogy as part of the gradual development of the law, while in the latter, such development was strictly limited to minor infractions. Its Constitution made the United States an exception among the common law systems, since retroactivity was constitutionally prohibited.⁴⁵

The movement from being a principle primarily of national law to being one clearly and firmly entrenched in international law was a product of the Second World War and its aftermath. Between the wars, the principle was retreated from in some jurisdictions as totalitarian governments sought to extend the powers of a politicized judiciary by recognizing broad powers to criminalize by analogy.⁴⁶ The Nuremberg Tribunal, however, rejected defence arguments that ‘there can be no punishment of crime without a pre-existing law,’ holding that ‘the maxim *nullum crimen sine lege* is not a limitation on sovereignty [i.e. a binding rule of international law], but is in general a principle of justice,’ even as it justified its own proceedings on the basis that the defendants ‘should have known’ that they would be held accountable for their role in serious violations of international law.⁴⁷ Against this background, the War’s end led to the recognition of the principle of legality in the Universal Declaration of Human Rights (1948), the European Convention on Human Rights (1950) and, later, in the International Covenant of Civil and Political Rights (1966) as well as other instruments.

Article 15 para. 1 of the ICCPR recognizes *nullum crimen* in its usual form as protecting against retroactivity, and echoes article 11 para. 2 of the UDHR.⁴⁸ Article 15 para. 2 emphasizes that absence of criminal prohibition under national law is no bar to prosecution for conduct

⁴⁴ ‘Although there may have been ancient antecedents, the categorical insistence on advance legislative crime definition is clearly a modern phenomenon. In fact, the legality ideal is an explicit and self-conscious rejection of the historic methodology of the common law’: Jeffries (1985) 71 *VirgILRev* 189, 190. For the development, see also Glaser (1942) 24 *JCLIL* 29, and Triffterer, *Untersuchungen* (1966) 35 *et seq.* with further references.

⁴⁵ See generally Bassiouni, *Crimes* (2011) 296–301; Krefß, in: Wolfrum (ed.), *Max Planck Encyclopedia* (2008–) para. 12.

⁴⁶ See Glaser (1942) 24 *JCLIL* 29, 32–33; Krefß, in: Wolfrum (ed.), *Max Planck Encyclopedia* (2008–) paras. 13–14.

⁴⁷ International Military Tribunal (Nuremberg), *Judgment* (1 October 1946), reprinted in (1947) 41 *AJIL* 172, 217 *et seq.* For analysis of this passage and the Nuremberg Tribunal’s approach to questions of non-retroactive punishment, see Van Schaack (2008–2009) 97 *GLJ* 199, 125–130; as well as Acquaviva (2011) 9 *IJCJ* 881, who argues that the French version of the Nuremberg Judgment affirms, or comes close to affirming, *nullum crimen* as an international legal rule.

⁴⁸ The first sentence of ICCPR article 15 para. 1 reads: ‘No one shall be held guilty of any criminal offence on account of any act or omission which did not constitute a criminal offence, under national or international law, at the time when it was committed [emphasis added]’. But for using the word ‘penal’ instead of ‘criminal’, article 11 para. 2 of the UDHR is the same.

criminal under international law at the time of its commission.⁴⁹ Regional human rights instruments are similar in formulation to the ICCPR and UDHR,⁵⁰ with the European system providing the most elaborate jurisprudence.⁵¹ This stems from complaints related to the application of national criminal-law prohibitions and, like its ICTY counterpart,⁵² rests upon the fundamental requirements of the accessibility and reasonable foreseeability of the prohibitions in question.⁵³

- 27 When *nullum crimen* was brought to bear as a principle of legislation upon the processes of both the Preparatory Committee and Diplomatic Conference (mns 2–8), it offered negotiating States a means both of limiting exposure to the obligations imposed by the Statute and of fostering codification and development of the law, encouraging clear stipulation of procedural detail, exhaustive definitions of crimes, movement of general principles from the proposed Rules to the Statute, and much else.⁵⁴ This function of the principle was merely a continuation of its role in driving efforts to codify international criminal law through the work of the International Law Commission from 1946 onwards.⁵⁵ It similarly reflected a desire to forestall any repetition of the criticisms aimed at the Nuremberg Tribunal, which had already been taken into account in the establishment of the ICTY and ICTR.⁵⁶

⁴⁹ Article 15 para. 2 reads: 'Nothing in this article shall prejudice the trial and punishment of any person for any act or omission which, at the time it was committed, was criminal according to the general principles of law recognized by the community of nations'.

⁵⁰ The ACHR, article 9, reads in part: 'No one shall be convicted of any act or omission that did not constitute a criminal offence, under the applicable law, at the time it was committed'. Article 7(2) of the African Charter of Human and Peoples' Rights reads in turn: 'No one may be condemned for an act or omission which did not constitute a legally punishable offence at the time it was committed'.

⁵¹ ECHR, article 7 para. 1: 'No one shall be held guilty of any criminal offence on account of any act or omission which did not constitute a criminal offence under national or international law at the time when it was committed...'. Article 7 para 2 is substantially the same as article 15 para. 2 of the ICCPR, note 49. For the jurisprudence, see in particular European Court of Human Rights, *Maktouf and Damjanović v. Bosnia and Herzegovina*, Judgment (18 July 2013), application nos. 2312/08 and 34179/08, paras.65–76; European Court of Human Rights, *Kononov v. Latvia*, Judgment (17 May 2010), application no. 36376/04, paras.185–246; European Court of Human Rights, *Streletz, Kessler and Krenz v. Germany*, Judgment (22 March 2001), application nos.34044/96, 35532/97 and 44801/98, paras.49–107; European Court of Human Rights, *C.R. v. the United Kingdom*, Judgment (22 November 1995), Ser. A 335-C (1995), para. 34.

⁵² 'The Tribunal ... must be satisfied that the criminal liability in question was sufficiently foreseeable and that the law providing for such liability must be sufficiently accessible at the relevant time for it to warrant a criminal conviction and sentencing under the heading of responsibility selected by the Prosecution': *Milutinović et al.*, Decision on Dragoljub Ojdanić's Motion, note 28, para. 37.

⁵³ For a concise discussion of the European jurisprudence from the point of view specifically of the 'precision' factor, with comparison to the case law of the ICTY, see Nilsson, in: Olusanya (ed.), *Rethinking* (2007) 37; for a discussion of the European Court's approach to article 7 para. 2 of the ECHR and the allegedly retroactive prosecution of international crimes, see Cassese (2006) 4 *JICJ* 410; see also Schabas, *The International Criminal Court* (2010) 403.

⁵⁴ Wise, in: Bassiouni, *Observations* (1997) 267, 271, concedes that *nullum crimen* may not require the definition of general principles in addition to those of crimes, but arrives at the same effect by speaking of more general 'requirements of precision and certainty expected in criminal proceedings'. Criminal prohibitions under general international law have often been declared sufficiently precise and their incorporation by mere reference into national law satisfactory for purposes of the *nullum crimen* principle: see Paust, in: Bassiouni, *Observations* (1997) 275, esp. 275–276 and 282–288. Article 22 para. 3 (mn 49–50) makes clear that the Statute will not affect such prohibitions (which will continue to apply, notably, to the agents of non-States Parties).

⁵⁵ Report of the International Law Commission on the Work of its Forty-Eighth Session, 6 May–26 July 1996, UN GAOR, 51st Sess., Supp. No. 10, UN Doc. A/51/10 (1996), paras. 30–46, pp. 9–13. For the ICC process to 1996 in this context, see Wise, in: Bassiouni, *Observations* (1997) 267. For views from a wide range of countries on codification efforts as they stood at the time, see generally Triffterer (1989) 60 *RIDP* 29.

⁵⁶ See Morris and Scharf, *Insider's Guide* (1995) 39–42 and esp. 124–132, demonstrating that the ICTY Statute, being based on acknowledged customary law, satisfied the *nullum crimen* principle at the time of its establishment, and that the ICTR Statute, although initially less certain, soon did no more than reflect such custom.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Criminal responsibility ‘under this Statute’

This clause indicates the consequences that will flow from a finding that any given conduct did not constitute, at the time it took place, a crime within the jurisdiction of the Court. Such a finding would prevent conviction by acting as a bar to the imposition of criminal responsibility as defined in article 25, whether after an admission of guilt under article 65 or following a full trial, as provided for in Part 6.

Although article 22 para. 1 makes criminal responsibility the reference point with respect to the rule of non-retroactivity, objections based on the *nullum crimen* principle will in the normal course of events first be raised long before the conviction stage. The majority of article 22 para. 1 challenges are likely to be brought when the jurisdiction of the Court is being decided, either in challenges under article 19 or during hearings for the confirmation of charges under article 61.⁵⁷

As for article 70 (Offences against the administration of justice), see mns 34–35.

2. ‘conduct in question’

‘Conduct’ may include both acts and omissions, as appropriate. An example of the latter can be found in article 28 para. 1 on command responsibility. Conduct will ‘constitute’ a crime when it comprises all the necessary elements of the crime, including the mental element under article 30.

3. ‘the time it takes place’

This stipulation requires that the Court determine that the conduct and the relevant prohibition (‘a crime within the jurisdiction of the Court’) existed simultaneously. In the case of crimes arising from a continuing course of conduct, it will have to be shown that all the elements of the crime were present during the period in which the prohibition applied.

4. ‘a crime within the jurisdiction of the Court’

A ‘crime within the jurisdiction of the Court’ is a crime listed in article 5, defined in articles 6–8 respectively (and to include article 8*bis* on the crime of aggression, once this enters into force), as interpreted in accordance notably with article 22 para. 2, article 9 (Elements of crime) and article 30 (Mental element).⁵⁸ The word ‘jurisdiction’ in the heading to article 5, is to be understood in its full sense as encompassing all articles that the Court would consider in making a jurisdictional ruling under article 19, including articles 10–13, 22, 24 and others (such a ruling might also include a determination as to whether given

⁵⁷ As was done in the Lubanga case: Lubanga, (Confirmation of Charges), note 36, paras. 290–216.

⁵⁸ Pre-Trial Chamber I has held that the Elements ‘[further] the *nullum crimen sine lege* principle ... by providing *a priori* legal certainty on the content of the definition of the crimes provided for in the Statute’: *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09, Decision on the Prosecution’s Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, Pre-Trial Chamber I, 4 March 2009, para. 131. Pre-Trial Chamber II has specified that its restrictive interpretation of article 30 – excluding ‘*dolus eventualis*, recklessness or any lower form of culpability’ from its scope – ‘aims to ensure that any interpretation given to the definition of crimes is in harmony with the rule of strict construction set out in article 22(2) of the Statute’ *Prosecutor v. Jean-Pierre Bemba Gombo*, No. ICC-01/05-01/08, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute of the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 June 2009, para. 369.

charges constituted crimes under customary international law at the time of their alleged commission, mn 19–20).

- 34 A question arises whether article 22 applies only to crimes under article 5, or whether it encompasses offences against the administration of justice under article 70. The use of the words ‘criminally responsible’ and ‘crime’ in article 22 para. 1 makes clear that it includes only crimes under article 5. ‘Criminal responsibility’ is treated in article 25, where it expressly applies to ‘crimes within the jurisdiction of the Court’. A ‘crime’ in this sense is one of those prohibited acts listed under article 5 (Crimes within the jurisdiction of the Court) and defined in articles 6–8 as well as *8bis* once it enters into force. The acts under article 70 (Offences against the administration of justice) are distinguished as ‘offences’ rather than ‘crimes’. Article 22 is therefore applicable by its own terms only to the crimes listed under article 5.
- 35 The non-applicability of article 22 to the offences against the administration of justice listed in article 70 should not be understood to imply that the Court will allow itself considerably greater latitude in interpreting these offences than it does with the crimes under article 5. As a principle of general international law (mn 15–16), *nullum crimen* applies to the article 70 offences by virtue of article 21 (applicable law). Moreover, the aims of justice served by the principle of legality (see mn 9–13) are just as applicable to situations involving such offences. As such, it is to be expected that the ICC judiciary will apply the more supple *nullum crimen* rule under general international law to proceedings under article 70 as well.

II. Paragraph 2

1. ‘The definition of a crime shall be strictly construed’

- 36 The requirement of strict construction of criminal statutes is said to form part of the *nullum crimen* principle. To that extent, its express inclusion here simply reassures States as to the moderation with which the Court will interpret its Statute.
- 37 The rule of strict construction aims to protect the person subject to investigation or prosecution by ensuring that the potential of infringing their liberty is restricted to legislatively and not to judicially defined crimes (see mns 10–11).
- 38 However, the formulation and status of the rule in common law jurisdictions is not free from uncertainty, and it has been irregularly applied.⁵⁹ Like the principle requiring the resolution of ambiguities in favour of the defence (see mns 46–48), which is sometimes treated as a part of the rule of strict construction, the rule is based on notions of fair warning to the subjects of potential criminal sanction and on an awareness of the inequality of power between the individual and (under municipal law) the State.⁶⁰ Strict construction does not, however, stand in the way of progressive judicial clarification of the contents of an offence.⁶¹
- 39 This paragraph applies only to the definitions of crimes in articles 6–8 (and *8bis*, once it enters into force). The judges of the Court will therefore be entitled in other instances to apply more liberal methods of construction in giving effect to the object and purpose of the Statute. It should be noted, however, that the absence of a rule of strict construction applicable to the grounds for excluding criminal responsibility under article 31 does not mandate a boundless ‘liberal’ approach that would render admissible defences excluded by

⁵⁹ The rule is said to be applied in confirmation of decisions reached on other grounds: Jeffries (1985) 71 *VirgLR* 189, 198–200, who adds (p. 219): ‘The rule [of strict construction] is still invoked, but so variously and unpredictably, and it is so often conflated with inconsistencies, that it is hard to discern widespread adherence to any general policy of statutory construction’. See also Ashworth and Horder, *Principles* (2013), 67–69.

⁶⁰ Ashworth and Horder, *Principles* (2013) 67.

⁶¹ European Court of Human Rights, *C.R.*, note 49, para. 34: ‘Article 7 [of the ECHR, note 51,] cannot be read as outlawing the gradual clarification of the rules of criminal liability through judicial interpretation from case to case, provided that the resultant development is consistent with the essence of the offence and could reasonably be foreseen’. See the discussion in Cassese, *International Criminal Law* (2013) 30–33.

the Statute or by fundamental principles of international criminal law, such as the defence of prior legality under national law or that of superior orders beyond the terms of article 33. A rule of interpretation generous to the accused might arguably apply to other grounds for excluding criminal responsibility where, in particular, a reasonable person might rely upon such ground in deciding their course of conduct before the fact. The justification of self-defence may be the chief example.⁶²

2. No extensions by analogy

The prohibition on extension by analogy is shared by most modern legal systems. 40 Historically, it has been less rigorously observed in common law than in Civil Code-based jurisdictions, but there is apparently more convergence at present.⁶³ The rule arose during the era of liberal reform of criminal law doctrine in the early nineteenth century. It is today largely taken for granted.⁶⁴ It was the product of the perception that the common law had been unjust in allowing judges to define criminal acts by analogy to existing crimes, absent a statute or common law crime covering the conduct. It was felt that such a practice violated the *nullum crimen* principle, failed to give fair notice to potential accused, was retrospective and robbed the criminal law of its power to deter.

These policy grounds continue to define the purpose and scope of the rule. For the 41 Prosecutor to bring charges on previously unknown crimes on the basis of their similarity to known ones, and for the judges to confirm them, would be to apply the law retroactively against the individual concerned. The rule against analogy prevents *nullum crimen* being interpreted – as it has been – so as to allow this.

The prohibition on analogy bars its use as a basis for imposing criminal responsibility in 42 what amount to substantially new crimes. The intention of the drafters of the Statute was that additional crimes be brought within the jurisdiction of the Court only by the Assembly of States Parties; it was apparently the perceived willingness of the ICTY to engage in liberal reasoning-by-analogy that contributed, in part, to the adoption of article 22 para. 2.⁶⁵ That the ICC States Parties are slow to modify the definitions of crimes contained in the Statute, even in the face of pressing international need, does not give the judges the power to supplant the authoritative law-maker. While the scope of crimes at customary or treaty law beyond the realm of the Statute may potentially change (mns 49–50), the scope of the Court's jurisdiction *ratione materiae* should not, barring deliberate action of the Assembly of States Parties.

The rule does not, however, bar *all* use of analogy in the process of interpretation. While 43 judges cannot properly pre-empt the decision of legislators by deciding what conduct is criminal and what is not, 'where the judicial innovation is smaller, less controversial, and consistent with the pattern of legislative action, there is less risk of frustrating considered legislative choice'.⁶⁶ Analogy therefore remains a valid and indeed necessary tool with which to construe the definition of crimes within the Statute.

Like the rule of strict construction, analogy is in this respect an interpretative technique 44 used as the last in a series of steps. A judge will not assume that a statutory definition

⁶² For the argument that the rationale does not extend to excuses such as mental disease or intoxication, on the grounds that these are not based on the reasonable reliance of the putatively rational and autonomous legal subject, see Ashworth and Horder, *Principles* (2013) 60; and Wise, in: Bassiouni, *Observations* (1997) 267, 272.

⁶³ See Bassiouni, *Crimes* (2011) 299, fn.13. The United States has constitutional protections against *ex post facto* legislation, as well as against vagueness and ambiguity. Nevertheless, a residual judicial power to create offences was employed, with decreasing frequency, up to 1900. Judicial creation of new offences all but disappeared in the 20th century: Jeffries (1985) 71 *VirgLR* 189, 190–193. Canada eliminated common law offences (but for contempt of court) through 1955 reforms to its *Criminal Code*.

⁶⁴ 'Penal legislation exists in such abundance that wholesale judicial creativity is simply unnecessary': Jeffries (1985) 71 *VirgLR* 189, 202 (speaking of the United States).

⁶⁵ Schabas, *Introduction* (2011) 94.

⁶⁶ Jeffries (1985) 71 *VirgLR* 189, 205. See also Cassese, *International Criminal Law* (2013) 34–35; as well as Curat (2007) 20 *RQDI* 137, 152 (citing the first edition of this commentary).

contains gaps. If a reading of the ordinary meaning of the text in its context and in light of the object and purpose of the Statute reveals such a gap, however, she or he may use analogy to fill it by reference to other articles or to other paragraphs of the same article. Such a need might arise, for example, where a non-exhaustive list is provided, or where the Statute and the Elements of Crimes do not provide a clear explanation of the elements to be found on a particular set of facts. Such situations are bound to arise, and a narrow use of analogy is a standard interpretative tool with which to deal with them, without prejudice to the rights of the defence. The Statute expressly anticipates such a controlled use of analogy when it refers to ‘other inhumane acts of a similar character’ (article 7(1)(k)), and to ‘any other form of sexual violence of comparable gravity’ (article 7(1)(g)).⁶⁷

- 45 As with the strict construction rule (see mn 39), the prohibition on extension by analogy applies only to the definitions of crimes. Whether its use will be appropriate in other circumstances will depend upon judicial interpretation of the terms of the Statute, the applicable law, and the principles to be applied in a given situation.

3. Case of ambiguity

- 46 That ambiguities be read in favour of the accused is an accepted consequence of the rule of strict construction (and of the overlapping maxim, *in dubio pro reo* – ‘when in doubt, favour the accused’). It is said to have had its origin in the presumption of common law judges *in favorem vitae*, used to ameliorate the effect of statutes requiring the death penalty. Like the rule of strict construction in general, the rule relating to ambiguities is neither uniformly held to nor clearly defined in national systems.⁶⁸
- 47 As with strict construction generally, the rule regarding ambiguities is one to be applied not as a first but as a final step in an interpretative sequence. Ordinary rules of interpretation apply with a presumption that negotiating States would not have intended an ambiguity. Once such a reading has revealed an ambiguity, the present rule will resolve it in favour of the defence.⁶⁹
- 48 Like the rule of strict construction and the prohibition on extension by analogy (mns 39 and 45), the requirement that ambiguities be resolved in favour of the person being investigated or prosecuted applies only with respect to the crimes in articles 6–8. Its application outside this context will depend upon the judges’ interpretation of the applicable law and relevant principles.

III. Paragraph 3

- 49 By ensuring that article 22 will not affect the characterization of any conduct as criminal under international law independently of the Statute, this paragraph makes clear that, while the *nullum crimen* principle is one of general international law, the effects of its particular embodiment in this article are limited to the Statute. This need not have been said, inasmuch as article 22 para. 1 clearly states that it applies to findings of criminal responsibility ‘under this Statute’. Nonetheless, article 22 para. 3 prevents any misconceptions that might arise as to whether the Statute exclusively codifies or exhausts international criminal prohibitions.

⁶⁷ For the application of the *eiusdem generis* principle to determine the contents of the crime against humanity of ‘other inhumane acts’ in the jurisprudence of the ICTY, see Nilsson, in: Olusanya (ed.), *Rethinking* (2007) 37, 58–59; see also *Prosecutor v. Germain Katanga et al.*, No. ICC-01/04-01/07, Decision on the Confirmation of Charges, Pre-Trial Chamber I, 30 September 2008, para. 448; Ambos, *Treatise* (2013) 91; Cassese, *International Criminal Law* (2013), 34; Schabas, *The International Criminal Court* (2010) 409; and Van Schaack (2008–2009) 97 GLJ 199, 138–139.

⁶⁸ Jeffries (1985) 71 *VirgLR* 189, 219: ‘Some instances of exculpatory construction are necessary to avoid dangerous openness in the criminal law; others are not’. This commentator adds (pp. 220–222) that judges should consider resolving ambiguities so as to maximize the certainty of the law in question.

⁶⁹ Ashworth and Horder, *Principles* (2013) 68.

It will therefore remain the case that individual responsibility arises directly under international law as it did before the entry into force of the Statute, and that the principle of legality, as a principle of international law apart from article 22, will be applied with respect to the relevant crimes to determine their existence and their scope (mn 15 and 16). The existence of such prohibitions will be determined by national courts or international tribunals through the kind of reasoning developed in recent years in particular by the ICTY (and which will, mn 20, be adapted *mutatis mutandis* and in limited circumstances by the judges of the ICC).

Although the purpose of article 22 para. 3 is similar to that underlying article 10, the two provisions are clearly distinct in their scope and effect. Article 22 para. 3 applies to limit any perceptions as to the impact of article 22 alone; article 10 does so with respect to all of Part 2. Article 22 para. 3 applies only to the characterization of conduct as criminal under international law; article 10 applies to all existing and developing rules of international law insofar as the Statute might be thought to impact on them. Finally, article 10 is limited by the words ‘for purposes other than this Statute’. This merely emphasizes the mutual independence of the Statute and the general international law with respect to which it creates a kind of semi-autonomous regime establishing the ICC. Articles 10 and 22 para. 3 were inserted to prevent the perception that the Statute would rob general international law of its power to criminalize behaviour, or would narrow the scope of any such criminalization outside the ICC regime, such that non-States Parties could then claim a greater degree of impunity than would be the case had the Statute not been adopted at all.

C. Special remarks

I. Relationship between articles 11 para. 1, 22 para. 1 and 24 para. 1

The wording of article 22 para. 1 bears a close resemblance to that in article 24 para. 1,⁷⁰ and the sense of each is to some degree coextensive with that of article 11 para. 1.⁷¹ Given the clear overlap in the sense of these provisions, there is little point in seeking out distinctions in application among them. Article 22 para. 1 focuses on the finding of criminal responsibility with respect to given conduct, which must constitute, ‘at the time it takes place, a crime within the jurisdiction of the Court’. If ‘criminally responsible’ and ‘conduct’ invoke the Court’s jurisdiction *ratione personae* and *ratione materiae*, the reference to ‘time’ and ‘jurisdiction’ summon up other aspects. Article 24 para. 1 forbids imposition of criminal responsibility *under the Statute* for conduct prior to its entry into force. This reference to the non-retroactivity of the Statute is obviously encompassed by article 22 para. 1’s words ‘within the jurisdiction’. Article 24 para. 1 therefore has the virtue only of emphasizing the obvious. Moreover, articles 22 and 24 are contained in Part 3 (General principles of criminal law) of the Statute, while article 11 is under the logically prior Part 2 (Jurisdiction, admissibility and applicable law), and is therefore the definitive clause relative to temporal jurisdiction.

Although they are unlikely ever to make it onto the agenda of a Review Conference convened in accordance with article 123, in principle these overlapping provisions should eventually be harmonized.

II. Application of *nullum crimen* to treaty crimes

In the unlikely event that the Statute were amended at some future date to incorporate crimes set out in international treaties, *nullum crimen* as a principle of general international

⁷⁰ ‘No person shall be criminally responsible under this Statute for conduct prior to the entry into force of the Statute’.

⁷¹ ‘The Court has jurisdiction only with respect to crimes committed after the entry into force of this Statute’.

law may be interpreted so as to impose special requirements with respect to such crimes. These latter requirements might then in turn call for the amendment of article 22 (mn 58).

55 The ILC Draft adapted *nullum crimen* to the particular needs of treaty crimes in its article 39 (b). This provided that no accused would be held guilty of one of these crimes unless the treaty in question was applicable to his or her conduct at the time of the relevant act or omission. Thus, a specification of applicability was added to the prohibition on retrospectivity that article 39 (b) shared with article 39 (a) (mn 2). The ILC understood that for the *nullum crimen* principle to be satisfied in the case of treaty crimes, the conduct in question would not only have to come within the words of the treaty's prohibition, but the treaty itself would have to apply to the conduct of the accused through the relevant state(s) being party to the instrument and, crucially, through the prohibition having been made a part of the law of the relevant State Party.⁷²

56 This acknowledges that not all treaties which call for the prohibition of certain conduct also entail the internationally enforceable criminal responsibility of individuals, absent some form of incorporation of the international agreement into national law.⁷³ Agreements to prohibit conduct are relatively common between States, with the parties agreeing to penalize certain behaviour in their national legal systems and otherwise to cooperate in its suppression. Such 'suppression conventions' create law of a different sort from prohibitions directly entailing individual responsibility under general international law. With respect to treaty crimes, the ILC Draft intended in essence to provide international enforcement for national prohibitions. Under this vision, States would agree to the ICC as a supplementary enforcement mechanism, with no intention of creating – through the mere fact of inclusion of these crimes in the Rome Statute – international responsibility as such. Where the latter exists – for example, in the case of the 'core crimes' or 'international crimes *sensu stricto*' which originated in the Nuremberg Charter⁷⁴ – there is no need for the prohibition to be made applicable to the accused under national law (mn 16). But such a requirement does exist for many conventions including, to name but one, the 1988 Vienna Convention on Narcotic Drugs.⁷⁵

57 Thus conduct falling within a treaty prohibition may not entail individual criminal responsibility if the prohibition did not apply *as law* to the accused. The Court would have to decide in a given case whether the treaty in question was applicable to the individual. There is no single means by which international agreements come so to apply. Ratification and the passage of implementing legislation carrying the prohibition into national law is one, but not the only method. A State might not be party to a treaty or, being party, might not have made it part of domestic law.⁷⁶ A treaty prohibition may become applicable to an individual through the action of custom or through the application of 'general principles of law'. It may be applicable to an accused on more than one basis of jurisdiction (national, territorial, etc.), and the Court would have to examine each case individually to construe the intention of the drafters and to determine whether the treaty provisions were applicable to the conduct of the individuals in question either directly (through the intention of the parties

⁷² See the commentary to article 39 (b), ILC Draft, note 2, paras. 3–4, pp. 113–114.

⁷³ While international criminal law is in large measure derived from conventions, the majority of these 'do not meet the test of legality under contemporary standards of Western European legal systems' owing, *inter alia*, to the fact that it was foreseen that the prohibitions called for would be promulgated into national law in accordance with the principles of legality applicable under that law: Bassiouni, *Crimes* (2011) 303–304.

⁷⁴ The distinction between 'international crimes *sensu stricto*' entailing individual responsibility directly under international law (essentially the 'core' or 'Nuremberg' crimes) and 'international crimes *sensu largo*' not doing so (crimes under 'suppression conventions') was generally accepted at the meetings of the Association Internationale de Droit Pénal, reported in: Triffterer (1989) 60 *RIDP* 29, 40, 42, 52–53 and 69–70.

⁷⁵ 1994 ILC Report, note 1, para. 8, p. 68. The ILC gives the opinion that cases where a treaty definition of a crime is insufficient to make the treaty applicable to individuals, thereby giving rise only to State responsibility, are 'likely to be rare, and may be hypothetical ...': *ibid.*, para. 4, pp. 113–114. This appears to be overstated: see note 77. The ILC acknowledged that it proposed to include in its Draft Statute '... treaties which explicitly envisage that the crimes to which the treaty refers are none the less crimes under national law': *ibid.*, para. 3, p. 104.

⁷⁶ *Ibid.*, para. 3, p. 113.

that the treaty so apply) or through the national implementing law or constitutional principles of the relevant states.⁷⁷ In the case that the treaty was intended only to entail State responsibility (*i.e.* for any failure to prohibit the conduct under national law),⁷⁸ and where the State or States in question failed to fulfil their obligation to make the norms in question applicable to individuals within their jurisdiction, the individual could not in principle be held criminally responsible on the basis of the treaty. In arriving at such a finding, ICC judges may have had to engage in extensive review of national law and constitutional principles, and might at least strongly imply that a given State had not fulfilled a treaty obligation to implement a given norm into national law. One can readily see how States would be disinclined to confer such a role on judges of the ICC.⁷⁹

In any event, article 22 in its present form is better suited to the ‘core crimes’ now listed in article 5 of the Statute. In the (unlikely) event that treaty crimes are ever incorporated into the Statute, article 22 will have to be amended to give expression to the requirement that the treaty be ‘applicable’ to the conduct of the accused, as foreseen in the International Law Commission (mn 55–56). Article 21 (Applicable law) might also have to be amended to provide an expanded role for national law where treaty crimes are concerned.

III. Aggression and terrorism

Two major developments regarding the substantive scope of international criminal law *stricto sensu* have recently occurred. One is the adoption of amendments to the Rome Statute adding the crime of aggression to the ‘crimes within the jurisdiction of the Court’ listed in article 5.⁸⁰ The other is the controversial assertion by the Appeals Chamber of the Special Tribunal for Lebanon that terrorism now constitutes a ‘core crime’ giving rise to individual responsibility under customary international law (and not merely a ‘treaty crime’ requiring implementation into national law).⁸¹ Both developments raise questions relating to the nullum crimen principle.

Debate has arisen as to whether the amendments to the Rome Statute relating to the crime of aggression and adopted at the 2010 Kampala Review Conference are in conformity with the nullum crimen principle enunciated in Article 22.⁸² For some, the definition is unconscionably vague, with questions raised about the firmness and determinacy of the crime of aggression under customary law and of the *jus ad bellum* norms that underlie it; about the precision of the crime’s definition as formulated at Kampala, in particular with regard to its requirement that the ‘act of aggression, by its character, gravity and scale, constituted a manifest violation of the Charter of the United Nations;’ and about its potential *ex post facto* application to nationals of non-States Parties.⁸³ For others, the Kampala definition rests upon

⁷⁷ Such difficulties, as well as the fact that ‘in most cases, treaty provisions will only provide for the prohibition of a certain conduct, not for its criminalization, or the treaty provision itself will not sufficiently define the elements of the prohibition they criminalise’ may lead a court to prefer searching for a customary law basis either as well as or rather than an ‘applicable’ treaty, as the ICTY has done: see *Prosecutor v. Stanislav Galić*, No. IT-98-29-A, Judgment, Appeals Chamber, 30 November 2006, para. 83; *Prosecutor v. Dario Kordić & Mario Čerkez*, No. IT-95-14/2-A, Judgment, Appeals Chamber, 17 December 2004, paras. 41–42, 59–66; see also Nilsson, in: Olusanya (ed.), *Rethinking* (2007) 37, 57.

⁷⁸ 1994 ILC Report, note 2, para. 3, p. 113.

⁷⁹ For a critique of the ICTY jurisprudence treating the notion, first presented in *Tadić* (note 41), that individual criminal responsibility might arise from applicable treaty law alone (without it being a reflection of custom), see Milanović (2011) 9 *JICJ* 25, 42–45.

⁸⁰ ‘The Crime of aggression’, in: Review Conference of the Rome Statute of the International Criminal Court, *Official Records* (Kampala, 31 May–11 June 2010), ICC Doc. No. RC/9/11, Part II: Resolutions and declarations adopted by the Review Conference, Resolution RC/Res.6, 17. For the details of these complex amendments, and the modalities governing their eventual entry into force, see the commentary elsewhere in this volume.

⁸¹ Special Tribunal for Lebanon, No. STL-11-01/I/AC/R176bis, Interlocutory Decision on the Applicable Law: Terrorism, Conspiracy, Homicide, Perpetration, Cumulative Charging, Appeals Chamber, 16 February 2011, para. 85.

⁸² See the discussion in Ambos, *Treatise ICL II* (2014), at 184 *et seq.*, esp. 196–211.

⁸³ Glennon (2010) 35 *YaleJIL* 71; Paulus (2010) 20 *EJIL* 1117. The citation is from ‘The Crime of aggression’, note 80, at Annex II *Amendments to the Elements of crimes*, Element 5.

a customary basis to which State practice sufficiently attests, and its acknowledged vagueness is not so great that it cannot be left to judges for clarification.⁸⁴ One way of resolving the debate would be to demonstrate that the ‘manifest violation’ requirement – however vague in itself – merely serves to narrow the Rome Statute definition of aggression compared to that under customary law, thereby rendering it acceptable in terms of the ‘legality rights’ of defendants. Such an affirmation – with its assumption of agreement on the scope and status of the underlying customary crime – is most unlikely to generate consensus in the foreseeable future, however.⁸⁵ Given the remoteness of this crime’s eventual entry into force and prosecution, further comment at this time would only be speculative.

- 61 The argument of the Special Tribunal for Lebanon that terrorism now constitutes a ‘core crime’ of international criminal law rests largely on ‘*nullum crimen*’ assertions about the alleged clarity and determinacy of the offence. Writing for the Appeals Chamber, President Cassese repeated arguments developed in his respected textbook.⁸⁶ He asserts essentially that, in light of State practice (adoption and ratification of international treaties, adoption and application of national laws, international declarations, etc.) acts of international terrorism now give rise to international criminal responsibility directly under international law. Moreover, the persistent inability of States to adopt a general definition of this crime in negotiations on a proposed Comprehensive Convention against terrorism under United Nations auspices has not, in Cassese’s eyes, prevented the emergence of a general criminal norm prohibiting a clearly-defined set of conduct when committed in times of peace and with a transnational element.⁸⁷ If widely accepted, this argument would allow States Parties, if they so choose, to amend the Rome Statute to include an agreed-upon definition of the crime of terrorism (with consequential amendments as appropriate), without needing to confront the issues of ‘applicable law’ (mn 54–58) that were assumed to arise with respect to this crime when its inclusion was first proposed during the negotiation of the Statute.
- 62 The existence of an international ‘core crime’ of terrorism is far from attracting consensus, however. Commentators object in essence that international disagreement about the scope and content of an offence of terrorism is sufficient to prevent it from joining the ranks of the other ‘core crimes’ under customary international criminal law, that the Appeals Chamber lacked clear evidence of State will to impose individual criminal responsibility for a general crime of terrorism, and that it underestimated the implications of persistent disagreement over how to address crimes committed by those engaged in self-determination struggles (‘freedom fighters’) and by State forces.⁸⁸ It should be noted in conclusion that the Assembly of States Parties has not yet agreed on how to proceed on the issue of an eventual crime of terrorism. It set aside as premature the proposal of the Netherlands – made in the run-up to the 2010 Kampala Review Conference and ‘in light of the absence of a generally accepted definition of terrorism’ – to follow path taken with respect to the crime of aggression (listing of the crime of terrorism in article 5 para. 1 of the Statute and establishment of a working group to flesh out its definition).⁸⁹ As of mid-2012, the Assembly of States Parties has yet to adopt a process for dealing with this crime amidst ongoing concern that no agreed definition exists. In this light, the better view remains that the existence of international consensus on a ‘core’ crime of terrorism cannot be affirmed.

⁸⁴ Milanović (2012) 10 *JICJ* 165, responding to Glennon and Paulus, *ibid.*, *inter alia*.

⁸⁵ See Milanović: *ibid.*, 183–186.

⁸⁶ Cassese, *International Criminal Law* (2013) 146–157.

⁸⁷ Special Tribunal for Lebanon, Interlocutory decision, note 81, paras.85 (basic elements of supposed crime), 90 (transnational element), and 107 (times of peace).

⁸⁸ Ambos (2011) 24 *LJI* 655; Kirsch and Oehmichen (2011) 1 *DurhamLRev* 1; Saul (2012) *Legal Studies Research Paper No. 12/64*. See also Di Filippo (2008) 19 *EJIL* 533.

⁸⁹ ‘Report of the Working Group to the Review Conference’, Annex I of Assembly of States Parties to the Rome Statute of the International Criminal Court, *Official Records* (eighth session, 18–26 November 2009), ICC Doc. No. ICC-ASP/8/20, Vol.I, paras.40–51 and Appendix III, *Netherlands*.

Article 23

Nulla poena sine lege

A person convicted by the Court may be punished only in accordance with this Statute.

Literature: D’Ascoli, S., *Sentencing in International Criminal Law – The UN Ad Hoc Tribunals and Future Perspectives for the ICC* (Oxford, Portland: Hart, 2011); Henham, R., ‘Developing Contextualized Rationales for Sentencing in International Criminal Trials – A Plea for Empirical Research’, (2007) 5 *JICJ* 757–778.

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A. Introduction/General remarks

The prohibition of retroactive penalties, known by the Latin phrase *nulla poena sine lege*, is usually approached in tandem with the prohibition of retroactive offences, *nullum crimen sine lege*. Together, the two are usually described as the ‘principle of legality’, although the two principles have to be distinguished in that *nullum crimen* refers to the existence of a – clearly and strictly defined – penal provision at the time of the commission of the respective conduct, while *nulla poena* to the punishment to be provided for by this penal provision. Thus, in other words, punishment (*poena*) presupposes a crime (*crimen*) and, therefore, the *nulla poena* principle is predicated on the *nullum crimen* principle¹. Article 23 provides for the *nulla poena* principle while the *nullum crimen* principle is dealt with in Articles 22 and 24 of the Statute and therefore commented upon in these provisions.

While it is generally agreed that *nulla poena* requires less than *nullum crimen* it is unclear what exactly is required by *nulla poena*. International law does not provide for precise guidance.² The international human rights instruments, in a non-derogable provision, prohibit the imposition of a criminal sanction that is heavier than the one applicable at the time the offence was committed,³ thereby establishing *non-retroactivity* regarding the punishment. Article 15(1) second clause ICCPR complements the prohibition of a retroactive (heavier) penalty with the *lex mitior* principle, i.e., the offender’s right to have the new penalty applied if it is lighter than the previous one. Human rights law is relatively silent, however, with regard to the precise determination of sentences. The International Covenant on Civil and Political Rights does not prohibit the death penalty in the case of ‘the most serious crimes ...’⁴. The European Court of Human Rights has ruled that capital punishment as well as a sentence of life imprisonment without any possibility of release constitutes inhuman or degrading treatment prohibited by article 3 of the European Convention on Human Rights.⁵ Thus, the other elements of *nullum crimen*, especial the *lex certa* element, are absent from *nulla poena*⁶.

¹ Cf. Ambos, *Treatise on ICL II* (2014), p. 271.

² Cf. Ambos, *Treatise on ICL II* (2014), pp. 271 *et seq.*

³ On the death penalty, *Al Nashiri v. Poland*, no. 28761/11, § 577, 24 July 2014. On life imprisonment: *Vinter and Others v. the United Kingdom* [GC], nos. 66069/09, 130/10 and 3896/10, § 113, 9 July 2013; *Öcalan v. Turkey* (No. 2), nos. 24069/03, 197/04, 6201/06 and 10464/07, § 197, 18 March 2014; *László Magyar v. Hungary*, no. 73593/10, § 58, 20 May 2014.

⁴ Article 6(2) ICCPR, Article 2(1) ECHR.

⁵ International CCPR, 999 UNTS 171, entered into force 23 Mar. 1976, article 15 para. 1; ECHR, 213 UNTS 221, entered into force 3 Sept. 1953, article 7 para. 1; American Convention on Hum. Rts., 1144 UNTS 123, entered into force 18 July 1978, article 9. Also: Universal Declaration of Hum. Rts., GA Res. 217 A (III), UN Doc. A/810 (1948), article 11 para. 2.

⁶ For a different maximalist position see Dana, in: Klip *et al.*, *Liber Amicorum Prakken* (2004), pp. 350 *et seq.* (applying the four attributes of *nullum crimen*, including *lex certa* and *stricta*, to *nulla poena*); see for this view also Ambos, *Treatise on ILC II* (2014), pp. 276–7.

- 3 This uncertainty is also confirmed by the customary law of war crimes. It recognizes that penalties may include death or such lesser punishment as a court might deem appropriate⁷. The principle was codified in the IMT Charter, which authorized the Nuremberg court to impose upon a convicted war criminal “death or such other punishment as shall be determined by it to be just”⁸. Given that the offences set out in article 6 of the *Rome Statute* correspond by and large to customary law, it would seem relatively clear that there can be no problem with the *nulla poena* rule, as far as war crimes, crimes against humanity (including genocide) and aggression (crimes against peace) are concerned. The ICTY Appeals Chamber has rejected arguments that claim the *nulla poena* principle is violated because the ICTY Statute does not set out precise sentences, as is the case in some national codes. According to the Chamber, the Statute

‘does not require that the law prescribes a precise penalty for each offence depending on the degree of gravity. Be it a common law system or a civil law system, it is not the case that national legislation anticipates every possible offence with a prescribed sentence. On the contrary, it is a fact that a penal code frequently prescribes a range for sentencing with regard to an offence; that is, it often sets out both the maximum and minimum sentences. Within the range, judges have the discretion to determine the exact terms of a sentence, subject, of course, to prescribed factors which they have to consider in the exercise of that discretion’⁹.

Moreover, there is no need to prescribe a minimum penalty because “an accused must have been aware that the crimes for which he is indicted are the most serious violations of international humanitarian law, punishable by the most severe of penalties”¹⁰. In the only sentencing judgments of the ICC so far the Lubanga Trial Chamber only mentions *nulla poena* but does not elaborate on it¹¹; the Appeals Chamber does not even mention the principle.¹² In *Katanga*, the majority of the Trial Chamber refers to the ‘principle of legality’ as a principle to be followed in imposing sentence, citing article 23 of the Statute in the footnote.¹³

- 4 During early efforts by the ILC and the General Assembly to draft a statute for an international criminal court, it was sometimes argued that precise sentencing norms were required, similar to those often found in domestic penal codes. A 1951 proposal from the ILC for the Draft Code of Offences Against The Peace and Security of Mankind that said the penalty ‘shall be determined by the tribunal exercising jurisdiction over the individual accused, taking into account the gravity of the offence’¹⁴ was challenged as being contrary to the principle *nulla poena sine lege*¹⁵. The Romanian jurist Vaspasian V. Pella said that the

⁷ Levie, *Terrorism In War – The Law Of War Crimes* (1992) 264–266; Schabas (1997) 60 *AlbanyLJ* 736; *id.*, *The Abolition of the Death Penalty in International Law* (3rd ed., 2003) 235–258.

⁸ Agreement for the Prosecution and Punishment of Major War Criminals of the European Axis, London, 8 Aug. 1945, 8 UNTS 279, Annex, Charter of the International Military Tribunal (8 Aug. 1945), article 27.

⁹ *Prosecutor v. Kunarac et al.*, Case No. IT-96-23 & IT-96-23/1-A, Judgment, Appeals Chamber, 12 June 2002, para. 372.

¹⁰ *Prosecutor v. Blaškić*, Case No. IT-95-14-A, Judgment, Appeals Chamber, 29 July 2004, para. 681. Also: *Prosecutor v. Delalić et al.*, Case No. IT-96-21-A, Judgment, Appeals Chamber, 20 Feb. 2001, paras. 817–818. Issues concerning the *nulla poena sine lege* principle have arisen before the International Criminal Tribunal for the former Yugoslavia in the context of referral proceedings of cases to the courts of Bosnia and Herzegovina as part of the Tribunal’s completion strategy. The law in force at the time the alleged acts were committed provided for maximum sentences of twenty years’ imprisonment, or capital punishment. New legislation, enacted in 2004, and upon which the national prosecutions are based, allows for a maximum sentence of forty-five years’ imprisonment. Judges at the International Criminal Tribunal for the former Yugoslavia have rejected arguments based upon the principle of legality, saying this is a matter to be dealt with by the courts of Bosnia and Herzegovina: *Prosecutor v. Stankovich*, Case No. IT-96-23/2-PT, Decision on Referral of Case Under Rule 11bis, 17 May 2005, paras. 42–45; *Prosecutor v. Janković*, Case No. IT-96-23/2-PT, Decision on Referral of Case Under Rule 11bis, 22 July 2005, paras. 27–32.

¹¹ ICC, TC I, *Prosecutor v. Lubanga*, Decision on Sentence pursuant to Article 76 of the Statute, 10 July 2012, ICC-01/04-01/06-2901, para. 18.

¹² ICC, AC, *Prosecutor v. Lubanga*, Judgment on the appeals of the Prosecutor and Mr Thomas Lubanga Dyilo against the ‘Decision on Sentence pursuant to Article 76 of the Statute’, 1 December 2014, ICC-01/04-01/06 A 4 A 6.

¹³ *Prosecutor v. Katanga*, Décision relative à la peine (article 76 du Statut), 23 May 2014, ICC-01/04-01/07, para. 39.

¹⁴ 2 YbIL C 134 *et seq.* (1951), UN Doc. A/1858, para. 59. Also: 1951 Draft Statute Report, paras. 110–111.

¹⁵ 1953 Draft Statute, para. 118.

nulla poena sine lege principle applied to international criminal law as much as to domestic law ‘par la force de l’équité et de la raison’¹⁶. However, a General Assembly committee was unimpressed with the criticism although it agreed ‘that it would be desirable that the court, in exercising its power to fix penalties, should take into account the penalties provided in applicable national law to serve as some guidance for its decision’¹⁷.

B. Analysis and interpretation of elements

The Draft Statute submitted by the ILC to the General Assembly in 1994 contained a general 5 sentencing provision, allowing for terms of detention up to life imprisonment, a specified period of incarceration, and a fine. In fixing the sanction, the Court was invited to consider the law of the State of which the offender was a national, the State where the crime was committed, and the State with custody of and jurisdiction over the accused¹⁸. These references to national law echoed provisions in the Statutes of the *ad hoc* Tribunals¹⁹ that had been inserted out of consideration for the *nulla poena* rule²⁰. The reference to national legal standards was eventually dropped by the Working Group on Penalties during the drafting of the Rome Statute²¹. The ILC’s 1996 Draft Code of Crimes Against the Peace and Security of Mankind was somewhat more laconic, and did not specify any precise penalties, saying only that ‘punishment shall be commensurate with the character and gravity of the crime’²². The accompanying commentary explained that it was ‘not necessary for an individual to know in advance the precise punishment so long as the actions constitute a crime of extreme gravity for which there will be severe punishment. This is in accord with the precedent of punishment for a crime under customary international law or general principles of law as recognized in the Nürnberg Judgment and in article 15 para. 2 of the International Covenant on Civil and Political Rights’²³ (and, we can add, in Article 7(2) ECtHR, the so-called Nuremberg clause).

In the *Ad Hoc* Committee of the General Assembly, which met during 1995, the view was 6 expressed that a procedural instrument enumerating rather than defining the crimes might not respect *nulla poena sine lege*²⁴. Article 47 of the ILC Draft Statute was criticized as being in conflict with *nulla poena*, some delegates stating that minimum as well as maximum penalties were required²⁵. There was also a suggestion that the Statute include detailed provisions concerning sentencing of minors, aggravating or attenuating circumstances, cumulative penalties for multiple crimes, although some delegations expressed support for the more flexible approach reflected in the ILC Draft Statute²⁶. The Working Group on General Principles of the Preparatory Committee, which met in February 1997, proposed a text recognizing the norm *nullum crimen sine lege*. It did not speak directly to the *nulla poena* portion of the principle of legality except indirectly, stating that ‘[c]onduct shall not be construed as criminal and sanctions shall not be applied under this Statute by a process of analogy’²⁷.

¹⁶ 2 YbIL C 314 (1950). See also: Pella (1952) *RGDIP* 337.

¹⁷ *Supra* note 16. See also: Draft Code of Offences Against the Peace and Security of Mankind, Troisième rapport de J. Spiropoulos, rapporteur spécial, UN Doc. A/CN.4/85; UN Doc. A/CN.4/SR.268, paras. 45, 52.

¹⁸ ILC Report on the Work of its Forty-Sixth Session, UN Doc. A/CN.4/SER.A/1994/Add.1, Vol. II, article 47.

¹⁹ Statute of the ICTY, UN Doc. S/RES/827, Annex (1993), articles 24 and 25. See: Schabas (1997) *Duke/Comp&IL* 461.

²⁰ Corell *et al.*, *Proposal for an International War Crimes Tribunal for the Former Yugoslavia* (1993) 68–69.

²¹ Report of the Working Group on Penalties, UN Doc. A/CONF.183/C.1/WGP/L.14, p. 4.

²² 1996 ILC Draft Code, pp. 29–30.

²³ *Ibid.* See also Triffterer, *Dogmatische Untersuchungen zur Entwicklung des materiellen Völkerstrafrechts seit Nürnberg* (1966) 92 *et seq.*, in particular 139.

²⁴ *Ad Hoc* Committee Report, para. 57, p. 11.

²⁵ *Ibid.*, para. 187, p. 36.

²⁶ 1996 Preparatory Committee I, para. 304, p. 63. Also: *ibid.*, para. 180, p. 41; *ibid.*, para. 189, p. 43.

²⁷ Preparatory Committee Decisions Feb. 1997, Annex II, p. 18, para. 1; UN Doc. A/AC.249/1997/WG.2/CRP.1.

- 7 Midway through the Diplomatic Conference, on 1 July, Mexico proposed that the Working Group on Penalties adopt a provision stating the *nulla poena* rule: ‘No penalty shall be imposed on a person convicted of a crime within the jurisdiction of the Court, unless such penalty is expressly provided for in the Statute and is applicable to the crime in question’²⁸. Mexico felt that the provision could be placed either in Part 2, in tandem with the *nullum crimen* provision (article 21 in the Draft, which was renumbered to article 22 in the *Rome Statute*), or in Part 6, as part of the sentencing provision (article 74). The Mexican text was subsequently reformulated by the chair of the Working Group, who felt it belonged with article 21: ‘*Nulla poena sine lege*. A person convicted by the Court may be punished only as provided under this Statute’²⁹. The proposal appeared to be uncontroversial and enjoyed broad support. However, its adoption was stalled for some time by the debate on capital punishment. The text proposed by the Chair was adopted by the Working Group on Penalties accompanied by a footnote: ‘The Working Group draws the attention of the Drafting Committee to the possibility of including this provision as a separate article or as a provision of article 21’³⁰. The Drafting Committee agreed that the *nulla poena* text belonged in the general principles section, and that it should be placed immediately after the *nullum crimen* provision³¹.
- 8 Concern with the *nulla poena* principle is expressed in the *Rome Statute* not only in the specific provision, article 23, but also throughout the sentencing provisions of Part 7. The *Statute* does not set specific penalties for the four offences, opting instead for a series of general provisions applicable to the four crimes that make up the Court’s subject matter jurisdiction. Thus, the *Statute* specifies the terms of imprisonment and the criteria for their imposition, as well as the possibility of fine and forfeiture of proceeds, the role of time served prior to sentencing, and the treatment of multiple sentences. Aggravating and mitigating circumstances have been developed in the Rules of Procedure and Evidence. With this the *Statute* offers more than the law law of the Ad Hoc Tribunals and, *a fortiori*, meets the standards of international law (cf. *supra* mn. 3).
- 9 Article 23 serves as a limit on the discretionary powers of the Court, which cannot impose punishment that is not set out in the Statute, or provided in accordance with its delegated legislation, and specifically the Rules of Procedure and Evidence. It also prevents States Parties from imposing additional punishment upon those who have already been convicted by the Court. The ramifications of this remain to be determined, but offenders may argue that civil sanctions such as deprivation of the right to vote, or prohibition of holding office, constitute additional punishment and are therefore prohibited by article 23³². Thus, in sum, Article 23 reaffirms the international practice in that it contains the *lex praevia* and *lex scripta* attributes of the principle of legality but it does not demand certain (*lex certa*) and strictly construed (*lex stricta*) sentences³³.

²⁸ Proposal submitted by Mexico, UN Doc. A/CONF.183/C.1/WGP/L.4.

²⁹ Chairman’s Working Paper on Article 21*bis*, UN Doc. A/CONF.183/C.1/WGP/L.8. See also: UN Doc. A/CONF.183/C.1/SR.24, para. 33; UN Doc. A/CONF.183/C.1/SR.26, para. 31.

³⁰ *Supra* note 21, Report of the Working Group on Penalties, Add.1, p. 1, fn. 1.

³¹ UN Doc. A/CONF.183/C.1/L.65/Rev.1, p. 2.

³² A square-bracketed provision in the Preparatory Committee (Consolidated) Draft, p. 120 contemplated allowing the Court to impose disqualification from public office, but was dropped by the Working Group on Penalties at an early stage of its work (note 21, p. 2).

³³ cf. Ambos, *Treatise on ICL II* (2014), p. 273.

Article 24

Non-retroactivity *ratione personae*

1. No person shall be criminally responsible under this Statute for conduct prior to the entry into force of the Statute.

2. In the event of a change in the law applicable to a given case prior to a final judgment, the law more favourable to the person being investigated, prosecuted or convicted shall apply.

Literature: Meltzer, B.D. 'War Crimes: The Nuremberg Trial And The Tribunal For The Former Yugoslavia', (1996) 30 *ValULRev* 895; Shklar, J., *Legalism: Law, Morals and Political Trials* (Harvard University Press 2nd edition 1986).

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A. General remarks

Article 24 forms part of the provisions establishing the requirements of legality as a 'General Principle of Criminal Law' governing the Court. The other provisions are article 22, principle *nullum crimen sine lege*, and article 23, principle *nulla poena sine lege*. As one author has summarized:

'Articles 22– 4 of the ICC Statute go beyond the generally recognized *lex praevia* and *lex certa* components of the principle of legality. These articles provide a comprehensive conceptualization of *nullum crimen*, including all four of its elements generally recognized in civil law jurisdictions As a result, one can only be punished for a certain conduct if this conduct has been criminalized by written law (*lex scripta*) in a clear and unambiguous manner (*lex certa*) at the time of commission (*lex praevia*); the law must not be applied to similar conduct by analogy (*lex stricta*).'¹

Article 24 para. 1 embodies the element of *lex praevia*. The Draft Statute prepared by the ILC subsumed these elements together under the broader title 'Principle of legality (*nullum crimen sine lege*)'², reflecting the 'centrality of the *nullum crimen* principle in the debates about international criminal jurisdiction'³. The difficulty in applying this principle in international law has been recognized, in contrast to domestic law where the sources of law are more determinate⁴. In the present Statute, its several aspects have been unbundled,

¹ Ambos, *Treatise ICL I* (2013) 90.

² 1994 ILC Draft Statute (Part 2), in: 2 *YbILC* (1994), Part Two. See Advisory Opinion No. 65, *Consistency of Certain Danzig Legislative Decrees with the Constitution of the Free City*, 1935 P.C.I.J. (Ser. A/B), No. 65 (holding the *nullum crimen* principle as required under domestic constitutional law). See, generally, Shklar (1986); Bassiouni, *The Protection of Human Rights in the Administration of Criminal Justice: A Compendium of United Nations Norms and Standards* (1994) 19, 132; Rechnagel, *The Maxim of Nulla Poena Sine Lege: A Historical and Comparative Legal Study* (1959); Fisch (1997) 110 *HarvLRev* 1055; Borchers (1997) 60 *AlbLRev* 653.

³ Crawford (1995) 89 *AJIL* 404.

⁴ Meltzer (1996) 30 *ValULRev* 895. Recalling the plea against the 'strict and automatic application of the principle against retroactivity', he states that the 'rule has flourished in comparatively well-developed legal systems but not in primitive or immature one'.

namely ascertaining the legally binding character of the norm itself, article 22; the specificity of the obligation and of the consequences of its breach, articles 22 and 23; and, finally, its applicability to the acts in question or its opposability *vis-à-vis* the defendant *ratione temporis*, article 24, or the *lex praevia*.

- 2 The Court's jurisdiction *ratione personae* is established generally in article 1, 'jurisdiction over persons', and article 25, 'jurisdiction over natural persons'. Its jurisdiction *ratione temporis* is established in article 11, 'only with respect to crimes committed after the entry into force of this Statute' and, *vis-à-vis* a State that becomes a Party after the Statute has entered into force, 'only with respect to crimes committed after [its] entry into force ... for that State'. As will be discussed below, the *ratione temporis* requirements have also been referred to by international criminal tribunals as the rule against *ex post facto* laws, which embodies the prohibition against the retroactive application of laws, recognized in domestic constitutions as an indispensable element of the right of the accused to the due process of law⁵. The difference, however, is that these tribunals, and the Statute as well, cast the rule as a requirement of legality – which focuses on whether a norm has been embodied by the community in valid laws and enforced through legitimate institutions – and not as a right of the accused⁶ – which focuses on whether the individual is treated fairly and is able to know beforehand whether his acts are lawful⁷.

1. Functions in relation to articles 22 and 23

- 3 Accordingly, the rationale of article 24 para. 1 is distinct from that of articles 22 and 23. This distinction can be drawn from judgments of earlier international criminal tribunals, all of which significantly have been *ad hoc* in character and established *ex post facto*. Consistently, it has been held that the *nullum crimen sine lege* principle was satisfied as long as the act for which the defendant is charged was punishable as a crime by law at the time it was committed, and that the *ex post facto* exercise of jurisdiction was deemed merely a question of procedure that did not detract from the legality of the proceedings.
- 4 The International Military Tribunal at Nuremberg was established in 1945⁸, yet the Indictments⁹ all pertained to acts prior to its establishment¹⁰. The Tribunal, responding to the *ex post facto* argument, stated that the 'maxim *nullum crimen sine lege* is not a limitation of sovereignty but is in general [merely] a principle of justice'. This principle was deemed satisfied as long as there was no criminalization *ex post* of acts already committed, thus focusing on the *lex scripta* requirement of the principle of legality but construing it rather liberally.¹¹

'The Charter is not an arbitrary exercise of power on the part of the victorious nations, but ... the expression of international law existing at the time of its creation, and to that extent is itself a contribution to international law. [...]

In interpreting the words of the pact, it must be remembered that international law is not the product of an international legislature, and that such international agreements ... have to deal with general principles of law, and not with administrative matters of procedure. The law of war is to be

⁵ See, e.g., Kobrick (1987) 87 *ColumbiaLRev* 1515–1538 (stating the 'fair warning' and the safeguard against 'legislative vindictiveness' rationales).

⁶ These are covered elsewhere in the Statute, *inter alia* in articles 55 and 67.

⁷ See also *Prosecutor v. Delalić et al.*, Case No. IT-96-21-T, Judgement, Trial Chamber, 16 Nov. 1998, paras. 402–407, which affirms this requirement ('*nullum crimen sine lege* and *nulla poena sine lege* are well recognised in the world's major criminal justice systems as being fundamental principles of criminality') but distinguishes national from international law ('different methods of criminalisation of conduct in national and international criminal justice systems').

⁸ Charter of the International Military Tribunal (6 Oct. 1945), annexed to the Agreement for the Prosecution and Punishment of Major War Criminals of the European Axis (8 Aug. 1945), 82 UNTS 279 (London Agreement).

⁹ Indictment, International Military Tribunal, Nuremberg, U.S. Dept. of State, TWC 23, Dept. of State Pub. No. 2420 (1945).

¹⁰ The Indictments included for all Counts include wording like, '... during a period of years preceding 8th May, 1945' or 'between 1st September, 1939, and 8th May, 1945' or 'since 1st September, 1939'. *Ibid*.

¹¹ Ambos, *Treatise ICL I* (2013) 89 ('in a somewhat loose fashion' through 'judicial creativity').

found not only in treaties, but in the customs and practices of states which gradually obtained universal recognition, and from the general principles of justice applied by jurists and practiced by military courts. This law is not static, but by continual adaptation follows the needs of a changing world. Indeed, in many cases treaties do no more than express and define for more accurate reference the principles of law already existing¹².

The jurisdiction of the Tokyo War Crimes Tribunal¹³ was likewise challenged on the ground that the 'provisions of the Charter [were] *ex post facto*' legislation and therefore illegal¹⁴. The Tribunal rejected the challenge, stating that the 'law of the Charter is decisive and binding on the Tribunal'¹⁵ and stating its 'unqualified adherence'¹⁶ to the Nuremberg reasoning. Even the dissenting opinion, which found the Charter inconsistent with the *nullum crimen* principle, would ask only whether the acts were already punishable by law at the time they were committed but not the power of the Tribunal to try acts committed prior to its creation¹⁷. The dissent refers to the Charter which 'clearly intended to provide a court for the trial of offenses ... in respect of past acts' – asking '[w]hether it is within the competence of the [Charter] so to define the crimes'¹⁸. It concludes: 'If however, it refers to the right to 'define the law "such 'court is to administer", I respectfully [dissent]'¹⁹.

The Tribunal's verdict was subsequently challenged before the U.S. Supreme Court, and was upheld²⁰. The dissenting opinions focused on whether the offenses charged constituted a crime recognized by law²¹. These tribunals thus focused on the *lex scripta* pertaining to existence of the rule that criminalizes an act, but not the *lex praevia* element pertaining to when the act was committed.

More recently, however, the ICTY has been presented with the issue. Its Statute similarly provides for retroactive jurisdiction²², but the *travaux préparatoires* merely reaffirm the principle that *nullum crimen sine lege* required the Tribunal to apply only such 'rules of international humanitarian law which are beyond any doubt part of customary law'²³, and was silent on retroactive jurisdiction. This issue, however, was confronted in one preliminary study which, affirming the established notion on the *nullum crimen* principle, suggests the test of foreseeability²⁴ which is central to the fairness approach²⁵. But the authors proceeded to distinguish the element of *lex* from the mere 'procedural' question of which court may try the acts²⁶. They concluded that *nullum crimen* is satisfied provided 'no act is criminal unless

¹² *The Trial of Major War Criminals: Proceedings of the International Military Tribunal- Nuremberg* (HMSO, London, 1950, Pt. 22).

¹³ International Military Tribunal for the Far East (Judgment, 1 Nov. 1948), implementing the Cairo Declaration of 1 Dec. 1943, the Declaration of Potsdam of 26 July 1945, the Instrument of Surrender of 2 Sept. 1945, and the Moscow Conference of 26 Dec. 1945.

¹⁴ International Military Tribunal for the Far East (Judgment, 1 Nov. 1948), in: Pritchard and Zaide, (eds.), 20 *The Tokyo War Crimes Tribunal* 48 (1981) 436 a.

¹⁵ *Id.*, 48, 435.

¹⁶ *Id.*, 48, 439.

¹⁷ The Dissenting Opinion of the Member from India (B. Pal Rabhabinod), note 14, 21 *The Tokyo War Crimes Tribunal*.

¹⁸ *Id.*, 33.

¹⁹ *Id.*, 51–53.

²⁰ *Hirota v. MacArthur*, 338 U.S. 197 (20 Dec. 1948). The jurisdiction of military commissions to try Japanese war criminals was challenged in *Yamashita v. Styer*, 327 U.S. 757 (4 Feb. 1946).

²¹ See for instance, Murphy, note 15, *dissenting*, and J. Rutledge, *dissenting*, in *Yamashita*.

²² Statute of the ICTY, annexed to the Report of the Secretary-General Pursuant pursuant to Paragraph 2 of Security Council Res. 808 (1993), at article 1, 'committed in the territory of the former Yugoslavia since 1991', and article 8, 'The temporal jurisdiction of the International Tribunal shall extend to a period beginning on 1 January 1991'.

²³ Report of the Secretary-General, note 20.

²⁴ Proposal for an International War Crimes Tribunal for the Former Yugoslavia under the CSCE Moscow Human Dimension Mechanism to Bosnia-Herzegovina and Croatia (by Rapporteurs Corell/Turk/Thune), UN Doc. S/25307 (9 Feb. 1993).

²⁵ *Ibid.*, p. 52, citing the Rapporteurs' earlier report on Croatia.

²⁶ *Ibid.*, pp. 54–55.

this is laid down by law and no act be punished unless punishment is prescribed by law²⁷. Finally, this issue was squarely addressed by the ICTY itself, which reconciled retroactive jurisdiction with *nullum crimen* using the ‘fair trial guarantees’ under article 14 of the International Covenant on Civil and Political Rights²⁸. ‘[W]hat is important is that it be set up by a competent organ in keeping with the relevant legal procedures, and that it observes the requirements of procedural fairness’²⁹.

- 8 In conclusion, the dominant approach is to emphasize the prospective character of legislative power, while accepting the retroactive character of judicial power. Hence the focus of the decisions on the *lex scripta* element of the *nullum crimen sine lege* principle, which is covered in articles 22 and 23, rather than the *lex praevia*, which is covered in article 24 para. 1. Stated otherwise, while these related articles all have a temporal aspect, articles 22 and 23 pertain to the punishability of crime, while article 24 para. 1 pertains to the occurrence of the conduct itself. While articles 22 and 23 preclude the retroactive application of legislative power, article 24 para. 1 limits the retroactive exercise of judicial power to the applicable date of entry into force.

2. History

- 9 The principle of the non-retroactivity of criminal law, broadly construed, is embodied in a number of international instruments, including the Universal Declaration of Human Rights³⁰, the ICCPR³¹, the European Convention on Human Rights³², and the 1949 Geneva Convention Relative to the Treatment of Prisoners of War³³. The requirement of a ‘competent, independent and impartial tribunal established by law’ has been codified in the ICCPR³⁴ and the Human Rights Committee, in interpreting this clause, has recognized ‘serious problems’ with ‘special courts’ – though referring solely to the trial of civilians – that allow ‘exceptional procedures’ that fall below the ‘strict guarantees of the proper administration of justice’³⁵.
- 10 Two antecedent documents contain articles that closely track the current article 24 para. 1. The ILC Draft Code³⁶ contains an article on ‘Non-retroactivity’ as regards ‘acts committed before its entry into force’³⁷. However, the clause appears in a criminal code, making non-retroactive legislation rather than a court’s exercise of jurisdiction. As stated above, the ILC Draft Statute contains a separate article entitled ‘Principle of legality (*nullum crimen sine lege*)’. Consistent with the established pattern, the Commentary³⁸ on this article addresses the retroactivity of legislation but not of the exercise of jurisdiction.
- 11 The Preparatory Committee’s Draft Statute³⁹ contains articles on ‘Temporal Jurisdiction’ (which barred jurisdiction unless the ‘crime was committed after the date of entry into

²⁷ *Ibid.*, p. 41.

²⁸ *Prosecutor v. Tadić*, Case No. IT-94-1-AR72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, Appeals Chamber, 2 Oct. 1995. See also *Prosecutor v. Krajisnik*, Case No. IT-00-39-PT, Decision on Motion Challenging Jurisdiction—with Reasons, Trial Chamber, 22 Sept. 2000; *Prosecutor v. Vojislav Seselj*, Case No. IT-03-67-PT, Decision on the Accused’s Requests for an Advisory Opinion of the International Court of Justice, 15 Dec. 2004.

²⁹ *Id.* See also *Proposal for an International War Crimes Tribunal for the Former Yugoslavia under the CSCE Moscow Human Dimension Mechanism to Bosnia-Herzegovina and Croatia*, UN Doc. S/25307 (1993), citing Articles 14 and 15 of the ICCPR).

³⁰ Article 11.

³¹ See mn 7.

³² Article 7.

³³ Article 99.

³⁴ See mn 7.

³⁵ General Comment No. 13 of the Human Rights Committee of the ICCPR (Twenty-first session, 1984), in: Bassiouni, *The Protection of Human Rights in the Administration of Criminal Justice* (1994) 19, 132.

³⁶ ILC Report on the Work of its Fortieth Session, UN Doc. A/43/10, in: (1988) 2 *YbILC*, Part Two, UN Doc. A/CN.4/SER.A/1988/Add.1 (Part 2).

³⁷ Article 8.

³⁸ 1994 ILC Draft Statute, note 1.

³⁹ Preparatory Committee (Consolidated) Draft.

force⁴⁰) and on ‘Non-Retroactivity’ (which barred jurisdiction for ‘conduct committed prior to its entry into force’⁴¹). Both articles are based on the same concept as the present article 24 and limit the reach of jurisdiction to acts committed as of a certain date.

B. Analysis and interpretation of elements

I. Paragraph 1

1. Acts and omissions prior to the entry into force

Article 24 refers to ‘conduct prior to the entry into force’, not ‘conduct committed ...’. The word ‘committed’ is not used specifically in order to cover both acts and omissions. The Preparatory Committee’s Draft Statute had expressly covered both acts and omissions in a separate article entitled ‘*Actus reus* (act and/or omission)’⁴². Because this draft article has not been included in the Statute, the culpability of omissions has been incorporated into the definition of specific crimes, *i. e.*, as substantive rather than general (or structural) provisions. An example is the principle of command responsibility, which pertains to the ‘failure to take all necessary and reasonable measures ... to prevent or repress the [...] commission of crimes’⁴³ or ‘failure to exercise control properly over [...] subordinates’⁴⁴.

2. Moment of occurrence and ‘continuing violations’

Certain acts may be committed prior to the entry into force but have effects that continue even afterwards. At the same time, certain acts may be commenced prior to the entry into force but may be deemed to be ‘continued’ afterwards. This issue was addressed, though in the context of state responsibility and not of individual criminal responsibility, by the European Court of Human Rights, which distinguished between a ‘continuing situation [and] an instantaneous act’ and recognized ‘the notion of a *continuing violation* of the Convention and its effects as to temporal limitations of the competence of Convention organs’⁴⁵.

This issue has also arisen before the International Criminal Tribunal for Rwanda, whose Statute provides, in article 7 (Territorial and Temporal Jurisdiction), that its jurisdiction ‘shall extend to a period beginning on 1 January 1994 and ending on 31 December 1994’⁴⁶. In several cases, the defendants sought to exclude *ratione temporis* allegations pertaining to the period prior to 1994. The Trial Chamber allowed such pre-1994 allegations that ‘provide[d] a relevant background and a basis for understanding the accused’s alleged conduct in relation to the Rwandan genocide of 1994’⁴⁷ and which ‘may have probative or evidentiary value’ to subsidiary or interrelated allegations⁴⁸. However, the Appeals Chamber

⁴⁰ Article 8.

⁴¹ Article 22.

⁴² Article 28, Preparatory Committee (Consolidated) Draft, note 37.

⁴³ Article 28 para. 1.

⁴⁴ Article 28 para. 2.

⁴⁵ *Loizidou v. Turkey*, Judgment (Merits), App. No. 00015318/89, 18 Dec. 1996. See also Case Comment, *Loizidou v. Turkey*, (Merits), No. 40/1993/435/514, ECtHR, 18 Dec. 1996, (1997) 91 AJIL 532.

⁴⁶ UN Doc. S/RES/955, Establishment of an International Tribunal for Rwanda and adoption of the Statute of the Tribunal, 8 Nov. 1994.

⁴⁷ *The Prosecutor v. Ngeze*, Case No. ICTR-97-27-I, Decision on the Prosecutor’s Request for Leave to Amend the Indictment, 5 Nov. 1999, para. 3. For a full discussion of this point, see van den Herik, *The Contribution of the Rwanda Tribunal for the Development of International Law* (2005).

⁴⁸ *Prosecutor v. Nahimana*, Case No. ICTR-96-11-T, Decision on the Prosecutor’s Request for Leave to File an Amendment Indictment, 5 Nov. 1999, para. 28.

affirmed that ‘an accused [may] not be held accountable for crimes committed prior to 1994’, and that these events may not be referred to ‘except for historical purposes or information’⁴⁹.

Significantly, a concurring opinion by Judge Mohamed Shahabuddeen said that evidence about pre-1994 crimes may be received in the following situations: (a) to draw inferences with regard to intent to commit crimes committed within the limits of the temporal jurisdiction of the Tribunal; (b) to establish a ‘pattern, design or systematic course of conduct by the accused’; and (c) with regard to a conspiracy agreement made prior to but continuing in the period of 1994, to show that the parties constantly renewed their agreement with acts contemplated by the conspiracy⁴⁸. Another separate opinion by Judges Lal Chand Vohrah and Rafael Nieto-Navia interpreted the Tribunal’s temporal jurisdiction restrictively, recognizing that it is difficult to apply restrictions *ratione temporis* to ‘continuing or inchoate’ crimes such as conspiracy of incitement because these are based ‘not just [on] one defined event occurring on a specific date but upon a series of events or acts which [take] place over an extended period of time’⁵⁰.

- 15 In another ICTR case, a Trial Chamber held that ‘inchoate offenses that culminate in the commission of acts in 1994’ fall within the Tribunal’s jurisdiction *ratione temporis* due to the ‘continuing nature of a conspiracy agreement’, and applied this as well to the crime of incitement. The Chamber excluded only those ‘acts completed prior to 1994’⁵¹.
- 16 In 2009, the ICTR Appeals Chamber held that the ‘temporal jurisdiction of the Tribunal do[es] not preclude the admission of evidence on [pre-1994] events’ in the case of continuing crimes. Accordingly, the Chamber may still admit such evidence if these are ‘relevant and of probative value and there is no compelling reason to exclude it.’ However, ‘where [the] conduct commenced before 1994 and continued during that year, a conviction may be based only on that part of such conduct having occurred in 1994’⁵².
- 17 The European Court of Human Rights has held that enforced disappearances are continuing crimes, and persist until such time as the victim’s fate or whereabouts is known. Even if the initial disappearance transpired before the critical date of its *ratione temporis* jurisdiction, the Eur. Ct. H.R. has held that it had jurisdiction so long as the violation continued up until the critical date⁵³. The court further held, however, that even if a complaint is based on a continuing crime, the action must still be brought to court within a reasonable time⁵⁴.
- 18 The Human Rights Committee has recognized that it has jurisdiction over a disappearance, even if it occurred before the critical date of its *ratione temporis* jurisdiction provided the State committed any further action that would constitute ‘a confirmation of the enforced disappearance’. Although the Committee found it had no jurisdiction *ratione temporis* over the actual death of the victim, the state had subsequently failed to investigate the death, and to prosecute those responsible in a just and speedy trial, all of which transpired after the victim’s death⁵⁵.
- 19 The Inter-American Court of Human Rights⁵⁶ has enumerated the human rights violations that were continuing in character, *inter alia*, forced disappearances, the absence of an

⁴⁹ *Prosecutor v. Ngeze and Nahimana*, Decision on the Interlocutory Appeals, 5 Sep. 2000, p. 6. See also *Aloys Simba v. The Prosecutor*, Case No. ICTR-01-76-AR72.2, Decision on Interlocutory Appeal Regarding Temporal Jurisdiction, Appeals Chamber, 29 July 2004 (affirming *Prosecutor v. Ngeze and Nahimana*).

⁵⁰ Separate Opinion of Judge Shahabuddeen, note 47,.

⁵¹ *Ibid.*, Joint Separate Opinion of Judge Lal Chand Vohrah and Judge Rafael Nieto-Navia, para. 7.

⁵² *Prosecutor v. Nahimana, Barayagwiza and Ngeze*, Case No. ICTR-99-52-T, Judgment and Sentence, Trial Chamber, 3 Dec. 2003.

⁵³ *Varnava and others v. Turkey*, Judgment (Merits and Just Satisfaction), App No. 16064/90, European Court of Human Rights, 18 Sept. 2009, affirmed in *Sulygov and others v. Russia*, Judgment, App Nos. 42657/07, 53679/07, 311/08, 424/08, 3375/08, 4560/08, 35569/08, 62220/10, 3222/11, 22257/11, 24744/11, 36897/11, European Court of Human Rights, 9 Oct. 2014.

⁵⁴ *Varnava and others v. Turkey*, n. 53.

⁵⁵ *Sankara et al. v. Burkina Faso*, Communication No. 1159/2003, UN Doc. CCPR/C/86/D/1159/2003, 28 March 2006. See also *Surat Davud Oglu Huseynov v. Azerbaijan*, Communication No. 2042/2011, UN Doc. CCPR/C/111/D/2042/2011, 21 July 2014.

⁵⁶ *Rio Negro Massacres v. Guatemala*, Judgment of 4 September 2012, Preliminary objection, Merits, Reparations and Costs, Series C No. 250, IACtHR, 4 Sept. 2012. See also *Blake v. Guatemala*, Judgment of July 2, 1996,

impartial and effective investigation into the facts of this case, the adverse effects on the personal integrity of the next of kin and survivors in relation to investigation of the facts, and the failure to identify those who were executed and disappeared.

As regards omissions, however, article 24 is not helpful in ascertaining the moment of occurrence for the purpose of determining whether it was ‘prior to the entry into force’ of the Statute. On the other hand, fixing the moment of the omission, as with the problem of defining the omission itself, can be determined in relation to the substantive obligation itself. For instance, as regards the omissions mentioned above, the critical moments are when the crimes were actually committed by the forces under the officer’s command and when the officer should have taken the ‘measures’ or acts of ‘control’ for which he or she is being held accountable.

II. Paragraph 2

1. ‘Change in the law’; rationale

Article 24 para. 2 prohibits the retroactive application of more severe legislation. It derives from the Preparatory Committee’s Draft Statute which states: ‘If the law as it appeared at the commission of the crime is amended prior to the final judgment in the case, the most lenient law shall be applied’. It is akin to articles 22 and 23, which bar the retroactive application of legislation.

While the Nuremberg and Tokyo verdicts used both terms – *nullum crimen* and *ex post facto* – interchangeably, it is this article which is equivalent to the domestic law rule against *ex post facto* laws⁵⁷, which is defined as follows:

‘A law that impermissibly applies retroactively, esp. in a way that negatively affects a person’s rights, as by criminalizing an action that was legal when it was committed’⁵⁸.

Its rationale is that the community may punish persons only for acts which it has declared by law to be evil. That moral judgment must be transformed into a specific obligation with defined consequences for its breach. This article accepts the reality that the community may change that moral judgment. But it can do so only through law, *i. e.*, via legislation of general application. When that more severe morality becomes a law while a person is being tried, and that law is applied to him or her, the community’s judgment in that context loses its general character. The danger therefore is that, when a community decides to punish an offense more sternly, a parliamentary act can effectively ‘target’ an individual and thus partake of a judicial character, and the law, though general on-its-face, becomes a bill of attainder⁵⁹ as- applied. On the other hand, focusing on the fairness standard, an *ex post facto* law fails the test of foreseeability⁶⁰ in that the individual is unable to know beforehand the full consequences of his act, and can be held to account only under the terms by which the act was punishable at the time it was committed.

2. Persons entitled to the benefit of more favorable law

However, Article 24 para. 2 actually requires the retroactive application of ‘the law more favourable to the person being investigated, prosecuted, convicted’, embodying the element of *lex mitior*.⁶¹ There are two aspects to the temporal requirements for the application of the

Preliminary Objections, Series C No. 27, IACtHR, 2 July 1996; *Serrano-Cruz Sisters v. El Salvador*, Preliminary Objections, Judgment of November 23, 2004, Series C No. 118, IACtHR, 23 Nov. 2004.

⁵⁷ *E. g.*, U.S. Const., article I § 9.3 states *Duke/Comp&IL*: ‘No Bill of Attainder or ex post facto Law shall be passed’. See also Bassiouni (1993) 3 235.

⁵⁸ Garner and Black (eds.), *Black’s Law Dictionary* (Thomson West 9th edition 2009) 661.

⁵⁹ *Id.* defines bills of attainder as: ‘1. A special legislative act that imposes a death sentence on a person without a trial. 2. A special legislative act prescribing punishment, without a trial, for a specific person or group’ (188).

⁶⁰ Preparatory Committee (Consolidated) Draft, note 35.

⁶¹ See Ambos, *Treatise ICL I* (2013) 90.

lex mitior. The first is that there must be ‘a change in the law applicable to a given case prior to a final judgement.’ The second is that, by extending the *lex mitior* to ‘the person being ... convicted’, this provision can be invoked at *any* stage of the proceedings, provided the first requirement is met, that is to say, even after the person has been convicted, provided that the finding of guilt is still susceptible to or, or subject of, an Appeal under article 81.

Article 25

Individual criminal responsibility

1. The Court shall have jurisdiction over natural persons pursuant to this Statute.
2. A person who commits a crime within the jurisdiction of the Court shall be individually responsible and liable for punishment in accordance with this Statute.
3. In accordance with this Statute, a person shall be criminally responsible and liable for punishment for a crime within the jurisdiction of the Court if that person:
 - (a) Commits such a crime, whether as an individual, jointly with another or through another person, regardless of whether that other person is criminally responsible;
 - (b) Orders, solicits or induces the commission of such a crime which in fact occurs or is attempted;
 - (c) For the purpose of facilitating the commission of such a crime, aids, abets or otherwise assists in its commission or its attempted commission, including providing the means for its commission;
 - (d) In any other way contributes to the commission or attempted commission of such a crime by a group of persons acting with a common purpose. Such contribution shall be intentional and shall either:
 - (i) Be made with the aim of furthering the criminal activity or criminal purpose of the group, where such activity or purpose involves the commission of a crime within the jurisdiction of the Court; or
 - (ii) Be made in the knowledge of the intention of the group to commit the crime;
 - (e) In respect of the crime of genocide, directly and publicly incites others to commit genocide;
 - (f) Attempts to commit such a crime by taking action that commences its execution by means of a substantial step, but the crime does not occur because of circumstances independent of the person's intentions. However, a person who abandons the effort to commit the crime or otherwise prevents the completion of the crime shall not be liable for punishment under this Statute for the attempt to commit that crime if that person completely and voluntarily gave up the criminal purpose.
- 3bis. In respect of the crime of aggression, the provisions of this article shall apply only to persons in a position effectively to exercise control over or to direct the political or military action of a State.
4. No provision in this Statute relating to individual criminal responsibility shall affect the responsibility of States under international law.

Literature: Agbor, A. A., 'The Substantial Contribution Requirement: The Unfortunate Outcome of an Illogical Construction and Incorrect Understanding of Article 6(1) of the Statute of the ICTR', (2012) 12 *ICLRev* 155; *id.*, 'The Problematic Jurisprudence on Instigation under the Statute of the ICTR: The Consistencies, Inconsistencies and Misgivings of the Trial and Appeal Chambers of the ICTR', (2013) 13 *ICLRev* 429; Ambos, K., 'Tatherrschaft durch Willensherrschaft kraft organisatorischer Machtapparate', (1998) 145 *GA* 226; *id.*, 'General Principles of Criminal Law in the Rome Statute', (1999) 9 *CLF* 1; *id.*, 'Individual Criminal Responsibility in International Criminal Law', in: McDonald, G.K. and Swaak-Goldman, O. (eds.), *Substantive and Procedural Aspects of International Criminal Law: A Commentary* (Kluwer Law International 2000) 1; *id.*, 'Beihilfe durch Alltagshandlungen', (2000) 32 *JA* 721; *id.*, 'Verbrechenselemente' sowie Verfahrens- und Beweisregeln des Internationalen Strafgerichtshofs', (2001) 54 *NJW* 405; *id.*, 'Immer mehr Fragen im internationalen Strafrecht', (2001) 21 *NSiZ* 628; *id.*, 'Superior Responsibility (Art. 28)', in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (OUP 2002) 805; *id.*, 'Other Grounds for Excluding Criminal Responsibility', in: *ibid.* (OUP 2002) 1003; *id.*, 'Some Preliminary Reflections on the Mens Rea Requirements of the Crimes of the ICC-Statute and of the Elements of Crimes', in: L.C. Vohrah *et al.* (eds.), *Man's Inhumanity to Man – Essays in Honour of A. Cassese* (Kluwer Law International 2003) 11; *id.*, 'Zwischenbilanz im Milošević-Verfahren', (2004) 59 *JZ* 965; *id.*, *La parte general del derecho penal internacional* (Temis 2005); *id.*, 'Remarks on the General Part of International Criminal Law', (2006) 4 *JICJ* 660; *id.*, 'Joint Criminal Enterprise and Command Responsibility', (2007) 5 *JICJ* 159; *id.*, 'Critical Issues in the Bemba Confirmation Decision', (2009) 22 *LeidenJIL*

715; *id.*, 'Amicus Curiae Brief in the Matter of the Co-Prosecutors' Appeal of the Closing Order Against Kaing Guek Eav 'Duch' Dated 8 August 2008', (2009) 20 *CLF* 353; *id.*, 'Command Responsibility and Organisation-sherrschaft', in: A. Nollkaemper and H. van der Wilt (eds.), *System Criminality in International Law* (CUP 2009) 127; *id.*, 'What does "Intent to Destroy" in Genocide Mean?', (2009) 91 *IREvRC* 833; *id.*, *The Colombian Peace Process and the Principle of Complementarity of the International Criminal Court* (Springer 2010); *id.*, 'The Crime of Aggression after Kampala', (2010) 53 *GYbIL* 463; *id.*, 'Zur Organisation bei der Organisationsherrschaft', in: M. Heinrich *et al.* (eds.), *Festschrift für Claus Roxin zum 80. Geburtstag am 15. Mai 2011* (De Gruyter 2011) 837 [in spanish: 'Sobre la "organización" en el dominio de la organización', (julio de 2011) (3/2011) *In Dret* (Revista para el análisis del derecho) 25 *et seq.*, <www.indret.com>]; *id.*, 'The Fujimori Judgment: A President's Liability for Crimes against Humanity as Indirect Perpetrator by Virtue of an Organized Power Apparatus', (2011) 9 *JICJ* 137; *id.*, 'Some Considerations on the Eichmann Case', in: K. Ambos *et al.* (eds.), *Eichmann in Jerusalem – 50 Years After* (Duncker & Humblot 2012) 123; *id.*, 'The First Judgment of the International Criminal Court (Prosecutor v. Lubanga): A Comprehensive Analysis of the Legal Issues', (2012) 12 *ICLRev* 115; *id.*, 'A Workshop, a Symposium and the Katanga Trial Judgment of 7 March 2014', (2014) 12 *JICJ* 219; *id.*, 'The ICC and Common Purpose: What Contribution is Required Under Article 25(3)(d)?', in: C. Stahn (ed.), *The Law and Practice of the International Criminal Court: A Critical Account of Challenges and Achievements* (OUP 2015) 592–607; Ambos, K. and Malarino, E. (eds.), *Jurisprudencia latinoamericana sobre derecho penal internacional* (KAS 2008); *id.*, 'Adolf Eichmann', in: W. Schabas (ed.), *The Cambridge Companion on International Criminal Law* (CUP 2016) 275–294; Ambos, K. and Njikam, O., 'Charles Taylor's Criminal Responsibility', (2013) 11 *JICJ* 789; Ambos, K. and Othman, M. (eds.), *New Approaches in International Criminal Justice: Kosovo, East Timor, Sierra Leone and Cambodia* (MPIIL 2003); Ambos, K. and Wirth, S., 'The Current Law of Crimes Against Humanity: An Analysis of UNTAET Regulation 15/2000', (2002) 13 *CLF* 1; American Law Institute, *Model Penal Code and Commentaries, Part. I, Vol. I* (1985); Ashworth, A., 'The Scope of Criminal Liability for Omission', (1989) 105 *LQRev* 424; *id.*, *Positive Obligations in Criminal Law* (Hart Publishing 2013); Bartel, R., 'Two Cheers for the ICTY Popovic Et Al. Appeals Judgement: Some Words on the Interplay between IHL and ICL', (2015) *EJIL:TALK!*, <<http://www.ejiltalk.org/two-cheers-for-the-icty-popovic-et-al-appeals-judgement-some-words-on-the-interplay-between-ihl-and-icl/>>, accessed 9 February 2015; Berster, L.C., *Die völkerstrafliche Unterlassungsverantwortlichkeit* (Herbert Litz 2008); *id.*, 'Duty to Act and Commission by Omission in International Criminal Law', (2010) 10 *ICLRev* 619; Boed, R., 'Individual Criminal Responsibility for Violations of Article 3 Common to the Geneva Conventions of 1949 and of Additional Protocol II Thereto in the Case Law of the International Criminal Tribunal for Rwanda', (2002) 13 *CLF* 293; Blumenstock, T. and Pittman, W., 'Prosecutor v. Naser Orić: The International Criminal Tribunal for the Former Yugoslavia Judgment of Srebrenica's Muslim Wartime Commander', (2006) 19 *LeidenJIL* 1077; Burchard, C., 'Ancillary and Neutral Business Contributions to "Corporate-Political Core Crime" – Initial Enquiries Concerning the Rome Statute', (2010) 8 *JICJ* 919; Burghardt, B., *Die Vorgesetztenverantwortlichkeit im völkerrechtlichen Straftatsystem* (BWV 2008); Caro, C., 'Prosecuting international crimes in Peru', (2010) 10 *ICLRev* 583; Cassese, A., 'The Proper Limits of Individual Responsibility under the Doctrine of Joint Criminal Enterprise', (2007) 5 *JICJ* 109; *id.* and Members of the Journal of International Criminal Justice, 'Amicus Curiae Brief of Professor Antonio Cassese and Members of the Journal of International Criminal Justice on Joint Criminal Enterprise Doctrine', (2009) 20 *CLF* 289; Čerčić, J.L., 'Shaping the Spiderweb: Towards the Concept of Joint Commission through another Person under the Rome Statute and Jurisprudence of the International Criminal Court', (2011) 22 *CLF* 539; Clapham, A., 'Extending International Criminal Law beyond the Individual to Corporations and Armed Opposition Groups', (2008) 6 *JICJ* 899; Coco, A. and Gal, T., 'Losing Direction. The ICTY Appeal Chamber's Controversial Approach to Aiding and Abetting in Perisic', (2014) 12 *JICJ* 345; Cryer, R., 'Imputation and Complicity in Common Law States. A (Partial) View from England and Wales', (2014) 12 *JICJ* 267; Danner, A.M. and Martinez, J.S., 'Guilty Associations: Joint Criminal Enterprise, Command Responsibility and the Development of International Criminal Law', (2005) 93 *CalRev* 75; DeFalco, R.C., 'Contextualizing Actus Reus under Article 25(3)(d) of the ICC Statute – Thresholds of Contribution', (2013) 11 *JICJ* 715; Dencker, F., *Kausalität und Gesamttat* (Duncker & Humblot 1996); *id.*, 'Beteiligung ohne Täter', in: C. Prittwitz *et al.* (eds.), *Festschrift für Klaus Lüderssen zum 70. Geburtstag* (2002) 525; Di Martino, A., 'Täterschaft und Teilnahme im Statut des IstGH und Anpassungsbedarf der italienischen Regelung', (2007) 119 *ZStW* 430; Dreher, E., 'Der Paragraph mit dem Januskopf', in: K. Lackner *et al.* (eds.), *Festschrift für Wilhelm Gallas zum 70. Geburtstag* (De Gruyter 1973) 307; Duttwiler, M., 'Liability for Omission in International Criminal Law', (2006) 6 *ICLRev* 1; Eldar, S., 'Indirect Co-Perpetration', (2014) 8 *CrimL&Philos* 605; Eser, A., 'Individual Criminal Responsibility (Art. 25)', in: A. Cassese *et al.* (eds.), *The Rome Statute of the ICC: A Commentary* (OUP 2002) 767; Eser, A., Lagodny, O. and Triffterer, O., *Alternative General Part* <http://www.department-ambos.uni-goettingen.de/index.php/component/option,com_docman/Itemid,56/gid,142/task,cat_view/> accessed 10 February 2014; Farrell, N., 'Attributing Criminal Liability to Corporate Actors – Some Lessons from the International Tribunals', (2010) 8 *JICJ* 873; Finnin, S., *Elements of Accessorial Modes of Liability. Article 25(3)(b) and (c) of the Rome Statute of the International Criminal Court* (Martinus Nijhoff Publishers 2012); Fletcher, G.P., 'New Court, Old Dogmatik', (2011) 9 *JICJ* 179; Fletcher, G.P. and Ohlin, J.D., 'Reclaiming Fundamental Principles of Criminal Law in the Darfur Case', (2005) 3 *JICJ* 539; Gil Gil, A. and Maculan, E., 'Current Trends in the Definition of "Perpetrator" by the ICC: From the Decision on the Confirmation of Charges in the Lubanga case to the Katanga Judgment', (2015) 28 *LeidenJIL* 349; Graven, J., 'Les crime contre l'humanité', (1950) 76 *RCADI* 433; Goy, B., 'Individual Criminal Responsibility before the International Criminal Court', (2012) 12 *ICLRev* 1; Greenawalt, A., 'Rethinking Genocidal Intent: The Case for a Knowledge-Based Interpretation', (1999) 99 *ColRev* 2259; Greenwood, C., 'Command Responsibility and the Hadžihasano-

vić Decision', (2004) 2 *JICJ* 598; Haan, V., 'The Development of the Concept of Joint Criminal Enterprise at the International Criminal Tribunal for the Former Yugoslavia', (2005) 5 *ICLRev* 167; *id.*, *Joint Criminal Enterprise: Die Entwicklung einer mittäterschaftlichen Zurechnungsfigur im Völkerstrafrecht* (Duncker & Humblot 2008); Hale, K. and Cline, D., 'Holding Collectives Accountable', (2014) 25 *CLF* 261; Hamdorf, K., *Beteiligungsmodelle im Strafrecht. Ein Vergleich von Teilnahme- und Einheitstätersystemen in Skandinavien, Österreich und Deutschland* (Ed. iuscrim 2002); Heller, K.J., 'Retreat from Nuremberg: The Leadership Requirement in the Crime of Aggression', (2007) 18 *EJIL* 477; *id.*, 'The Rome Statute of the International Criminal Court', in: K.J. Heller and M.D. Dubber (eds.), *The Handbook of Comparative Criminal Law* (SUP 2011) 593; Herzig, A., 'Die Täterschaftslehre in der Rechtsprechung des Internationalen Strafgerichtshofs', (2013) 4 *ZIS* 189; Heyer, A.K., *Grund und Grenze der Beihilfestrafbarkeit im Völkerstrafrecht – Zugleich ein Beitrag zur Entwicklung eines Wirtschaftsvölkerstrafrechts* (Books on Demand 2013); Hinek, S., 'The Judgment of the International Criminal Tribunal for the Former Yugoslavia in Prosecutor v. Pavle Strugar', (2006) 19 *LeidenJIL* 477; Jain, N., *Perpetrators and Accessories in International Criminal Law – Individual Modes of Responsibility for Collective Crimes* (Hart 2014); Jakobs, G., *Theorie der Beteiligung* (Mohr Siebeck 2014); Jescheck, H.-H., 'Die internationale Genocidum-Konvention vom 9. Dezember 1948 und die Lehre vom Völkerstrafrecht', (1954) 66 *ZStW* 193; Jessberger, F. and Geneuss, J., 'On the Application of a Theory of Indirect Perpetration in Al Bashir', (2008) 6 *JICJ* 853; Jones, J., 'Whose intent is it anyway?', in: L.C. Vohrah *et al.* (eds.), *Man's Inhumanity to Man – Essays in Honour of A. Cassese* (Kluwer Law International 2003) 467; Jones, J.R.W.D., Heller, K.J. and van Sliedregt, E., 'Milestones in International Criminal Justice: Recent Legal Controversies at the UN Yugoslav Tribunal' (2013) <<http://www.chathamhouse.org/sites/files/chathamhouse/public/Meetings/Meeting%20Transcripts/161013Yugoslav1.pdf>> accessed 22 October 2014; Jordash, W., 'Joint Criminal Enterprise Liability – Result Orientated Justice', in: W.A. Schabas *et al.* (eds.), *The Ashgate Research Companion to International Criminal Law–Critical Perspectives* (Ashgate 2013) 133; Kacker, D., 'Coming Full Circle: The Rome Statute and the Crime of Aggression', (2010) 33 *SuffolkTransnatLRev* 257; Kearney, M.G., 'Any other Contribution? Ascribing Liability for Cover-Ups of International Crimes', (2013) 24 *CLF* 331; Kolb, R., 'Droit international pénal', in: *id.* and D. Scalia (eds.), *Droit International Pénal* (Helbig and Lichtenhahn 2nd edition 2012), 1; Kremnitzer, M., 'A Possible Case for Imposing Criminal Liability on Corporations in International Criminal Law', (2010) 8 *JICJ* 909; Krefß, C., 'Die Kristallisation eines Allgemeinen Teils des Völkerstrafrechts: Die Allgemeinen Prinzipien des Strafrechts im Statut des Internationalen Strafgerichtshofs', (1999) 12 *HuV-I* 4; *id.*, 'Claus Roxins Lehre von der Organisation-sherrschaft und das Völkerstrafrecht', (2006) 153 *GA* 304; *id.*, 'The Darfur Report and Genocidal Intent', (2005) 3 *JICJ* 562; Kunz, J.L., 'The United Nations Convention on Genocide', (1949) 43 *AJIL* 732; Laucci, C., *Digest of Jurisprudence of the Special Court for Sierra Leone 2003–2005* (2007); Lemkin, R., 'Genocide as a Crime under International Law', (1947) 41 *AJIL* 145; Manacorda, S. and Meloni, C., 'Indirect Perpetration versus Joint Criminal Enterprise: Concurring Approaches in the Practice of International Criminal Law', (2011) 9 *JICJ* 159; Mantovani, F., 'The General Principles of International Criminal Law: The viewpoint of a national criminal lawyer', (2003) 1 *JICJ* 26; Marsh, L. and Ramsden, M., 'Joint Criminal Enterprise: Cambodia's Reply to Tadić', (2011) 11 *ICLRev* 137; Marxen, K., 'Beteiligung an schwerem systematischem Unrecht. Bemerkungen zu einer völkerstrafrechtlichen Straftatlehre', in: K. Lüderssen (ed.), *Aufgeklärte Kriminalpolitik oder Kampf gegen das Böse?*, iii: *Makrodelinquenz* (Nomos 1998) 220; Meyer, F., 'Multinationale Unternehmen und das Völkerstrafrecht', (2013) 131 *SchwZStR* 56; Militello, V., 'The personal nature of individual criminal responsibility and the ICC Statute', (2007) 5 *JICJ* 941; Mitgutsch, I., 'Die Beteiligungsregelung des Römischen Statuts im Lichte der jüngsten Rechtsprechung des Internationalen Strafgerichtshofs', in: C. Geisler *et al.* (eds.), *Festschrift für Klaus Geppert* (De Gruyter 2011) 357; Murrmann, U., 'Problems of Causation with Regard to (Potential) Actions of Multiple Protagonists', (2014) 12 *JICJ* 283; Nseroko, D.N., 'Aggression under the Rome Statute of the International Criminal Court', (2002) 4 *NordJIL* 497; Obote-Odora, A., 'Complicity in Genocide as Understood through the ICTR Experience', (2002) 2 *ICLRev* 301; Ohlin, J.D., 'Three Conceptual Problems with the Doctrine of Joint Criminal Enterprise', (2007) 5 *JICJ* 69; *id.*, 'Joint Criminal Confusion', (2009) 12 *NCLRev* 406; *id.*, 'Searching for the Hinterman. In Praise of Subjective Theories of Imputation', (2014) 12 *JICJ* 325; Ohlin, J.D., van Sliedregt, E. and Weigend, T., 'Assessing the Control-Theory', (2013) 26 *LeidenJIL* 725; Olásolo, H., 'Joint Criminal Enterprise and its Extended Form: A Theory of Co-Perpetration giving rise to Principal Liability, A Notion of Accessorial Liability, or a form of Partnership in Crime?', (2009) 20 *CLF* 263; *id.*, *The Criminal Responsibility of Senior Political and Military Leaders as Principals to International Crimes* (Hart Publishing 2009); Osiel, M., 'The Banality of the Good: Aligning Incentives against Mass Atrocity', (2005) 105 *ColLRev* 1751; Park, G., *Rechtsnatur, Konkrete Voraussetzungen und Legitimität der Beteiligungsform gemäß Art. 25 Abs. 3 lit. (d) IStGHs* (Duncker & Humblot 2016 [forthcoming]); Pelletier, H. and Perfetti, J., *Code Pénal 1997–1998* (Litec 10th edition 1997); Piacente, N., 'Importance of the JCE Doctrine for the ICTY Prosecutorial Policy', (2004) 2 *JICJ* 448; Provost, R., 'Amicus Curiae Brief on Joint Criminal Enterprise in the Matter of the Co-Prosecutors' Appeal of the Closing Order against Kaing Guek Eve 'Duch' Dated 8 August 2008', (2009) 20 *CLF* 331; Rackow, P., *Neutrale Handlungen als Problem des Strafrechts* (Peter Lang 2007); Radtke, H., 'Mittelbare Täterschaft kraft Organisation-sherrschaft im nationalen und internationalen Strafrecht', (2006) 153 *GA* 350; Rayfuse, R., 'The Draft Code of Crimes against the Peace and Security of Mankind: Eating Disorders at the International Law Commission', (1997) 8 *CLF* 43; Robinson, P.H., 'Criminal Liability for Omissions: A Brief Summary and Critique of the Law in the United States', (1984–1985) 29 *NYLSchLRev* 101; Rotsch, T., 'Einheitstäterschaft' statt Täterschaft (Mohr Siebeck 2009); *id.*, 'Neues zur Organisationsherrschaft', (2005) 25 *NSiZ* 13; Roxin, C., *Strafrecht. Allgemeiner Teil, i: Grundlagen. Der Aufbau der Verbrechenslehre* (C.H. Beck 4th ed. 2007); *id.*, *Strafrecht. Allgemeiner Teil, ii: Besondere Erscheinungsformen der Straftat* (C.H. Beck 2003); *id.*, 'The Dogmatic Structure of Criminal Liability in

the General Part of the Draft Israeli Penal Code – A Comparison with German Law’, (1996) 30 *IsLRev* 60; *id.*, ‘Organisationsherrschaft als eigenständige Form mittelbarer Täterschaft’, (2007) 125 *SchwZStR* 1; *id.*, ‘Organisationssteuerung als Erscheinungsform mittelbarer Täterschaft’, in: K. Amelung *et al.* (eds.), *Festschrift für Volker Krey zum 70. Geburtstag am 9. Juli 2010* (Kohlhammer 2010) 449; *id.*, ‘Crimes as Part of Organized Power Structures’ (2011) 9 *JICJ* 193; Sadat, L.N. and Jolly, J.M., ‘International Criminal Courts and Tribunals – Seven Canons of ICC Treaty Interpretation: Making Sense of Article’s 25 Rorschach Blot’, (2014) 27 *LeidenJIL* 755; Saland, P., ‘International criminal law principles’, in: R.S. Lee (ed.), *The International Criminal Court. The Making of the Rome Statute. Issues, Negotiations, Results* (Kluwer Law International 1999) 189; Satō, H., ‘International Criminal Responsibility Concerning ‘Control over an Organization’ and Command Responsibility’, (2012) 12 *ICLRev* 293; Schabas, W.A., ‘General Principles of Criminal Law in the International Criminal Court Statute (Part III)’, (1998) 6 *EJCLCJ* 400; *id.*, *The Crime of Genocide in the Jurisprudence of the ICTY and ICTR*, in: H. Fischer *et al.* (eds.), *International and National Prosecution of Crimes Under International Law* (Berlin Verlag Arno Spitz 2001) 447; *id.*, *The UN International Criminal Tribunals* (CUP 2006); Schünemann, B., *Grund und Grenzen der unechten Unterlassungsdelikte* (Schwartz 1971); *id.*, ‘Schrumpfende Basis, wuchernder Überbau? – Zum Schicksal der Täterschaftsdoktrin nach 50 Jahren’, in: M. Heinrich *et al.* (eds.), *Festschrift für Claus Roxin zum 80. Geburtstag am 15. Mai 2011* (De Gruyter 2011) 799; Sereni, A., ‘Individual Criminal Responsibility’, in: F. Lattanzi (ed.), *The International Criminal Court: Comments on the Draft Statute* (Editoriale Scientifica 1998) 139; Spinedi, M. and Simma, B., *United Nations Codification of State Responsibility* (Oceana 1987); Stahn, C., ‘Justice Delivered or Justice Denied? The Legacy of the Katanga Judgment’, (2014) 12 *JICJ* 809; Stegmüller, I., *The Pre-Investigation Stage of the ICC* (Duncker & Humblot 2011); Stewart, J.G., ‘The End of “Modes of Liability” for International Crimes’, (2012) 25 *LeidenJIL* 165; *id.*, ‘The Important New Orthodoxy on Complicity in the ICC Statute’, 21 January 2015, <<http://jamesgstewart.com/the-important-new-orthodoxy-on-complicity-in-the-icc-statute/>> (last visited 31 January 2015); Stewart, M.J., ‘How Making the Failure to Assist Illegal Fails to Assist: An Observation of Expanding Criminal Omission Liability’, (1998) 25 *AmJCrImL* 385; Stree, W. and Bosch, N., ‘Vorbemerkungen zu den §§ 13 ff.’, in: A. Eser *et al.* (eds.), *Schönke/Schröder Kommentar zum Strafgesetzbuch* (C.H. Beck 29th edition 2014); Stuckenberg, C.-F., ‘Problems of “Subjective Imputation” in Domestic and International Criminal Law’, (2014) 12 *JICJ* 311; Triffterer, O., *Österreichisches Strafrecht. Allgemeiner Teil* (Springer 2nd edition 1994); *id.*, ‘Bestandsaufnahme zum Völkerstrafrecht’, in: Hankel, G. and Stuby, G. (eds.), *Strafgerichte gegen Menschheitsverbrechen* (Hamburger Edition 1995) 169; *id.*, ‘Acts of Violence and International Criminal Law – A New Position of Power to Fight Abuse of Power’, (1997) 4 *CroatianAnnCrimL&Prac* 811; *id.*, ‘Genocide, its Particular Intent to Destroy in Whole or in Part the Group as Such’, (2001) 14 *LeidenJIL* 399; *id.*, ‘Kriminalpolitische und dogmatische Überlegungen zum Entwurf gleichlautender “Elements of Crimes” für alle Tatbestände des Völkermords’, in: M. Heinrich *et al.* (eds.), *Festschrift für Claus Roxin zum 80. Geburtstag am 15. Mai 2011* (De Gruyter 2011) 1438; *id.*, ‘Command responsibility, Article 28 Rome Statute. An Extension of Individual Criminal Responsibility for Crimes within the Jurisdiction of the Court – Compatible with Article 22, nullum crimen sine lege?’, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (C.F. Müller 2004) 213; *id.*, ‘“Command Responsibility” – Crimen Sui Generis or Participation “as Otherwise Provided” in Art. 28 Rome Statute’, in: J. Arnold *et al.* (eds.), *Menschengerechtes Strafrecht. Festschrift für Albin Eser zum 70. Geburtstag* (C.H. Beck 2005) 901; *United Nations Conference for the Adoption of a Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances, Official Records*, ii (United Nations Publications 1988); United Nations War Crimes Commission (ed.), *Law Reports of Trials of War Criminals*, xv (1948); van den Wyngaert, C., ‘The Structure of the Draft Code and the General Part’, in: M.C. Bassiouni (ed.), *Commentaries on the International Law Commission’s 1991 Draft Code of Crimes Against the Peace and Security of Mankind* (Érés 1993); van den Herik, L. and Letnar Cernic, J., ‘Regulating Corporations under International Law – From Human Rights to International Criminal Law and Back Again’, (2010) 8 *JICJ* 725; van der Wilt, H., ‘Genocide v. War Crimes in the Van Anraat Appeal’, (2008) 6 *JICJ* 557; *id.*, ‘The Continuous Quest for Proper Modes of Criminal Responsibility’, (2009) 7 *JICJ* 307; van Sliedregt, E., *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (CUP 2003); *id.*, ‘System Criminality at the ICTY’, in: A. Nollkaemper and H. van der Wilt (eds.), *System Criminality in International Law* (CUP 2009) 183; *id.*, *Individual Criminal Responsibility in International Law* (OUP 2012); Vest, H., ‘Humanitätsverbrechen – Herausforderung für das Individualstrafrecht?’, (2001) 113 *ZStW* 457; *id.*, *Genozid durch organisatorische Machtapparate. An der Grenze von individueller und kollektiver Verantwortlichkeit* (Nomos 2002); *id.*, ‘Business Leaders and the Modes of Individual Criminal Responsibility under International Law’, (2010) 8 *JICJ* 851; *id.*, *Völkerrechtsverbrecher verfolgen* (Nomos 2011); *id.*, ‘Kurswechsel am Jugoslawientribunal?’, (2014) 132 *SchZStR* 61; *id.*, ‘Problems of Participation – Unitarian, Differentiated Approach, or Something Else?’, (2014) 12 *JICJ* 295; Weigend, T., ‘Article 3: Responsibility and Punishment’, in: M.C. Bassiouni (ed.), *Commentaries on the International Law Commission’s 1991 Draft Code of Crimes Against the Peace and Security of Mankind* (Érés 1993) 113; *id.*, ‘Bemerkungen zur Vorgesetztenverantwortlichkeit im Völkerstrafrecht’, (2004) 116 *ZStW* 999; *id.*, ‘Intent, Mistake of Law, and Co-perpetration in the Lubanga Decision on Confirmation of Charges’, (2008) 6 *JICJ* 471; *id.*, ‘Societas delinquere non potest?’, (2008) 6 *JICJ* 927; *id.*, ‘Perpetration through an Organization: The Unexpected Career of a German Legal Concept’, (2011) 9 *JICJ* 91; *id.*, ‘Problems of Attribution in International Criminal Law. A German Perspective’, (2014) 12 *JICJ* 253; Weißer, B., *Täterschaft in Europa: Ein Diskussionsvorschlag für ein europäisches Tätermodell auf der Basis einer rechtsvergleichenden Untersuchung der Beteiligungssysteme Deutschlands, Englands, Frankreichs, Italiens und Österreichs* (Mohr Siebeck 2011); Weltz, K., *Die Unterlassungshaftung im Völkerstrafrecht, eine rechtsvergleichende Untersuchung des französischen, US-amerikanischen und deutschen Rechts* (Edition Iuscrim 2004); Werle, G., ‘Individual Criminal Responsibility in

Article 25 ICC Statute', (2007) 5 *JICJ* 953; *id.*, 'Establishing Degrees of Responsibility: Modes of Participation in Article 25 of the ICC Statute', in: E. van Sliedregt and S. Vasiliev (eds.), *Pluralism in International Criminal Law* (OUP 2014), 301; *id.*, 'Täterschaft und Teilnahme im Statut des Internationalen Strafgerichtshofs', in: M. Heger, B. Kelker, and E. Schramm (eds.), *Festschrift für Kristian Kühl zum 70. Geburtstag* (C.H. Beck, 2014), 851; Werle, G. and Burghardt, B., 'Die mittelbare Mittäterschaft – Fortentwicklung deutscher Strafrechtsdogmatik im Völkerstrafrecht?', in: R. Bloy *et al.* (eds.), *Festschrift für Manfred Maiwald zum 75. Geburtstag* (Duncker & Humblot 2011) 849; Williamson, J., 'Command Responsibility in the Case law of the International Criminal Tribunal of Rwanda', (2002) 13 *CLF* 365; Wirth, S., 'Co-Perpetration in the Lubanga Trial Judgment', (2012) 10 *JICJ* 971; Wise, E.M., 'Part 3: General Principles of Criminal Law', in: Sadat Wexler, L. (ed.), *Model Draft Statute for the International Criminal Court Based on the Preparatory Committee's Text to the Diplomatic Conference* (Érés 1998) 39.

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A. Introduction/General remarks

The provision, in particular paragraphs 1 and 2, confirms the universal acceptance of the principle of individual criminal responsibility as recognized by the International Military Tribunal¹ and reaffirmed by the ICTY in the *Tadić* jurisdictional decision with regard to

¹ In *The Trial of the Major War Criminals* (Proceedings of the International Military Tribunal sitting at Nuremberg, Germany, H. M. Attorney General by HMSO, London 1950, Part 22, 447) it was held that individual criminal responsibility has 'long been recognized' and further stated: 'enough has been said to show that individuals can be punished for violations of International Law. Crimes against International Law are committed by men not by abstract entities, and only by punishing individuals who commit such crimes can the provisions of International Law be enforced'.

individual criminal responsibility for violations of common article 3 of the Geneva Conventions². The drafting history has been described elsewhere³.

- 2 Subparagraphs (a)–(c) of paragraph 3 establish the basic concepts of individual criminal attribution⁴. Subparagraph (a) refers to three forms of perpetration: on one's own, as a co-perpetrator or through another person (perpetration by means, *mittelbare Täterschaft*). Subparagraph (b) contains different forms of participation: on the one hand, ordering an (attempted) crime, on the other soliciting or inducing its (attempted) commission. Subparagraph (c) establishes criminal responsibility for 'aiding and abetting' as the subsidiary form of participation. Thus, in contrast to the ILC Draft Codes of Crimes against the Peace and Security of Mankind⁵, the Statutes of the *ad hoc* Tribunals and the so-called mixed tribunals (Special Court for Sierra Leone and the Cambodian Extraordinary Chambers)⁶, paragraph 3 distinguishes between perpetration (subparagraph (a)) and other forms of participation (subparagraphs (b) and (c)), with the latter establishing different degrees of responsibility⁷. This approach confirms the general tendency in comparative criminal law to reject a pure unitarian concept of perpetration (*Einheitstätermmodell*) and to distinguish, at least on the sentencing level, between different forms of participation⁸. The approach is also followed, albeit less elaborate, by the internationalized panels for East Timor⁹; for example the act of providing the *means* for the commission of a crime is not made explicitly punishable¹⁰. In fact, article 25 differentiates already at the level of allocation of responsibility, at least terminologically, between different forms of participation and thereby follows a unitarian

² *Prosecutor v. Tadić*, No. IT-94-1-AR-72, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, 2 October 1995, paras. 128–137 <<http://www.legal-tools.org/doc/866e17/>> (134): 'All of these factors confirm that customary international law imposes criminal liability for serious violations of common Article 3, as supplemented by other general principles and rules on the protection of victims of internal armed conflict, and for breaching certain fundamental principles and rules regarding means and methods of combat in civil strife'. For an analysis on the case law since Nuremberg, see Ambos, *Der Allgemeine Teil* (2004) 78 *et seq.*; *id.*, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000) 1, 7 *et seq.* See also Triffterer, in: Hankel and Stuby (eds.), *Strafgerichte gegen Menschenverbrechen* (1995) 169, 211–213; Bassiouni, *Introduction to ICL* (2013) 17, 49, 60–1, 66 *et seq.*; Jain, *Perpetrators and Accessories in ICL* (2014), 18 *et seq.* For an analysis of the ICTR's case law, see Boed (2002) 13 CLF 293, 296 *et seq.*

³ Cf. Ambos, *Internationales Strafrecht* (2014) § 6 mn. 21; Bassiouni, *Legislative History* (2005) 3–40; Schabas (1998) 6 EJCLCJ 400. For a good critique of the misnomer 'modes of liability' Stewart (2012) 25 *LeidenJIL* 165, 166 with fn. 2 (who, however, uses the expression then all over his paper).

⁴ See also Ambos, *Internationales Strafrecht* (2014) § 7 mn. 3. For a comprehensive treatment of article 25(3) see *id.*, *Treatise on ICL I* (2013) 144 *et seq.*

⁵ 1954 ILC Draft Code, article 2 para. 13; 1991 ILC Draft Code, article 3; 1996 ILC Draft Code, article 2.

⁶ See article 7 para. 1 *ICTY Statute* (UN Doc. S/RES/827 (1993), in: 14 *HRLJ* 211) and (the identical) article 6 para. 1 *ICTR Statute* (UN Doc. S/RES/955 (1994)): 'A person who planned, instigated, ordered, committed or otherwise aided and abetted in the planning, preparation or execution of a crime ...'. See also article 6 para. 1 *Special Court for Sierra Leone (SCSL) Statute* in Laucci, *Digest of Jurisprudence* (2007) 63, as well as article 29 of the Law on the Establishment of the Extraordinary Chambers in the Courts of Cambodia for the Prosecution of Crimes Committed During the Period of Democratic Kampuchea in Ambos and Othman (eds.), *New Approaches* (2003).

⁷ Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 788 with fn. 86.

⁸ Cf. Triffterer, in: Hankel and Stuby (eds.), *Strafgerichte gegen Menschenverbrechen* (1995) 169, 226; Pradel, *Droit Pénal Comparé* (2008) 317 *et seq.*; Fletcher, *Basic Concepts of Criminal Law* (1998) 188 *et seq.* In a similar vein also Mantovani (2003) 1 *JICJ* 26, 34; Jain, *Perpetrators and Accessories in ICL* (2014), 43–4. There are also different approaches. See e.g. Rotsch, 'Einheitstäterschaft' (2009) who renounces any differentiation between forms of participation and instead advocates, contrary to a traditional unitarian system, a uniform system of imputation that only recognizes the distinction between immediate (direct) and mediate (indirect) violations of legally protected goods. For a even more radically different approach Jakobs, *Beteiligung* (2014) who argues that participation constitutes only a reason of imputation ['Zurechnungsgrund'] and the form of participation – perpetration or secondary participation – only a kind of competence in quantitative terms ['Zuständigkeitsquantitäten']; competence in turns depends on or is linked to certain spheres of organisation ['Organisationskreise'] each person is competent for and must not extend to the detriment of others. This negative duty is complemented by a positive one according to which one has to establish or maintain certain institutions.

⁹ Section 14 of UNTAET Regulation 2000/15 (On the Establishment of Panels with Exclusive Jurisdiction over Serious Criminal Offences) of 6 June 2000 in: Ambos and Wirth (2002) 13 CLF 1–90.

¹⁰ Unlike article 25, paras.3 (c) and (f) of the *ICC Statute* respectively.

concept of perpetration in a functional sense (*funktionelle Einheitstäterschaft*)¹¹ as known, for example, in Austrian and Swedish law¹².

Subparagraphs (d), (e) and (f) provide for expansions of attribution: contributing to the commission or attempted commission of a crime by a group, incitement to genocide, attempt.

Thus, in sum, article 25 para. 3 contains, on the one hand, basic rules of individual criminal responsibility and, on the other, rules expanding attribution (which may or may not still be characterized as specific forms of participation). A *grosso modo*, an individual is criminally responsible if he or she perpetrates, takes part in or attempts to commit a crime within the jurisdiction of the Court (articles 5–8). It must not be overlooked, however, that criminal attribution in international criminal law has to be distinguished from attribution in national criminal law: while in the latter case normally a concrete criminal result caused by a person's individual act is punished, international criminal law creates liability for acts committed in a collective context and systematic manner; consequently the individual's own contribution to the harmful result is not always readily apparent¹³.

¹¹ Advocating a four-layer-system of participation Werle (2007) 5 *JICJ* 953, 957; *id.* and Burghardt, in: Bloy *et al.* (eds.), *Festschrift für Manfred Maiwald* (2011) 849, 853; *id.*, in: van Sliedregt and Vasiliev (eds.), *Pluralism in ICL* (2014), 301, 315 *et seq.*; *id.*, in: Heger, Kelker, and Schramm (eds.), *Festschrift für Kristian Kühl* (2014), 851, Werle and Jessberger, *Principles* (2014) 197. Vest (2010) 8 *JICJ* 851, 856 with fn. 19 addresses the peculiarity of Article 25 (3) by defining it as 'a differentiating model with uniform (unified) range of punishment'. See also *id.*, *Völkerrechts-verbrecher verfolgen* (2011) 179; *id.* (2014) 12 *JICJ* 295, 305 *et seq.*; conc. Gil and Maculan (2015) 28 *LeidenJIL* 351, 362. The *Lubanga* TC followed this approach *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, 14 March 2012, paras. 996–9 (998: '...predominance of principal over secondary liability, which, in turn, supports a notion of principal liability that requires a greater contribution than accessory liability') <<http://www.legal-tools.org/doc/677866/>>. In the same vein, the *Lubanga* AC distinguishes (confusing terminologically, however, 'commit' and 'perpetrate') between perpetration and accessorial responsibility, the former being more blameworthy than the latter (para. 462), which makes it necessary to determine the basis of this distinction (para. 463), *cf.* *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, paras. 462 *et seq.* <<http://www.legal-tools.org/doc/585c75/>>; adopting this view *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 135 <<http://www.legal-tools.org/doc/0536d5/>>. The *Katanga* TC (*Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, TC, 7 March 2014, paras. 1386–7, 1394 *et seq.* <<http://www.legal-tools.org/doc/9813bb/>>) recognizes the inherent distinction between perpetrators and accomplices in the Statute (para. 1387, 1395) and the *control-over-the-act* approach (1394–5), but rejects the normative hierarchy between them (1386–7); *contra* also *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, Separate Opinion of Judge Adrian Fulford, paras. 6–12, who rejects 'a hierarchy... between the modes of liability' (9), which 'were not intended to be mutually exclusive' (7) <<http://www.legal-tools.org/doc/677866/>>; *Prosecutor v. Ngudjolo Chui*, No. ICC-01/04-02/12-4, Judgment, TC, Concurring Opinion of Judge van den Wyngaert, 18 December 2012, paras. 5–6, 17, 22 *et seq.* 66, 70 (who although recognising 'a conceptual difference between principal and accessorial criminal responsibility', rejects their 'different legal treatment' (22)) <<http://www.legal-tools.org/doc/7d5200/>> and *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3464-AnxI, Judgment, TC, Minority Opinion of Judge van den Wyngaert, 7 March 2014, paras. 279–81 <<http://www.legal-tools.org/doc/9b0c61/>>; *contra* also Ohlin, van Sliedregt and Weigend (2013) 26 *LeidenJIL* 725, 728 *et seq.*, 740 *et seq.*, 745–6; Sadat and Jolly (2014) 27 *LeidenJIL* 755, 758, 775, 782, albeit with a too formalistic, international law based reading of article 25 without going into any substantive discussion of the respective forms of participation (785); descriptive on the whole discussion about the structure of Article 25 (3), Stahn (2014) 12 *JICJ* 809, 822 *et seq.*; conc. with Katanga Gil and Maculan (2015) 28 *LeidenJIL* 364 *et seq.* (rejecting 'hierarchy of blameworthiness' [at 365] and focusing on the 'accessory or autonomous nature of the contribution' [366] as the key distinguishing criterion [cf also 363, 370]). In favour of the unitarian model Stewart (2012) 25 *LeidenJIL* 165, 205 *et seq.* who, however, argues on the basis of some incorrect and imprecise assumptions (most importantly the 'Hitler-as-accomplice' assumption, at 167, which runs through the whole paper), takes the Austrian system as his model of a unitarian system (at 205; apparently, despite fn. 194, not fully grasping its functional unitarian orientation similar to Article 25, see next fn.) and, most importantly, does neither provide an analysis of article 25 (apparently assuming that it is based on the differentiated system) nor further elaborates on his (alternative) 'theory'; previously Kreß (1999) 9 *HuV-I* 4, 12 (interpreting article 25 as a unitarian model). Leaving it open Mitgutsch, in: Geisler *et al.* (eds.), *Festschrift für Klaus Geppert* (2011) 357, 373–4 (concluding that article 25 could be understood either as a unitarian or a differentiated model).

¹² For profound comparative studies see Hamdorf, *Beteiligungsmodele* (2002) 43 *et seq.*, 75 *et seq.*, 104 *et seq.*; Ambos, *Der Allgemeine Teil* (2004) 543 *et seq.*; Weißer, *Täterschaft in Europa* (2011); on the English and German law Jain, *Perpetrators and Accessories in ICL* (2014), 103 *et seq.* and 166 *et seq.* (perpetrator), 155 *et seq.* and 176 *et seq.* (accessory).

¹³ See – for a first attempt to develop a theory of attribution in international criminal law – Marxen, in: Lüderssen (ed.), *Aufgeklärte Kriminalpolitik* (1998) 220, 226 *et seq.* On the peculiarities on attribution in

B. Analysis and interpretation of elements

I. Paragraph 1

- 4 As far as the jurisdiction over natural persons is concerned, paragraph 1 states the obvious. Already the International Military Tribunal found that international crimes are ‘committed by men not by abstract entities’¹⁴. However, the decision whether to include ‘legal’ or ‘juridical’ persons within the jurisdiction of the court was controversial. The French delegation argued strongly in favour of inclusion since it considered it to be important in terms of restitution and compensation orders for victims¹⁵. The final proposal presented to the Working Group was limited to private corporations, excluding States and other public and non-profit organizations¹⁶. Further, it was linked to the individual criminal responsibility of a leading member of a corporation who was in a position of control and who committed the crime acting on behalf of and with the explicit consent of the corporation and in the course of its activities. Despite this rather limited liability, the proposal was rejected for several reasons, which as a whole are quite convincing. The inclusion of collective liability would detract from the Court’s jurisdictional focus, which is on individuals. Furthermore, the Court would be confronted with serious and ultimately overwhelming problems of evidence. In addition, there are not yet universally recognized common standards for corporate liability; in fact, the concept is not even recognized in some major criminal law systems¹⁷. Consequently, the absence of corporate criminal liability in many States would render the principle of complementary (article 17)¹⁸ unworkable. Despite these reasons, there are increasingly voices who advocate the recognition of the responsibility of legal persons in international criminal law and under the ICC Statute¹⁹.

II. Paragraph 2

- 5 The provision repeats the principle of individual criminal responsibility. A person may ‘commit’ a crime by the different modes of participation and expansions of attribution set out in the following paragraph 3. In other words, commission in this context is not limited to perpetration within the meaning of paragraph 3 (a). ‘A *crime* within the jurisdiction of the Court’ refers to genocide, crimes against humanity, war crimes and the recently defined crime of aggression according to articles 5 to 8*bis*. The possible ‘*punishment*’ follows from article 77: imprisonment up to a maximum of 30 years or life imprisonment, additionally a fine and forfeiture of proceeds²⁰.

international criminal law see also Ambos, *Der Allgemeine Teil* (2004) 539 *et seq.* and *passim*; *id.* (2006) 4 *JICJ* 660, 663; Ambos, *Internationales Strafrecht* (2014) § 7, mn. 11.

¹⁴ See already note 1.

¹⁵ UN Doc. A/CONF.183/C.1/L.3 (1998), article 23 paras. 5 and 6. See also Wise, in: Sadat Wexler (ed.), *Model Draft Statute* (1998) 39, 42; Sereni, in: Lattanzi (ed.), *The ICC: Comments* (1998) 139, 145–6; Schabas (1998) 6 *EJCLCJ* 400, 409 *et seq.*

¹⁶ UN Doc. A/CONF.183/C.1/WGGP/L.5 (1998).

¹⁷ Cf. Eser *et al.* (eds.), *Einzelverantwortung und Mitverantwortung* (1998); Pradel, *Droit Pénal Comparé* (2008) 163 *et seq.*

¹⁸ Cf. Schabas and El Zeidy, *article 17*, mn. 1 *et seq.* and 21 *et seq.* (in this volume).

¹⁹ Clapham (2008) 6 *JICJ* 899, 926; van den Herik and Letnar Cernic (2010) 8 *JICJ* 725; Farrell (2010) 8 *JICJ* 873; Kremnitzer, 2010) 8 *JICJ* 909; crit. Weigend (2008) 6 *JICJ* 927, 944–5.

²⁰ See also rules 145–148 of the Rules of Procedure and Evidence as finally adopted by the Preparatory Commission, PCNICC/2000/1/Add.1, 2 November 2000. For a study on sentencing in international criminal law see Nemitz, *Strafzumessung im Völkerstrafrecht* (2002).

III. Paragraph 3

The chapeau repeats paragraph 2 and serves as an introduction to the modes of participation and commission set out in subparagraphs (a) to (f). 6

1. Perpetration, co-perpetration and perpetration by means

a) ‘commits ... as an individual ... jointly with another or through another person’. The first part of subparagraph (a) distinguishes between three forms of perpetration: direct or immediate perpetration (‘as an individual’), co-perpetration (‘jointly with another’) and perpetration by means (‘through another person’). 7

The characterization of **direct perpetration** as committing a crime ‘as an individual’ is unfortunate since it does not make clear that the direct perpetrator acts on his or her own without relying on or using another person²¹. As it stands, the formulation only repeats the principle of individual responsibility. While the original French version (‘à titre individuel’) was more precise, the new one (‘individuellement’) is identical to the English one; thus, only the Spanish version (‘por sí solo’) clearly refers to the concept of direct perpetration²². This view was also taken by ACs of the *ad hoc* Tribunals. In *Tadić*, it was held that the word ‘committed’ as used in article 7 para. 1 ICTY Statute means ‘first and foremost the physical perpetration ... by the offender himself’²³. Similarly, in *Celebici* it was stated that ‘commission’ constitutes primary or direct responsibility²⁴. It must not be overlooked, however, that the term ‘committed’ as such is broad enough to include the other forms of perpetration contained in subparagraph (a), especially if they are not explicitly mentioned, as is the case with articles 7 para. 1 and 6 para. 1 of the ICTY and ICTR Statutes respectively²⁵. In fact, the case law of the *ad hoc* Tribunals employs such a broad definition as will be seen below (mn. 9).

²¹ See American Law Institute, *Model Penal Code and Commentaries* (1985) § 2.06 (1): ‘committed by his own conduct’; good introduction by Dubber, *Criminal Law: Model Penal Code* (2002) 1 *et seq.*, Spanish Penal Code (Código Penal, Ley Orgánica 10/1995, de 23 November 1995), article 28: ‘por sí solo’; German Penal Code (trans. by Darby, *Penal Code of the Federal Republic of Germany. The American Series of Foreign Penal Codes* (1987) § 25 (1): ‘selbst ... begeht’ (‘acting himself’).

²² Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 789 with fn. 89.

²³ *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 188 <<http://www.legal-tools.org/doc/8efc3a/>>. Conc. *Prosecutor v. Kordić and Čerkez*, No. IT-95-14/2-T, Judgment, TC, 26 February 2001, para. 376: ‘direct personal or physical participation’ <<http://www.legal-tools.org/doc/d4fedd/>>; *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, para. 73 <<http://www.legal-tools.org/doc/1a994b/>>; *Prosecutor v. Vasiljević*, No. IT-98-32-T, Judgment, TC, 29 November 2002, para. 62 <<http://www.legal-tools.org/doc/8035f9/>>; *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-T, Judgment, TC, 31 March 2003, para. 62 <<http://www.legal-tools.org/doc/f2cfef/>>; *Prosecutor v. Blagojević and Jokić*, No. IT-02-60-T, Judgment, TC, 17 January 2005, para. 694 <<http://www.legal-tools.org/doc/7483f2/>>; *Prosecutor v. Muvunyi*, No. ICTR-2000-55A-T, Judgment and Sentence, TC, 12 September 2006, para. 463 <<http://www.legal-tools.org/doc/fa02aa/>>. See recently *Prosecutor v. Haradinaj et al.*, TC, TJ, No. IT-04-84bis-T, 29 November 2012, para. 615 <<http://www.legal-tools.org/doc/1bad7b/>>; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, para. 884 <<http://www.legal-tools.org/doc/445e4e/>>; *Prosecutor v. Sainović et al.*, No. IT-05-87-A, Judgment, AC, 23 January 2014, para. 265 with fn. 761 (referring to the principal perpetrators as the physical perpetrators) <<http://www.legal-tools.org/doc/81ac8c/>>; *Prosecutor v. Karemera and Ngirumpatse*, No. ICTR-98-44-T, Judgment and Sentence, TC, 2 February 2012, para. 1432 <<http://www.legal-tools.org/doc/5b9068/>>.

²⁴ *Prosecutor v. Delalić et al.*, No. IT-96-21-A, Judgment, AC, 20 February 2001, paras. 342 *et seq.* (346) <<http://www.legal-tools.org/doc/051554/>>.

²⁵ See *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, TC, 31 July 2003, paras. 438 *et seq.* <<http://www.legal-tools.org/doc/32ecfb/>>, esp. 439 where ‘committing’ is defined as participating ‘physically or otherwise directly or indirectly’. The AC of *Prosecutor v. Seromba*, No. ICTR-2001-66-A, Judgment, AC, 12 March 2008 <<http://www.legal-tools.org/doc/b4df9d/>>, also clarified that ‘committing is not limited to direct and physical perpetration’ (para. 161). The correct legal standard has to ask if the actions done were as much ‘an integral part’ of the crime as the direct and physical actions (para. 206), citing *Prosecutor v. Gacumbitsi*, No. ICTR-2001-64-A, Judgment, AC, 7 July 2006, para. 60 <<http://www.legal-tools.org/doc/aa51a3/>>. See recently *Prosecutor v. Haradinaj et al.*, TC, TJ, No. IT-04-84bis-T, 29 November 2012, para. 615 <<http://www.legal-tools.org/doc/1bad7b/>>; *Prosecutor v. Stanisic and Simatovic*, No. IT-03-69-T, Judgment Vol. II, TC, 30 May 2013, paras. 1254 *et seq.*

- 8 Co-perpetration is no longer included in the complicity concept, but rather is recognized as an autonomous form of perpetration²⁶. It is characterized by a functional division of the criminal tasks between the different (at least two) co-perpetrators, who are normally inter-related by a common plan or agreement. Every co-perpetrator fulfils a certain task which contributes to the commission of the crime and without which the commission would not be possible. The common plan or agreement forms the basis of a reciprocal or mutual attribution of the different contributions holding every co-perpetrator responsible for the whole crime²⁷.
- 9 The ICTY has in the meantime decided a significant number of cases dealing with this form of participation. First and foremost, the *Tadić* AC, *inter alia* referring to article 25 para. 3 Rome Statute, held that co-perpetration is contained in article 7 para. 1 ICTY Statute and constitutes a form of participation that is particularly necessary in order to cope with international crimes since ‘most of ... these crimes do not result from the criminal propensity of single individuals but constitute manifestations of collective criminality: the crimes are often carried out by groups or individuals acting in pursuance of a common criminal design’²⁸. It further distinguished *three categories* of collective criminality on the basis of the case law thereby, creating the today infamous *Joint Criminal Enterprise* (‘JCE’) liability: *first*, the *basic* form where the participants act on the basis of a ‘common design’ or ‘common enterprise’ and with a common ‘intention’²⁹; *second*, the *systemic* form, *i.e.*, the so-called concentration camp cases where crimes are committed by members of military or administrative units such as those running concentration or detention camps on the basis of a common plan (‘common purpose’)³⁰; *third*, the so called ‘*extended*’ joint enterprise where one of the co-perpetrators actually engages in acts going beyond the common plan, but his or her acts still constitute a ‘natural and foreseeable consequence’ of the realization of the plan³¹. On the basis of these categories and the national law of various States, the objective requirements of the responsibility as a co-perpetrator can be stated as follows³²: There must be a plurality of persons who act on the basis of a – explicit or implicit – common plan or purpose, and the accused must take part in this plan, at least by supporting or aiding its

<<http://www.legal-tools.org/doc/698c43/>>; *Prosecutor v. Djordjević*, No. IT-05-87/1-A, Judgment, AC, 27 January 2014, paras. 25 *et seq.* <<http://www.legal-tools.org/doc/e6fa92/>>; *Karemera and Ngirumpatse*, No. ICTR-98-44-T, Judgment and Sentence, TC, 2 February 2012, para. 1432 <<http://www.legal-tools.org/doc/5b9068/>>; *Prosecutor v. Ndahimana*, No. ICTR-01-68-A, Judgment, AC, 16 December 2013, para. 201 <<http://www.legal-tools.org/doc/7034a5/>>.

²⁶ Conc. Vest, *Genozid durch organisatorische Machtapparate* (2002) 185; van Sliedregt, *Criminal Responsibility* (2003) 71 *et seq.*

²⁷ For a similar definition invoking Roxins *opus Täterschaft und Teilnahme* see now *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, TC, 31 July 2003, paras. 440 *et seq.* <<http://www.legal-tools.org/doc/32ecfb/>>. See also Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 789 *et seq.*; Werle and Jessberger (2007) 5 JICJ 953, 958; *id.*, *Principles* (2014) 205 *et seq.*

²⁸ *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 191 <<http://www.legal-tools.org/doc/8efc3a/>>. In a similar vein most recently *Prosecutor v. Krajisnik*, No. IT-00-39-T, Judgment, TC, 27 September 2006, para. 876: ‘JCE is well suited to cases such as the present one, in which numerous persons are all said to be concerned with the commission of a large number of crimes’ <<http://www.legal-tools.org/doc/62a710/>>. Cf. Zahar and Sluiter, *ICL. Introduction* (2008) 255–257; on *Tadić* and JCE, see also Jain, *Perpetrators and Accessories in ICL* (2014), 28 *et seq.*

²⁹ *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 196–201 <<http://www.legal-tools.org/doc/8efc3a/>>.

³⁰ *Ibid.*, paras. 202–3.

³¹ *Ibid.*, paras. 204–19; *Prosecutor v. Martić*, No. IT-95-11-T, Judgment, TC, 12 June 2007, para. 439 <<http://www.legal-tools.org/doc/06634c/>>; *Prosecutor v. Haradinaj et al.*, No. IT-04-84-T, Judgment, TC, 3 April 2008, para. 138 <<http://www.legal-tools.org/doc/025913/>>; recently *Prosecutor v. Djordjević*, No. IT-05-87/1-A, Judgment, AC, 27 January 2014, para. 906 <<http://www.legal-tools.org/doc/e6fa92/>>. Crit. Eser, in Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 792 with fn. 104; conc. Cassese and Gaeta, *ICL* (2013) 168–172. In *Prosecutor v. Kvočka et al.*, No. IT-98-30/1-A, Judgment, AC, 28 February 2005, para. 86 <<http://www.legal-tools.org/doc/006011/>>, the AC affirmed that an accused may be responsible for crimes committed beyond the common purpose of the systemic joint criminal enterprise (*i.e.* the second category of cases), if they were a natural and foreseeable consequence thereof.

³² *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 227 <<http://www.legal-tools.org/doc/8efc3a/>>.

realization³³. Subsequent decisions³⁴ have taken up these considerations and refined the JCE liability.³⁵ In *Brđjanin*, an appeal by the Prosecution was successful since the TC erred in law and adopted a too narrow definition of JCE when it required (1) that physical perpetrators need to be JCE members for JCE liability to attach to high-level officials, (2) that there should be direct agreement between each JCE member regarding the commission of the crimes, and (3) that JCE is appropriate for 'small' cases only³⁶. Furthermore, special emphasis was laid on the criminal character of the enterprise: The contours of the common criminal purpose ought to be 'properly defined' and 'supported by the evidence beyond reasonable doubt'³⁷. The JCE doctrine also served as a form of attribution to impute, *inter alia*, to *Slobodan Milosević* the genocide committed by Serb forces in Bosnia-Herzegovina³⁸ and to *Ante Gotovina* the alleged crimes of Croat forces committed during 'Operation Storm'³⁹.

³³ Similarly Cassese *et al.*, *ICL* (2013) 163; crit. on the low threshold for participation in the common plan, Ambos (2007) 5 *JICJ* 171; conc. Jain, *Perpetrators and Accessories in ICL* (2014), 55–6.

³⁴ See the references in the previous edition and for more recent decisions notes 36 *et seq.*

³⁵ For my view on JCE see Ambos (2007) 5 *JICJ* 159–183 and *id.*, *Treatise on ICL I* (2013) 123 *et seq.* According to Danner and Martinez (2005) 93 *CalLRev* 75, 107, 64 % of the indictments submitted in the ICTY between 25 June 2001 and 1 January 2004 relied on this doctrine. On the importance of JCE, also see Piacente (2004) 2 *JICJ* 448; Osiel (2005) 105 *ColLRev* 1751, 1786 *et seq.* and Haan (2005) 5 *ICLRev* 167–201. See also Cryer, in: *id. et al.*, *Introduction to ICL* (2014) 353, 356 *et seq.*

³⁶ *Prosecutor v. Brđjanin*, No. IT-99-36-A, Judgment, AC, 3 April 2007 <<http://www.legal-tools.org/doc/782cef/>> para. 414 with regard to ground 1 ('principal perpetrator as a member of JCE'); para. 419 with regard to ground 2, second part ('requirement of an additional understanding or agreement'), para. 425 with regard to ground 2, first part ('JCE applicable to small cases only'); see further the declaration of Judge van den Wyngaert, 164, para. 1 *et seq.*; partly dissenting Judge Shahabuddin, 170 *et seq.*, who states that 'link' between the accused member and the crime can only be provided by showing that the physical perpetrator was himself a member of the JCE and therefore within the intention of the accused member to take responsibility for certain crimes when committed by fellow members (para. 18).

³⁷ *Ibid.*, para. 424. See also *Prosecutor v. Haradinaj et al.*, TC, TJ, No. IT-04-84bis-T, 29 November 2012, paras. 628 *et seq.* (rejecting the requirement of the 'existence of a common purpose' for lack of evidence, paras. 625 and 668) <<http://www.legal-tools.org/doc/1bad7b/>>.

³⁸ *Prosecutor v. Slobodan Milosević*, No. IT-02-54-T, Decision on Motion for Judgment of Acquittal, TC, 16 June 2004, paras. 144 *et seq.* <<http://www.legal-tools.org/doc/d7fb46/>>. See Ambos (2004) 59 *JZ* 956, 966; see also the indictment of *Radovan Karadžić* taking recourse to JCE concerning, *inter alia*, the *Srebrenica* genocide: *Prosecutor v. Radovan Karadžić*, No. IT-95-5/18-PT, Third Amended Indictment, 27 February 2009, paras. 5–10, 20–30 <<http://www.legal-tools.org/doc/858aef/>>.

³⁹ *Prosecutor v. Gotovina et al.*, No. IT-06-90-T, Judgment Vol. II, TC, 15 April 2011, paras. 1948 *et seq.*, 2322 *et seq.* <<http://www.legal-tools.org/doc/86922c/>>. The AC acquitted both *Gotovina* and *Markac* since it considered it not to be proved beyond reasonable doubt that the alleged JCE was implemented by way of unlawful military attacks, see *Prosecutor v. Gotovina and Markac*, No. IT-06-90-A, Judgment, AC, 16 November 2012, paras. 91–3, 96–8 <<http://www.legal-tools.org/doc/03b685/>>; See also *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, paras. 1095, 1129 (finding that the accused was responsible for extermination [para. 1183], murder [para. 1187], forcible transfer as an inhumane act [para. 1187], persecution [para. 1193] and deportation [para. 1198] as a member of a JCE to forcibly remove and murder the Bosnian Muslim population [paras. 1095 and 1129] <<http://www.legal-tools.org/doc/445e4e/>>; the Accused was also found responsible for the crime of genocide pursuant to JCE III liability [para. 1173]); *Prosecutor v. Stanisic and Zupljanin*, No. IT-08-91-T, Judgment Vol. 2, TC, 27 March 2013, para. 131 *et seq.* (finding that a common plan to forcibly transfer the non-Serb population existed [para. 313] of which the two accused have been members [para. 520, 729 *et seq.*] so that they are responsible for the crimes of forcible transfer as an inhumane act and as an underlying act of persecution under JCE I and for other crimes under JCE III [paras. 770 *et seq.*, 799 *et seq.*]) <<http://www.legal-tools.org/doc/cbc02a/>>; *Prosecutor v. Stanisic and Simatovic*, No. IT-03-69-T, Judgment Vol. II, TC, 30 May 2013, paras. 2337 *et seq.* <<http://www.legal-tools.org/doc/698c43/>> *in casu* acquitting both *Stanisic* and *Simatovic* since it could not to be proved beyond reasonable doubt that they shared the intent to further the common criminal purpose; on this Vest (2014) 132 *SchZStR* 86 *et seq.* See also *Prosecutor v. Sainovic et al.*, No. IT-05-87-A, Judgment, AC, 23 January 2014, paras. 604 *et seq.* <<http://www.legal-tools.org/doc/81ac8c/>>; *Prosecutor v. Djordjevic*, No. IT-05-87/1-A, Judgment, AC, 27 January 2014, paras. 22 *et seq.*, 161 *et seq.* <<http://www.legal-tools.org/doc/e6fa92/>>; *Prosecutor v. Ndahimana*, No. ICTR-01-68-A, Judgment, AC, 16 December 2013, paras. 187 *et seq.* (finding that the accused as 'bourgmestre' was responsible for crimes committed by his subordinates, i.e. policemen, under JCE I since he was voluntarily present during a part of the alleged attack [para. 197] with requisite intent of the alleged crimes [para. 195] and committed the alleged crimes through participation in a JCE

As to the *mens rea*, the requirements differ according to the form of the JCE: The basic form requires the shared intent of the (co-) perpetrators. The systemic form derives this shared intent from personal knowledge of the system of ill-treatment⁴⁰. The extended form requires the intention to participate in the criminal purpose and further it and to contribute to the commission of a crime by a group. Responsibility for a crime which was not part of the common purpose arises if the commission of this crime was foreseeable and the accused (willingly) took that risk⁴¹. In particular, the objective foreseeability ('reasonably foreseeable') standard is dubious since it brings JCE III dangerously close to strict liability and thus interferes with the principle of culpability. In fact, it amounts to a 'negligence' standard, which, except for superior responsibility, has not been provided for in the Statutes of International Criminal Tribunals⁴². According to the *Brđjanin* AC, the extended JCE may even give rise to the responsibility of a JCE participant for genocide without having the specific intent to destroy a protected group⁴³.

The JCE doctrine has also been applied by the Special Court for Sierra Leone⁴⁴ and the East Timorese Special Panel for Serious Crimes⁴⁵. In contrast, the ECCC PTC found that the

I by providing moral support to the policemen as physical perpetrators [paras 198 *et seq.*] <<http://www.legal-tools.org/doc/7034a5/>>.

⁴⁰ *Prosecutor v. Kvočka et al.*, No. IT-98-30/1-A, Judgment, AC, 28 February 2005, para. 284 <<http://www.legal-tools.org/doc/006011/>>. Treating JCE II as JCE I without this derivation of intent *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, para. 78 <<http://www.legal-tools.org/doc/1a994b/>>, *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, TC 31 July 2003, paras. 488 *et seq.* <<http://www.legal-tools.org/doc/32ecfb/>>. Criticizing JCE II (as employed in *Kvočka*) for violating the presumption of innocence *cf.* Haan, *Joint Criminal Enterprise* (2008) 274 *et seq.*

⁴¹ *Prosecutor v. Ntakirutimana and Ntakirutimana*, Nos. ICTR-96-10-A and ICTR-96-17-A, Judgment, AC, 13 December 2004, para. 467 with further references <<http://www.legal-tools.org/doc/af07be/>>; also *Prosecutor v. Mrksić et al.*, No. IT-95-13/1-T, Judgment, TC, 27 September 2007, para. 542 <<http://www.legal-tools.org/doc/32111c/>>; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, paras. 896, 897, 1130 *et seq.*, 1173 <<http://www.legal-tools.org/doc/445e4e/>>; *Prosecutor v. Stanisic and Zupljanin*, No. IT-08-91-T, Judgment Vol. 2, TC, 27 March 2013, para. 131 *et seq.* <<http://www.legal-tools.org/doc/cbc02a/>>; Crit. as to the negligence standard, Cryer, in: *id. et al.*, *Introduction to ICL* (2014) 353, 381-2.

⁴² See for criticism of JCE III, *i.a.*, Mettraux, *International Crimes* (2005) 215, 264-5, 289. Haan, *Joint Criminal Enterprise* (2008); Vest, *Völkerrechtsverbrecher verfolgen* (2011) 309. Safferling, *Internationales Strafrecht* (2011) § 5 mn. 80; van Sliedregt, in: Nollkaemper and van der Wilt (eds.), *System Criminality* (2009) 183, 197; Vest (2010) 8 *JICJ* 851; Ambos, *Internationales Strafrecht* (2014) § 7 mn. 32 with further references in fn. 180.

⁴³ *Prosecutor v. Brđjanin*, No. IT-99-36-A, Decision on Interlocutory Appeal, 19 March 2004, para. 6 <<http://www.legal-tools.org/doc/acb003/>>: '... to establish that it was reasonably foreseeable to the accused that an act specified in Art. 4 (2) [ICTYS] would be committed and that it would be committed with genocidal intent'. Crit., but not clear, the separate opinion of Judge *Shahabuddeen*, who, on the one hand, takes the view that 'specific intent always has to be shown' (para. 4), but, on the other hand, states 'that intent is shown by the particular circumstances of the third category of joint criminal enterprise' (para. 5 at the end). *Prosecutor v. Slobodan Milošević*, No. IT-02-54-T, Decision on Motion for Judgment of Acquittal, TC, 16 June 2004, para. 219 adopts without more the majority opinion of *Brđjanin* <<http://www.legal-tools.org/doc/d7fb46/>>; on JCE III foreseeability with regard to special intent crimes see also *Prosecutor v. Radovan Karadžić*, No. IT-95-5/18-AR72.4, Decision on Prosecution's Motion Appealing TC's Decision on JCE III Foreseeability, AC, 25 June 2009 <<http://www.legal-tools.org/doc/af6f4a/>>; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, paras. 898, 1173 <<http://www.legal-tools.org/doc/445e4e/>>; *Prosecutor v. Djordjević*, No. IT-05-87/1-A, Judgment, AC, 27 January 2014, paras. 22 *et seq.*, 73 *et seq.* <<http://www.legal-tools.org/doc/e6fa92/>>. Crit. Jain, *Perpetrators and Accessories in ICL* (2014), 63 *et seq.*

⁴⁴ *Cf.* *Prosecutor v. Kondewa*, No. SCSL-03-12-PT, Decision and Order on Defence Preliminary Motion for Defects in the Form of the Indictment, 27 November 2003, para. 9 <<http://www.legal-tools.org/doc/71a5d3/>>; *Prosecutor v. Brima et al.*, No. SCSL-04-16-PT, Decision and Order on Defence Preliminary Motion for Defects in the Form of the Indictment, 1 April 2004, para. 49 <<http://www.legal-tools.org/doc/80b122/>>; *Prosecutor v. Sesay et al.*, No. SCSL-04-15-A, Judgment, AC, 26 October 2009, paras. 394, 400 <<http://www.legal-tools.org/doc/133b48/>>. *Cf.* also Jain, *Perpetrators and Accessories in ICL* (2014), 66 *et seq.* as to the indictments before the SLSC invoking JCE III see Danner and Martinez (2005) 93 *Call.Rev* 75, 155 *et seq.*

⁴⁵ See *Prosecutor v. Pereira*, No. 34/2003, Judgment, Special Panel for Serious Crimes, 27 April 2005, pp. 19-20 <<http://www.legal-tools.org/doc/5ce1a8/>>. Concurring also *ibid.*, Separate Opinion of Judge Phillip Rapoza, pp. 4-5, paras. 17-18, 25. See also *Prosecutor v. de Deus*, No. 2a/2004, Judgment, Special Panel for Serious Crimes, 12 April 2005, p. 13 <<http://www.legal-tools.org/doc/9b1be5/>>; Jain, *Perpetrators and Accessories in ICL* (2014), 69-73.

authorities relied on by *Tadić* with regard to the customary law status of JCE III did not 'provide sufficient evidence of consistent state practice or *opinio juris* at the time relevant' to the case before it⁴⁶.

The ICC, interpreting the second alternative of subparagraph (a) ('jointly with another'), ¹⁰ adopted the mode of co-perpetration in its narrow sense explicitly in the *Lubanga* case⁴⁷ and approved especially the German doctrine of 'functional control over the act' (*funktionelle Tatherrschaft*)⁴⁸, rejecting both the so called 'objective'⁴⁹ and 'subjective'⁵⁰ theories:

⁴⁶ *Prosecutor v. Khieu et al.*, No. 002/19-09-2007-ECCC/OCIJ, Decision on the Appeals against the Co-Investigative Judges Order on Joint Criminal Enterprise (JCE), PTC, 20 May 2010, para. 77 <<http://www.legal-tools.org/doc/320587/>>. In essence, the Chamber followed this author: Ambos (2009) 20 *CLF* 353, 366 *et seq.*; for the opposite view see Cassese *et al.* (2009) 20 *CLF* 289, 327 *et seq.*; Provost (2009) 20 *CLF* 331, 332 *et seq.*, 346. Against JCE III as a form of co-perpetratorship see also Olásolo (2009) 20 *CLF* 263, 278 *et seq.*; Marsh and Ramsden (2011) 11 *ICLRev* 137, 152 *et seq.* See recently *Prosecutor v. Khieu and Nuon*, No. 002/19-09-2007-ECCC/TC, Judgment, TC, 7 August 2014, para. 691 (holding that JCE III did not exist in customary international or Cambodian law by 1975) <<http://www.legal-tools.org/doc/4888de/>>.

⁴⁷ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, paras. 326 *et seq.* <<http://www.legal-tools.org/doc/b7ac4f/>>. Cf. in detail Olásolo, *Criminal Responsibility* (2009) 291 *et seq.*; Jain, *Perpetrators and Accessories in ICL* (2014), 85 *et seq.*

⁴⁸ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 341 ('joint control') <<http://www.legal-tools.org/doc/b7ac4f/>>. This was confirmed by *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, 14 March 2012, paras. 1003–5 (although not explicitly using the term 'functional' control) <<http://www.legal-tools.org/doc/677866/>> and *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, paras. 469, 471, 473 (requiring 'a normative assessment of the role of the accused person') <<http://www.legal-tools.org/doc/585c75/>>; conc. *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 135 <<http://www.legal-tools.org/doc/0536d5/>>; crit. on the (in their view methodologically flawed and too expansive) Lubanga approach Gil and Maculan (2015) 28 *LeidenJIL* 350, 353 *et seq.* See also Roxin, *Strafrecht Allgemeiner Teil II* (2003) § 25 mn. 188 *et seq.*; Satzger, *Internationales Strafrecht* (2013) § 15 mn. 45; *Prosecutor v. Gacumbitsi*, No. ICTR-2001-64-A, Judgment, AC, Separate Opinion of Judge Schomburg, 7 July 2006, para. 17 <<http://www.legal-tools.org/doc/aa51a3/>>. Against the application of the control of the act theory see *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, Separate Opinion of Judge Adrian Fulford, paras. 10–12, 21 <<http://www.legal-tools.org/doc/b7ac4f/>> and *Prosecutor v. Ngudjolo Chui*, No. ICC-01/04-02/12-4, Judgment, TC, Concurring Opinion of Judge van den Wyngaert, 18 December 2012, paras. 5–6, 17, 67 <<http://www.legal-tools.org/doc/7d5200/>>. Discussing and essentially rejecting Fulford's view, at 141–7. Judge van den Wyngaert's opinion also deserves a more detailed treatment which is impossible here for reasons of space. At this juncture, it suffices to say that, while it is, of course, possible not to read the control over the act theory into Art. 25 (3), a pure or naturalistic 'plain' reading of the text encounters the limits pointed out in my critique of Fulford and, above all, does not provide for a theory which allows for the imputation of the 'crime base' to the 'most responsible' who, normally, belong to the top level of the respective state or organization. Indeed, if van den Wyngaert does not only reject the control over the act theory, in particular *Organisationsherrschaft*, but also JCE, one fails to see how she wants to hold these top level people responsible; summing up Stahn (2014) 12 *JICJ* 809, 822 *et seq.* See also Ambos (2014) 12 *JICJ* 219, 227 with fn. 11; on the persuasiveness of the control theory, which emphasizes the objective approach, but is still 'broad enough to include subjective elements', Werle and Burghardt, in: van Sliedregt and Vasiliev (eds.), *Pluralism in ICL* (2014), 301, 316 *et seq.*; *id.*, in: Heger, Kelker, and Schramm (eds.), *Festschrift für Kristian Kühl* (2014), 851, 862–3. Crit. on the incorporation of the control theory also Sadat and Jolly (2014) 27 *LeidenJIL* 755, 757–8, 781.

⁴⁹ The 'objective approach', focusing in a naturalistic fashion on the physical perpetration with one's own hands, is, in the Chamber's correct view, to be rejected because 'the notion of committing an offence through another person cannot be reconciled with the idea of limiting the class of principals to those who physically carry out (...) objective elements of the crime.' (*Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 333 <<http://www.legal-tools.org/doc/b7ac4f/>>; confirmed by *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, TC, 7 March 2014, para. 1391 <<http://www.legal-tools.org/doc/9813bb/>>.

⁵⁰ The 'subjective approach', focusing on the mental state of the actor (*animus auctoris*), is, in the Chamber's view, to be rejected because subparagraph (d) explicitly recognizes *accomplice* liability despite a *mens rea* standard ('furthering' or 'knowledge of the intention of the group') which, according to this approach, would convert the accomplice into perpetrator (possessing the required *animus auctoris* instead of a mere *animus socii*). Thus, the PTC stated that 'the latter concept [enshrined in subparagraph d)] – which is closely akin to the concept of joint criminal enterprise or the common purpose doctrine adopted by the jurisprudence of the ICTY – would have been the basis of the concept of co-perpetration within the meaning of article 25(3)(a), had the drafters of the Statute opted for a subjective approach for distinguishing between principals and accessories' (cf. *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I,

'The concept of co-perpetration based on joint control over the crime is rooted in the principle of the division of essential tasks for the purpose of committing a crime between two or more persons acting in a concerted manner. Hence, although none of the participants has overall control over the offence because they all depend on one another for its commission, they all share control because each of them could frustrate the commission of the crime by not carrying out his or her task'⁵¹.

On an objective level the PTC established two requirements, namely the existence of an *agreement or common plan* between two or more persons⁵² and a co-ordinated *essential contribution* by each co-perpetrator resulting in the realisation of the objective elements of the crime⁵³. This contribution can be made, as now determined by the *Lubanga* AC, not only at the execution stage of the crime, but also at 'its planning or preparation stage, including when the common plan is conceived'⁵⁴. The agreement might also be inferred from subsequent concerted action of the co-perpetrators⁵⁵. As to the subjective side, the PTC generally states the obvious, *i. e.*, that the suspect must fulfil the subjective elements of the crime in question⁵⁶. More concretely, the suspects must all be mutually aware and mutually accept that implementing their common plan may result in the realisation of the objective elements of the crime⁵⁷; they must be aware of the factual circumstances enabling him or her to jointly

29 January 2007, para. 335 <<http://www.legal-tools.org/doc/b7ac4f/>>; conc. *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, para. 483 <<http://www.legal-tools.org/doc/67a9ec/>>; *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, TC, 7 March 2014, para. 1392 <<http://www.legal-tools.org/doc/9813bb/>>.

⁵¹ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 342 <<http://www.legal-tools.org/doc/b7ac4f/>> quoting *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, TC, 31 July 2003, para. 440 <<http://www.legal-tools.org/doc/32ecfb/>>.

⁵² *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, paras. 343–5 <<http://www.legal-tools.org/doc/b7ac4f/>>. The TC relied heavily on the PTC's decision, especially on its findings with regard to the requirements of co-perpetration; concerning the common plan see *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, 14 March 2012, paras. 980–8 <<http://www.legal-tools.org/doc/677866/>>. For an analysis of this part of the judgment see Ambos (2012) 12 *ICLRev* 115, 138 *et seq.* The agreement, which 'may take the form of a "common plan"', was confirmed by the *Lubanga* AC, cf. *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, paras. 445 <<http://www.legal-tools.org/doc/585c75/>>; conc. *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 134 <<http://www.legal-tools.org/doc/0536d5/>>.

⁵³ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, paras. 346–8 <<http://www.legal-tools.org/doc/b7ac4f/>>. Arguably, the requirement of 'ability to frustrate the commission of the crime' (*ibid.*, para. 347) asks for too much, at least at the second level of collective criminal hierarchies where a co-perpetrator's contribution appears to be more easily replaceable. Thus, instead one may require something less, for example the 'ability to substantially shape the crime' (Vest, *Völkerrechtsverbrecher verfolgen* (2011) 351, 359 preferring therefore the concept of *Tatmacht* [power over the act] instead of *Tatherrschaft* [control over the act]). The requirement of an essential contribution was confirmed by *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, 14 March 2012, para. 999 <<http://www.legal-tools.org/doc/677866/>>, while the ability to frustrate the commission of the crime was not explicitly demanded. Crit. on the *Lubanga* TC's failure to precisely define the object of the essential contribution (the common plan or the specific crime) Jain, *Perpetrators and Accessories in ICL* (2014), 87–9; crit. on the essential contribution requirement and its expansive interpretation Gil and Maculan (2015) 28 *LeidenJIL* 357–359, 367–68, 369 (even arguing, at 367–68, that the Katanga TJ rejected this requirement although the Chamber did not deal with co-perpetration).

⁵⁴ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, paras. 7, 469, 473 <<http://www.legal-tools.org/doc/585c75/>>; conc. *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 134 <<http://www.legal-tools.org/doc/0536d5/>>. Generally critical regarding the application of co-perpetration to the preparatory stage Gil and Maculan (2015) 28 *LeidenJIL* 355, 363–64, 370 (arguing that a contribution made at this stage is 'accessory in nature' and should therefore 'be charged under accessory liability').

⁵⁵ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 345 <<http://www.legal-tools.org/doc/b7ac4f/>>. Cf. van der Wilt (2009) 7 *JICJ* 307, 310.

⁵⁶ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, paras. 349–60 <<http://www.legal-tools.org/doc/b7ac4f/>>.

⁵⁷ *Ibid.*, paras. 361–5. The Chamber, at para. 352, extends the volitional element contained in Article 30 to the awareness 'of the risk that the objective elements of the crime may result from his or actions....and [he/she] accepts such an outcome by reconciling himself or herself with it....'. However, arguably, Article 30 only

control the crime⁵⁸. The *Bemba* Confirmation Decision followed this approach⁵⁹, but at least the last element is questionable since, apart from not being adopted by the *Katanga/Ngudjolo Chui* confirmation decision⁶⁰ and the *Lubanga* TC⁶¹, it demands too much from a co-perpetrator who rarely has full control and thus hardly can be completely aware of the factual circumstances of his control⁶². In addition, some further clarification is required with regard to the ‘common’ plan element: Does the plan encompass both objective and subjective or merely objective components⁶³? Is it really sufficient, as argued by the *Lubanga* PTC⁶⁴, that the plan must only ‘include an element of criminality’ and not be specifically directed at the commission of a crime⁶⁵? The *Lubanga* AC spoke to the latter, holding that it is ‘sufficient for

encompasses the conscious taking of *substantial* risks on the basis of an objective *ex ante* examination (cf. Weigend (2008) 6 *JICJ* 471, 481 *et seq.*). See also *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, 14 March 2012, paras. 1009 *et seq.* <<http://www.legal-tools.org/doc/677866/>>.

⁵⁸ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, paras. 366–7 <<http://www.legal-tools.org/doc/b7ac4f/>> and *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, paras. 534 *et seq.* <<http://www.legal-tools.org/doc/67a9ec/>>; *Prosecutor v. Kenyatta et al.*, No. ICC-01/09-02/11-382, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 297 <<http://www.legal-tools.org/doc/4972c0/>>; *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 292 <<http://www.legal-tools.org/doc/96c3c2/>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, para. 121 <<http://www.legal-tools.org/doc/5686c6/>>; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, para. 240 <<http://www.legal-tools.org/doc/5b41bc/>>.

⁵⁹ *Prosecutor v. Bemba Gombo*, No. ICC 01/05-01/08-424, Decision on the Confirmation of Charges, PTC II, 15 June 2009, paras. 348–351 <<http://www.legal-tools.org/en/doc/07965c/>>.

⁶⁰ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, paras. 534–5 (‘last requirement does not apply’) <<http://www.legal-tools.org/doc/67a9ec/>>.

⁶¹ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, 14 March 2012, para. 1013 <<http://www.legal-tools.org/doc/677866/>>.

⁶² See Ambos (2009) 22 *LeidenJIL* 715, 719–20, also elaborating on the *dolus eventualis* intricacies of this decision. See also Manacorda and Meloni (2011) 9 *JICJ* 159, 169; Jain, *Perpetrators and Accessories in ICL* (2014), 89 *et seq.*

⁶³ Critical on the *Lubanga* approach qualifying the common plan as a pure objective element Weigend (2008) 6 *JICJ* 471, 480 with fn. 37. See also *Prosecutor v. Ngudjolo Chui*, No. ICC-01/04-02/12-4, Judgment, TC, Concurring Opinion of Judge van den Wyngaert, 18 December 2012, paras. 32–4 who considers the common plan to be a purely subjective element <<http://www.legal-tools.org/doc/7d5200/>>.

⁶⁴ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 344 <<http://www.legal-tools.org/doc/b7ac4f/>>.

⁶⁵ The TC in *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2842, Judgment, TC, 14 March 2012, para. 984 <<http://www.legal-tools.org/doc/677866/>> required ‘a critical element of criminality, namely ... a sufficient risk that ... a crime will be committed’; crit. Ambos (2012) 12 *ICLRev* 115, 140; Herzig (2013) *ZIS* 189, 195; Gil and Maculan (2015) 28 *LeidenJIL* 359–62 (arguing that the *Lubanga* interpretation lowers the *mens rea* threshold and takes us back to jce III and therefore calling for a restrictive interpretation whereby only the crimes part of the plan are covered and ‘an objective contribution to the *specific crime*’ is required [emphasis in the original]). Cf. also *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, paras. 271 and 291 <<http://www.legal-tools.org/doc/63028f/>>. Unclear in this respect *Prosecutor v. Kenyatta et al.*, No. ICC-01/09-02/11-382, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 399 <<http://www.legal-tools.org/doc/4972c0/>>; *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 301 <<http://www.legal-tools.org/doc/96c3c2/>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, para. 105 with fn. 426 <<http://www.legal-tools.org/doc/5686c6/>>. Recently *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, paras. 230 *et seq.* <<http://www.legal-tools.org/doc/5b41bc/>>, an implicit ‘common plan to maintain Laurent Gbagbo in power at any cost, including through the use of force against civilians’ was inferred from the objective circumstances, *i.e.* Laurent Gbagbo’s close relations with his so-called ‘inner circle’, his public statements and his involvement in the ‘alleged’ preparatory activities of the use of violence (paras. 78 *et seq.* and 231). However, this inference appears circular and it is not clear which concrete crimes have been used by ‘the pro-Gbagbo force against civilians’. Therefore, it is questionable whether the common plan of using force against civilian ‘inherently’ includes the common plan to *intentionally* commit *all* ‘the crimes charged’, *i.e.* murder, rape, persecution and other inhumane acts. In this respect see Dissenting Opinion of Judge van den Wyngaert, *ibid.*, paras 5–6. Cf. also Ohlson (2014) 12 *JICJ* 325, 331 *et seq.*, who criticizes the approach of the current ICC’s control theory as ‘over-correction’ and as ‘deemphasis of the subjective elements’. In fact, however, in the most

the common plan to involve “a critical element of criminality”⁶⁶, i. e. ‘that it [is] virtually certain that the implementation of the common plan led to the commission of the crimes at issue’⁶⁷.

- 11 The **perpetration by means** mode, i. e., as more exactly expressed by the third alternative of subparagraph 3 (a), perpetration ‘through another person’, presupposes that the person who commits the crime (*intermediary*, *intermédiaire*, *Tatmittler*) can be used as an instrument or tool (*Werkzeug*) by the indirect perpetrator (*auteur médiate*) as the master-mind or ‘man in the background’ (*Hintermann*)⁶⁸. The *Hintermann* is also considered a principal in common law⁷⁰. The direct perpetrator is normally an innocent agent, not responsible for the criminal act. A typical example is the case where the individual agent or instrument acts erroneously⁷¹, or is not culpable because he or she is a minor, or because of a mental defect. Additionally, situations in which the direct perpetrator acts under ‘duress’ (Art. 31 (1) (d)) and is therefore excused may give rise to an indirect perpetration by the person who controls this direct perpetrator by way of threats or violence amounting to this situation of duress (*Nötigungsherrschaft*).⁷²
- 12 However, especially in the field of ‘macrocriminality’, i. e., systematic or mass criminality organized, supported or tolerated by the State⁷³, the direct perpetrator or executor normally performs the act with the necessary *mens rea* and is fully aware of its illegality. Thus, the question arises if perpetration by means always presupposes that the direct perpetrator has a ‘defect’, or if it is also possible with a fully responsible or culpable direct perpetrator, i. e., in the case of a ‘(indirect) perpetrator behind the (direct) perpetrator’ (*Täter hinter dem Täter*). This has been affirmed for cases in which the *Hintermann* dominates the direct perpetrators by virtue of a hierarchical organizational structure, i. e., where he or she has ‘*Organisationsherrschaft*’ (*autoría mediata por dominio de la voluntad en aparatos de poder organizados/mittelbare Täterschaft kraft Willensherrschaft in organisatorischen Machtapparaten*).⁷⁴

recent *Katanga* judgment the ICC takes a mixed objective-subjective approach, see Ambos (2014) 12 *IJCJ* 219, 226–7.

⁶⁶ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, para. 446 <<http://www.legal-tools.org/doc/585c75/>>.

⁶⁷ *Ibid.*, para. 451; in a similar vein, for the *Blé Goudé* PTC I, the common plan should be neither *any* plan nor a *fully* criminal one, but it suffices that the criminal element is inherent to it, *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 140 <<http://www.legal-tools.org/doc/0536d5/>>.

⁶⁸ The translation of the German ‘*Hintermann*’ as ‘master-mind’ (by Silverman, in: Roxin (1996) 30 *IsLRev* 60, 71) may omit cases in which the dominance of the ‘*Hintermann*’ is physical (e.g., by coercion) rather than intellectual. Michael Bohlander employs in his translation of the German Criminal Code (Bohlander, *The German Criminal Code – A Modern English Translation* (2008) § 84) the term ‘*hinterman*’ referring to other words borrowed from German into English terminology, such as ‘*hinterland*’, which suggest that English native-speakers will be familiar with the connotations of the prefix ‘*hinter-*’ and be able to adapt it to new combinations.

⁶⁹ See generally for perpetration by means Fletcher, *Basic Concepts* (1998) 197–200; Jescheck and Weigend, *Strafrecht. Allgemeiner Teil* (1996) § 62, 662 *et seq.* and Ambos, *Treatise on ICL I* (2013) 154 *et seq.* In French criminal law the ‘*auteur médiate*’ is not codified, but exceptionally recognized if the direct perpetrator is used as a ‘simple instrument’ (cf. Czepluch, *Täterschaft und Teilnahme im französischen Strafrecht* (1994) 30–33). With regard to article 25 see also (conc.) Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 793 *et seq.*; van Slidregt, *Criminal Responsibility* (2003) 71.

⁷⁰ See American Law Institute, *Model Penal Code and Commentaries* (1985) § 2.06 and comment.

⁷¹ Cf. Ambos, *Der Allgemeine Teil* (2004) 573.

⁷² See, for an exemplary case of duress, *Prosecutor v. Erdemović*, No. IT-96-22-T, Sentencing Judgment, TC, 29 November 1996 <<http://www.legal-tools.org/doc/eb5c9d/>>. However, in this case the liability of the *Hintermann*, i. e., the person forcing *Erdemović* to commit the crimes, was not at stake. Cf. for an analysis of this case Olásolo, *Criminal Responsibility* (2009) 114 *et seq.*; Ambos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 1003, 1042 *et seq.*; *id.*, *Der Allgemeine Teil* (2004) 263 *et seq.* For a scrutiny of indirect perpetration in situations of duress *ibid.*, 574 *et seq.*, and for the normative reasons of attribution Ambos, *Internationales Strafrecht* (2014) § 7 mn. 24.

⁷³ See Jäger, *Makrocriminalität* (1989).

⁷⁴ See the fundamental work of Roxin, *Täterschaft und Tatherrschaft* (2006) 242–52, 704–17; see also Ambos, *Der Allgemeine Teil* (2004) 590 *et seq.* with further references; with regard to genocide Kreß, *Münchener Kommentar StGB* (2003) § 220a/§ 6 VStGB, mn. 100 *et seq.*; Werle and Jessberger, *Principles* (2014) 207 *et seq.*

Although there are no precedents in the post-WW II case law international case law that refer *explicitly* to this doctrine, it may be argued that the judgment in the *Justice Trial* was *implicitly* based on it since the accused were held responsible because of their 'conscious participation in a nationwide government-organized system of cruelty and injustice'⁷⁵, *i. e.*, because of their commission of crimes by way of a hierarchical organizational structure⁷⁶. Further, the doctrine has been recognized by national tribunals. In *Eichmann*, the Jerusalem District Court invoked – for the specific macro-crimes in question – a type of *organizational responsibility* or domination of the act by the man at the desk and thereby developed the concept used in the *Justice trial*⁷⁷. In the *Argentinean trial* against the former commanders of the military junta the Appeals Court argued with a form of perpetration based on *Organisationsherrschaft*: 'The accused *dominated* the acts since they *controlled the organization* which carried them out ... *who dominates the system* dominates the anonymous will of *all the men* who constitute it'⁷⁸. In the *German trials* for shootings at the East German border, the Supreme Court (*Bundesgerichtshof*) employed the doctrine to hold members of the National Defence Council ('NDC') and generals of the National People's Army responsible as indirect perpetrators for the killings directly committed by border guards⁷⁹. The theory has also been applied widely in Latin America, in particular in Colombia and Peru⁸⁰. In 2009, *Alberto Fujimori*, the former president of Peru, was convicted by the Trial and ACs of the Peruvian Supreme Court for serious violations of international human rights law amounting to crimes against humanity which were committed under his presidency in 1991 and 1992⁸¹. The convictions of *Fujimori* as an indirect perpetrator are based on the theory of control/domination of the act by virtue of an organized power apparatus. Both chambers of the Supreme Court set out five requirements for indirect perpetration by virtue of such an organized power structure: as a general requirement the existence of a hierarchical organization and as specific requirements a responsible command ('*poder de mando*', '*Befehlsgewalt*') of the indirect perpetrator, the detachment of the organization from the law ('*desvinculación*

The doctrine is not uncontroversial, for a critique see Rotsch (2005) 25 *NStZ* 13 *et seq.* With references on this discussion cf. Krefß (2006) 153 *GA* 304 *et seq.*; also Radtke (2006) 153 *GA* 350 *et seq.* For a reply Roxin (2007) 125 *SchwZStR* 1, 3 *et seq.* and Schünemann, in: Heinrich *et al.* (eds.), *Festschrift für Claus Roxin* (2011) 799, *passim*. See for a good explanation in English, Osiel (2005) 105 *ColLR* 1751, 1829 *et seq.* See further van Sliedregt, *Criminal Responsibility* (2003) 70; for a more detailed explanation Ambos, in: Nollkaemper and van der Wilt (eds.), *System Criminality* (2009) 127, 142 *et seq.*; *id.* (2011) 9 *JICJ* 137, 145 *et seq.*

⁷⁵ U.S. v. *Altstötter (Justice Trial)*, Judgment, U.S. Military Tribunal, Nuremberg, Germany, 4 Dec. 1947, 4 LRTWC 1 (H.M.S.O. 1947) para. 985: 'conscious participation in a nationwide government-organized system of cruelty and injustice' (emphasis added). Critical Werle and Burghardt, in: Bloy *et al.* (eds.), *Festschrift für Manfred Maiwald* (2011) 849, 853 with fn. 15.

⁷⁶ Cf. Ambos, *Der Allgemeine Teil* (2004) 93-4; *id.*, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000) 1.

⁷⁷ Judgment 12 December 1961, 36 *ILR* 5 and 18, at 236-7, para. 197: '... the degree of responsibility generally increases as we draw further away from the man who uses the fatal instrument with his own hands and reach the higher levels of command ...'; for a more detailed analysis see Ambos, *Der Allgemeine Teil* (2004) 184 *et seq.*; *id.*, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000) 1, 17-8; *id.*, in: Ambos *et al.* (eds.), *Eichmann in Jerusalem* (2012) 123, 125 *et seq.*

⁷⁸ *Cámara Nacional de Apelaciones etc.*, Sentencia 9 December 1985, in: Fallos CSJ Vol. 309-I/II 33, at 1597-8, 1601-2 (emphasis added; own translation from Spanish). For a more detailed analysis see Ambos, *Der Allgemeine Teil* (2004) 234 *et seq.*; *id.*, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000) 1, 18-9.

⁷⁹ 40 Bundesgerichtshof-Entscheidungen in Strafsachen, 218, 237-8 (1994). For a more detailed analysis see Ambos, *Der Allgemeine Teil* (2004) 243 *et seq.*; *id.*, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of ICL* (2000) 1, 20-1; Weigend (2014) 12 *JICJ* 253, 259.

⁸⁰ See Ambos and Malarino (eds.), *Jurisprudencia* (2008) with reports on the case law of the most important Latin American Countries.

⁸¹ Corte Suprema de Justicia de la República del Perú, Sala Penal Especial (Special Criminal Chamber), judgment of 7 April 2009, Exp. No. AV 19-2001 (Cases Barrios Altos, La Cantuta, Sótanos SIE) (for an English translation see (2010) 25 *AmUILRev* 657-842; for a German translation of Part III see (2009) 4 *ZIS* 622-57); CSJ, Primera Sala Penal Transitoria (First Transitory Criminal Chamber), Exp. No. AV 19-2001 (Cases Barrios Altos, La Cantuta, Sótanos SIE), Judgment of 30 December 2009. – The theory was already applied before, *inter alia*, against Shining Path leader *Abimael Guzman*, see Caro (2010) 10 *ICLR* 583, 598-9.

del derecho, ‘*Rechtsgelöstheit*’), the interchangeability or replaceability (*‘fungibilidad’*, *‘Fungibilität’*) of the direct perpetrators and the direct perpetrator’s (pre-disposition to commit the act (*‘disposición’*, *‘Tatgeneigtheit’*))⁸².

- 13 At the ICC, the *general* concept of perpetration ‘through another person’ was for the first time taken up in the *Lubanga* Confirmation Decision: The PTC recognized that those who have ‘control over the commission of the offence’ are perpetrators (*‘auteur’*) since, *inter alia*, they ‘control the will of those who carry out the objective elements of the offence (commission of the crime through another person, or indirect perpetration)’. Further, the PTC affirmed that the most typical manifestation of the ‘control over the act theory’ is ‘the commission of a crime through another person’, as explicitly provided for in article 25 para. 3 (a) ICC Statute⁸³. However, the *Lubanga* PTC neither applied this concept to the defendant nor did it contain the notion of perpetration by virtue of an organization. It was only with the case of *Katanga and Ngudjolo Chui*⁸⁴ that the organizational element found its way into the deliberations of the PTC, calling those cases most relevant to international criminal law ‘in which the perpetrator behind the perpetrator commits the crime through another by means of ‘control over an organization’⁸⁵. As set out by the Chamber, liability for this mode of attribution depends on a hierarchical organization in which the orders of the perpetrator are automatically complied with by interchangeable executors⁸⁶. Regarding the requirement of interchangeability, or *fungibility*, the Chamber is rightly aware of the problem that direct perpetrators acting fully responsible and culpable cannot, from a naturalistic perspective, without further ado be regarded as mere fungible mediators of the criminal acts. In order to overcome this problem, the *fungibility* criterion is substituted by the requirement of ‘automatic’ compliance. Thus, it suffices, in the PTC’s view, that the perpetrator ‘secures automatic compliance through intensive, strict, and violent training regimes, for example, by abducting minors and subjecting them to punishing training regimens in which they are taught to shoot, pillage, rape and kill’⁸⁷, or through payment and punishment mechanisms⁸⁸. This criterion arguably captures better the typical lack of institutional autonomy of a direct

⁸² See for a detailed analysis of the relevant facts and the law, Ambos (2011) 9 *JICJ* 137–158.

⁸³ See *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-TEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 332 <<http://www.legal-tools.org/doc/b7ac4f/>>.

⁸⁴ For a concise summary of the case *cf.* Weigend (2011) 9 *JICJ* 91, 92; Olásolo, *Criminal Responsibility* (2009) 318 *et seq.*

⁸⁵ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, para. 498 <<http://www.legal-tools.org/doc/67a9ec/>>. The Chamber mainly relies on German and Spanish doctrine and the acceptance of this new mode of liability in ‘numerous national jurisdictions’ (para. 502). Critical in this respect Weigend (2011) 9 *JICJ* 91, 105 *et seq.*; Manacorda and Meloni (2011) 9 *JICJ* 159, 169–70; Werle and Burghardt, in: Bloy *et al.* (eds.), *Festschrift für Manfred Maiwald* (2011) 849, 854 *et seq.*; Ohlin *et al.* (2013) 26 *LeidenJIL* 725, 734 and 742 (‘clash of legal cultures’); for an analysis of the development of indirect co-perpetration see Eldar (2014) 8 *Crim. L. and Philos.* 605, 606 *et seq.*

⁸⁶ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, paras. 512–7 <<http://www.legal-tools.org/doc/67a9ec/>>. The decision does not mention the two requirements ‘detachment of the organization from the law’ and ‘disposition of the direct perpetrator to commit the act’, *cf.* Werle and Burghardt, in: Bloy *et al.* (eds.), *Festschrift für Manfred Maiwald* (2011) 849, 856 *et seq.*; Herzig (2013) *ZIS* 189, 196–7. See on these (and the other) requirements already mn. 12. For the German roots of the doctrine *cf.* Jessberger and Geneuss (2008) 6 *JICJ* 853, 859 *et seq.*; Weigend (2011) 9 *JICJ* 91, 92, 94 *et seq.* and the seminal article by Roxin (2011) 9 *JICJ* 193–205.

⁸⁷ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, paras. 518 (in abstract terms) and 547 (on the concrete case) <<http://www.legal-tools.org/doc/67a9ec/>>. See, all concurring with this reasoning, van der Wilt (2009) 7 *JICJ* 307, 312; Manacorda and Meloni (2011) 9 *JICJ* 159, 172; Ambos, in: Heinrich *et al.* (eds.), *Festschrift für Claus Roxin* (2011) 837, 846; see for the necessary elements for non-state organizational hierarchies *ibid.*, 847 *et seq.*

⁸⁸ *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, paras. 320–3 and 324–36 <<http://www.legal-tools.org/doc/96c3c2/>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, para. 120 <<http://www.legal-tools.org/doc/5686c6/>>; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, paras. 102–3, 107, 139, 146 <<http://www.legal-tools.org/doc/5b41bc/>>.

perpetrator acting in a macro-criminal context given the institutionalist pressure exercised by the criminal system or organization upon him⁸⁹.

In *Katanga and Ngudjolo Chui*, the PTC merged the concepts of co-perpetration and indirect perpetration to a form of *indirect co-perpetration* ('mittelbare Mittäterschaft')⁹⁰ which however does not constitute a new (fourth) mode of attribution, but is only the result of the 'factual coincidence of two recognized forms of perpetration'⁹¹. Consequently, this form of perpetration easily fits into subpara. (a), in particular a recourse to international custom is unnecessary⁹². In the case at hand, the PTC found that the defendants had agreed, as commanders of their respective hierarchical organizations (paramilitary groups), on a common plan (the attack on the village of Bogoro) and both had made an essential contribution to the realization of this plan by way of their organizations⁹³. Thus, the PTC extended the criminal responsibility of each defendant, being indirect and co-perpetrator at the same time, to the crimes committed by the members of the other defendant's organization⁹⁴. Of course, the principle of culpability demands in the case of such a reciprocal vertical/horizontal imputation a solid proof of each defendant's *mens rea* towards the criminal acts committed by the other organization respectively.

Arguably, a different form of indirect co-perpetration has been adopted in the *Al-Bashir* arrest warrant decision⁹⁵, and most recently in the *Blé Goudé* Confirmation Decision⁹⁶,

⁸⁹ Cf. Vest, *Völkerrechtsverbrecher verfolgen* (2011) 362 with further references in fn. 42.

⁹⁰ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, paras. 492, 521–2 and *passim* <<http://www.legal-tools.org/doc/67a9ec/>>.

⁹¹ Cf. Weigend (2011) 9 *JICJ* 91, 110; see also Eldar (2014) 8 *CrimL&Phil* 605, 611–3. This also follows from the very explanation of the PTC speaking of a 'combination of (...) committing crimes through other persons together with the mutual attribution among the co-perpetrators (...)'. (*Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, para. 492 <<http://www.legal-tools.org/doc/67a9ec/>>). In the same vein already *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, TC, 31 July 2003, paras. 492–4, 741 <<http://www.legal-tools.org/doc/32ecfb/>>. See also Olásolo, *Criminal Responsibility* (2009) 307–16 (313–4); Černić (2011) 22 *CLF* 539, 558.

⁹² Thus, the fact that the just mentioned *Stakić* TC Judgment was overturned by *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, AC, 22 March 2006, para. 62 <<http://www.legal-tools.org/doc/09f75f/>> for lack of basis in customary international law is irrelevant in the context of the *ICC Statute*, see correctly *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, para. 508 <<http://www.legal-tools.org/doc/67a9ec/>>; more recently *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 289 <<http://www.legal-tools.org/doc/96c3c2/>>.

⁹³ *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, paras. 548–60 <<http://www.legal-tools.org/doc/67a9ec/>>. See for the same approach *Prosecutor v. Bemba*, No. ICC-01/05-01/08-14-tENG, Decision on the Prosecutor's Application for a Warrant of Arrest, PTC III, 10 June 2008, paras. 69–72 <<http://www.legal-tools.org/doc/fb80c6/>>. However, in the Confirmation Decision, the Chamber restricted the mode of liability to simple co-perpetration, see *Prosecutor v. Bemba Gombo*, No. ICC 01/05-01/08-424, Decision on the Confirmation of Charges, PTC II, 15 June 2009, para. 348 <<http://www.legal-tools.org/en/doc/07965c/>>.

⁹⁴ Critical Manacorda and Meloni (2011) 9 *JICJ* 159, 174 *et seq.* (arguing that the concept could 'overly broaden' the thresholds of liability for perpetration and therefore would need further clarification in the upcoming case law). Werle and Burghardt, in: Bloy *et al.* (eds.), *Festschrift für Manfred Maiwald* (2011) 849, 861 correctly claim that a correct application of the 'control over the act' theory requires that only the crimes committed jointly by the different organizations (and not also those committed by one organization alone) shall be attributed to the co-perpetrators. Welcoming the Chamber's findings and relating them to the Preamble's call against impunity ('the most serious crimes ... must not go unpunished') Černić (2011) 22 *CLF* 539, 558, 565 (calling this mode 'joint commission through another person'). Against this 'radical expansion of Article 25(3)(a)' in such cases, *Prosecutor v. Ngudjolo Chui*, No. ICC-01/04-02/12-4, Judgment, TC, Concurring Opinion of Judge van den Wyngaert, 18 December 2012, paras. 58–64 <<http://www.legal-tools.org/doc/7d5200/>>.

⁹⁵ Cf. for the relevant findings *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-1, Decision on the the Prosecution's Application for a Warrant of Arrest, PTC I, 4 March 2009, paras. 209–223 <<http://www.legal-tools.org/doc/814cca/>>, charging Al Bashir as an indirect perpetrator or indirect co-perpetrator; cf. also Eldar (2014) 8 *CrimL&Phil* 605, 610–1.

⁹⁶ *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, paras. 136 *et seq.* <<http://www.legal-tools.org/doc/0536d5/>>; dissenting *ibid.*, Partially Dissenting Opinion of Judge van den Wyngaert, para. 5, with fn. 3 (the 'notion [of indirect co-perpetration] is incompatible with article 25(3)(a) of the Statute').

namely a form of *joint indirect perpetratorship* ('*Mittäterschaft in mittelbarer Täterschaft*')⁹⁷. Accordingly, as opposed to indirect co-perpetration, there exists only one (criminal) organization led and dominated by (various) co-perpetrators acting with a common purpose. In other words, this combination of indirect perpetration with co-perpetration does not encompass cases where various organizations collaborate, but only those cases where various leaders, as indirect perpetrators, exercise joint control over *one* hierarchical organization. That is the case in the *Blé Goudé* decision where '*Blé Goudé* is charged with having committed the alleged crimes jointly with Laurent Gbagbo and the latter's inner circle'⁹⁸, *i. e.*, having 'exercised control, jointly with the other co-perpetrators, over the pro-Gbagbo forces, which were organised and hierarchical in nature and through which the crimes charged were committed'⁹⁹. It is, however, questionable if this combined mode of perpetration can really be inferred from the mentioned *Al-Bashir* decision. For the only paragraph dedicated to indirect co-perpetration in that decision reads that Al Bashir and other 'leaders directed the *branches* of the "apparatus" of the State of Sudan that they led, in a coordinated manner, in order to jointly implement the common plan'¹⁰⁰, *i. e.*, it seems as if the PTC assumes that there are various sub-organizations ('branches') in the broader state organization. Be that as it may, a joint indirect perpetratorship is certainly conceptually possible and has indeed been recognized in other subsequent PTC-decisions¹⁰¹.

The *Katanga* TC, with Judge van den Wyngaert dissenting, confirmed the control over the act theory¹⁰². In fact, the TC does not only acknowledge the importance of this theory, but explicitly recognizes the ensuing forms of control¹⁰³ and, in particular, elaborates on the *Organisationsherrschaftslehre* ('*contrôle sur l'organisation*'), giving extensive credit to its founder Claus Roxin and suggesting two criteria for its application: the nature of the

⁹⁷ Weigend (2011) 9 *JICJ* 91, 92, 111; Werle and Burghardt, in: Bloy *et al.* (eds.), *Festschrift für Manfred Maiwald* (2011) 849, 853, 862 *et seq.*; cf. also Eldar (2014) 8 *CrimLe&Philos* 605, 606 *et seq.*, 611-3.

⁹⁸ *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 136. <<http://www.legal-tools.org/doc/0536d5/>>.

⁹⁹ *Ibid.*, para. 149.

¹⁰⁰ *Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09-1, Decision on the the Prosecution's Application for a Warrant of Arrest, PTC I, 4 March 2009, para. 216 (emphasis added) <<http://www.legal-tools.org/doc/814cca/>>. Indeed, the alternatively charged mode of pure 'indirect perpetration' seems to capture Al Bashir's responsibility better since he is alleged to have had 'full control of all branches of the apparatus of the State of Sudan' (para. 222). As to the element of 'co-perpetration' (*i.e.*, in the notion of indirect co-perpetration), Judge Anita Usacka expressed doubts whether the alleged co-perpetrators were in full capacity to frustrate the execution of the common plan and therefore only found reasonable grounds to charge *Al-Bashir* as an indirect perpetrator, *cf.* her Partly Dissenting Opinion, *ibid.*, para. 104. *Cf.* for the same doubts Manacorda and Meloni (2011) 9 *JICJ* 159, 169, 175. Preferring either indirect perpetration or co-perpetration van der Wilt (2009) 7 *JICJ* 307, 310, 314.

¹⁰¹ *Prosecutor v. Kenyatta et al.*, No. ICC-01/09-02/11-382, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 408 (referring to the *Mungiki* organization) <<http://www.legal-tools.org/doc/4972c0/>> and *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 315 <<http://www.legal-tools.org/doc/96c3c2/>>; *Prosecutor v. Saif Al-Islam Gaddafi*, No. ICC-01/11-01/11-3, Warrant of Arrest for Saif Al-Islam Gaddafi, 27 June 2011, 6 <<http://www.legal-tools.org/doc/1bcca2/>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, para. 101 <<http://www.legal-tools.org/doc/5686c6/>> and *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, para. 230 <<http://www.legal-tools.org/doc/5b41bc/>>.

¹⁰² *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, TC, 7 March 2014, paras. 1393-5 (arguing that this theory, being objective and subjective at the same time, fits best to Art. 25(3) and makes a distinction between the different forms of participation possible) <<http://www.legal-tools.org/doc/9813bb/>>; for this reason the Chamber retains this theory (*ibid.*, paras. 1382, 1396). The Chamber then applies it to define perpetrators ('auteurs') as persons '*qui ont un contrôle sur la commission dudit crime et qui ont connaissance des circonstances de fait leur permettant d'exercer ce contrôle*' (*ibid.*, § 1396) and the indirect perpetrator ('auteur indirect') as '*celui qui a le pouvoir de décider si et comment le crime sera commis dans la mesure où c'est lui qui détermine la perpétration*' [*ibid.*, emphasis in the original, fn. omitted]) while the accomplice ('complice') '*n'exerce pas un tel contrôle*' (*ibid.*). For the (other) original French quotes see Ambos (2014) 12 *JICJ* 219, 227, 228; see also Stahn (2014) 12 *JICJ* 809, 822-5.

¹⁰³ *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, TC, 7 March 2014, paras. 1402-3 ('*contrôle sur la volonté*' pursuant, *inter alia*, to '*contrainte*' or '*erreur*', and control pursuant to an '*appareil de pouvoir organisé*') <<http://www.legal-tools.org/doc/9813bb/>>.

organisation and its effective control by the persons who employ it for the commission of crimes¹⁰⁴. With the recent confirmation of this theory as ‘a convincing and adequate approach’ by the *Lubanga* AC¹⁰⁵ it is fair to say that this theory is indeed now the guiding principle to distinguish between perpetration and accessorial responsibility (secondary participation) in the Court’s case law¹⁰⁶. The AC’s reasoning starts by recognizing the existence (and liability) of a perpetrator behind direct (physical) perpetrators, even in cases where the latter ‘are themselves fully criminally responsible for that crime’; it calls for ‘a normative assessment of the relationship between the person actually carrying out the incriminated conduct and the person in the background, as well as of the latter person’s relationship to the crime’¹⁰⁷. The Chamber applies the same normative assessment to indirect co-perpetration¹⁰⁸ (given that it is just a special form of indirect perpetration) with a view to distinguish co-perpetration from accessorial responsibility¹⁰⁹.

Of course, the fundamental problem of any theory of indirect perpetration over fully responsible direct perpetrators, including the *Organisationsherrschaftslehre*, remains the convincing explanation of the indirect perpetrator’s control given that the direct perpetrator’s conduct is imputed to the *Hintermann* as though it were his own¹¹⁰. Generally speaking, perpetration by means requires a sufficiently tight control by the ‘*Hintermann*’ over the direct perpetrator, similar to the relationship between superior and subordinate in the case of command responsibility (article 28)¹¹¹. Although it cannot be denied that the ‘man in the

¹⁰⁴ *Ibid.*, paras. 1404–16 with the development of the two criteria in § 1407 *et seq.* These ground-breaking considerations deserve a much more detailed analysis but for reasons of space can only be summarized here as follows: § 1404 (*‘contrôle sur l’organisation’* with explicit reference to Roxin), 1405 (*‘l’exercice d’un contrôle sur un appareil de pouvoir rend possible un contrôle sur les crimes commis par ses membres’*), 1408 (*‘interchangeabilité’* of the direct perpetrators and their automatic execution of the crimes), 1409 (*‘automatisme fonctionnel’*), 1410 (general applicability to modern forms of criminal organizations), 1411 (as to the control of the *Hintermann* it is necessary that he uses *‘au minimum une partie de l’appareil’* to have the crimes committed), 1412 (effective control over the organization only possible by those *‘qui contrôlent, effectivement et sans interférence possible’* at least a part of it; adopting this writer’s position as quoted in fn. 3211; see also Ambos, *Treatise on ICL I* (2013) 159–60, 1413–15 (general subjective requirements with regard to the crimes and knowledge with regard to the *‘éléments fondamentaux’* which allow for the exercise of the said organizational control). Against this background, the caveat that the theory of organizational control is not the only *‘réponse juridique’* in interpreting Art. 25(3)(a) Alt. 3 (para. 1406) appears as a mere concession to internal disagreements or discussions given Judge van den Wyngaert’s continuing rejection of this theory; discussing her view Jain, *Perpetrators and Accessories in ICL* (2014), 94 *et seq.* More important in this regard is the Chamber’s clarification that other forms of participation may be relevant at the level of the internal structure of the organization (para. 1410). *In casu*, the Chamber rejected the control requirement (paras. 1417 *et seq.*) and convicted *Katanga* pursuant to Art. 25(3)(d) ICC Statute (paras. 1643 *et seq.*). *Cf.* also Stahn (2014) 12 *JICJ* 809, 824 who holds that the *Katanga* TC invoked a relatively high threshold for indirect perpetration than the *Lubanga* PTC; conc. with the *Katanga* approach Gil and Maculan (2015) 28 *LeidenJIL* 364 *et seq.* (focusing regarding *Organisationsherrschaft* on the effective control, at 367).

¹⁰⁵ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, paras. 469, 473 <<http://www.legal-tools.org/doc/585c75/>>.

¹⁰⁶ *Cf.* also *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 135, quoting the *Lubanga* AC Judgment <<http://www.legal-tools.org/doc/0536d5/>>.

¹⁰⁷ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, paras. 458, 465 (responsibility without personal commission (own hands)) <<http://www.legal-tools.org/doc/585c75/>>.

¹⁰⁸ *Ibid.*, para. 466 (‘it is not required that a person actually carries out directly and personally the incriminated conduct in order to be a co-perpetrator. Rather, in order to determine whether a person is a co-perpetrator, a normative assessment of that person’s role is required.’).

¹⁰⁹ *Ibid.*, para. 469. This assessment should be ‘primarily based on the objective criterion of the accused person’s extent of contribution to the crime’ (468). ‘The contribution of a co-perpetrator must be of greater significance’ than that of accessories (467).

¹¹⁰ Crit. for example Weigend (2011) 9 *JICJ* 91, 92, 103 (disapproving of the concept’s ‘vagueness of dominance’, in essence rejecting the organizational element in Article 25 (3) (a) and instead militating for assessing an indirect perpetrator’s control over the executor on a case-by-case basis, independent from the existence of organizational structures). Focusing on the person controlling the organisation as ‘the *Zentralgestalt* in the course of events leading up to the crimes’, Jain, *Perpetrators and Accessories in ICL* (2014) 141 *et seq.*

¹¹¹ Conc. Eser, in Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 795 with fn. 111; *id.* (2007) 5 *JICJ* 953, 964. On the proximity between command responsibility and *Organisationsherrschaft* see also Vest, *Genozid durch organisatorische Machtapparate* (2002) 300.

background' exercises only limited control over a fully responsible direct perpetrator – he or she may, at any time, decide to abandon the criminal plan – this lack of control is compensated by the control of the criminal organization, which produces an unlimited number of potential willing executors. In other (more 'dogmatic') words, although direct perpetrators acting with full criminal responsibility *cannot* be considered mere 'fungible mediators of the act' (*fungible Tatmittler*), the system provides for a practically unlimited number of replacements and thereby for a high degree of flexibility as far as the personnel necessary to commit the crimes is concerned¹¹². For this 'system' or organizational reason, one can also argue, as already done above (mn. 13), that the individual perpetrator has less institutional autonomy than the one acting outside a system or organization. Another, more normativist explanation of *Organisationsherrschaft* follows, with regard to state organizations, from the state's special duty of protection *vis-à-vis* its citizens which entails its special duty to limit and control its violating power (*Verletzungsmacht*) with regard to citizens' rights. If the state orders to violate these rights or fails to prevent such violations, it does not live up to this special duty and thus its highest representatives incur criminal responsibility being part of the state organization¹¹³.

Still, it is clear that only very few persons command the control necessary to immediately replace one (failing) executor by another, namely only those who belong to the leadership of the criminal organization or who at least control a part of the organization; only they can dominate the unfolding of the criminal plan undisturbed by other members of the organization¹¹⁴. Although these persons are generally far away from the actual execution of the criminal acts and are therefore normally considered indirect perpetrators or even accessories before the fact, they are in fact, from a normative perspective, the main perpetrators while the executors (the direct perpetrators) are merely accessories or accomplices in the implementation of the criminal enterprise¹¹⁵. In contrast, mid-level perpetrators lack unlimited control, their actions might always be 'disturbed' by superiors; therefore, they rather qualify as co-perpetrators than indirect perpetrators assuming that they have an, at least, silent agreement with the direct, low-level perpetrators¹¹⁶.

Thus, it becomes clear that the system of individual attribution of responsibility, as used for ordinary criminality, must be modified in international criminal law aiming at the development of a mixed system of individual-collective responsibility in which the criminal enterprise or organisation as a whole serves as the entity upon which attribution of criminal responsibility is based (so-called *Zurechnungsprinzip Gesamttat*)¹¹⁷. In this sense, the individual criminal contributions of the participants must be assessed in the light of their effect on

¹¹² Cf. Ambos, *Der Allgemeine Teil* (2002/2004) 594 *et seq.* (597–8), 614 with further references; in a similar vein Jain, *Perpetrators and Accessories in ICL* (2014), 141–2.

¹¹³ Cf. for more details Ambos, in: Nollkaemper and van der Wilt (eds.), *System Criminality* (2009) 127, 148 *et seq.* with further references in fn. 98 and Ambos (2011) 9 *JICJ* 137, 155–6.

¹¹⁴ Ambos, *Der Allgemeine Teil* (2002/2004) 602 *et seq.*, 614; *id.*, in: Nollkaemper and van der Wilt (eds.), *System Criminality* (2009) 127, 154; Ambos, in: Heinrich *et al.* (eds.), *Festschrift für Claus Roxin* (2011) 837, 850 *et seq.*

¹¹⁵ Cf. Vest, *Genozid durch organisatorische Machtapparate* (2002) 220, 249; *id.*, *Völkerrechtsverbrecher verfolgen* (2011) 375.

¹¹⁶ For a different view Vest, *Völkerrechtsverbrecher verfolgen* (2011) 430 *et seq.*; *id.* (2014) 12 *JICJ* 295, 304 who considers 'ordering' as the appropriate mode of liability for the top-level perpetrators and applies indirect-perpetration to the mid-level perpetrators since only they (and *not* the top-level agents) dispose of fungible direct executors.

¹¹⁷ On this fundamental concept of attribution for collective criminality see the seminal work of Dencker, *Kausalität und Gesamttat* (1996) 125 *et seq.*, 152 *et seq.*, 229, 253 *et seq.* and *passim*; *id.*, in: Prittwitz *et al.* (eds.), *Festschrift für Klaus Lüderssen* (2002) 525, 534 *et seq.* The concept was further elaborated by Vest, *Genozid durch organisatorische Machtapparate* (2002) 214 *et seq.*, 236 *et seq.*, 303, 304 *et seq.*, 359 *et seq.* (referring in particular to the crime of genocide) and *id.*, *Völkerrechtsverbrecher verfolgen* (2011) 373 *et seq.*, 414 *et seq.*; see also Ambos, in: Heinrich *et al.* (eds.), *Festschrift für Claus Roxin* (2011) 837, 846 *et seq.* For a discussion on the ICC's challenge to develop a consistent system of attribution see also Fletcher (2011) 9 *JICJ* 179–190; *cf.* also Jain, *Perpetrators and Accessories in ICL* (2014) 138–149. On the limitations of the indirect modes of liability *cf.* also Eldar (2014) 8 *Crim. L. and Philos.* 605, 613 *et seq.*

the criminal plan or purpose pursued by the criminal apparatus or organization. Contributions without any effect may be excluded and the contributors exempted from responsibility. One can speak of a system of ‘organizational domination in stages’ (*stufenweise Organisationsherrschaft*), where domination requires, however, at least some form of control over part of the organization¹¹⁸. Thus, taking up the distinction between main perpetrators and accomplices made above, there are in fact *three levels of participation*: the first and highest level is composed of those (main) perpetrators who plan and organize the criminal events as a whole and as such belong to the leadership level (*Führungstäter*); at the second level we find those (still main) perpetrators of at least the mid-level of the hierarchy who exercise some form of control over a part of the organization (*Organisationstäter*); the third and last level consists of the accomplices who merely execute the crimes (*Ausführungstäter*)¹¹⁹. Thus, in a nutshell, the participant’s influence on the macro-criminal event depends, from a normative perspective, on his or her rank and influence within the collective system responsible for the criminal events as a whole.

b) ‘... regardless of whether that other person is criminally responsible’. It is not clear from the English original wording if ‘that other person’ refers to both co-perpetration and perpetration by means or only to the latter. The travaux do not offer an explanation, since the problem was simply not addressed in Rome. The French (*‘celle-ci’*) and Spanish (*‘éste’*) versions indicate, however, that the reference applies only to the intermediary. This is confirmed by a teleological interpretation.

As explained above (mn. 8), in the case of co-perpetration all persons involved fulfil a certain function and are, therefore, criminally responsible. Thus, the reference cannot apply to co-perpetration. On the other hand, in the case of perpetration by means, it is typical that the person used (‘the instrument’) is not criminally responsible. The express recognition of this fact is superfluous. Yet it makes sense in the exceptional case that the instrument is criminally responsible, e.g., in the above mentioned ‘*Organisationsherrschaft*’ by the indirect perpetrator. For in this case the reference confirms that a perpetration by means is even possible if the direct perpetrator is criminally responsible¹²⁰. This was confirmed by the *Lubanga* AC¹²¹ as explained above (mn. 14).

2. ‘orders, solicits or induces’ an (attempted) crime

A number of very different forms of participation are established in this subparagraph. A person who *orders* a crime is not a mere accomplice but rather an indirect perpetrator, using a subordinate to commit the crime¹²². Indeed, the identical article 2 para. 1 (b) of the 1996 Draft Code was intended to provide for the criminal responsibility of mid-level officials who order their subordinates to commit crimes¹²³. The ICTR, in the *Akayesu* judgment, held that ‘ordering implies a superior-subordinate relationship’ whereby ‘the person in a position of

¹¹⁸ See already Ambos (1998) 145 GA 226, 237–8; also available in Spanish: ‘Dominio del hecho por dominio de voluntad en virtud de aparatos organizados de poder’ 37–8 (Bogotá 1998, Universidad Externado) = 3 Revista de Derecho Penal y Criminología (Universidad Nacional de Educación a Distancia, Facultad de Derecho, Spain) 133 (Jan. 1999, 2^{nda} Época) = 9 Cuadernos de Doctrina y Jurisprudencia Penal (Argentina) 367 (1999). Conc. Vest, *Genozid durch organisatorische Machtapparate* (2002) 239. On the nature of the organization see Ambos, in: Heinrich *et al.* (eds.), *Festschrift für Claus Roxin* (2011) 837 *et seq.* (spanish in <www.indret.com>); cf. also Jain, *Perpetrators and Accessories in ICL* (2014), 144, for whom organisation can have a very broad meaning including ‘informal networks of power with weak links’.

¹¹⁹ Cf. Vest, *Genozid durch organisatorische Machtapparate* (2002) 29–30, 240 *et seq.*, 302; *id.*, *Völkerrechtsverbrecher verfolgen* (2011) 409 *et seq.*

¹²⁰ Conc. van Sliedregt, *Criminal Responsibility* (2003) 71. See recently Roxin, in: Amelung *et al.* (eds.), *Festschrift für Volker Krey* (2010) 449, 451–2.

¹²¹ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-3121-Red, Judgment, AC, 1 December 2014, para. 465 <<http://www.legal-tools.org/doc/585c75/>>.

¹²² Contrary Werle and Jessberger, *Principles* (2014) 214 arguing that ‘ordering’ constitutes a sub-category of instigation; also Satzger, *Internationales Strafrecht* (2013) § 15 mn. 61.

¹²³ 1996 ILC Draft Code, p. 25 (para. 14).

authority uses it to convince (or coerce) another to commit an offence'¹²⁴. Such a – at least *de facto*¹²⁵ – ‘superior-subordinate relationship’ is also the first and basic requirement of command or superior responsibility as first confirmed in the ‘*Celebici*’ case¹²⁶ and adopted by the subsequent case law of the *ad hoc* Tribunals¹²⁷. The ICC case law so far also requires a ‘position of authority’ from which the person responsible has to ‘instruct’ another person to commit a crime¹²⁸, but, apart from that, it does not distinguish ordering from the other forms of accessorial liability of subparagraph (b)¹²⁹. In any case, the first alternative in subparagraph (b) ([o]rders) complements the command responsibility provision (article 28): in the latter case the superior is liable for an omission, in the case of an order to commit a crime the superior is liable for commission for having ‘ordered’. In conclusion, the first alternative in subparagraph (b) actually belongs to the forms of perpetration provided for in subparagraph (a), being a form of commission ‘through another person’¹³⁰; as a consequence, any additional subjective requirement, such as the ‘intent to destroy’ in Article 6, must be fulfilled¹³¹.

¹²⁴ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 483 <<http://www.legal-tools.org/doc/b8d7bd/>>. In the same vein *Prosecutor v. Krstić*, No. IT-98-33/T, Judgment, TC, 2 August 2001, para. 601 <<http://www.legal-tools.org/doc/440d3a/>>; *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, TC, 31 July 2003, para. 445 <<http://www.legal-tools.org/doc/32ecfb/>>; see also *Prosecutor v. Mrksić et al.*, No. IT-95-13/1-T, Judgment, TC, 27 September 2007, para. 550 <<http://www.legal-tools.org/doc/32111c/>>; *Prosecutor v. Martić*, No. IT-95-11-T, Judgment, TC, 12 June 2007, para. 441 <<http://www.legal-tools.org/doc/06634c/>>; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, para. 905 <<http://www.legal-tools.org/doc/445e4e/>>; *Prosecutor v. Stanišić and Simatović*, No. IT-03-69-T, Judgment Vol. II, TC, 30 May 2013, para. 1263 <<http://www.legal-tools.org/doc/698c43/>>.

¹²⁵ Cf. for example, *Prosecutor v. Boskoski and Tarculovski*, No. IT-04-82-A, Judgment, AC, 19 May 2010, para. 164 <<http://www.legal-tools.org/doc/54398a/>> and *Prosecutor v. Ntawukulilyayo*, No. ICTR-05-82-T, Judgment and Sentence, TC, 3 August 2010, para. 416 <<http://www.legal-tools.org/doc/dbc983/>>.

¹²⁶ *Prosecutor v. Delalić et al.*, No. IT-96-21-T, Judgment, TC, 16 November 1998, paras. 348 *et seq.* <<http://www.legal-tools.org/doc/6b4a33/>>. Cf. Zahar and Sluiter, *ICL Introduction* (2008) 261 *et seq.*

¹²⁷ Cf. *Prosecutor v. Renzaho*, No. ICTR-97-31-T, Judgment, TC, 14 July 2009, paras. 744 *et seq.* <<http://www.legal-tools.org/doc/9bbd8a/>>; *Prosecutor v. Bizimungu*, No. ICTR-00-56B-A, Judgment, AC, 30 June 2014, para. 73 <<http://www.legal-tools.org/doc/4c5065/>>; *Prosecutor v. Djordjević*, No. IT-05-87/1-T, Judgment, TC, 23 February 2011, para. 1881 <<http://www.legal-tools.org/doc/653651/>>; *Prosecutor v. Gotovina et al.*, No. IT-06-90-T, Judgment Vol. II, TC, 15 April 2011, para. 1963 <<http://www.legal-tools.org/doc/86922c/>>; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, para. 905 <<http://www.legal-tools.org/doc/445e4e/>>; *Prosecutor v. Brima et al.*, No. SCSL-2004-16-PT, Further Amended Consolidated Indictment, 18 February 2005, para. 36 <<http://www.legal-tools.org/doc/c3dc48/>>; see also with regard to ECCC *Prosecutor v. Khieu and Nuon*, No. 002/19-09-2007/ECCC/TC, Judgment, TC, 7 August 2014, para. 715 <<http://www.legal-tools.org/doc/4888de/>>. For a summary of the earlier case law see Ambos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICL* (2002) 815 *et seq.* and Cryer, in: *id. et al., Introduction to ICL* (2014) 353, 375 *et seq.* For case law references since World War II see Finnin, *Accessory Modes of Liability* (2012) 43 *et seq.*

¹²⁸ *Prosecutor v. Mudacumura*, No. ICC-01/04-01/12-1Red, Decision on the Prosecutor’s Application under Article 58, PTC II, 13 July 2012, paras. 63–5 <<http://www.legal-tools.org/doc/ecfae0/>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, para. 145 <<http://www.legal-tools.org/doc/5686c6/>>; conc. *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, paras. 243, 245 <<http://www.legal-tools.org/doc/5b41bc/>>.

¹²⁹ See especially *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, para. 243 <<http://www.legal-tools.org/doc/5b41bc/>> where PTC I puts the forms of liability of subparagraph (b) on an equal footing with the exception of a position of authority as a special element of ordering. In its application to the case it does not distinguish between ordering and (normally) instigating either (esp. para. 246: ‘... instructed or otherwise instigated ...’); in the same vein, *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 159 <<http://www.legal-tools.org/doc/0536d5/>>, holding that ‘soliciting’, ‘inducing’ and ‘ordering’, are all form of instigation, and overlap with each other ‘with the exception of the requirement of a position of authority held by the person vis-à-vis the perpetrator(s) of the crime, which is particular to ‘ordering’ and is not a necessary element of ‘soliciting’ or ‘inducing’.

¹³⁰ In the same vein Eser, in Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 797 who, however, correctly clarifies (in fn. 123) that the *Akayesu* TC considers ‘ordering’ as a form of complicity. See also Satō (2012) 12 *ICLRev* 293, 297–300, who considers ordering within the meaning of Article 25(3)(b) as a form of principal responsibility as recognized by *Katanga and Ngudjolo Chui* PTC by *Organisationsherrschaft*. cf. also Cryer, in: *id. et al., Introduction to ICL* (2014) 353, 379.

¹³¹ Contrary Werle and Jessberger, *Principles* (2014) 215–6.

Soliciting a crime means, *inter alia*, ‘urging, advising, commanding, or otherwise inciting another to commit a crime’¹³². Similarly, *inducing* entails the ‘enticement or urging of another person to commit a crime’¹³³. Thus, both terms basically refer to a situation where a person is influenced by another to commit a crime¹³⁴. In fact, the French version of the Statute speaks of ‘*sollicite ou encourage*’, thereby using a form of solicitation to express the English term ‘induce’. In substance, in both cases a person is caused to commit a crime¹³⁵. Such ‘causal’ influence is normally of a psychological nature (persuasion), but may also take the form of physical pressure (coercion) within the meaning of *vis compulsiva*¹³⁶. It may also occur in a chain, *i.e.*, a person induces another to induce a third person to commit a crime¹³⁷. In contrast to cases of ‘ordering’, a superior-subordinate relationship is not necessary¹³⁸. In both cases, however, the conduct must have a ‘direct effect on the commission or attempted commission of the crime’¹³⁹.

3. ‘For the purpose of facilitating aids, abets or otherwise assists ...’

Subparagraph (c) codifies any other assistance not covered by subparagraph (b). Generally speaking, participation as defined by subparagraph (b) implies a higher degree of responsibility than in the case of subparagraph (c).

a) ‘aids, abets or otherwise assists ... including providing the means’. ‘Aiding and abetting’ as the weakest form of complicity covers any act, which contributes to the commission or attempted commission of a crime¹⁴⁰. The difficult task is to determine the minimum requirements of this mode of complicity. Article 2 para. 3 (d) of the 1996 Draft Code requires that the aiding and abetting be ‘direct and substantial’; *i.e.*, the contribution should facilitate the commission of a crime in ‘some significant way’¹⁴¹. The ICTY referred to these criteria in the *Tadić* case and held that the act in question must constitute a direct and substantial contribution to the commission of the crime¹⁴². ‘Substantial’ means that the contribution has an effect on the commission; in other words, it must – in one way or

¹³² Black (ed.), *Black’s Law Dictionary* (1999) 1398; American Law Institute, *Model Penal Code and Commentaries* (1985) § 5.02 (1).

¹³³ Black (ed.), *Black’s Law Dictionary* (1999) 779.

¹³⁴ See also *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, para. 243 (even including ‘ordering’) <<http://www.legal-tools.org/doc/5b41bc>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, para. 153 (inducing as exerting influence over another person) <<http://www.legal-tools.org/doc/5686c6>>.

¹³⁵ Cf. Ambos, *Der Allgemeine Teil* (2004) 481 *et seq.* I do not longer follow the view of the First Edition, that a meaningful terminological distinction between both terms can be made. For an ‘umbrella’ function of soliciting also Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 797 with fn. 117. Different Militello (2007) 5 JICJ 941, 947. See also Werle and Jessberger, *Principles* (2014) 213–4.

¹³⁶ Unlike *vis absoluta*, *vis compulsiva* leaves the person still a certain freedom to act and decide (cf. Jescheck and Weigend, *Strafrecht. Allgemeiner Teil* (1996) 224).

¹³⁷ Cf. Vest, *Genozid durch organisatorische Machtapparate* (2002) 203 *et seq.*, 238.

¹³⁸ In this sense, see also *Prosecutor v. Nchamihigo*, No. ICTR-01-63-A, Judgment, AC, 18 March 2010, para. 188 (‘a position of authority is not a required element under this mode of liability’) <<http://www.legal-tools.org/doc/4b3598>>; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, para. 902 <<http://www.legal-tools.org/doc/445e4e>>; *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 159 (‘the requirement of a position of authority... is not a necessary element of “soliciting” or “inducing”’) <<http://www.legal-tools.org/doc/0536d5>>; Heller, in: Heller and Dubber, *Handbook* (2011) 593, 607.

¹³⁹ *Prosecutor v. Mudacumura*, No. ICC-01/04-01/12-1Red, Decision on the Prosecutor’s Application under Article 58, PTC II, 13 July 2012, para. 63 (regarding ordering) <<http://www.legal-tools.org/doc/ecfae0>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, paras. 145, 153 <<http://www.legal-tools.org/doc/5686c6>>; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, para. 247 <<http://www.legal-tools.org/doc/5b41bc>>.

¹⁴⁰ Cf. Finnin, *Accessory Modes of Liability* (2012) 73 *et seq.*, 90–1 (‘virtually no limits on the type of act’, 91).

¹⁴¹ 1996 ILC Draft Code, 24 (para. 10).

¹⁴² *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, TC, 7 May 1997, paras. 674, 688–92 <<http://www.legal-tools.org/doc/0a90ae>>.

another – have a causal relationship with the result¹⁴³. However, this does not necessarily require physical presence at the scene of the crime. In *Tadić*, TC II followed a broad concept of complicity based on the English ‘concerned in the killing’ theory¹⁴⁴. In fact, the Chamber did not take the ‘direct and substantial’ criterion very seriously since it included within the concept of aiding and abetting ‘all acts of assistance by words or acts that lend encouragement or support’¹⁴⁵. This position was confirmed by a TC in ‘*Celebici*’¹⁴⁶ and, more recently, in *Naletilić and Martinović*¹⁴⁷. The AC stressed that the aiding and abetting must have a substantial effect on the main act¹⁴⁸.

- 22 In *Furundžija* the ICTY took a more sophisticated view¹⁴⁹. The TC distinguished between the nature of assistance and its effect on the act of the principal (main perpetrator). Regarding the former it stated that the assistance need not be ‘tangible’ but that ‘moral support and encouragement’ is sufficient. Mere presence at the scene of the crime suffices if it has ‘a significant legitimizing or encouraging effect on the principals’. The term ‘direct’ – used by the ILC – in qualifying the proximity of the assistance is ‘misleading’ since it implies that the assistance needs to be ‘tangible’¹⁵⁰. Regarding the effect of the assistance the Chamber does not consider a causal relationship in the sense of the *conditio sine qua non* formula necessary but holds that the acts of assistance must ‘make a significant difference to the commission of the criminal act by the principal’. Thus, it is, for example, sufficient that a person continues to interrogate the victim while it is being raped by another person¹⁵¹. The ‘significant’-requirement, however, implies that it would not be sufficient if the accomplice has only ‘a role in a system without influence’¹⁵². With regard to the Rome Statute, the Chamber explicitly states that it is ‘less restrictive’ than the ILC Draft Code 1996 since it does not limit aiding and abetting – as article 2 para. 3 (d) Draft Code does – to assistance which ‘facilitate[s] in some significant way’, or ‘directly and substantially’ assists the perpetrator. Rather, subparagraph (c) contemplates ‘assistance either in physical form or in the form of moral support. ... “abet” includes mere exhortation or encouragement’¹⁵³. In sum, aiding and abetting requires ‘practical assistance, encouragement, or moral support which has a substantial effect on the perpetration of the crime’¹⁵⁴. The AC endorsed this view¹⁵⁵.

¹⁴³ *Ibid.*, para. 688. On the substantial effect as a ‘form of causation’ see also Stewart (2012) 25 *LJIL*165, 203.

¹⁴⁴ *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, TC, 7 May 1997, para. 687: ‘... not only does one not have to be present but the connection between the act contributing to the commission and the act of commission itself can be geographically and temporally distanced’ <<http://www.legal-tools.org/doc/0a90ae/>>. For the ‘concerned in the killing’ doctrine, see: (1948) 15 *LRTWC* 49-51; also: *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 691 <<http://www.legal-tools.org/doc/8efc3a/>>.

¹⁴⁵ *Ibid.*, para. 689.

¹⁴⁶ *Prosecutor v. Delalić et al.*, No. IT-96-21-T, Judgment, TC, 16 November 1998, paras. 325-9 <<http://www.legal-tools.org/doc/6b4a33/>>.

¹⁴⁷ *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-T, Judgment, TC, 31 March 2003, para. 726 <<http://www.legal-tools.org/doc/f2cfef/>>, see also *Prosecutor v. Blagojević and Jokić*, No. IT-02-60-T, Judgment, TC, 17 January 2005, para. 726 <<http://www.legal-tools.org/doc/7483f2/>>.

¹⁴⁸ *Prosecutor v. Delalić et al.*, No. IT-96-21-A, Judgment, AC, 20 February 2001, para. 352 <<http://www.legal-tools.org/doc/051554/>>. As to the concrete case the Chamber held that the position as a camp guard is not *per se* sufficient (para. 364).

¹⁴⁹ *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, paras. 190-249 <<http://www.legal-tools.org/doc/e6081b/>>.

¹⁵⁰ *Ibid.*, paras. 199, 232.

¹⁵¹ *Ibid.*, paras. 273-4; confirmed by the AC in *Prosecutor v. Furundžija*, No. IT-95-17/1 A, Judgment, AC, 21 July 2000, para. 126 <<http://www.legal-tools.org/doc/660d3f/>> and *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-T, Judgment, TC, 31 March 2003, para. 63 <<http://www.legal-tools.org/doc/f2cfef/>>.

¹⁵² *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, paras. 217, 233-4 <<http://www.legal-tools.org/doc/e6081b/>>.

¹⁵³ *Ibid.*, para. 231.

¹⁵⁴ *Ibid.*, paras. 235, 249.

¹⁵⁵ *Prosecutor v. Furundžija*, No. IT-95-17/1 A, Judgment, AC, 21 July 2000, paras. 117 *et seq.* <<http://www.legal-tools.org/doc/660d3f/>>.

The subsequent case law of the ICTY has confirmed the broad concept of aiding and abetting developed in *Tadić*, *Celibici* and *Furundžija*¹⁵⁶. The *Aleksovski* TC required an 'effect important' on the main act¹⁵⁷ and allowed the act of support to be given at any time¹⁵⁸. In *Prosecutor v. Strugar*¹⁵⁹ the TC declined to enter convictions against *Pavle Strugar* for aiding and abetting on the grounds that there was no settled jurisprudence on whether, and in what circumstances, an omission may constitute the *actus reus* of aiding and abetting. Further, it found that *Strugar's* failure to carry out an investigation into the offences committed and punish the perpetrators thereof occurred well after the commission of the offences and thus could not have had a requisite direct and substantial effect on them¹⁶⁰. As to the issue of a causal relationship between the aiding and the final criminal result, the TCs in *Aleksovski*, *Blaškić*, *Krnojelac*, *Vasiljević*, and *Naletilić and Martinović* followed *Furundžija* renouncing this requirement¹⁶¹. Presence at the scene of the crime would (only) be sufficient if the accused had an '*autorité incontestée*' that encouraged the direct perpetrator to commit the crime¹⁶². At a minimum, the presence of a superior constitutes a 'probative indication' in

¹⁵⁶ *Prosecutor v. Aleksovski*, No. IT-95-14/1-T, Judgment, TC, 25 June 1999, paras. 60 *et seq.* <<http://www.legal-tools.org/doc/52d982/>>; *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, TC, 3 March 2000, para. 245 <<http://www.legal-tools.org/doc/e1ae55/>>; *Prosecutor v. Kunarac et al.*, Nos. IT-96-23-T and IT-96-23/1-T, Judgment, TC, 22 February 2001, paras. 391–3 <<http://www.legal-tools.org/doc/fd881d/>>; *Prosecutor v. Kordić and Čerkez*, No. IT-95-14/2-T, Judgment, TC, 26 February 2001, paras. 395 *et seq.* <<http://www.legal-tools.org/doc/d4fedd/>>; *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, paras. 88 *et seq.* <<http://www.legal-tools.org/doc/1a994b/>>; *Prosecutor v. Limaj et al.*, No. IT-03-66-T, Judgment, TC, 30 November 2005, para. 516 <<http://www.legal-tools.org/doc/4e469a/>>; confirmed by *Prosecutor v. Limaj et al.*, No. IT-03-66-A, Judgment, AC, 27 September 2007, paras. 90 *et seq.* <<http://www.legal-tools.org/doc/6d43bf/>>; *Prosecutor v. Mrksić et al.*, No. IT-95-13/1-T, Judgment, TC, 27 September 2007, paras. 551 *et seq.* <<http://www.legal-tools.org/doc/32111c/>>; *Prosecutor v. Haradinaj et al.*, No. IT-04-84-T, Judgment, TC, 3 April 2008, para. 145 <<http://www.legal-tools.org/doc/025913/>>; *Prosecutor v. Oric*, No. IT-03-68-A, Judgment, AC, 3 July 2008, para. 43 <<http://www.legal-tools.org/doc/e053a4/>>; *Prosecutor v. Mrksić et al.*, No. IT-95-13/1, Judgment, AC, 5 May 2009, paras. 48, 81, 146, 159 <<http://www.legal-tools.org/doc/40bc41/>>; *Prosecutor v. Popović et al.*, No. IT-05-88-T, Judgment, TC, 10 June 2010, paras. 1014, 1018 <<http://www.legal-tools.org/doc/481867/>>; *Prosecutor v. Djordjević*, No. IT-05-87/1-T, Judgment, TC, 23 February 2011, paras. 1873–4 <<http://www.legal-tools.org/doc/653651/>>; *Prosecutor v. Gotovina et al.*, No. IT-06-90-T, Judgment Vol. II, TC, 15 April 2011, para. 1960 *et seq.* <<http://www.legal-tools.org/doc/86922c/>>; *Prosecutor v. Lukić and Lukić*, No. IT-98-32/1-T, Judgment, TC, 20 July 2009, para. 901 <<http://www.legal-tools.org/doc/af5ad0/>>; *Prosecutor v. Perišić*, No. IT-04-81-T, Judgment, TC, 6 September 2011, para. 126 <<http://www.legal-tools.org/doc/f3b23d/>>; *Prosecutor v. Tolimir*, No. IT-05-88/2-T, Judgment, TC, 12 December 2012, paras. 907–8 <<http://www.legal-tools.org/doc/445e4e/>>. Regarding the ICTR see *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, para. 482 <<http://www.legal-tools.org/doc/4ad5eb/>>; *Prosecutor v. Muvunyi*, No. ICTR-2000-55A-T, Judgment and Sentence, TC, 12 September 2006, para. 470 <<http://www.legal-tools.org/doc/fa02aa/>>. With regard to the SCSL, *Prosecutor v. Taylor*, No. SCSL-03-01-T, Judgment, TC, 18 May 2012, para. 6904 <<http://www.legal-tools.org/doc/8075e7/>> (for an analysis Ambos and Njikam (2013) 11 *JICJ* 789, 792 *et seq.*, 799 *et seq.*; *Prosecutor v. Taylor*, No. SCSL-03-01-A, Judgment, AC, 26 September 2013, paras. 362 *et seq.*, 401 <<http://www.legal-tools.org/doc/3e7be5/>>).

¹⁵⁷ *Prosecutor v. Aleksovski*, No. IT-95-14/1-T, Judgment, TC, 25 June 1999, paras. 60–1 <<http://www.legal-tools.org/doc/52d982/>>.

¹⁵⁸ *Ibid.*, para. 62. See also *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, TC, 3 March 2000, para. 284 <<http://www.legal-tools.org/doc/e1ae55/>>.

¹⁵⁹ *Prosecutor v. Strugar*, No. IT-01-42-T, Judgment, TC, 31 January 2005 <<http://www.legal-tools.org/doc/927ba5/>>.

¹⁶⁰ Cf. Hinek (2006) 19 *LeidenJIL* 477.

¹⁶¹ *Prosecutor v. Aleksovski*, No. IT-95-14/1-T, Judgment, TC, 25 June 1999, para. 61 <<http://www.legal-tools.org/doc/52d982/>>; *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, TC, 3 March 2000, para. 284 <<http://www.legal-tools.org/doc/e1ae55/>>; *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, para. 88 <<http://www.legal-tools.org/doc/1a994b/>>; *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-T, Judgment, TC, 31 March 2003, para. 63 <<http://www.legal-tools.org/doc/f2cfef/>>; *Prosecutor v. Vasiljević*, No. IT-98-32-T, Judgment, TC, 29 November 2002, para. 70 <<http://www.legal-tools.org/doc/8035f9/>>; *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, AC, 29 July 2004, para. 48 <<http://www.legal-tools.org/doc/88d8e6/>>; *Prosecutor v. Blagojević and Jokić*, No. IT-02-60-T, Judgment, TC, 17 January 2005, para. 726 <<http://www.legal-tools.org/doc/7483f2/>>.

¹⁶² *Prosecutor v. Aleksovski*, No. IT-95-14/1-T, Judgment, TC, 25 June 1999, paras. 63 *et seq.* (65) <<http://www.legal-tools.org/doc/52d982/>>; similarly *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, para. 89: 'significant legitimising or encouraging effect' <<http://www.legal-tools.org/doc/1a994b/>>; also *Prosecutor v. Vasiljević*, No. IT-98-32-T, Judgment, TC, 29 November 2002, para. 70 <<http://www.legal-tool->

this respect¹⁶³. Most recently, the debate about ‘specific direction’ as a constitutive element of aiding or abetting¹⁶⁴ brought again the question of a reasonable limitation of this form of liability to the fore. While it is controversial whether specific direction has always been, either as part of the *actus reus* or of the *mens rea*, an element of aiding and abetting in the ICTY/ICTR case law¹⁶⁵, it serves as an important qualifier in establishing a culpable link between the assistance provided by the accomplice and the crimes of the principal perpetrators¹⁶⁶. In this sense, specific direction may also be invoked to more precisely determine the relevant assistance or contribution in the context of the discussion about neutral acts, especially with regard to Article 25(3)(d)¹⁶⁷.

- 24 The ICTR defined aiding in *Akayesu* as ‘giving assistance to someone’ and abetting as involving ‘facilitating the commission of an act by being sympathetic thereto’¹⁶⁸. The separate definitions of aiding and abetting do not mean, however, that individual responsibility within the meaning of article 6 para. 1 ICTR Statute is only incurred if both forms of participation – aiding and abetting – have been realized; aiding or abetting is sufficient¹⁶⁹. Subsequent case law, however, does not distinguish between aiding and abetting but requires for both, taking the same approach as the ICTY, any form of physical or moral support which contributes substantially to the commission of a crime¹⁷⁰. Similarly, the ICC PTC in *Blé Goudé* does not

s.org/doc/8035f9/»; *Prosecutor v. Blagojević and Jokić*, No. IT-02-60-T, Judgment, TC, 17 January 2005, para. 726, fn. 2177: ‘Mere presence’ at the scene of the crime is not conclusive of aiding and abetting unless it is demonstrated to have a significant encouraging effect on the principal offender’ <<http://www.legal-tools.org/doc/7483f2/>>.

¹⁶³ *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, TC, 3 March 2000, para. 284 <<http://www.legal-tools.org/doc/e1ae55/>>; conc. *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-T, Judgment, TC, 31 March 2003, para. 63 <<http://www.legal-tools.org/doc/f2cfeb/>>; *Prosecutor v. Gotovina et al.*, No. IT-06-90-T, Judgment Vol. II, TC, 15 April 2011, para. 1960 <<http://www.legal-tools.org/doc/86922c/>>. In *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, TC, 3 March 2000, para. 284 <<http://www.legal-tools.org/doc/e1ae55/>>, the AC explicitly left open the possibility that ‘in the circumstances of a given case, an omission may constitute the *actus reus* of aiding and abetting (para. 47)’.

¹⁶⁴ *Prosecutor v. Perišić*, No. IT-04-81-A, Judgment, AC, 28 February 2013, para. 36 <<http://www.legal-tools.org/doc/f006ba/>> (‘no conviction for aiding and abetting may be entered if the element of specific direction is not established beyond reasonable doubt, either explicitly or implicitly’); para. 73 (‘... where an accused individual’s assistance is remote from the actions of principal perpetrators, specific direction must be explicitly established’). Conc. *Stanišić and Simatović*, No. IT-03-69-T, Judgment Vol. II, TC, 30 May 2013, para. 1264. <<http://www.legal-tools.org/doc/698c43/>>; *Prosecutor v. Ndahimana*, No. ICTR-01-68-A, Judgment, AC, 16 December 2013, para. 147 <<http://www.legal-tools.org/doc/7034a5/>>. *Contra Prosecutor v. Perišić*, No. IT-04-81-T, Judgment, TC, 6 September 2011, para. 126 <<http://www.legal-tools.org/doc/f3b23d/>>; conc. *Taylor*, No. SCSL-03-01-T, Judgment, TC, 18 May 2012, para. 484 with fn. 1141 <<http://www.legal-tools.org/doc/8075e7/>>; *Taylor*, No. SCSL-03-01-A, Judgment, AC, 26 September 2013, paras. 475 *et seq.* <<http://www.legal-tools.org/doc/3e7be5/>>; *Sainović et al.*, No. IT-05-87-A, Judgment, AC, 23 January 2014, paras 1617–51 <<http://www.legal-tools.org/doc/81ac8c/>>; *Popović et al.*, No. IT-05-88-A, Judgment, AC, 30 January 2015, para. 1758 (welcoming this decision Bartels (2015) *EJIL: Talk!*); *Khieu and Nuon*, No. 002/19-09-2007/ECCC/TC, Judgment, TC, 7 August 2014, para. 710 <<http://www.legal-tools.org/doc/4888de/>>. For a discussion see Ambos and Njikam (2013) 11 *JICJ* 789, 804–8; Jones *et al.*, *Milestones* (2013); Coco and Gal (2014) 12 *JICJ* 345, 357 *et seq.*

¹⁶⁵ Cf. Ambos and Njikam (2013) 11 *JICJ* 789, 806 with further references.

¹⁶⁶ Crit. of the concept being too imprecise Vest (2014) 132 *SchZStR* 61, 82 *et seq.*

¹⁶⁷ See notes 187 and 217 and main text.

¹⁶⁸ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 484 <<http://www.legal-tools.org/en/doc/b8d7bd/>>. For an analysis of the ICTR’s complicity concept with regard to genocide see Obote-Odora (2002) 2 *ICLRev* 301, 375, in particular on the distinction between aiding and abetting 391–2, 400.

¹⁶⁹ Similarly already Triffterer, in: Hankel and Stuby (eds.), *Strafgerichte gegen Menschenverbrechen* (1995) 169, 229.

¹⁷⁰ *Prosecutor v. Rutaganda*, No. ICTR-96-3-T, Judgment, TC, 6 December 1999, para. 43 <<http://www.legal-tools.org/doc/f0dbbb/>>; *Prosecutor v. Musema*, No. ICTR-96-13-T, Judgment, TC, 27 January 2000, paras. 125–6 <<http://www.legal-tools.org/doc/1fc6ed/>>; *Prosecutor v. Bagilishema*, No. ICTR-95-1A-T, Judgment, TC, 7 June 2001, para. 33 <<http://www.legal-tools.org/doc/6164a4/>>; *Prosecutor v. Semanza*, No. ICTR-97-20-T, Judgment, TC, 15 May 2003, para. 385 <<http://www.legal-tools.org/doc/7e668a/>>; *Prosecutor v. Kamuhanda*, No. ICTR-95-54A-T, Judgment, TC, 22 January 2004, para. 597 <<http://www.legal-tools.org/doc/4ac346/>>; *Prosecutor v. Bisengimana*, No. ICTR-00-60-T, Judgment and Sentence, TC, 13 April 2006, paras. 32 *et seq.* <<http://www.legal-tools.org/doc/694dd8/>>; *Prosecutor v. Karera*, No. ICTR-01-74-T, Judgment and Sentence, TC, 7 December 2007, para. 548 <<http://www.legal-tools.org/doc/7bc57f/>>; *Prosecutor v. Mpambara*, No. ICTR-

distinguish between the different forms of subparagraph (c), and only requires ‘for this form of responsibility ... that the person provides assistance to the commission of a crime and that, in engaging in this conduct, he or she intends to facilitate the commission of the crime’¹⁷¹. Thus, the contribution need neither ‘always’ be ‘tangible’¹⁷² nor need it be indispensable (in the sense of a *conditio sine qua non*)¹⁷³. Although it is not necessary that the aider or abettor be present during the commission¹⁷⁴, presence may indicate moral support, especially if the accused possesses a degree of authority entailing ‘a clear signal of official tolerance’¹⁷⁵. Aiding and abetting may also consist in an omission¹⁷⁶; in such cases it may be interpreted as moral support by encouraging¹⁷⁷.

01-65-T, Judgment, TC, 11 September 2006, para. 16 <<http://www.legal-tools.org/doc/ce61de/>>; *Prosecutor v. Muvunyi*, No. ICTR-2000-55A-T, Judgment and Sentence, TC, 12 September 2006, para. 471 <<http://www.legal-tools.org/doc/fa02aa/>>; *Prosecutor v. Seromba*, No. ICTR-2001-66-A, Judgment, AC, 12 March 2008, para. 530 <<http://www.legal-tools.org/doc/b4df9d/>>; *Prosecutor v. Renzaho*, No. ICTR-97-31-T, Judgment, TC, 14 July 2009, para. 742 <<http://www.legal-tools.org/doc/9bbd8a/>>; *Prosecutor v. Bagaragaza*, No. ICTR-2005-86-S, Sentencing Judgment, TC, 17 November 2009, para. 22 <<http://www.legal-tools.org/doc/3d2d48/>>; *Prosecutor v. Munyakazi*, No. ICTR-97-36A-T, Judgment and Sentence, TC, 5 July 2010, para. 417 <<http://www.legal-tools.org/doc/9b9ee3/>>; *Prosecutor v. Kalimanzira*, No. ICTR-05-88-A, Judgment, AC, 20 October 2010, paras. 74, 86 <<http://www.legal-tools.org/doc/fad693/>>; *Prosecutor v. Kanyarukiga*, No. ICTR-02-78-T, Judgment and Sentence, TC, 1 November 2010, para. 621 <<http://www.legal-tools.org/doc/415384/>>; *Prosecutor v. Ntawukulilyayo*, No. ICTR-05-82-A, Judgment, AC, 14 December 2011, para. 214 <<http://www.legal-tools.org/doc/42d81d/>>; *Prosecutor v. Ndahimana*, No. ICTR-01-68-T, Judgment and Sentence, TC, 30 December 2011, paras. 824–32 <<http://www.legal-tools.org/doc/d8e4f2/>>; *Prosecutor v. Karemera and Ngirumpatse*, No. ICTR-98-44-T, Judgment and Sentence, TC, 2 February 2012, paras. 1429–30 <<http://www.legal-tools.org/doc/5b9068/>>; *Prosecutor v. Nzabonimana*, No. ICTR-98-44D-T, Judgment and Sentence, TC, 31 May 2012, para. 1697 <<http://www.legal-tools.org/doc/00cb8e/>>; *Prosecutor v. Nizeyimana*, No. ICTR-2000-55C-T, Judgment and Sentence, TC, 19 June 2012, para. 1466 <<http://www.legal-tools.org/doc/f8cdd9/>>; *Prosecutor v. Ngirabatware*, No. ICTR-99-54-T, Judgment and Sentence, TC, 12 December 2012, para. 1294 <<http://www.legal-tools.org/doc/393335/>>; *Prosecutor v. Ndahimana*, No. ICTR-01-68-A, Judgment, AC, 16 December 2013, para. 147 <<http://www.legal-tools.org/doc/7034a5/>>; *Prosecutor v. Nindiliyimana et al.*, No. ICTR-00-56-A, Judgment, AC, 11 February 2014, paras. 370 *et seq.* <<http://www.legal-tools.org/doc/4c5065/>>.

¹⁷¹ *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 167 <<http://www.legal-tools.org/doc/0536d5/>>.

¹⁷² *Prosecutor v. Kayishema and Ruzindana*, No. ICTR 95-1-T, Judgment, TC, 21 May 1995, para. 200 <<http://www.legal-tools.org/doc/0811c9/>>.

¹⁷³ *Ibid.*, para. 201; *Prosecutor v. Bagilishema*, No. ICTR-95-1A-T, Judgment, TC, 7 June 2001, para. 33 <<http://www.legal-tools.org/doc/6164a4/>>; *Prosecutor v. Bisengimana*, No. ICTR-00-60-T, Judgment and Sentence, TC, 13 April 2006, para. 34 <<http://www.legal-tools.org/doc/694dd8/>>.

¹⁷⁴ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 484 <<http://www.legal-tools.org/en/doc/b8d7bd/>>; *Prosecutor v. Musema*, No. ICTR-96-13-T, Judgment, TC, 27 January 2000, para. 125 <<http://www.legal-tools.org/doc/1fc6ed/>>; *Prosecutor v. Bagilishema*, No. ICTR-95-1A-T, Judgment, TC, 7 June 2001, para. 33 <<http://www.legal-tools.org/doc/6164a4/>>; *Prosecutor v. Semanza*, No. ICTR-97-20-T, Judgment, TC, 15 May 2003, para. 385 <<http://www.legal-tools.org/doc/7e668a/>>.

¹⁷⁵ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 484 <<http://www.legal-tools.org/en/doc/b8d7bd/>>; *Prosecutor v. Bagilishema*, No. ICTR-95-1A-T, Judgment, TC, 7 June 2001, paras. 34–5 <<http://www.legal-tools.org/doc/6164a4/>>; *Prosecutor v. Semanza*, No. ICTR-97-20-T, Judgment, TC, 15 May 2003, para. 386 <<http://www.legal-tools.org/doc/7e668a/>>; *Prosecutor v. Brđjanin*, No. IT-99-36-A, Judgment, AC, 3 April 2007, para. 273 <<http://www.legal-tools.org/doc/782cef/>>; *Prosecutor v. Ndahimana*, No. ICTR-01-68-T, Judgment and Sentence, TC, 30 December 2011, paras. 824–32 <<http://www.legal-tools.org/doc/d8e4f2/>>; cf. Cryer, in: *id. et al.*, *Introduction to ICL* (2014) 353, 372.

¹⁷⁶ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 548: ‘... may consist in failing to act or refraining from action’ (unlike complicity in genocide) <<http://www.legal-tools.org/en/doc/b8d7bd/>>; see also *Prosecutor v. Kamuhanda*, No. ICTR-95-54A-T, Judgment, TC, 22 January 2004, para. 597: ‘The act of assistance may consist of an act or an omission’ <<http://www.legal-tools.org/doc/4ac346/>>; *Prosecutor v. Bisengimana*, No. ICTR-00-60-T, Judgment and Sentence, TC, 13 April 2006, para. 34 <<http://www.legal-tools.org/doc/694dd8/>>; *Prosecutor v. Mpambara*, No. ICTR-01-65-T, Judgment, TC, 11 September 2006, para. 22 <<http://www.legal-tools.org/doc/ce61de/>>; *Prosecutor v. Muvunyi*, No. ICTR-2000-55A-T, Judgment and Sentence, TC, 12 September 2006, para. 470 <<http://www.legal-tools.org/doc/fa02aa/>>; *Prosecutor v. Ndahimana*, No. ICTR-01-68-A, Judgment, AC, 16 December 2013, para. 147 <<http://www.legal-tools.org/doc/7034a5/>>.

¹⁷⁷ *Prosecutor v. Kayishema and Ruzindana*, No. ICTR 95-1-T, Judgment, TC, 21 May 1995, para. 200 <<http://www.legal-tools.org/doc/0811c9/>> referring to *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC,

- 25 Summing up this case law, aiding and abetting encompasses any assistance, physical or psychological, that has a substantial effect on the commission of the crime, *i.e.*, that constitutes a causal contribution to the main act¹⁷⁸. Thus, the only limiting element is the *substantial effect* or the *specific direction* requirement. This case law, in particular these two requirements, should also be taken into account when defining the *actus reus* of subparagraph (c) of Article 25 (3)¹⁷⁹. The lack of an explicit reference to these requirements in the text of the provision cannot be interpreted as a conscious departure from this standard¹⁸⁰ for Articles 7 (1) ICTY and 6 (1) ICTR Statute do not contain this reference either. The concept of assistance as expressed by the words ‘aids, abets or otherwise assists’ in subpara. (c) or ‘otherwise aided and abetted’ in the ICTY/ICTR Statutes is a general concept in criminal law and thus must be interpreted consistently. Clearly, the ‘ad hoc tribunal jurisprudence can be of assistance’¹⁸¹ in defining such universal concepts notwithstanding the differences in the details of the respective provisions.
- 26 Of course, both standards need to be clarified further in the future case law. The substantiality standard is far from precise, and the case law has not contributed to its clarification, instead leaving the decision to each individual case. If one takes the principle of legality seriously, *i.e.*, the requirements of legal certainty and foreseeability (*nullum crimen sine lege*)¹⁸², a general theory of imputation in international criminal law must be developed in order, *inter alia*, to determine, on an abstract level, when an effect is ‘substantial’ and, thus, when aiding and abetting should entail criminal responsibility¹⁸³. From a theoretical perspective, this is ultimately a normative question, which can best be answered by taking into account the modern theories of attribution¹⁸⁴. Accordingly, to incur criminal responsibility the aider and abettor must, with her contribution, create and increase the risk that the crime will be committed and thereby fundamental legal interests violated (*Risikoerhöhung*)¹⁸⁵. The risk must be realized through the commission of the (main) crime (*Risikorealisation*) or, in other words, the risk-creation or increase must be causal for the commis-

10 December 1998 <<http://www.legal-tools.org/doc/e6081b/>>; *Prosecutor v. Bisengimana*, No. ICTR-00-60-T, Judgment and Sentence, TC, 13 April 2006, para. 34 <<http://www.legal-tools.org/doc/694dd8/>>.

¹⁷⁸ See already mn. 21.

¹⁷⁹ I hereby reaffirm my earlier view in mn. 22 of the second edition (‘... “otherwise assist” would also require a substantial effect on the commission ...’), give up the view expressed in mn. 23 (‘... the word “facilitating” confirms that a direct and substantial assistance is not necessary ...’) and adopt the view argued before the *Mbarushimana* PTC (see *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 281 with reference in fn. 663) <<http://www.legal-tools.org/doc/63028f/>>. For the same view Werle and Jessberger, *Principles* (2014) 216–8; *id.* (2007) 5 *JICJ* 953, 969 (‘... reasonable to interpret the actus reus of assistance in this way.’); Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 801 calling this standard a ‘sort of a monitor’; Vest, *Völkerrechtsverbrecher verfolgen* (2011) 199 (referring to the gravity threshold of Article 17 and arguing that the ‘substantial effect’ might not necessarily influence the outcome, but the way of execution of the crime).

¹⁸⁰ For this view see Schabas, *Introduction to the ICC* (2011) 228.

¹⁸¹ *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 280 <<http://www.legal-tools.org/doc/63028f/>>.

¹⁸² See for the interpretation of article 7 ECHR in this respect *Sunday Times v. UK*, Series A 30 Judgment of 26 April 1979, para. 49; *S.W. v. UK*, Series A 335-b, 27 October 1995, para. 36; *C.R. v. UK*, Series A 335-c, 27 October 1995, para. 34 and most recently *Streletz, Kessler, Krenz v. Germany*, Judgment of 22 March 2001, paras. 77 *et seq.*, 105.

¹⁸³ Stewart (2012) 25 *LeidenJIL* 165, 204 votes for a combination of causation and normative contribution in order to create a ‘defensible notion of complicity’.

¹⁸⁴ See, generally, Roxin, *Strafrecht Allgemeiner Teil I* (2006) para. 11; Jakobs, *Strafrecht Allgemeiner Teil* (1993) 185 *et seq.* Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 801 with fn. 141; Vest, *Völkerrechtsverbrecher verfolgen* (2011) 200 *et seq.*

¹⁸⁵ The theory of risk increase has been applied by the *Bemba* Confirmation Decision in the context of command responsibility, holding the superior liable because his failure to intervene increased the risk with regard to the commission of the crimes: *Prosecutor v. Bemba Gombo*, No. ICC 01/05-01/08-424, Decision on the Confirmation of Charges, PTC II, 15 June 2009, para. 425 <<http://www.legal-tools.org/en/doc/07965c/>>; conc. *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, para. 174 <<http://www.legal-tools.org/doc/5686c6/>>. See also Ambos (2009) 22 *LeidenJIL* 715, 721–2 and *id.*, *Treatise on ICL I* (2013) 164 *et seq.* See also Vest, *Völkerrechtsverbrecher verfolgen* (2011) 253.

sion of this crime (*kausale Risikosteigerung*). Finally, the risk created or increased must be disapproved by the legal order, *i. e.*, it must be a forbidden risk (*Risikomißbilligung*)¹⁸⁶. This approach gains particular importance in identifying liability for the so-called ‘neutral’ acts, *i. e.*, contributions which are not *per se* criminal, *e. g.*, delivering weapons to a conflict zone or providing food to a detention camp¹⁸⁷. – On the delimitation between co-perpetration and aiding and abetting see *mn.* 48.

b) ‘For the purpose of facilitating’. This wording introduces a subjective threshold which goes beyond the ordinary *mens rea* requirement within the meaning of article 30¹⁸⁸. It is borrowed from the Model Penal Code. While the necessity of this requirement was controversial within the American Law Institute, it is clear that ‘purpose’ generally implies a specific subjective requirement stricter than mere knowledge¹⁸⁹. The formula, therefore, sets aside the – above quoted – jurisprudence of the ICTY and ICTR, since this jurisprudence holds that the aider and abetter must only know that his or her acts will assist the principal in the commission of an offence¹⁹⁰. Additionally, knowledge may be inferred from all relevant circumstances¹⁹¹, *i. e.*, it may be proven by circumstantial evidence¹⁹².

In sum, the formulation confirms the general assessment that subparagraph (c) provides for a higher subjective than objective threshold (in any case higher than the ordinary *mens*

¹⁸⁶ For a detailed discussion see Ambos, *Der Allgemeine Teil* (2004) 619 *et seq.*, 663–4.

¹⁸⁷ See for the problem of neutral acts in macrocriminal contexts Rackow, *Neutrale Handlungen* (2007) 551 *et seq.* In the *Van Anraat case*, the defendant was convicted for delivering mustard gas to the Iraqi regime, see for a good analysis, especially regarding the issue of imputation van der Wilt (2008) 6 *JICJ* 557, 563 *et seq.* The problem has also been recognized by *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 277 <<http://www.legal-tools.org/doc/63028f/>>. Crit. *vis-à-vis* Art. 25 to cover neutral acts Burchard (2010) 8 *JICJ* 919, 935. In general see Roxin, *Strafrecht Allgemeiner Teil II* (2003) § 26 *mn.* 218 *et seq.* and Ambos (2000) 32 *JA* 721–25. According to *Prosecutor v. Perisic*, No. IT-04-81-A, Judgment, AC, 28 February 2013, para. 44 acts that can be both lawful and unlawful constitute aiding and abetting when ‘a direct link between the aid provided by an accused individual and the relevant crimes committed by principal perpetrators’ can be established <<http://www.legal-tools.org/doc/f006ba/>>; regarding neutral acts and Art. 25 (3)(d) Ambos, in: Stahn (ed.), *Law and Practice* (2015) 604 *et seq.*

¹⁸⁸ See Piragoff and Robinson, article 30, *mn.* 9 *et seq.* and 17 *et seq.* (in this volume); generally about the mental element in international criminal law, cf. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 889; Ambos, in: Vohrah *et al.* (eds.), *Man’s Inhumanity* (2003) 11, 12 *et seq.*; *id.*, *Der Allgemeine Teil* (2004) 757 *et seq.*; *id.*, *Treatise on ICL I* (2013) 266 *et seq.*; Triffterer, in: Hankel and Stuby (eds.), *Strafgerichte gegen Menschenverbrechen* (1995) 169, 221–4; Goy (2012) 12 *ICLRev* 1, 63; Stuckenberg (2014) 12 *JICJ* 311 *et seq.*

¹⁸⁹ American Law Institute, *Model Penal Code and Commentaries* (1985) § 2.06. Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 801. Satzger, *Internationales Strafrecht* (2013) § 15 *mn.* 62; Schabas, *The ICC* (2010) 436 wants to infer the purpose from abetting conduct, but not from mere physical support.

¹⁹⁰ Cf. *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 281 <<http://www.legal-tools.org/doc/63028f/>>. *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, TC, 7 May 1997, para. 692 <<http://www.legal-tools.org/doc/0a90ae/>>; *Prosecutor v. Delalić et al.*, No. IT-96-21-T, Judgment, TC, 16 November 1998, paras. 326, 328 <<http://www.legal-tools.org/doc/6b4a33/>>; *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, paras. 236–49 (236, 245–6, 249 <<http://www.legal-tools.org/doc/e6081b/>>; *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, para. 90 <<http://www.legal-tools.org/doc/1a994b/>>; *Prosecutor v. Vasiljević*, No. IT-98-32-A, Judgment, AC, 25 February 2004, para. 102 <<http://www.legal-tools.org/doc/e35d81/>>; *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, AC, 29 July 2004, para. 49 <<http://www.legal-tools.org/doc/88d8e6/>>; *Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, paras. 476–9 <<http://www.legal-tools.org/en/doc/b8d7bd/>>; *Prosecutor v. Semanza*, No. ICTR-97-20-T, Judgment, TC, 15 May 2003, para. 388 <<http://www.legal-tools.org/doc/7e668a/>>; *Prosecutor v. Kamuhanda*, No. ICTR-95-54A-T, Judgment, TC, 22 January 2004, para. 599 <<http://www.legal-tools.org/doc/4ac346/>>.

¹⁹¹ *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, TC, 7 May 1997, para. 676 <<http://www.legal-tools.org/doc/0a90ae/>>; *Prosecutor v. Delalić et al.*, No. IT-96-21-T, Judgment, TC, 16 November 1998, para. 328 <<http://www.legal-tools.org/doc/6b4a33/>>; *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 478 <<http://www.legal-tools.org/en/doc/b8d7bd/>>; *Prosecutor v. Kamuhanda*, No. ICTR-95-54A-T, Judgment, TC, 22 January 2004, para. 600 <<http://www.legal-tools.org/doc/4ac346/>>.

¹⁹² Cf. *Prosecutor v. Tadić*, No. IT-94-1-T, Judgment, TC, 7 May 1997, para. 689: ‘if the presence can be shown or inferred, by circumstantial or other evidence, to be knowing ...’ <<http://www.legal-tools.org/doc/0a90ae/>>; *Prosecutor v. Delalić et al.*, No. IT-96-21-T, Judgment, TC, 16 November 1998, para. 386 with regard to command responsibility: ‘... such knowledge cannot be presumed but must be established by way of circumstantial evidence’ <<http://www.legal-tools.org/doc/6b4a33/>>.

rea requirement according to article 30)¹⁹³. However, it must be noted that the stronger purpose requirement only refers to the act of facilitation, not to the main crime ('such a crime'); insofar the assistant only needs to possess the mental element required by that crime¹⁹⁴. This follows from a literal interpretation and the doctrinal requirement of a double mental element in acts of secondary participation (complicity) – with regard to the actual act of participation and with regard to the main crime – which has been long recognized in criminal law doctrine¹⁹⁵. For questions of delimitation see *infra* mn. 45.

4. 'In any other way contributes' to the (attempted) commission ... 'by a group ... acting with a common purpose'

- 28 a) **General.** The whole subparagraph (d) is an almost literal copy of a 1998 Anti-terrorism convention¹⁹⁶ and presents a compromise with earlier 'conspiracy' provisions¹⁹⁷, which since Nuremberg have been controversial¹⁹⁸. The 1991 ILC Draft Code held punishable an individual who 'conspires in' the commission of a crime, thereby converting conspiracy into a form of 'participation in a common plan for the commission of a crime against the peace and security of mankind'¹⁹⁹. The 1996 Draft Code extends to a person who 'directly participates in planning or conspiring to commit such a crime which in fact occurs'²⁰⁰. Thus, it restricts liability compared to the traditional conspiracy provisions in that it requires a direct participation – already discussed above – and an effective commission of the crime. Subparagraph (d) takes this more restrictive approach even further, eliminating the term conspiracy altogether and requiring at least a contribution to a collective attempt of a crime²⁰¹. The special feature of subparagraph (d) undoubtedly lies in the reference to 'a crime by a group of persons acting with a common purpose'. This ensuing disparity as compared to subparagraph (c) has been elaborated by the ICTY in *Furundžija*, stating that these provisions confirm that international (criminal) law recognizes a distinction between aiding and abetting a crime and participation in a common criminal plan as 'two separate categories of liability for criminal participation'²⁰²

¹⁹³ Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 801 with fn. 145; for a different view Vest (2010) 8 *JICJ* 851, 862 arguing that the purpose standard can be subsumed under article 30 since 'intent' must be interpreted as encompassing this standard. Critical of this requirement as an overly high threshold, which eventually may lead to 'serious underpunishment', see Stewart (2012) 25 *LeidenJIL* 165, 197.

¹⁹⁴ See for a good discussion advancing this 'new interpretation' (although it is not that new) see Stewart, <<http://jamesgstewart.com/the-important-new-orthodoxy-on-complicity-in-the-icc-statute/>>, especially the reference to Weigend's entry, <<http://jamesgstewart.com/how-to-interpret-complicity-in-the-icc-statute/>> (both last visited 31 Jan. 2015).

¹⁹⁵ See only Roxin, *Strafrecht Allgemeiner Teil II* (2003) § 26 mn. 130 *et seq.*, 267 *et seq.*

¹⁹⁶ International Convention for the Suppression of Terrorist Bombings, UN Doc. A/RES/52/164 (1998), Annex (37 ILM 249 (1998)), article 2 para. 3 (c).

¹⁹⁷ For example: Preparatory Committee Draft, article 23 para. 7 (e) (ii). See Ambos (2007) 5 *JICJ* 159, 168 with further references.

¹⁹⁸ See, for example, Pella (1950) 2 *YbILC* 278–362, 357; Graven (1950) 76 *RCADI* 433–605, 502–3; Jescheck (1954) 66 *ZStW* 193–217, 213; Rayfuse (1997) 8 *CLF* 43, 52; Cassese *et al.*, *ICL* (2013) 201–3; Hale and Cline (2014) 25 *CLF* 261, 265 *et seq.* See also the statement of the German delegate O. Katholnigg at the Diplomatic Conference for the Adoption of the 1988 Drug Convention (*United Nations Conference for the Adoption of a Convention against Illicit Traffic in Narcotic Drugs and Psychotropic Substances, Official Records* (1988) para. 52: 'common law concept unknown in civil law systems'). The concept was, however, in principle recognized by the ILC Special Rapporteur Thiam ((1990) 2 *YbILC*, Part 1, 16, para. 66) and also exists today in civil law jurisdictions in a similar form (see, e.g., § 30 para. 2 alt. 3 of the German *Strafgesetzbuch*).

¹⁹⁹ 2 *YbILC*, Part 2, p. 99 (commentary to article 3) (1991).

²⁰⁰ 1996 ILC Draft Code, article 2 para. 3 (e).

²⁰¹ For the drafting history cf. Saland, in: Lee (ed.), *The ICC* (1999) 189, 199 *et seq.* According to Heyer, *Beihilfestrafbarkeit* (2013) 450 *et seq.* the distinctive characteristic of Art. 25 (3)(d) is that attribution is based on the common purpose, i.e. one of the core crimes (and not the individual act). Cf. also Park, *Beteiligungsform* (2015 forthcoming) who interprets subparagraph (d) as a special form of accessorial liability which focuses on the contribution to the general criminal activity of a collective entity.

²⁰² *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, paras. 216, 249 <<http://www.legal-tools.org/doc/e6081b/>>; recently *Prosecutor v. Djordjević*, No. IT-05-87/1-A, Judgment, AC, 27 January 2014, paras 56 *et seq.* and 829 *et seq.* <<http://www.legal-tools.org/doc/e6fa92/>>.

(on the issue of delimitation see further *infra* mn. 49). Recently, the application of this form of attribution to business leaders has been discussed²⁰³.

b) Objective contribution. The expression ‘in any other way’ seems to suggest that subparagraph (d) displays the lowest *objective* threshold within the different modes of attribution of article 25²⁰⁴. Indeed, this commentator has taken this view earlier²⁰⁵ and recently the Kenya PTC II has called it the correct view²⁰⁶. However, apart from the slight difference in wording between subparagraphs (c) and (d) – assistance ‘otherwise’ vs. ‘in any other way’²⁰⁷ –, upon further reflection I fail to see a normatively convincing reason to distinguish between these two subparagraphs as to the (objective) *contribution* required.²⁰⁸ On the contrary, both the principle of culpability and the gravity threshold embodied in Articles 17 (1)(d) and 53 (1)(b), (c), (2)(b), (c)²⁰⁹ militate against substantially lowering the objective threshold of subparagraph (d) as compared to subparagraph (c)²¹⁰. Thus, in principle, the ‘*substantiality*’ requirement and the theory of risk increase as set out above (mn. 25) should also apply to subparagraph (d).²¹¹ The case law’s newly invented ‘*significance*’ standard²¹², derived from the structurally similar JCE liability²¹³, does not contradict this view. In fact, the *Mbarushimana* PTC I, as the first PTC ever dealing more thoroughly with subparagraph (d), has convincingly

²⁰³ In favour Farrell (2010) 8 *JICJ* 873, 880 *et seq.*; Heyer, *Beihilfestaftbarkeit* (2013) 520 *et seq.* *Contra* Burchard (2010) 8 *JICJ* 919, 944 (arguing that ‘the most likely scenarios of “ancillary and neutral” business contributions to “corporate-political core crimes” do not fall within the parameters of Article 25(3)(d)(ii)’); Meyer (2013) 131 *SchwZStR* 70-1. For neutral contributions in general see mn. 25 with fn. 174.

²⁰⁴ Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 802 *et seq.*; Satzger, *Internationales Strafrecht* (2013) § 15 mn. 63; van Sliedregt, *Criminal Responsibility* (2003) 107; Werle and Jessberger, *Principles* (2014) 219 calling it the ‘least grave’ mode of participation. Manacorda and Meloni (2011) 9 *JICJ* 159, 176 refer to the ‘lowest degree of responsibility’; Heyer, *Beihilfestaftbarkeit* (2013) 513.

²⁰⁵ See previous edition, mn. 25 p. 758.

²⁰⁶ *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 354 with fn. 560 <<http://www.legal-tools.org/doc/96c3c2/>>.

²⁰⁷ A virtual identical terminology is used in the French, Russian, Chinese and Arabic versions of the Statute: *toute autre forme – toute autre manière; любыми образом -- любыми другим образом; 以其他方式 – 以任何其他方式; بطريقة أخرى – أية طريقة أخرى*. In contrast, the Spanish version uses identical terminology (in both subparagraphs ‘*algún modo*’).

²⁰⁸ For detailed analysis see Ambos, in: Stahn (ed.), *Law and Practice* (2015) 596 *et seq.*; Park, *Beteiligungsform* (2015 forthcoming).

²⁰⁹ For the different standard of gravity *cf.* Stegmiller, *Pre-Investigation Stage* (2011) 332 *et seq.*, 425 *et seq.*; Ambos, *Colombian Peace Process* (2010) 44 *et seq.* See recently *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 276 <<http://www.legal-tools.org/doc/63028f/>>.

²¹⁰ For the same conclusion *cf.* Vest, *Völkerrechtsverbrecher verfolgen* (2011) 349 who argues that subparagraph (d), due to its lower *subjective* standard as compared to subparagraph (c) (see mn. 49), could even cover contributions which may, in *objective* terms, more serious than those covered by subparagraph (c).

²¹¹ For the application of the theory of risk increase in this context see also Heyer, *Beihilfestaftbarkeit* (2013) 513 *et seq.*

²¹² *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, paras. 283, 285 <<http://www.legal-tools.org/doc/63028f/>>. Not explicitly referring to ‘significance’, but establishing a threshold ‘less than substantial’ *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 354 (with respect to Sang) <<http://www.legal-tools.org/doc/96c3c2/>>; explicitly referring to ‘*contribution significative*’, *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, paras. 1632-6 <<http://www.legal-tools.org/doc/9813bb/>>. More recently *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, paras. 158 *et seq.* (161) <<http://www.legal-tools.org/doc/5686c6/>> and *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, paras. 252 *et seq.* (255) did not discuss the ‘substantial contribution’ requirement, but only applied the plain wording of subparagraph (d) <<http://www.legal-tools.org/doc/5b41bc/>>; *contra Gbagbo*, Dissenting Opinion of Judge Christine van den Wyngaert, *ibid.*, para. 8 (failing to see sufficient evidence for a group acting with a common purpose).

²¹³ PTC I argues that both subparagraph (d) and JCE, although not identical modes of liability, focus on group criminality and that JCE requires a lower threshold than a substantial contribution required for aiding and abetting (*Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, paras. 280-2 <<http://www.legal-tools.org/doc/63028f/>>). Critical Park, *Beteiligungsform* (2016 forthcoming).

argued that the contribution ‘cannot be just any contribution’ and thus introduced the significance standard as a minimum threshold ‘below which responsibility (...) does not arise.’²¹⁴ It further found that the contribution must ‘be at least significant.’²¹⁵ As to the concrete assessment of a contribution as ‘significant’ the PTC proposed a case-by-case analysis of the person’s conduct in the given context²¹⁶ taking into account several factors²¹⁷. *In casu*, PTC I held that the defendant’s actions, essentially as the FDLR’s secretary general issuing press releases and directing media campaigns from France, do not amount to significant contributions to the alleged FDLR crimes in the Democratic Republic of Congo²¹⁸. Thus, in essence, PTC I clearly tries, driven by a liberal, culpability based approach, to avoid an overly broad interpretation of the contribution requirement; it only implicitly suggests that the significance standard is lower than the substantiality one²¹⁹. In a similar vein, the *Katanga* TC, taking no position on the comparison of the two standards, requires a *significant* contribution, *i. e.* a contribution that, on the one hand, influences the occurrence of the crime or how it was committed but, on the other, the contribution need not depend on it²²⁰. In contrast, PTC II explicitly compares the two standards and holds that ‘subparagraph (d) is satisfied by a less than “substantial” contribution’²²¹.

²¹⁴ *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 283 <<http://www.legal-tools.org/doc/63028f/>>. See also DeFalco (2013) 11 *JICJ* 715, 728 *et seq.*, 734; Kearney (2013) 24 *CLF* 331, 364 *et seq.*

²¹⁵ *Ibid.* The AC (*Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-514, Judgment on the Appeal of the Prosecutor against the Decision of PTC I of 16 December 2011 entitled ‘Decision on the Confirmation of Charges’, 30 May 2012 <<http://www.legal-tools.org/doc/256bb2/>> did not address this issue for procedural reasons (arguing that even if the PTC erred with regard to the significance of the contribution this would not have materially affected the decision as the PTC found that the group element of art. 25(3)(d) was lacking and that Mr. Mbarushimana did not contribute at all to the alleged crimes and that therefore addressing the merits would lead to ‘a purely academic discussion’, paras. 65–69), but Judge Fernández de Gurmendi disagreed with the ‘significance threshold’ in her Separate Opinion (at paras. 9–15, arguing that esp. the PTC’s arguments with regard to the gravity threshold of art. 17(1)(d) and the recourse to JCE liability were not convincing as they are not supported by the Statute; accordingly, liability under art. 25(3)(d) should not require a minimum threshold with regard to the contribution and the problem of neutral contributions could better be ‘addressed by analysing the normative and causal links between the contribution and the crime’ (para. 12)). Cf. Ambos, in: Stahn (ed.), *Law and Practice* (2015) 604 *et seq.*

²¹⁶ *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 284 <<http://www.legal-tools.org/doc/63028f/>>; conc. *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, para. 1634 <<http://www.legal-tools.org/doc/9813bb/>>.

²¹⁷ *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 284: ‘(i) the sustained nature of the participation after acquiring knowledge of the criminality of the group’s common purpose, (ii) any efforts made to prevent criminal activity or to impede the efficient functioning of the group’s crimes, (iii) whether the person creates or merely executes the criminal plan, (iv) the position of the suspect in the group or relative to the group and (v) perhaps most importantly, the role the suspect played vis-à-vis the seriousness and scope of the crimes committed.’ <<http://www.legal-tools.org/doc/63028f/>>; cf. also *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, Minority Opinion of Judge van den Wyngaert, 7 March 2014, para. 287, arguing that in the context of article 25(3)(d)(ii) specific direction should be a decisive factor to qualify a contribution as significant ‘because there may otherwise be almost no criminal culpability to speak of in case when someone makes a generic contribution with simple knowledge of the existence of a group acting with a common purpose.’ <<http://www.legal-tools.org/doc/9813bb/>>.

²¹⁸ *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, paras. 303, 315, 320, 339 <<http://www.legal-tools.org/doc/63028f/>>. But compare *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 355, confirming the charges against Sang for his allegedly broadcasting of hate messages and false news via *Kass FM*, a regional radio station, inflaming the violent atmosphere <<http://www.legal-tools.org/doc/96c3c2/>>.

²¹⁹ *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 282 (discussing JCE and stating that it requires ‘a lower threshold of contribution than aiding and abetting...’) <<http://www.legal-tools.org/doc/63028f/>>.

²²⁰ *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, paras. 1632–3 <<http://www.legal-tools.org/doc/9813bb/>>.

²²¹ *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-373, Decision on the Confirmation of Charges, PTC II, 23 January 2012, para. 354 <<http://www.legal-tools.org/doc/96c3c2/>>.

As to the ‘group of persons’ it is controversial whether the person making the contribution must belong to the respective group,²²² i. e., be an insider (*intraneus*) or could also be a non-member (outsiders, *extraneus*).²²³ The chapeau of para. 3 only refers to ‘that person’ who participates in a crime in one or several of the forms of participation mentioned in the subparagraphs; this does not limit the contributing person in subparagraph (d) to insiders. In addition, such a restrictive view would limit the provision’s scope too far rendering it almost meaningless because normally ‘that person’ does not belong to the group. Indeed, it is the rationale of the provision to extend punishability to contributions from outside of the group since these may otherwise remain exempt from punishment. Thus, the *Mbarushimana* PTC’s broader interpretation²²⁴ followed by subsequent case law,²²⁵ is to be welcomed.

c) Subjective level: intentional contribution. The distinction between subparagraphs (c) and (d) gains particular importance on the subjective level. While aiding and abetting generally requires the knowledge that the assistance contributes to the main crime²²⁶ and subparagraph (c) adds to this the ‘purpose of facilitating’ (mn. 26), participation in a group crime within the meaning of subparagraph (d) requires, on the one hand, a ‘common purpose’ of the group²²⁷ and, on the other, an ‘intentional’ contribution of the participant, complemented by alternative additional requirements (lit. (i) and (ii)) to be discussed below (mn. 32 and 33).

As to the ‘*intentional contribution*’, the intentionality must not be reduced to the conduct²²⁸, but rather ‘include an additional element, linking the contribution with the crimes alleged’,²²⁹ i. e., the contributor’s intent must extend to these crimes. But what is meant by ‘intentional’²³⁰? Does it refer to the traditional use of ‘intent’²³¹ – as *dolus*

²²² For the delimitation to subparagraph (a), see mn. 49.

²²³ For a concise discussion see Ohlin (2009) 12 *NCLRev* 406, 410 *et seq.*, 415.

²²⁴ Cf. *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 274 <<http://www.legal-tools.org/doc/63028f/>>.

²²⁵ Cf. *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, para. 1631 (*‘l’accusé soit membre du groupe ou extérieur à celui-ci.’*) <<http://www.legal-tools.org/doc/9813bb/>>; in essence also conc., *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 176, considering the pro-*Gbagbo* forces ‘a group within the meaning of article 25(3)(d)’ and Blé Goudé a non-member, who (among others) was controlling it (63, 176) <<http://www.legal-tools.org/doc/0536d5/>>. Conc. also Goy (2012) 12 *ICLRev* 1, 66.

²²⁶ *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, para. 246 <<http://www.legal-tools.org/doc/e6081b/>>; *Prosecutor v. Vasiljević*, No. IT-98-32-A, Judgment, AC, 25 February 2004, para. 102 <<http://www.legal-tools.org/doc/e35d81/>>; *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, AC, 29 July 2004, paras. 45, 49 <<http://www.legal-tools.org/doc/88d8e6/>>; *Prosecutor v. Brđanin*, No. IT-99-36-T, Judgment, TC, 1 September 2004, para. 273 <<http://www.legal-tools.org/doc/4c3228/>>; *Prosecutor v. Rutaganira*, No. ICTR-95-1C-T, Judgment and Sentence, TC, 14 March 2005, paras. 92–3, 97 <<http://www.legal-tools.org/doc/cd2a8f/>>; *Prosecutor v. Seromba*, No. ICTR-2001-66-A, Judgment, AC, 12 March 2008, para. 56 <<http://www.legal-tools.org/doc/b4df9d/>>; *Prosecutor v. Popović et al.*, No. IT-05-88-T, Judgment, TC, 10 June 2010, paras. 1014, 1016 <<http://www.legal-tools.org/doc/481867/>>; *Prosecutor v. Kanyarukiga*, No. ICTR-02-78-T, Judgment and Sentence, TC, 1 November 2010, para. 621 <<http://www.legal-tools.org/doc/415384/>>; *Prosecutor v. Gotovina et al.*, No. IT-06-90-T, Judgment Vol. II, TC, 15 April 2011, para. 1960 <<http://www.legal-tools.org/doc/86922c/>>.

²²⁷ Cf. Park, *Beteiligungsform* (2015 forthcoming) who regards the existence of the ‘common criminal purpose’ as proof of the criminal intentions of the respective group.

²²⁸ Fletcher and Ohlin (2005) 3 *JICJ* 539, 549 warn that, reducing the intent to the conduct, the ‘culpability nexus between the contribution and the ultimate criminal harm’ would remain rather ‘vague’.

²²⁹ Cf. *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 288, demanding that the person must ‘(i) mean to engage in the relevant conduct that allegedly contributes to the crime and (ii) be at least aware that his or her conduct contributes to the activities of the group of persons (...)’ <<http://www.legal-tools.org/doc/63028f/>>; confirmed by *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, para. 1639, citing in note 3602 *Mbarushimana* <<http://www.legal-tools.org/doc/9813bb/>>.

²³⁰ For a comparative analysis in the context of the genocidal ‘intent to destroy’ see Ambos (2009) 91 *IRevRC* 833, 842–5. For the different views regarding the subjective elements of Art. 25 (3)(d) Goy (2012) 12 *ICLRev* 1, 67 *et seq.*

²³¹ LaFave and Scott, *Substantive Criminal Law* (1986) § 3.5., 302–3. Satzger, *Internationales Strafrecht* (2013) § 15 mn. 22; Ambos, *Internationales Strafrecht* (2014) § 7 mn. 63. Safferling, *Internationales Strafrecht* (2011) § 5 mn. 19.

(*Vorsatz*)²³² – including knowledge (*Wissen*) and intention or purpose (*Wollen*) or is it limited to the latter, *i. e.*, the first degree *dolus directus*²³³? This view seems to be supported by the Spanish version (*'intencional'*) since Spanish doctrine, based on German thinking, starts from the general concept of *dolus* (see article 10 of the 1995 Código Penal: '*dolosas*') and reserves the notion of '*intención*' or '*intencional*' for the '*delitos de intención*' or the first degree *dolus directus*²³⁴. The French version (*'intentionnelle'*), however, does not support this restrictive interpretation since in French thinking²³⁵ '*l'intention*' consists of two elements: the foreseeability (element of knowledge) and the wish (element of will) of the criminal act. Thus, although the '*faute intentionnelle*' is characterised by the '*volonté orientée vers l'accomplissement d'un acte interdit*', *i. e.*, rather by will than knowledge, the latter is also contained in the concept of '*intention*'; thus, '*intentionnelle*' in this general context is to be understood broadly in the sense of *dolus*. Also the official German translation of this subparagraph reads '*vorsätzlich*', *i. e.*, refers to *dolus* in its general sense²³⁶. Further, the ICTY considers that the *mens rea* of participation in a JCE is '*intent to participate*', *i. e.*, apparently understands intent in the traditional sense²³⁷.

- 32 The correct understanding of '*intentional*' depends in the final analysis on the context in which the notion is used. If it is used as an expression of the general mental element it has to be understood also in a general sense as *dolus*; if it is used in a specific context to express a specific intention, aim or purpose of the perpetrator it has to be understood as first degree *dolus directus*. Thus, article 6 of the Statute, referring to genocide, speaks of '*intent to destroy*' and means first degree *dolus directus*, at least if one follows the still prevailing view that genocide requires a *dolus specialis* (specific intention)²³⁸. Consequently, the French version speaks of '*l'intention de détruire*', the Spanish one of '*intención de destruir*' and the official German translation of '*absichtlich*'²³⁹. On the other hand, the general *mens rea* provision (article 30) is based on the distinction between '*intent*' and '*knowledge*' defining the former – in relation to a consequence – as '*means to cause that consequence*' or as being '*aware*' that it will occur; thus, it understands intent in the traditional sense including knowledge²⁴⁰. The word '*intentional*' in the subparagraph under examination is used in the same general sense²⁴¹. This also follows from the fact that lit. (i) and (ii) contain additional specific subjective requirements which put the general notion of '*intentional*' in more concrete terms. On this subjective level subparagraph (d) must also be clearly distinguished from the third,

²³² Cf. Fletcher, *Basic Concepts* (1998) 112.

²³³ To avoid confusion this author uses '*intent*' in the sense of *dolus* in general and '*intention*' in the sense of first degree *dolus*.

²³⁴ Most explicitly Rodríguez Devesa and Serrano Gómez, *Derecho Penal Español. Parte General* (1995) 459 *et seq.*, 460: '*El dolo directo comprende aquellos casos en que el resultado ha sido perseguido intencionalmente ... Se habla entonces de un dolo directo de primer grado ...*'. See also Cobo del Rosal and Vives Antón, *Derecho penal. Parte General* (1999) 371, 621 *et seq.*, 625.

²³⁵ See Larguier, *Droit pénal général* (2001) 49, 51; Soyer, *Droit pénal et procédure pénale* (2000) 99.

²³⁶ Bundestag-Drucksache 14/2682 (14 February 2000) = Bundesgesetzblatt p. 1394 (Vol. II 2000).

²³⁷ See *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, para. 249 <<http://www.legal-tools.org/doc/e6081b/>>.

²³⁸ This view, however, has been challenged recently by different authors, see Gil Gil, *Derecho Penal Internacional* (1999) 231 *et seq.*; Greenawalt (1999) 99 *ColLR* 2259, 2265 *et seq.*; Triffterer, in: Heinrich *et al.* (eds.), *Festschrift für Claus Roxin* (2011) 1438 *et seq.*; *id.* (2011) *LeidenJIL* 399, 403 *et seq.*; Vest, *Genozid durch organisatorische Machtapparate* (2002) 101 *et seq.*; *id.*, *Humanitätsverbrechen* (2001) 113 *ZStW* 457, 480 *et seq.*; for a discussion of these views see Ambos, *Der Allgemeine Teil* (2004) 790 *et seq.*; *id.*, in: Vohrah *et al.* (eds.), *Man's Inhumanity* (2003) 11, 19 *et seq.* More recently also for a broader understanding of the specific intent (*Absicht*) Kreß (2005) 3 *JICJ* 562 *et seq.*

²³⁹ Bundestag-Drucksache 14/2682 (14 February 2000) = Bundesgesetzblatt p. 1394 (Vol. II 2000).

²⁴⁰ For analysis of the ICC's handling of the intricate article 30 problems such as '*dolus eventualis*' see Ambos (2009) 22 *LeidenJIL* 715–719.

²⁴¹ In the same vein *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 288 <<http://www.legal-tools.org/doc/63028f/>>; van Sliedregt, *Individual Criminal Responsibility* (2012) 145. However, Ohlin (2009) 12 *NCLR* 406, 418 argues that the inclusion of the term '*intentional*' therefore is '*utterly mysterious*'.

extensive category of JCE, since JCE III requires with ‘foreseeability’ a lower subjective standard than article 30²⁴².

The foregoing discussion demonstrates that a provision drafted without regard to basic theoretical (dogmatic) categories will create difficult problems of interpretation for the future ICC case law.

aa) ‘with the aim of furthering the criminal activity or criminal purpose of the group ...’. A contribution to a (attempted) group crime has – first possibility – to be made ‘with the aim of furthering the criminal activity or criminal purpose of the group’ provided that this ‘activity or purpose involves the commission of a crime within the jurisdiction of the Court’. The last part of the phrase does not require further examination since it only states the obvious; namely, that contribution to group crimes may only give rise to individual responsibility if these crimes belong to the subject matter jurisdiction of the Court (articles 5–8). Of course, the fact that this part refers to ‘a’ crime – instead of ‘the’ crime(s) as lit. (ii) – implies that the respective person must only possess a rather general – not specific – knowledge of the group’s criminal purpose;²⁴³ yet, it must not be overlooked that the focus of this lit. is on the volitional side of the person’s mens rea while the following lit. (ii) stresses the cognitive side.

According to the first part of the phrase the participant must pursue the ‘aim’ to further the criminal ‘activity’ or ‘purpose’ of the group. Thus, he or she must act with a specific *dolus*, i. e., with the specific intention to promote the ideas and acts of the group²⁴⁴.

bb) ‘in the knowledge of the intention of the group’. Alternatively (‘or’), the participant must know the intention of the group to commit the crime, i. e., he or she must know that the group plans and wants to commit the crime. The question is whether positive knowledge with regard to the specific crime is required or whether it is sufficient that the participant is aware that a crime will probably be committed. The latter was considered sufficient with regard to aiding and abetting by a ICTY TC²⁴⁵ but this precedent is only applicable, if at all, to subparagraph (c). Subparagraph (d) clearly requires ‘knowledge of the intention ... to commit the crime’, i. e., the participant must be aware of the specific crime intended by the group²⁴⁶.

²⁴² Cf. Cryer, in: *id. et al., Introduction to ICL* (2014) 353, 374; Schabas, *The ICC* (2010) 436; Gless, *Internationales Strafrecht* (2011) mn. 769, 777; Fletcher (2011) 9 *JICJ* 179, 188; generally distinguishing *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 282 <<http://www.legal-tools.org/doc/63028f/>>; dissenting Vest, *Völkerrechtsverbrecher verfolgen* (2011) 351, 386 who regards subpara. (d) similar to JCE and envisages that *via* subpara.(d), JCE could henceforth even comprise accomplice liability (379). Cassese (2007) 5 *JICJ* 109, 132 on the one hand considers ‘foreseeability’ as sufficient with respect to the intentional element in subparagraph (3) (d) second sentence but on the other hand explicitly separates JCE from this provision, see Cassese and Gaeta, *ICL* (2013) 175. Similarly, on the one hand Ohlin (2007) 5 *JICJ* 69, 78 *et seq.* and on the other (distinction) Ohlin (2009) 12 *NCLRev* 406, 414 *et seq.*

²⁴³ Cf. *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, Minority Opinion of Judge van den Wyngaert, 7 March 2014, para. 288, arguing that by referencing ‘a crime’, a more general understanding of the group’s criminal purpose suffices for liability <<http://www.legal-tools.org/doc/9813bb/>>; in this vein *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, Dissenting Opinion of Judge Sanji Mmasenono Monageng, 16 December 2011, para. 128 <<http://www.legal-tools.org/doc/63028f/>>; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, para. 252 <<http://www.legal-tools.org/doc/5b41bc/>>; Heyer, *Beihilfesträfsbarkeit* (2013) 519; Park, *Beteiligungsform* (2016 forthcoming).

²⁴⁴ Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 803 with fn. 155. Burchard (2010) 8 *JICJ* 919, 944.

²⁴⁵ *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, para. 246 <<http://www.legal-tools.org/doc/e6081b/>>.

²⁴⁶ Conc. *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, para. 1642 (‘La connaissance ... devra être démontrée pour chacun des crimes spécifiques et la connaissance d’une intention criminelle générale ne s’avérera pas suffisante’, emphasis added) <<http://www.legal-tools.org/doc/9813bb/>>; *ibid.*, Minority Opinion of Judge van den Wyngaert, para. 288; Schabas, *The ICC* (2010) 434; Burchard (2010) 8 *JICJ* 919; see also Vest (2010) 8 *JICJ* 851, 865 defining the knowledge as ‘the substantial likelihood that a certain crime will be committed’.

5. ‘directly and publicly incites ... to commit genocide’

- 35 The provision criminalizes direct and public incitement but only with regard to genocide. Identical to article III (c) of the 1948 Genocide Convention²⁴⁷ the provision gives rise to the same criticism. Some delegations felt that incitement as a specific form of complicity in genocide should not be included in the ‘General Part’ of the *Statute* but only in the specific provision on the crime of genocide (article 6) in order to make it clear that incitement is not recognized for other crimes²⁴⁸. This argument is questionable since incitement is covered by other forms of complicity, in particular – in the case of the *Rome Statute* – by soliciting and inducing as defined above²⁴⁹. Normally, the difference between an ordinary form of complicity, e. g., instigation, and incitement lies in the fact that the former is more specifically directed towards a certain person or group of persons in private while the latter is directed to the public in general²⁵⁰. The ILC rightly referred to the use of the mass media to promote the commission of genocide in Rwanda to justify the inclusion of direct and public incitement as subparagraph (f) of article 2 para. 3 of the 1996 Draft Code²⁵¹. The ICTR first confirmed the importance of incitement in relation to genocide in *Kambanda*²⁵² and *Akayesu*²⁵³; subsequent judgments have basically followed *Akayesu*²⁵⁴. The *Akayesu* AC, however, distinguished between incitement as a *general* form of participation within the meaning of article 6 para. 1 ICTR Statute and the *specific* form of incitement to genocide within the meaning of article 2 para. 3 (c) ICTR Statute²⁵⁵. Only the latter must be committed publicly and directly while the former does not necessarily require these additional elements²⁵⁶.
- 36 To incite ‘publicly’ means that the call for criminal action is communicated to a number of persons in a public place or to members of the general public at large, in particular by using technical means of mass communication such as radio and television²⁵⁷. The ICTR

²⁴⁷ 78 UNTS 277 (1951). See, e. g., Lemkin (1947) 41 *AJIL* 145; Kunz (1949) 43 *AJIL* 732, 738; Vest, *Genozid durch organisatorische Machtapparate* (2002) 189 *et seq.*; Ambos, *Der Allgemeine Teil* (2004) 415 *et seq.*

²⁴⁸ Similarly Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 804.

²⁴⁹ See mn. 19.

²⁵⁰ Cf. Ambos, *Der Allgemeine Teil* (2004) 651, 653–4. The ICTR, however, considers that instigation under article 6 para. 1 ICTR Statute includes the direct and public elements of incitement under article 2 para. 3 (c) ICTR Statute (*Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 481 <<http://www.legal-tools.org/en/doc/b8d7bd/>>).

²⁵¹ 1996 ILC Draft Code 26–7 (para. 16).

²⁵² *Prosecutor v. Kambanda*, No. ICTR 97-23-S, Judgment and Sentence, TC, 4 September 1998, para. 40 (count 3) <<http://www.legal-tools.org/doc/49a299/>>.

²⁵³ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, paras. 672–5 <<http://www.legal-tools.org/en/doc/b8d7bd/>>.

²⁵⁴ *Prosecutor v. Rutaganda*, No. ICTR-96-3-T, Judgment, TC, 6 December 1999, para. 38 <<http://www.legal-tools.org/doc/f0dbbb/>>; *Prosecutor v. Ruggiu*, No. ICTR-97-32-I, Judgment, TC, 1 June 2000, paras. 13 *et seq.* <<http://www.legal-tools.org/doc/486d43/>>; *Prosecutor v. Bagilishema*, No. ICTR-95-1A-T, Judgment, TC, 7 June 2001, paras. 51 *et seq.* (55) <<http://www.legal-tools.org/doc/6164a4/>>; *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-T, Judgment, TC, 3 December 2003, paras. 1013, 1015 <<http://www.legal-tools.org/doc/45b8b6/>>; *Prosecutor v. Muvunyi*, No. ICTR-2000-55A-T, Judgment and Sentence, TC, 12 September 2006, para. 500 <<http://www.legal-tools.org/doc/fa02aa/>>; *Prosecutor v. Kalimanzira*, No. ICTR-05-88-T, Judgment, TC, 22 June 2009, paras. 509–10 <<http://www.legal-tools.org/doc/3f8b23/>>; *Prosecutor v. Bikindi*, No. ICTR-01-72-A, Judgment, AC, 18 March 2010, para. 146 <<http://www.legal-tools.org/doc/e112dd/>>.

²⁵⁵ *Prosecutor v. Akayesu*, No. ICTR-96-4-A, Judgment, AC, 1 June 2001, paras. 474 *et seq.* <<http://www.legal-tools.org/doc/c62d06/>>; also *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, para. 678 <<http://www.legal-tools.org/doc/4ad5eb/>>. Crit. with regard to the jurisprudence of the ICTR in general Agbor (2013) 13 *JCLRev* 429, 458 *et seq.*, who argues that the Chambers erroneously equated ‘instigation’ as a mode of participation (Art. 6 (1) ICTRS) with incitement to commit genocide (Art. 2 (3)(c) ICTRS).

²⁵⁶ *Prosecutor v. Akayesu*, No. ICTR-96-4-A, Judgment, AC, 1 June 2001, paras. 478, 482 <<http://www.legal-tools.org/doc/c62d06/>>; *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, para. 679 <<http://www.legal-tools.org/doc/4ad5eb/>>.

²⁵⁷ Cf. 1996 ILC Draft Code 26; *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 556 <<http://www.legal-tools.org/en/doc/b8d7bd/>>.

considers the place where the incitement occurred and the scope of the assistance as particularly important²⁵⁸.

To incite ‘directly’ means that another person is concretely urged or specifically provoked to take immediate criminal action; a vague suggestion is not sufficient²⁵⁹. There must be a specific causal link between the act of incitement and the main offence²⁶⁰. The fulfilment of these requirements may also depend on the ‘cultural and linguistic’ context²⁶¹. What, for example, a Rwandan national understands as a ‘direct’ call to commit a crime might not be understood as such by a German and *vice versa*. The qualifier ‘direct’ brings the concept of incitement even closer to ordinary forms of complicity, such as instigation, solicitation or inducement. Thereby, the concept loses its original purpose²⁶², which is the prevention of an uncontrollable and irreversible danger of the commission of certain mass crimes²⁶³. For if an individual urges another individual known to him to take criminal action he or she has the same control over the actual perpetrator as an instigator or any other accomplice causing a crime.

One important difference still remains between subparagraph (e) and the forms of complicity found in subparagraphs (b), (c) and (d): incitement with regard to genocide does not require the commission or even attempted commission of the actual crime, *i. e.*, genocide, and is therefore an inchoate crime²⁶⁴. It only requires the incitement ‘to commit genocide’ without the additional requirement that it ‘in fact occurs or is attempted’ (as, for example, is required in a general manner by subparagraph (b)). Thus, subparagraph (e) breaks with the dependence of the act of complicity on the actual crime, abandoning the accessory principle (*Akzessorietätsgrundsatz*) which governs – at least in the sense of *factual* dependence of the complicity on the main act²⁶⁵ – subparagraphs (b) to (d). A person who directly and publicly incites the commission of genocide is punishable for the incitement even if the crime of genocide *per se* is never actually committed²⁶⁶. This has been confirmed by the ICTR in *Akayesu*, where it was stated that incitement to commit genocide ‘must be punished as such, even where such incitement failed to produce the result expected by the perpetrator’²⁶⁷. This view is convincing since the act of incitement is as such sufficiently dangerous and blameworthy to be punished²⁶⁸.

²⁵⁸ *Ibid.*

²⁵⁹ Cf. 1996 ILC Draft Code 26; *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 557 <<http://www.legal-tools.org/en/doc/b8d7bd/>>; *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, para. 692 <<http://www.legal-tools.org/doc/4ad5eb/>>.

²⁶⁰ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 557 <<http://www.legal-tools.org/en/doc/b8d7bd/>>.

²⁶¹ *Ibid.*, paras. 557–8. *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, para. 700 <<http://www.legal-tools.org/doc/4ad5eb/>>.

²⁶² Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 805 with fn. 168.

²⁶³ The specific danger or risk implicit in the act of incitement lies in the possibility to trigger a certain course of events. It has been most convincingly described by Dreher who compares the inciter to a person who throws a torch and does not know if it will catch fire or not (Dreher, in: Lackner *et al.* (eds.), *Festschrift für Wilhelm Gallas* (1973) 307, 312).

²⁶⁴ Cryer, in: *id. et al.*, *Introduction to ICL* (2014) 353, 377. Cf. also Agbor (2012) 12 *ICLRev* 155, 158 *et seq.*

²⁶⁵ See on the accessory principle in a factual, quantitative and qualitative sense Hamdorf, *Beteiligungsmodelle* (2002) 17 *et seq.*; Ambos, *Der Allgemeine Teil* (2004) 617–8.

²⁶⁶ Cf. Weigend, in: Bassiouni (ed.), *Commentaries on the ILC’s 1991 Draft Code* (1993) (regarding the 1991 ILC Draft Code, article 2 para. 3) distinguishing between soliciting and aiding on the one hand, and inciting and conspiring on the other.

²⁶⁷ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, paras. 561–2 (562) <<http://www.legal-tools.org/en/doc/b8d7bd/>>. In the same vein *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, para. 678 <<http://www.legal-tools.org/doc/4ad5eb/>>, explicitly emphasizing that ‘the Statute of the International Criminal Court also appears to provide that an accused incurs criminal responsibility for direct and public incitement to commit genocide, even if this is not followed by acts of genocide’.

²⁶⁸ Conc. Vest, *Genozid durch organisatorische Machtapparate* (2002) 195. See *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, paras. 771 *et seq.* <<http://www.legal-tools.org/doc/4ad5eb/>>, for examples of articles which constitute direct and public incitement to genocide.

- 39 On the *subjective* level, the incitement must be accompanied by the intention (purpose) 'to directly prompt or provoke another to commit genocide. It implies a desire on the part of the perpetrator to create by his actions a particular state of mind necessary to commit such a crime in the minds of the person(s) he is so engaging'²⁶⁹. In other words, the person who incites must have the specific intention (*dolus specialis*) to destroy, in whole or in part, a protected group him- or herself, *i. e.*, he or she must possess the same state of mind as the main perpetrator²⁷⁰. According to the ICTR, this requirement also applies to other forms of participation in genocide but not to complicity under article 2 para. 3 (e) ICTR Statute²⁷¹. This differentiation is not convincing²⁷². Indeed, it was not followed by the *Musema* TC, which held that complicity in genocide – independent of its legal basis and form – requires only knowledge of the genocidal intent²⁷³; for aiding and abetting, even possible knowledge, *i. e.*, culpable ignorance ('had reason to know'), shall be sufficient²⁷⁴. This is correct in that it limits the accomplices' *mens rea* to positive knowledge; yet it goes too far in admitting the 'had reason to know'- standard for the aider and abettor since this standard introduces a negligence threshold and thereby violates the principle of culpability. Thus, in general, positive knowledge of the accomplice with regard to the genocidal intent of the (main) perpetrator(s) must be considered necessary but it is also sufficient. A higher threshold, *i. e.*, specific genocidal intent, should only be required for those forms of commission which are similar to direct perpetration, *i. e.*, the other forms of perpetration (co-perpetration, perpetration by means and ordering) and the specific forms of complicity (incitement and conspiracy), since they create a specific and autonomous risk for the protected groups²⁷⁵.

²⁶⁹ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 560 <<http://www.legal-tools.org/en/doc/b8d7bd/>>.

²⁷⁰ Explicitly *Prosecutor v. Ruggiu*, No. ICTR-97-32-I, Judgment, TC, 1 June 2000, para. 14: '... must himself have the specific intent to commit genocide ...' <<http://www.legal-tools.org/doc/486d43/>>. See also *Prosecutor v. Niyitekega*, No. ICTR-96-14-T, Judgment and Sentence, TC, 16 May 2003, para. 431 <<http://www.legal-tools.org/doc/325567/>>; *Prosecutor v. Kajelijeli*, No. ICTR-98-44A-T, Judgment, TC, 1 December 2003, para. 854 <<http://www.legal-tools.org/doc/afa827/>>; *Prosecutor v. Nahimana et al.*, No. ICTR-99-52-A, Judgment, AC, 28 November 2007, para. 1012 <<http://www.legal-tools.org/doc/4ad5eb/>>; *Prosecutor v. Muvunyi*, No. ICTR-2000-55A-T, Judgment and Sentence, TC, 12 September 2006, para. 505 <<http://www.legal-tools.org/doc/fa02aa/>>; Schabas, *The ICC* (2010) 439.

²⁷¹ *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, paras. 485, 540, 546–7 <<http://www.legal-tools.org/en/doc/b8d7bd/>>.

²⁷² For a critical view see also Greenawalt (1999) 99 *ColLRev* 2259, 2282 *et seq.*; Schabas, in: Fischer *et al.* (eds.), *Prosecution of Crimes* (2011) 469–70.

²⁷³ *Prosecutor v. Musema*, No. ICTR-96-13-T, Judgment, TC, 27 January 2000, para. 183 <<http://www.legal-tools.org/doc/1fc6ed/>>.

²⁷⁴ *Ibid.*, para. 182. See also *Prosecutor v. Krstić*, No. IT-98-33-A, Judgment, AC, 19 April 2004, paras. 140 *et seq.* <<http://www.legal-tools.org/doc/86a108/>>. The subsequent case law abandoned the 'had reason to know'- element, requiring 'awareness' of the direct perpetrator's intent: 95-1A-T, Judgment, TC, 7 June 2001, para. 33 <<http://www.legal-tools.org/doc/6164a4/>>; *Prosecutor v. Semanza*, No. ICTR-97-20-T, Judgment, TC, 15 May 2003, paras. 388, 394 <<http://www.legal-tools.org/doc/7e668a/>>; *Prosecutor v. Kajelijeli*, No. ICTR-98-44A-T, Judgment, TC, 1 December 2003, para. 768 <<http://www.legal-tools.org/doc/afa827/>>; *Prosecutor v. Bisengimana*, No. ICTR-00-60-T, Judgment and Sentence, TC, 13 April 2006, para. 36 <<http://www.legal-tools.org/doc/694dd8/>>.

²⁷⁵ See for a detailed discussion Ambos, *Der Allgemeine Teil* (2004) 793 *et seq.*; *id.*, in: Vohrah *et al.* (eds.), *Man's Inhumanity* (2003) 11, 21 *et seq.* (23–4); *id.* (2001) 21 *NStZ* 628, 632–2. This view is also shared by Vest, *Genozid durch organisatorische Machtapparate* (2002) 243 (with fn. 33), 248, 265 and 385; Werle and Jessberger, *Principles* (2014) 213 *et seq.*, 319 *et seq.*; *id.* (2007) 5 *JICJ* 953, 970 and Kolb, in: *id.* and Scalia (eds.), *Droit International Pénal* (2012) 192 (both with regard to the aider and abettor); Jones, in: Vohrah *et al.* (eds.), *Man's Inhumanity* (2003) 467, 479 arguing for an analogy with the *mens rea* requirement of crimes against humanity. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 806 only requires that the inciter 'must merely know and want the incited persons to commit the crime', but need not herself possess the genocidal intent. It is difficult to see, however, how this position may be reconciled with his – convincing – conclusion that the link between incitement and genocide is 'a subjective "volitional" one in terms of being directed at the genocidal aim of the inciting act'. (*ibid.*, 805). For a combined structure- and knowledge-based approach with regard to the special intent requirement in genocide (distinguishing according to the status and role of the low-, mid- and top-level perpetrators) and the consequences for participation in genocide see Ambos (2009) 91 *IREVRC* 833, 842–5.

6. ‘attempt’

a) ‘by taking action that commences its execution by means of a substantial step...’. 40 Although attempt liability was not explicitly and autonomously recognized in Nuremberg or Tokyo or in the Statutes of the ICTY and ICTR it was always implicit in the criminalization of the ‘preparation’ and ‘planning’ of a crime, especially a war of aggression²⁷⁶. With this form of criminalization even conduct still in the attempt stage was made punishable as a complete offence²⁷⁷. Thus, it is not surprising that all ILC Draft Codes contain an attempt provision²⁷⁸. The *Rome Statute* correctly follows this view; yet, it does not limit attempt to certain crimes – as proposed by the ILC²⁷⁹ – but refers to ‘such a crime’, *i. e.*, to any crime within the jurisdiction of the Court (articles 5–8*bis*). This is convincing since the Statute only includes the core crimes which are all equally serious²⁸⁰ so that it would not be justified to admit attempt liability only for some, but not for others. So far the case law has only referred to attempted murders.²⁸¹

An attempted crime is incomplete (inchoate) since it lacks the (complete) objective 41 elements of the respective crime while the subjective elements are complete.²⁸² The respective intent of the attempted crime is generally the same as the one of the respective consummated crime.²⁸³ The Statute defines attempt as the commencement of execution (of ‘such a crime’) by means of a substantial step²⁸⁴. This definition is a combination of French and American Law²⁸⁵ and was already used in the 1991 Draft Code (article 3 para. 3) and the 1996 Draft

²⁷⁶ See generally Ambos, *Internationales Strafrecht* (2014) 233 *et seq.*; crit. with regard to the new Article 8*bis* *id.* (2010) 53 *GYbIL*. 463, 494–97.

²⁷⁷ Cf. Triffterer, in: Hankel and Stuby (eds.), *Strafgerichte gegen Menschenverbrechen* (1995) 169, 232–4. According to Werle and Jessberger, *Principles* (2014) 264, attempt is part of customary international law.

²⁷⁸ 1954 ILC Draft Code, article 2 para. 13 (iv); 1991 ILC Draft Code, article 3 para. 3; 1996 ILC Draft Code, article 2 para. 3 (g).

²⁷⁹ The ILC could not reach consensus on a list of crimes which can be attempted yet many members and some governments considered an attempt only possible in case of war crimes or crimes against humanity ((1986) 2 *YbILC*, Part 2, 49, para. 128; (1990) 1 *YbILC* 6, 21, 70; (1990) 2 *YbILC*, Part 2, 16 (para. 71); (1991) 1 *YbILC* 188; (1991) 2 *YbILC*, Part 2, 99; (1994) 2 *YbILC*, Part 2, 77, 85 (para. 196); (1994) 1 *YbILC* 110, 121, 145 (para. 10)).

²⁸⁰ See also *Prosecutor v. Akayesu*, No. ICTR-96-4-T, Judgment, TC, 2 September 1998, para. 470 considering that the ICTR Statute does not establish a hierarchy of norms, but rather puts all offences (genocide, crimes against humanity, violations of article 3 common to the Geneva Conventions and of the Add. Prot. II) ‘on an equal footing’ <<http://www.legal-tools.org/en/doc/b8d7bd/>>. Conc. *Prosecutor v. Tadić*, No. IT-94-1-Abis, Judgment in Sentencing Appeals, AC, 26 January 2000, para. 69 <<http://www.legal-tools.org/doc/d7f618/>>. For a higher gravity of crimes against humanity *Prosecutor v. Erdemović*, No. IT-96-22-A, Judgment, AC, 7 October 1997, Joint Separate Opinion Mc Donald and Vohrah, paras. 20 *et seq.* <<http://www.legal-tools.org/doc/f91d89/>>; conc. *Prosecutor v. Erdemović*, No. IT-96-22-A, Judgment, AC, 7 October 1997, Separate and Dissenting Opinion Judge Stephen, para. 5, <<http://www.legal-tools.org/doc/f03ecc/>>; *Prosecutor v. Kambanda*, No. ICTR 97-23-S, Judgment and Sentence, TC, 4 September 1998, para. 14 <<http://www.legal-tools.org/doc/49a299/>>; *Prosecutor v. Tadić*, Nos. IT-94-1-S/Tbis-R 117, Sentencing Judgment, TC, 11 November 1999, para. 28 <<http://www.legal-tools.org/doc/b1ca4d/>>. Cf. Ambos, *Der Allgemeine Teil* (2004) 748 with fn. 298 with further references.

²⁸¹ *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, paras. 35 *et seq.* <<http://www.legal-tools.org/doc/5686c6/>>; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, paras. 17, 197 *et seq.* <<http://www.legal-tools.org/doc/5b41bc/>>; *Prosecutor v. Blé Goudé*, No. ICC-02/11-02/11-186, Decision on the Confirmation of Charges, PTC, 11 December 2014, para. 121 <<http://www.legal-tools.org/doc/0536d5/>>; excluding an attempt in the concrete case *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, para. 1621 <<http://www.legal-tools.org/doc/9813bb/>>.

²⁸² Cf. Ambos, *Treatise on ICL I* (2013) 240 *et seq.*; also *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, para. 460 <<http://www.legal-tools.org/doc/67a9ec/>>.

²⁸³ *Ibid.*; for a more nuanced treatment Ambos, *Treatise on ICL I* (2013) 243 *et seq.*

²⁸⁴ More detailed on this objective (conduct) element of attempt see Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 809 *et seq.* and Ambos, *Treatise on ICL I* (2013) 245 *et seq.*

²⁸⁵ See, on the one hand, the classical French formulation (‘commencement d’exécution’) already in § 2 of the *Code Pénal* of 1810 and now in article 121–5 *Code Pénal*; on the other hand, American Law Institute, *Model Penal Code and Commentaries* (1985) § 5.01 (1) (c): ‘substantial step’. Cf. Wise, in: Sadat Wexler (ed.), *Model*

Code (article 2 para. 3 (g)). The crucial question was and still is when, according to this definition, an attempt actually begins. It is clear that preparatory acts are not included since they do not represent a 'commencement of execution'. In fact, this was the only issue which was not controversial within the ILC when discussing attempt²⁸⁶. It is not clear, however, whether the German concept of the commencement of attempt by 'immediately proceeding to the accomplishment of the elements of the offence' (*unmittelbares Ansetzen zur Tatbestandsverwirklichung*)²⁸⁷ falls within the terms of this subparagraph. At first glance, the German concept seems to differ from the 'commencement of execution' since in the case of an 'immediately proceeding' the perpetrator must only be very close to the actual execution of a crime but not have partly executed it as apparently required in the case of the 'commencement of execution'. However, this is only an apparent difference, not a real one²⁸⁸. The ILC commentary explained that 'commencement of execution' indicates that 'the individual has performed an act which constitutes a significant step towards the completion of the crime'²⁸⁹. Consequently, there is no requirement that the crime in question be partly executed, *i. e.*, the person need not have realized one or more elements of the crime. The French version of the Statute also speaks of '*un commencement d'exécution*', employing the wording of article 121–5 of the *Code Pénal*. French legal scholarship has always understood the concept in a broad sense, covering '*tout acte qui tend directement au délit*'²⁹⁰. The Spanish version does not even speak of 'commencement of execution' but requires '*actos que supongan un paso importante para su ejecución*'. Thus, in practical terms, there is no difference between 'commencement of execution' and 'immediately proceeding to the accomplishment of the elements of the offence'²⁹¹. Still, the latter definition is more precise and gives attempt liability by its wording much more weight since it is – at least theoretically – clearly distinguishable from liability for a complete crime²⁹².

- 42 At first glance it is difficult to understand the meaning of the last part of the first sentence of article 25 para. 3 (f)²⁹³. That 'the crime does not occur' seems already to follow from the concept of attempt as a non-completed (inchoate) offence. Further, the non-completion seems to be logically 'independent of the person's intentions' since he or she intends (wants, desires) to commit the offence. In other words, the perpetrator has the normal *mens rea* (as in the case of a completed offence)²⁹⁴, what is lacking in the case of attempt is a complete *actus reus*, since 'the harm is absent'²⁹⁵. In fact, however, the complicated wording goes back to the French law which conceives of abandonment as a negative element of the attempt definition²⁹⁶. Accord-

Draft Statute for the ICC (1998) 39, 44; Fletcher, *Basic Concepts* (1998) 171–2; van Sliedregt, *Individual Criminal Responsibility* (2012) 151 *et seq.*; Heller, in: Heller and Dubber, *Handbook* (2011) 593, 609; crit. Werle and Jessberger, *Principles* (2014) 264 *et seq.*; Cryer, in: *id. et al.*, *Introduction to ICL* (2014) 353, 380 ('compromise' formulation).

²⁸⁶ (1986) 2 YbILC 49 (para. 129).

²⁸⁷ See § 22 German Penal Code; more precisely expressed in § 15 section 2 of the Austrian Penal Code by the formula '*eine der Ausführung unmittelbar vorangehende Handlung*' (an act that immediately precedes the execution of the crime). For the Austrian solution see Triffterer, *Österreichisches Strafrecht. Allgemeiner Teil* (1994) chapter 15, mn. 7 *et seq.*

²⁸⁸ Cf. Safferling, *Internationales Strafrecht* (2011) § 5 mn. 107. Satzger, *Internationales Strafrecht* (2013) § 15 mn. 70.

²⁸⁹ 1996 ILC Draft Code, p. 27 (para. 17).

²⁹⁰ Cf. Pelletier and Perfetti, *Code Pénal 1997–1998* (1997) 20.

²⁹¹ Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 812–3 with fn. 204.

²⁹² See also article 33 g para. 1 of the *Alternative General Part*, prepared by Eser *et al.* which uses the notion 'substantial step' instead of 'commencement of execution' since the former is more precise.

²⁹³ Crit. also Werle and Jessberger, *Principles* (2014) 265 with fn. 581.

²⁹⁴ Cf. *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 September 2008, paras. 458–64 (defendants had intent to kill civilians, this intent, 'the *dolus* that embodies the attempt', 'is the same than the one that embodies the consummated act', para. 460) <<http://www.legal-tools.org/doc/67a9ec/>>. Cf. also Schabas, *The ICC* (2010) 440.

²⁹⁵ Fletcher, *Basic Concepts* (1998) 171.

²⁹⁶ Article 121–5 of the French *Code Pénal* reads: '*La tentative ... n'a été suspendue ou n'a manqué son effet qu'en raison de circonstances indépendantes de la volonté de son auteur*'. The French wording of the Statute is

ingly, attempt implies the non-occurrence of the crime *independent* of circumstances intended by the perpetrator; *e contrario* this means that the perpetrator is not punishable if the crime does not occur because of circumstances *intended* by him or her. Thus, what this formulation does is to recognise the possibility of voluntary abandonment using a negative-implicit approach²⁹⁷.

b) ‘a person ... shall not be liable ... for the attempt ... if that person completely and voluntarily gave up the criminal purpose’. The possibility of abandonment was not provided for in the ILC Draft Codes of Crimes but was considered in the Preparatory Committee²⁹⁸. It is recognised in all modern legal systems and can, therefore, be truly considered a general principle of international law²⁹⁹. In theory, it creates an incentive for the perpetrator to withdraw from the commission³⁰⁰. In light of the first clause (mn. 41), however, it is doubtful whether this second clause is indeed necessary. While the first clause provides for an *implicit* formulation, the second one opts for a *positive* and *explicit* approach. It was included in the *Rome Statute* in the last minute, based upon a Japanese proposal and supported by Germany, Argentina and other like-minded States after informal consultations. In the heat of the negotiations, the drafters, including this author, overlooked the fact that the first clause already contained a rule on abandonment, albeit only an implicit one.

The formulation is based on the General Part of the updated Siracusa Draft³⁰¹ and the US-Model Penal Code³⁰². It is, however, less stringent than these provisions. In essence, omitting the redundant, the provision rewards the person if he or she – in objective terms – abandons the effort to commit the crime or otherwise prevents its commission and – in subjective terms – completely and voluntarily gives up the criminal purpose. The reference to the criminal purpose is not indispensable since the *raison d’être* of an exemption from punishment in case of abandonment is that the perpetrator completely and voluntarily abandons the further execution or prevents the completion of the act. This presupposes that he or she has given up the criminal purpose.

The provision does not address the difficult problems related to abandonment, *e.g.*, at what stage of the commission abandonment is still possible, what counter-activity the perpetrator must engage in so as to deserve an exemption from punishment or what the circumstances must be for the abandonment to be deemed engaged in ‘voluntarily’³⁰³. Further, the provision does not distinguish between abandonment in case of one or more than one participants; in the latter case, difficult questions of attribution regarding the act of abandonment of one participant *vis à vis* the other(s) arise³⁰⁴. These and other problems are left to the Court. Given the short time at the Rome Conference and the difficulty in reaching consensus about less complicated issues this was certainly a wise or, at least, practical solution.

almost identical: ‘... en raison de circonstances indépendantes de sa volonté’. For the Spanish law see article 16 para. 1 *Código Penal* and Mir Puig, *Derecho Penal. Parte General* (2011) 365–6.

²⁹⁷ For a more profound discussion see Ambos, *Der Allgemeine Teil* (2004) 709 *et seq.*

²⁹⁸ Preparatory Committee Decisions February 1997, p. 22, fn. 12.

²⁹⁹ Cf. Fletcher, *Rethinking Criminal Law* (1978) 185; *id.*, *Basic Concepts* (1998) 181. On its basic elements see Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 815 *et seq.*

³⁰⁰ See for the different theoretical justifications of abandonment: Fletcher, *Rethinking Criminal Law* (1978) 186 *et seq.*; Jescheck and Weigend, *Lehrbuch des Strafrechts. Allgemeiner Teil* (1996) 538 *et seq.*

³⁰¹ Siracusa Draft, articles 33–8. See also article 33 g para. 1 of the *Alternative General Part*, prepared by Eser *et al.* Both rules are based on German law, cf. sect. 24 *Strafgesetzbuch*.

³⁰² American Law Institute, *Model Penal Code and Commentaries* (1985) § 5.01 (4).

³⁰³ Cf. Satzger, *Internationales Strafrecht* (2013) § 15 mn. 71.

³⁰⁴ Thereto Cryer, in: *id. et al.*, *Introduction to ICL* (2014) 353, 380, emphasizing that liability for aiding and abetting or participating in a joint criminal enterprise might arise.

IV. Paragraph 3bis ('in respect of the crime of aggression...')

- 46 The provision transfers the *leadership clause* of the newly defined crime of aggression into the framework of Article 25³⁰⁵. While the clause has a solid basis in customary international law, it is not totally clear who is to be considered a person 'in a position effectively to exercise control over or to direct the political or military action of a State' (insider, *intraneus*). Also, it remains to be seen whether and, if so, how the leadership concept, apparently based on a *Weberian* model of organization, can be satisfactorily applied to non-bureaucratic forms of organizations, as they normally exist in paramilitary or terrorist non-State actors. At any rate, taking the wording literally ('effectively'), the leadership concept focuses on *de facto* control rather than on a purely formal status. Thus, paragraph 3bis certainly comprises the senior political as well as other (military, economic) leaders with sufficient effective control over the state apparatus³⁰⁶. In turn, all lower ranking and less-influential actors, such as mid-level bureaucrats, military officers and *a fortiori* mere soldiers, must be regarded as outsiders (*extranei*) who cannot be prosecuted for participating in the crime of aggression³⁰⁷. This wide exemption benefiting a series of important people in an aggressive state apparatus may give rise to criticism if ever a case of aggression will come before the ICC. As to the punishable *intranei* article 25 with all modes of attribution applies; only subparagraph (d) will probably be of little relevance since the *intranei* normally constitute the common purpose group which lies at the heart of this provision and therefore will be liable as (indirect) co-perpetrators.

V. Paragraph 4

- 47 This paragraph repeats a formulation as old as the codification history of international criminal law³⁰⁸. It affirms the parallel validity of the rules of State responsibility, *i. e.*, in particular the rules as embodied in the ILC Draft articles on State Responsibility³⁰⁹.

C. Special remarks

I. Issues of delimitation

- 48 The analysis of paragraph 3, subparagraphs (b) and (c), shows that it is hardly possible to delimitate the different forms of complicity mentioned in these subparagraphs. Thus, it may be sufficient and more reasonable to draft a rule limiting complicity (secondary participation) to inducement/instigation and other assistance ('aiding and abetting'). It is submitted that these forms of secondary participation cover any conduct which should entail criminal responsibility. 'Ordering' a crime should, as already argued (mn. 18), be dealt with under subparagraph (a), *i. e.*, acting through another.
- 49 As to the delimitation of *co-perpetration and aiding and abetting* (assistance), the case law has developed some criteria. With regard to participation in torture, the *Furundžija* TC held

³⁰⁵ Review Conference, Resolution 6., 11 June 2010. The following considerations are based on my more detailed analysis Ambos (2010) 53 *GYbIL* 463, 489-93.

³⁰⁶ Heller (2007) 18 *EJIL* 477, 479 *et seq.* correctly holds that the 'direct or control' criterion is stricter than the 'shape or influence' standard applied in the Nuremberg trials.

³⁰⁷ Kacker (2010) 33 *SuffolkTransnatLRev* 257, 266, arguing that the inclusion of participants would have weakened the leadership character of the crime of aggression.

³⁰⁸ See the 1954 ILC Draft Code, article 1; 1991 ILC Draft Code, article 3 para. 1; 1996 ILC Draft Code, article 2 paras. 1 and 4. See also Weigend, in: Bassiouni (ed.), *ILC's 1991 Draft Code* (1993) 113; Militello (2007) 5 *JICJ* 941, 951.

³⁰⁹ (1980) 2 *YbILC*, Part 2, 30-4; also in Spinedi and Simma, *State Responsibility* (1987) 325.

that it constitutes co-perpetration if the accused takes part in an ‘integral part of the torture and partake(s) of the purpose’; if he or she ‘only’ assists ‘in some way’ in the torture and knows of its existence, the accused is liable as an aider and abettor³¹⁰. According to the *Tadić* AC, the main difference between co-perpetration and aiding and abetting lies in the existence of a common plan in case of the former and the absence of such a plan in the latter. If such a plan exists, any contribution to its realisation constitutes co-perpetration³¹¹. In *Krstić*, TC I held that co-perpetration requires participation ‘of an extremely significant nature and at the leadership level’³¹². In *Kvočka*, the same Chamber made the delimitation using subjective criteria: while co-perpetrator shares the intent of the JCE, the aider and abettor merely has knowledge of the principal offender’s intent³¹³. However, in *Krnojelac*, TC II explicitly rejected this view and instead followed the more simplistic *Tadić* approach, which considers any participant in a criminal enterprise who is not a principal offender an accomplice but refers to him or her, oddly enough, as a co-perpetrator (sic!)³¹⁴. In substance, however, this Chamber pursued the same subjective approach as TC I in *Kvočka*³¹⁵. In the *Vasiljević* Appeal Judgment, the AC draws the following distinction between co-perpetration by means of a JCE and aiding and abetting:

‘(i) The aider and abettor carries out acts specifically directed to assist, encourage or lend moral support to the perpetration of a certain specific crime (murder, extermination, rape, torture, wanton destruction of civilian property, etc.), and this support has a substantial effect upon the perpetration of the crime. By contrast, it is sufficient for a participant in a joint criminal enterprise to perform acts that in some way are directed to the furtherance of the common design.

(ii) In the case of aiding and abetting, the requisite mental element is knowledge that the acts performed by the aider and abettor assist the commission of the specific crime of the principal. By contrast, in the case of participation in a joint criminal enterprise, i.e. as a co-perpetrator, the requisite mens rea is intent to pursue a common purpose’³¹⁶.

This latter approach was confirmed by the AC in the *Kvočka* Appeal Judgment³¹⁷. In sum, however, the case law is still developing and far from uniform.

As to *subparagraph (d)* it is questionable whether – in practical terms – it is really indispensable given the broad liability imposed by *subparagraph (c)*³¹⁸. On the objective level,

³¹⁰ *Prosecutor v. Furundžija*, No. IT-95-17/1-T, Judgment, TC, 10 December 1998, para. 257 <<http://www.legal-tools.org/doc/e6081b/>>; see also mn. 22.

³¹¹ *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 229 <<http://www.legal-tools.org/doc/8efc3a/>>.

³¹² *Prosecutor v. Krstić*, No. IT-98-33/T, Judgment, TC, 2 August 2001, para. 642 <<http://www.legal-tools.org/doc/440d3a/>>. Cf. also already mn. 9.

³¹³ *Prosecutor v. Kvočka et al.*, No. IT-98-30/1-A, Judgment, AC, 28 February 2005, paras. 249, 284 <<http://www.legal-tools.org/doc/006011/>>.

³¹⁴ *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, para. 77 <<http://www.legal-tools.org/doc/1a994b/>>.

³¹⁵ *Ibid.*, para. 87 requiring that the accused – as a co-perpetrator – shares the state of mind necessary for the crimes committed as part of the criminal enterprise.

³¹⁶ *Prosecutor v. Vasiljević*, No. IT-98-32-A, Judgment, AC, 25 February 2004, para. 102 <<http://www.legal-tools.org/doc/e35d81/>>. See already *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 229 <<http://www.legal-tools.org/doc/8efc3a/>>.

³¹⁷ *Prosecutor v. Kvočka et al.*, No. IT-98-30/1-A, Judgment, AC, 28 February 2005, para. 89 <<http://www.legal-tools.org/doc/006011/>>. See further para. 92, where the AC notes that ‘the distinction between these two forms of participation is important, both to accurately describe the crime and to fix an appropriate sentence. Aiding and abetting generally involves a lesser degree of individual criminal responsibility than co-perpetration in a joint criminal enterprise.’ But see also *Prosecutor v. Orić*, No. IT-03-68-T, Judgment, TC, 30 June 2006, para. 281 <<http://www.legal-tools.org/doc/37564c/>>, incorrectly assuming that (co)-perpetration demands the accused’s physical involvement in the commission of the crime and therefore establishing a too broad notion of aiding and abetting (every non-physical involvement) in cases where the ability to frustrate the crime would consequently lead to liability as (co)-perpetrator in the sense of Article 25 (3) subpara. (a). See on a cumulative conviction on the basis of a same act under both modes of liability *Prosecutor v. Djordjević*, No. IT-05-87/1-A, Judgment, AC, 27 January 2014, paras. 825 *et seq.* <<http://www.legal-tools.org/doc/e6fa92/>>.

³¹⁸ According to Mantovani (2003) 1 JICJ 26, 35, subpara. (d) is superfluous. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 803 doubts its necessity and sees only ‘symbolic relevance’ of the provision, due to its ‘group factor’. Schabas, *The ICC* (2010) 436 speaks of its ‘minor role’. Ohlin (2009) 12 NCLRev 406,

subparagraphs (c) and (d) are quite similar, the only difference being that (c) is concerned with individual responsibility and (d) with group responsibility. A person who contributes to a group crime (or its attempt) will always be liable as an assistant to an individual crime pursuant to subparagraph (c). In other words, the group requirement of subparagraph (d) excludes liability for participation in individual crimes according to subparagraphs (a) to (c) but not *vice versa*. Thus, a significant difference between subparagraphs (c) and (d) lies, if at all, on the subjective level³¹⁹. As pointed out above (mn. 33–34), a participant in a group crime must either aim at furthering the criminal activity or purpose of the group (subparagraph (d) (i)) or must know of its criminal intention (subparagraph (d) (ii))³²⁰. Thus, a person acting without the specific intent of facilitating the commission within the meaning of subparagraph (c) may still be liable under subparagraph (d) (ii)³²¹. In fact, the Rome Statute provides, on the one hand, for a subjective limitation of aiding and abetting by the requirement of facilitating – in contrast, the case law of the *ad hoc* Tribunals only requires knowledge that the assistance contributes to the commission of crimes³²²; but, on the other hand, it takes this limitation away by the low knowledge threshold in subparagraph (d) (ii)³²³.

On another note, delimitating subpara. (d) from subpara. (a), the PTC considers the former as a kind of residual mode of participation in cases in which an alleged co-perpetrator lacks the ability to frustrate the commission of the crime³²⁴. Further, it seems that the Prosecution prefers to apply subpara. (d) (and not (a)), due to its arguably lower (objective) contribution requirement³²⁵. In any case, the increasing popularity of subpara. (d) calls for a careful legal analysis of the contribution requirement (see mn. 29).

II. Complicity after commission

- 51 Article 25 does not explicitly refer to acts of complicity after the commission of the crime. The ILC only wanted to include such acts within the concept of complicity if they were based on a commonly agreed plan; in the absence of such a plan the person would only be liable

416 regards it doctrinally incoherent (as Article 25 does not contain any ‘primary offense of direct participation in a group crime’ but only derivate accomplice liability for contributions to such a group crime) and calls for revision of the whole article. However, contrary to Ohlin’s opinion, the wording ‘jointly with another’ in subparagraph (a) as compared to the ‘common purpose group’ in subparagraph (d) does not render it inconsistent since the two expressions have, as explained above, different meanings.

³¹⁹ In the same vein *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 337 (‘Art. 25(3)(d) provides for a residual form of accessory liability [...], by reason of the state of mind in which the contributions were made.’) <<http://www.legal-tools.org/doc/b7ac4f/>>. Cf. Vest, *Völkerrechtsverbrecher verfolgen* (2011) 379, 381; Park, *Beteiligungsform* (2016 forthcoming).

³²⁰ I thereby modify the view presented in the first edition (mn. 39).

³²¹ Vest (2010) 8 *JICJ* 851 reaching a similar conclusion, refers to subpara. (d) as a ‘rescue clause’. See also Jessberger and Geneuss (2008) 6 *JICJ* 853, 865; Safferling, *Internationales Strafrecht* (2011) § 5, mn. 88.

³²² See mn. 27.

³²³ For a more detailed discussion see Ambos, *Der Allgemeine Teil* (2004) 641 *et seq.* drawing an analogy to *Tadić*. Park, *Beteiligungsform* (2016 forthcoming) subparagraph (d) calls for a mandatory sentence reduction because of the low mens rea standard and the lack of precision required with regard to the criminal purpose.

³²⁴ *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 January 2007, para. 337 (as quoted in note 319) <<http://www.legal-tools.org/doc/b7ac4f/>>; *Prosecutor v. Ruto et al.*, No. ICC-01/09-01/11-01, Decision on the Prosecutor’s Application for *Summons to Appear*, 8 March 2011, para. 44 (with respect to *Joshua Arap Sang*) <<http://www.legal-tools.org/doc/6c9fb0/>>; *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-2-tENG, Decision on the Prosecutor’s Application for a Warrant of Arrest, PTC I, 28 September 2010, para. 36 <<http://www.legal-tools.org/doc/27b448/>> and *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 279 <<http://www.legal-tools.org/doc/63028f/>>; *Prosecutor v. Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l’article 74 du Statut, TC, 7 March 2014, para. 283 <<http://www.legal-tools.org/doc/9813bb/>>.

³²⁵ In the arrest warrant against *Harun*, 50 out of 51 counts are based on Article 25(3)(d), see *Prosecutor v. Harun et al.*, No. ICC 02/05-01/07-2, Warrant of Arrest for Ahmad Harun, 27 April 2007, *passim* <<http://www.legal-tools.org/doc/7276ad/>>. Cf. also Stahn (2014) 12 *JICJ* 809, 829 *et seq.* who points out procedural problems in the *Katanga* case in which the majority convicted *Katanga* under article 25(3)(d) by using Regulation 55 at later trial stage.

pursuant to a distinct offence ('harbouring a criminal')³²⁶. During the Preparatory Committee deliberations an explicit provision was deemed necessary³²⁷ but this should not be interpreted to the effect that without such a provision liability for *ex post facto* contributions is a *limine* excluded³²⁸. To be sure, a prerequisite of accomplice liability is an 'attributory' nexus (*Zurechnungszusammenhang*) between the main offence and the act of assistance. Thus, assistance that occurs after the commission of the main offence may only entail criminal responsibility if there is a link to the accomplice's conduct before commission of the main offence, or more exactly, before its completion. In most cases such a link will consist in a prior common agreement which extends beyond the completion of the main offence. As to subparagraph (d) this means, as correctly held by the *Mbarushimana* PTC, that it 'can include contributing to a crime's commission after it has occurred, so long as this contribution had been agreed upon by the relevant group acting with a common purpose and the suspect prior to the perpetration of the crime.'³²⁹

This reasoning is also supported by the principle of culpability. Accordingly, a participant 52 in a crime can only be liable for his or her own contribution to the crime, regardless of the liability of other participants. This implies that the responsibility of each participant has to be determined individually on the basis of his or her factual contribution to the crime in question. A form of vicarious liability of the accomplice for the principal is excluded³³⁰. If the accomplice, on the contrary, is liable only for his or her own contribution, this contribution determines the scope of attribution and guilt³³¹.

III. Individual criminal responsibility and omission, in particular command responsibility³³²

The alleged moral difference between action ('A') and omission ('non A') is the reason 53 that criminal law theorists make criminal liability for an omission dependent upon a (legal) *duty to act* (*Garantenpflicht*)³³³. The person possessing such a duty may be called 'guarantor' (*Garant* in German, *garante* in Spanish); he/she has the respective position (*Garantenstellung*) which, in a way, is the flip side of the respective duty. But how can such a duty arise? The modern doctrine in civil law jurisdictions refers to two different sets of obligations as a basis for such a duty: on the one hand it is imposed on persons who because of his/her special protective position with regard to certain legal interests, e.g. the parents with regard to their children, the bank manager with regard to the money of the bank's clients, have a protective duty towards them (*Schutz-/Obhutspflicht*); they are 'protector guarantors'. On the

³²⁶ (1991) 2 YbILC, Part 2, 98; (1991) 1 YbILC, 188, para. 21 (Mr. Pawlak, chairman of the Drafting Committee). See also: (1990) 1 YbILC 17, 23, 28, 48; (1990) 2 YbILC, Part 1, 28 *et seq.* (paras. 28 *et seq.*); Vol. II, Part 2, 12 *et seq.* (para. 50). Cf. also: American Law Institute, *Model Penal Code and Commentaries* (1985) § 2.06; van den Wyngaert, in: Bassiouni (ed.), *ILC's 1991 Draft Code* (1993) 55–56; Weigend, in: Bassiouni (ed.), *ILC's 1991 Draft Code* (1993) 113, 116–7; Triffterer, in: Hankel and Stuby (eds.), *Strafgerichte gegen Menschenverbrechen* (1995) 169, 228.

³²⁷ Cf. Preparatory Committee Decisions March 1997, p. 21, fn. 9.

³²⁸ Cf. *Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 December 2011, para. 286 <<http://www.legal-tools.org/doc/63028f/>>.

³²⁹ *Ibid.*, para. 287; conc. *Prosecutor v. Khieu and Nuon*, No. 002/19-09-2007/ECCC/TC, Judgment, TC, 7 August 2014, para. 713 <<http://www.legal-tools.org/doc/4888de/>>; contrary Kearney (2013) CLF 331, 334 *et seq.*, arguing that subparagraph (d) can include *ex post facto* contributions without a prior agreement.

³³⁰ In American law, however, the doctrine of vicarious liability serves as the basis for the formal equivalence of perpetrators and accomplices (cf. Fletcher, *Basic Concepts* (1998) 190 *et seq.*).

³³¹ Cf. Wise, in: Sadat Wexler (ed.), *Model Draft Statute* (1998) 39, 42–3; Sereni, in: Lattanzi (ed.), *The ICC* (1998) 139. See also: Preparatory Committee Draft, article 23 para. 3: 'Criminal responsibility is individual and cannot go beyond the person and the person's possessions'.

³³² See for a more detailed treatment Ambos, *Treatise on ICL I* (2013) 180 *et seq.*

³³³ The duty requirement was apparently first mentioned by the German scholar Pauls Johann Anselm von Feuerbach in his textbook on criminal law of the beginning of the 19th century, see Feuerbach, *Lehrbuch des Gemeinen in Deutschland gültigen Peinlichen Rechts* (1812) 50 § 24.

other hand, it is imposed upon persons with a special responsibility over certain sources of danger, e.g., dangerous products or industrial plants, which entails that they have to secure and supervise them (*Überwachungs-/Sicherungspflicht*); they are ‘supervisor guarantors’³³⁴. These two sets of duties have as a common starting point that the criminal result brought about by the relevant omission is imputed to the guarantor because of his/her control over the relevant dangerous event, i.e., because of his ‘*Kontrollherrschaft*’³³⁵. While common law jurisdictions accept most of the individual duties arising from the twofold civil law approach they rather invoke formal sources (statute, contract, special status, voluntary assumption of care, prior dangerous act/creation of peril) as a basis of a duty to act³³⁶.

- 54 Crimes of omission can appear in *two different forms*. Either an offence of the special part (a special offence) makes a certain conduct constituting an omission punishable, thereby creating a genuine, authentic or separate offence of omission (*délit de pure omission*;³³⁷ *echtes Unterlassungsdelikt*); or there exists a provision in the general part (a general provision) which defines the requirements under which crimes of active conduct can be committed by omission (‘improper’ or ‘inauthentic offence of omission’, *délit de commission par omission, unechtes Unterlassungsdelikt*). This twofold distinction prevails in civil law jurisdictions³³⁸, but it is also acknowledged in common law jurisdictions³³⁹. In the case of a *genuine or separate offence of omission* the agent is held responsible for having fulfilled the conduct as defined in the respective offence. Several genuine crimes of omission can be found in criminal law statutes both in civil and common law jurisdictions³⁴⁰. The broadest liability in this regard is created by general failure to rescue offences, well known in most civil law jurisdictions³⁴¹ but traditionally rejected by the common law³⁴². In contrast, liability for genuine or proper offences of omission, liability for *commission by omission*, based on a general omission definition³⁴³, is derived from active result crimes and thus best captured by

³³⁴ Cf. Roxin, *Strafrecht Allgemeiner Teil II* (2003) § 32 mn. 33 *et seq.*, 107 *et seq.* The same twofold distinction is made in Spanish and Italian doctrine (for Spain see Muñoz Conde and García Arán, *Derecho Penal. Parte General* (2010) 246; Mir Puig, *Derecho Penal. Parte General* (2011) 325; for Italy see Pulitanò, *Diritto Penale* (2013) 229 *et seq.*; for Portugal see de Figueiredo Dias, *Direito penal: Parte general* (2007) 938 *et seq.*

³³⁵ This theory has been originally developed by Schünemann, *Unterlassungsdelikte* (1971) 231 *et seq.*

³³⁶ For the English law see Ashworth (1989) 105 *LQRev* 424, 439 *et seq.*; *id.*, *Positive Obligations* (2013) 31 *et seq.*; for the US see Kadish *et al.*, *Criminal Law and Its Processes* (2012) 218 *et seq.* See also Duttwiler (2006) 6 *ICLRev* 1, 31–2, 33–4; for a similar approach in Islamic Sharia *ibid.*, 43.

³³⁷ Sometimes also called ‘*délit d’omission simple*’ or ‘*vraies infractions d’omission*’, see e.g. Pradel, *Droit Pénal Comparé* (2008) 66.

³³⁸ See for the German-speaking jurisdictions Roxin, *Strafrecht Allgemeiner Teil II* (2003) § 31 mn. 16 *et seq.*; Jescheck and Weigend, *Strafrecht. Allgemeiner Teil* (1996) 605–8; for France see Pradel, *Droit pénal général* (2012) 312–3 (but note that liability for ‘*commission par omission*’ is not recognized, Ambos (2007) 5 *JICJ* 159, 163 *et seq.* and main text); for the Spanish-speaking jurisdictions Muñoz Conde and García Arán, *Derecho Penal. Parte General* (2010) *et seq.*; Mir Puig, *Derecho Penal. Parte General* (2011) 318 *et seq.*; for Portuguese-speaking jurisdictions see de Figueiredo Dias, *Direito penal: Parte general* (2007) 913; for Italy see Pulitanò, *Diritto Penale* (2013) 221 *et seq.* From a comparative perspective Pradel, *Droit Pénal Comparé* (2008) 66–8. Fletcher, *Rethinking Criminal Law* (1978) 422, fn. 8 is referring to ‘pure’ (*echte*) and ‘impure’ (*unechte Unterlassungsdelikte*) omission, but rejects this terminology for being confusing; from an ICL perspective see Duttwiler (2006) 6 *ICLRev* 1, 4 *et seq.*

³³⁹ See Fletcher, *Rethinking Criminal Law* (1978) 422; *id.*, *Basic Concepts* (1998) 46; conc. Allen, *Textbook* (2013) 26; see also Robinson (1984–1985) 29 *NYLSchLRev* 101–2; organizing his whole paper along the distinction and Ashworth (1989) 105 *LQRev* 424, 433 distinguishing between ‘offences of failing to do certain required acts’, ‘offences phrased in terms of acts, for which omissions may suffice’ and, as a third middle-category, ‘hybrid act-omission offences’ (e.g. driving without licence or driving without due care).

³⁴⁰ See for Germany Stree and Bosch, in: Eser *et al.* (eds.), *Schönke/Schröder Kommentar zum Strafgesetzbuch* mn. 134 with an enumeration of the relevant offences); for France Leroy, *Droit Pénal Général* (2012) 203–4 (citing only six genuine offences of omissions: Art. 223–6 (1), (2) and Arts. 223–7, 227–5, 434–1, 434–11); for England see e.g. Allen, *Textbook* (2013) 27–8. For the USA see Stewart (1998) 25 *AJIL* 385, 25 406 *et seq.*

³⁴¹ See e.g. Art. 223–6 French CP; sect. 323c StGB; Art. 195 Spanish CP; Art. 593 Italian CP and Art. 162 § 1 Polish CC (*Kodeksu Karnego*).

³⁴² Kadish *et al.*, *Criminal Law and its Processes* (2012) 219, 222 *et seq.*

³⁴³ For such a definition see e.g. section 13 StGB para. 1; Article 11 Spanish CP; Art. 40 (2) Italian CP; section 2 Austrian StGB; Art. 2 Polish CC; Art. 10 (2) Portuguese CP and Art. 18 Korean Penal Code (for further examples see Duttwiler (2006) 6 *ICLRev* 1, 39–41, 43–5, including Islamic Sharia at 42). However, in some civil

the French concept of ‘commission by omission’ (*commission par omission*). The corresponding offences can rightly be termed ‘improper offences of omission’ for in fact they are punished rather as commissions than omissions, i.e., as the flip side of the active result offence. Take the classical example: A lets B drown and would be liable for homicide by omission if he is the father of B, i.e., has the position of (protector) guarantor vis-à-vis B’s life. It is important to note, however, that this kind of omission conflicts with a strict understanding of the legality principle as for example adopted by the French law as perhaps its most vocal opponent³⁴⁴.

The Rome Conference missed the opportunity to propose a general rule on omission³⁴⁵, 55 although the final Draft Statute contained a general *actus reus* article³⁴⁶. This article was deleted³⁴⁷, basically, because it was not possible to reach a consensus on the definition of an omission³⁴⁸. Further, it was argued that liability for omission based on article 28 and on the crimes themselves may be sufficient³⁴⁹. However, if the Court takes the *nullum crimen* principle seriously it may have difficulties in basing liability for omission on provisions which do not clearly and explicitly provide for such liability³⁵⁰. While the case law of the *ad hoc* Tribunals has generally accepted that liability under article 7 para. 1 ICTY Statute also encompasses commission by omission³⁵¹ and while such a liability is generally recognized in domestic jurisdictions and thus may amount to a general principle of law, it would make the life for the Court much easier if the States parties were to include a definition in the ICC Statute.

The wide range of liability established in article 25 para. 3 is complemented by a specific 56 rule on command and superior responsibility (article 28)³⁵². Article 28 establishes a – in international criminal law unique – genuine offence of omission as defined above: the superior is punished for failing to prevent his or her subordinates from committing crimes or for failing to punish them for these crimes³⁵³. Thus, this provision establishes a very broad liability of the superior as a direct perpetrator (principal) for the acts of third persons (the

law countries these cases are covered by liability for negligent conduct only, e.g. in Chile (Art. 492 Chilean CP; this is probably due to French influence (see next fn. and main text).

³⁴⁴ Cf. Pradel, *Droit Pénal Comparé* (2008) 312 (‘*interprétation stricte*’, art. 111–4 CP).

³⁴⁵ For a more detailed analysis of liability for omission in international criminal law Wetz, *Unterlassungshaftung* (2004) *passim*; Duttwiler (2006) 6 *ICLRev* 1–61; Berster, *Unterlassungsverantwortlichkeit* (2008) *passim*; *id.* (2010) 10 *ICLRev* 619–46.

³⁴⁶ Preparatory Committee Draft, article 28, reprinted in: Bassiouni, *Legislative History of the ICC* (2005) 195.

³⁴⁷ UN Doc. A/CONF.183/C.1/WGPP/L.4/Add.1 (1998).

³⁴⁸ But see, for example, articles 33–5 Siracusa Draft, article 2 para. 2. *Alternative General Part*, prepared by Eser *et al.* For a general rule also Wise, in: Sadat Wexler (ed.), *Model Draft Statute* (1998) 39, 48–50; see also Mantovani (2003) 1 *JICJ* 26, 32.

³⁴⁹ See Schabas (1998) 6 *EJCLCJ* 400.

³⁵⁰ Conc. Eser, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 767, 819 with fn. 237.

³⁵¹ *Prosecutor v. Tadić*, No. IT-94-1-A, Judgment, AC, 15 July 1999, para. 188 <<http://www.legal-tools.org/doc/8efc3a/>>; for a conviction cf. *Prosecutor v. Delalić et al.*, No. IT-96-21-T, Judgment, TC, 16 November 1998, paras. 1092–6, 1101–5 <<http://www.legal-tools.org/doc/6b4a33/>>; conc. *Prosecutor v. Kordić and Čerkez*, No. IT-95-14/2-T, Judgment, TC, 26 February 2001, paras. 375–6 <<http://www.legal-tools.org/doc/d4fedd/>>; *Prosecutor v. Musema*, No. ICTR-96-13-T, Judgment, TC, 27 January 2000, para. 123 <<http://www.legal-tools.org/doc/1fc6ed/>>. For the possibility of aiding and abetting via omission cf. *Prosecutor v. Orić*, No. IT-03-68-T, Judgment, TC, 30 June 2006, para. 283 <<http://www.legal-tools.org/doc/37564c/>>; *Prosecutor v. Mrksić et al.*, No. IT-95-13/1-T, Judgment, TC, 27 September 2007, para. 553 <<http://www.legal-tools.org/doc/32111c/>>; *Prosecutor v. Milutinović et al.*, No. IT-05-87-T, Judgment, TC, 26 February 2009, para. 90 <<http://www.legal-tools.org/doc/9eb7c3/>>; *Prosecutor v. Popović et al.*, No. IT-05-88-T, Judgment, TC, 10 June 2010, paras. 1019–20 <<http://www.legal-tools.org/doc/481867/>>; *Prosecutor v. Djordjević*, No. IT-05-87/1-T, Judgment, TC, 23 February 2011, para. 1875 <<http://www.legal-tools.org/doc/653651/>>.

³⁵² Cf. Ambos (2007) 5 *JICJ* 159, 163 *et seq.*

³⁵³ Cf. *Prosecutor v. Bemba Gombo*, No. ICC 01/05-01/08-424, Decision on the Confirmation of Charges, PTC II, 15 June 2009, para. 405 <<http://www.legal-tools.org/en/doc/07965c/>>; *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, para. 262 <<http://www.legal-tools.org/doc/5b41bc/>>. See for a more detailed analysis Triffterer, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 215 *et seq.*; *id.*, in: Arnold *et al.* (eds.), *Menschengerechtes Strafrecht* (2005) 901, 902 *et seq.*; Ambos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 805; *id.*, *Der Allgemeine Teil* (2004) 666 *et seq.*; *id.*, *Treatise on ICL I* (2013) 197 *et seq.* See also Triffterer and Arnold, *Article 28*; Werle and Jessberger, *Principles*

subordinates), thereby creating a kind of vicarious liability (*responsabilité du fait d'autrui*) that comes very close to strict liability if one lowers the subjective threshold to a standard of mere negligence ('should have known') and infers the potential knowledge not from objective facts but mere presumptions ('constructive knowledge' in its worst form). It further puts liability for the failure to intervene in the commission of crimes on an equal footing with (accomplice) liability for not adequately supervising the subordinates and not reporting their crimes. Finally, the provision fails to distinguish between preventive (supervision, timely intervention) and repressive (reporting the crimes) countermeasures on the superior's part. In fact, liability is so broad that some kind of limitation must be imposed in order to avoid violating the principle of culpability. In the case of *Prosecutor v. Orić*³⁵⁴ the TC's application of the 'reason to know' standard of superior responsibility for the crimes of the subordinates pushed the boundaries of culpability to its farthest limits in the jurisprudence of the Tribunal³⁵⁵. To address the culpability problem, the German International Criminal Law Code (*Völkerstrafgesetzbuch*) distinguishes between liability as a perpetrator (principal) for the failure to prevent subordinates from committing crimes (Sect. 4), on the one hand, and accomplice liability for the (intentional or negligent) failure to properly supervise the subordinates (Sect. 13) and the failure to report crimes (Sect. 14), on the other³⁵⁶.

- 57 Moreover, although it is conceptually possible to make a clear distinction between liability for ordering (an affirmative or direct act) and for superior responsibility (an omission), these forms of responsibility are not clearly delimited in the case law of the *ad hoc* Tribunals. In fact, there is a tendency to use the superior responsibility doctrine (Articles 7 para. 3 and 6 para. 3 ICTY and ICTR Statutes respectively) as a kind of *default liability* for cases in which an affirmative or direct act (Articles 7 para. 1 and 6 para. 1) cannot be proven³⁵⁷. The issue was implicitly addressed for the first time in *Kayishema and Ruzindana*, where a TC held that article 7 para. 3 only becomes relevant if the accused did not order the alleged crimes³⁵⁸. It was also taken up in *Blaškić*, which held that 'l'omission de punir des crimes passés ... peut ... engager la responsabilité du commandant au titre de l'article 7 (1) ...'³⁵⁹. Only

(2014) 221 *et seq.*; Burghardt, *Vorgesetztenverantwortlichkeit* (2008) 185 *et seq.* Crit. Weigend (2004) 116 ZStW 999 *et seq.* On the ICTR case law Williamson (2002) 13 CLF 365.

³⁵⁴ *Prosecutor v. Orić*, No. IT-03-68-T, Judgment, TC, 30 June 2006, paras. 321–4 <<http://www.legal-tools.org/doc/37564c/>>.

³⁵⁵ Cf. Blumenstock and Pittman (2006) 19 *LeidenJIL* 1077. For the subsequent case law cf. *Prosecutor v. Bagosora et al.*, No. ICTR-96-7, Judgment, TC, 18 December 2008, para. 2013 <<http://www.legal-tools.org/doc/6d9b0a/>>; *Prosecutor v. Renzaho*, No. ICTR-97-31-T, Judgment, TC, 14 July 2009, para. 746 <<http://www.legal-tools.org/doc/9bbd8a/>>; *Prosecutor v. Ntawukulilyayo*, No. ICTR-05-82-T, Judgment and Sentence, TC, 3 August 2010, para. 421 <<http://www.legal-tools.org/doc/dbc983/>>; for a less restrictive handling of the criterion 'to be put on notice' cf. *Prosecutor v. Delić*, No. IT-04-83-T, Judgment, TC, 15 September 2008, paras. 63, 65 *et seq.* <<http://www.legal-tools.org/doc/a34f45/>>; *Prosecutor v. Sainović et al.*, No. IT-05-87-T, Judgment, TC, 26 February 2009, para. 120 <<http://www.legal-tools.org/doc/9eb7c3/>> and *Prosecutor v. Popović et al.*, No. IT-05-88-T, Judgment, TC, 10 June 2010, para. 1042 <<http://www.legal-tools.org/doc/481867/>>.

³⁵⁶ *Bundesgesetzblatt* 2002 I 2254; for translations of the text and motives, see <<http://www.department-ambos.uni-goettingen.de/index.php/Forschung/uebersetzungen.html>> accessed 18 December 2012.

³⁵⁷ Cf. Ambos, *Der Allgemeine Teil* (2004) 670 *et seq.* (esp. 672); Ambos, in: Cassese *et al.* (eds.), *The Rome Statute of the ICC* (2002) 835 *et seq.*; in this vein *Prosecutor v. Bemba Gombo*, No. ICC 01/05-01/08-424, Decision on the Confirmation of Charges, PTC II, 15 June 2009, para. 402 <<http://www.legal-tools.org/en/doc/07965c/>>; *Prosecutor v. Bosco Ntaganda*, No. ICC-01/04-02/06-309, Decision on the Confirmation of Charges, PTC II, 9 June 2014, paras. 99, 100, 165 (in the context of alternative charging) <<http://www.legal-tools.org/doc/5686c6/>>. However, there is a certain inconsistency with regard to alternative charges under article 25(3)(a) or article 28; compare *ibid.*, paras. 99, 100, 165 *et seq.* and *Prosecutor v. Gbagbo*, No. ICC-02/11-01/11-656-Red, Decision on the Confirmation of Charges, PTC I, 12 June 2014, paras. 260 *et seq.* <<http://www.legal-tools.org/doc/5b41bc/>>. In the latter case PTC I declined to confirm the alternative charges based on superior responsibility 'because the consideration of Laurent Gbagbo's responsibility under article 28 of the Statute would require the Chamber to depart significantly from its understanding of how events unfolded in Côte d'Ivoire during the post-electoral crisis and Laurent Gbagbo's involvement therein'.

³⁵⁸ *Prosecutor v. Kayishema and Ruzindana*, No. ICTR 95-1-T, Judgment, TC, 21 May 1995, para. 223 <<http://www.legal-tools.org/doc/0811c9/>>.

³⁵⁹ *Prosecutor v. Blaškić*, No. IT-95-14-T, Judgment, TC, 3 March 2000, para. 337 <<http://www.legal-tools.org/doc/e1ae55/>>.

recently, however, was the issue addressed explicitly. In *Kordić and Čerkez*, responsibility under article 7 para. 1 was characterized as ‘direct’ as compared to the rather ‘indirect’ responsibility under article 7 para. 3³⁶⁰. As a consequence, article 7 para. 1 constitutes a *lex specialis* that excludes simultaneous conviction on the basis of article 7 para. 3³⁶¹. Similarly, the *Krstić* TC held that ‘any responsibility under article 7 (3) is subsumed under article 7 (1)’, i.e., superior responsibility is only of subsidiary nature³⁶². Last but not least, the *Krnojelac* TC considers that, if responsibility under article 7 para. 1 can be established, conviction should only be entered under this provision and the accused’s position as a superior taken into account as an aggravating factor³⁶³. The TCs in *Naletilić and Martinović*³⁶⁴ and in *Stakić*³⁶⁵ follow this approach, the latter *obiter* adding that it would be a waste of judicial resources to discuss article 7 para. 3 if the accused can be convicted on the basis of article 7 para. 1³⁶⁶. In the meantime this position has been confirmed by the AC in various judgments³⁶⁷.

³⁶⁰ *Prosecutor v. Kordić and Čerkez*, No. IT-95-14/2-T, Judgment, TC, 26 February 2001, paras. 366 *et seq.* (367, 369) <<http://www.legal-tools.org/doc/d4fedd/>>.

³⁶¹ *Cf. ibid.*, paras. 370–1.

³⁶² *Prosecutor v. Krstić*, No. IT-98-33/T, Judgment, TC, 2 August 2001, para. 605 <<http://www.legal-tools.org/doc/440d3a/>>.

³⁶³ *Prosecutor v. Krnojelac*, No. IT-97-25-T, Judgment, TC, 15 March 2002, paras. 173, 496 <<http://www.legal-tools.org/doc/1a994b/>>.

³⁶⁴ *Prosecutor v. Naletilić and Martinović*, No. IT-98-34-T, Judgment, TC, 31 March 2003, para. 81 <<http://www.legal-tools.org/doc/f2cfeb/>>.

³⁶⁵ *Prosecutor v. Stakić*, No. IT-97-24-T, Judgment, TC, 31 July 2003, paras. 463 *et seq.* <<http://www.legal-tools.org/doc/32ecfb/>>.

³⁶⁶ *Ibid.*, para. 466.

³⁶⁷ *Prosecutor v. Delalić et al.*, No. IT-96-21-A, Judgment, AC, 20 February 2001, para. 745 <<http://www.legal-tools.org/doc/051554/>>; *Prosecutor v. Blaškić*, No. IT-95-14-A, Judgment, AC, 29 July 2004, paras. 90–2 <<http://www.legal-tools.org/doc/88d8e6/>>; *Prosecutor v. Kordić and Čerkez*, No. IT-95-14/2-A, Judgment, AC, 17 December 2004, paras. 33–5 <<http://www.legal-tools.org/doc/738211/>>; *Prosecutor v. Brđjanin*, No. IT-99-36-A, Judgment, AC, 3 April 2007, para. 285 <<http://www.legal-tools.org/doc/782cef/>>; *Prosecutor v. Jokić*, No. IT-01-42/1-A, Judgment on Sentencing Appeal, 30 August 2005, para. 27 <<http://www.legal-tools.org/doc/3cfa2/>>; *Prosecutor v. Stakić*, No. IT-97-24-A, Judgment, AC, 22 March 2006, para. 411 <<http://www.legal-tools.org/doc/09f75f/>>; *Prosecutor v. Galić*, No. IT-98-29-A, Judgment, AC, 30 November 2006, paras 411–2 <<http://www.legal-tools.org/doc/c81a32/>>; *Prosecutor v. Krajisnik*, No. IT-00-39-A, Judgment, AC, 17 March 2009, para. 787 <<http://www.legal-tools.org/doc/770028/>>; *Prosecutor v. Dragomir Milošević*, No. IT-98-29/1-A, Judgment, AC, 12 November 2009, para. 302 <<http://www.legal-tools.org/doc/44327f/>>; *Prosecutor v. Sainović et al.*, No. IT-05-87-A, Judgment, AC, 23 January 2014, paras. 1802, 1813, 1823 <<http://www.legal-tools.org/doc/81ac8c/>>; *Prosecutor v. Djordjević*, No. IT-05-87/1-A, Judgment, AC, 27 January 2014, para. 939 <<http://www.legal-tools.org/doc/e6fa92/>>. For a concise summary van Sliedregt, *Criminal Responsibility of Individuals* (2003) 192 *et seq.*; with regard to JCE liability and superior responsibility *Prosecutor v. Kvočka et al.*, No. IT-98-30/1-A, Judgment, AC, 28 February 2005, para. 104 <<http://www.legal-tools.org/doc/006011/>>.

Article 26

Exclusion of jurisdiction over persons under eighteen

The Court shall have no jurisdiction over any person who was under the age of 18 at the time of the alleged commission of a crime.

Literature: The European Law Students' Association (ELSA) (ed.), *Handbook on the Draft Statute for an International Criminal Court* 62 (2nd ed. 1998); Crane, D.M., 'Prosecuting Children in Times of Armed Conflict: The West African Experience', (2008) 15 (3) *Human Rights Brief* 11; Frulli, 'Jurisdiction *ratione personae*', in: Cassese, A. et al., *The Rome Statute of the International Criminal Court. A Commentary*, Vol. I (2002) 527; Holmes, J.T., 'The protection of children's rights in the statute of the International Criminal Court', in: Politi, M. and Nesi, G. (eds.), *The Rome Statute of the International Criminal Court: A Challenge to Impunity* (2001) 119; Nill-Theobald, C., 'Defences' bei Kriegsverbrechen am Beispiel Deutschlands und der USA. Zugleich ein Beitrag zu einem Allgemeinen Teil des Völkerstrafrechts (1998) 358 *et seq.*; Ottenhof, R., 'Criminal Responsibility of Minors in National and International Legal Order', (2001), 72 *RIDP* 663; Saland, P., 'International Criminal Law Principles', in: Lee, R.S. (ed.), *The International Criminal Court. The Making of the Rome Statute, Issues, Negotiations, Results* (1999) 189, 200–202; Schabas, W.A., 'General Principles of Criminal Law in the ICC Statute', (1998) 6 *EJCLCJ* 400; van Sliedregt, E., *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 301–306; Triffterer, O., 'The New International Criminal Law – Its General Principles Establishing Individual Criminal Responsibility', in: Koufa, K. (ed.), *Thesaurus Acroasium, the New International Criminal Law*, Vol. XXXII (2003) 639.

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A. General remarks

1. Historical overview

- 1 Early drafts for the establishment of an international criminal jurisdiction did not pay much attention to regulations concerning the general part¹. Correspondingly the Nuremberg Statute, Control Council Law No. 10 and Ordinance No. 7 did not contain provisions concerning the age when criminal responsibility should start. The Prosecutors perhaps assumed that, under international law, criminal responsibility begins at the age of 18, since in all these instances no one under the age of 18 was charged with any crime under any of these three jurisdictional provisions². Moreover, the 1948 Genocide Convention, the 1950 Nuremberg principles, the 1951 and 1954 ILC Draft Codes, the 1951 and 1953 ILC Draft Statutes as well as the 1949 Geneva Conventions, their 1977 Additional Protocols, and the 1972 Bellagio-Wingspread Drafts did not even mention this aspect³.
- 2 However, the 1979 ILA Draft Statute for an International Criminal Court, confirmed at the Belgrade Conference 1980, included a relevant article 21, contained in Part 3, 'Competence',

¹ For such documents see Triffterer, *Preliminary Remarks* (2008), mn 1 *et seq.*; see also *id.* (2003) *Thesaurus Acroasium, the New International Criminal Law*, Vol. XXXII, 639.

² Information confirmed by Benjamin Ferencz, one of the American Prosecutors at Nuremberg. For background information see Triffterer, in: Heer (ed.), *Der Minsker Prozess II* 3 f dd (forthcoming). Three accused persons (Hetterich, Höchtl, Fischer) were just eighteen at the time they committed the crimes, a fact which the Red Army tribunal hearing the case noted and considered as a partly mitigating circumstance.

³ See for those drafts Triffterer, 2nd edition (2008), *Preliminary Remarks*, fn. 5, 6 and 9.

and headed 'Law to be applied by the Court'. The article referred, in the context of other questions 'concerning general provisions on defences' and 'complicity', to the laws concerning the 'minimum age of criminal responsibility in that country where the offence is alleged to have been committed or, when such country did not confer jurisdiction, in the country of citizenship of the suspect, provided that they are not in conflict with international law'⁴.

More precise in this respect is a 'Draft International Criminal Code', presented by M. Cherif Bassiouni for the AIDP 1980. It contains for the first time in the drafting history of international documents relevant to the establishment of an international criminal jurisdiction, as an Appendix, a comprehensive 'General Part for an International Criminal Court Direct Enforcement Model'. In article 5, 'Responsibility', section 1 on individual responsibility commences with the sentence: 'A person is criminally responsible under this Code when he reaches the age of eighteen'⁵; this proposal is verbally repeated in Bassiouni's 'A Draft International Criminal Code and Draft Statute for an International Criminal Tribunal' 1987⁶ as well as in later publications by that author. Neither Draft mentions whether this age has to be reached at trial or at the time when the act was committed. But since this question is answered by national laws in the sense that, when acting, the perpetrator has to have reached the age on which his or her criminal responsibility depends, it has to be assumed that this is the decisive fact in international criminal law as well.

In 1986 the ILA adopted Protocol II to its 1984 'Statute for an International Criminal Court' and also to its 'Statute for an International Commission of Criminal Inquiry' containing defences. In this Protocol II the ILA mentioned, beneath the heading 'Criminal liability' in section I, subsection (1), 'Immaturity', that '[e]veryone is exempt from criminal liability for his conduct prior to the attainment of 18 years of age'⁷.

It is surprising that even though all relevant proposals by non governmental organizations since 1980 mention immaturity, mostly in the context of other defences, later activities within the UN, like the 1991 ILC Draft Code and its 1994 Draft Statute did not touch upon the question of lack of responsibility of minors. Therefore, a Committee of Experts, commenting in its 'Siracusa Draft' on the 1994 ILC Draft Statute, mentions in a list of 'Open questions and elements of the crime to be regulated in a General Part' under objective elements of a crime (*actus reus*) the 'Age of responsibility', pointing out however, that some members thought this question was better dealt with as a defence (justification or excuse); the majority did not share this opinion⁸.

The *Ad Hoc* Committee on the Establishment of an International Criminal Court, holding its Second Session in August 1995, where the Siracusa Draft was presented, did not include any provisions at all in its Report, but mentioned in its list of open questions the age of responsibility⁹. Responding to this, the Committee of Experts expanded upon its former list early in 1996, proposing in its Updated Siracusa Draft an article 33-3:

1. A person under the age of sixteen at the time of the commission of a crime shall not be responsible under this Statute.
2. A person between the age of sixteen and twenty-one at the time of commission of a crime shall be evaluated as to his maturity whether he is responsible under this Statute'¹⁰.

⁴ See L. Kos et al., in: ILA, *Belgrade Conference* (1980), Appendix B, Draft Statute for an International Criminal Court 15.

⁵ See Bassiouni, *International Criminal Law. A Draft International Criminal Code* (1980), Appendix – General Part, article V, section 1.1, 152. See also Triffterer, *Preliminary Remarks* (2008), mn 19 and 34.

⁶ Bassiouni, *A Draft International Criminal Code and Draft Statute for an International Criminal Tribunal* (1987) Draft International Criminal Code, Part I, General Part, article V, section 1.1, p. 95.

⁷ ILA Seoul Conference 1986, Annex C, Protocol II, p. 10.

⁸ See Siracusa Draft, General Part, III. Elements of Crime, A. Objective (*actus reus*) No. 1, respectively IV. Defences (Justification and Excuse), p. 41 with fn. 2 there.

⁹ See for the *Ad Hoc* Committee Report, Annex II (Guidelines) B 3, p. 59.

¹⁰ Updated Siracusa Draft II, the relevant parts are reprinted in: Ambos, *Der Allgemeine Teil des Völkerstrafrechts. Ansätze einer Dogmatisierung* (2002) 942 *et seq.* For a widely corresponding proposal elaborated by Eser, Koenig, Lagodny and Triffterer, presented for consideration by the ILC when discussing its Draft Code 1996 see

- 6 The lack of agreement in the Preparatory Committee appears very clearly from the profusion of brackets in its proposals presented in 1996 under the heading ‘Age of responsibility’ and discussed in a Working Group on the General Principles of Criminal Law:

1. A person under the age of [twelve, thirteen, fourteen, sixteen, eighteen] at the time of the commission of a crime [shall be deemed not to know the wrongfulness of his or her conduct and] shall not be criminally responsible under this Statute, [unless the Prosecutor proves that the person knew the wrongfulness of his or her conduct at that time].
2. [A person who is between the age of [sixteen] and [twenty-one] at the time of the (alleged) commission of a crime shall be evaluated (by the Court) as to his or her maturity to determine whether the person is responsible under this Statute].

In addition, under a slightly different heading, ‘Age of persons liable to punishment’, an alternative proposal was presented:

‘[Persons aged 13 to 18 years at the time of the facts shall be criminally responsible but their prosecution, trial sentence and the regime under which they serve their sentence may give rise to the application of special modalities specified in the Statute]’¹¹.

- 7 In a note, the Preparatory Committee pointed out that, especially with regard to the age of responsibility, different views were expressed. It was further mentioned ‘that many international conventions (such as the International Covenant on Civil and Political Rights, the European Convention on Human Rights, the Inter-American Convention on Human Rights) prohibit the punishment of minors’. The discussion, ‘whether an absolute age of responsibility should be mandated or whether a presumptive age should be included with a means to rebut the presumption’ did not (then) lead to any result, for instance on the question, ‘as to what would be the criteria for the evaluation process’ and if this should ‘be left for the Court to develop in supplementary rules or by jurisprudence’. In addition, reference was made to the Convention on the Rights of the Child and the definition in article 1 of a child as ‘every human being younger than eighteen years of age and that, in its article 37, it lays down a series of limitations as regards the applicable penalties, ruling out the death penalty and life imprisonment without parole’¹². These proposals and the notes were confirmed at the February Session 1997¹³.
- 8 At the December 1997 session of the Preparatory Committee, a somewhat different approach was pursued, not in the Working Group on the General Principles of Criminal Law but in the Working Group on Penalties. A proposal had been made there to deal with the sentencing of juveniles. Language drafted primarily by Argentina and Samoa suggested a ‘jurisdictional’ solution that would avoid the potentially intractable debate over substantive issues, both of criminal responsibility and of sentencing, by simply precluding the trial of any minors at all. As reported by the Committee in a footnote, the basic proposal read:

‘[The Court shall have no jurisdiction over those who were under the age of 18 years at the time they are alleged to have committed a crime which would otherwise come within the jurisdiction of the Court]’¹⁴.

Ambos, *ibid.*, and Triffterer, ‘Annex 2: Acts of Violence and International Criminal Law’ (1997) 4 *Croatian Ann-CrimL&Prac* 2, 872. It was argued by these authors that in many legal systems the general age of responsibility starts with fourteen and in many wars all over the world soldiers under sixteen could be found. They should not as such *generally* be excluded from responsibility and punishment. To start responsibility with fourteen would not place in jeopardy those ‘children’, who have been misused as soldiers in a war for instance. This is because when they are ‘not mature enough to see the amount of damage they may cause or the illegality of their individual conduct, they are anyhow not responsible’ (*id.*). See also *Prosecutor v. Taylor*, Case No. SCSL-2003-01-01, Amended Indictment, 17 Mar. 2003, p. 6.

¹¹ Cf. 1996 Preparatory Committee II, p. 87.

¹² 1996 Preparatory Committee II, pp. 87 and 88.

¹³ Preparatory Committee Decisions Feb. 1997.

¹⁴ Preparatory Committee Decisions Dec. 1997, Annex V (Penalties), fn. 4. The paragraph in the note was introduced by this comment: ‘The following proposals were made which should be treated either under age of responsibility or the jurisdiction of the Court’.

To this, States which preferred to keep the possibility of prosecuting minors alive in this part of the Statute insisted on adding:

[; however, under exceptional circumstances, the Court may exercise jurisdiction and impose a penalty on a person aged 16 to 18 years, provided it has determined that the person was capable of understanding the unlawfulness of his or her conduct at the time the crime was committed]¹⁵.

This language, which by the end of the Preparatory Committee's work had significant support both from NGOs and Governments, was carried forward into the Zutphen Draft¹⁶ and the Consolidated Draft submitted by the Preparatory Committee to the Rome Conference¹⁷.

The Zutphen Draft, however, reprinted the proposals on age of responsibility that had been before the Working Group on General Principles unchanged, aside from moving the explanatory note into the footnotes¹⁸. With regard to the framework for penalties, it included newly bracketed sentencing proposals. In the case of '[... a convicted person under the age of 18 years at the time of the commission of the crime, a specified term of imprisonment of no more than 20 years]' was provided as well as an alternative that '[... the Court shall determine the appropriate measures to ensure the rehabilitation of the offender]' under the age of 18. There was also a plea that this article, 68 [A] (a), 'Applicable penalties', 'should be harmonized with article 20 [E] (Age of responsibility)'¹⁹. The Consolidated Draft forwarded to Rome corresponded to the Zutphen Draft in respect of the proposals on age of responsibility and penalties²⁰.

There was only a brief discussion of the various aspects of the matter in Rome. The compromise offered by the first part of the footnote which emerged from the Working Group on Penalties in New York migrated both from the footnote into the text (with only minor drafting improvements) and from the Part of the Statute dealing with penalties into the Part dealing with general principles of criminal law²¹. It had apparently been accepted that prosecuting minors, which would inevitably involve trying to provide a special regime for them, was not a good way to use the Court's probably limited resources. This jurisdictional solution had the consequence that proposals in the drafts of the Preparatory Committee to include in Part 7 on Penalties reduced penalties for persons under eighteen became irrelevant. They were deleted²². However, the last word on the age of responsibility in international criminal law has not yet been said. This is shown by the Statute of the Special Court for Sierra Leone in which the age of responsibility starts with fifteen. In theory perpetrators between fifteen and eighteen would be prosecuted but not go to jail if convicted; in practice, the Prosecutor decided not to prosecute any such persons²³. Also, the fact, that article 6 of the

¹⁵ *Ibid.*

¹⁶ Zutphen Draft, p. 127, article 68, fn. 233.

¹⁷ Preparatory Committee (Consolidated) Draft, p. 143, article 75, fn. 3.

¹⁸ Zutphen Draft, p. 56.

¹⁹ *Ibid.*, pp. 127–128.

²⁰ Preparatory Committee (Consolidated) Draft, pp. 61–62, (age of responsibility); *ibid.*, pp. 142–143, (penalties).

²¹ See, generally, Saland, in: Lee (ed.), *The International Criminal Court. The Making of the Rome Statute, Issues, Negotiations, Results* (1999) 189, 201–202.

²² Fife, in: Lee (ed.), *The International Criminal Court. The Making of the Rome Statute, Issues, Negotiations, Results* (1999) 327.

²³ Article 7 Statute of the Special Court for Sierra Leone, available under www.specialcourt.org/documents/Statute.html (internet), See also note 31. For further information see du Plessis, 'Children Under International Law', (2004) 13 *AfricanSecurityRev* 2, 110; Amnesty International, *Sierra Leone: Recommendations on the Draft Statute of the Special Court* (AI Index, AFR 51/083/2000), available under <http://web.amnesty.org/library/print/ENGAFR510832000>; I. Cohn, 'The Protection of Children and the Quest for Truth and Justice in Sierra Leone' (2001) 55 *JIAff* 1; Amann 'Message as Medium in Sierra Leone' (2001) 7 *ILSA JI&Compl* 237; Trittin and Weiß 'Das Sondergericht Sierra Leone', (2003) *Menschenrechtsmagazin* 3, 179, 180. On the decision not to prosecute, explained by the Prosecutor, see Crane (2008) 15 (3) *Human Rights Brief* 11. Those guilty of recruiting and using child soldiers in Sierra Leone were, however, tried and convicted. In the first trial completed before the ICC, *Prosecutor v. Thomas Lubanga Dyilo*, ICC-01/04-01/06, the accused was convicted in 2012 of conscripting and enlisting children under the age of fifteen years and using them to participate actively in hostilities.

ICTY Statute and article 5 of the ICTR Statute say nothing about the age of responsibility shows that the situation is not yet completely clear.

2. Reasons for '[e]xclusion of jurisdiction'

- 11 The reasons for this exclusion were to avoid a conflict with regulations in different national criminal jurisdictions about the age when criminal responsibility should start and how the period of growing maturity should be dealt with. It was argued that an absolute age of responsibility was equally unsatisfying as a presumptive age that included the possibility of rebutting such a presumption.
- 12 If an evaluation of maturity is needed, it should not be left exclusively with the trial judges. The reason for this is that conducting an investigation procedure concerning juvenile suspects could do as much harm to him or her as a trial. If evaluated at all, the Prosecutor right from the beginning of the case is endowed with the discretion to conclude that there is insufficient basis for a prosecution, owing to the immaturity of the alleged offender, under the same conditions as he could stop or proceed in other cases of doubt²⁴. In practice such an exercise would contribute to alleviating the negative effects caused by criminal proceedings on the rehabilitation of young offenders.
- 13 Besides, an evaluation of maturity strongly depends on the social surrounding in which the offender has grown up. Such investigations together with those concerning the whole scale of his or her behaviour need specific facilities and persons trained in juvenile delinquency and social influences for which the ICC is not likely to have the necessary equipment or the corresponding laws providing special proceedings for juveniles.
- 14 The execution of sentences on perpetrators who were under eighteen when committing the crimes, would require, in addition, specific care to take into consideration their whole behaviour and their former situations, their growing maturity since then as well as the social surrounding to which they will return.
- 15 It may seem – at first glance – contradictory to protect by article 8 para. 2 (b) (xxvi) 'children under the age of fifteen years' (and not all minors under eighteen) against 'conscripting or enlisting ... into the national armed forces or using them to participate actively in hostilities' and not holding those older than fifteen responsible for crimes falling within the jurisdiction of the Court. But taking into consideration that complementarity and thereby the priority of national criminal jurisdiction prevails anyhow, it appears not only justifiable but also preferable to leave the group under eighteen to the national courts. They are much better equipped to take care of the specific situation in which children have been when committing crimes under international criminal law²⁵.

B. Analysis and interpretation of elements

- 16 Article 26, situated in Part 3, General Principles of Criminal Law, regulates an aspect of substantive criminal law from its procedural side, by excluding the jurisdiction of the Court 'over persons under eighteen' thus showing the close connection between these two fields²⁶.

²⁴ See also Bergsmo and Kruger, *article 53*, mn 23 and 29. The age meant in article 53 para. 2 (c) does not refer to article 26. In cases of article 26 there exists no jurisdiction of the Court and therefore the Prosecutor has to proceed according to article 53 para. 1. If the perpetrator was just 18 when committing the crime, there is no discretion of the Prosecutor for a decision based on article 53 para. 2 (c).

²⁵ This opinion does not exclude a statement given by some scholars, including one of the authors of this article, that soldiers under sixteen 'should not as such generally be excluded from responsibility and punishment'. See to this point of view Triffterer 'Annex 2: Acts of Violence and International Criminal Law', (1997) 4 *CroatianAnnCrimL&Prac* 2, 872, for the context and the other authors holding this opinion. See also mn 23 and 24. – For the contrary opinion see Frulli, in: Cassese et al., *The Rome Statute of the International Criminal Court. A Commentary*, Vol. I (2002) 534 who suspects that 'it may happen that adults are brought to trial before the ICC in full respect of their rights whereas youngsters are tried by national courts without their rights being respected'.

²⁶ Triffterer, 2nd edition, *Preliminary Remarks*, mn 14.

1. ‘person ... under the age of 18’

A person is ‘under the age of eighteen’ as long as he or she has not completed the eighteenth year of his or her life. The exact time is at 12.00 p.m. (24.00) of the day before the date of his or her birth appears again, for the eighteenth time. Even when born at the very end of the original birthday, the next birthdays are counted as such and not by the hour. When the day he or she was born begins again after eighteen years have passed, at 00.01 a.m., criminal responsibility starts even for those who have been born later in the day. Those born on 29 February in a ‘leap-year’ are ‘under the age of eighteen’ only until the end of the 28th eighteen years later, because the next day necessarily follows in a non leap-year and, therefore, is already the 1 March.

This time limit is an absolute border completely independent of maturity or immaturity. But responsibility of persons above the age of 18 may be excluded by a defence listed in article 31 para. 1 (a), when their immaturity results from a mental disease²⁷. In addition, the Court is free to mitigate the punishment in cases where the defendant reached this age of 18 very shortly before he committed the crime, by arguing that his or her maturity has not yet stabilized sufficiently. This follows because, included in the criterion ‘... individual circumstances of the convicted person’, mentioned in article 78 para. 1, is his or her status of maturity, which may be even above the age of 18 individually very differently developed.

Article 26 blocks the exercise of the jurisdiction of the Court including the initiating of investigations *proprio motu*, pursuant to article 15, because the exercise of jurisdiction has to be, according to article 13, ‘in accordance with the provisions of this Statute’, which excludes the prosecution of persons under eighteen, according to article 26.

This question also has to be dealt with according to article 19 para. 1 by the Court *ex officio*. In addition, the Prosecutor and the defendants may challenge the jurisdiction of the Court according to article 19 para. 6 at any time ‘prior to the confirmation of the charges’. But this limitation does not mean that later, at trial, evidence on this question may not be brought in irrespective of whether it is new or earlier withheld²⁸.

2. ‘time of the alleged commission of a crime’

A crime is committed at the time when the perpetrator has acted or when he or she has omitted what should have done according to his or her legal duty. When the perpetrator needs more than one act to fulfill all material and mental elements of the crime, the last one is decisive for triggering or not triggering the jurisdiction of the Court. Because this part of the relevant behaviour causes the completion and when at that time he or she was not yet eighteen, they cannot have reached this age before. All earlier acts are insofar preparatory elements, independent whether they are a punishable attempt in the meaning of article 25 para. 3 (f), for which the jurisdiction of the Court is excluded.

The time when the result of the crime appears, is not decisive; neither is an action with which the perpetrator tries – in vain – to withdraw from an attempt²⁹. What in such situations counts is whether the perpetrator was eighteen when ‘taking action that commences its execution by means of substantial step, but the crime does not occur...’ article 25 para. 3 (f).

When during the investigation it appears that the alleged commission perhaps occurred earlier than originally assumed, the case has to be dismissed because of lack of jurisdiction of the Court by all court organs, independent of whatever stage of the proceeding the case may have reached, as already expressed in mn 12.

²⁷ See A. Eser, *article 31*, mn 17 *et seq.*

²⁸ See also mn 22.

²⁹ See also mn 19.

C. Special remarks: No exclusion of national jurisdiction over persons under eighteen

- 23 Only the jurisdiction of the ICC is excluded. As can be seen from the historical development of this article, criminal responsibility may not be excluded for persons under eighteen in general. Therefore, it cannot be assumed that persons under eighteen are not responsible for crimes under international law in general. Quite the opposite. They are responsible for crimes for which the ICC has jurisdiction according to article 5 before national courts under the principle of universality and insofar as national law provides for such a jurisdiction over minors³⁰. This proposition has indeed been acted upon in the creation of the Special Court for Sierra Leone which, on paper, had particular arrangements for juveniles³¹. Excluded according to article 26 is merely the jurisdiction of the ICC.
- 24 However, in the case of youngsters under the age of fifteen years who are conscripted or enlisted into the national armed forces in a criminalized way falling under article 8 para. 2 (b) (xxvi) or (e) (vii) such juveniles are indispensable victims of crimes violating international law and established to protect them; they should not be victimized a second time by being brought before a national criminal jurisdiction.

Persons over fifteen and those younger but not victimized in the sense of article 8 para. 2 (b) (xxvi) and (e) (vii) could be held responsible if the relevant national law so provides. This legal situation has the consequence that States contemplating prosecuting crimes of juveniles between sixteen and eighteen should proceed where the exceptions mentioned in article 17 para. 1 (a) and (b) are not applicable. However in cases where States are unable or unwilling to do so, the Court, nevertheless has no jurisdiction, because this lack of competence is expressly declared by article 26 for all crimes according to the Rome Statute under the jurisdiction of the Court.

³⁰ See also Triffterer, *Preliminary Remarks* (2008), mn 62; Ottenhof 72 *RIDP* 663 *et seq.*, available under www.cairn.info/revue-internationale-de-droit-p%C3%A9nal-2001-3-page-669.htm.

³¹ *Supra* note 23.

Article 27

Irrelevance of official capacity

1. This Statute shall apply equally to all persons without any distinction based on official capacity. In particular, official capacity as a Head of State or Government, a member of a Government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility under this Statute, nor shall it, in and of itself, constitute a ground for reduction of sentence.

2. Immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person.

Specific Literature: Akande, D., 'The Legal Nature of Security Council Referrals to the ICC and its Impact on Al Bashir's Immunities', (2009) 7 *JICJ* 333; *id.* and Shah, S., 'Immunities of State Officials, International Crimes and Foreign Domestic Courts', (2011) 12 *EJIL* 815; Ambos, K., 'Punishment without a Sovereign? The *Ius Puniendi* Issue of International Criminal Law: A First Contribution towards a Consistent Theory of International Criminal Law', (2013) 33 *OJLS* 293; Bantekas, I., 'Head of State Immunity in the light of Multiple Legal Regimes and Non-Self-contained System Theories: Theoretical Analysis of ICC Third Party Jurisdiction against the background of the 2003 Iraq War', (2005) 10 *JCSL* 21; Bassiouni, M.C., *A Draft International Criminal Code and Draft Statute for an International Criminal Tribunal* (Martinus Nijhoff Publishers 1987); *id.*, 'Commentaries on the International Law Commission's 1991 Draft Code of Crimes Against the Peace and Security of Mankind', (1993) 11 *NEP* 197; Bianchi, A., 'Immunity versus Human Rights: The *Pinochet* Case', (1999) 10 *EJIL* 237; Burghardt, B. and Geneuss, J., 'Der Präsident und sein Gericht, Die Entscheidung des Internationalen Strafgerichtshofs über den Erlass eines Haftbefehls gegen Al Bashir', (2009) *ZIS* 126; Cassese, A., 'When may Senior State Officials be Tried for International Crimes? Some Comments on the Congo v. Belgium Case', (2002) 13 *EJIL* 853; Frulli, M., 'The Question of Charles Taylor's Immunity', (2004) 2 *JICJ* 1118; Gaeta, P., 'Does President Al Bashir Enjoy Immunity from Arrest?', (2009) 7 *JICJ* 316; *id.*, 'Ratione Materiae Immunities of Former Heads of State and International Crimes: The *Hissène Habré* Case', (2003) 1 *JICJ* 186; Holvoet, M. in: De Hert et al. (eds.), *Code of International Criminal Law and Procedure, Annotated* (Larcier Law Annotated 2013), Article 27; Jescheck, H.H., *Die Verantwortlichkeit der Staatsorgane nach Völkerstrafrecht* (Bonn 1952); Jia, B. B., 'The Immunity of State Officials for International Crimes Revisited', (2012) 10 *JICJ* 1303; Kiyani, A. G., 'Al Bashir & the ICC: The Problem of Head of State Immunity', (2013) 12 *ChineseJIL* 467; Kloth, M., *Immunities and the Right of Access to Court Under Article 6 of the European of Human Rights* (Martinus Nijhof 2010); Kreicker, H., *Völkerrechtliche Exemtionen*, Vol. I and II (Berlin 2007); *id.*, 'Immunität und IStGH, Zur Bedeutung völkerrechtlicher Exemtionen für den Internationalen Strafgerichtshof', (2009) *ZIS* 350; Pedretti, R., *Immunity of Heads of State and State Officials for International Crimes* (Brill Nijhof 2015); Senn, Immunitäten vor dem Internationalen Strafgerichtshof (Nomos 2010); Ssenyonjo, M., 'The International Criminal Court Arrest Warrant Decision for President Al Bashir of Sudan', (2010) 59 *ICLQ* 205; Tladi, D., 'The ICC Decisions on Chad and Malawi. On Cooperation, Immunities, and Article 98', (2013) 11 *JICJ* 199; *id.*, 'The Immunity Provision in the AU Amendment Protocol: Separating the (Doctrinal) Wheat from the (Normative) Chaff', (2015) 13 *JICJ* 1; Triffterer, *Dogmatische Untersuchungen zur Entwicklung des Materiellen Völkerstrafrechts seit Nürnberg* (E. Albert 1966); *id.* 'International Crimes and Domestic Criminal Law. Efforts to Recognize and Codify International Crimes, General Report Part I', (1989) *RIDP* 31; *id.*, 'Irrelevance of Official Capacity' – Article 27 Rome Statute Undermined by Obligations under International Law or by Agreements, Article 98', in: I. Buffard et al. (eds.), *International Law Between Universalism and Fragmentation: Festschrift in Honour of Gerhard Hafner* (Martinus Nijhoff 2008) 571; Wirth, S., 'Immunities, Related Problems, and Article 98 of the Rome Statute', (2002) 12 *CLF* 429; *id.*, 'Immunity for Core Crimes? The ICJ's Judgment in the Congo v. Belgium Case', (2002) 13 *EJIL* 877; Van Alebeek, R. *The Immunity of States and their Officials in International Criminal Law and International Human Rights Law* (Oxford University Press 2008); Zappalà, S., 'Do Heads of State Enjoy Immunity from Jurisdiction for International Crimes? The Ghadafi Case Before the French Cour de Cassation', (2001) 12 *EJIL* 595. – Also see the specific bibliography to the annotations to article 98.

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A. Introduction/General remarks*

I. Content and context

- Article 27 advances the rule that **the official capacity of the accused is irrelevant in criminal proceedings before the Court**: Official capacity neither substantively exempts the accused from international criminal responsibility nor mitigates it and does not procedurally bar the Court from exercising its jurisdiction. In other words: Immunities of any kind (see *infra* mn 3) do not apply when the Court investigates, prosecutes or tries an accused itself (this has to be distinguished from the Court requesting state cooperation, article 98; see *infra* mn 5). Especially with regard to the *Al Bashir* scenario (the investigation of an incumbent Head of a Non-Party State after a Security Council Referral), in recent years much has been written on whether this rule must see an exception when the accused enjoys personal immunity granted by a Non-Party State, especially when he or she serves as its acting head of state, head of government or foreign minister;¹ the controversies ultimately pertain to the ‘nature’ of the Court as either a mere treaty based creature (deriving its *ius puniendi* solely from the States Party) or alternatively as an organ of the world community (wielding an independent *ius puniendi*). While theoretically and doctrinally important, this debate must not obfuscate that – at the end of the day – the application of article 27 is not too difficult to establish in case of a Security Council referral and that the truly problematic article 12(2)(a)-scenarios² have not become virulent (on the jurisdictional implications of article 27 see *infra* mn 6). This somewhat attenuates the heated discussions over whether article 27 declaratorily codifies an inherently limited customary international law on immunities in case of the prosecution of core crimes before international courts or whether, in the alternative, article 27 constitutively limits immunities that normally know no inherent limitations (see *infra* mn 16 and 23 et seq.).
- The main **aim of article 27** still is to make explicit the scope of individual criminal responsibility for crimes committed in the name of or for a state under international law. This can only be explained in light of the traditional Westphalian notion that acts of state in general and certain persons representing the state were historically exempt from criminal prosecution outside this state. Without this notion, it would have been unnecessary to recognize or reaffirm that besides private individuals, subordinates and commanders (the subjects traditionally recognized by the laws and customs of war), also persons up to the highest level in the hierarchy of states or governments can and should be held responsible

* Many thanks to cand. iur. Sonja Heimrath for updating and complementing the bibliography.

¹ For the arguably latest synopsis of the debate see Pedretti, *Immunity of Heads of State and State Officials for International Crimes* (2015) 257 et seq., 274 et seq. Also see Senn, *Immunitäten vor dem Internationalen Strafgerichtshof* (2010) 125 et seq. Further see, for example and with extensive references, Ambos, *Internationales Strafrecht* (2014) 235 et seq.; Holvoet, in: De Hert et al. (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013), Article 27; Robinson, in: Cryer et al., *Introduction* (2014) 540 et seq.; Werle and Jessberger, *Principles of International Criminal Law* (2014) 270 et seq.; Akande (2009), 7 JICJ 333 et seq.

² For instance: The acting head of state of Non-Party State A commits core crimes on the territory of Party State B.

directly under international criminal law for the most serious violations of the highest values of the community of nations. In the words of TC V:

‘The central principle captured in article 27 then is that the official position of the accused does not shield him against the jurisdiction of the Court for purposes of inquiring into his or her own individual criminal responsibility for crimes proscribed in the Statute. Indeed, the struggle against impunity for crimes that shock the conscience of humanity, being the *raison d’être* of the ICC, is a hopelessly lost cause without that cardinal principle of modern international criminal law.’³

It follows that article 27 does *not* disallow to take the official capacity of the accused into account in other areas, like as an aggravating circumstance during sentencing (see *infra* mn 22) or in decisions to excuse an incumbent head of state ‘from continuous presence in an ongoing trial, when the excuse is recommended by the functions implicit in the office that he or she occupies’⁴.

Article 27 is intrinsically linked to the **international law of immunities**. In a nutshell:⁵ 3 Functional immunity (or immunity *ratione materiae*) exempts those performing acts of state⁶ from criminal⁷ prosecution in foreign courts of law. Functional immunity applies in an *erga omnes* manner, and its rationale was aptly summarized in *Blaškić*:

‘It is well known that customary international law protects the internal organization of each sovereign State: it leaves it to each sovereign State to determine its internal structure and in particular to designate the individuals acting as State agents or organs. Each sovereign State has the right to issue instructions to its organs, both those operating at the internal level and those operating in the field of international relations, and also to provide for sanctions or other remedies in case of non-compliance with those instructions. The corollary of this exclusive power is that each State is entitled to claim that acts or transactions performed by one of its organs in its official capacity be attributed to the State, so that the individual organ may not be held accountable for those acts or transactions. The general rule under discussion is well established in international law and is based on the sovereign equality of States (*par in parem non habet imperium*).’⁸

While immunity *ratione materiae* survives the end of office, immunity *ratione personae* (or personal immunity) does not, i.e. is only enjoyed by those who are currently in office.⁹ Further, other than functional immunity, personal immunity covers every act by those enjoying it, i.e. acts both private as well as official in nature. What is more, international law (both customary and treaty based) only grants immunity *ratione personae* to a limited group of persons: Under customary international law, it is well established that heads of state, heads of government and foreign ministers¹⁰ normally enjoy personal immunity in foreign

³ *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, No. ICC-01/09-01/11, Decision on Mr Ruto’s Request for Excuse from Continuous Presence at Trial, TC V, 18 June 2013, para. 67 [doc1605793.pdf].

⁴ *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, No. ICC-01/09-01/11, Decision on Mr Ruto’s Request for Excuse from Continuous Presence at Trial, TC V, 18 June 2013, para. 71 [doc1605793.pdf].

⁵ For an encompassing overview see Kreicker, *Völkerrechtliche Exemtionen* (2007).

⁶ Note that this must not be confused with the Act of State Doctrine, which is neither a rule of customary international law nor treaty law. This doctrine is recognized and adhered to especially by US courts, and one of its central rationales is judicial restraint, namely protecting the US executive’s prerogative in foreign affairs.

⁷ As to state immunity in *civil* matters see ICJ, *Jurisdictional Immunities of the State (Germany v. Italy: Greece intervening)*, Judgment, 3 February 2012.

⁸ *Prosecutor v. Blaškić*, No. IT-95-14, Judgement on the Request of the Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, Appeals Chamber, 29 October 1997, para. 41. For further elaborations on the rationale of immunity *ratione materiae* see Werle/Jessberger, *Principles of International Criminal Law* (2014) 271. – As to the doctrinal controversy whether immunity *ratione materiae* prevent individual responsibility from arising, or whether it is a mere procedural defence, see Ambos, *Treatise* (2013) 410 with further references.

⁹ Akande and Shah (2011) 21 *EJIL* 815, 818; Wirth (2002) 12 *CLF* 429, 432.

¹⁰ On the inclusion of foreign ministers see the famous Arrest Warrant or *Yerodia* Case, *Arrest Warrant of 11 April 2000 (Democratic Republic of the Congo v. Belgium)*, ICJ, Judgment, 4 February 2002; for a critique of this Decision see Cassese (2002) 13 *EJIL* 853 *et seq.* On the question of inclusion/exclusion of foreign ministers also see Akande/Shah (2011) 21 *EJIL* 815, 820–825; Jia (2012) 10 *JICJ* 1303, 1310; Wirth (2002) 13 *EJIL* 877 *et seq.* As to ministers other than foreign ministers see e.g. van Alebeek, *The Immunity of States and their Officials in International Criminal Law and International Human Rights Law* (2008) 192 *et seq.*

national criminal courts (outward *erga omnes* immunity)¹¹. In contrast, diplomatic immunity is treaty based, and diplomats only enjoy immunity *ratione personae* in their receiving states (outward *inter partes* immunity)¹². The rationale behind immunities *ratione personae* is not the *par in parem non habet imperium*-principle, but the upholding of functional international relations by guaranteeing that important state personnel can travel safely abroad while they are in office.¹³ – It has to be noted that functional and personal immunity can easily overlap, namely when a state official enjoying personal immunity carries out an official act of state¹⁴. – Finally, immunities (both *ratione materiae* and *ratione personae*) are no (longer¹⁵) personal rights of those enjoying them. Rather, they are privileges granted by the state for which the person concerned is acting or serving as an official; it follows that immunities can be rescinded domestically and waived internationally by said state, be it in advance or retroactively.

- 4 For the sake of doctrinal clarity, and in line with the jurisprudence of TC V¹⁶, the **relationship between paragraphs 1 und 2** can be resolved as follows: article 27(1) implicitly does away with immunities *ratione materiae*; and article 27(2) renders irrelevant immunities *ratione personae* (as procedural bars for the exercise of jurisdiction while an official is in office)¹⁷.
- 5 Article 27 deals with the vertical top-down relationship between the Court and the state granting an immunity *ratione materiae* or *personae* to the accused. In contrast, **article 98** regulates a triangular relationship: the vertical relationship between the Court and a state requested to cooperate with the Court (for instance, in the *Al Bashir* case, a State Party tasked with arresting and surrendering the head of state of a Non-Party State to the Court); and the horizontal relationship between the requested state and the state granting an immunity. Since article 27 and 98 were drafted by different working groups (see *infra* mn 15), they are not easily reconcilable: While article 27 renders immunities irrelevant, article 98 apparently revives their pertinence; after all, the Court may not proceed with a request for surrender or assistance which would require the requested state to act inconsistently with its obligations under international law with respect to the State or diplomatic immunity of a person (article 98(1)) or would require the requested state to act inconsistently with its obligations under international agreements pursuant to which the consent of a sending State is required to surrender a person of that state to the Court (article 98(2)). – Taking both the drafting

¹¹ See Draft Article 5 on ‘Immunity of State officials from foreign criminal jurisdiction’ by the ILC, Report of the International Law Commission. Sixty-fifth session (6 May–7 June and 8 July–9 August 2013), General Assembly Official Records, Sixty-eighth session Supplement No. 10 (A/68/10), at 50: ‘The immunity from foreign criminal jurisdiction that is enjoyed by Heads of State, Heads of Government and Ministers for Foreign Affairs covers all acts, whether private or official, that are performed by such persons prior to or during their term of office.’ – On whether other ministers (like those of defence) are (to be) included as well see e.g. Pedretti, *Immunity of Heads of State and State Officials for International Crimes* (2015) 41 with further references.

¹² See Article 29 Vienna Convention on Diplomatic Relations and cf. Ambos, *Internationales Strafrecht* (2014) 237 with further references.

¹³ See *United States Diplomatic and Consular Staff in Tehran* (United States of America v. Iran), ICJ, Judgment, 24 May 1980, para. 91: ‘There is no more fundamental prerequisite for the conduct of relations between States [...] than the inviolability of diplomatic envoys and embassies, so that throughout history nations of all creeds and cultures have observed reciprocal obligations for that purpose.’

¹⁴ Kreicker, *Völkerrechtliche Exemtionen*, Vol. II (2007) 747 *et seq.*

¹⁵ As was the case for the Sovereign Prince in Westphalian terms.

¹⁶ *The Prosecutor v. William Samoei Ruto and Joshua Arap Sang*, No. ICC-01/09-01/11, Decision on Mr Ruto’s Request for Excusal from Continuous Presence at Trial, TC V, 18 June 2013, para. 66 [doc1605793.pdf]: ‘The Chamber is of the view that the main aim of Article 27(1) is to align the ICC Statute with the contemporary norm of international law according to which public officials are no longer entitled to immunity for violation of international criminal law.’

¹⁷ On the doctrinally disputed, but eventually irrelevant relationship between Article 27(1) und (2), see Senn, *Immunitäten vor dem Internationalen Strafgerichtshof* (2010) 136 *et seq.* with further references, also on countervailing views. The distinction advanced here is supported *inter alia* by Gaeta, in: Cassese et al. (eds.) *The Rome Statute of the International Criminal Court*, i. (2002) 990 *et seq.*; Holvoet, in: De Hert et al. (eds.), *Code of International Criminal Law and Procedure*, Annotated (2013), Article 27.

history and the systematic context of article 27 (in 'Part III: General Principles of [International] Criminal Law' of the Statute) seriously, and considering that criminal law and the law of international cooperation in criminal matters follow different rationales, articles 27 and 98 should, at the outset, be interpreted independently from each other.¹⁸ This means: That the Court has jurisdiction and is free to exercise it despite the official capacity of the accused (article 27) and that, at the same time, the Court may not proceed with a request for legal assistance in order to honor the horizontal immunity obligations of the requested state (article 98), are no self-contradictory statements. Of course, the former may inform the interpretation of the latter article. Article 98 may hence be interpreted in light of the overarching goal to end impunity (see mn 2). Or, to put it differently, the horizontal immunity obligations mentioned in article 98 would be inherently limited if article 27 were to articulate a general immunity exception for the prosecution of core crimes based on an international division of labor between the Court (as an organ of the international community) and the states (as members of this community). Yet this must primarily be resolved in the context of interpreting article 98.¹⁹ – As was already raised in the previous edition: article 98 excuses states for exceptionally not cooperating with the Court, when in doing so they would violate an international obligation. In such a situation the state also cannot be expected to violate just the same obligation by prosecuting the person concerned before its own courts. It therefore cannot be blamed for not investigating and prosecuting genuinely and thus trigger the jurisdiction of the Court. But by doing so, the circle starts again with the references to cooperate with the Court. Therefore, the legal basis and starting position for the Court is the following: Because article 27(2) regulates that '[i]mmunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person', the Court may start preliminary proceedings, in particular investigation and prosecution. Only if the court needs the presence of the suspect, e.g. for the trial, and does not have him or her 'available', article 98 comes into play.

In focusing on the vertical relationship between the Court and the state granting immunity, 6 and by taking into account that this immunity is disposable for said state (see mn 3), it becomes apparent why article 27 is so closely related to (but should not be treated alike)²⁰ the Court's (basis of) jurisdiction,²¹ especially when it comes to the prosecution of individuals who benefit from immunities granted by Non-Party States.²²

¹⁸ This has not been considered in the Malawi Decision of PTC I in *Al Bashir*, where article 27 was cast as the 'ruling provision', thus neglecting the independent significance of article 98. As to this critique see Tladi (2013) 1 *JICJ* 199, 206. As to the aforementioned decision see *The Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, PTC I, 12 December 2011, para. 44 [doc1287184.pdf], where the Chamber took the unconvincing 'view that the unavailability of immunities with respect to prosecutions by international courts applies to any act of cooperation by States which forms an integral part of those prosecutions.'

¹⁹ Therefore, see the elaborate annotations by Krefß/Prost, *Article 98*.

²⁰ As, although in a slightly different context, correctly noted by the ICJ in *Yerodia*: 'jurisdiction does not imply absence of immunity, while absence of immunity does not imply jurisdiction'. See *Arrest Warrant of 11 April 2000 (Democratic Republic of the Congo v. Belgium)*, ICJ, Judgment, 4 February 2002, para. 59. It is open for discussion whether this was duly considered in *Situation in the Libyan Arab Jamahiriya*, No. ICC-01/11, Decision on the 'Prosecutor's Application Pursuant to Article 58 as to Muammar Mohammed Abu Minyar Gaddafi, Saif Al-Islam Gaddafi and Abdullah Al-Senussi', PTC I, 27 June 2011, para. 9 [doc1099314.pdf], where PTC I discussed the official position of an individual under the heading of the Court's jurisdiction *ratione loci* and *ratione personae*.

²¹ Article 27 presupposes that the person in question is available to the Court if he or she is put on trial. In addition, article 27 does not alter the application of the rules on the 'preconditions to the exercise of jurisdiction' in article 12 nor does it limit the possibility of challenging 'the jurisdiction of the Court or the admissibility of a case' according to article 19.

²² The latter may be the more cumbersome formulation, which is however more precise than the formulation 'national of a Non-Party State'. Think e.g. of a German national becoming the foreign minister of the United

- Where the Court seeks to try *beneficiaries of State Party immunities*, this can easily be justified on the ground that the States Parties have waived their immunity rights and thus their corresponding protection by ratifying the Rome Statute, including article 27. This line of reasoning can be labeled the ‘*waiver-theory*’ (or more precisely: the ‘*in advance waiver-theory*’). For good or bad, under this theory it is moot whether article 27 constitutively limits the reach of functional or personal immunities before the Court, or whether article 27 declaratorily codifies the limits of such immunities for core crime trials before international courts.
 - A variant of this ‘*waiver-theory*’ also holds water when the Court goes after *beneficiaries of Non-Party State immunities*, if this state formally accepts the exercise of jurisdiction by the Court with respect to the crime in question (article 12(3)). This acceptance can be considered a retroactive waiver of immunities so that, once again, one does not have to probe whether article 27 deviates from customary international law on functional or personal immunities or whether, in contrast, it spells out the inherent limitations of these immunities when it comes to prosecutions before international criminal courts.
 - Only marginally more problematic are cases where the Court wishes to prosecute *beneficiaries of Non-Party State immunities* (e.g. *the head of a Non-Party State*) after a referral by the Security Council acting under Chapter VII of the UN Charter (article 13(b)).²³ Be it that this referral contains the (explicit or implicit) imperative to waive all immunities or that the Security Council constitutively activates the ‘*irrelevance of official capacity*’-regime under article 27 by referring a situation to the Court in order to uphold international peace, in light of both lines of reasoning functional and/or personal immunities do not hinder the Court from meting out international justice (see *infra* mn 25).
 - The scenario where one finally has to ‘step up to plate’ can be found in article 12(2)(a), i.e. when the Court wants to prosecute the beneficiary of a Non-Party State immunity who allegedly committed core crimes *in the territory (or on a vessel or an aircraft) of a State Party*. In this scenario, because an international treaty like the Rome Statute cannot bind Non-Party States,²⁴ the Court’s (exercise of) jurisdiction can only be reconciled with public international law²⁵ if one accepts the view that articles 27(1) and (2) are but codifications of the current state of customary international law.²⁶ This argument can be termed the ‘*international court limitation of immunities ratione materiae o personae*’, an argument that rests on two aspects: first, on customary international law actually not granting (or foreseeing an exception to) functional and/or personal immunity before an international criminal court; and second, on the Court being such an international criminal court proper, i.e. it being more than a multilateral institution deriving its legitimacy and *ius puniendi* solely from the States Party.²⁷
- 7 The identification of the current state of play of customary international law is a volatile and delicate business at best, especially in light of the recent practice of African States and its legal effect,²⁸ and will be left to the individual annotations to article 27(1) und (2) (see *infra* mn 16 and 23 et seq.). Yet generally, and by way of a final preliminary remark, is has to be noted that we consider **the Court an organ of the international community** and thus an international criminal court proper. As such, it can, on an abstract level, partake in any

States. Only because this individual is German does not allow Germany to dispose of his U.S. immunity *ratione personae* as it sees fit.

²³ As to the *Al Bashir* Case see e.g. Akande (2009) 7 JICJ, 333 et seq.; id. (2012) 10 JICJ, 299 et seq.; Burghardt and Geneuss (2009) ZIS 126, 139 et seq.; Kiyani (2013) 12 ChineseJIL 467 et seq.; Ssenyonjo (2010) 59 ICLQ 205 et seq.

²⁴ See article 34 Vienna Convention on the Law of Treaties.

²⁵ And this should indeed be an imperative for any interpretation of the Statute.

²⁶ See Holvoet, in: De Hert et al. (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013), article 27 at 3.2.2.

²⁷ On the foundation of the ICC’s *ius puniendi* see Ambos (2013) 33 OJLS 293, 298 et seq.

²⁸ On the immunity provision in the AU Amendment Protocol see Tladi (2015) 13 JICJ 1.

possible international criminal court exceptions to functional or personal immunities. As elaborately argued and concluded by Kreß/Prost in this Commentary:

‘The facts that the ICC Statute has attracted a very significant number of ratifications, that the Security Council has referred two situations threatening international peace and security to the ICC for investigation and that the UN have endorsed the vision behind article 2 of the Statute through the conclusion of the Relationship Agreement with the ICC, add further weight to the view that the ICC on substance, and despite its formal creation by treaty, derives its mandate from the international community. As a matter of principle, it is therefore possible to draw a distinction between national criminal proceedings and proceedings for the ICC with respect to international law immunities.’²⁹

II. History and drafting process

The historical development of article 27 has to be seen in light of the complex context of individual criminal responsibility under international criminal justice together with a variety of direct and indirect enforcement mechanisms. Core crimes are typically committed by direct or indirect participation of persons acting in their official capacity, for instance, military commanders, taking an active part in the commission of such crimes or by ordering their subordinates to carry out a criminal act, for instance by killing a prisoner of war or an unarmed civilian. Contrary to an international trend to derogate immunity of state officials, including for acts committed in the name of the state (see mn 9 et seq.), at least Head of State immunity and the immunity of the most senior representatives of the state in criminal proceedings is still very much accepted on the national level, as many cases illustrate.³⁰ Accordingly, article 98 was accepted as a political compromise at the Rome Conference to square the circle so as to, on the one hand, effectively fight impunity and, on the other hand, to honor the rationales of immunities *ratione materiae o personae*.

As to the historic roots of article 27, the killing of a prisoner of war or of an unarmed civilian by a military official had already been recognized in the Hague Conventions, for individuals for instance in article 41 of the 1899 Convention with regard to the violation of conditions of an armistice and with regard to commanders in articles 2 and 6 of the 1907 Convention³¹. – In addition, an International Investigating Commission established by the Carnegie Endowment for International Peace with the task of searching for the causes and the responsibility for the Balkan Wars 1912 and 1913, confirmed the necessity of such regulations. It concluded in its report that with regard to all atrocities committed in these wars, one word from those in power would have stopped all cruelties committed during belligerent struggles³². Against this background it was almost unavoidable that after the First World War the Versailles Peace Treaty provided for the individual responsibility of the former German Emperor William II., a Head of State and Government³³. From that time on it became more and more undisputed that Heads of State and Government, their freedom from criminal responsibility dating from a time when Heads of State personified the state, could no longer hide behind the – at that times – almost absolute sovereignty of the state. This lack of immunity was even accepted for cases in which such persons were acting in their official capacity and therefore ‘in the name and on behalf’ of the state they represented. Even though the former Emperor William II. could not be put to trial, because he was not extradited by the Netherlands, the idea of holding Heads of State or Government responsible

²⁹ Kreß/Prost, *Article 98*, mn 29 (with further references, including to opposing views).

³⁰ For an overview cf. Kloth, *Immunities and the Right of Access to Court Under Article 6 of the European Convention of Human Rights* (2010) 108.

³¹ See Triffterer, *Dogmatische Untersuchungen zur Entwicklung des Materiellen Völkerstrafrechts seit Nürnberg* (1966) 85 et seq.; 1996 ILC Draft Code, commentary (1) to article 6.

³² See Carnegie Endowment for International Peace, Division of Intercourse and Education, *Report of the International Commission to inquire into the causes and conduct of the Balkan Wars*, Publication No. 4 (1914). Online available at <<https://archive.org/details/reportofinternat00inteuoft>> accessed 4 March 2015.

³³ See Jescheck, *Die Verantwortlichkeit der Staatsorgane nach Völkerstrafrecht* (1952) 41 et seq.

has ever since then been continuously promoted. It is based on the proposition that they are the persons who have the authority to order plans and policies involving crimes of an exceptional gravity and magnitude. They have 'the power to use or to authorize the use of the essential means of destruction and to mobilize the personnel required for carrying out these crimes' by abusing 'the authority and power entrusted to' them³⁴. This knowledge based on practical experience was the reason why as early as in the middle of the 1920s the ILA Draft provided that an official position of an individual as Head of State or Government should not preclude his criminal responsibility under international criminal law.³⁵

- 10 **After the Second World War**, the increasing acceptance of this principle was more precisely expressed in VII of the Charter of the Nuremberg Tribunal:

'The official position of defendants, whether as Heads of States or responsible officials in Government Departments, shall not be considered as freeing them from responsibility or mitigating punishment.'

As the IMT famously held:

'The principle of International Law, which under certain circumstances protects the representatives of a State, cannot be applied to acts which are condemned as criminal by International Law. The authors of these acts cannot shelter themselves behind their official position in order to be freed from punishment in appropriate proceedings'³⁶.

Corresponding provisions are contained in VI of the Charter of the Tokyo Tribunal as well as in article 4 Control Council Law No. 10 even though the first did not make a specific reference to the position of the Head of State, presumably because of the (political) decision not to indict Emperor Hirohito. In accordance with its Charter the Nuremberg Tribunal rejected several times the plea of act of state and that of immunity. The argument that persons carrying out acts of state could not be held individually responsible 'but are protected by the doctrine of sovereignty of the State' was expressly rejected as not being applicable 'to acts which are condemned as criminal by international law'. It was emphasized that individuals have international duties which transcend the national obligations of obedience imposed by the individual State. He who violates the laws of war cannot obtain immunity while acting in pursuance of the authority of the State if the State in authorizing action moves outside its competence under international law³⁷.

These judgments were the basis for the Nuremberg principles unanimously confirmed on 11 December 1946 in Resolution 95 (I) of the General Assembly of the UN and in detail formulated and adopted by the ILC in 1950. They differed slightly in wording but not in substance except for the fact that the words 'or mitigating punishment' were no longer included³⁸. Nuremberg principle III was the basis for the recognition of the irrelevance of official position in article IV of the Genocide Convention and for article 3 of the 1951 ILC Draft Code, which recognized this responsibility in the same way except that it substituted a general reference to 'responsibility under international law' with 'any of the offences defined in this code'³⁹. Article 3 of the 1954 ILC Draft Code corresponds textually with the 1951 and in substance with other drafts. This Draft Code, submitted with commentaries to the Sixth

³⁴ See 1996 ILC Draft Code, commentary (1) to article 7.

³⁵ Article 21 of the 1926 ILA Draft. See ILA, *Report of the Thirty-Fourth Conference held at the Imperial Palace and the Chamber of Commerce, Vienna, August 5–11, 1926* (London: Sweet & Maxwell, Ltd., 2 & 3 Chancery Lane, W.C.2., 1927).

³⁶ *In re Goering and others*, IMT, Judgment, 1 October 1946, in: *The Trial of German Major War Criminals. Proceedings of the International Military Tribunal sitting at Nuremberg, Germany, Part 22* (22nd August 1946 to 1st October 1946) 447.

³⁷ See 1996 ILC Draft Code, commentary (3) to article 7; see also Triffterer (1989) RIDP 61 *et seq.* in the General Report on 'International Crimes and Domestic Criminal Law. Efforts to Recognize and Codify International Crimes'.

³⁸ See Triffterer, *Dogmatische Untersuchungen zur Entwicklung des Materiellen Völkerstrafrechts seit Nürnberg* (1966), 15 *et seq.* and 75 *et seq.*, and for the first formulation of the Nuremberg Principles, (1950) YbILC 374 *et seq.*

³⁹ For a commentary to article 3 see (1951) YbILC 137.

Session of the General Assembly in 1954 was postponed by the General Assembly until the Special Committee for drafting a definition of aggression had submitted its report. However, it took a further seven years after a definition of aggression has been adopted by consensus in 1974 for the General Assembly to once again invite the ILC to resume its work on the Draft Code. One of the first articles drafted after the special Rapporteur had delivered seven reports concerning the subject of jurisdiction *ratione personae* and *ratione materiae* was a new and relevant article 11⁴⁰. It differed from former drafts mainly because it mentioned heads of state as mere examples ('in particular') in order to broaden the scope of the provision. The Commission referred expressly to 'heads of States or Government, since they have the greatest power of decision'. But the retention of the words 'official position of an individual' should clarify that 'the article also relates to other officials'. The ILC saw in this broadening 'the real effect of the principle' so that the official position of an individual 'can never be invoked as a circumstance absolving him from responsibility or conferring any immunity upon him, even if he claims that the acts constituting the crime were performed in the exercise of his functions'⁴¹. It was further stated that the change from the official position to

[t]he words 'he acts' apply to the exercise of both legal powers and factual powers. If a person was acting as though he were head of State or Government or a government official when in fact he was not, he would incur criminal responsibility just as much, if the acts he committed were criminal acts under the code⁴².

The wording of article 11 was continued until the 1991 Draft Code was delivered to the General Assembly⁴³. By the early 1990s, the norm was so sufficiently settled in international law as to be incorporated into the statutes of both the ICTY and the ICTR.⁴⁴

At the same time, mainly during the 1980's, the work of the ILC was accompanied by 11
corresponding NGO endeavors, especially of the AIDP and the ILA. In 1972 the Foundation for the Establishment of an International Criminal Court presented its Bellagio-Wingspread Draft Statute. It contained in article 22 a very comprehensive regulation headed, 'Jurisdiction as to Persons', which covers all relevant aspects with the wording: 'The Court shall be competent to judge persons whether or not they are constitutionally responsible rulers, public officials or private individuals'⁴⁵. M. Cherif Bassiouni on behalf of the AIDP in his Draft Code 1980 emphasized: 'A person who commits a crime is not relieved from responsibility by the sole fact that he was acting in the capacity of Head of State, responsible government official, acting for or on behalf of a state', a formulation which was repeated in his 1987 Draft⁴⁶. In 1986, the ILA at its Seoul Conference dealt with this subject matter, if not expressly, but as an adjunct under the heading 'Execution of public duty', it nominated as indispensable prerequisites for justification: 'acting on reasonable grounds and proportionality between force and purpose' and that '[a]ct under military law – which must of course be properly applied – and the lawful conduct of war are generally justified here'⁴⁷.

⁴⁰ See for this historical development, ILC Report on the Work of its Forty-Second Session, 1 May–20 July 1990, UN Doc. A/45/10 (1990), chapter II with references in fn. 13.

⁴¹ See ILC Report on the Work of its Fortieth Session, 9 May–29 July 1988, UN Doc. A/43/10 (1988); (1988) *YbILC*, Part 2, 71.

⁴² *Ibid.*

⁴³ For the repetition of this Draft during all the years from 1989 to 1991 see 2 *YbILC*, Part 2, 67 (1989); for the 1991 ILC Draft Code see also Bassiouni (1993) 11 *NEP* 197.

⁴⁴ Article 7(2) ICTYST. provides: 'The official position of any accused person, whether as Head of State or Government or as a responsible Government official, shall not relieve such person of criminal responsibility nor mitigate punishment.' An identical provision appears in Article 6(2) ICTRSt., and a similar one in Article 6(2) SCSLSt.

⁴⁵ See 1st and 2nd International Criminal Law Conferences, *The Establishment of an International Criminal Court* (1972) 18.

⁴⁶ Bassiouni, *A Draft International Criminal Code and Draft Statute for an International Criminal Tribunal* (1987) 95.

⁴⁷ See *Addendum to the Seventh Interim Report of the International Criminal Law Committee*, Annex C Protocol II, III 4 and Annex D Explanatory Report to Protocol II on Defences, ad III 4, at 12 and 18.

- 12 The 1991 Draft Code and especially its relevant article 13 (formerly 11) received new attention in the context of the discussion of the **1994 ILC Draft Statute**. Since the latter contained no regulation on this question, even though the Statutes for the ICTY 1993 and the ICTR 1994 had meanwhile confirmed the principle of individual criminal responsibility irrespective of official position in their articles 7 and 6 respectively, a group of experts discussing the 1994 ILC Draft Statute proposed in the context of ‘Open questions and elements to be regulated in a General Part’ to deal with this aspect by reference to article 7 of the ICTY Statute. The result was a proposed article 33–2, the second paragraph of which corresponded with article 13 of the 1991 ILC Draft Code⁴⁸. This proposal was aimed at clarifying that criminal responsibility would also attach to the official levels below Heads of State or Government. In addition, the original Nuremberg formulation was emphasized, whereupon it was expressly reiterated that an official position and responsibility could not of itself constitute a ground for mitigating punishment. In this context it should also be kept in mind that those abusing their power are quite often even more culpable than their subordinates who actually only fulfill the demands of their governments or commanders. The 1996 ILC Draft Code emphasizes the historical tendency by substituting ‘particularly’ with the words ‘even if he acted as head of State or Government’ in article 7. The commentary to this article is in substance the most comprehensive, since it refers to many of the aspects mentioned in former drafts and especially to the background against which it was drafted.
- 13 **Broad agreement on the irrelevance of official capacity** made it neither necessary nor advisable to express an opinion on the question of whether immunity for Heads of State or Government under national or international law could influence the application of this principle. It appeared so obviously predominant that reference in some of the international documents to the irrelevance of official capacity for the exercise of jurisdiction of a permanent International Criminal Court was thought to be superfluous. This is the reason why the ILC mentioned rather generally that ‘the official position ... can never be invoked as a circumstance absolving him from responsibility or conferring any immunity upon him’⁴⁹. The 1994 ILC Draft Statute makes no reference either in article 33 or in its commentary to immunity. But from the wording ‘Applicable law’, it appears in article 33(1) that ‘principles and rules of general international law and special treaties’ shall be applicable only ‘insofar as not contradictory to it (the Statute)’. Equally article 7 of the ILC 1996 Draft Code does not mention immunity. However the commentary to this provision reiterates that:
- ‘[I]t would be paradoxical to allow the individuals who are, in some respects, the most responsible for the crimes covered by the Code to invoke the sovereignty of the State and to hide behind the immunity that is conferred on them by virtue of their positions particularly since these heinous crimes shock the conscience of mankind, violate some of the most fundamental rules of international law and threaten international peace and security [...]. The absence of any procedural immunity with respect to prosecution or punishment in appropriate judicial proceedings is an essential corollary of the absence of any substantive immunity or defence (there fn 56). It would be paradoxical to prevent an individual from invoking his official position to avoid responsibility for a crime only to permit him to invoke this same consideration to avoid the consequences of this responsibility’⁵⁰.
- 14 The endeavors within and without the UN to draft a Statute for a Permanent International Criminal Court were of great help to the Security Council when it decided to establish the ICTY and the ICTR. *Vice versa*, both *ad hoc* Tribunals promoted the idea of a permanent International Criminal Court. The ILC Draft Statute 1994 – and in a way also the Draft Code 1996 – mark the end of a historical development which partly overlaps with the **immediate drafting process of the Rome Statute**. The latter actually started when the 1995 *ad hoc* Committee on the Establishment of an International Criminal Court reviewed the 1994 ILC

⁴⁸ See the Siracusa respectively the Updated Siracusa Draft; the relevant parts are reprinted in Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 942 *et seq.*

⁴⁹ (1988) 2 *YbILC*, Part 2, 71.

⁵⁰ See for the quotations 1996 ILC Draft Code, commentary (1) and (6) to article 7.

Draft Statute. It merely mentioned 'irrelevance of official position' in Annex II to its report, which contained 'guidelines for consideration of the question of general principles of criminal law'. In addition, it 'drew attention to the principles of general criminal law addressed in article 7 of that Statute' (for the ICTY) and to the fact that some delegations 'indicated that they had not yet taken a final position on this question'⁵¹. When the Preparatory Committee continued this work, it summarized its first two sessions in August 1996 in Vol. I of its Report, expressing broad consensus 'for the Statute to disallow any plea of official position as head of State or government or as a responsible government official'. It left undecided the question of whether 'this issue could be included in relation to 'defences' and the question of diplomatic or other immunity from arrest and other procedural measures, taken by or on behalf of the Court'⁵². Later, in Vol. II, the Preparatory Committee proposed substituting the introductory wording in article 13 of the ILC Draft Statute, 'the official position of an individual ...' with a bracketed sentence according to which the Statute 'shall be applied to all persons without any discrimination whatsoever'. In addition, a new paragraph denying a 'plea of immunity for jurisdiction irrespective of whether on the basis of international or national law' was drafted. The second proposal, headed 'official capacity of the accused' included new provisions dealing with 'an elected representative and ... an agent of the State' as well as 'a member of ... parliament' as additional examples of persons whose official capacity could in no case (per se) relieve them from criminal responsibility. In paragraph 2 it was stated that '[t]he special procedural rules, the immunities and the protection attached to the official capacity of the accused and established by internal law or by international conventions or treaties may not be used as a defence before the Court'⁵³. At its third session in February 1997 the Committee combined the two proposals and included an article B (e), 'Irrelevance of official position', wherein it eliminated the brackets for sentence 1 and 'an agent of the State', and rephrased paragraph 2 to read '[a]ny immunities or special procedural rules ... may not be relied upon to prevent the Court from exercising its jurisdiction in relation to that person'. The Committee pointed out in a footnote that paragraph 2 needed further discussion 'in connection with procedure as well as international judicial cooperation'⁵⁴. Early in 1998, the Zutphen Draft repeated this article which it redesignated article 18 and included the same footnotes⁵⁵ as did the Consolidated Draft agreed upon at the sixth (and last) session of the Preparatory Committee in April 1998⁵⁶. How close the exchange of ideas between the UN, the AIDP, for instance, and other non-governmental organizations was can be discerned from the Model Draft Statute presented on behalf of the AIDP 1998 by M. Cherif Bassiouni and Leila Sadat Wexler⁵⁷. This Model Draft Statute eliminated from the above mentioned proposals the words 'this Statute shall be applied to all persons without any discrimination whatsoever'. It was argued that the existence of a similar more general clause in article 23 – now article 25 – made the words redundant. Besides, those words were 'inaccurate [...], since application of the criminal law does involve discriminating between persons on the basis of their guilt and innocence'⁵⁸.

The **discussion at Rome** dealt with all aspects considered during the historical development and the drafting process, including the references in the commentary to the Model Statute which underscored that no distinction 'based on official capacity' would be recog-

⁵¹ See Ad Hoc Committee Report, para. 87 and Annex II B 1, p. 58. See for the mutual support of the UN and non-governmental organizations, Triffterer, 2nd edition, *Preliminary Remarks*, mn 8 *et seq.*

⁵² 1996 Preparatory Committee I, § 193, p. 44; reprinted in Bassiouni (ed.), *International Criminal Court Compilation of United Nations' Documents and Draft ICC Statute before the Diplomatic Conference* (1998) 411.

⁵³ See 1996 Preparatory Committee I, p. 85.

⁵⁴ See Preparatory Committee Decisions Feb. 1997, Annex II, at 22 with fn. 14.

⁵⁵ See Zutphen Draft, at 54 and 55 with fn. 86.

⁵⁶ See Preparatory Committee (Consolidated) Draft, at 60 with fn. 9.

⁵⁷ See Model Draft Statute for the International Criminal Court based on the Preparatory Committee's text to the Diplomatic Conference, Rome, 15 June–17 July 1998, AIDP, (1998) 13*ter* NEP.

⁵⁸ *Ibid.*, at 44 *et seq.*

nized. The broad scale of examples listed in article 27 was preferred but as a compromise it was accepted that article 27 should only be applicable to ‘criminal responsibility under this Statute’⁵⁹. A compromise with regard to article 27 was rather easy to achieve, because of the excellent and thorough preparation conducted during the whole drafting process. In addition, part of the discussion had been transferred to the working group on Part 9, International cooperation and judicial assistance, which also had to deal in the context of article 98, ‘Cooperation with respect to waiver of immunity and consent to surrender’, with State obligations to respect immunities⁶⁰. Since this working group had to deal with the question of how the duty of States Parties to fulfill requests of the Court corresponded with their duty not to violate international treaties and the rules granting immunity on the domestic level, it was proposed to clarify within the context of article 27 both aspects: excluding exemption from criminal responsibility for crimes listed in this Statute and solving possible conflicts in the duties of states and preventing both from conflicting with each other. Correspondingly and as a compromise to avoid prejudicing principles and immunities applicable within the national criminal justice systems, it was clarified by article 27 that notwithstanding ‘[i]mmunities or special procedural rules’ an individual criminal responsibility for crimes under international law exists for everybody, including all persons acting in an official capacity whatsoever, paragraph 1, and that such ‘[i]mmunities or special procedural rules ... shall not bar the Court from exercising its jurisdiction over such a person’, paragraph 2.

B. Analysis and interpretation of elements

I. Paragraph 1

1. The irrelevance of immunity *ratione materiae* before international courts as an expression of customary international law

- 16 Under article 27(1), ‘official capacity ... shall no in case exempt a person from criminal responsibility under this Statute’. This effectively renders inapplicable any act of state defense or any immunity *ratione materiae* for core crimes committed in the name of a state (be it a Party or a Non-Party State). As rightly noted by Ambos, ‘[t]here is general agreement that [article 27] is only declaratory of international customary law as far as it excludes functional immunity’⁶¹. Indeed, since Nuremberg there is a long line of national (the most prominent of course being the *Pinochet*⁶²) as well as international judicial pronouncements to that end.⁶³ While the core crime exception to immunity *ratione materiae* (state officials do not enjoy functional immunity for crimes committed for or in the name of the state) may not be fully settled with regard to criminal proceedings before national courts,⁶⁴ and may indeed be treated as an open question,⁶⁵ acting as a state official does not relieve an individual of his or her core criminal responsibility before an international court like⁶⁶ the ICC. Customary international law hence knows an exception to the

⁵⁹ See mn 15.

⁶⁰ See Kreß/Prost, *Article 98*, mn 1 *et seq.*

⁶¹ Ambos, *Treatise* (2013) 414.

⁶² *R v Bow Street Metropolitan Stipendiary Magistrate, Ex Parte Pinochet Ugarte* (No 3), House of Lords, [2000] AC 147, [1999] 2 All ER 97.

⁶³ As was rightly pointed out by Kreß/Prost, *Article 98*, mn 19. For the latest analysis of case law see Pedretti, *Immunity of Heads of State and State Officials for International Crimes* (2015) 167 *et seq.* with extensive references.

⁶⁴ Cf. Kreß/Prost, *Article 98*, mn 20 rightly pointing out that the ICJ has failed to authoritatively settle the issue in the Arrest Warrant Case.

⁶⁵ Cf. Robinson, in: Cryer et al., *Introduction* (2014) 551.

⁶⁶ See mn 7.

traditional immunity protection *ratione materiae*; or perhaps more to the point, because it shifts the ‘burden of proof’: **customary international law does not provide state officials with functional immunity before an international court like the ICC**, i.e. does not, as a default rule, exempt state officials from international criminal responsibility with regard to the most serious offences against international values and interests. Although delicate, because the determination of customary international law should not be overtly policy orientated, all of this is also normatively sound, because an international criminal court acting as an organ of the international community is not in conflict with the *par in parem non habet imperium*-principle.⁶⁷

2. Equal application ‘to all persons without any distinction based on official capacity’

The basic idea that **no one**, including those acting for the state, and also including nationals of Non-Party States, **is exempt from criminal prosecution by the Court** is aptly expressed in the formula that the ‘Statute shall apply equally to all persons without any distinction based on official capacity’. This is also put forward in article 25(1), which stipulates that all persons committing ‘a crime within the jurisdiction of the Court shall be individually responsible and liable for punishment in accordance with this Statute’. It is this endeavor to bring to court all offenders participating in one way or another in the commission of the most serious crimes of concern to the international community as a whole, which has also shaped – in more detail – article 25(3). The principle is addressed by a few other articles, especially article 28 (‘Responsibility of commanders and other superiors’) and article 33 (‘Superior orders and prescription of law’). Together with article 25(3), these articles regulate criminal responsibility for the entire scale of possible crimes under international criminal law and the mode of engagement in their commission article 27 adds a further aspect to this coverage by guaranteeing that such appearances, which include abuse of power, will be brought under the jurisdiction of the Court to avoid impunity. Thus, article 27 is one of the clearest manifestations in the Statute of the determination in paragraph 5 of the Preamble ‘to put an end to impunity for the perpetrators of these crimes and thus to contribute to the prevention of such crimes’.

In relating to ‘**all persons**’, article 27(1) is addressed not only to state officials, but also *inter alia* to members of international organizations etc.⁶⁸ Article 27(1) is formulated openly and in a non-exhaustive manner; the second sentence of paragraph 1 only gives examples (see *infra* mn 19) of groups of persons included (like heads of state etc.). – That the Statute shall apply ‘**equally**’ clearly refers to a ‘distinction based on official capacity’ only. The drafting history indicates that this formula does not exclude distinctions based on individual culpability or the intensity of participation etc.⁶⁹. – According to article 27(1), ‘**official capacity**’ does not exempt anyone from criminal responsibility nor does it mitigate this responsibility. Again, the term ‘official capacity’ is formulated in an open manner in order to describe an overall concept (as illustrated by the non-exhaustive examples in paragraph 1 sentence 2). This legislative technique aims at including all official capacities that – according

⁶⁷ *Inter alia* for the reasons put forward by Krefß/Prost, *Article 98*, mn 19, the impeding and notorious Article 46Abis of the Protocol on Amendments to the Protocol on the Statute of the African Court of Justice and Human Rights does not change this current state of customary international law, the more, since the African Court of Justice and Human Rights is a regional, not an international criminal court acting on behalf of the international community.

⁶⁸ It has to be further kept in mind that the Zutphen text of the corresponding article 18 was drafted a little more narrowly than the present paragraph 1, in that the types of persons with which it was concerned were listed exhaustively. They did, however, not cover the position of the removal of immunities that subsist for persons in respect to their membership of international organisations as well as in respect of States. In Rome, Article 18(2) of the Zutphen Draft was considered to cover such persons. Hence, it now appears that the importance of paragraph 2 relates to its interaction with article 98.

⁶⁹ See mn 15.

to the traditional Westphalian notion of immunity of acts of state – once allowed individuals to hide behind the shield of the sovereignty, and thus to attain impunity for crimes committed in the name of the state. The exercise of ‘official capacity’ encapsulates conduct approved or authorized by an internationally recognized authority (like a state or an international institution). In effect, the concept needs to be interpreted broadly in order to express that no official position derogates personal criminal responsibility for the crimes under the jurisdiction of the Court. For example, all military commanders, from the top to the lower level, are normally acting in official capacity (as long as they do not go ‘rogue’ and act ‘privately’).⁷⁰

3. ‘In particular’ ...

- 19 The ‘In particular’ of paragraph 1 sentence 2 hails that this provision only contains a **non-exhaustive list of examples** for official capacities that are in turn of no relevance when deciding on the criminal responsibility of the accused. This list of examples includes the most typical and those whose political or administrative power makes them most susceptible to grave abuse through the commission, in every imaginable way, of crimes under the Statute. Aiming to express what is in any event irrelevant dispenses with the need to differentiate between legally accepted, *de facto* exercised and mere purported exercise of official capacities. This is the reason why one of the early proposals, to specify that the respective person had to act in his official capacity⁷¹, was finally rejected. It was argued that article 27 was applicable to both, legal and *de facto* powers, because ‘[i]f a person was acting as though he were Head of State or Government or a government official when in fact he was not, he would incur criminal responsibility just as much, if the acts he committed were criminal acts under the code’⁷².
- 20 Article 27(1) mentions the ‘Head of State or Government, a member of a Government or parliament, an elected representative or a government official’: ‘**Head of State or Government**’ presupposes two positions, which often are held by different persons, as in Great Britain, Germany and Austria, but may be also exercised by one person like the president of the USA and France. Both expressions are mentioned alternatively; therefore, if occupied by one person, article 27 is equally applicable. The way in which a person becomes a ‘Head of State or Government’ is not important. Decisive is that he or she holds such a position in a state or government which is either established according to the law of the respective State or, if not, is at least broadly acknowledged by the international community. There can be no doubt that such a position is recognized for all persons heading a state or a government of Member States of the UN. Besides, for reasons given in mn 19, persons purporting to act in an official capacity fall under the jurisdiction of the Court and are included in the concept of article 27.⁷³ – ‘**Members of a Government or parliament**’ includes all persons having a seat in one of these two institutions, be they at a federal, state or local level and independent of whether such a person has been elected or nominated etc. Parliament is in general the expression for the (not necessarily democratically elected) body of representatives of the population of a state on the national level. But the level of any legislative body is not decisive. If it is a national or a state parliament or any other parliament on a local level as in cities or villages, all those persons may be included, because even if accepted as persons with an official capacity, article 27 provides

⁷⁰ Also cf. *Prosecutor v. Blaškić*, Case No. IT-95-14, Judgement on the Request of the Republic of Croatia for Review of the Decision of Trial Chamber II of 18 July 1997, Appeals Chamber, 29. October 1997, paras. 38 and 41; *Prosecutor v. Furundžija*, Case No. IT-95-17/1-T, Judgement, Trial Chamber, 10 December 1998, para. 140 and *Prosecutor v. Milosević*, Decision on Preliminary Motions, Trial Chamber, 8 November 2001, paras. 26 *et seq.*

⁷¹ See the 1988 ILC Report, (1988) *YbILC*, Part 2, 71..

⁷² *Ibid.*

⁷³ An example for the ‘top level’ is the indictment and trial of the ICTY in the case of the Former President of the FRY, Slobodan Milosević. He was indicted on the basis of individual responsibility (Article 7(1) ICTYSt.) and superior responsibility (Article 7(3) thereof). See *Prosecutor v. Milosević*, Case No. IT-01-54, Indictment, 8 Nov. 2001.

that their capacity is irrelevant. – Including the examples ‘**elected representative or a government official**’ takes care of the development of democratic institutions. These examples do not mark the lowest level but address the lower ranks of the hierarchy.⁷⁴ Both are broad enough concepts to cover all possibilities not falling under the other examples mentioned in paragraph 1. Elected means not only elected by the citizens on the national and on all other state levels but also an election by one of the governmental institutions or organs, for instance of a special Government ambassador to go abroad on a peace keeping mission or a lower ranking state officer. Persons from the last group are only government officials when supplied with the associated functions and powers. The first deals with a group different from the examples of members of parliament by excluding those, who have been appointed. This distinction also assists to differentiate the next category of ‘government official’. The wording clarifies that the limiting adjective ‘elected’ refers only to representative and not to a government official. The government official therefore may have reached his or her official capacity by being elected or appointed. Here again a broad conception poses no danger to the integrity of the criminal justice established under the Statute, because the enumeration in sentence 2 of paragraph 1 has only an exemplifying character and the general rule of sentence 1 states that persons having any ‘official capacity’ on the international or on the domestic level, should be treated equally in the sense that the nature of their capacity is irrelevant with regard to their responsibility under international criminal law.

4. ‘shall in no case exempt ... from criminal responsibility’

This formulation confirms, by way of the very strict wording (‘**in no case**’), that there is no exception to the irrelevance of official capacity: any official capacity a person may have by law or by fact, in reality or purported, is irrelevant as concerns the possible criminal responsibility of that person before the Court for crimes falling under its jurisdiction. The procedural consequence of this rule is that the Court does not have to make certain findings on the facts with regard to the position the defendant has held at the time when he committed the crime (except of course, this position is relevant in any other way, e.g. in order to establish command responsibility or to aggravate a sentence due the high official position of the accused). Rather it is, in cases of doubt, sufficient to state *ex hypothesis* that even if the accused held this or that position (or purported to act in an official capacity) it would not exempt him or her from criminal responsibility⁷⁵. Of course, persons falling under the broad conception of paragraph 1 have to be treated like all other suspects under the Statute and, therefore, may be free from criminal responsibility if, for instance, they lack the mental element required for a specific crime.

5. ‘in and of itself’ no ‘ground for reduction of sentence’

Article 27(1) forbids any mitigation of the sentence on the ground alone (‘**in and of itself**’) that the convicted person acted in an official capacity or believed he or she was doing so. On the contrary, the fact that a person abused his or her power may frequently be evaluated as an aggravating circumstance⁷⁶. In effect, article 27(1) leads to the ordinary sentencing process under article 78(1) and rule 145 RPE, where mitigating and aggravating circumstances are to be balanced, including that core criminal conduct was carried out under the flag of official

⁷⁴ As an example for a ‘government official’ at the lowest local level can serve the trial against Jean-Paul Akayesu, the mayor of Taba, who was sentenced on 2 October 1998 to twenty years of imprisonment for committing crimes against humanity, by superior responsibility mainly by non interfering to prevent their commission. See *Prosecutor v. Akayesu*, Case No. ICTR-96-4-T, Judgement, Trial Chamber, 2 October 1998 and *Prosecutor v. Akayesu*, Case No. ICTR-96-4-A, Judgement, Appeals Chamber, 1 June 2001.

⁷⁵ See also Triffterer, in: Buffard et al. (eds.), *International Law Between Universalism and Fragmentation: Festschrift in Honour of Gerhard Hafner* (2008) 571 (especially at II.A und II.B.).

⁷⁶ See, for instance, ILC Report on the Work of its Thirty-Eighth Session, 5 May–11 July 1986, UN Doc. A/41/10 (1986), para. 170.

capacity. The sentencing assessments are based on the requirements of justice as far as the gravity of the crime and the individual circumstances of the convicted person are concerned. With respect to the latter, it is conceivable that the individual circumstances of the convicted person' lead to a 'reduction of sentence', e.g. because the official capacity wielded by him or her were overpowering⁷⁷. However, rule 145(2)(b)(ii) RPE explicitly lists 'official capacity' as a possible aggravating circumstance; this holds true all the more when this coincides with an 'abuse of power' (rule 145(2)(b)(ii) RPE). The higher up the convicted person was in a core criminal organization and the more official capacity he or she wielded, has also to be given consideration according to rule 145(1)(c) RPE.

II. Paragraph 2

1. The irrelevance of immunity *ratione personae* before international courts as an expression of customary international law?

- 23 While it is more or less safe to assume that immunity *ratione materiae* (of any incumbent or former state etc. official) is irrelevant before an international court like the ICC,⁷⁸ and that article 27 is thus but a declaration of customary international law, it is very much open for debate whether the same holds true with regard for the irrelevance of immunity *ratione personae* under article 27(2). The notion that personal immunity is irrelevant before international courts in general has been advanced by the SCSL in *Taylor*. In qualifying itself an international criminal court proper, and in drawing inter alia on the ICJ Arrest Warrant decision, the SCSL Appeals Chamber (in-)famously held:

'[T]he principle seems now established that the sovereign equality of states does not prevent a Head of State from being prosecuted before an international criminal tribunal or court. We accept the view expressed by Lord Slynn of Hadley that 'there is ... no doubt that states have been moving towards the recognition of some crimes as those which should not be covered by claims of state or Head of State or other official or diplomatic immunity when charges are brought before international tribunals.' In this result the Appeals Chamber finds that article 6(2) of the [SCSL-]Statute is not in conflict with any peremptory norm of general international law and its provisions must be given effect by this court. We hold that the official position of [Charles Taylor] as an incumbent Head of State at the time when these criminal proceedings were initiated against him is not a bar to his prosecution by this court.'⁷⁹

In deviating from the rationale advanced in the *Al Bashir* Arrest Warrant Decision (see *infra* mn 25), PTC I adopted the *Taylor* approach (i.e. this international court exception to immunity *ratione personae*) in its *Malawi Decision in Al Bashir*. There, the Chamber rejected the argument

'that international law affords immunity to Heads of States in respect of proceedings before international courts' on the ground [on the ground, O.T./C.B.] that the principle in international law is that immunity of either former or sitting Heads of State cannot be invoked to oppose a prosecution by an international court. This is equally applicable to former or sitting Heads of States not Parties to the Statute whenever the Court may exercise jurisdiction.⁸⁰

⁷⁷ Consider, for instance, a case where the convicted person was just eighteen years of age when the crime was committed and that he was completely unprepared for and overawed by the power transferred to him in a position that nevertheless exposed him to a chain of command and the situation envisaged by Article 33.

⁷⁸ Gaeta (2003) 1 *JICJ* 186, 194.

⁷⁹ *Taylor*, SCSL, Rendering of decision on motion made under protest and without waiving immunity accorded to a head of state requesting the Trial Chamber to quash the indictment and declare null and void the warrant of arrest and order for transfer of detention 23 July 2003 (immunity motion), Appeals Chamber, 31 May 2004, paras 51 *et seq.* [SCSL-Doc SCSL-03-01-I-059]. For well-founded critique of this decision see Robinson, in: Cryer et al. (eds.), *Introduction* (2014) 563 with further references; Frulli (2004) 2 *JICJ* 1118 *et seq.*

⁸⁰ *The Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09, Decision Pursuant to Article 87(7) of the Rome Statute on the Failure by the Republic of Malawi to Comply with the Cooperation Requests Issued by the Court with Respect to the Arrest and Surrender of Omar Hassan Ahmad Al Bashir, PTC I, 12 December

The notion that customary international law does not grant the most senior officials of a state immunity *ratione personae* before international courts has found both scholarly acceptance⁸¹ and rejection^{82,83}. Both positions advance sensible arguments, and as always, the identification of the current state of play of customary international law is delicate. This holds true all the more, since the methodology of identifying the pertinent custom is far from clear as well. Is one to look for custom granting senior state officials immunity *ratione personae* before international courts? Or for custom making it an exception that state officials, who do enjoy personal immunity before national courts, do not do so before international courts?⁸⁴ Even when accepting the latter and predominantly held position, an international court exception for immunity *ratione personae* should be approached with an **open mind**. *First*, it has to be noted that this does not pre-determine article 98; it is thus very well possible to believe that the irrelevance of personal immunity before the Court does not extend to the horizontal relationship between a State requested for cooperation and the Non-Party State granting personal immunity (e.g. to its head of state);⁸⁵ it is thus unnecessary to read article 27(2) or customary international law restrictively in order to uphold the very fabric and working order of inter-national relations between states. *Second*, the Special Rapporteur of the ILC on the subject of 'Immunity of State officials from foreign criminal jurisdiction' has supported the idea that '(i)mmunity from international criminal jurisdiction appears to be fundamentally different from immunity from national criminal jurisdiction'.⁸⁶ Normatively, this is not so much because the formula *par in parem non habet imperium* cannot be the rationale for personal immunity from international jurisdiction,⁸⁷ but rather because the international prosecution of an incumbent head of state or government or foreign minister, who is accused of core crimes, does not necessarily infringe upon diplomatic inter-state relations. In this respect it has to be noted that article 27(2) is not the place to delve into the peace versus/via justice debate, since the mere possibility to assume jurisdiction over an incumbent senior state official, who may in turn block peace building due to fear of international prosecution, must not be equated with the necessity to do so; an international court exception to immunity *ratione personae* hence does not pre-determine the peace versus/via justice debate. *Third and finally*, '[i]f further judicial rulings consistently support the proposition that personal immunity is no barrier before international courts, and that proposition is supported by State practice and *opinio iuris*, then such a rule could certainly become custom'.⁸⁸

As already mentioned in mn 6, the aforementioned debate is theoretically of the utmost importance, but its today's practical bearing can be doubted as far as article 27 is concerned. Whether article 27(2) is an expression of customary international law is only relevant in an article 12(2)(b)-scenario, i.e. when the Court, without a Security Council referral, wishes to prosecute an individual benefitting from immunity *ratione personae* granted a Non-Party State, which has not accepted the Courts jurisdiction under article 12(3). Where the Court goes after the beneficiary of an immunity granted by a State Party or by a Non-Party State,

2011, paras. 18 and 36 [doc1287184.pdf]. One day later, on 13 December 2011, an identical decision was addressed to Chad [doc1384955.pdf].

⁸¹ See e.g. Gaeta (2009) 7 JICJ 315; Bantekas (2005) 10 JCSL 21, 41; Bianchi (1999) 10 EJIL 237, 261; Kreß/Prost, *Article 98*, mn 28 *et seq.* with further references.

⁸² See e.g. Pedretti, *Immunity of Heads of State and State Officials for International Crimes* (2015) 274 *et seq.*, 304 *et seq.*; Robinson, in: Cryer et al. (eds.), *Introduction* (2014) 562 *et seq.* with further references; Zappalà (2001) 12 EJIL 595, 605 *et seq.*

⁸³ Note that deciding on the reach of article 27 does not necessarily pre-determine the reach of Article 98.

⁸⁴ On this issue see Kreicker (2009) ZIS 350, 355.

⁸⁵ See Gaeta (2009) 7 JICJ 315.

⁸⁶ Kolodkin, *Preliminary report on immunity of State officials from foreign criminal jurisdiction*, A/CN.4/601, 29 May 2008, para. 103.

⁸⁷ As it was seemingly suggested by Kolodkin, *Preliminary report on immunity of State officials from foreign criminal jurisdiction*, A/CN.4/601, 29 May 2008, para. 103.

⁸⁸ As conceded by Robinson, in: Cryer et al. (eds.), *Introduction* (2014) 564.

which has accepted the Courts jurisprudence, the irrelevance of any personal immunity can be explained via its waiver by these states. And where the Court's jurisdiction is based on a **Security Council Referral**, the (fourth and most convincing) reasoning of PTC I in the *Al Bashir* Arrest Warrant Decision is sound in and of itself⁸⁹:

[B]y referring [a] situation to the Court, pursuant to article 13(b) of the Statute, the Security Council of the United Nations [accepts] that the investigation into the said situation, as well as any prosecution arising therefrom, will take place in accordance with the statutory framework provided for in the Statute, the Elements of Crimes and the Rules as a whole⁹⁰.

In the alternative, one may also argue that, when obliging all (including state) parties to a conflict to cooperate fully with the Court, the Security Council (at least implicitly) removes all personal immunities from the senior officials.⁹¹ This was indeed adopted by PTC II in a more recent ruling in *Al Bashir*⁹². Whatever the line of reasoning, the reconcilability of article 27(2) with customary international law does not become an issue, either because the Court can draw on the Security Council's activation of the Statute as a whole or because any immunity *ratione personae* is authoritatively waived by the Council acting under Chapter VII of the UN-Charter.

2. 'Immunities or special procedural rules ... shall not bar the Court from exercising its jurisdiction'

26 There is some controversy about the reach of paragraph 2, namely of the phrase the 'immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law'. As suggested in the previous edition, these immunities may include those *ratione materiae* and *personae*. Or one may distinguish between paragraph 1 capturing the former and paragraph 2 the latter (see mn 3). – In substance, it makes no difference whether such rules exclude criminal responsibility or only protect the respective person by a purely procedural rule against the exercise of domestic jurisdiction like arrest and prosecution before national courts. Since none of these rules are applicable, irrespective of whether they exist in national or in international law. Such rules include all *national* regulations even if they rank as constitutional law and all rules of general and special international law such as those contained in the Vienna Diplomatic Relations Treaty 1961, which deals, besides other Conventions, with the subject of immunities and privileges. It goes without saying that only those are relevant, which are attached 'to the official capacity of a person'. But here again, the structure of article 27 permits the Court to leave open in its finding (should it make a finding at all) the question of what kind of immunity or special procedural regulation may be applicable; all of them are irrelevant and, therefore, not material to the findings and the sentence.

27 All such rules and immunities 'shall not bar the Court from exercising its jurisdiction'. This formula comprehends that an official capacity does not exempt a person from criminal responsibility, nor shall such a position endow the person with impunity founded on procedural reasons. It thereby is, in principle, confirmed that the Court has jurisdiction in all these cases and can exercise it without for instance waiting for a waiver of immunity, which may in *national* jurisdictions be a condition precedent to activities within the criminal

⁸⁹ Concurring Robinson, in: Cryer et al. (eds.), *Introduction* (2014) 562; Holvoet, in: De Hert et al. (eds.), *Code of International Criminal Law and Procedure, Annotated* (2013), Article 27, at 3.2.1, with further references, also to more critical authors.

⁹⁰ *The Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09, Decision on the Prosecution's Application for a Warrant of Arrest against Omar Hassan Ahmad Al Bashir, PTC I, 4 March 2009, para. 45 [doc639096.pdf].

⁹¹ See Ambos, *Treatise* (2013) 416 with further references, including references to authors critical of this argument.

⁹² *The Prosecutor v. Omar Hassan Ahmad Al Bashir*, No. ICC-02/05-01/09, Decision on the Cooperation of the Democratic Republic of the Congo Regarding Omar Al Bashir's Arrest and Surrender to the Court, PTC II, 9 April 2014, para. 29 [doc1759849.pdf].

justice system. This basic concept makes, at least in principle, decisions like the indictment of the ICTY against the former President of the FRY, Slobodan Milošević, inherent also for the Court. The Court has the competence to start an investigation and prosecution in order to find out, whether there is already reasonable ground for a suspicion against an individual person. Because only such an investigation can clarify whether there is a specific suspicion for a certain crime falling within the jurisdiction of the Court and whether – in case there is – the suspect may have acted in an official capacity.

Article 28

Responsibility of commanders and other superiors

In addition to other grounds of criminal responsibility under this Statute for crimes within the jurisdiction of the Court:

- (a) A military commander or person effectively acting as a military commander shall be criminally responsible for crimes within the jurisdiction of the Court committed by forces under his or her effective command and control, or effective authority and control as the case may be, as a result of his or her failure to exercise control properly over such forces, where:
 - (i) That military commander or person either knew or, owing to the circumstances at the time, should have known that the forces were committing or about to commit such crimes; and
 - (ii) That military commander or person failed to take the necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.
- (b) With respect to superior and subordinate relationships not described in paragraph (a), a superior shall be criminally responsible for crimes within the jurisdiction of the Court committed by subordinates under his or her effective authority and control, as a result of his or her failure to exercise control properly over such subordinates, where:
 - (i) The superior either knew, or consciously disregarded information which clearly indicated, that the subordinates were committing or about to commit such crimes;
 - (ii) The crimes concerned activities that were within the effective responsibility and control of the superior; and
 - (iii) The superior failed to take all necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities for investigation and prosecution.

Literature: Abeyratne, R., 'Superior responsibility and the principle of legality at the ECCC', (2012) 44 *GeoWashILRev* 39; Ambos' K., 'Superior Responsibility', in: A. Cassese *et al.* (eds.), *The Rome Statute of The International Criminal Court: A Commentary*, Vol. I (OUP 2002) 823; *id.*, 'Joint Criminal Enterprise and Command Responsibility', (2007) 5 *JICJ* 159; *id.*, 'Critical Issues in the Bemba Confirmation Decision', (2009) 22 *LeidenJIL* 715; Arnold, R., 'Command Responsibility: A Case Study of Alleged Violations of the Laws of War at Kham Detention Centre', (2002) 7 *JCSL* 191; *id.*, 'The 'Means Rea' of genocide under the Statute of the International Criminal Court', (2003) 14 *CLF* 127; *id.*, *The ICC as a new instrument for repressing terrorism*, (Transnational Publishers 2004); *id.*, 'Military Criminal Procedures and Judicial Guarantees: The Example of Switzerland', (2005) 3 *JICJ* 749; *id.*, 'Book Review of Nybondas, M. L., "Command Responsibility and Its Applicability to Civilian Superiors"', (2013) 11 *JICJ* 943; Arnold, R. and Wehrenberg, S., 'Die Verantwortung des Vorgesetzten gemäss Art. 264 k StGB', (2013) 2 *MLLWR* (forthcoming); Aubert, J.F., 'La question de l'ordre supérieur et la responsabilité des commandants dans le Protocole additionnel aux Conventions de Genève du 12 août 1949 relatif à la protection des victimes des conflits armés internationaux (Protocole I) du 8 juin 1977', (2000) 770 *RICR* 109; Badar, M.E., 'Mens rea – Mistake of Law & Mistake of Fact in German Criminal Law: A Survey for International Criminal Tribunal', (2005) 5 *ICLRev* 203; Badar, M.E. and Karsten, N., 'Current Developments at the International Criminal Tribunals', (2007) 7 *ICLRev* 163; Bantekas, I., 'Contemporary Law of Superior Responsibility', (1999) 93 *AJIL* 577; *id.*, 'L'intérêt des États par rapport à la doctrine de la responsabilité des supérieurs', (2000) 838 *RICR* 391; *id.*, 'On Stretching the Boundaries of Responsible Command', (2009) 7 *JICJ* 1197; Bonafe, B.I., 'Find a proper role for command responsibility', (2007) 5 *JICJ* 599; Bothe, M., Partsch, K.J. and Solf, W.A., *New Rules for Victims of Armed Conflicts* (Martinus Nijhoff 1982); Burnett, W.D., 'Command Responsibility of Israeli Military Commanders for the Pogrom at Shatila and Sabra', (1985) 107 *MillRev* 71; *id.*, 'Criminal liability for the actions of subordinates – the doctrine of command responsibility and its analogous in United States law', (1997) 38 *HarvILJ* 272; Ching, A.B., 'Evolution of the command responsibility doctrine in light of the Celebici decision of the International Criminal Tribunal for the Former Yugoslavia', (1999) 25 *NCarolJILCR* 167; Clark, R.S., 'The Mental Element in International Criminal Law: The Rome Statute of the International Criminal Court and the Elements of Offences', (2001) 12 *CLF* 291; Crowe, C.N., 'Command Responsibility in the Former Yugoslavia: The Chances of Successful Prosecution', (1994) 29 *URichLRev* 191; Eckhardt, W.G., 'Command Criminal Responsibility: A Plea for a Workable Standard',

(1982) 97 *MillRev* 1; Feith, K.M.F., 'The Mens Rea of superior responsibility as developed by ICTY jurisprudence', (2001) 14 *LeidenJIL* 617; *id.*, 'Final Report of the Commission of Inquiry Into the Events at the Refugee Camps in Beirut', (1983) 22 *ILM* 473; Fenrick, B., 'Article 28: responsibility of commanders and other superiors', in: O. Triffterer (ed.), *Commentary on the Rome Statute of the International Criminal Court, Observer's notes*, by (Nomos 1999) 515; Fiolka, G., 'Kommentar zu Art. 264k', in: M.A. Niggli and H. Wiprächtiger (eds.), *Basler Kommentar zum StGB*, ii (Helbing Lichtenhahn 2013) 2245-2264; Garraway, C.H.B., 'Command Responsibility: Victors' Justice or just Desserts?', in: R. Burchill *et al.* (eds.), *International Conflict and Security Law: essays in memory of Hilaire McCoubrey* (CUP 2005) 68; *id.*, 'Responsibility of command: a poisoned chalice?', in: R. Arnold and P.A. Hildebrand (eds.), *International Humanitarian Law and the 21st Century's Conflicts: Changes and Challenges* (Editions interuniversitaires suisses 2005) 117; Green, L.C., 'Superior orders and command responsibility', (1989) 27 *CanYbIL* 200; *id.*, 'Command Responsibility in International Humanitarian Law', (1995) 5 *TransnatL&ContempProbs* 320; *id.*, 'War Crimes, Crimes Against Humanity and Command Responsibility', (1997) 50 *NavalWarCollegeRev.* 26; Greenwood, C., 'Command Responsibility and the Hadzihasanovic Decision', (2004) 2 *JICJ* 598; Hart, F.A., 'Yamashita, Nuremberg and Vietnam: Command Responsibility Reappraised' (1972) 25 *NavalWarCollegeRev* 19; Herde, R., *Command Responsibility: die Verfolgung der 'Zweiten Garde' deutscher und japanischer Generale im alliierten Prozessprogramm nach dem Zweiten Weltkrieg* (Nomos 2002); Howard, K.A., 'Command Responsibility for War Crimes', (1972) 21 *JPubL* 7; Husmann, M., 'Die neuen Bestimmungen in Art. 264k-n StGB zur Umsetzung allgemeiner Grundsätze des Römer Statuts', in: Jusletter, 23rd May 2011 < <http://jusletteradmin.zynex.ch/jusletter/GetJusletter.htm?title=Jusletter+23.+Mai+2011#mailink0> >; Jia, B.B., 'The Doctrine of Command Responsibility Revisited', (2004) 3 *ChineseJIL* 1; Keith, K.M.F., 'Superior responsibility applied before the ICTY', (2001) 14 *JILPAC/HuV* - I 98; Kelsen, H., *Peace through Law* (UNC Press 1944); Landrum, B.D., 'The Yamashita War Crimes Trial: command responsibility then and now', (1995) *MillRev* 149; Laucci, C., in: J. Fernandez and X. Pacreau (eds.), *Statut de Rome de la Cour Pénale internationale, commentaire par*, Vol. I (Pedone 2012) 864; Levie, H.S., 'Command Responsibility', (1997/1998) 8 *JLS* 1; Levine, E., 'Command Responsibility: The Mens Rea Requirement', (2005) *Global Policy Forum* 3; Lippman, M., 'The evolution and scope of command responsibility', (2000) 13 *LeidenJIL* 139; *id.*, 'Humanitarian law: the development and scope of the superior orders defense', (2001) 20 *PennStILRev* 1; Maugeri, A.M., *La responsabilità da comando nello Statuto della Corte Penale Internazionale* (Giuffrè 2007); Méttraux, G., *The law of command responsibility* (OUP 2009); Moloto, B.J., 'Command responsibility in International Criminal Tribunals', (2009) 3 *BJILP* 12; Nybondas, M., 'Civilian Superior Responsibility in the Kordić Case', (2003) 59 *NethILRev* 1; *id.*, *Command responsibility and its applicability to civilian superiors* (Asser Press 2010); Parks, W.H., 'Command Responsibility for War Crimes' (1973) 62 *MillRev* 1; Perkins, S., 'The Failure to Protect: Expanding the Scope of Command Responsibility to the United Nations at Srebrenica' (2004) 62 *UTFacLRev* 193; Pilloud, C. *et al.*, *Commentary on the additional protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (ICRC 1987); Rogers, A.P.V., *Law on the battlefield* (MUP 1996); Röling B. and Ruter C.F. (eds.), *The Tokyo Judgment* (AUP 1977); Saland, P., 'International criminal law principles', in: R.S. Lee (ed.), *The International Criminal Court, the making of the Rome Statute: Issues, Negotiations, Results* (Kluwer 1999) 189; Sandoz, Y., *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Conventions of 12 August 1949* (ICRC 1987); Sarooshi, D., 'Command responsibility and the Blaškić case', (2001) 50 *ICLQ* 2; Shamsi, H. and Pearlstein, D., *Command's Responsibility: Detainee Deaths in U.S. Custody in Iraq and Afghanistan* (Human Rights First 2006); Von Sliedregt, E., *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (Asser Press 2003); Smidt, M.L., 'Yamashita, Medina, and beyond: command responsibility in contemporary military operations', (2000) 164 *MillRev* 155; Stuart, E. H., 'Command Responsibility and Superior Orders in the Twentieth Century – A Century of Evolution', (2003) 10 *MurdochUElectronicJL* 1; 111 Tinta, M.F., 'Commanders on Trial: the Blaškić case and the doctrine of Command Responsibility under International Law', (2000) 47 (3) *NethILRev* 293; Trechsel, S., 'Command responsibility as a separate offense', (2009) 3 *BJILP* 26; Triffterer, O., 'Zur Einschränkung der Menschenrechte und zur Anwendbarkeit von Verfahrensgrundsätzen bei freiheitsbeschränkenden Disziplinarmaßnahmen in "besonderen Gewaltverhältnissen"/Anordnungen zum Engel-Urteil des EGMR vom 8.6.1976 (Teil I)', (1976) *EuGRZ* 363; *id.*, *Die Österreichische Beteiligungslehre, eine Regelung zwischen Einheitstäter- und Teilnahmesystemen?* (Manz 1983); *id.*, in: Landesbericht Österreich zum XII. Internationalen Kongress für Rechtsvergleichung Sydney 1986 Thema V A: Versuch und Rücktritt bei Beteiligung mehrerer an der Straftat, (1986) 27 *ZfRV* 105; *id.*, 'Causality, a Separate Element of the Doctrine of Superior Responsibility as Expressed in Article 28 Rome Statute?', (2002) 15 *LeidenJIL* 179; *id.*, 'Command Responsibility' – Grundstrukturen und Anwendungsbereiche von Art. 28 des Rom Statutes Eignung auch zur Bekämpfung des internationalen Terrorismus?', in: C. Prittzwitz *et al.* (eds.), *Festschrift für Klaus Lüderssen* (Nomos 2002) 437; *id.*, 'Command Responsibility, Article 28 Rome Statute, an Extension of Individual Criminal Responsibility for Crimes Within the Jurisdiction of the Court – Compatible with Article 22, nullum crimen sine lege?', in: O. Triffterer (ed.), *Gedächtnisschrift für Theo Vogler* (Müller 2004) 213; *id.*, 'Hans Kelsen Bedeutung für die Entwicklung des Völkerstrafrechts und einer Völkerstrafgerichtsbarkeit', in: Walter *et al.* (eds.), *Hans Kelsen und das Völkerrecht* (Manu 2004) 139; *id.*, 'Command Responsibility – crimen sui generis or participation as otherwise provided?', in: O. Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (C.H. Beck 2005) 901; Vest, H. and Sager, C., 'Die bundesrätliche Botschaft zur Umsetzung der Vorgaben des IstGH-Statuts – eine kritische Bestandesaufnahme', (2009) 4 *AJP* 423; Vetter, G.R., 'Command responsibility of non-military superiors in the International Criminal Court (ICC)', (2000) 25 *YaleJIL* 1; Wallach, E. and Marcus, M., 'Command Responsibility', in: C.M. Bassiouni, *International Criminal Law: International enforcement* (Martinus Nijhoff 3rd edition 2008) 459; Weigend, T., 'Kommentar zu § 4 VStGB', in: O. Lagodny (ed.), *Münchener*

Kommentar zum Strafgesetzbuch, Band 6/2 (C.H. Beck 2009) 511 (citation: MüKo-Weigend); *id.*, ‘Bemerkungen zur Vorgesetztenverantwortlichkeit im Völkerstrafrecht’, (2004) 116 ZStW 999; Wenqi, Z., *The doctrine of Command Responsibility as applied to civilian leaders: the ICTR and the ‘Kayishema’ case*, in: S. Yee and W. Tieya, *International Law in the Post-Cold War World* (Routledge 2001) 373; Wu, T. and Kang, Y.S., ‘Criminal liability for the actions of subordinates – the doctrine of command responsibility and its analogues in United States law’, (1997) 38 *HarvILJ*; Zahar, A., ‘Command Responsibility of civilian superiors for genocide’, (2001) 14 *LeidenJIL* 3.

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A. Introduction/General remarks

Article 28 contains the longest definition of a single modality concerning individual criminal responsibility under international law, even if the two alternatives, (a) and (b), are looked at separately. Already this and its extremely complicated, unusual and interlocked wording demand an extensive introduction and several 'general remarks', helpful for the interpretation of its structure and its major aspects concerning the application of this article by national and international courts.

In addition, ever since international criminal law started to develop, cases dealt with on an international level and even those handled by national jurisdictions, demonstrate that only very few crimes were committed by subordinated members of armed forces on their own initiative. More often such atrocities show some 'involvement' of superiors like silent toleration or lack of sufficient supervision. This picture and, in particular, the omissions that could be observed, led to the conclusion that at least most of these crimes were predictable or recognizable for military superiors, keeping a 'sharp eye' on the factual and the psychological situations of their subordinates. This is in particular true with regard to (legal or illegal) warfare resulting in war crimes.

Commanders may have other concerns like protecting their subordinates, gaining military advantages or even winning the battle. But this does not relieve them from the duty to observe their subordinates before and on the spot with regard to whether they obey international humanitarian law. This law takes due care of possible conflicts of interest, for instance by including into definitions of war crimes the element 'not justified by military necessity and carried out unlawfully and wantonly', article 8 para. 2 (a) (iv).

The majority of cases reported after the Second World War and those, up till now pending before the ICTY, the ICTR and the ICC, concern superior/subordinate relationships, in which either the communication top down or bottom up is dealing with criminal behaviour or should have been (more) concerned about such issues. This is true, both from the point of view of the prosecution as well as from the defence. The prosecution may claim that though not committed in the sense of executed by the superior, in particular a military commander has the responsibility for certain crimes of subordinates under his effective authority and control. On the other side the defence may claim, that certain crimes, though and just because they are committed not by himself, but by his subordinates, are not accountable to the commander,

who is quite often far removed from the place of the events and, in particular, because he was *de facto* unable to control all forces under his authority at the same time¹.

- 3 These and similar aspects play an important role in the genesis of article 28, showing a rather curved way of development², and, consequently, a highly disputed jurisprudence³. Both, genesis and jurisprudence have to be recalled, since they are equally needed for interpreting article 28 when to be applied on a national or the international level; because quite a few formulations of its wording still have to be clarified in order to establish whether all elements are ‘strictly construed’ in the sense of article 22⁴.

Clarity is, in particular, requested in politically highly ‘explosive’ cases; for instance when the chain of command reaches up to the top of military or government representatives still in power positions in their respective State. Because since their ‘official capacity’ is irrelevant for the ‘criminal responsibility under this Statute’ (article 27) every single one of them can be held, in principle, responsible according to article 28. But in practice such persons still in power or having their supporters still in power positions, may be able to prevent an adequate criminal investigation and prosecution before national, and, sometimes, even before international or ‘internationalized’ courts, for example when surrender to the ICTY is requested and *de facto* refused, as it occurred with regard to Karadžić and Mladić.

This raises the issue of political accountability as overlapping with criminal responsibility, in particular with regard to such appearances as in Guantanamo and Abu Ghraib, of which only the criminal responsibility will be dealt with here⁵.

I. Development/Overview

- 4 Superior responsibility, ‘in addition to other grounds of criminal responsibility under this Statute’, raises not only general questions of whether the individual is a subject under international law, but, as such, has shaped the concept and notion of penal guilt as a requirement for criminal responsibility under international law⁶. It also demonstrates, how early in the history of international humanitarian law a responsibility ‘for crimes committed by others’ started to develop. This new and independent modality of individual responsibility surprises, because it partly neglects and reaches beyond the traditional concept of criminal liability and personal guilt, the well accepted and acknowledged, indispensable basis of criminal law and responsibility for centuries in all major legal systems of the world.

1. Changing paradigms: superiors, established and protected authorities gradually called to criminal responsibility also for violations committed by their subordinates

- 5 Before the individual was accepted as a subject of international law, a comprehensive responsibility of superiors for their subordinates was well known in national military law, but

¹ See Werle, *Principles of International Criminal Law* (2005) 375 *et seq.*

² See e.g. Ambos, in: Cassese *et al.* (eds.), *The Rome Statute of The International Criminal Court: A Commentary*, Vol. I (2002) 824 *et seq.*; Triffterer (2002) 15 *LeidenJIL* 179 *et seq.* and for the difference between articles 27 para. 1 and 28 Rome Statute *id.*, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901 *et seq.*

³ See, in particular, the controversial interpretation of customary law by the ICTY on the absence of a causal element within the doctrine of command responsibility, *Prosecutor v. Delalić et al.*, ‘Čelebići’, IT-96-21-T, Judgement, Trial Chamber, 16. Nov. 1998, pp. 396 *et seq.*, mn 1159 *et seq.* and Triffterer (2002) 15 *LeidenJIL* 179 *et seq.*

⁴ More to these aspects Triffterer, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 215 *et seq.* and *id.*, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901 *et seq.*

⁵ Note the difference between Bosnia-Herzegovina 2005 (Čelebići), Croatia and the torture in the prison of Abu Ghraib/Iraq 2004, for which U.S. Secretary of Defence Donald H. Rumsfeld took over full responsibility, but only in a political and not in a legal sense <<http://www.washingtonpost.com>>: Rumsfeld testifies before Senate Armed Services Committee (printout: 03.04.2006).

⁶ On this aspect e.g. Triffterer, *Dogmatische Untersuchungen zur Entwicklung des materiellen Völkerstrafrechts seit Nürnberg* (1966) 141 *et seq.*; Kelsen, *Peace through Law* (1944) 71 *et seq.*

also in other social institutions, called 'besondere Gewaltverhältnisse' (subordination dominated by hierarchical power positions), where subordinates received a high amount of protection, but enjoyed only a limited amount of personal freedom and were obliged to strict obedience, like in some boarding schools and, in particular, in prison⁷. For a long time, an unrestricted general responsibility of superiors was accepted, based on authority granted to such superiors and on their protection against any or at least against unjustified disobedience. The American Francis Lieber Code (1863), for instance, expressed such a model of granting authority over suspects by giving military commanders the right to shoot subordinates on the spot, when not stopping to commit crimes though expressly ordered to do so⁸.

From this starting point it was only a small step to hold commanders responsible for not effectively informing, educating, or, if necessary, ordering their subordinates in advance to obey the laws and customs of war, or for not stopping them at least to continue when the slightest sign for the commission of such crimes became discernable.

In order to contribute to the prevention of crimes by calling superiors to responsibility, it was indispensable to establish their duties by law. Accordingly, superiors should, in particular, 'ensure that members of armed forces under their control are aware of their obligations under the Conventions and this Protocol', article 87 para. 2, Add. Prot. I. At that time, an almost unlimited authority was combined with their duty to report to higher ranks in the military hierarchy

'if they knew, or had information which should have enabled them to conclude, in the circumstances at the time, that he (the subordinate) was committing or was going to commit such a breach and if they did not take all feasible measures within their power to prevent or repress the breach',

article 86 para. 2, Add. Prot. I. This duty was the consequence of the generally acknowledged experience, that grave breaches could 'result from a failure to act when under a (legal) duty to do so', article 86 para. 1 Add. Prot. I.

Mainly these aspects developed the general principle, that the commission of certain crimes 'by a subordinate does not absolve his superiors from penal or disciplinary responsibility, as the case may be', article 86 para. 2 Add. Prot. I. A long time before it was defined and acknowledged in 1977, this principle was the basis for the installation of a legal institution called Command Responsibility, though, at the beginning, it was not yet concentrating on and only partly established as a criminal responsibility⁹.

It was a rather parallel appearance in the general concept of criminal law, developed and accepted in major legal systems of the world and international humanitarian law, that everybody who sets a condition for the commission of a certain crime, causes the crime and should be held individually responsible, if the resulting crime appears because of this contribution, though, perhaps in combination with others, in particular for the part of the principal perpetrator, as 'his product'¹⁰. At the same time, the theory of participation in crimes became more and more sophisticated and developed to a system, in which everybody, who initiated, supported or otherwise contributed in the commission of a crime, could be held himself responsible for committing the crime¹¹. This is up till now independent of

⁷ Triffterer (1976) *EuGRZ* 363 *et seq.*

⁸ See IV Hague Convention 1907, Article I of the annexed rules of warfare. For an example on the national level see the 1863 Lieber Code where article 44 states 'A soldier, officer, or private, in the act of committing such violence, and disobeying a superior ordering him to abstain from it, may be lawfully killed on the spot by such superior' and article 71 states, '[w]hoever intentionally inflicts additional wounds on an enemy already wholly disabled, or kills such an enemy, or who orders or encourages soldiers to do so, shall suffer death, if duly convicted, ...' (brackets added).

⁹ *Supra* note 8.

¹⁰ See e.g. Triffterer (1986) 27 *ZfRV* 105 *et seq.*

¹¹ See, for instance, Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 543 *et seq.*; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 41 *et seq.*; Triffterer, *Die Österreichische Beteiligungslehre, eine Regelung zwischen Einheitstäter- und Teilnahmesystemen?* (1983).

whether his contribution was an act or an omission and of the responsibility of the principal offender or other accomplices¹².

2. Silent toleration and failures to influence and interfere – two differently structured appearances and approaches

- 8 This variety of cooperation to commit crimes demonstrates the need to clearly define by ‘strictly construed’ elements concerning the borderline between punishable and non punishable cooperation as well as between the principal perpetrator and participation in a specific crime as an accomplice. Such a demand is independent of the fact, whether cooperation in the commission is evaluated as an independent commission of the crime (*‘Einheitstäterschaft’*) or as a mere cooperation in the crime of other persons¹³.

Independent of this theoretical basis, the differentiation by merely what behaviour should be made punishable, was in particular difficult with regard to persons, who had the duty to prevent crimes because of their authority and power over subordinates and failed to prevent such crimes committed by their subordinates. Were they principal perpetrators by merely ‘letting it happen’, what they ought to have prevented or only when they directly supported crimes of subordinates?

A general, well accepted differentiation was made possible by separating and demarcating against each other two criminological appearances: First, superiors who tolerate the commission of crimes by their subordinates in a way that could be interpreted by their subordinates as a tacit consent to the commission. Such a behaviour is supporting crimes of subordinates not expressly, however by conclusive behaviour, which obviously demonstrates the tendency not to interfere. It is participation in the crime, for instance by ‘twinkling eyes’. This was the reason, why ‘toleration’ of crimes committed by subordinates was the first pillar to base command responsibility upon¹⁴, though with another scope and notion as expressed now in article 28.

To a second group belong those superiors who fail to inform, educate or control their subordinates about the law and, in particular, about legal and illegal warfare; they do not support crimes of their subordinates by an active behaviour. But by remaining passive they do not intervene and thus indirectly support what they should have prevented. A crime may well result not only from silent toleration which can correctly be understood as consensus or even psychological support. It may equally ‘result from a failure to act’, as expressed in article 86 para. 1 Add. Prot. I. There the words ‘when under a duty to do so’, do not question the causality of omissions. They rather limit criminal responsibility to those failures, which by violating a (legal) duty of the perpetrators to act in a specific situation let crimes come to the mind of subordinates and develop, in particular from mere planning or preparation to an attempt or a completed crime.

- 9 The main difference of the above grouping therefore is: Silent toleration is active behaviour for which everybody, including superiors, can be held responsible, even if he or she has no special legal duty to react in specific situations in order to prevent crimes. A failure to educate, guide and control, on the opposite, is an omission for which everybody (and, in particular, superiors) can only be held responsible when there is a pre-established legal duty to do precisely what was needed to prevent (further) harm and what by being omitted resulted in the commission of a crime.

¹² On the equivalence of acts and omissions see for instance the jurisdiction of the *ad hoc* Tribunals *Prosecutor v. Tadić*, IT-94-I-A, Judgement, Appeals Chamber, 15. Jul. 1999, pp. 104 *et seq.*, mn 228 and *Čelebići*, note 3, p. 160 mn 437; Badar and Karsten (2007) 7 *ICLRev* 163, 157 *et seq.* under chapter 3.3 Command Responsibility.

¹³ Triffterer, *Die Österreichische Beteiligungslehre, eine Regelung zwischen Einheitstäter- und Teilnahmesystemen?* (1983).

¹⁴ See for example Cassese, *International Criminal Law* (2003) 200 *et seq.* and Werle, *Principles of International Criminal Law* (2005) mn. 503 *et seq.*

3. Slowly towards comprehensive definitions, in particular articles 86 and 87 Additional Protocol I 1977 and 28 Rome Statute

Though articles 86 and 87 have already been briefly referred to when demonstrating under 10
1. above changing paradigms and the latest development before the Rome Statute, we have to keep in mind that there are earlier steps also important for shaping the concept and notion of command responsibility. They started already with article 8 of the 1864 Geneva Convention which demanded that '[t]he implementing of the present Convention shall be arranged by the Commanders-in-Chief of the belligerent armies following the instructions of their respective Governments and in accordance with the general principles set forth in this Convention'¹⁵. By assigning the arrangements for the implementation to 'Commanders-in-Chief', the Convention obliges this group of persons to ensure, though according to pre-established guidelines of their 'superior', that their subordinates know the (new) law and how to obey accordingly. The further elaboration of the codification of the *ius in bello*, culminated 1907 in the Hague Conventions. Of these, No. IV, requires in the annexed Rules of Warfare as the decisive criteria for the acknowledgement as 'armies, but also militia and volunteer corps' to be 'commanded by a person responsible for his subordinate'¹⁶. This rule implies that superiors could be held responsible for crimes of their subordinates. Responsible at that time indicated accountability according to national law and before its jurisdiction, thus covering disciplinary as well as criminal responsibility under national military law.

The most effective political impetus for the development of superior responsibility came shortly thereafter from the Investigating Committee installed by the International Carnegie Foundation for Peace 1913. The Committee was assigned the task, 'to inquire into the causes and conduct' of the Balkan Wars 1912/1913, and the atrocities committed during these wars. The Committee reported in detail and presented, not as an *obiter dictum*, but as one of its major findings, that it would have needed only one word of those in power, and all belligerent struggles as well as the atrocities committed along with them would have stopped immediately. This finding was confirmed by the Report of the Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties presented to the Preliminary Peace Conference, March 29, 1919¹⁷.

Partly as a result of these two well based and balanced statements, the Versailles Peace 11
Treaty after the First World War provided in articles 227 and 228 that the German Emperor should be held responsible for 'a supreme offence against international morality and the sanctity of treaties'. Though charged personally for his ordering to commit certain crime, the accusation also included responsibility for all other crimes committed by his subordinates. It, therefore, was a fallback to international criminal law that the Emperor could not be brought to trial because the Netherlands refused to extradite him. In addition, the (new) German government finally convinced the Allied not to prosecute about 800 German suspects, which Germany was obliged to extradite, but to accept for all these cases the competence of the Reichsgericht in Leipzig¹⁸. There, however, under the aspect of international criminal law and the interest of justice the cases were not handled to the credit of post-war German jurisdiction. Command responsibility, in whatever broad concept and notion, though in

¹⁵ Convention for the Amelioration of the Condition of the Wounded in Armies in the Field. Geneva, article 8, 22 August 1864.

¹⁶ The IV Hague Convention 1907, Article I of the annexed rules of warfare.

¹⁷ See Carnegie Endowment for International Peace, *Report of the International Commission to Inquire into the Causes and Conduct of the Balkan Wars* (1914) and see also the Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties, Report presented to the Preliminary Peace Conference, 29. Mar. 1919, reprinted in (1920) 14 *AJIL* 95 et seq.

¹⁸ Hankel, *Die Leipziger Prozesse, deutsche Kriegsverbrechen und ihre strafrechtliche Verfolgung nach dem Ersten Weltkrieg* (2003) and Wiggernhorn, *Verliererjustiz, die Leipziger Kriegsverbrecherprozesse nach dem Ersten Weltkrieg* (2005).

theory started to reach persons on the top of the hierarchy, was thus not yet put into practice after the First World War¹⁹.

- 12 The time between the two World Wars did not show any significant new development for command responsibility on the international level. Merely the 1929 Geneva Convention provided that: '[t]he Commanders-in-Chief of belligerent armies shall arrange the details for carrying out the preceding articles...' ²⁰. It thus continued the line of the above mentioned 1864 Convention by increasing the specification of the duties of commanders though not yet in a manner sufficiently 'strictly construed' in the sense of article 22 para. 2 to base criminal responsibility on. But parallel, though highly disputed in its concept and notion, indirect individual responsibility of superiors was slowly accepted and more and more extended by national penal systems, thus preparing the possibility to also hold superiors responsible for crimes of their subordinates under international criminal law²¹.
- 13 According to this background, not well balanced theoretical considerations nor political compromises for drafting regulations led to a break through after the Second World War. Decisive were criminological appearances during and after this war, which made it necessary to handle with more care the different modalities of individual criminal responsibility, to avoid impunity of those persons, who by their own abuse of power and through their subordinates were responsible for all 'core crimes', committed again and again all over the world without being sufficiently investigated and prosecuted. However, though proving the need to call superiors independent of the traditional scope of participation with an additional inherent new theoretical institution to criminal responsibility, no agreement could be achieved about how to 'strictly construe' such responsibility, in order to avoid criticism raised against cases like Yamashita and High Command²².

Consequently, a definition or even hints in one or the other direction on the basic structures of command responsibility are missing in the Nuremberg Statute as well as in the Nuremberg Principles 1948, in the Genocide Convention 1948 and in the four Geneva Convention 1949. Though all confirm individual criminal responsibility directly under international law, and partly expressly even acknowledge criminal responsibility of all persons independent of their different official positions²³, no special modality for commanders concerning crimes committed by their subordinates could be agreed upon.

Consequently the Special Rapporteur of the ILC on a Draft Code devoted considerable effort on summarizing the status quo in the national legislation and the jurisprudence at that time. He, in particular, pointed out, like in a puzzle or a mosaic with uneven pieces, what aspects and issues had to be taken into consideration for establishing a generally accepted definition of command responsibility. In this context he emphasized in detail the historical importance of the responsibility of superiors for omissions resulting in crimes committed by their subordinates till 1950, a clear theoretical structure and the political need for such a possibility, to hold superiors responsible under international law, dealing with available alternatives and drafting definitions. His proposals, though with regard to the elements mentioned similar to the elements contained in article 28, deviated mainly in so far as he did not separate between a failure to control and supervise subordinates and the failure to

¹⁹ See, in particular, Commission on the Responsibility of the Authors of the War and on Enforcement of Penalties, Report presented to the Preliminary Peace Conference, 29. Mar. 1919, reprinted in (1920) 14 AJIL 95, 117 and critical thereto the Memorandum of the U.S. Delegation, *ibid.* 127 (135 *et seq.*, 143 *et seq.*).

²⁰ Convention for the Amelioration of the Condition of the Wounded in Armies in the Field. Geneva, article 26.

²¹ *YbILC* 1950, Vol. II, Draft Code of Offences Against the Peace and Security of Mankind – Report by J. Spiropoulos, Special Rapporteur 268 *et seq.*, (A/CN.4/25), and Pilloud *et al.* (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Convention of 12 August 1949* (1987) and 1977 Report ILC; See also below II 1.

²² See for a compulsive survey on the different regulations and jurisprudence emphasizing more or less aspects to base command responsibility on, *YbILC* 1950, Vol. II, Draft Code of Offences Against the Peace and Security of Mankind – Report by J. Spiropoulos, Special Rapporteur 269 para. 97, (A/CN.4/25), and 1977 Report ILC.

²³ See Nuremberg Trial Proceedings, Charter of the International Military Tribunal, article 7.

interfere in an already ongoing process²⁴. However, even independent of this aspect, the ILC could not achieve a consensus on what elements in which definition should be the indispensable requirement to justify and apply responsibility of superiors for crimes of their subordinates. Consequently, the same lacuna characterizes not only the 1951 Draft Code but also the 1951 Draft Statute as well as the 1953/1954 Drafts²⁵.

It were those divergent opinions which led quite a few legal scholars like Hans Kelsen and Hans-Heinrich Jescheck to deal with this issue on a scientific basis, more in order to establish its theoretical basis than to decide in detail its requirements for a broadly accepted definition²⁶. Their qualified analysis led, for example, and in accordance with the statements of the 1919 War Crimes Commission, to the unavoidable conclusion that the Act-of-State-doctrine did no longer prevent responsibility of persons in official positions, acting on behalf of the State, at least in so far, as they committed grave violations of the 'laws and customs of war and the laws of humanity'²⁷ which were established as crimes under international law.

This general acknowledgement of a rather comprehensive limitation of the Act-of-State-doctrine was the breakthrough for establishing the criminal responsibility of military and civilian superiors failing to arrange the implementation and obedience to these laws, and, thus violating their already in 1864, 1907 and 1929 established duty to prevent by all means, in particular by information and supervision, that their subordinates violate such regulations by committing such crimes.

Both authors, like some others, opened the way for a more scientific and theoretically structured approach. This may well be the reason, why in the 1954 Draft Code and Draft Statute also not yet a relevant provision was included. In addition, unfortunately, the endeavours to codify international criminal law within the United Nations, came to a preliminary stop at the beginning of the Cold War; this delay was officially scheduled till there was an agreement on the definition of aggression in 1974²⁸.

However, before this aim was, at least partly, achieved the international community formally acknowledged in the 1968 Convention on non-statutory limitations of war crimes and crimes against humanity, the criminal responsibility of 'representatives of the State authority ... who, as principals or accomplices, participate in or who directly incite others to the commission of' war crimes and crimes against humanity. Besides these traditional modalities, a responsibility for 'representatives of the State authority was established who merely tolerate' the commission of war crimes and crimes against humanity, thereby accepting responsibility not only for conclusive behaviour (= acts) but also for omissions²⁹.

When finally a definition of aggression was agreed upon by consensus of the G.A. in 1974, the time appeared favourable to work again on establishing command responsibility as an inherent, well accepted legal modality of accountability, which should 'contribute to the prevention of such crimes', Preamble paragraph 5. It should extend individual criminal responsibility by holding those accountable, who failed to fulfil their duty to prevent

²⁴ *YbILC* 1950, Vol. II, Draft Code of Offences Against the Peace and Security of Mankind – Report by J. Spiropoulos, Special Rapporteur 268 *et seq.*, (A/CN.4/25).

²⁵ Report ILC, but the Rapporteur had – 1950 already at that time, devoted a broad section of his report to this new institution, *YbILC* 1950, Vol. II, Draft Code of Offences Against the Peace and Security of Mankind – Report by J. Spiropoulos, Special Rapporteur 268 *et seq.*, (A/CN.4/25).

²⁶ See e.g. Triffterer, in: Walter *et al.* (eds.), *Hans Kelsen und das Völkerrecht* (2004) 139 *et seq.*

²⁷ Peace treaty of Versailles, 28. Jun. 1919 <<http://www.lib.byu.edu/~rdh/wwi/versailles.htm>>.

²⁸ See UN Res. 29th Sess., Supp. No. 19, A/3314 (1974).

²⁹ See article II of the 1968 Convention on the Non-Applicability of Statutory Limitations to War Crimes and Crimes Against Humanity of 26. Nov. 1968:

'If any of the crimes mentioned in article I is committed, the provisions of this Convention shall apply to representatives of the State authority and private individuals who, as principals or accomplices, participate in or who directly incite others to the commission of any of those crimes, or who conspire to commit them, irrespective of the degree of completion, and to representatives of the State authority who tolerate their commission'. See also below III.

subordinates from committing war crimes and those crimes, which since Nuremberg are more and more punishable directly under international law³⁰.

- 16 This tendency was supported by the ICRC, which, always acting as an independent organization, was from its beginning strongly concerned to codify the *ius in bello*. It, therefore, started after 1974 again where it stopped or failed 1949, and afterwards all endeavours within the UN, with only the above under (b) mentioned small exception in 1968, which emphasized in the discussion the additional modality of responsibility for (silent) toleration. Thus, a practical implementation of superior responsibility, its permanent consideration and partly application of one and/or the other aspect of this new modality in quite a few international and national criminal proceedings after the Second World War, shaped the discussion.

All aspects together turned the issue favourable towards the creation of a sophisticated modality of responsibility for staying passive, letting an event occur or continue and, thus, causing and/or by not interfering at least objectively otherwise supporting crimes, committed by other persons, in this case their subordinates. The background in its complexity was demanding a comprehensive regulation in the interest of the rule of law, and, thus, favourable for drafting articles 86 and 87 Add. Prot. I.

- 17 This Article 86 para. 1 creates the basis for anchoring a general responsibility of everybody for breaches, 'which result from the failure to act when under a duty to do so'. It, thus, in addition presupposes causality by passive behaviour and a legal pre-established duty, not to stay passive in a certain situation, but to become active in order to prevent harm. Of course, paragraph 1 presupposes also that harm can be caused by active behaviour, though this alternative is not expressly mentioned.

This is the first express international, general acknowledgement of criminal responsibility for omissions, a modality of human behaviour, which, in particular after the Second World War, was generally discussed and more and more 'strictly construed', also on the national level and finally accepted in its present notion in almost all major legal systems of the world³¹. It is based on the realisation that harm to legally protected values may be caused by and thus 'result' equally from acts and omissions, the punishability of the latter however appearing justified and necessary only when the perpetrator by the omission violated a pre-established legal duty to react in a way which would have prevented the result: the omission, thus, by not preventing it, is one of the conditions for and thus causes the harm.

- 18 Paragraph 2 of article 86 Add. Prot. I specifies for a qualified group (superiors) in their relation to their subordinates, a particular failure to act. It clarifies that a commission of a crime by a subordinate 'does not absolve his superiors from penal and disciplinary responsibility, ... if they knew or had information which should have enabled them to conclude ... that he (the subordinate) was committing or was going to commit such a breach ...'. However this accountability should be triggered only, if the superiors 'did not take all feasible measures within their power to prevent or repress the breach'. Article 86 para. 2 Add. Prot. I thus establishes responsibility of superiors under certain conditions, for failures to prevent or to repress breaches of the Conventions and Add. Prot. I. In this paragraph 2 not the duty of superiors to interfere in order to prevent or repress is based, but merely the criminal responsibility as a consequence of the violation of an otherwise pre-established legal duty to do exactly what is necessary to hinder or suppress in this specific situation.

Therefore, it was necessary to define and clarify in article 87 Add. Prot. I the 'duty of commanders', defined in all paragraphs, partly as an enumerative list, partly as alternatives. While paragraph 1 obliges the Parties to 'require military commanders, ... to prevent and,

³⁰ This modality is not a *crimen sui generis* but extending expressly and in a way 'strictly construed' the modalities for participation amending those mentioned in article 25. See for details see Triffterer, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 901 *et seq.*

³¹ Kaufmann, *Die Dogmatik der Unterlassungsdelikte* (1988) 23 *et seq.* and the 6th International Congress on Penal Law, Conference proceedings, AIDP, Rome (1953).

where necessary, to suppress and to report ...', paragraph 2 clarifies that '[i]n order to prevent and suppress breaches', superiors shall 'ensure that members of the armed forces under their command are aware of their obligations under the Conventions and this Protocol'. This means, that they have to guarantee by all necessary measures such an awareness, in particular by information, education and also by supervision and control.

Paragraph 3 defines, in addition, obligations of a superior in cases where he 'is aware that subordinates or other persons under his control are going to commit or have committed a breach'. He then is obliged 'to initiate such steps as are necessary to prevent such violations of the Conventions or this Protocol, and, where appropriate, to initiate disciplinary or penal action against violators thereof'.

None of these regulations gives a clear indication how to interpret prevention, suppression and repression respectively the adjectives of this three subjective words. They describe a progressing situation, starting with proper control in order to avoid that anything like criminal activities comes to the mind of subordinates and ending with direct or indirect interferences in action, to avoid an attempt or the completion of an attempt³².

At the same time, there is no indication in articles 86 and 87 Add. Prot. I with regard to the issue, whether a non-interference described in articles 86 para. 2 and 87 para. 3 Add. Prot. I triggers superiors responsibility by itself or whether the failure to properly educate, control or supervise is merely one condition, but triggers criminal responsibility only in cases, where, in addition, the commander is aware of the results of his failure or he should and could have known them and nevertheless did not interfere in the necessary modality. The latest international regulation is contained in article 28, but it deviates, at least by the wording, from articles 7 para. 3 ICTY and 6 para. 3 ICTR Statute.

This difference surprises, because all three regulations take over, mainly verbally, formulations contained in articles 86 and 87 Add. Prot. I, though without giving any explanation in the preparatory work. With regard to article 28 Rome Statute this 'copying' of articles 86 and 87 Add. Prot. I is the most comprehensive, since two different behaviours are defined in detail: failing to properly control and failing to interfere.

The relationship between the two relevant regulations for the *ad hoc* Tribunals and article 28 Rome Statute needs to be clarified. At present, after the Rome Statute entered into force 1 July 2002, a double competence is still possible, since no time limit is provided in article 1 ICTY Statute. However, the Security Council 'endorsed the ICTY's strategy for completing investigations by the end of 2004, all trial activities at first instance by the end of 2008, and all of its work in 2010, by concentrating on the prosecution and trial of the most senior leaders suspected of being most responsible for crimes within the ICTY's jurisdiction and transferring cases involving those who may not bear this level of responsibility to competent national jurisdictions, as appropriate, as well as the strengthening of the capacity of such jurisdictions'³³.

Summarizing, articles 86 and 87 Add. Prot. I could be interpreted that only if a commander fails to make his 'subordinates or other persons under his control' sufficiently aware of their obligations so that, as a 'result' from this dereliction of duties, they 'are going to commit or have committed a breach of the Conventions or of this Protocol', the superior can be held responsible.

Consequently, the Parties 'shall require any commander who is aware' of such appearances, because he 'knew' or had reasons to know, to initiate the necessary steps 'to prevent such violations ... and, where appropriate, to initiate ... action against the violators'³⁴.

In practice these elements of command responsibility for a 'failure to act' are based on the laws and customs of war and have shaped since then all further definitions up to the Consolidated Draft, which was presented at the Rome Conference as a basis for the

³² See for details Triffterer, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213 *et seq.*

³³ See for more details S/RES/1503 (2003).

³⁴ Article 87 para. 2 Add. Prot. I.

discussion ‘with a view to finalizing and adopting a convention on the establishment of an International Criminal Court’³⁵. The Diplomatic Conference of Plenipotentiaries met five weeks in Rome, in June and July 1998³⁶. Its important, relevant result was to have combined ‘the failure to act’ (to control) in the sense of article 86 para. 1 Add. Prot. I and the several ‘duties of commanders’, as defined in article 87 Add. Prot. I, to serve as a ‘strictly construed’ definition of criminal responsibility, which clearly expresses the triggering basis upon and the framework within which prosecution of superior responsibility is admissible before the ICC³⁷.

- 22 Only the combination of a (first) failure to control, resulting in criminal activities of subordinates with a (second) failure of the superior, to take the necessary measures, averts strict liability for not preventing what occurs, but could have already been avoided by a correct fulfillment of the first obligation of commanders, namely, to take responsibility for their subordinates by, in particular, informing, educating, supervising and controlling them as much as necessary, in order to ensure that they act in conformity with the laws and customs of wars and the laws of humanity. It were the highly disputed precedents after the Second World War which raised the need, to avoid further criticism by lifting the threshold of responsibility in the interest of justice by establishing more and precisely detailed requirements in the interest of the rule of law. To meet the demands of article 22 in the sense of ‘strictly construed’ definitions, was not only necessary for the crimes as such, but also for all modalities listed in articles 25 para. 3 or 28, to hold superiors individually responsible for crimes under international law, committed by their subordinates.

Therefore, it is not surprising, that the structure of article 28 is far more complicated and interwoven than those of earlier comparable regulations like article 7 para 3 ICTY Statute, drafted five years before. These different formulations demonstrate also the difficulties of the major legal systems of the world, to define superior responsibility in accordance with their usual theoretical structures for definitions of crimes and in a way satisfying the needs of the principle *nullum crimen sine lege*³⁸.

- 23 This legal situation raises the question, whether article 28 defines with regard to superior responsibility in the same binding way as all other definitions of crimes and modalities of individual criminal responsibility in the Rome Statute, the minimum requirements of what is the existing law, or whether articles 7 para. 3 ICTY and 6 para. 3 ICTR-Statute, describe the laws and customs of war ‘beyond any doubt’, but differently.
- 24 Before I can deal with this question in more detail (below II. 3.), can a legal situation with separate, differently phrased regulations, be characterised as a case of ambiguity? Is the ambiguity rule applicable though the regulations to be compared are not only different from

³⁵ Final Act para. 1.

³⁶ Already in 1981 the Implementation of the Draft Convention of Apartheid provided for the responsibility of a ‘person in authority in a State, group or organization, if he knew or could have reasonably foresee the commission of such crime and remain a member thereof’. See E/CN.4/1426 (1981), articles 21 para. 5 and 20 paras. 10 and 11.

Command responsibility subsequently made it into the Draft Code of Crimes then discussed within the ILC. The 1988 ILC Report relies on the Add. Prot. I and extends its scope to (all) crimes against the peace and security of mankind (see 1988 ILC Report, article 10); The regulation was then included as article 12 in the 1991 ILC Draft Code and remained with minor changes as article 6 in the 1996 ILC Draft Code.

1996 the Preparatory Committee II in its article C already contained a provision that included all relevant parts of article 28. As alternatives though the separation of military and other superiors was not yet formally established. This regulation including its brackets remained unchanged up till the Consolidated Draft. A more detailed discussion and a decision only took place during the Rome Conference. See also 1996 Preparatory Committee I, paras. 202 and 203, Preparatory Committee Decisions Feb. 1997 article C, Zutphen Draft article 19 (C) and Consolidated Draft article 25.

³⁷ The Statutes of the ICTY and the ICTR have already combined these two aspects, but there the regulation does not apply to the standards of ‘strictly construed’.

³⁸ Triffterer, in: Prittwitz *et al.* (eds.), *Festschrift für Klaus Lüderssen* (2002) 437 *et seq.* See also the new German ‘Völkerstrafgesetzbuch’, 30.06.2002, which uses there different matters of fact to catch all alternatives contained in article 28.

each other and are not defined in one, but in two separate contexts, which, in addition, belong to different codes, though both deal with the same substantive law issue concerning crimes under international law committed in a certain modality? In case this principle is applicable, does not the notion of article 28 deserve priority, not only as *lex posterior*, but because its application requires proof of more elements and, thus, is more favourable to the suspect? Can the question of ambiguity be answered by interpreting article 7 para. 3 ICTY Statute in the sense, that the mere fact that crimes were committed by subordinates in a context where such persons are under the authority and influence of their superiors, implies a failure of the superior to control properly?

This conclusion does not have to be drawn expressly or precisely proven, but can be assumed by circumstantial evidence. It, therefore, can be denied by the defence by presenting relevant evidence. If the ambiguity rule implies also with regard to different regulations and even in cases, when those regulations are contained in different statutes, article 28 prevails; because it is more favourable for suspects, demanding two failures, a lack of control and a lack of interference, while the *ad hoc* Statutes, at least according to the wording, require only a failure to interfere.

II. Practical Importance

The fact that in the history of international humanitarian and criminal law so much 25 attention and energy concentrated rather early on command and superior responsibility is due to the observations that its practical importance for ensuring respect and obedience to humanitarian law and, thereby, its contribution to the prevention of crimes under international law, was obvious right from the beginning. It, therefore, does not surprise, that already in the fifteenth century a definition of command responsibility was issued which L. C. Green described as ‘almost foreshadowing’ Add. Prot. I 1977. The relevant Ordinance of Charles VII of Orleans provides that:

‘Each Captain or Lieutenant be held responsible for the abuses, ills and offences committed by members of his company and that as soon as he receives any complaint concerning any such misdeed or abuse, he bring the offender to justice ... If he fails to do so or covers up the misdeed or delays taking action, or if, because of his negligence or otherwise, the offender escapes and thus evades punishment, the Captain shall be deemed responsible for the offence as if he had committed it himself and be punished in the same way as the offender would have been’³⁹.

This definition contains mainly objective requirements but at least mentions also on the mental side negligence as one cause for letting the subordinates escape and, thus ‘supporting’ the perpetrator after the crime has been committed.

Ever since then, even though this definition does not mention expressly failures to control, supervise or to prevent, but only refers to ‘bring the offender to justice’, commanders, 26 because of their hierarchically established position appeared with regard to subordinates as the multiplying factor. Such an influence could be either in favor or against committing grave and other breaches of the laws and customs of war, depending on the visible attitude of the superior towards such violations. At the same time, their criminal responsibility appeared as a deterrent effect, not only with regard to their own future behaviour and to other superiors, but also for subordinates; because when realizing that their superiors are called to criminal responsibility, they could not expect or rely on going unpunished for their own commission of or contribution to such crimes. On the opposite, impunity of superiors may promote violations of humanitarian law by subordinates; because when such a lack of legal reactions on serious failures of superiors can be observed, subordinates may expect and count on equally not to be held responsible.

³⁹ Emphasis added; quoted from Green (1997) 1 *NavalWarCollegeRev* 26 *et seq.* with further references in footnote 2 there.

- 27 It was this diversity of *de facto* and mental dependency and the practically unlimited power and influence of superiors over ‘forces’, as experienced, in particular, during the already above mentioned Balkan Wars 1912/1913, which had demonstrated that silent toleration or failures of superiors to educate, prohibit, interfere or to stop criminal activities were decisive factors, resulting in or otherwise supporting violations of international humanitarian law. Nevertheless, their responsibility was, despite of the above mentioned excellent historical example, at the beginning not yet shaped in a way, required by principles like *nullum crimen, nulla poena sine lege*. But as criminal sanctions appeared more and more indispensable as *ultima ratio*, also for international criminal law, such basic pillars to install criminal responsibility were needed more precisely defined and, therefore stronger founded according to the rule of law.
- 28 The experience, that crimes under international law were mainly committed because of conclusive (= active) behaviour of superiors, for instance, ‘silent toleration’⁴⁰, or, at least, by omitting to supervise properly or to stop the subordinates, was ever since it has been articulated at the beginning of the last century in the context with the Peace Treaty of Versailles, discussed in connection with the protection of international peace and security of mankind. The debacle of international criminal justice after the First World War and in between the two World Wars, therefore, led to increased endeavours to call those to criminal responsibility, who beyond traditional pattern of participation merely by their position appeared equally responsible for unlawful harm. The experience had demonstrated that superiors by an indifferent attitude may cause crimes by simply letting them appear through the hands of others. Thus, by abusing their political, military and/or *de facto* power, they violated basic rules of the international community as a whole in a way, as if they had themselves committed such crimes. The need to call superiors to responsibility for such passive behaviour had already been promoted and accepted in the 15th century, as mentioned above. It, therefore, surprises that not more of this definition had been acknowledged before it partly appeared 1977 in Add. Prot. I. In particular, its concept and notion ‘as if he had committed it himself’, has since than nowhere else been expressed in any other definition, not even in a comparable way.

1. Nuremberg, Tokyo and ‘follow up proceedings’ (*Nachfolgeprozesse*)

- 29 The Nazi Regime demonstrated worldwide by the dimension of its crimes, committed to establish and maintain its domination in one way or the other, how much the abuse of political, military and administrative power of superiors up to top State levels could violate legally protected values and, in addition, endanger peace and the world legal order⁴¹. This experience made it rather easy to unite the world opinion for the prosecution of superiors as major war criminals in Nuremberg and Tokyo. Responsibility of commanders and other superiors, therefore, predominated in all criminal proceedings after the Second World War. Though command responsibility was not expressly mentioned in either of the Statutes, it was acknowledged that official positions of perpetrators should be irrelevant and that the fact, the crime had been committed by subordinates, should not free their superiors from criminal responsibility and liability to punishment. The Tribunals prosecuted however commanders on the basis of article 1 Hague Convention IV 1907, which (merely) provides that armed forces must ‘be commanded by a person responsible for his subordinates’⁴². There was no definition comparable to the one issued 1439 to which I just have referred to. Convictions in Nuremberg and Tokyo did not need such a reference. They were anyhow rather easy to achieve; because commanders there were mainly charged with active participation

⁴⁰ See also above I. 2.

⁴¹ See for instance Triffterer, 2nd edition, *Preliminary Remarks*, mn 20 *et seq.*

⁴² The IV Hague Convention 1907, note 8, Article I of the annexed rules of warfare and see also ICRC, *Commentary on the Add. Prot. I*, para 3531.

in one of the traditional modalities, quite often for ordering or otherwise ‘aiding and abetting’ the execution of violations of international humanitarian law by their subordinates⁴³.

Only a few cases dealt with responsibility for omissions; and of those none strictly 30 separated between failures of superiors to control their subordinates properly, resulting in the commission of one of the core crimes, and failures to take the necessary measures to prevent what was already on its way to violate legally protected values. But there were careful tendencies towards requiring such a failure as the starting point and also towards a mental element⁴⁴. This at that time still rather unspecified notion of command or superior responsibility demanded, for instance, a failure to take steps ‘as were within their power to prevent the commission of such crimes’, if the superior, in addition, ‘had knowledge that such crimes were being committed’ or, as an alternative to knowledge, the ‘fault in having failed to acquire knowledge’⁴⁵.

While the Nuremberg-Trial against civilians like Krupp did not call on superior respon- 31 sibility, the IMTFE addressed military and civilian superiors⁴⁶. Subsequent trials conducted by the ‘Besatzungsgerichte’ in Germany and by the US Military Commission of the Far East, though mainly concerned about the responsibility of military commanders, confirmed this tendency to differentiate between military and civilian superiors.

In addition, they emphasized, almost equally for both, two slightly different basic pillars: First, a failure to control subordinates properly. This could be required, because it was generally accepted that those commanders were responsible under international and disciplinary military law and had the duty to control their ‘forces’ properly. But the final step towards the present notion of superior responsibility was not yet done⁴⁷. The failure of a commander to control properly was not established on a subjective, a mental, but on an objective basis, proven by ‘the extensive and widespread atrocities specified’⁴⁸. The Tribunal took, for instance, as *prima facie* evidence, that, by the mere appearance of such crimes, frequently in different areas and widespread, it was proven that the commander must have omitted to fulfill his duties. Thus, it was assumed that such an omission had, most probably, caused the crimes of the subordinates. For the defence, denying such a causal connection, the burden of proof thus was shifted to the accused⁴⁹.

There was however, already at that time, a slowly but more precisely developing second 32 element, concerning the *mens rea*. It established responsibility for not reacting properly though there was information to conclude that something should happen to avoid or to prevent the commission of crimes by subordinates. It was called ‘negligent’ behaviour and as such had to be confirmed by the evidence presented at trial⁵⁰. Already this argumentation

⁴³ On General Tomoyuki Yamashita, see Green (1997) 1 *Naval War College Rev.* 26 *et seq.*, Report by J. Spiropoulos, Special Rapporteur with Reference to Trial of War Criminals IX mn 71 *et seq.* and 1950 *YbILC* Vol. II, see also Yamashita, UNWCC, XXI *Law Reports of Trials of War Criminals*, Part I (viii), p. 12 (1948).

⁴⁴ Yamashita, UNWCC, XXI *Law Reports of Trials of War Criminals* (1948) Part I, viii 12.

⁴⁵ Quoted from *YbILC* 1950, Vol. II, Draft Code of Offences Against the Peace and Security of Mankind – Report by J. Spiropoulos, Special Rapporteur mn 98., (A/CN.4/25).

⁴⁶ Fenrick in the First Edition of this Commentary (1999), article 28, mn 3. See also Röling and Ruter, *The Tokyo Judgment* (1977) 446 *et seq.*; *The Government Commissioner of the General Tribunal for the French Zone of Occupation in Germany v. Directions of the Roehling Enterprises*, XIV *Law Reports of Trials of War Criminals* (1949) 1116.

⁴⁷ Yamashita would have needed further reasoning to avoid the criticism of vicarious criminal responsibility, see for further information Herde, *Command Responsibility* (2001) 325 *et seq.* and Levine (2005) *Global Policy Forum* 3 *et seq.*

⁴⁸ Yamashita, UNWCC, XXI *Law Reports of Trials of War Criminals* (1948), Part I, viii (1948) 43.

⁴⁹ Trial of S.S. Brigadeführer Kurt Meyer (The Abbaye Ardenne Case), UNWCC, XXII *Law Reports of Trials of War Criminals*, Part IV, see under headline 9. Summing up of the Judge advocate, p. 108 (1948).

⁵⁰ In this regard the judge advocate in the Belsen Trial, pointed out that it did not matter ‘whether he [Kramer] acted wilfully or merely with culpable neglect: the question was whether the Prosecution had proved that Kramer did not carry out his duties as far as he was able to do so and that he had caused at any rate physical suffering ...’ See Trial of Josef Kramer and 44 others (The Belsen trial), UNWCC, X *Law Reports of Trials of War Criminals*, Vol. II (1947) Part XI, see under headline K. The summing up of the Judge advocate, p. 120.

shows that responsibility exclusively based on ‘strict liability’ was rejected⁵¹. This requirement, through which the Tribunal refused ‘strict liability’, demands an element of personal guilt on the side of the commander. He could only be held responsible if he knew or should have known about the commission of crimes by his subordinates and, nevertheless, did not interfere with the criminal appearances of a certain behaviour of his subordinates which was on the way to be realized or already producing criminal harm⁵².

- 33 It is in this context, up and on a few additional arguments were presented in order to more and more shape superior responsibility as a separate and independent modality of individual criminal responsibility: in the case of Yamashita, for instance, the perpetrator had neither committed nor directed acts that were subject of the judgment. The US Supreme Court based its decision on the sentence: ‘[t]he gist of the charge was that he had committed an unlawful breach of his duty as an army commander to control the operations of the members of his command by “permitting them to commit” the extensive and widespread atrocities specified’⁵³. Describing the relevant behaviour as ‘permitting’, the Supreme Court presupposes a causal link between the passivity of Yamashita and the crimes committed by his subordinates, though, this conclusion was not expressly mentioned anywhere. However, such an interpretation may well be the reason, why the defence argued that Yamashita did not commit a specific violation of a particular duty nor any specific act or omission which could be interpreted as ‘permitting’ the crimes of the troops⁵⁴. The defence, thus, denied any conclusive and express behaviour and thereby not only a causal link, but also any mental attitude of Yamashita with regard to the crimes committed by his subordinates.
- 34 The mental side was, however, emphasized by the prosecution, who blamed Yamashita ‘that he did not make an adequate effort to find out. It was his duty to know what was being done by his troops under his orders’⁵⁵. It was this substitution of knowledge or awareness by the failure to access or collect information to conclude that crimes were committed, which according to the prosecution should be sufficient for personal guilt. But again, the US Supreme Court refers to a causal connection when it argues ‘for his failure to take such measures when violations result’⁵⁶ and thus using once more an objective standard.
- 35 Also in the *Abbaye Ardenne Case* (= Kurt Meyer) the shifting of the burden of proof was confirmed. The prosecution had already charged the evidence that ‘the accused ordered the commission of war crimes, or verbally or tacitly acquiesced in its commission, or knowingly failed to prevent its commission’⁵⁷. In addition, the court emphasized the intentional failure to control properly. It mentions ‘willfully failed in his duty’ and thus practically gives a hint with regard to the first alternative of article 28 Rome Statute, which implies an intentional failure to control; because according to article 30 non-intentional behaviour is only sufficient when mentioned expressly, as later on in article 28 in the context with the failure to take the necessary measures by the wording ‘knew or should have known’⁵⁸.
- 36 The ‘Hostages Case’ equally refers to such an alternative by requiring that the commander ‘knew or ought to have known about’ the criminal behaviour of his subordinates. The Tribunal further emphasized that commanders must in such a situation ‘be held responsible for the acts of his subordinate—commanders in carrying out his orders’⁵⁹.

⁵¹ See for instance Badar (2005) 5 *CLRev* 203, 213 *et seq.* and Clark (2001) 12 *CLRev* 291, 301 *et seq.* on the issue of strict liability compared with *dolus eventualis*.

⁵² See for instance Clark (2001) 12 *CLRev* 205 *et seq.*

⁵³ *Yamashita*, UNWCC, XXI Law Reports of Trials of War Criminals (1948) Part IV, v 43.

⁵⁴ *Yamashita*, UNWCC, XXI Law Reports of Trials of War Criminals (1948) Part III, under the headline 12. The Verdict and Sentence 34 *et seq.*

⁵⁵ *Yamashita*, UNWCC, XXI Law Reports of Trials of War Criminals (1948) Part III, under the headline: 11. The closing address for the Prosecution 30.

⁵⁶ *Yamashita*, UNWCC, XXI Law Reports of Trials of War Criminals (1948) Part IV 43 and 86 *et seq.*

⁵⁷ *The Abbaye Ardenne Case*, note 49.

⁵⁸ *The Abbaye Ardenne Case*, note 49.

⁵⁹ Trial of Wilhelm List *et al.* (Hostages Trial) UNWCC, VII Law Reports of Trials of War Criminals, Part VI, under the headline 2. The extent of the Responsibility of commanding Generals (1949) 89.

The German High Command Tribunal refuses also expressly strict liability by finding that criminal responsibility can ‘not automatically attach to him for all acts of his subordinates. There must be an unlawful act on his part or a failure to supervise his subordinates constituting criminal negligence on his part’. The Tribunal, thus, diminishes the threshold of intent and knowledge, by demanding merely that the mental side must be ‘amounting to a wanton, immoral disregard of the action of his subordinates amounting to acquiescence’⁶⁰.

At the Trial of Takashi Sakai, the Tribunal thought ‘it was inconceivable that he [the commander] should not have been aware of the acts of atrocity committed by his subordinates ...’⁶¹. This argument, however, is not convincing. It comes close to charging the accused with ‘strict liability’; because it assumes the mental element without proving it. What is conceivable for the judges may nevertheless not have come to the mind of the accused. The Court could and should have argued, for instance, that it has not been convinced by the argument of the defence that the superior has not been aware of what the subordinates committed; because such a neglecting of obvious evidence appears inconceivable and, therefore, the Court believes, that the accused has in fact been aware⁶². In the later trial of Kurt Student this argumentation was expressed by the statement that ‘the repeated occurrence of offences by troops under one command [is] ... *prima facie* evidence of responsibility of the commander for those offences’. But this wording still does not point out clearly enough the differentiation between what everybody would and should have known and why the Court does believe that the defendant has had the same awareness as everybody would have had in the same situation, even though the perpetrator denies any such awareness⁶³.

Looking at this small survey on post war decisions presented here, the diversity in describing elements required for an inherent responsibility of commanders surprises⁶⁴. In addition, though many aspects expressed in the regulation of 1439 – except ‘as if he had committed it himself’ – show up in the later discussion, no element of command responsibility was finally sufficiently clear formulated and, consequently, no ‘strictly construed’ definitions became available. It obviously needed more theoretical work and practical experience to come to a satisfying agreement.

2. Continuing to focus primarily on commanders increased the acknowledgement of an inherent superior responsibility, but did not crystallise elements ‘strictly construed’

The relevant comprehensive jurisprudence in the context with the crimes committed during the Second World War reminds us on a puzzle with tiny little mosaic pieces: when you see them isolated, you know they ought to be filled into ‘the picture’ of requirements for superior responsibility, though together with others not yet known. It, therefore, is not so easy to deposit them in the right place; because they are not only shaped very individually, but are also of different size, colour and importance for a ‘strictly construed’ definition of an independent modality for individual criminal responsibility of superiors under international law, which characterizes all its specificities in comparison with the traditional modes of participation.

The relevant but rather small development on the national level after the ‘Nuremberg-era’ did not contribute much to solve the task, to define and structure the minimum requirements for command responsibility as an additional mode of criminal liability beyond traditional

⁶⁰ YbILC 1950, Vol. II, Draft Code of Offences Against the Peace and Security of Mankind – Report by J. Spiropoulos, Special Rapporteur mn 97., (A/CN.4/25) and Trial of Wilhelm von Leeb *et al.* (The German High Command Trial), UNWCC, XII Law Reports of Trials of War Criminals (1948) 76 *et seq.*

⁶¹ Trial of Takashi Sakai (Nanking), UNWCC, Law Reports of Trials of War Criminals, under the headline 4. The accused’s guilt as to War Crimes and Crimes against Humanity (1948) 7.

⁶² Triffterer, *Österreichisches Strafrecht Allgemeiner Teil* (1994) 94 *et seq.*

⁶³ Yamashita, UNWCC, XXI Law Reports of Trials of War Criminals (1948) Part VI, v 85 (brackets added).

⁶⁴ See also Weigend (2004) 116 ZStW 999, 1001.

boundaries. The main common approach was to also or even mainly address commanders when crimes were committed by their ‘forces’. Therefore it was not surprising that, whenever spectacular war crimes or crimes against humanity were committed after Nuremberg, the public opinion demanded individual criminal responsibility of those commanders, who were ‘in charge’ of the persons, suspected for committing such crimes and, therefore, had to have the responsibility for their behaviour.

But they were primarily accused of direct participation in the execution of such crimes, together with ordering or at least ‘permitting the commission’ in the sense of ‘tolerating them’ by not fulfilling their duty to supervise and guarantee that their subordinates obey to the law. Thus all these alternatives were subsumed under one of the traditional modalities of supporting crimes and therefore, required intentional acts or omissions.

- 40 This rather neutral attitude towards a missing definition became, for instance, obvious in the context with the massacre in My Lai, Vietnam, 1968. The commanding Lieutenant was charged with killing the victims as principal perpetrator. He claimed as a defence to have acted on superior orders⁶⁵. His superior also was charged with a traditional mode, namely to have ordered the massacre. He argued, to have ‘only subsequently learned of the outrage’ but confessed that he ‘decided to hush it up instead of taking steps to report its perpetration or punish those responsible’⁶⁶.

On this occasion the presiding judge gave guidelines to the jury, emphasizing that even after ‘issuing an order a commander must remain alert and make timely adjustments as required by a changing situation’. The judge demanded further ‘actual knowledge plus a wrongful failure to act’, and continues, ‘[t]hus mere presence at [the] scene will not suffice. That is, the commander–subordinate relationship alone will not allow an inference of knowledge’⁶⁷.

Green points out in this context: ‘It might even be felt that lack of knowledge in such circumstances amounts to criminal indifference equivalent to a failure to exercise proper command’. In general, the superior ‘has actual knowledge, or should have knowledge, through reports received by him or through other means’.

- 41 The four elements Green mentions from the information of the presiding judge to the jury are an attempt to structure the charge, however by giving more consideration to the facts than to the legal approaches. He requires as the first element, ‘[t]hat [the] deaths resulted from the omission of the accused in failing to exercise control’, but ‘after having gained knowledge that his subordinate were killing noncombatants’. In addition, ‘this omission must constitute culpable negligence and an unknown number of victims must have been killed by subordinates under his control’⁶⁸.

Green further reports in the context with the My Lai massacre of a Major General who has been held responsible, though he ‘may not have deliberately allowed an inadequate investigation to occur, but he let it happen, and he had ample resources to prevent it from happening’⁶⁹. Green refers in this context also to the demand that ‘the military commander who acts to prevent future war crimes ... is criminally liable only if he did not act promptly enough when he learned of subordinates’ crimes’⁷⁰.

- 42 The case of Eichmann is sometimes reported in this context. But Eichmann was a superior giving orders to organize the transportation of Jews to the concentration camps and thus was one of the principles. He claimed not to have known what happened there to the detainees but the circumstantial evidence obviously appeared to be beyond reasonable doubt sufficient to sentence him⁷¹.

⁶⁵ Green (1997) 1 *NavalWarColleg Rev* 26 *et seq.* with further references in footnote 44.

⁶⁶ *Id.*, with further references in footnote 46.

⁶⁷ *Id.*, with further references in footnote 45.

⁶⁸ For all these quotations see Green (1995) 5 *TransnatL&ContempProb* 320, 354 with other references in footnotes 110 *et seq.*

⁶⁹ *Ibid.* 355 with further references in fn. 114.

⁷⁰ *Ibid.* 356 with further references in fn. 116.

⁷¹ *Ibid.* 356 with further references in footnotes 119 and 120.

The Kafr Qassem ‘incident’ also is an example for traditional responsibility of commanders, but not for a new independent modality. The Court states, for instance, that ‘[t]here is no doubt that the death of all victims who fell at Kafr Qassem was the probable result of M’s order, even though as regards some of them, and perhaps most of them, there was no intention of murder in the sense of [the Criminal Code]. For these reasons we must uphold the conviction for murder’⁷². 43

Besides emphasizing the recklessness of the order, the Kahan Report on the massacre in the refugee camps Sabra and Shatila in Lebanon points out ‘that the Israeli military authorities were aware of the killings that were taking place, but took no step to order the Israeli troops to stop the massacre, nor was any action taken by the Minister of Defence to this end’. The requirement of these two elements comes closer to the regulations of an inherent responsibility for commanders. This assessment is confirmed by the further statement: Finally, ‘no attempt was made to seek out or punish any of those responsible for what happened’⁷³. 44

Though most of the reported regulations, statements and decisions refer to one or more singular aspects which later have been defined in articles 86 and 87 Add. Prot. I 1977, (and in article 28 Rome Statute) none of them offers not even an approximately comprehensive scope and notion of a consistent definition for command responsibility. However, this small outline (under 2.) confirms in a similar manner as those presented before (under 1. and I. 3.), how strong the theoretical and the practical development, in particular after the Second World War, concentrated to hold superiors more and more responsible, in particular for ordering, committing or participating in the commission of one of the classical Nuremberg Crimes. But on these occasions it quite often became equally obvious, that the cases for the indictments did not catch the complete spectrum of responsibility of superiors. The investigators obviously could get hold of situations, in which superiors merely silently tolerate or ‘letting such crimes just happen’ through their subordinates. Command responsibility as an independent, additional responsibility therefore becomes more and more important, in particular, when none of the traditional modalities of participation could be proven by sufficient evidence.

Starting to develop its scope and notion out of this case to case experience, Add. Prot. I finally represents the main results of this development. Articles 86 and 87 define an accepted number of elements in order to have them ‘strictly construed’. They contain a political compromise which did not clearly differentiate command responsibility from traditional modalities of participation, in which superiors are involved together with their subordinates. This task was therefore left, with all due respect to the value of Add. Prot. I, to future developments by international Tribunals and their jurisprudence.

3. Command responsibility, dominating the international and the transitional justice regimes up to the top of hierarchically based authorities, requiring more legal guaranties

Keeping this background in mind, it does not surprise, that since 1977, more than fifteen years not much has been changed or moved in one or the other direction: There were actually no new cases brought before the judiciary to promote solutions for the open questions. It therefore was practically the result of a delayed development, when the Statutes for the ICTY and the ICTR, adopted under time pressure in 1993 and 1994, included some, though not all, of the formulations contained in articles 86 and 87 of Add. Prot. I, as a definition of an additional responsibility for superiors. Concept and notion appeared broadly accepted and quickly available, because provisions were needed, according to which higher ranking superiors could be held responsible even beyond the limits of traditional ordering or 45

⁷² Quoted according to *ibid.* 360 with further references in fn. 130.

⁷³ *Ibid.* 363 *et seq.* with further references in fn. 137.

other participation, and which by its acceptance through the Security Council received an additional worldwide approval.

The situation on the territory of Former Yugoslavia had demonstrated since 1991, what everybody knew since the Balkan Wars 1912/13 and the World Wars, namely that commanders as well as other superiors play the most important role for ongoing atrocities and for stopping them immediately. They, therefore, should be targeted with regard to end their impunity and thus to contribute to the prevention of crimes committed by their subordinates.

- 46 The relevant provisions in articles 7 para. 3 and 6 para. 3 ICTY and ICTR Statutes try to achieve this aim, together with paragraphs 1 and 2, defining all traditional modalities. They were at that time the only binding international definitions applicable in a ‘direct enforcement model’.

Even after article 28 Rome Statute had defined in 1998 a more comprehensive regulation for all superiors who could by their political, military, legal, administrative and de facto power contribute in various ways to one of the core crimes, those new regulations were not yet available, because the Rome Statute came into force only on 1. July 2002 and even then it took more than 3 years before the first cases, from which till now only one is in the trial phase, were pending at the ICC. Therefore the ad hoc Statutes and the jurisprudence of the Tribunals dominated the situation for more than one decade.

In addition, the Tribunals had clearly confirmed again and demonstrated the practical importance of an institution like command responsibility for those persons, not on the spot but pulling the strings from behind and thus taking responsibility for what was beyond the traditional modalities of participation. I recall only the indictments against Milosević, *Mladić* and *Karadžić* as well as the relevant final jurisprudence of the ICTY and, after the first case of Akayesu was pending, also before the ICTR. These decisions are listed above together with the literature and other jurisprudence.

- 47 But it was not only the shortness of the formulations in these Statutes which make them preferable in comparison with article 28 Rome Statute, which is much more extensive. States in transition need worldwide accepted regulations and jurisprudence when looking for an international legal basis upon which to create Special Courts or Commissions to deal with past atrocities (post-conflict justice). They, therefore, rather prefer and copy articles 7 or 6 of the *ad hoc* Statutes instead of article 28 Rome Statute.

This preference was further backed by the fact, that the decisions of the Security Council to accept these regulations represented the legal opinion of all members of the UN, while the Rome Statute is up till now only in force for 105 States.

- 48 It is self evidence, that relevant decisions of the *ad hoc* Tribunals will play an important role for the cases pending and coming up to the ICC. According to article 21 para. 2 Rome Statute the previous decisions of the Court and even more those of other courts or the Tribunals are not binding. But they will play an important role for the interpretation and application of the Rome Statute. It, therefore, is necessary, shortly to deal with the scope and notion of the relevant provisions in the Statutes of the *ad hoc* Tribunals that cover command responsibility.

- 49 When for the first time in history two (‘really’) international *ad hoc* Tribunals were established to prosecute genocide, war crimes and crimes against humanity, it became quite obvious that the Security Council, when referring to the laws and customs of war, used, partly verbally, the concept and notion of articles 86 and 87 Add. Prot. I to define criminal responsibility of superiors in articles 7 para. 3 ICTY and 6 para. 3 ICTR Statute⁷⁴. The Secretary-General in his Report of 23 May 1993 to the Security Council expresses the opinion, that ‘the application of the principle *nullum crimen sine lege* requires that the international Tribunal should apply rules of international humanitarian law, which are beyond any doubt part of customary law’⁷⁵.

⁷⁴ For further information see Res. 808 (1993) and Res. 955 (1994) of the SC.

⁷⁵ Rep. of the Secretary General pursuant to para. 2 of SC Res. 808 (1993), para. 34.

He further emphasizes that ‘virtually all of the written comments received ... draw upon the precedents following the Second World War’, and confirm ‘the irrelevance of official capacities’⁷⁶. Therefore, not only the ‘unlawful order to commit a crime’ should trigger superior responsibility, but also a ‘failure to prevent a crime or to deter the unlawful behaviour of the subordinates. This imputed responsibility or criminal negligence is engaged if the person in superior authority knew or had reason to know that his subordinates were about to commit or had committed crimes and yet failed to take the necessary and reasonable steps to prevent or repress the commission of such crimes or to punish those who had committed them’⁷⁷.

According to the interpretation suggested above (under I. 3.) two failures are listed in the just mentioned quotations, namely ‘to prevent a crime or to deter ...’ on the one side, and ‘failure to take ... steps to prevent or repress’ on the other side. These two omissions should be separated, at least in theory⁷⁸ though they may be interwoven in praxis. This dependency is needed to establish personal guilt, the indispensable element for all modes of criminal responsibility. Because only when a ‘failure to prevent a crime or to deter the unlawful behaviour’ results in an action, where ‘subordinates were about to commit or had committed crimes’, liability can be triggered. It is further based on the fact that the superior, though he knew or had reasons to know about it, ‘yet failed to take the necessary and reasonable steps to prevent or repress the commission’, which he had not prevented and thus caused, for instance by not ensuring that his subordinates were sufficiently informed and motivated to obey the law. This passive behaviour of the superior appears as a whole to be of sufficient gravity to trigger his responsibility for the crime committed by the subordinates⁷⁹.

However, it has to be admitted that article 7 para. 3 ICTY Statute, as well as 6 para. 3 ICTR Statute, do not express this underlying structure by requiring a link between the failure to exercise control properly and the crimes of the subordinates. Both regulations, therefore, may be interpreted, at first sight, in a way, that the failure to take the necessary and reasonable measures ... or to punish’, may by itself trigger superior responsibility even if the superior has not caused these criminal actions of his subordinates.

To investigate whether such an interpretation is admissible and acceptable under the aspect, that the Secretary-General intended to define ‘laws which are beyond any doubt part of customary law’, is the purpose of the following considerations. They therefore have to deal, for instance, with the issue, whether article 28 Rome Statute also defines what is accepted ‘beyond any doubt’, even though its requirements establish a much higher threshold for superior responsibility which has to prevail. This priority is justified because article 28 is more favourable to the accused than article 7 para. 3 ICTY Statute, at least when both regulations express what is acknowledged in international customary law and only defined in Add. Prot. I as well in the *ad hoc* Statutes and the Rome Statute.

For answering this question and with regard to the general notion of command responsibility in its historical context it has to be kept in mind that the competence of the ICTY and of the ICTR is created by the Security Council. But the law ‘to prosecute persons responsible for serious violations of international humanitarian law, ... in accordance with the provisions of the present Statute’, article 1, is statutory and customary international law, as far as such regulations are generally accepted and acknowledged by the international community as a whole⁸⁰, as referred to above. It is not created by the Security Council because this organ is not the legislative body of the UN. The Security Council merely accepted what has been proposed by the Secretary-General as the already existing law and accepted his formulation.

⁷⁶ *Ibid.* para. 55.

⁷⁷ *Ibid.*

⁷⁸ Triffterer, in: Prittwitz *et al.* (eds.), *Festschrift für Klaus Lüderssen* (2002) 437, 448 *et seq.*

⁷⁹ *Id.*, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 912 *et seq.* and *id.*, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 228 *et seq.*

⁸⁰ Rep. of the Secretary General pursuant to para. 2 of SC Res. 808 (1993), para. 32.

Created has the Security Council only the *ad hoc* Tribunals and their competence with those regulations to guarantee the getting into operation and the functioning of the Tribunals.

- 53 While article 2 ICTY Statute establishes the right and duty of the Tribunal ‘to prosecute persons committing or ordering to be committed grave breaches’, article 3 defines liability for all persons, violating the laws or customs of war. Genocide, article 4, mentions expressly for these crimes besides committing, conspiracy, complicity as well as direct and public incitement, while article 5 (as 3) does not refer to any mode of participation for crimes against humanity. All these definitions describe either the direct commission or presuppose personal activities, which have at least material contact with or some psychological influence on the commission of the crime, a context, which characterizes participation and complicity in most of the legal systems of the world.

- 54 The enumeration of the crimes in articles 2 to 5 ICTY Statutes puts the main emphasize on describing material elements. A general statement concerning the mental element is missing. This justifies according to general principles of law recognized by all major legal systems the conclusion that, as far as nothing else is otherwise provided in the Statute, these crimes and all their appearances expressly mentioned in the Statutes have to be committed intentionally. Such an interpretation is confirmed by some definitions, using expressly words like ‘wilful’ or ‘wanton’, which exclude negligent behaviour, or tacitly by formulations like ‘compelling’ or ‘plunder’.

With regard to genocide the requirement of an intentional act becomes evident by the additionally required special mental element, namely the ‘intent to destroy in whole or in part, a national, ethnical, racial or religious group, as such’. Such an intent presupposes that the act as such needs to be committed intentionally; because who kills negligently, cannot intent to destroy a protected group just by his negligent behaviour. Negligent behaviour, therefore, is in principle excluded as basis for international criminal responsibility under these Statutes, equally for committing and for participation, unless ‘otherwise provided’. This principle is clearly expressed also in article 30 Rome Statute.

- 55 With regard to omissions, the situation is similar, though in the outcome different. Omissions are not mentioned either expressly in articles 2–5 ICTY Statute. But the consequences described there, like ‘causing great suffering or serious injury to body or health’, respectively, ‘seriously bodily or mental harm’ can be equally – without difference to the victims – achieved by an act or by an omission; for instance, by denying access to food or information about further cruel treatment by the guards or an execution without any proceeding according to the rule of law.

- 56 The requirement of a legal duty for holding somebody responsible for a failure to act, is acknowledged expressly already in article 86 para. 1 Add. Prot. I. Such an element serves the purpose to establish and to guarantee equality of crimes committed by active or passive behaviour. They have to be comparable not only with regard to the consequences they may trigger. But since an active violation of the law needs a decision to step out of passivity, while an omission is the continuance of an already existing status quo, not all passivity is comparable with an aimed action. To compensate this deficit, a violation of a pre-established legal duty is required, to equalize an omission with active behaviour.

- 57 Article 7 para. 1 ICTY Statute describes, partly repeating or including modalities already mentioned in articles 2–5, all relevant appearances of committing crimes or participating in crimes as accomplices. For all of them the above statements with regard to intent and omission are applicable, as far as, for instance, like with regard to ordering or planning, a commission by omission does not appear per se impossible, because the definition describes an *actus reus* and thus, exclude omissions.

- 58 Article 7 para. 2 ICTY Statute only clarifies, that ‘the official position of any accused person ... shall not relieve such a person of criminal responsibility ...’. This means, all modalities listed in the definitions of the crimes or in article 7 para. 1, are equally applicable on persons with any ‘official position’, thus including superiors as well on the military as on the administrative level.

Article 7 para. 3 ICTY Statute presupposes and is based on these principles, which provide responsibility for different modalities, when committed intentionally and individually, whether by an act or an omission and independent of the official position. None of these regulations, however, is recalled by article 7 para. 3. It, on the opposite, deviates partly from these principles and establishes an additional (new) criminal responsibility for superiors⁸¹, though under certain conditions, which deviate from what is the basis for a general criminal responsibility otherwise provided with regard to all perpetrators in these Statutes. For instance, article 7 para. 1 establishes that ‘a person who planned, instigated, ordered, committed or otherwise aided and abetted in the planning, preparation or execution of a crime referred to in articles 2 to 5 of the present Statute, shall be individually responsible for the crime’. Individual criminal responsibility means to be personally responsible for his own behaviour and the caused harm. It does not mean responsibility for behaviour of others, unless someone supports the principle perpetrator through, for instance, ‘otherwise aiding or abetting’ in the commission of the crime⁸².

According to these basic rules, the mere fact that any of the crimes referred to in articles 2–5 of the present Statute was committed by a subordinate, does, in principle, ‘relieve his superior of criminal responsibility’. This is true, however, only as long as he does not himself fulfil the requirements of article 7 para. 1 by participating in one of the modalities provided for in this regulation or in articles 2–5 ICTY Statute.

In addition, in its second half article 7 para. 3 ICTY Statute expresses a further exception: Responsibility of a superior for crimes of other persons, his subordinates, if the superior ‘knew or had reason to know’ about their criminal activities and, nevertheless, ‘failed to take the necessary and reasonable measures’ to effectively interfere. Article 7 para. 3, thereby, establishes an additional individual criminal responsibility beyond the traditional modalities mentioned in articles 7 para. 1 or 2–5 ICTY Statute.

Such an extension, transgressing traditional boundaries, creates practically a ‘new crime’ in the sense of an additional modality of the crime committed by the subordinate⁸³. It, therefore, needs to meet the requirements of *nullum crimen, nulla poena sine lege*, as established by customary international law and expressed in article 22 Rome Statute. The ICTY, therefore, had and has to face the question whether this additional modality of criminal responsibility is ‘strictly construed’ in the sense of article 22 Rome Statute. Does article 7 para. 3 ICTY Statute mirror the law ‘beyond any doubt’ – as it was defined in 1993? Or is this law expressed in 1998, when 146 States of the world community drafted and with a great majority adopted article 28 Rome Statute, the correct definition of what is generally acknowledged?

The wording of article 7 para. 3 ICTY Statute is fairly clear, though at the end of the day, finally, it may leave room for doubt. In case it does, the general rule may become applicable, that in case of ambiguity an interpretation in favour of the accused has to prevail, article 22 para. 2 Rome Statute.

The basic law in both regulations, articles 7 para. 3 ICTY Statute and 28 Rome Statute, is beyond doubt: no responsibility of superiors for crimes of their subordinates in principle, but exceptionally yes, if ‘he knew or had reason to know that the subordinate was about to commit such acts or had done so and the superior failed to take the necessary and reasonable measures to prevent such acts or to punish the perpetrators thereof’, article 7 para. 3 ICTY Statute. The difference constitutes an additional requirement, expressly formulated in article 28 Rome Statute, namely an additional failure to control resulting in criminal activities of subordinates, which is not mentioned in article 7 para. 3 ICTY Statute, but perhaps needs to be interpreted into this regulation, in case it is ambiguous.

⁸¹ Triffterer, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 902 *et seq.* and *id.*, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 230 *et seq.*

⁸² Instead of ‘and’ in the original text, there must be ‘or’, see for further Ambos, *Article 25*, mn 17 *et seq.*

⁸³ See Triffterer, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 215 *et seq.*

- 63 One condition for accepting such an extension of individual criminal responsibility is in both regulations clearly formulated: ‘knew or had reason to know’ about a concrete criminal behaviour of his subordinates. This means, that the superior must not intent to support, by what act or omission ever, such behaviour of his subordinates. Because if this is the case, one of the traditional modalities according to article 7 para. 1 ICTY Statute combined with those expressly mentioned in articles 2–5 ICTY Statute would be applicable. ‘Knew’ or ‘reason to know’, therefore, does not mean an intent to participate by an omission. It must be less, which it is, when interpreted as describing only the intellectual part of ‘intent and knowledge’, namely awareness as defined in article 30 Rome Statute⁸⁴, of a criminal situation characterised by the behaviour of his subordinates.
- 64 The failure to take the necessary measures, must as such, as far as concerning the passivity of the superior, be intended. But it is sufficient that the superior did not intend more than just doing nothing, though he should and could have been motivated by the triggering situation to become active. Article 7 para. 3 ICTY Statute specifies the mental approach of the superior to the criminal behaviour of the subordinate in a way, which is different from the mental element needed with regard to all other modes of individual criminal responsibility for perpetrators and accomplices as described in article 25 para. 3 Rome Statute⁸⁵.
- While in so far ‘intent and knowledge’ is required, here obviously awareness of the situation without an emotional, a voluntative decision or a negligent approach to the situation and its demands is sufficient. This means, the superior knew but – for whatever reasons – did not react to get an emotional approach, or had reason to know, but was not aware of the situation requiring ‘to take the necessary and available measures to prevent such acts or to punish the perpetrators thereof’. His state of mind, ‘knew’ or ‘reason to know’, means, though he ‘knew’ or though he had ‘reason to know’, he did not conclude, or did not have the idea, that he could and should take action. The situation was not motivating him to prevent or interfere with the criminal behaviour of his subordinates. Whatever this lack of a mental decision to take action in the necessary and relevant direction means, it is sufficient that the superior draws no conclusion in this direction. He is ‘not open’ for the situation, for being addressed by the situation which triggers his duty to react, and therefore he fails to take the required measures.
- 65 Is this structure comparable with the one underlying ‘direct and public incitement’ in article 4 ICTY Statute? Comparable is that with regard to incitement, the mere act, and with regard to command responsibility, the mere failure to act triggers criminal responsibility. But there is a difference, because in the second case it must be established that the superior had the power, which means, was in fact capable to take the required measures, had he ‘correctly’ reacted on what he ‘knew’ or ‘had reason to know’. Incitement, on the opposite, requires only to address persons in a certain way at all, independent of whether the act has persuaded the addressee, while failures to take necessary measures implies that such actions would have caused a result, if not omitted, namely to prevent or repress the criminal activities of the subordinates.
- 66 Though not mentioned expressly in the definitions of crimes or in the general principles, there are such further elements tacitly included by the structure of the definitions of crimes or of the responsibility according to article 7 para. 3 ICTY Statute. Shall the superior really be responsible for the crime, which the subordinate was about to commit, though the subordinate did not yet reach the state of an attempt, a possibility not excluded in article 7 para. 3 ICTY Statute, though in article 28 Rome Statute? Such a situation may occur, if, for instance, a third person stops the criminal attempt of the subordinate by taking the necessary measures, shortly after the superior failed to do so, or if the subordinate gave up his plan to complete the crime or abandons his activities before he reached the status of a punishable attempt.

⁸⁴ See for more details *id.*, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 909 *et seq.*

⁸⁵ See for further information *id.*, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 215 *et seq.*

The situation requiring counter-actions of the superior is described in article 7 para. 3 67 ICTY Statute as the subordinate ‘was about to commit such acts or had done so’, a formulation, corresponding in its first part, ‘about to commit’ with those in article 28 Rome Statute. There it does not mean ‘only’, but includes an attempt which is defined differently to article 25 para. 3 (f) Rome Statute⁸⁶.

For the answer it has to be taken into consideration that two different formulations in the same law cannot have the same meaning, because otherwise no two divergent expressions would have been chosen. ‘About to commit’, therefore, does describe first a behaviour very close to the commission, for instance one second before a criminal attempt occurs, but it includes also an attempt, by which, in the ordinary course of events, a crime is about to be completed.

Such an interpretation is convincing independent of whether the attempt is incomplete or finalized, as long as the crime is not yet completed. In all these intermediate, different situations, the superior has ‘to prevent such acts’. This means, he has to prevent further activities of his subordinates, which either are already an attempt or could lead to an attempt, or which could bring an attempted crime to completion. This means, in other words, the superior has to stop all activities by which the subordinates were ‘about to commit’ relevant crimes. Because otherwise his failure to stop the subordinates would cause either the continuance of their ‘criminal’ behaviour and, thereby, further activities leading to an attempt, or cause an already existing criminal attempt to develop towards a completed crime. Is this the requirement of causality to be proven by the Prosecutor before criminal responsibility of superiors can be established? The answer is yes, because only when it can be established that the superior was capable to take the necessary measures and thus could have prevented, or repressed the crime or initiated criminal investigation, he can be blamed for the failure to do so and, thus, for the failure to achieve such an effect, which means for not causing it.

The alternative ‘or had done so’ refers to ‘had committed’ and thus comprehends a final or 68 interrupted attempt and a completed crime. In both cases the criminal activities of the subordinate have already come to an end and the superior, therefore, can no longer by his failure to take action ‘support’ or just ‘let happen’ the criminal activities of the subordinates in a way, which establishes a causal connection between his failure and the perpetration of the crime. This is the reason why the superior in such cases has to take (mere) measures ‘to punish the perpetrator thereof’.

While, with regard to the first alternative, ‘to prevent’, what was about to be committed, an 69 action to control or an order to stop may be sufficient to reach impunity of the superior, the second situation, ‘or had done so’, describes a rather static situation which cannot be changed anymore. It, therefore, only has to be evaluated by the superior with regard to its criminal importance in order to trigger preventive influence on future behaviour of the same or other subordinates.

There is for both alternatives no word on causality in the *ad hoc* Statute. But this element is 70 inherent to all omissions, because the duty to prevent presupposes and means the power to prevent, since nobody can be obliged by law to do what is for him or her *ultra vires*. The superior therefore must have prevented or at least taken measures which appear to be in principle adequate to achieve such a result⁸⁷. Who fails to take the necessary measures to prevent or to punish is responsible for what occurs in a situation, in which it was his duty to hinder further developments towards the commission of the crime or the impunity of the perpetrator. This hypothetical causality has to be established; because (a) it must have been not *ultra vires*, what was demanded, and (b) the necessity is only proven, when the omission causes what would have been avoided by the omitted act, in case it would have been executed.

⁸⁶ Also to the following considerations *id.*, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 911 *et seq.* and *id.*, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 217 *et seq.*

⁸⁷ To these considerations above and below see *id.*, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 238 *et seq.* and *id.*, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 917 *et seq.*

71 Even if these considerations are accepted it remains with regard to article 7 para. 3 ICTY Statute still open, whether the superior, in addition, must have caused the departing situation, the criminal behaviour of his subordinates. Triggers merely his former omission to control, educate and inform his subordinates ‘properly’ and its result, illegal activities of his subordinates, the duty of the superior to react, when his subordinates ‘commit or are about to commit crimes’? At first sight, the answer is no. In article 7 para. 3 ICTY Statute no such requirement is mentioned. But is an interpretation of the mere wording sufficient? No, because a teleological interpretation, taking into consideration the historical background and the *ratio legis* of this regulation may close a lacuna, and thus come to a different result.

It can, for instance, be argued that article 7 para. 1 ICTY Statute extends the responsibility for committing crimes by including certain behaviour, which aids or abets the execution as an additional modality. Such an extension broadening the scope and notion of the crimes, needed to be ‘strictly construed’; because otherwise it would violate the principle *nullum crimen sine lege*. In addition, it is self evidence, that since all crimes listed within the above mentioned Statute can be committed only on the mental side intentionally, also participation as being a specific modality of such a crime, equally requires such a mental element.

72 Article 7 para. 3 ICTY Statute contains also such an extension of the responsibility for crimes, but one applicable exclusively for superiors. This means, the superior is responsible, as ‘if he had committed it (the crime) himself’, a formulation, already quoted in mn 25. It implies, in addition, that command responsibility demands as a specific modality of participation, in principle, also an intentional behaviour, unless (and as far) as not otherwise provided.

73 Article 7 para. 3 ICTY Statute is based on articles 86 and 87 Add. Prot. I. Though not expressly referring to these regulations, some of them are quoted more or less verbally. For instance, a superior should be relieved from responsibility, except when ‘he knew or had reason to know’ about the criminal behaviour of his subordinate and nevertheless failed to react. But is such a ‘low’ mental element really sufficient, though for all other modalities a much higher mental threshold closer to the harm, namely an intentional behaviour, mentally ‘dealing’ with and ‘considering’ the harm, whether caused by a failure or an *actus reus*, is required?

Is this special ‘lower’ mental element, required for command responsibility, comparable with negligence? Is it the only one and as such sufficient, while all other modalities for the commission of crimes demand a stronger mental ‘affiliation’ of the mind of the perpetrator to the material elements?

74 Already this aspect makes it desirable and perhaps indispensable, in the interest of equality before the law, to consider at least an equally high threshold for command responsibility, which would otherwise establish a more remote relation to the harm than most of the other modalities for participation.

In addition, a high threshold on the mental side could compensate the fact that superiors are without exception responsible and liable for punishment beyond the traditional modalities, which means, even for such omissions, which do not fulfil the objective or mental requirements for a punishable participation.

This implies that the requirement of ‘strictly construed’ elements needs to be independently established, in particular, when command responsibility reaches the top level of the hierarchy, perhaps located far away from the actual events.

75 All these aspects have led already to a more precise definition in article 28 Rome Statute. It, therefore, seems to be necessary and justified to include the additional element demanded there, namely an ‘intentional failure to control properly’ resulting in criminal activities of their subordinates, in favour of the superior via interpretation also in articles 7 para. 3 ICTY and 6 para. 3 ICTR Statute.

III. Guidelines for investigation and prosecuting superior responsibility

The considerations above have pointed out some aspects which may serve as guidelines 76 when dealing with situations, in which the commission of crimes, falling within the jurisdiction of the Court, is shaped by a hierarchically structured superior/subordinates relationship⁸⁸. In order to locate whether such a relationship is involved, it is recommendable to investigate first, whether a failure of the superior to exercise control properly over his subordinates can be established.

For the concept and notion of such a failure, a list of elements has been published in the First Edition, which still may be helpful to find out, what the commander should have done 77 to fulfil his duties. He must, in particular,

- ensure his forces are adequately trained in international humanitarian law,
- ensure that due regard is paid to international humanitarian law in operational decision making,
- ensure that an effective reporting system is established so that he or she is informed of incidents when violations of international humanitarian law might have occurred,
- monitor the reporting system to ensure it is effective, and
- take corrective action when he or she becomes aware that violations are about to occur or have occurred⁸⁹.

A similar list of relevant aspects is available for finding out, whether the superior ‘knew’ or 78 ‘should have known’ about the criminal activities of his subordinates. In this context it was pointed out by W. Fenrick that ‘actual knowledge may be established by direct or circumstantial means’. But with regard to ‘determining whether or not the commander did have the requisite knowledge’ a variety of indicia may be, in addition, helpful, including

- the number of illegal acts,
- the type of illegal acts,
- the scope of illegal acts,
- the time during which the illegal acts occurred,
- the number and type of troops involved,
- the logistics involved, if any,
- the geographical location of the acts,
- the widespread occurrence of the acts,
- the tactical tempo of operations,
- the modus operandi of similar illegal acts,
- the officers and staff involved, and
- the location of the commander at the time⁹⁰.

With regard to the further elements, in particular the intent covering the failure to control 79 properly, it has to be taken into consideration, that command responsibility is an additional, inherent responsibility ‘for crimes within the jurisdiction of the court’, and not for a *crimen sui generis*⁹¹. Further decisive is the aspect that command responsibility is not merely an extending mode of the traditional responsibility for participation, though it comes close to facilitating or

⁸⁸ For more details concerning basic principles for such guidelines see *id.*, in: Prittwitz *et al.* (eds.), *Festschrift für Klaus Lüderssen* (2002) 437, 438 *et seq.*; *id.*, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 229 *et seq.* and *id.*, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 919 *et seq.* with references.

⁸⁹ Fenrick in the First Edition of this Commentary (1999), article 28, mn 9.

⁹⁰ *Ibid.* article 28, mn 10; see also Čelebići (Trial Chamber Judgement), note 3, para. 386. See also the *Prosecutor v. Jean-Pierre Gombo*, ICC-01/05-01/08-424, Decision Pursuant to Article 61(7)(a) and (b) of the Rome Statute on the Charges of the Prosecutor Against Jean-Pierre Bemba Gombo, Pre-Trial Chamber II, 15 June 2009, para 444 at 431 <<https://www.legal-tools.org/doc/07965c/>>.

⁹¹ This aspect also has already broadly discussed on another occasion see Triffterer, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 903 *et seq.*

supporting crimes of subordinates in a way, similar to ‘otherwise assists in its commission or its attempted commission’⁹².

- 80 When applying these guidelines to locate command responsibility it therefore has in addition to be taken into consideration, that this modality of responsibility is based on omissions only. It combines an intentional omission of the superior, violating pre-established duties with a kind of negligent passivity in a way, that the influence of the first failure shapes the activities of the subordinates. This is the reason why the second failure, to take the necessary measures, aggravates the situation and, therefore, triggers the responsibility of the superior, when he knew or should have known about its criminal character: the superior misses his chance to compensate his first violation by preventing what could and should have been avoided already earlier.
- 81 The last guideline to be mentioned in this non exhausting summary, concerns another trigger mechanism: there must be a ‘crime within the jurisdiction of the court committed by subordinates’ which means at least an attempted crime, to base command responsibility upon. The responsibility then is according to article 28 ‘for crimes within the jurisdiction of the Court’. This means that the commander has to be sentenced for committing, for instance, a specific war crime or for genocide ‘per command responsibility’. The commission of the crime by the subordinates, thus, has to be established beyond any doubt.
- 82 According to the concept and notion developed above, it follows that the commander does not need to have the genocidal intent himself. It is sufficient, when he includes in ‘his mind’ that the crimes possibly resulting from his failure to control properly, could be war crimes, crimes against humanity or even genocide. Later on, when defined and accepted by the Assembly of States Parties, a similar structure will be applicable with regard to aggression.
- 83 With regard to the second failure it is sufficient that the superior is aware (‘knew’), that there are atrocities committed by the subordinates, which possibly are attempted or completed crimes falling within the jurisdiction of the Court, perhaps even genocide, or that he should have known because of available leading information to such conclusions. Command responsibility thus shows on the material and on the mental side lesser ‘involvement’ than traditional participation of superiors, for which a stronger influence in the actual committing of the *actus reus* of the principal perpetrator and a more precise mental element of the superior is required.
- 84 All these aspects should be taken into consideration when a situation of passivity of a superior has to be analysed and interpreted in order to find out, whether article 28 Rome Statute or, still for a while, article 7 para. 3 ICTY or article 6 para. 3 ICTR Statute has to be applied.

B. Analysis and interpretation of elements

I. Paras (a) and (b): Two alternatives with few deviating elements – general remarks

- 85 Article 28 ICC Statute provides for three categories of persons that may fall under the doctrine of command responsibility: (a) military commanders or persons effectively acting as such (so-called military-like commander); and (b) other superiors. Rank and status are of limited relevance,⁹³ the key element is the existence of a superior-subordinate relationship. It is also the first requirement of the three stage test adopted by the ICTY to hold someone accountable under the doctrine:
- (i) the existence of a superior-subordinate relationship;
 - (ii) that the superior knew or had reason to know that the criminal act was about to be or had been committed; and

⁹² This aspect also has already broadly discussed on another occasion see *id.*, in: *id.* (ed.), *Gedächtnisschrift für Theo Vogler* (2004) 213, 236 *et seq.*

⁹³ *Čelebići* (Trial Chamber Judgement), note 3, paras. 647, 704 and 742.

(iii) that the superior failed to take the necessary and reasonable measures to prevent the criminal act or punish the perpetrator thereof⁹⁴.

The existence of these different categories of commanders/superiors is not without consequences for the determination of the existence of a superior-subordinate relationship. The distinction is a conscious one, since the underlying assumption is that military and military-like commanders on the one hand, and non-military, i.e. civilian superiors, on the other have different possibilities and ways to control third parties alleged to have committed international crimes. Therefore, different requirements apply and different evidentiary elements may prove the existence of such relationship.

1. Military command (a) or other 'superior and subordinate relationships' (b)

Paragraph (a) refers to military commanders or persons effectively acting as such (military-like commanders). Paragraph (b), by default, refers to superiors holding a superior-subordinate relationship not covered by paragraph (a), i.e. civilian superiors. The underlying idea of both is that a person exercising *effective* authority or command over another one can be held responsible for the conduct of the latter, if also the other requirements of the doctrine are met.

In case (a), the assumption is that the military, by definition, is organised hierarchically, with a strict chain of command, different levels of command and different levels of subordinates. The commanders' duty is to lead and control his subordinates and to ensure their disciplined conduct, which is indispensable for the smooth execution of his orders. In the armed forces, everybody has a commander: even the chief of the armed forces is usually subject to another authority, which is often the minister of defence or the President, depending on the applicable political system.

The role of the military commander can be compared to that of a 'guarantor'. Known to civil law systems (e.g. the Swiss, the German) this status is attached to persons who have either the legal obligation to protect a specific object/person under their supervision from the external dangers and to persons who have originated a potential source of danger and who must, therefore, protect third parties from its negative effects. The military commander has a twofold guarantor position: he must take care of his subordinates and, at the same time, the safety of persons protected under the laws of armed conflict (LOAC) from the potential misconduct of his subordinates⁹⁵.

In case (b), proof of the existence of a hierarchical relationship is more complicated, since it cannot be presumed on the same basis as in a military or quasi-military environment (e.g. within the police). The civilian realm is not systematically hierarchical, even though there are some situations, like in the professional world, where hierarchical structures may be found. It is by reference to the professional world, and an analogy to the contractual employer-employee relationship, that the responsibility of non-military and non-military-like superiors for the misconduct of third parties was constructed.⁹⁶ This approach was supported by the ICTR in the *Musema Case*⁹⁷.

⁹⁴ *Čelebići* (Trial Chamber Judgement), note 3, para. 346. These criteria recall the ones established in the Trial of Soemu Toyoda, Official Transcript of Record of Trial, 5005 and 5006. See also Pilloud *et al.* (eds.), *Commentary on the Additional Protocols of 8 June 1977 to the Geneva Convention of 12 August 1949* (1987) para. 3543.

⁹⁵ See Arnold (2002) 7 JCSL 191, 207; Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 184.

⁹⁶ According to Swiss criminal law, a person who creates a danger is responsible for the prevention of any possible harm deriving from it. An analogous duty is incumbent upon parents with respect to their children. See Stratenwerth, *Schweizerisches Strafrecht, Allgemeiner Teil I: Die Straftat* (1996) 408. The responsibility of the firm holder is known as 'Geschäftsherrenhaftung' in the continental system. See the decisions of the Swiss Federal Tribunal in the 'Bührle' (BGE 96 IV 155) and 'Von Roll' (BGE 122 IV 103) cases. See also, with regard to this analogy, Ambos, in: Cassese *et al.* (eds.), *The Rome Statute of The International Criminal Court: A Commentary* (2002) 844 *et seq.*; *id.*, *Treatise on International Criminal Law*, Vol. I (2013) 184 and 199.

⁹⁷ *Prosecutor v. Musema*, ICTR-96-13-A, Judgement, Trial Chamber, 27 Jan. 2000, para. 880. On the guarantor position. The Trial Chamber held that the accused, the director of an important tea factory, through his power to appoint and remove his employees, had exercised legal and financial control over them. *Musema* was, thus, found

In both cases (a) and (b), however, the pre-requisite is the existence of a *de facto* superior-subordinate relationship⁹⁸. The exercise of command must be effective and the superior-subordinate relationship cannot be derived from the mere fact of belonging to a chain of command: this is not *per se* sufficient⁹⁹. To do otherwise would lead to the application of the old doctrine of strict liability. This was followed in the *Yamashita Case*¹⁰⁰, but was later reversed in the *High Command Case*¹⁰¹. The superior's powers to control and to intervene must be *real*, in order to hold him accountable¹⁰². These must be assessed *ad hoc*. In this regard, distinctions must be drawn for instance between tactical commanders, who are in charge of military operations, and non-operational commanders, who might be in charge of activities such as logistics. This distinction played a crucial role in General Cermak's acquittal by the ICTY in relation to the conduct of Operation Storm in Croatia¹⁰³. Effective command or authority may be also exercised over each other by people holding equal status.¹⁰⁴ However:

'... substantial influence as a means of control in any sense which falls short of the possession of effective control over subordinates, which requires the possession of material abilities to prevent subordinate offences or to punish subordinate offenders, lacks sufficient support in State practice and judicial decisions'¹⁰⁵.

The doctrine of command responsibility is applicable also to superior-subordinate relationships established across national borders or different armed groups. For instance, where a state relies on guerrilla groups or private subcontractors in order to resort to illegal methods of warfare without incurring into any kind of state liability, the leaders of this state may nevertheless be held accountable as individuals under the doctrine of command responsibility. The lack of a hierarchical and formal superior-subordinate structure does not detract from the possibility of incurring into criminal liability.

- 88 Thus, where a superior-subordinate relationship can be proven, the doctrine of command responsibility may apply, regardless of the military or civilian status of the person holding effective authority.

guilty under the doctrine of command responsibility for having failed to discharge his supervisory duty over them and having allowed them to commit crimes within the context of their work.

⁹⁸ *Prosecutor v. Momčilo Perišić*, IT-04-81-A, Judgement, Appeals Chamber, 28 Feb 2013, paras. 75 *et seq.*

⁹⁹ Burnett (1997) 38 *HarvILJ* 272, 272 *et seq.*; *Prosecutor v. Aleksovski*, IT-94-14/1-T, Judgement, Trial Chamber, 25 Jun. 1999, paras 73 *et seq.*; see *Čelebići* (Trial Chamber Judgement), note 3, paras. 354 and 647; *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 Feb. 2001, para. 369.

¹⁰⁰ *Yamashita*, UNWCC, XXI Law Reports of Trials of War Criminals (1948) Part VI, ii, 84.

¹⁰¹ Trial of Wilhelm von Leeb *et al.* (The German High Command Trial), UNWCC, XII Law Reports of Trials of War Criminals (1948) 76 'Criminality does not attach to every individual in this chain of command from that fact alone. There must be a personal dereliction. That can occur only where the act is directly traceable to him or where his failure to properly supervise his subordinates constitutes criminal negligence on his part. In this latter case it must be a personal neglect amounting to a wanton, immoral disregard of the action of his subordinates amounting to acquiescence'. The case was referred to in *Prosecutor v. Blaškić*, IT-95-14-T, Judgement, Trial Chamber, 3. Mar. 2000, para. 321. The court concluded that there had to be, instead, a causative, overt act or omission from which a guilty intent could be inferred, therefore rejecting the strict liability test.

¹⁰² *Kordić and Čerkez* (Trial Chamber Judgement), note 98, para. 422 and for further information see Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 191.

¹⁰³ *Prosecutor v. Ante Gotovina, Ivan Cermak, Mladen Markac*, IT-06-90-T, Judgment 15 April 2011, para. 147, 149, 164, 166, 2549.

¹⁰⁴ *Prosecutor v. Delalić*, IT-96-21-A, Judgement, Appeals Chamber, 20 Feb. 2001, para. 303:

'... it is possible to imagine scenarios in which one of two persons of equal status or rank – such as two soldiers or two civilian prison guards – could in fact exercise 'effective control' over the other at least in the sense of purely practical ability to prevent the conduct of the other by, for example, force of personality or physical strength'.

¹⁰⁵ *Delalić* (Appeals Chamber Judgement), note 102, para. 266.

2. Any of the crimes within the jurisdiction of the Court when – committed by forces under ...effective control ... or ... authority and control', *litera* (a), or when – concerning 'activities that were within the effective responsibility and control of the superior', *litera* (b) (ii)

Under article 28 (a) command responsibility can only be initiated by the commission of a crime falling within the Court's jurisdiction. There must be a 'nexus' between a commander's failure to properly command and control his subordinates and the latter's commission of crimes. The following two considerations arise:

- (a) The ICC has jurisdiction *exclusively* over the offences *enlisted* under article 5 (genocide, crimes against humanity, war crimes and aggression), as defined in articles 6–8bis ICC Statute (on the special status of the crime of aggression see the commentary to this provision). Therefore, a commander may only be liable in front of the ICC when one of these underlying offences was committed. A caveat, however, is that the war crimes catalogue of art. 8 ICC is not comprehensive of all the existing war crimes provisions pursuant to the LOAC. For instance, the use of biological and chemical weapons was excluded from the ICC Statute for political reasons, in order to achieve consensus and adopt it. Thus, a commander who failed to prevent the use of a chemical weapon by his subordinates may not be charged with war crimes in front of the ICC; this however, does not preclude his prosecution in a domestic court or another international criminal tribunal.
- (b) A controversial issue is the legal character of article 28: *sui generis* independent crime or a special form of participation to the underlying offences?¹⁰⁶ The origins of the command responsibility doctrine are to be found in the overarching notion of 'responsible command', pursuant to which a commander must properly discharge his 'command and control' duties in general. These are not restricted to the duty to prevent serious breaches of international law, but extend to the need to ensure the proper functioning of the military system in general, also by taking action against disciplinary offences and 'ordinary' crimes.¹⁰⁷ The concept of 'command responsibility, as it was developed under the LOAC, was then restricted to the failure to prevent the commission of serious breaches thereof. The underlying idea, however, is the same: the commander is entrusted with this responsibility to properly exercise command and control. Failure to do so will result in criminal charges. The *actus reus*, thus, consists primarily in this failure, not in the commander's participation to the offences he failed to prevent, repress or punish.¹⁰⁸ In the doctrine there are three major lines of thought, as summarized by Maria Nybondas. According to these such conduct shall qualify: (1) as a *sui generis* – independent – crime that punishes the superior for his failure to properly exercise command and that, as such, may also be committed by negligence, even if the primary offence requires intent; (2) as a *sui generis* form of – indirect or derivative – participation to the primary offence, which would as a rule require the commander to share the intent of the other participants; (3) as a mixture of both a *sui generis* act and a *sui generis* form of participation (bifurcated approach), depending on the case. Nybondas opts for the 'bifurcated approach', even though she admits that the ICTY followed the *sui generis* approach (see the *Hadžihasanović* and *Halilović* judgments)¹⁰⁹ Prof. Triffterer, by

¹⁰⁶ For a detailed analysis see Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 207 (discussing different approaches in the literature).

¹⁰⁷ Arnold and Wehrenberg (2013) 2 *MLLWR* 19.

¹⁰⁸ Arnold and Wehrenberg (2013) 2 *MLLWR* 19; Arnold (2013) 11 *JICJ* 943–951.

¹⁰⁹ Nybondas, *Command Responsibility and Its Applicability to Civilian Superiors* (2010) 127 *et seq.*, 133 and 136 *et seq.*; Arnold (2013) 11 *JICJ* 943–951. Also the position under Swiss legislation is very controversial. See Arnold and Wehrenberg (2013) 2 *MLLWR* 19 (forthcoming); Rogers, *Law on the battlefield* (1996) 196; Métraux, *The law of command responsibility* (2009) 37 *et seq.* Holding the view that it is a genuine act of omission *sui generis*: Fiolka, in: Niggli and Wiprächtiger (eds.), *Basler Kommentar zum StGB* (2013), with reference to Ambos, in: Cassese *et al.*

contrast, argues that ‘command responsibility’ is a *principle*, as demonstrated by the fact that article 28 is contained in Part III of the ICC Statute (‘general principles of criminal law’), rather than Part II (Jurisdiction, Admissibility and Applicable Law). Moreover, article 28 is neither enlisted as a crime *per se* falling under the jurisdiction of the ICC Statute pursuant to article 5, nor is it mentioned as a specific war crime or crime against humanity under articles 7–8 ICC Statute. In his view, therefore, it is to be considered only as a form of *participation* to the crimes enlisted under article 5. The qualification of breaches of art. 28 as a form of participation to the offences enlisted in article 5 of the ICC Statute may have a serious impact on issues like causality, concurrency to other crimes, double liability as primary perpetrator and commander, and attempt. So far the ICC has not made any judgments on this issue. In the Bemba Case, the Pre-Trial Chamber II of the ICC simply concluded that the accused was criminally responsible within the meaning of article 28(a) for the different war crimes and crimes against humanity charges enlisted in the indictment¹¹⁰.

- 91 Under the ICC Statute, unless it resulted into the commission of one of the crimes enlisted under article 5, a commander’s failure to exercise proper control over his subordinates is not criminally relevant. The same may not hold true under domestic military criminal law, by contrast, pursuant to which disciplinary measures may be triggered. The nexus to the underlying offence is to be read as a means to distinguish between failures to discharge a commander’s duties leading to the most serious breaches of international law and those with no consequences, for purposes of the determination of the punishment. This reasoning is supported by the fact that in some instances, article 28 has been implemented into domestic legislation as a specific provision contained in a special section dedicated to international crimes, without jeopardising the existence of more generic provisions on the duty to command and control contained in military manuals¹¹¹. Due to this mixed nature, one may conclude that the offence is a *sui generis* independent crime.
- 92 Another open issue yet to be clarified by the ICC is whether the subordinates must have *committed*, i.e. successfully brought to an end the underlying crimes, or whether it is sufficient for the crimes to be attempted¹¹². In contrast to article 25 ICC Statute, article 28 ICC is silent on this. The logics however suggest that if command responsibility is a *sui generis* crime aimed at punishing the commander for his failure to properly discharge his duties, then the correct approach is that whenever a crime is committed in a form that can entail the criminal responsibility of the subordinate, the superior shall be held accountable, too. Thus, if the responsibility for the underlying crimes can be incurred by committing an attempted crime, this may trigger the superior’s responsibility, too. This conclusion is also supported by a teleological interpretation of the doctrine of command responsibility. If the superior shall ensure the maintainance of order and control, in terms of prevention it is required that he intervenes at the earliest stage possible, which implies that the word ‘committed’ does not

(eds.), *The Rome Statute of The International Criminal Court: A Commentary* (2002) 844, 851 *et seq.*; Ambos, *Der Allgemeine Teil des Völkerstrafrechts, Ansätze einer Dogmatisierung* (2004) 667 *et seq.*; Bonafé (2007) 5 *JICJ* 599, 603–604; SCSL, *Prosecutor v. Brima, Kamara and Kanu*, SCSL-04-16-T, Judgment, 20. June 2007, § 783, with reference to ICTY, *Prosecutor v. Halilović*, IT-01-48-T, Judgment, 16. November 2005, §§ 42–54 and ICTY, *Prosecutor v. Hadžihasanović et al.*, IT-01-47-T, Judgment, 15. March 2006, § 75. Critical: Weigend (2004) 116 *ZStW* 999–1002, 1006 *et seq.*; Laucci, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale internationale, commentaire article par article* (2012) 864.

¹¹⁰ *Bemba* (PTC II Decision), note 90, para 444.

¹¹¹ See eg. art. 114 a of the Swiss Military Criminal Code (SR 321.0) on command responsibility for international crimes and Chapter 3 ‘Command’ of the Swiss Military Manual on Military Service of 1994, SR 510.107.0, breaches of which may be prosecuted under art. 72 of the Swiss Military Criminal Code; see also Laucci, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale internationale, commentaire article par article* (2012) 864, 865; Smidt (2000) 164 *MillRev.* 155, 169. See also Triffterer, in: Lagodny *et al.* (eds.), *Festschrift für Albin Eser* (2005) 901, 913.

¹¹² Under most domestic criminal codes, the question would be whether the underlying offence is either a *result* or an *inchoate endangerment* crime.

require the completion of the crime.¹¹³ Take the following example: the crime of genocide can be objectively fulfilled by the killing of *one* or more persons¹¹⁴. It follows, that a superior who knew or should have known that his subordinates were acting with genocidal intent may be liable even if only one person was killed: no full scale effect (i. e. consummation) of the crime is required.¹¹⁵

The interpretation of the term *committed* is also relevant to determine the temporal framework during which the perpetrator may still change his mind and abandon the commission of the offence. Triffterer observes that, according to article 25 para. 3 (f), which addresses situations in which the crime has been attempted and where the crime does not occur because of circumstances independent of the person's intentions, the primary perpetrator's change of mind and abandonment of the commission of the crime may lead to his acquittal. The same, by contrast, does not necessarily hold true with regard to the superior. The question that arises is what happens when a superior decides to remain passive and the completion of the crimes is prevented by the fact that the primary perpetrator spontaneously abandons his plan. Shall the commander be liable in this case? As said, command responsibility is a *sui generis* crime that requires the *commission* of a crime by the subordinates. Participation is always accessory to the main crime, meaning that it would be unfair to hold a participant more liable than the primary perpetrator. However, since the wrongful conduct criminalised by article 28 is the commander's failure to supervise his subordinates, he shall be liable even though the crime was only attempted.

The second part of the sentence contained in article 28 *lit. a* relates instead to the required kind of control, which has been examined in the previous paragraphs.

3. Minimum mental element for the second failure: – ‘should have known’, or – ‘consciously disregarded information which clearly indicated that the, subordinates were committing or about to commit such crimes’

Different standards have been adopted in the history of the doctrine of command responsibility. The controversial *strict liability* test adopted in the *Yamashita Case*¹¹⁶, holding that a superior shall be criminally responsible for acts committed by his subordinates, without it being necessary to prove his criminal intent¹¹⁷, is no longer applicable. It was rejected in the *High Command Case*¹¹⁸, which observed that due to the modern dictates of war, necessitating decentralisation, a high commander could not be kept informed about all the details of a military operation. Therefore it introduced the *knew or should have known* test¹¹⁹. This relies on the concepts of actual (knew) and constructive (should have known) knowledge: a commander may be liable if ‘he failed to exercise the means available to him to learn of the offence and, under the circumstances, he should have known and such failure to know constitutes

¹¹³ Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 203; Bantekas (2009) 7 JICJ 1197, 1199; Métraux, *The Law of Command Responsibility* (2009) 79; Arnold and Wehrenberg (2013) 2 MLLWR 19, 28 (forthcoming); Trechsel (2009) 3 BJILP 26, 28 *et seq.*

¹¹⁴ UN Doc. ICC-ASP/1/3; Ambos and Cassese, however, argue that there need to be at least two victims. see Ambos, *Treatise on International Criminal Law*, Vol. II (2013) 10; Cassese *et al.*, *International Criminal Law* (2013) 117, 129.

¹¹⁵ This is also the view of the Swiss legislator. See Arnold and Wehrenberg (2013) 2 MLLWR 19, 28 (forthcoming); Vest and Sager (2009) 4 AJP 423, 443.

¹¹⁶ *Yamashita*, UNWCC, XXI LRTWC (1948) Part II, p. 29.

¹¹⁷ *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgement, Trial Chamber, 2 Sep. 1998, para. 488.

¹¹⁸ Trial of Wilhelm von Leeb *et al.* (The German High Command Trial), UNWCC, XII LRTWC (1948) 76 and for further information see also Parks (1973) 62 MillRev 1, 90.

¹¹⁹ Trial of Soemu Toyoda, Official Transcript of Record of Trial 5006, referred to in *Čelebići* (Trial Chamber Judgement), note 3, para. 389 and *Blškić* (Trial Chamber Judgement), note 101, para. 316. For details see Parks (1973) 62 MillRev 1, 71 and Burnett (1985) 107 MillRev 71, 118 *et seq.* (1985) and Rogers, *Law on the battlefield* (1996) 147.

*criminal dereliction*¹²⁰. Likewise the *Hostage Case* held that the commander of an occupied territory 'is charged with notice of occurrences taking place within that territory'¹²¹. He may fulfil his duty by requiring reports. However, if these are incomplete, he is obliged to require supplementary ones. In the court's words: 'If he fails to require and obtain complete information, the dereliction of duty rests upon him and he is in no position to plead his own dereliction as a defence'¹²². The *Toyoda Case* ruled that this (constructive) knowledge may also be presumed when the carrying out of the crimes was so widespread that a reasonable man could come to no other conclusion than that the accused must have known of the facts. Thus, even though a commander cannot possibly keep track of all events, lack of knowledge is no defence when due to negligence in attempting to obtain all possible information.

96 In the *Celebici Case* the ICTY held that pursuant to customary law the *knew or should have known* test had been replaced by the *knew or had reason to know* test set forth in article 86 of Add. Prot. I of 1977¹²³. The latter no longer encompasses the liability of a commander for dereliction of duty to obtain information within his reasonable access¹²⁴. This position, which was initially disputed in *Blaškić*¹²⁵, was confirmed by the later jurisprudence of the ICTY¹²⁶. According to the 'had reason to know' test, a superior is only liable if:

- (1) he had actual knowledge (established through direct¹²⁷ or circumstantial¹²⁸ evidence) that his subordinates were committing or about to commit crimes, or,
- (2) if he 'had reason to know' that crimes were being committed on the basis of information available to him and indicating the need for additional investigation¹²⁹.

¹²⁰ Trial of Wilhelm List *et al.* (Hostages Trial) UNWCC, VII LRTWC, Part IV, p. 71, referred to in, *Čelebići* (Trial Chamber Judgement), note 3, para. 389 and *Blaškić* (Trial Chamber Judgement), note 101, para. 322. For details see Parks (1973) 62 *MilLRev* 1, 61 *et seq.*

¹²¹ Trial of Wilhelm List *et al.* (Hostages Trial) UNWCC, VII LRTWC, Part IV, p. 71. For details see Parks (1973) 62 *MilLRev* 1, 61 *et seq.*

¹²² Trial of Wilhelm List *et al.* (Hostages Trial) UNWCC, VII LRTWC, Part IV, p. 71, referred to in *Čelebići* (Trial Chamber Judgement), note 3, para. 389.

¹²³ This provision is now part of customary law. See *Čelebići* (Trial Chamber Judgement), note 3, paras 383 and 390 and *Blaškić* (Trial Chamber Judgement), note 101, para. 310.

¹²⁴ *Čelebići* (Trial Chamber Judgement), note 3, para. 393, confirmed in *Delalić* (Appeals Chamber Judgement), note 104, para. 224.

¹²⁵ See *Blaškić* (Trial Chamber Judgement), note 101, para. 314–332 (in particular, para. 324). The Trial Chamber seems to support the view that there is no contradiction between the *mens rea* applied in post Second World War cases and articles 86 and 87 of Add. Prot. I. The Trial Chamber also refers to the findings of the Kahan Commission (para. 331). The latter held that '[t]he absence of a warning from experts cannot serve as an explanation for ignoring the danger of a massacre. The Chief of Staff should have known and foreseen – by virtue of common knowledge, as well as the special information at his disposal – that there was a possibility of harm to the population in the camps at the hands of the Phalangists' (para. 497 of the Report). However it seems to the author that the Commission relied on a 'had reason to know' test, rather than a 'should have known' test requiring him to obtain the information. The Commission namely observed that: 'If it indeed becomes clear that those who decided on the entry of the Phalangists into the camps should have foreseen – from the information at their disposal and from things which were common knowledge – that there was danger of a massacre, and no steps were taken which might have prevented this danger or at least greatly reduced the possibility that deeds of this type might be done, then those who made the decisions and those who implemented them are indirectly responsible for what ultimately occurred, even if they did not intend this to happen and merely disregarded the anticipated danger'. Israel, Final Report of the Israeli Commission of Inquiry into the Events at the Refugee Camps in Beirut, 7.2.1983, (1983) 22 *ILM* 497.

¹²⁶ *Delalić* (Appeals Chamber Judgement), note 104, para. 241 and *Kordić and Čerkez* (Trial Chamber Judgement), note 99, para. 430 and 432 *et seq.*

¹²⁷ *Čelebići* (Trial Chamber Judgement), note 3, para. 386.

¹²⁸ *Čelebići* (Trial Chamber Judgement), note 3, para. 386; *Blaškić* (Trial Chamber Judgement), note 101, para. 307 and *Kordić and Čerkez* (Trial Chamber Judgement), note 99, para. 427. The Trial Chamber in *Čelebići* referred to the Final Report of the UN Commission of Experts for the ICTY, which contains a list of elements that may be used as *indicia*. These include the number, type and scope of illegal acts, the time during which these occurred, the number and type of troops involved, the logistics involved, the geographical location of the acts, their widespread occurrence, the tactical tempo of operations, the *modus operandi* of similar illegal acts, the officers and staff involved and the location of the commander at the time. Commission of Experts Report, S/1994/674, p. 17, referred to in Bassiouni and Manikas, *The Law of the International Criminal Tribunal for the Former Yugoslavia* (1996) 343.

¹²⁹ *Čelebići* (Trial Chamber Judgement), note 3, para. 383.

The novelty is that the commander is no longer required to actively *search for* the information and that he shall only be liable for failure to acknowledge information *already available* to him. Unfortunately, in the *Celebici Case* the ICTY did not analyse whether current customary law had been modified by article 28 of the Rome Statute¹³⁰, which reintroduced a kind of *should have known* test. This examination was nevertheless undertaken by the ICTR in *Kayishema and Ruzindana*¹³¹. It concluded that a superior is only liable for having failed to *take notice* of information that may have indicated the occurrence of crimes, but not for the failure of *obtaining* that information. It recalled that in article 28 ICC Statute, the *should have known* formula is completed by the phrasing ‘*owing to the circumstances at the time*’, which seems to bring it in line with the *had reason to know* test supported in *Celebici*. Therefore, even though it will be the ICC’s task to define the details of the *mens rea* requirements under its Statute, it may be concluded that, notwithstanding a slightly different wording, the applicable test is still whether someone, on the basis of the available information, *had reason to know* in the sense of Add. Prot. I. This approach seems to be supported, so far, also by the ICC jurisprudence, in particular by the findings in the *Bemba Case*, as will be discussed in detail later.

II. Paragraph (a)

1. Qualification: ‘military commander or person effectively acting as a military commander’

At the Rome Conference in 1998¹³² a broad majority held the view that responsibility should also extend to civilian superiors, notwithstanding the opposition of few delegations, including China. A first draft produced by Canada and consolidated by the UK foresaw the same requirements for both categories. However, the United States raised the important question whether civilian superiors would be in the same position as military commanders to prevent or repress the commission of crimes by their subordinates. The outcome was the drafting of different requirements, but there was agreement that definitely both categories shall be encompassed.

The term ‘military commander’ was defined by the ICC Pre-Trial Chamber in the *Bemba Case*.¹³³ It refers to persons who are formally or legally appointed to carry out a military commanding function (i. e., *de jure* commanders). The concept embodies all persons who have command responsibility within the armed forces, irrespective of their rank or level. A military commander, thus, could be a person occupying the highest level in the chain of command or a mere leader with few soldiers. The term also captures those situations where the superior does not exclusively perform a military function.

The Pre-Trial Chamber held further that the term ‘person effectively acting as a military commander’ covers a distinct and broader category, which ‘refers to those who are not elected by law to carry out a military commander’s role, yet they perform it *de facto* by exercising effective control over a group of persons through a chain of command.’ This may encompass superiors who have authority and control over regular government forces, such as armed police units, or irregular forces (non-government forces) such as rebel groups,

¹³⁰ *Čelebići* (Trial Chamber Judgement), note 3, para. 393. See also the Prosecutor’s view in *Kordić and Čerkez* (Trial Chamber Judgement), note 99, para. 430.

¹³¹ *Prosecutor v. Kayishema and Ruzindana*, ICTR-95-1-T, Judgement, Trial Chamber, 21 May 1999, paras. 225–228. See also *Prosecutor v. Brdanić*, IT-99-36-T, ‘Trial Judgment’, 1 September 2004, para. 278: Knowledge can only be presumed if a superior had the means to obtain the relevant information of a crime and *deliberately* refrained from doing so.

¹³² Saland, in: Lee (ed.), *The International Criminal Court, the making of the Rome Statute: Issues, Negotiations, Results* (Kluwer 1999) 202.

¹³³ *Bemba* (PTC II Decision), note 90, para. 4408.

paramilitary units including, inter alia, armed resistance movements and militias that follow a structure of military hierarchy or a chain of command.¹³⁴

There is usually more than one commander in a chain of command. The latter may include, e.g., a section leader, a platoon commander, a company commander, a battalion commander, a brigade commander, a division commander and others in ascending seniority. A commander has thus the authority to issue direct orders to subordinates, including commanders of subordinate units. The significant element is the effective exercise of command, not the fact of holding a particular rank. In the *Celebici Case*¹³⁵ the Trial Chamber of the ICTY clarified that command responsibility could be based on a mere *de facto* position of authority and that ‘the mere absence of formal legal authority to control the actions of subordinates should not be understood to preclude the imposition of such responsibility’¹³⁶. It follows that the doctrine applies to all individuals¹³⁷, as long as these exercised effective control over the offenders and had ‘the material ability to prevent and punish the commission of these offences’¹³⁸. The Appeals Chamber of the ICTY concurred with this view and observed that this standard had been also adopted by article 28 of the ICC Statute¹³⁹.

- 99 The showing of effective control is required for both *de jure* and *de facto* superiors. *Celebici* also drew a distinction between the tactical and executive commander¹⁴⁰. It observed that unlike a tactical commander, who is in charge of troops assigned to him, the latter is in charge of a territory and:

‘is per se responsible within the area of his occupation...regardless of the fact that the crimes committed were due to the action of the state or superior military authorities that he didn’t initiate or in which he didn’t participate’¹⁴¹.

To support this position, in *Celebici*¹⁴² the court referred to the findings of the *Hostage Case*¹⁴³.

- 100 This means further, that the commander of regular troops may be responsible for acts committed by irregular troops or guerrilla movements subordinated to his orders. This is an important alternative in cases where states may decide to rely on guerrilla movements, trained by their regular forces, in order to delegate responsibility for the commission of breaches of the international laws of armed conflict. In this type of situation, in fact, the hidden involvement of a state may be derived by establishing command responsibility of a member of its regular armed forces¹⁴⁴.

¹³⁴ *Bemba* (PTC II Decision), note 90, paras. 409–410, with reference to ICTY and ICTR jurisprudence, in particular *Čelebići* (Trial Chamber Judgement), note 3, para. 354.

¹³⁵ *Čelebići* (Trial Chamber Judgement), note 3, paras. 647, 704 and 742.

¹³⁶ *Čelebići* (Trial Chamber Judgement), note 3, para. 354 *et seq.* Confirmed in *Delalić* (Appeals Chamber Judgement), note 104, para. 195. See *Aleksovski* (Trial Chamber Judgement), note 99, paras. 75 *et seq.* This position was confirmed by *Prosecutor v. Aleksovski*, IT-95-14/1-A, Judgement, Appeals Chamber, 24. Mar. 2000, paras 74 *et seq.*; *Bemba* (PTC II Decision), note 90, para. 405. See also Arnold (2002) 7 JCSL 191, 191.

¹³⁷ See *Čelebići* (Trial Chamber Judgement), note 3, paras 354 *et seq.* and 735. See also *Kordić and Čerkez* (Trial Chamber Judgement), note 99, paras. 416 *et seq.*

¹³⁸ *Čelebići* (Trial Chamber Judgement), note 3, para. 378.

¹³⁹ *Delalić* (Appeals Chamber Judgement), note 104, paras. 196 and 197.

¹⁴⁰ This approach was also followed in the *The German High Command Trial*, note 60, p. 76.

¹⁴¹ Trial of Wilhelm von Leeb *et al.* (The German High Command Trial), UNWCC, XII Law Reports of Trials of War Criminals (1948) 76, referred to in Parks (1973) 62 MillRev 1, 43 and 44.

¹⁴² *Čelebići* (Trial Chamber Judgement), note 3, paras. 372, 648 and 649 and *Delalić* (Appeals Chamber Judgement), note 104, para. 258 (footnotes omitted). For details see Jia (2004) 3 Chinese J. I L. 1, 1.

¹⁴³ Trial of Wilhelm List *et al.* (Hostages Trial) UNWCC, VII Law Reports of Trials of War Criminals, Part IV, p. 71. See, Arnold (2002) 7 JCSL 191, 191; Parks (1973) 62 MillRev 1, 60 *et seq.* The tribunal concluded that there had to be a causative, overt act or omission from which a guilty intent could be inferred, therefore rejecting a theory of strict liability.

¹⁴⁴ For details on this aspect see Arnold (2002) 7 JCSL 191, 191.

2. Commanders and subordinates

a) **Structure of ‘forces’.** Armed forces in the international laws of armed conflict are defined in article 43 of Add. Prot. I of 1977¹⁴⁵. According to this, the armed forces of a Party to the conflict consist of all organized armed forces, groups and units which are under a command responsible to that Party for the conduct of its subordinates, even if that Party is represented by a government or an authority not recognized by the adverse Party. Such armed forces shall be subject to an internal disciplinary system which, *inter alia*, shall enforce compliance with the rules of international law applicable in armed conflict. Thus, an intrinsic element is that armed forces be organized under a command responsible to a Party to the conflict for the conduct of its subordinates. The same requirement appears in article 4 A of the III Geneva Convention on Prisoners of War of 1949. According to the latter, belligerents can only be recognized as combatants – *i.e.* the status granted automatically to members of regular armed forces – if they a) either belong to regular armed forces of a state, therefore automatically having a responsible commander, or, b) if they belong to irregular armed forces, which fulfil several criteria, among which that of being led by a responsible commander¹⁴⁶. Therefore, the two notions of armed forces and commander are in symbiosis. The first can only exist with the presence of the latter. The underlying idea is that only those belligerent groups which are organized and have responsible leaders will have the discipline necessary to conduct warfare operations in observance of international humanitarian law.

Forces *per se*, instead, are a wider category, which may also include armed police forces and paramilitary units.

b) **‘[E]ffective command and control’.** As already mentioned, a superior may only be held liable for the crimes committed by a subordinate if he effectively exercised command and control over him. Forces under the effective command and control are those which are subordinate to the commander in either a *de iure* or *de facto* chain of command and to which the superior may give orders. These may be transmitted directly or through intermediate subordinate commanders. When multiple chains of command exist, responsibility is assigned to the chain of command that holds the power to give orders related to the conduct of hostilities or the care or victims of war. The assessment whether the indicted subordinate was under the effective command of a superior is done on the basis of objective criteria, independently from the question of his subjective incompetence. The requirement of ‘effective command and control’ relates primarily to superiors of regular and irregular armed forces with a disciplined and hierarchical internal structure.

c) **‘[E]ffective authority and control’.** This requirement was introduced to take into consideration the situation where someone holds *de facto* authority or command and control

¹⁴⁵ 1. The armed forces of a Party to a conflict consist of all organized armed forces, groups and units which are under a command responsible to that Party for the conduct of its subordinates, even if that Party is represented by a government or an authority not recognized by an adverse Party. Such armed forces shall be subject to an internal disciplinary system which, *inter alia*, shall enforce compliance with the rules of international law applicable in armed conflict.

2. Members of the armed forces of a Party to a conflict (other than medical personnel and chaplains covered by article 33 of the Third Convention) are combatants, that is to say, they have the right to participate directly in hostilities.

3. Whenever a Party to a conflict incorporates a paramilitary or armed law enforcement agency into its armed forces it shall so notify the other Parties to the conflict 3. Whenever a Party to a conflict incorporates a paramilitary or armed law enforcement agency into its armed forces it shall so notify the other Parties to the conflict.

¹⁴⁶ The other criteria are that;

a) They belong to a State
b) they have a fixed distinctive sign recognizable at a distance;
c) they carry arms openly;
d) they conduct their operations in accordance with the Laws and Customs of War.
For more details see Arnold (2002) 7 JCSL 191, 191.

over third parties who do not belong to his chain of command or armed forces. It particularly comes into play when the commander of a regular armed force may exercise authority and control over members of a paramilitary group which act on its behalf or on its side. As already mentioned, there is then also the case of 'executive commanders', who are in charge of a territory¹⁴⁷ and who, in addition to their operational responsibility may give orders to all forces within their occupation zone¹⁴⁸.

In the *Bemba Case* the ICC Pre-Trial Chamber concluded that the expressions 'effective command' and 'effective authority' have close but distinct meanings, even though the required degree of control is the same¹⁴⁹. 'Effective authority' may indicate 'the modality, manner or nature, according to which, a military or military-like commander exercise 'control' over his forces or subordinates.' It refers to the material ability to prevent or repress the commission of the crimes or submit the matter to the competent authorities. The simple exercise of influence, albeit substantial, is not sufficient¹⁵⁰. The following factors may indicate a superior's position of authority and effective control: (i) the official position of the suspect; (ii) his power to issue or give orders; (i.e., ensure that they would be executed); (iii) his position within the military structure and the actual tasks that he carried out; (iv) the capacity to order forces or units under his command, whether under his immediate command or at a lower levels, to engage in hostilities; (v) the capacity to re-subordinate units or make changes to command structure; (vi) the power to promote, replace, remove or discipline any member of the forces; (vii) the authority to send forces where hostilities take place and withdraw them at any given moment; and (viii) the capacity to ensure compliance with the orders issued¹⁵¹. Between the 'effective control' and the criminal conduct there must be temporal coincidence, i.e. it must have existed at the time of commission of the underlying crime. In this regard, the ICC Pre-Trial Chamber distanced itself from Trial Chamber I of the Special Court for Sierra Leone (SCSL), according to which the 'superior must have had effective control over the perpetrator *at least* at the time when the crimes were about to be committed'. He must have been in charge of the forces *at least* at the time the crimes were committed¹⁵².

3. '[F]ailure to exercise control properly'

- 104 In order to say that a superior failed to 'exercise control properly', it must be shown that he had 'effective control' over his forces: failure to exercise such control is a scenario of non-compliance with such duties. The underlying crime must be the result of the superior's dereliction of duty to exercise proper control.¹⁵³ This position, supported in the *Bemba Case*, is in line with article 87 Add. Prot. I, according to which it is the commander's duty to take all necessary and reasonable measures to ensure his forces' compliance with international humanitarian law or to punish breaches thereof committed by his subordinates.¹⁵⁴ It is

¹⁴⁷ Čelebići (Trial Chamber Judgement), note 3, para. 720.

¹⁴⁸ Trial of Wilhelm von Leeb *et al.* (The German High Command Trial), UNWCC, *XII Law Reports of Trials of War Criminals* (1948) 36 and 76. See also, *Hostages Trial*, Part IV, note 59, at 71; Arnold (2002) 7 JCSL 191, 191; Parks (1973) 62 MilLRev 1, 43 and 44; Noll and Trechsel, *Schweizerisches Strafrecht, Allgemeiner Teil I* (2004) 242 *et seq.* The tribunal concluded that there had to be a causative, overt act or omission from which a guilty intent could be inferred, therefore rejecting a theory of strict liability.

¹⁴⁹ *Bemba* (PTC II Decision), note 90, para. 413.

¹⁵⁰ *Bemba* (PTC II Decision), note 90, para. 414–415; ICTY, *Prosecutor v. Hadzihasanovic, and Kubura*, IT-01-47-T, 'Judgment', 15 March 2006, paras 80 and 795.

¹⁵¹ *Bemba* (PTC II Decision), note 90, para. 417.

¹⁵² Situation in the Republic of Côte d'Ivoire in the case of the *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-642-Red, Public redacted version of Prosecution's final written submissions on the confirmation of charges proceedings, 31 March 2014, ICC-02/11-01/11-642-Conf, 1st May 2014, para. 29; *Bemba* (PTC II Decision), note 90, para. 418–419. Different view: SCSL, *The Prosecutor v. Sesay et al.*, SCSL-04-15-T, 'Judgment', 2 March 2009, para. 299.

¹⁵³ *Bemba* (PTC II Decision), note 90, para. 422.

¹⁵⁴ *Aleksovski*, note 98, para. 81 and Čelebići, note 3, para. 395.

irrelevant, whether or not the commander had the power to intervene, as long as he did not attempt to do so¹⁵⁵. At operational level this duty requires commanders to:

- ensures that forces are adequately trained in International Humanitarian Law
- ensure that due regard is paid to International Humanitarian Law in operational decision making
- ensure an effective reporting system is established so that he/she is informed of incidents when violations of International Humanitarian Law might have occurred
- monitor the reporting system to ensure it is effective

a) **Passivity and duty to become active.** Responsibility for omission of intervention is explicitly stated in articles 86 and 87 of Add. Prot. I of 1977. The idea is that due to his/her ‘guarantor’ position, a superior shall intervene to prevent the occurrence of a crime he/she has knowledge of, or at least refer the case to the military judicial authorities. The duty to intervene, however, is only attached to perpetrators who qualify as commanders, meaning that the offence can only be committed by a specific category of persons. In this sense, the crime is conceived as a *sui generis* form of so-called genuine omissions liability (‘echtes Unterlassungsdelikt’) as known to civil law systems.¹⁵⁶ As stressed by the ICTY in *Celebici*, omission of intervention may imply an accumulative charge for individual and command responsibility¹⁵⁷. The Court held that although *prima facie* it would be illogical to hold a superior criminally responsible for planning, instigating or ordering the commission of crimes *and*, at the same time, reproach him for not preventing or punishing them, the concurrent application of article 7 para. 1 and 7 para. 3 of the ICTY Statute is acceptable where his failure to intervene allows the commission of *subsequent* crimes. This may occur in relation with the failure to punish¹⁵⁸. The same view was shared in the *Celebici* and *Aleksovski* appeal judgements, ruling that these cases will result in a single but aggravated conviction for command responsibility¹⁵⁹. 105

b) **‘Crimes committed’ as a result.** aa) **Completed or attempted crimes.** Even though command responsibility is a *sui generis* crime that is distinct from the crimes committed by the subordinates, it may only be triggered if an underlying offence was completed (or at least attempted) by the subordinates. The question of attempt is discussed in more details later. 106

bb) **Committed in which modality of article 25 para. 3 ever.** What is the relationship between superior responsibility under article 28 and individual responsibility under article 25? Article 25 para. 3 (a) – (e) defines five groups of conduct. *Litera a* deals with the commission, *litera b* with the instigation of the commission and *litera c* with facilitating the commission of a crime by assisting the principal perpetrator. Pursuant to *litera d*, contribution in any other way to the commission or attempted commission of the crime is only punishable when a ‘group of persons acting with a common purpose’ sets a criminal conduct and the participating perpetrator fulfils additional demands, such as acting intentionally, 107

¹⁵⁵ Bantekas (1999) 93 AJIL 577, 591; Green (1989) 27 *CanYbIL* 200 and *Akayesu* (TC Judgement), note 117, para. 46.

¹⁵⁶ See Arnold and Wehrenberg (2013) 2 *MLLWR* 4 (forthcoming); Fiolka, in: Niggli and Wiprächtiger (eds.) *Basler Kommentar zum StGB, Bd. II* (2013), with reference to Ambos, in: Cassese *et al.* (eds.) *The Rome Statute of the International Criminal Court: A Commentary* (2002) 823, 851 *et seq.*; Ambos, *Der Allgemeine Teil des Völkerstrafrechts, Ansätze einer Dogmatisierung* (2004) 667 *et seq.*; Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 186. Critical: Weigend, (2004) 116 *ZStW* 999, 1006 *et seq.*

¹⁵⁷ See *Blaškić* (Trial Chamber Judgement), note 101, paras 263, 270 and 284. On the understanding of the offence of command responsibility as a so-called ‘echtes Unterlassungsdelikt’, see Arnold and Wehrenberg (2013) 2 *MLLWR* (forthcoming), with reference to art. 264 b of the Swiss Criminal Code, which implements article 28 ICC Statute.

¹⁵⁸ See *Prosecutor v. Tihomir Blaškić*, IT-95-14-T, Trial Chamber Judgement of 3 March 2000, paras 337 and 338.

¹⁵⁹ See, *Prosecutor v. Aleksovski*, IT-95-14/1-A, Appeals Chamber Judgment of 24 March 2000, para 183; *Delalić* (Appeals Chamber Judgement), note 102, paras 736 and 743 *et seq.* The issue of direct responsibility is beyond the scope of this paper.

aiming to further the criminal activity or criminal purpose of the group and when he acts ‘in the knowledge of the intention of the group to commit the crime’. *Litera e*, instead, establishes individual criminal responsibility for incitement to commit genocide under certain conditions.

- 108 Command responsibility is primarily constructed on omission of intervention, whereas the forms of participation referred to under article 25 refer to active participation such as incitement. Under article 28 it is enough that because of the failure to control or intervene, crimes are committed which most probably would not have been committed otherwise. As previously mentioned, however, given certain circumstances inactivity by a superior may also consist in a form of direct participation, thereby aggravating the culpability of the superior¹⁶⁰. In such cases the active participation should prevail as *lex specialis*¹⁶¹. Another difference is that whereas direct responsibility requires willful intent, the doctrine of superior responsibility states that the latter may be incurred also on the basis of negligence¹⁶².
- 109 cc) **Causality**. In the *Bemba Case* the ICC’s Pre-Trial Chamber acknowledged that, in explicit contrast to the existing international jurisprudence¹⁶³, the use of the words ‘as a result of’ in the chapeau of article 28 ICC Statute suggest that causality is a separate element of superior responsibility¹⁶⁴. This, however, only holds true in relation to the duty to prevent the commission of *future* crimes.¹⁶⁵ With regard to the failure to repress or report past crimes, accountability will depend on whether the act of omission was likely to increase the risk of further crimes¹⁶⁶. Since the effect of an omission cannot be determined with certainty, only a hypothetical causality can be invoked, on the basis of different available tests. The Pre-Trial Chamber in the *Bemba Case* opted for a ‘but for test’, ‘in the sense that, but for the superior’s failure to fulfil his duty to take reasonable and necessary measures to prevent crimes, those crimes would not have been committed by his forces.’¹⁶⁷ It further clarified that: ‘it is only necessary to prove that the commander’s omission increased the risk of the commission of the crimes’.¹⁶⁸ The ICC, thus, seems to favour the so-called theory of risk aggravation/of added peril¹⁶⁹, which was arguably followed also by the ICTY’s Trial Chamber in *Celebići*¹⁷⁰. According to this, it is sufficient to prove that the intervention *may* have prevented the

¹⁶⁰ See *Kordić and Čerkez* (Trial Chamber Judgement), note 98, para. 371 and *Delalić* (Appeals Chamber Judgement), note 104, para. 736: ‘proof of active participation by a superior in the criminal acts of subordinates adds to the gravity of the superior’s failure to prevent or punish those acts and may therefore aggravate the sentence’.

¹⁶¹ See Triffterer (2002) 15 *LeidenJIL* 179, 188.

¹⁶² See *Čelebići* (Trial Chamber Judgement), note 3, para. 383 *et seq.* Rogers, *Law on the battlefield* (1996); Bantekas (1999) 93 *AJIL* 577, 590. By indirect intent he means *dolus eventualis*, i.e. those circumstances in which the prosecuted has no wilful intent to perpetrate the acts but nevertheless fails to take preventive measures notwithstanding the knowledge of the risk. On the issue of negligence, see *Čelebići* (Trial Chamber Judgement), note 3, paras. 328 and 392 and *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgement, Trial Chamber, 2 Sep. 1998, para. 489 and *Musema* (Trial Chamber Judgement), note 97, para. 131, indicating that negligence may be a basis for prosecuting where this is so serious that is tantamount to acquiescence or even malicious intent.

¹⁶³ *Bemba* (PTC II Decision), note 90, para. 423, fn 550; Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 215.

¹⁶⁴ *Bemba* (PTC II Decision), note 90, paras. 423–424, citing Triffterer and Ambos in FN 551; see also Cryer, *Prosecuting International Crimes, Selectivity and the International Criminal Law Regime* (2005) 325; Moloto (2009) 3 *BJILP* 12, 21.

¹⁶⁵ *Bemba* (PTC II Decision), note 90, para. 424, with reference to ICTY, *Prosecutor v. Halilović*, IT-01-48-T, ‘Judgment’, 16 November 2005, para. 96; *Prosecutor v. Hadžihasanović et al.*, IT-01-47-A, ‘Appeals Chamber Judgment’, 22 April 2008, para. 267.

¹⁶⁶ *Bemba* (PTC II Decision), note 90, para. 424; ICTY, *Prosecutor v. Hadžihasanović et al.*, IT-01-47-A, ‘Appeals Chamber Judgment’, 22 April 2008, para. 267.

¹⁶⁷ *Bemba* (PTC II Decision), note 90, para. 425. On this aspect see also Trechsel (2009) 3 *BJILP* 26, 29–30, who is against a separate element of causality.

¹⁶⁸ *Bemba* (PTC II Decision), note 90, para. 425.

¹⁶⁹ See Stratenwerth, *Schweizerisches Strafrecht, Allgemeiner Teil I: Die Straftat* (1996) 156; Ambos, *Treatise on International Criminal Law*, (2013) 215; Ambos (2009) 22 *LeidenJIL* 715, 721–2.

¹⁷⁰ See the 2nd edition of this Commentary to article 28 ICC Statute, para 109 *et seq.*; *Čelebići* (Trial Chamber Judgement), note 3, para. 399.

commission of the crime, i.e. that the commander's inaction increased the risk of the commission of the subordinates' crimes¹⁷¹.

Alternatively one may argue for the application of the – stricter – probability test¹⁷², according to which a crime can only be imputed if the intervention would *most likely* have prevented its occurrence¹⁷³. These questions become particularly relevant when there has been a change in command. According to some, a former commander should only be responsible if a *novus actus interveniens* cannot be established and if the breaches would not have occurred but for his failure to control his men¹⁷⁴. In the *Oric Case*, the ICTY¹⁷⁵ stated that for a superior's duty to punish, it should be immaterial whether he had assumed control over the relevant subordinates prior to their committing the crime. However, since it was bound by the precedent set in the *Hadžihasanović Appeal Case*¹⁷⁶, the *Oric* Trial Chamber followed the view that the superior must have had control over the perpetrators both at the time of its commission and at the time that measures to punish were to be taken¹⁷⁷. In Trechsel's view, the discussion about the applicable test for hypothetical causality is superfluous, in that the text of article 28 requires no causal nexus at all. It is not necessary to establish whether, in the specific case, the necessary and reasonable measures that a commander is supposed to have taken would have actually prevented the crimes. In his view, the commander is not responsible the fact of not having prevented the crimes, but only for not taking all necessary and reasonable measures within his power to prevent or repress their commission. Otherwise, if causality were required as a separate element, the text of article 28 ICC Statute should have read 'failed to prevent...'¹⁷⁸. Thus, in Trechsel's view, a commander who fails to punish those subordinates that perpetrated international crimes prior to the change of command is to be held liable. The argument that a superior should be liable for his dereliction of duty, regardless of whether he contributed to the commission of the underlying crimes, can be at best explained with the theory of inchoate endangerment¹⁷⁹. An analogy can be drawn to the crime of incitement to genocide (article 25 (3)(e), 6 ICC Statute).

In sum, the ICC jurisprudence suggests that with regard to the ex post facto failure to punish or report the crimes the requirement of causality is not a separate element of the doctrine of superior responsibility. Whether this also holds true with regard to the failure to prevent the crimes, is, as mentioned, controversial. 110

dd) Accountability. As already mentioned, a superior shall be held liable only where he (in addition to failure to control properly) failed to comply with his duty to take all possible measures to prevent the commission of a crime that he had or should have had knowledge of, or where he failed to report the facts to the competent authorities. 111

¹⁷¹ See Stratenwerth, *Schweizerisches Strafrecht, Allgemeiner Teil I: Die Straftat* (1996) 43. See for example the Swiss Supreme Court decisions BGE 101 IV 152, BGE 108 IV 7 *et seq.*

¹⁷² See Noll and Trechsel, *Schweizerisches Strafrecht, Allgemeiner Teil I* (2004) at 252 *et seq.*

¹⁷³ See Noll and Trechsel, *Schweizerisches Strafrecht, Allgemeiner Teil I* (2004) 252 *et seq.* According to Ambos, this is ultimately a policy issue: Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 215.

¹⁷⁴ See Bantekas (1999) 93 *AJIL* 577, 590.

¹⁷⁵ *Prosecutor v. Naser Orić*, IT-03-68-T, Judgment, Trial Chamber, 30 June 2006, para. 335.

¹⁷⁶ *Prosecutor v. Hadžihasanović*, Decision on Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility, 16 July 2003, paras. 40ss.

¹⁷⁷ *Prosecutor v. Naser Orić*, IT-03-68-T, Judgment, Trial Chamber, 30 June 2006, para. 336. Depending on the standard, various degrees of liability may come into play. For instance, according to Bantekas, a former commander may be held responsible only if a *novus actus interveniens* cannot be established and if the breaches would not have occurred but for his failure to control his men. This position would seem to follow the probability theory test. See Bantekas (1999) 93 *AJIL* 577, 590.

¹⁷⁸ Trechsel (2009) 3 *BJILP* 26, 29–30; *Prosecutor v. Orić*, IT-03-68-T, Judgment, 30 June 2006, § 338; Different opinion: Ambos (2007) 5 *JICJ* 159, 178; Mettraux, *The law of command responsibility* (2009) 82; Moloto, (2009) 3 *BJILP* 12.

¹⁷⁹ See mn 92.

A particular case is the responsibility of a superior for acts committed *prior* to becoming the superior of the perpetrator. This issue arose in the *Hadžihasanović Case*¹⁸⁰. Amir Kubara was charged with command responsibility for, *inter alia*, the Dusina killings in the Zenica municipality and the destruction and plunder of property in January 1993. Kubara, however, had only taken up his position as acting commander of the 7th Muslim Mountain Brigade of the Bosnian Army 3rd Corps on 1 April 1993. The Trial Chamber held that command responsibility did arise in the case of a superior who assumed command after the events mentioned in the indictment, even though it would be a matter of degree as to when liability attached, depending partly on the length of time that had elapsed between the events and the assumption of command. Where the crimes came to knowledge only after the change of command, it would not be possible to proceed against the original commander if he had had no reason to know that they were being or had been committed by subordinates. In this case, Kubara's liability to take action ceased on his relinquishment of command but, on the Defence reading of the case, would not be transferred to the new superior. The Appeals Chamber observed that there was no practice or *opinio juris* to support the view that a commander can be held responsible for crimes committed by a subordinate prior to his/her assumption of command. Dissenting Judge Hunt, however, referred to the *Kordić* judgment where the Trial Chamber said, albeit *obiter*:

'Persons who assume command after the commission [of the crime] are under the same duty to punish'¹⁸¹.

- 112 As observed by Charles Garraway, although the majority in the *Hadžihasanović* opinion pointed out that responsibility is limited to the commander who '*knew, or had information which should have enabled [the commander] to conclude in the circumstances at the time, that [the subordinate] was committing or was going to commit [a crime]*'¹⁸², this does not mean that commanders who discover crimes after the event are not to be held responsible at all¹⁸³. However, a link must be established, so that the commander shall not be subject to strict liability and should incur responsibility only where he/she had power to intervene and failed to do so.

- 113 **c) Mental element: intent and knowledge.** There are three mental elements mentioned under article 28 Rome Statute:

- the commander shall have either known or should have known that the forces were committing or about to commit such crimes;
- the commander must have failed to take the necessary and reasonable measures within his or her power to prevent or repress their commission or to submit the matter to the competent authorities
- the commander must have consciously disregarded information which clearly indicated, that the subordinates were committing or about to commit such crimes;

Article 30 is a default rule defining the mental elements of crime which apply unless otherwise provided in the ICC Statute. Pursuant to article 25 para. 3, principal perpetrators and accomplices can only be held accountable when acting intentionally. The intent of the accomplice shall moreover encompass the *mens rea* of the principal perpetrator. Pursuant to article 28 Rome Statute, negligence shall lead to liability. It shall apply as a *lex specialis* in relation to article 30.

¹⁸⁰ *Prosecutor v. Hadžihasanović, Alagić and Kubura*, IT-01-47-PT, Interlocutory Appeal on Decision on Joint Challenge to Jurisdiction, Appeals Chamber, 27. Nov. 2002. On this see Garraway, in: Arnold and Hildbrand (eds.), *International Humanitarian Law and the 21st Century's Conflicts: Changes and Challenges* (2005), at 126.

¹⁸¹ Separate and Partially Dissenting Opinion of Judge David Hunt to *Prosecutor v. Hadžihasanović, Alagić and Kubura*, IT-01-47-AR72, Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility, Appeals Chamber, 16. Jul. 2003, para. 23, quoting from para. 446 of the Judgment delivered in *Kordić and Čerkez* (Trial Chamber Judgement), note 99.

¹⁸² See the majority opinion to *Hadžihasanović, Alagić and Kubura* (Appeals Chamber Interlocutory Appeal), note 181, para. 47.

¹⁸³ Garraway, in: Arnold and Hildbrand, *International Humanitarian Law and the 21st Century's Conflicts – Changes and Challenges* (2005) 117, 134.

Unlike the principal perpetrator or the accomplice, the superior does not have to know all the details of the crimes planned to be committed. It is sufficient that he believed that one or more of his subordinates may commit one or more crimes encompassed by the ICC Statute. If command responsibility, under article 28 ICC Statute, is to be understood as a separate offence punishing the author's disregard of his or her duties as commander, it follows that a detailed knowledge of the crimes planned by the subordinates on his part is unnecessary.

The 'knew' or 'should have known' element is particular in that it requires only one of the two component elements of the *mens rea*, *i. e.* the intentional and knowledge sides, as known to civil law systems. It is not necessary that the superior shared the intent of the principal perpetrator. Mere knowledge, or failure to acquire knowledge where this would have been required by the circumstances, is *per se* enough. This kind of failure to acquire knowledge may constitute either unconscious negligence or conscious negligence, *i. e.* recklessness, too.

Failure to take all necessary measures may further be classified into an intentional or unintentional (negligent) act. However, as observed by Triffterer, if the superior intentionally decides to remain passive, he may fulfil one of the criteria of article 25 para. 3, such as *e. g.* subpara (c) on assistance to a crime, and thus become liable as a direct participant¹⁸⁴. This may be the case, *e. g.*, where passivity expresses a psychological support to the subordinates. This problem was raised by the ICTY in the *Kordić* and *Blaskić* cases¹⁸⁵.

4. Failure 'to take all necessary and reasonable measures'

a) '[K]new or should have known that the forces were committing or about to commit such crimes'. In the *Bemba Case*, the ICC reiterated that the Rome Statute does not endorse the concept of strict liability and that the suspect must have had knowledge of or should have known that his forces were about to engage or were engaging or had engaged in a conduct constituting the underlying crimes. Two standards of fault element are encompassed by Art. 28: the first, which is 'encapsulated' by the term 'known', requires the existence of actual knowledge. This, however, cannot be presumed. In determining when actual knowledge exists, the ICC referred to the criteria established by the jurisprudence of the UN ad hoc tribunals. These include the number of illegal acts, their scope, whether their occurrence is widespread, the time during which the prohibited acts took place, the type and number of forces involved, the means of available communication, the *modus operandi* of similar acts, the scope and nature of the superior's position and responsibility in the hierarchal structure, the location of the commander at the time and the geographical location of the acts.¹⁸⁶ According to the ICC, actual knowledge may be also proven *a priori*, a military commander is part of an organized structure with established reporting and monitoring systems. The second, covered by the term 'should have known', requires instead the superior to have merely been negligent in failing to acquire knowledge of his subordinates' illegal conduct.¹⁸⁷ Interestingly, the ICC's Pre-Trial Chamber concluded that this standard 'requires more of an active duty on the part of the superior to take the necessary measures to secure knowledge of the conduct of his troops and to inquire, regardless of the availability of information at the time on the commission of the crime'.¹⁸⁸ On the basis of the drafting history of this provision, the Pre-Trial Chamber went on to state that the intent was to take a more stringent approach towards commanders and military-like commanders compared to other superiors, an approach 'justified by the nature and type of responsibility assigned to this category of superiors'¹⁸⁹. It then concluded that the 'should have known standard' is different from the 'had reason to know' criterion embodied in the statutes of the ICTR, ICTY

¹⁸⁴ Triffterer (2002) 15 *LeidenJIL* 179, 247.

¹⁸⁵ See Nybondas (2003) 59 *NethILRev* 1, 72 *et seq.*

¹⁸⁶ *Bemba* (PTC II Decision), note 90, para. 430.

¹⁸⁷ *Bemba* (PTC II Decision), note 90, para. 427/432.

¹⁸⁸ *Bemba* (PTC II Decision), note 90, para. 433.

¹⁸⁹ *Bemba* (PTC II Decision), note 90, para. 433.

and SCSL. However, it did not deem it necessary to address the differences in that decision and held that the indicia used by the ad hoc tribunals to meet the ‘had reason to know’ standard may also be useful when applying the ‘should have known’ requirement¹⁹⁰. The question, thus, still remains open as to whether, ultimately, the two standards are really to be interpreted differently. While awaiting for a clarification from the ICC jurisprudence, the suggested way to interpret this provision is in light of the UN ad hoc tribunals. It follows, as previously mentioned, that a superior can no longer be held responsible for having failed to search for information allowing him to become aware of the possibility of crimes being committed by his/her subordinates. However, responsibility will be imputed to him where, owing to the circumstances, he/she should have known that his/her forces were committing or about to commit such crimes.

117 **b) Dereliction of duty and power to react.** Although recent jurisprudence, like the *Hadzihasanovic* Judgement, seems to blur direct individual responsibility (article 25) with superior responsibility (article 28), it should be recalled that the latter’s underlying idea is that a superior shall be liable for having failed to exercise his duty to properly supervise his subordinates: the ‘criminal’ conduct is the dereliction of this duty, assuming the commander’s power to intervene. This additional requirement is important to avoid strict liability. The failure to intervene is not to be confused with participation in the underlying crimes. This was confirmed in the *Bemba* case, in which the ICC’s Pre-Trial Chamber additionally observed that there are three duties that need to be discharged by a superior: duty to prevent, to repress and to report. A failure to properly discharge the first duty cannot be cured by fulfilling the other two.¹⁹¹

118 **c) Measures needed to avoid or to compensate ‘the result of’ the ‘failure to exercise control properly’.** aa) **Dependence on the stage of the commission.** What measures shall be taken by a commander? This depends on the stage of the commission of the crimes. The attempt by the subordinates to commit a crime shall be sufficient to trigger command responsibility¹⁹².

119 **bb) ‘[T]o prevent or repress ... or to submit’.** If the underlying crime is only at its initial stage, *i. e.* it is merely being attempted, the superior has the duty to intervene to impede it. Alternatively, where it has already been committed and it is too late to prevent it, the commander shall take measures to repress it. The superior shall remark to the other subordinates that such conduct was wrong, thereby interrupting a possible ‘chain effect’. If a superior lack the power to take disciplinary measures or where these appear to be insufficiently severe – which shall always be the case with regard to the crimes outlawed by the ICC Statute – he shall submit the case to the competent authorities.

In assessing the appropriate conduct in preventing the crimes, the ICC’s Pre-Trial Chamber considers it appropriate to be guided by relevant factors such as measures: (i) to ensure that superior’s forces are adequately trained in International Humanitarian Law; (ii) to secure reports that military actions were carried out in accordance with international law; (iii) to issue orders aiming at bringing the relevant practices into accord with the rules of war; (iv) to take disciplinary measures to prevent the commission of atrocities by the troops under the superior’s command.¹⁹³

¹⁹⁰ *Bemba* (PTC II Decision), note 90, para. 434. For an analysis of the jurisprudence of the ICTY on the indicia suggesting knowledge, see Maugeri, *La responsabilità da comando nello Statuto della Corte Penale Internazionale* (2007) 395 *et seq.* In Prof. Ambos’ view, both the had reason to know and the should have known standards essentially constitute negligence standards: ‘If one really wants to read a difference in these two standards considering that the ‘should have known’ standard ‘goes one step below’ the ‘had reason to know’ standard, it would be the ICC’s task to employ a restrictive interpretation which brings the former standard in line with the latter.’ (Ambos (2009) 22 *LeidenJIL* 715, 722).

¹⁹¹ *Bemba* (PTC II Decision), note 90, paras. 436. and 405. For a critical position see Ambos (2009) (2009) 22 *LeidenJIL* 715, 721.

¹⁹² Arnold and Wehrenberg (2013) 2 *MLLWR* 27, 30.

¹⁹³ *Bemba* (PTC II Decision), note 90, para. 438.

With regard to the duty to repress, in *Bemba* the ICC stated that this encompasses two separate duties arising at two different stages: First, the duty to repress includes a duty to stop ongoing crimes from continuing to be committed, in order to ‘interrupt a possible chain effect, which may lead to other similar events’. Second, the duty to repress encompasses an obligation to punish forces after the commission of crimes.¹⁹⁴

The duty to punish, instead, which is a part of the duty to repress, may be fulfilled by the superior taking the necessary and reasonable measures to punish his forces, or, if he does not have the ability to do so, by referring the matter to the competent authorities. Thus, it constitutes an alternative to the third duty, i.e. the duty to submit the matter to the competent Authorities¹⁹⁵.

aaa) **ex post or ex ante evaluation?** – The objective comparable commander ‘in the situation at the time’, article 87 para. 2 Add. Prot. I. It would be too simplistic to judge a situation, in particular the possibility of intervention of a commander, *ex post*. A commander’s position and possibility to intervene shall rather be assessed on the basis of what any commander, in such a situation, would have objectively done at the time of the facts. 120

bbb) **Hypothetical causation.** Causation is hypothetical insofar as the question that needs to be assessed is whether, in the hypothesis that the commander had intervened to prevent the occurrence of crimes, the crimes would have been prevented or whether they would have nonetheless occurred. Reference can be made to what has been said previously in relation to the probability and risk aggravation theories. 121

d) **Threshold of unreasonable demands?** In some situations, a commander may have little power to intervene. For this reason it is always important not to confuse moral with legal obligations. A practical difficulty may, for example, be the rigidity of the chain of command. A middle officer in charge of subordinates who have committed a crime may have to refer the case to a commander – without the guarantee that the case will be considered any further – without having the chance to report it directly to the judicial military authorities. However, in this case, the mere fact of having reported the occurrences to the competent superior shall exempt him from liability.¹⁹⁶ In some cases, however, even this possibility may be precluded. In the *Krstić Case*, e.g., the Appeal’s Chamber of the ICTY held that the accused, in his position as a commander, would not have been able to prevent or punish because his superiors were involved ‘in the plot’.¹⁹⁷ 122

In *Krnojelac*, the ICTY held that an analogous situation may occur to a commander charged with crimes against humanity, which require a widespread and systematic attack, meaning that the top of the hierarchy is also very likely to be involved, thus making it very difficult for anyone in a middle position to do anything. It is therefore very important to understand what kind of commanding position was held by the accused, what his *de facto* and legal powers to intervene were.¹⁹⁸

III. Paragraph (b)

1. ‘[S]uperior and subordinate relationships not described in paragraph (a)’

Paragraph (a) refers to military or quasi-military relationships in which persons exercise command over forces. However, the recent occurrences in Rwanda and the former Yugoslavia raised awareness about the fact that in some cases civilians – who are not *de facto* enrolled in the military – may exercise a similar authority over forces, in which case they should incur 123

¹⁹⁴ *Bemba* (PTC II Decision), note 90, para 439.

¹⁹⁵ *Bemba* (PTC II Decision), note 90, para. 440.

¹⁹⁶ Nybondas (2003) 59 *NethILRev* 1, 170; Arnold (2013) 11 *JICJ* 943–951.

¹⁹⁷ *Prosecutor v. Krstić*, IT-98-33-A, Appeals Chamber, Judgment, 19 April 2004, para. 143, fn. 250.

¹⁹⁸ *Prosecutor v. Krnojelac*, IT-97-25-T, Trial Chamber, Judgment, 15 March 2002, para. 127.

a responsibility similar to that of military commanders. Reference is made in particular to non-military members of governments, political parties, or business companies¹⁹⁹.

2. Subsidiarity based on a different notion of ‘relationship’ and ‘effective authority and control’

124 Paragraph (b) is subsidiary to paragraph (a). Therefore, it only comes into play where a hierarchy of a military or quasi-military nature cannot be established. The essence is that the superior shall have *de jure* or *de facto* authority enabling him to control his subordinates. In *Akayesu* the Trial Chamber of the ICTR confirmed the applicability of the doctrine of command responsibility to non-international conflicts and its extension to civilians holding *de facto* positions of authority²⁰⁰.

125 However, the assessment – and the underlying criteria – of whether someone is to be considered as exercising a military or a quasi-military function, or whether he has civilian status, is a matter that will have to be assessed by the ICC’s jurisprudence. In the *Kordić Case*, the Trial Chamber concluded that the accused could not be considered a military commander because:

‘while he played an important role in military matters, even at times issuing orders, and exercising authority over HVO forces, he was, and remained throughout the indictment period, a civilian, who was not part of the formal command structure of the HVO’²⁰¹.

This motivation, however, is quite superficial. For the purposes of the ICTY Statute, the question whether someone was a military commander or a civilian exercising commanding functions may be less dramatic, since the knowledge requirement is the same. This, however, may have serious impacts under article 28 ICC Statute, since burden of responsibility of a civilian accused is much lower²⁰². Therefore, the assessment criteria under paragraph (b) of article 28 will have to be carefully developed by the ICC.

3. ‘[F]ailure to exercise control properly’

126 As reflected in article 86 Add. Prot I, a superior is under the duty to establish and maintain an effective reporting system to ensure the compliance of his/her subordinates with International Humanitarian Law in the course of their duties. However, under paragraph (b) a superior shall not be responsible for acts committed by subordinates which were not related to their work. If, *e.g.*, the employees of a paint factory engage in genocidal activities beyond the working hours, it is unlikely that the factory manager would be regarded as liable under article 28.

4. Failure ‘to take all necessary and reasonable measures’

127 a) ‘[K]new or consciously disregarded information which clearly indicated, that the subordinates were committing or about to commit such crimes’. The *mens rea* threshold for civilian superiors was intentionally set below the standard applicable to military commanders. It was deemed that military commanders, because of their position within a strictly hierarchical and organised structure, would have far more possibilities to receive information on the conduct of their subordinates. For non-military commanders, therefore, it is necessary to establish:

- that information clearly indicating a significant risk that subordinates were committing or were about to commit offences existed;
- that this information was available to the superior, and

¹⁹⁹ Situation in the Republic of Côte d’Ivoire in the case of the *Prosecutor v. Laurent Gbagbo*, ICC-02/11-01/11-642-Red, Public redacted version of Prosecution’s final written submissions on the confirmation of charges proceedings, 1 May 2014, para. 26; *Bemba* (PTC II Decision), note 90, para. 409.

²⁰⁰ See, *Akayesu*, *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgement, Trial Chamber, 2 Sep. 1998, para. 492.

²⁰¹ See *Kordić and Čerkez* (Trial Chamber Judgement), note 99, para. 838.

²⁰² See Nybondas, *Command Responsibility and Its Applicability to Civilian Superiors* (2010) 79.

- that the superior, while aware that such a category of information existed, declined to refer to the category of information;
- b) crimes concerning ‘activities that were within the effective responsibility and control of the superior’.

b) Crimes concerning ‘activities that were within the effective responsibility and control of the superior’. As mentioned, a civilian superior shall only be liable for activities that were within his effective responsibility and control. Therefore, a civilian superior shall not be held liable for the misconduct of subordinates that occurred beyond the working hours or which were not related to their working activities. As mentioned, the doctrine of command responsibility is based on the idea of the ‘guarantor position’ of the superior, which shall be limited to the sphere of his competences. To do otherwise would imply a collective punishment.

c) The objective comparable superior ‘in the situation at the time’. Further, the responsibility of civilian superiors shall be assessed *ex ante*, on the basis of ‘the situation at the time of occurrence of the facts’.

d) Threshold of reasonable demands? Civilian superiors, unlike military commanders, are unlikely to have disciplinary powers. Therefore, what can be reasonably expected from them, is the reporting of misconduct to the competent authorities. Dismissal may be the first step, although care should be taken in assuring that once the employee/subordinate has been dismissed, a criminal proceeding will be opened. This may hold true in particular for NGOs or other institutions engaged in peace support operations, often availing themselves of the support of private subcontractors. There have been cases reported of such subcontractors committing crimes. Very often the first consequence is immediate dismissal and repatriation, according to the employment contract. However, it should be assured that once repatriated the individual will be subject to a criminal investigation procedure.

C. Special remarks

I. Assisting in command responsibility, a participation in the crime committed by subordinates?

Command responsibility can only be incurred by persons holding authority over the principal perpetrator. Thus, someone may be a co-perpetrator under article 28 only if he also holds such authority. A perpetrator may in fact have several commanders in the same chain of command. Participation as ‘co-author’ is conceivable *e.g.* where a commander fails to report to his superior a subordinate’s misconduct and also his own superior, who is the next in the chain of command and who has also acquired knowledge of the facts, fails to investigate or report further the matter. In this case both commanders may incur liability under article 28. If instead a commander, who has acquired information revealing the commission of crimes by subordinates, asks another subordinate to destroy this information, the subordinate, who may not necessarily have authority over the primary perpetrator, may be liable directly and individually under article 25 for having actively supported him.

Any other kind of support to the primary perpetrator (instigation, assistance, or otherwise support, *e.g.* by assisting the commander in his failure to intervene) may also be performed without any particular qualification or guarantor position. In this case, however, the accomplice or instigator will be liable according to Article 25 (3) of the Statute.

II. Attempted command responsibility, an attempted crime within the jurisdiction of the Court?

133 Attempt can only be given in those cases where the perpetrator acts *intentionally* but, for some reasons, his conduct does not lead to the expected results.

With regard to attempt and command responsibility, therefore, two scenarios arise:

- a) the first concerns the situation where a commander ‘attempts’ to incur into liability under the doctrine of command responsibility;
- b) the second concerns the case where the primary perpetrator merely attempts to commit a crime, and the commander, without knowledge of the fact that the acts will not lead to any effects, fails to intervene.

The first case may be given where a commander is unwilling to either report or prevent a crime he has heard rumours about, and in the end it turns out that the subordinates never had any intention to commit a crime. In this case the commander has simply attempted to ‘cover’ his subordinates.

134 In the Germanique doctrine this would be defined as an impossible attempt (*untauglicher Versuch/délit impossible, delitto impossibile*), since the underlying offence was not even attempted. Command responsibility requires at least the attempted commission of an underlying crime by a subordinate. Mere failure to control the subordinates, without any initial phases of the occurrence of the crime (e.g. attempt), does not imply criminal liability. This is due to the fact that even though command responsibility is a *sui generis*, separate offence punishing a commander’s failure to discharge his duties, the gravity of the punishment under art. 28 ICC can only be justified when a nexus to international crimes is proven. Otherwise, as already discussed, alternative provisions may be those addressing the violation of military regulations providing for the duty to properly command and control. Thus, unless the crime has at least been attempted, the commander will not be liable, since command responsibility is a *sui generis* crime that is accessory to the commission of an underlying offence falling within the jurisdiction of the ICC. This qualification, however, does not mean that command responsibility is a form of *participation* in the underlying crime.

135 The second scenario exists where a commander who acquires knowledge of his subordinates’ plan to commit a war crime, decides not to intervene and, for external reasons, the conduct of his subordinates’ does not lead to the expected results. As under art. 28 ICC Statute command responsibility is accessory to the commission of an international crime by the subordinate(s), a commander failing to discharge his duties will only be liable if the underlying crime has been committed or, at least, attempted. Alternatively, the commander could arguably be held accountable for an attempted breach of art. 28 ICC Statute. The *sui generis* approach is supported by international jurisprudence and is to be welcomed, even though a systematic interpretation of art. 28 ICC would justify the (minority view) that this provision corresponds to a form of participation to the underlying offences. A similar conclusion can be reached in the event where the subordinate had a justification for the commission of the underlying crime, but the superior failed to intervene without being aware of the existence of this justification.²⁰³

III. Concurring responsibility?

1. Authorities in a hierarchial chain all failing to fulfil their duties

136 If there is more than one person responsible for the acts of a subordinate in the same chain of command, all of them may be individually responsible under article 28 ICC Statute.

²⁰³ See Ambos, *Treatise on International Criminal Law*, Vol. I (2013) 203.

2. Command responsibility and participation according to article 25

Yamashita was not being punished ‘for a separate offence of failure to control, but for the actual offences committed by his subordinates’²⁰⁴. This conclusion, however, was reached on the basis of a strict liability approach to the doctrine of command responsibility. In the *Hadzihasanovic Case*, judge Shahabuddeen observed, instead, that:

‘Command responsibility imposes responsibility on a commander for failure to take corrective action in respect of a crime committed by another; it does not make the commander party to the crime committed by that other’²⁰⁵.

As observed by Otto Triffterer:

‘The common chapeau for all alternatives contained in Article 28, explicitly mentions that superior responsibility for acts of their subordinates should be ‘in addition to other grounds of criminal responsibility under this Statute.’ It therefore does not substitute, but supplements all forms of participation as listed in Article 25(3) sub a-f. Article 28 thus extends the scope of individual criminal responsibility for perpetrators in the position of superiors’²⁰⁶.

The question whether art. 28 ICC Statute should be considered as a *sui generis* crime or a *sui generis* form of participation was previously discussed. Prof. Triffterer’s view is legally correct in light of the text and context of art. 28 ICC Statute. However, if one considers the history of the doctrine of command responsibility and its aim and purpose, a preferred approach would be that of a *sui generis* crime. It remains to be seen what direction the ICC’s jurisprudence will take.

IV. The customary nature of the doctrine of command responsibility

Generally, the customary nature of the doctrine of command responsibility has been recognised both by the doctrine²⁰⁷ and by the international jurisprudence.²⁰⁸ Debates, however, still revolve around its applicability, out of custom, to military and non-military commanders within the framework of non-international armed conflicts (NIAC). In the *Hadzihasanovic Case*, the Appeals Chamber of the ICTY concluded that the doctrine was applicable to NIAC on the basis of customary law pre-dating the coming into force of the two Additional Protocols of 1977 and that the latter had simply codified already existing customary law²⁰⁹. The AC added that ‘the non-reference in Protocol II to command responsibility in relation to internal armed conflicts did not necessarily affect the question whether command responsibility previously existed as part of customary international law relating to internal armed conflicts.’²¹⁰ With regard to the application of the doctrine to

²⁰⁴ See Greenwood (2004) 2 *JICJ* 598, 599.

²⁰⁵ Partial Dissenting Opinion of Judge Shahabuddeen to *Prosecutor v. Hadzihasanovic, Alagic and Kubura*, IT-01-47-AR72 d, Decision, Appeals Chamber, Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility, 16. Jul. 2003, para. 33.

²⁰⁶ See Triffterer (2002) 15 *LeidenJIL* 179, 186.

²⁰⁷ Ambos, in: Cassese et al. (eds.), *The Rome Statute of The International Criminal Court: A Commentary* (2002) 844, 846–847; Fenrick, in: Triffterer (ed.), *Commentary on the Rome Statute of the International Criminal Court, Observer’s notes, article by article* (2008) 515, 516; Métraux, *The law of command responsibility* (2009) 21–33. Rule 153 of the ICRC Study on Customary Law: Henckaerts and Doswald-Beck, *Customary International Humanitarian Law*, Vol. II (2009) 3713 et seq.; Laucci, in: Fernandez and Pacreau (eds.), *Statut de Rome de la Cour Pénale internationale, commentaire article par article* (2012) 864, 871–872.

²⁰⁸ *The Prosecutor v. Hadzihasanović et al.*, IT-01-47-AR72, ‘Decision on Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility’, 16 July 2003; Appeals Chamber (Judges Meron [Presiding], Pocar, Shahabuddeen, Hunt and Gunëy), at para. 28; *Čelebići* (Trial Chamber Judgment), note 3, paras 354 et seq.

²⁰⁹ *The Prosecutor v. Hadzihasanović et al.*, IT-01-47-AR72, ‘Decision on Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility’, 16 July 2003; Appeals Chamber (Judges Meron [Presiding], Pocar, Shahabuddeen, Hunt and Gunëy).

²¹⁰ *The Prosecutor v. Hadzihasanović et al.*, IT-01-47-AR72, ‘Decision on Interlocutory Appeal Challenging Jurisdiction in Relation to Command Responsibility’, 16 July 2003; Appeals Chamber, para 28.

civilian superiors, in the *Akayesu Case* the Trial Chamber of the ICTR noted that already during the Tokyo trials, certain civilian authorities like Hirota, the former Foreign Minister of Japan, had been convicted of war crimes under this doctrine. The ICTR, after a thorough examination of the existing jurisprudence, concluded that in the application of the principle to civilians remained contentious, but that 'Against this background, the Chamber holds that it is appropriate to assess on a case by case basis the power of authority actually devolved upon the Accused in order to determine whether or not he had the power to take all necessary and reasonable measures to prevent the commission of the alleged crimes or to punish the perpetrators thereof.'²¹¹ Ten years later, in the *Celebici Case*, the TC of the ICTY found that already the International Military Tribunal for the Far East had relied on this principle 'in making findings of guilt against a number of civilian political leaders charged with having deliberately and recklessly disregarded their legal duty to take adequate steps to secure the observance of the laws and customs of war and to prevent their breach.'²¹²

The question whether the doctrine of command responsibility could apply, out of custom to (a) international armed conflicts, and (b) to non-military commanders in the years prior to 1991, and in particular in the period between 1975–1979, was set in a motion of the defence team of Ieng Sary before the Cambodian EEEC.²¹³ The motion was taken to the Pre-Trial Chamber²¹⁴. In 2011 the Pre-Trial Chamber ruled on Ieng Sary and Ieng Thirith's appeals. It concluded that the doctrine of command responsibility was applicable to both military and civilian superiors during 1975–1979 and that it already formed part of customary law at the time. On this basis, according to the chamber, the accused could have sufficiently foreseen that criminal sanctions were going to be imposed on them for their conduct.²¹⁵

It can be concluded, thus, that article 28 ICC Statute is based on well-founded customary law, inasmuch it relates to the law applicable since the 1990s. Due to the temporal jurisdiction of the ICC, the Court will never be confronted with the question of the applicability of this doctrine to cases submitted to its judgment, since it will only address cases that occurred after the entry into force of the ICC Statute, that is at the earliest on or after 1 July 2002.

²¹¹ *Prosecutor v. Akayesu*, ICTR-96-4-T, Judgement, Trial Chamber, 2 Sep. 1998, para 491 <<http://www.unict.org/Portals/0/Case/English/Akayesu/judgement/akay001.pdf>>.

²¹² *Prosecutor v. Delalić, Mucić, Delić and Landzo*, IT-96-21-T, Judgement, Trial Chamber, 16. Nov. 1998, para. 357.

²¹³ See the Summary of IENG Sary's Appeal Against the OCIJ's Order on IENG Sary's Motion Against the Application of Command Responsibility of 13.10.2010 <<http://www.iengsarydefence.org/summary-of-ieng-sarys-appeal-against-the-ocijs-order-on-ieng-sarys-motion-against-the-application-of-command-responsibility.html>>.

²¹⁴ *Ibid.*

²¹⁵ *Prosecutor v. Ieng Sary*, 002/19-09-2007-ECCC/OCIJ (PTC75), Decision on Ieng Sary's Appeal Against the Closing Order, 11 April 2011, paras. 20–21; *Prosecution v. Ieng Thirith*, 002/19-09-2007-ECCC/OCIJ (PTC 145 & 146), Decision on Appeals by Nuon Chea and Ieng Thirith against the Closing Order, 15 February 2011, paras. 28–29. For a discussion see Abeyratne (2012) 44 *GeoWashILRev* 39, 44–45.

Article 29

Non-applicability of statute of limitations

The crimes within the jurisdiction of the Court shall not be subject to any statute of limitations.

Literature: Van den Wyngaert, C. and Dugard, J., 'Non-applicability of Statute of Limitations', in: A. Cassese, P. Gaeta and J. R.W.D. Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 873; Henckaerts, J.-M. and Doswald Beck, L., *Customary International Humanitarian Law, Vol. I: Rules* (2005) 614.

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A. Introduction/General remarks

The *Rome Statute* declares that the crimes within the Court's jurisdiction are not subject to a statute of limitations. None of the preceding international instruments concerned with international prosecution of atrocities, from the *Charter of the International Military Tribunal* to the statutes of the *ad hoc* Tribunals, has contained anything similar. This is only logical, because in the absence of texts within the instruments creating a time bar, silence was all that was required. On the other hand, *Control Council Law No. 10* stated that '[I]n any trial or prosecution for a crime herein referred to, the accused shall not be entitled to the benefits of any statute of limitation in respect of the period from 30 January 1933 to 1 July 1945'¹. Because *Control Council Law No. 10* was applicable to national prosecutions within Germany, the provision was required in order to neutralize any alleged time bar to trials for Nazi-era crimes.

Many domestic criminal law systems provide for statutory limitation of crimes, even the most serious². Under French law, for example, prosecutions for murder are time barred after ten years³. Codes derived from the Napoleonic model generally have similar provisions. At trial, Eichmann pleaded that prosecution was time barred, but the argument was dismissed. Eichmann invoked a fifteen-year limitation period in force in Argentina. The District Court of Jerusalem ruled that Argentine norms could not apply, adding a reference to applicable Israeli legislation declaring that 'the rules of prescription ... shall not apply to offences under this Law'⁴. During the 1960s, as the application of statutory limitations in national penal codes to Nazi war criminals began to appear possible, there was a movement to amend rules by which such prosecutions could be time barred. Accordingly, there were changes to domestic legislation⁵. On an international level, these developments took the form of

¹ *Control Council Law No. 10, Punishment of Persons Guilty of War Crimes, Crimes Against Peace and Against Humanity*, 20 Dec. 1945, Official Gazette Of The Control Council For Germany, No. 3, Berlin, 31 Jan. 1946, 50–55, article II (5).

² See: LaRosa, *Dictionnaire de Droit International Pénal: Termes Choisis* (1998) 50–52.

³ *Penal Code* (France), Article 7.

⁴ *A. G. Israel v. Eichmann*, (1968) 36 ILR 18 (District Court), para. 53.

⁵ Germany seems to have had a twenty-year limitation period on Nazi crimes not contemplated by *Control Council Law No. 10*. On 25 Mar. 1965 the Bundestag extended the limitation date for murder to 31 Dec. 1969, which was the twentieth anniversary of establishment of the German Federal Republic. But this was inadequate and the date was again extended until 31 Dec. 1979. On 3 July 1979 the Bundestag voted to eliminate any limitation date for murder. See: de Mildt, *In the Name of the People: Perpetrators of Genocide in the*

General Assembly resolutions⁶, and treaties within both the United Nations system⁷ and that of the Council of Europe⁸. Both instruments refer to the crime of genocide and to crimes against humanity as offences for which there shall be no statutory limitation.

- 3 The treaties have not been a great success in terms of signature and ratification; the United Nations instrument still has only forty-five States Parties. The low rate of adhesion to the United Nations *Convention* has led some academics to contest the suggestion that this is a customary norm⁹. However, the French Cour de Cassation determined, in the *Barbie* case, that the prohibition on statutory limitations for crimes against humanity is now part of customary law¹⁰. Although the debates surrounding adoption of article 29 of the *Rome Statute* revealed a lack of unanimity on the subject, the final result is a clear demonstration of the *Statute*'s contribution to the progressive development of international law.

B. Analysis and interpretation of elements

- 4 There was no reference to statutory limitation in the ILC Draft Statute that was submitted to the General Assembly in 1994¹¹. In the *Ad Hoc* Committee sessions of 1995, it became clear that the principle of the impermissibility of statutory limitations for crimes such as genocide and crimes against humanity was not universally accepted. Some delegations urged that the question be considered 'bearing in mind the importance of the legal principle involved, which reflected the decreasing social importance of bringing criminals to justice and the increasing difficulties in ensuring a fair trial as time elapsed'¹². In the first sessions of the Preparatory Committee, delegations expressed concern about the fairness of 'stale' prosecutions. The possibility that statutory limitations could apply to crimes that are less serious than the core offences of genocide and crimes against humanity was also evoked¹³. According to the 1996 report to the General Assembly, '[s]ome delegations suggested that, instead of establishing a rigid rule, the Prosecutor or the President should be given flexible power to make a determination on a case-by-case basis, taking into account the right of the accused to due process. It was suggested that an accused should be allowed to apply to the Court to terminate the proceedings on the basis of fairness, if there was lack of evidence owing to the passage of many years'¹⁴. One of the issues involved in addressing the matter was the general question of complementarity, in that States with statutory limitations on some or all of the crimes would find themselves 'unable' to prosecute after time had elapsed. A number of formal proposals before the Preparatory Committee contemplated some form of statutory limitation, either for certain specified treaty crimes or for the subject-matter

Reflection of Their Post-War Prosecution in West Germany (1996) 29–30; I. Müller, *Hitler's Justice, the Courts of the Third Reich* (1991) 243–249; Monson (1982) 30 *AJIL* 605; Triffterer (1980) *NJW* 2049 *et seq.*

⁶ GA Res. 3 (I); GA Res. 170 (II); GA Res. 2583 (XXIV); GA Res. 2712 (XXV); GA Res. 2840 (XXVI); GA Res. 3020 (XXVII); GA Res. 3074 (XXVIII).

⁷ *Convention on the Non-applicability of Statutory Limitations to War Crimes and Crimes Against Humanity*, 754 UNTS 73 (1970). See: Miller (1971) 65 *AJIL* 476.

⁸ *European Convention on the Non Applicability of Statutory Limitation to Crimes Against Humanity and War Crimes of January 25, 1974*, ETS 82.

⁹ Ratner and Abrams, *Accountability for Human Rights Atrocities in International Law, Beyond the Nuremberg Legacy* (1997) 126.

¹⁰ *Fédération nationale des déportés et internés résistants et patriotes et al. v. Barbie*, (1984) 78 I.L.R. 125, 135. Also: France, Assemblée nationale, *Rapport d'information déposé en application de l'article 145 du Règlement par la Mission d'information de la Commission de la défense nationale et des forces armées et de la Commission des affaires étrangères, sur les opérations militaires menées par la France, d'autres pays et l'ONU au Rwanda entre 1990 et 1994*, p. 286 (1999).

¹¹ 1994 ILC Draft Statute.

¹² *Ad Hoc* Committee Report, para. 127, p. 29.

¹³ 1996 Preparatory Committee I, paras. 195–196, p. 45.

¹⁴ *Ibid.*, para. 196.

jurisdiction of the Court as a whole¹⁵. France argued for statutory limitation of ten or twenty years in the case of war crimes¹⁶. Interestingly, of the several draft proposals, none suggested that the statute simply be silent on the subject.

At the Rome Conference, the Working Group on General Principles opted for a text⁵ declaring the impermissibility of statutory limitation¹⁷. Testifying to the difficulty with the concept for some delegations, its report included a footnote:

“Two delegations were of the view that there should be a statute of limitations for war crimes. One delegation agreed to the above text in a show of flexibility, but stressed that there should be a possibility not to proceed if, due to the time that has passed, a fair trial cannot be guaranteed. The question of statute of limitations will need to be revisited if treaty crimes are included. There must also be a special regime for crimes against the integrity of the Court. The absence of a statute of limitations for the Court raises an issue regarding the principle of complementarity given the possibility that a statute of limitations under national law may bar action by the national courts after the expiration of a certain time period, whereas the ICC would still be able to exercise jurisdiction¹⁸.

But the delegations did not object to the text being sent to the Drafting Committee¹⁹, and⁶ it was adopted unchanged in the final version.

C. Special remarks

In sentencing proceedings before the *ad hoc* tribunals it has been argued that the lapse of⁷ time between commission of the offence and imposition of penalty should be treated as a mitigating factor. In rejecting the argument, judges have referred to the prohibition on statutory limitation. For example, Trial Chamber 1 of the International Criminal Tribunal for the former Yugoslavia wrote: ‘For crimes of a seriousness justifying their exclusion from statutory limitation, the Trial Chamber considers that a lapse of time of almost twelve years between the commission of the crimes and sentencing proceedings is not so long as to be considered a factor for mitigation’²⁰.

The *ad hoc* tribunals have been required to consider statutory limitations as part of the process of referring cases to national courts, pursuant to Rule 11*bis* of the Rules of Procedure and Evidence. For example, in referring a case to the court of Serbia, a Referral Bench of the International Criminal Tribunal for the former Yugoslavia noted that article 95 para. 1, 1 (1) of the Criminal Code of the Socialist Federal Republic of Yugoslavia barred prosecution after twenty-five years. Accordingly, in the case under consideration, of which the alleged acts took place in December 1991, the offence would be time barred in 2016, a situation that the Referral Bench considered acceptable given the prospect of prompt trial within Serbia²¹.

Article 29 as adopted by the Rome Conference is unnecessary, at least to the extent it would be applied to trials before the Court for offences listed in article 5. Obviously, in the absence of a provision actually establishing statutory limitations, the silence of the *Statute* can only mean that there are no statutory limitations. This does not mean that article 29 is superfluous. Its role would appear to be part of the complex relationship between national and international judicial systems. The issue of statutory limitation arose when France was contemplating ratification of the Rome Statute. The French *Conseil constitutionnel* consid-

¹⁵ 1996 Preparatory Committee II, pp. 88–89. Also: Preparatory Committee Decisions Feb. 1997, pp. 24–26; Zutphen Draft, pp. 57–58; ‘Draft Statute for the International Criminal Court’, UN Doc. A/CONF.183/2/Add.2, pp. 62–64.

¹⁶ UN Doc. A/CONF.183/C.1/SR.2, para. 47.

¹⁷ *Ibid.*, paras. 45–74.

¹⁸ UN Doc. A/CONF.183/C.1/WGPP/L.4, p. 4, fn. 7; UN Doc. A/CONF.183/C.1/WGPP/L.4/Corr. 1, fn. 7.

¹⁹ UN Doc. A/CONF.183/C.1/SR.8, paras. 76, 82.

²⁰ *Prosecutor v. Mrđa*, IT-02-59-S, Sentencing Judgment, 31 Mar. 2004, para. 104.

²¹ *Prosecutor v. Kovačević*, IT-01-42/2-I, Decision on Referral of Case Pursuant to Rule 11*bis*, 17 Nov. 2006, paras. 39, 42. Similarly, in a referral to Bosnia and Herzegovina: *Prosecutor v. Stanković*, IT-96-23/2-PT, Decision on Referral of Case Under Rule 11*bis*, 17 May 2005, para. 41.

ered that the complementarity provisions of the Rome Statute were incompatible with the French Constitution because they covered crimes that were subject to statutory limitation. According to the *Conseil constitutionnel*, 'under the Statute, the International Criminal Court could be validly seized on the grounds of an amnesty statute or internal rules on limitation; in such a case, France, even if a State were neither unwell not unable to act, might be required to arrest and surrender to the Court a person accused of conduct covered by an amnesty or limitation period in French law...' ²². The result was an amendment to the Constitution: 'La République peut reconnaître la juridiction de la Cour pénale internationale dans les conditions prévues par le traité signé le 18 juillet 1998' ²³.

- 8 There is ample precedent for States refusing to extradite offenders where crimes are time barred under their own legislation. Many extradition treaties provide explicitly for such an exception. This issue was certainly a live one in the preparatory discussions of the *Rome Statute* ²⁴. Consequently, at the very least article 29 operates as an answer to any argument from a State Party whereby extradition might be refused because of a statutory limitation in its own domestic penal code.

A literal reading of article 29 leads to an intriguing result, although one that does not appear in the published record of the *travaux préparatoires* and may not have been contemplated by the drafters. To the extent that the *Statute* does more than simply create a court, and actually imposes obligations on States, can it not be sustained that article 29 in effect constitutes a prohibition in the law of the States Parties on statutory limitations of genocide, crimes against humanity, war crimes and aggression? A State Party to the *Statute* whose legislation allowed prosecutions of these crimes to become time barred would be in breach of the instrument. Certainly on a purely practical level, statutory limitations in national law will be unable to shelter offenders. Should the national courts grant exceptions based on statutory limitation, the complementarity provisions of the *Statute* will grant the ICC jurisdiction. A State Party which allowed such an obstacle to a prosecution would, in effect, concede jurisdiction to the ICC. When States undertake revisions of their legislation as part of the process of accession to or ratification of the *Statute*, they should be advised to eliminate provisions that are incompatible with article 29. In most States, judges might even apply article 29 directly in order to supersede contrary penal legislation.

²² Décision n° 98-408 DC du 22 janvier 1999, para. 34. Translation available on the website of the *Conseil constitutionnel* at <http://www.conseil-constitutionnel.fr/langues/anglais/a98408dc.pdf>, cited in Barrat, in: Lee (ed.), *State's Responses to Issues Arising from the ICC Statute: Constitutional, Sovereignty, Judicial Cooperation and Criminal Law* (2005) 60.

²³ Loi constitutionnelle n°99-568 du 8 juillet 1999 (article 52 para. 2).

²⁴ 1996 Preparatory Committee I, note 13, para. 324, p. 68.

Article 30

Mental element

1. Unless otherwise provided, a person shall be criminally responsible and liable for punishment for a crime within the jurisdiction of the Court only if the material elements are committed with intent and knowledge.

2. For the purposes of this article, a person has intent where:

- (a) In relation to conduct, that person means to engage in the conduct;
- (b) In relation to a consequence, that person means to cause that consequence or is aware that it will occur in the ordinary course of events.

3. For the purposes of this article, ‘knowledge’ means awareness that a circumstance exists or a consequence will occur in the ordinary course of events. ‘Know’ and ‘knowingly’ shall be construed accordingly.

Literature: Ambos, K., ‘Critical Issues in the Bemba Confirmation Decision’, (2009) 22 *LeidenJIL* 715; Badar, M. E., ‘Dolus Eventualis and the Rome Statute Without It?’, (2009) 12 *NCLRev* 433; *id.*, ‘Mens rea – Mistake of Law & Mistake of Fact in German Criminal Law: A Survey for International Criminal Tribunals’, (2005) 5 *ICLRev* 203; Clark, R.S., ‘The Mental Element in International Criminal Law: The Rome Statute of the International Criminal Court and the Elements of Crime’, (2001) 12 *CLF* 291; *id.*, ‘Elements of Crimes in Early Confirmation Decisions of Pre-Trial Chambers of the International Criminal Court’, (2008) 6 *NZYbIL* 209; Eser, A., ‘Mental Elements – Mistake of Fact and Mistake of Law’, in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary, Vol. I* (OUP 2002) 889; Kelt, M. and von Hebel, H., ‘General Principles of Criminal Law and the Elements of Crimes’, in: R.S. Lee *et al.* (eds.), *The International Criminal Court: Elements of Crimes and Rules of Procedure* (Transnational 2001); Triffterer, O., ‘The new International Criminal Law – Its General Principles establishing Individual Criminal Responsibility’, in: K. Koufa (ed.), *Thesaurus Acroasium, The new International Criminal Law* 639, xxxii (Sakkoulas 2003) 639; *id.*, ‘“Command Responsibility” – crimen sui generis or participation as “otherwise provided” in Article 28 Rome Statute?’, in: J. Arnold *et al.* (eds.), *Menschengerechtes Strafrecht, Festschrift für Albin Eser zum 70. Geburtstag* (CH Beck 2005) 91; Saland, P., ‘International Criminal Law Principles’ in: R.S. Lee (ed.), *The International Criminal Court, The Making of the Rome Statute: Issues, Negotiations, Results* (Kluwer Law International 1999) 189; Smith, J.C. and Hogan, B., *Criminal Law* (Butterworths 4th edition 1978); Roxin, C., *Strafverfahrensrecht* (CH Beck 25th edition 1998); Weigend, T., ‘Intent, Mistake of Law, and Co-perpetration in the Lubanga Decision on Confirmation Charges’, (2008) 6 *JICJ* 471.

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A. Introduction/General remarks*

1. Historical development

- 1 The *Draft Statute for an International Criminal Court*, contained in the Report of the International Law Commission on the Work of its Forty-Sixth Session, did not contain a provision concerning mental elements nor moral culpability¹. In its 1995 Report, the *Ad Hoc* Committee on the Establishment of an International Criminal Court noted that many delegations expressed support for the inclusion in the Statute of provisions on general principles of criminal law, including provisions on *mens rea*². During the sessions in 1996 of the Preparatory Committee on the Establishment of an International Criminal Court, a number of proposals were made regarding the insertion of a set of general principles, which included various proposals concerning *mens rea* or mental elements³. These proposals included provisions similar to those finally adopted by the Rome Conference, as well as proposals concerning other possible mental elements, such as specific intent, wilful blindness, recklessness and *dolus eventualis*. These proposals were further discussed by the Preparatory Committee at its session in February 1997 and a number of decisions were taken⁴, which resulted in a draft provision of narrower scope that was very similar to that finally adopted by the Rome Conference in 1998⁵.

2. Purpose

- 2 A general view was expressed in the Preparatory Committee on the Establishment of an International Criminal Court that ‘since there could be no criminal responsibility unless *mens rea* was proved, an explicit provision setting out all the elements involved should be included in the Statute’⁶. A clear understanding of the general legal framework in which the court would operate was important for the Court, States Parties and the accused so as to provide guidance, predictability and certainty, and to promote consistent jurisprudence on fundamental questions, including the issue of moral culpability or *mens rea*⁷.

3. Scope

- 3 Despite the desire of the Preparatory Committee that all the mental elements should be set out in the Statute, these elements are not defined in one article. Article 30 only refers specifically to ‘intent’ and ‘knowledge’. With respect to other mental elements, such as certain forms of ‘recklessness’ and ‘*dolus eventualis*’, consensus could not be achieved on their definition nor on their appropriateness for general application in the Statute. It was

* The assistance of Greg Koster, Department of Justice (Canada) and Steve Taylor, Queen’s University Faculty of Law (Canada), is gratefully acknowledged.

¹ Report of the International Law Commission on the work of its forty-sixth session, *Draft Statute for an International Criminal Court*, UN GAOR, 49th Sess., Supp. No. 10, UN Doc. A/49/10 (1994); see also Clark (2001) 12 CLF 291, 296–297.

² Report of the *Ad Hoc* Committee on the Establishment of an International Criminal Court, UN GAOR, 50th Sess., Supp. No. 22, UN Doc. A/50/22 (1995), p. 19; see also Clark (2001) 12 CLF 291, 297.

³ Report of the Preparatory Committee on the Establishment of an International Criminal Court, Vol. II, *Compilation of Proposals*, UN GAOR, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996), p. 92–93; see also Clark (2001) 12 CLF 291, 299.

⁴ Decisions Taken by the Preparatory Committee at its Session Held from 11 to 21 February 1997, UN Doc. A/AC.249/1997/L.9/Rev.1, p. 25.

⁵ For an account of the history of the negotiations on article 30, see: Saland, in: R.S. Lee (ed.), *The International Criminal Court, the Making of the Rome Statute: Issues, Negotiations, Results* (1999) 189; Clark (2001) 12 CLF 291, 295–316.

⁶ Report of the Preparatory Committee on the Establishment of an International Criminal Court, Vol. I, *Proceedings of the Preparatory Committee during March–April and August 1996*, UN GAOR, 51st Sess., Supp. No. 22, UN Doc. A/51/22 (1996), p. 45.

⁷ *Ad Hoc* Committee Report, note 2, p. 19.

decided to leave the incorporation of such mental states of culpability in specific definitions or modes of responsibility, if and where their incorporation was required by the negotiations or by applicable law⁸. Accordingly, the opening words of paragraph 1 of article 30 ('Unless otherwise provided'), recognise that mental elements might also be provided elsewhere. Examples of other relevant mental elements may be found within the specific definition of crimes⁹, general principles of criminal law¹⁰, and in the Elements of Crimes¹¹. As will be discussed below, the drafters concluded, and early case law confirms, that the Elements of Crimes may specify different mental elements, provided that these are consistent with the Statute and applicable law¹².

Paragraphs 2 and 3 of article 30 provide definitions of 'intent' and 'knowledge'. These provisions describe the meaning of these terms and the degree of mental culpability or *mens rea* that is required. For example, in order to intend conduct, a person must 'mean' to engage in conduct; it is not sufficient if the conduct was brought about inadvertently. To know of a circumstance means to have 'awareness' that it exists; mere suspicion is not sufficient (unless it amounts to wilful blindness or some other high degree of awareness or advertence to the existence of the circumstance).

Paragraph 1 of article 30 applies these definitions of 'intent' and 'knowledge' to the material elements of the definitions of crimes in the Statute. The exact scope of this application, however, has to be inferred for each crime depending on the specific material elements set out in the definition of the crime and in light of the proviso to paragraph 1 ('Unless otherwise provided'), and paragraph 2 ('For the purposes of this article').

4. Protected values

Many legal historians are of the view that prior to the twelfth century a person could be held criminally liable merely if the person's conduct caused harm, regardless of any blame-worthy state of mind. For example, in the common law and civil law traditions, it was under the influence of Canon law and Roman law that a requirement for some element of moral blameworthiness – a guilty mind – was imposed by the courts. This requirement has been expressed in the Latin maxim *actus non facit reum nisi mens sit rea*¹³. It is now a basic requirement common to contemporary legal systems.¹⁴

B. Analysis and interpretation of elements

I. Paragraph 1

1. 'criminally responsible and liable for punishment'

The modes of commission and of participation by which a person shall be 'criminally responsible and liable for punishment for a crime within the jurisdiction of the Court' are outlined in article 25 para. 3. These various modes of criminal responsibility (such as 'commits', 'orders, solicits or induces', 'aids, abets, or otherwise assists', 'in any other way

⁸ See Clark (2001) 12 *CLF* 291, 299–303.

⁹ See e.g. article 8 para. 2 (a) ('wilful' or 'wilfully').

¹⁰ See e.g. article 25 para. 3 (d) (i) ('with the aim of furthering the criminal activity or criminal purpose of the group'); article 28 *lit. a* (i) ('knew or, owing to the circumstances at the time, should have known'); article 28, *lit. b* (i) ('knew, or consciously disregarded').

¹¹ See e.g. article 8 para. 2 (b) (xxvi) ('should have known' that the child was under the age of 15 in the elements for child soldier provision).

¹² See e.g. *Prosecutor v. Thomas Lubanga Dyilo*, No. ICC-01/04-01/06-803-tEN, Decision on the Confirmation of Charges, PTC I, 29 Jan. 2007, para. 356 <<http://www.legal-tools.org/doc/b7ac4f/>>; see also *Prosecutor v. Katanga and Ngudjolo Chui*, No. ICC-01/04-01/07-717, Decision on the Confirmation of Charges, PTC I, 30 Sep. 2008, para. 532 <<http://www.legal-tools.org/doc/67a9ec/>>.

¹³ Translation: 'An act does not make a person guilty of a crime, unless the person's mind be also guilty'.

¹⁴ Ambos, K., *Treatise On International Criminal Law* (OUP 2014) 93–95.

contributes to the commission', 'incites' and 'attempts') must, by virtue of article 30, be committed with intent and knowledge in order for a person to be criminally responsible and liable for punishment. Despite the apparent assertion in article 25 that a person shall be criminally responsible and liable for punishment if the person's conduct falls within any of the subparagraphs of paragraph 3 of that article, the conditions of article 30 must also be fulfilled in order to attach to that person any criminal responsibility and liability for punishment for a crime within the jurisdiction of the Court. This is in accord with the Latin legal maximum: '*actus non facit reum nisi mens sit rea*'¹⁵.

Early jurisprudence of the Court has explored the relationship between Article 25 and 30. For example, Pre-Trial Chamber I, in declining to confirm charges in the *Mbarushimana* case, held that for an 'intentional contribution' under Article 25(3)(d), the person must mean to engage in the contributing conduct and be aware that his or her conduct contributes to the activities of the group¹⁶.

2. 'material elements'

- 6 The 'material elements' of a crime refer to the non-mental elements of the definition of the crimes as defined in articles 5 to 8. This term refers to the *conduct* described in the definition, any *consequences* that may be specified in addition to the conduct, and any *circumstances* that must exist¹⁷. This is confirmed by paragraphs 2 and 3 of article 30, which define the meaning of 'intent' or 'knowledge'¹⁸ with respect to each of 'conduct', 'consequences' and 'circumstances'¹⁹. Although previous drafts had used the term 'physical elements', the term was changed in the Drafting Committee of the Rome Conference to 'material elements' in order to better reflect and connote that conduct, consequences and circumstances may not always be 'physical' in character²⁰.

The conduct of a crime includes a prohibited action²¹ or prohibited omission²² that is described in the definition of a crime²³. The consequences of a crime can refer either to a

¹⁵ See translation, note 13.

¹⁶ *Prosecutor v. Callixte Mbarushimana*, No. ICC 01/04-01/10-465-Red, Decision on the Confirmation of Charges, PTC I, 16 Dec. 2011, para. 288; see also *Prosecutor v. Lubanga*, No. ICC-01/04-01/06-2482, Judgment pursuant to Article 74 of the Statute, TC I, 14 Mar. 2012, paras. 986–987 <<http://www.legal-tools.org/doc/677866/>>.

¹⁷ See e.g. article 8 para. 2 (b) (x), which defines a crime that contains all three types of material elements: conduct ('subjecting persons...to physical mutilation or to medical or scientific experiments'); circumstances ('who are in the power of an adverse power') and consequences ('which cause death to or seriously endanger the health of such person or persons').

¹⁸ *Prosecutor v. Abdallah Banda Abakaer Nourain and Saleh Mohammed Jerbo Jamus*, No. ICC-02/05-03/09-121-Corr-Red, Corrigendum of the Decision on the Confirmation of Charges, PTC I, 7 Mar. 2011, para. 153.

¹⁹ *Prosecutor v. Jean-Pierre Bemba Gombo*, No. ICC-01/05-01/08-424, Decision on the Confirmation of Charges, PTC II, 15 June 2009, para. 355 <<http://www.legal-tools.org/doc/07965c/>>.

²⁰ E.g. in the Statute 'conduct' sometimes refers to an omission (e.g., failure to do something), 'consequences' sometimes refers to a risk rather than a physical result (e.g., a risk of harm occurring), and 'circumstances' sometimes refers to a quality or value of a physical object or a situation (e.g., legal status of a person or a building, or degree of harm or deprivation). For specific examples, see the text accompanying notes 14 to 18. Clark (2001) 12 CLF 299, 304–305, queries how the change from 'physical' to 'material' came about, and concludes that it did not convey a change of policy or substance by the Drafting Committee, but only a reflection of drafting consistency. The present author recalls that the change was made for stylistic and consistency reasons, as noted in the text above.

The Elements of Crimes followed this same approach to material elements (conduct, consequences and circumstances), often repeating the exact words of the Statute, and at other times adding elaborations from international instruments or jurisprudence, but they were not intended to alter the overall definition of the crime: see article 9 para. 3.

See also Clark (2008) 6 NZYbIL 209.

²¹ See e.g. article 6 ('killing', 'causing serious bodily or mental harm', 'inflicting...conditions of life', 'imposing measures' and 'forcibly transferring').

²² See e.g., article 28 *lit.* a (ii) and b (ii) ('failed to take all necessary and reasonable measures').

²³ For greater discussion of the meaning of 'conduct', see Part II, 1, below.

completed result, such as the causing of death²⁴, or the creation of a state of harm or risk of harm, such as endangerment²⁵. The circumstances of a crime qualify the conduct and consequences. They may, for example, describe the requisite features of the persons²⁶ or things²⁷ mentioned in the conduct and consequence elements.

There are four special types of material element that warrant particular comment.

First, some material elements have a 'legal' character: for example, requiring that a victim be a 'protected person' under the Geneva Conventions of 1949²⁸. Article 30 does not require proof that the accused knew the relevant law or that he or she correctly completed such a legal evaluation. Indeed, article 32 para. 2 affirms that a mistake of law as to the scope of the criminal prohibition is not a ground for excluding criminal responsibility²⁹. Accordingly, all that is required is that the accused knew the *factual* elements that established this legal character (for example, that the victim was affiliated with an adverse party)³⁰.

Second, some material elements involve a normative aspect, or a 'value judgment'. Examples include the requirement of 'serious' injury to body or health, 'severe' deprivation of physical liberty, or 'humiliating or degrading' treatment³¹. Such elements are similar to elements of a legal character, as it is not required to show that the accused correctly completed the normative evaluation. Otherwise, the accused's subjective opinions would determine whether a crime had been committed. For example, a perpetrator intentionally amputating the limbs of a victim can hardly escape liability by arguing that he did not consider the bodily harm to be 'serious'³². The Court must decide if the material element is satisfied (including whether the harm was 'serious'), and decide whether the perpetrator had the intent or awareness of the factual character establishing that 'seriousness' (in this case, amputating a limb). This rather obvious proposition accords with the approach of national legal systems³³, and is now confirmed in paragraph 4 of the General Introduction to the Elements, which provides that 'with respect to mental elements associated with elements involve value judgment ... it is not necessary that the perpetrator personally completed a particular value judgment, unless otherwise indicated'³⁴.

²⁴ See e.g. article 8 para. 2 (b) (vii) (improper use of a flag of truce 'resulting in death or serious personal injury'); article 8 para. 2 (b) (x) (subjecting persons to physical mutilation or to medical or scientific experimentation 'which cause death to ... such person or persons').

²⁵ See e.g. article 8 para. 2 (b) (x) (subjecting persons to physical mutilation or to medical or scientific experimentation 'which...seriously endangers the health of such person or persons').

²⁶ E.g., that the victims who are killed must be 'members of the group' (article 6 (a)) or be 'combatants' (article 8 para. 2 (b) (vi)) or that the persons who are forcibly transferred must be 'children of the group' (article 6 (e)) or the persons who are compelled to take part in the operations of war must be 'nationals of the hostile party' (article 8 para. 2 (b) (xv)).

²⁷ E.g., that the attacks or bombardment must be directed against 'towns, villages, dwellings or buildings which are undefended and which are not military objectives' (article 8 para. 2 (b) (v)) or 'buildings dedicated to religion, education, art, science...' (article 8 para. 2 (b) (ix)).

²⁸ Article 8 para. 2 (a).

²⁹ An interesting question arises where the mistake of law is not related to the criminal prohibition itself, but another area of law. For example, a *bona fide* mistake as to the 'ownership' of particular property might negate the mental element for the crime of pillage: see article 32 para. 2.

³⁰ A possible deviation from this approach appears in the Elements of Crimes for article 8 para. 2 (b) (vii) (improper use of a flag of truce), where the regulatory nature of these offences led delegations to include a requirement that the perpetrator 'knew or should have known of the prohibited nature of such use'.

³¹ Article 8 para. 2 (iii), article 7 para. 1 (e), and article 8 para. 2 (b) (xxi), respectively. The demarcation between 'value judgments' and facts can depend on the circumstances; for example, an accused that had been indoctrinated in hate propaganda obviously could not escape liability by arguing that victims from a targeted minority were not considered to be 'persons'.

³² Article 6 (b) of the Statute.

³³ See e.g. a case of the Supreme Court of Canada, *R. v. Finta* (1994) 1 SCR 701 at 819 (accused must be aware of the facts or circumstances that bring the acts within the definition of a crime against humanity, but need not know that his actions were 'inhumane').

³⁴ Out of an abundance of caution, several provisions in the Elements nonetheless spell out the application of this principle to particular elements: see, e.g. article 7 para. 1 (k), element 3.

Third, some material elements contain an adjectival phrase using a term that sounds like a mental state. Examples include inflicting conditions of life ‘calculated’ to bring about the physical destruction of a group and imposing measures ‘intended’ to prevent births³⁵. Whether these hybrid elements are treated as mental elements or material elements may have a bearing on the determination of culpability³⁶. If what is required is proof that there was such a ‘calculation’ or ‘intent’, then arguably this requirement would be satisfied if it were shown that the accused so calculated or intended (*i. e.*, mental element), or that there was a broader calculation or intent, for example, among the planners, or evident from the nature and scale of the acts (*i. e.*, material element) and that the accused was aware of this material element.

Fourth, in the Elements of Crime some circumstance elements were identified as ‘contextual elements’, because they relate not to the conduct of the accused but rather to the broader ‘context’ that renders the crime an international crime. For war crimes, this is the existence of an armed conflict; for crimes against humanity, it is the widespread or systematic attack against a civilian population; and for genocide, it is the pattern of genocidal conduct³⁷. As will be explained below, reduced mental elements were considered appropriate for contextual elements³⁸.

Finally, in addition to the material elements of a particular offence, preconditions for the jurisdiction of the Court may also have to be proven where contentious³⁹, but neither the Statute nor any principle of international law require a mental element for such preconditions.

3. ‘committed’

- 7 The term ‘committed’ clearly refers to the mode of participation in crime that is described in sub-paragraph 3 (a) of article 25 (*i. e.*, ‘commits such a crime’). The term, however, is also used generically in a broader sense and also includes all of the other modes of criminal responsibility described in article 25 sub-paras. 3 (b) to (f). This interpretation is supported by the discussion, above, of the term ‘criminally responsible and liable for punishment’.
- 8 For example, in the case of some modes of criminal responsibility in article 25 (such as inciting others to commit genocide or attempting to commit a crime), not all of the physical or material elements described in the definition of the crimes in articles 5–8 need actually be committed. Nevertheless, there is a form of ‘commission’ in respect of the material elements of the definition of a crime by a person who undertakes one of the modes of criminal responsibility described in article 25 paras. 3 (b) to (f), even if the actual intended, attempted or incited crime is not carried out or completed. Therefore, the term ‘committed’ refers to the commission of a material element of a crime by any of the modes of criminal responsibility described in article 25 (a) to (f).

4. ‘intent and knowledge’

- 9 Each of the terms ‘intent’ and ‘knowledge’ is specifically defined in paragraphs 2 and 3 of article 30, respectively (see below).

³⁵ Article 6 (c) and (d). See also the elements for article 8 para. 2 (a) (ii)-2 (war crime of biological experiments): ‘the *intent of the experiment* was non-therapeutic’ (emphasis added).

³⁶ See Kelt and von Hebel, in: R.S. Lee *et al.* (eds.), *The International Criminal Court: Elements of Crimes and Rules of Procedure* (2001) at 27.

³⁷ See para. 7 of the General Introduction to the Elements, and the final element of each crime.

³⁸ *Prosecutor v. Bahar Idriss Abu Garda*, No. ICC-02/05-02/09-243-Red, Decision on the Confirmation of Charges, PTC I, 08 Feb. 2010, paras. 95–96 <<http://www.legal-tools.org/doc/cb3614/>>; Lubanga (PTC I Decision), note 15, para. 360.

³⁹ *E.g.*, the location of the commission of a crime, the nationality of a perpetrator, the fact that a crime was committed after the entry into force of the Statute, or the fact that a particular event falls within the scope of a situation referred to the Court: see articles 11–14. Similarly, requirements for gravity (article 8(1), article 17(1)(d)) are not elements of the crimes.

Prior to the February 1997 session of the Preparatory Committee, there had been some debate as to whether these two terms should be disjunctive ('or') or conjunctive ('and')⁴⁰. At the February 1997 session, a decision was taken to use the conjunctive formulation, which was subsequently adopted by the Rome Conference. This decision was based on the theory that, in general, one cannot perform an action or cause a consequence intentionally unless one also has knowledge of the circumstances in which that action or consequence was committed. For example, one cannot be said to intentionally attack or bombard a civilian target, contrary to article 8 para. 2 (b) (v), unless one is aware of the circumstances that render the civilian buildings 'undefended' or 'not military objectives'. The conjunctive formulation ensures that even where knowledge of a particular circumstance is an element of a crime, a person cannot be criminally responsible and liable for punishment unless the other material elements are also committed with intent. In result, each crime, taken as a whole, necessarily requires both intent (to engage in the relevant conduct) and knowledge (of consequences or circumstances).

This does not mean that each *particular* material element must be committed with both intent and knowledge. Indeed, that would contradict article 30 paras. 2 and 3, which set out the relevant mental elements for each type of material element. The Elements of Crimes confirm this distinction between the crime as a whole and particular elements. With respect to particular mental elements, paragraph 2 of the General Introduction to the Elements refers to 'the relevant mental element, *i. e. intent, knowledge or both*, set out in article 30' (emphasis added).

A question arises as to whether the conjunctive formulation changes existing international jurisprudence⁴¹ that an accomplice (such as an aider and abettor) need not share the same *mens rea* of the principal (*e.g.*, an intent to kill), and that 'a knowing participation in the commission of an offence' or 'awareness of the act of participation coupled with a conscious decision to participate' is sufficient mental culpability for an accomplice. It is submitted that the conjunctive formulation has not altered this jurisprudence, but merely reflects the fact that aiding and abetting by an accused requires both knowledge of the crime being committed by the principal and some intentional conduct by the accused that constitutes the participation⁴².

A number of the definitions of crime specifically require that the material elements be 'intentional' or be committed 'intentionally'⁴³. This is likely superfluous, given the general rule in article 30. The specific presence of these terms is likely a product of the negotiation process whereby the terms were imported from other international instruments, such as the Geneva Conventions, or where certain delegations wished to make clear the intentional nature of the crimes before they agreed to their inclusion.

The major significance of article 30 is its effect on definitions that do not expressly specify a mental element. Where a particular definition of a crime is silent as to the requisite mental element, article 30 will import intent and knowledge as the corresponding mental elements.

Concerns were expressed by some delegations, particularly during the negotiation of the Elements, as to the potential difficulties of proving mental elements. Paragraph 3 of the General Introduction to the Elements of Crimes, however, re-affirms the elementary proposition that 'the existence of intent and knowledge can be inferred from relevant facts and circumstances'⁴⁴.

⁴⁰ See *e.g.* 1996 Preparatory Committee, Vol. II, note 3, p. 92.

⁴¹ *Prosecutor v. Furundžija*, IT-95-17/1-T, Judgment, ICTY, Trial Chamber, 10 Dec. 1998, paras. 236–241.

⁴² Even if a strict literal reading of the conjunctive in paragraph 1 were made, such that an accomplice must intend the consequence committed by the principal, the same interpretative result would occur. Article 30 para. 2 (b), makes it clear that 'intent' may be satisfied by an awareness that a consequence will occur in the ordinary course of events. This same type of awareness can also satisfy the mental element of 'knowledge', as defined in article 30 para. 3. Therefore, if both 'intent' and 'knowledge' are required on the part of an accomplice, these mental elements can be satisfied by such awareness. Therefore, by either interpretation, article 30 confirms the existing international jurisprudence.

⁴³ See *e.g.*, article 7 paras. 2 (b), (c), (f) and (h); article 8 paras. 2 (b) (i), (ii), (iii), (iv), (ix), (xxiv) and (xxv), and paras. 2 (e) (i), (ii), (iii) and (iv).

⁴⁴ See also Bemba (PTC II Decision), note 19, para 137 (existence of intent and knowledge can be inferred from relevant facts and circumstances).

5. 'Unless otherwise provided'

- 14 This term performs two functions: first, it establishes the article 30 standard as the 'default rule' for all material elements, and second, it signals that there may be deviations from that approach where otherwise provided.

The status of article 30 as the default rule was explicitly re-affirmed in the Elements, in order to avoid the necessity of spelling out the mental element for every material element, particularly where the application of article 30 is clear. Accordingly, paragraph 2 of the General Introduction to the Elements explains, '[w]here no reference is made in the Elements of Crimes to a mental element for any particular conduct, consequence or circumstance listed, it is understood that the relevant mental element – *i. e.*, intent, knowledge or both, set out in article 30, applies'. Thus, for each material element listed, article 30 implicitly applies, and mental elements were articulated only where there was a need to depart from the article 30 standard or to clarify a potential ambiguity in its application.

The second function of the phrase is to signal that there may be deviations from the article 30 standard where otherwise provided. An issue that was not settled at the Rome Conference was whether only the Rome Statute could 'otherwise provide', or whether other sources, such as the Elements of Crimes, could also provide for a deviation. This debate continued during the negotiation of the Elements. Some delegations were of the view that the Elements could not call for a deviation from article 30, as the Elements document is subsidiary to the Statute⁴⁵. Other delegations noted that the default rule in Article 30 expressly contemplates that different standards can be 'otherwise provided', and that for some elements a different standard was needed to reflect accurately the applicable law, including the jurisprudence. The latter view was eventually accepted; the General Introduction to the Elements, paragraph 2 states: 'Exceptions to the article 30 standard, *based on the Statute, including applicable law under its relevant provisions*, are indicated below' (emphasis added). This formulation recognizes the primacy of the Statute, and indicates that exceptions must directly or indirectly flow from the Statute, but also recognizes that the Statute itself, through article 21 (applicable law), allows reliance on other sources, including treaties, customary law, general principles and the Elements. Thus, the approach suggests that States Parties could not *legislate* a deviation through the Elements, but they could *codify* a deviation where necessary to reflect their intent when drafting the Statute or to reflect the relevant treaties and jurisprudence⁴⁶. This view has been endorsed in early jurisprudence⁴⁷.

There are various ways in which the Statute, and the elaboration of the Statute contained in the Elements, provide for departures from the article 30 standard. In almost all cases, the effect is to reduce the standard that would otherwise apply.

For example, article 28 (a) of the Statute, on command responsibility, requires that a commander knew 'or should have known' of the commission of crimes. The 'should have known' standard reflects the principle that the commander is under a duty to make arrangements to remain informed of the activities of forces under his or her control. The precise meaning of 'should have known' was dealt with in the *Bemba* confirmation decision, where the Pre-Trial Chamber found that the test is one of (criminal) negligence. The Chamber held that the superior has an active duty to take the necessary measures to secure knowledge of the conduct of his troops⁴⁸. As the Statute is a criminal law instrument, it is

⁴⁵ Article 9 para. 3.

⁴⁶ A subsequent agreement among all treaty parties concerning the application or interpretation of a treaty may be taken into account in interpreting the treaty: article 31 para. 3 of the VCLT.

⁴⁷ See *Lubanga* (PTC I Decision), note 15, paras. 359–360. And to similar effect see Cryer *et al.*, *An Introduction to International Criminal Law and Procedure* (2014) at 383 and Werle, *Principles of International Criminal Law* (2009) at 157–159.

⁴⁸ *Bemba* (PTC II Decision), note 19, paras. 432–434. See also *Prosecutor v. Bagilishema*, No. ICTR-95-1A-A, Judgement, Appeals Chamber, 3 July 2002, esp. paras. 32–45 (though, in contradistinction, noting that '[i]t is better ... not [to] describe superior responsibility in terms of negligence at all,' para. 36); *Prosecutor v.*

unlikely that a mere civil negligence standard is sufficient; the standard is likely akin to criminal negligence. Similarly, article 28 (b), requires that non-military superiors either knew 'or consciously disregarded information which clearly indicated' the commission of crimes. This standard of culpability is more generous than that imposed on the military commander (as the latter is obliged to maintain a system of military discipline).

Similarly, with the war crime of conscripting or enlisting children under the age of fifteen years⁴⁹, the Elements require only that the perpetrator 'knew or should have known' that the person was under the age of fifteen years. This flexible mental element, regarding the age of the children recruited, reflects the interpretation of delegations that persons recruiting or enlisting young persons are under some degree of obligation to try to verify the age⁵⁰. Again, the precise meaning of 'should have known' remains for the Court to determine⁵¹.

A reduced mental element is also articulated with respect to each of the 'contextual elements', *i. e.* the circumstance elements that describe the surrounding context that renders a crime a matter of concern to the international community as a whole⁵². For war crimes, this is the existence of an armed conflict; for crimes against humanity, it is the widespread or systematic attack against a civilian population; and for genocide, it is the pattern of genocidal conduct⁵³. Since these contextual elements do not relate directly to the conduct of the accused, but rather to the context creating an international dimension, the full application of article 30 was not considered necessary. At the same time, *some* degree of awareness of the context was considered necessary for the perpetrator to be held responsible for an international crime⁵⁴. Therefore the Elements provide for a reduced mental element in relation to the contextual elements. For example, awareness of a widespread or systematic attack does not require detailed knowledge of the attack or its characteristics⁵⁵.

Rather than merely reducing the mental element required, a provision may modify the default rule of article 30 by indicating that no mental element is required at all. For example, for the crime against humanity of persecution, article 7 para. 1 (h) requires that the persecutory conduct be committed in connection with any act in article 7 para. 1 or with any ICC crime. This requirement was inserted to ensure that the Court would deal only with serious cases of criminal severity. Accordingly, during the Elements debates, the provision was regarded as a 'jurisdictional' provision, so the Elements specify that a corresponding mental element is not required⁵⁶.

It is also possible to require an *additional* element of intent or knowledge. For example, 15 some provisions of the Statute require that the impugned conduct (which must be committed

Kamuhanda, No. ICTR-95-54A-T, Judgment, TC II, 22 Jan. 2004, paras. 601–610; *Prosecutor v. Muvunyi*, No. ICTR-2000-55A-T, Judgment, TC II, 12 Sep. 2006, paras. 473–475, reversed on other grounds, No. ICTR-2000-55A-A, Appeal Judgment, Appeals Chamber, 29 Aug. 2008.

⁴⁹ Article 8 para. 2 (b) (xxvi). The 'should have known' standard was also adopted in the elements for article 8 para. 2 (b) (vii) (improper use of flag of truce, *etc.*).

⁵⁰ See also the elements for article 6 *lit. e* (genocide by forcibly transferring children).

⁵¹ See *eg.* Bemba (PTC II Decision), note 19, paras. 432–434 and Lubanga (PTC I Decision), note 15, paras. 357–359.

⁵² Article 5.

⁵³ See paragraph 7 of the General Introduction to the Elements, and the final element of each crime.

⁵⁴ See for example, ICTY cases such as *Prosecutor v. Tadić*, IT-94-I-A, Judgment, Appeals Chamber, 15 July 1999, paras. 255–270 and national cases such as *Finta*, note 33, p. 815 and 819.

⁵⁵ For crimes against humanity, the Elements clarify that the perpetrator need not have knowledge of the characteristics of the attack nor of the details of the plan or policy: Elements, Introduction to Crimes Against Humanity. For relevant case law and analysis, see Ambos, *Treatise on International Criminal Law* (2013) 280–283.

For genocide, given that knowledge of the genocidal context would inevitably be established in the course of proving genocidal intent, 'the appropriate requirement, if any, for a mental element regarding this circumstance' was left to be determined by the Court: Elements, Introduction to Genocide. For war crimes, knowledge of the armed conflict is listed as an element, but the introduction to war crimes limits the extent of awareness required, leaving the mental requirement highly ambiguous and for the Court to determine: Elements, Introduction to War Crimes. For relevant case law and analysis, see Ambos, *Treatise on International Criminal Law* (2013) 278–291.

⁵⁶ Clark (2008) 6 NZYbIL 209.

with intent and knowledge, by virtue of article 30 para. 1) also be committed for a specific or ulterior intention; *i. e.*, ‘with intent to’ or ‘with the intention of’ achieving certain ends or purposes⁵⁷. In some instances, the Elements of Crimes have added specific intents to further elaborate the definitional elements contained in the Statute⁵⁸. These are specific intents required in addition to the general intent that is to be imported by article 30. They are additional mental elements that are not linked to any material element. They do not require that that which is intended to be achieved, actually results in fact. For example, under article 6 (genocide), any of the various acts listed under (a) – (e) must be committed intentionally (by virtue of article 30), with the additional specific intent to destroy a particular group. This is an ulterior intention, since there is not a corresponding material element that the group was actually destroyed.

Although some early proposals had contemplated making mention of both types of intent⁵⁹, the decision of the Preparatory Committee was that ‘there was no need, however, to distinguish between general and specific intention, because any specific intent should be included as one of the elements of the definition of the crime’⁶⁰. Accordingly, paragraph 1 of article 30 only refers to ‘intent’.

Finally, some Statute provisions may appear to modify the article 30 standard but are not intended to do so. For example, some of the war crimes provisions use terms such as ‘wilful’ or ‘wilfully’⁶¹, and the term ‘deliberately’ appears in one of the forms of genocide⁶². These terms appear because many of the Rome Statute provisions faithfully reproduced definitions in instruments such as the Geneva Conventions or Genocide Conventions, which were considered customary international law. It appears that the intent of the drafters was not to deviate from the default rule of article 30, and this interpretation is now confirmed by the approach in the Elements⁶³.

II. Paragraph 2

1. ‘For the purposes of this article’

- 16 This phrase appears to signify that the definitions in paragraphs 2 and 3 apply directly to article 30 and apply indirectly to the Statute through the operation of paragraph 1, which imports ‘intent’ and ‘knowledge’ as the minimum *mens rea* into all of the crimes within the jurisdiction of the Court, unless otherwise provided. Therefore, other provisions of the Statute could provide for different definitions or meanings of these terms in respect of specific crimes. No specific alternative definitions of these terms, however, are provided in the current Statute.

III. Sub-paragraph 2 (a)

1. ‘conduct’

- 17 Commencing with the August 1996 session of the Preparatory Committee⁶⁴, the Draft Statute had contained a bracketed proposal concerning ‘*Actus reus*’ (act and/or omission),

⁵⁷ See *e.g.* article 6 (‘with intent to destroy’); article 7 para. 2 (h) and (i) (‘with the intention of maintaining’; ‘with the intention of removing’).

⁵⁸ *E.g.*, Elements of Crime concerning article 8 para. 2 (b) (xii) (‘in order to’), and article 8 para. 2 (a) (ii)-1 (‘for such purposes as...’).

⁵⁹ 1996 Preparatory Committee, Vol. II, note 3, p. 92.

⁶⁰ 1996 Preparatory Committee, Vol. I, note 6, p. 45, para. 199.

⁶¹ Article 8 para. 2 (a) (i) and (iii).

⁶² Article 6 *lit. c.*

⁶³ See *e.g.* Elements, article 6 *lit. d.*, element 1; article 8 para. 2 (a) (i), element 1; and article 8 para. 2 (a) (iii), element 1; none of which provide an alternative mental element and therefore rely on article 30.

⁶⁴ Preparatory Committee Vol. I, note 6, p. 45; Preparatory Committee Vol. II, note 3, p. 90.

which was further refined at the February 1997 session⁶⁵ and submitted to the Rome Conference⁶⁶. Paragraph 1 of then article 28 had provided that conduct can ‘constitute either an act or omission, or a combination thereof’. Paragraph 2 of then article 28 attempted to describe the circumstances in which a person could be held criminally responsible for an omission, which included some proposed circumstances that implied mental elements other than intent or knowledge. At the Rome Conference, agreement could not be reached on this proposed article, and it was decided to delete it from the Statute with the understanding that the question of when, and if, omissions might constitute or be equivalent to conduct would have to be resolved in future by the Court.

Therefore, for the purposes of article 30, the term ‘conduct’ denotes positive action as well as intentional omission, where the causal result and moral culpability of the intentional omission is equivalent to the achievement of the same result caused by an intentional act⁶⁷. As for the inclusion of any other type of omissions within the Statute, these would have to be governed by article 30.

2. ‘means to engage in the conduct’

This phrase signifies, at a minimum, that conduct must be the result of a voluntary action on the part of an accused. It includes the basic consciousness or volition that is necessary to attribute conduct (*i. e.*, *actus reus*) as being the product of the voluntary will of a person. In this sense, however, the phrase merely distinguishes involuntary from voluntary conduct. Generally, the term ‘intent’ also connotes some element, although even minimal, of desire or willingness to do the action, in light of an awareness of the relevant circumstances or likely consequences. As noted earlier, unless relevant circumstances are known that qualify the action as prohibited conduct, it cannot be said that the person intends the conduct. Therefore, ‘intent’ necessarily includes an element of ‘knowledge’⁶⁸.

As was noted above (‘material elements’), where a conduct element involves a legal conclusion or value judgment, it is not required that the accused correctly completed the legal or normative evaluation, but simply that the accused was aware of the relevant facts⁶⁹.

IV. Sub-paragraph 2 (b)

1. ‘consequence’

Some crimes prohibit conduct⁷⁰, other crimes prohibit not only conduct but the consequences that causally occur⁷¹ and other crimes prohibit the causing of consequences without specifying a particular predicate conduct⁷². Often conduct and consequence can be intertwined with little distinction in time or place between the two⁷³. In all situations where a consequence is part of the definition of a crime, paragraph 2 of article 30 defines what is meant when paragraph 1 requires that the consequences (where consequences are material elements) be committed with intent.

⁶⁵ February 1997, Preparatory Committee Decisions, note 4, p. 26.

⁶⁶ Report of the Preparatory Committee on the Establishment of an International Criminal Court, UN GAOR, 53rd Sess., UN Doc. A/AC.249/1998/CRP. 7 (1998), p. 64–65 (article 28).

⁶⁷ See *e.g.*, article 8 para. 2 (b) (xxv) (‘intentionally using starvation of individuals...’). The omission of intentionally starving individuals results in the achievement of the equivalent result (*i. e.*, death) as would an intentional killing.

⁶⁸ Williams, *Text Book of Criminal Law* (1978) 52 and (1983) 116–117.

⁶⁹ One example of a conduct element involving a value judgment would be the intentional infliction of ‘severe’ pain or suffering: article 7 para. 1 (f).

⁷⁰ See *e.g.* article 8 para. 2 (b) (i) (‘directing attacks against civilian objects’).

⁷¹ See *e.g.* article 7 para. 1 (k) (‘Other inhumane acts of a similar character intentionally causing great suffering, or serious injury to body or to mental or physical health’).

⁷² See *e.g.* article 6 (b) (‘causing serious bodily harm or mental harm to members of the group’).

⁷³ See *e.g.* article 8 para. 2 (a) (i) (‘wilful killing’).

As was noted above ('material elements'), where a consequence element involves a legal conclusion or value judgment, it is not required that the accused correctly completed the legal or normative evaluation, but simply that the accused was aware of the relevant facts⁷⁴.

2. 'means to cause that consequence'

- 21 This reflects the notion that specified consequences in the definition of a crime must causally follow from the person's conduct, and that the person desires or means that such consequences occur. The phrase incorporates both the concepts of a desire for the occurrence of consequences (*i. e.*, *dolus directus*) and a causal connection between the person and the consequence.

3. 'aware that it will occur in the ordinary course of events'

- 22 Traditionally, in most legal systems, 'intent' encompasses not only a 'volitional' aspect (*ie.* where the outcome is desired) but also a 'cognitive' aspect, *i. e.* where there is knowledge that the consequence will occur or will be caused. This cognitive concept of intent is known in several legal systems by various terms, including indirect intent, oblique intent, *dolus indirectus* or *dolus directus* in the second degree.

This raises an important question as to how certain or probable a consequence must be in order to fall within the test ('will occur in the ordinary course of events'). Few things in life are certain, and certainty is often a question of degree. People generally govern their lives on the basis that common sense or the ordinary course of events would pronounce that the occurrence of a particular consequence flowing from a particular conduct is highly probable, such as to be equivalent to certainty for all practical purposes.

Early jurisprudence offers different views as to the requisite degree of probability. At one end of the spectrum, it seems clear that indirect intent encompasses consequences known to be close to certain – often described with terms such as 'virtually certain', 'practically certain' or 'substantially certain'⁷⁵. At the other end of the spectrum, it seems clear that unlikely risks or possibilities would not satisfy the 'will occur' standard. In this connection, it is often emphasized that the concepts of recklessness and *dolus eventualis*, which can encompass mere possibilities, were not included in the Statute⁷⁶. Given the vastly different understandings of recklessness and *dolus eventualis* in different systems,⁷⁷ the attempt to map domestic concepts onto Article 30 may be less productive than focusing on the wording of

⁷⁴ One example of a consequence element involving a value judgment would be that the conduct 'seriously endangered' the health of the victims (article 8 para. 2 (b) (x)).

⁷⁵ See Bemba (PTC II Decision), note 19, para. 362.

⁷⁶ Ambos (2009) 22 *LeidenJIL* 715, 718 (noting, however, that while the preparatory materials support such an exclusion, they are 'merely persuasive' and 'not decisive in the light of a clear or different literal interpretation'). Similarly, reaching the conclusion that the text appears to exclude mere recklessness or low probabilities, but that this is a normatively undesirable conclusion because it creates a more restrictive standard than customary law or national systems, see both Werle, *Principles of International Criminal Law* (2009) at 154–155 and Cryer *et al.*, *An Introduction to International Criminal Law and Procedure* (2014) at 382–383. And see Badar (2009) 12 *NCLRev* 433 at 451–452; Weigend (2008) *JICJ* 471, 482–484; Eser, in A. Cassese *et al.*, eds, *The Rome Statute of the International Criminal Court: A Commentary* (2002) 902, 915–916. See also Bemba (PTC II Decision), note 19, paras. 357–359; Lubanga (TC I Judgment), note 16, para. 1011.

⁷⁷ The concept '*dolus eventualis*' does not have a monolithic or uniform meaning within all civil law systems. It generally includes awareness of a substantial or high degree of probability that the consequence will occur, and in many systems, it also includes awareness of a serious risk that a consequence will occur, coupled with indifference to that outcome or reconciliation with that outcome. Some systems may also include some forms of inadvertence in this concept. Due to different national conceptions, attempts to define the concepts were abandoned during the negotiations. Whatever may be the merits of the distinction under national legal systems, it was clear that the first-noted meaning of '*dolus eventualis*' is included (*i. e.*, 'will occur in the ordinary course of events'). The latter meanings of '*dolus eventualis*' or 'recklessness' were not incorporated explicitly into article 30, although it may be open to the Court to interpret the provision to include some of these aspects. The concepts may also exist in some specific crimes in the Statute under a different name (*e. g.*, article 28). See Saland, in: R.S. Lee (ed.), *The International Criminal Court, The Making of the Rome Statute: Issues, Negotiations, Results* (1999)

the Statute. What remains to be determined in the Court's jurisprudence is the extent to which probabilities between virtual certainty and mere possibility will suffice.

In the *Lubanga* confirmation of charges decision, Pre-Trial Chamber I argued that risks could satisfy the test if the accused reconciled himself to those risks (a test akin to *dolus eventualis* as conceived in some systems)⁷⁸. However, Pre-Trial Chamber II in the *Bemba* confirmation of charges decisions held that a mere possibility cannot satisfy the standard of 'will occur in the ordinary course of events'⁷⁹. The Court's first judgment, in *Lubanga*, indicated that a 'low risk' is not sufficient, but that future consequences are always somewhat uncertain and hence some considerations of probability are necessary⁸⁰. The decision appeared to suggest that substantial probabilities may satisfy the test⁸¹. The Court's second judgment, in *Katanga*, adhered to the 'virtual certainty' side of the spectrum.⁸²

Finally, the question of the intent requirement for genocide attracted discussion during the negotiation of the Statute. Many delegations wished to distinguish between 'responsible decision makers or planners and a general-intent or knowledge requirement for the actual perpetrators of genocidal acts'⁸³. However, the conclusion was that the Statute was not the appropriate forum for amendments to the Genocide Convention and that 'the question of intent could be addressed under the applicable law or the general provisions of criminal law'⁸⁴. The definition of 'intent' in paragraph 2 clearly encompasses both the volitional and cognitive concepts of intention, as described in paragraph 2 (a) and (b) and thus is able to address the concern that the actual perpetrators of genocidal acts, while not specifically intending that their acts destroy an entire group, may nonetheless be aware that such consequence will occur in the ordinary course of events as a result of their acts. Alternatively, it could also be argued that the specific intent referred to in article 6 connotes a more limited meaning of 'intent'⁸⁵. It will be for the Court to interpret the meaning of 'intent' in article 6 in light of its historical antecedents and the effect of article 30 and the Elements of Crimes.

V. Paragraph 3

1. 'For the purposes of this article'

See discussion of the same phrase in paragraph 2, above.

2. 'awareness that a circumstance exists'

See the discussion of 'knowledge' under paragraph 1 and paragraph 2(a), above. Awareness of a circumstance is a question of degree. Some legal systems include within this concept

189 at 205; and Clark (2001) 12 CLF 291 at 301, 314–315; Ambos, *Treatise on International Criminal Law* (2013) at 276–278.

⁷⁸ *Lubanga* (PTC I Decision), note 12, para. 352.

⁷⁹ *Bemba* (PTC II Decision), note 19, para. 363.

⁸⁰ *Lubanga* (TCI Judgment), note 16, para. 1012.

⁸¹ *Ibid*, paras. 986–987 (sufficient risk), para. 1012 (risk, danger, but not low risks).

⁸² *Prosecutor v. Germain Katanga*, No. ICC-01/04-01/07-3436, Jugement rendu en application de l'article 74 du Statut, 7 March 2014, paras 770–779 <<http://www.legal-tools.org/doc/9813bb/>>.

⁸³ *Ad Hoc* Committee Report, note 2, at p. 13, para. 62; 1996 Preparatory Committee Vol. I, *above* note 6, p. 17, para. 60.

⁸⁴ 1996 Preparatory Committee Vol. I, note 6, p. 17, para. 60.

⁸⁵ The more restrictive meaning was given to the phrase 'with intent to destroy' by the ICTR in *Prosecutor v. Jean-Paul Akayesu*, No. ICTR-96-4-T, Judgment, TC I, 2 Sep. 1998, paras. 517–524. Subsequent cases have also indicated a fairly onerous *mens rea* requirement (specific intent or *dolus specialis*) and that the accused must share in this intent: *Prosecutor v. Rutaganda*, No. ICTR-96-3-T, Judgment and Sentence, Trial Chamber I, 6 Dec. 1999, paras. 59–62; *Prosecutor v. Jelisić*, IT-95-10-T, Judgment, Trial Chamber I, 14 Dec. 1999, para. 78, reversed in part, on other grounds, IT-95-10-A, Judgment, Appeals Chamber, 5 July 2001, see paras. 45–52; *Prosecutor v. Krstić*, IT-98-33-T, Judgment, Trial Chamber, 2 Aug. 2001, para. 571.

the state of mind where a person greatly suspects the true state of affairs but deliberately avoids steps to ascertain their validity or deliberately shuts his or her eyes to an obvious means of knowledge. This is often referred to as ‘wilful blindness’, which is tantamount to actual knowledge⁸⁶. It is distinguished from ‘recklessness’ or even ‘negligence’ due to the conscious awareness of the substantial risk of the true state of affairs and the deliberate avoidance of taking steps to find out the truth. Essentially, the person does not want to know and deliberately shuts his or her eyes to the truth. It may be argued that the specific definition in paragraph 3 excludes such concept and that actual awareness or cognizance is required. Alternatively, it may also be open to the Court to interpret ‘awareness’ to include wilful blindness⁸⁷.

- 26 An erroneous appreciation or awareness of the relevant facts by an accused can constitute a defence of mistake of fact, as such mistake is a negation of the requisite ‘knowledge’ or awareness of relevant circumstances. This is specifically acknowledged in article 32 para. 1. As was noted above (‘material elements’), where a circumstance element involves a legal conclusion or value judgement, it is not required that the accused correctly completed the legal or normative evaluation, but simply that the accused was aware of the relevant facts⁸⁸.

3. ‘awareness that...a consequence will occur in the ordinary course of events’

- 27 See discussion of the same concept of ‘awareness’ under article 30 para. 2 (b), discussed above under the heading of ‘Awareness that a circumstance exists’.

⁸⁶ See, for example, Smith and Hogan, *Criminal Law* (1978) 103.

⁸⁷ Eser, in: A. Cassese *et al.* (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 902, 931–932 argues, convincingly, that a principled approach to article 30 militates for the inclusion of wilful blindness as a sufficient form of knowledge, lest a perpetrator escape culpability through ‘shutting his eyes to the truth’ despite awareness of ‘facts he merely does not want to see.’

⁸⁸ One example of a circumstance element involving a value judgment would be that the conduct ‘was of a character similar’ to other acts listed in article 7 para. 1 (article 7 para. 1 (k)).

Article 31

Grounds for excluding criminal responsibility

1. In addition to other grounds for excluding criminal responsibility provided for in this Statute, a person shall not be criminally responsible if, at the time of that person's conduct:

- (a) The person suffers from a mental disease or defect that destroys that person's capacity to appreciate the unlawfulness or nature of his or her conduct, or capacity to control his or her conduct to conform to the requirements of law;
- (b) The person is in a state of intoxication that destroys that person's capacity to appreciate the unlawfulness or nature of his or her conduct, or capacity to control his or her conduct to conform to the requirements of law, unless the person has become voluntarily intoxicated under such circumstances that the person knew, or disregarded the risk, that, as a result of the intoxication, he or she was likely to engage in conduct constituting a crime within the jurisdiction of the Court;
- (c) The person acts reasonably to defend himself or herself or another person or, in the case of war crimes, property which is essential for the survival of the person or another person or property which is essential for accomplishing a military mission, against an imminent and unlawful use of force in a manner proportionate to the degree of danger to the person or the other person or property protected. The fact that the person was involved in a defensive operation conducted by forces shall not in itself constitute a ground for excluding criminal responsibility under this subparagraph;
- (d) The conduct which is alleged to constitute a crime within the jurisdiction of the Court has been caused by duress resulting from a threat of imminent death or of continuing or imminent serious bodily harm against that person or another person, and the person acts necessarily and reasonably to avoid this threat, provided that the person does not intend to cause a greater harm than the one sought to be avoided. Such a threat may either be:
 - (i) Made by other persons; or
 - (ii) Constituted by other circumstances beyond that person's control.

2. The Court shall determine the applicability of the grounds for excluding criminal responsibility provided for in this Statute to the case before it.

3. At trial, the Court may consider a ground for excluding criminal responsibility other than those referred to in paragraph 1 where such a ground is derived from applicable law as set forth in article 21. The procedures relating to the consideration of such a ground shall be provided for in the Rules of Procedure and Evidence.

Literature: Ambos, K., 'Other Grounds for Excluding Criminal Responsibility', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003; *id.*, 'General Principles of Criminal Law in the Rome Statute', (1999) 10 *CLF* 1; *id.*, 'Zur Rechtsgrundlage des Internationalen Strafgerichtshofs – Eine Analyse des Rom-Statuts', (1999) 111 *ZStW* 175; *id.*, 'May a State Torture Suspects to Save the Life of Innocents?', (2008) 6 *JICJ* 261; *id.*, 'Defences in International Criminal Law', in: B.S. Brown (ed.), *Research Handbook on International Criminal Law* (Elgar 2011) 299; *id.*, 'Der Gerechtigkeit einen Dienst erwiesen? Zur Tötung bin Ladens', (2011) 66 *JZ* 763; Blakesley, C., 'Comparing the Ad Hoc Tribunal for Crimes against Humanitarian Law', (1996) 67 *RIDP* 139; Bond, J., and Fourgere, M., 'Omnipresent Threats: A Comment on the Defence of Duress in International Criminal Law', (2014) 14 *ICLRev* 471; Boon, K., 'Rape and Forced Pregnancy under the ICC Statute: Human Dignity, Autonomy, and Consent', (2001) 32 *ColHumRtsLRev* 625; Brady H., 'Disclosure of Evidence', in: Roy S. Lee, *The International Criminal Court* (2001) 403; Cassese, A., 'Justifications and Excuses in International Criminal Law', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 951; *id.*, 'The Statute of the International Criminal Court: Some Preliminary Reflections', (1999) 10 *EJIL* 144; Cryer, R., 'Defences/Grounds for Excluding Criminal Responsibility', in: R. Cryer *et al* (eds.), *An Introduction to International Criminal Law and Procedure* (3rd ed. 2014) 398; David, E., 'Self-Defence and State of Necessity in the Statute of the ICC', in: J. Doria, H.-P. Gasser and M.C. Bassiouni (eds.), *The Legal Regime of the International Criminal Court. Essays in honour of Professor Igor Blishchenko* (Nijhoff 2009) 757; Dinstein, Y., 'Defences', in: G.K. McDonald and O. Swaak-Goldman (eds.),

Substantive and Procedural Aspects of International Criminal Law, i: *Commentary* (Kluwer 2000) 371; Eser, A. 'Justification and Excuse: A Key Issue in the Concept of Crime', in: A. Eser and G.P. Fletcher (eds.), *Rechtfertigung und Entschuldigung – Justification and Excuse. Comparative Perspectives*, Vol. I (MPI für ausländisches und internationales Strafrecht 1987) 17, also available at <<http://www.freidok.uni-freiburg.de/volltexte/3906>> accessed 19 September 2014; *id.*, 'The Need for a General Part', in: M.C. Bassiouni (ed.), *Commentaries on the International Law Commissions 1991 Draft Code of Crime against the Peace and Security of Mankind* (Erés 1993) 43, also available at <<http://www.freidok.uni-freiburg.de/volltexte/9727>> *id.*, 'Defences' in *War Crime Trials*, in: Y. Dinstein and M. Tabory (eds.), *War Crimes in International Law* (M. Nijhoff 1996) 251, also available at <www.freidok.uni-freiburg.de/volltexte/3734> accessed 19 September 2014; also published in: (1995) 24 *IsYbHumRts* 201 and A. Eser, *Transnationales Strafrecht/Transnational Criminal Law* (Berliner Wissenschafts-Verlag 2011) 562; *id.*, 'Individual Criminal Responsibility', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 767, also available at <<http://www.freidok.uni-freiburg.de/volltexte/3909>> accessed 19 September 2014; *id.*, 'Mental Elements – Mistake of Fact and Mistake of Law', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 889, also available at <www.freidok.uni-freiburg.de/volltexte/3909> accessed 19 September 2014; *id.*, 'Zwangsanordnung zur Rettung aus konkreter Lebensgefahr', in: F. Herzog and U. Neumann (eds.), *Festschrift für Winfried Hassemer* (Müller 2010) 713; *id.*, 'Rechtmäßige Tötung im Krieg: zur Fragwürdigkeit eines Tabus', in: D. Dölling *et al.* (eds.), *Verbrechen – Strafe – Resozialisierung. Festschrift für Heinz Schöch* (De Gruyter 2010) 461; *id.*, 'Procedural Structure and Features of International Criminal Justice: Lessons from the ICTY', in: B. Swart, A. Zahar and G. Sluiter (eds.), *The Legacy of the International Criminal Tribunal for the Former Yugoslavia* (OUP 2011) 108; *id.*, 'Tötung im Krieg: Rückfragen an das Staats- und Völkerrecht', in: I. Appel, G. Hermes and C. Schönberger (eds.), *Öffentliches Recht im offenen Staat. Festschrift für Rainer Wahl* (Duncker & Humblot) 665 also available at <<http://www.freidok.uni-freiburg.de/volltexte/9714>>, accessed 25 August 2015; *id.*, 'Tötung im Krieg: auf der Suche nach einer Legitimationsgrundlage', in: M. Lönnig, M. Preisner and T. Schlemmer (eds.), *Krieg und Recht* (Gietl Verlage 2014) 239; *id.*, 'Straffreistellungsgründe: aus der Sicht des Bürgers als Normadressat', in: M. Heger, B. Kelker and E. Schramm (eds.), *Festschrift für Kristian Kühl* (C.H. Beck 2014) 173 also available at <<http://www.freidok.uni-freiburg.de/volltexte/9719>>, accessed 25 August 2015; *id.*, 'Zeit der Tat – Ort der Tat', in: A. Schönke and H. Schröder (eds.), *Strafgesetzbuch. Kommentar* (C.H. Beck 29th edition 2014) 105 § 8; Eser, A. and Fletcher, G. (eds.), *Justification and Excuse. Comparative Perspectives*, Vol. I (MPI für ausländisches und internationales Strafrecht 1987); *id.* (eds.), *Justification and Excuse. Comparative Perspectives*, Vol. II (MPI für ausländisches und internationales Strafrecht 1988); Eser, A. and Hecker, B., 'Keine Strafe ohne Gesetz', in: in: A. Schönke and H. Schröder (eds.), *Strafgesetzbuch. Kommentar* (C.H. Beck 29th edition 2014) 31, § 1; Eser, A. and Perron, W. (eds.), *Rechtfertigung und Entschuldigung*, Vol. III (MPI für ausländisches und internationales Strafrecht 1991); Fletcher, G.P. 'The Right and the Reasonable', in: A. Eser and G.P. Fletcher (eds.), *Rechtfertigung und Entschuldigung/Justification and excuse*, Vol. I (MPI für ausländisches und internationales Strafrecht 1987) 167; Franck, T., *Recourse to Force: State Action against Threats and armed Attacks* (CUP 2002); Friman, H., 'Investigation and Prosecution', in: Lee, *International Criminal Court* (2001) 493; Frulli M., 'Jurisdiction rationae personae', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (2002) 527; Greenwood, C., 'Belligerent Reprisals in the Jurisprudence of the International Criminal Tribunal for the Former Yugoslavia', in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes under International Law. Current Developments* (2001) 539; Gaeta, P., 'May Necessity be Available as a Defence for Torture in the Interrogation of Suspected Terrorists?', (2004) 2 *JICJ* 785; *id.*, 'Official Capacity and Immunities', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (2002) 951; *id.*, 'Ratione Materiae Immunities of Former Heads of State and International Crimes: the Hissène Harbère Case', (2003) 1 *JICJ* 186; Grewal, K., 'The Protection of Sexual Autonomy under International Criminal Law', (2012) 10 *JICJ* 373; Heller, K.J., *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (OUP 2011); *id.*, 'The Rome Statute of the International Criminal Court', in: K.J. Heller and M.D. Dubber (eds.), *The Handbook of Comparative Criminal Law* (Stanford Law Books 2011) 593; Henkel, H., 'Zumutbarkeit und Unzumutbarkeit als regulatives Rechtsprinzip', in: K. Engisch (ed.), *Festschrift für Edmund Mezger* (C.H. Beck 1954) 249; Janssen, S., 'Mental condition defences in Supranational Criminal Law', (2004) 4 *ICLRev* 83; Jescheck, H.-H., 'The General Principles of International Criminal Law Set Out in Nuremberg, as Mirrored in the ICC Statute', (2004) 2 *JICJ* 38; *id.*, 'Zum Stand der Arbeiten der Vereinten Nationen für die Errichtung eines Internationalen Strafgerichtshofs', in: A. Eser (ed.), *Festschrift für Haruo Nishihara* (Nomos 1998) 437; Jescheck, H.-H. and Weigend, T., *Lehrbuch des Strafrechts. Allgemeiner Teil* (Duncker & Humblot 5th edition 1996); Joyner, C.C. 'Terrorizing the Terrorists: An Essay on the Permissibility of Torture', in: L.N. Sadat and M.P. Scharf (eds.), *The Theory and Practice of International Criminal Law* (Nijhoff 2008) 227; Keijzer, N. 'Introductory Observations', in: P. Duyx, R. Haveman and E. van Sliedregt (eds.), 'War Crimes Law and the Staute of Rome: Some Afterthoughts', (2000) 39 *RDPMDG* 69; *id.*, 'Self-Defence', in: P. Duyx, R. Haveman and E. van Sliedregt, 'War Crimes Law and the Staute of Rome: Some Afterthoughts', (2000) 39 *RDPMDG* 100; Kahan, D.M., 'Some Realism About Retroactive Judicial Expansion of Criminal Statutes', (1997) 3 *RogerWilliamsULRev* 95; Kelt, M. and H. von Hebel, 'General Principles of Criminal Law and the Elements of Crimes', in: Lee (ed.), *The International Criminal Court: Elements of Crimes and Rules of Procedure and Evidence* (2001) 19; Knoops, G.J., *Defenses in Contemporary International Criminal Law* (Nijhoff 2nd edition 2008); *id.*, 'The Diverging Position of Criminal Law Defences before the ICTY and the ICC: Contemporary Developments', in: J. Doria, H.-P. Gasser and M.C. Bassiouni (eds.), *The Legal Regime of the International Criminal Court. Essays in honour of professor Igor Blishchenko* (Nijhoff

2009) 779; Korte, M., *Das Handeln auf Befehl als Strafausschließungsgrund* (Nomos 2003); *id.*, 'Die Irrtumsregelung des Art. 32 StGB-Statut', (2008) 6 ZIS 419 <http://www.zis-online.com/dat/artikel/2008_9_262.pdf> accessed 19 September 2014; Kratzsch, D., '§ 53 StGB und der Grundsatz nullum crimen sine lege', (1971) GA 65; Krent, H.J., 'Should Bouie Be Buoyed?: Judicial Retroactive Lawmaking and the Ex Post Facto Clause', (1997) 3 *RogerWilliamsULRev* 35; Kreicker, H., 'Allgemeine Strafbarkeitsvoraussetzungen', in: A. Eser and H. Kreicker (eds.), *Nationale Strafverfolgung völkerrechtlicher Verbrechen*, Vol. I: *Deutschland* (edition iuscrim 2003) 270; Kreß, C., 'Die Kristallisation eines Allgemeinen Teils des Völkerstrafrechts: Die Allgemeinen Prinzipien im Statut des Internationalen Strafgerichtshofs', (1999) 12 *HuV-I* 7; Krug, P., 'The Emerging Mental Incapacity Defense in International Criminal Law: Some Initial Questions of Implementation', (2000) 94 *AJIL* 317; Lenckner, T. and Sternberg-Lieben, D., 'Notwehr', in: A. Schönke and H. Schröder (eds.), *Strafgesetzbuch. Kommentar* (C.H. Beck 28th edition 2010) 567, pre-notes to § 32; Lenckner, T. and Sternberg-Lieben, D., 'Notwehr und Notstand', in: A. Schönke and H. Schröder (eds.), *Strafgesetzbuch. Kommentar* (C.H. Beck 29th edition 2014), 571 prenotes to § 32; McCormack, T.L.H., 'Self-Defence in International Criminal Law', in: H. Abtahi and G. Boas (eds.), *The Dynamics of International Criminal Justice. Essays in Honour of Sir Richard May* (Brill 2005) 231; Merkel, R., 'Gründe für den Ausschluss der Strafbarkeit im Völkerstrafrecht', (2002) 114 *ZStW* 437; Morrison, T.W., 'Fair Warning and the Retroactive Judicial Expansion of Criminal Statutes', (2001) 74 *SouthCalLRev* 455; Nill-Theobald, C., 'Defences' bei Kriegsverbrechen am Beispiel Deutschlands und der USA. *Zugleich ein Beitrag zu einem Allgemeinen Teil des Völkerstrafrechts* (edition iuscrim 1998); Ohlin, J.D., 'The Bounds of Necessity', (2008) 6 *JICJ* 289; Perron, W., 'Schuldunfähigkeit wegen seelischer Störungen', in: A. Schönke and H. Schröder (eds.), *Strafgesetzbuch. Kommentar* (C.H. Beck 29th edition 2014) 379, 374, § 20; *id.*, 'Rechtfertigender Notstand', in: A. Schönke and H. Schröder (eds.), *Strafgesetzbuch. Kommentar* (C.H. Beck 29th edition 2014) 687, 677, § 34; *id.*, 'Entschuldigender Notstand', in: A. Schönke and H. Schröder (eds.), *Strafgesetzbuch. Kommentar* (C.H. Beck 29th edition 2014) 708, 705, § 35; Peschke, K., 'The ICC investigation into the conflict in Northern Uganda: beyond the dichotomy of peace versus justice', in: Brown (ed.), *Research Handbook on International Criminal Law* (Elgar 2011) 178; Radosavljevic, D., 'Scope and Limits of Psychiatric Evidence in International Criminal Law', (2013) 13 *ICLRev* 1013; Randelzhofer, A., 'article 51', in: B. Simma (ed.), *The Charter of the United Nations – A Commentary*, Vol. I (OUP 2nd edition 2002); Roberts, R.C.E., 'The Lubanga Trial Chamber's Assessment of Evidence in Light of the Accused's Rights to the Presumption of Innocence', (2012) 10 *JICJ* 923; Robinson, D., 'The Rome Statute and Its Impact on National Law', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (2002) 849; Rowe, P., 'Duress as a Defence to War Crimes after Erdemović', (1998) 1 *YbILHumL* 210; Sadat, L.N., *The International Criminal Court and the Transformation of International Law* (Transnational 2002); Saland, P., 'International Criminal Law Principles', in: R.S. Lee (ed.), *The International Criminal Court – The Making of the Rome Statute* (1999) 189; Salton, C.A., 'Mental Incapacity and Liability Insurance Exclusionary Clauses', (1990) 78 *CallRev* 1027; Scaliotti, M., 'Defences before the international criminal court: Substantive grounds for excluding criminal responsibility, Part 1', (2001) 1 *ICLRev* 111; *id.*, 'Part 2', (2002) 2 *ICLRev* 1; Schabas, W.A., 'National amnesties, truth commissions and international criminal tribunals', in: Bartram S. Brown (ed.), *Research Handbook on International Criminal Law* (Elgar 2011) 373; *id.*, 'General Principles of Criminal Law', (1998) 6 *EJCLCLJ* 400; van Schack, B., 'The Crime of Aggression and International on Humanitarian Intervention on Behalf of Women', (2011) 11 *ICLRev* 407; Viseur Sellers, P., 'The Context of Sexual Violence: Sexual Violence as Violations of international Humanitarian Law', in: G.K. McDonald and O. Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law. Current Developments* (Kluwer Law 2001) 539; van Sliedregt, E., *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (T.M.C. Asser 2003); Triffterer, O., 'Acts of Violence and International Criminal Law', (1997) 4 *CroatianAnnCrimL&Prac* 2, 872; Weigend, T., 'Notwehr im Völkerstrafrecht', in: U. Sieber *et al.* (eds.), *Strafrecht und Wirtschaftsstrafrecht. Festschrift für Klaus Tiedemann* (Heymanns 2008) 1439; *id.*, 'Anwendung des allgemeinen Rechts', in: W. Joecks (ed.), *Münchener Kommentar zum Strafgesetzbuch*, Vol. vi/2: *Nebenstrafrecht III, Völkerstrafgesetzbuch* (C.H. Beck 2009); *id.*, 'Kill or Be Killed. Another Look at Erdemović', (2012) 10 *JICJ* 1219; Werle, G., 'Individual Criminal Responsibility in article 25 ICC Statute', (2007) 5 *JICJ* 953; Wilson, W., *Criminal Law: doctrine and theory* (OUP 2nd edition 2003); van der Wilt, H., 'Justifications and Excuses in International Criminal Law: An Assessment of the Case-law of the ICTY', in: B. Swart, A. Zahar and G. Sluiter (eds.), *The Legacy of the International Criminal Tribunal for the Former Yugoslavia* (OUP 2011) 275; Van Schaack, B., 'The Crime of Aggression and Humanitarian Intervention on Behalf of Women', (2011) 11 *ICLRev* 477; Watzek, J., *Rechtfertigung und Entschuldigung im englischen Strafrecht* (edition iuscrim 1997); Wirth, S., 'Immunity for Core Crimes? The ICJ's Judgment in the Congo v. Belgium Case', (2002) 13 *EJIL* 877; Wise, E., 'General Principles of Criminal Law', in: L. Sadat Wexler (ed.), *Observations on the Consolidated ICC Text before the Final Session of the Preparatory Committee* (Érés 1998) 43; Zimmermann, A., 'Superior Orders', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary*, Vol. I (2002) 957.

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A. General remarks – Scope and genesis of the provision

- 1 Although this article of the Rome Statute, as will be seen, certainly has its merits, it must be made clear from the very outset that both its heading is misleading and its contents incomplete. When speaking of 'grounds for excluding criminal responsibility' in such a general way, the provision seems to comprise all defences which may lead to the exclusion of criminal responsibility. This impression is, however, misguided from two countervailing ends: On the one hand, as to be concluded from its paragraph 1, article 31 is not the only place in this Statute where grounds for excluding criminal responsibility may be found

(below B); in this respect, the provision has a supplementary function in that it regulates grounds for excluding criminal responsibility not yet recognized in other provisions of this Statute. On the other hand, article 31 is far from providing a complete supplement of all possible defences to an offence, as may be seen from the missing list (below C). Thus this provision in fact solely deals with incapacity (below D.II), intoxication (below D.III), self-defence and defence of property (below D.IV), and duress (below D.V). Yet, this deficiency as well is consciously taken into account, firstly in paragraph 2 by giving the Court the power to determine the concrete applicability of the grounds for excluding criminal responsibility (below D.VI), and secondly in paragraph 3 by allowing the invocation and development of further grounds for excluding criminal responsibility by reference to other applicable international and national law (below D.VII).

Beyond being merely supplementary and still incomplete, the manner in which these grounds for excluding criminal responsibility are regulated is ambivalent insofar as it leaves open the question as to whether a specific ground may be considered as a ‘justification’ of the offence or merely as an ‘excuse’ of the offender, or whether other – more procedural or political – reasons may lead to a discharge. In this respect, by abstaining from a closer differentiation between various types of exclusionary grounds, as known in most continental-European jurisdictions¹, article 31 appears to have been phrased along common law propositions of a rather broad and undifferentiated concept of ‘defences’. Although this common law point of departure has to be kept in mind when interpreting the defences of the Statute, the question remains whether the future development could aim at different ends (below E).

With regard to the genesis of article 31, two lines of development are worth remarking: a more principal and a more formal one. The first is concerned with the question of whether the Statute should provide grounds for excluding criminal responsibility at all. In this respect, the development leads from almost zero to considerable heights, finally ending on a middle level². If, by neglecting earlier drafts³, the 1994 ILC Draft Statute may serve as starting point of the Rome Statute, it must be realized that in this Draft grounds for excluding criminal responsibility are not mentioned at all; this, however, may be explained by the fact that the ILC Draft was by any means rather scarce in pronouncing general principles by merely explicitly expressing the principle of legality (article 39). Thus, in that Draft, solely its article 33 which deals with ‘applicable law’, thereby allowing the application of ‘general international law’ or ‘any (applicable) rule of national law’, could have been used as source for excluding criminal responsibility. After this substantial lack of general requirements of and exemptions from criminal responsibility had been met with considerable criticism, supported by constructive proposals⁴, all further proposals and drafts of UN Committees contained a

¹ Cf. Eser, in: Eser and Fletcher (eds.), *Rechtfertigung und Entschuldigung – Justification and Excuse. Comparative Perspectives* (1987) 19 et seq.; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 215 et seq.; cf. also below mn 17.

² In addition to this review cf. also Ambos, *Internationales Strafrecht* (2014) 217 et seq.; id., *Treatise on International Criminal Law* (2013) 301 et seq.; Knoops, in: Doria, Gasser and Bassiouni (ed.), *The Legal Regime of the International Criminal Court* (2009), 779, 793 et seq.; Schabas, *The International Criminal Court* (2010) 482 et seq.; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 239 et seq. – Further cf. on the controversy about an exhaustive or enumerative list of defences Scaliotti (2001) 1 ICLRev [111], 119; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 221 et seq.

³ Such as the 1991 ILC Draft Code, in which at least some rudimentary general principles and in rather general terms ‘defences and extenuating circumstances’ had been recognized: cf. Eser, in: Bassiouni (ed.), *Commentaries on the International Law Commissions 1991 Draft Code of Crime against the Peace and Security of Mankind* (1993) 58 et seq. – As to whether and to what kind and degree defenses had already found consideration and recognition in the Nuremberg trials see Heller, *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (2011) 294 et seq.

⁴ In particular cf. the various (private) Siracusa/Freiburg/Chicago-Drafts which, as an alternative to the (official) ILC-Drafts, had been prepared by a working group of the AIDP/ISISC in Siracusa/Italy and the Max Planck Institute for Foreign and International Criminal Law in Freiburg/Germany (article 33; published in: Nill-Theobald, *‘Defences’ bei Kriegsverbrechen am Beispiel Deutschlands und der USA.* (1998) 454 et seq.); as several of these rules had been phrased differently by Eser, Koenig, Lagodny and Triffterer (reprinted and compared with the version in the Updated Siracusa Draft in: Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 942 et seq.),

certain range of various defences. This new openness can be observed as early as in the *Ad Hoc* Committee Report of 1995, where in Annex II a long list of possible defences can be found⁵. Still more proposals of possible defences were put forward for consideration in a compilation by the Preparatory Committee of 1996⁶. However, in all further recommendations of the Working Group on General Principles of Criminal Law Penalties, solely mistake of fact or of law were left as explicitly recognized⁷. The eventually decisive step was then taken by the Preparatory Committee at its December 1997 session, where it accepted the recommendations of the Working Group on General Principles of Criminal Law, as there the grounds for excluding criminal responsibility appear for the first time in the form in which it is, in principle, still represented in the present article 31⁸.

- 4 After these recommendations had basically been upheld by the Inter-Sessional Meeting of January 1998⁹ and finally found admittance into the Draft Statute of the Preparatory Committee of April 1998¹⁰ as a formal basis of the Rome Conference, all further modifications were less of principal than of marginal and more formal character. Without wishing to go into details at this point, the Final Draft Statute as presented to the Diplomatic Conference was, regarding defences to an offense, basically structured in the following way: Whereas mistake of fact or mistake of law (article 30) as well as superior orders and prescription of law (article 32) were regulated in special provisions and later merely renumbered to articles 32 and 33 respectively, article 31 was at that stage partly broader due to its recognition of a sort of necessity (paragraph 1 (d)), partly narrower due to its not yet containing a defence of property in case of war crimes (originally to be regulated in a specific article 33, now within article 31 paragraph 1 (c)), and by treating the present paragraph 3 of article 31 as 'other grounds for excluding criminal responsibility' in a special article 34. Whereas the chapeau of article 31 as well as paragraph 1 (a) and paragraphs 2 and 3 remained almost unchanged in their substance, paragraph 1 (b), (c) and (d) underwent various modifications in the course of the Rome Conference. Why, when and in which way this happened, must be seen in connection with the analysis of the respective grounds for excluding criminal responsibility (below D).
- 5 In the Post-Rome activities of the Preparatory Commission in charge of defining certain 'Elements of Crimes' and developing further 'Rules of Procedure and Evidence', the subject matter of defences did not play a major role: Whilst the Elements, in abstaining from any further concretization of the Statutory grounds for excluding criminal responsibility, remind the Prosecutor of his or her obligation under article 54 para. 1 to investigate incriminating and exonerating evidence equally¹¹, the Rules foresee only few procedural regulations of when and how to raise grounds for excluding criminal responsibility¹². The minor role of defences equally holds true for the Regulations of the Court¹³.

these rules were also integrated into 'Proposals to Amend the "Draft Code of Crimes against the Peace and Security of Mankind"', in: Triffterer, *Acts of Violence and International Criminal Law*, Annex 2, (1997) 4 *Croatian AnnCrimL&Pract* 2 [872]. To the role of these different drafts see also Eser, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 777.

⁵ *Ad Hoc* Committee Report, pp. 18 *et seq.*, 48 *et seq.*

⁶ Preparatory Committee on the Establishment of an International Criminal Court, UN Doc. A/AC.249/CRP.9 (4 Apr. 1996), Annex: General Principles of Criminal Law. Cf., in addition, 1996 Preparatory Committee II, pp. 79 *et seq.*

⁷ Cf. Preparatory Committee Decisions Feb. 1997, pp. 18 *et seq.*

⁸ See articles L–O, Preparatory Committee Decisions Dec. 1997, pp. 18 *et seq.*

⁹ See Zutphen Draft, pp. 60 *et seq.*

¹⁰ Preparatory Committee (Consolidated) Draft, pp. 66 *et seq.*

¹¹ Elements, General Introduction, paragraph 5 with fn. 1. cf. Kelt and v. Hebel, in: Lee (ed.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001) 19, 38.

¹² Cf. rule 79 para. 1 (b) (the defence shall notify the prosecutor of intent to raise a defence pursuant to article 31 para. 1), rule 80 (procedures for raising a defence pursuant to article 31 para. 3), rule 121 para. 9 (procedures relating to pre-trial hearings). Cf. Brady, in: Lee (ed.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001) 403, 414 *et seq.*, Friman, in: Lee (ed.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001) 493, 521 *et seq.*

¹³ Cf. regulation 54 (p): At a status conference, the Trial Chamber may issue any order on the defences, if any, to be advanced by the accused.

Due to the novel nature of how these exclusionary grounds are regulated in article 31, 6 some caution with regard to the appropriate methodology of its interpretation appears advisable. Whereas the interpretation of other parts of the Rome Statute may easily take resort to legal precedents both in international and national criminal law, with regard to this section particular heed must be paid to the wording of these provisions, thus avoiding both an uncritical adoption of the ambiguous and controversial drafting at the Rome Conference and an unreflected implantation from national criminal justice systems.

B. Exclusion of criminal responsibility outside of article 31

As early as in its very first words ‘in addition to’, article 31 indicates that it possesses a 7 supplementary function, firstly in recognizing grounds for excluding criminal responsibility already provided for in other provisions of this Statute, and secondly by additional ones. Thus, in order to get a full view of possible grounds for excluding criminal responsibility, such grounds outside of article 31 must at least be listed, though not commented on here.

I. Abandonment (article 25 para. 3 (f))

According to this provision, a person shall not be held liable for the attempt to commit a 8 crime if he or she abandons the effort to commit the crime or otherwise prevents the completion of the crime, provided that he or she gives up the criminal purpose completely and voluntarily (article 25 para. 3 (f) sentence 2). Although in some countries, such as France, abandonment is considered part of the definition of attempt¹⁴, it is at least a negative and, thus, an excluding factor of criminal responsibility¹⁵.

II. Exclusion of jurisdiction of persons over 18 (article 26)

Although, due to the inability of the delegates to find a consensus on the age of 9 responsibility¹⁶, this exclusion is phrased in procedural terms by excluding jurisdiction, the essential reason behind this is the lack of criminal responsibility under a certain age. Therefore, this exclusion can, in substance, be considered as a ground for excluding criminal responsibility as well¹⁷.

III. Mistake of fact and mistake of law (article 32)

As mentioned, even in phases where the drafters of the Statute were hardly prepared to 10 recognize any grounds for excluding criminal responsibility, at any rate mistake of fact and, to a lesser degree, mistake of law were kept as reasons for excluding, or at least mitigating,

¹⁴ Cf. Bouloc, *Droit pénal général* (2013) 228.

¹⁵ For details of the various requirements of abandonment see Ambos above Art. 25, mn 34; Eser, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 777, 814 *et seq.*; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 147 *et seq.*; Werle (2007) 5 JICJ [953], 972 *et seq.*

¹⁶ Cf., in particular, Preparatory Committee Draft, pp. 60 *et seq.*; in addition Ambos (1999) 10 CLF [1], 22 *et seq.*

¹⁷ In principle agreeing van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 215 fn. 11.- For more details see Triffterer and Clark above Art. 26; Ambos, *Treatise on International Criminal Law* (2013) 430 *et seq.*; Cassese, *International Criminal Law* (2013) 227; Frulli, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 527, 533 *et seq.* If not overlooked, this exclusion is neither mentioned by the other comprehensive monographs of Knoops, *Defenses in Contemporary International Criminal Law* (2008), nor of van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003).

criminal responsibility¹⁸. Remarkably, both mistake of fact and mistake of law are explicitly denoted as grounds for excluding criminal responsibility, albeit under certain conditions: in the case of mistake of fact, if it negates the mental element required by the crime (article 32 para. 1), in the case of a mistake of law, if it negates the mental element or (article 32 para. 2 sentence 2 alternative 1) or if it can be traced back to a superior order or a prescription of law according to article 33 (article 32 para. 2 sentence 2 alternative 2). Although both the structure and contents of these mistake rules may be questionable in various respects¹⁹, it was certainly a decisive step regarding mistake of law to recognize this still worldwide highly controversial ground for excluding criminal responsibility at all²⁰.

IV. Superior orders and prescription of law (article 33)

- 11 Another highly controversial ground for excluding criminal responsibility is obedience to a superior order. Although not recognized in principle, article 33 of this Statute provides certain exceptions under which a person may be relieved of criminal responsibility if he or she acted pursuant to an order of a government or of a superior. Although, again, the structure and scope of this provision may be disputable²¹, it attempts to find a middle way between entirely disregarding and partly recognizing obedience to a superior as a ground for excluding criminal responsibility²².

C. Missing defences

- 12 In comparison to national penal codes and case laws where the fulfillment of the definitional elements of an offense may be negated by a wide range of justificatory, exculpatory or other grounds of excluding punishability²³, the list of possible offenses to international offenses in this Statute is rather limited. This may partly be explained by the fact that crimes penalized and prosecuted by inter- and supranational law are, in principle, of such infeasible dimensions that any attempts to justify or excuse them appear obscene and, therefore, are met with psychological reservations. Nevertheless, in the same way that a suspected murderer's act may be justified by self-defence, a rapist excused by insanity, or a policeman released from personal liability for suppressed resistance of 'superior order', in trials of international crimes it cannot be precluded either from the very outset that the

¹⁸ Cf. above mn 4; in particular referring to sex offenses see Grewal (2012) 10 *JICJ* [373], 389. As to partly divided opinions in the Nuremberg trials see Heller, *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (2011) 306.

¹⁹ For alternative phrasing cf. Article 33–15 of the Updated Siracusa Draft (in Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 951).

²⁰ For more details see Eser, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 889, 934 *et seq.*; Triffterer below Art. 32; Korte (2008) 6 *ZIS* [419], 419 *et seq.*; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 269 *et seq.*; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 646 *et seq.*

²¹ As alternatives cf. article 33–16 of the Updated Siracusa Draft, the proposal by Eser, Koenig, Lagodny and Triffterer, article 33 o (in Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 951) and article 11 (in Triffterer, *Acts of Violence and International Criminal Law*, Annex 2, (1997) 4 *Croatian Ann. of Crim. L. and Practice* 2 [872], 879) respectively.

²² For more details see Triffterer and Bock below Art. 33; Bantekas and Nash, *International Criminal Law* (2007) 56 *et seq.*; Knoops, *Defenses in Contemporary International Criminal Law* (2008) 33, 129 *et seq.*; above note 1, E. van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 287 *et seq.*; Zimmermann, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court, A Commentary* (2002) 957 *et seq.* As to the partly inconsistent approach in the Nuremberg judgments see Heller, *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (2011) 299 *et seq.*

²³ See in general Eser, in: Eser and Fletcher (eds.), *Rechtfertigung und Entschuldigung – Justification and Excuse. Comparative Perspectives* (1987) 17, 46 *et seq.* or, for instance with regard to German Criminal Law, cf. Lenckner and Sternberg-Lieben, in: Schönke and Schröder (eds.) *Strafgesetzbuch. Kommentar* (2014) preliminary remarks 27–133 to § 32, 2t 586 *et seq.*

statutory elements of an offense, although all given, may be counteracted by a valid defence²⁴. Otherwise it would not have been possible at all to recognize grounds for excluding criminal responsibility as described above at B and below at D. Yet the question still remains as to whether or not there might be further grounds for excluding criminal responsibility. The answer requires a distinction between two groups of possible defences:

I. Explicitly rejected defences to ICC crimes: Official capacity and statutory limitations

In declaring *official capacity* irrelevant, particularly that of a Head of State or Government (article 27), the Statute explicitly excludes a defence which was formerly practiced commonly and tacitly almost as a ‘matter of course’, which has been rejected, however, since at least as early back as the Nuremberg trials²⁵. Since more recently again invoked by Pinochet²⁶, this Statute’s explicit exclusion of ‘official capacity’ as a defence will hopefully clarify this controversial question and set a preventive signal towards government-supported crimes²⁷.

The same holds true for the non-applicability of the *Statute of Limitations* (article 29).¹⁴ With the explicit rejection of this defence, any speculations on playing with the passage of time are made illusory²⁸.

II. Non-addressed defences

Aside from grounds for excluding criminal responsibility which are either statutorily recognized (above B and below D) or explicitly rejected (above C.I), a wide range of defences remains which may be recognized as grounds for excluding criminal responsibility by various national laws, but which are not explicitly addressed in this Statute, neither in a positive nor in a negative way. Although certain defences recognized by national criminal law, by its very nature may not be acceptable within the context of international crimes, such as for instance educational privileges of parents or teachers, quite a few defences remain which have already been discussed and partly even considered for this Statute²⁹, but which in the final end were neither explicitly recognized nor rejected. Without pretending to be exhaustive, this refers to:

²⁴ See Eser, in: Dinstein and Tabory (eds.), *War Crimes in International Law* (1996) 251, 252 *et seq.*; agreeing Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 398; v. d. Wilt, in: Swart, Zahar and Sluiter (eds.), *The Legacy of the International Criminal Tribunal for the Former Yugoslavia* (2011) 275, 276.

²⁵ For more details see Sadat, L. N., *The International Criminal Court and the Transformation of International Law* (2002) 200 *et seq.*

²⁶ See *id.*, 201.

²⁷ For more details see Triffterer and Buschard above Art. 27; Ambos, *Treatise on International Criminal Law* (2013) 406 *et seq.*; Cassese, *International Criminal Law* (2008) 302 *et seq.*; Gaeta, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 951, 975 *et seq.* – Note, however, that article 27 is only directly applicable to Member States, thus, especially after the so called Arrest-Warrant decision by the International Court of Justice, leaving it controversial whether the Court holds jurisdiction over the head of state or government of non-member states; *cf. Democratic Republic of the Congo v. Belgium*, Judgment, 14 February 2002, 2002 ICJ Rep. 3, para. 61 (<<http://www.icj-cij.org/docket/files/121/8126.pdf>> accessed 23 September 2014). As to this decision *cf. Gaeta* (2003) 1 JICJ [186]; Wirth (2002) 13 EJIL [877].

²⁸ For more details see Schabas above Art. 29; Sadat, L. N., *The International Criminal Court and the Transformation of International Law* (2002) 220 *et seq.*; for possible conflicts with national statutes of limitation *cf. Ambos, Treatise on International Criminal Law* (2013) 427 *et seq.*

²⁹ *Cf.* the compilation of the Preparatory Committee in Annex, note 6, pp. 19 *et seq.*, and, with special regard to war crimes, Eser, in: Dinstein and Tabory (eds.), *War Crimes in International Law* (1996) 251, 254 *et seq.*; Nill-Theobald, ‘Defences’ bei Kriegsverbrechen am Beispiel Deutschlands und der USA. Zugleich ein Beitrag zu einem Allgemeinen Teil des Völkerstrafrechts (1998) 55 *et seq.*

- consent of the victim³⁰,
- conflict of interests/collision of duties³¹,
- reprisals³²,
- general and/or military necessity³³,
- the *tu quoque* argument³⁴, or
- amnesties and immunities³⁵.

16 As several of these defences are highly controversial, partly in principle and partly at least with regard to the character of international crimes³⁶, it appears understandable that the Statute followed a center line by not explicitly recognizing these defences, and, on the other hand, by leaving the door open for one or the other of these defences in an individual case by means of article 31 para. 3 (see below D.VII).

³⁰ Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 328 *et seq.*; *id.*, *Treatise on International Criminal Law* (2013) 387; Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 399, 416. It should be noted, however, that the Elements of Crime as well as the Rules of Procedure and Evidence, in precluding consent from certain crimes (Elements 8 para. 2 (b) (x) fn. 48; 8 para. 2 (e) (xi) fn. 68) or by barring the inference of consent from certain facts (rule 70), implicitly recognize consent as a possible defence; for details *cf.* Schabas, *The International Criminal Court* (2010) 493 *et seq.* With particular regard to consent problems in sexual abuse *cf.* Boon (2001) 32 *Columbia HRLR* [625], 667 *et seq.*, and furthermore Viseur Sellers, in: Kirk McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law* (2000) [263], 328 (who interprets the jurisprudence of the ICTR on cases of sexual violence as constricting the availability of consent as a defence).

³¹ *Cf.* Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1008.

³² *Cf.* Ambos, *Treatise on International Criminal Law* (2013) 390 *et seq.*; Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 417; Eser (1995) 24 *Israel Y.B. Hum. Rts.* [201], 217 *et seq.*; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 291 *et seq.* On the controversy about the legality of reprisals against civilians *cf.* *Prosecutor v. Kupreskic et al.*, IT-95-16-T, Judgment, Trial Chamber, 14 January 2000, paras. 527–536 (rejecting a defence) and (in criticizing this holding) Greenwood, 'Belligerent Reprisals in the Jurisprudence of the International Criminal Tribunal for the Former Yugoslavia', in: Fischer *et al.* (eds.), *International and National Prosecution of Crimes under International Law. Current Developments* (2001) 539, 549 *et seq.* and van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 261 *et seq.*

³³ *Cf.* Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 324; *id.*, *Treatise on International Criminal Law* (2013) 388 *et seq.*; Eser (1995) 24 *IsYbHumRts* [201], 219; Knoops, *Defenses in Contemporary International Criminal Law* (2008) 136 *et seq.*; *id.*, in: Doria, Gasser and Bassiouni (ed.), *The Legal Regime of the International Criminal Court* (2009) 779, 786 *et seq.*; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 295 *et seq.*; v. d. Wilt, in: Swart, Zahar and Sluiter (eds.), *The Legacy of the International Criminal Tribunal for the Former Yugoslavia* (2011) 275, 285 *et seq.* and, with particular attention to the Nuremberg judgments, see Heller, *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (2011) 308 *et seq.* – As to the ill-guided confusion of 'necessity' and 'duress' see below mn 49. *cf.* also below to note 134.

³⁴ The ICTY comprehensively classified the *tu quoque* defence as impermissible in international humanitarian law in *Prosecutor v. Kupreskic et al.*, IT-95-16, Decision on Evidence of the Good Character of the Accused and the Defence of Tu Quoque, Trial Chamber, 17 February 1999. *cf.* Also Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 328 *et seq.*, *id.*, *Treatise on International Criminal Law* (2013) 393; Eser (1995) 24 *IsYbHumRts* [201], 218; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 294 *et seq.* As to the denial of this defense as well as of the invocation of 'selective prosecution' in Nuremberg trials see Heller, *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (2011) 296 *et seq.*

³⁵ *Cf.* Cassese, *International Criminal Law* (2013) 309 *et seq.*; Eser (1995) 24 *IsYbHumRts* [201], 219 *et seq.*, Peschke, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 178, 183 *et seq.*, 202; Robinson, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1849, 1855 *et seq.*; Schabas, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 373 *et seq.* (2011); Safferling, *Internationales Strafrecht* (2011) 123 *et seq.*

³⁶ *Cf.* Eser, in: Dinstein and Tabori (eds.), *War Crimes in International Law* (1996) 251, 245 *et seq.*

D. Analysis and interpretation of elements

I. Paragraph 1: Chapeau

1. 'Grounds for excluding criminal responsibility'

When using this language, the Statute is basically, although only half-way, following 17 continental-European rather than common law traditions. In avoiding the common law term of 'defences' that would be open for comprising substantive as well as procedural bars to punishability and prosecution, the Statute is merely addressing *substantive* grounds for excluding criminal responsibility³⁷. Since the term 'defence' was consciously avoided³⁸, it would be inapt to use, as some commentators still do³⁹, defence and grounds for excluding criminal responsibility as interchangeable concepts⁴⁰. When speaking of 'excluding criminal responsibility' without further differentiation, however, the Statute leaves open the question as to whether a given ground is *justifying* the wrongful act or merely *excusing* the perpetrator, or even only *negating punishability* for some other substantive reason⁴¹. In abstaining from such further differentiation, the Statute remains behind jurisprudential development as was achieved particularly in the Germanic and, to some degree, in the Romanic jurisdictions as well⁴². Although the application of this distinction could be helpful for reasoning certain grounds for excluding criminal responsibility in a properly differentiated way, as in particular with regard to necessity and duress⁴³, this conceptual deficiency is not to create a practical

³⁷ This restriction to substantive exclusions of criminal responsibility, however, seems not to be generally recognized as, quite strangely, even *alibi* as a clearly evidentiary bar to finding a defendant guilty is mentioned among possible (although by this provision of the Statute not recognized) defences by certain authors, such as Sadat, L. N., *The International Criminal Court and the Transformation of International Law* (2002) 212 fn. 157; Schabas, *An Introduction to the International Criminal Court* (2001) 88; cf. also Ambos, *Treatise on International Criminal Law* (2013) 388. Incidentally, this narrower understanding of defences seems to be gaining fellowship also among common law scholars; see, e.g., Ashworth and Horder, *Principles of Criminal Law* (2013) 193; cf. also van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 215 et seq.

³⁸ Reported by Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1028 with reference to Saland, in: Lee (ed.), *The International Criminal Court – The Making of the Rome Statute* (1999) 189, 206. cf. also Merkel (2002) 114 ZStW [437], 441.

³⁹ Cf. Kittichaisaree, *International Criminal Law* (2001) 258; Schabas, *An Introduction to the International Criminal Court* (2001) 88.

⁴⁰ Cf. also Ambos, *Internationales Strafrecht* (2014) 218 et seq. – With regard to consequences for the application of paragraph 3 of Art. 31 which allows the development of further grounds for excluding criminal responsibility, see below mn 74.

⁴¹ Cf. the comment by Sadat Wexler, *Model Draft Statute for the International Criminal Court based on the Preparatory Committee's Text to the Diplomatic Conference, Rome June 15 – July 17 (1998)* 56. Apparently due to this lack of clarity Wise, in: Sadat Wexler (ed.), *Observations on the Consolidated ICC Text before the Final Session of the Preparatory Committee* (1998) 43, 52, sees in Art. 31 a 'miscellaneous lot of exculpatory grounds' whilst, even more confusing, Krug, (2000) 94 AJIL. [317] fn. 2 speaks of 'justification' as providing 'exculpation' for not wrongful acts as to be distinguished from 'excuse' as 'exculpating' a particular defendant from accountability, thereby obviously not recognizing that 'exculpation' (as discharging from 'culpa' in terms of 'culpability') is more synonymous with mere 'excuse' (of the actor) rather than with 'justification' of the act.

⁴² Cf. the contributions to Eser and Fletcher (eds.), *Justification and Excuse. Comparative Perspectives*, Vol. I and II (1987/88); Eser and Perron (eds.), *Rechtfertigung und Entschuldigung* (1991); Watzek, *Rechtfertigung und Entschuldigung im englischen Strafrecht* (1997); furthermore Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 825; Jescheck and Weigend, *Lehrbuch des Strafrechts. Allgemeiner Teil* (1996) 332 et seq.; Merkel (2002) 114 ZStW [437], 448 et seq., 454; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 229 et seq., 273, 299, id., *Individual Criminal Responsibility in International Law* (2012) 215 et seq.

⁴³ Cf. below mn 49; furthermore Merkel (2002) 114 ZStW [437], 441, 448 et seq., 454; Sadat, L. N., *The International Criminal Court and the Transformation of International Law* (2002) 214 et seq.; Scaliotti (2002) 2 ICLRev[1], 46; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 230, 271 et seq., 299.

impediment as it also seems to be a common view⁴⁴. For as long as ‘criminal responsibility’ is understood in a broad sense, i.e. in terms of not only referring to the (subjective) capability of the actor but as also comprising the (objective) wrongfulness of the act, its exclusion may not only be procured by exculpatory factors, as in the case of incapacity (Paragraph 1 (a))⁴⁵, but also by genuine justifications as in the case of necessary and proportionate self-defence (paragraph 1 (c))⁴⁶.

2. ‘In addition to’ ‘other grounds ... provided for in this Statute’

- 18 By referring to ‘additional grounds’ for the exclusion of criminal responsibility, this article reveals its supplementary, if not even fundamental function as central place for the possible exclusion of criminal responsibility. Taking this route, the article could serve as the main instance of reference in such cases where general issues of these or other grounds for excluding criminal responsibility are in question⁴⁷. This might become relevant, for example, with regard to the time at which a defence must be present: for instance, as neither article 32, concerned with mistake of fact or law, nor article 33, concerned with superior orders, makes any reference to the relevant time, reference to the ‘person’s conduct’ in this paragraph could serve as guideline (see below D. I. 3).
- 19 Although paragraph 1 only refers to additional exclusionary grounds ‘provided for in this Statute’, this may not be interpreted as a ‘closed shop’ against other grounds for excluding criminal responsibility, for, as can be derived from paragraph 3, the Statute does not bar the invocation of other exclusionary grounds found in applicable international and national law according to article 21 (see below D. VII).
- 20 However, although the case of concurrent exclusionary grounds is not expressly addressed, there is no reason why it should not be possible for a defendant to invoke multiple grounds for excluding criminal responsibility if they are given, as in the case in which he or she was misguided by a mistake of fact or law (according to article 32) and additionally acting under duress (according to paragraph 1 (c)).

3. ‘At the time of that person’s conduct’

- 21 In stating the ‘person’s conduct’ as the decisive time at which a ground for excluding criminal responsibility must be given, the Statute takes a rather narrow view by, implicitly, declaring the time at which the statutory result of the conduct occurs as irrelevant. Consequently, for instance, with regard to intoxication (paragraph 1 (b)), a person taking part in genocide who, at the time of giving orders or providing support, had already consumed alcohol, his mind yet not affected, could not claim exculpation by proving that, at the time at which the genocidal act was committed by the principals, he had lost his capacity to appreciate the unlawfulness of his conduct. Nevertheless, this so-called ‘act theory’ – as opposed to the ‘ubiquity principle’, according to which the place and/or the time of the effect of an act is equally relevant as the place or time of the conduct⁴⁸ – appears feasible in that the prohibition as well as permissions and excuses are determinant for the

⁴⁴ Cf. Bantekas and Nash, *International Criminal Law* (2007) 53 *et seq.*; Cassese, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 951, 955; Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 402, 399 *et seq.*; Scaliotti (2001) 1 *ICLRev*[111], 118.

⁴⁵ Cf. below mn 22, Ambos, *Treatise on International Criminal Law* (2013) 304 *et seq.*

⁴⁶ For instance, to consequences with regard to mistakes of fact or law see Eser, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 889, 934 *et seq.*; cf. also Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 300 *et seq.*

⁴⁷ Agreeing van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 223 *et seq.*; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 620.

⁴⁸ For details to these approaches cf. Eser, in: Schönke and Schröder (eds.), *Strafgesetzbuch* (2014) § 8 mn 2 (with regard to the time of commission) at 105, and § 9 mn 3 *et seq.* (with regard to the place of commission), at 107 *et seq.*

conduct, whereas the occurrence of the statutory result may be accidental or at least no longer influenced by the conduct the respective person is responsible for⁴⁹.

II. Paragraph 1 (a): Incapacity

Different from all other exclusionary grounds of article 31 which underwent various modifications in the course of the promulgation of the Statute, the wording of paragraph 1 (a) has remained unchanged since its elaboration by the Working Group on General Principles of Criminal Law and its adoption by the Preparatory Committee at its December 1997 session⁵⁰. This provision adopts the well-established principle of national criminal justice systems that incapacity or legal insanity serves as a categorical exclusion of criminal responsibility⁵¹. As merely granting a personal excuse, however, and not an objective justification of the crime, the act still remains unlawful⁵². Since in this way excluding criminal responsibility, incapacity is to be distinguished from the inability to stand trial (as regulated in article 64 para. 8 and rule 135).⁵³

As to the contents of paragraph 1 (a), incapacity as ground for excluding criminal responsibility has two basic requirements: a defective mental state in terms of an abnormality of mind⁵⁴ (1), in which the capacity to either appreciate the unlawfulness or to control the conduct is destroyed (2).

1. ‘Suffers from a mental disease or defect’

This component of the insanity defence is a triple one: the defendant has to ‘suffer’ from a certain impairment (‘disease or defect’) that relates to the human mind (‘mental’). In comparison to corresponding regulations in various recent national penal codes⁵⁵ this requirement is narrow in one respect and rather broad in the other.

On the one hand, the regulation of incapacity in subparagraph (a) could be understood as narrow because of solely recognizing ‘*mental*’ deficiencies as ground for excluding criminal responsibility. As suggested in the first edition of this commentary and, indeed, followed by

⁴⁹ Agreeing Ambos, *Treatise on International Criminal Law* (2013) 312; cf. also van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 242 *et seq.*

⁵⁰ Cf. Preparatory Committee Decisions Dec. 1997; article I; Schabas, *The International Criminal Court* (2010) 484 *et seq.*

⁵¹ Cf. Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 672 and 674. For details to national underpinnings and case law on this commonly so-called ‘insanity defence’ cf. Ambos, *Treatise on International Criminal Law* (2013) 315 *et seq.*; Knoops, in: Doria, Gasser and Bassiouni (eds.), *The Legal Regime of the International Criminal Court* (2009) 779, 789 *et seq.*; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 224 *et seq.* – Note that a plea of incapacity raises procedural difficulties that are neither covered by the Rome Statute nor by the Rules of Procedure and Evidence. For example, article 77 does not foresee detention as the appropriate reaction to a successful incapacity plea; in order not to set the defendant free, regulation 106 para 6 – which allows a Chamber of the Court to transfer detained mentally ill persons or persons suffering from serious psychiatric condition to specialized institutions for appropriate treatment – could be construed as providing the appropriate sanction for defendants successfully raising incapacity. It has to be noted, however, that this interpretation is delicate at best, since it would invent a highly intrusive criminal sanction with there being only a very small, if any, basis in the Rome Statute. For an overview over further procedural problems regarding insanity cf. Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 303 *et seq.*; Krug, (2000) 94 *AJIL* [317], 322 *et seq.*

⁵² Cf. above mn 17, Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 301 f.

⁵³ Cf. Ambos, *Treatise on International Criminal Law* (2013) 432 *et seq.* As an example of this kind of a procedural defence at the ICTY see *Prosecutor v. Kovačević*, IT-01-42/2, public version of the Decision on Accused’s Fitness to Enter a Plea and Stand Trial, Trial Chamber I, 12 April 2006; Zahar and Sluiter, *International Criminal Law* (2008) 440 *et seq.*

⁵⁴ As understood in *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 16 November 1998, para. 1156 (hereafter Čelebići).

⁵⁵ Cf. Ambos, *Treatise on International Criminal Law* (2013) 314 *et seq.*; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 224 *et seq.*

some prominent authors⁵⁶, ‘mental’ might be interpreted as not covering merely ‘psychic’ disturbances as long as they do not affect the cognitive or intellectual capacity of the person concerned. Consequently, other psychic affections or deep emotional disturbances, as they may be taken into consideration in national laws⁵⁷, could only be taken resort to by way of paragraph 3 of this article (below D.VII). At second glance, however, this restrictive reading of ‘mental’ appears neither cogent nor adequate as better arguments speak for a broader concept in which ‘mental’ encompasses impairments both of reason (cognition)⁵⁸ and emotion (volition)⁵⁹. In comparativ perspective, this issue resonates the recurring debate in national criminal law as to whether the incapacity defence should be restricted to cognitive inabilities of the defendant to recognize the unlawfulness of his or her conduct or also to comprise uncontrollable, irresistible impulses, though the defendant may still be intellectually aware of the wrongfulness of his or her action⁶⁰. In linguistic terms it is to be taken into account that the (English) term ‘mental’ is highly ambiguous, bearing several connotations that neither point one or another way⁶¹. Thus, with regard to the Statute both the legislative history of paragraph 1 (a) and teleological reasoning as well as comparative analysis advise a broad interpretation of ‘mental’. Not only that a restrictive cognitive understanding would trail recent national penal codes that opted for an inclusion for volitional disturbances and disorders⁶², in particular remembering that the formulation ‘mental disease or defect’ is directly taken from sec. 4.01. U.S. Model Penal Code⁶³ which supplements the cognitive focus of the (in)famous M’Naghten test⁶⁴ with a volitional element. Furthermore, this dualistic approach is normatively warranted since the psychiatric distinction between volitional and cognitive disorders is in a constant flux⁶⁵, so it does not seem sensible to rest the availability of the incapacity defence on hazy labels attached to mental illnesses. Finally, this reasoning evidently motivated the Working Group Chairman’s statement that the effect, not the label, of a certain mental condition should be the pertinent factor⁶⁶.

- 25 On the other hand, however, this component of the insanity defence appears rather broad by not requiring a specific mental ‘disease’, but by being content with any ‘defect’ that destroys the defendant’s relevant capacity. This gate to the insanity defence is, of course, even more opened if ‘mental’ is to be broadly understood in terms of comprising both cognitive

⁵⁶ Such as Knoops, *Defenses in Contemporary International Criminal Law* (2008) 110 *et seq.* and Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 674, and, supposedly in not yet realizing the change of position made here, Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 302; *id.*, *Treatise on International Criminal Law* (2013) 32 with reference to fn. 190.

⁵⁷ As, for instance, according to § 20 German Penal Code. For details see Perron, in: Schönke and Schröder (2014) § 20 mn 6 *et seq.*, at 379.

⁵⁸ In terms of encompassing awareness and understanding; *cf.* Wilson, *Criminal Law: doctrine and theory* (2003) 231.

⁵⁹ As, in particular, suggested by Janssen (2004) *ICLRev* [83], 84; Krug, (2000) 94 *AJIL* [317], 324; Scaliotti (2002) 2 *ICLRev* [1], 26; and as also interpreted by the (German) Gesetzentwurf der Bundesregierung zur Einführung des Völkerstrafgesetzbuches: Deutscher Bundestag Drucksache 14/8524, 37 (Cabinet’s Draft for a German International Criminal Code); similarly Merkel (2002) 114 *ZStW* [437], 443; supposedly to be understood in broad terms *cf.* also van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 225 *et seq.*

⁶⁰ *Cf.* Ormerod, *Smith and Hogan’s Criminal Law* (2011) 304.

⁶¹ *Cf.* *Oxford English Dictionary* (OUP 2004) keyword: mental.

⁶² Beside § 20 German Penal Code of 1975 (already mentioned above note 57), *cf.* in particular article 35 Polish Penal Code of 1998 and article 20 Spanish Penal Code of 1995.

⁶³ Sec. 4.01. U.S. Model Penal Code reads: ‘A person is not responsible for criminal conduct if at the time of such conduct as a result of mental disease or defect he lacks substantial capacity either to appreciate his criminality (wrongfulness) of his conduct or to conform his conduct to the requirements of law’.

⁶⁴ House of Lords, 8 ER 718 (1843). The relevant section reads as follows: ‘... to establish a defence on the ground of insanity it must be clearly proved that, at the time of committing the act, the accused was labouring under such a defect of reason, from disease of the mind, as not to know the nature and quality of the act he was doing or, if he did know it, that he did not know he was doing what was wrong’; *cf.* Schabas, *The International Criminal Court* (2010) 485.

⁶⁵ Krug, (2000) 94 *AJIL* [317], 324, footnote 48.

⁶⁶ Reported by Scaliotti (2002) 2 *ICLRev* [1], 26.

and emotional defects as described before. This obvious danger of opening the insanity defence to almost any psychic affection must be counterchecked by all the more taking the requirement of ‘suffering’ from a relevant disease or defect serious in that not a merely temporary or momentary mental defect may suffice but that it must amount to a disturbance of some duration⁶⁷.

2. ‘Destroys’ the person’s ‘capacity to appreciate’ the unlawfulness or the ‘capacity to control’ the conduct

However narrow or broad the mental deficiencies are construed, the final limits of the insanity defence anyhow depend on the further required effects on the defected mind.

With regard to the affected *capacity*, the Statute continues its mild approach in that it suffices that either the (*cognitive*) ‘*appreciation*’⁶⁸ of the unlawfulness or nature of the conduct or the (*volitional*) ‘*control*’ of the conduct to conform to the requirements of law is affected⁶⁹.

Thus, the ultimate limitation of the incapacity defence rests with the degree of defection of the relevant capacity: it has to be ‘destroyed’. In this respect, the Statute clearly goes beyond the otherwise very similar sec. 4.01. US Model Penal Code, which only calls for a ‘lack of substantial capacity’⁷⁰. The criterion ‘destroy’ is nonetheless far from self-explaining. If, on the one hand, the mental deficiency goes so far as to completely exclude the person’s ability or awareness of acting as such,⁷¹ criminal responsibility is not only excluded by lack of culpability according to paragraph 1 (a), but eventually even by lack of human conduct or lack of intent (article 32 para. 1). If, on the other hand, from a normative point of view, the destroyed capacity was equated with the utter elimination of volitional control or cognitional reason, the Statute would set unrealistic hurdles, since mental disorders normally do not leave mentally ill people absolutely incapable of self-control or totally disorientated⁷². In order to give testifying expert witnesses an appropriate and workable orientation and to grant mentally ill defendants a fair chance to raise incapacity, ‘destroyed’ mental capacities may reside between the substantial and the absolute impairment of cognitive or volitional abilities⁷³. What, thus, is required for is an extensive and far-reaching loss of self-control or reason⁷⁴.

At any rate, however, the level of incapacity must still remain above mere diminished mental *capacity*; for different from various national penal codes, the Statute does not provide a (partial) defence of ‘diminished criminal responsibility’⁷⁵. Therefore, as suggested in the First Edition of this Commentary, taking resort to paragraph 3 seemed to be the only way for

⁶⁷ Agreeing Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 302, *id.*, *Treatise on International Criminal Law* (2013) 321; Knoops, *Defenses in Contemporary International Criminal Law* (2008) 110 *et seq.* As to evidentiary aspects of proving a psychic affection see D. Radosavljević (2013) 13 *ICLRev* [1013], 1013–1035..

⁶⁸ As ‘*appreciate*’ is again borrowed from sec. 4.01. U.S. Model Penal Code, one should be aware of the controversy as to whether using ‘*appreciate*’ rather than ‘*know*’ entails a broader understanding than simple cognition; in this case the offender has to be intellectually and emotionally aware of the significance of his conduct. *cf.* *Model Penal Code and Commentaries*, i, General Provisions (1985) §§ 3.01 to 5.07 169.

⁶⁹ For more details of these two different sides of culpability *cf.*, with regard to the almost equivalent version of the German § 20 Penal Code, Perron, in: Schönke and Schröder (2014) § 20 mn 25 *et seq.*, at 392.

⁷⁰ In a similar way, rule 67 lit. A (ii) (b) ICTY refers to ‘diminished or lack of mental responsibility’. This provision was addressed in Čelebići, note 54 but only to the extent of diminished mental capacities.

⁷¹ As according to Janssen (2004) *ICLRev* [83], 85, 96 the Statute deeming to require one hundred percent insanity, thus, however, making a successful insanity plea highly unlikely.

⁷² *Cf.* the comment to sec. 4.01. U.S. Model Penal Code: ‘Disorientation, psychiatrists indicated, might be extreme and still might not be total; what clinical experience revealed was closer to a graded scale with marks along the way’. *Model Penal Code and Commentaries*, i, General Provisions (1985) § 3.01 to 5.07 171. *Cf.* also Salton (1990) 78 *CalLRev* [1027], 1042.

⁷³ By no means is this middle course over-stretching ‘the limits of literal interpretation’ as indicated by Ambos, *Treatise on International Criminal Law* (2013) 322 who, in case of a mental defect falling short of ‘destroying’ the actor’s cognitive or volitional capacity, would instead recommend to take resort to mitigation.

⁷⁴ The Statute’s still high requisites are legitimated by the seriousness of the pertinent crimes.

⁷⁵ *Cf.* § 21 German Penal Code, Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 302.

taking a case of diminished responsibility into account⁷⁶. Yet, this is not necessary anymore since rule 145 para. 2 (a) (i) explicitly mentions ‘substantially diminished mental capacity’ which, though ‘falling short of constituting grounds for exclusion of criminal responsibility’, may be taken into account in the determination of sentence. This pragmatic approach⁷⁷, although precluding an independent defence of ‘diminished responsibility’, at least allows for mitigation in the sentencing phase; but as the mental abilities must be ‘substantially’ reduced⁷⁸, more than merely minor mental defects are to be required⁷⁹.

III. Paragraph 1 (b): Intoxication

- 30 This ground for excluding criminal responsibility is world-wide highly controversial, not at least due to the diverging cultural attitudes towards alcohol. Thus, the handling of intoxication differs greatly from nation to nation⁸⁰. So it cannot surprise that the Statute follows a centerline by neither completely disregarding nor unconditionally recognizing lack of capacity by reason of intoxication as a defence. Although the main approach of the present provision can be found as early as in the Report of the Working Group as accepted by the Preparatory Committee in its December 1997 session⁸¹, the Draft Statute of April 1998 still contained quite a few alternatives⁸². Thus, it was not prior to the session of the Working Group of June 29, 1998⁸³ that the final version was accepted⁸⁴, then by attempting to find a balance between completely disregarding and principally recognizing intoxication as a ground of excluding criminal responsibility.⁸⁵

⁷⁶ As criticized by van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 247, resorting to article 31 para. 3 would have been systematically problematic, however, since this norm only deals with full defences, whilst diminished responsibility only serves as a partial defence. Cf. also Cryer, in: Cryer et al. (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 401; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 228; Scaliotti (2002) 2 ICLRev[1], 27, considering the option to raise diminished responsibility under article 21.

⁷⁷ Which eventually follows neither the continental-European understanding of diminished responsibility as partial excuse (i.e. a partial reduction of the defendant’s culpability) nor the Anglo-American understanding, where diminished responsibilities reduces the charge to a lesser included offense, for example from murder to manslaughter. On the different approaches to diminished responsibility cf. Krug, (2000) 94 AJIL[317], 328 et seq.

⁷⁸ The qualification ‘substantially’ was already circulated in the Preparatory Committee (Consolidated) Draft, p. 122, fn. 13.

⁷⁹ Note, that interpreting the qualification ‘substantially’ with reference to Čelebići, note 54, para. 1166, where the ICTY advanced a substantially impairment test for determining the scope of the diminished responsibility defence of rule 67 lit. A (ii) (b) ICTY, is delicate at best, since the ICTY was prepared, under certain conditions, to understand diminished responsibility as a complete defence (cf. Čelebići, note 54, para. 1164).

⁸⁰ Beside this lack of a common approach to dealing with intoxication, as already addressed in the 1996 Preparatory Committee II (see fn. to article M, p. 98), and still in the Preparatory Committee Draft, p. 69, fn. 24, it was even questioned in principle whether voluntary intoxication was at all a defence worth to be discussed in the context of crimes at stake here: see Report of the Working Group of General Principles of Criminal Law of 3 July 1998, UN Doc. A/CONF.183/C.1/WGPP/L.4, Add.1/Rev.1, p. 4, fn. 8; cf. also Ambos, *Treatise on International Criminal Law* (2013) 324 et seq.; Ambos (1999) 10 CLF [1], 25 et seq. For details to national underpinnings of this defence cf. also Schabas, *The International Criminal Court* (2010) 480 et seq.; Werle and Jessberger, *Principles of International Criminal Law* (2014) 677 et seq.; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 230 et seq. As to ICTY cases in which intoxication had – mainly without success – been invoked for excluding criminal responsibility see *Prosecutor v. Kvočka et al.*, IT-98-30/1-T, Judgment, Trial Chamber, 2 November 2002, para. 706; *Prosecutor v. Todorović*, IT-95-9/11-S, Sentencing Judgment, Trial Chamber, 31 July 2001, para. 90; *Prosecutor v. Vasiljević*, IT-98-32-T, Judgment, Trial Chamber, 29 November 2002, para. 284; *Prosecutor v. Mrđja*, IT-02-59-S, Decision on the defense motion for medical examination and variation of scheduling order, Trial Chamber I, 15 September 2003.

⁸¹ See article L para. 1 (b) Preparatory Committee Decisions Dec. 1997, p. 19.

⁸² See article 31 para. 1 (b) Preparatory Committee (Consolidated) Draft, p. 67 et seq.

⁸³ Article 31 para. 1 (b) Report of the Working Group on General Principles of Criminal Law, Committee of the Whole, UN Doc. A/CONF.183/C.1/WGPP/L.4/Add.1 (1998).

⁸⁴ According to Saland, in: Lee (ed.), *The International Criminal Court – The Making of the Rome Statute* (1999) 189, 207, as drafter of this provision, this compromise was eventually accepted because it ‘had the benefit of not satisfying anyone’.

⁸⁵ Ambos, *Treatise on International Criminal Law* (2013) 324.

As to the provision's scope, at the Rome Conference it was controversial whether intoxication serves as an excuse only to war crimes or also to genocide and crimes against humanity⁸⁶. According to the Working Group's Chairman it was inconceivable that the Court would accept intoxication with regard to the latter two charges⁸⁷. Following this reasoning, Ambos deems it 'absurd to defend a person who committed genocide or crimes against humanity with the argument that he or she was drunk'⁸⁸. Yet, such an *a priori* limitation of subparagraph (b) can neither be reconciled with the encompassing wording nor is it normatively warranted. Although it seems practically inconceivable that masterminds of a prolonged genocidal engagement or of widespread or systematic attacks against a civilian population raise intoxication, it is not unlikely that an individual genocidal act or a particular crime against humanity is committed by an ordinary low-level person who is actually intoxicated throughout the whole crime and thus should not be precluded from raising subparagraph (b).⁸⁹

This rather lengthy provision can be broken down into two positive elements by requiring a certain state of intoxication (1) by which the person's capacity of appreciation and control is destroyed (2), and a negative element by excluding exculpation if the person was voluntarily intoxicated (3).

1. 'State of intoxication'

Whereas the first drafts had required intoxication to be caused by alcohol or drug consumption⁹⁰, although then opening it to 'other means'⁹¹, the Statute finally rescinded the presupposition of a specific substance or cause by which the intoxication must have been produced. As, however, intoxication by its very meaning implies a sort of toxic impact, it would not suffice that the person acted in a state of excitement or acceleration, as may follow from endogenic causes or external circumstances, though in its effect comparable to drunkenness or drug consumption, rather the intoxication must at least be caused by consumption of an exogenic substance with the effect of an intoxication.⁹²

2. 'Destroys' the person's 'capacity to appreciate the unlawfulness' or the 'capacity to control' the conduct

As in the case of incapacity by mental defect, it would not be sufficient that the intoxication merely diminishes the person's capacity of appreciation and control, but rather it must 'destroy' the personal ability to realize and estimate that he is acting unlawfully or, if the person is still aware of the unlawfulness of the conduct, lacks the ability to control it according to the requirements of law⁹³.

⁸⁶ Cf. Knoops, in: Doria, Gasser and Bassiouni (ed.), *The Legal Regime of the International Criminal Court* (2009), 779, 789; Scaliotti (2002) 2 *ICLRev* [1], 34; Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1030.

⁸⁷ Reported by Scaliotti (2002) 2 *ICLRev* [1], 34.

⁸⁸ Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1030.

⁸⁹ As meanwhile also recognized by Ambos *Treatise on International Criminal Law* (2013) 328; also agreeing Safferling, *Internationales Strafrecht* (2011) 120.

⁹⁰ See article M in the 1996 Preparatory Committee II, p. 98.

⁹¹ Cf. Article 25 (L) para. 1 (b) Zutphen Draft, p. 61.

⁹² Ambos, *Treatise on International Criminal Law* (2013) 328; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 229.

⁹³ van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 229; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 679. For further details to this parallel component of the intoxication and the incapacity defences see above mn 26 et seq.

3. Unless ‘voluntarily intoxicated’ in that the person ‘knew or disregarded the risk’ of being ‘likely to engage in conduct constituting a crime within the jurisdiction of the Court’

- 35 By excluding exculpation if the person concerned became voluntarily intoxicated, the Statute attempts to prevent a *mala fide* procured state of incapacity, as it would be the case if penal law were to tolerate that a person puts himself into a state of non-responsibility by means of intoxication with the objective of committing a crime and later to invoke his lack of capacity as a ground for excluding responsibility. Instead of denying any voluntary intoxication an exculpation, however, the Statute follows the principle of *actio libera in causa* by presupposing that the person ‘knew’ or ‘disregarded the risk’ of getting involved in criminal conduct at the point of becoming intoxicated. Evidently, this bars intoxication as a ground for excluding criminal responsibility if the defendant *intentionally* sought ‘Dutch courage’ to commit a crime.⁹⁴ Less clear, however, is the exclusion of the defence when the defendant merely *disregarded the risk* of committing a crime under the influence of alcohol or other drugs. Whereas, at first, Ambos seemed to consider *negligence* as sufficient for excluding the defence⁹⁵, other sources require that the person concerned was not only cognitively aware of the likelihood of committing a crime but also anticipatorily approved this (in terms of *dolus eventualis*)⁹⁶. Although this may be doubtful from a systematic point of view, as it means introducing a mental standard that was otherwise carefully avoided in the Statute⁹⁷, it is nevertheless submitted that paragraph 1 (b) establishes a test that resides between negligence and *dolus eventualis*, by precluding the intoxication defence if the defendant acted *recklessly* with regard to getting involved in a crime. This conclusion not only takes into account the provision’s controversial legislative history – as a hard-fought compromise between most Arab States, considering voluntary intoxication as an aggravating circumstance, and most western countries, by precluding conceptualizing even voluntary intoxication as a ground for mitigation if not exculpation; applying a recklessness standard is also supported by the wording since disregarding a risk insinuates that the person concerned is nothing more and nothing less than mentally aware of running the risk of committing a crime. It yet has to be noted that the defendant’s recklessness is not to be determined singularly by the ‘risk’ of engaging in international criminal conduct; rather the recklessness requirement is somewhat moderated by the Statute’s reiteration that the person concerned disregarded the ‘risk’ of ‘likely’ committing a crime. Consequently, intoxication is only then excluded as a defence if (a) the person intentionally became drunk or otherwise intoxicated and (b) knowingly or recklessly took the risk that, due to the intoxication, he would be likely to commit or otherwise get involved in a crime.⁹⁸ Thus, intoxication can be invoked as a defence if and as long as the person was involuntarily intoxicated or, although having voluntarily become drunk or stupefied by drugs, was not aware of the risk that he could engage in criminal conduct as a ramification of the intoxication.

⁹⁴ Ambos, *Treatise on International Criminal Law* (2013) 329, 330; Cryer, in: Cryer et al. (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 403.

⁹⁵ Cf. Ambos, *Zur Rechtsgrundlage des Internationalen Strafgerichtshofs – Eine Analyse des Rom-Statuts*, 111 ZStW 189 (1999), contending that a ‘fahrlässige’ *actio libera in causa* is enough for barring the defence (but as of now see also Ambos, note 98).

⁹⁶ As it may in particular be concluded from the Official German translation of ‘disregarding the risk’ in paragraph 1 (b) as ‘in Kauf nehmen’ and as also supported by Merkel (2002) 114 ZStW [437], 444 (holding that paragraph 1 (b) requires ‘*dolus eventualis*’) and Satzger, *Internationales und Europäisches Strafrecht* (2013) 307.

⁹⁷ Cf. Eser, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 889, 932.

⁹⁸ In the final end coming to the same standard of recklessness see for a concurring interpretation Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 682 as well as meanwhile also Ambos, *Internationales Strafrecht* (2014) 222; cf. also *id.*, *Treatise on International Criminal Law* (2013) 328 *et seq.*; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 229 *et seq.*; more strict by identifying recklessness with *dolus eventualis* cf. Safferling, *Internationales Strafrecht* (2011) 120 fn. 137.

Yet, even if the person is aware of such likelihood, he is only barred from exculpation if the conduct he is likely to become involved in would be ‘a crime within the jurisdiction of the court’. This means that even in a case in which a soldier is aware that, due to his drunkenness, he might commit a murder, he could hardly be barred from invoking intoxication as a defence as long as he was not aware of the genocidal or anti-humanitarian character of the murder in terms of article 6 or 7 of this Statute⁹⁹. This requirement must not be taken lightly¹⁰⁰ since committing an international crime should normally be, even in times of war and conflict, an exceptional or, to use the Statute’s term, unlikely event. Thus, if so wanted or not, due to this clause intoxication may well serve as general defence that is only exceptionally precluded if there is an *actio libera in causa*. This especially holds true with regard to intoxication with drugs or alcohol. Although, as a matter of experience, criminal involvement seems more likely to occur in case of voluntary intoxication with these substances, it would turn the provision’s rule-exception-relationship upside down to only leave room for this defence if the intoxication was procured by ‘other means’ than drug or alcohol¹⁰¹.

IV. Paragraph 1 (c): Self-defence, defence of another person, and defence of property in war crimes

‘The principle enshrined in this provision’, as aptly summarized by the ICTY in *Kordić*, 37 ‘reflects provisions found in most national criminal codes and may be regarded as constituting a rule of customary international law’¹⁰². Although, thus, legitimate defence as a ‘classical’ ground of justification had already been contained in the Preparatory Committee’s compilation of 1996¹⁰³, its concept and phrasing remained highly controversial until the very last framing of this provision¹⁰⁴. Whereas the Draft Statute of April 1998 was sent to the

⁹⁹ As this reference and limitation to the ‘jurisdiction of the court’ was added to the last sentence of article 31 para. 1 (b) rather late, namely (according to the available papers) by the Chairman’s (of the Working Group on General Principles of Criminal Law) proposal for article 31 para. 1 (b) Option 3 (UN Doc. A/CONF.183/C.1/WGPP/L.8/Rev.1 (25 June 1998)), it is not quite clear whether this restriction of the responsibility by *actio libera in causa* was made on purpose or whether an interpretation different from that assumed here was intended. Also see Sadat, *The International Criminal Court and the Transformation of International Law* (2002) 213 fn. 160, guessing that in the application of this provision judges coming from legal systems rejecting voluntary intoxication may read the Statute more narrowly on this point.

¹⁰⁰ As rightly stressed in particular with regard to the difficult proof of such an intent by Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1030.

¹⁰¹ As suggested by van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 250 and, as a matter of practice, reiterated van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 230.

¹⁰² *Prosecutor v. Kordić and Čerkez*, IT-95-14/2-T, Judgement, Trial Chamber, 26 February 2001, para. 451; cf. Knoop, in: Doria, Gasser and Bassiouni (eds.), *The Legal Regime of the International Criminal Court* (2009) 779, 788 *et seq.* To national underpinnings of self-defence cf. van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 264 *et seq.*, to precedents in post-Second War case law cf. Heller, *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (2011) 305 *et seq.*; McCormack, in: Abtahi and Boas (eds.), *The Dynamics of International Criminal Justice* (2005) 231, 239 *et seq.*; Schabas, *The International Criminal Court* (2010) 487 *et seq.*

¹⁰³ See article N 1996 Preparatory Committee II, p. 99 with Annex, pp. 15 *et seq.*

¹⁰⁴ See Report of the Working Group of 29 June 1998, UN Doc. A/CONF.183/C.1/WGPP/L.4/Add.1, p. 5 note 13. Cf. also the report and criticism of David, in: Doria, Gasser and Bassiouni (eds.), *Legal Regime of the International Criminal Court. Essays in honour of Professor Igor Blishchenko* (2009) 757, 758 *et seq.* Whilst David’s fundamental denial of the usefulness of self-defence in the area of international crimes seems feasible as to genocide and crimes against humanity since those crimes may indeed hardly be justifiable by self-defence (cf. Ambos, *Internationales Strafrecht* (2014) 228; above note 2, Knoop, in: Doria, Gasser and Bassiouni (eds.), *The Legal Regime of the International Criminal Court* (2009) 779, 789), regarding war crimes, however, his absolute preclusion of self-defence appears misguided by the assumption that in war, on the one hand, every (ordinarily penalized) action is permitted as long as it does not amount to a war crime but that, on the other hand, a war crime may be justified only if permitted by international humanitarian law. Both assumptions, however, are questionable: the first one because war does not as *per se* provide a license to kill (as, contrary to common belief,

delegates of the Rome Conference with quite a few undecided alternatives and a lengthy wording¹⁰⁵, the first sentence of the present provision seems to go back to a proposal by the USA of June 1998¹⁰⁶, not yet, however, did it include the defence of property in case of war crimes which in terms of ‘military necessity’ was originally conceived as a separate ground for excluding criminal responsibility¹⁰⁷, but was finally integrated into the first sentence of this provision on proposal of the Working Group¹⁰⁸. The last sentence of the provision, dealing with defensive operations, was finally added in the very last minute by the Drafting Committee¹⁰⁹.

Basically three requirements are essential for the exclusion of criminal responsibility under this provision: a person not merely being involved in a defensive operation (1), a qualified danger to a person or property by unlawful force (2), and an appropriate defence against it (3).

1. ‘Person’ (not merely) ‘involved in a defensive operation’

- 38 Although unusual, to start with the second sentence of subparagraph (c) is warranted because this clause helps to reveal the scope of the Statute’s self-defence provision¹¹⁰. Most fundamentally, ‘self-defence’ as known in public international law and as used in criminal law is to be distinguished.
- 39 First, since the Rome Statute is only concerned with the individual criminal responsibility of human actors, subparagraph (c) does not address the defensive use of force by States (or equivalent non-State actors), as left unimpaired by article 51 UN Charter¹¹¹. This distinction between self-defence on the levels of international *criminal* and of *public* international law and their terminological designations is additionally confused by the fact that article 51 UN Charter distinguishes between ‘individual self-defence’ of a Member State (in case of an armed attack) and ‘collective self-defence’ rendered by other Member States (in support of

analysed in more detail by Eser in the contributions referred to below note 120) and, secondly, as there is no international principle which would allow justifications only if provided for by international humanitarian law. This is at least true for the conduct and responsibility of individual actors (while the responsibility of states may be different). Cf. also the counter-criticism to David by Schabas, *The International Criminal Court* (2010) 489 and Weigend, in: Sieber *et al.* (eds.), *Strafrecht und Wirtschaftsstrafrecht. Festschrift für Klaus Tiedemann* (2008) 1439, 1440 *et seq.*

¹⁰⁵ See article 31 para. 1 (d) Preparatory Committee (Consolidated) Draft, p. 68, based on article I para. 1 (d) Zutphen Draft, p. 62.

¹⁰⁶ Article 31 para. 1 (b) Proposal by the United States of America for single provision covering issues currently governed by articles 31, 32, 33 and 34 (UN Doc. A/CONF.183/C.1/WGGP/L.2 (1998)); a similar proposal, although not yet containing defence of property, had been made by Japan (cf. Annex of the 1996 Preparatory Committee II, p. 16).

¹⁰⁷ See article R in the 1996 Preparatory Committee II, p. 103; article 33 Preparatory Committee (Consolidated) Draft, p. 17.

¹⁰⁸ See article 31 para. 1 (c), Report of the Working Group, note 78, pp. 4 *et seq.*

¹⁰⁹ In this sense, as already favored by some delegations (see Report of the Working Group, note 78, p. 5, fn. 12), article 30 para. 1 (c), sentence 2 Draft Report of the Drafting Committee to the Committee of the Whole (UN Doc. A/CONF.183/C.1/L.65/Rev.1 (1998)), p. 7). – To the genesis of this article of the Statute cf. also Ambos (1999) 10 CLF [1], 26 *et seq.*; van Slieght, *Individual Criminal Responsibility in International Law* (2012) 235; as to comparative examples in national criminal codes cf. Ambos, *Treatise on International Criminal Law* (2013) 330 *et seq.*

¹¹⁰ Just to the contrary, van Slieght, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 264 considers the clause as ‘superfluous’, reasoning that ‘a defensive operation does not qualify as a reaction to an “unlawful use of force”’. If this is to mean that a defensive operation is either not a ‘reaction’ (but rather an action) or, if to be considered as a reaction, is directed against a not ‘unlawful’ (and thus lawful) use of force, then her statement would not express more than a truism. In fact, however, sentence 2 of subparagraph (c) can truly function as indicating the distinctions between various levels which must be observed in the following and as they are aptly presented by van Slieght, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 254 *et seq.* as well as by van Slieght, *Individual Criminal Responsibility in International Law* (2012) 233 *et seq.*, though without taking reference to the clause in question.

¹¹¹ See Ambos, *Treatise on International Criminal Law* (2013) 334 *et seq.*; Scaliotti (2001) 1 ICLRev [111], 158 *et seq.*; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 630 *et seq.* cf. also Keijzer (2000) 39 RDPMDG [69]; *id.*, (2000) 39 RDPMDG [100], 102.

the attacked State)¹¹². Therefore, if one wants to talk of 'individual' or 'collective' self-defence as performed by a combatant in the context of article 31 para. 1 (c) of the Rome Statute, one must be aware that this provision renders a further distinction with regard to the individual acting in self-defence: by disqualifying individuals 'involved in a defensive operation' who, as according to sentence 2, are not *per se* excluded from criminal responsibility, sentence 1 is in fact justifying only 'private' self-defence as distinct from 'operational' self-defence carried out within or in course of a collective action. Thus, although paragraph 1 (c) by speaking of acts of a 'person' obviously concerns 'individual' self-defence in terms of criminal law only, the exclusion of criminal responsibility still depends on whether the individual defended himself (merely or also) in his personal (non-official) capacity ('private self-defence') or solely in his official capacity as agent of a collective entity, like a State ('operational self-defence'). This exemption of (purely) 'operational self-defence' (in terms of sentence 2) from (at least to some degree also) 'private self-defence' (in terms of sentence 1) means that the justification of the concrete defensive act must be distinguished from its possibly collective context in two directions: On the one hand, the self-protecting action of a combatant is not simply privileged because of its embedment in an attack that is legal according to public international law; for this reason, the wide field opened by sentence 1 for defence of qualified property in war crimes can be substantially narrowed¹¹³. On the other hand, 'private self-defence' (as described before) is not privileged only because its operational framework is legal, nor is it foreclosed only because the operational context is illegal¹¹⁴ – just as *ius ad bellum* and *actio in bello* are to be kept distinct. In other words¹¹⁵, collective self-defence (by a state against another state) and private self-defence (by an individual soldier) are independent from each other¹¹⁶: the former as a matter of public international law, the latter as a matter of international criminal law¹¹⁷. Consequently, in the same way as, on the one hand, the legality or illegality of a collective defence operation in terms of article 51 UN Charter does not depend on the lawful or unlawful conduct of individual soldiers, is, on the other hand, the justification of individual war crimes by virtue of self-defence not depending on the public legitimacy of the state's original resort to military force¹¹⁸.

Second, although due to sentence 2 pure 'operational self-defence' cannot avail itself of sentence 1, that does not mean that this kind of defensive action remains without any ground for excluding criminal responsibility. For as the reservation by sentence 2 regarding the involvement in a collective defence situation is explicitly limited to subparagraph (c), international criminal responsibility in connection with defensive operations may still be excluded by other provisions, such as under public international law¹¹⁹. If, for example, a head of State orders a military defence operation in order to fight back an enemy State, although he cannot

¹¹² Cf. Nill-Theobald, 'Defences' bei Kriegsverbrechen am Beispiel Deutschlands und der USA. Zugleich ein Beitrag zu einem Allgemeinen Teil des Völkerstrafrechts (1998) 358 et seq.; Ranzelzhofer, in: Simma (ed.), *The Charter of the United Nations – A Commentary* (2002) mn 37 et seq.; Franck, *Recourse to Force: State Action against Threats and Armed Attacks* (2002) 23 et seq. Whilst the negotiations on the definition of aggression could have offered the possibility of clarifying the involvement in a 'defensive operation', unfortunately this opportunity was not used: cf. Van Schaack (2011) 11 ICLRev [477], 486 et seq.

¹¹³ Cf. below mn 44.

¹¹⁴ Cf. Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1034.

¹¹⁵ And thereby also revising a statement (made prior to the Rome Statute in: Dinstein and Tabory (eds.), *War Crimes in International Law* (1996) 251, 263) which, by explaining individual self defence as being available only in a 'derivative manner', may be considered misleading.

¹¹⁶ Cf. Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 309.

¹¹⁷ Cf. van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 234.

¹¹⁸ Cf. Ambos, *Treatise on International Criminal Law* (2013) 334 et seq.; McCormack, in: Abtahi and Boas (eds.), *The Dynamics of International Criminal Justice* (2005) 231, 232 et seq.; as to potential overflows from the *jus ad bellum* to the *jus in bello*, however, cf. also v. d. Wilt, in: Swart, Zahar and Sluiter (eds.), *The Legacy of the International Criminal Tribunal for the Former Yugoslavia* (2011) 275, 277 et seq.

¹¹⁹ Cf. Report of the Working Group of 8 July 1998, UN Doc. A/CONF.183/C.1/WGDP/L.4/Add.3 (1998), p. 2 (fn. 1) to 'accomplishing a military mission' which declares that 'the use of force by States is governed by the applicable international law'.

raise self-defence under paragraph 1 (c), he still may take resort to the defences in terms of paragraph 3, as, in particular, to article 51 UN Charter. Accordingly, although a combatant, while not being himself in acute danger, may not be justified by paragraph 1 (c) for eliminating an enemy on the battlefield, he could still refer to the (traditionally) general allowance of killing an enemy combatant under international humanitarian law¹²⁰.

2. 'imminent and unlawful use of force' against (specific) legally protected interests

- 41 a) The exclusion of criminal responsibility in any of the various instances of this provision requires the 'imminent' and 'unlawful' 'use of force'. As **force** can be exerted in various ways and to a varying degree and no further qualification is required by this provision, force can be understood in a broad way, not necessarily requiring a physical attack, but also including psychic threats, provided that their effects are not only announced for the future but exerting coercion presently¹²¹.

This use of force has to be **imminent**. Although a literal approach to 'immediacy' and a systematic comparison with paragraph 1 (d), where it was deemed necessary to mention 'continuing or imminent' risks, suggests otherwise, there is common agreement that a use of force is imminent if it is immediately antecedent, presently exercised or still enduring¹²². Thus, a defender neither has to wait until a danger has become present, nor is it allowed to use pre-emptive or even preventive means to circumvent a use of force, nor is it permitted to retaliate against an already passed attack.

As a third requirement, the use of force by the attacker must be **unlawful**. This is the case when the use of force is not justified for its part by law or any other legally valid permission or order. On the other hand, however, the unlawful force needs not to be criminal for being averted¹²³. Thus, self-defence will be available against an unlawful attack even if the aggressor may be exculpated by reason of insanity or because he has not yet reached the age of being criminally responsible. Accordingly, there is no right to defend oneself against someone who is acting lawfully¹²⁴. As to the afore mentioned distinction between 'personal' and 'operational' actions¹²⁵, the unlawfulness of the 'use of force' under paragraph 1 (c) must not be confused

¹²⁰ Whilst on a different way coming to a similar result, see Ambos, *Treatise on International Criminal Law* (2013) 335 with further references. Strangely though, however, if it comes to the killing of enemy combatants on the battlefield, one hardly can find an explicit foundation of its justification, the implicit reason being that acts of war seem to be basically exempted from the 'normal' provisions on murder and manslaughter (like in German terms characterized as 'nicht tatbestandsmäßig' by Merkel (2002) 114 ZStW [437], 450); accordingly, in pre-supposing killing in war as in principle being justified, 'Rules of Engagement' – like similar conventions and rules of war – traditionally are understood as mere restrictions of (rather than foundations) of justifications which, as assumed in customary international law, are not considered to require further legitimization. For details to this issue, which in the past had found less attention than it would have deserved, see – with detailed references – Eser, in: Dölling *et al.* (eds.), *Verbrechen – Strafe – Resozialisierung Festschrift für Heinz Schöch* (2010) 461 *et seq.*; *id.*, in: Appel, Hermes and Schönberger (eds.), *Öffentliches Recht im offenen Staat. Festschrift für Rainer Wahl* (2011) 665 *et seq.*; *id.*, in: Löhnig, Preisner and Schlemmer (eds.), *Krieg und Recht* (2014) 239, *id.*, 'Killing in War: Unasked Questions – Ill-founded Legitimization' (2016), 10 *Criminal Law and Philosophy* (forthcoming).

¹²¹ This broad notion of 'force' is also supported by the fact that stronger alternatives which, for instance, required threat of death or serious bodily harm (see article 31 para. 1 (d) Preparatory Committee (Consolidated) Draft, p. 68), were finally not accepted, nor was ever required force in form of 'violence' (as demanded by Weigend, in: Joecks (ed.), *Münchener Kommentar zum Strafgesetzbuch* (2009) § 2 VStGB, mn 18): such a phrasing would, of course, be more readily open for implying some physical impact. Agreeing with the broad interpretation of 'force' Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1032, *id.*, *Treatise on International Criminal Law* (2013) 339; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 238.

¹²² Cf. Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1032; Regierungsentwurf Völkerstrafgesetzbuch, note 59, 34. As in particular regarding the killing of Osama bin Laden, as not being armed at the relevant time, the criterion of an 'imminent' force may be doubted: Ambos (2011) 66 JZ [763].

¹²³ Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 405.

¹²⁴ Cf. Ambos, *Treatise on International Criminal Law* (2013) 339 *et seq.* with further comparative qualifications.

¹²⁵ Cf. mn 39.

with the legality or illegality of a collective engagement. Paragraph 1 (c) is concerned with the unlawfulness of the individual attack, whilst it is indifferent to this attack's being part of a legal or illegal collective campaign¹²⁶.

b) Paragraph 1 (c) is limited to the defence of specifically *protected interests*. With respect to all crimes falling under the jurisdiction of the Court, paragraph 1 (c) justifies an accused's action to defend *himself or herself or another person*. As probably recognized world-wide, the concept of legitimate defence is not limited to self-defence but also comprises defence of 'another person' who has been endangered by an unlawful attack. Whereas this requirement certainly precludes mere danger to any property¹²⁷, a person can be endangered with regard to his or her own life, physical integrity and liberty or that of a third person¹²⁸.

c) With respect to the special '*case of war crimes*', the defence clause of paragraph 1 (c) is opened to the protection of '*property*', though only if one of two qualifications is present. One concerns property which is '*essential for the survival of a person*'. This seems to be merely a special case of the general and uncontroversial protection of a person's life: the defended property not only has to ensure that a person continues to exist in a very primordial physical sense ('survival'), it must be indispensable ('essential') in that a human's very continuing existence hinges on said property. The other qualified protection concerns property which is '*essential for accomplishing a military mission*'. As certainly one of the Statute's most intriguing clauses the exact scope of which is yet to be determined, it goes back to defences by reasons of 'military necessity' under international humanitarian law¹²⁹. Since so far international humanitarian law did not entitle the military to commit war crimes in order to repel an unlawful use of force against the property at issue, paragraph 1 (c) is harshly criticized for (purportedly) introducing an according allowance to the laws of war¹³⁰. Further, the notion of essential military property is hard to interpret in the light of its intertwining individual legitimate defence as known in municipal criminal law with the collective dimension of international humanitarian law¹³¹.

In order to prevent this clause from being used as a readily available 'panacea' in any sort of military confrontation, at least three limitations are to be observed. First, with regard to sentence 2 of paragraph 1 (c) which was purposefully inserted so as to stress that justifying 'private self-defence' cannot be invoked simply by reference to a collective 'defensive operation'. Thus, the protection of essential military property is not concerned with a *collective's* defence of collective goods, but merely with the somewhat unprecedented *individual's* defence of collective interests¹³². Second, it is further required that the defended

¹²⁶ Not disentangling the collective use of force from the use of force presupposed in paragraph 1 (c) leads to a confused or at least unclear understanding of the Statute's self-defence provision. At the Rome Conference, the delegation of Mexico intended to add the footnote to the effect that this provision does not apply to the use of force between states (reported by Scaliotti (2001) 1 *ICLRev* [111], 167). What is more, some delegations held that individual self-defence under paragraph 1 (c) presupposes the legality of the collective engagement that the defendant is involved in (reported and discussed by Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1033).

¹²⁷ As it had been proposed by the US without any further qualification: see above note 106 to article 31 para. (b); cf. Ambos, *Treatise on International Criminal Law* (2013) 340 *et seq.*

¹²⁸ Ambos, *ibid.*, 340; Weigend, in: Sieber *et al.* (eds.), *Strafrecht und Wirtschaftsstrafrecht. Festschrift für Klaus Tiedemann* (2008) 1439, 1447; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 624; in particular regarding the defence of liberty see Merkel (2002) 114 *ZStW* [437], 444.

¹²⁹ Cf. 1996 Preparatory Committee II to article R, p. 103.

¹³⁰ Cassese (1999) 10 *EJIL* [144], 154; *id.*, *International Criminal Law* (2008) 230; David, *Principes de droits des conflits armés* (4th. ed. 2008) 902.

¹³¹ Cf. Keijzer (2000) 39 *RDPMG* [100], 108, complaining that individuals with no legal training might (wrongly) read in paragraph 1 (c) that 'military necessity' serves as a general justification in international criminal law.

¹³² Cf. *Treatise on International Criminal Law* (2013) 341. Insofar it is questionable whether paragraph 1 (c) indeed introduces a new norm to international humanitarian law. For as clarified by its sentence 2, paragraph 1 (c) entitles neither the military as a collective unit nor persons who act as agents for a collective entity to commit war crimes in order to defend property which is essential for accomplishing a military mission against imminent and unlawful use of force.

property is ‘essential’ for ‘accomplishing’ a ‘military mission’. Although ‘mission’ covers all kinds of stand-alone military operations, irrespective of their importance in an overall campaign and independent of the amount of personnel involved, the scope of property being legally protected by paragraph 1 (c) is still rather narrow, since the defended property not only has to ensure that the mission’s objectives can be realized (‘accomplish’), it is also necessary that achieving a mission’s goals hinges on said property, *i. e.* that it is indispensable (‘essential’). If the attacked property is replaceable and its substitution does not infringe the military mission, it is not protected under paragraph 1 (c).¹³³ Finally, it is to be emphasized that the protection of essential military property must not be sweepingly equated with ‘military necessity’ as a ground of excluding criminal responsibility in terms of which it is at present generally not recognized¹³⁴. Paragraph 1 (c) allows for war crimes only as a response to an *unlawful* use of force, whilst military necessity, in not stipulating a similar requirement, is eventually far broader.

- 45 d) In any case, the use of force as well as the danger to person or property must be *objectively* given and may not only exist in the subjective belief of the defender. Although various proposals were prepared to admit self-defence even in the case that the person merely ‘reasonably believes’ that there is a threat to the person concerned¹³⁵, this expansion of self-defence, as known particularly in common law countries¹³⁶, was not adopted in the end. Therefore, a person who is not actually attacked or endangered but merely believes that to be the case, may resort to mistake of fact according to article 32 for excluding criminal responsibility¹³⁷.

3. ‘Reasonably acts to defend in a manner proportionate to the degree of danger’

- 46 a) The defensive reaction must be *reasonable* in terms of being necessary as well as able to prevent the danger. This means that the defensive reaction might neither be excessive by causing more harm to the aggressor¹³⁸ than is needed for diverting the attack or a danger nor inapt by implying inefficient or otherwise futile means.¹³⁹ Whether an accused reacted reasonable in case of self-exposure or provocation is not regulated in the Statute and was left for the Court to decide under paragraph 2 of Art. 31.¹⁴⁰
- 47 b) Furthermore, even as far as the defensive reaction is reasonable in terms of necessary and suitable to divert the force and danger, it still must be performed in a ‘*proportionate*’

¹³³ Agreeing Ambos, *Treatise on International Criminal Law* (2013) 341.

¹³⁴ Cf. above note 33.- Such a confusion of ‘necessities of war’ or of the ‘conflict’ (by which the destruction of an enemy’s property is not considered a war crime according to article 8 (2)(b)(XIII) or 8(2)(e)(XII) respectively) and a ‘ground of excluding responsibility’ (in terms of article 31), however, is unfortunately furthered by the fact that in the Elements of Crimes (article 9) the aforementioned war crimes are interpreted as requiring ‘not (to be) justified by military necessity’. This language, as it can also be found in decisions of the ICTY (*Kordić and Čerkez* (Trial Chamber Judgment), note 102, para. 451) and the ICC (*Prosecutor v. Mbarushimana*, No. ICC-01/04-01/10-465-Red, Decision on the confirmation of charges, Pre-Trial Chamber I, 16 December 2011, paras. 172, 175, 176), is misleading by seemingly raising ‘military necessity’ to a justifying ground of excluding criminal responsibility of a war crime (as given by having fulfilled all positive statutory elements) whilst, in fact, the lack of military needs (in the aforementioned crimes) is, both already and merely, a negative element for constituting destruction of property as a war crime at all.

¹³⁵ After this concept had already been expressed in article 33–12 of the Updated Siracusa Draft (in Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 948), it was contained as an alternative in Proposal 1 of article N in the 1996 Preparatory Committee II, p. 99, and still proposed as an alternative in article 31 para. 1 (d) Preparatory Committee (Consolidated) Draft, p. 68.

¹³⁶ Cf. the codes listed by Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1021 *et seq.*, 1032.

¹³⁷ To the same end cf. Ambos, *Treatise on International Criminal Law* (2013) 339; McCormack, in: Abtahi and Boas (eds.), *The Dynamics of International Criminal Justice* (2005) 231, 238; Sadat Wexler, *Model Draft Statute for the International Criminal Court based on the Preparatory Committee’s Text to the Diplomatic Conference, Rome June 15 – July 17 (1998)* 57; cf. also Eser, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 889, 937 *et seq.*

¹³⁸ Note that self-defence is only permissible against the attacker and not against third persons.

¹³⁹ Ambos, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 308.

¹⁴⁰ Cf. Scaliotti (2001) 1 *ICLRev* [111], 166. For details to this paragraph cf. below mn 63 *et seq.*

manner. This means that even self-defence is not an unlimited right¹⁴¹, but restricted by the principle of proportionality. At first glance, the Statute is rather strict in requiring positive proportionality between the defensive reaction and the danger sought to be avoided. Evidently, this would give the Court little leeway in its considerations, far less flexibility than a negative ‘not disproportionate’ test would entail¹⁴². Yet, as solely the ‘*degree of danger*’ to the person or property protected is named as criterion for the proportionality of the defensive reaction, the Court’s estimation is offered a wide range: neither does a waging of different sorts of defended and thereby violated personal or property interests seem to be precluded, nor is deadly defensive reaction, as objected to by some proposals¹⁴³, categorically excluded. Nevertheless, defensive reactions that kill an assailant should be restricted to cases where either death or serious bodily harm is to be prevented.¹⁴⁴

c) Finally, in subjective terms, a defender has to act ‘*to*’ defend himself. This leaves open, 48 however, whether self-defence merely requires the defendant’s awareness of the imminent and unlawful use of force¹⁴⁵, thus justifying him even if he was determined by other motives (such as hatred or vengeance), or whether countering the unlawful attack must be the main, if not sole, purpose of the defender in terms of an ‘*ulterior intent*’¹⁴⁶, thus barring justification if the attack was in fact merely exploited for pursuing other motives than defensive ones. A fair solution may be found in the middle of the road: whereas, on the one hand, the volitional element inherent in ‘*to*’ defend would be missed if mere knowledge of an imminent attack allowed any reaction regardless of the motivation whatsoever, on the other hand, the complexity of motivations in a given situation is a human phenomenon. Therefore countering an unlawful attack needs not exclusively but at least partially (also) be motivated by defensive ends¹⁴⁷.

V. Paragraph 1 (d): Duress

Among the many compromises which had to be made in order to get this Statute accepted, 49 paragraph 1 (d) is one of the least convincing provisions, as in an ill-guided and lastly failed attempt it tried to combine two different concepts: (justifying) ‘*necessity*’ and (merely

¹⁴¹ As it may appear in clauses, such as in the German Penal Code (§ 32), which do not expressly require proportionality of the defence. cf. Satzger, *Internationales Strafrecht* (2013) 303; van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 261.

¹⁴² Merkel (2002) 114 ZStW [437], 453. – Differently, Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1034 seems to equate ‘*proportionate*’ with ‘*not disproportionate*’.

¹⁴³ Cf. Article 31 para. 1 (d) Preparatory Committee (Consolidated) Draft, p. 68 with ft. 95.

¹⁴⁴ In the same vein see Ambos, *Treatise on International Criminal Law* (2013) 342; Weigend, in: Sieber *et al.* (eds.), *Strafrecht und Wirtschaftsstrafrecht. Festschrift für Klaus Tiedemann* (2008) 1439, 1450. As to whether torture may never be proportionate or even absolutely excluded, as commonly submitted (cf. Joyner, in: Sadat and Scharf (eds.), *The Theory and Practice of International Criminal Law* (2008) 227 *et seq.*) or whether and to what degree merely threatening bodily harm for rescuing a victim from being killed may be feasible, see below note 156.

¹⁴⁵ As advanced by Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 831, *id.*, in: Brown (ed.), *Research Handbook on International Criminal Law* (2011) 299, 308 *et seq.*; similar Safferling, *Internationales Strafrecht* (2011) 120.

¹⁴⁶ As perhaps assumed by McCormack, in: Abtahi and Boas (eds.), *The Dynamics of International Criminal Justice* (2005) 231, 238; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 629 and Kreicker, in: Eser and Kreicker (eds.), *Nationale Strafverfolgung völkerrechtlicher Verbrechen* (2003) 270, 326 with regard to the German term ‘*Verteidigungswille*’. – As to the of ‘*ulterior*’ intent cf. Ormerod, *Smith and Hogan’s Criminal Law* (2011) 136: ‘*an intention ulterior to the actus reus*’. A comparable concept may be found in the German concept of ‘*Finalität*’.

¹⁴⁷ However, even if self-defence may not be available if the defendant was predominantly motivated by other than defensive reasons, as in case that he had even provoked the attack for the purpose of getting a chance to counteract, the fact that the attack, though provoked, remains a wrong which, from an objective point of view, must not be tolerated; nevertheless, by at least being co-motivated finally to avert an (though provoked) attack may lessen the degree of the defender’s wrongdoing so as the to be accounted for in sentencing.

excusing) 'duress'¹⁴⁸. Whereas all Pre-Rome conference proposals and drafts had, more or less, clearly distinguished between necessity and duress¹⁴⁹, it was only in the final stage of the conference that they were mixed up in one provision¹⁵⁰. This reflects (and somewhat continues) a common terminological confusion: In American and English text books, necessity is labeled as duress of circumstances¹⁵¹, the Nuremberg jurisprudence used the term necessity to describe cases of duress¹⁵², ICTY Judge Cassese employs necessity to encompass duress¹⁵³, and the German Criminal Code distinguishes justifying and excusing necessity¹⁵⁴. It is suggested that the distinction between duress and necessity lies with the rationale for excluding criminal responsibility: Here, paragraph 1 (d) blends the justifying *choice of a lesser evil* (necessity) with excusing situations where the defendant's freedom of will and decision is so severely limited that there is eventually *no moral choice*¹⁵⁵ available (duress).

- 50 Understanding paragraph 1 (d) accordingly, it is to be distinguished from the defence of 'superior orders' (article 33)¹⁵⁶. Though an order might exert sufficient compulsion so as to curtail a defendant's freedom of will and, thus, rise to duress, this effect would not fall under

¹⁴⁸ Saland, in: Lee (ed.), *The International Criminal Court – The Making of the Rome Statute* (1999) 189, 208; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 632 *et seq.* Cf. also Ambos (1999) 10 CLF [1], 27 *et seq.*; Janssen (2004) ICLR [83], 97 and, with a comparative survey of national criminal law and pre- and post-war international developments, Ambos, *Treatise on International Criminal Law* (2013) 342 *et seq.*; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 243 *et seq.* – For a converse evaluation cf. Cassese, *International Criminal Law* (2008) 289, deeming that paragraph 1 (d) 'rightly lumps necessity and duress together', whereas his revised edition (2013, p. 216) merely states that this paragraph 'encompasses both duress by threat and duress by circumstances'.

¹⁴⁹ Starting with these distinction in the Siracusa/Freiburg Draft of AIDP/ISISC/MPI, Draft Statute for an International Criminal Court – Alternative to ILC-Draft, prepared by a Committee of Experts, Siracusa/Freiburg July 1995 (at IV.A.1/2 and 9 to article 34, 39, reprinted in Nill-Theobald, 'Defences' bei *Kriegsverbrechen am Beispiel Deutschlands und der USA*. (1998) 455), then in the *Ad Hoc* Committee Report, Annex II sub. 5 (b), p. 59, the various proposals in the Updated Siracusa Draft article 33–13.1 and 2 (in Ambos, *Der Allgemeine Teil des Völkerstrafrechts* (2002) 951) and in the 1996 Preparatory Committee II, articles O and P, pp. 100 *et seq.*; cf. also the compilation of various proposals in the Annex of the Preparatory Committee of Mar./Apr. 1996, above note 6, pp. 16–18, resulting in the more or less equivalent proposals of the Preparatory Committee Decisions Dec. 1997 (articles L.1 (d) and (e), at p. 19), the Zutphen Draft (articles L.1 (d) and (e), pp. 62 *et seq.*) and the Preparatory Committee (Consolidated) Draft (article 31 para. 1 (d) and (e), p. 68).

¹⁵⁰ Eventually starting with Working Paper on article 31 of 22 June 1998 (UN Doc. A/CONF.183/C.1/WGGP/L.6), with some modifications in the Report of the Working Group of 29 June 1998 (UN Doc. A/CONF.183/C.1/WGGP/L.4/Add.1) and finalized by the Draft Report of the Drafting Committee to the Committee of the Whole, 14 July 1998 (UN Doc. A/CONF.183/C.1/L.65/Rev.1, article 30 para. 1 (d), p. 7).

¹⁵¹ Cf. Wilson, *Criminal Law: doctrine and theory* (2003) 278; Knoops, *Defenses in Contemporary International Criminal Law* (2008) 83. – Generally, it is very common in Anglo-American criminal law to differentiate necessity and duress according to the compulsive source and to classify non-human compulsion as necessity and human compulsion as duress. cf. Kreicker, in: Eser and Kreicker (eds.), *Nationale Strafverfolgung völkerrechtlicher Verbrechen* (2003) 270, 337 *et seq.*

¹⁵² For a critical overview cf. Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1005, 1023 *et seq.*, 1035 *et seq.* To further international jurisprudence cf. van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 279 *et seq.* and, with particular attention to the Nuremberg judgments, Heller, *The Nuremberg Military Tribunals and the Origins of International Criminal Law* (2011) 302 *et seq.*, 308 *et seq.*

¹⁵³ Cf. *Prosecutor v. Erdemović*, IT-96-22-A, Judgment, Separate and dissenting opinion by Judge Cassese, Appeals Chamber, 7 October 1997, para. 14 (hereafter *Erdemović*). For a thorough analysis of this case see Ambos, *Treatise on International Criminal Law* (2013) 361 *et seq.*; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) (both with further references) and (with legal policy considerations which under certain conditions may not even exclude justification) Weigend (2012) 10 JICJ, [1219].

¹⁵⁴ Cf. § 34 and § 35 of the German Penal Code. – Further cf. Jescheck (2004) 2 JICJ [48]; qualifying the merger as mirroring a modern development in national criminal law not to distinguish between necessity and duress. With special regard to torture distinguishing between justifying and excusing necessity see Ohlin (2008) 6 JICJ [289]; cf. also below note 178. – For a broader comparative survey see *Treatise on International Criminal Law* (2013) 342 *et seq.*

¹⁵⁵ For the latter definition cf. the Nuremberg jurisprudence in *US v. Krauch et al.* (case 6), in: *Trials of War Criminals before the Nuernberg Military Tribunals*, Vol. III (1952) 1176; as to 'no moral choice', however, see also Weigend (2012) 10 JICJ [1219], 1234 *et seq.*

¹⁵⁶ Cf. Rowe (1998) 1 YBIHumL [210], 216 *et seq.*; Schabas, *The International Criminal Court* (2010) 490.

the purview of the defence of superior order since this one is concerned with the protection of (military) hierarchies rather than with the freedom of will of the order's addressee.¹⁵⁷

For making paragraph 1 (d) more transparent, at least four constituents of this rather complex provision must be distinguished: the type of conduct to be excluded from criminal responsibility (1), the elements of duress on the defendant (2), the requirements for the (re)action to avoid the threat (3), and the mental element that accompanies the defendant's (re)action (4).

1. 'Conduct alleged to constitute a crime within the jurisdiction of the Court'

Why this clause speaks of conduct '*alleged*' to constitute a crime, is difficult to understand. If it is to express no more than the fact that, by the exclusion of criminal responsibility, a crime has not been constituted but remains merely '*alleged*', then the same consequence would be true with all other grounds by which criminal responsibility is excluded. Therefore, this phrase, if to be meaningful, would have to express more than that general matter of course. Without having access to the respective deliberations of the Working Group, an explanation could be found in the reference to crimes '*within the jurisdiction of the Court*', to the effect that this novel blending of necessity and duress, by which even the killing of innocents – against the majority in *Erdemović* – may be excluded from responsibility¹⁵⁸, should only be available for crimes according to articles 5–8 of this Statute, thus foreclosing any concessions to national criminal justice systems or the jurisprudence of other international tribunals.

2. 'Duress' resulting from a 'threat of imminent death' or of 'continuing or imminent serious bodily harm' against 'that person or another person' whereby the threat is either 'made by other persons' or 'constituted by other circumstances beyond that person's control'

Within this lengthy phrase four components can be distinguished:

(a) The basic requirement must be a *threat of imminent death* in terms of appearing to occur closely and seriously, or a *threat of continuing or imminent serious bodily harm*, thus, in its exculpating scope narrower than in case of self defence¹⁵⁹, also requiring more than easily healed superficial wounds. In the same vein a merely abstract danger or simply an elevated probability that a dangerous situation might occur would not suffice¹⁶⁰; nevertheless may the imminence of a threat be present in an overall continuing state of emergency¹⁶¹ (as in terms of a 'Dauernotstand'¹⁶²). Like the attack in self-defence, the threat must be objectively given and not merely exist in the perpetrator's mind¹⁶³.

(b) As to its origin, the threat must be either *made by other persons*, as it is the case when the person concerned is the victim of coercion¹⁶⁴, or *constituted by other circumstances*

¹⁵⁷ Furthermore cf. Blakesley (1998) 67 RIDP [139], 182 et seq. and above Eser, in: Dinstein and Tabory (eds.), *War Crimes in International Law* (1996) 251, 254 et seq.

¹⁵⁸ Cf. below note 188.

¹⁵⁹ As, in particular, here excluding the protection of property; cf. above mn 42; Ambos, *Treatise on International Criminal Law* (2013) 357.b.

¹⁶⁰ Cf. Ambos, *Treatise on International Criminal Law* (2013) 357 et seq; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 638, giving the example of the abstract omnipresence of the Gestapo in the Third Reich. The concrete imminence of the threat could become pertinent in a case of coerced recruitment, especially of child soldiers, since an accused cannot raise the duress defence, if he was 'only' coercively enrolled generally but not forced to commit the charged offence.

¹⁶¹ Cf. Bond and Fourgere (2014) 14 ICLRev [471], 471 et seq.; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 638.

¹⁶² Cf. Perron, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 35 mn 12, at 708 with reference to *id.* in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 34 mn 17, at 687.

¹⁶³ Ambos, *Treatise on International Criminal Law* (2013) 357; Cryer, in: Cryer et al. (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 408. cf. above mn 44.

¹⁶⁴ Different from self-defence (article 31 (1) subparagraph (c)), however, in the instance of subparagraph (d) the threat is *not* required to be *unlawful*; were this the case, then the person defending himself against an

beyond that person's control, as is the case of danger which does not result from another person's action, but from other sorts of endangerment by natural forces or technical menaces. The clause 'beyond that person's control' ('indépendants de sa volonté') insinuates that self-induced risks, regardless whether concerning human-made or natural threats, cannot provide an excuse by paragraph 1 (d)¹⁶⁵. However, an exact definition of self-exposure was consciously avoided at the Rome Conference and was left to the Court to decide under paragraph 2 of art. 31.¹⁶⁶

55 (c) The person exposed to the threat can be either the defendant *himself or another person*. This broad approach allows not only the preservation from own endangerment but also emergency assistance for third persons. Different from certain national criminal codes, however, which would limit acting under 'altruistic' duress to relatives or persons similarly close to the defendant¹⁶⁷, this Statute does not explicitly require any special relationship between the defendant and said third person. Nevertheless, averting threats from strangers may for other reasons fail to fulfill paragraph 1 (d) as, for instance, depending on the circumstances of the individual case the threat to a stranger may not be grave enough as to compel a reasonable person to commit an international crime.¹⁶⁸ Therefore, particularly with regard to 'altruistic' actions, the following requirement needs attention:

56 (d) The threat must *result in 'duress' causing the crime*. In this component of the provision, duress functions as mediator between threat and criminal conduct: the threat must cause duress which in turn causes the alleged criminal reaction. In order to be *caused*, however, duress not only implies a certain state of mind in which the defendant's will is overborne, but is also contingent on the threat's capacity to overbear that will. As a brief comparative analysis may show, the latter dimension of duress opens it for normative and, for that matter, objective limitations: Whether one demands, as the Law Commission for England and Wales does, that 'the threat is one which in all the circumstances ... [the defendant] cannot reasonably be expected to resist'¹⁶⁹, or whether, according to the US Model Penal Code, the threat must have been sufficiently great that 'a person of reasonable firmness in the [defendant's] situation would have been unable to resist'¹⁷⁰, all these propositions lastly rest on a concept which in German theory and law has been labeled as 'Unzumutbarkeit'¹⁷¹, finding adoption in Romanic theory in terms of 'no exigibilidad'¹⁷² and 'inesigibilidad'¹⁷³ respectively: in recognizing duress as an excuse only if the defendant acted upon threats that the 'normal' person cannot be fairly expected to endure¹⁷⁴. Conversely, threats that are otherwise avertable do not result in 'duress' proper.

unlawful threat of death or bodily harm could even be justified according to paragraph 1 (c); see above mn 41. Regarding the relationship and difference between duress and superior order *cf.* above to notes 156 et seq.

¹⁶⁵ *Cf.* Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 408; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 644; disagreeing Heller, in: Heller and Dubber (eds.), *Handbook of Comparative Criminal Law* (2011) 593, 613 by restricting this clause to self-procured natural risks.

¹⁶⁶ *Cf.* Scaliotti (2001) 1 *ICLRev* [111], 153.

¹⁶⁷ As, for instance, § 35 German Penal Code.

¹⁶⁸ *Cf.* Ambos, *Treatise on International Criminal Law* (2013) 357.

¹⁶⁹ See § 42 in: The Law Commission, *A Criminal Code for England and Wales*, Vol. I (1989). Further, the House of Lords answered affirmative to the question: 'Does the defense of duress fail if the prosecution proves that a person of reasonable firmness sharing the characteristics of the defendant would not have given way to the threats as did the defendant?' *R v Howe and Others* (1987) *CLRev* 480.

¹⁷⁰ Sect. 2.09 (1) US Model Penal Code.

¹⁷¹ As one of the first to develop this concept see Henkel, in: Engisch (ed.), *Festschrift für Edmund Mezger* (1954) 249. As to the implementation of 'Zumutbarkeit' in § 35 German Penal Code see Perron, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 35 mn 13 a, et 709.

¹⁷² See Mir Puig, *Derecho Penal. Parte General* (2011) 604 *et seq.*; Zaffaroni, *Derecho Penal. Parte General* (2003) 744 *et seq.*

¹⁷³ Fiandaca and Musco, *Diritto Penale. Parte Generale* (2010) 408.

¹⁷⁴ Bundesgerichtshof, 4 StR 140/92, 21.05.1992 (1992) 12 *NStZ* [487]. Also *cf.* Perron, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 35 mn 14, at 710. As to the translation of 'Zumutbarkeit' as 'fair expectability' *cf.* Fletcher, in: Eser and Fletcher (eds.), *Rechtfertigung und Entschuldigung* (1987) 167, 171.

Accordingly, paragraph 1 (d) only applies if the defendant cannot be fairly expected to withstand or assume the risk. Thus, a threat results in ‘duress’ only if it is not otherwise avoidable, *i. e.* if a reasonable person in comparable circumstances would not have submitted and would not have been driven to the relevant criminal conduct. It is therefore neither required to show special valor, prowess or heroism, nor does a weak will or a weakness of character exclude the criminal responsibility of a defendant¹⁷⁵. This is not to say that one may simply follow the most convenient way out, rather has the coerced person to seek every reasonable, not too distant evasive alternative for avoiding the commission of a crime¹⁷⁶. Furthermore, if the yardstick for measuring what threats a person may fairly be expected to resist shall not be left entirely to the subjective sentiments and attitudes of the person concerned, fair expectability cannot be determined without regard to this person’s social function and legal obligations; this means that police officers, firemen or soldiers due to their official position can be expected more resistance in enduring dangers than normal citizens¹⁷⁷.

3. ‘The person acts necessarily and reasonably to avoid this threat’

Different from self-defence where reasonableness and proportionality is required (above D. IV. 3), here a ‘necessary’ and ‘reasonable’ act is asked for. This, undisputedly, means that the act directed at avoiding the threat must be necessary in terms of no other means being available and reasonable for reaching the desired effect¹⁷⁸.

Beyond this primarily factual test, however, the prevailing opinion would ask for more by interpreting ‘reasonable’ as to entail an *objective proportionality or balancing test*¹⁷⁹, to the effect that the harm sought to be avoided outweighs, from a normative standpoint, the caused harm: accordingly, a defendant is said only to act ‘reasonable’ if his (re)action is proportionate¹⁸⁰. This pursues the choice-of-a-lesser-evil approach as already known from the traditional necessity defence and as summarized by Judge Cassese in his meanwhile commonly referred to limitation of the ‘duress’ in his dissent in *Erdemović*, by requiring that ‘the crime committed was not disproportionate to the evil threatened’ (this would, for example, occur in case of killing in order to avert an assault). In other words, in order not to be disproportionate, the crime committed under duress must be, on balance, the lesser of two evils¹⁸¹. However, expecting proportionality of the defendants (re)action in *objective* terms is

¹⁷⁵ Cf. Perron, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 35 mn 14, at 710.

¹⁷⁶ *Id.*

¹⁷⁷ This criterion, discussed by Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1039, *id.*, *Treatise on International Criminal Law* (2013) 358; Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 408 can again explicitly be found in the German provision for excusing necessity in § 35 Penal Code. For further details cf. Perron, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 35, mn 21–37, at 713 *et seq.*, as to reservations regarding soldiers cf. Weigend (2012) 10 *JICJ* [1219], 1235.

¹⁷⁸ With regard to the question of whether paragraph 1 (d) could serve as a defence to interrogational torture (article 7 para. 1 (f) and article 8 para. 2 (a) (ii) respectively), for example of alleged terrorists to gain relevant information of imminent attacks, cf. above note 141 and Gaeta (2004) 2 *JICJ* [785], 791 *et seq.*, arguing – against the Supreme Court of Israel – that torture is always unreasonable, because of the uncertainty to gain reliable and pertinent information. A more differentiated position is taken by Ambos (2008) 6 *JICJ* [261], 206, and Ohlin (2008) 6 *JICJ* [289], 289 *et seq.* by, while denying justification, granting an excuse. In my view, too, there is a qualitative difference between torturing for gaining a confession of a crime already committed and mere threat of harm for rescuing a victim from otherwise being doomed to die: cf. Eser, in: Herzog and Neumann (eds.), *Festschrift für Winfried Hassemer* (2010) 713.

¹⁷⁹ Cf. Kittichaisaree, *International Criminal Law* (2001) 263 *et seq.*; Knoops, *Defenses in Contemporary International Criminal Law* (2008) 86 *et seq.*; Korte, *Das Handeln auf Befehl als Strafausschließungsgrund* (2003) 193 *et seq.*; Kreß (1999) 12 *HuV-I* [7]; Safferling, *Internationales Strafrecht* (2011) 117; Satzger, *Internationales Strafrecht* (2013) 303 *et seq.*; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 642 and fn. 452.

¹⁸⁰ Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1040.

¹⁸¹ *Erdemović* (Appeals Chamber Judgment), note 153, para 16. The complete definition of duress, as found in Judge Cassese’s separate opinion para. 41, requires: ‘(1) a severe threat to life or limb; (2) no adequate means to

at least questionable. From a systematic point of view, the umbrella term ‘reasonably’, at least in the Statute, does not automatically connote proportionality since in paragraph 1 (c) on self-defence it was deemed necessary to require that the defendant acts both ‘reasonably’ and ‘in a manner proportionate’. Further, the clear cut requirement of paragraph 1 (d) that the defendant ‘does not *intend* (!) to cause a greater harm than the one sought to be avoided’ points to a subjective rather than objective proportionality standard for the defendant’s conduct¹⁸². This terminological argument is bolstered by the historic attempt to blend in one norm the traditional necessity and duress defence, as known in national criminal justice systems, the reason being that only a subjective proportionality test would not eliminate altogether the ‘no moral choice’-element as the central criterion of the duress defence and, thus, would not reduce paragraph 1 (d) to mere necessity. Yet, even when not employing an objective standard, if the pertinent danger and the harm are unreasonably disproportionate – for example: threatening to cut off the defendant’s finger if he did not execute an innocent victim – the threat is already not *unzumutbar*, i. e. the defendant was required to resist.

4. ‘Provided that the person does not intend to cause a greater harm than the one sought to be avoided’

- 60 As already indicated before, this subjective conception of the ‘lesser evil’-principle is an integral element of this defence: different from classical ‘necessity’ which justifies actions that save the greater good at the cost of the minor, and different from classical ‘duress’ which would grant an excuse regardless of the greater or lesser harm, if the person could not be fairly expected to withstand the threat¹⁸³, this phrase could well be understood as drawing a line in-between: on the one hand requiring less than justifying ‘necessity’ would afford, and on the other hand requiring more than excusing ‘duress’ would be satisfied with. Thus, only applying a subjective proportionality test to the accused’s conduct would pursue the unprecedented historic attempt to reconcile necessity and duress in one provision¹⁸⁴.
- 61 In order to valorize that the defendant subjectively endorsed the higher good or deliberately chose the lesser of two evils, this requirement goes beyond the negative requisite that the defendant may merely not act with *dolus malus*.¹⁸⁵ Therefore, the clause that the defendant did ‘not intend to cause a greater harm than the one sought to be avoided’ encapsulates the reasoning in the *Eichmann* case¹⁸⁶: If the defendant, although exposed to a risk not otherwise avoidable, identifies himself with his project or over-accomplishes the extorted tasks, his criminal responsibility is not excluded under paragraph 1 (d).
- 62 It remains to be seen whether a nuanced approach that combines a subjective interpretation of the pertinent (re)action’s proportionality and an objective understanding of the threat causing this reaction (‘Zumutbarkeit’) is superior to the prevailing opinion which

escape the threat; (3) proportionality in the means taken to avoid the threat; (4) the situation of duress should not have been self-induced’.

¹⁸² In similar terms see Ambos, *Treatise on International Criminal Law* (2013) 360; Heller, in: Heller and Dubber (eds.), *Handbook of Comparative Criminal Law* (2011) 593, 613; Weigend (2012) 10 *JICJ* [1219], 1224. Interestingly enough, Merkel (2002) 114 *ZStW* [437], 453 *et seq.*, as well seems to have interpreted the aforementioned citation (note 182), in subjective terms, although leaving open whether he would finally prefer this position.

¹⁸³ Cf. Eser, in: Eser and Fletcher (eds.), *Rechtfertigung und Entschuldigung – Justification and Excuse. Comparative Perspectives* (1987) 19, 54 *et seq.*; *id.*, in: Dinstein and Tabory (eds.), *War Crimes in International Law* (1996) 251, 261 *et seq.*

¹⁸⁴ Instead of interpreting the requirement of proportionality in view of the defendant’s subjective intention, Korte, *Das Handeln auf Befehl als Strafausschließungsgrund* (2003) 198 *et seq.* would rather treat lack of objective proportionality, whilst the defendant had subjectively intended it, as a case of mistake.

¹⁸⁵ Cf. Safferling, *Internationales Strafrecht* (2011) 117.

¹⁸⁶ Attorney General of the Government of Israel v. *Adolf Eichmann* (1968) 36 *ILR* 5 (summary).

either applies only an objective proportionality standard or even goes as far as requiring subjective proportionality additionally¹⁸⁷.

VI. Paragraph 2: The implementation by the Court in the case before it

In face of the fact that the proposals of the ILC did not yet propose grounds for excluding criminal responsibility at all and that also later on it remained uncertain as to which, and on what way, grounds for excluding criminal responsibility should be regulated by this Statute¹⁸⁸, it is not surprising that a provision which would give the Court power to determine the admissibility of reasons excluding punishment in view of the individual character of a crime was, in principle, proposed as early as in the Updated Siracusa Draft of 1996¹⁸⁹. The first decision to this end was then taken by the Preparatory Committee in its session of December 1997 and drafted in a version which basically remained unchanged up to the present provision¹⁹⁰.

The final acceptance of paragraph 2 had been a concession to those delegations which favored a minimalist approach to defences, *i.e.* to those who challenged a (detailed) codification of grounds for excluding criminal responsibility and rather opted for giving the Court leeway in finding the appropriate standards for negating a defendant's international criminal liability¹⁹¹. This course was also led by the assumption that, even if the participants of the Rome Conference had been willing to do so, it would have been hardly possible to completely codify all situations that might exclude international criminal responsibility. Thus, in order to avoid disagreement on certain situational patterns in terms of their barring or not barring international criminal responsibility and to solicit a consensus, these borderline situations were not addressed in the Statute but rather consciously referred to the Court to decide upon. Of the three ways for the Court to look for exclusionary grounds beyond the boundaries of paragraph 1, two are opened by paragraph 2: one by empowering the Court to adjust the codified grounds for excluding crim-

¹⁸⁷ Cf. Ambos, in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 1003, 1041. - The teleological advantage of discarding objective proportionality and of rather focusing on the threat's 'Zumutbarkeit' might be reasoned with regard to *Erdemović* (above note 153), *i.e.* the coerced killing of innocents: After controversial discussions at the Rome Conference, it was finally agreed that subparagraph (d) is also available to murder (Kittichaisaree, *International Criminal Law* (2001) 264; Scaliotti (2001) 1 *ICLRev* [111], 154; Werle and Jessberger, *Principles of International Criminal Law* (2014) mn 640; cf. also Cassese, *International Criminal Law* (2013) 217 *et seq.*). To explain this conclusion by an appeal to the purported (objective) proportionality of the defendant's action is highly dangerous and appears bluntly utilitarian: Since one has to argue that the harm avoided outweighs the harm caused (in terms of choice of the lesser evil), the innocent's life has to be degraded, whilst the defendant's integrity is cast as the higher good. Yet centering on the phrase 'duress resulting from a [further specified] threat' reveals and radiates an almost humanistic rationale for excluding criminal responsibility even in the case of killing innocents: A defendant cannot be fairly expected to withstand a threat which we would deem irresistible for a reasonable person in comparable circumstances (this seems to be misunderstood by Dinstein, in: McDonald and Swaak-Goldman (eds.), *Substantive and Procedural Aspects of International Criminal Law* (2000) 373, 375, apparently due to his confusing duress as absence of moral choice with the proportionality requirement of the choice of a lesser evil). With regard to the exclusion of responsibility in the case of killing innocents, those victims are not degraded to a lesser value, but the accused's human (and fallible) nature has become the focal point of legal reasoning. By not requiring, as a matter of law, that a person defies an overpowering compulsion, criminal justice does not project any expectations of heroism and is thus firmly grounded in humanistic ideals.

¹⁸⁸ Cf. above mn 3.

¹⁸⁹ Cf. above note 4, article 33–11 para. 1 Updated Siracusa Draft, p. 74, which was literally adopted both by the ILC (article 14, 1996 ILC Draft Code, p. 73) and the 1996 Preparatory Committee II in its article S Proposal 2, p. 104).

¹⁹⁰ Cf. Article L para. 2 Preparatory Committee Decisions Dec. 1997, p. 22. Even the final wording ('provided for in the Statute'), as phrased at the end by the Drafting Committee (article 30 para. 2, U.N. Doc. A/CONF.183/C.1/L.65/Rev.1 (14 July 1998), p. 8) – instead of grounds 'listed in paragraph 1', respectively 'permitted by this Statute' – was one of various alternatives suggested in the original Draft of the Preparatory Committee.

¹⁹¹ Cf. Saland, in: Lee (ed.), *The International Criminal Court – The Making of the Rome Statute* (1999) 189, 208.

inal responsibility to the case at stake (1), the other by allowing the Court to resort to exclusionary grounds (outside of paragraph 1) within the Statute (2), whereas the third way may even lead to exclusions of responsibility outside of the Statute according to paragraph 3 (below D.VII). In this respect, article 31 can indeed be characterized as ‘acknowledging its own status as a work in progress’¹⁹². As much understandable this evasive action by the makers of the Statute may have been, it leaves doubts with regard to the principle of legality (3).

1. ‘The Court shall determine the applicability’ of the (exclusionary grounds) ‘to the case before it’

- 65 In principle, the power given to the Court to ‘*determine the applicability*’ of exclusionary grounds must mean more than simply to apply the law, as this function would not need to be proclaimed expressly. Therefore, the Court appears to be empowered to adjust available grounds in such a way that they are applicable to the individual case. On this way, the Court may, for instance, solve cases of provocation or of excessive, yet excusing, use of force¹⁹³ by adjusting self-defence (paragraph 1 (c)) or of self-exposure by limiting duress (paragraph 1 (d)).
- 66 This power, however, is not unlimited, but determined by the ‘*case before the court*’. This means that the Court may not pronounce new general definitions, but has to restrict itself to a just solution of the case before it. If it sees need and reason to modify existing exclusionary grounds or to create new ones in a general way, it would have to proceed according to paragraph 3 (below D.VII). However, even in as far as the Court merely adapts an existing ground to the case before it, it is not completely free, as already taken into account by the drafters of this provision¹⁹⁴, but bound by the rules of article 21 regarding applicable law¹⁹⁵.

2. Grounds for excluding criminal responsibility ‘provided for in this Statute’

- 67 Beyond or even instead of adjusting an exclusionary ground within paragraph 1, the Court may even go farther to other grounds ‘*provided for in this Statute*’. For by way of this referral, the determining power of the Court is not limited to adjusting exclusionary grounds of paragraph 1, as it had been proposed in an alternative to the present version¹⁹⁶, but relevant for grounds for excluding criminal responsibility outside of article 31 (above B) as well. Thus, the determining power of the Court goes far beyond the reach of this article.

3. Paragraph 2 in the light of the principle of legality¹⁹⁷

- 68 The plain wording of paragraph 2 suggests that the Court’s power to adapt the codified grounds for excluding criminal responsibility to the case before it is *not* necessarily limited to situational patterns that are connected to, but not addressed by the Statute’s codification; rather, paragraph 2 provides that the Court may alter, in the interest of justice, each and every of the Statute’s codified grounds for excluding criminal responsibility according to the facts of the individual case¹⁹⁸. Obviously, this brings about an inner tension between the

¹⁹² Cf. Sadat, *The International Criminal Court and the Transformation of International Law* (2002) 212.

¹⁹³ Cf. § 33 German Penal Code (granting an excuse if the perpetrator exceeds the limits of proportionate self-defence due to confusion, fear or fright). As to the Rome Statute not addressing excessive self-defence cf. Merkel (2002) 114 ZStW [437], 447.

¹⁹⁴ See fn. 11 to article L para. 2 in the Preparatory Committee Decisions Dec. 1997, p. 22. On the other hand regarding the accused, who has no onus of proving the applicability of grounds for excluding criminal responsibility, cf. Roberts (2012) 10 JICJ [923], 928.

¹⁹⁵ Cf. below mn 75.

¹⁹⁶ Cf. above note 190.

¹⁹⁷ For drafting this section, I am greatly indebted to *Christoph Burchard*.

¹⁹⁸ Similarly, the Court may easily revoke previous precedents and previous statutory interpretations. Principally disagreeing with such a broad judicial discretion Schabas, *The International Criminal Court* (2010)

attempt of defining specific prerequisites that negate a person's international criminal liability and the leeway granted to the Court under paragraph 2; in other words, paragraph 2 points to the problem of adjudicative retroactivity and, as the Working Group's Chairman has put it almost unnoticed, 'it could be argued that the possibility of denying the applicability to a certain case of a ground for excluding criminal responsibility otherwise provided for runs counter to the principle of legality'¹⁹⁹. Interpreting the scope of paragraph 2 in light of these vastly intriguing implications, some general guidelines seem at place.

First, grounds for excluding criminal responsibility are not subject to the interpretation 69 rules of article 22 (*nullum crimen sine lege*)²⁰⁰; thus, disregarding the plain wording of a provision regulating a defence due to teleological arguments (so called 'teleological reduction') is not formally disqualified. This reflects a popular notion in domestic criminal justice theory: because of their dynamic evolution, an evolution that is driven by ever-changing social needs, the principle of *nullum crimen sine lege* is deemed not to apply fully to defences²⁰¹. On the other hand, domestic criminal law theory also suggests that a court's construing a defence provision directly influences a defendant's criminal liability and thus is hardly different from interpreting a criminal offense provision²⁰². Accordingly, with regard to national criminal justice systems, it is far from clear to what effect and to what extent grounds for excluding criminal responsibility can be altered retroactively and, thus, touch on the legality principle. However, even if the *nullum crimen* requirements – according to the wording of article 22 paragraph 2 – only apply to the 'definition of a crime' and not to grounds of excluding criminal responsibility²⁰³, the determination power of the Court entrusted to it in paragraph 2 of article 31 could be overstretched if in a given case defences granted by the Statute were principally disregarded or narrowed in a way that the very substance of such a ground of excluding criminal responsibility gets lost.²⁰⁴

Second, a potential conflict with the legality principle will predominantly arise only if the 70 Court disregards any possible meaning of the wording and adapts a codified ground for excluding criminal responsibility in a manner detrimental to the defendant. More specifically, illuminating the underlying rationales of the legality principle²⁰⁵, the Court's determination may either withhold fair notice or counteract the accused's protection against arbitrary justice and *ad hoc* punishment. With regard to fair notice, this concept is rooted in liberal rational choice theory and prescribes that an actor consciously adjusts his actions to the codified requirements of (domestic or international) criminal law so that said requirements must not be altered retroactively²⁰⁶. However, this usual "reliance" argument against judicial creativity²⁰⁷ seems frustrated by paragraph 2, as this provision positively allows for a variable and flexible interpretation of the Statute's grounds for excluding criminal responsibility and, thus, in fact, negates any reliance in judicial constancy²⁰⁸. With regard to the accused's

491, obviously led by a minimalist approach to giving leeway to excluding criminal responsibility; however, whereas incriminating elements are certainly subjected to the principle of legality (article 22), this is not necessarily the same with exonerating justifications or excuses as being in favor of the accused (cf. Satzger, *Internationales Strafrecht* (2013) 304). See also below mn 69 *et seq.*

¹⁹⁹ Saland, in: Lee (ed.), *The International Criminal Court – The Making of the Rome Statute* (1999) 189, 208.

²⁰⁰ Cf. Broomhall above Art. 22, mn 31, 39 *et seq.*

²⁰¹ Cf. Roxin, *Strafrecht Allgemeiner Teil* (2006) 158; Lenckner and Sternberg-Lieben, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2010) pre-note 25 to § 32, at 585 *et seq.*

²⁰² Cf. Eser and Hecker, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 1 mn 13, at 31.

²⁰³ As assumed, though, by Ambos, *Treatise on International Criminal Law* (2013) 90, 314.

²⁰⁴ Cf. Cryer, in: Cryer *et al.* (eds.), *An Introduction to International Criminal Law and Procedure* (2014) 400.

²⁰⁵ Cf. Kratzsch (1971) GA [65], 68; Morrison (2001) 74 *SouthCalifLRev* [455], 461 *et seq.*

²⁰⁶ Cf. Kahan (1997) 3 *RogerWilliamsULRev* [95], 95; above note 37, A. Ashworth/J. Horder, *Principles* 57 *et seq.*

²⁰⁷ Ashworth and Horder, *Principles of Criminal Law* (2013) 60.

²⁰⁸ As a consequence, with regard to interpretive limitations of paragraph 2 in light of the legality principle, there is no need to differentiate between justifying and excusing grounds for excluding criminal responsibility. Insofar, retroactive alterations of excuses are normally less troublesome because they constitute rules of adjudications for the courts rather than rules of conduct to guide citizens; cf. Eser, in: Heger, Kelker and

protection against arbitrary justice and *ad hoc* punishment, this second rationale of the legality principle sets institutional restrictions to judicial vindictiveness fuelled by the potential animosity towards the defendant²⁰⁹. It may be guessed that utilizing these restrictions to define the scope of paragraph 2 accounts for the immense pressure that the Court will come to bear and prevents that it will fall prey to an overpowering impression of an individual case. In order to ensure a high degree of accountability and acceptance, adapting grounds for excluding criminal responsibility under paragraph 2 is advisable only if the alterations – according to standards employed by both the European Court of Human Rights²¹⁰ and the US Supreme Court²¹¹ – are reasonably foreseeable and can be reasonably brought under the original concept of the defence²¹². Applying this rational basis inquiry separates the legitimate dynamic evolution of international criminal law from illegitimate judicial reinterpretations animated by capricious and arbitrary impulses.

- 71 Third, even if paragraph 2 confers to the Court a limited power to adapt the law, it might be more suitable not to disregard codified requirements but rather to take advantage of their broad interpretive latitude which naturally inheres legal terms like reasonable etc. This internal approach to solve problematic cases mitigates the impending conflict between paragraph 2, judicial retroactivity and the legality principle²¹³.

VII. Paragraph 3: Other (international or national) sources for exclusionary grounds

- 72 For reasons similar to those finally causal for paragraph 2²¹⁴, it was quite clear from the start that the Statute could and should not provide an exhaustive list of defences; therefore a clause was needed according to which the Court should be empowered to avail itself of defences which might be derived from other recognized legal sources²¹⁵. After the Preparatory Committee had proposed a rule to this end in its session of December 1997²¹⁶ which was still upheld as a separate provision by the Draft Statute of April 1998²¹⁷, it was then, on proposal of the USA, integrated into article 31 as paragraph 3 and phrased as it stands now²¹⁸. The provision contains three rules:

Schramm (eds.), *Festschrift für Kristian Kühl* (2014) 173 *et seq.* What is more, by rejecting the liberal ‘reliance’ argument because of the explicit wording of paragraph 2, it is not necessary to comment on the question of whether international criminal law really guides the actions of potential international criminals.

²⁰⁹ Cf. Krent (1997) 3 *Roger Williams ULRev* [35], 41.

²¹⁰ Cf. *Case of SW v. United Kingdom*, Application No. 00020166/92, Judgement, 22 November 1995, para. 36.

²¹¹ Cf. *Bouie v. City of Columbia* (1964) 378 U.S. 347–368, 353 *et seq.*

²¹² The test applied is objective in nature whereby further differentiations may be necessary. For example, the foreseeability requirement might be more lax if the individual case is comparable, as a matter of law, to a previously decided case, yet took place in a different geopolitical situation. Vice versa, the foreseeability requirement might be more strict if a relevant precedent already accounted for the peculiarities of the geopolitical background of the individual case that is to be decided.

²¹³ Cf. Eser and Hecker, in: Schönke and Schröder (eds.), *Strafgesetzbuch. Kommentar* (2014) § 1 mn 13, at 31.

²¹⁴ See mn 64.

²¹⁵ Here again, the Updated Siracusa Draft (article 33–11 para. 2, p. 74; cf. above note 189) as well as the 1996 Preparatory Committee II (article S Proposal 1, pp. 104 *et seq.*) have made first suggestions on this respect. Cf. also Jescheck, in: Eser (ed.), *Festschrift für Haruo Nishihara* (1998) 437, 447 *et seq.* Referring to this possibility in particular with regards to sex offenses, though not specifying any available defences, see Grewal (2012) 10 *JICJ* [389], 389.

²¹⁶ Art. O in the Preparatory Committee Decisions Dec. 1997, p. 23.

²¹⁷ See article 34 Preparatory Committee (Consolidated) Draft, p. 71.

²¹⁸ See Proposal by the United States of America for single provision covering issues currently governed by articles 31, 32, 33 and 34, note 106. Later changes did not do more than introduce ‘consideration’ instead of ‘assertion and application’ in paragraph 3 sentence 2; cf. Article 31 para. 3 in the Report of the Working Group of 29 June 1998 (UN Doc. A/CONF.183/C.1/WGGP/L.4/Add.1), p. 5. Cf. Schabas, *The International Criminal Court* (2010) 492.

1. ‘At trial the Court may consider’ a ground for excluding criminal responsibility ‘other than those referred to in paragraph 1’

This power given to the Court at trial reaches further than that according to paragraph 2 (above D.VI) in that the Court shall not only adjust an existing exclusionary clause to the case before it, but may even employ grounds for excluding criminal responsibility ‘other than those referred to in paragraph 1’ and, as must be added, other than those provided for in the Statute as well; for as paragraph 1 also covers the ‘additional’ grounds (above B) by its chapeau, the power of the Court to look for other grounds for excluding criminal responsibility is not limited to the subparagraphs (a) to (d) of paragraph 1, but even goes beyond this Statute²¹⁹.

Yet, as article 31 is concerned with substantive exclusions of criminal responsibility only²²⁰, introducing additional non-substantive defences, like alibi²²¹, ne bis in idem²²², failure of proof or other more procedural defences²²³, could hardly be accomplished by direct application of paragraph 3, as seems to have been envisaged by preparatory proposals²²⁴. However, by way of analogy, as far as favorable to the defendant, an extension of paragraph 3 on non-substantive defences may still be open.

2. Where such a ground is ‘derived from applicable law as set forth in article 21’

This clause is both a guideline and a limitation for the Court. For this purpose, it was extensively elaborated in earlier drafts²²⁵, but even in its new trimmed version does it reach the same end by simply referring to article 21. This is due to the fact that the rules for the application of law in and outside of this Statute, as prescribed by article 21, concern grounds for excluding criminal responsibility in the same way as any other law within the jurisdiction of this Court. Thus, even defences which have not been expressly regulated by this Statute (such as those listed above at C. II), can be invoked by the person concerned and considered by the Court, in as far as they are reconcilable with the application rules of article 21.²²⁶

3. ‘The procedures relating to the considerations of such a ground shall be provided for in the Rules of Procedure and Evidence’

In addition to the substantive limitation of sentence 1 binding the Court to certain legal sources, sentence 2 of paragraph 3 provides a certain procedure by which a ground for excluding criminal responsibility not provided for in this Statute may be taken into consideration. The pertaining rule 80, however, regulates scarcely more than the procedural way of how the defence may raise an exclusionary ground according to this paragraph²²⁷.

²¹⁹ By acknowledging the Court’s power to adopt new defences, the Statute goes beyond *Prosecutor v. Delalić et al.*, IT-96-21-A, Judgement, Appeals Chamber, 20 February 2001, para. 583, where it was stated that the ICTY must not adopt new rules constituting new defences. Further note that the Court’s rule-making powers do not conflict with the principle of *nullum crimen sine lege*.

²²⁰ Cf. above mn 17.

²²¹ Cf. above note 37.

²²² Cf. Ambos, *Treatise on International Criminal Law* (2013) 396 *et seq.*

²²³ On further non-substantive defences in the Rome Statute cf. Scaliotti (2001) 1 *ICLRev* [111], 112 *et seq.* For a systematic analysis of the different subgroups of criminal law defences from a common law point of view cf. Robinson, *Criminal Law Defenses* (1984) sections 21–28.

²²⁴ As reported and obviously supported by van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 291.

²²⁵ Such as in article 34 Preparatory Committee (Consolidated) Draft, p. 73.

²²⁶ Cf. Ambos, *Treatise on International Criminal Law* (2013) 386; van Sliedregt, *Individual Criminal Responsibility in International Law* (2012) 223.

²²⁷ For further details see Brady, in: Lee (ed.), *The International Criminal Court – Elements of Crimes and Rules of Procedure and Evidence* (2001) 403, 417.

E. Outlook

- 77 After the 1994 ILC Draft Statute for a Permanent International Criminal Court had not yet contained any grounds for excluding criminal responsibility, it was certainly fundamental progress that the Statute was prepared to expressly recognize certain grounds for excluding criminal responsibility and, in addition, left the door open for further grounds²²⁸. This is not to say that such abhorrent crimes as those dealt with by the Statute should be easily open for substantive defences; as was already necessary to be said; however, even war criminals cannot be denied the right to be tried according to the rule of law²²⁹. Insofar, the Statute's efforts to transcribe the principal grounds for excluding responsibility into international criminal law, rather than being 'absurd'²³⁰, mark a further step to a comprehensive codification of international criminal law both in founding and excluding criminal responsibility²³¹. This applies not only to substantive law but concerns the procedural position of the defendant as well, in particular with regard to the Court's institutional design²³². Although it is unquestionably desirable to structurally improve the defence side, for example by establishing a permanent defence unit, the main focus should not lie on expanding on the adversarial dichotomy between prosecution and defence but rather on ensuring that an impartial prosecution will indeed collect, evaluate and present evidence that is advantageous for the defendant (article 54 para. 1 (a)).²³³
- 78 Nonetheless it is not to be ignored that article 31 is not yet in the very best of shape, both from substance and format. This holds particularly true with regard to the lack of differentiation between various – justificatory, exculpatory or other extenuating – reasons for which criminal responsibility may be excluded²³⁴. This is a field which needs more refinement, at least in order to make certain exclusionary grounds better understandable and more adequately applicable²³⁵.

²²⁸ Another question, of course, is as to what degree the ICC will be prepared for making use of its power: doubtful, e.g., Janssen (2004) *ICLRev* [83], 97.

²²⁹ Cf. above mn 12.

²³⁰ As Schabas (1998) 6 *EJCLCJ* [400], 423 oddly saw fit to describe the progress with regard to the intoxication defence.

²³¹ To the same end cf. van Sliedregt, *The Criminal Responsibility of Individuals for Violations of International Humanitarian Law* (2003) 299.

²³² Cf. *Fair Trials and the Role of International Criminal Defense* (2001) 114 *HarvLRev* [1982], 1986.

²³³ As to desirable improvements in this respect see Eser, in: Swart, Zahar and Sluiter (eds.), *The Legacy of the International Criminal Tribunal for the Former Yugoslavia* (2011) 108, 121 *et seq.*

²³⁴ Cf. above mn 2.

²³⁵ Cf. – with varyingly far-reaching goals and hopes – Eser, in: Dinstein and Tabor (eds.), *War Crimes in International Law* (1996) 251, 263 *et seq.*, 271 *et seq.*; Nill-Theobald, "Defences" bei Kriegsverbrechen am Beispiel Deutschlands und der USA. *Zugleich ein Beitrag zu einem Allgemeinen Teil des Völkerstrafrechts* (1998) 387 *et seq.* and Jescheck, in: Eser (ed.), *Festschrift für Haruo Nishihara* (1998) 437, 448, 451.

Article 32

Mistake of fact or mistake of law

1. A mistake of fact shall be a ground for excluding criminal responsibility only if it negates the mental element required by the crime.

2. A mistake of law as to whether a particular type of conduct is a crime within the jurisdiction of the Court shall not be a ground for excluding criminal responsibility. A mistake of law may, however, be a ground for excluding criminal responsibility if it negates the mental element required by such a crime, or as provided for in article 33.

Literature: Bothe, M., 'War Crimes', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 379; Clark, R., 'The Mental Element in International Criminal Law: The Rome Statute of the International Criminal Court and the Elements of Offences', (2001) 12 *CLF* 291; Badar, M.E., 'Mens Rea, Mistake of Law & Mistake of Fact in German Criminal Law: A Survey for International Criminal Tribunals', (2005) 5 *ICLRev* 203; Eser, A., 'Mental Elements – Mistake of Fact and Mistake of Law', in: Cassese, Gaeta and Jones (eds.), *The Rome Statute of the International Criminal Court: A Commentary* (2002) 889; *id.*, "Defences" in Strafverfahren wegen Kriegsverbrechen', in: K. Schmoller (ed.), *Festschrift für Otto Triffterer* (Springer 1996) 755; Eser, 'Justification and Excuse: A Key Issue in the Concept of Crime', in: A. Eser and G.P. Fletcher (eds.), *Rechtfertigung und Entschuldigung: rechtsvergleichende Perspektiven*, Vol. I (Max-Planck-Institut 1987) 37; Eser, A., Lagodny, O. And Triffterer, O., 'Proposals to Amend the "Draft Code of Crimes against the Peace and Security of Mankind"', in: O. Triffterer (ed.) Annex 2: Acts of Violence and International Criminal Law, (1997) 4 *CroatianAnnCrimL&Prac* 2, 872; Heller, K.J., 'Mistake of Legal Element, the Common Law, and article 32 of the Rome Statute', (2008) 6 *JICJ* 419; Jescheck, H., *Die Verantwortlichkeit der Staatsorgane nach Völkerrecht* (Röhrscheid 1952); Nill-Theobald, C. 'Defences' bei Kriegsverbrechen am Beispiel Deutschlands und der USA: Zugleich ein Beitrag zu einem Allgemeine Teil des Völkerstrafrechts (Edition iuscrim 1998); Reynolds, J.D., 'Collateral Damage on the 21st Century Battlefield – Enemy Exploitation of the Law of Armed Conflict, and the Struggle for a Moral High Ground', (2005) 56 *AFLRev* 1; Robinson, P.H., 'Commentary to article 14', in: M.C. Bassiouni (ed.), *Commentaries on the ILC's 1991 Draft Code of Crimes Against the Peace and Security of Mankind* (Eres 1993) 199; Saland, P., 'International Criminal Law Principles', in: R.S. Lee (ed.), *The International Criminal Court: The Making of the Rome Statute* (Springer 1999) 189; Scaliotti, M., 'Defences Before the International Criminal Court: Substantive Grounds for Excluding Criminal Responsibility–Part 2', (2002) 2 *ICLRevev* 1; Schabas, W.A., 'General Principles of Criminal Law in the ICC Statute', (1998) 6 *EJCLCJ* 400; Stuckenberg, C-F., 'Problems of "Subjective Imputation" in Domestic and International Criminal Law', (2014) 12 *JICJ* 311–323; Triffterer, O., 'The Object of Review Mechanisms: Statutes' Provisions, Elements of Crimes and Rules of Procedure and Evidence', in: R. Bellelli (ed.), *International Criminal Justice: Law and Practice from the Rome Statute to Its Review* (Ashgate 2010) 355; *id.*, 'Ius in bello: Eskalation durch "Kollateralschäden" wie durch Kriegsverbrechen–Beweisbarkeit und Vermeidbarkeit? Anmerkungen zu dem bewaffneten Konflikt zwischen Israel und der libanesischen Hizbullah Miliz', in: R. Moos, U. Jesionek and O. Müller (eds.), *Festschrift für Roland Miklau zum 65. Geburtstag* (Studien Verlag 2006) 559; *id.*, 'The New International Criminal Law – Its General Principles Establishing Individual Criminal Responsibility', in: K. Kalliopi (ed.), *The New International Criminal Law* (Sakkoulas 2003) 639; *id.*, 'Der ständige Internationale Strafgerichtshof–Anspruch und Wirklichkeit', in: K.H. Gössel and O. Triffterer (eds.), *Gedächtnisschrift für Heinz Zipf* (C.F. Müller 1999) 495; *id.*, 'Bestandsaufnahme zum Völkerstrafrecht', in: G. Hankel and G. Stuby, (eds.), *Strafgerichte gegen Menschheitsverbrechen: Zum Völkerstrafrecht 50 Jahre nach den Nürnberger Prozessen* (Hamburger Edition 1995) 169; *id.*, *Strafrecht Allgemeiner Teil* (Springer 2nd edition 1994); *id.*, 'Ein rechtfertigender (Erlaubnistatbestands-)irrtum? – Irrtumsmöglichkeiten beim polizeilichen Einsatz und deren Dogmatische Einordnung', in: O. Triffterer and F. von Zezschwitz (eds.), *Festschrift für Walter Mallmann (Nomos 1978)* 373; von Versveld, A., *Mistake of Law: Excusing Perpetrators of International Crimes* (Springer 2012); Weigend, T., 'Intent, Mistake of Law, and Co-perpetration in the Lubanga Decision on Confirmation of Charges', (2008) 6 *JICJ* 471.

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A. General remarks

I. Historical development

- 1 Part 3 of the Rome Statute contains some – but not all – of the general principles of criminal law to be applied by organs of the Court. According to article 21, other principles may be found in the applicable law, especially in the ‘principles of law’ mentioned in paragraphs 1(c) and 2¹. But there is, in addition, room for extensive interpretation and development of such principles, especially through the jurisprudence of the ICC, as demonstrated by the decisions of the ICTY and the ICTR during the last years².
- 2 It surprises – at first glance – that a Statute aiming to establish a court and its (international criminal) jurisdiction also defines precisely the crimes over which jurisdiction shall be exercised and, in addition, some general principles of criminal law to be applied. However, on a closer analysis, this double structure of the Rome Statute, dealing with substantive and procedural rules in one document is desirable and, especially in the field of international criminal law, also necessary to clarify and thereby help guarantee observance of the rule of law. The fulfilment of the latter presupposes, for instance, that the crimes and defenses are defined in a way ‘strictly construed in the sense of article 22’, which means, sufficiently precise to make criminal justice transparent and thereby acceptable, while also understandable and controllable³.

The Statute’s double orientation becomes understandable when considering its historical development. In addition, it is in accordance with the early development of national and regional criminal law and procedure, where a strict separation between substantive and procedural law also is missing; quite well known codifications, for instance, the *Constitutio Criminalis Carolina* (CCC) of 1532, contain regulations concerning both fields⁴.

¹ See deGuzman, *article 21*, mn 11 *et seq.*, 14 *et seq.* And 20 *et seq.*

² See, for instance, *Prosecutor v. Erdemović*, IT-96-22-A, Judgement, Appeals Chamber, 7 October 1997, paras 12 and 13, and the separate and dissenting opinion of Judge Cassese and Judge Stephen, para 37 and 59 respectively. The majority of the Appeals Chamber found that duress does not afford a complete defence to a soldier charged with a crime against humanity and/or a war crime.

³ See, for instance, the Report of the ILC on the Work of its Thirty-Ninth Session (to its Draft Code 1987), UN Doc. A/42/10, reprinted in: (1987) 2 *YbILC*, Part 1 (3), 7, where it was considered that all ‘exceptions of the principle of responsibility’ concern ‘jurisdictional guarantees’. See also Clark, R.S. Article 9, mn 1 *et seq.*

⁴ See, for instance, Triffterer, *Strafrecht Allgemeiner Teil* (1994) chapter 1, mn 13, and for the ‘double character’ of the ICC, Triffterer, in: Gössel and Triffterer (eds.), *Gedächtnisschrift für Heinz Zipf* (1999) 495, 534 *et seq.*

An analysis of the early development in the international field, however, reveals a clear separation of both subject matters. At the beginning, endeavors concentrated on substantive law because there was not yet any international criminal jurisdiction in sight. Instruments dealing with the laws and customs of war, especially the 1907 Hague Conventions, represent this tendency. The Charter for the Nuremberg Tribunal is also typical since it concentrated mainly on substantive law, leaving great parts of the procedural law to be adopted by the Tribunal according to its own Rules of Procedure and Evidence. The question of error was not even mentioned in the Charter. This line was continued in the Nuremberg Principles drafted by the ILC in 1948⁵. The 1948 Genocide Convention equally concentrated on the criminality of such acts and though not referring to the possibility of an error it at least mentioned the procedural aspect and thereby opened the possibility of direct enforcement by an international criminal court⁶.

The UN's work thereafter, through the promulgation of the 1951 and (revised) 1953 Draft Statutes for the Establishment of an International Criminal Court by a special Committee, and the 1951 and 1954 Draft Codes of Offences against the Peace and Security of Mankind by the ILC, only served to widen the separation. The Draft Codes do not even mention that defenses and extenuating circumstances may play a role and that a relevant error of the perpetrator in regard to a necessary element of the crime may fall under one of those categories⁷. This may have been due to the fact that even though they were not mentioned in the Nuremberg Statute or in the Allied Control Council Law No. 10 of 1945, mistakes of law or fact were quite frequently raised as a defense in trials conducted according to these laws. However, in the jurisprudence in the aftermath of WWII, mistake of law was generally declared to be irrelevant while an error of fact was accepted as a ground for excluding criminal responsibility, for instance in the so-called '*Ärzte-Urteil*'⁸. This term refers to cases of physicians who were acquitted because they believed that the persons brought to them were sentenced to death and would be pardoned if they survived the medical experiments, during which they were 'at the disposal' of the physicians⁹.

The question was extensively discussed by the ILC in 1986 during its work on a revision of the Draft Code, because in the meantime quite a few drafts from non-governmental organizations had dealt with this particular defense¹⁰. The Special Rapporteur referred to the High Command and the I.G. Farben cases, in which the Nuremberg Tribunal ruled on the misinterpretation of a rule of law and a change in general acceptance of laws and customs of war, thereby altering 'the substantive content of certain of its principles'¹¹. Thereafter the ILC included, in its 1987 Draft, article 9 'Exceptions to the principle of responsibility' (formerly article 8), and referred to in subparagraph (d) as 'error of law or of fact'¹². However, instead of being defined, both were merely mentioned as grounds that would not 'relieve the perpetrator of criminal responsibility unless, in the circumstances in which it (the crime) was committed, it was unavoidable for him'. In addition, for all defenses mentioned in

⁵ The principles were defined by the ILC but never scheduled to be discussed in the General Assembly, see 1991 ILC Draft Code, paras 60 *et seq.*; Triffterer, *Dogmatische Untersuchungen zur Entwicklung des Materiellen Völkerstrafrechts seit Nürnberg* (1966) 76.

⁶ For reference to an international penal tribunal see article IV of the Genocide Convention; for the neglect of rules for a general part see, for instance, Triffterer, 2nd edition, *Preliminary Remarks*, mn 34 *et seq.*; for the limitation of the Genocide Convention to specific rules about participation see article III and also article 86(2) of Add. Prot. I.

⁷ See, for instance, article 2 of the 1951 and of the 1954 Draft Code.

⁸ *United States vs. Karl Brandt et al.*, Judgment of Military Tribunal in Case No. 1, 19 August 1947.

⁹ For details see Nill-Theobald, '*Defences*' bei Kriegsverbrechen am Beispiel Deutschlands und der USA: *Zugleich ein Beitrag zu einem Allgemeine Teil des Völkerstrafrechts* (1998) 342 with references in fn. 1.

¹⁰ ILA Seoul Conference (1986) Annex C and Protocol II to the Statute for an International Criminal Court and to the Statute for an International Commission of Criminal Inquiry containing defences, paras 4 and 5; AIDP, 'A Draft International Criminal Code' (1980), Appendix – General Part, article IX section 7, reprinted in: Bassiouni (ed.), *International Criminal Law: A Draft International Criminal Code* (1980) 47 *et seq.*

¹¹ (1986) 2 YbILC, Part 2, paras 161 *et seq.* with references for the two cases mentioned in fn. 126 and 127.

¹² For the Draft article, see 1987 ILC Report, para 44 *et seq.*

the original article 8, the defense would not exempt the defendant from punishment if his act was ‘a breach of a peremptory rule of international law, ... originated in a fault on his part ...’, or ‘the interest sacrificed is higher than the interest protected’¹³. The new article 9 repeated the principal regulation on ‘error of law or of fact’ without including the limitations mentioned in former article 8¹⁴. The discussion, which canvassed the broadness of the concepts of ‘errors of law or of fact’ (in that order) and mentioned, without attempting to be exhaustive, the variety of possible mistakes, referred expressly to the very basic and still valid decision of the German Federal Court defining ‘the concept of insurmountable error’¹⁵. The cases mentioned and the ensuing discussion illustrated the difficulty of and the sophisticated analysis required to differentiate between errors of fact and law. This may have been the reason why the 1991 ILC Draft Code did not refer to mistake of fact and law. It stated in its article 14 only that ‘defences under the general principles of law’ were applicable and had to be considered in every single case¹⁶. The maximum that can be derived from this article is that the ILC thereby tacitly accepted that errors of fact and law **may be** defenses, which, if applicable in principle, had to be checked in each case.

- 6 The silence of the ILC is rather surprising. Already the early 1980 AIDP Draft, the 1987 Bassiouni Draft, the 1991 ILA Draft and later on the 1996 Updated Siracusa Draft all accepted **both** mistakes. It was considered that a defense would be permitted where there was a negation of ‘the mental element required by the crime charged provided that said mistake is not inconsistent with the nature of the crime or its elements, and provided that the circumstances he reasonably believed to be true would have been lawful’¹⁷. The consequences attaching to a mistake were only mentioned with regard to mistakes of law and were rather concisely summarized; accordingly, a behaviour associated with a mistake of law was either ‘not punishable’ or if the mistake was avoidable ‘the punishment may be reduced’¹⁸.
- 7 It is noteworthy that the Statutes for the ICTY and the ICTR do not contain any regulations concerning relevant mistakes. But by making generally accepted legal rules applicable, they can (and in their practice do) take consideration of both mistake of fact and mistake of law¹⁹. Against this background the ILC – before a ‘revivment’ of its members took place – aimed to conclude its 45 years of work on the Draft Code. On the demand of members, an additional proposal was presented by experts, changing article 33–15 paragraph 1 of the Updated Siracusa Draft and pointing out the consequences of this proposal with the formula: ‘If an individual would not be held guilty of the crime if the circumstances were as he reasonably believed, he is not punishable’²⁰. However, no agreement could be reached on

¹³ (1987) 2 YbILC, Part 1, 7 (brackets added).

¹⁴ *Ibid.*

¹⁵ BGHSt 2, 194, 18 March 1952. See also (1987) 2 YbILC, part 1, [8]. For its present importance see, for instance, Jescheck and Weigend, *Lehrbuch des Strafrechts: Allgemeiner Teil* (1996) 452.

¹⁶ See Robinson, in: Bassiouni (ed.), *Commentaries on the ILC’s 1991 Draft Code of Crimes Against the Peace and Security of Mankind* (Eres 1993) 199 *et seq.*

¹⁷ Appendix – General Part, article IX, section 7 A.I.D.P. Draft 1980, reprinted in: Bassiouni (ed.), *International Criminal Law: A Draft International Criminal Code* (1980) 164; for the ‘Bassiouni Draft’ 1987 see Part I–General Part, article IX, section 7, reprinted in: Bassiouni, *A Draft International Criminal Code and Draft Statute for an International Criminal* (1987) 110; see also Updated Siracusa Draft, article 33–15 para. 1.

¹⁸ The 1991 ILA Report mentions **both** possibilities. An unavoidable mistake of **law** was accepted as an ‘excuse from criminal liability’ while an avoidable mistake was a reason why ‘punishment may be reduced’. With regard to the mistake of **fact** there was no regulation contained; see Report of the ILA of the 64th Conference 186 (1991). But this is comparable to national laws like in Austria where such a regulation is missing as well. The legal consequence of such an error is self-evident, because a mental element is required and the lack of perception of these facts logically leads to a lack of the mental element required. See, for instance, note 4, Triffterer, *Strafrecht Allgemeiner Teil* (1994), chapter 17, mn 19 *et seq.* with further references.

¹⁹ This aspect has been expressly mentioned in the *Ad Hoc* Committee Report, para 87. See, for instance, Erdemović (Appeals Chamber Judgment), note 2.

²⁰ See for this Draft Eser, Lagodny and Triffterer, ‘Proposals to Amend the “Draft Code of Crimes against the Peace and Security of Mankind”’, in: Triffterer, Annex 2: Acts of Violence and International Criminal Law, (1997) 4 *Croatian AnnCrimL&Prac* 2 [872], 872 *et seq.*

this question during the work on the 1996 Draft Code, especially since a lack of broad consensus was already apparent during the work on the ILC Draft Statute 1994²¹.

It is not surprising that the *Ad Hoc* Committee on the Establishment of an International Criminal Court did not produce results that the ILC could not achieve either. It only proposed guidelines 'for consideration of the question of general principles of criminal law'. They contained a list of possible defences including 'error of law?' and 'error of fact?' – again using the order adopted in former ILC Drafts – without mentioning any further details or referring to the articles of the 1987 ILC Draft. But the two question marks behind each of the two aspects 'for consideration' indicate that the *Ad Hoc* Committee did not then want to decide, if at all, to what extent each of the mistakes should lead to impunity or needed to be regulated at all²².

Due to this open situation, at its first session the Preparatory Committee discussed proposals by Japan to formulate an article on 'mental element' and by the Netherlands concentrating on avoidability and consistency of errors with the nature of the alleged crimes, as well as the possibility of a provision stating that even if a mistake was avoidable it 'may be considered in mitigating of punishment' or, in other words, 'the punishment may be reduced'. It was this proposal by the Netherlands that led the ILC to change the order and to mention mistake of fact **before** law. This order has been used since then²³.

However, the question was also debated whether these concepts should be included at all in the Statute and if they fell into 'the category of justifying facts ... Are negations of responsibility or a defense'²⁴. The Report on the first and second session of the Preparatory Committee reflects an open discussion in which the majority held the opinion that mistakes should be a defense and not 'a ground for exemption from criminal responsibility'. In addition, it was questioned whether with regard to the 'particular mental elements in order to establish criminal responsibility ... this defense needs to be explicitly mentioned as it is merely one example of the various factors that could negate the existence of the required mental element'²⁵.

In its third session in February 1997, the Committee, in summarizing the discussion and the major proposals, drafted two alternative texts, mentioning in footnote 26 and 27 that 'there were widely divergent views on this matter'. It stated further that according to some delegations a regulation for 'mistake of fact was not necessary because it was covered by *mens rea*'²⁶. The first, the shorter version (A), treated both mistakes equally as a defense if unavoidable and, if avoidable, as mitigating circumstances, adding however, 'provided that the mistake is not inconsistent with the nature of the alleged crime'²⁷.

During the fourth and the fifth session, August and December 1997 respectively, the subject was not dealt with expressly. But in the latter, due to the influence of the Updated Siracusa Draft²⁸, 'general principles of criminal law' were considered by a separate Working Group²⁹. Article 1 of the Working Group's proposal is titled 'Grounds for excluding criminal responsibility' but does not mention mistakes in the Annex II to the Report at all³⁰.

The Zutphen Draft contains in article 24 [K] two options, both including mistakes of fact and of law. They differ from the proposals made during the third session only to the extent

²¹ See 1994 ILC Draft Statute, paras 45 *et seq.*

²² See *Ad Hoc* Committee Report, Annex II B 5 a, p. 58.

²³ See for these proposals Summary of the proceedings of the Preparatory Committee during the period 25 March–12 April 1996, 1st Sess., UN Doc. A/AC.249/1 (7 May 1996), Annex I, p. 22 and mn 17.

²⁴ See 1996 ILC Draft Code.

²⁵ 1996 Preparatory Committee II, p. 96.

²⁶ Preparatory Committee Decisions Feb. 1997, pp. 27–28.

²⁷ *Ibid.*

²⁸ For the influence of the Updated Siracusa Draft as 'a good starting position', see 1996 Preparatory Committee I, para 204.

²⁹ See Preparatory Committee Decisions Dec. 1997, Annex II, pp. 18 and 19.

³⁰ *Ibid.*

that they substituted ‘shall be a defense’ with the words ‘shall be a ground for excluding criminal responsibility’ in both options³¹.

The Consolidated Draft from 14 April 1998, concluding the work of the Preparatory Committee after the sixth session, repeated these two options, noting in footnote 20 that there were still ‘widely divergent views on this article’. In footnote 21 it was again mentioned ‘that mistake of fact was not necessary because it was covered by *mens rea*’. Footnote 22 contains an additional option for paragraph 2 of the second option including, with regard to mistake of law, the observation that ‘whether a particular type of conduct is a crime under the Statute, or whether a crime is within the jurisdiction of the Court, is not a ground for excluding criminal responsibility’³². This formulation was the basis for the later similar wording in the Statute. In the commentary to the proposed article (at that time 30), the reasons for and different aspects of mistakes, their points of reference and the consequences are explained³³.

II. Need for article 32?

- 11 From the outset a point of discussion concerned whether a regulation for mistake of fact was at all necessary in the Statute. According to article 32(1) such an error ‘shall be a ground for excluding criminal responsibility only if it negates the mental element required by the crime’. Since according to article 30(1) criminal responsibility and liability for punishment depend on whether ‘the material elements are committed with intent and knowledge’, a person who is not aware of these required elements (which describe typically the nature, any specific circumstances and the consequences of the conduct), does not have the necessary *mens rea*. He or she is, therefore, free from responsibility and liability for punishment because **culpability** depends on the existence of such a (complex) mental element³⁴. In this respect, paragraph 1 expresses only what is self-evident and therefore may serve as a pure clarification of a generally accepted principle of criminal law³⁵.
- 12 With regard to article 32(2) the situation is different. The concept of mistake of law, as well as its consequences, namely, if and under what circumstances it may exclude responsibility or merely serve as mitigating circumstance, are subjects of dispute. Of course, if ‘it negates the mental element required’, the consequence is as self-evident as for an error of fact. On the other hand, the mere belief that a certain conduct is not punishable or does not fall within the jurisdiction of the Court does not concern the **material** elements of which the perpetrator has to be aware before he may build the *mens rea* required³⁶. As expressed in sentence 2, only in exceptional cases may such an error negate this element; therefore, paragraph 2 also clarifies, though without precisely expressing, when and where such a consequence can be drawn. The interpretation and detailed analysis therefore falls to the competence of the ICC.

III. Conceptual framework

- 13 In some civil law countries, criminal law theory has been developed to a rather sophisticated level of perfectionism: every single question has to be placed in a specific context as part of a systematic order of elements of crimes which all have to be fulfilled for a certain conduct to result in criminal responsibility. This approach leads to a diversity of mistakes

³¹ Zutphen Draft, pp. 60–61.

³² Preparatory Committee (Consolidated) Draft, p. 67.

³³ See (1998) 13*ter* NEP [54], 54 *et seq.* To these aspects see mn 25 and 31.

³⁴ At least as far as there exists no criminal responsibility for negligent conduct. See also commentary on article 30, (1998) 13*ter* NEP [54], 55.

³⁵ For this argument see already Preparatory Committee (Consolidated) Draft, article 30, fn. 21.

³⁶ In this regard, see also Ambos, *Treatise ICL I* (2013) 371, who concurs that mistakes regarding jurisdiction are not exculpating.

located in the different areas of such a system³⁷. Common law countries do not differentiate matters in this way; they are more likely looking at the result, namely whether punishment should be excluded or merely mitigated³⁸. Article 32 takes a neutral middle position by acknowledging in paragraph 1, through the emphasis given to ‘shall be a ground for excluding criminal responsibility’, that a mistake may negate the mental element required – in whatever way this may be explained theoretically. Taking into consideration the tendency for a rapprochement between the two legal systems, not only in Europe but worldwide, and especially through the jurisprudence of the ICTY and ICTR, it seems advisable to summarize and locate the different methods of identifying mistakes according to the civil law system.

With regard to the mistake of fact it is undisputed that when its prerequisites are fulfilled, there is no ‘intent and knowledge’ to use the language of article 30. The *mens rea* required for the specific crime is necessarily lacking in such cases and the word ‘only’ is superfluous. Such a mistake is located in the category where the mental element is positioned. 14

On the contrary, persons have the necessary mental element when they assume the existence of a situation in which, if it were as they believed, they would be justified (for example by self-defense). They are, in the same way, mistaken about one or more facts, even though these are not material elements of the crime, but material prerequisites for a justification of the crime. They thus have been inspired to commit a crime by being mistaken in a comparable way to a person who is in error over the existence of a material element: in both cases suspects perceive the reality incorrectly. In both cases they would have avoided behaving (acting or omitting) the way they did, and, thus, criminal responsibility if they had seen or in any other way appreciated the facts correctly instead of wrongly. Therefore, by reasoning based not on legal theory, but on the **similarity of the result**, they should be treated equally: neither should be punished for intentionally committing the crime; the first because he is lacking the mental element required, the second because he does not deserve this punishment, since without the mistake of the (justifying) facts he would not have **intentionally** committed the crime. This comparable structure of the systematically differently located two mistakes is the reason, why, for instance, paragraph 8 Austrian Penal Code provides a corresponding regulation stating that the person who is mistaken about the material prerequisites for justification, like a situation of self-defense, is on the one hand not justified, but on the other cannot be punished for committing the crime ‘**with intent and knowledge**’.

An error of fact in the sphere of other defenses may **excuse** the person, for instance, in situations of necessity/coercion or duress when the perpetrator wrongfully assumes ‘circumstances beyond his control likely to create an otherwise unavoidable private or public harm’³⁹. Because, in a situation that he reasonably believed to exist, the **psychological pressure on the perpetrator** is as strong as if the situation existed in reality. It has to be admitted that, contrary to the similarities in the three conceptual spheres of mistakes mentioned **above**, they are located in three different places in the systematic structure of crime:

The first concerns the correspondence between material and mental elements.

The second has its basis in a mistaken perception of facts, which if they existed in accordance with the belief, would have established a ground for justification of the act. Such an error is, however, (because of this wrong perception) a mistaken **evaluation** of the

³⁷ This helps to explain – even though only partly – the different categories to which errors have been allocated by the ILC according to the quotations in mn 9. See, for instance, for national legal theory in Austria Triffterer, *Strafrecht Allgemeiner Teil* (1994) chapter 17, mn 17 *et seq.*, and Germany, Jescheck and Weigend, *Lehrbuch des Strafrechts: Allgemeiner Teil* (1996) 456 *et seq.*

³⁸ See, for instance, Eser, in: Schmoller (ed.), *Festschrift für Otto Triffterer* (1996) 763; Eser, in: Eser and Fletcher (eds.), *Rechtfertigung und Entschuldigung: rechtsvergleichende Perspektiven* (1987) 37 *et seq.*

³⁹ Eser, Lagodny and Triffterer, ‘Proposals to Amend the “Draft Code of Crimes against the Peace and Security of Mankind”’, in: Triffterer, Annex 2: Acts of Violence and International Criminal Law (1997) 4 *Croatian Ann-CrimL&Prac* 2 [872], 881. See also Eser, article 31, mn 10.

lawfulness of the conduct and, therefore, by its concept under legal theory, a mistake of law. Such a mistake, though **conceptually** not a mistake of fact, nevertheless has the practical consequence of being treated as if it were one.

The third is a false perception of facts founding an excuse for the perpetrator. However, because of the wrong perception, it is a mistaken evaluation of the lawfulness of the conduct and therefore, by legal theory, a mistake of law. This mistake, though **conceptually** not a mistake of fact, nevertheless has the **practical** consequence of being treated as if it were one⁴⁰. For these three situations, a theoretical differentiation between negating the required mental element, justification, and excuse makes sense, even though it is not necessarily needed to achieve the same result, namely to relieve the perpetrator from punishment.

- 15 The difference between mistake of fact and mistake of law is that in principle the latter involves a perpetrator not mistaken about the existence of a (purely) material element or fact; therefore, mistakes about legal aspects of a crime in general do not touch the material elements or material prerequisites for justification or excuse. This is the reason why they, as expressed with regard to two such mistakes in paragraph 2 sentence 1, 'shall not be a ground for excluding criminal responsibility'.
- 16 However, consider the legal evaluation of elements like 'inhuman' or 'torture'. They are based on facts and thus have a comparable basis with material elements. The latter can be **descriptive** or **normative** in nature. In the second case, facts are legally evaluated and the perpetrator needs only to know the facts but does not have to know their precise legal definition in order to fulfil the mental element required; it is sufficient that he or she is aware of the social meaning of the facts perceived ('*Parallelwertung in der Laiensphäre*' or laymen's parallel evaluation test)⁴¹. For example, knowledge of the legality of a Trial Chamber's order is not an element of the *mens rea* of contempt. Otherwise, this requirement would mean that an accused could defeat a prosecution for contempt by raising a mistake of law defence⁴².
- 17 A similar structure underlies legal elements, because they all are normative by definition. One of the crimes against humanity according to article 7(1)(e) is 'imprisonment ... in violation of fundamental rules of international law'. The existence of these rules is a prerequisite for the definition of the crime and therefore has to have been known by the perpetrator with the 'mental element required'. If the perpetrator did not know the rule, he or she is mistaken in the same way as if he did not know that what he is destroying is, for instance, a (protected) hospital. He is mistaken by an error of fact and treated the same way according to article 32(1).

If, however, he is aware of a legal regulation dealing with this issue and (nevertheless) believes that this rule is either not applicable, not 'fundamental', or not 'international', he is mistaken about a **legal** concept underpinning the rule.

This is the typical mistake of law for which article 32 provides different consequences than for a mistake of fact. The reason for this differentiation is that the legal assignment to a certain category, or the precise apprehension of a legal definition, is not 'the job' of the perpetrator but of the person who has to apply the law. However, the perpetrator cannot be influenced in this process if he does not know, for instance, about the existence of a prohibition to destroy protected historical objects. Without knowing the factual basis for this legal element, the perpetrator cannot decide between right and wrong. Therefore, if he is mistaken in making this value judgement, his responsibility depends on whether he could have avoided the wrong decision or not.

⁴⁰ For details with further references see, for instance, Triffterer, *Strafrecht Allgemeiner Teil* (1994) chapter 17, mn 19 *et seq.*, 31 *et seq.*

⁴¹ For the differentiation see mn 21 and for all aspects mentioned Triffterer, *Strafrecht Allgemeiner Teil* (1994) chapter 9, mn 76 *et seq.*

⁴² See *Prosecutor v. Jović*, IT-95-14 & 14/2-R77-A, Judgment, Appeals Chamber, 15 March 2007. See with regard to value judgements also below Triffterer, 'The Object of Review Mechanisms: Statutes' Provisions, Elements of Crimes and Rules of Procedure and Evidence' (Conference on International Criminal Justice, Turin 14–18 May 2007) 4. E. therein.

Admittedly, differentiating legal elements from normative elements is difficult. The definition of one of the crimes against humanity in article 7(1)(h) contains three legal elements, namely ‘persecution’ under ‘grounds that are universally recognized as impermissible under international law’ and a ‘crime within the jurisdiction of the Court’. The definition of ‘persecution’ in article 7(2)(g) refers to another legal element: ‘fundamental rights contrary to international law’. In contrast, the crime of apartheid in article 7(1)(j), defined in paragraph 2(h), presupposes an ‘institutionalized regime’. But this regime need not be legitimate; a *de facto* institutionalization is sufficient. Therefore, this is not a legal element but a normative (material) one. The same is true for the elements in article 8(2)(b)(iv): ‘widespread, long-term and severe’ for the damage of the natural environment or the element that such an act ‘would be clearly excessive’. Applying article 32(2) sentence 1 to these aspects, it is clear that a mistaken belief about one of these elements (‘collateral damage would be clearly excessive’ or ‘a particular type of conduct’ would not constitute ‘a crime within the jurisdiction of the Court’), does not relieve the perpetrator from punishment because the conclusion need not be drawn by the perpetrator. If he wrongly believes the condition would not be fulfilled, he undertakes an evaluation that is not an element of the crime; therefore, in relation to this element, no value judgement has to be made by any perpetrator at all for holding him or her responsible for a crime.

This theoretical classification is not necessary, but it may be helpful to allocate a perpetrator’s mistaken perception to one of the two models of mistake. Doing so would make it easier to decide whether the mistake should relieve him from punishment and whether this decision about impunity should depend on the avoidability of the mistake.

IV. Error and lack of awareness

The word ‘mistake’ in article 32 describes the false perception of reality. But a perpetrator may have no perception at all, for instance, of a material element required for the crime. Often he is not aware of a certain element because when committing the act he does not contemplate the situation but rather acts without thinking about anything other than the final aim he wants to achieve. This may be the case if someone shoots without looking whether there is a human being around. This state of mind is often referred to as ‘ignorance’ rather than ‘mistake’.

Both states of mind, however, should be treated equally; the perpetrator not perceiving one or more of the material elements lacks the capacity for the required *mens rea* and, therefore, cannot fulfil this mental element. He lacks the *mens rea* in the same way as a person who assumes a ‘wrong’ fact (which does not exist in reality), e.g. Aiming at what he thought was a monument that in reality was a human being. Therefore, mistake or error can be defined as a wrong or absent perception (awareness) of reality. Persons without this awareness cannot be mistaken in the technical sense of the word. They merely act without knowledge or awareness, i.e. lacking the (right) knowledge or awareness about reality. Therefore, error and mistake, as well as lack of knowledge and awareness, fall under the concept of ‘mistake of fact’. They need not be differentiated because both lead to the same result: the capacity for the required *mens rea* is missing and therefore the mental element is missing, which is a ground for ‘excluding criminal responsibility’⁴³.

⁴³ For this differentiation see Triffterer, *Strafrecht Allgemeiner Teil* (1994) chapter 17, mn 2 and 3.

B. Analysis and interpretation of elements

I. Paragraph 1: Mistake of fact

1. Facts

- 20 The facts relevant to the subject matter of article 32 are the basis for all constituent material elements and, therefore, have to be contained in the definition of the crime. They have to exist in the ontological situation, independent of whether they exist outside the sphere of the person, as is normally the case, or inside, like, for instance, the intent to cheat. Another difference is between facts in the past or the present versus fact that will only materialize in the future, like the result to be achieved by shooting at a person or a military target. As already mentioned above, a person who does not realize that the object is a hospital cannot be aware that the building is a protected target and therefore does not have the mental element required for committing a war crime under article 8(2)(b)(ix)⁴⁴.

In these cases, the question of whether criminal liability for negligence is at stake, does not affect the question of mistake of fact. However, for the allocation of an error into one of the two categories, law or fact, another differentiation is decisive⁴⁵.

- 21 **a) Descriptive and normative material elements.** Seldom is a material element purely descriptive. Most elements have a double nature, both descriptive and normative. Human beings, for instance, are as such visible. But the beginning and the end of human life mark two borders, which have been changed, especially the latter, in recent years by legal (normative) definitions. Therefore, many material elements have, at least in their border regions, a normative character. But, in general, descriptive material elements can be identified with our five senses. Normative elements, however, are legally defined.
- 22 **b) Facts as bases for a normative evaluation – value judgment.** Nevertheless, normative material elements are not abstract legal definitions but a legal evaluation of facts by a legislator or by the jurisprudence. The underlying facts are facts like the descriptive material elements; a false perception of them falls under the label ‘mistake of fact’ and ‘negates the mental element required’ with the consequences described in paragraph 1.
- 23 The question is whether and to what extent the perpetrator has to comprehend the legal definition or if he just has to be aware of the social relevance of the facts (*‘Parallelwertung in der Laiensphäre’* or layman’s parallel evaluation test). The prevailing opinion in German law is that the latter is sufficient. Only those applying the law have to submit the required facts, known to the perpetrator, to the legal definition in order to apply the law correctly⁴⁶.
- 24 **c) Conceptual consequences.** The differentiation between descriptive and normative elements on the one side and facts and their normative evaluation on the other has certain consequences:

Persons mistaken about purely descriptive matters, or about facts forming the factual basis for a normative evaluation fall under the concept of mistake of fact. The same is true for perpetrators who have a false understanding of the social importance of a normative element. It is because it belongs to the concept of normative (material) elements that the underlying facts and their social significance are understood by the perpetrator.

⁴⁴ Cf. Preparatory Commission for the International Criminal Court, Working Group on Elements of Crimes, Discussion paper proposed by the Coordinator, PCNICC/1999/WGEC/RT.4 (9 August 1999), where it is stated in relation to the war crimes listed in article 8(2)(a)(vi) and (vii) that the accused must be aware of the factual circumstances conferring the victim(s) with protected status under the Geneva Conventions.

⁴⁵ See also mn 16 *et seq.*

⁴⁶ *Ibid.*

However, persons who are aware of the factual basis and the social importance but (nevertheless) wrongfully believe that the legal definition is not applicable to their conduct, fall under the category of ‘mistake of law’. They undertake (as already mentioned in mn 17) an evaluation which is not at all demanded but falls exclusively within the competence of those who have to apply the law.

2. Perception as basis for ‘the mental element required’

According to article 30(1), the mental element presupposes ‘for a crime within the jurisdiction of the Court’ that ‘the material elements are committed with intent and knowledge’. A person who is not aware of a certain situation or a single material element cannot exhibit this *mens rea*; nor does the person know of its existence or its coming into existence like, for instance, the results of an act. Perception therefore is the basis for ‘the mental element required’. Where it is lacking, ‘the mental element required’ does not exist and no criminal responsibility can be established⁴⁷.

3. Legal consequences

The consequences from the above considerations about mistakes of fact include the following: anybody mistaken about or not aware of a material element cannot exhibit ‘the mental element required’. Since the mental element is missing, the mistake constitutes ‘a ground for excluding criminal responsibility’. A person who is free from criminal responsibility is free from penal guilt and therefore cannot be punished. Insofar as the Statute does not provide otherwise (like in article 28), he or she has to be acquitted.

To the extent that a provision in the Statute requires a mental element other than intent and knowledge, article 32(1) does not regulate it. But by *argumentum e contrario*, if there exists such a regulation independent of intent and knowledge, e.g. negligence, the mental element required for this different concept of responsibility is not automatically lacking. Rather, it depends on whether the mistake of fact was unavoidable or avoidable. If it was unavoidable, most probably the concept of negligence will not apply. If, however, it was avoidable, the negligent commission of the fact may be punished, provided the Statute or other laws contain a rule punishing such negligent conduct, like in the case of command responsibility under article 28⁴⁸.

When deciding that criminal responsibility is **not** excluded, the Court nevertheless may rule that the mistake of fact was of such a character that it **may** constitute a circumstance calling for the mitigation of punishment. This is because the Court ‘in determining the sentence ... shall ... take into account such factors as the gravity of the crime and the individual circumstances of the convicted person’, according to article 78(1). Even though not specifically mentioned in article 32(1), this possibility is open in all cases falling under article 32. Therefore, even if a situation does not constitute ‘a ground for excluding criminal responsibility’, mistakes belong to the ‘individual circumstances’ of the convicted person and, therefore, have to be taken into consideration. They may even impinge on the judgement of ‘the gravity of the crime’ because this includes not only the harm but also the amount of guilt – personal blame – for committing the crime. Article 78 entails that certain Rules have to be respected, in particular rule 145, since they may determine by what amount such factors reduce the penalty⁴⁹.

A further consequence of paragraph 1 is that a mistake about facts underlying a defense, like self-defense, does not negate the mental element required. If it was unavoidable, such an error may exclude punishment for the respective crime. If it was avoidable, it may lead to

⁴⁷ See also mn 16 *et seq.*

⁴⁸ For the mental element see Piragoff, *article 30*, mn 1 *et seq.*, and with regard to command responsibility see Arnold and Triffterer, *article 28*, mn 1 *et seq.*

⁴⁹ For such consideration see Jennings, *article 78*, mn 2 and 9 and Triffterer and Burchard, *article 27*, mn 25.

negligent responsibility according to the national regulations in Austria and Germany and some other countries, which can be applicable according to article 21(1)(c).

II. Paragraph II: Mistake of law

1. Differentiation from mistake of fact

- 29 The explanation above that an express mistake has to be treated in the same way as lack of awareness is, in principle, also valid for legal elements. The difference between the two mistakes mentioned in paragraphs 1 and 2 is explained by the two examples given in the first sentence of paragraph 2. But these examples are not exhaustive, as can be seen from sentence 2 in this paragraph. Generally, the difference can be characterized by the definition of facts given above and by defining legal elements as those with specific legal content. Examples, in addition to those already given above, include ‘impermissible under international law’ in article 7(1)(h) and ‘a regularly constituted Court’ in article 8(2)(c)(iv)⁵⁰.

2. Aspects to be mistaken

- 30 The concept of paragraph 2 is broad and the examples given in its first sentence can serve only as guidelines for a mistake of law that does not ‘negate[s] the mental element required’.
- 31 a) ‘whether a ... conduct is a crime within the jurisdiction of the Court’. It is unclear whether the wording of paragraph 2 sentence 1 refers to two mistakes of law or just to one that is precisely explained by reference to the jurisdiction of the Court.
- ‘Whether a particular conduct is a crime’ refers to the awareness of the punishability of the act. The perpetrator is aware of all relevant facts but draws the wrong conclusion, namely that his **correctly** perceived conduct, free of error, does not fulfil the prerequisites for ‘a particular type of conduct’ constituting a crime. This mistake is evaluated as an irrelevant error and therefore ‘shall not be a ground for excluding criminal responsibility’. The phrasing ‘shall not’ makes clear that there is no discretion in the Court to come to another judgement.
- If a person evaluates ‘a particular type of conduct’ (correctly) as a crime but believes that this crime does not fall ‘within the jurisdiction of the Court’, he or she is just mistaken about the competence of the ICC to exercise its jurisdiction. This knowledge is, however, **not** an essential element of the crime nor has it any other importance for establishing, in principle, the criminal responsibility of the suspect. Similarly, in national law an error about which court is competent to prosecute the crime is completely irrelevant. Therefore, it does not matter whether the two references ‘whether a ... conduct is a crime’ and ‘within the jurisdiction of the Court’ are treated as one or two separate elements, because in both cases the result is the same: the mistake of law ‘shall not be a ground for excluding criminal responsibility’.
- 33 b) **Other ‘legal elements’**. Paragraph 2 sentence 2 suggests that there are other mistakes of law which shall **not necessarily**, but ‘may ... be a ground for excluding criminal responsibility’ (emphasis added).
- 34 aa) **Knowledge of the facts**. All legal elements have their basis in facts, which have to be known if the perception of the element is to reach the awareness of the perpetrator. Someone who is not aware of the purpose for which ‘a flag of truce’ may be used, cannot comprehend an ‘improper use’ of it under article 8(2)(b)(vii)⁵¹. This serves as an additional example of the close relationship between **normative** (material) and **legal** elements, which have been dealt with under mn 15 and 21 *et seq.* If the word improper is defined as ‘forbidden by law’, it is a legal element; if it refers to mere customs **socially** respected, it would be a normative element.

⁵⁰ See also mn 34.

⁵¹ See mn 15 *et seq.* and 29.

There are few **legal** elements in the Statute about which a mistake of law may arise under paragraph 2 sentence 2. One may be contained in article 8(2)(b)(xx): ‘subject of a comprehensive prohibition’ or ‘by an amendment in accordance with the relevant provisions’. Someone who does not know of any prohibitive rule or ‘relevant provisions’ does not know the relevant facts, *i.e.* the basis on which this legal element is built upon. Therefore, he cannot be aware that his behaviour violates this regulation because his mistake concerns prerequisite constitutive facts for the legal element⁵².

bb) Mistaken legal evaluation. On the contrary, someone who is correctly aware of the situation and knows the constituent circumstances but nevertheless believes that the prohibition is not applicable to his conduct, or the amendment was not ‘in accordance with the relevant provision’ under article 8(2)(b)(xx), evaluates the **legal** situation incorrectly. The same is true for someone who knows of the judicial guarantees in the 1966 UN Covenant on Civil and Political Rights, but wrongly assumes that these rights are not ‘generally recognized as indispensable’ under article 8(2)(c)(iv) or wrongfully believes that this treaty is not valid or valid only between some States. He correctly understands the situation but also evaluates it incorrectly. He makes a **legal** evaluation, a value judgement, which is not necessary as part of his ‘obligation’ and therefore his mistake is of no relevance.

3. Legal consequences

It is worth noting that there is a difference in the wording in paragraph 2 between sentence 1 (‘shall’) and sentence 2 (‘may’). This needs clarification with regard to excluding or granting discretion to the Court.

a) Excluding or not ‘excluding criminal responsibility’. The alternatives expressed in both sentences of paragraph 2 are very clear. The two mistakes mentioned in the first sentence ‘shall not be a ground for excluding criminal responsibility’. This means there is criminal responsibility upon which a penalty has to be applied. The Court has no discretion with respect to this judgment as to criminal responsibility.

However, with regard to other mistakes of law referred to in sentence 2, there is discretion which is expressed by the word ‘may’. There is no obvious hint in article 32 or elsewhere in the Statute about how to exercise this discretion. Since the difference between sentence 1 and 2 must presumably make sense, it may be based on the following reason. The Court has to decide to which category the mistake should be assigned: is it an error regarding the underlying facts or a mistaken legal evaluation? Assuming the first, the consequence is regulated obligatorily by paragraph 1; because the error is factual it falls under this provision. The discretion expressed in paragraph 2 sentence 2 concerns exclusively a mistake of law by a wrongful **legal** (or normative) evaluation. This means, the Court **may** judge that even in these cases a mistake of law may negate the mental element required and thus exclude responsibility, because the error was unavoidable. The ‘unavoidableness’ is not mentioned in article 32, but this criterion is well accepted by general principles of law.

The Court, therefore, in cases of paragraph 2 sentence 2, has a twofold task. First, to decide whether this mistake of law concerns the underlying facts including the law or the rule to be applied; a positive answer entails that it has no discretion because paragraph 1 is mandatory. In contrast, when the mistake is based on a wrongful **legal evaluation**, the Court must decide if this was avoidable or not and consequently whether criminal responsibility is excluded or not.⁵³

b) Mitigating circumstances. Even though the alternatives mentioned in article 32(2) are exhaustive, excluding or not excluding criminal responsibility according to sentence 2,

⁵² See also *mn 14 et seq.*

⁵³ Contra, see K. Ambos, *Treatise ICL I* (2013) 373–374, who concludes that the term ‘may’ is not a reference to the court’s discretion but rather to the fact that ‘not every mistake of law is relevant – only ones which negate the mental element’.